Date and Time: Thursday, 29 October, 2026 9:15 pm IST

Job Number: 300439838

Documents (17)

1. *INTRODUCTION*
   Client/Matter: -None-
2. *APPENDIX TO INTRODUCTION*
   Client/Matter: -None-
3. *PREAMBLE*
   Client/Matter: -None-
4. *[Art 1] Name and territory of the Union-*
   Client/Matter: -None-
5. *[Art 2] Admission or establishment of new States.-*
   Client/Matter: -None-
6. *Article 2A. [Sikkim to be associated with the Union.] Rep. by the Constitution (Thirty-sixth Amendment) Act, 1975, section 5 (w.e.f. 26 April 1975).*
   Client/Matter: -None-
7. *[Art 3] Formation of new States and alteration of areas, boundaries or names of existing States.-*
   Client/Matter: -None-
8. *[Art 4] Laws made under Articles 2 and 3 to provide for the amendment of the First and the Fourth Schedules and supplemental, incidental and consequential matters.-*
   Client/Matter: -None-
9. *[Art 5] Citizenship at the commencement of the Constitution.-*
   Client/Matter: -None-
10. *[Art 6.] Rights of citizenship of certain persons who have migrated to India from Pakistan.-*
    Client/Matter: -None-
11. *[Art 7] Rights of citizenship of certain migrants to Pakistan.-*
    Client/Matter: -None-
12. *[Art 8] Rights of citizenship of certain persons of Indian origin residing outside India.-*
    Client/Matter: -None-
13. *[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-*
    Client/Matter: -None-
14. *[Art 10] Continuance of the rights of citizenship.-*
    Client/Matter: -None-
15. *[Art 11] Parliament to regulate the right of citizenship by law.-*
    Client/Matter: -None-
16. *General*
    Client/Matter: -None-
17. *[Art 12] Definition.-*
    Client/Matter: -None-

LexisNexis | About LexisNexis | Privacy Policy | Terms & Conditions | Copyright © 2026 LexisNexis

INTRODUCTION

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BASUJustice S S Subramani

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 12 > DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 12 > THE CONSTITUTION OF INDIA; VOL 1

THE CONSTITUTION OF INDIA; VOL 1

INTRODUCTION

CONSTITUTION OF INDIA

PART I

STATE1. STATE : DEFINITION OF

As defined in International law a state is,

> an independent political entity" "occupying a defined territory", "the members whereof are united together for the purpose of resisting external force and preservation of internal order.

This definition lays stress on "police functions" of the state *i.e.* merely a "law and order" state. It however aspires to become a social welfare state. And this aspiration makes it necessary to establish certain fundamental organs, which makes it necessary to have a constitutional law. Thus the purpose of having a *constitution* is to have a frame-work of government which is likely to endure through the vicissitudes of a nation.[1]

According to JOHN SALMOND, a state is defined thus,

> A State or political society is an association of human beings established for the attainment of certain ends by certain means. It is the most important of all the various kinds of society in which men unite, being indeed the necessary basis and condition of peace, order, and civilization. What then is the difference between this and other forms of association? In what does the State differ from such other societies as a church, a university, a joint stock company, or a trade union? The difference is clearly one of function. The state must be defined by reference to such of its activities and purposes as are essential and characteristic.[2]

According to J.L. BRIERLY, in *The Law of Nations*, a State is defined thus,

> A state is an institution, that is to say, it is a system of relations which men establish among themselves as a means of securing certain objects, of which the most fundamental is a system of order within which their activities can be carried on. Modern States are territorial; their governments exercise control over persons and things within their frontiers, and today the whole of the habitable world is divided between about seventy of these territorial States. A State should not be confused with the whole community of persons living on its territory; it is only one among a multitude of other institutions, such as churches and corporations, which a community establishes for securing different objects, though obviously it is one of tremendous importance; none the less it is not, except in the ideology of totalitarianism, an all embracing institution, not something from which, or within which, all other institutions and associations have their being; many institutions, e.g., the Roman Catholic Church, and many associations, e.g., federations of employers and of workers, transcend the boundaries of any single State.[3]

According to BLACK'S LAW DICTIONARY:[4]

> The political system of a body of people who are politically organized; the system of rules by which jurisdiction and authority are exercised over such a body of people (separation of church and State) – Also termed political society. 2.

> An institution of sell-government within a larger political entity; especially one of the *constitution* parts of a nation having a federal government (the 50 States). Also termed non-sovereign state. 3. The prosecution as the representative of the people (the State rests its case).

According to COOLEY,

> A body politic, or society of men, united together for the purpose of promoting their mutual safety and advantage, by the joint efforts of their combined strength.[5]

The term “State” derives from “status” and originally meant a recognised function in the overall scheme of things. In ancient Greece and Rome, the “City State” was regarded as an independent, self-governing community existing primarily for military purposes. The contemporary idea of the State has developed from this into what is inaccurately called “a nation State”. There is no necessary connection between the idea of a nation and that of a State, although sometimes the two terms are used interchangeably. A nation is a cultural, political and historical idea, but not a legal concept. It signifies relatively homogeneous community marked out, for example by common language, common ethnicity or shared cultural tradition. A State is defined by law and based on geographical boundaries. However, a nation may have a moral claim to be a State with its own laws and government.[6] According to the learned author, the UK has never found it necessary to create the notion of State as a single legal entity. In English law, the concept of the State is used loosely to describe any governmental activity. (p. 113).

In American Constitutional Law, the word “State” is applied to the several members of the American Union, while the word “Nation” is applied to whole body of people embraced within the jurisdiction of the Federal Government.[7]

HOOD PHILIPS in his book on *Constitutional and Administrative Law*[8] defined the State thus,

> We may define a State as an independent political society occupying a defined territory, the members of which are united together for the purpose of resisting external force and the preservation of internal order. No independent political society can be termed a State unless it professes to exercise both these functions; but no modern State of any importance contents itself with this narrow range of action. As civilization becomes more complex, population increases and a social conscience arises, the needs of the governed call for increased attention: taxes have to be levied to meet these needs; justice must be administered, commerce regulated, educational facilities and many other social services provided.
>
> A fully developed modern State is expected to deal with a vast mass of social problems, either by direct activity or by supervision or regulation. In order to carry out these functions, the State must have agents or organs through which to operate. The appointment or establishment of these agents or organs, the general nature of their functions and powers, their relations inter se and between them and the private citizen, form a large part of the *Constitution* of a State.

RIDGES in his book *Constitutional Law*[9], has defined the State thus,

> The State is a politically organized society, performing within its territories certain functions. These include the maintenance of law and order; defence against aggression; sometimes the control of a colonial empire; and, increasingly in modern times, the promotion of the welfare, education and health of the citizens and the regulation of trade and industry. To achieve these purposes money is necessary and also rules if the huge and complicated organization that these ends require is to work smoothly or at all. Hence the raising of taxes and the making of laws are basic functions of a modern State; and so is the employment of a host of officials to collect the money and spend it on carrying out the laws. But the State consists of people and it is also necessary that rules should be provided to regulate the relations of one individual to another and also the relations of the individual to the State.

The various uses of the word “State” are well expressed in *Taxes v White.*[10] It sometimes designates a people of community of individuals united more or less closely in political relations; inhabiting temporarily or permanently in the same country. Often it denotes only the country or territorial region, inhabited by such a community. Not infrequently it is applied to the Government under which people live. At other times, it represents the combined idea of people, territory and government. In the same sense, “State” is defined as a political community of free citizens occupying a territory of defined boundaries and organised under a government.

2. CONSTITUTION(a) Definition and Explanation

Constitution is the system or body of fundamental principles according to which a nation, state or body politic is constituted and governed; it is the action of constituting or establishing.[11] It is, in other words a set of Laws and rules setting up the machinery of the Government of a State and which defines and determines the relations between the different institutions and areas of Government, the Executive, the Legislature and the Judiciary, the Central, the Regional and the Local Government. In fact, a *constitution* is the source, the jurisprudential fountain head from which other laws must flow, succinctly and harmoniously.[12] According to WALKER[13] it is the fundamental political and legal structure of Government of a distinct political community, settling such matters as the head of state, the legislature, executive and judiciary, their composition, powers and relations. Every state has a *constitution*, since every state functions on the basis of certain fundamental principles and rules. In old states *i.e.* states of the western world, the *Constitution* is to some extent a natural or customary development, and it is only since the Renaissance and Reformation that it is has been accepted that the people of a country can deliberately settle and adopt a *constitution* for themselves as the citizens of a state.

Constitution is thus the creation of a Sovereign act. It is the result of extraordinary legislation direct from the people acting in their Sovereign capacity, enabling a government structure to be set up, laying down the methodology and extent of the distribution of its powers; the methods and principles of its operation as well as embracing the spirit of a nation. The Supreme Court has defined What is *Constitution*?[14] The relevant portion reads thus—

> The *Constitution* is a document having a special legal sanctity which sets out the framework and the principal functions of the organs of the Government within the State and declares the principles by which those organs must operate. The *Constitution* refers to the whole system of the governance of a country and the collection of rules which establish and regulate or govern the Government. In our country, we have a written *constitution*, which has been given by the people of India to themselves. *The saidconstitution occupies the primary place.* Notwithstanding the fact, we have a written *constitution*, in course of time, a wide variety of rules and practices have evolved which adjust operation of the *constitution* to changing conditions. No written *constitution* would contain all the detailed rules upon which the Government depends. The rules for electing the legislature are usually found not in the written *constitution* but in the statutes enacted by the legislature within limits laid down by the *constitution*. *A constitution is a thing antecedent to a Government, and a Government or a good governance is a creature of the constitution.* A documentary *constitution* reflects the beliefs and political aspirations of those who had framed it. One of the principles of constitutionalism is what it had developed in the democratic traditions. *A primary function that is assigned to the written constitution is that of controlling the organs of the Government.* Constitutional law presupposes the existence of a State and includes those laws which regulate the structure and function of the principal organs of the government and their relationship to each other and to the citizens. Where there is a written *constitution*, emphasis is placed on the rules which it contains and on the way in which they have been interpreted by the highest court with constitutional jurisdiction. Where there is a written *constitution* the legal structure of the Government may assume a wide variety of forms. Within a federal *constitution*, the tasks of the Government are divided into two classes, those entrusted to the federal organs of the government, and those entrusted to the various States, regions or provinces which make up the federation. But the constitutional limits bind both the federal and State organs of the Government, which limits are enforceable as a matter of law. Many important rules of constitutional behaviour, which are observed by the Prime Minister and Ministers, members of the Legislature, Judges and civil servants are contained neither in Acts nor in judicial decisions. But such rules have been nomenclatured by the *constitution*-writers to be the rule of “the positive morality of the *constitution*” and sometimes the authors provide the name to be “the unwritten maims of the *constitution*” – rules of constitutional behaviour, which are considered to be binding by and upon those who operate the *constitution* but which are not enforced by the law courts nor by the presiding officers in the House of Parliament….
>
> …Where the country has a written *constitution* which ranks as fundamental law, legislative or executive acts which conflict with the *constitution* must be held to be unconstitutional and thus illegal. The people of the country, the organs of the Government, Legislature, executive and judiciary are all bound by the *Constitution* to be supreme lex or the paramount law of the land and nobody is above or beyond the *Constitution*.

Constitution is the mechanism under which laws are to be made and not merely an act which declares what law is to be.[15]

The *Constitution* is not an ephemeral legal document embodying a set of legal rules for the passing hour. It sets out principles for an expanding future and is intended to endure for ages to come and consequently to be adapted to the various crises of human affairs.[16]

Constitution is organic in nature. Being a living organ, it is ongoing. Hence, with the passage of time, the law must change.[17] A *Constitution* is intended to serve the needs of the day when it was enacted and also to meet the needs of changing conditions in new circumstances. In that sense, the words and expressions used in the *Constitution* have no fixed meaning and must receive an interpretation based on the experience of the people in the course of the working of the *Constitution*. This principle may not apply to statutes. The *Constitution* is a permanent document framed by the people and has been accepted by the people to govern them for all times to come.[18] It is a constitutive document fundamental to the governance of the country, whereby, according to accepted political theory, the people of India have provided a Constitutional polity consisting of certain primary organs, institutions and functionaries to exercise the powers provided in the *Constitution*. All powers belong to the people and these powers are entrusted by them to specified institutions and functionaries with the intention of working out, maintaining and operating a constitutional order.[19] The rule of law is the core of our *Constitution* and it is the essence of the rule of law that the exercise of the power by the State, whether by the legislature or the executive or any other authority, should be within Constitutional limits.[20] The *Constitution* contemplates that every action of the State should be fair, *bona fide,* non-discriminatory and unbiased. The decision should be based on the rule of law and known principles and should not be unpredictable.[21] Under the *Constitution* all powers and competence have to be locatable either explicitly or impliedly within the *Constitution* and exercised within the four corners of constitutional permissibility, values and scheme. Hence, there cannot be any power that is essentially unchecked and uncontrolled in a State governed by a *Constitution*.[22] The rule of law affirms the Parliament's supremacy, while at the same time denying it sovereignty over the *Constitution*.[23]

The *Constitution of India*, being a written *Constitution*, is the fundamental law of the land. This has several significant implications. It is under this fundamental law that all laws are made and executed, all governmental authorities act and validity of their functions adjudged. No legislature can make a law and no government agency can act contrary to the *Constitution*. No act executive, legislative, judicial or quasi-judicial of any administrative agency can stand if it is contrary to the *Constitution*. The *Constitution* thus conditions the governmental process in the country. In 2012, Pakistan's Supreme Court held that an unconstitutional legislation becomes *non-est* along with all actions pursuant thereto.[24]

The *Constitution* does not merely speak of human rights protection. It also speaks of preservation and protection of men as well as animals, all creatures, plants, rivers, hills and environment. The *Constitution of India* professes for collective life and collective responsibility on the one hand and individual rights and responsibilities on the other hand.[25] Both Rule of Law and equality before law are cardinal principles of Constitutional Law as also International Law and in this context, the judiciary has a vital role to play.[26]

The *Constitution* is a unique legal document. It enshrines a special build of norm and stands at the top of a normative pyramid. Difficult to amend, it is designed to direct human behaviour for years to come. It shapes the appearances of the State and it aspiration through history. It determines the State's fundamental political views. It lays foundation for its social values. It determines its commitments and orientations. It reflects the events of the past. If lays the foundation for the present. It determines how the future will look. It is philosophy, polities, society and law, all in one. Performance of all these takes by a *Constitution* requires a balance of its subjective and objectives elements, because "it is a *Constitution* we are expanding"[27]

The *Constitution* is the scheme or arrangement by which the various organs of the State are regulated; it deals with the distribution and exercise of the State's power; and rights and duties of the organs that exercise that power…[28]

> A *Constitution* is the basic law relating to the government of the country. It defines various organs of the State, enumerates their function and demarcates their fields of operation. But a *Constitution* is more than that. It is the vehicle of nation's progress. It has to reflect the best in the past traditions of the nation; it has also to provide a considered response to the present and to possess enough resilience to cope with the demands of the future. A *Constitution*, at the same time, has to be a living thing, living not for one or two generations but for succeeding generations of men and women. It is for that reason that the provisions of the *Constitution* are couched in general terms, for the great generalities of the *Constitution* have a content and significance that vary from age to age and have at the same time transcendental continuity about them. A *Constitution* cannot contain accurate details of all the sub-divisions of which its great power will admit nor can it provide exhaustively for different contingencies which may arise in the affairs of the State. Were it to do so, it would partake of prolixity and would probably be never understood by the public. Its nature therefore requires, in the words of CHIEF JUSTICE MARSHALL, that only its great outlines should be marked, its important objects be designated and the minor ingredients which compose those objects be deduced from the nature of the objects themselves. A *Constitution* is different from ordinary statutes which are designed to meet the fugitive

> exigencies of the hour. The statutes can be repeated or amended when the exigencies change. A *Constitution* states or ought to state, not the rules of the passing hour, but the principles for an expanding future. It is only on rare occasions that needs should arise for amendment of the *Constitution*, much less for its repeal or abrogation.[29]

In his book *Constitutional and Administrative Law*, by HOOD PHILIPS 3rd Edn, it is said:

> The work "*Constitution*" is used in two different senses, the abstract and the concrete. The *Constitution* of a State in the former sense is the system of laws, customs and conventions which define the composition and powers of organs of the State and regulate the relations of the various State organs to one another and to the private citizen. A "*Constitution*" in the latter sense is the document in which the most important laws of the *Constitution* are authoritatively ordained.

In 2001, the House of Lords appointed a Select Committee on the *Constitution*— (a) to examine the constitutional implications of all public bills coming to the House, and (b) to keep under review the operation of the *Constitution*. As a working guide for its own activities, the Committee defined the *Constitution* thus:— "The set of laws, rules and practices that create the basic institutions of the State and its component and related parts and stipulate the powers of those institutions and the relationship between the different institutions and between those institutions and the individual."

In their book *Constitutional and Administrative Law*,[30] the learned authors have said thus:– "…the word "*Constitution*" has two meanings – (a) In its narrower meaning, a *Constitution* means a document having a special legal sanctity which sets out the framework and principal functions of the organs of government within the State and declares the principles by which those organs must operate. In those countries in which the *Constitution* has overriding legal force, there is often a Constitutional Court which applies and interprets the text of the *Constitution* in disputed cases. Such a court is the Supreme Court in USA or the Federal Constitutional Court in Germany. In those countries, legislative or administrative acts may be held by the Constitutional Court to be without legal force when they conflict with the *Constitution*".[31]

The word "*Constitution*" has a wider meaning. By the *Constitution* we mean, whenever we speak with propriety and exactness, that assemblage of laws, institutions and customs derived from certain fixed principles of reason, directed to certain fixed objects of public good, that compose the general system, according to which the community has agreed to be governed.[32]

Or, in more modern words, *Constitution* in its wider sense refers to the whole system of government of a country, the collection of rules which establish and regulate or govern the government. In this sense, the United Kingdom has a *Constitution* since it has a complex and comprehensive system of government, which has been called as "one of the most successful political structures ever devised".[33] This system is founded partly on Acts of Parliament and judicial decisions, partly upon political practice and partly upon detailed procedures established by the various organs of government for carrying out its own tasks, for example, the law and custom of Parliament or the rules issued by the Prime Minister to regulate the conduct of ministers.

In the wider sense of the word, "*Constitution*" necessarily includes a *Constitution* in the narrower sense. In Canada, the USA, India and many other States, the written *Constitution* occupies the primary place among the "assemblage of laws, institutions and customs" which make up the *Constitution* in the wider sense.

But no written document alone can ensure the smooth working of the system of government. A written document has no greater force than that which persons in authority are willing to attribute to it. Around a written *Constitution* will evolve a wide variety of customary rules and practices which adjust the operation of the *Constitution* to changing conditions. These customary rules and practices may often be more easily changed than *Constitution* itself and their constant evolution will reduce the need for formal amendment of the written *Constitution*. As has been said of the US *Constitution*, "The governing *Constitution**via* synthesis of legal doctrines, institutional practices and political norms".[34]

Neither can a written *constitution* contain all the detailed rules upon which the government depends. Thus the rules for electing the legislature are usually found not in the written *constitution*, but in the ordinary statutes enacted by the legislature within the limits laid down by the *Constitution*. Such statutes can when necessary be amended by ordinary legislation, whereas amendments to the *constitution* may require a more elaborate process, such as special majority in the legislature or referendum.

In his book *Constitutional and Administrative Law,* JOHN ALDER says: "It is probably not worthwhile attempting

to find a precise definition of a *Constitution*, which is more a general idea than a precise legal concept. Many writers have tried to capture the essence of a *constitution*, each emphasizing different aspects –

(a) Prof. Dicey gives a bland definition, all rules which directly or indirectly affect the distribution and exercise the sovereign power of the State;

(b) Sir John Law (1996), a contemporary Court of Appeal Judge, described the *Constitution* normally as "that set of legal rules which govern the relationship in State between the ruler and the ruled".

(c) More broadly, Lord Bingham, another learned Judge suggested that "any *Constitution*, whether of a State, a trade union, a college, a club or other institution seeks to lay down and define…the main offices in which the authority is vested and the powers which may be exercised (or not exercised) by the holder of those offices".[35]

(d) Freidrich exemplifies an approach that stresses the consent of the community: "a *Constitution* is the ordering and dividing of the exercise of political power by that group in an existent community who are able to secure the consent of the community and who thereby make manifest the power of the community itself".[36]

(e) Tully[37] offers a legally oriented definition capturing the notion that the *Constitution* has a special status : the cluster of "supreme" or "essential" principles, rules and procedures to which other laws, institutions and governing authorities within the association are subject".

T.M. COOLEY in his book *A Treatise on the Constitutional Limitations*, Indian reprint, 2005 at p 2 has defined *Constitution* thus:

> A *constitution* is sometimes defined as the fundamental law of a state, containing the principles upon which the government is founded, regulating the division of the sovereign powers, and directing to what persons each of these powers is to be confided, and the manner in which it is to be exercised. Perhaps an equally complete definition would be, that body of rules and maxims in accordance with which the powers of sovereignty are habitually exercised.

A *constitution* may be written or unwritten. A *Constitution* is said to be "written" when the most important Constitutional Laws are specially enacted. Nearly all civilized States have written or enacted Constitutions. It is not practicable for a written *Constitution* to contain more than a selection of Constitutional Laws. It is invariably supplemented, within the limits prescribed by the *Constitution*, by amendments passed in the prescribed manner, by Organic Laws and other legislation passed in the ordinary way from time to time to fill in gaps, and usually also by judicial decisions interpreting the written documents and by customs and conventions regulating the working of the machinery of government.[38]

Most countries have a written *Constitution*, by which we mean that there is a document or series of documents setting out and defining the powers of the State and its organs and, in some cases, also containing guarantees of individual liberty and private rights. This written document, usually enacted with great formality, is frequently the consequence of a rebellion or revolution.[39]

The tradition of the written Constitutionalism makes it possible to apply concepts and doctrines not recoverable under the doctrine of unwritten living *Constitution*. The *Constitution* is a precious heritage and, therefore, you cannot destroy its identity.[40]

A *constitution* is written down in the form of a constitutional document. Describing the formlessness of the British *Constitution*, KEETON observes:

> The absence of a written *constitution* deprives us of a fundamental starting point from which all constitutional law can be derived. We have no groundnorm from which the individual norms of constitutional law can receive their validity.[41]

A written *constitution* is the formal source of all constitutional law in the country; It is the Supreme and fundamental law of the land. Every organ in the country must act in accordance with it. No statutory provision can stand in the way of a constitutional provision in case of conflict between them.[42]

The *Constitution* being supreme all the organs and bodies owe their existence to it. None can claim superiority over the other and each of them has to function within the four corners of the constitutional provisions. All the functionaries be they legislators, members of the executive or the judiciary take oath of allegiance to the *Constitution* and derive their authority and jurisdiction from its provisions.[43] In America, after a constitutional

question has been passed upon by the legislature, there is generally a right of appeal to courts, where an attempt is made to put the will of the legislature in force. For the will of the people, as declared in the *Constitution*, is the final law; and the will of the legislature is law only when it is in harmony with or at least not opposed to that controlling instrument which governs the legislative body equally with the private citizen.[44]

The *Constitution* is the creation of a sovereign act. It is the result of extraordinary legislation direct from the people in their sovereign capacity enabling a government structure to be set up, laying down the methodology and extent of the distribution of its powers, the methods and principles of its operation as well as embracing the spirit of the nation. Ordinarily laws (as distinct from those rights and duties enshrined in the *Constitution*) are enacted to meet certain contingencies or certain situations or areas (spheres of human interaction), whereas the *Constitution* is framed for ages to come and is designed to approach immortality as near as human institution can approach.[45] The supremacy of the *Constitution* is undisputed and cannot be challenged in a court of law. Any law made by the legislature if repugnant to the *Constitution* will be void.[46]

No authority created under the *Constitution* is supreme; the *Constitution* is supreme; and all the authorities function under the supreme law of the land.[47]

People of the country, the organs of the Government, legislature, executive and judiciary are all bound by the *Constitution*.[48]

Our Supreme Court has already declared that it is constituted the protector and guarantor of the Fundamental Rights and it cannot consistently with the responsibility so laid upon it, refuse to entertain applications seeking protection against infringement of such rights.[49]

The power of the Supreme Court and High Courts to test the constitutional validity of legislation can never be ousted or excluded.[50]

The court has also declared that it is a guarantor and protector of fundamental rights.[51]

The courts are regarded as the interpreters as well as the guardian of the *Constitution*. Judiciary must see that the *constitution* is not violated by any governmental organ. This has given rise to the doctrine of judicial review. In ultimate analysis, it must be said that the word of the Apex Court as to what the *constitution* means, prevails. As observed by Dowling, “The study of Constitutional law…may be described in general terms as a study of the doctrine of judicial review in action.”[52]

It must be remembered that a written *constitution* may seek to put formal restraints upon the abuse of power, which may be lacking in an unwritten *constitution*.
(b) Constitution and Laws— Constitution as a higher law

The supremacy of the *Constitution* is undisputed and cannot be challenged in a court of law.

In *Minerva Mills v UOI,*[53] it was held that people of the country, the organs of the Government, Legislature, executive and judiciary are all bound by the *Constitution* which is the paramount law of the land and nobody is above or beyond the *Constitution*.[54]

The written *constitution* is thus the fundamental law of a country, standing above ordinary law, the express embodiment of the doctrine of the reign of law. There “is a fundamental distinction between constitutional law and the rest of the law…There is a clear separation, therefore, between the constitutional law and the rest of the law”.[55] It is called “fundamental” because it sets up the very organs of the government which are invested with the power to make ordinary laws and to administer them and also because the law embodied in the written *constitution* cannot be changed by ordinary legislation. Very often arguments are made claiming the supremacy or sovereignty for various organs so that they may act in a manner that is essentially unchecked and uncontrolled. Indeed, it may be necessary for the State to possess some extraordinary powers and exert considerable force to tackle such situation. Nevertheless, all such powers, competence and extent of force have to be located, either explicitly or implicitly within the *Constitution* and exercised within the four corners of constitutional permissibility, values and scheme. There are two aspects of such arguments claiming absolute powers which are worrisome. The first relates to a misconception of the concept of sovereignty and of power and a predilection to oust judicial scrutiny even at the minimal level, such as examination of the *vires* of the legislation or other types of state action. The second relates to predilection of counsel of asking for powers that an undefined, unspecified, vague illimitable to read into constitutional text, as matters of some principle of inherent design or implied necessity. It was held that there cannot be any power that is essentially unchecked

and uncontrolled when the State is governed by a written Constitution since every organ has to recognise the supremacy of the Constitution.[56] It was held therein that while some features are capable of being amended by the Parliament, pursuant to the amending power granted by Article 368, the essential feature *i.e.,* the basic structure of the Constitution is beyond such powers of Parliament. The power to make changes in the basic structure of the Constitution vests only in the people sitting as a nation, through their representatives in a Constituent Assembly.[57]

In *Kerala State Cashew Development Corp v Shahul Hassan Mussaliar*,[58] the court held that while in Constitutional Law, its validity is inherent, in the case of ordinary law, its validity is to be tested on the touchstone of the Constitution. When one speaks of legislative competency and the will of the people, the doctrine essentially consists of a rule which governs the legal relationship between the legislature and the court, but what is stated to be legislative supremacy as in the United Kingdom (which has no application in India) which is a country with no written Constitution limiting the extent of such supremacy of the legislature or Parliament. In other words, the people of this country, the organs of the Government, legislature, executive and judiciary are all bound by the Constitution.[59]

Accepting the theory of eminent jurist Kelson (The Pure Theory of Law) that in every country there is a hierarchy of legal norms, headed by what he calls as the "ground norm" (*i.e.,* the basic norm), the Supreme Court has held that in India, the "ground norm" is Indian Constitution and the hierarchy is as follows:–(a) The Constitution of India; (b) statutory law which may be made either by Parliament or by State legislature. (c) Delegated legislation which may be in the form of rules made under the statute, regulation made under a statute, *etc*. (d) Pure executive orders which are not made under the statute. The court further held that if a law (norm) in a higher layer in the above hierarchy clashes with the law of lower layer, the former will prevail. Hence a constitutional provision will prevail over all other laws, whether in a statute or in the delegated legislation or in an executive order. The Constitution is the highest law of the land and no law which is in conflict with it can survive. Since the law made by the legislature is in the second layer of the hierarchy, it will be invalid if it is in conflict with the provisions of the Constitution (except the Directive Principles of State Policy in view of Article 37 which have been expressly made not enforceable).[60]

Superiority of the Constitution over a law made by Parliament is founded on the following premise: (a) That the Constitution was made by the people. The direct authority of the people cannot be claimed by the legislature which is a representative body under the modern Constitution. Because since the people constitute the ultimate sovereign who set up the Constitution and the Government established thereunder, the law laid down by the Constitution must necessarily be superior to the laws made by the legislature which is an organ created by the Constitution itself. (b) That the source of the authority of all organs of the State including the legislature is the Constitution, which created them. It follows that the legislature cannot exercise any power which is not conferred upon it by the Constitution. In *Perry v US*,[61] while interpreting the American Constitution, which is also a written Constitution, it was held "to be exerted on behalf of the people in the manner and with the effect the Constitution ordains". The Congress cannot invoke the sovereign power of the people to override their will as thus declared. In the Indian Constitution under Article 13 (2), there is an express provision to the effect that in case of a conflict with the Constitution, the law made by the legislature shall be void or invalid and the said provision clears any doubt, if there is any, to hold that the Constitution constitutes the superior or higher law which limits the power of legislature. It is held that such a provision is included only by way of abundant caution, for, even without such a provision, the principle dominates, unless the Constitution itself provides otherwise, for, the Constitution is a law higher than a law made by the legislature created by the Constitution, and there is no higher law above the Constitution.[62]

M.P. Jain in his book *Indian Constitutional Law*[63] has said: "The Constitution of India being written constitutes the fundamental law of the land. This has several significant implications. It is under this fundamental law that all laws are made and executed; all government authorities act and validity of their functioning adjudged. No legislature can make a law and no government agency can act contrary to the Constitution. No act, executive, legislative, judicial or quasi-judicial of any administrative agency can stand, if it is contrary to the Constitution. The Constitution thus conditions the whole governmental process in the country. The judiciary is obliged to see that the provisions of the Constitution are not violated by any governmental organ. This function of the judiciary entitles it to be called the "guardian" of the Constitution and it can declare an Act of Legislature or an administrative action contrary to the Constitution as invalid."

The normal rules of interpretation shall have to bow down to the requirement of the Constitution since the Constitution is supreme and the statutes have to be in accordance therewith and not *de hors* the same.[64] In our democratic system, the Constitution is the supreme law of the land and all organs of the government *i.e.,* the

Executive, Legislature and Judiciary – derive their power and authority from the *Constitution*. A distinctive feature of the *Constitution* is its amendability (except basic feature).[65]

The task of expounding a *Constitution* is crucially different from that of construing a statute. A statute defines present right and obligation. It is easily enacted and easily repealed. A *Constitution* by contrast is drafted with an eye to the future. Its function is to provide a continuity framework for the legitimate exercise of governmental power and when joined by a Bill, or a Charter of Rights for the unremitting protection of individual right and liberties. Once created, its provision cannot be easily repealed or amended. It must, therefore, be capable of growth and development over time to meet the social, political and historical realities often unimagined by the framers. The judiciary is the guardian of the *Constitution* and must, in interpreting the provision, bear these considerations in mind. Prof. Paul Freund expressed this idea aptly when he admonished the American Courts, not to read the provisions of the *Constitution* like a last will and testament, lest it becomes one.[66]

So far as the supremacy of the *Constitution* itself is concerned, there is no need in India of a supremacy clause as in Article VI of the American *Constitution*, because, in India, the States (excepting the State of Jammu & Kashmir) have no separate *Constitution* of their own and the same *Constitution* lays down the political system of the Union as well as the States. *Article 141* says that the laws declared by the Supreme Court shall be binding on all courts within the territory of India. So, when the interpretation of the *Constitution* of the Supreme Court prevails under *Article 141*, it is clear that what is supreme in India is the *Constitution* as interpreted by the Supreme Court.[67] The learned author has further said that the doctrine of "higher law" has since been firmly established in India would be evident if we turn to the mandatory provisions of the *Constitution* outside the Fundamental Rights in Pt III. In that wide realm, there is only one provision in *Article 254*(1) which enjoins the court to annul a State law which is repugnant to a Union law in the Concurrent List. But even though there is no provision corresponding to *Article 13* or *254* (1) to invalidate a Union or State law which violates "other" provisions of the *Constitution*, it is now settled that the same would happen if the provisions which have been violated are "justiciable" and "mandatory" in nature. The instances are numerous and it can hardly be exhausted.[68]

The concept of "higher law" as embodied in a written *Constitution* should not be confused with "Rule of law" which may exist even without a written *Constitution*. When a written *Constitution* has been adopted by a country, it has installed "a higher law" which has to be enforced by a court, as the paramount law controlling all organs of the State and thereafter to invoke in the realm of Constitutional law the concept of "Rule of law" which refers to the law made by the legislature, would be not only unnecessary, but even misleading.[69]

Since *Constitution* is the supreme law, every action of every authority is subject to law and nobody is above law. Parliament is not an exception to the above rule.[70]

Constitution is not to be construed as a mere law, or simply as a statute. It is the fountain head of all the statutes.[71]

The validity of the constitutional law cannot be challenged whereas that of ordinary law can be challenged on the touchstone of the *Constitution*.[72] The real distinction is that constitutional law is the source of all legal validity and is itself valid. On the other hand the other law must derive validity from a higher legal source which ultimately the *Constitution*. [PER RAY, J]. Constitutional law is the fundamental, superior or paramount law. Its authority and sanction are higher than those of ordinary laws.[73]

This Supremacy of the *Constitution* lies mostly in its indestructible nature. As described by the celebrated American jurist.[74]

> The *constitution* is not a document of fastidious dialectics, but means of ordering the life of a people. It is an organic growth.

Consequently though being indestructible and external law, the *constitution* may have to adapt itself to the changing times. The *constitution* is a constituent act forming the fundamental or organic law of the land to which all other laws made by the legislature must conform.

Constitution is thus equivalent to a "ground norm" or the basic rule and this is the core of Kelson's Theory,[75] which explains that the validity of the *Constitution* generally lies in the social fact of its being accepted by the community and for the reasons that its "norms" have become efficacious. Its validity is meta-legal.[76] Where the *Constitution* is a written one, that itself provides such a Supreme norm.[77] It is therefore now universally acknowledged that as the law-makers being the people themselves in whom the residuum of political power

and Sovereignty resides, the *Constitution* made by them, is, in every sense and circumstances the Supreme law.[78]

(c) Need for Constitution

This question can be answered in two ways: *Firstly* (a) from the social contract situation and *Secondly* (b) from the view point of a new start by the nations in the post-colonial era.

(a) A *constitution* is the natural desire of a politically organised people. They wish to have an enduring law so that there is a rule of law and stability of governance.

(b) A fitting example of the second answer is the *Constitution of India*—which is structured for fulfilling the aspirations of the people of India. *Constitution of India* is the Supreme law of the State which governs the life of the nation.[79]

A *Constitution* must grow with the growth of a nation and consequently, there must be provisions in *constitution* for change and growth. A *constitution* in the ultimate analysis must adapt itself to the changing need of the time.[80]

What is the need and purpose of the *constitution* is stated in *Constitutional Law* by Ridges. The relevant portion read thus:

> The rules governing the relationship of the individual to the State – his freedom from arrest by officials, the taxes he must pay and his duty to serve in the armed forces for example – are part of private law if we regard them from the individual's standpoint and equally they are part of public law if we regard them as part of the rights the "State" possesses over its citizens or part of the duty they owe to it. But, outside the normal run of matters that affect the individual directly or personally, there is a large body of rules that govern the working of the principal organs of the State; the rules relating to the Crown, to Parliament, to the Cabinet, to the civil service, and to the judges and courts are examples; these rules lay down the powers and duties of each of these organs and also regulate their mutual relationships. They determine for instance, questions of structure, such as the number of members of the House of Commons; questions of function, such as the powers of a civil servant or the duties of a particular government department; and they determine who, within the many State organs is, formally at least, to be master : who, for instance, in the event of a dispute between the Commons and the Cabinet is to give way. Constitutional Law is the body of law that determines these relationships.[81]

A *Constitution* provides a framework of principles that creates the structure and purpose of a human organisation. Any organisation might have a *constitution* that might take any form. We are concerned with a country of millions of people with few common purposes capable of giving direction to a *constitution* but with a belief, shared probably by the majority in democracy and equality and freedom of the individual. Constitutional Law is therefore concerned with conflicts both between different groups struggling for power and between those in power and individuals. It concerns the struggle between rival claimants to govern us, how rulers are chosen, called to account and removed, and the right of the individual against the abuse of power. It is also concerned with how powers are divided between different institutions geographically. A *Constitution* might therefore be regarded as "managing disagreement".[82]

Scope of Constitutional Law

Constitutional Law embraces that part of a country's laws which relates to the following topics, amongst others: the method of choosing the head of the State, whether king or president; his powers and prerogatives; the *constitution* of the Legislature : its powers and the privileges of its members; if there are two Chambers, the relations between them; the status of Ministers and the position of the civil service which acts under them; the armed forces of the State and the liability of the citizen to be called on to serve in them; the relations between the central Government and local authorities to whom subordinate functions of Government are delegated; the treaty-making powers, and the rules which regulate intercourse with other States; the persons who constitute the body of citizens, the terms on which foreigners may be admitted to its territories and the privileges which they are permitted to enjoy; the mode in which taxation may be raised and the revenues of the State may be expended; the *Constitution* of the Courts of justice and the tenure and immunities of the Judges; the right to demand trial by jury and its limits; the limits of personal liberty, free speech, and the right of public meeting or association; the rights of the citizen to vote for elective bodies, central or local, and his liability to perform civic duties, such as serving on juries or aiding in the maintenance of order; and the procedure (if any) for amending the *Constitution*.[83]

Constitutional Law is a branch of public law containing so much of the political *constitution* as is laid down in positive legal rules and as including such subjects as the formation, powers and privileges of the legislature, the executive functions and powers of the Crown, the existence and composition of judicial establishment, the legal position of the clergy, the army, the navy and various departments of the public service in relation to the Crown and the executive and the legislatures and the machinery of local government.[84]

In *Umaji Keshoo Meshram v Radhika Bai*,[85] the Supreme Court accepted the definition as stated in *Jowitt's Dictionary of English Law* wherein it defines the term "*Constitution*" as any regular form or system of Government and the term "Constitutional Law" as all rules which directly or indirectly effect the distribution or exercise of sovereign power, the law relating to the legislature, the executive and the judiciary.

Constitutional Law means the rules which regulate the structure of the principal organs of government and their relationship to each other and determine their principal functions. In other words, it could be expected to contain only the basic framework.[86]

Constitutional Law is a species of the generic term "*Constitution*" which is used to denote that part of the organic instrument which is directly enforceable in a court of law.[87] The learned author further says: "In a country like the United States or India, the word "*Constitution*" refers to the document known as *Constitution* of the USA (1787) or the *Constitution of India* (1949), the term "Constitutional Law" refers to the justiciable part of that document and those rules which have been evolved by the courts in interpreting or enforcing those justiciable parts or provisions. This description of "Constitutional Law" has been elaborated by PROF. C ORWIN with reference to the American *Constitution* as follows: "As employed in this country, Constitutional Law signifies a body of rules resulting from the interpretation by a High Court of a written constitutional instrument in the course of disposing of cases in which the validity, in relation to the constitutional instrument of some act of governmental power, State or National has been challenged". In the exercise of its function to interpret the *Constitution*, courts try to discover the intention behind the *Constitution* and in so doing, they enlarge or transform the terms of the written *Constitution* so that the mass of "Constitutional Law" built by the courts is wider than the text of the *Constitution*".[88]

(d) Function of Constitution and Constitutionalism

The primary function of constitutional law as explained by Holland[89] is to ascertain the political centre of gravity of any given state. It is thus an extraordinary legislation originating or coming out directly from the people acting in a Sovereign capacity. To mark the difference with the statute laws one may say that the former are in the nature of temporary expedients, while constitutional law is of a permanent nature.

In expounding the processes of the fundamental law, the *Constitution* must be treated as a logical whole. A constitutional document outlines only broad and general principles meant to endure and be capable of flexible application to changing circumstances – distinction which differentiates a statute from a Charter under which all statutes are made.[90]

Constitutionalism is one of the most important theories of political science. It has a history of over two thousand years. In Greece, the Greek City States or Republics existed. India too had similar republics existent in the northern parts of the country more than two thousand years ago. It was perhaps true that the ideas of democratic Government and republican institutions were first conceived and practised a thousand years before Christ when the people of Mithila established the world's first Republic. Evidence is there to show that in the days of Buddha or even earlier, certain types of democracy did flourish in parts of India. But these republics were confined to small areas, tribes and clams and operated in highly decentralised manner. In the course of time, small independent republics gave way to territorial ambitions of Kings and Emperors, and it was the same pattern everywhere. This position continued for centuries until the emergence of the United States of America as a republic with a written *Constitution* a little over two centuries ago.[91]

A distinction should be made between "*constitution*" and "constitutionalism".. Constitutionalism means a *constitution* not only of powers, but also envisages checks and balances of the power of legislature and the executive, so that these two organs do not become uncontrolled and arbitrary. MACILLWIN in his work *Constitutionalism - Ancient and Modern* while outlining the functions and limitations of the *Constitution*, observed that "constitutionalism" has one essential quality: it is a legal limitation on the government: it is anti-thesis of arbitrary rule: its opposite is despotic government, the government of the will instead of law.

This difference between the *constitution* and constitutionalism can be made clear with a simple example. A country with a dictatorship, where the dictator's word is law, can be said to have a *constitution*, but not to have

"Constitutionalism". The underlying difference is this,—that a *constitution* ought not merely to confer powers on the various organs of the government, but also seek to restrain those powers.. As has been said by Edmund Burke, "Power corrupts and absolute power corrupts absolutely.[92]. Therefore the *constitution* should be permeated with constitutionalism, *i.e.* it should have some in-built restrictions on the powers of its governmental organs.

Thus "Constitutionalism is the antithesis of arbitrary power".[1] Constitutionalism or constitutional system of government abhors absolution – it is premised on the rule of law.[2] Constitutionalism is about limits and aspiration. The *Constitution* embodies aspiration to social justices brotherhood and human dignity. It is a text which contains fundamental principles.[3] Where[4] rightly expresses that constitutions spring from a belief in limited government. This idea of constitutionalism is not new. Many natural law philosophers have promoted this idea in their writings.[5] Lastly "a written *constitution*, independent judiciary with powers of judicial review, the doctrine of rule of law and separation of powers, free elections to legislature, accountable and transparent democratic government, Fundamental Rights of the people, federalism and decentralisation of power are some of the principles and norms which promote constitutionalism in a country."[6]

The principle of constitutionalism is now a legal principle which requires control over the exercise of governmental power to ensure that it does not destroy the democratic principles upon which it is based. These democratic principles include this perfectness of fundamental rights. The principle of constitutionalism advocates a check and balance model of separation of powers, if requires diffusion of powers, necessitating different independent centres to decision-making. The principle of constitutionalism underpins the principles of legality which requires the Courts to interpret legislation on this assumption that Parliament would not wish to legislate contrary to fundamental rights. The legislature can restrict fundamental rights but it is impossible for laws protecting fundamental rights to be impliedly repealed by future statutes.

A good and virtuous constitutionalism having moral foundation protects not only fundamental freedom but also creates a bridge between conflicting interests and brings a harbinger to the social needs and produces good legislation and good citizens. The Constitutional Courts as "sentinel on the *qui vive*" therefore function objectively and dispassionately to correct imbalances and keep check on every wing of the State without trespassing upon the field assigned or powers conferred upon other wings and at the same time maintain a delicate balance on even keel.[7]

The principle of constitutionalism requires control over the exercise of governmental power to ensure that it does not destroy the democratic principles upon which it is based. The principle of constitutionalism advocates a check and balance model on the separation of powers: it requires a diffusion of powers necessitating different independent centers of decision-making. Under the controlled *constitution*, the principles of check and balance have an important role to play. The principle of constitutionalism underpins the principle of legality which requires the courts to interpret legislation on the assumption that Parliament does not wish to legislate contrary to fundamental rights. The legislature can restrict fundamental rights, but it is impossible for laws protecting fundamental rights to be impliedly repealed by future statutes. The protection of fundamental constitutional rights through common law is the main feature of common law constitutionalism.[8]

In historical conditions of the creation of a modern state, it meant making impossible the restoring of the autocratic power and absolutism, respectively securing the people's sovereignty, freedom, legal equality, equality of rights and freedom and so on. Thus, constitutionality as a principle which requires the esteem of the *constitution* as the supreme act, becomes what is called "constitutionalism" which, finally has the meaning of Rule of Law.[9]

Where there is no written *constitution*, the term "constitutionalism" could be applied. Constitutionalism includes both legal and political limits on government. It requires government officials to be accountable for their action to an independent body although not necessarily a court. It requires checks and balances between governmental organs and proper control with each governmental organ. In a democracy, it requires frequent election open to all and subject to rules which prevent any candidate from having an unfair advantage.[10]

CARDOZO in his work entitled *The Nature of Judicial Process* observed:

> The great ideals of liberty and equality are preserved against assaults of opportunism, the expediency of the passing hour, the erosion of small encroachments, the scorn and derision of those who have no patience with general principles, by enshrining them in the *Constitution*, the consecrating to the task of their protection a body of defenders. By conscious or sub- conscious influence, the presence of this restraining power, aloof in the background, but

> nonetheless always in reserve, tends to stabilize and rationalize the legislative judgment, to infuse it with the glow of principle, to hold the standard aloft and visible for those who must run the race and keep the faith.
>
> The utility of an external power restraining the legislative judgment is not to be measured by counting the occasion of its exercise. The restraining power of the judiciary does not manifest its chief worth in the few cases in which the legislature has gone beyond the lines that mark the limitation and discretion. Rather shall we find the chief worth in making vocal and audible the ideals that might otherwise be silenced, in giving them continuity of life and of expression in guiding and directing choice within the limits where choices range. This function should preserve to the court, the power that now belongs to them, if only the power is exercised with insight into social values with suppleness of adoption of changing social needs.[11]

There is a difference between Parliamentary and Constitutional sovereignty. Our *Constitution* has been framed by a Constituent Assembly which was not the Parliament. It is in exercise of this law making power by the Constituent Assembly that we have a Controlled *Constitution*. *Articles 14*, *19* and *21* represent the fundamental values which form the basis of the rule of law. These are the principles of constitutionality which form the basis of judicial review apart from the rule of law and separation of powers.[12] It was also held therein that protection of fundamental constitutional rights through common law is the main feature of common law constitutionalism.

On the subject of the making of the Indian *Constitution*, Granville Austin in his book,[13] in the concluding chapter at pp 320-321 says thus:

"Feeling deeply the importance of being India, how could the members of the Constituent Assembly be satisfied with a *Constitution* whole political principles, and very provisions, were almost entirely European or American in origin? The majority of members could do so for the astoundingly simple reason that they saw no incompatibility between the two. "No *Constitution* can have an isolated existence", said K.C. Sharma. "it is but right that we should gain from the experience of others and from the British *Constitution* and the American *Constitution*. A large number of Assembly members also believed that the apparent inconsistency between Indianness and a basically non-Indian *constitution* would be reconciled by working the *Constitution* in an Indian way. The very fact that a provision of, say, the Irish *Constitution* had been included to meet an Indian situation, made the provision effectively Indian. The techniques of the modern *constitution* would help preserve the true India. Seth Govind Das, certainly a conservative Hindu in outlook, believed this.

I do not think that any one of us can transform the India of today into the India of Rig Vedic times (said Govind Das, speaking in Hindi), but while I hold this view, I would like to make it clear at the same time that the civilization and culture which is the heritage of our early history…should not be rejected by us. We should adopt all that the modern world has to give us to fulfill our needs…Modern India should be so built up that we may be able to retain our culture and civilization."

India's long and glorious history was a fact not to be tarnished even by the adoption of a non-Indian *constitution*: as the two occupied different periods of time, so they occupied different levels of reality.

The ability to think at different levels, without dogmatism, refusing the confine speculation within narrow systems, pervaded Indian society. "The whole history of India for thousands of years past shows her essential unity and the vitality and adaptability of her culture", wrote Nehru. Indians generally, and Constituent Assembly members no less, believed that these attributes were both an historical truth and a continuing source of the nation's strength and they naturally applied them to *constitution*-making.

Rule of Law and Constitution

The present *Constitution of India* has its foundation in the concept of the Rule of Law and it enshrines and guarantees the Rule of Law.[14]

Rule of law means that decisions should be made by the application of known principles and rules and in general, such decisions should be predictable and the citizen should know where he is.[15] Rule of law has several facets, one of which is that disputes of citizens will be decided by judges who are independent and impartial and disputes as to legality of acts of Government will be decided by judges who are independent of the executive. Another facet of rule of law is equality before law. The essence of equality is that it must be capable of being enforced and adjudicated by an independent judicial forum. Judicial independence and separation of judicial power from the executive are part of common law tradition implicit in a *Constitution* like ours which is based on Westminster Model.[16] It was held therein that impartiality, independence, fairness and reasonableness in decision-making are the hallmarks of judiciary. If "impartiality" is the soul of judiciary,

"independence" is the life-blood of judiciary. Without independence, impartiality cannot thrive. Independence is not freedom for judges to do what they like. It is the independence and freedom from pressures which provide the judicial atmosphere where he can work with absolute commitment to the cause of justice and constitutional values. Impartiality depends however not only on philosophical, ethical or moral aspects, but also upon several procedural and practical factors such as, security of tenure, freedom from ordinary monetary worries, freedom from influences and pressure within (*i.e.,* from others in the judiciary) and without (*i.e.,* executive).

Under our constitutional structure "rule of law" is the basis for any and every action of the State. No functionary of the State or public authority has an absolute unfettered discretion. The very idea of unfettered discretion is totally incompatible with the doctrine of equality enshrined in the *Constitution* and it is an antithesis to the concept of rule of law.[17]

A.V. DICEY in his *Introduction to the Study of the Law of Constitution* (10th Edn) gave three meanings to the "Rule of Law". (1) It means, in the first place, the absolute supremacy or predominance of regular law as opposed to the influence of arbitrary power, and excludes the existence of arbitrariness of prerogative or even the wide discretionary authority on the part of the government…a man may with us be punished for a breach of law, but he cannot be punished for nothing else. It means none could be made to suffer penalties except for a distinct breach of law established before the ordinary courts. In this sense, Dicey contrasted the rule of law with system of government based on the exercise by those in authority of wide or discretionary powers of constraint such as power of detention with trial; (2) secondly, Rule of Law means equality before the law or equal subjection of all classes to the ordinary law of the land administered by the ordinary law courts. It means that no one is above law, that officials like private citizens were under a duty to obey the same law; and that there was no administrative courts to decide the claims by the citizens against the State or the officials. (3) Thirdly, it means that with us the law of the *Constitution*, the rules which in foreign countries naturally form part of a constitutional code, are not the source, but the consequence of the rights of individuals, as defined and enforced by the courts, that in short, the principles of private law have with us been by the action of the courts and Parliament so extended to determine the position of the Crown and of its servants; thus the *Constitution* is the result of ordinary law of the land.[18] This means the rights of individual are secured not by guarantees set down in a formal document, but by the ordinary remedies of private law available against those who unlawfully interfered with his or her liberty, whether they are private persons or officials.

According to learned author, DICEY'S exposition of the Rule of Law has no application in India. The learned author says: "A moment's reflection will show that it is unnecessary to invoke any of the three elements of the doctrine of Rule of Law in India not only because the constitutional set up is different, but also because the Indian *Constitution* has expressly codified them in the provisions or discarded or modified them. Thus (1) firstly, far from the principles of constitutional law being derived from the ordinary law, the Constitutional Law of India is embodied in the written *constitution*. While individual right in England rests on judicial decisions applying the ordinary law, Pt III of our *Constitution* itself guarantees the fundamental rights of an individual which can be even against the legislature itself, if it makes any law violating any of the fundamental rights. (2) Secondly, the principle of equality of all persons before the law has not to be derived from the general notions of common law or particular judicial decision, but is enshrined in *Article 14 of the Constitution*. (3) Thirdly, it is unnecessary to rely on English common law to assert that the Government possesses no arbitrary or discretionary power, apart from the powers conferred by law, for, various provisions of the Indian *Constitution* expressly lay down that the Government cannot affect a citizen by those acts which the *Constitution* says can be done only if the appropriate legislature makes a law, authorising the Executive to do such act, *e.g.,Article 19*(2), 21, 114(3), 265, 260(3), 300A. If the Government seeks to do any of these acts, *e.g.,* to impose any exaction without legislative sanction, such imposition shall be unconstitutional and void for contravention of *Article 265* and no appeal to any common law principle will be necessary".[19]

When equity, justice and law compete, primacy is to be given to rule of law. Sympathy is not warranted. The concept of justice has to remain imbedded in spite of adversities. The Rule of law should remain unshaken, unfettered, unperturbed.[20] A society is well governed when the people who are in the helm of affairs obey the command of law. Progress is achieved when there is good governance and good governance depends on how law is implemented.[21]

The government of law and not of men is the main theme of the Rule of Law and the main feature of Indian *Constitution* is that the powers of the Government including that of a legislature are limited. The legislature is governed by the ultimate moral force and the restrictions imposed by the Constitutions are founded on the concept of Rule of law. The Rule of law in the context of Indian *Constitution* implies obedience to the

Constitution which is the Supreme Law. Such obedience is to be maintained not only by the executive or administrative body, but also by the legislature.[22]

Courts are also trying to identify the concept of Rule of Law as human rights of the people. The court is developing techniques by which it can face the government not only to submit to the law, but also to create conditions where people can develop capacities to exercise their rights properly and meaningfully. Public administration is responsible for effective implementation of rule of law and constitutional command which effectuate fairly the objective standards laid down by law.[23] Every public servant is a trustee of society and is accountable for due effectuation of constitutional goals.[24]

Corruption is an enemy of rule of law, democracy and human rights. The court held that corruption not only poses a grave danger to the constitutional governance, it also threatens the very foundation of Indian democracy and the Rule of law. The magnitude of corruption in public life is incompatible with the concept of socialist secular democratic republic. Where corruption begins, all rights end. Corruption devalues human rights, chokes development and undermines justice, liberty, equality and fraternity which are the core values in Indian Preambular vision. The duty of the court is that any anti-corruption law has to be interpreted and worked out in such a fashion as to strengthen the fight against corruption. In a situation where two constructions are eminently reasonable, the court has to accept the one that seeks to eradicate corruption to the one which seeks to perpetuate it.

The modern concept of Rule of Law is fairly wide and this approach is to be found in the Declaration of Rights 1959, according to which the rule of law implies *interalia* the right to representative and responsible government, certain minimum standards or principles for the law, including those contained in the Universal Declaration and European Convention, in particular, freedom of religious belief, assembly and association and the absence retroactive penal laws; that a citizen who is wronged should have a remedy against the State or government, the certainty of criminal law, the presumption of innocence, reasonable rules relating to arrest, accusation and detention pending trial, the giving of notice and provision for legal advice, public trial, right of appeal and absence of cruel and unusual punishment and the independence of judiciary. According to the Delhi Declaration, Rule of Law implies that functions of the Government in a free society should be exercised as to create conditions in which dignity of man as an individual is upheld. This dignity requires not only the recognition of certain civil or political right, but also creation of certain political, social, economic, educational and cultural conditions which are assented to the full development of his personality. In *Veena Sethi v State of Bihar*,[25] the Supreme Court held that Rule of Law is not the monopoly for those who fight for their right, but it extends to all whether poor or downtrodden or illiterate who constitute the bulk of humanity. The Court observed that Rule of Law does not exist merely for those who have means to fight for their right, and very often do so for the perpetuation of the *status quo* which protects and preserves their dominance and permits them to exploit a large section of the society.

Overlooking or condoning infringement of fundamental rights of a few for the benefit of a majority is not permissible. It has been held that no one has a natural right to commit aggression on the equal rights of another. However wide a right is, it cannot be as wide as to destroy similar right of others.[26]

Rule of Law as a concept finds no place in the *Constitution*, but has been characterised as a basic feature of the *Constitution*, which cannot be abrogated or destroyed even by the Parliament and in fact binds the Parliament. The rule of law is one of the most important aspects of the doctrine of basic structure. It affirms the Parliament's supremacy while at the same time denying sovereignty over the *constitution*. Rule of Law can be traced back to Aristotle and has been championed by Roman jurists, mediaeval natural law thinkers, enlightened philosophers such as Hobbes, Locke, Rousseau, Montesquieu, Dicey, *etc.* Rule of Law has been accepted as the basic principle of Canadian *Constitution*. It has been considered as an implied limitation on Parliament's power to legislate. Rule of Law as a principle is not an absolute means of achieving equality, human rights, justice, freedom and even democracy and it all depends upon the nature of legislation and seriousness of the violation. The rule of law as an overreaching principle can be applied by Constitutional courts in the rarest of rare cases and the courts can undo laws which are tyrannical, or when they violate the basic structure of the *Constitution* and the norms of law and justice. One of the fundamental principles of democratic society inherent in all the provisions of the *Constitution* is that any interference with the peaceful enjoyment of possession should be lawful. Rule of law exists in India even where the court interprets a statute. Deprivation of property may also cause serious concern in the area of foreign investment especially in the context of international law and international investment agreement. Whenever a foreign investor operates within the territory of a host country, the investor and its properties are subject to the legislative control of the

host country along with international treaties or agreement. Even if a foreign investor has no fundamental right, he must know that rule of law prevails in India.[27]

Rule of law is the foundation of a democratic society. State actions are required to be non -arbitrary and justified on the touchstone of *Article 14 of the Constitution* and rule of law. Action of State or its instrumentalities must be in conformity with some principles which meet the test of reason and relevance. Functioning of a democratic form of government demands equality and absence of arbitrariness and discrimination. All powers vested in public authorities are meant to be exercised for public good and for promoting public interest and public authorities are trustees and have to act fairly and reasonably. The public trust doctrine is part of the law of the land. The doctrine has grown from *Article 21 of the Constitution*. In essence, the action or order of State or State's instrumentalities would stand vitiated if it lacks *bona fides*, as it would only be a case of colourable exercise of power. Rule of law contemplates that all actions should be *bona fide* and reasonable since that is the foundation of a democratic society.[28]

The rule of law is claimed to be a necessary foundation of democracy. For example, by ensuring that officials keep within the powers given to them by the people, the rule of law is both the servant and policeman of democracy. It can also protect values on which democracy depends such as freedom of speech. However, this equally be said of any form of government and historically the idea of rule of law seems to be at odds with democracy in that it usually depends on decision being made by an elite of unelected judges.[29]

Rule of law is violated if the instrumentalities of State are not discharging their duties or functions in a fair and just manner. In a Welfare State like ours, it is inevitable that every organ of the State under our *Constitution* is regulated or controlled by the rule of law. In a Welfare State, it is inevitable that the jurisdiction of administrative bodies is increasing at a rapid rate. The concept of rule of law would lose its validity if the instrumentalities of the State are not charged with the duty of discharging their functions in a fair and just manner.[30] In that case, the Court held that in our *Constitution*, rule of law pervades over the entire field of administration and every organ of the State is regulated by rule of law.

Rule of law means that the exercise of powers of government shall be conditioned by law and that, subject to the exception to the doctrine of equality, no one shall be exposed to the arbitrary will of the Government. Our *Constitution* exists and must continue to exist. It guarantees equality before law and equal protection of laws to everyone. The denial of such equality, as modified by the judicially evolved theory of classification, is subject to the rule of law.[31] In the dissenting opinion in *ADM,Jabalpur v S. Shukla*,[32] JUSTICE KHANNA said:

> Rule of law is the anti-thesis of arbitrariness. Rule of law is now the accepted norm of all civilised societies. Everywhere it is identified with liberty of the individual. It seeks to maintain a balance between the opposing notions of individual liberty and public order. In every State, the problem arises of reconciling human right with the requirement of public interest. Such harmonising can only be attained by the existence of independent courts which can hold the balance between citizen and the State and compel government to conform to law.

One of the essential attributes of the rule of law is that executive action to the prejudice or detrimental to the right of an individual must have the sanction of law.[33] In *Rai Sahib Ram Jawaya Kapur v State of Punjab*,[34] the court declared that specific legislation may indeed be necessary if the Government require certain powers in addition to what they possess under the ordinary law in order to carry on the particular trade or business.[35]

A liberal view of rule of law claims somewhat extravagantly that a law which provides for the overarching values of the community against acts of government must be evaluated. Thus, when Aristotle pronounced that it is better for the law to rule them for any of the citizen to rule, he was probably referring to understandings about justice among elite group with common values and tradition designed to bring about their own collective good. This version of Rule of law is claimed to include liberal democracy and human right.[36]

Equality, rule of law, judicial review and separation of powers form part of the basic structure of the *Constitution*. Each of these concepts is intimately connected. There can be no rule of law, if there is no equality before law. These would be "meaningless" if the violation was not subject matter of judicial review. All these would be redundant if the legislature, executive and judicial powers are vested in one organ.[37] It was held in that case that the golden triangle of *Articles 14*, *19* and *21* as it stands for equality, and rule of law clearly forms part of the basic structure of the *Constitution* and cannot be abrogated.[38]

The Supreme Court held that in a system governed by rule of law, there is nothing like absolute or unbridled power exercisable at the whims and fancies of the repository of such power. There is nothing like a power

without any limit or constraint. That is so even when a court or other authority may be vested with wide discretionary power, for, even discretion has to be exercised only along well-recognised and sound juristic principles with a view to promoting fairness, including transparency and aiding equity.[39]

The Court held that abolition of caste system is absolutely necessary for smooth functioning of Rule of law.[40] In a democracy governed by rule of law, the doctrine of pleasure cannot be a licence to act arbitrarily, whimsically or capriciously with unfettered discretion or unaccountable action.[41]

Our *Constitution* recognises no "prerogative" whatsoever; it recognises merely rights, duties and discretion. The difference between "prerogative" and "discretion" is clear. A person who has a "prerogative" can act arbitrarily or irrationally and yet his decision must be treated as legal and valid. On the other hand, if the person has the discretion, and not the prerogative, to make a decision, the discretion can only be exercised fairly and reasonably; otherwise, the act is void on the ground that there was no valid exercise of discretion in the eye of law.[42] In that case, the Court held that under our *Constitution* and statutory framework, there is nothing known as prerogative.[43]

To initiate contempt proceedings for disobeying or disregarding orders of court, is to ensure that orders of court are obeyed and in case where ministers and high officials disobey orders of court, rule of law contemplates exemplary punishment.[44] The Supreme Court held: "In our democratic polity under the *Constitution* based on the concept of "rule of law" which we have adopted and given to ourselves and which serves as an aorta in the anatomy of our democratic system, the law is supreme". Everyone, whether individually or collectively, is unquestionably under the supremacy of law. Whoever he may be, however high he is, he is under the law. No matter how powerful he is and however rich he may be. Any country or society professing the rule of law as its basic feature or characteristic, does not distinguish between high or low, weak or mighty.

The Rule of law expects a statute law to be transparent, should be knowable, dependable and shielded from excessive manipulation. Transparency, openness, responsiveness and accountability are the characteristics of a valid legislation.[45]

India is a country governed by rule of law. The State is bound to protect the life and liberty of every human being, whether he is a citizen or not.[46]

When a statute is a self-contained code (*e.g.,Motor Vehicles Act*) and authorities are appointed to discharge the statutory duties, they are bound to discharge the functions within the four corners of the statute. Even if State may have control over the department, the control must be exercised strictly in accordance with *Article 162 of the Constitution*. In such cases, Chief Minister or any other minister is not authorised to act in derogation of statutory provision. The *Constitution* does not envisage functioning of government through Chief Minister alone. It speaks of Council of Ministers governed by Rules of Business as per rules framed under *Article 166 of the Constitution*. All government orders must comply with the requirements of a statute as well as constitutional provision. Our *Constitution* envisages a rule of law and not rule of men. It recognises that, however high he may be, he is under law and *Constitution*. All constitutional functionaries must therefore function within Constitutional limits.[47]

In *Director of Rationing v The Corp of Calcutta*,[48] it was observed that in our country, rule of law prevails and our *Constitution* has guaranteed it by the provisions contained in Pt III as well as other provisions.

Torture by police or custodial death or continued detention without any reason flouts the basic right of the citizen recognised by the *Constitution* and is an affront to human dignity. It strikes a blow to rule of law. In *D.K. Basu v State of WB*,[49] the Supreme Court gave directions to the police and State Government on how to deal with a person who has been arrested. More than ten directions were laid down and the Court cautioned that failure to comply with the directions would result in departmental proceedings as well as proceedings under the *Contempt of Courts Act*.[50]

In *Maneka Gandhi v UOI,*[51] the Court held that any State action affecting life and liberty of the people assured under *Article 21* has to be right, just, fair and not arbitrary, fanciful and oppressive.

The doctrine of sovereign function or sovereign immunity was not accepted as a defence in the case of torture by police. State has been directed to pay compensation in various cases.[52]

Another aspect of Rule of law is that every State action, whether it is by legislature or the executive or of any authority under *Article 12*, shall be struck down by the court, if it does not comply with the requirements of

"reasonableness".[53] The word "reasonable" connotes rational, according to dictates of reason and not excessive or immoderate. If something is not *per se* preposterous or absurd, it must be held to be "reasonable".[54]

The principle of "reasonableness" has been asserted and applied in a number of cases to examine the "reasonableness" both by the executive as well as by legislative action and to invalidate them whenever it is found to be unreasonable.[55]

In *Mithu v State of Punjab*,[56] the Supreme Court invalidated *section 303 of Indian Penal Code, 1860* on the ground of unreasonableness.

In *Maneka Gandhi v UOI*,[57] the court observed that the principle of reasonableness which legally and philosophically is an essential element of equality or non-arbitrariness pervading *Article 14* like a brooding omnipresence and the procedure contemplated by *Article 21* must answer the test of reasonableness in order to be in conformity with *Article 14*. It must be right, and just and fair, and not arbitrary, fanciful or oppressive; otherwise, it would be no procedure at all and the requirement of *Article 21* would not be satisfied. Procedures which deal with modalities of regulating, restricting or even rejecting a fundamental right falling under *Article 21* has to be fair, and not foolish; carefully designed to effectuate, not to subvert the substantive right itself. Thus understood "procedure must rule out anything arbitrary, freakish or bizarre. A valuable constitutional right can be exercised only by civilised process. What is fundamental is life and liberty and what is procedural is the matter of its exercise. This quality of fairness in the process is emphasised by the strong word "established" which means "settled firmly", not wantonly or whimsically. If it is rooted in the legal consciousness of the community, it becomes "established" procedure. And "law" leaves little doubt that it is little regarded as just since law is the means and justice is the end. In fact, the history of personal liberty is largely a history of procedural safeguards and right to a hearing has a human right ring. In India, because of poverty and illiteracy, the people are unable to protect and defend their right; observance of fundamental right is not regarded as good politics and their transgression as bad politics. To sum up, procedure in *Article 21* means fair, and not formal procedural law, and law is reasonable and not an enacted "piece".

The law should as far as possible be clear and certain; so that the people know where they stand and conduct their affairs accordingly. Hence an attempt should be made to clarify the meaning of the words "reasonable or rational". This vagueness or uncertainty should not be allowed to remain, so that judges may have total freedom or discretion. What may be regarded as rationale or reasonable by one judge may not be so regarded by another. This would lead to chaos in law. If the classification under *Article 14* is found to be conducive to functioning of modern society, then it is certainly "reasonable". The above test is not the only test to decide what is "reasonable"; but certainly one of the tests to be adopted if we want our country to progress. We have to take a practical view of the matter instead of relying on abstract, *a priori* notion of equality.[58]

The principle of reasonableness and non-arbitrariness in governmental action is the core of our Constitutional scheme and structure. Rationality, reasonableness, objectivity and application of mind are some of the pre-requisites of proper decision making. The concept of transparency in the decision making process of the State has also become an essential part of administrative law. Action of the State, whether administrative or executive, has to be fair and in consonance with the statutory provision and rules. Discretion has to be exercised in line with principles of fairness and good governance. It is an implied obligation upon the authorities, when vested with powers to pass orders of determinative nature. The standard of fairness is also dependent upon certainty of state action, that is, the class of person subject to regulation by the rules concerned must be able to reasonably anticipate the order for the action that the State is likely to take in a given situation.[59]

Whenever there is arbitrariness in State action, whether it is by the legislature or the executive, *Article 14* immediately springs into action and such action can be struck down. The party has to satisfy that the action was not "reasonable" and was "manifestly arbitrary". The expression "arbitrarily" means an act done in an unreasonable manner as fixed or done capriciously or at pleasure without adequate determining principle, not founded on the nature of things, non-rational, not done or acting according to reason or judgment, but depending on the will alone. A law cannot be declared "*ultra vires*" on the ground of hardship, but can be done so on the ground of total "unreasonableness". A legislation can be questioned as arbitrary and *ultra vires* under *Article 14*. However, to declare an Act "*ultra vires*" under *Article 14*, the court must be satisfied in respect of substantive unreasonableness in the statute itself.[60]

While considering the scope of right to freedom of speech and assembly, and the scope of "reasonable restriction", the Court said that the expression "reasonable" is difficult to be defined with any precision. It will

always depend on the facts of a given case, with reference to the law which has been enacted to create the restriction on the right. It is neither possible nor advisable to state any abstract standard or general pattern of "reasonableness", as applicable uniformly to all cases.[61] It was held in that case that restriction to freedom must be just, fair and reasonable as in the case of due process requirement under *Article 21*. Restrictions backed by law, like a prohibitory order under *section 144 of Code of Criminal Procedure*, have to withstand the test of reasonableness. The rules of justice and fair play require that the State action should neither be unjust nor unfair, lest it attracts the *vice* of unreasonableness, thereby vitiating the law which prescribed that procedure and consequently, the action taken thereunder. Any action taken by a public authority which is entrusted with statutory power has, therefore, to be tested by the application of two standards – first, the action must be within the scope of the authority conferred by law, and second, it must be reasonable. If any action within the scope of the authority conferred by law is found to be unreasonable, it means that the procedure established under which the action is taken is itself unreasonable. The law itself has to be reasonable, and furthermore, the action under the law has to be in consonance with the law established. Non-observance of either of these can vitiate the action, but if the former is invalid, the latter cannot withstand.

This requirement of reasonableness of procedure has been drawn from both reading *Articles 21* and *14* as well as by reading an inbuilt requirement of reasonableness in the word "law". A *Constitution* is the foundation of good law and good order in a community. For, of all kinds of knowledge, the knowledge of good laws has the greatest power of improving the learner. Good laws produce good judges and good administrators.[62]

The principle of reasonableness has been extended beyond fundamental rights and applied to a law falling within the reach of *Article 300A of the Constitution*.[63]

In his article *The Constitutional Principle of Reasonableness,* Prof. M.P. Singh 1987 3 SCC (J) 31 says that the logical consequence of this extension (extending to laws outside fundamental rights) would be that whenever the word "law" appears in the *Constitution*, it has to satisfy the principle of reasonableness and if drawing a distinction between "law" and "laws" we don't extend the principle to the overall law making power of the Parliament and State legislatures under *Article 246*, it will have to be extended to tax laws because *Article 265* is worded like *Article 300A*.

The principle of fairness and reasonableness applies to matters of governmental policy and such action or policy would be unconstitutional if it fails to satisfy the test of reasonableness.[64]

Social order demands that the law must be protective and sustainer of life, liberty, freedom, property and equality and not destructive of these blessings. The *Constitution* which is the supreme law is founded on the doctrine of Rule of Law and the Rule of Law checks the growth of an unhappy and unconstitutional law. The Rule of Law is protection against the arbitrary legislative acts, The tyranny of majority is as much tyranny as the rule of individual tyrant. Therefore, law though framed by the majority, but if oppressive, unjust and arbitrary, is really not law and it may lead to revolution.

Law is enacted to serve the interest of the individual and that of the community. There must be a balancing force between the interest of the individual and the interest of the community. If checks and restraints have to be imposed on the interest of the individual for the benefit of the community, they must be reasonable and must possess some rational basis. Unbridled restraints and checks on the individual rights are against the will of the sovereign people and also against reasonableness. They are not promoting human happiness, but generate tyranny and anarchy. Unreasonable and unnecessary restraints on the rights of the individual amount to usurpation of their rights without just cause and it does not advance the cause of the community.[65]

At p 33 of the same book, it is said: "The Rule of law combined with the sense of justice prevents democracy from degenerating into a dictatorship. But the law has to be subservient to humanity, must be legal law and not arbitrary, unjust and harassing. In law-making, the law-makers are subject to constitutional control; otherwise, a law would not be binding on the society. In order for us to be governed by laws, or rather by means of law, the law-makers themselves must be subject to law".

In *ADM, Jabalpur v S. Shukla*,[66] Justice Khanna said:

> Rule of law is the anti-thesis of arbitrariness. Rule of law is now the accepted norm of all civilised societies. Everywhere it is identified with liberty of the individual. It seeks to maintain a balance between the opposing notions of the individual liberty and public order. In every State, the problem arises of reconciling human rights with the

> requirement of public interest. Such harmony can only be attained by the existence of independent courts, which can hold a balance between citizen and the State and compel government to conform to the law.

Judicial Review is an essential part of Rule of Law. It involves determination not only of the constitutionality of the law, but also the validity of administrative action. The action of the public authorities and bureaucracy are all subject to judicial review; they are thus accountable to courts for legality of their action. At present the main concern of the court of law in the process of judicial review of legislative act is to determine constitutionality only on two grounds – (1) Do the laws violate the fundamental rights specifically guaranteed, and (2) Do they travel beyond the legislative competence which relates to the distribution of powers, *etc.* But the court of law in the democratic set up has inherent power to strike down such laws which are unjust, harassing and callous and not in accordance with the social and economic needs of the country. If they are challenged by an aggrieved party, they may be declared void not only on the ground of the abuse of the delegated powers, but also on the ground that such authority was never conferred by sovereign people.[67]

PART-II

HISTORY OF THE CONSTITUTION3. THE MAKING OF THE CONSTITUTION

Though the object of this work is to present a juridical study of the *Constitution of India*, a short reference to the historical setting in which the *Constitution* came into being may not be altogether out of place, for, as we shall see, a reference to the history may sometimes be permissible in interpreting the terms of the *Constitution*.[68]

The demand that India's political destiny should be determined by Indians themselves had been put forward by Mahatma Gandhi as early as 1922:

> Swaraj will not be a free gift of the British Parliament; it will be a declaration of India's full self-expression. That it will be expressed through an Act of Parliament is true but it will be merely a courteous ratification of the *declared wish of thepeople of India* even as it was in the case of the Union of South Africa.

It was not a mere idle demand. It was reflected in the world of realities by the calling of an All- Parties Conference to devise the nature of the constitutional advance which the Indian leaders expected, after the Simon Commission was appointed by the British Government. A Committee, headed by Pandit Motilal Nehru, was appointed to draw up such a draft *Constitution* and the Report of this Committee, known as the Nehru Report,[69] was published in August, 1928.

But the demand was rejected by the Joint Parliamentary Committee[70] in 1933 on the ground that "a specific grant of constituent powers to authorities in India is not at the moment a practicable proposition."

3.1 Demand for a Constitution framed by a Constituent Assembly.

The failure of the Statutory Commission and the Round Table Conference which led to the enactment of the Government of India Act, 1935, to satisfy Indian aspirations accentuated the demand for a *Constitution* made by the people of India without outside interference, which was officially asserted by the National Congress in 1935. In 1938, Pandit Nehru definitely formulated his demand for a Constituent Assembly thus:

> The National Congress stands for independence and a democratic state. It has proposed that the *constitution* of free India must be framed, without outside interference, by a Constituent Assembly elected on the basis of adult franchise.

This was reiterated by the Working Committee of the Congress in 1939.

3.2 Cripps Mission and Coalition Government

But the demand was resisted by the British Government till the outbreak of the recognised the principle that Indians should themselves frame a new *Constitution* for autonomous India, and in March, 1942, when the Japanese were at the doors of India, they sent Sir Stafford Cripps, a member of the Cabinet with a draft declaration of the proposals of the British Government which were to be adopted at the end of the War provided the two major political parties (Congress and the Muslim League[71]) could come to an agreement to accept them, *viz*.:—

(a) that the future *Constitution of India* was to be framed by an elected Constituent Assembly of the Indian people, including representatives of the Indian States;

(b) that the *Constitution* should give *India Dominion status,*—equal partnership of the British Commonwealth of Nations;

(c) that there should be *one* Indian Union comprising all the Provinces and the Indian States.

3.3 Muslim League differs

But the two parties failed to come to an agreement to accept the proposals, and the Muslim League urged—

(a) that India should be divided into two autonomous States on communal lines, and that some of the Provinces earmarked by Mr. Jinnah, should form an independent Muslim State to be known as Pakistan;

(b) that instead of one Constituent Assembly, there should be two Constituent Assemblies, *i.e.,* a separate Constituent Assembly for building Pakistan.

3.4 Simla Conference

After the rejection of the Cripps proposals, various attempts to reconcile the two parties were made, including the Simla Conference held at the instance of the Governor-General, Lord Wavell. These having failed, the British Cabinet composed of the Labour Party which had since come to power sent three of its own members[72] including Cripps himself, to make another serious attempt, with some altered proposals. As before, the representatives of the Congress and the Muslim League failed to arrive at any agreement on these proposals. As a result, the Cabinet Mission unilaterally announced its decision on the scheme which was announced simultaneously in India and in England on the 16th May, 1946.

3.5 Cabinet Mission and its scheme

The proposals of the Cabinet Delegation sought to effect a compromise between a union of India and its division. While the Cabinet Delegation definitely rejected the claim for a separate Constituent Assembly and a separate State for the Muslims, the scheme which they recommended involved a virtual acceptance of the principle underlying the claim of the Muslim League,—by grouping the Provinces on the lines suggested by the League, and giving the Centre *narrow* and enumerated powers relating to three subjects only, *viz.,* Foreign Affairs, Defence and Communications.

The main features of the Cabinet Mission's Scheme were—

(i) There should be a Union of India, embracing both British India and the States, which would deal with Foreign Affairs, Defence and Communications.

(ii) The Union was to have an Executive and Legislature constituted from the representatives of British India and the States.

(iii) Subjects other than those given to the Union and all residuary powers were to belong to the States.

(iv) Provinces should be free to form groups with executives and legislatures, and each group should determine the Provincial subjects to be taken in common.

(v) The paramountcy of the Crown over the Indian States was to lapse.

(vi) A detailed *Constitution*, on the above lines, would be framed by a Constituent Assembly, which was to be elected as follows: The Members of each Provincial Assembly were to be divided into two groups, General and Muslim, each group electing its own representatives to the Constituent Assembly. In the Punjab, there was to be a third group, namely the Sikhs. The Assembly was to be composed of 292 members from the Governor's Provinces, 4 from the Chief Commissioner's Provinces and 93 from the Indian States. The method of election of members from the Indian States was left to consultation with them. After a plenary session of the Constituent Assembly, its members were to sit in three territorial sections, A, B and C and each section was to settle the Group Provincial *Constitution* of each Section, after which the members of the Constituent Assembly would reassemble to frame the Union *Constitution*.

The scheme laid down by the Cabinet Mission was, however, *recommendatory,* and it was contemplated by the Mission that it would be adopted by agreement between the two major parties. A curious situation, however, arose after an election for forming the Constituent Assembly[73] was held. The Muslim League joined this election and its candidates were returned. But a difference of opinion had in the meantime arisen between the Congress and the League regarding the interpretation of the Grouping clauses of the proposals of the Cabinet Mission.

The British Government intervened at this stage, and explained to the leaders in London that they upheld the contention of the League as correct, and on the 6th December, 1946, the British Government published the following statement:—

> Should a *constitution* come to be framed by the Constituent Assembly in which a large section of the Indian population had not been represented, His Majesty's Government would not contemplate forcing such a *constitution* upon any unwilling part of the country.

For the first time, thus, the British Government acknowledged the possibility of two Constituent Assemblies and two States. The result was that on the 9th December, 1946, when the Constituent Assembly first met, Muslim League members did not attend, and the Assembly began to function without the Muslim League.

The Muslim League next urged for the dissolution of the Constituent Assembly of India on the ground that it was not fully representative of all sections of the people of India. On the other hand, the British Government, by their Statement of the 20th February, 1947, declared—

(a) that British rule in India would in any case end by June, 1948, after which the British would certainly transfer authority to Indian hands;

(b) that if a fully representative Constituent Assembly failed to work out a *constitution* in accordance with the proposals made by the Cabinet Delegation,—

> H.M.G. will have to consider to whom the powers of the Central Government in British India should be handed over, on the due date, whether as a whole to some form of Central Government for British India, or in some areas to the existing Provincial Governments, or in such other way as seem most reasonable and in the best interest of the Indian people.

The result was inevitable and the League did not consider it necessary to join this Assembly and went on pressing for *another* Constituent Assembly for "Muslim India."

The British Government next sent Lord Mountbatten to India as the Governor-General, in place of Lord Wavell, in order to expedite the preparations for the transfer of power, for which they had fixed a rigid time limit.

3.6 Mountbatten Plan and the Partition of India.

Lord Mountbatten brought the Congress and the League into a definite agreement that the two "problem" Provinces of the Punjab and Bengal would be *partitioned*[74] so as to form absolute Hindu and Muslim majority blocks within these Provinces. The League would then get its Pakistan,—which the Cabinet Mission had so ruthlessly denied it—minus Assam, East Punjab and West Bengal; while the Congress which was taken as the representative of the whole of India, excluding the Muslims, would get the rest of India where the Muslims were in a minority.

The actual decision as to whether the two Provinces of the Punjab and Bengal were to be partitioned was, however, left to the vote of the members of the Legislative Assemblies of these two Provinces, meeting in two parts, according to a plan known as the "Mountbatten Plan". It was given a formal shape by a Statement made by the British Government on 3 June 1947, which provided, *inter alia,* that

> The Provincial Legislative Assemblies of Bengal and the Punjab (excluding European members) will, therefore, each be asked to meet in two parts, one representing the Muslim majority districts and the other rest of the Province…The members of the two parts of each Legislative Assembly sitting separately will be empowered to vote whether or not the Province should be partitioned. If a simple majority of *either* Part decides in favour of Partition, division will take place and arrangements will be made accordingly. If partition were decided upon, each part of the Legislative Assembly, would decide, on behalf of the areas it represented, whether it would join the existing or a new and separate Constituent Assembly.

It was also proposed that there would be a referendum in the N.W.F. Province and in the Muslim majority district of Sylhet as to whether they would join India or Pakistan. The Statement further declared H.M.G.'s intention "to introduce legislation during the current session for the transfer of power this year on a Dominion Status basis to one or two successor authorities according to decisions taken as a result of this

announcement." The result of the vote according to the above Plan was a foregone conclusion as the representatives of the Muslim majority areas of the two Provinces (*i.e.,* West Punjab and East Bengal) voted for partition and for joining a new Constituent Assembly. The referendum in the N.W.F. Province and Sylhet were in favour of Pakistan.

On 26 July 1947, the Governor General announced its decision to set up of a separate Constituent Assembly for Pakistan. The Plan of 3 June 1947, having been carried out, nothing stood in the way of effecting the transfer of power by enacting a statute of the British Parliament in accordance with the declaration.

4. THE INDIAN INDEPENDENCE ACT, 1947

It must be said to the credit of the British Parliament that it lost no time in drafting the Indian Independence Bill upon the basis of the above Plan, and this Bill was passed and placed on the Statute Book, with amazing speed, as the Indian Independence Act, 1947 (10 & 11 Geo. c. 30).[75] The Bill, which was introduced in Parliament on July 4, was enacted with the royal Assent on July 18, 1947. It was to have *effect* from August 15, 1947, which was referred to in the Act as "*the appointedday*".

The most outstanding characteristic of the Indian Independence Act, 1947, was that while other Acts of Parliament relating to the governance of India (such as the Government of India Acts from 1858 down to 1935) sought to lay down a *constitution* for the administration of India by the legislative will of the British Parliament, this Act of 1947 did not lay down any such *Constitution*. It simply set up two independent Dominions,—India and Pakistan, by dividing the territory of British India,[76] and gave unlimited power to the Constituent Assembly of each Dominion to frame and adopt any *Constitution* and to supersede the Indian Independence Act[77] without any further legislation on the part of the British Parliament.7[78]It also directed that the Constituent Assembly which had its first sitting on the 9th December, 1946, was to be the Constituent Assembly of "India", while Pakistan would set up a fresh Constituent Assembly for herself.[79]

4.1 Constituent Assembly of India.

So, the Constituent Assembly which had first sat on the 9 December, 1946, re- reassembled after the midnight of the 14 August, 1947, as the sovereign Constituent Assembly for India.

4.2 Characteristics of the Cabinet Mission Scheme

As to its composition, it should be remembered (see *ante*), that it had been elected by indirect election by the Members of the Provincial Legislative Assemblies (lower House only), according to the scheme recommended by the Cabinet Delegation.

The essentials of this scheme were as follows:

(1) Each province and each Indian State or group of States were allotted a total number of seats proportional to their respective populations roughly in the ratio of one to a million. As a result, the Provinces were to elect 292 members while the Indian States were allotted a maximum of 93 seats.

(2) The seats in each province were distributed among the three main communities, Muslim, Sikh and General, in proportion to their respective populations.

(3) Members of each community in the Provincial Legislative Assembly elected their own representatives by the method of proportional representation with single transferable vote.

(4) The method of selection in the case of representatives of Indian States was to be determined by consultation.

As a result of the Partition under the Plan of 3 June 1947, the representatives of Bengal, Punjab, Sind, N.W.F.P., Baluchistan and the Sylhet district of Assam (which had joined Pakistan by a referendum) ceased to be members of the Constituent Assembly of India, and there was a fresh election in the new Provinces of West Bengal and East Punjab. In the result, when the Constituent Assembly re-assembled on the 31 October 1947, the membership of the House was reduced to 299. Of these, 284 were actually present on the 26 November 1949, and appended their signatures to the *Constitution* as finally passed.

4.3 The Objectives Resolution.

Of the achievements of the Constituent Assembly prior to the Partition of India, we should mention the introduction on the 13 December 1946, and the adoption on the 22 January, 1947, of the historic Objectives Resolution of Pandit Nehru, which is worth reproduction:

This Constituent Assembly declares its firm and solemn resolve to proclaim India as an Independent Sovereign Republic and to draw up for her future governance a *Constitution*;

(2) WHEREIN the territories that now comprise British India, the territories that now form the Indian States, and such other parts of India as are outside British India and the States as well as such other territories as are willing to be constituted into the Independent Sovereign India, shall be a Union of them; and

(3) WHEREIN the said territories, whether with their present boundaries or with such others as may be determined by the Constituent Assembly and thereafter according to the law of the *Constitution*, shall possess and exercise all powers and retain the status of autonomous units, together with residuary powers and functions of Government and administration, save and except such powers and functions as are vested in or assigned to the Union, or as are inherent or implied in the Union or resulting therefrom; and

(4) WHEREIN all power and authority of the Sovereign Independent India, its constituent parts and organs of Government, are derived from the people; and

(5) WHEREIN shall be guaranteed and secured to all the people of India justice, social, economic and political; equality of status, of opportunity, and before the law; freedom of thought, expression, belief, faith, worship, vocation, association and action, subject to law and public morality; and

(6) WHEREIN adequate safeguards shall be provided for minorities, backward and tribal areas, and depressed and other backward classes; and

(7) WHEREIN shall be maintained the integrity of the territory of the Republic and its sovereign rights on land, sea, and air according to justice and the law of civilised nations; and

this ancient land attains its rightful and honoured place in the world and makes its full and willing contribution to the promotion of world peace and the welfare of mankind.

4.4 The Draft Constitution.

The Constituent Assembly next considered the salient principles of the proposed *Constitution* as outlined by various Committees of the Assembly, such as the Union *Constitution* Committee, the Union Powers Committee, the Provincial *Constitution* Committee, and thereafter appointed a Drafting Committee on the 29 August 1947. The Drafting Committee embodied the decisions of the Assembly with alternative and additional proposals in the form of a “Draft *Constitution*” which was published in February, 1948. One important departure of the Draft from the Objectives Resolution was that while the latter declared that the residuary powers under the Union of India would vest in the units, (*i.e.,* the States) and the Union was to exercise only enumerated powers—the Draft, in pursuance of the recommendations of the Union Powers Committee, proposed that the residuary powers should reside in the Union (except as regards the Indian States). The original idea of autonomy of the States was substituted by that of a strong Centre, owing to the change in the situation that had been caused by the partition of the country and the creation of a foreign State within the very compound of India.

The Draft was presented to the Constituent Assembly on the 4th of November, 1948, and after a brief general discussion (which may be called the first reading of the *Constitution*), there was a second reading or a consideration of the clauses of the Draft, which commenced on the 15 November 1948, and terminated on the 17 October 1949.

4.5 Passing of the Constitution.

The Constituent Assembly again sat on the 14th November, 1949, for the third reading which was finished on the 26th November, 1949, on which date the *Constitution* received the signature of the President of the Assembly and was declared as passed.

Commencement of the *Constitution*.—The bulk of the *Constitution* came into force on the 26 January 1950, which day is referred to in the *Constitution* by the expression “the commencement of this *Constitution*.” 15 Articles of a provisional and transitional nature were, however, given effect to, immediately on the passing of the *Constitution*, *i.e.,* on the 26 November 1949. These 15 Articles are enumerated in *Article 394*. *See* under *Article 394*.

5. THE PRE-CONSTITUTIONAL POLITICAL SYSTEM5.1 Utility of a historical retrospect

The very fact that the *Constitution of India* is the product not of a political revolution but of the research and deliberations of a body of eminent representatives of the people who sought to improve upon the existing system of administration, makes a retrospect of the constitutional development indispensable for a proper understanding of this *Constitution*.

Practically the only respect in which the *Constitution* of 1949[80] differs from the constitutional documents of the preceding two centuries is that while the latter had been imposed by an imperial power, the Republican *Constitution* is made by the people themselves, though representatives assembled in a sovereign Constituent Assembly. That explains the majesty and ethical value of this new instrument and also the significance of those of its provisions which have been engrafted upon the pre-existing system.

5.2 Government of India Act, 1858

For our present purposes we need not go beyond the year 1858 when the British Crown assumed sovereignty over India from the East India Company, and the British Parliament enacted the first statute “Government of India Act,” 1858.[81] This Act serves as the starting point of our survey because it was dominated by the principle of absolute imperial control without any popular participation in the administration of the country, while the subsequent history up to making of the *Constitution* is one of gradual relaxation of imperial control and the evolution of responsible government. By this Act, the powers of the Crown were to be exercised by the Secretary of State for India, assisted by a Council of 15 members (known as the Council of India). The Council was composed exclusively of people from England, some of whom were nominees of the Crown while others were the representatives of the Directors of the East India Co. The Secretary of State, who was responsible to the British Parliament, governed India through the Governor-General assisted by an Executive Council, which consisted of high officials of the Government.

The essential features of the system[82] introduced by the Act of 1858 were—

(a) The administration of the country was not only unitary but rigidly centralised. Though the territory was divided into Provinces with a Governor or Lieutenant-Governor aided by his Executive Council at the head of each of them, the Provincial Governments were mere agents of the Government of India and had to function under the superintendence, direction and control of the Governor-General in all matters relating to the government of the Province.

(b) There was no separation of functions, and all the authority for the governance of India—civil and military, executive and legislative,—was vested in the Governor-General in Council who was responsible to the Secretary of State.

(c) The control of the Secretary of State over the Indian administration was absolute. The Act vested in him the “superintendence, direction and control of *all* acts, operations and concerns which in anywise relate to the Government or revenues of India.” Subject to his ultimate responsibility to the British Parliament, he wielded the Indian administration through the Governor-General as his agent and his was the last word, whether in matters of policy or of details.

(d) The entire machinery of administration was bureaucratic, totally unconcerned about public opinion in India.

5.3 The Indian Councils Acts, 1861 and 1892

The Indian Councils Act of 1861[83] introduced a grain of popular element in so far as it provided that the Governor-General’s Executive Council which was so long composed exclusively of officials, should include certain additional *non-official* members, while transacting legislative business as a legislative Council. However, this Legislative Council was neither representative nor deliberative in any sense. The members were nominated and their functions were confined exclusively to a consideration of the legislative proposals placed before it by the Governor-General. There was no power to criticise the acts of the administration or the conduct of the authorities. Further, with regard to legislation effective powers were reserved to the Governor-General, such as—(a) giving prior sanction to Bills relating to certain matters; (b) vetoing the Bills after they were passed or reserving them for consideration of the Crown; (c) legislating by Ordinances which were to have the same authority as Acts made by the Legislative Council.

Similar provisions were made by the Act of 1861 for Legislative Councils in the Provinces. Here again, the prior sanction of the Governor-General was necessary, even to initiate Legislations. .

Two improvements upon the preceding state of affairs as regards the Indian and Provincial Legislative Councils were introduced by the Indian Councils Act, 1892,[84] (55 & 56 Vict. c. 14) namely, that (a) though the majority of official members was retained, the non-official members of the Indian Legislative Council were henceforth to be nominated by the Bengal Chamber of Commerce and the Provincial Legislative Councils while the non-official members of the Provincial Councils were to be nominated by certain local bodies such as universities, district boards, municipalities; (b) the Councils were to have the power of discussing the annual statement of revenue and expenditure, *i.e.,* the Budget and of addressing questions to the Executive.

This Act is notable for its object, which was explained by the then Under-Secretary of State for India thus:

> to widen the basis and expand the functions of the Government of India, and to give further opportunities to the *non-official and native elements in Indian* society to take part in the work of the Government.

5.4 The Morley-Minto Reforms and the Indian Councils Act, 1909

The first attempt at introducing a representative element was made by the Morley-Minto Reforms, known by the names of the then Secretary of State for India (Lord Morley) and the Viceroy (Lord Minto), which were implemented by the Indian Councils Act, 1909.[85]

The changes relating to the Provincial Legislative Councils were more advanced. The size of these Councils was enlarged by including elected non-official members. Election was also introduced in the Legislative Council at the Centre but the official majority there was maintained.

The deliberative functions of the Legislative Councils were also increased by this Act by giving them the opportunity of influencing the policy of the administration by moving resolutions, on the Budget, and on any matter of public interest, save certain specified subjects, such as the Armed Forces, Foreign Affairs and the Indian States.

On the other hand, the vice of the system of election introduced by the Act of 1909 was that it provided, for the first time, for separate representation of the Muslim community and thus sowed the seeds of separatism[86] that eventually led to the lamentable partition of the country. It can hardly be overlooked that this idea of separate electorates for the Muslims was synchronous with the formation of the Muslim League as a political party (1906).[87]

5.5 The Government of India Acts, 1912 and 1915

Between 1909, and 1919, some other statutes relating to the Government of India Act were passed by the British Parliament which were in the nature of consolidating or amending Acts, without effecting much substantial advance or change in the constitutional structure.[88]

Thus, the Government of India Act, 1912[89] cancelled the partition of Bengal and created a new province of Bihar and Orissa and also made Assam a new Chief Commissioner's province. Bengal was to have a separate Governor with rights, duties and functions similar to those of Madras and Bombay and Bihar and Orissa would have a Lieutenant-Governor with an Executive Council. The Governor-General was also empowered to constitute Legislative Councils for territories under a Chief Commissioner.

Subsequent to this, the Government of India Act, 1915 was passed merely to consolidate the provisions of all the preceding Government of India Acts so that the existing governmental provisions relating to the Government of India in its executive, legislative and judicial branches could be had from one enactment.

5.6 The Montagu-Chelmsford Report

The next landmark in the constitutional development of India is the Montagu-Chelmsford Report which led to the enactment of the Government of India Act, 1919.

The Morley Minto Reforms failed to satisfy the aspirations of the nationalists in India inasmuch as, professedly, the Reforms did not aim at the establishment of a Parliamentary system of government in the country and provided for the retention of the final decision on all questions in the hands of the irresponsible Executive.

The Indian National Congress which, established in 1885, was so long under the control of Moderates, became more active during the First World War and started its campaign for self-government (known as the "Home

Rule" movement). In response to this popular demand, the British Government made a declaration on 20 August 1917 that the policy of His Majesty's Government was that of:

> increasing association of Indians in every branch of the administration and the gradual development of self-governing institutions with a view to progressive realisation of responsible government in British India as an integral part of the British Empire.

The then Secretary of State for India (Mr. E.S. Montagu) and the Governor-General (Lord Chelmsford) were entrusted with the task of formulating proposals for carrying out the above policy and the Government of India Act, 1919, gave a legal shape to their recommendations.

The importance of the Act of 1919 amongst the landmarks in the pre-constitutional development of the political system in India may be best explained in the words of the Royal Proclamation made by George V in 1919 by which the enactment of the Act of 1919 was announced:

> Another epoch has been reached to-day in the annals of India. I have given My Royal assent to an Act which will take its place among the great historic measures passed by Parliament of this realm for the better government of India and for the greater contentment of her people. The Acts of 1773 and 1784 were designed to establish a regular system of administration and justice under the Hon'ble East India Company. The Act of 1833 opened the door to public service and employment. The Act of 1858 transferred the administration from the Company to the Crown and laid the foundations of public life which exist in India today. The Act of 1861 sowed the seeds of representative institutions; and the seed was quickened into life by the Act of 1909. The Act which has now become law entrusts elected representative of the people with a definite share in Government and points the way to full representative government hereafter.

This policy of the British Parliament, *viz.,* the "progressive realisation of *responsible government* in British India as an integral part of the empire" was, in fact, recited in the Preamble of the Act of 1919[90] and the provisions of the Act, as will appear below, sought to implement this policy.

5.7 The Government of India Act, 1919

The main features of the system introduced by the Government of India Act, 1919[91], were as follows[92]:

(1) Dyarchy in the ProvincesMain features of the system introduced by the Act of 1919.

Responsible government in the Provinces was sought to be introduced, without impairing the responsibility of the Governor (through the Governor-General), for the administration of the Province, by resorting to a device known as "Dyarchy" or dual government. The subjects of administration were to be divided (by Rules made under the Act) into two categories—Central and Provincial. The Central subjects were those which were exclusively kept under the control of the Central Government. The Provincial subjects were sub-divided into "transferred" and "reserved" subjects.

Of the matters assigned to the Provinces, the "transferred subjects" were to be administered by the Governor with the aid of Ministers responsible to the Legislative Council in which the proportion of elected members was raised to 70 %. The foundation of responsible government was thus laid down in the narrow sphere of "transferred" subjects.

The "reserved subjects", on the other hand, were to be administered by the Governor and his Executive Council without any responsibility to the Legislature.

(2) Relaxation of Central control over the Provinces

As stated already, the Rules made under the Government of India Act, 1919, known as the Devolution Rules, made a separation of the subjects of administration into two categories—Central and Provincial. Broadly speaking, subjects of all-India importance were brought under the category "Central", while matters primarily relating to the administration of the provinces were classified as "Provincial". *This meant a relaxationof the previous Central control over the provinces* not only in administrative but also in legislative and financial matters. Even the sources of revenue were divided into two categories so that the Provinces could run the administration with the aid of revenues raised by the Provinces themselves and for this purpose, the provincial budgets were separated from the Government of India and the Provincial Legislature was empowered to present its own budget and levy its own taxes relating to the provincial sources of revenue.

At the same time, this devolution of power to the Provinces should not be mistaken for a *federal* distribution of

powers. Under the Act of 1919, the Provinces got power by way of delegation from the Centre. The Central Legislature, therefore, retained power to legislate for the whole of India, relating to any subject, and it was subject to such paramount power of the Central Legislature that the Provincial Legislature got the power "to make laws for the peace and good government of the territories for the time being constituting that province."

The control of the Governor-General over Provincial legislation was also retained by laying down that a Provincial Bill, even though assented to by the Governor, would not become law unless assented to also by the Governor-General, and by empowering the Governor to reserve a Bill for the consideration of the Governor-General if it related to matters specified in this behalf by the Rules made under the Act.

(3) The Indian Legislature made more representative

No responsibility was, however, introduced at the Centre and the Governor-General in Council continued to remain responsible only to the British Parliament through the Secretary of State for India. Nevertheless, the Indian Legislature was made more representative and, for the first time, *bicameral*. It was to consist of an Upper House, named the Council of State, composed of 60 members of whom 34 were elected, and a Lower House, named the Legislative Assembly, composed of about 144 members of whom 104 were elected. The powers of both the Houses were equal except that the power to vote supply was given exclusively to the Legislative Assembly. The electorates were, however, arranged on a communal and sectional basis, developing the Morley-Minto device further.

The Governor-General's overriding powers in respect of Central legislation were retained in the following forms—(i) his prior sanction was required to introduce Bills relating to certain matters; (ii) he had the power to veto or to reserve for consideration of the Crown any Bill passed by the Indian Legislature; (iii) he had the converse power of certifying any Bill or any grant refused to be passed or made by the Legislature, in which case it would have the same effect as if it was passed or made by the Legislature; (iv) he could make Ordinances, having the force of law, for a temporary period, in cases of emergency.

5.8 Shortcomings of the Act of 1919.

The Reforms of 1919, however, failed to fulfil the aspirations of the people in India, and led to an agitation by the Congress (now under the leadership of Mahatma Gandhi) for "Swaraj" or self - government, independent of the British Empire, to be attained through "Non-co-operation". The shortcomings of the 1919 system, mainly, were—

Structure Unitary & Centralised

(i) Notwithstanding a substantial measure of devolution of power to the Provinces, the structure still remained unitary and centralised "with the Governor-General in Council as the keystone of the whole constitutional edifice; and it is through the Governor-General in Council that the Secretary of State and, ultimately, Parliament, discharged their responsibilities for the peace, order and good Government of India".[93] It was the Governor-General and not the Courts who had the authority to decide whether a particular subject was Central or Provincial. The Provincial Legislature could not, without the previous sanction of the Governor-General, take up for consideration any bill relating to a number of subjects.

Overriding financial powers and control over official block

(ii) The greatest dissatisfaction came from the working of Dyarchy in the Provincial sphere. In a large measure, the Governor came to dominate ministerial policy by means of his overriding financial powers and control over the official block in the Legislature. In practice, scarcely any question of importance could arise without affecting one or more of the reserve departments. The impracticability of a division of the administration into two water-tight compartments was manifested beyond doubt. The main defect of the system from the Indian standpoint was the control of the purse. Finance, being a reserved subject, was placed in charge of a member of the Executive Council and not a Minister. It was impossible for any Minister to implement any progressive measure for want of funds and together with this was the further fact that the members of the Indian Civil Service, through whom the Ministers were to implement their policies, were recruited by the Secretary of State and were responsible to him and not the Ministers. Above all was the overriding power of the Governor who did not act as constitutional head even with respect to the transferred subjects. There was no provision for collective responsibility of the Ministers to the Provincial Legislature. The ministers were appointed individually, acted as advisers to the Governor and differed from members of the Executive Council only in the fact that they were non-officials. The Governor had the discretion to act otherwise than in accordance with the advice

> of his Ministers; he could certify a grant refused by the Legislature or a Bill rejected by it if it was regarded by him as essential for the due discharge of his responsibilities relating to a reserved subject.

It is no wonder, therefore, that the introduction of ministerial government over a part of the Provincial sphere proved ineffective and failed to satisfy Indian aspirations.

5.9 The Simon Commission and the Communal Award

The persistent demand for further reforms, attended with the dislocation caused by the Non -co-operation movement, led the British Government in 1927 to appoint a Statutory Commission, as envisaged by the Government of India Act, 1919 itself (section 84A),[1] to inquire into and report on the working of the Act and in 1929 to announce that Dominion Status was the goal of Indian political developments. The Commission, headed by Sir John Simon, reported in 1930. The Report was considered by a Round Table Conference consisting of the delegates of the British Government and of British India as well as of the Rulers of the Indian States (inasmuch as the scheme was to unite the Indian States with the rest of India under a federal scheme). A White Paper, prepared on the results of this Conference, was examined by a Joint Select Committee of the British Parliament and the Government of India Bill was drafted in accordance with the recommendations of that Select Committee, and passed, with certain amendments, as the Government of India Act, 1935.[2]

5.10 The Government of India Act, 1935[3]

Before analysing the main features of the system introduced by this Act, it should be pointed out that this Act further perpetuated the communal cleavage between Muslim and non-Muslim communities, by prescribing separate electorates on the basis of the “Communal Award” which was issued by Mr. Ramsay MacDonald, the British Prime Minister, on August 4, 1932, on the ground that the two major communities had failed to come to an agreement. From here on, agreement between the two *religious* communities was continuously hoisted as a condition precedent for any further *political* advance. The Act of 1935, it should be noted, provided separate representation not only for the Muslims, but also for the Sikhs, the Europeans, Indian Christians and Anglo-Indians and thus created a serious hurdle to the building of national unity, which the makers of the future *Constitution* found almost insurmountable to overcome even after the Muslims had partitioned for a separate State.

5.11 The main features of the Government of India Act, 1935(i) *The federal scheme.*—

While under all the previous Government of India Acts, the Government of India was *unitary,* the Act of 1935 prescribed a federation, taking the Provinces and the Indian States as units.

(A) Under the pre-existing unitary system, the Provinces were under the administrative as well as legislative control of the Central Government, from whom their authority was derived. Though under the Government of India Act, 1919, the Provincial Executive exercised powers over a wide field and was responsible to the Provincial Legislature in certain matters, the essence of the political system was—

> a unitary and centralised government with the Governor-General in Council as the keystone of the whole constitutional edifice; and it is through the Governor-General in Council that the Secretary of State and ultimately Parliament discharge their responsibilities, for the peace, order and good Government of India.[4]

In short, throughout the British rule and in spite of the reforms introduced by the Government of India Act, 1919, the Central Government remained the agent of the Secretary of State who was responsible to the British Parliament and the Provinces derived their authority by devolution *from* the Central Government.

The Indian States, which were ruled by hereditary Chiefs, enjoyed various degrees of internal sovereignty, but were controlled by the Governor- General so far as their external relations were concerned and even in internal affairs, the Governor-General, as the Viceroy or representative of the Crown, held a reserve of power to interfere in cases of maladministration and the like, by virtue of the Crown’s suzerainty which was conveniently referred to as *paramountcy.*

The Governor-General, thus, formed the apex of this highly centralised system.

(B) The Government of India Act, 1935, proposed to unite the Provinces and the Indian States into a federation *under the Crown.* So far as the Provinces were concerned, this involved the process of breaking up the unitary State into a number of autonomous Provinces which were to derive their authority directly from the Crown (instead of from the Central Government as under the previous system), and then building them up into a federal structure, in which both the Federal and Provincial Governments should get definitely demarcated powers by direct delegation from the Crown. As the Simon Commission put it—

> In any new *Constitution*, in which autonomous Provinces are to be federally united under the Crown, not only can the Provinces no longer derive their powers and authority from devolution by the Central Government, but the Central Government cannot continue to be an agent of the Secretary of State. Both must derive their powers and authority from a direct grant by the Crown. We apprehend, therefore, that the legal basis of a reconstituted Government of India must be, *first*, the resumption into the hands of the Crown all rights, authority and jurisdiction in and over the territories in British India, whether they were at present vested in the Secretary of State, the Governor-General in Council, or in the Provincial Government and Administrations; and *second*, their redistribution in such manner as the Act may prescribe between the Central Government on the one hand and the Provinces on the other.[5]

The federal structure envisaged by the Government of India Act, 1935, however, never came into being; for it was *optional*[6] with the Indian States to join the proposed Federation, and they never gave their consent.

(ii) *Provincial Autonomy.*—

Though the Part relating to the Federation never took effect, the Part relating to Provincial Autonomy was given effect to since April, 1937. The Act divided legislative powers between the Provincial and Central Legislatures, and within its defined sphere, the Provinces were no longer delegates of the Central Government, but were autonomous units of administration. To this extent, the Government of India assumed the role of a federal government *vis-a-vis* the Provincial Governments, though the Indian States did not come into the fold to complete the scheme of federation.

The executive authority of a Province was also exercised by the Governor on behalf of the Crown and not as a subordinate of the Governor-General. The governor was required to act with the advice of Ministers responsible to the Legislature.

But notwithstanding the introduction of Provincial Autonomy, the Act of 1935 retained control of the Central Government over the Provinces in a certain sphere,— by requiring the Governor to act, "in his discretion'[7] or in the exercise of his "individual judgment'[8] in certain matters. In such matters, the Governor was to act without ministerial advice, and under the control and direction of the Governor-General, and, through him, of the Secretary of State.

The Governor-General's power to give directions[9] and the Governor's extraordinary powers of legislation, independent of the Provincial Legislature,[10] also operated as fetters upon the full play of Provincial autonomy. The Governor had also the power, acting in his discretion, to make a Proclamation that there was a failure of the constitutional machinery, and assume to himself all executive and legislative powers in the Province.[11]

(iii) *Dyarchy at the Centre.*—

The executive authority of the Centre was vested in the Governor-General (on behalf of the Crown), whose functions were divided into two groups:—

(a) The administration of defence, external affairs, ecclesiastical affairs, and of tribal areas, was left to the Governor-General "in his discretion with the help of counsellors", appointed by him, who were not responsible to the Legislature.

(b) With regard to matters other than the above reserved subjects, the Governor-General was to act on the advice of a "Council of ministers", who were responsible to the Legislature. But even in regard to this latter sphere, the Governor-General might act contrary to the advice so tendered by the ministers if any of his "special responsibilities" were involved. As regards the special responsibilities, the Governor-General was to act under the control and directions of the Secretary of State.

But, in fact, neither any "Counsellors" nor any Council of Ministers responsible to the Legislature came to be appointed under the Act of 1935; the old Executive Council provided by the Act of 1919 continued to advise the Governor-General until the Indian Independence Act, 1947.

(iv) *Distribution of legislative powers between the Centre and the Provinces.*—

Though the Indian States did not join the Federation, the federal provisions of the Government of India Act, 1935, were in fact, applied as between the Central Government and the Provinces. The division of powers between the Centre and the Provinces is of special interest to the reader in view of the fact that the division made in the *Constitution* between the Union and the States proceeds largely on the same lines.

A three-fold division was made in the Act—

(i) There was a *Federal* List over which the Federal Legislature had exclusive powers of legislation. This List included matters such as External affairs; currency and coinage; naval, military and air forces; census.

(ii) There was a *Provincial* List of matters over which the Provincial Legislature had exclusive jurisdiction, *e.g.,* Police, Provincial Public Service, Education.

(iii) There was a *Concurrent* List of matters over which both the Federal and Provincial Legislatures had competence, *e.g.,* criminal law and procedure; civil procedure; marriage and divorce, arbitration.

The federal Legislature had, however, the power to legislate with respect to matters enumerated in the Provincial List if a Proclamation of Emergency was made by the Governor-General.[12] The Federal Legislature could also legislate with respect to a Provincial subject if the Legislatures of two or more Provinces desired this in their common interests.[13]

In case of repugnancy in the Concurrent field, a Federal law prevailed over a Provincial law to the extent of the repugnancy, but if the Provincial law received the assent of the Governor-General or of His Majesty, having been reserved for their consideration for this purpose, the Provincial law prevailed, notwithstanding such repugnancy.[14]

The allocation of residuary power of legislation in the Act was unique. It was not vested in either of the Central or Provincial Legislatures but the Governor-General was empowered to authorise either the Federal or the Provincial Legislature to enact a law with respect to any matter which was not enumerated in the Legislative Lists.[15]
(v) *Non-sovereign character of the Legislatures.—*

The Central Legislature was bicameral, consisting of the House of Assembly and the Council of State.

In six of the Provinces, the Legislature was bicameral, comprising a Legislative Assembly and a Legislative Council. In the rest of the Provinces, the Legislature was unicameral.

The legislative powers of both the Central and the Provincial Legislatures were subject to various limitations and neither could be said to have possessed the features of a sovereign Legislature. Thus, the Central Legislature was subject to the following limitations:

(i) Apart from the Governor-General's power of veto, a Bill passed by the Central Legislature was also subject to veto by the Crown.[16]

(ii) The Governor-General might prevent discussion in the Legislature and suspend the proceedings in regard to any Bill if he was satisfied that it would affect the discharge of his special responsibilities.[17]

(iii) Apart from the power to promulgate Ordinances during the recess of the Legislature, the Governor-General had independent powers of legislation, concurrently with those of the Legislature. Thus, he had the power to make temporary Ordinances as well as permanent Acts,[18]*at any time*, for the discharge of his special responsibilities.

(iv) No Bill or amendment could be introduced in the Legislature without the Governor General's *previous sanction,* with respect to certain matters,[19]*e.g.,* if the Bill or amendment sought to repeal or amend or was repugnant to, any law of the British Parliament extending to India or any Governor-General's or Governor's Act, or if it sought to affect matters as respects which the Governor-General was required to act in his discretion.

There were similar fetters on the Provincial Legislature.
(vi) *The Federal Court.—*

Consistent with the federal scheme introduced by the Act of 1935, it set up, for the first time, a federal Court for India.[20] The provisions relating to this Federal Court are of great interest to us in view of the fact that this Court –was a precursor of the Supreme Court under the *Constitution* and that many of the provisions of the Act of 1935 relating to the Federal Court have been substantially adopted in the *Constitution* as regards the Supreme Court.

The Federal Court, as the guardian of the federal system, had an original jurisdiction to determine *dispute*

between the units of the federation inter se (section 204). It was also the appellate Court from the High Courts in the Provinces and the Indian States on *constitutional* questions, that is to say, on questions involving the interpretation of the Government of India Act, 1935, and the Orders in Council made thereunder (Sections 205, 207).

Besides, the Federal Legislature was empowered to confer upon the Federal Court *civil appellate* jurisdiction, that is, to hear appeals in civil cases (of specified value) from the High Courts, but this power was not exercised before Independence. In 1948, the civil appellate jurisdiction, which so long belonged to the Privy Council, was transferred to the Federal Court.

Appeal, however, lay from the decisions of the Federal Court to the Privy Council (section 208), until such appeal was abolished by the enactment of the Abolition of Privy Council Jurisdiction Act, 1949.
5.12 Effects of the Indian Independence Act, 19475.12.1 Changes introduced by the Indian Independence Act, 1947.

The circumstances leading to the enactment of the Indian Independence Act, 1947, have already been explained (*ante*). The changes introduced by this Act into the structure of government pending the drawing up of a *Constitution* for independent Indian by a Constituent Assembly, should be pointed out in the present context, so as to offer a correct and comprehensive picture of the background against which the *Constitution* was made.

In pursuance of the Indian Independence Act, the Government of India Act, 1935, was amended by the Adaptation Orders, both in India and in Pakistan, in order to provide an interim *Constitution*[21] to each of the two Dominions until the Constituent Assembly could draw up the future *Constitution*.

The following were the main results of such adaptations:
(a) *Abolition of the Sovereignty and Responsibility of the British Parliament.—*

By the Government of India Act, 1858, the Government of India was transferred from the East India Company to the Crown. By this Act, the British Parliament became the direct guardian of India, and the office of the Secretary of State was created for the administration of Indian affairs—for which the Secretary of State was responsible to Parliament. Notwithstanding gradual relaxation of the control, the Governor-General of India and the Provincial Governors remained substantially under the direct control of the Secretary of State until the Indian Independence Act, 1947, so that—

> In constitutional theory, the Government of India is a subordinate official Government under His Majesty's Government.

The Indian Independence Act altered this constitutional position, root and branch. It declared that with effect from the 15th August, 1947, the suzerainty of the British Crown over the Indian States lapsed and the treaty relations with Tribal Areas also lapsed from that date.

> His Majesty's Government in the United Kingdom have no responsibility as respects the Government of the territories.....included in British India [section 7(1)(a)].

The responsibility of the British Government and Parliament for the administration of India having ceased, the office of the Secretary of State for India was also abolished.
(b) *The Crown no longer the source of authority.—*

India was so long a Dependency of the British Crown and the Government of India was carried on in the name of His Majesty. Under the Act of 1935, the Crown came into further prominence owing to the scheme of the Act being federal, and all the units of the federation, including the Provinces, drew their authority direct from the Crown. But under the Independence Act, 1947, neither of the two Dominions of India and Pakistan had to derive its authority from the British Isles.
(c) *Powers of the Governors-General and Provincial Governors.—*

The Governor-Generals of the two Dominions were to be the constitutional heads of the two new Dominions as in the case of other Dominions. According to the adaptations under the Independence Act, there was no longer any Executive Council as under the Act of 1919, or "counsellors" as under the Act of 1935. The Governor-General or the Provincial Governor was to act on the advice of a Council of Ministers having the confidence of the Dominion Legislature or the Provincial Legislature, as the case might be.

The words “in his discretion”, “acting in his discretion” and “individual judgment” were effaced from the Government of India Act, 1935, wherever they occurred, with the result that there was now no sphere in which these constitutional heads could act without or against the wishes of the Ministers. Similarly, the powers of the Governor-General requiring Governors to discharge certain functions as his agents were deleted from the Act.

The Governor-General and the Governor lost their extraordinary powers of legislation so as to compete with the Legislature, by passing Acts, proclamations and ordinances for ordinary legislative purposes, and also the power of certification. The Crown also lost its right of veto and so the Governor-General could not reserve any bill for the significance of His Majesty’s pleasure.

(d) *Sovereignty of the Dominion Legislature.—*

The Central Legislature of India, composed of the Legislative Assembly and the Council of State, ceased to exist on the 14 August 1947. From the “appointed day” and until the Constituent Assembly was able to frame the new *Constitution* and a new Legislature was constituted thereunder,—it was the Constituent Assembly itself which was to function also as the Central Legislature of the Dominion. In other words, under section 8(2), Proviso (*e*) of the Independence Act, 1947, the Constituent Assembly of the Dominion was to have a dual function—*constituent* as well as legislative.

The sovereignty of the Dominion Legislature was complete and no sanction of the Governor-General was required to legislate on any matter, and there was to be no repugnancy by reason of contravention of any Imperial law.

6. NATURE OF THE CONSTITUTION OF INDIA

Before entering into a juridical interpretation of the clauses of the *Constitution*, it would be profitable to notice the general features of the *Constitution*, or the broad foundations upon which those particular provisions rest.

(i) Drawn from different sources

The *Constitution of India* is remarkable for many outstanding features which distinguishes it from other Constitutions even though it has been prepared after “ransacking all the known Constitutions of the world” and most of its provisions are substantially borrowed from others. As Dr. Ambedkar observed[22],—

> One likes to ask whether there can be anything new in a *Constitution* framed at this hour in the history of the world. More than hundred years have rolled when the first written *Constitution* was drafted. It has been followed by many other countries reducing their Constitutions to writing…Given these facts, all Constitutions in their main provisions must look similar. The only new things, if there be any, in a *Constitution* framed so late in the day are the variations made to *remove the faults and to accommodate it to the needs of the country.*[22]

So, though our *Constitution* may be said to be a “borrowed” *Constitution*, the credit of its framers lies in gathering the best features of each of the existing Constitutions and in modifying them with a view to avoiding the faults that have been disclosed in their working and to adapting them to the existing conditions and needs of this country. So, if it is a “patchwork”, it is a “beautiful patchwork”.[23]

There were members in the Constituent Assembly[23] who criticised the *Constitution* which was going to be adopted as a “slavish imitation of the West” or “not” suited to the genius’ of the people. Many apprehended that it would be unworkable. But the fact that it has survived for more than forty years, while Constitutions have sprung up only to wither away in countries around us, such as Burma and Pakistan, belies the apprehension of the critics of the Indian *Constitution*.

Supplemented by multiple amendments, and practically recast by the 42nd, 43rd and 44th Amendments, 1976-78.

It must, however, be pointed out at the outset that many of the original features of the 1949-*Constitution* have been substantially modified by the 71 Amendments which have been made up to 1992,—of which the 42nd Amendment Act, 1976 (as modified by the 43rd and 44th Amendment Acts, 1977-78), has practically recast the *Constitution* in vital respects.

(ii) The Constitution is written

It is commonplace to say that *our**Constitution* is written as that is patent on its face. But to a jurist and a student of political science, a written *Constitution* has serious implications:

(*a*) A written *Constitution* means *limited Government*.[24] The *Constitution* divides the sovereign powers amongst

the three organs of Government, Executive, Legislature and Judiciary, so that the powers of each are defined by the *Constitution*, and none can act beyond its own powers[25] or usurp those that legitimately belong to another organ under the *Constitution*. The *Constitution* is regarded as the supreme law of the land and it controls and permeates each institution in the country. Every organ in the country must act in accordance with the *Constitution*.[26] There are express provisions such as *Articles 13* and *254*(1) which make it clear that the *Constitution* is the paramount law, inconsistency with it renders a law made by the legislature (either of the Union or of a State) void.

Since the powers of all organs of the State are defined in the *Constitution*, it follows that under a written *constitution*, no organ or branch of the Government can claim omnipotence or sovereignty.[27] It means that none of them can exercise unlimited power, and that if any of those constitutional limits are transgressed, the relevant act of the Government, whether executive, legislative or judicial, shall be *ultra vires* or unconstitutional.[28]

Every organ of the Government, be it the executive or the legislature or the judiciary, derives its authority from the *Constitution*, and it has to act within the limits of the authority and no authority can claim that it shall be the sole judge of the extent of its power under the *Constitution*. The Supreme Court is the ultimate interpreter of the *Constitution* and it is for the Supreme Court to enforce constitutional limitation on the organs of the Government.[29]

Sovereignty under our *Constitution* is not vested in any body of men, but on the “fundamental law” as laid down in the *Constitution*.[30] That is what the Americans mean by the expression “Government of laws, not of men”.[31]

In a constitutional set-up, separation of powers has a great significance and practical utility. It creates democratic balance in the different branches of the Government “The purpose of separation of powers is to save people from autocracy”.[32] Under the Indian *Constitution*, though theoretically there is no strict separation of powers, in practical application, the three branches of the Government have their own separate sphere of work. The legislative branch cannot delegate its legislative power to the executive. In the case of such delegation, the judiciary intervenes and the judiciary has implied constitutional power to declare the action as unconstitutional. Such power the court possesses as a matter of constitutional mandate, express or implied, to maintain balance of legislative power. Separation of powers is offset by the principle of checks and balances and in that view the court is the guardian of separation of powers.[33] Likewise, a judgment pronounced by competent court cannot be overruled or declared void by the legislature, since that would amount to exercise of judicial power by the legislature.[34]

(*b*) A written *Constitution*, thus, provides the organic or *fundamental* law, with reference to which the validity of the laws enacted by the Legislature is to be tested.[34a]

> It is the peculiar value of a written *Constitution* that it places in unchanging form limitations upon legislative action.[35]

A law enacted by the Legislature cannot transgress or violate the provisions of the fundamental law. Thus, the Parliament under the Indian *Constitution* cannot be said to be a sovereign Legislature in the *Dicean* sense.[36]

(*c*) In a written *Constitution*, the Judiciary is usually called “the guardian of the *Constitution*”. While the powers of all the organs of Government are drawn from and limited by the *Constitution*, power must necessarily be reposed in some authority to guard that the limits imposed by the *Constitution* are not violated by any of these organs. In the *American**Constitution*, this power has been assumed by the Judiciary without any express provision to that effect in the *Constitution*. In *our**Constitution*, there are some provisions to the effect that an executive or legislative act which violates the provisions of the *Constitution* is void, *e.g.*,*Articles 13*, *254*. But as *our* Supreme Court has pointed out,[37] even without these provisions, it would have been the duty of the Court to declare a law as unconstitutional which contravened the Fundamental Rights guaranteed by the *Constitution*[38] or transgressed the legislative competence of the Legislature which enacted it,[39] or any other *mandatory* provision of the *Constitution*.[40]

This is a necessary corollary form the theory that a written *Constitution* is the “fundamental law” of the land. Of course, there are written Constitutions, such as those of France or Switzerland [see under Pt V, Ch. IV, *post*] which confide the trust of guarding the *Constitution* in extra-judicial bodies, but *our**Constitution* has followed the American model in reposing this authority and duty in the Judiciary. As to how the Courts are to exercise this power of “Judicial Review”, we shall see under *Article 13*, *post*, and other relevant provisions.

(iii) The lengthiest Constitution in the world

The *Constitution of India* has the distinction of being the lengthiest written *Constitution* of the world so far produced. Though the original *Constitution* contained as many as 395 Articles and 8 schedules, several Articles have subsequently been omitted and others, added by amendments,[41] so that the *Constitution* has exceeded its original bulk, containing over 100,000 words.[42].

The *Constitution* has been criticized, particularly by Sir Ivor Jennings as too long and detailed and too rigid. Indeed, the *Constitution* is long and detailed, but it has not proved to be rigid. There were sound grounds in the eyes of most Assembly members for the inclusion of so many details in the *Constitution*. Some of them were put into the *Constitution* because they were thought to be of fundamental importance and therefore, not at the level of ordinary legislation. For example, the provisions relating to public services and to the Judiciary were to be included so as to put the independence of services and of the Judiciary beyond the reach of Parliament thereby giving them a special sanctity. The judicial provisions were included in the *Constitution* as the result of an express decision in the Assembly not to relegate them to a Judicature Act.

Another reason for including a variety of details in the *Constitution*, was to effect a smooth transfer of authority from British Indian Government to the Government of India, thus preserving administrative efficiency. Assembly members also believed that a detailed *Constitution* would diminish rather than increase the amount of litigation testing its meaning and their intention. This would be particularly true if the provisions of the *Constitution* embodying administrative details were drawn from 1935 Act, already well known both to politicians and members of legal profession. Moreover, the inclusion of such details from 1935 Act and from other Constitutions would mean that the existing law concerning the interpretation of those provisions would be available to aid in interpreting the *Constitution*.[43] Thus, the extraordinary bulk of the *Constitution* is due to several reasons, some of which are examined below:
Incorporates the accumulated experience of different Constitutions.

(a) The framers sought to incorporate the accumulated experience gathered from the working of all the known Constitutions and to avoid all defects and loopholes that might be anticipated in the light of those Constitutions. Thus, while they framed the Chapter on the Fundamental Rights upon the model of the American *Constitution*, and adopted the Parliamentary system of Government from the United Kingdom, they took the idea of the Directive Principles of State Policy from the *Constitution* of Eire, and added elaborate provisions relating to Emergencies in the light of the *Constitution* of the German Reich and the Government of India Act, 1935. On the other hand, our *Constitution* is more worded than other Constitutions because it has embodied the modified results of judicial decisions made elsewhere interpreting comparable provisions, in order to minimise uncertainty and litigation.
Detailed administrative provisions included.

(b) Not contended with merely laying down the fundamental principles of governance (as the American *Constitution* does), the authors he Government of India Act, 1935, in providing matters of administrative detail,—not only because the people were accustomed to the detailed provisions of that Act, but also because the authors had the apprehension that in the present conditions of the country, the *Constitution* might be perverted unless the form of administration was also included in it. In the words of Dr. Ambedkar. [44]

> ..... It is perfectly possible to pervert the *Constitution* without changing the form of administration.[44]

Any such surreptitious subversion of the *Constitution* was sought to be prevented by putting detailed provisions in the *Constitution* itself, so that they might not be encroached upon without amending the *Constitution*.

It was also felt that the smooth working of an infant democracy might be jeopardised[44] unless the *Constitution* mentioned in detail things which were left in other Constitutions to ordinary legislation. This explains why we have in our *Constitution* detailed provisions about the organisation of the Judiciary, the Services, the Public Service Commissions, Elections and the like. It is the same ideal of “exhaustiveness” which explains why the provisions of the Indian *Constitution* as to the division of powers between the Union and the States are more numerous than perhaps the aggregate of the provisions relating to that subject in the *Constitution* of the U.S.A., Australia and Canada.
Peculiarity of the problems to be solved.

(c) The vastness of the country and the peculiar problems to be solved have also contributed towards the bulk of the *Constitution*. Thus, there is one entire Part [Pt XVI] relating to the Scheduled Castes and Tribes and other backward classes; one Part [Pt XVII] relating to Official Language and another [Pt XVIII] relating to Emergency Provisions.

Constitution of the Units also included

(d) While the *Constitution* of the United States deals only with the Federal Government and leaves the States to draw up their own Constitutions, the Indian *Constitution* provides the Constitutions of both the Union and the Units (*i.e.*, the States), with the same fullness and precision. Since the Units of the federation differed in their historical origins and their political development, special provisions for different classes of the Units[45] had to be made, such as the Pt B States (representing the *former Indian States*), the Pt C States (representing the Centrally Administered areas) and some smaller Territories in Pt D. This also contributed to the bulk of the 1949-*Constitution*. While drafting the *Constitution*, SARDAR PATEL summed up the reason behind this change. (*i.e.,* separate *constitution* of Union and States). "As…States came closer to the Centre, it was realised that the idea of separate *constitution* being framed for the different constituent units of the Indian States was a legacy of the Ruler's polity and in a people's polity, there is no scope for variegated constitutional patterns".[46] The States under the Indian *Constitution* have no right to determine their own *Constitution*. Indian *Constitution*, like the *Constitution* of Canada, is a *Constitution* for the Union as well as the States. The States under our *Constitution* have no independent power to make alterations in the provisions of Federal *Constitution* which affect the States and for the abolition of a Second Chamber in a State requires a law of Parliament (except in the case of State of Jammu and Kashmir, which was given the right to frame its own *Constitution* owing to historical reason which is reserved under *Article 370*(2)).

Learned author GRANVILLE AUSTIN has said:

> The Assembly was perhaps the first constituent body to embrace from the start what A.H. Birch and others have called "co-operative federation". This "new phase" that has emerged largely since World War II, although its root extends back to the thirties and early forties, has been characterised by the increasing interdependence of federal and regional governments – a development, it is usually argued, that has not destroyed the federal principle. This concept is clearly different from the one that was prevailing when the federal system of the United States or Australia was set up and which gave rise to Dr. Wheare's definition of "federation".[47] "The general and regional government of a country shall be independent each of the other within its spheres. Co-operative Federalism produces a strong central or general government, yet it does not necessarily result in weak provincial governments that are largely administrative agencies for the central policies. Indian federation has demonstrated this.

Co-operative federalism according to BIRCH[48] is distinguished by:

> …the practice of administrative co-operation between general and regional government, the partial dependence of the regional governments upon payments from the general government, and the fact that the general government, by the use of conditional grants, frequently promote developments in matters which are constitutionally assigned to the region.[49]

Nagaland, Sikkim, etc.

Even after the inauguration of the *Constitution*, special provisions have been inserted [*e.g.,Articles 371-371-I*], to meet the regional d, Assam, Manipur, Andhra Pradesh, Maharashtra, Gujarat, Sikkim, Mizoram, Arunachal Pradesh, Goa.
Federal Relations elaborately dealt with

(e) Not only are the provisions relating to the Units elaborately given, the relations between the Federation and the Units and the Units *inter se*, whether legislative or administrative, are also exhaustively codified, so as to eliminate conflicts as far as possible. The lessons drawn from the political history of India which induced the framers of the *Constitution* to give it a unitary bias, also prompted them to make detailed provisions "regarding the distribution of powers and functions between the Union and the States in all aspects of their administrative and other activities",[50] and also as regards inter-State relations, co-ordination and adjudication of disputes amongst the States.
Both justiciable and non-justiciable Rights included: Fundamental Rights, Directive Principles, and Fundamental Duties.

(f) There is not only a Bill of Rights containing justiciable fundamental rights of the individual [Pt III] on the model of the Amendments to the *American**Constitution* but also a Part [Pt IV] containing Directive principles, which confer no justiciable rights upon the individual but are nevertheless to be regarded as "fundamental in the governance of the country,—being in the nature of "principles of social policy" as contained in the *Constitution* of *Eire*[51]. It was considered by the makers of *our**Constitution* that though they could not, owing to their very

nature, be made legally enforceable, it was well worth to incorporate in the *Constitution* some basic non-justiciable rights which would serve as moral restraints upon future governments and thus prevent the policy from being torn away from the idea which inspired the makers of the organic law. The learned author GRANVILLEAUSTIN observed:

> The Indian *Constitution* is first and foremost a social document. The majority of the provisions are either directly aimed at furthering the goals of social revolution or attempt to foster this revolution by establishing the conditions necessary for the achievement. Yet despite the permeation of the entire *Constitution* by the aim of national renaissance, the core of the commitment to the social revolution lies in Pts III and IV, in the Fundamental Rights and in the Directive Principles of State Policy. These are conscience of the *Constitution*.[52]

If a law made by the legislature violates any of the Fundamental Rights included in Pt III, it is the duty of the court to strike down that law as unconstitutional. The court has no power to similarly invalidate the law which goes against Directive Principles because the *Constitution* declares them to be "not enforceable by any court". Of course, in determining the constitutionality of the impugned law as well as in finding out the ambit of the fundamental rights which is alleged to have been violated, the Court has to remember that the Judiciary is part of the State within the definition of *Article 36*, so that the court cannot overlook the fact that, though not directly enforceable, the Directive Principles form part of the "fundamental principles" of the State in India and that the legislature while making the law, has the duty to apply those Directives.[53]

The duties imposed on the State by Pt III (*i.e.,* Fundamental Rights) are essentially negative in character. By the mandate contained in this Part, the State is asked not to do certain things. The breach of those mandates is made justiciable because the nature of these mandates is such that they can be easily enforced through Courts. The mandates in Pt IV (*i.e.,* Directive Principles) are positive mandates. Thereunder, the State is directed to take certain positive steps for the advancement of the society. For taking those steps necessary condition must first be created. In the very nature of things, the mandates cannot be enforced through courts. It would be wrong to say that these positive mandates are of lesser significance than the mandates under Pt III.[54]

In 2012the Supreme Court observed that the Directive Principle has been lifted up to the fundamental right especially in the case of right to free and compulsory education for children (*Right of Children to Free and Compulsory Education Act 2009*).[55] In interpreting the *Constitution*, due regard has to be given to the directive principles which have been recorded as the soul of the *Constitution* in the context of India being a Welfare State. The Preamble itself is elaborated in the two vital chapters of the *Constitution* on Fundamental Rights and Directive Principles of State Policy. In the Constituent Assembly Debates, Dr. B.R. Ambedkar has understood that one of the objectives of the Directive Principles of State Policy is to achieve economic democracy, and left that in the hands of elected representatives.[56]

Even the Bill of Rights (*i.e.*, the list of Fundamental Rights) became bulkier than elsewhere because the framers of the *Constitution* had to include novel matters owing to the peculiar problems of *our* country, *e.g.,* untouchability, preventive detention.

To the foregoing list, a notable addition has been made by the 42nd Amendment inserting one new Chapter of Fundamental Duties of Citizens [Pt IVA, *Article 51A*], which though not attended with any legal sanction, have now to be read along with the Fundamental Rights.
Consequences of the Constitution being detailed.

(g) As will appear from the subsequent Chapters, this very feature of the *Constitution* being detailed has got important consequences, from the judicial standpoint. Thus,—

(1) The powers of both the Union and the State being enumerated in detail, there is no scope for judicial interpretation of the federal powers at the expense of the State power as in the *United States*, by the application of the doctrine of "*Implied powers*"[57].

(2) Similarly, the Legislative Lists being elaborate to the point of being exhaustive, little is left for the application of the "residuary" power (see under *Article 248*, *post*).

(3) All parts of the *Constitution* are to be read with the same sanctity.[58]

> …In contrast to the American *Constitution*, the Indian *Constitution* is a very detailed one. The *Constitution* itself provides in minute details the legislative powers of the Parliament and the State

> Legislatures. The same feature is noticeable in the case of the judiciary, finance, trade, commerce and services. It is thus quite detailed and the whole of it has to be read with the same sanctity, without giving undue weight to Pt III or *Article 246*, except to the extent one is legitimately and clearly limited by the other.[58]

The Supreme Court, had to evolve the doctrine of "harmonious construction" of the various parts of the *Constitution*, in case of any apparent conflict between them *inter se*".[59]
Applicability of foreign decisions curtailed.

(4) The *Constitution* being not only written but also detailed, there is no scope for applying any doctrine applicable to foreign Constitutions or judicial decisions thereunder unless the same conclusion emerges from a proper interpretation of the provisions of *ourConstitution*. As MAHAJAN J. observed in the *Delhi Laws Act*[60] case:

> It has to be emphasised that no country in the world has such an elaborate and comprehensive *Constitution* as we have in this country and it would not be proper to construe such a *Constitution* with the help of decisions given elsewhere on the construction of Constitutions shaped differently. It is only after a consideration of all the provisions of the *Constitution* and its whole scheme that it has to be decided whether delegation of power—legislative, executive or judicial—is implicit in the grant of any of these powers or has been expressly provided for to the extent it was considered necessary on grounds of administrative convenience in peace or war time and therefore conferment of this power by implication cannot be upheld on its true construction.[60]

It would not, however, be correct to suppose that foreign decisions are totally inapplicable in the interpretation of the Indian *Constitution*. In fact, *our* Supreme Court has been obliged to adopt much from American Constitutional Law, in interpreting those provisions and concepts which were "borrowed" by the makers of *ourConstitution* from the American *Constitution*.

However, foreign decisions only have persuasive value and are not binding authorities. Hence, Indian courts may choose to follow the minority view rather than majority view of a foreign decision or may follow an overruled foreign decision.[61] American decisions though not sole guides, can be taken into consideration for understanding the basic principles of freedom of speech and expression.[62] In *Kesavananda Bharati v State of Kerala*,[63] the court refused to consider American and of other States, on the ground that the wordings in the various foreign Constitutions are different. In a later decision,[64] one of the learned Judges (JUSTICE BHANDARI) said: "At the outset, it is made clear that decisions of foreign countries are not binding on Indian courts. Indian courts have not adopted American standards of review. But the judgments delivered by US courts on affirmative action have great persuasive value and they can provide broad guidelines as to how we should tackle our prevailing condition. A large number of English laws have been inherited by India and America. English and American cases are frequently cited by our courts." A detailed discussion on applicability of foreign precedent is discussed later in this chapter.
(iv) Flexibility combined with a rigid Constitution

The *Constitution* is either rigid or flexible. A "Flexible *Constitution*" is defined by Dicey as:

> one under which every law of every description can legally be changed what the same ease and in the same manner by one and the same body. Dicey defines a rigid *Constitution* as "one under which certain laws generally known as constitutional or fundamental laws cannot be changed in the same manner as ordinary laws.

Dicey, in his book *Law of the Constitution* (10th Edn) states that where the *Constitution* is rigid, certain laws are distinguished from others in that some special procedure is necessary for their alteration, if they are legally alterable at all. Almost all European and American Constitutions are rigid. The method of amending "fundamental" or "constitutional" laws varies in different Constitutions.

In many Constitutions where special provisions have been made to ensure that the fundamental law laid down in the *Constitution* should not be altered or, if capable of alteration at all, shall only be altered by a special and usually cumbrous procedure. Constitutions of this type are said to be rigid and the contrast is with ones on the British model where no special rules to ensure the immutability of the *Constitution* exist and hence the

Constitution is flexible, in that it can be changed in the same way as any other law is changed. It is this flexibility that has enabled the organs of our constitution to be adapted to changing conditions and therefore to retain their ancient forms in a new age; but it also makes the working of the Constitution difficult to explain and understand.

In *Kesavananda Bharati v State of Kerala,*[65] the Supreme Court considered this question and held thus:

In a rigid or controlled Constitution the distinction between legislative power and constituent power is not only conceptual but material and vital in introducing legal consequences. In a controlled Constitution it is not correct to say that legislative power is the species. (PER RAY, J)

What distinguishes a "rigid" constitution from a "flexible" constitution is that it requires a special procedure for its amendment. Rigidity of procedure in the matter of amendment is the only point of primary distinction between a "rigid" and "flexible" constitution and when this rigidity is overcome by following the special procedure, the power of amendment is not inhibited by the fact that a constitutional provision is either important or unimportant. The amending power operates on all provisions as effectively as it does in a flexible constitution. (PER PALEKAR, J)

The Constitution which can be altered or amended without any special machinery is a flexible constitution. The Constitution which requires special procedure for the alteration or amendment is a rigid constitution. The words controlled and uncontrolled have also been used for this purpose. (PER KHANNA, J)

The outstanding characteristic of a flexible constitution like the British Constitution as contrasted with a rigid one like ours is the unlimited authority of Parliament to which it applies, to pass any law without any restriction. In a rigid constitution, there is a limitation upon the power of the Legislature by something outside itself. There is a greater law than the law of the ordinary Legislature and that is the law of Constitution which is of superior obligation unknown to a flexible constitution. It does not follow that because a constitution is written, it is therefore rigid. There can be a written constitution which is flexible. The "sole creation of a rigid constitution is whether the constituent assembly which drew up the constitution left any special direction as to how it was to be changed". If a special procedure is prescribed by the Constitution for amending it, different from the procedure for passing ordinary law, then the constitution is rigid.

Under a controlled Constitution like ours, the power to amend cannot be a legislative power; it can only be a constituent power. Were it otherwise, the Constitution would cease to be a controlled one.

Therefore, by and large, the only distinction between a law amending the Constitution and an ordinary law in a rigid constitution is that an amendment of the Constitution has always to be made in the manner and form specially prescribed by the Constitution. (PER MATHEW, J)

The distinction between "flexible" and "rigid" constitutions brings into sharp focus the true distinction between legislative and constituent power. In a rigid constitution, the power to make laws is the genus, of which the legislative and constituent powers are the species, the differential being the procedure for amendment. If the procedure is ordinary, the power is legislative; if it is special, the power is constituent. (PerChandrachud, J)

So far as the Indian Constitution is concerned, in *Minerva Mills Ltd v UOI*,[66] it was held thus:

> Judiciary is the interpreter of the Constitution and to the judiciary is assigned the delicate task to determine what is the power conferred on each branch of government, whether it is limited, and if so, what are the limits and whether any action of that branch transgresses such limits. It is for the judiciary to uphold the constitutional values and to enforce the constitutional limitations. If there is one feature of our Constitution which more than any other, is basic and fundamental to the maintenance of democracy and the rule of law, it is the power of judicial review and it is unquestionably a part of the basic structure of the Constitution. Judicial review is a vital principle of our Constitution and it cannot be abrogated without affecting the basic structure of the Constitution.
>
> ...when bestowing such broad powers on the Union Government in the Union and Concurrent List, the Assembly had two main purpose. One was constitutional flexibility. Federalism as Ambedkar put it, traditionally suffered from rigidity, and the countries adopting federal government throughout the years, had sought to reduce this disadvantage. Australia had attempted to do so, by conferring upon the Parliament of the Commonwealth large powers of concurrent legislation. Profiting by Australian example, said Ambedkar, the Draft Constitution had taken the process one step further. While both Constitution gave their central government a large number of concurrent powers, he said, the

> exclusive authority of the Australian Parliament to legislate extends only to about three matters; the authority of Indian Parliament as proposed in the Draft *Constitution* will extent to ninety-one matter. In this way, the Draft *Constitution* has secured the greatest possible elasticity in its federalism, which is supposed to be rigid by nature.[67]

Distinctive feature of the Indian *Constitution* is that it seeks to impart flexibility to a written federal *Constitution*.

It is only the amendment of a few of the provisions of the *Constitution* that requires ratification by the State Legislatures and even then ratification by only ½ of them would suffice (while the American *Constitution* requires ratification by ¾ of the States).

The rest of the *Constitution* may be amended by a special majority of the Union Parliament, *i.e.,* a majority of not less than 2/3 of the members of each House present and voting, which, again, must be a majority of the total membership of the House.

On the other hand, Parliament has been given the power to alter or modify many of the provisions of the *Constitution* by a simple majority as is required for general legislation, by laying down in the *Constitution* that such changes "*shall not bedeemed to be "amendments" of the Constitution".* Instances to the point are—(a) Changes in the names, boundaries, areas of, and amalgamation and separation of States [*Article 4*]. (b) Abolition or creation of the Second Chamber of a State Legislature [*Article 169*]. (c) Administration of Scheduled Areas and Scheduled Tribes [Para 7 of the 5th Schedule and Para 21 of the 6th Schedule]; (d) Creation of Legislatures and Council of Ministers for certain Union Territories [*Article 239A*(2)].
Legislation as supplementing the Constitution.

Yet another evidence of this flexibility is the power given by the *Constitution* itself to the Parliament to *supplement* the provisions of the *Constitution* by legislation. Though the makers of the *Constitution* aimed at exhaustiveness, they realised that it was not possible to anticipate all exigencies and to lay down detailed provisions in the *Constitution* to meet all situations and for all times.

(a) In various Articles, therefore, the *Constitution* lays down certain basic principles and empowers Parliament to supplement these principles by legislation. Thus, (i) as to citizenship, *Articles 5-8* only lay down the conditions for acquisition of citizenship at the commencement of the *Constitution* and *Article 11* vests plenary powers in Parliament to legislate on this subject. In pursuance of this power, the Parliament has enacted the *Citizenship Act, 1955*, so that in order to have a full view of the law of citizenship in India, a study of the *Constitution* has to be supplemented by that of the *Citizenship Act* (ii) Similarly, while laying down certain fundamental safeguards against preventive detention, *Article 22*(7) empowers the Parliament to legislate on some subsidiary matters relating to the subject. The laws made under this power, have, therefore, to be read along with the provisions of *Article 22*. (iii) Again, while banning "untouchability", *Article 17* provides that it shall be an offence "punishable in accordance with law", and in exercise of this power, the Parliament has enacted the *Protection of Civil Rights Act, 1955*[68] which must be referred to as supplementing the constitutional prohibition against untouchability. (iv) While the *Constitution* lays down the basic provisions relating to the election of the President and Vice-President, *Article 71*(3) empowers the Parliament to supplement these constitutional provisions by legislation, and by virtue of this power, the Parliament has enacted the Presidential and Vice-Presidential Elections Act, 1952.

The obvious advantage of this scheme is that the law made by the Parliament may be modified according to the exigencies for the time being, without having to resort to a constitutional amendment.

(b) There are, again, a number of articles in the *Constitution* which are of a tentative or transitional nature and they are to remain in force only so long as the Parliament does not legislate on the subject, *e.g.,* exemption of Union property from State taxation [*Article 285*]; stability of the State [*Article 300*(1)].

The *Constitution*, thus, ensures adaptability by prescribing a variety of modes in which its original text may be changed or supplemented, a fact which has evoked approbation from PROF. WHEARE—

> This variety in the amending process is wise but is *rarely found.*[69]

This wisdom has been manifested in the ease with which Sikkim, a Protectorate since British days, could be brought under the *Constitution*—first, as an "associate State" (35th Amendment Act), and then as a full-fledged State of the Union (36th Amendment Act, 1975).
Reconciliation of a written constitution with Parliamentary Sovereignty.

This combination of the theory of "fundamental law" which underlies the written *Constitution* of the United States with the theory of "Parliamentary sovereignty" which underlies the unwritten *Constitution* of *England* is the result of the liberal philosophy of the framers of the Indian *Constitution* which has been so nicely expressed by PANDITNEHRU:

> While we want this *Constitution* to be as solid and permanent as we can make it, there is no permanence in Constitutions. There should be a certain flexibility. If you make anything rigid and permanent, you stop the nation's growth, the growth of a living, vital, organic people. In any event, we could not make this *Constitution* as rigid that it cannot be *adapted* to changing conditions. When the world is in turmoil and we are passing through" a very swift period of transition, what we may do to-day may not be wholly capable tomorrow.[70]

The flexibility of *our**Constitution* is illustrated by the fact that during the first 42 years of its working, it has been amended 71 times. Vital changes have thus been effected by the First, Fourth, Twenty-fourth, Twenty-fifth, Thirty-ninth, Forty-second and Forty-fourth Amendments to the *Constitution*, including amendments to the fundamental rights, powers of the Supreme Court and the High Courts.

DR. JENNINGS[71] characterised *our**Constitution* as rigid for two reasons: (a) that the process of amendment was complicated and difficult, (b) that matters which should have been left to ordinary legislation having been incorporated into the *Constitution*, no change in these matters is possible without undergoing the process of amendment. We have seen that the working of the *Constitution* during its first four decades has *not* justified the apprehension that the process of amendment is very difficult. But the other part of his reasoning is obviously sound. In fact, his comments on this point have proved to be prophetic. He cited *Article 224* as an illustration of a provision which had been unnecessarily embodied in the *Constitution*:

> An example taken at random is *Article 224*, which empowers a retired judge to sit in High Court. Is that a provision of such constitutional importance that it needs to be constitutionally protected, and be incapable of amendment except with the approval of two-thirds of the members of each House sitting and voting in the Union Parliament.[71]

It has required an amendment of the *Constitution*, namely, the Seventh Amendment of 1956, to amend this Article to provide for the appointment of Additional Judges instead of recalling retired Judges. Similar amendments have been required, once to provide that a Judge of a High Court who is transferred to another High Court shall not be entitled to compensation [*Article 222*] and, again, to provide for compensation. It is needless to multiply such instances since they are numerous.

The greatest evidence of flexibility, however, has been offered by the amendments since 1976. The 42nd Amendment Act, 1976, after the *Constitution* had worked for over quarter of a century, introduced vital changes and upset the balance between the different organs of the State.[72] This damage, again, was alleviated by the next Government by passing the 44th Amendment Act, 1978.[72]

Rigidity: when appears

On the other hand, it must not be supposed that the procedure for amendment under *Article 368* is as flexible as under the unwritten *Constitution* in *England.* Since a Bill for amendment of the *Constitution* has to be passed in both the Houses of the Union Parliament with the prescribed special majority and the composition of the two Houses differs, it becomes under difficult for the ruling Party to effectuate an amendment of the *Constitution* when it cannot command a two-thirds majority in the Upper House (*i.e.,* the Council of States).

The question of rigidity or flexibility of the procedure for amendment prescribed by *Article 368* was clouded so long as the Congress party had a monolithic control over the Legislatures both at the Union and in the States. It was this extraordinary fact that enabled them to overcome the *double* majority[73] safeguard in *Article 368*(2), and to bring 52 amendments in 34 years. The rigidity of the double majority requirement has, on the other hand, been demonstrated by the difficulties which the Janata Government (1977-78) had to face to obtain the passage of an amendment bill to do away with the undemocratic features of the 42nd Amendment, on which they had the support of the consensus of enlightened public opinion.

While an unwritten *Constitution* like that of England can be changed by the Legislature in the same way as it makes or unmakes ordinary laws, a written *Constitution*, being the fundamental law of the land, has a special sanctity and cannot, in its very nature, be alterable like ordinary laws.

In fact, permanence was the very object with which the Americans framed a written *Constitution*. In the words of MARSHALL, C.J.:

> We must never forget that it is a *constitution* which we are expounding, a *constitution* intended to endure for ages, and consequently, to be adapted to the various crises of human affairs. The framers of the document certainly had in mind some degree of permanence. It was not their idea that it should last for only a few years and be quickly superseded by a new instrument framed to meet changed conditions. The provision in amendments precludes the thought. Nor did they imagine that it was to be so strictly interpreted that amendments and radical revisions would be constantly required to keep government functioning smoothly. The *constitution* is to endure for ages and to be regarded as adaptable to the various crises of human affairs, for adaptability is a necessary requirement of permanence.[74]

Flexibility imparted to a Federal Constitution.

A federal *Constitution*, in particular, further requires that the federal structure set up by the *Constitution* should not be lightly altered.[75] The experience in other countries, like the *U.S.A.* and *Australia,* however, shows that too much rigidity in the amending process may stand in the way of adapting the *Constitution* to changing circumstances. The problem before the makers of *our**Constitution* was, therefore, to devise some process of amendment by which a comparative stability could be secured to the federal provisions of the *Constitution* while in other respects the *Constitution* could be made to respond to the needs for reform and progress under new conditions as they arise. In the *U.S.A.,* the Judiciary had to soften the rigidity of the amending process by introducing changes by the imperceptible device of judicial interpretation.[75] As the observation of Chief Justice Marshall[74] explains, the permanence of the *Constitution* could be maintained only because the judiciary took up the role of the reformer by moulding the terms of the *Constitution* through the process of interpretation.

But the method of introducing major changes by judicial interpretation though particular cases that come before the Court is slow as well as limited and the ideas of Judges may not always correspond to the popular demand in nature or in extent. Hence, instead of leaving the matter entirely to the Judiciary, the framers of *our**Constitution* introduced certain provisions in the *Constitution* itself which seek to impart a flexibility to the written *Constitution*.

SIR IVORJENNINGS found fault with the extreme rigidity of *our**Constitution*, which, according to him, is due not only to the difficulty of the amending process but also to the fact that the *Constitution* is so elaborated and detailed.[76] It is interesting to note that another foreign critic from the same country holds just the opposite view regarding the present feature of *our**Constitution*:

> In this respect the *Constitution of India* strikes a good balance.[77]

Of course, the *federal* provisions of our *Constitution**are* subject to a special procedure, *viz.,* that their amendment will require not only a special majority in Parliament, but also ratification by at least ½ of the Legislatures of the States [Proviso to *Article 368*]. But even as regards these provisions, the requirement is less rigorous than under *American**Constitution* which requires ratification by ¾ of the States. Nor is there any provision for referendum as in the *Australian* and *Irish* Constitutions.

Together with the above, other elements of flexibility are also to be noticed:

(a) There are many provisions of a transitional nature, which shall remain in force only until “Parliament otherwise provides” [*e.g.,**Articles 73*(2); 75(6); 97; 125(2); 148(3), and so on]. As regards this feature, PROF. WHEARE observes—

> This variety in the amending process is wise but is rarely found.
>
> The other articles which come under this category are – (1) When the Parliament admits a new State under *Article 2*, it can effect consequential amendment in Schedules I & IV defining territory and allocating seats in Rajya Sabha amongst the various States respectively. (2) Under *Article 11*, the Parliament is empowered to make any provision for acquisition and termination of and all other matters relating to citizenship in spite of *Articles 5* to 10. (3) *Articles 59*(3), 158(3) and 221(2) permit amendments by the Parliament and the Second Schedule deals with salaries and allowances of certain offices created by the *Constitution*. (4) *Article 105*(3) prescribes

Parliamentary privileges until they is defined by the Parliament. *Article 124*(1) prescribes that Supreme Court shall have a Chief Justice and seven Judges until Parliament increases the strength of Judges. (At present, the strength of Supreme Court Judges is thirty, by various amendments). (5) *Article 133*(3) prohibits an appeal from the judgment of a single Judge of a High Court to the Supreme Court. (6) *Article 135* confers jurisdiction on the Supreme Court (equivalent to the Federal Court) unless Parliament otherwise provides. (7) Under *Article 137*, the Supreme Court's power to review its own judgment is subject to law made by the Parliament. (8) *Article 171*(2) states that the composition of the State Legislative Council as laid down in *Article 170*(3) shall endure until the Parliament makes a law providing otherwise. (9) *Article 343*(3) provides that Parliament may by law provide for the use of English even after fifteen years as prescribed under *Article 343*(2). (10) *Article 348*(1) establishes English as the language to be used in the Supreme Court and the High Courts and of legislation until Parliament otherwise provides. (11) Schedules V & VI which deal with administration of the Scheduled Areas and Scheduled Tribes and Tribal Areas in Assam may be amended by Parliament making the law.

There are certain other articles in the *Constitution* which make tentative provisions until a law is made by the Parliament by following the ordinary legislative process, but before the Parliament can act, the States have to take some action. Thus, *Article 3* provides for the re-organisation of the States. Parliament may pass a law for the purpose and effect consequential amendments in Schedules I and IV. Before doing so, however, it is necessary to ascertain the views of the States concerned.

Corresponding to *Article 75*(6) and *105*(3), there are *Articles 164*(5) and *194*(3) which make tentative provision until State legislature makes other provision. They relate respectively to salaries of Ministers in a State and other privileges of the House. These are the only articles in the *Constitution* which enable a State legislature to make a provision different from what the *Constitution* prescribes in the first instance.

(b) There are other provisions which may be altered in the ordinary process of legislation and by a simple majority in Parliament. These are in the nature of amendments but the *Constitution* says that they shall *not* be "deemed to be amendments" of the *Constitution* [*e.g.,Articles 4*(2), 169(3)]. These include such important matters as alteration of boundaries and the formation of new States (see further, under *Article 4*, *post*). Under *Article 169*, Parliament may abolish a State Legislative Council or create one not having it, if the State Legislative Assembly passes a resolution to that effect by a majority of its total membership and by a majority of not less than two-thirds of the members present and voting. The Parliamentary law enacted for the purpose may contain such provision amending the *Constitution* as may be necessary to give effect to it and it is not to be regarded as an amendment to the *Constitution* for the purpose of *Article 368*.

It is by virtue of these provisions that vast territorial changes have been effected, by passing as many as 24 Acts of Parliament (by simple majority), up to 2014.[78]

(c) The rest of the *Constitution* can be amended according to the procedure prescribed by *Article 368*, which is nothing but the ordinary procedure for legislation with the additional requirement of a special majority, *viz.,* a majority of the total membership of not less than 2/3 of the members present and voting, in each of the two Houses of Parliament. It is thus evident that under *our**Constitution*, the ordinary Legislature has been also given *constituent* power,[79] subject to the safeguard of a special majority (barring, of course, the entrenched provisions falling within the Proviso to *Article 368*, which have been **already referred to**).

Hence, so long as there is a strong majority in power[80], it can hardly be said that the amending process is too rigid to admit of any change that is needed for progress.

Rigidity imparted by the judicially evolved doctrine of "basic features".

No less important factor of rigidity comes not from any specific provision of the *Constitution* but from a doctrine which has been evolved by the Supreme Court in 1973—obviously as a reaction to the multiple amendments imposed upon the *Constitution* (by the Congress Govt.) so far. This is the doctrine of "basic features" which will be more fully explained under *Article 368*, *post.*

Briefly speaking, it was held by a 13 Judge Bench of the Supreme Court, in *Kesavananda's* case,[81] that though

Article 368 does not expressly exclude any provision of the Constitution from the process of amendment, an implied limitation arises from the very word "amend" in Article 368.[81] According to the majority of the Court in this case,[81] the word "amend" means only changes *other than* altering the very structure of the Constitution, which would be tantamount to making a new Constitution.

In the result, there are certain *basic features* of the Constitution of India, which cannot be altered in exercise of the power to amend it, under Article 368. If, therefore, a Constitution Amendment Act seeks to alter the basic structure or frame-work of the Constitution, the Court would be entitled to annual it on the ground of *ultra vires.*

These basic features, for instance. (without being exhaustive), are—sovereignty and territorial integrity of India, the federal system, judicial review, Parliamentary system of Government. Some of other basic structures are – (1) Supremacy of Constitution.[82] (2) Separation of powers between legislature, the executive and judiciary.[83] (3) Secular character of the Constitution.[84] (4) Democracy is a basic structure.[85] (5) The concept of equality which is the basic rule of law and that which is regarded as the most fundamental postulate of republicanism are both embedded in Article 14.[86] (6) Independence of judiciary, which power cannot be curtailed by any legislation.[87] The above list is also not exhaustive.

The list of these basic features has not yet been foreclosed.

There is little doubt that the application of this doctrine by the activist Judges of the Supreme Court will resist the spate of politically motivated amendments.[88]
(v) A federal structure with unitary features

Since the framers of *ourConstitution* sought to combine the best features of the different constitutional systems of the world and to avoid the vices inherent in any particular system, they had, naturally, to effect a compromise between opposite theories and models on several vital points. One of these is the combination of a federal structure with unitary features.

There has been much controversy amongst scholars as to whether the system of polity introduced by the Indian Constitution is "federal" or not.[89] The Drafting Committee described the Constitution as "federal in structure'[90] but they preferred to call it a "Union'[91] to indicate two essential features of Indian federalism, namely, (*a*) that the Indian federation is not the result of an agreement by the units and (*b*) that the component units have freedom to secede from it.

According to GRANVILLEAUSTIN, the Constitution of India was, perhaps, the first constituent body to embrace co-operative federalism from the start. Co-operative federalism in the words of A.H. Birch, represents the practice of administrative co-operation between general and regional governments, the partial dependence of the regional governments upon payments from the general government and the fact that the general government by use of conditional grants, frequently promote developments in matters which are constitutionally assigned to the region.[92]

The learned Judge further says: "The problem of every federation, as observed by Bryce is, to keep the centrifugal and centripetal forces into equilibrium, so that neither the planet States shall fly into space nor the Sun of Central Government shall draw them into consuming fires".

Some of the prominent characteristics of a federal constitution are as under:- (i) The government of the country is carried on within the framework of a written constitution; (ii) The governments existing in the country are national and several regional governments. The powers of these governments are co-ordinated with each other and are defined in the Constitution. Separate subjects of legislation are earmarked in the Constitution for the national legislature and some others for regional legislatures. Certain federal constitutions have also a concurrent list of subjects; (iii) There is an independent tribunal to interpret the Constitution and adjudicate in case of dispute between national and regional governments with powers to declare invalid any legislation which encroaches upon the field earmarked for the other; (iv) The division of powers between the national and regional governments is such that each government has control over certain sources of revenue, so that each may be, in principle, if not in practice, financially independent of the other.[93]

The label used by the makers of the Constitution is not, however, conclusive on the question whether the polity introduced by it may legitimately claim to be classified as federal : we have to examine the relevant provisions of the Constitution itself, with reference to the standards which are applied by political scientists to classify a political system as federal or unitary.

The fact that a *Constitution* is described as federal would not necessarily go to show that it is really federal in character. It is always necessary in dealing with *Constitution*, which in the letter of law is federal to discover how in practice the Constitutional Law operates. A federal *Constitution*, as observed by Wheare, may be in practice unitary, as indeed are so-called federal *constitution* of Mexico, Venezuela, Brazil and Argentina.
Different types of federal Constitutions in the modern world.

The difficulty of any treatment of federalism is that there is no agreed definition of a federal State. The other difficulty is that it is habitual with scholars on the subject to start with the model of the *UnitedStates,* the oldest (1787) of all federal Constitutions in the world, and to exclude any system that does not conform to that model from the nomenclature of "federation". But numerous countries in the world have, since 1787, adopted Constitutions having federal features and, if the strict historical standard of the United States be applied to all these later Constitutions, few will stand the test of federalism save perhaps Switzerland and Australia. Nothing is however gained by excluding so many recent Constitutions from the federal class, for, according to the traditional classification followed by political scientists, Constitutions are either unitary or federal. If, therefore, a *Constitution* partakes of some features of both types, the only alternative is to analyse those features and to ascertain whether it is *basically* unitary or federal, although it may have subsidiary variations. A liberal attitude towards the question of federalism is, therefore, inevitable particularly in view of the fact that recent experiments in the world of *Constitution*-making are departing more and more from the "pure" type of either a unitary or a federal system. The Author's views on this subject, expressed in the previous Editions of the Commentary now find support from the categorical assertion of a research worker[1] on the subject of federalism (who happens to be an American himself), that the question whether a State is federal or unitary is one of degree and the answer will depend upon "how many federal features it possesses." Another American scholar[2] has, in the same strain, observed that federation is more a "functional" than an "institutional" concept and that any theory which asserts that there are certain inflexible characteristics without which a political system cannot be federal ignores the fact "that institutions are not the same things in different social and cultural environments."

To anticipate the Author's conclusion, *the constitutional system of India isbasically federal, but, of course, with striking unitary features.* In order to come to this conclusion, we have to formulate the essential minimum features of a Federal system as to which there is common agreement amongst political scientists. Though there may be difference in matters of detail, the consensus of opinion is that a federal system involves the following essential features:
Essential features of a federal polity.(a) *Supremacy of the Constitution.*—

A federal State derives its existence from the *Constitution*, just as a corporation derives its existence from the grant by which it is created. Every power—executive, legislative, or judicial,—whether it belongs to the federation, or to be component States, is subordinate to and controlled by the *Constitution*.
(b) *Dual Government.*—

While in a unitary State, there is only one Government, namely, the national Government, in a federal State, there are two Governments,— the national or federal Government and the Government of each component State.

Though a unitary State may create local sub-divisions, such local authorities enjoy no autonomy of their own but exercise only such powers as are from time to time delegated to them by the national Government and it is competent for the national Government to revoke the delegated powers or any of them at its will.

A federal State, on the other hand, is the fusion of several States into a single State in regard to matters affecting common interests, while each component State enjoys autonomy in regard to other matters. The component States are not mere delegates or agents of the federal Government but both the federal and State Governments draw their authority from the same source, *viz.,* the *Constitution* of the land. On the other hand, a component State has no right to secede from the federation at its will.
(c) *Distribution of Powers.*—

It follows that the very object for which a federal State is formed involves a division of authority between the federal Government and the States. This is what Prof. WHEARE[3] describes as the "federal principle", *i.e.,* "the method of dividing powers so that the General and Regional Governments are each, within a sphere, co-ordinate and independent." While in a unitary state, the demarcation of powers between the Central and local Governments is made by the Central Government and is alterable by itself, in a federal State, this demarcation

is made by the written *Constitution* which is the source of the authority of both the Governments and it can be altered only by an amendment of that organic instrument.
(d) *Authority of Courts.—*

In a federal state the legal supremacy of the *Constitution* is essential to the existence of the State. It is essential to maintain the division of powers not only between the co-ordinate branches of the Government, but also between the Federal Government and the States themselves. This is secured by having in the Courts[4] a final power to interpret the *Constitution* and to nullify any action on the part of the Federal and State Governments or their different organs which violates the provisions of the *Constitution*.
These essential federal features exist under the Constitution of India.

Not much pain needs to be taken to demonstrate that the political system introduced by *our*Constitution possesses all the above essentials of a federal polity. Thus, the *Constitution* is the supreme organic law of our land, and both the Union and the their authority from the *Constitution*, and it is not competent for the States to secede from the Union. There is a division of legislative and administrative powers between the Union and the State Governments and the Supreme Court stands at the head of our Judiciary to jealously guard this distribution of powers and to invalidate any action which violates the limitations imposed by the *Constitution*. This jurisdiction of the Supreme Court may be resorted to not only by a person[5] who has been affected by a Union or State law which, according to him, has violated the constitutional distribution of powers but also by the Union and the States themselves by bringing a direct action against each other, before the Original Jurisdiction of the Supreme Court under *Article 131*.[6] It is because of these basic federal features, that *our* Supreme Court has described the *Constitution* as “federal”.[7]

Though *our*Constitution possesses these fundamental elements of a federation, it possesses so many unique features that it has been variously characterised by foreign observers as a “quasi-federation”,[8] “a unitary State with subsidiary federal features rather than a federal State with subsidiary unitary features”,[9] a federation with strong centralizing tendency”.[10]

When DR. AMBEDKAR presented the Draft *Constitution* to the Constituent Assembly, he described the *Constitution* prepared to be federal, even though the word “Union” was used in *Article 1* and there was no mention of the word “federal” in the Preamble or any other provision and though there were a number of exceptions from traditional federalism in order to give the Union enough strength to meet the disruptive forces—external as well as internal—amidst which the Union was born and though “in time of war it is designed as to make it work as though it was a unitary system”. In the Constituent Assembly, there was a fair consensus that in view of the external conditions as well as the vastness of the country and its heterogeneous elements, a completely unitary system was not only undesirable, but unworkable. India, therefore, was going to have a Federal *Constitution*. This impression was carried by the members till the end, notwithstanding further centralising elements introduced during the proceedings.[11]
Peculiar features of Indian federalism.

In order to make a proper estimate of the nature of Indian federation it is, therefore, necessary to examine its peculiar features with reference to other federal systems, particularly the American, which is still regarded as the mother of federal Constitutions.
(A) *The mode of formation.—*

A federal union may be formed in either of two principal ways, having regard to the pre-existing condition of the component units,—(i) it may be formed by a voluntary agreement between a number of sovereign and independent States, for the administration of certain affairs of general concern, as in the case of the United States of America or Australia; or (ii) the provinces of a unitary State may be transformed into a federal union, as happened in the case of Canada. The provinces of Canada had no separate or independent existence apart from the colonial Government of Canada, and the Union was not formed by any agreement between them but was imposed by a British statute, which withdrew from the Provinces all their former rights and then re-divided them between the Dominion and the Provinces.[12]

According to LORDHALDANE in *A.G. for Commonwealth v Colonial SugarRefining Co,*[13] the former represented the true federation while the latter was a federation only in a loose sense—

> In a loose sense, the word “federal” may be used, as it is there (in Canada) used, to describe any arrangement under which self-contained States agree to delegate their powers to a common Government with a view to frame entirely new Constitutions even of the States themselves. But the natural and literal interpretation of the word confines its

> application to cases in which these states, while agreeing on a measure of delegation, yet in the main *continue to preserve their original Constitutions.*[13]

The *Australian* federation, thus, represented the true type—

> Their Lordships are called upon-to interpret the legislative *compact* made between the Commonwealth and the States, and they have to determine on the language of the Statute (the Commonwealth of Australia *Constitution* Act), what rights of legislation the federating colonies declared to be reserved to themselves. It is clear that any change in the existing distribution of powers has been safeguarded in such a fashion that…the Commonwealth Parliament could not legislate so as to alter that distribution merely of its own motion.[14]

Of the *Canadian**Constitution*, on the other hand, his Lordship observed—

> Although it was founded on the Quebec Resolutions and so must be accepted as a treaty of Union among the then provinces, yet when once enacted by the Imperial Parliament, it constituted a fresh departure and established new Dominion and Provincial Government with defined powers and duties *both derived* from an Act of Parliament which was their legal source.[14a]

India had a thoroughly unitary *constitution* until the Government of India Act, 1935. The Provincial Governments were virtually the agents of the Central Government, deriving powers by delegation from the latter (p. 8-10, *ante*). To appreciate the mode of formation of federation in India, we must go back to the Government of India Act, 1935, which for the first time introduced the federal concept in the *Constitution*.
Federation as envisaged by the Government of India Act, 1935.

By The Act of 1935, the British Parliament set up a federal system in the same manner as it had done in the case of Canada, *viz.,* "by creating autonomous units and combining them into a federation by one and the same Act." It did not emerge out of any "federal sentiment" nor did it come into being as a result of a compact or agreement between existing States to delegate some of their powers to a common Government. All powers hitherto exercised in India were resumed by the Crown and redistributed[15] between the Federation and the Provinces by a direct grant. Under this system, the Provinces derived their authority directly from the Crown and exercised legislative and executive powers, broadly free from Central control, within a defined sphere. Nevertheless, the Centre retained control through "the Governor's special responsibilities" and his obligation to exercise his individual judgment and discretion in certain matters, and the power of the Centre to give directions to the Provinces.[16]

The peculiarity of thus converting a unitary system into a federal one can be best explained in the words of the Joint Parliamentary Committee on Indian Reforms:

> Of course in thus converting a unitary State into a federation we should be taking a step *for which there is no exact historical* precedent. Federations have commonly resulted from an agreement between independent or, at least, autonomous Governments, surrendering a defined part of their sovereignty or autonomy to a new central organism. At the present moment the British Indian Provinces are not even autonomous for they are subject to both administrative and legislative control of the Government and such authority as they exercise has been in the main devolved upon them under a statutory rule-making power by the Governor-General in Council. We are faced with the necessity of *creating autonomous unitsand combining them* into a federation by one and the same Act.

Not the result of a compact.

It is well worth remembering this peculiarity of the origin of the federal system in India. Neither before nor under the Act of 1935, were the Provinces in any sense "sovereign" states like the States of the American Union. The *Constitution*, too, has been framed by the "people of India" assembled in the Constituent Assembly, and the Union of India cannot be said to be the result of any *compact* or agreement between autonomous States.[17] So far as the Provinces are concerned, the progress has been from a unitary to a federal organisation, but even then, this has happened not because the Provinces desired to become autonomous units under a federal union, as in Canada. The Provinces, as just seen, had been artificially made autonomous, within a defined sphere, by the Government of India Act, 1935. What the makers of the *Constitution* did was to associate the Indian States with these autonomous Provinces into a federal union, which in 1935, the Indian States had refused to accede to,.

Some amount of homogeneity of the federating units is a condition for their desire to form a federal union. But

in India, the position has been different. From the earliest times, the Indian States had a separate political entity, and there was little that was common between them and the Provinces which constituted the rest of India. Even under the federal scheme of 1935 the Provinces and the Indian States were treated differently; the accession of the Indian States to the system was voluntary while it was compulsory for the Provinces, and the powers exercisable by the Federation over the Indian States were also to be defined by the Instruments of Accession. It is because it was optional with the Rulers of the Indian States that they refused to join the federal system of 1935. They lacked the "federal sentiment" (*Dicey*), that is, the desire to form a federal union with the rest of India. But, as already pointed out, the political situation changed with the lapse of paramountcy of the British Crown as a result of which most of the Indian States acceded to the Dominion of India on the eve of the independence of India and they were brought within the Union envisaged by the *Constitution* by a process of "merger" and "integration" (which is fully dealt with in Pt VII, *post*).

The credit of the makers of the *Constitution*, therefore, lies not so much in bringing the Indian States under the federal system but in placing them, as much as possible, on the same footing as the other units of the federation, under the same *Constitution*. In short, the survivors of the old Indian States (States in Pt B[18] of the First Schedule) were, with minor exceptions, placed under the same political system as the old Provinces (States in Pt A). The integration of the units of the two categories has eventually been completed by eliminating the separate entities of the States in Pt A and States in Pts B and replacing them by *one* category of "States" by the *Constitution* (Seventh Amendment) Act, 1956.

The federal plan of the *Constitution* is thus uniform and not heterogeneous, as it was under the Act of 1935.
(B) *Position of the States in the federation.*—

From the historical-background it has become already evident that the position of the States in *our* federal scheme must necessarily be somewhat subordinate to that of the Union. As the federation was not the result of any compact between independent States, there was no problem before the makers of the *Constitution*—how to maintain "State rights". From this has resulted a departure from the strict federal principle on several *points*—

(*i*) The *American* federation has been described as "an indestructible Union composed of indestructible States."[19] It is not possible for the national Government to redraw the map of the United States by forming new States or by altering the boundaries of the States as they existed at the time of the compact without the *consent* of the Legislatures of the States concerned.[20] The same principle is adopted in the *Australian**Constitution*[21] with the further safeguard superadded that a popular referendum is required in the affected State to alter its boundaries.
A State may be eliminated or reformed without its consent.

But under *our**Constitution*, it is possible for the Union Parliament to reorganise the States or to alter their boundaries or to eliminate a State altogether[22] by a simple majority in the ordinary process of legislation [*Article 4*(2)]. The *Constitution* does not require that the *consent* of the Legislatures of the States is necessary for enabling Parliament to make such laws; only the President has to "ascertain" the views of the Legislature of the State or States concerned before recommending a Bill for this purpose to Parliament, and if any State Legislature does not express its views within the period fixed by the President, the Bill may be introduced in the Parliament even without obtaining the views of that State.

> Parliament is therefore…invested with authority to alter the boundaries of any State and to diminish its area so as even to destroy the boundaries of State with all its powers and authority.[23]

The reason why such liberal power was given to the national Government to reorganise the States is that the grouping of the Provinces under the Government of India Acts was based on historical and political reasons and not on social, cultural or linguistic divisions of the people themselves. The question of reorganizing the units according to natural alignments was indeed raised at the time of making of the *Constitution* but then there was not enough time to undertake this huge task.
Reorganisation of States

The comparative ease with which such re-organization is possible is demonstrated by the fact that within three years of the commencement of the *Constitution*, a new State named Andhra was formed by subdividing the State of Madras (see, further, under *Articles 3-* 4, *post*). Shortly thereafter, the whole question of reorganization of the States composing the Union was referred to a States Reorganization Commission in December, 1953, to have the question.

> carefully examined…so that the welfare of the people of each constituent unit as well as of the nation as a whole is promoted.[24]

As will be explained more fully hereafter (see under *Article 1*, *post*), in pursuance of the recommendations of this Commission,[25] the entire structure of the Union has been reorganised by enacting the *States Reorganisation Act* (37 of 1956), followed by the *Constitution* (Seventh Amendment) Act, 1956. By this Act the number of States, which was 27 in the original *Constitution* (in different categories), was reduced to 14. This process of reorganisation is ever continuing as will be evident from the formation of so many new States, subsequently, *e.g.*, Himachal Pradesh, Manipur, Meghalaya, Nagaland, Tripura, Haryana, Mizoram, Sikkim, Arunachal Pradesh, Goa, Chattisgarh, Uttarakhand, Jharkhand and Telangana.

(*ii*) Not only does the *Constitution* offer no guarantee to the States against their territorial integrity being affected without their consent,—there is neither any theory of "equality of State rights" underlying the federal scheme in *ourConstitution*, since it is not the result of any agreement between the States.

One of the essential principles of *American* federalism is the equality of the component States under the *Constitution*, irrespective of their size or population. This principle is reflected in the equality of representation of the States in the Upper House of the federal Legislature (*i.e.,* in the Senate) together with the guarantee that no State may, without its consent, be deprived of its equal representation in the Senate (Article V).
No federal equality of States

Under the Indian *Constitution* there is no equality of representation of the States in the Council of States. As given in the Fourth Schedule, the number of members for the several States varies from 1 to lesser States being overridden by the interests of the larger or more populated States is absent under the Indian *Constitution*.
No State can draw its own Constitution.

(*iii*) The States, under the Indian *Constitution*, have no right to determine their own *constitution*. While the *Constitution* of the *United States* (1787) simply drew up the *constitution* of the national Government, leaving it "in the main (to the States) to continue to preserve their original *Constitution*" (or in the case of new admissions— to draw up their own constitutions by a Convention) or to amend them, the *Constitution* of *India,* like that of *Canada*, prescribes *the* constitutions of the Union as well as those of the States.[26] The States of the Indian Union shall have no right or powers anterior to or apart from this *Constitution*.[27]

Unlike in *Canada,*[28] the States under the Indian *Constitution* have no independent power to make alterations in their own Constitutions and even the abolition of a second Chamber in a State requires a law of Parliament [*Article 169*].
No dual citizenship or administration(C) *Nature of the polity.*—

As a radical solution of the problem of reconciling national unity with "State right", the framers of the *AmericanConstitution* made a logical division of everything essential to, with a dual citizenship, a double set of officials and a double system of Courts.

An American is a citizen not only of the State in which he resides but also of the United States, *i.e.,* of the federation; and both the federal and State Governments, each independent of the other, operate *directly* upon the citizen who is thus subject to two Governments, and owes allegiance to both.

But the *IndianConstitution*, like the Canadian, does not introduce any double citizenship[29] but provides for one citizenship, *viz.,*—the citizenship of India [*Article 5*].

Secondly, though the Union and the States shall have their own public services, there is no clear-cut bifurcation in the Administration of the Union and the State laws as in the U.S.A. In *India,* the majority of the public servants are employed by the States, but they administer both the Union and the State laws as are applicable to their respective States by which they are employed. Our *Constitution* provides for the creation of All India Services, but they are to be common to the Union and the States [*Article 312*]. Members of the Indian Administrative Service, appointed by the Union, may be employed either under some Union Department (say, Home or Defence) or under a State Government, and their services are transferable, and even when they are employed under a Union Department, they have to administer both the Union and State laws as are applicable to the matter in question. But even while serving under a State, for the time being, a member of an all-India Service can be dismissed or removed only by the Union Government, even though the State Government is competent to initiate disciplinary proceedings for that purpose.[30]

Thirdly, though, in general, the *Constitution* divides the "executive" power between the Union and the States on the basis of the division of legislative powers [*Articles 73*(*1*); 162], this is not intended to be a partition into water-tight compartments. Thus,—

(a) As regards laws made by the Union on "concurrent" subjects, the executive power will be primarily exercised by the States, unless the Parliament directs otherwise [Proviso to *Articles 73*(1), 162].

(b) Even as regards "Union subjects", the Union may delegate its executive functions to a State, either by legislation by Parliament or by consent of the State Government [*Article 258*]. Conversely, the States may entrust their functions to the Government of India, with the consent of the latter [*Article 258A*].

(c) On the other hand, the *Constitution* specifically makes it a duty of the States to execute the Union laws and the executive power of the States must also be so exercised as not to interfere with the executive power of the Union [*Articles 256-7*], and in these matters, the States shall be under the *directions* of the Union. Herein, the framers of the *Constitution* appear to have been influenced by the pre-existing system,—*i.e.,* under the Government of India Act, 1935.[31] Such a plan of giving directions by the Union to the States is totally foreign to the American *Constitution*.

(d) Not only is the Union entitled to give directions to the States,—failure on the part of a State to carry out the directions of the Union [*Article 365*] would entitle the Union to supersede the State Government, for the time being, by assuming to itself the powers of the State Government [*Article 356*].

Fourthly, there is no dual system for the administration of justice under *our**Constitution*. In the *U.S.A.,* there is a federal judiciary, with a hierarchy of Courts with the United States Supreme Court at its head, for the trial of cases relating to federal laws and other federal matters; and there is a separate system of Courts in each State, headed by the State Supreme Court, for the enforcement of the State laws. But the working of this dual system has been "cumbersome and productive of delays in the administration of justice.[32]
No dual system of Courts.

India has, therefore, discarded the American model of dual system of Courts. Under the final appellate Court in all matters, whether they relate to Union or State laws [*Articles 132-6*]. Of course, there is a provision in the *Constitution* [*Article 247*] empowering Parliament to create additional Courts for the better administration of Union laws, but no such Court has yet been established and it may be reasonably expected that we are not going to have any separate system of federal laws as a regular feature of the judicial administration, for while the American experience of entrusting State Courts with the enforcement of federal laws during the period of Confederation was unsatisfactory,[33] in *India,* the unified system of Courts exists from the beginning of the British regime, and no change was suggested when a federal scheme was first planned by the framers of the Government of India Act, 1935, because the experience of the unified system was too deep-rooted to be disturbed.

Not only is the judicial organisation under *our**Constitution* unified, the control over the Judiciary is also unified or centralised, for though "administration of justice" is a State subject [Entry 3, List II], the Judges of the State High Courts are to be appointed[34] and removed by the Union in the same manner as Judges of the Supreme Court [*Article 217*].
(D) *Strong Central bias.—*

Even though there is distribution of powers between the Union and the States as under a federal system, the distribution has a strong Central bias and the powers of the States are hedged in with various restrictions which impede their sovereignty even within the sphere limited to them by the distribution of powers basically provided by the *Constitution*.[35]

Firstly, it may be observed that many subjects which were in the State or Concurrent List in the Government of India Act, 1935, were transferred by the *Constitution* to the Union List so that the factors of economic and industrial progress could be placed under unified and centralised control or administration.[35] Instances to the point are the Entries in the Union List relating to National highways (Entry 23); Inter-State trade and commerce (Entry 42).

Secondly, the sphere of legislation allocated to the Union by the Legislative Lists can be enlarged at the cost of the States even in normal times. These various modes of expansion of the Union power are:
The Constitution provides for enlargement of the federal legislative power in certain contingencies.(*a*) *In the national interest.—*

The Parliament shall have the power to make laws with respect to any matter included in the State List, for a temporary period, if the Council of States declares by a resolution of 2/3 of its members present and voting, that it is necessary in the *national* interest that the Parliament shall have power to legislate over such matters. Each such resolution will give a lease of one year to the law in question. A law made by the Parliament which the Parliament would not, but for the passing of such resolution, have been competent to make shall, to the extent of the incompetency, cease to have effect on the expiration of a period of six months after the resolution has ceased to be in force, except as respects things done or omitted to be done before the expiration of the said period. The resolution of the Council of States may be renewed for a period of one year at a time [*Article 249*].
(*b*) *By agreement between States.—*

If the Legislatures of two or more States resolve that it shall be lawful for Parliament to make laws with respect to any matters included in the State List relating to those States, the Parliament shall have such power as regards such States. It shall also be open to any other State to adopt such Union legislation in relation to itself by a resolution passed in that behalf in the Legislature of the State. In short, this is an extension of the jurisdiction of the Union Parliament by consent of the State Legislature [*Article 252*].

Thus, though the Parliament has no competence to impose an estate duty with respect to *agricultural* lands, the Parliament has, in the Estate Duty Act, 1953, included the agricultural lands situated in certain States, by virtue of resolutions passed by the Legislatures of such States, under *Article 252*, to confer such power upon the Parliament.

Thirdly, in the matter of distribution of taxing power, the more important resources having been allocated to the Union, the States have to depend largely upon financial assistance from the Union[36] and there is an elaborate system for the making of grants and the distribution of a share of the proceeds of some taxes by the Union to the States. Even the borrowing power of the States has been made subject to the consent of the Union in certain cases [*Article 293*(3)].
(E) *Deviations from normal federal ideas.—*

(*a*) Again, though the Indian *Constitution* presents a federal system for *normaltimes,* it has the unique achievement of imparting to that federal system the strength of a unitary system, by enabling the federal Government to convert itself into a unitary one, in *emergencies.* One of the basic principles of federalism, as it is understood in the *United States* and *Australia,*[37] is that the division of powers made by the original compact as embodied in the *Constitution* should not be allowed to be superseded at the mere will of *one* of the contracting parties. No doubt the ambit of the federal powers is virtually enlarged by *judicial* interpretation; but the fact remains that it is not possible for the national Government to transfer to itself any of the powers belonging to the States by unilateral action or to suspend the working of the State Governments.

But this will be possible under the *Constitution* of *India*, and in this respect, *our**Constitution* even goes beyond the Canadian. We have already seen that it will be open to the Union Government to supersede a State Government which refuses to carry out its directions as are authorised by the *Constitution* [*Article 365*]. While in normal times the power to give directions is confined to some *specified* matters [*Articles 256-7*], when a Proclamation of Emergency is made by the President [*Article 352*] the power of the Union executive to give directions to the State executive will extend to *any* matter (notwithstanding any other provision in the *Constitution*) [*Article 353*(*a*)]; and the legislative power of the Union Parliament will also automatically extend to matters in the State List [*Article 250*(1)].[38]

(*b*) The *Constitution* also envisages a *financial emergency* which is stated to be “a situation whereby the financial stability or credit of India or any part of the territory thereof is threatened.” The power to make a declaration that such an emergency exists is vested in the President. On the declaration being made the executive authority of the Union becomes enlarged so as to enable the Union to give directions to any State to observe such canons of financial propriety as may be specified in the directions and such other directions as the President may deem necessary for the purpose [*Article 360*].[39]

(*c*) As has been already seen, even apart from emergencies, the Indian *Constitution* [*Article 249*] empowers the Union Parliament to assume legislative powers (though temporarily) over any subject included in the exclusive State List by a simple *resolution* of 2/3 of the members present and voting in the Council of States (*i.e.,* the upper Chamber of Parliament itself) that such legislation is necessary in the “national interest”. It is true, the Council of States contains representatives of the States, but owing to inequality of State representation, it is practically the majority in one of the Houses of the national Legislature who would be competent to override the normal distribution of powers as laid down by the *Constitution*.

Of course, under the *Canadian*Constitution, the Judiciary has helped the Dominion Parliament to legislate on provincial matters when they assume a national importance owing to emergency or similar circumstances having a nationwide repercussion:

> Some matters, in their origin local and provincial, might attain such dimension as to affect the body politic of the Dominion and to justify the Canadian parliament in passing laws for their regulation or abolition in the interests of the dominion…[40]

But *our*Constitution goes further and empowers the Federal Legislature itself to directly take up a State matter upon its own determination that such assumption of State power is "*necessary* or *expedient* in the national interest". The Judiciary has no say as to the existence of the national interests in such a case.[41]

(*d*) More unique is the power of the Union to assume to itself the executive and legislative powers of the State whenever the President is satisfied from a report of the Governor of a State (who is appointed by the President, as already noticed) that the Government of the State cannot be carried on according to the provisions of the Constitution [*Article 356*]. It has no connection with the existence of any "emergency".[42] It has already been pointed out that this extreme penalty may be imposed on a State if it fails to carry out any directions given by the Union [*Article 365*].

Such a form of unilateral action to subvert the federal system has no precedent under any federal Constitution. From the federal standpoint, this is also anomalous inasmuch as the Constitution-makers did not consider it necessary to provide for any remedy whatever for a similar breakdown of the constitutional machinery at the Centre. Again, the power to suspend the constitutional machinery may be exercised by the President, not only on the report of the Governor of the State concerned but also *suo motu,* whenever he is satisfied that a situation calling for the exercise of this power has arisen. It is thus a *coercive* power available to the Union against the units of the federation.[42]

(*e*) Though there is a division of powers between the Union and the States, there is provision for control by the Union both over the administration and legislation of the States. Legislation by a State shall be subject to disallowance by the President, when reserved by the Governor for the consideration of the President [*Article 201*]. Again, the Governor of a State shall be appointed by the President of the Union and shall hold office "during the pleasure" of the President [*Articles 155-6*]. Both these ideas are repugnant to the Constitution of the *United States* or *Australia*, but exist under the *Canadian*Constitution.

A critique of the Indian Federal System

But, in spite of the above exceptions, *our*Constitution, with its distribution of powers and the duty of the Courts to guard that, remains *normally* and *basically*, *a federal* Constitution,[43] *subject to specified exceptions.* The exceptions are unique; but in cases where the exceptions are not attracted, the federal provisions are to be applied without being influenced by the existence of the exceptions. Thus, it will *not* be possible for the Union or a State to assume powers which are assigned by the Constitution to the other Government, unless such assumption is sanctioned by some provision of the Constitution itself. Nor would such usurpation or encroachment be valid by consent of the other party, for, the Constitution itself provides the cases in which this is permissible by consent [*e.g.,*Articles 252, 258(1); 258A]; hence, apart from these exceptional cases, the Constitution would not permit any of the units of the federation to subvert the federal structure set up by the Constitution, even by consent. Nor would this be possible by delegation of powers by one Legislature in favour of another.[44]

The strong centralising tendency of the Indian federation, which has attracted the notice of foreign observers, can be properly appreciated only if its genesis is understood. Federation, under *our*Constitution, is the resultant of conflicting forces. The political tradition of the country was unitary, but it was not possible to adopt a unitary Constitution, since it was necessary to fit in the Indian States (about 600 in number) which had practically become independent since the lapse of paramountcy, as a result of the Indian Independence Act, 1947. On the other hand, it was not possible to make the Union the "exceptional" Government[45] as in the *United States*, because all the units of the federation were not equally developed, and central control was necessary to secure uniform development of the country as well as of the backward classes of the population. Above all, a strong Central Government had been necessitated by the situation created by the partition of the country. It may be recalled that the Objectives Resolution adopted by the Constituent Assembly at the outset envisaged that the units of the Union of India should be "autonomous" and vested with residuary powers. But the framers of the

Draft *Constitution* had to depart from the federal concept embodied in the Objectives Resolution owing to a change in the political situation which had taken place in the meantime.

The object of the framers of *ourConstitution*, thus, was to build a strong central authority which might resist external aggression and also to check internal disruptive forces that might tend to undermine the nascent State. This object has been sought to be attained, not only by endowing larger enumerated powers upon the Union than elsewhere and by giving it the residue [*Article 24*j] (as in Canada), but also by enabling the Centre itself to assume control of the units whenever there is any threat of disruption either from outside or from within. As DR. AMBEDKAR observed in the Constituent Assembly,[46] the political structure proposed in the Draft *Constitution*,

> Can be both unitary as well as federal according to the requirements of time and circumstances.[46]

As an American scholar[47] has observed, federation is more a functional than institutional concept and it is wrong to suppose that there are certain inflexible features in the absence of which a political system cannot be federal.

> Such a set of criteria ignores the fundamental fact that institutions are not the same things in different social and cultural environments…No two societies are the same and each will require very different instrumentalities in accordance with the complex of psychological and sociological determinants that is peculiar to it.[47]

To appreciate the true nature of Indian federalism, therefore, one must study the complex of psychological and sociological determinants' that give birth to the Indian *Constitution* and still uphold it.

It would not be proper to describe the Indian *Constitution* as *quasi* federal[48] unless one is prepared to classify the Canadian *Constitution*, too, as *quasi*-federal. Strictly speaking, any deviation from the American model of pure federation would make a system *quasi*-federal, and, if so, the Canadian system, too, can hardly escape being branded *quasi*-federal. The difference between the Canadian and the Indian systems lies in the degree and extent of the unitary emphasis. The real test of the federal character of a political structure is, as PROF. WHEARE has himself observed48—

> That, however, is what appears on paper only. It remains to be seen whether *inactual practice* the federal features entrench or strengthen themselves as they have in Canada, or whether the strong trend towards centralisation which is a feature of most Western Governments in a world of crises, will compel these federal aspects of the *Constitution* to wither away.[49]

Above all, to classify a *Constitution* as "*quasi* -federal" because it does not conform to the pure type of federalism as in the U.S.A. or Australia may be useful from the point of view of a Political Philosophy, which is concerned with *norms*, but would be unmeaning of Constitutional Law, which is concerned with the *Courts.*

The present work being one of Constitutional Law, it is only to be seen whether the *Constitution of India* possesses the features which are enumerated at pp 35ff., *ante*, as the tests of a federal polity. Since the Indian *Constitution* possesses all those features, namely, a written *Constitution* with a distribution of powers between the Union and the States, which is enforceable by the Courts, we cannot call our political system other than "federal", though it has many *deviations* from the American or Australian model.
The working of federalism in India.

A survey of the actual working of *ourConstitution* would hardly justify the conclusion that, even though the unitary bonds have in some respects been further tightened, the federal features have altogether "withered away".

Some scholars in India[50] have urged that the unitary bias of *ourConstitution* has been accentuated, in its actual working, by two factors so much so that very little is left of federalism. These two factors are—(a) the overwhelming financial power of the Union and the utter dependence of the States upon Union grants for discharging their functions; (b) the comprehensive sweep of the Union Planning Commission, set up under the concurrent power over planning. The criticism may be justified in point of degree, but not in principle, for two reasons—

(i) Both these controls are aimed at securing a uniform development of the country as a whole. It is true that the bigger States are not allowed to appropriate all their resources and the system of assignment and distribution of tax sources by the Union [*Articles 269*, *270*, *272*] means the dependence of the

States upon the Union to a large extent. But, let alone, the stronger and the bigger States might have left the smaller ones lagging behind, to the detriment of our national strength.

(ii) Even in a country like the *United States*, such factors have, in practice, strengthened the national Government to a degree which could not have been dreamt of by the fathers of the *Constitution*. Curiously enough, the same complaint, as in India, has been raised in the United States. Thus, of the centralising power of federal grants, an American writer51 has observed—

> Here is an attack of federalism, so subtle that it is scarcely realised…Control of economic life and of these social services (*viz.,* unemployment, old-age, maternity and child welfare) were the two major functions of a State and local Governments. The first has largely passed into national hands; the second seems to be passing. If these both go, what we shall have left of State autonomy will be a hollow shell, a symbol.[51]1

In fact, the traditional theory of mutual independence of the two Governments,— federal and State, has given way to "co-operative federalism" in most of the federal countries today.[52] Neither financial control nor central planning is, therefore, peculiar to India, and autonomy of the States is not impaired because the implementation of the plans is vested in the States.

The strong Central bias has indeed been a boon to keep India together when we find the separatist forces of communalism, linguism and scramble for power playing havoc notwithstanding all the devices of Central control, even after more than six decades of the working of the *Constitution*. It also shows that the States are not really functioning as agents of the Union Government or under the directions of the latter, for then, events like those in Assam (over the language problem) or in Punjab (for an independent *Khalistan*) could not have taken place at all.

Indian federalism as judicially interpreted.

The federal background, as explained in the foregoing pages, must be kept in view in interpreting relevant provisions of the *Constitution*. Thus, in explaining the significance of *Article 301*, S.K. DAS, J., *ofour* Supreme Court[53] has observed—

> …the provisions of our *Constitution* must be interpreted against the historical background in which our *Constitution* was made; the background of problems which the *Constitution*-makers tried to solve according to the genius of the Indian people ...There were trade barriers raised by the India States in the exercise of their *legislative* powers and the *Constitution*-makers had to make provisions with regard to those trade barriers as well. The evolution of a federal structure or a *quasi*-federal structure necessarily involved, in the context of the conditions then prevailing, a distribution of powers and a basic part of our *Constitution* relates to that distribution with the three legislative lists in the Seventh Schedule. The *Constitution* itself says by *Article 1* that India is a Union of States and in interpreting the *Constitution* one must keep in view *the essential structure* of a federal or *quasi*-federal *Constitution*, namely, that *the units of the Union have also certain powers as has the Union itself...*
>
> In evolving an integrated policy on this subject our *Constitution*-makers seem to have kept in mind three main considerations...first, in the larger interests of India there must be free flow of trade, commerce and intercourse, both inter-State and intra-State; second *the regional interests must not be ignored altogether;* and third, there must be a power of intervention by the Union in case of crises to deal with particular problems that may arise in any part of India…Therefore, in interpreting the relevant articles in Pt XIII we must have regard to the *general scheme* of the *Constitution of India* with special reference to Pt III, Pt XII…and their inter -relation to Pt XIII *in the context of afederal or quasi-federal Constitution* in which the States have certain powers including the power to raise revenues for their purposes by taxation.

That the Union of India is a federal union having a distribution of powers of which the Judiciary is the interpreter was also acknowledged by the Supreme Court in the Special Reference case of 1964.[54]

There is no general paramountcy of the Union.

The Author regrets his inability to agree with the theory of pre-eminence of the federal Government under the of India, as propounded by the majority of the Supreme Court in *State of WB v UOI.*[55] The crux of this theory is that under the Indian federation, the States exist by sufferance of the Union and that in case of any conflict between the Union and the States, the former must always prevail. The untenability of any such theory of

federal superiority or pre-eminence has been demonstrated in the Author's *ComparativeFederalism* (P.H.I., 1987). In *India,* it would be wrong to assert that the Union is "sovereign" while a State is not; in fact, none is sovereign, either being limited by the *Constitution*. If the executive or legislature of either the Union or of a State violates the Constitutional distribution of powers, the offending act will be equally *ultravires*.[56] There is, in India, no Supremacy Clause corresponding to Article VI of the American *Constitution*. It is true that the *Constitution* itself gives certain over-riding powers to the Union, *e.g.*, in emergencies and the like and also that the Union Parliament has been given the overall power of putting an end to the very existence of a State, by means of a re-organisation (*Article 3*). But these are exceptional provisions which the *Constitution* has expressly adopted where it was considered necessary by the makers of the *Constitution* that the Union should have over-riding powers. The exceptions no doubt detract from the general proposition enunciated in the very first Article, namely, that India is a federal union; but they cannot altogether undermine the general provisions. From specific exceptions, it cannot be concluded that, in general; the Union has been given an overall paramountcy to undermine the federal scheme of the *Constitution**even outside the exceptional* provisions. A plenary power of the Union Parliament to reorganise the State, again, cannot lead to the inference that even while a State subsists as a constitutional entity, it must act as a subordinate to the Union, regardless of the constitutional limitations which have been imposed on the Union itself. In interpreting these limitations as well as the Entries in the Legislative Lists in the 7th Schedule of the *Constitution*, therefore, the Indian Judiciary cannot start with any *a priori* assumption of federal supremacy and there is no justification for giving a broader interpretation to one power (*e.g.,* an Entry relating to the legislative power of the Union) than to the other.[57]

State of WB v UOI

In *State of WB v UOI,*[58] one of the grounds relied upon by the majority in coming to the conclusion that the concurrent legislative power of the Union under Entry 42, List III, to acquire "property" included the power to acquire property owned by a State for Governmental purposes, thereby encroaching upon its sovereignty, was that since the *Constitution* had endowed the Union with the power to alter the boundaries of a State, even to the extent of destroying it, by its unilateral action:

> It would be difficult to hold that the Parliament which is competent to destroy a State is on account of some assumption as to absolute sovereignty of the State incompetent effectively to acquire by legislation designed for that purpose the property owned by the State Governmental purpose.

It is submitted, with respect, that the ambit of a legislative power of either the Union or a State has to be ascertained upon a proper interpretation of the relevant legislative Entry together with the substantive provisions of the *Constitution* and not with reference to any *a priori* considerations whether of sovereignty of the State or the pre- eminence of the Union. If the theory of the Union's power of destruction were to be logically applied, the very distribution of powers elaborately made in the three Lists would be rendered meaningless and nugatory, because the Union could, according to such theory, be entitled to exercise any power whether or not it is an encroachment upon the power of a State or detrimental to its very existence.

The power to destroy is contained in an independent provision, namely. *Article 3* and that power cannot be used to mould the interpretation of *all the rest of the**Constitution* even where there is no application of *Article 3* itself.

The Author's view that our *Constitution* is a federal one in normal times, emergency being an exception, appears to have been approved by SUBBA RAO J., in the minority, in the instant case[59] :

> Within their respective spheres both in the legislative and executive fields they (*i.e.* the Union and States) are supreme; their *inter se* relationship is regulated by specific constitutional provisions forging the Union and the States and cannot be found in the legislative fields demarcated by the Lists, but can only be discovered in the specific constitutional provisions forging links between them. The emergency powers of the Union to meet extraordinary situations do not affect its exclusive fields of operation in normal times.[60]

A disconcerting view was also expressed by BEG, C.J. in the *Karnataka case,*[61]*viz.,* that the Indian *Constitution* only sets up a "pragmatic federalism",

> which is *overlaid…*by strongly unitary features…one wonders whether such a system is entitled to be dubbed "federal" in a sense denoting anything more than a *convenient division* of functions…The function of *"supervision"* is certainly that of the Central Government *with all that it implies* (para 98).[61]

State of Karnataka v UOI: a critique.

In substance, the learned Chief Justice denigrates Indian federalism under the *Constitution* to the status of the Devolution Rules under the Government of India Act, 1919. A close examination of his observations would reveal where his fallacy lies. The learned Chief Justice relies on the *degree* of control (para 41)[61] which the *Constitution* has conferred on the Central Government, *e.g.,* in giving it the residual legislative powers, the power to appoint State Governors, the power to give directions to the State Governments (para 98).[61a]

As will be shown in different contexts of this work, while Political scientists may be concerned with the degree of Central control or supervision and its working in practice, what matters to the Bench and the Bar is the justiciability of the division of powers made by a *Constitution*. If this latter feature exists, it can hardly be said that division of powers made by the *Constitution* is only "convenient" or that the federalism set up by it is merely "pragmatic" (para 98).[61a] A judge has no concern with any such speculation. His only business is to interpret the provisions of the *Constitution*. Indeed, this function is acknowledged by the learned Chief Justice himself (para 84)[61] with the observation:

> This, however, does *not* mean that the Courts, acting under the guise of a judicial power can actually nullify, defeat or distort the reasonably clear meaning of any part of the *Constitution* in order to give expression to some theories of their own… (para 84).[61a]

A judge should not forget the foundations to meet the exigencies of the case before him.

The foregoing survey goes to show that the aberrations in the *West Bengal*[62] and *Karnataka*[cases63] are founded on *wrong* premises. The correct view was expressed by KAILASAM J. (lone minority) in the *Karnataka* case[63] thus (paras 251, 254):

> In the distribution of powers… there is a strong tilt in favour of the Union…But the Union Government cannot claim any power which is not vested in it under the *Constitution*. There is *no overriding* power with the Union Government. It cannot deal with the State Government as its delegate, for the source of the power for the Union as well as the State, is the *Constitution* and the Union Government *cannot* claim any *powers over the State* which are not found in the *Constitution*… (para 251).[63]

> The observations made in the *West Bengal case*… are *not* in conformity with the *otherwise consistent view* that the *Constitution* is supreme and that the Union as well as the States will have to trace their powers from the provisions of the *Constitution* and that the *Union is not supreme…* (para 254).[63]

The learned Judge H.R. KHANNA in his book, *Making of India's Constitution,* opines that: "There has been a trend towards centralisation in the matter of subject between national polity and the regional polities…The need of a modern State, the economic exigencies have resulted in enlarging the powers of national government. It has also in the process resulted in corresponding diminution of the power of the component units. This is irrespective of the fact whether the country is unitary or federal in character…This apart, other factors too have tended to increase the power of the Centre. War, or fear of war, is one of the most potent factors that leads to centralisation. The defence of the country is necessarily a field for the Central Government and because of the fact that those immense powers came to be exercised by the Central Government, not only when the actual hostilities start, but also because of fear and threat of hostilities. This is so irrespective of the fact whether the country has a unitary or a federal *constitution*... Economic crisis which sometimes engulfs a nation is another factor that leads to enlargement of powers of the Centre. Economic crisis necessitates pooling of the entire resources of the country with a view to alleviate distress in those areas which are adversely affected by the crisis. On occasions, economic crisis results in disparities and disequilibrium which can only be controlled by a planned national economy. This apart, economic crisis can result in imbalance in foreign trade leading to decline in foreign exchange and consequent necessity to conserve it for national needs claiming priorities. Such situations need to be dealt with planned economic measures on a nationwide scale for which powers can only be vested in Central Government. Apart from that, it can be said that the growth of industrialisation and discarding the theory of *laissez-faire* has also necessitated and led to the vesting of greater powers in the Centre.

One other important factor which has led towards centralisation is the urge to have a Welfare State. Welfare State postulates that the government should provide citizens with a minimum standard of life in the matter of education, health services and old age. It also becomes the duty of government to make food available to the citizens at reasonable price. Such welfare services needed money mostly by those who can, as a rule, afford them the least. To find funds for this purpose, the government has necessarily to tax the rich and the affluent.

Welfare services, in the very nature of things, have to be administered by Central Government and as such this process leads to increase in powers of the Centre.

The fact that most of the democratic countries have accepted the ideal of Welfare State has, according to Constitutional pundits, paved the way to increase in the powers of the Central Government with the development of democracy. In the words of Wheare, democracy and centralisation have gone together in most countries of the world and in many cases the connection has been one of cause and effect. The nexus between democracy and greater powers of the Centre is also a theme of ALEXIS DO TOCQUEVILLE'S book *Democracy in America,* "It results", he says, "from the very *constitution* of democratic nation and from their necessities that the power of government among them must be more uniform, more centralised, more extensive, more searching and more efficient than in other countries".

Co-operative Federalism

In a federalism, there is a division of functions between Centre and units. Respective area of competence of each is earmarked. However, there are not water-tight compartments. A number of instrumentalities to promote inter-governmental co-operation come into existence.

In competitive federalism, there was a spirit of rivalry between units and the federation which gave rise to disputes. This was due to over- consciousness of the units about their power and rights. They resented the growth of power of the Centre. This can be termed as the competitive federalism.

However, by efflux of time, "competitive federalism" slowly gave way to co-operative federalism due to the following main reasons: —(a) the exigencies of war when for national survival, national effort tax precedence over five points of Centre-State division of powers; (b) technological advances, making the communication faster; (c) emergence of the concept of a Social Welfare State in response to public demand requiring co-operation.

> The framers of our *Constitution* did take a due note of the emerging trend of co-operative federalism in the older federation. They realised that governments in a federation were arranged not hierarchically or vertically, but horizontally, that no line of command runs from the Centre to the States and that common policies among the various governments can be promoted not by dictation but by a process of discussion, agreement and compromise.[64]

The Indian Federation is a unique federation. It is in a sense, a class by itself. It does not fit in any of the norms accepted for a federal *constitution*. The framers of the *Constitution* were influenced by the federal set up laid down by the Govt. of India Act 1935, and by a strong desire to confer more powers to the Union with a view to ensuring the unity of the Nation.

The scheme of distribution of powers—both of legislation and taxation—can be properly understood only on this background. The framers of the *Constitution* created a federation where co-operation between the Union and the States is very essential. Thus, Indian *Constitution* has created a new norm of federalism and that is the Co-operative Federalism.[65]

The members of the Constituent Assembly could not be oblivious of the trends of other countries. They also could not lose sight of the fact that the history of India reveals that whenever the Centre has become weak, it has invariably been followed by the process of disintegration. A weak Centre has set in motion secessionist forces and resulted in loosening the ties which bind different parts of the country together. On the contrary, a strong and stable Centre has deterred the emergence of fissiparous tendencies. It is no mere accident that the most glorious chapters of India's history have synchronised with the periods when we had a strong Centre."[66]

That the federal system has not withered away owing to the increasing impact of Central bias would be evidenced by a number of circumstances which cannot be overlooked [see, further, chapter XXXI, *post*]:

Survival of Federation in India

(a) The most conclusive evidence of the survival of the federal system in India is an assortment of Governments headed by different Parties. Of course, the reference of the Kerala Education Bill by the President for the advisory opinion of the Supreme Court instead of giving his assent to the Bill in the usual course, has been criticised in Kerala as an undue interference with the constitutional rights of the State, but thanks to the wisdom and impartiality of the Supreme Court, the opinion delivered by the Court.[67] was prompted by a purely legalistic outlook free from any political consideration so that the federal system may reasonably be expected to remain unimpaired notwithstanding changes in the party situation so long as the Supreme Court discharges its duties as a guardian of the *Constitution*.

(b) That federalism is not dead in India is also evidenced by the fact that new regions are constantly demanding Statehood and that already the Union had to yield to such demand in the cases of Meghalaya, Nagaland, Manipur, Tripura, Mizoram, Arunachal Pradesh, Goa, Chhattisgarh, Jharkhand, Uttarakhand and Telangana. The cases of *Gorkhaland, Bodoland, Khalistan* and the like are still causing headache.

(c) Further evidence is the strong agitation for greater financial power for the States. The case for greater autonomy for the States in *all* respects was first launched by Tamil Nadu, as a lone crusader, but in October, 1983, it was joined by the States ruled by non-Congress Parties, forming an "Opposition Conclave", though all the Parties were not prepared to go the same extent. The enlargement of State powers at the cost of the Union, in the *political* sphere is not, however, shared by other States, on the ground that a weaker Union will be a danger to external security and even internal cohesion, in present-day circumstances. But there is consensus amongst the States, in general, that they should have larger financial powers than those conferred by the existing *Constitution*, if they are to efficiently discharge their development programmes within the State sphere under List II of the 7th Schedule. The then Desai Government sought to pacify the States by conceding substantial grants by way of "Plan assistance", by what has been called the "Desai" award".[68]

It is doubtful, however, whether the agitation for larger constitutional powers in respect of finance will be set at rest by such *ad hoc* palliatives. It is interesting to note that the suggestion of the Author, that the remedy lay in setting up a Commission for the revision of the *Constitution*, so that the question of finance might be taken up along with the responsibilities of the Union and the States, on a more comprehensive perspective was followed by the appointment in 1983, of a one-man commission, headed by an ex-Supreme Court Judge, SARKARIA, J.

The proper assessment of the federal scheme introduced by our *Constitution* is that introduces a system which is to *normally* work as a federal system, but there are provisions for converting it into a unitary or *quasi*-federal system under specified exceptional circumstances.[69] But the exceptions cannot be held to have overshadowed the basic and normal structure. The exceptions are, no doubt, unique and numerous; but in cases where the exceptions are not attracted, federal provisions are to be applied without being influenced by the existence of the exceptions. Thus, it will not be possible either for the Union or a State to assume powers which are assigned by the *Constitution* to the other Government, unless such assumption is sanctioned by some provisions of the *Constitution* itself. Nor would such usurpation or encroachment be valid by consent of the other party, for the *Constitution* itself provides the cases in which this is permissible by consent [*e.g.,Articles 252*, *258*(1), 258A]; hence, apart from these exceptional cases, the *Constitution* would not permit any of the units of the federation to subvert the federal structure set up by the *Constitution*, even by consent. Nor would this be possible by delegation of powers by one Legislature in favour of another.

The strong Central bias had led some people to opine that the political structure set up by the Indian *Constitution* is "a unitary State with subsidiary federal features".[70] In the Author's opinion, it is absurd to suppose that the federal features of our *Constitution* are subsidiary while the structure is basically unitary. I say such assumption is absurd because, if not for anything else the States under the Indian *Constitution* do not act as agents of the Union, exercising powers delegated by the latter, but exercise powers which are assigned to them directly, by the State list in the 7th Schedule of the *Constitution*: and these powers are plenary, so long as the bounds of the State List are not crossed. We have also got judicial review to invalidate any law, State or federal, which transgresses the constitutional distribution of powers—a feature which is unthinkable in a unitary State.

The controversy which is still raised by some politicians in the face of these undeniable features is due to the fact that they are obsessed by the classical model of American federation from which the Indian *Constitutiondeviates* by introducing some *exceptional* features. Such obsession however will disappear if it is realised that in the 20th Century, federation is no longer of the pure type as it was in the 18th.

Different patterns of distribution of powers had to be adopted in different countries to meet the exigencies of different historical and political circumstances, so that no two federations are alike.[71]

In *Constitutional Law of India*,[72] it is said: "Every country frames a *constitution* that suits its needs. The Indian *Constitution* is federal in form, but the Indian federation is not a copy of any other federation. The *Constitution* embodies the experience of the people of the country and is meant to serve the ideal the people have kept before themselves. As such it is bound to differ from other similar Constitutions. One thing, however, must be admitted that the Union Government has vast powers *vis-à- vis* the States. This is undesirable from the point of view of successful working of Parliamentary Government in the States. A federation, it must be admitted, can give rise to dictatorship. India, however, has chosen the path of democracy and it is Parliamentary form of

democracy both in the States and the Union. But the provisions of the Constitution would enable the Union Government to put an end to Parliamentary form of Government in a State and that would be perfectly constitutional though undemocratic. A Government that is allowed to kill Parliamentary democracy in States might one day kill it even in the Union. Therein lies the danger of a strong Union".

In the *American*Constitution of 1787, the Union Government was one of enumerated powers and the *residue* as vested in the States.

But the Constitution of *Canada*, adopted in 1867, inclined more in favour of the Union than the *States*, but today few people question its basic federal character. Numerous countries have adopted the federal system thereafter, such as the U.S.S.R., West Germany, Malaysia, with various deviations from the pure American type. If these aforesaid Constitutions be classified as federal, notwithstanding divergences of various kinds, there is no reason why a different conclusion should be arrived at regarding India.

In fine, it may be reiterated that the Constitution of India is *neither purely federal nor purely unitary but is a combination of both. It is a Union or composite State of a novel type.* It enshrines the principle that "in spite of federalism, the national interest ought to be paramount."[73]

> All federal systems including the American are placed in a tight mould of federalism. No matter what the circumstances are, it cannot change its form and shape. It can never be unitary. On the other hand, the Indian Constitution can be both unitary as well as federal according to the requirement of time and circumstances. In normal times, it is found to work as a federal system. But in times of war, it is designed as to make it work as though it was a unitary system.[74]

The Constitution initiates a few new trends in the area of federalism. The schools have characterised the Constitution in various ways, *e.g.,* quasi-judicial, unitary with federal character, federal with unitary features, centralised federation, *etc.* The fact, however, remains that though the Centre in India is strong and utmost inter-governmental co-operation is sought to be promoted within the constitutional framework, yet the States are not agents of the Centre; they exist under the Constitution and not at the sufferance of the Centre, they enjoy large amount of autonomy in normal times; their powers are derived from the Constitution and not from the Central laws and the federal portion of the Constitution can be amended not unilaterally by the Centre, but only with the co-operation of the Centre and the States. These elements constitute the elements and essence of federalism and these are all present in the Indian Federation".[75]

In *Pradeep Jain v UOI,*[76] the court held that India is not a federal State in the "traditional sense of that term". It is not a compact of sovereign states which have come together to form a federation by ceding a part of their sovereignty to federal State. It undoubtedly has certain federal features but is not a federal state and has only one citizenship, namely, the citizenship of India. It has also one single legal system which extends throughout the country as one single indivisible system with a single unified justice system with the Supreme Court of India at the apex of the hierarchy, which lays down the law for the entire country. It is true that with respect to subjects set out in List II of the Seventh Schedule, the States have power to make laws and subject to over-riding power of Parliament, the State can also make laws with respect to subjects enumerated in List III. But the legal system under the rubric of which such laws are made by the States is a single legal system which may be truly described as the Indian Legal System.

In *State of Karnataka v UOI*,[77] three learned Judges held: "Strictly speaking, our Constitution is not of a federal character where separate, independent sovereign States could be said to have joined to form a nation as in the USA or as may be the position in some other countries of the world. It is because of that reason that sometimes it has been characterised as "quasi-federal" in nature". (para 220). In *S.R.Bommai v UOI*,[78] it was observed:

> The fact that under the scheme of our Constitution, greater power is conferred upon the Centre *vis-à-vis* the States, does not mean that States are mere appendages of the Centre. Within the sphere allotted to them, the States are supreme. The Centre cannot tamper their powers. More particularly, the courts should not approach an interpretation which has the effect or tends to have the effect of whittling down the powers reserved to the States….must put the court on guard against any conscious whittling down of the powers of the States. Let it be said that the federalism in the Indian Constitution is not a matter of administrative convenience, but one of principle—the outcome of our own historical process and a recognition of the ground realities….though to note that our Constitution has certainly a bias towards Centre *vis-à-vis* the States.[79] It is equally necessary to emphasise that the Courts should be careful not to upset the delicately crafted constitutional scheme by a process of interpretation.

In *Kuldip Nayar v UOI*,[80] the Court reiterated and held that India is not a true federation, but called it pseudo-federalism or quasi-federation.

The quasi-federal nature of our *Constitution* is again reiterated in *State of WB v UOI*.[81] Interpreting *Article 282 of the Constitution*, the Court followed the earlier decisions and held that our *Constitution* is only quasi-federal in nature.[82]

In *Raja Ram Pal v Hon'ble Speaker, Lok Sabha*,[83] the Court said that "India is an indestructible Union of destructible units". In *Offshore Holdings Pvt Ltd v Bangalore Development Authority*,[84] the Court, in view of the fact that there is clear distribution of powers between Centre and States, assumed that "the court has to keep in mind that it is construing a Federal *Constitution*". It was held that it is the essence of a federal *constitution* that there should be a distribution of legislative powers between the Centre and provinces. In a Federal *Constitution*, unlike a legally omnipotent legislature like British Parliament, the constitutionality of a law turns upon the construction of entries in the legislative lists.

T.K. TOPE in his book *Constitutional Law of India*[85] after stating that the Indian *Constitution* fulfils all requirements of a federal *constitution*, has observed:

> The Union Government has become very strong under the Indian *Constitution*. This is a very effective limitation on the federal principle. It has been suggested that the federation created by the Indian *Constitution* should be styled as a quasi-federation. The meaning of the term is not clear. It must be noted in this connection that no two federations in the world are and can be similar. The Supreme Court of India in *State ofWB v UOI,*[86] described the Indian *Constitution* as a *Constitution* which is not true to any traditional pattern of federation. The court also negatived the claim of West Bengal Government that the States under the Indian *Constitution* are sovereign. The first federation the world knew was the federation under the *Constitution* of United States of America. The *Constitution* created a weak Centre and strong States. This was necessary and inevitable on account of the historical reasons existing in USA at that time. But, by a process of judicial interpretation, Supreme Court of America has made the Centre strong and the States have surrendered to a certain extent their powers to the Centre. SIR ALLADI KRISHNASWAMI AIYER rightly pointed out: "In view of complexity of industrial, trade and financial conditions in the modern world and the need of large-scale defence programmes, there is an inevitable tendency in every federation in the direction of strengthening the Federal Government" As regards the financial relation between the Union and the States, PROF. WHEARE says: "There can be no final solution to the allocation of financial resources in a federal system. There can only be an adjustment and re-allocation in the light of changing circumstances". These observations are very significant. A comparison of the Indian federation with federation of other countries ultimately indicates that practically in all federations there is a tendency towards centralisation. USSR was a federal government in theory. The States had a right to secede also. But in practice all power was concentrated in one hand. USSR was a dictatorship of the proletariat. India is democracy. A comparison with the Canadian *Constitution* reveals that India has borrowed the provisions regarding appointment of Governors and the right of the Union to disallow provincial law from the Canadian *Constitution*.
>
> Every country frames a *constitution* that suits its needs. The Indian *Constitution* is federal in form, but the Indian federation is not a copy of any other federation. The *Constitution* embodies the experience of the people of the country and is meant to serve the ideal people have kept before themselves. As such it is bound to differ from other similar constitutions. One thing, however, must be admitted that the Union Government has vast powers *vis-à-vis* the States. This is undesirable from the point of view of successful working of Parliamentary Govt. in the States. A federation, it must be admitted can give rise to dictatorship. India, however, has chosen the path of democracy and it is Parliamentary form of democracy both in the States and the Union. But the provisions of the *Constitution* would enable the Union Government to put an end to Parliamentary form of Government in a State and that would be perfectly constitutional though undemocratic. A Government that is allowed to kill Parliamentary democracy in States might one day kill it even in the Union. Therein lies the danger of a strong Union.

In *State of WB v Kesoram Industries Ltd*,[87] the court held that several provisions of the *Constitution*, though it is a federal structure, unmistakably show that the Founding Fathers intended to create a strong Centre. The historical background relevant at the time of framing the *Constitution* warranted a strong Centre "naturally and necessarily". This bias of the framers towards the Centre is found reflected in the distribution of legislative heads between the Centre and the States. More important heads of legislation are placed in List I. In the concurrent list, the parliamentary enactment is given primacy, irrespective of the fact whether such enactment is earlier or later in point of time to State enactment on the same subject matter. The residuary power to legislate is with the Centre. By the 42nd Amendment, a few entries in List II were omitted or transferred to other lists. *Articles 249* to 252 further demonstrate the primacy of Parliament allowing it liberty to encroach on the

field meant exclusively for the State legislation, though subject to certain conditions being satisfied. In the matter of finance, the States appear to have been placed in a less favourable position…".[88] In *Ganga Ram Moolchandani v State of Rajasthan*,[89] it was observed that Indian *Constitution* is "basically" federal.

The Federal character of the *Constitution* was held as one of the basic features of the *Constitution*.[90]

In his book *Working a Democratic Constitution – A History of the IndianExperience*,[91] the learned author GRANVILLE AUSTIN has said: "With the *Constitution* inaugurated, the second set of definition issues arose. Interpretation of constitutional provisions had to be arrived at through political bargaining and in the courts of law, revealing the mindset of the definers. First, what degree of "federal spirit" should mark the *Constitution*'s functioning? Terms like "quasi-federation", co-operative federalism", "federal in form but unitary in substance" and "centralised federalism" were used. Each term revealed an understanding of Centre- State relations, as, respectively, not quite "federal" enough, just about right (with a hint of skeptical optimism) or too centralised.

The President of Constitutional Assembly, RAJENDRA PRASAD, had neatly avoided the definitional quicksand by telling its members that labels were unimportant. "Whether you call it a Federal *Constitution* or a Unitary *Constitution* or by any other name…it makes no difference so long as the *Constitution* serves our purpose"."[1] More explanatory was K. SANTHANAM'S analysis that India was a "Federation in which the paramountcy powers which the British Government had over the Indian Princely States have been taken over by the Union Government and applied to all its units…so it will be appropriate to call our Federation "a Paramountcy Federation".[2] According to learned author, the founding fathers produced a *constitution* with a unitary tone and strong centralised features – taking much from British imperial model, the Government of India Act 1935…" (at p 560). DR AMBEDKAR during debates in framing *Constitution*, said: "The *Constitution* of the Union and of the States is a single frame from which neither can get out and within which they must work".[3] It was further said: "All federal systems, including America are placed in a tight mould of federalism. No matter what the circumstances, it cannot change its form and shape. It can never be unitary. On the other hand, the Draft *Constitution* can be both unitary as well as federal according to requirement of time and circumstances".[4]

At p 56, DR AMBEDKAR further said: "A federation being a dual polity based on divided authority with separate legislative, executive and judicial powers for each of the two politics, it is bound to produce diversity of laws, in administration and the judicial protection. Upto a certain point, the diversity does not matter. It may be welcomed as being an attempt to accommodate the powers of government to local needs and circumstances. But this diversity when it goes beyond a certain point is capable of producing chaos and has produced chaos in many federal states. It was further added that federalism did not suffer from the faults of rigidity or legalism. The Indian federal polity was not a classical federation of American mould as is demonstrated by the many features which may be called "unfederal". There is no separate judicial system to administer the State and federal laws separately. The judiciary is an integrated judiciary.

Dealing with the prominent unitary features of Indian Federal set-up, the Supreme Court said that "the inference is inevitable that the distribution of powers – both legislative and executive – does not support the theory of full sovereignty to the States".[5]

In a sense, the Indian Union is federal. But as regards the extent of federalism, it is largely watered down by the needs of progress and development of a country which has to be nationally integrated, politically and economically co-ordinated and socially, intellectually and spiritually uplifted.[6]

(vi) A Compromise between Judicial Supremacy and Parliamentary SovereigntyU.S.A.

An absolute balance of powers between the different organs of Government is an impracticable thing and in practice the final say must belong to some one of them. This is why the rigid plan of Separation of Powers and the checks and balances in the *Constitution* of the *UnitedStates* have failed in its actual working, and the Judiciary has assumed supremacy under its powers of interpretation of the *Constitution* so as to be described as the "safety valve" or the "balance-wheel" of the *Constitution*. As one of her own Judges has said (CHIEF JUSTICE HUGHES), "The *Constitution* (of the U.S.A.) is what the Supreme Court says it is".[7] It has the power to invalidate a law passed by the Legislature not only on the ground that it transgresses the legislative powers vested in it by the *Constitution*, but also on some general principles such as "due process" [see under *Article 21*, *post*], the contents of which are definable only by the Supreme Court. The American Judiciary thus sits over the *wisdom* of any legislative policy as if it were a third Chamber or super-Chamber of the Legislature.

U.K.

Under the *English Constitution*, on the other hand, Parliament is supreme and "can do everything that is not

naturally impossible" (*Blackstone*) and the *Courts* cannot nullify an Act of Parliament on any ground whatsoever. In the words of SIR ERSKINE MAY[8] —

> The *Constitution* has assigned no limits to the authority of Parliament over all matters and persons within its jurisdiction. A law may be unjust and contrary to sound principles of Government; but Parliament: is not controlled in its discretion, and when it errs, its errors can only be corrected by itself.

So, English Judges have denied themselves any power "to sit as a court of appeal against Parliament". Where the ultimate power resides in the Parliament or the Legislature, it is called Parliamentary sovereignty. Thus, sovereignty or omnipotence of the Parliament means that the Parliament is the supreme power in the State, which means that it can make or unmake any law, and the court will obey its legislation.[9] The "Legislative Supremacy of Parliament" means that the Parliament (*i.e.,* the Queen, Lords and Commons in Parliament assembled) can pass laws on any topic affecting any person and that there was no "fundamental laws" which the Parliament cannot amend or repeal in the same way as ordinary legislation. According to Dicey, (1) the Parliament has the right to make or unmake any law whatsoever; (2) No person or body is recognised by the law of England as having the right to override or set aside the legislation of the Parliament, and (3) the right or power of the Parliament extends to every part of the Queen's dominion.[10] Once a document is recognised as being an Act of Parliament, no English Court can refuse to obey it or question its validity.[11]

MAHATMAGANDHI has given a graphic picture: "We have long been accustomed to think that power comes only through Legislative Assemblies. I have regarded this belief as a grave error brought about by inertia or hypnotism. A superficial study of British history has made us to think that all power percolates to the people from Parliament. The truth is that power resides in the people and it is entrusted for the "time being" to those whom they may choose as their representatives".[12]
India

The doctrine of parliamentary sovereignty as it obtains in England does not prevail in India except to the extent and in the fields provided by the *Constitution*. The entire scheme of the *Constitution* is such that it ensures the sovereignty and integrity of the country as a republic and the democratic way of life by parliamentary institution based on free and fair election.[13] There is a difference between parliamentary and constitutional sovereignty. The *Constitution of India* was framed by the Constituent Assembly and not by the Parliament. For the preservation of liberty and prevention of tyranny, we have accepted the separation between Legislature, Executive and Judiciary. It is the duty of the Supreme Court to uphold constitutional values and enforce constitutional limitations.[14] The Court has held that the legislature and executive are answerable to the *Constitution* and it is there where the judiciary, as the guardian of the *Constitution*, must find the contours of powers.[15] In another case, the Court further held that sovereignty rests with the people.[16]

The *Indian**Constitution* wonderfully adopts the *via media* between the American system of Judicial Supremacy and the English principle of Parliamentary Supremacy, by endowing the Judiciary with the power of declaring a law as unconstitutional if it is beyond the competence of the Legislature according to the distribution of powers provided by the *Constitution*, or if it is in contravention of the fundamental rights guaranteed by the *Constitution* or of any other mandatory provision of the *Constitution*, *e.g.,**Articles 286*, *299*, *301*, *304*; but, at the same time, depriving the Judiciary of any power of "judicial review" of the wisdom of legislative policy. Thus, it has avoided expressions like "due process" and made fundamental rights such as that of freedom of expression or personal liberty subject to regulation by the Legislature. Further the major portion of the *Constitution* is liable to be amended by the Union Parliament by a special majority, if in any case the Judiciary proves too obtrusive.

On the other hand, though we have adopted the Parliamentary system of Government according to the English model,—the Executive being responsible to Parliament,—our Parliament is not a sovereign body just like the English Parliament.

> The principal point of distinction between the British Parliament and the Indian Parliament remains and that is that the Indian parliament is the creature of the *Constitution of India* and its powers, rights, privileges and obligations have to be found in the relevant Articles of the *Constitution of India*. It is not a sovereign body, uncontrolled with unlimited powers. The *Constitution of India* has conferred on the Indian Parliament powers to make laws in respect of matters specified in the appropriate place and Schedules, and curtailed its rights and powers under certain other Articles and in particular by the Articles found in chapter III dealing with Fundamental Rights.[17]

Judicial Review.

*Our*Constitution thus endows the Judiciary with the power of declaring a law as unconstitutional if it is beyond the competence of the Legislature according to the distribution of powers provided by the Constitution, or if it is in contravention of the fundamental rights guaranteed by the Constitution, or any other mandatory provision of the Constitution. As the Supreme Court has pointed out,[18] the Constitution of India has expressly provided for judicial review in Article 13, according to which it is its *duty* to determine the constitutionality of a statute when that is challenged on the ground of contravention of fundamental rights.

Again, while all the fundamental rights are expressly made subject to regulation by the Legislature, those which are enumerated in Article 19 are subject to judicial review as to their reasonableness much in the same way as in the *U.S.A.*

Thus, echoing the words of the American Supreme Court in *Meyer v Nebraska,*[19] that—

> Determination by the Legislature of what constitutes power exercise of the Police power is not final or conclusive, but is subject to supervision by the Courts.

our Supreme Court has said—

> The determination by the Legislature of what constitutes a reasonable restriction is not final or conclusive; it is subject to the supervision of the Court.[20]

In the result, though the system of Parliamentary Government has been adopted according to the British model, the American doctrine of judicial review has been engrafted upon it to a limited extent. A written constitution provides the "fundamental law" and the laws enacted by the legislature cannot transgress the provisions of fundamental law. If they do, it is the duty of court to declare them as void. The judiciary has assumed this power on the ground that the Judiciary must enforce fundamental law. That is why under a written constitution, the Judiciary is called "the guardian of the Constitution". It is said that judiciary is a "watching tower above all the structures of the other limbs of the State" from which it keeps a watch like a sentinel on the functions of the other limbs of the State as to whether they are working in accordance with the law and the Constitution, the Constitution being Supreme".[21]

In *United States v Butler*,[22] it was held:

> There should be no misunderstanding as to the function of the court in such a case. It is sometimes said that the court assumes power to overrule or control the action of the people's representatives. This is a misconception. The Constitution is the supreme law of the land ordained and established by the people. All legislations must conform to the principles it lays down. When an act of Congress is appropriately challenged in the court, as not conforming to the Constitutional mandate, the judicial branch of the government has only one duty, to lay the article of the Constitution which is invoked beside the statute which is challenged and to decide whether the latter squares with the former. The only power it has, if as such it may be called, is the power of judgment. This court neither approves nor condemns any legislative policy. Its delicate and difficult office is to ascertain and declare whether the legislation is in accordance with or in contravention of the provisions of the Constitution and having done that, its duty ends.

T.M. Cooley in *The Treatise on the Constitutional Limitation* has said:

> The legislative and judicial are co-ordinate departments of the government, of equal dignity; each is alike supreme in the exercise of its proper function and cannot directly or indirectly, while acting within the limits of its authority, be subjected to the control or supervision of the other, without an unwarrantable assumption by that other of power, which by Constitution, is not conferred upon it. The Constitution apportions the power of government, but it does not make any one of the three departments subordinate to another, when exercising the trust committed to it. The court may declare legislative enactment unconstitutional and void in some cases, but not because the judicial power is superior in degree or dignity to the legislature. Being required to declare what the law is in the cases which come before them, they must enforce the Constitution as the paramount law, whenever a legislative enactment comes in conflict with it. But the courts sit, not to review or revise the legislative action, but to enforce the legislative will; and it is only when they find that the legislature has failed to keep within its constitutional limits, that they are at liberty to disregard its action, and in doing so, they only do what every private citizen may do in regard to the action of the court when the Judges assume to act and to render judgment or decrees without jurisdiction. In exercising this high authority, the judges claim no judicial supremacy; they are only administrators of public will. If an act of legislature is held void, it is

> not because the judges have any control over the legislative power, but because the act is forbidden by the *Constitution* and because the will of the people which is therein declared is paramount to that of their representation expressed in any law.[23]

The interpretation of the laws is the proper and peculiar province of the court. A *Constitution* is in fact and must be regarded by the judges as a fundamental law. It therefore belongs to them to ascertain the meaning as well as the meaning of any particular act proceeding from the legislative body. If there should happen to be an irreconcilable variance between the two, that which has the superior obligation and validity ought, of course, to be preferred or in other words, the *Constitution* ought to be preferred to the statute, the intention of the people to the intention of their agent.

Nor does this conclusion by any means suppose a superiority of the judicial to the legislative power. It only supposes that the power of the people is superior to both and that where the will of the legislature, declared in the statute, stands in opposition to that of the people declared by the *constitution*, the judges ought to be governed by the latter rather than the former. They ought to regulate their decision by the fundamental laws, rather than by those which are hot fundamental…[24]

Just after the *Constitution* came into force, the Calcutta High Court in a Special Bench case, gave a memorable decision by which the entire Bengal Criminal Amendment Act 1950 was declared void.[25] The court held:

> The legislatures in this country have only those powers of legislations which are bestowed upon them by the *Constitution* Act. If they pass an Act in excess of those powers, the Act becomes void to that extent. Under our *Constitution*, the court, *i.e.,* the judiciary is to decide this and nobody else. We recognise that great powers necessarily involve responsibility, but we are not dismayed. Amidst the strident clamour of political strife and the tumult of the clash of conflicting classes, we must remain impartial. This court is no playground and its endeavour must be to ensure that above this clamour and tumult, the strong claim voices of justice shall always be heard.

In 1958, the Law Commission said: “The *Constitution* in express terms requires the court to act as a “supervisory” body in the matter of laws alleged to encroach upon the exercise of Fundamental Rights. The line as to how far a law shall go in derogation of the citizen’s Fundamental Right is, according to the *Constitution*, to be drawn by none other than the judiciary. The government and their policies may change. What contributes to the stability of the State is its judiciary. A nation may afford to lose its confidence in its King or even its Parliament, but it would be an evil day if it loses its confidence in its Judiciary”.[26] It is declared that judiciary is the guardian of the *Constitution* and the legislature and executive are answerable to the *Constitution* and it is there where judiciary, as guardian of the *Constitution*, must find contours of powers.[27]

The Supreme Court plays a very significant role in relation to fundamental rights. In the first place, the court acts as a protector and the guardian of these rights. In the second place, the court acts as an interpreter of the Fundamental Rights. The Supreme Court acts as the “sentinel on the *qui vive*” in relation to fundamental rights.[28]

On the other hand, we have avoided the other extreme, namely, that of “judicial supremacy” which may be a logical outcome of an over-emphasis on judicial review, as the American experience demonstrates. The major portion of *our**Constitution*, is liable to be amended by the Union Parliament by a special majority, if in any case, the Judiciary proves too obtrusive.[29] The very passing of the *constitution* Twenty Fourth and Twenty Fifth Amendment Acts to override the anomalous decision in *Golak Nath’s* case[30] amply illustrates the magnitude of this power of *our* Parliament.

The Indian *Constitution* thus places supremacy in the hands of the Legislature as much as that is possible within the bonds of a written *Constitution* having a Bill of Rights.

But, so long as the *Constitution* itself is not amended, the Supreme Court has the final say as to what the *Constitution* means. Under *Article 141*, its decisions are binding upon all other courts in the territory of India, and its decisions must be referred to for understanding the meaning of the *Constitution* in the same way as the Reports of the Supreme Court have to be consulted in the U.S.A. It may be noted that even during the first quinquennium, the number of constitutional decisions of *our* Supreme Court exceeded 150 and the volume of this source of *our* constitutional law is ever increasing.

(vii) Combination of the Presidential and Parliamentary systems of Government

This feature of *our**Constitution* will be fully discussed under *Article 52*, *post.* It means, in short, that though the

framers of *ourConstitution* placed an elected President at the head of the Union as in the U.S.A., the system of Government of which the President is to remain as the constitutional head is a Parliamentary system of the British type.
Compared with the Constitution of *Eire.*

As in the *Constitution* of *Eire*, the Indian *Constitution* superimposes an elected President upon the Parliamentary system of responsible Government. But though an elected President is the executive head of the Union he is to act on the advice of his ministers, although whether he so acts according to the advice of his ministers is not questionable in the courts and there is no mode, short of impeachment, to remove the President if he acts contrary to the *Constitution*.

On the other hand, the principle of ministerial responsibility to the Legislature, which under the English system rests on convention, is embodied in the express provisions of *ourConstitution*.

In the words of *our* Supreme Court,[31]

> Our *Constitution* though federal in its structure, is modelled on the British Parliamentary system where the executive is deemed to have the primary responsibility for the formulation of Government policy and its transmission into law, though the condition precedent to the exercise of this responsibility is its retaining the confidence of the legislative branch of the State…In the Indian *Constitution*, therefore, we have the same system of parliamentary executive as in England....[31]

In a subsequent decision, the Court said that the conventions operating in Britain governing the relationship between the Crown and the Ministers are very pertinent to the Indian *Constitution* as well and the formal provisions of the Indian *Constitution* should be read in the light of those conventions. The Court further observed that the Constituent Assembly did not choose the Presidential System of Government.[32]

The Constituent Assembly considered the constitutional traditions, the American, Swiss and British, regarding the formation of executive and finally chose mostly the British system, where India was to have an elected (indirectly) President for a term of five years, who would be the constitutional head and who could be removed only through impeachment, an indirectly elected Vice-President, who will be the head of State in the absence of President, who shall also be the Chairman of the Upper House. As in England, there was a Council of Ministers, headed by the Prime Minister and a Council of Ministers collectively responsible to Parliament to aid and advise the Head of State. The President was to be a nominal head of the Executive, the Prime Minister being the real head. The remaining member of the Executive named in the *Constitution* was the Attorney-General. During the debates in the Assembly, K.M. Munshi, member, said: “This Parliamentary system produces a stronger government, for, (a) members of the executive and legislature are overlapping, and (b) the heads of government control the legislature.[33]

But *ourConstitution* is not an exact replica of the Irish model either. The *Constitution* of *Eire* lays down that the constitutional powers of the President can only be exercised by him on the advice of Ministers, *except* those which are left to his discretion by the *Constitution* itself. But in the *IndianConstitution* here is no provision authorising the President to act “in his discretion” on any matter. He must, in all matters, act on the advice of a Council of Ministers responsible to the Union Legislature.[31]

Broadly speaking, the system introduced by *ourConstitution* differs from that of the *United Kingdom* only in so far as we have an elected President at the head, a codified Bill of Rights and a Judiciary to enforce the mandates of the written *Constitution* not only against the Executive but also against the Legislature.
(viii) The role of Conventions under the Constitution

The *Constitution of India* has adopted the Parliamentary form of Government from the unwritten *Constitution* of England. It is obvious, therefore, that while the entire system Of Parliamentary Government Is based on usage and convention in England,—the essentials of that system would be reduced into writing in India and are to be found in the articles of the *Constitution*. Thus, the English convention that the Ministers are collectively responsible to the popular Chamber of the Legislature is to be found in *Article 75(3) of the Constitution*; the convention that Parliament must be summoned at least once a year is embodied in *Article 85* (in a slightly modified form). Again, the convention that financial proposals may be introduced only in the popular Chamber of the Legislature and that on the recommendation of the Executive, is enacted in *Article 117*(*1*) of *ourConstitution*.

In adopting English conventions, however, it cannot be said that the authors of the Indian *Constitution* have copied them *in toto*. The comments on *Article 77* or *85*, for instance, will explain in what respects the English conventions have been modified as incorporated in *ourConstitution*.

Secondly, from the nature of things, it is not possible to reduce into writing all the rules of convention upon which the English Parliamentary system of Government rests, and the framers of the Indian *Constitution* have made no such attempt. Thus, it cannot be contended that *Article 75* of *ourconstitution* exhaustively lays down the principles upon which the Cabinet system should work in our land. Take for instance, the question whether the Ministry should resign whenever there is an adverse vote against it in the House of People, or whether it is at liberty to regard an accidental defeat on a particular measure as a "snap vote". Again, the *Constitution* cannot possibly give any indication as to which issue should be regarded as a "vital issue" by a Ministry, so that on a defeat on such an issue the Ministry should be normally bound to resign. Similarly, in what circumstances a Ministry would be justified in advising the President to dissolve Parliament instead of resigning upon an adverse vote, can only be established by convention.

Articles 74 and *75* of the *Constitution* have been interpreted by the Supreme Court according to which the major principles applied by the court are – (1) It is Parliamentary or Cabinet System of Government, as it obtains in UK which has been adopted by the provisions of the *Constitution*; (2) But it is not physically possible for the framers of Indian *Constitution* to codify all the numerous unwritten conventions upon which the Cabinet system of government stands. On matters regarding which the Indian *Constitution* is silent – there being no express provision either adopting or rejecting the British convention – the British Convention should be imported in interpreting the codified provisions in so far as they are relevant; (3) The result would be similar where the text of the written *constitution* is ambiguous; (4) Where, however, there is an express provision and the words thereof are clear, effect must be given to those words of the Article of the Indian *Constitution* "notwithstanding any relevant (British) convention". So long as a convention is not incorporated into the *Constitution*, it cannot alter or control the provisions of the *Constitution* and cannot be enforced by the court. (5) When a convention is codified in a written *constitution*, in a mandatory form, the courts are bound to enforce it legally, even though a British convention is not enforceable by any British Court.[34]

Conversely, the circumstances in which the President or a Governor would be justified in refusing a dissolution of the Legislature when advised by the Prime Minister or the Chief Minister, as the case may be; or whether the President or a Governor can, under any circumstances, dismiss the Council of Ministers in a body, in the absence of an adverse vote in the Legislature [in exercise of the power conferred by *Article 75*(2) or *Article 164*(1)] are not specifically dealt with by the text of the *Constitution* and burning issues have already been raised relating to some such matters. The answer must be established by conventions and judicial decisions,[35] if any.

Thus, while *Article 74*(1) says that there shall be a Council of Ministers to aid and advise the President in the exercise of his functions", there was no provision in the original *Constitution* making it obligatory upon the President to act only in accordance with the advice tendered by the Council of Ministers.[36] As DR. RAJENDRA PRASAD declared in the Constituent Assembly, though the *Constitution* is silent on this point, a convention must grow that the President is a constitutional head who must, as in *England*,[37] always act according to ministerial advice:

> Although there is no specific provision in the *Constitution* itself making it binding on the President to accept the advice of his ministers, it is hoped that the convention under which in England the King always acted on the advice of his ministers would be established in this country also and the President would become a constitutional President in all matters.[38]

It is to be noted that owing to a continued controversy on this point which went up to the Supreme Court,[39] the Indira Government amended *Article 74*(1) in 1976,[40] making it obligatory for the President "to act in accordance with" the advice of the Council of Ministers.'

A convention has also grown up, without any requirement to that effect in the *Constitution*, that in exercising the power of appointment of a Governor under *Article 155*, the President is to consult the Council of Ministers of the State concerned.

The question remains, whether in matters on which *ourConstitution* is silent we should invariably follow the English convention on the point or are free to follow any different rule. In the opinion of the Author, unless the

language of *ourConstitution* itself points out that the framers of the *Constitution* intended to depart from the English rule, it would be safer to adhere to the latter; for, once it is conceded that we adopted the English system of Parliamentary Government[41] because we found it more conducive to representative democracy and orderly administration, we should also acknowledge that Parliamentarism has succeeded in England only because the English people have adhered to these somewhat settled principles notwithstanding changes in political history and that experiments in other countries to depart from the English principles (*e.g.,* in France) have rarely succeeded.

At the same time, it should be made clear that so far as the Courts are concerned, they have nothing to do with any convention or usage except in so far as it is embodied in or consistent with the text of the organic law. Some of the provisions of *ourConstitution* itself, such as *Articles 74*(2), 163(3), expressly debar the Court from inquiring whether the constitutional head was observing the convention of acting in accordance with ministerial advice.

Conventions have often been characterised as “non-legal rules” – non-legal because the courts do not apply them; rules because they are regarded as “binding” and are observed in practice. In this connection, it needs to be pointed out that there are cases where the courts have recognised convention, thus blurring the distinction, to some extent between legal and non- legal rules.[42] The Supreme Court has also gone to the extent of denying that there is any distinction between “Constitutional Law” and “an established Constitutional convention”. It was observed: “We are of the view that there is no distinction between “Constitutional Law” and “Constitutional Convention” and both are binding in the field of their operation. Once it is established to the satisfaction of the court that a particular convention exists and is operating, then the Convention becomes part of the Constitutional law of the land and can be enforced in the like manner”.[43] In that case, (the question was regarding appointment and transfer of High Court Judges, *etc.*) the majority of the Judges held thus:—

> The absence of specific guidelines in the enacted provisions in the *Constitution* appears to be deliberate, since the power is vested in high constitutional functionaries and it was expected of them to develop requisite norms by convention in actual working as envisaged in the concluding speech of the President of the Constituent Assembly. The norms emerging from the actual practice and crystallised into convention – though not exhaustive are expected to be observed by the functionaries to regulate the exercise of their discretionary power in the matters of appointment and transfers.

Another learned Judge said:

> Two sets of principles make up the rules of Constitutional Law: one set of rules is combined in the written *constitution* of a country and the other set is referred to as “Conventions of the *Constitution*”. Conventions are a means of bringing about constitutional development without any formal changes in the law…The conventions grow up, around and upon the principles of the written *constitution*. Necessary conventional rules spring up to regulate the working of the various parts of the *Constitution*, their relation to one another, and to the subject…The conventions enable a rigid legal framework – laws tend to be rigid – to be kept up with changing social needs and changing political ideas. The conventions enable the men who govern, to work with machines...
>
> A written *constitution* cannot provide for every eventuality. Constitutional institutions are often created by the provisions which are generally worded. Such provisions are interpreted with the help of conventions which grow with the passage of time. Conventions are vital in so far as they fill up the gaps in the *Constitution* itself; help solve problems of interpretation and allow for the future development of the constitutional framework whatever, the nature of the *Constitution*, a great deal may be unsaid in regal rules allowing enormous discretion to the constitutional functionaries. Conventions regulate the exercise of discretion. A power which, jurisdically, is conferred upon a person or body of persons may be transferred, guided or canalised by the operation of the conventional rule.

When the Parliament has power to make a law, an omission to follow any “traditional procedure” cannot make the law invalid and the traditional procedure which was followed earlier, cannot be termed as constitutional convention.[44]

The fact that the courts do not “enforce” constitutional conventions does not mean that the courts do not incidentally recognise their existence. They may be relied on as an aid to statutory interpretation or to justify non-interference by the courts in ministerial decisions in areas which the courts feel that they cannot or should not become involved.[45]

In *Re Amendment of the Constitution of Canada* (1982) 125 DLR (3rd) 1, it was held in the first place that a constitutional convention cannot be crystallised into law.[46] It was further held:

> No instance of an explicit recognition of a convention as having matured into a rule of law was produced. The very nature of a convention, as political in inception and as depending on a persistent course of political recognition by those for whose benefit and to whose detriment (if any) the convention developed over a considerable period of time, is inconsistent with its legal enforcement. … The attempted assimilation of the growth of a convention to the growth of the common law is misconceived. The latter is the product of judicial effort based on justiciable issues which attained legal formulation and are subject to modification and even by reversal by the court which gave them their birth. No such parental role is played by the courts with respect to conventions. Conventions are not enforced by the courts; and if there is any conflict between convention and law, the courts must enforce the law. The sanction of conventions is political, though the violation of convention is "unconstitutional".[47]

The ultimate object of most conventions is that public affairs should be conducted in accordance with the wishes of the majority of the electors. The reason why the Ministry must be chosen from the party or parties enjoying the majority in the Commons is on the assumption that the majority of the Commons reflect the views of the majority of the electors; a ministry so selected will be most likely to give effect to the will of the nation as a whole. And this is also the reason why the Queen should act on the advice of the Ministers, why Ministers should resign if they lose confidence of Commons and why the House of Commons should have a political ascendancy over the House of Lords especially in matters of finance.[48]

Article 75(3) expressly says that the Council of Ministers shall be collectively responsible to the House of the People. This means that the Council of Ministers shall hold office so long as they enjoy the confidence of majority in the lower house of Parliament. If therefore, the majority in that House ever expresses its want of confidence in the Council of Ministers unequivocally by passing a direct vote of no confidence, the Ministry is bound to resign unless the Prime Minister advises the President to dissolve the Legislature. But, if the Prime Minister who is defeated in the House, does not resign nor advises for dissolution of Parliament, the President may remove the Council of Ministers by exercising his power of dismissal which belongs to him according to the theory that the Ministers are his advisers.[49]

In such a situation, the courts in India would also acquire the power to dislodge such a Council of Ministers to legally enforce *Article 75*(3) – a power which is not available to a court in UK. The reason is that the British convention in this behalf has been codified in a mandatory form in the *Constitution of India*.[50]

In *S.P. Anand v H.D. Dev Gowda*,[51] it was held: "Conventions grow from longstanding accepted practice or by agreement in areas where the law is silent and such a convention would not breach the law, but fill the gap."

Under the stress of planning, new conventions have arisen in India. To take only two examples: (1) The Planning Commission, an extra-constitutional non-statutory body has come to have a good deal of control over Central-State policies; (2) The National Development Council is another extra -constitutional body, the powers and functions of which are regulated not by law, but by conventions.[52]

Convention has great role to play in dealing with relationship between the Prime Minister and the Council of Ministers, the President's position *vis-à-vis* the Council of Ministers, Cabinet, a Minister's responsibility for his subordinate's action, summoning, prorogation and dissolution of the Lok Sabha, State Legislative Assembly, a Governor's relation with his Council of Ministers and with the Central Government, assent of the President or the Governor to bills passed by Parliament or the legislative assembly respectively, acceptance of the Finance Commission's recommendation by the Central Government, *etc.*

"Conventions are unwritten maxims of the *Constitution* by which the conduct of political authorities is in fact regulated…without which the *Constitution* would soon lose its stability". The main purpose of constitutional convention is to ensure that the legal framework of the *Constitution* retains its flexibility to operate in tune with the prevailing constitutional values of the period. Although conventions are not legally enforceable and the sanction behind them is moral and political, yet some conventions of the *Constitution* which set norms of behaviour of those in power or which regulate the working of the various parts of the *Constitution* and their relation to one another may be important, if not of greater significance as the written word of the *Constitution* itself. This is particularly true on the role of conventions in a system of Parliamentary democracy having a Constitutional distribution of powers between two or more levels of government". The archetypical convention which requires the Governor to appoint only that person as the Chief Minister who can head the Council of

Ministers commanding an absolute majority in Legislative Assembly, is the essence of cabinet system of Parliamentary democracy, although a breach of this convention is immune from challenge in a court of law.

One unfortunate fact of the Indian situation is that enough attention has not been paid to the evolution and observance of the codes of conduct and conventions. Even the codes and conventions, evolved in earlier year have been broken too lightly in the later years. Expediency has sometimes been given precedence over wisdom and short -term advantage over long- term benefit. Narrow person and parochial interests have been given priority over longer national interests. One unwise action has provoked an equally unwise reaction and triggered off a whole chain of adversary relationships. There is an increasing tendency to violence and extra-constitutional methods to force settlement of political or economic issues – imagined or real.

A natural reaction of some people has been that all the loopholes in the *Constitution* which have permitted aberrant developments, should be plugged. It is urged that if conventions do not work, appropriate constitutional safeguards should be provided. If appropriate conventions are not followed and the discretion provided under certain circumstances is misused, the entire system may collapse. In order that appropriate conventions and codes of conduct get evolved, it is essential that incumbents of constitutional offices and other sentinels of the polity are selected from among persons of admitted competence and integrity and provided with reasonable security of tenure".[53]
(ix) Guarantee of social and political equalitySocial equality also guaranteed by the Constitution.

Another peculiarity of the Chapter on Fundamental Rights in the Indian *Constitution* is that it aims at securing not merely political or legal equality, but *social* equality as well. Thus, apart from the usual guarantees that the State will not discriminate between one citizen and another merely on the ground of religion, race, caste, sex or place of birth [*Article 15*(1)]—in the matter of appointment, or other employment offered by the State, in particular [*Article 16*]—the *Constitution* includes a prohibition of "untouchability" in any form [*Article 17*] and lays down that no citizen may be deprived of access to any public place or of the enjoyment of any public amenity or privilege, only on the ground of religion, race, caste, sex or place of birth [*Article 15*(2)].

Fundamental rights represent the claim of the individual and the restrictions thereon are the claims of the society. *Article 38* in Pt IV is the only article which refers to justice social, economic and political. However this concept of justice is not limited only to directive principles. There can be no justice without equality. *Article 14* guarantees the fundamental right to equality before this law on all persons. Great social injustice resulted from treating sections of the Hindu community as "untouchable" and, therefore, *Article 17* abolished untouchability and *Article 25* permitted the State to make any law providing for throwing open all public Hindu religious temples to untouchables. Therefore, provision of Pt III also provide for political and social justice.[54]

We can hardly overlook in this context that under the *Constitution* of the *U.S.A.,* racial discrimination persists even to-day, notwithstanding judicial pronouncements to the contrary. The position in the *United Kingdom* is no better as demonstrated by current events, even after the enactment of the Race Relations Act, 1976.[55]
Universal franchise without communal representation.

As regards political equality, the adoption of universal adult suffrage (*Article 326*), *without any qualification* either of sex, property, taxation or the like, is a "bold experiment" in India, having regard to the vast extent of the country and its population, with an overwhelming illiteracy [to the extent of 85% (70%, in 1971) of the total population]. The suffrage in India, it should be noted, is wider than that in England or the United States. The concept of popular sovereignty, which underlies the declaration in the Preamble that the *Constitution* is adopted and given by the "people of India" unto themselves, would indeed have been hollow unless the franchise—the only effective medium of popular sovereignty in a modern democracy—were extended to the entire population which was capable of exercising the right and an independent electoral machinery (under the control of the Election Commission) was set up to ensure the free exercise of it.

Adult suffrage, the "acceptance of the fullest implication of democracy" was the most striking feature of the *Constitution*, K.M. PANIKKAR believed. In fact, he said, it may well be claimed that the *Constitution* is a solemn promise to the people of India that the legislature will do everything possible to renovate and rebuild society on new principles.[56]

Adult suffrage gave a voice, indeed power, to millions who had previously been dependent on the whim of others for so much as a vague representation of their interests. Direct election brought – or could bring – national life and consciousness to individuals in the village. This new awareness was national instead of local, thus creating an alternative to caste and other purely local loyalties that impeded national unity. And, if one local loyalty merely supplanted another, as a result of direct election, at least village society had a new fluidity.

It is very doubtful that indirect elections would have had this effect. Adult suffrage has social implications far beyond its political significances. Many social groups previously unaware of their strength and barely touched by the political changes that had taken place, suddenly realised that they were in a position to wield power. (said K.M. PANIKKAR).[57] *Article 325* mandates that there shall be only a general electoral roll for every territorial constituency and no person shall be ineligible for inclusion in such roll on grounds only of religion, race, caste, sex or any of them. The old course of communal electorate was removed.

That, notwithstanding the outstanding difficulties, this bold experiment has been crowned with success will be evident from some of the figures[58] relating to the first General Election held under the *Constitution* in 1952. Out of a total population of 356 million and an adult population of 180 million, the number of voters enrolled was 173 million and of these no less than 88 million, *i.e.*, over 50% of the enrolled voters, actually exercised their franchise. The orderliness with which this election as well as the subsequent General Elections have been conducted speaks eloquently of the political attainment of the masses, though illiterate, of this vast sub - continent. In the Tenth General Election held in 1991, the number of persons on the electoral roll came up to 514 million.

Abolition of communal representation.

No less creditable for the framers of the *Constitution* is the abolition of communal representation, which in its trail had brought in the bloody and lamentable partition of India. In the new *Constitution* there was no reservation of seats except for the Scheduled Castes and Tribes and Anglo- Indians, and that only, for a period of 10 years. It is to be noted that the reservation for the Anglo-Indians and the Scheduled Castes and Tribes has been extended for another period of *seventy*[59] years because that community has not yet been so advanced as to justify a removal of this safeguard.

(x) Peculiarities about Fundamental Rights

Though the concept of Fundamental Rights (Pt III) in *our Constitution* follows the “Bill of Rights” embodied in the *American Constitution*, there are certain novelties which cannot be overlooked in a proper understanding of the *Constitution of India*:

Fundamental rights subject to reasonable regulation by Legislature.

(a) *Firstly,* the balance between the supremacy of the *Constitution* and the sovereignty of the Legislature is illustrated by the novel declaration of Fundamental Rights which our *Constitution* embodies.

The *American* experience demonstrates that a written guarantee of fundamental rights has a tendency to engender an atomistic view towards society and the State which may at times prove to be dangerous to the common welfare. Of course, America has been saved from the dangers of such a situation by reason of her Judiciary propounding the doctrine of “Police Powers” under which the Legislature is supposed to be competent to interfere with individual rights wherever they constitute a “clear danger” to the safety of the State and other collective interests.

Instead of leaving the matter to the off-chance of judicial protection in particular cases, the Indian *Constitution* makes each of the fundamental rights subject to legislative control under the terms of the *Constitution* itself, apart from those exceptional cases where the interests of national security, integrity or welfare should exclude the application of fundamental rights altogether [*Articles 31A-31C*].

Even apart from this, as many as 284 Acts have been altogether shielded from the fundamental rights, by placing them in the 9th Schedule, read with *Article 31B*.[60]

(b) *Secondly*, the significance of the Fundamental Rights has been modified by introducing the non-justiciable Directive Principles of State Policy [in Pt IV, as stated earlier].

Though the object of the original *Constitution* was to provide certain non-justiciable ideals, the Directives have gained predominance *vis-a-vis* the Fundamental Rights in two ways:

(i) By expanding the scope of *Article 31C*, by the 42nd Amendment Act, 1976.

(ii) By the Supreme Court’s activist view that in interpreting the Fundamental Rights, the Directive Principles should be read into the Rights[61] and that the use of directions under *Article 32* can be made to *indirectly* enforce the non-justiciable Directive Principles as well as Fundamental Duties.[61]

The judicial gloss imparted by the Court to the Directive Principles is that they impose an *affirmative duty* upon the State "to create conditions (para 9)[62] in which the fundamental rights guaranteed to the individuals could be enjoyed by all." The Court carries this obligation to its logical extent by reading the Directives into the fundamental rights and thereby expanding the fundamental rights embodied in Pt III.

By enacting the fundamental rights and directive principles which are negative and positive obligations of the State, the Constituent Assembly made it the responsibility of the Government to adopt a middle path between individual liberty and public good. Fundamental Rights and Directive Principles have to be balanced. That balance can be tilted in favour of the public good. The balance, however, cannot be overturned by completely overturning individual liberty. This balance is an essential feature of the *Constitution*.[63] In interpreting the *Constitution*, due regard has to be given to the Directive Principles which have been recorded as the soul of the *Constitution* in the context of India being a Welfare State. The Preamble itself is elaborated in the two vital chapters of the *Constitution* on fundamental rights and directive principles of State policy. DR. B.R. AMBEDKAR has underscored that one of the objectives of the directive principles of State policy is to achieve economic democracy and lift that in the hands of elected representatives.[64]

The Fundamental Rights and Directive Principles were included in the *Constitution* in the hope and expectation that one day the tree of true liberty would bloom in India. The Rights and Principles thus connect India's future, present and past, adding greatly to the significance of their inclusion in the *Constitution* and give strength to the pursuit of the social revolution in India.

Although the Fundamental Rights primarily protect individuals and minority groups from arbitrary, prejudicial state action, three of the articles have been designed to protect individuals against the action of other private citizens. *Article 17* abolishes untouchability; *Article 15*(2) lays down that no citizen shall suffer any disability in the use of shops, restaurants, wells, roads and other public places on account of his religion, race, caste, sex or place of birth, *etc.**Article 23* prohibits forced labour – which although also having been practised by the State, was more commonly a case of landowner and peasants. Thus, the State, in addition to obeying the *Constitution*'s negative injunction not to interfere with certain of citizen's liberties, must fulfil its positive obligation to protect the citizen's rights from encroachment by society. The Fundamental Rights, therefore, were to foster the social revolution by creating a society egalitarian to the extent that all citizens were to be equally free from coercion or restriction by the State or by society privately; liberty was no longer to the privilege of the few.

In the Directive Principles, however, one finds an even clearer statement of the social revolution. They aim at making Indian masses free in the positive sense, free from the passively engendered by centuries of coercion by society and by nature, free from the abject physical condition that had prevented them from fulfilling their best selves.[65] Granville Austin further says that having made Fundamental Rights justiciable, the sub - committee next included within the Rights the legal methods by which they could be secured. To do this, they adopted the English device of prerogative writs or directions in the form of writs. (at p 67). "Although ordinary remedies exist for the protection of rights, the prerogative writs have put teeth in the Fundamental Rights provision. The writs have become popular, for, they are commonly believed to be "the corner-stone of freedom and liberty". (at p 68).

Thus, the Directive to the State in *Article 41* to provide education has, by means of judicial activism, been turned into a fundamental right of the individual to receive education (para 14).[65a] One step further is to *strike down* a "capitation fee" (paras 17, 29)62 which is charged by State-recognised educational institutions as the price of admission (apart from tuition fees), which "makes the availability of education beyond the reach of the poor" (para 17, 18).[65b]
Fundamental Rights checkmated by Fundamental Duties.

(c) Another feature, which was not in the original *Constitution*, has been introduced by the 42nd Amendment, 1976, by introducing *Article 51A* as Pt IVA of the *Constitution* with a view to circumscribing the Fundamental Rights, even though the Duties, as such, cannot be judicially enforced (see, further, under *Article 51A*, *post*).

(d) On the other hand, the list of Fundamental Rights became bulkier than elsewhere because the framers of the *Constitution* had to include therein novel matters owing to the peculiar problems of *our* country, *e.g.,* untouchability, preventive detention.
(xi) Legalism of the Constitution

The *Constitution of India* is a legal instrument, the mandatory provisions of which are enforceable through the

Courts, as a result of which it has produced a legalism,— which is more extensive than in countries other than the U.S.A. which have a written *Constitution*, owing to several factors:
Fundamental Rights and Constitutional Remedies

While the Directive Principles are not enforceable in the Courts, the Fundamental Rights, included in Pt III, are so enforceable at the instance of any person whose fundamental right has been infringed by any action of the State,—executive or legislative—and the remedies for enforcing these rights, namely, the writs of *habeascorpus, mandamus,* prohibition and *certiorari,* are also guaranteed by the *Constitution*. Any law or executive order which offends against a fundamental right is liable to be declared void by the Supreme Court or the High Court.

The framers of the *Constitution* guaranteed not only fundamental rights, but also provided for remedies for the enforcement of the rights. These remedies are available under *Articles 32* and *226*. *Article 32* empowers the Supreme Court to issue appropriate writs for the enforcement of these rights and the right to move the Supreme Court for the issue of these writs is itself a fundamental right. *Article 226* empowers all High Courts *inter alia* to issue the writs for the enforcement of fundamental rights. Thus the *Constitution* has amply provided for enforcement of the fundamental rights. The right to move the Supreme Court for the enforcement of fundamental right is part of the basic structure of the *Constitution* and cannot be tampered with. The members of Constituent Assembly brought to the framing of the judicial provisions of the *Constitution* an idealism equaled only by that shown to the Fundamental Rights. Indeed the Judiciary was seen as an extension of the Rights, for, it was the court that would give the Rights force… The courts were also idealised because as the guardians of the *Constitution*, they would be the expression of the new law created by Indians for Indians.[66]

No Act of Parliament can exclude or curtail the powers of Constitutional Court with regard to enforcement of fundamental rights. Such a power is essential to give practical content to the objectives of the *Constitution* embodied in Pt III and other parts of the *Constitution*. Moreover, in a federal *constitution*, the distribution of legislative powers between Parliament and State legislature involves limitation of legislative powers which require an authority other than Parliament to ascertain whether such limitations are transgressed. Judicial review acts as a final arbiter not only to give effect to the distribution of legislative powers between Parliament and State legislature, it is also necessary to show any transgression by each entity. Judicial Review is justified by combination of the principles of separation of powers, the principles of constitutionality and the reach of judicial review. The doctrine of separation of powers cannot curtail the power of judicial review conferred on the Constitutional Courts in situations where the fundamental rights which include *Article 14*, *19*(1)(a) and 21 are sought to be abrogated or abridged on the ground that exercise of such power would impinge upon the said doctrine.[67]

It is through a misapprehension of these provisions that the Indian *Constitution* has been described by some critics as a “lawyer’s paradise”. According to SIR IVOR JENNINGS,[68] that is due to the fact that the Constituent Assembly was dominated by “the lawyer-politicians”. It is they who thought of codifying the individual rights and the prerogative writs though none in *England* would ever cherish such an idea. In the words of SIR IVOR—

> Though no English lawyer would have thought of putting the prerogative writs into a *Constitution*, the Constituent Assembly did so…These various factors have given India a most complicated *Constitution*. Those of us who claim to be constitutional lawyers can look with equanimity on this exaltation of our profession. But Constitutions are intended to enable the process of Government to work smoothly, and not to provide fees for constitutional lawyers. The more numerous the briefs the more difficult the process of government becomes. India has perhaps placed too much faith in us.[68]

Judicial review makes the Constitution legalistic

With due respect to the great constitutional expert,[68] these observations disclose a failure to appreciate the very foundation of the Indian *Constitution*. SIR IVOR omits to point out that the fathers of the Indian *Constitution* preferred the American doctrine of “limited Government” to the English doctrine of Parliamentary sovereignty.

In *England*, the birth of modern democracy was due to a protest against the absolutism of an autocratic executive and the English people discovered in Parliamentary sovereignty an adequate solution of the problem that faced them. The English political system is founded on the unlimited faith of the people in the good sense of their elected representatives. Though, of late, detractions from its omnipotent authority have taken place because the ancient institution at Westminster has grown incapable of managing myriads of modern problems

with the same ease as in the Victorian age, nonetheless, any thought of placing limitations on the authority of Parliament so that it might properly behave, has not so far succeeded.

The Founding Fathers of the *American*Constitution, on the other hand, had the painful experience that even a representative body might be tyrannical, particularly when they were concerned with a colonial Empire. Thus it is that the Declaration of Independence recounts the attempts of the British "Legislature to extend an unwarrantable jurisdiction over us" and how the British people had been "deaf of the voice of justice". At heavy cost had the colonists learnt about the frailty and weakness of human nature with the same Parliament which had forced Charles I to sign the Petition of Rights (1628) to acknowledge that no tax could be levied without the consent of Parliament, did, in 1765, and the years that followed, insist on taxing the colonies, regardless of their right of representation, and attempt to enforce such undemocratic laws though military rule.

Hence, while the English people, in their fight for freedom against autocracy, stopped with the establishment of the supremacy of the law and of Parliament as the sole source of that law, Americans had to go further and to assert that there is to be a law superior to the Legislature itself and that it was the restraints of this paramount written law that could only save them from the fears of absolutism and autocracy which are ingrained in human nature itself.

As will be more fully explained in the Chapter on Fundamental Rights, the Indian experience of the application of the British Rule of Law in India was not altogether happy and there was a strong feeling that it was not administered with even hands by the foreign rulers in India as in their own land. The "Sons of Liberty" in India had known to what use the flowers of the English democratic system, *viz.,* the Sovereignty of Parliament and the Rule of Law, could be put in trampling down the rights of man under an Imperial rule. So, in 1928, long before the dawn of independence in India, the Motilal Nehru Committee asserted that—

> Our first care could be to have our fundamental rights guaranteed in a manner *whichwill not permit their withdrawal under any circumstances.*

Now, judicial review is a necessary concomitant of "fundamental rights", for, it is meaningless to enshrine individual rights in a written *Constitution* as "fundamental rights" if they are not enforceable, in Courts of law, against any organ of the State, legislative or executive. Once this choice is made, one cannot help to be sorry for the litigation that ensues. Whatever apprehensions might have been entertained in some quarters in India at the time of the making of the Indian *Constitution*, there are not many in India today who is aggrieved because the Supreme Court, each year, invalidates a dozen of statutes and a like number of administrative acts on the ground of violation of the fundamental rights.

An independent Judiciary, having the power of "Judicial review",[69] is another prominent feature of *our*Constitution. Judicial review is a great weapon through which arbitrary, unjust, harassing and unconstitutional laws are checked. Judicial review is the cornerstone of constitutionalism, which implies limited government.[70] In a democracy, public opinion is passive and in India it is still worse and that is all the reason why it is imperative that judiciary should come to our rescue. If not, the *Constitution* will become ill-balanced and lean heavily on the Executive and supremacy and tyranny of the majority will prevail; and that was not the intention of the Makers.[71] Judicial review is essential for resolving the disputes regarding the limits of constitutional power and entering the constitutional limitation as an ultimate interpreter of the *Constitution*. Being itself part of the basic structure of the *Constitution*, it cannot be ousted or abridged by even a constitutional amendment.[72]

On the other hand, we have avoided the other extreme, namely that of "judicial supremacy", which may be a logical outcome of an over-emphasis on judicial review, as the American experience demonstrates.
(xii) Basic FeaturesOutstanding and "basic" features of the Constitution.

Before closing this Chapter, however, it should be pointed out that since the observations in the case of *Golak Nath*,[73] culminating with *Keshavananda,*[74] the Supreme Court had been urging that there are certain "basic" features of the *Constitution*,[75] which were immune from the power of amendment conferred by *Article 368*, which, according to the Court, was subject to "implied" limitations. On the other hand, the Government had been attempting to thwart this doctrine by successive amendments of *Article 368*, starting with the 24th Amendment, 1971, and ending with the 42nd Amendment Act, 1976, so as to obviate any such conclusion by the Supreme Court.[76] The Court has, however, adhered to its view notwithstanding any of these amendments.[77] The present Chapter does not enter into the controversy, which will be dealt with under *Article 368*, *post.*

The comparative study of any *Constitution* will reveal that it has certain prominent features which distinguish it

from other Constitutions. It is those prominent features which have been summarised in the foregoing pages by way of introducing the readers to the various provisions of the Indian *Constitution*.

7. CONSTITUTION AND PRIVATE PROPERTY

The Draft *Constitution of India* gave constitutional protection by *Article 24* to the right of private property in the Constituent Assembly. Dr. Ambedkar, The Chairman of the Drafting Committee first brought up this matter in the Assembly. The crux of the problem in this connection was—

Whether and to what extent Courts should have the power to control legislative measures which impaired proprietary rights.

At this juncture Legislative Bills to abolish Zamindari (in U.P., Bihar and Madras) were pending disposal. There were different views in regard to indemnification for property taken over by the State. One group favoured the view that compensation fixed by the legislature was to be final. The other view opposed this and said that full indemnification should be given. A via-media was found out and the third view was accepted which was embodied in *Article 31 of the Constitution*. As many as 97 amendments were tabled to this Article but all these amendments were rejected and the article as moved by Pandit Nehru was approved. It ultimately became *Article 31 of the Constitution*.

Soon after the *Constitution* came into force this article was interpreted in certain decision and it resulted in invalidation of land reform laws. *Kameshwar Singh v State of Bihar,*[78] is one such case wherein Bihar Governments Act—Bihar Land Reforms Act, 1950 was challenged on the ground that classification of Zamindars made for the purpose of giving compensation was discriminatory. It violated the guarantee of equality to the citizens under *Article 14*. The Patna High Court declared the act to be invalid.

The *Constitution* (1st Amendment) Act, 1951 inserted *Articles 31-A* and *31-B* after *Article 31*, in order to prepare a way for agrarian reforms in the country.[79]

The object of *Articles 31-A* and *31-B* were to facilitate agrarian reforms. They were aimed at Zamindari. The result was that the intermediaries were removed and the tillers of soil were benefited. But this measure was also challenged in *ShankariPrasad v UOI,*[80] on the ground that it was in conflict with *Article 13 of the Constitution* the Supreme Court held that even fundamental rights are liable to be amended and that they are not immune from the constitutional Amendments. Challengers' contention was therefore rejected.

A question was raised in regard to the provisions of *Article 31*(1) and (2)—that does it mean that every law depriving a citizen of property should comply with the requirements of clause or does it mean that only those laws whereby the state acquires or requisitions the property should comply with the requirements.

In First *Sholapur Mills* case *i.e.*, *Charanjit Lal v UOI,*[81] the first view was urged. It was however rejected. But in *State of WB v Subodh Gopal,*[82] this view was accepted, and amendment made to the West Bengal Revenue Sales Act, 1856, were declared unconstitutional. Similarly in *Dwarkadas Shriniwas v Sholapur Spinning and Weaving Co*,[83] (second *Sholapur* case), the validity of Sholapur Spinning & Weaving Co. (Emergency Provisions) Ordinance, 1950 was challenged, for, it made no provisions for payment of compensation to the company which was deprived of the right to management and administration of its affairs and of its assets. The contention that the Ordinance contravened the provisions of *Article 31*(2) was accepted by the Supreme Court and the said Ordinance was declared to be unconstitutional as it violated *Article 31*(2).[84]

The *Constitution* Fourth Amendment Act, 1955 was passed to reduce the force of the above decisions. Clause (2) *Article 31* was substituted by a new clause (2) and clause (2A) was added after clause (2). This Fourth Amendment amended *Article 31A* retrospectively. The Supreme Court in *Vairavelu Mudaliar v Special DeputyCollector, Madras,*[85] rejected the element of non-justiciability introduced by the Fourth Amendment Act and said that even though the adequacy of the compensation for acquisition or re-acquisition of property is not justiciable by virtue of the Fourth Amendment, it is still open to the Court to strike down the legislation if the compensation fixed by it is illusory or irrelevant from the view point of evaluation.[86]

In 1970, in the *R.C. Cooper case*[87] the Court restored the old position in *Shantilal's* case[88] this was followed by Bank Nationalization wherein 14 named Banks under the *Banking Companies (Acquisition and Transfer of Undertakings) Act*, 1969, were nationalised. The Act came into force from 9th August, 1969. The Act fixed the principles for fixation of compensation. However the Act was struck down by the Supreme Court as unconstitutional.

By the *Constitution* (Seventeenth Amendment) Act, 1964 definition of the term, “estate”—was given in *Article 31-A*, clause (1) and in clause (2) of this Article for sub-clause (a) a new clause was substituted and the meaning of the word estate was further clarified in connection with compensation to be given in case of acquisition or requisition of the estate.

In the *Golak Nath case*[89] the validity of the Seventeenth Amendment was challenged on the ground that the Parliament has no power to amend the Fundamental Rights so as to abridge them the Supreme Court by a majority upheld this argument and said that its power to amend the *Constitution* was an ordinary legislative power and the amendment being “law” under *Article 13 of the Constitution* the same is invalid if it abridges Fundamental Rights.

To remove the difficulties created by *Golaknath’s* judgment[90], Twenty Fourth Amendment was passed. This case said that an amendment under *Article 368* was a “law” within the meaning of *Article 13*. Now *Article 368* lays down only the procedure of amendment, but the power to amend resided in *Article 245*. Therefore the Twenty Fourth Amendment by amending *Article 368* made it clear that the *Article 368* lays down power as well as procedure of amendment. Thus the court not only removed the restriction for amendment but also extended the amending power by adding the following words:

> Parliament may amend by way of addition, variation or repeal any provision of the *Constitution*.

Consequently the amended *Article 13* makes it clear that a Constitutional amendment is not “law”, within the meaning of *Article 13*. In *Keshavanand’s* case[91] in 1971, the Supreme Court upheld the validity of this amendment.

The Twenty fifth Amendment to the *Constitution* was passed to remove the difficulties created by the *Bank Nationalisation* case.[92] By amending clause (2) of *Article 31* it substituted the word “amount” for the word “Compensation” and added “that the whole or any part of such amount is to be given otherwise than in cash.” Moreover a new clause (2A) was also added which said that the deprivation law passed under *Article 31* could not be challenged on the ground that it infringes rights guaranteed in *Article 19 of the Constitution*. Besides this, a new *Article 31-* C was added that to give effect to the Directive Principles Specified in *Article 39* (b) & (c), laws could be passed & these laws cannot be challenged for the reason that it is inconsistent with or takes away or abridges any of the rights guaranteed under *Articles 14*, *19* & 31. *Keshavanand’s* case[93] upheld the validity of this amendment.

The 29th Amendment to the *Constitution* was made to insert two Kerala Land Reforms Acts in the 9th Schedule of the *Constitution*. The Forty Second Amendment Act amended *Article 31-C* & provided that any law enacted to give effect to all or any of the Directive Principles shall not be void on the ground of violation of *Articles 14*, *19* & 31. By the 42nd Amendment, *Article 31-D* was inserted to take measures to prevent anti-national activities and make appropriate laws in this regard. Only the Parliament has this power to make laws.

In the *Minerva Mills,* case[94]section 4 of the 42nd Amendment Act was held unconstitutional as it was destructive of the basic features of the *Constitution*. But *Article 31-C*, as it stood before the 42nd Amendment, was held valid in *Keshvananda’s* case.[95]

7.1 Constitution

The *Constitution* (Forty-Third Amendment) Act, 1977 omitted *Article 31-D*.

The Forty Fourth Amendment to the *Constitution* repeals the property rights contained in *Articles 19*(1)(f) and 31.

> In view of the special position sought to be given to fundamental rights, the right to property, which has been the occasion for more than one amendment of the *Constitution*, would cease to be a fundamental right and become only a legal right. Necessary amendments for this purpose are being made to *Article 19* and *Article 31* is being deleted. It would, however, be ensured that the removal of the property from the list of the fundamental rights would not affect the right of minorities to establish educational institutions of their choice.

The Forty Fourth Amendment takes away the right to property from the category of fundamental rights. Consequently it can be regulated by ordinary law. In result, *Article 19*(1)(j) and *Article 31* are repealed and a new *Article 300A* under the heading.

> "Right to Property" in Pt XII of the *Constitution* which provides that "no person shall be deprived of his property save by authority of law." The safeguards contained in *Article 31* relating to acquisition of property of an educational institution established and administered by a minority has now been incorporated in *Article 30* by adding a new clause (1-A) after clause (1).

The deletion of *Articles 19*(1)(f) and 31 does not however mean that the right to property finds no place in the *Constitution of India*. *Article 300A* confers a substantial right on every person to hold property, though it is not a fundamental right. It is now a constitutional right, though it does not make much difference. As this right is conferred by the *Constitution*, a law passed by legislature under this *Article 300A* will have to satisfy the requirements laid down by relevant article of the *Constitution*. If such a law violates any provision of the *Constitution*, it is liable to be struck down by the High Court. The Supreme Court may not entertain a petition for violation of *Article 300A* since it can invoke the jurisdiction only if there is violation of fundamental right.

In T.K. Tope' s*Constitutional Law of India*, the learned author has stated: "One more point deserves to be considered in this behalf. After the judgment in *Maneka Gandhi v UOI*,[1] the concept of "personal liberty" has been enlarged considerably. Hence it would be possible to argue that the right to property is also an essential part of personal liberty and therefore the right to property still continues to be a fundamental right.[2] In that case, JusticeSinha equated right to property to a human right."

In 2011,the Supreme Court, interpreting *Article 300A* said that a person cannot be deprived of his property by an executive fiat and it can be done only by authority of law and he cannot be so deprived without support of law made by a competent legislature:

> Deprivation of property by statute within the meaning of *Article 300A*, generally speaking, must take place for public purpose or public interest…. Any law which deprives a person of his personal property for private interest will be unlawful and unfair and undermines the rule of law and can be subjected to judicial review…Requirement of public purpose for deprivation of a person of his property under *Article 300A* is a precondition, but no compensation or nil compensation or its illusiveness has to be justified by the State on judicially, justiciable standards. Measures designed to achieve greater social justice may call for lesser compensation and such a limitation by itself will not make the legislation invalid or unconstitutional or confiscatory. In other words, the right to claim compensation or the obligation to pay, though not expressly included in *Article 300A*, it can be inferred in *Article 300A* and it is for the State to justify its stand on justiciable grounds which may depend upon the legislative policy, object and purpose of the statute and host of other factors. *Article 300A* would be equally violated if the provisions of law authorising deprivation of property have not been complied with. While enacting *Article 300A*, Parliament has only borrowed *Article 31*(1) (Right of law). *Article 300A* enables the State to put restrictions on the right to property by law. That law has to be reasonable. It must comply with the provisions of the *Constitution*. The limitation or restriction should not be arbitrary or excessive or beyond what is required in public interest. The limitation or restriction must not be disproportionate to the situation or excessive. The legislation providing for deprivation of property under *Article 300A* must be "just, fair and reasonable" as understood in terms of *Articles 14*, *19*(1)(f), 26(c), 30(1A), *etc.*[3]

Though the right to property is no longer a fundamental right, the constitutional protection continues in as much as without the authority of law, a person cannot be deprived of his property. Accordingly, if the State intends to appropriate the private property without the owner's consent by acting under statutory provisions for compulsory acquisition, the procedure authorised by law has to be mandatorily and compulsorily followed.[4]

The importance of right to property (not *constitution*, but legal) was pointed by Justice K.K. Mathew thus:—

> Property is a legal institution, the essence of which is the creation and protection of certain private rights of wealth. The institution performs many different functions, one of these functions is to draw line between public and private power. Property draws a circle around the activities of each private individual or organisation within that circle, the owner has greater degree of freedom than without. Outside he must justify or explain his action and his authority. Within he is the master and the State must explain and justify any interference. People without property have a tendency to become slaves. They become property of others as they have no property themselves.[5]

8. AMENDMENT TO THE CONSTITUTION8.1 Methods of amendment

There are three methods provided in the *Constitution* for its amendment. They are:
(a) *Amendment by a simple majority.—*

There are certain matters *e.g.,* matters in respect of creation of new states or matters requiring reorganisation of states, abolition of Council of States or the State legislatures, qualification for Indian Citizenship etc., with for its amendment require a simple majority in both the Houses of Parliament.
(b) *Amendment by 2/3 majority in Parliament & approval.—*

There are certain matters wherein interests of the states are involved; for example, Election of the President, Powers of the Union and State Executive, Union Judiciary, the list in the VII Schedule, provisions regarding the Supreme Court of India and High Courts and Representation of States in Parliament etc. These matters can be amended by Parliament by a 2/3 majority and that require in addition the approval of the legislatures of 1/2 of the states.
(c) *Amendment by a majority of Total membership of each House and a majority of not less than 2/3 of the members present and voting in each House.—*

Amendment of the rest of the provisions of the *Constitution* can be made by a majority of total membership of each house and a majority of not less than 2/3 of the members present and voting in each House.

The President cannot with hold his assent to the amendments. He can send such amendment bill for reconsideration in the House of Parliament. There is no provision when there is a deadlock. Basic features of the *Constitution*, as shown by the verdict given by the Supreme Court of India, cannot be changed or altered—in any way.
8.2 Scope of amendability

Up to 1972 the issue whether the Fundamental Rights are amendable under *Article 368* was confused. It came before the Supreme Court in three different cases.[6] The Supreme Court held that the word “Law” in *Article 13*(3) includes only an ordinary law made in exercise of the legislative powers; it does not include constitutional amendment which is made in exercise of constituent power. In *Shankari Prasad*[7] it was held that the amendment of the *Constitution* means an amendment of all the provisions of the *Constitution*. In the *Golaknath* case[8] the Supreme Court reversed its earlier decision in the *Shankari Prasad* and *Sajjan Singh* cases and held that the Parliament has no power from the date of this decision to amend Pt III of the *Constitution*. It also held that the Parliament could not take away or abridge the Fundamental Rights even through a *Constitution* Amendment Act passed under *Article 368*.

The decision in *Golak Nath’s case*[8a] was reviewed by the Supreme Court in *Keshavanand’s* case[9] wherein it held that the *Article 368* itself contained the power to amend the *Constitution* and the law declared in *Golaknath* case was overruled. Again a question was posed whether this power of amendment was absolute or unlimited. And the 7 judges by a majority held that the amending power under *Article 368* was subject to implied limitation. Thus it held that the amending power of Parliament was wide, it extends to all the articles; but it is not unlimited and it does not include the power to abrogate or destroy the basic features or the framework of the *Constitution*. Then, what are these basic features? The answer to this question remains an open question.[10]

In determining whether a particular feature is a part of a basic structure, “one has to perforce to examine in each individual case the place of the particular feature in the scheme of our *Constitution*, its object and purpose, and the consequences of its denial on the integrity of the *Constitution* as a fundamental instrument of country’s governance.[11] It was held that a constitutional principle to qualify as an essential feature, it must be established that this said principle is a part of the constitutional law binding on the legislature. Only thereafter the second step is to be taken, namely, whether the principle is so fundamental as to bind even the amending power of the Parliament, *i.e.*, to form part of the basic structures. This is the standard of judicial review of *Constitution* of amendment in context of basic structure.

Secularism is the principle which is the overarching principle of several rights and values under the Indian *Constitution*. Therefore, axioms like secularism, democracy, reasonableness, social justice etc. are overarching principles which provides linking factor for principle of fundamental rights like *Articles 14*, *19* and *21*. These principles are beyond the amending power of Parliament. They pervade all enacted laws and they stand at the pinnacle of the hierarchy of constitutional values. Under the Indian *Constitution*, the word “federalism” does not exist in the Preamble. However its principle is delineated over various provision of the *Constitution*. The theory of basic structure is based on the concept of constitutional identity. The basic structures jurisprudence is a pre-occupation of constitutional identity. The main object behind the theory of constitutional identity is continuity and within that continuity of identity, changes are admissible depending upon situation and circumstances of the day. The word “amendment” postulates that the old *constitution* survives without loss of its identity despite the changes and continues even though it has been subject to alteration.

The theory of basic structure is based on the principle that a change in a thing does not involve its destruction and destruction of a thing is a matter of substance and not of form. Therefore, one has to apply the test of overarching principle to be gathered from the scheme and the placement and the structure of an *Article 5* in the *Constitution*. For example, the placement of *Article 14* in the freedom code: the placement of *Article 32* in the code giving access to the Supreme Court. Therefore, the theory of basic structure is the only theory by which the validity of amendment to the constitutional is to be judged.

In *I.R. Coelho v State of TN,*[12] it was observed that framers of the *Constitution* have built a wall around certain parts of the fundamental rights which have to remain forever, limiting ability of majority to introduce upon them. That wall is the “Basic stricture” doctrine. Though the Parliament has power to amend the provision of Pt III so as to abridge or take away fundamental rights, that power is subject to the limitation of basic structure doctrine. The power to amend cannot be equated with the power to frame the *Constitution*. The power to frame the *Constitution* has no limitations or constraints, it is a primary power, a real plenary power. But a power to amend is derived from the power to form the *Constitution*. It has constant of the document, *i.e.*, the *Constitution* which creates it. This derivative power can be exercised within the four corners of what has been conferred on the body constituted, namely the Parliament. The power of amendment under *Article 368* is a derivative power and not unlimited. Hence, the basic features cannot be amended. Though amendments may affect the ordinary principles of equality, the basic features of the *Constitution* cannot be amended.[13] It was held therein that core constitutional values or overarching principles fall outside the amendatory power under *Article 368* and the Parliament cannot amend the *Constitution* to abrogate these principles so as to re-write the *Constitution*.

The Supreme Court held that it is hazardous to define the basic structure of the *Constitution* as what is basic does not remain static for all time to come.[14]

During the working of the *Constitution* certain flows and difficulties were found. As a result of judicial pronouncements especially in regard to fundamental rights, difficulties were experienced—*Article 19*(1)(a) and 19(1)(g). *Article 31* also gave rise to unanticipated difficulties for notwithstanding the provisions of clauses (4) and (6) of this Article the implementation of measures of agrarian reforms enacted by the State legislatures had been held up. To remedy these flows, The *Constitution* (First Amendment) Act, 1951 was passed.

The main object of this Act was to amend the provisions in such a way that progressive legislation in the agrarian field may not be checked. Special provisions for the educational, economic or social development of backward classes were also necessary to be made.[15]*Article 31* was amended and *Articles 31-A* & *31-B* were newly inserted.[16] Besides, this, *Articles 15*(4), 85, 87, 174, 176 were also amended along with other articles.[17] This amendment was made in order to remove difficulties created by several decisions of the Supreme Court; *e.g.*, *Ramesh Thaper v State ofMadras*.[18]
CONSTITUTION AMENDMENTS8.2.1 The Constitution (Second Amendment) Act, 1952

amended *Article 81* by omitting the words and figures “not less than one member for every 7,50,000 of the population.” The minimum requirement of one member for 7.5 lakhs of people in *Article 81*(1)(b) was dropped and only the maximum requirement was retained.
8.2.2 The Constitution (Third Amendment) Act, 1954

has enlarged entry 33 of the Concurrent list to include:

(a) food-stuffs including edible oilseeds and oils;

(b) Cattle fodder, including oil cakes and other concentrates;

(c) raw cotton, whether ginned or unginned and cotton seed; and

(d) raw jute—which are essential commodities.

Besides this imported goods of the same kind as the products of centralised industries have also been brought within the compass of this entry. This amendment somewhat changed the balance of power in favour of the Centre.
8.2.3 The Constitution (Fourth Amendment) Act, 1955

brought about changes in *Articles 31* and *31-A*. This amendment had to be brought because of some decisions of the Supreme Court[19] which gave a very wide meaning to clauses (1) and (2) of *Article 31* as it stood then. According to these decisions, even where deprivation of property was caused by a purely regulatory provision

of law and even where it was not accompanied by an acquisition or taking possession of that or any other property right by the state, the law in order to be valid, had to provide compensation under clause (2) of *Article 31*. This Amendment, in result re-states more precisely the power of the state of compulsory acquisition and requisitioning of private property and distinguishes it from cases where the operation of regulatory or prohibitory laws of the state results in "deprivation of property."

This amendment by making changes in *Articles 31* and *31-A* provided that no property could be compulsorily acquired or requisitioned save for a public purpose and by the authority of law which provided for compensation. It also provided that no such law, shall be called in question in any court on the ground that the compensation provided by that law was not adequate.

The judgment in *Saghir Ahmed's* case[20] raised a question whether an Act providing for states monopoly in a particular trade or business, was in conflict with the freedom of trade and commerce guaranteed by *Article 301*. The court in this case left the question open but it gave an impression that in spite of the clear authority of Parliament or State legislature to introduce State monopoly in a particular sphere of trade or commerce, that law might have to be justified before the courts as being "in public interest" under *Article 301*, or as amounting to a "reasonable restriction" under *Article 304*(b).

The Ninth Schedule was also amended by adding a few matters due to decision of the Supreme Court in *Bela Banerjee's* case.[21]

8.2.4 The Constitution (Fifth Amendment) Act, 1955

provided for a new procedure for ascertaining the will of a state legislature with regard to territorial or boundary changes affecting it. Before this Amendment no bill for the purpose of forming a new state, increasing or diminishing its area or altering its boundaries or name could be introduced in the Parliament, unless the views of the State Legislatures concerned had been ascertained by the President. There was no time limit for this purpose and this could cause delays or even hold up legislation in matters referred to in *Article 3*. The President is now given powers to fix the time limit or to extend it.

8.2.5 The Constitution (Sixth Amendment) Act, 1956

amends the Seventh Schedule by adding Entry 92-A after Entry 92 in the Union List and substituting Entry 54 in the State List. It also amends *Articles 269* and *286*. The amendment deals with taxation on inter-State trade or commerce. The object of this amendment is to give effect to the recommendations of the commission as regards the amendment of the constitutional provisions relating to sales tax.[22]

The following amendments have been brought about by the Sixth Amendment Act, 1956:

(a) In the Union list a new entry 92-A has been added which places taxes on inter-State sales and purchases within the exclusive legislative and executive power of the Union and makes entry 54 of the State List (tax on sale and purchase of goods) "subject to the provisions" of the new entry 92-A;

(b) although taxes on inter-State sales and purchases will be levied and collected in accordance with an Act of Parliament. The proceeds of such tax will not form part of the Consolidated Fund of India, but will accrue to the State themselves in accordance with such principles of distribution as may be formulated by the Parliament by law;

(c) The Parliament has been empowered to formulate by law principles for determining when sale or purchase of goods takes place in the course of inter-State trade or commerce;

(d) The Parliament has also been empowered to formulate principles for determining when a sale or purchase of goods takes place:

  (1) outside a state, or

  (2) in the course of import, or

  (3) in the course of export.

(e) Under the revised clause (3) of *Article 256*, the Parliament has been empowered to declare by law the goods which are of special importance to inter-state trade or commerce and also to specify the restrictions and conditions to which any state law (whether made before or after the Parliamentary law) will be subject in regard to the system of levy, rates and other incidents of the tax on the sale or purchase of such goods.

8.2.6 The Constitution (Seventh Amendment) Act, 1956

In order to implement the scheme of the States reorganisation, it was necessary to make numerous amendments in the *Constitution* with effect from the 1 October 1956. Some other amendments to certain provisions of the *Constitution* relating to the High Courts and High Court Judges, the executive power of the Union and the States and a few entries in the legislative lists are also made, the reasons for making the amendments appear in the statements of objects and reasons.[23]

In consequence of this amendment by the *States Reorganisation Act, 1956* and the Bihar and West Bengal (Transfer of Territories) Act, 1956 the territorial basis of the Union Pt B and Pt C states were abolished along with the institution of Rajpramukh and a new category of States called the Union Territories were brought into existence, overhauling the *Constitution*.

8.2.7 The Constitution (Eighth Amendment) Act, 1959

This amendment was assented on 5 January 1960 and came into force on the date of assent. The object of this amendment is to provide for the extension of the reservation of seats for the Scheduled Casts and Scheduled Tribes and representation by nomination of the Anglo-Indians in the House of the People and the State legislative Assemblies for another ten years, that is upto 1970.

8.2.8 The Constitution (Ninth Amendment) Act, 1960

According to agreements between the Government of India and Pakistan, dated 10 September 1958, 23 October 1959 and 11 January 1960 certain boundary disputes relating to the borders of the States of Assam, Punjab and West Bengal and the Union Territory Tripura were settled. And according to the Advisory Opinion of the Supreme Court,[24] the above settlements were given effect to the transfer of these territories. In other words the 9th Amendment Act, 1960 modified the description of boundaries contained in the First Schedule of the *Constitution* of the States of Assam, Punjab, West Bengal and the Union Territory of Tripura.[25]

8.2.9 The Constitution (Tenth Amendment) Act, 1961

In deference to the desire and request of the people of Free Dadra and Nagar Haveli for integration of their territories with the Union of India, the Government of India decided that these territories should form part of the Union of India.[26] The First Schedule to the *Constitution* and *Article 240*(1) were accordingly amended and this amendment became effective on 16 August 1961.

8.2.10 The Constitution (Eleventh Amendment) Act, 1961

was asserted on 19 December 1961 and came into force on the same date. It was enacted to prevent election of the President or the Vice President from being challenged on the ground of any vacancy existing at the time election in the appropriate electoral college. *Articles 66* and *71* were amended accordingly.

8.2.11 The Constitution (Twelfth Amendment) Act, 1962

By this amendment the territory of Goa, Daman and Diu, which was formerly a Portuguese colony was integrated into India as a Union Territory. This amendment was asserted on 27 March 1962 and came into force on 20 December 1961.[27]

8.2.12 The Constitution (Thirteenth Amendment) Act, 1962(assented on 28 December 1962, and came into force on 1 December 1963)

As a result of an agreement reached by the Government of India and the leaders of the Naga Peoples Convention, it was decided that Naga-Hills. Thensang Area (Nagaland), which is at present a Part- “B” Tribal area within the State of Assam will be now formed into a separate state in the Union of India. By the *State of Nagaland Act, 1962* this area is the new State of Nagaland. As a result of the 13th Amendment a new provision, *Article 371A* was added to the *Constitution* as to make certain special provisions for the governance of the State of Nagaland (effective from 01 December 1963).

8.2.13 The Constitution (Fourteenth Amendment) Act, 1962.(in force from 28 December 1962)

With the ratification of the treaty of cession by the Government of India and France, on the 16th August, 1962, the French establishments of Pondicherry, Karaikal, Mahe and Yaman became territories of the Indian Union with effect from that date.

8.2.14 The Constitution (Fifteenth Amendment) Act, 1963(in force from 5 October 1963)

By this amendment *Articles 124*, *128*, *217*, *222*, *224*, *224A*, *226*, *297*, *311*, *316* and the Seventh Schedule to the *Constitution* in List 1 (Entry 78) were amended. This amendment raised the retiring age of Judges of State High Courts from 60 to 62 years and amended *Article 311* relating to dismissal, removal or reduction in rank of

persons employed in Civil Capacities under the Union or State. It also made provision for service of one show-cause notice to the delinquent civil servant.

Some other provisions were made in respect of High Courts and their Judges regarding payment of compensatory allowance to a Judge on his transfer, appointment of a retired High Court Judge to sit and act as a Judge of a High Court— and jurisdiction of a High Court.[28]

Power has been given to make acting (officiating) arrangements in the vacancy of a Chairman of a Public Service Commission on account of leave or otherwise of the permanent Chairman.

8.2.15 The Constitution (Sixteenth Amendment) Act, 1963(in force from 5 October 1963).

This amendment empowers the Government to take action against secessionist propaganda and other such activities. Provision has also been made that candidates standing for election to Parliament and the State legislatures, Ministers and Judges of the Supreme Court and High Courts should affirm allegiance to the Country's "Sovereignty and integrity." Besides this the secessionist propaganda and activities are excluded from freedom of speech and expression.[29] Third Schedule of the *Constitution* has also been modified.

8.2.16 The Constitution (Seventeenth Amendment) Act, 1964

The expression "estate" had been defined differently in different states. Difficulties were experienced in this regard by states while acquisitioning property. This amendment therefore modifies the definition of "estate" contained in *Article 31-A*. Addition of another proviso to clause (1) was also made to provide for suitable compensation where a state acquired any estate. This amendment adds 44 additional state enactments relating to land reform in the Ninth Schedule with a view to clarifying that the said enactments will not be deemed to be void on the ground that the same are inconsistent with any provisions of Pt III of the *Constitution* relating to Fundamental Rights.

The Constitutional validity of this amendment was challenged and upheld in *SajjanSingh v State of Rajasthan*.[30]

This amendment is in force from 20 June 1964.

8.2.17 The Constitution (Eighteenth Amendment) Act, 1966(in force from 27 August 1966)

By this amendment explanations to *Article 3* were added, clarifying that the "state" in clauses (a) to (e) of *Article 3* (but not the proviso) includes "Union Territories". Besides this, it was clarified that the power under clause (a) of *Article 3* includes power to form a new State or Union Territory by uniting part of a State or Union Territory to another State or Union territory. The Amendment facilitates the re-organisation of Punjab on linguistic basis into Punjab and Haryana and creates the Union Territory of Chandigarh.

8.2.18 The Constitution (Nineteenth Amendment) Act, 1966(in force from 11 December 1966)

*Article 324**inter alia* provided that appointments of Election Tribunals for deciding doubts and disputes arising in connection with elections to the Parliament and to State Legislatures would rest in the Election Commission. This amendment does away with the need for appointing Election Tribunals by the Election Commission and provides in the *Representation of the People Act, 1951* that election petitions shall be tried and decided by High Courts. Thus, the power of setting up election tribunals by the Election Commission was withdrawn by this amendment.

8.2.19 The Constitution (Twentieth Amendment) Act, 1966

To overcome difficulties created in functioning of the subordinate judiciary in the State of Uttar Pradesh as a result of the Supreme Court's decision in *ChandraMohan's* case,[31] this amendment was made. The present amendment validates the judgments, decrees, orders and sentences passed or made here to before by all such district judges whose appointments were invalidated. The Amendment also validates the appointment, posting, promotion, and transfer of such District judges barring of those who were not qualified for appointment under *Article 233*(2).

8.2.20 The Constitution (Twenty First Amendment) Act, 1967

(in force from 10 April 1967) amended the Eighth Schedule to the *Constitution* by including sindhi as one of the fifteen languages. The Seventy First Amendment Act, 1992, added Konkani, Nepali and Manipuri to make the member 18.[32] The Ninety-second Amendment Act, 2003 added Bodo, Dogri, Maithili and Santhali to make the number 22.

8.2.21 The Constitution (Twenty Second Amendment) Act, 1969

(in force from 25 September 1969) enabled the Parliament to form by law, an autonomous state comprising

certain tribal areas in the State of Assam and to create local legislature or Council of Ministers of both therefore.[33]

8.2.22 The Constitution (Twenty third Amendment) Act, 1969

extended the safeguards granted to Scheduled Castes and Scheduled Tribes by ten more years. In consequence *Articles 334*, *333*, *330* and *332* were amended. The amendment is in force from 23 January 1970.

8.2.23 The Constitution (Twenty Fourth Amendment) Act, 1971(in force from 5 November 1971).

In the well- known case of *Golak Nath*.[34] The Supreme Court had ruled that a Constitutional Amendment under *Article 368*, which "takes away or abridges" a Fundamental Right would be void. As a counter to this decision, the Parliament enacted this 24th Amendment, 1971, to claim power to amend any part of the *Constitution* including the Fundamental Rights. The Amendment added clause (4) to *Article 13* saying that this Article would not apply to an amendment of the *Constitution* made under *Article 368*. *Article 368* was also amended to make it clear that the bar in *Article 13* abridging, or taking away any of the Fundamental Rights does not apply to constitutional amendments made under *Article 368*.

8.2.24 The Constitution (Twenty Fifth Amendment) Act, 1971

(in force from 20 April 1972) amends *Article 31* and inserts *Article 31-C* after *Article 31-B*. The word "Compensation" was replaced by the word "amount." No law was to be called in question on the ground that the amount fixed for property acquired was not adequate. This Amendment was made following the Bank Nationalisation case.[35]

8.2.25 The Constitution (Twenty Sixth Amendment) Act, 1971(in force from 28 December 1971)

The concept of rulership with privy purses and special privileges unrelated to any current functions or social purposes attached to it is incompatible with an egalitarian social order. The Government therefore decided to terminate the privy purses and privileges of the rulers of former Indian States. It was necessary for this purpose, apart from amending the relevant provisions of the *Constitution*, to insert a new article therein so as to terminate expressly the recognition already granted to such rulers and to abolish privy purses and extinguish all rights, liabilities and obligations in respect of privy purses.[36]

To get over the ruling in *Madhav Rao Scindia's* case,[37] this amendment was made. It was a fitting step as rulers do not find a place in a democratic set up. Consequently *Articles 291* and *362* were omitted and a new provision abolishing the institution of rulership and privy purses payable to them was added to the *Constitution*. *Article 366*(22) was now recast and definition of ruler was explained and amendment.

The validity of this amendment was challenged but the Supreme Court in *Raghunath Rao* case[38] upheld the same. The Court declared that the Twenty Sixth Amendment did not infringe the basic structure or essential features of the *Constitution*.

8.2.26 The Constitution (Twenty Seventh Amendment) Act, 1971

(Sections 1 and 3 came into force from 30 December 1971 and Sections 2, 4 and 5 on 15 February 1972)

This Amendment gives effect to the Scheme of reorganisation of the North Eastern Areas. *Article 239A* now therefore includes the Union Territory of Mizoram. Mizoram which had been made a Union Territory by this amendment was elevated to the status of a state by the *State of Mizoram Act, 1986*. A new Article 293B was also added so as to confer power on the Administrators of Goa, Daman and Diu, Pondicherry and Mizoram to promulgate ordinances.

8.2.27 The Constitution (Twenty Eighth Amendment) Act, 1972(in force from 29 August 1972)

Article 314 guaranteed to the members of the Indian Civil Service (existing before Independence), the same conditions of service as they were entitled to before the commencement of the *Constitution*. The Article kept this in fact. But the concept of a class of officers with immutable conditions of service is incompatible with the democratic set up and the changed social conditions. It was therefore necessary to provide for the deletion of *Article 314* and for the inclusion of a new *Article 312A* which confers powers on Parliament to vary or revoke by law the conditions of service of the aforesaid officers and to make appropriate consequential and incidental provisions.

8.2.28 The Constitution (Twenty Ninth Amendment) Act, 1972(in force from 9 June 1972)

By this amendment two Kerala Acts dealing with the land reforms were included in the Ninth Schedule and thus they received the protection of *Article 31-B* and any uncertainty or doubt that may arise in regard to the validity of those acts is now removed.

8.2.29 The Constitution (Thirtieth Amendment) Act, 1972 (effective from 27 February 1973)

By this amendment *Article 133* was recast. It redefined the civil appellate jurisdiction of the Supreme Court and dropped the valuation test. According to the amendment, an appeal now lies to the Supreme Court if the High Court certifies that the case involves a substantial question of law which needs to be decided by the Supreme Court. As a result while any case involving an important question of law can reach the Supreme Court by way of appeal, a case howsoever large the amount involved therein, but involving no substantial point of law, would fail to reach the Supreme Court. Special provisions as to pending proceedings were also made.

8.2.30 The Constitution (Thirty First Amendment) Act, 1973

(in force from 17 October 1973), amends *Articles 81*, *330* and *332*. It increases the strength of the Lok Sabha from 525 to 545 and thus accommodates the increase in population as revealed by the 1971 census. The provisions of *Article 330* have been made inapplicable to the State of Nagaland, Meghalaya, Arunachal Pradesh and Mizoram on the ground that it has a predominantly tribal population.

8.2.31 The Constitution (Thirty Second Amendment) Act, 1973

(effective from 1 July 1974) was enacted to make a few special provisions for the State of Andhra Pradesh to satisfy the aspirations of the people of Telengana region. When the State of Andhra Pradesh was formed in 1956 certain safeguards were envisaged for the Telengana area in the matter of development and employment opportunities and educational facilities for the residents of that area. Accordingly *Article 371*(1) was made to incorporate these safeguards and the Public Employment (Requirement as to residence) Act, 1957 was enacted. The Supreme Court held the relevant provisions of this Act to be unconstitutional. Moreover the working of these safeguards created problems and dissatisfaction. In order to resolve these problematic difficulties, the present amendment was made. The amendment did away with the Regional Committees previously constituted under *Article 371*(1) and provided *inter alia* for the *Constitution* of an Administrative Tribunal to deal with the disputes relating to public services.

8.2.32 The Constitution (Thirty Third Amendment) Act, 1974

(in force from 19 May 1974) amended *Articles 101* and *190*. *Articles 101*(3)(b) and 190(3) permitted members of Parliament and of the State Legislatures to resign from their seats in writing addressed to the respective Presiding Officers. The element of acceptance by the Presiding Officer before resignation became effective was absent. This has since been provided for. Besides this there had been instances where coercive measures were resorted to for compelling members of certain Legislative Assemblies to resign thus making it difficult for the legislatures to function. This amendment therefore imposes a requirement that resignation of a member shall not be accepted by the Presiding Officer (Speaker or Chairman) if he is satisfied after making such inquiry as he thinks fit that the resignation is not voluntary or genuine.

8.2.33 The Constitution (Thirty Fourth Amendment) Act, 1974 (effective from 7 September 1974)

By this amendment, twenty more Acts made by state legislatures relating to land reforms or ceiling on land holdings have been added to the Ninth Schedule so as to put them under the protection of *Article 31-B* and beyond judicial scrutiny.

8.2.34 The Constitution (Thirty Fifth and Thirty Sixth Amendment) Act, 1975 (in force respectively from 1 March 1975 & 16 April 1975).

The *Constitution* 35th Amendment Act, 1974 introduced an innovation in the *Constitution* by conferring on Sikkim the status of an associate in the Indian Union. This has the effect of strengthening Indo-Sikkim co-operation and inter relationship. Due to this, the new Schedule X was added. Representation of Sikkim in the Lok Sabha and Rajya Sabha was also provided. This amendment was short -lived because the people of Sikkim wanted to become an integral part of India; and this was provided by the *Constitution* (Thirty Sixth Amendment) Act, 1975 which conferred full-fledged statehood on Sikkim. By the 35th Amendment a new *Article 2A* was inserted and 10th Schedule was newly added. *Articles 80* and *81* were amended for the purpose. The 36th Amendment inserted new *Article 371F* and amended the First Schedule and the Fourth Schedule, besides consequential amendments in *Articles 80* & *81*. It dropped *Article 2A* and the Tenth Schedule.

8.2.35 The Constitution (Thirty Seventh Amendment) Act, 1975 (effective from 3 May 1975).

This amendment upgraded The Status of Arunachal Pradesh as a Union Territory. *Articles 239-A* and *240* were amended for this purpose. This amendment confers power upon Parliament to create by law, Legislatures and Councils of Ministers for union territories of Goa, Daman and Diu, Pondicherry and Mizoram. Arunachal Pradesh is also included in the Article. The union territory of Arunachal Pradesh will therefore also have a legislative Assembly and a Council of Ministers. Under *Article 240* the President is empowered to make regulations for the peace, progress and good government of a Union Territory. That article has been amended

to retain the power of the President to make such regulations when the Assembly of Arunachal Pradesh is either dissolved or its function suspended.

8.2.36 The Constitution (Thirty Eighth Amendment) Act, 1975, (in force from 1 August 1975)

This Amendment Act was enacted during emergency (1975-1977) to make certain modifications in the emergency provisions. This Act amended *Articles 123*, *213*, *239* -B, 352, 356, 359 and 360 and made the subjective satisfaction of the President and the Governor final and conclusive and beyond scrutiny in a court of law changes in this context were made in the emergency provisions.[39]

The generis and effect of the Amendment as explained in the statement of objects and reasons appended to the Amendment Bill are as follows:

> *Article 123* empowers the President to promulgate Ordinances when both the Houses of Parliament are not in session if he is satisfied that circumstances exist rendering it necessary to take immediate action. Corresponding powers have been conferred by the *Constitution* on the Governor under *Article 213*. Similar powers have been conferred on the Administrator under *Article 239B* when the Legislature of a Union territory is not in session. On the plain language of *Articles 123*, *213* and *239B* there is no doubt that the satisfaction mentioned in those articles is subjective satisfaction and that it is not justiciable. There is no doubt that, this was also the intention of the makers of the *Constitution*. However, litigation is pending involving the justiciability of this issue and contentions are being raised that the issue is subject to judicial scrutiny. To place the matter beyond doubt, it is proposed to provide in the *Constitution* that the satisfaction of the President, Governor of Administrator shall be final and conclusive and shall not be questioned in any court on any ground.
>
> *Article 352* empowers the President to declare Emergency if he is satisfied that the security of India or any part of it is threatened by war, external aggression or internal disturbance. *Article 356* empowers the President to assume to himself the functions of the Government of a State if the constitutional machinery in any State fails and the Government in the State cannot be carried on in accordance with the *Constitution*. Likewise *Article 360* empowers the President to declare Financial Emergency if he is satisfied that the financial stability of India is threatened. Here again, the issue regarding satisfaction is, on the face of the articles, clearly not justiciable. However, as the validity of the Proclamation issued under *Article 352* has been challenged in several proceedings and as litigation of this nature involves waste of public time and money, it is proposed to amend these three *Articles 352*, *356* and *360* so as to make the satisfaction of the President final and conclusive and not justiciable on any ground.
>
> In relation to *Article 352*, contentions have been raised in certain writ petitions that while the original Proclamation of Emergency is in operation no further Proclamation of Emergency could be made thereunder. In order to place the matter beyond doubt it is proposed to make it clear in *Article 352* that the President may issue different Proclamations on different grounds whether or not there is a Proclamation already in existence and in operation.
>
> "When a Proclamation of Emergency is in operation, the President is empowered under *Article 359 of the Constitution* to make an order suspending the right to move any court for the enforcement of such of the rights conferred by Pt III as they may be mentioned in that order. It was intended that the powers conferred by this article should be exercised during an Emergency according to needs of the situation. On the other hand, *Article 358* renders the provisions of *Article 19* automatically inoperative while the Proclamation of Emergency is in operation, and the power to make any law or to take any executive action is not restricted by the provisions of that article. The intention underlying *Article 359* appears to be that when an order is made under clause (1) of that *Article 359* in relation to any of the rights conferred by Pt III and mentioned in the order, the order so made would have for all practical purposes the same effect in relation to those rights as *Article 358* has in relation to *Article 19*. It is, therefore, proposed not to have any difference in language between *Article 358* and the language in respect of those rights only which may be mentioned in the Presidential Order under clause (1) of *Article 359*." The amendment brings the language of *Article 359*(1) in line with that of *Article 358*.[40]

8.2.37 The Constitution (Thirty Ninth Amendment) Act, 1975

(with effect from 10 August 1975) placed the disputes regarding election of High Dignitaries, such as, the President, Vice-President, Prime Minister and the Speaker outside the jurisdiction of the Courts. Special provisions were made for decision in this regard by another authority and no such law could be called in question in a court of law. Besides this, under the new Article, pending proceedings in respect of such election under the existing law have been rendered null and void. It is also provided that the parliamentary law creating

a new forum for trial of election matters relating to the incumbents of the high offices above-mentioned shall not be called in question in any court.

Further, as stated in the Objects and Reasons:

> Recourse was had in the past to the Ninth Schedule whenever it was found that progressive legislation conceived in the interests of the public was imperilled by litigation. It became necessary to have recourse to this device once again. Between 1971 and 1973 legislation was enacted for nationalising coking coal and mines for conserving these resources in the interests of steel industry. These enactments had been brought before courts on the ground that they were unconstitutional. So is the case of sick textile undertakings which were nationalized in 1974. To prevent smuggling of goods and diversion of foreign exchange which affected national economy, Parliament enacted legislation which again had been challenged in the Supreme Court and in High Courts." These and other important and special enactments which it is considered necessary should have the constitutional protection under *Article 31B*, are therefore included in the Ninth Schedule. Certain State enactments relating to land reform and ceiling on agricultural land holdings had already been included in the Ninth Schedule by earlier Amendments. Certain amendments made to these legislations requiring protection of the provisions of *Article 31B*, have also been added to the Ninth Schedule, thus making a total of 124 Acts of Central as well as State Legislatures which are saved from being attacked in courts.

The Thirty-ninth Amendment has come into force on 10 August 1975. It introduces two new articles in the *Constitution*, *Articles 71* and *329A* and puts in the Ninth Schedule several Acts including; (i) The *Representation of the People Act*, 43 of 1951; (ii) The Representation of the People (Amendment) Act, 58 of 1974; and (iii) the Election Laws (Amendment) Act, 40 of 1975. The new *Article 71* which replaces its precursor empowers the Parliaments to pass laws regulating the elections of the President and the Vice-President, including the making of a provision for the decision of disputes relating to their election. *Article 329A* has six clauses out of which the first three deal with the future election to the Parliament of persons holding the office of Prime Minister or Speaker at the time of the election or who are appointed to these offices after their election to the Parliament. These clauses deprive the courts of their jurisdiction to try election petitions in which the election of the Prime Minister or the Speaker to the Parliament is challenged. Clause (4) frees the disputed election of the Prime Minister and the Speaker to the Parliament from the restraints of all election laws. It declares such election as valid notwithstanding any judgment and clause 5 ordains that any appeal or cross appeal pending before the Supreme Court shall be disposed of on the assumption that the judgment under appeal is void, that the findings contained in the judgment never had any existence in the eye of law and that the election declared void by the judgment shall continue to be valid in all respect. Clause 6 provides that *Article 329A* shall have precedence over the rest of the *Constitution*. This amendment thus seeks to the High Court decision voiding the election of Prime Minister Indira Gandhi and declares it to be valid.

8.2.38 The Constitution (Fortieth Amendment) Act, 1976 (in force from 27 May 1976)

This amendment extended immunity to sixty-four Central and State enactments by including them in the Ninth Schedule. Recourse was had in the past to the Ninth Schedule whenever it was found that progressive legislation conceived in the interest of the public was imperilled by litigation. Certain State legislations relating to land reforms and ceiling on agricultural land holdings have already been included in the Ninth Schedule. Certain amendments made to these legislations also require protection of the provisions of *Article 31B* inasmuch as in many cases such enactments have been challenged in courts and courts have granted interim relief which had hampered the implementation of the national land reform policy.

Besides these Acts relating to land reforms certain State enactments relating to private forests require protection of *Article 31B* as these enactments are progressive and beneficial pieces of legislation intended to end the monopoly of vested interests and forest contractors. Some of such legislations have been challenged in courts and as the courts have granted interim reliefs staying the operation of these enactments, the State Governments have not been able to implement these legislations.

Certain Central laws like the *Smugglers and Foreign Exchange Manipulators (Forfeiture of Property) Act, 1976*, the *Urban Land (Ceiling and Regulation) Act, 1976*, the *Essential Commodities Act, 1955* and certain provisions of the *Motor Vehicles Act*, 1939 require protection of *Article 31B*. If these legislations are allowed to be challenged in courts of law thereby delaying the implementation of these laws, the very purpose of enacting these laws would be frustrated and the national economy may be severally affected. These and other important and special enactments which it is considered necessary should have the constitutional protection are proposed to be included in the Ninth Schedule.

8.2.39 The Constitution (Forty First Amendment) Act, 1976

By this amendment the age of retirement of a member of a State Public Service Commission or joint Commission (in *Article 316*) was raised from sixty years as originally provided to sixty -two years. This brings the retirement age of a PSC member on par with that of a High Court Judge.
8.2.40 The Constitution (Forty Second Amendment) Act, 1976 (in force from 7 September 1976)

This amendment is extensive and detailed, making changes in Preamble, Parliament, State legislatures, Privileges of Parliament and State legislatures, Executive, Judiciary, High Court, powers to issue writs, Tribunals, Federalism, Emergency, Fundamental Rights, Fundamental Duties and Government Services. This amendment is mostly based on proposals made by a Committee or panel of the Congress Party headed by Shri Swaran Singh (Swaran Singh Committee). The purpose and intention of this amendment has been stated as under:

> A *Constitution* to be living must be growing. If the impediments to the growth of the *Constitution* are not removed, the *Constitution* will suffer a virtual atrophy. The question of amending the *Constitution* for removing the difficulties which have arisen in achieving the objective of socio-economic revolution, which would end poverty and ignorance and disease and inequality of opportunity, has been engaging the active attention of Government and the public for some years now.
>
> The democratic institutions provided in the *Constitution* are basically sound and the path for progress does not lie in denigrating any of these institutions. However, there could be no denial that these institutions have been subjected to considerable stresses and strains and that vested interests have been trying to promote their selfish ends to the great detriment of public good.
>
> It is, therefore, proposed to amend the *Constitution* to spell out expressly the high ideals of socialism, secularism and the integrity of the nation, to make the directive principles more comprehensive and give them precedence over those fundamental rights which have been allowed to be relied upon to frustrate socio-economic reforms for implementing the directive principles. It is also proposed to specify the fundamental duties of the citizens and make special provisions for dealing with anti-national activities, whether by individuals or associations.
>
> Parliament and the State Legislatures embody the will the people and the essence of democracy is that the will of the people should prevail. Even though *Article 368 of the Constitution* is clear and categoric with regard to the all-inclusive nature of the amending power, it is considered necessary to put the matter beyond doubt. It is proposed to strengthen the presumption in favour of the constitutional legislation enacted by Parliament and State Legislatures by providing for a requirement as to the minimum number of Judges for determining questions as to the constitutionality of laws and for a special majority of not less than two-thirds for declaring any law to be constitutionality invalid. It is also proposed to take away the jurisdiction of High Courts with regard to determination of Constitutional validity of Central laws and confer exclusive jurisdiction in this behalf on the Supreme Court so as to avoid multiplicity of proceedings with regard to validity of the same Central law in different High Courts and the consequent possibility of the Central law being valid in one State and invalid in another State.
>
> To reduce the mounting arrears in High Courts and to secure the speedy disposal of service matters, revenue matters and certain other matters of special importance in the context of the socio-economic development and progress, it is considered expedient to provide for administrative and other tribunals for dealing with such matters while presenting the jurisdiction of the Supreme Court in regard to such matters under *Article 136 of the Constitution*. It is also necessary to make certain modifications in the writ jurisdiction of the High Courts under *Article 226*.
>
> It is proposed to avail of the present opportunity to make certain other amendments which have become necessary in the light of the working of the *Constitution*.

This amendment besides amending the preamble to the *Constitution*, 40 Articles and The Seventh Schedule introduces 14 new Articles in the *Constitution*.

New Articles: 31D, 32A, 39A, 43A, 48A, 131A, 139A, 144A, 226A, 228A, 257A, new part IVA—New *Article 51A*, New Pt XIVA—New *Articles 323A*, *323B* Amended *Articles 31C*, *39*, *74*, *77*, *166*, *55*, *81*, *82*, *170*, *330*, 83, 172, 371F, 100, 118, 119, 208, 100, 191, 103, 192, 105, 194, 145, 150, 217, 225, 226, 227, 228, 311, 312, 330, 352, 353, 358, 359, 356, 357, 366, 368, 83, 172, 226.

The main reasons for these amendments, as stated by the Law Minister on behalf of the Central Government

were to assert supremacy of the Parliament, so much so that its power under *Article 368* was uncontrolled and subject to no judicial review.

The *Constitution* provides for three different kinds of abnormal situations which call for a departure from the normal governmental machinery set up by the *Constitution*. The first kind of emergency is an emergency due to war, *externalaggression* and/or armed rebellion (*Article 352*) called "*national emergency*." The second category is emergency declared due to "*failure of Constitutional machinery inthe States*" (*Article 356*) and the third kind of emergency is "*financial emergency*" (*Article 360*). The first Proclamation of Emergency under *Article 352* was declared by the President on 26 October 1962 in view of the Chinese aggression in the NEFA. The Second proclamation of emergency under *Article 352* was made by President on 3 December, 1971, when Pakistan launched an undeclared war against India. While these two declarations were made on the ground of external aggression the third proclamation under *Article 352* was made on 25 June 1975 on the ground of "internal disturbance." An official version of the reasons which impelled Mrs. Gandhi to assume that "the security of India was threatened by internal disturbances" may be had from India, 1976.[41] This proclamation was revoked on March 21, 1977.[42] By the 42nd Amendment, 1976 the President's satisfaction for the making of a proclamation under *Article 356* had been made immune from judicial review, but the 44th Amendment of 1978 removed that fetter, so that courts may now interfere if the Proclamation is *mala fide*, or the reasons disclosed for making the Proclamation have no reasonable nexus with the satisfaction of the President.[43]

Some of the situations which do not amount to failure of constitutional machinery are discussed in *S.R. Bommai's* case.[44]

No use of *Article 360* has been made till date.
8.2.41 The Constitution (Forty Third Amendment) Act, 1977 (came into force from 13 April 1978)

This Amendment omitted certain articles inserted by the Forty-second Amendment dealing with the jurisdiction of the Supreme Court and the High Courts to review the constitutionality of the laws (Central and State). The relevant articles omitted are 32A, 131A, 144A, 226A and 228A. In addition, *Article 31D* inserted by the Forty-second Amendment which empowered the Parliament to enact certain laws in respect of anti-national activities, also stand omitted. The reasons for the omissions have been spelt out in the Statement of Objects and Reasons, which reads as follows:

> The *Constitution* (Forty-second Amendment) Act, 1976, inserted various articles in the *Constitution* to curtail, both directly and indirectly; the jurisdiction of the Supreme Court and the High Courts to review the constitutionality of laws. *Article 32A* barred the Supreme Court from considering the constitutional validity of any State law in proceedings for the enforcement of fundamental rights unless the constitutional validity of any Central law was also in issue in such proceedings. *Article 131A* gave to the Supreme Court exclusive jurisdiction to decide the constitutional validity of a Central law and thus deprived the High Courts of their jurisdiction in respect of the same. *Article 144A* provided that the minimum number of judges of the Supreme Court who shall sit for the purpose of determining the constitutional validity of any Central law or State law shall be seven and required a special majority of two-thirds for the invalidation of such law. *Article 226A* barred the High Courts from deciding the validity of any Central law and *Article 228A* required that there should be a Bench of at least five judges for determining the constitutional validity of any State law and prescribed a special majority for a judgment invalidating such a law.
>
> 2. It is considered that *Articles 32A*, *131A* and *228A* cause hardship to persons living in distant parts in India. Further, *Article 32A* would lead to multiplicity of proceedings as cases relating to the validity of a State law which could be disposed of by the Supreme Court itself have to be heard first by the High Court. The minimum number of judges in every case wherein the constitutional validity of a law is involved, however unsubstantial the challenge might be, results in valuable judicial time being lost in hearing and rejecting submissions that have no substance. The Supreme Court has, in *Misrilal Jain v State of Orissa*, AIR 1977 SC 1686 expressed the hope that *Article 144A* would engage the prompt attention of Parliament and would be amended so as to leave to the court itself the duty to decide how large a Bench should decide any particular case. In fact, a number of cases have been held up in the Supreme Court and High Courts as a result of the aforementioned articles.
>
> 3. It is, therefore, proposed to omit *Articles 32A*, *131A*, *144A*, *226A* and *228A*. It is also proposed to make special provisions to enable the Supreme Court and High Courts to deal with pending cases in the same manner as if the said articles had been omitted with effect from 1 February 1977 (*viz.*, the date on which those articles were brought into force). Necessary consequential amendments to *Articles 145*, *228* and *366* are also proposed to be made.

4. *Article 31D* confers special power on Parliament to enact certain laws in respect of anti-national activities. It is considered that these powers of Parliament to make laws for dealing with anti-national activities and anti-national associations are of a sweeping nature and are capable of abuse. It is, therefore, proposed to omit, *Article 31D*.

8.2.42 The Constitution (Forty Fourth Amendment) Act, 1978

This Amendment made some significant changes in certain basic provisions in the *Constitution* dealing with fundamental rights, holding of elections, proclamation of emergency, freedom to the media and the independence of the judiciary. All the amendments proposed at the Bill stage were not however passed. The most significant departure made was in the matter of amending *Article 368 of the Constitution*. It was proposed at the Bill stage to amend *Article 368* so as to ensure that changes in the *Constitution* can be made only by way of referendum to the people and not by way of passing of the relevant bills in the Parliament subject to ratification by the State Legislatures. However, this proposal was omitted eventually at the time of passing of the Bill. Nevertheless, the proposal to convert the right to hold property from being a fundamental right into a legal right, which was proposed as an offshoot to the aforesaid proposal for the procedure of referendum to the people, was carried out.

The Statement of Objects and Reasons spelt out at the Bill stage reads as follows:

[a Recent experience has shown that the fundamental rights, including those of life and liberty, granted to citizens by the *Constitution* are capable of being taken away by a transient majority. It is, therefore, necessary to provide adequate safeguards against the recurrence of such a contingency in the future and to ensure to the people themselves an effective voice in determining the form of Government under which they are to live. This is one of the primary objects of this Bill.

2. It is, therefore, proposed to provide that certain changes in the *Constitution* which would have the effect of impairing its secular or democratic character, abridging or taking away fundamental rights, prejudicing or impeding free and fair elections on the basis of adult suffrage and compromising the independence of judiciary, can be made only if they are approved by the people of India by a majority of votes at a referendum in which at least 51% of the electorate participate. *Article 368* is being amended to ensure this.

3. In view of the special position sought to be given to fundamental rights, the right to property, which has been the occasion for more than one amendment of the *Constitution*, would cease to be a fundamental right and become only a legal right. Necessary amendments for this purpose are being made to *Article 19* and *Article 31* is being deleted. It would, however, be ensured that the removal of property from the list of fundamental rights would not affect the right of minorities to establish and administer educational institutions of their choice.

4. Similarly, the right of persons holding land for personal cultivation and within the ceiling limit to receive compensation at the market value would not be affected.

5. Property, while ceasing to be a fundamental right, would, however, be given express recognition as a legal right, provision being made that no person shall be deprived of his property save in accordance with law.

6. A Proclamation of Emergency under *Article 352* has virtually the effect of amending the *Constitution* by converting it for the duration to that of a Unitary State and enabling the rights of the citizen to move the courts for the enforcement of fundamental rights—including the right to life and liberty—to be suspended. Adequate safeguards are, therefore, necessary to ensure that this power is properly exercised and is not abused. It is, therefore, proposed that a Proclamation of Emergency can be issued only when the security of India or any part of its territory is threatened by war or external aggression or by armed rebellion. Internal disturbance not amounting to armed rebellion would not be a ground for the issue of a Proclamation.

7. Further, in order to ensure that a Proclamation is issued only after due consideration, it is sought to be provided that an Emergency can be proclaimed—only on the basis of written advice tendered to the President by the Cabinet. In addition as a Proclamation of Emergency virtually has the effect of amending the *Constitution*, it is being provided that the Proclamation would have to be approved by the two Houses of Parliament by the same majority which is necessary to amend the *Constitution* and such approval would have to be given within a period of one month. Any such Proclamation would be in force only for a period of six months and can be continued only by further resolutions passed

by the same majority. The Proclamation would also cease to be in operation if a resolution disapproving the continuance of the Proclamation is passed by Lok Sabha. Ten per cent or more of the members of Lok Sabha can requisition a special meeting for considering a resolution for disapproving the Proclamation.

8. As a further check against the misuse of the Emergency provisions and to put the right to life and liberty on a secure footing, it would be provided that the power to suspend the right to move the court for the enforcement of a fundamental right cannot be exercised in respect of the fundamental right to life and liberty. The right to liberty is further strengthened by the provision that a law for preventive detention cannot authorise, in any case, detention for a longer period than two months, unless an Advisory Board has reported that there is sufficient cause for such detention. An additional safeguard would be provided by the requirement that the Chairman of an Advisory Board shall be a serving judge of the appropriate High Court and that the Board shall be constituted in accordance with the recommendations of the Chief Justice of that High Court.

9. A special provision is being made guaranteeing the right of the media to report freely and without censorship the proceedings in the Parliament and the State Legislatures. The provision with regard to the breakdown of the constitutional machinery in the States is being amended so as to provide that a Proclamation issued under *Article 356* would be in force only for a period of six months in the first instance and that it cannot exceed one year ordinarily. However, if a Proclamation of Emergency is in operation and the Election Commission certifies that the extension of the President's rule beyond a period of one year is necessary on account of difficulties in holding elections to the Legislative Assembly of the State concerned, the period of operation of the Proclamation can be extended beyond one year. This is subject to the existing limit of three years. These changes would ensure that democratic rule is restored to a State after the minimum period which will be necessary for holding elections.

10. With a view to avoiding delays, it is proposed to amend *Articles 132*, *133* and *134* and insert a new *Article 134A* to provide that a High Court should consider the question of granting a certificate for appeal to the Supreme Court immediately after the delivery of the judgment, decree, final order or sentence concerned on the basis of an oral application by a party or, if the High Court deems fit to do so, on its own motion. Cases of special leave to appeal by the Supreme Court will be left to be regulated exclusively by *Article 136*.

11. The other amendments proposed in the Bill are mainly for removing or correcting the distortions which came into the *Constitution* by reason of amendments enacted during the period of the Internal Emergency.

12. The Bill seeks to achieve the above objects. The notes on clauses explain in detail the various provisions of the Bill.

The various changes made are briefly explained below, subject wise.

8.2.42.1 Matters relating to right to property

Article 19(1)(f).—Under this sub-clause, all citizens were guaranteed the right "to acquire, hold and dispose of property". This right stands withdrawn by omitting this sub-clause.

Articles 30, 31 and 300A.—*Article 31* has been omitted with the result that the protections given thereunder against deprivation or compulsory acquisition of property stand withdrawn. However, a new article (*Article 300A*) has been inserted to ensure that no person is deprived of his property save by authority of law. Thus, the right to hold property gets recognition as a legal right instead of as a fundamental right. The protection granted to educational institutions administered by minorities under the existing proviso to *Article 31*(2) will continue to be available under the newly inserted clause (1A) to *Article 30*. Certain consequential amendments have also been made in *Articles 31A* and *31C*.

8.2.42.2 Preventive detention

Article 22.[*]—(i) The maximum period of preventive detention without reference to the Advisory Board has been reduced from three months to two months.

(ii) The composition of the Advisory Board has been made more specific. Earlier, it was provided that the Advisory Board may consist of persons who are, or have been, or are qualified to be appointed as judges of a High Court. The Amendment provides that the members of the Advisory Board should be serving/retired judges of a High Court. Earlier, the strength of the Advisory Board was not specified. It is now provided that the Board shall consist of a Chairman and not less than two other members, and that the Chairman must be a serving judge of the appropriate High Court.

8.2.42.3 Insertion of a new directive principle

Article 38.—The newly-inserted clause (2) to *Article 38* lays down a directive principle to the States towards minimising inequalities in income and eliminating inequalities in status, facilities and opportunities, not only amongst individuals but also amongst groups of people residing in different areas or engaged in different vocations.

8.2.42.4 Election of President/Vice-President Jurisdiction of the Supreme Court

Article 71.—Under *Article 71* as originally enacted, the Supreme Court had the jurisdiction to inquire into all doubts and disputes arising out of or in connection with the election of the President or Vice-President. The Thirty Ninth Amendment altered this position by amending this article to the effect that the Parliament shall determine the authority or body which may inquire into such doubts and disputes. The Article is now amended so as to restore it to its original position, with the result that such doubts and disputes will be resolved only by the Supreme Court.

8.2.42.5 Advice to the President by the Council of Ministers

Article 74.—Under *Article 74 of the Constitution*, the President has no option except to act in accordance with the advice given to him by the Council of Ministers. The rigour of this provision is now relaxed by the insertion of a proviso to clause (1) in this Article, according to which the President can require the Council of Ministers to reconsider any advice given by them, either generally or otherwise. However, the President must act in accordance with the advice tendered after such reconsideration.

8.2.42.6 Powers of courts restored

Articles 77 and 166.—The Forty-Second Amendment curbed the powers of courts to compel production of rules relating to transaction of the business of the Governments at the Centre and the States, by inserting two new clauses in *Articles 77* and *166*. These two clauses now stand omitted, with the result that the powers of the courts get restored.

8.2.42.7 Restoration of term of Lok Sabha/Assemblies to five years

Articles 83, 172 and 371F.—The term of a Lok Sabha/State Assembly, which was initially fixed at five years, was increased to six years by the Forty-second Amendment. The duration is now restored back to five years by suitable amendments to *Articles 83*, *172* and *371* F.

8.2.42.8 Disqualification of Members

Articles 103 and 192.—Under *Articles 103* and *192* as originally enacted, the power to disqualify a member of the Lok Sabha/State Assemblies vested in the President, subject to the rider that, before giving his decision, the President must obtain the opinion of the Election Commission, and act according to such opinion. The Forty-Second Amendment altered this position by providing that the President shall *consult* the Election Commission before giving his decision. In other words, the President was not bound to act in accordance with the opinion of the Election Commission as was the position before that Amendment. However, the position is now restored to the original state by suitable amendments to *Articles 103* and *192*, with the result that the opinion of the Election Commission is now binding on the President.

8.2.42.9 Promulgation of Ordinances by the President

Articles 123, 213 and 239B.—The Thirty-Eighth Amendment inserted a new clause (4) in *Articles 123*, *213* and *239B*, so as to make the satisfaction of the President to promulgate ordinances when the Houses were not in sessions, non-justiciable. These clauses now stand omitted. Henceforth, the satisfaction of the President to issue such ordinances can be questioned in a court of law.

8.2.42.10 Appellate jurisdiction of the Supreme Court

Articles 132,133, 134,134A and 139A.—The following changes have been made:

(i) The power of the Supreme Court to grant special leave under *Article 132*(2) in cases where the High Court refuses to grant the requisite certificate has been omitted. The result is that cases of special leave to appeal by the Supreme Court will be regulated exclusively under *Article 136*.

(ii) The procedure for the grant of certificate of fitness for appeal to the Supreme Court, by the High Court, has now been separately laid down in the newly inserted *Article 134A*. It has been made incumbent on the High Court to consider the question of granting of certificate (whether under *Article 132*, or *Article 133* or *Article 134*), immediately on the delivery of the judgment, decree, final order or sentence

concerned, either on the basis of an oral application by a party, or, if the High Court deems it fit to do so, on its own motion.

(iii) Under *Article 139A*, the Supreme Court could withdraw cases pending in different High Courts involving substantially the same question of law and dispose it by itself, only if the Attorney-General of India makes an application to that effect. In other words, a party to any such appeal (other than Government) could not move such an application. This article is now amended so as to enable any party to any such case to make a similar application to the Supreme Court.

8.2.42.11 Form of accounts

Article 150.—*Article 150* as originally enacted provided that the Comptroller and Auditor-General of India had the power to prescribe the form in which the accounts of the Union and of the States should be maintained.

The Forty-second Amendment amended this provision and vested the power in the President, and it was prescribed that the President should exercise the power to lay down the form of accounts "after consultation with" the Comptroller and Auditor-General of India. This article is now again amended to the effect that the President should exercise this power "on the advice of" the Comptroller and Auditor-General of India. In other words, the concurrence of the Comptroller and Auditor-General is necessary for the form of accounts.

8.2.42.12 Appointment of judges of High Courts

Article 217.—Under sub-clause (c) of clause (2), inserted by the Forty second Amendment, persons who, in the opinion of the President, are distinguished jurists, were also eligible for appointment as judges of High Courts. This sub-clause has now been omitted. In addition the *Explanation* to *Article 217*(2) has also been amended to remove an anomaly. Under the existing clause (a) of this *Explanation*, any period during which a person has, after becoming an advocate, held judicial office or the office of the member of a Tribunal or any post under the Union or a State, requiring special knowledge of law, will be included in computing the period during which he has been an advocate for the purpose of determining his eligibility for appointment as a judge of a High Court. This provision thus catered to cases where persons started as advocates and then held judicial office, but not *vice-versa*, *i.e.*, who started as a judge without being an advocate and who subsequently became an advocate, *etc.* To remove this anomaly, the existing clause (*a*) of the *Explanation* has been renumbered as clause (*aa*), and a new clause (*a*) has been inserted to provide that, in computing the period during which a person has held judicial office, there shall be included any period, after he has held any judicial office, during which the person has been an advocate or a member of a Tribunal or the holder of any post under the Union or a State requiring special knowledge of law.

8.2.42.13 Jurisdiction of existing High Courts

Article 225.—*Article 225*, as originally enacted, contained a proviso which removed the bar that existed before the commencement of the *Constitution* in respect of the Original Jurisdiction of the High Courts in revenue matters. This proviso was omitted by the Forty-second Amendment. However, the proviso has now been restored.

8.2.42.14 Powers of the High Courts to issue certain writs

Article 226.—*Article 226* was substantially modified by the Forty-second Amendment. However, the article is now restored to its original form, with just one modification. The modification provides that in cases in which an interim order is made *ex parte* on or in any proceedings relating to a petition under *Article 226*, the party against whom such order is made may make an application to the High Court for the vacation of such order and further furnish a copy of such application to the party in whose favour such order has been made or to the counsel of such party. It is also provided that the High Court must dispose of the application within a period of two weeks, failing which the interim order will stand vacated, and that this time-limit of two weeks will be reckoned as follows:

(i) The time-limit will start from the date on which the application is received by the High Court or from the date on which the copy of the application is furnished to the relevant party, whichever is later.

(ii) Where the High Court is closed on the last day of the time-limit period of two weeks, the time-limit will expire at the close of the next day afterwards on which the High Court is open.

8.2.42.15 Powers of superintendence by the High Courts

Article 227.—Under *Article 227*, as originally enacted, every High Court had superintendence over all courts and tribunals throughout the territories in relation to which it exercises jurisdiction. The Forty-second

Amendment curtailed this power, by omitting reference to tribunals, and also by inserting clause (5) which made it clear that nothing in *Article 227* should be construed as giving a High Court any jurisdiction to question any judgment of any inferior court which is not otherwise subject to appeal or revision. *Article 227* now stands restored to its original form due to the amendment of clause (1) as well as the omission of clause (5).

8.2.42.16 Deployment of Armed Forces in the States

Article 257A.—The Forty-second Amendment inserted a new *Article 257A* which empowered the Union to send any armed force or other force of the Union to any State for dealing with any grave situation of law and order in that State. This article now stands omitted.

8.2.42.17 Special provision as to election of the Prime Minister and Speaker

Article 329A.—The Thirty-ninth Amendment inserted a new *Article 329A*, which deprived the courts of their jurisdiction to try election petitions in which the election of the Prime Minister or the Lok Sabha Speaker is challenged. This article has now been deleted, with the result that even the elections to the offices of the Prime Minister and the Speaker can henceforth be challenged in courts. Consequential change has been made in *Article 329* also.

8.2.42.18 Proclamation of Emergency

Article 352.—The provisions of *Article 352* dealing with the Proclamation of Emergency by the President were made more stringent, so as "to provide for various safeguards against abuse of powers under the article," and also to ensure that the powers are not exercised *suo motu*, at the will and pleasure of the President. The changes made are as follows:

- The ground of "internal disturbance" is substituted by the ground of "armed rebellion", so as to exclude the scope of Proclamation of Emergency in cases of internal disturbances not involving armed rebellion.
- The President shall not issue a Proclamation of Emergency unless the Union Cabinet (*i.e.*, the Council consisting of the Prime Minister and other Ministers of Cabinet rank) takes the decision and then communicates in writing to the President that such a Proclamation may be issued.
- A Proclamation of Emergency would require the *post facto* approval of both the Houses of Parliament within a period of one month (instead of two months as provided earlier).
- Such approval must be by way of resolution by both the Houses of Parliament, by a majority of the total membership of each House and not less than two-thirds of the majority of the members present and voting in each House. (Earlier a simple majority would suffice.)
- A Proclamation once approved shall normally be in force for a maximum period of six months. Any continuation beyond this time-limit would require the approval of the Houses through fresh resolutions.
- A Proclamation of Emergency would cease to be operative whenever a resolution to that effect is adopted by the Lok Sabha by a simple majority of the members of the House present and voting.
- Not less than one-tenth of the total membership of the Lok Sabha may, by notice, requisition a meeting of the Lok Sabha for the purpose of considering the continuance of a Proclamation of Emergency.
- The Thirty-Eighth Amendment inserted clause (5) in *Article 352*, so as to make the satisfaction of the President as to the existence of a grave Emergency, final and non-justiciable. This clause has become non-operative in the amended set-up, and has therefore been omitted.

8.2.42.19 Failure of Constitutional Machinery in States

Article 356.—The following changes have been made in *Article 356* in respect of the President's powers to issue a Proclamation in case of failure of constitutional machinery in a State:

- Such a Proclamation will, upon its being approved by resolutions by both the Houses, continue for six months from the date of issue of Proclamation. Upon its being approved likewise on a second occasion it would continue for a further period of six months.
- A resolution with respect to the continuance in force of a Proclamation under the article for any period beyond the expiration of one year from the date of issue of such Proclamation shall not be passed by either House unless a Proclamation of Emergency is in operation on the date of the passing of such resolution, and the Election Commission certifies that the continuance in force of the Proclamation

under the article during the period specified in such resolution is necessary on account of difficulties in holding Assembly elections in that State.

8.2.42.20 Suspension of Article 19 during Emergencies

Article 358.—*Article 358* provided that the provisions of *Article 19* would stand suspended whenever a Proclamation of Emergency is in operation, irrespective of the ground on which such Proclamation has been issued. The article has now been amended to the effect that the suspension will operate only in the case of a Proclamation of Emergency issued on the ground of war or external aggression, and not when it is issued on the ground of armed rebellion. It is also further provided that the suspension of *Article 19* will not apply to—

(i) any law which does not contain a recital to the effect that such law is in relation to the Proclamation of Emergency in operation when it is made; and

(ii) any executive action taken otherwise than under a law containing such a recital.

8.2.42.21 Suspension of Fundamental Rights

Article 359.—*Article 359* empowered the President to suspend the operation of all the fundamental rights conferred under Pt III of the *Constitution*, when a Proclamation of Emergency is in operation. The rigour of this provision has been lessened, by making the following amendments:

(i) The rights conferred under *Articles 20* and *21* will not stand suspended. (At the Bill stage, it was proposed to keep only the right to life and personal liberty under *Article 21* outside the purview of *Article 359*, but eventually *Article 20* was also added).

(ii) The suspension of the enforcement of any right under the article will not apply in relation to the Proclamation of Emergency in operation when it is made or to any executive action taken otherwise than under a law containing such a recital.

8.2.42.22 Financial Emergency

Article 360.—Clause(2) of *Article 360* earlier made reference to clause(2) of *Article 352*. In view of the amendment made to clause(2) of *Article 352*, clause(2) of *Article 360* has been redrafted so as, to make it self-contained. In addition, the finality attached to the satisfaction of the President as to the arising of a financial emergency under clause(5), which was inserted by the Thirty-eighth Amendment, has also been removed, by omitting the said clause(5).

8.2.42.23 Protection of publication of Parliamentary/Legislative proceedings

Article 361A.—This is a new article inserted with a view to protect the Press and the media from being proceeded against for publication of proceedings of Parliament/Legislatures. It provides that no person shall be liable to any proceedings, civil or criminal, in any court in respect of the publication in a newspaper of a substantially true report of any proceedings of either House of Parliament or the Legislative Assembly/Council of any State, unless the publication is proved to have been made with malice. The protection will apply to the media as well. This constitutional protection will not however be available in respect of proceedings of secret sittings.

These amendments apart, corresponding amendments have been carried out in the Ninth Schedule to the *Constitution* also.

8.2.43 The Constitution (Forty Fifth Amendment) Act, 1980

(in force from 25 January 1980) extended the period for reservation for the Scheduled Castes and Scheduled Tribes and the representation of Anglo-Indians by nomination, for a further period of 10 years. The reason advanced for prolongation of this period is that “the reasons” which weighed with the Constituent Assembly in making these provisions for reservation etc. “have not ceased to exist.”

8.2.44 The Constitution (Forty Sixth Amendment) Act, 1982 (in force from 2 February 1983)

This is an important Amendment, dealing exclusively with levy of sales tax on certain types of transactions in respect of which there was considerable litigation. In particular, the genesis for the amendment can be traced to the Supreme Court decision in the *Gannon Dunkerley* case AIR 1958 SC 560 relating to levy of sales tax on works contracts. Similarly, hire-purchase/lease transactions managed to escape the sales tax levy, merely because there was no transfer of property in goods. Sale of foodstuff by an hotelier was also held to be not

liable to sales tax. These apart, sales tax on inter-State movement of goods under the *Central Sales Tax Act* was avoided by the simple expedient of inter-State transfers on consignment basis. To put an end to the controversy and the resultant loss of revenue to the States, the Amendment defines "tax on the sale or purchase of goods", in an exhaustive and comprehensive manner, so as to cover the above transactions. Provision has also been made for levy of tax on consignment transactions.[1] *Articles 269*, *286*, *366* and the Seventh Schedule were accordingly amended with a provision for validation and exemption of transactions already concluded. The gist of the amendments made is as follows:

(i) *Article 269* has been amended so as to empower the levy of tax on consignment of goods. Correspondingly a new Entry (92B) has also been inserted in the Seventh Schedule—List 1—Union List.

(ii) A new clause (29A) is inserted in *Article 366* (Definitions), for defining "tax on the sale or purchase of goods", so as to bring within its ambit, works contracts, hire-purchase transactions, lease transactions, service of food, etc., in hotels/restaurants, *etc.*

8.2.45 The Constitution (Forty-Seventh Amendment) Act, 1984 (in force from 26 August 1984)

This Amendment merely seeks to include certain State Acts relating to land reforms in the Ninth Schedule in order to make them immune to any attacks as to their constitutional validity.[2]

8.2.46 The Constitution (Forty-Eighth Amendment) Act, 1984 (in force from 26 August 1984).

This Amendment deals with a peculiar and isolated situation relating to the State of Punjab where a Presidential Proclamation under *Article 356* was in operation from 6 October 1983. The Statement of Objects and Reasons, which reads as follows, explains the necessity for the amendment:

> The Proclamation issued by the President under *Article 356 of the Constitution* on the 6th day of October, 1983 with respect to the State of Punjab cannot be continued in force for more than one year unless the special conditions mentioned in clause (5) of *Article 356 of the Constitution* are satisfied. Although the Legislative Assembly is in suspended animation and a popular Government can be installed, having regard to the prevailing situation in the State, the continuance of the Proclamation beyond 5th October, 1984 may be necessary. To facilitate the adoption of a resolution by the two Houses of Parliament approving the continuance in force of the Proclamation beyond 5th October, 1984, it is necessary to amend *Article 356 of the Constitution*. It is therefore proposed to amend clause (5) of *Article 356* so as to make the conditions mentioned therein inapplicable for the purposes of the continuance in force of the said Proclamation up to a period of two years from the date of its issue.

8.2.47 The Constitution (Forty-Ninth Amendment) Act, 1984

(effective from 1 April 1985) amends *Article 244*, Fifth and Sixth Schedule. The purpose of this amendment is to take out the Tribal areas of Tripura from Schedule V and put them in Schedule VI.

8.2.49 The Constitution (Fiftieth Amendment) Act, 1984 (effective from 11 September 1984)

This Amendment enlarges the scope of the powers of the Parliament under *Article 33* to modify the fundamental rights conferred on certain persons. Earlier, such power could be exercised only in respect of members of the Armed Forces or the Forces charged with the maintenance of public order. The Amendment ropes in two other categories of persons, as explained in the Statement of Objects and Reasons, which reads as follows:

> By *Article 33 of the Constitution*, Parliament is empowered to enact laws determining to what extent any of the rights conferred by Pt III of the *Constitution* shall, in their application to the members of the Armed Forces or the Forces charged with the maintenance of public order, be restricted or abrogated so as to ensure the proper discharge of their duties and the maintenance of discipline among them.

8.2.50 The Constitution (Fifty-First Amendment) Act, 1984

(came into force on 16 June 1986) effectuates some changes *Articles 330* and *332* with a view to provide for reservation of seats in the Lok Sabha/State Assemblies for Scheduled Tribes in Meghalaya, Arunachal Pradesh, Nagaland and Mizoram. This amendment was undertaken to satisfy the aspirations of the local tribal population. The purpose of this amendment is to ensure that the members of the Scheduled Tribes in these

areas do not fail to secure a minimal representation because of their inability to compete with the advanced sections of the society.

8.2.51 The Constitution (Fifty-Second Amendment) Act, 1985 (in force from 1 March 1985).

This amendment is popularly known as “Anti Defection Law.” Its main aim is to outlaw defection of members of Parliament/Assemblies from one political party to another.

The object of anti-defection is sought to be achieved through the following provisions:

(i) Insertion of two new clauses in *Articles 102* and *191*, under which a person shall be disqualified for being a member of Parliament/Legislative Assembly, if he is so disqualified under the Tenth Schedule.

(ii) Insertion of the Tenth Schedule which spells out in sufficient detail the circumstances under which the penalty of disqualification will operate, and also the exceptional situations where such disqualification will not operate. The contents of this Schedule are briefly explained below:

Para 2.—This paragraph outlines the circumstances under which a member could be disqualified, and for this purpose, categories the members into (*i*) elected members belonging to a political party, (*ii*) other elected members, and (*iii*) nominated members.

— Under sub-para (1), an elected member belonging to a political party will be disqualified in two situations *viz.,* (i) when he voluntarily gives up his membership of such political party, or (ii) when he violates the party’s directives relating to voting without prior permission of the party, and such violation has not been condoned by that party.

— Under sub-para (2), an elected member not belonging to any political party (in other words an independent as popularly known) will be disqualified if he joins any political party after election.

— Under sub-para (3), a nominated member will be disqualified if he joins any political party after the expiry of six months from the date on which he takes his seat and takes the oath/affirmation under *Article 99*/*188*.

Paras 3 and 4.—These two paragraphs outline the exceptional situations under which the disqualification provision will not operate:

Situation 1—Split in the party.—If there is a split in the original political party, resulting in a group representing a faction, and that group comprises at least one-third of the members of such legislature party, the members of that group will not suffer disqualification. (*Para 3*)

Situation 2—Merger of parties— When one political party (say *x*) merges with another party (say *y*), and a member belonging to x claims that he or any other member of x (i) have become members of y, or of a new political party formed by such merger, or (ii) have not accepted the merger and have opted to function as a separate group, the disqualification provision will not operate against such members. *(Para 4)*

Para 5.—This is a saving provision applicable to Speaker/Deputy Speaker/Chairman/Deputy Chairman, who when elected to such a post, must voluntarily give up the membership of the political party to which they belong. In their cases, the disqualification provision will not operate.

8.2.52 The Constitution (Fifty-Third Amendment) Act, 1986

(in force from 20 February 1987).—This Amendment inserts a special provision (*Article 371G*) with respect to the State of Mizoram, pursuant to the Memorandum of Settlement on Mizoram dated 30 June 1985. The Statement of Objects and Reasons reads as follows:

1. On the 30th June, 1986, a Memorandum of Settlement on Mizoram was signed by the Government of India and the Government of Mizoram with the Mizo National Front which envisages among other things the conferment of statehood on the Union territory of Mizoram subject to the other stipulations contained in the Memorandum. Para 4.2 of the Memorandum provides that to give effect to the decision all the necessary legislative and administrative measures will be undertaken, including those for the enactment of Bills for the

amendment of the *Constitution* and other laws for the conferment of Statehood as aforesaid, to come into effect on a date to be notified by the Central Government.

2. Para 4.3 of the Memorandum provides as follows—

> Acts of Parliament shall not apply to the new State of Mizoram unless so decided by the Mizoram Legislature with regard to—
>
> (i) religious or social practices of Mizos;
>
> (ii) Mizo customary law and procedure;
>
> (iii) administration of civil and criminal justice involving decisions according to Mizo customary law;
>
> (iv) ownership and transfer of land.
>
> The above provision will not, however, apply in the case of Central Acts which are in force in the Union territory of Mizoram immediately before the date on which the *Constitution* (Amendment) Act comes into force.

3. The Memorandum also provides that the Legislative Assembly of the proposed new State of Mizoram will consist of not less than forty members.

4. As the matters specified in paras 2 and 3 are peculiar to the proposed new State of Mizoram, provisions with respect thereto have to be made in the *Constitution* itself. This Bill accordingly seeks to amend the *Constitution* to provide for the aforesaid matters. A separate Bill for the establishment of the new State relatable to *Article 2* is also being introduced.

8.2.53 The Constitution (Fifty-Fourth Amendment) Act, 1986

(came into force on 1 April 1986).—The purpose underlying this Act is to increase the salaries of the Supreme Court and High Court judges. These salaries remained static since 1950— despite high inflation. This amendment doubles their salaries amending *Articles 125* and *221* and also the Second Schedule.

The increased salaries would be as under:

Salaries before amendment		Salaries after amendment
Chief Justice of India	Rs. 5,000 p.m.	Rs. 10,000 p.m.
Judges of the Supreme Court	Rs. 4,000 p.m.	Rs. 9,000 p.m.
Chief Justice of a High Court	Rs. 4,000 p.m.	Rs. 9,000 p.m.
Judges of a High Court	Rs. 3,500 p.m.	Rs. 8,000 p.m.

8.2.54 The Constitution (Fifty-Fifth Amendment) Act, 1986 (in force from 20 February 1987)

This Amendment confers statehood on Arunachal Pradesh. Because of the sensitive location of the State, the State Governor has been given special responsibility with respect to law and order in the State. For this purpose a new provision *Article 371H* is added to the *Constitution*. The Governor's decision is made final. The validity of anything done by him cannot be called in question on the ground that he ought or ought not to have acted in the exercise of his individual judgment.

The strength of the State Legislative Assembly has been fixed at a minimum of thirty members.

8.2.55 The Constitution (Fifty-Sixth Amendment) Act, 1987 (in force from 30 May 1987)

By this amendment a new constitutional provision *Article 371-I* has been inserted. The strength of the Goa State Legislative Assembly has been fixed at a minimum of 30 members.

8.2.56 The Constitution (Fifty-Seventh Amendment) Act, 1987 (in force from 21 September 1987).

This amendment seeks to reserve seats for the Scheduled Tribes in the Legislative Assemblies of the States of Arunachal Pradesh, Meghalaya, Mizoram and Nagaland. This amendment also adds clause 3A to *Article 332*.

The proposed amendment seeks to provide that if all the seats in the Legislative Assembly of such States in existence on the date of coming into force of this *Constitution* Amendment Act are held by the members of the Scheduled Tribes, all the seats except one shall be reserved for Scheduled Tribes and in any other case such number of seats as bears to the total number of seats a proportion not less than the number of members belonging to the Scheduled Tribes in the existing Assembly bears to the total number of seats in the existing Assembly.

8.2.57 The Constitution (Fifty-Eighth Amendment) Act, 1987 (in force from 9 December 1987)

This Amendment gives constitutional recognition to the publication of an authoritative text of the *Constitution* in the Hindi language by insertion of a new *Article 394A*.

The Statement of Objects and Reasons for this amendment reads as follows:

1. The *Constitution of India* was adopted by the Constituent Assembly in English. A Hindi translation of the *Constitution*, signed by the members of the Constituent Assembly, was also published in 1950 under the authority of the President of the Constituent Assembly in accordance with a resolution adopted by that Assembly.

2. There has been a general demand for the publication of an authoritative text of the *Constitution* in Hindi incorporating therein all the subsequent amendments. It is also imperative to have an authoritative text of the *Constitution* for facilitating its use in the legal process. Any Hindi version of the *Constitution* should not only conform to the Hindi translation published by the Constituent Assembly, but should also be in conformity with the language, style and terminology adopted in the authoritative texts of Central Acts in Hindi. It is, therefore, proposed to amend the *Constitution* so as to empower the President of India to publish under his authority the translation of the *Constitution* in Hindi signed by the members of the Constituent Assembly with such modifications as may be necessary to bring it in conformity with the language, style and terminology adopted in the authoritative texts of Central Acts in the Hindi language. The President would also be authorised to publish the translation in Hindi of every amendment of the *Constitution* made in English.

8.2.58 The Constitution (Fifty-Ninth Amendment) Act, 1988 (in force from 30 March 1988)

This Amendment was necessitated by the situation in Punjab in the year 1988, when emergency was declared due to terrorist activities, and the connected proclamation was due to expire on 10 May 1988. As a more effective measure to curb such activities, a new *Article 359A* was inserted as a special transitory provision applicable to the State of Punjab only. In other words the *raison d'etre* for this amendment was to control the terrorist escalation in Punjab. The amendment made a number of changes in the emergency provisions in the *Constitution* by introducing *Article 359A*, the application of which was limited to Punjab. By this amendment the President could declare emergency in Punjab if he was satisfied that a grave emergency exists and it would create or produce internal disturbance in the whole or any part of the Punjab. It must be noted that the insertion of *Article 359A* brought back the old *Article 352* (as it was before 44th Amendment[3]) whereby emergency could be declared on ground of internal disturbance; but the old provision was resurrected only in relation to the Punjab and not for the rest of India. The amendment proposed and made in *Articles 352*, *358* and *359* are operative only for a period of two years from the commencement of this amendment.

8.2.59 The Constitution (Sixtieth Amendment) Act, 1988 (in force from 20 December 1988)

This Amendment increases the ceiling limit on levy of profession tax by States under *Article 276*(2) from Rs. 250 per annum to Rs. 2500 per annum. The proviso to the clause (2) being no longer relevant, is dropped.

8.2.60 The Constitution (Sixty-First Amendment) Act, 1988 (effective from 28 March 1989)

This Amendment lowers the age of voting in elections to Parliament and State Legislatures from 21 to 18 years. This amendment thus makes the democracy more pervasive—and broad based. The present day youth being literate, enlightened and very much politically conscious gets an opportunity to give vent to his feelings in election.

8.2.61 The Constitution (Sixty-Second Amendment) Act, 1989 (in force from 20 December 1989)

By effecting amendment in *Article 334*, reservation of seats for Scheduled Castes and Scheduled Tribes and representation of the Anglo-Indian community in Lok Sabha and State Legislative Assemblies is extended for ten more years, that is to say up to January 25, 2000.[4] The reasons for extending this period for ten more years are the same as they were before.

8.2.62 The Constitution (Sixty-Third Amendment) Act, 1989 (in force from 6 January 1990)

This Amendment repeals the changes made in *Article 356* by the 59th *Constitution* Amendment Act in relation to Punjab. Consequently the proviso to *Article 356*(5) is repealed and *Article 359-A* is omitted from the *Constitution*. As the Punjab gained normally there was no need for any special powers as regards Proclamation of Emergency.

8.2.63 The Constitution (Sixty-Fourth Amendment) Act, 1990 (in force from 16 April 1990)

This Amendment facilitates the extension of the Proclamation of Emergency in the State of Punjab (due to end on 10 May 1990) for a further period of six months. Ordinarily the proclamation would have ended in 3 years, *i.e.*, 10 May 1990. The Central Government was of the opinion that conditions in Punjab were not conducive to holding elections to the State Legislative Assembly. The representatives of various political parties who attended the All Party Meeting concerned by the Governor of Punjab at Chandigarh were also holding view that before holding elections congenial conditions should be created. The amendment therefore amends clauses (4) and (5) of *Article 356 of the Constitution* so as to facilitate the extension of the said Proclamation, if necessary up to a total period of three years and six months in relation to the State of Punjab. A further period of six months was extended by this amendment.

8.2.64 The Constitution (Sixty-Fifth Amendment) Act, 1990 (effective from 12 March 1992)

This Amendment enlarges the scope of *Article 338*, which deal with constitutional safeguards for Scheduled Castes and Scheduled Tribes. Earlier, *Article 338* provided for the appointment of a special officer for this purpose. The Amendment provides for the *constitution* of a Commission in place of a Special Officer for this purpose. It is felt that a high level five member Commission under *Article 338* will be a more effective arrangement in respect of the constitutional safeguards for Scheduled Castes and Scheduled Tribes than a single Special Officer is at present. It is also felt that it is necessary to elaborate the functions of the said Commission so as to cover measures that should be taken by the Union or any State for the effective implementation of those safeguards and other measures for the protection, welfare and socio-economic development of the Scheduled Castes and Scheduled Tribes and to entrust to the Commission such other functions in relation to the protection, welfare and development and advancement of the Scheduled Castes and Scheduled Tribes as the President may, subject to any law made by Parliament, by rule specify. It is also felt that the reports of the said Commission shall be laid before the Parliament and the Legislatures of the States.

When compared with the relevant proposals at the Bill stage the following changes have been made at the time of passing of the Bill:

(i) The composition of the Commission was increased from three members to five members;

(ii) One of the duties assigned to the Commission, which was not proposed at the Bill stage, is to participate and advise on the planning process of socio-economic development of the Scheduled Castes and Scheduled Tribes, and to evaluate the progress of their development under the Union or any State;

(iii) The Commission has been vested with the powers of a civil court on certain matters.

8.2.65 The Constitution (Sixty-Sixth Amendment) Act, 1990 (effective from 7 June 1990)

This Amendment inserts some more entries in the Ninth Schedule which contains the list of Acts and regulations which are given protection from constitutional challenge on the ground that they violate the Fundamental Rights enshrined in Pt III of the *Constitution*.

In the past, whenever it was found that progressive legislation, conceived in the interest of the public was imperiled by litigation, recourse was taken to the Ninth Schedule. Several State enactments relating to land reforms and ceiling on agricultural land holdings have already been included in the Ninth Schedule. Since the Government is committed to give importance to land reforms, it is decided to include all land reform laws in the Ninth Schedule so that they are not challenged before the courts. The State Governments of Andhra Pradesh, Bihar, Gujarat, Himachal Pradesh, Karnataka, Kerala, Madhya Pradesh, Maharashtra, Orissa, Rajasthan, Uttar Pradesh, West Bengal, Tamil Nadu and administration of the Union Territory of Pondicherry have suggested the inclusion of some of their Acts relating to land reforms in the Ninth Schedule.

Since the amendments to Acts which are already placed in the Ninth Schedule are not automatically immunized from legal challenge, some amending Acts are also proposed to be included in the Ninth Schedule. The Acts which are proposed to be included in the Ninth Schedule have been examined. In order to ensure that

implementation of these Acts is not adversely affected by litigation, it is proposed to include them in the Ninth Schedule.

This Sixty-Sixth Amendment Act by amendment of the Ninth Schedule inserts the following entries after Entry 202 and before the *Explanation i.e.*, Entries nos. 203 to 257 are inserted to make them immune from challenge.
8.2.66 The Constitution (Sixty-Seventh Amendment) Act, 1990 (effective from 4 October 1990)

This Amendment facilitates the extension of the Proclamation of Emergency in the State of Punjab[5] for a further period of six months. [6]
8.2.67 The Constitution (Sixty-Eighth Amendment) Act, 1991 (in force from 1 March 1991)

By this Amendment *Article 356*(4) was again amended to keep the said proclamation in force for five years from the date of its issue *i.e.*, until May 10, 1992.
8.2.68 The Constitution (Sixty-Ninth Amendment) Act, 1991 (effective from 1 February 1992)

This has added two Articles to the *Constitution*, *i.e.*, *Articles 239AA* and *239AB* in order to give a special status to the National Capital of Delhi—a Union Territory. Henceforth it is to be called as the National Capital Territory (NCT). Its administrator is designated as the Lt. Governor. There shall be a Legislative Assembly for NCT. Its members are to be elected directly by the people from territorial constituencies. It will make laws for its administration. But the law so enacted would not be against or contrary to Central Laws. It will have a Council of Ministers. In case of any difference between this Council and Lt. Governor, the matter would be referred to the President.
8.2.69 The Constitution (Seventieth Amendment) Act, 1992 (Section 2 in force from 1 June 1995 and section 3 in force from 21 December 1991)

This Amendment is in a way a continuation of the Sixty-Ninth Amendment dealing with the National Capital of Delhi. It inserts a new sub -clause (b) to clause (7) of *Article 239AA*, after obtaining the necessary ratification by the State Legislature. In addition, it also enlarges the definition of “State” in *Article 54* so as to include the National Capital of Delhi and the Union Territory of Pondicherry, so that the elected members of the Legislative Assemblies of these two territories also get included in the Electoral College for the election of the President.
8.2.70 The Constitution (Seventy-First Amendment) Act, 1992 (in force from 31 August 1992)

This Amendment includes Konkani, Manipuri and Nepali languages in the Eighth Schedule to the *Constitution*. The Statement of Objects and Reasons reads as follows:

1. There have been demands for inclusion of certain languages in the Eighth Schedule to the *Constitution*. It is proposed to include Konkani, Manipuri and Nepali languages in the Eighth Schedule to the *Constitution*. The Bill seeks to give effect to this decision.

2. The Nepali language is also known in some areas as “Gorkha Bhasa”. In the Census operations, other nomenclatures such as “Gorakhali”, “Gorkhi”, “Gurkhiya”, “Khaskura” or “Naipali” have also been used.

8.2.71 The Constitution (Seventy-Second Amendment) Act, 1992 (in force from 5 December 1992)

For restoring peace and harmony in the areas of the State of Tripura where disturbed conditions prevailed, a Memorandum of Settlement was signed by the Government of India with Tripura National Volunteers on 12 August 1988. The said Memorandum provides for a greater share of tribals in the Governance of the State. The said Memorandum envisages amendment of the *Constitution* to provide that notwithstanding anything contained in the *Constitution*, the number of seats in the Legislative Assembly of the State of Tripura reserved for Schedule Tribes shall be, such number of seats as bears to the total number of seats, a proportion not less than the number, as on the date of coming into force of the Constitutional amendment, of members belonging to the Scheduled Tribes in the existing Assembly bears to the total number of seats in the existing Assembly. It also provides that the amendments shall not affect any representation in the existing Assembly of the State of Tripura until its dissolution.

This Amendment thus makes a temporary provision for determination of the number of seats reserved for Scheduled Tribes in State of Tripura, by a suitable amendment to *Article 332 of the Constitution*. The Statement of Objects and Reasons explains the necessity for the amendment as follows:

For restoring peace and harmony in the areas of the State of Tripura where disturbed conditions prevailed, a Memorandum of Settlement was signed by the Government of India with Tripura National Volunteers on 12 August 1988. The said Memorandum provided for a greater share of tribals in the governance of the State. The

said Memorandum envisages amendment of the *Constitution* to provide that notwithstanding anything contained in the *Constitution*, the number of sease in the Legislative Assembly of the State of Tripura reserved for Scheduled Tribes shall be, such number of seasts, a proportion not less than the number, as on the date of coming into force of the Constitutional amendment, of members belonging to the Scheduled Tribes in the existing Assembly bears to the total number of seats in the existing Assembly. It also provides that the amendments shall not affect any representation in the existing Assembly of the State of Tripura until its dissolution.

2. In order to implement the said Memorandum, action is to be taken to determine the seats which are to be reserved for Schedled Tribes in the State of Tripura. Reservation of seats for Scheduled Castes and Scheduled Tribes in the Legislative Assembly of any State is governed by the provisions of *Articles 332 of the Constitution*. Having regard to the special circumstances obtaining in the State of Tripura, it is proposed to further amend *Article 332 of the Constitution* formaking a temporary provision for the determination of the number of seats reserved for Scheduled Tribes until re-adjustment of seats on the basis of the first census after the year 2000 under *Article 170 of the Constitution* for the State of Tripura.

3. The Bill seeks to achieve the aforesaid objects.
8.2.72 The Constitution (Seventy Third Amendment) Act, 1992 (in force from 24 April 1993)

This Amendment inserts a new part (Pt IX) in the *Constitution* for spelling out the basic and essential features of Panchayati Raj Institutions, “to impart certainty, continuity and strength to them.”

The Statement of Objects and Reasons reads as follows:

1. Though the Panchayati Raj Institutions have been in existence for a long time, it has been observed that these institutions have not been able to acquire the status and dignity of viable and responsive people’s bodies due to a number of reasons including absence of regular elections, prolonged supersessions, insufficient representation of weaker sections like Scheduled Castes, Scheduled Tribes and women, inadequate devolution of powers and lack of financial resources.

2. *Article 40 of the Constitution*which enshrines one of the Directive Principles of State Policy lays down that the state shall take steps to organise village Panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-government. In the light of the experience in the last forty years and in view of the short-comings which have been observed, it is considered that there is an imperative need to enshrine in the *Constitution* certain basic and essential features of Panchayati Raj Institutions to impact certainty, continuity and strength to them.

3. Accordingly, it is proposed to add a new Part relating to Panchayats in the *Constitution* to provide for among other, things, Gram Sabha in a village or group of villages; *constitution* of Panchayats at village and other level or levels; direct elections to all seats in Panchayats at village and intermediate level, if any, and to the offices of Chairpersons of Panchayats at such levels; reservation of seats for the Scheduled Castes and Scheduled Tribes in proportion to their population for membership of Panchayats and office of Chairpersons in Panchayats at each level; reservation of not less than one-third of the seats for women; fixing tenure of 5 years for Panchayats and holding elections within a period of 6 months in the event of supersession of any Panchayat; disqualifications for membership of Panchayats; devolution by the State Legislature of powers and responsibilities upon the Panchayats with respect to the preparation of plans for economic development and social justice and for the implementation of development schemes; sound finance of the Panchayats by securing authorization from State Legislatures for grants-in-aid to the Panchayats from the Consolidated Fund of the State, as also assignment to, or appropriation by, the Panchayats of the revenues of designated taxes, duties, tolls and fees; setting up of a Finance Commission within one year of the proposed amendment and thereafter every 5 years to review the financial position of Panchayats; auditing of accounts of the Panchayats; powers of State Legislatures to make provisions with respect to elections to Panchayats under superintendence, direction and control of the Chief Electoral Officer of the State; application of the provisions of the said Part to Union territories; excluding certain States and areas from the application of the provisions of the said part; continuance of existing laws and Panchayats until one year from the commencement of the proposed amendment and barring interference by courts in electoral matters relating to Panchayats.

The newly inserted Pt IX contains 16 Articles (243 to 243-O):

Article 243.—This article contains the definitions for certain phrases and terms, like “district”, “Gram Sabha”,

"intermediate level", "Panchayat", "population" and "village". At the Bill stage, the term "Gram Sabha" was defined in *Article 243A*(2), but this has been shifted to the definition article itself at the Act stage.

Article 243A.—This article empowers a Gram Sabha to exercise powers at the village level according to prescribed law.

Articles 243B & 243C.—These articles deal with the *Constitution* and composition of Panchayats.

Article 243D.—This article provides for the reservation of seats for the Scheduled Castes and Scheduled Tribes.

Article 243E.—This article fixes the tenure of office for Panchayats, normally as five years.

Article 243F.—This article lays down the circumstances which would warrant disqualification of members. At the bill stage, sub-clauses (a) to (d) of clause (1) spelt out the same circumstances as are already laid down in *Article 191 of the Constitution* for the disqualification of members of the Legislative Assembly and hence at the final stage, apparently for the sake of brevity, these four sub-clauses have been replaced by a single sub-clause to the effect that the disqualification will operate on a person if he is disqualified for the purposes of elections to the State Legislature. Another relaxation made at the Act stage is that the disqualification will not operate if the person is less than 25 years of age.

Articles 243G and 243H.—These articles deal with the powers and responsibilities of the Panchayats and Eleventh Schedule has been added to the *Constitution* containing 29 items.

Article243I.—This article envisages the setting up of a Finance Commission on a quinquennial basis for reviewing the financial position of the Panchayats and to make recommendations to the Governor on aspects relating to (i) distribution of revenue proceeds as between the States and the Panchayats, (ii) assignment/appropriation of taxes etc. by Panchayats, (iii) grants-in -aid to Panchayats, and (iv) the measures needed to improve the financial position of the Panchayats. (This last item was inserted at the Act stage). In addition, the said Commission is also authorized to look into any other matter referred to it by the Governor in the interests of sound finance of the Panchayats.

Article 243J.—This article deals with maintenance/audit of accounts of Panchayats.

Article 243K.—This article outlines the procedure for conduct of elections to the Panchayats.

Article 243L.—This article extends the provisions of Pt IX to the Union Territories. At the Bill stage, clause (2) of *Article 243L*, *inter alia*, proposed that the President may, by public notification, direct that the provisions of Pt IX shall not apply to any Union Territory or part thereof. This proposal has been dropped at the final stage. Under the proviso to *Article 243L* as finally enacted, the Presidential Directive can only contain exemptions and modifications, but cannot direct the total non-applicability of the Part, in relation to any Union Territory or part thereof.

Article 243M.—This article details the areas to which the provisions of *Pt* IX will not apply.

Article243N.—This article validates pre-existing laws relating to Panchayats even if they are inconsistent with Pt IX, till such time such laws are amended or repealed, or until the expiration of one year, whichever is earlier.

Article 243O.—This article puts a bar on courts in matters relating to elections.

This Amendment has been passed in pursuance of the Directive Principles of State Policy in *Article 40* and the underlying idea is to make Panchayats as vibrant units of local administration in the rural area. This is just to lead them to rapid implementation of rural development programmes.[7]

8.2.73 The Constitution (Seventy-Fourth Amendment) Act, 1992 (in force from 1 June 1993)

This Amendment seeks to strengthen the system of municipal bodies in the urban areas. The criterion is to place the local self Government in urban areas on a sound and effective footing. The aim is the decentralization of power and greater participation of people in self-rule. Consequently a new Pt IXA is introduced in the *Constitution* consisting of *Articles 243P* to 243ZG. Twelfth Schedule comprising 18 items is also inserted.

8.2.74 The Constitution (Seventy-Fifth Amendment) Act, 1994 (came into force on 5 February 1994)

The Seventy Fifth Amendment Act, thus, amends *Article 323B* in Pt XIV-A of the *Constitution* so as to give timely relief to the rent litigants by providing for setting up of State-level Rent Tribunals in order to reduce the tiers of appeals and to exclude the jurisdiction of all courts, except that of the Supreme Court, under *Article 136 of the Constitution*.

The operation of the Rent Control Legislations, as are today in various Statutes, suffers from major weaknesses and has led to various unintended consequences. Some of the deterious legal consequences include mounting and unending litigation, inability of the courts to provide timely justice, evolution of practices and systems to bypass the operations of rent legislations and steady shrinkage of rental housing market.

The Supreme Court, taking note of the precarious state of rent litigation in the country, in the case of *Prabhakaran Nair v State of TN,*[8] observed that the Supreme Courts should be relieved of the heavy burden of rent litigation. Tiers of appeals should be curtailed. Laws should be simple, rational and clear. Litigations must come to end quickly. The idea of a National Rent Tribunal on an all India basis with quicker procedure should be examined.

It must be remembered that the arrowed objective underlying the amendment is to expedite decisions of cases relating to rent control legislation. *Articles 323B*(1) and (2) empower the "appropriate legislature"[9] to provide by law, for adjudication or trial by tribunals of any disputes and offences with respect to the following matters—

- *(i)* Taxation,
- *(ii)* Foreign Exchange,
- *(iii)* Industrial & Labour Disputes,
- *(iv)* Land Reforms,
- *(v)* Ceiling on urban property,
- *(vi)* Elections to Parliament or State Legislature,
- *(vii)* Production, procurement, supply & distribution of food stuffs and other essential goods & control of prices of such goods,
- *(viii)* Rent, regulation of tenancy-issues, including the right, title & interest of landlords & tenants,
- *(ix)* Offences against laws with respect to these matters.

8.2.75 The Constitution (Seventy-Sixth Amendment) Act, 1994 (in force from 31 August 1994)

The Supreme Court in *Sawhney v UOI,*[10] has observed that "total reservations under *Article 16*(4) should not exceed 50%."

The Tamil Nadu Government framed Act No. 45 of 1994, entitled "Tamil Nadu Backward classes, Scheduled Castes and Scheduled Tribes (Reservation of seats in Educational Institutions and or appointments or posts in Services under the State) Act, 1993" and forwarded it to the Government of India under *Article 31C*. The Government of India supported the Tamil Nadu's Government action. In consequences of above, the Ninth Schedule was amended by the 77th Amendment Act to incorporate the above Tamil Nadu Act, to give it the protection of *Article 31B*. *Article 31B of the Constitution* provides that none of the Acts and Regulations specified in the Ninth Schedule, nor any provisions thereof shall be deemed to be void, on the ground that such Act, etc., is inconsistent with any provisions of Pt III of the *Constitution* (Fundamental Rights).

8.2.76 The Constitution (Seventy-Seventh Amendment) Act, 1995 (in force from 17 June 1995)

77th Amendment Act inserts a new clause (4A) in *Article 16* to provide for "reservation in promotion" for the Scheduled Castes and Scheduled Tribes. The new provision becomes necessary in view of the Supreme Court judgment in *Sawhney v UOI*, AIR 1993 SC 477, wherein it has observed that reservation of appointment/posts under *Article 16*(4) is confined to initial appointment and cannot extend to reservation in the matter of promotion.

8.2.77 The Constitution (Seventy-Eighth Amendment) Act, 1995 (in effect from 30 August 1995)

Article 31B of the Constitution provides that none of the Acts and Regulations specified in the Ninth Schedule, nor any provision thereof shall be deemed to be void, on the ground that such Act, etc., is inconsistent with any provisions of Pt III of the *Constitution* (Fundamental Rights).

Seventy Eighth Amendment Act enumerates few more Acts/Amendment Acts framed by Bihar/Karnataka/Kerala/Orissa/Rajasthan/Tamil Nadu/West Bengal Governments, for inclusion in Ninth Schedule. Today the Schedule contains 284 statutes.

8.2.78 The Constitution (Seventy-Ninth Amendment) Act, 1999 (in effect from 25 January 2000)

By virtue of this Amendment reservation of seats and special representation for Scheduled Castes and Scheduled Tribes in the House of People and the State Legislative Assemblies have been extended for another 10 years. Words "fifty years" appearing in *Article 334* have been therefore changed to "Sixty years". Similarly the representation of the Anglo-Indian Community in the Lok Sabha and the Legislative Assemblies of the States by nomination has also been extended for another ten years. In consequence the reservations would end on January 25, 2011.

8.2.79 The Constitution (Eightieth Amendment) Act, 2000 (in force from 9 June 2000)

This Amendment restructures the financial relationship between the Centre and the State. This was done in pursuance of the recommendations of the Finance Commission. The Tenth Finance Commission had submitted its report on 26 November 1994 for a period of 5 years. The Government in an alternative scheme has taken certain steps for the purpose. The benefits of the scheme have been listed by the Commission in paras 13.2 and 13.3 and 13.18 of their reports. For this purpose *Articles 269*, *270* and *272* have been amended.

8.2.80 The Constitution (Eighty-First Amendment) Act, 2000 (in force from 9 June 2000)

This Amendment adds clause (4B) after clause (4A) in *Article 16*. There were adverse effects of order of the Government providing that the 50% limit shall apply to current as well as "Backlog vacancies". Various organisations represented against this order, and after considerations the position was reviewed—and it has been decided that an amendment should be made in the *Constitution* so that the unfilled vacancies of a year, which are reserved for being filled up in that year in accordance with any provision for reservation made under clause (4) or clause (4A) of *Article 16 of the Constitution* shall be considered as a separate class of vacancies to be filled up in any succeeding year or years and such of vacancies shall not be considered together with the vacancies of the year in which they are being filled up for determining the ceiling of 50 % reservation on total member of vacancies of that year. This Amendment would enable the State to restore the position as was prevalent before August 29.

8.2.81 The Constitution (Eighty-Second Amendment) Act, 2000 (in force from 8 September 2000)

By this amendment a proviso has been added to *Article 335* whereby its becomes possible for the Government to make any provision in favour of Scheduled Castes and Scheduled Tribes for relaxation in qualifying marks in any examination or lowering the standards of evaluation, for reservation in matters of promotion to any class or classes of services or posts in connection with the affairs of the Union or of a State.

8.2.82 The Constitution (Eighty-Third Amendment) Act, 2000 (in force from 8 September 2000)

By this amendment clause (3A) after clause (3) of *Article 243M of the Constitution* was inserted and amendment came into force on 8 September 2000. The amendment will provide a legal and constitutional basis for Panchayati Raj Institutions in Arunachal Pradesh in accordance with the socio-political ethos of the state.

8.2.83 The Constitution (Eighty-Fourth Amendment) Act, 2001 (in force from 21 February 2002)

This Amendment is made in order to substitute the figure "2026" relating to census in *Articles 55*, *81*, *82*, *170*, *330* and *332* for the figure "2000".

8.2.84 The Constitution (Eighty-Fifth Amendment) Act, 2001 (in effect from 17th June 1995/Received the assent of the President on 4 January 2002)

Article 16 is amended and in its clause 4A for the words "in matters of promotion of any class" the words in matters of promotion, with consequential seniority to any class" are substituted. For protecting the consequential seniority of the reserved category the retrospective effect is given to this amendment from 17 June 1995.

In effect the purport of both the amendments[11] is to render the effect of the rulings of the Supreme Court in Indra Sawhney[12] and later cases on the question of reservations in promotions and the seniority of the promotes on the basis of reservation.

8.2.85 The Constitution (Eighty-Sixth Amendment) Act, 2002

(Received President's assent on 12 December 2002 and in force from 1 April 2010)

The Amendment inserts new *Article 21A* (Right to education) providing free and compulsory education to all children of the age of six years to fourteen years in such a way as the State may by law determine. Besides this for *Article 45*, a new *Article 45* is inserted providing for early childhood care and education for all children until they complete the age of six years.

8.2.86 The Constitution (Eighty-Seventh Amendment) Act, 2003

(Received President's assent on 22 June 2003) amends *Articles 81*, *82*, *170* and *330* by substituting figures 2001 for the figures 1991. The Amendment provides for readjustment of electoral constituencies, including those reserved for the Scheduled Castes and Scheduled Tribes, based on the population census for the year 2001 without affecting the number of seats allocated to States in the legislative bodies.

8.2.87 The Constitution (Eighty-Eighth Amendment) Act, 2003

(Received President's assent on 15 January 2004

This Amendment inserts new *Article 268A* whereby service tax is levied. Principles of appropriation of revenue in this regard would be made by the Parliament.

The States have taken a unanimous decision to replace their existing system of Sales Tax with the system of Value Added Tax (VAT) from 1st of April 2003. In this context with a view to widening their tax base the States have suggested that they should be enabled to collect and appropriate tax on services.

The service sector accounted for 48.5% of the country's Gross Domestic Product (GDP) in the financial year 2000-01. The role of this sector is quite significant. The expert committees set up by the Central Government have repeatedly recommended taxation of services. It is therefore proposed suitably amend the *Constitution* to provide,

(i) tax on services as a specific Entry in the Union List,

(ii) insertion of a new Article, namely *Article 268A*, and

(iii) consequential amendment to *Article 270* to enable the Parliament to formulate by law principles for determining the modalities of levying the said tax by the Central Government and collection of proceeds thereof by the Central Government and the States.

Thus this Amendment would help in significant augmentation of revenue of the States in accordance with the proposed law. This Amendment inserts new *Article 268-A*, amends *Article 270* and inserts a new Entry—"92C Taxes on Services" in List 1—Union list, after Entry 92B.

8.2.88 The Constitution (Eighty-Ninth Amendment) Act, 2003

(Received President's assent on 28 September 2003 and came into force from 19 February 2004) amends *Article 338* and inserts a new *Article 338-A*.

"National Commission for Scheduled Tribes." By this amendment the newly created commission under clauses (4) and (5) has been given power to regulate its procedure. Clause (5) imposes certain duties on the Commission—such as,

(a) to investigate and monitor all matters relating to the safeguards for Scheduled Tribes;

(b) to inquire into complaints with regard to deprivation of the rights and safeguards of the Scheduled Tribes;

(c) to evaluate the progress of their development and to participate and advise on the planning process of their socio-economic development;

(d) to present an annual report to the President upon the working of these safeguards;

(e) to make such reports and recommendations for the effective implementation of these safeguards etc., and

(f) to discharge such other functions in relation to the protection, welfare and development of the Scheduled Tribes, as suggested by the President.

The Commission shall have all the powers of a Civil Court trying a suit, while it investigates into matters specified in clauses (a) and (b).

The Union and every State Government shall consult the Commission on all major policy matters affecting Scheduled Tribes.

8.2.89 The Constitution (Ninetieth Amendment) Act, 2003, dated 28 September 2003

By this Amendment *Article 332* is amended by inserting a proviso to clause (6) which provides for election to the State Legislative of the State of Assam. The representation of Scheduled Castes and Scheduled Tribes in the Constituencies included in Bodoland Territorial Areas District, so notified and existing prior to the *Constitution* of the Bodoland Territorial Areas District, shall be maintained.

8.2.90 The Constitution (Ninety-First Amendment) Act, 2003, dated 1 January 2004

This Amendment strengthens and amends the anti-defection law as contained in the 10th Schedule. It amends *Articles 75*, *164*, the 10th Schedule and inserts *Article 361-B*. This article is regarding "Disqualification for Appointment on Remunerative Political Post."

8.2.91 The Constitution (Ninety-Second Amendment) Act, 2003, dated 7 January 2004

By this Amendment Bodo, Dogri, Maithili and Santhali languages were added to the Eighth Schedule.

8.2.92 The Constitution (Ninety-Third Amendment) Act, 2005 (w.e.f. 20 January 2006)

Statement of Objects and Reasons, on August 12th, 2005 the Supreme Court of India by its judgment in the Inamdar case[13] gave the unaided colleges the right to decide their own admission policies. This right also sidetracked all quotas reserved on the basis of social deprivation in private unaided colleges. The judgment contemplated that as the unaided colleges did not get Government funding, they are under no obligation to follow Central Government quotas for socially deprived classes. It is in this context that the UPA Government plans to bring a *Constitution* Amendment Bill, which will restore reservations for Scheduled Castes and Scheduled Tribes in unaided colleges.

Consequently in *Article 15 of the Constitution*, after clause (4), the following clause has been inserted:

> *Article 15(5)*.—Nothing in this article, or in sub-clause (g) of clause (1) of *Article 19*, shall prevent the State from making any special provision, by law, for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes or the Scheduled Tribes in so far as such special provisions relate to their admission to educational institutions including private educational institutions, whether aided or unaided by the State, other than the minority educational institutions referred to in clause (1) of *Article 30*.

8.2.93 The Constitution (Ninety-Fourth Amendment) Act, 2006 (*w.e.f.* 12th June 2006)

In *Article 164*, in clause (1), in the proviso, for the word "Bihar", the words, "Chhattisgarh", "Jharkhand" have been substituted.

8.2.94 The Sixth Schedule to the Constitution (Amendment) Act, 2003 (44 of 2003)

In its application to the State of Assam the effect of Sixth Schedule has been modified. Paras 2, 3, 4, 10, 12, 17, 19 & 20 are amended and a new para 3B after para 3A is inserted which specifies the additional powers of the Bodoland Territorial Council to make laws.

8.2.95 The Constitution (Ninety-Fifth Amendment) Act, 2009. (Came into force on 25 January 2010).

This Amendment was made to *Article 334* which extended the period of reservation for ten more years and the word "sixty years" was substituted by the word "seventy years".

8.2.96 The Constitution (Ninety-Sixth Amendment) Act, 2011. (Came into force on 23 September 2011)

This amendment substituted the word "Oriya" with the word "Odia" in Entry 15 to the Eighth Schedule to the *Constitution*

8.2.97 The Constitution (Ninety-Seventh Amendment) Act, 2011. (Came into force on 15 February 2012)

This Amendment brought about changes with an aim to promote the formation, smooth functioning and bringing about uniformity in the varied laws governing co-operative societies as it is a State subject.

Article 43B and Pt IXB have been added. Further the words "or co-operative societies" have been added after the words "or unions" in *Article 19*(1)(c).

8.2.98 The Constitution (Ninety-Eighth Amendment) Act, 2012. (Came into force on 1 October 2013)

This Amendment *Article 371J* was added giving President the power to accord certain special responsibility to the Governor of the State of Karnataka to take measures as prescribed for the development of Hyderabad-Karnataka region.

9. CONCLUDING REMARKS(a) *The Cumulative Effect of Amendments.—*

If one has to study the Indian *Constitution* today he would come to grief if he has in his hand only a text of the *Constitution* as it was promulgated in November, 1949, for, momentous changes have since been introduced not only by numerous Amendment Acts but by scores of judicial decisions emanating from the highest tribunal of the land. Nearly every provision of the original *Constitution* has acquired a gloss either from formal amendment or from judicial interpretation, and an account of the working of the *Constitution*, over and above this, would in itself be a formidable one.

The cumulative general effect of various amendments to the *Constitution* can be briefly presented as under—

(i) Some amendments restrict the scope and ambit of some of the fundamental rights, particularly the right to property.[14]

(ii) Some grant greater safeguards to the minorities and Scheduled Castes and Scheduled Tribes;[15]

(iii) Some create new States and admit certain foreign possessions into the Indian Union;[16]

(iv) In so far as Federalism is concerned, it has achieved the following results:

(a) given greater power to the Centre *vis-à-vis* the States;

(b) removed distinction among the States and placed them all on the same footing;

(c) reorganised the States on linguistic basis; and

(d) strengthened safeguards in emergency provisions.

At the first instance, the passing of ninety-eight *Constitution* Amendment Acts[17] in a period of fifty years can hardly be passed over unnoticed. In the *American**Constitution*, the process of formal amendment prescribed by the *Constitution* to changes in social conditions has fallen into the hands of the Judiciary even though it ostensibly exercises the function only interpreting the *Constitution*. Instead of leaving the matter to the slow machinery of judicial interpretation, our *Constitution* has vested the power in the people's representatives and, though the final power of interpretation of the *Constitution* as it stands at any moment belongs to the Courts, the power of changing the instrument itself has been given to the Parliament (with or without ratification by the State Legislatures) and, if the Parliament, acting as the constituent body, considers that the interests of the country so require, it can amend the *Constitution* as often as it likes. The case with which these Amendments have been enacted demonstrates that our *Constitution* contains the potentiality of peacefully adopting changes some of which would be considered as revolutionary in other countries.

The real question involved in this context is whether it is the Judiciary or a constituent body which should be entrusted with this task of introducing changes in order to keep pace with the exigencies of national and social progress. For reasons good or bad, the framers of our *Constitution* preferred the Legislature as the machinery for introducing changes into the *Constitution*, but the need for change is acknowledged even in countries like the U.S.A. where the task has been assumed by the Judiciary, taking advantage of the fact that the amending machinery provided in the *Constitution* was too heavy and unwieldy for practical purposes.

A little reflection will show that some of these changes, the need for which must be admitted even by critics, could not have been introduced by the Courts, by the application of the canons of statutory interpretation which are firmly embedded in our Courts. An instance to the point is the insertion of the word "reasonable" to qualify the word "restrictions" in clause (2) of *Article 19* (by the First Amendment). Without such a qualification, the engine of judicial review would have been altogether excluded from the field of legislative encroachment upon the freedom of expression, for, it was not open to any Court, unless it was determined to do violence to the canons of interpretation, to supply the word "reasonable" which had been inserted by the makers of the *Constitution* in all other clauses of the Article but omitted from clause (2). The Seventh Amendment, again, was necessary to provide for the territorial reorganization of the country which could not be made by the makers of the *Constitution*, before promulgating it in 1949. Similarly, the Tenth, Twelfth, Thirteenth, Fourteenth, Thirty-fifth, Thirty-sixty, and many other Amendments have been necessitated by the acquisition of new territories or the upliftment of the political status of existing territories, which are obviously for the benefit of the nation.

At the same time, one cannot help observing that so frequent and multifarious amendments of the *Constitution*, some of which might have been avoided or consolidated, have undermined the sanctity of the *Constitution* as an organic instrument.

It needs to be emphasized that the *Constitution* has to be treated with great deference and cannot be made a plaything by political parties. As noted by Dr. M P Jain[18] a stable *Constitution* gives stability to the country's constitutional process. For example in USA during nearly over 200 years, only 30 amendments have been made and the USA has progressed tremendously under an old *Constitution*.
(b) *The purpose of the Constitution and its Amendments.—*

The purpose of the *Constitution* is to regulate administrative and political processes in the country; the *Constitution*, therefore cannot be changed to suit the transient political expediency. Majority in Parliament in a democracy is only transient; it is not permanent, but *Constitution* is more permanent in nature. The Parliament under a written *Constitution* ought not to regard itself as omnipotent and seek to mutilate the *Constitution* in a way it likes. If one party in majority changes the *Constitution* today, another party in majority will change it tomorrow and the *Constitution* will then cease to claim respect of the people on which it depends for its efficacy and survival. The learned author, Professor M P JAIN says:

…it needs to be said that the facile way in which it has been possible to amend the *Constitution* so far has not promoted in the minds and hearts of the people a deep emotional respect for the *Constitution* as a symbol having sanctity and permanence. Such a sentiment can take root only when the *Constitution* is not tampered with whenever the Government encounters the least difficulty in putting through its programme. It is extremely important for the endurance of the *Constitution* and promotion of constitutionalism in the country that people respect it and have confidence in it. Such a sentiment can be promoted only when the *Constitution* is regarded as something sacrosanct and not to be tinkered or trifled with lightly, but only as a last resort when there is no other violable alternative to meet the national situation.

To achieve this laudable objective, it seems absolutely necessary that the constitutional amending process be rigidified and made more difficult, so that the Amendment can be made to the *Constitution* only when there is a broad national consensus favouring the same. The truth remains that 2/3 of Lok Sabha hardly represents a broad national consensus as it is common knowledge that not more than 45% of the eligible voters cast their votes at the general election for the House. Rajya Sabha has no popular mandate whatsoever. It also needs to be realised that the basic purpose of the *Constitution* is to control power – legislative as well as executive. This is the idea inherent in the term "constitutionalism". Therefore, the Government cannot rush to amend the *Constitution* the moment it feels any constitutional difficulty in executing its policies. If that is done too often, all constitutional restraints on the Government will come to an end and we shall be left with an uncontrolled, arbitrary Government.[19]

DR SUBHASH C. KASHYAP in his book *Constitutional Making Since 1950 – AnOverview* says:

> While some of the amendments have definitely improved the content and quality of the constitutional document in the context of the charged and charging societal, economic or political needs, some others were either inevitable or consequential for implementation of policy decisions, and there were a quite few which were avoidable, unnecessary or motivated by merely political and partisan interest considerations of the ruling majority or parties[20].

In MASSEY on *American Constitutional Law* – Powers and Liberties, learned author says:

> The *Constitution* is not easily amended. Over 10,000 (ten thousand) amendments have been introduced or formally recommended to Congress; but only 33 have been adopted by the Congress and only 27 have actually been ratified and of these only four were intended to overrule some specific constitutional decisions of the Supreme Court.[21]

The end of the *Constitution* is to grant powers, to limit the Government and to require those who govern to conform to the mandates of the *Constitution*. It is also the aim of the *Constitution* to establish a harmonious and cohesive structure of the society based on ideal common morality and its entire activity is concentrated on the common good and individual liberty and the action of the people as well as the person conducting the Government are also controlled by the *Constitution*. In the words of MONTESQUIEU, "At the time of birth of societies…the rulers of the Republic establish institutions and afterwards, the institutions mould the rulers".[22] The objects of the *Constitution*, in short, are to limit the arbitrary actions of the Government, to guarantee the right of the governed and to define the operation of the sovereign power.[23] The written *Constitution* defines

clearly the functions and powers of the Legislature, the Executive and the Judiciary, the rights guaranteed to the individual and provides the procedural remedies for the protection of the rights guaranteed.[24] It is an eternal truth that the history of liberty is the history of limitation upon the power of Government.[25]

The following points or views are to be considered:

(a) For reasons hinted of Madison[26] there should be a strong presumption against any constitutional amendment. The *Constitution* is a wise and broad charter by the Government with sufficient flexibility to accommodate changes in circumstances. It is a mistake to "constitutionalize" any particular set of norms in the absence of exceptional circumstances; frequent amendment is a danger to *Constitution* itself.

(b) There is no reason to give special deference to decisions of the past.. The amendment process involves a democratic process in constitutional law and that is a good thing. Moreover, circumstances and values change, and past generations have no monopoly on wisdom. Sometimes new conditions call for new constitutional provisions.

(c) Constitutional amendment should be adopted only if they remedy serious structural defects or attempts to include groups previously included from the polity. The *Constitution* is concerned by and large with institutional design; structural provisions allow flexibility for current majorities.[27]

Article 368 lays down the procedure to amend the *Constitution*. One has to note that the Congress party has been in power for a very long time. It had enjoyed an overwhelming majority from time of Jawaharlal Nehru to Rajiv Gandhi in the Parliament as well as in the State legislatures. It was therefore very easy for it to amend or change the *Constitution* in a facile way to suit its interests.[28]

But now, the position is quite different. No single party can enjoy 2/3 majority, and therefore the facile way of amending the *Constitution* is closed.[29] One must remember that quite a few amendments had a wide measure of consensus behind them[30] and most of the amendments did not raise any sharp reaction but some did raise quite a good deal of controversy in the country.[31] Similarly immunizing as many as 284 State Acts[32] from judicial scrutiny, by adding them to Schedule IX does not seem to be justifiable.[32] However, gradually all kinds of State Laws were added granting them immunity from judicial review. A question therefore can be posed as to how far these two concepts—Schedule IX and Judicial Review—are compatible and consistent as an essential feature of the *Constitution*? The answer is a specific one—that is—"not compatible." *Article 31-B* does not define categories of laws which are to receive protection. It affords protection "to all laws" placed in the Nineth Schedule against provisions of Pt III, unless such a law violates basic structure of the *Constitution*.[33]

(c) *The 39th & 42nd and 93rd Amendments.—*

The 39th and the 42nd Amendments to the *Constitution* are the most controversial amendments. This is so because of their content, the manner and circumstances under which they were made. These amendments even had the effect of precipitating a change in the Government. Moreover the 39th Amendment was declared to be invalid by the Supreme Court. The 42nd Amendment sought to make the Central Executive very potent and the Courts comparatively weaker. One may easily say that it was a futile and treacherous attempt to rewrite the *Constitution* and denude the same of many of its liberal and democratic features. It was an attempt, so to say, to institutionalize the emergency for good in India. Most of the controversial provisions of the 42nd Amendment were neutralized by the 43rd and the 44th Amendments. The judicial review contrivance at that time could not play a creative role but thereafter, from 1978 onwards the judiciary has been able to play a creative role in shaping and moulding constitutional process in this country.[34] This has been done by expanding the scope and range of *Article 21* and by enunciating the doctrine of non-amendability of the basic structures and fundamental features of the *Constitution*.[35]

Amending *Constitution* by the process of referendum is quite a good proposal but it is a difficult process.

(d) *A case for revision of the Constitution, instead of piecemeal amendments.-*

But in view of the multilation of the *Constitution* so far made by endless piecemeal amendments, inevitably resulting in confusion and inflicting injury upon the dignity and solemnity of the *Constitution*, an impartial observer may suggest that a Commission for the revision of the *Constitution* should be set up to examine, objectively, each of the existing provisions in the light of suggestions for amendment from the Government as well as the citizens and to recommend the enactment of one comprehensive Amendment Act or a revision of the *Constitution* itself. In a country like the United States where the written *Constitution* is sanctified as the Bible of the Nation, nobody could imagine that a Government, because it commands unquestionable majority in the

Legislature, should amend the *Constitution* as often as demanded by its Departments or in the manner recommended by the political Committees of the Party in power, as has happened in the case of the 42nd 43rd, 44th and 93rd Amendments in India.

In case the Government ever accepts the Author's suggestion to revise the *Constitution*,[36] the further suggestion is that the *Constitution* should be amplified, by inserting in it provisions relating to matters on which it is silent, or it is left to conventions or the goodwill of those who are to administer those matters respectively,—because in the absence of such codified provisions, much confusion has arisen not only amongst the masses who have little knowledge about the British Conventions of Cabinet Government or the common law privileges of the British Parliament, but amongst the administrators themselves. Though many such instances may be found upon a through examination, I shall illustrate my point with reference to these two instances.
To codify: A. Conventions.

Though the Cabinet system of Government was adopted by the framers of the Indian *Constitution* both at the Union and State (subject to the discretionary sphere left to the State Governor) levels, the British Cabinet system is a complicated outcome of history and the sagacity of trained politicians and even then, as veteran scholars have pointed out, it is a difficult task to formulate clear-cut propositions, relating to the conventions upon which the system is founded. Naturally, in India, there has been much controversy both at the Centre and the States as to what course should be taken by the President or the Governor in the matter of selecting a person to form a Government in a situation where no party commands a clear majority; conversely, what action should be taken by the constitutional head of the State where it is alleged against a party in power that it has lost majority in the popular House of the Legislature by reason of defection or the like; whether the constitutional head has the power to dismiss the Prime Minister or Chief Minister, *i.e.,* the Council of Ministers collectively, and, if so, when. Though there is scope for controversy on such questions, it is not wholesome for the country if the Governors of two States or the President of the Union take divergent steps in the same or similar situation. Questions relating to the exercise of the pardoning or ordinance-making powers have also created confusion. Even though it may not be possible to make comprehensive provisions relating to such matters or to apprehend *all* possible situations of doubt or controversy, it would be possible and profitable to formulate those propositions which have already been laid down by the Supreme Court or on which there has been a fair amount of consensus amongst the political parties as a result of the working of the *Constitution* for over forty years.
Privileges of Legislatures.

When the *Constitution* was drafted in 1948-49, the uncodified privileges of the British House of Commons were sanctified by the Indian *Constitution*, but *only as a temporary measure*, because it was not practicable, at once, to grapple with the difficult problem of codifying the mass of British precedents which constitute the foundation of privileges of the Parliament in England. But more than five decades have passed since then, and today, even if the task of a fairly exhaustive codification may not be completed all at once, many of the principles have been settled by judicial decisions of the highest Court and the consensus of precedents laid down by the Presiding Officers of the Houses of the Union and State Legislatures. It is not conducive to a smooth working of the Parliamentary system in this poor and developing country to have a war between the Courts and the Legislatures as has happened on occasions,[37] —a repetition of which can be averted only by a proper solution embodied in the *Constitution* itself. Those who still argue in favour of a "High Court of Parliament", exercising sovereign powers and privileges, such as the British House of Commons, are blinded by the initial fallacy that we have a written *Constitution* which *limits* the powers of all the organs of the State, including the Legislatures and that the latter cannot claim any overriding power (in the name of privileges) to interfere with the jurisdictions vested in the superior Courts by *Articles 32* and *226* of the *Constitution* itself. The *Constitution*-amending body can no longer fight shy of facing this unfortunate and uncanny problem of which there cannot be any authoritative solution so long as the *Constitution* itself is not amended, to incorporate that solution which is acceptable to the special majority of the constituent body. Even if the code of privileges be not exhaustive it is better to start with a nucleus rather than a vacuum.

Articles 105 and *194* provide for privileges for members of Parliament and Legislative Assembly respectively. It only provides that the members will have privileges, powers and immunities as was enjoyed by the House before 26 January 1950 till a law is framed. No law has so far been made defining the privileges. However, the Supreme Court in *Raja Ram Pal v Hon'ble Speaker, Lok Sabha*,[38] held that legislative privileges are subject to judicial review, so that like a statute passed by legislature, they cannot prevail over fundamental rights.[39]
Implementation of the Directive Principles.

Of the achievements of the Executive and the Legislature in the working of the *Constitution*, one cannot fail to

refer to the progress made in implementation of the Directive Principles of State Policy, which shows that the Government in power has not taken them as “pious homilies”, as was apprehended by critics when they were engrafted into the *Constitution*. Though the implementation of these Directives falls mostly within the province of the States, the Union has offered its guidance and assistance through the Planning Commission.[40] The *Constitution of India*, it should be remembered, was not intended to serve merely as a charter of Government but as a means to achieve the social and economic transformation of the country peacefully[41] and this goal has been achieved to the extent that the Government has succeeded in implementing the Directive Principles.

By the insertion of *Article 31C* by the *Constitution* (25th Amendment) Act, 1971, the Congress Government demonstrated that it was determined to implement the Directives and that if the Fundamental Rights came in the way, it would not hesitate to amend even the Fundamental Rights. The Supreme Court has also adhered to this view,[42] though in its earlier decisions, it had imputed pre -eminence to the Fundamental Rights. The Court has, indeed, carried this view to its logical extreme by *reading* the Directives *into* the Fundamental Rights so that the former may indirectly be enforced, by issuing “directions” to the Governments under *Articles 32* and *226*.[43]

The Parliament decided to confer on the Directive Principles of State Policy, contained in *Articles 39*(b) and (c), a status superior to Fundamental Rights guaranteed under *Articles 14*, *19* and *31*. Accordingly, *Article 31C* was inserted in the *Constitution* in 1972. The validity of the amendment was upheld by the Supreme Court in *Kesavananda Bharati v State of Kerala*,[44] except for the second part thereof. The *Constitution* was further amended in 1976 conferring on all Directive Principles of State Policy a status of superiority over Fundamental Rights guaranteed under *Articles 14*, *19* and *31*. This Amendment, *i.e.,* conferring superiority over Fundamental Rights was held unconstitutional in *Minerva Mills v UOI*,[45] on the ground that the Parliament has no power to make such an amendment and it destroys the basic structure of the *Constitution*. Thus the position as regards *Article 31-C* is that what it was after the decision in *Kasavananda’s case*. The laws giving effect to the Directive Policy contained in *Articles 39*(b) and (c) will be valid even if they violate *Articles 14* and *19*. The second part of *Article 31-C* which is declaratory in nature is void.

BHAGAVATI J. did not agree with the majority who held that the entire Article is valid. This Amendment however does not refer to the Fundamental Rights other than *Articles 14* and *19*. Hence in case of conflict between Fundamental Rights contained in other articles, and a law passed for implementing any of the Directive Principles of State Policy, if a harmonious construction is not possible, the Fundamental Rights will prevail over Directive Principles of State Policy.[46]

The greatest failure of the Government in implementing the Directives has been with respect to the enactment of a Uniform Civil Code [*Article 44*], which we shall presently see.

In enforcing the Directive for Prohibition of Consumption of Intoxicants, too, some Governments are giving more importance to revenue than the “fundamental principle of governance” embodied in *Article 47*. That is why it has not been substantially implemented in the course of 4 decades. Some State Governments have gone to the extent of withdrawing it after having once imposed Prohibition.
Trend towards the Unitary System.

In the federal sphere, it may be stated that most of the formal and informal changes which have taken place since the commencement of the *Constitution* have been to strengthen Central control over the States more and more. While the federal system, by its nature, has generated State consciousness more than under the British regime, the Centre has been endeavouring more and more to assume control over the States not only by Constitutional amendment and legislation but also by setting up extra-Constitutional bodies like the Planning Commission,[47] the National Development Council,[48] and numerous Conferences. As regards the predominant position of the Planning Commission, a learned [author49] observed:

> The emergence of the Planning Commission as a super-Government has disturbed the concept of the autonomy of the States. It has also impinged on the authority of the States in matters vital to its administration such as education, health and other welfare services.[49]

The Planning Commission though envisaged to be only advisory, has in course of time, become more than that and has been characterised as the “super economic cabinet of the country”.[50] It exercises a decisive influence on economic decisions taken by various Governments. The Planning Commission is the major agency for achieving economic and social reconstruction of Indian society and though not based on any statutory provisions, yet profoundly influences inter-governmental relation.[51]

The need widely recognised both in the (Constituent) Assembly and outside it for a nationally planned effort to raise the economic and social standard of the country and certainly supported the arguments for a strong Central Government.

The Government has, since July, 1967, reorganised the Planning Commission,[52] with changes in its status and functions (as recommended by the Administrative Reforms Commission), constituted of whole -time members (and headed by the Prime Minister,[53] as before), as a result of which the Commission will cease to have any executive functions and will confine itself to the formulation of plans and the evaluation of their performance. GRANVILLE AUSTIN has said:

> The Planning Commission has been founded with the best intentions and on the sensible conviction that the country's money, and human and natural resources should not be expanded thoughtlessly and that the economic development should be as equitable as possible nationwide. But there were questionable premises as well. One of these in the 1970s grew to be dangerous to the federation, to economic progress and, potentially to liberty; that the Central Government should occupy the "commanding heights of the economy". The second premise – that wise human beings could draw national blue print for the astounding diversity of the country – was intellectual centralisation (as well as pride) that became political centralisation as the National Development Council was marginalised – although State and Central planning officials continued to meet. With, in recent times, 60% of resource transferred to the State coming *via* Planning Commission and Central Ministries and not *via* Finance Commission; the opportunity for central intervention in the State's development programme has increased. The point at which thinking for others became counter-productive seems at once obscure and quickly arrived at. And although its practitioners in New Delhi were well intentioned and their action sometimes necessary, they were revealing their limited faith in democracy.[54]

No less momentous is the increasing dependence of the States upon the Union in the matter of finance. Not only is the financial strength of a State dependent upon the share of the taxes and grants-in-aid as may be allotted to it by the Union upon the recommendations of the Finance Commission, there is a general sense of irresponsibility in financial matters in the States founded upon the assumption that the Union will ultimately come to its aid or, else, the National Plan will fail.

But, notwithstanding this unitary trend, federation has not yet proved to be a failure in India, particularly because the Supreme Court has steadfastly enforced the distribution of powers laid down in the *Constitution*,[55] without acknowledging any pre-eminence of the Union so as to obliterate that federal distribution, except in solitary instances so far.[56]

The trend towards greater cohesion is, in fact, an index not of the failure but of the success of the federal system of India. One of the defects of a federation, according to classical writers, is its weakness. Credit must go to India if she succeeds in attaining unitary strength upon the foundation of a federal governmental system over an unwieldy territory inhabited by heterogeneous elements with radically conflicting ideologies. The founders of *our*Constitution had realised that a federal system was the only system suitable to a country like *ours,* consisting of so many heterogeneous elements. But, in view of *our* external dangers, existing and potential, they sought to impart into the federal system the elements of adjustment by resorting to which the system might acquire the strength of a unitary system in case of external aggression or other extraordinary circumstances. That it has succeeded in attaining this objective[57] has been demonstrated by the working of our governmental system since the ominous aggression which had been set in motion by China in October, 1962 and is still being driven hard by the China-Pakistan axis, even after the said debacle of Yahya Khan's Army in Bangladesh in 1971.[58] The situation on India's borders has been more serious and alarming by subsequent events; such as the fall of the friendly Government of Mujibur Rehaman in Bangladesh,[59] the importation of Soviet Forces in Afghanistan together with the countervailing move of the United States to arm Pakistan with the most sophisticated weapons which can very well be used against India, as has happened in the past and still continues; and at the back of all this, looms the nightmare of the "Islamic bomb", backed by American bases within Pakistan; dismemberment of the U.S.S.R.[60]
Separatist forces at work.

The unfortunate happenings in the Punjab, Assam, Tripura and Andhra Pradesh have demonstrated that strong Central control is needed in India if not only federalism but the very existence of the Union of India is to be saved from separatist forces fighting for fragmentation and aggressive provincialism, which, if undeterred, would undermine that national unity and integrity which forms the foundation—stone of the *Constitution*.
(i) The Sikhs.

So far as the Sikh demand[61] is concerned, it would, if acceded to, put an end to the federal *Constitution* and is bound to raise similar demands from other States and minority communities,[62] leading to the break-up of India as a nation, though the Anandpur Saheb resolution,[63] which the Akalis intend to impose upon the Union by force[64] does not itself speak of secession from the Union or to start an independent State of *Khalistan*, that is at the back of the movement, as evidenced by extraneous evidence.[65] But, the demand that, after the formation of a compact State with adjoining Sikh majority territories, the Union shall have jurisdiction over that State only with respect to five subjects, *viz.,* Defence, External Affairs, Posts and Telegraphs, Currency and Railway, puts their case even higher than that of Jammu & Kashmir. For, while practically the whole of the Union List (List I of the 7th Schedule to the *Constitution*) and a good number of items of the Concurrent List (List III) now extend to the State of Jammu & Kashmir, the Anandpur resolution would have ousted the jurisdiction of the Union over the entire Concurrent List, and a substantial portion of the Union List, *e.g.*, those relating to communications other than Railways, Posts and Telegraphs, Banking Insurance; Public Debt of the Union, Reserve Bank of India, Trade and Commerce with foreign countries, Regulation of National Industries, inter-State waterways, institutions of higher education, Elections to Parliament, the Supreme Court and High Courts, Union taxation, and the like. The Akalis cannot claim inspiration from the instance of Jammu & Kashmir, because while the latter State has a history of its own, with international implications, Punjab had all along been an integral Province of India and, further, the Akalis do not constitute the entire Sikh population of Punjab,—the other Sikhs do not support the Akali demand; nay, they have failed to win over a Sikh President of India or even a Sikh Chief Minister of the State of Punjab. On the other hand, amongst the Akali Party, there have been several leaders and in May, 1985, the leaders gave way to terrorists, led by the father of the Khalistan leader, Sant Bhindranwale.[66]

Subsequent to the preceding events, in July, 1985 (after the accession of Sri Rajiv Gandhi as Prime Minister), an agreement (called the “Punjab Accord’)[67] was entered into between the Prime Minister of India and Sant Longowal,—the head of the predominant group amongst the Akalis. According to this Accord, *inter alia,* the Anandpur Resolution would be referred to the Sarkaria Commission and some Hindi-speaking areas of Punjab would be transferred to Haryana in lieu of Chandigarh which would come over to Punjab from Haryana.

The Punjab Accord, however, failed to make any settlement of the Punjab problem. There was a failure to submit the State Government’s case to the Sarkaria Commission. At the same time the Commission made no headway to identify the areas to be demarcated as Hindi speaking, and therefore to move to Haryana. Therefore the problem remained unaddressed, and territorial elements continue to exist.

(ii) The Assamese.

The case of the agitators in Assam is peculiar. They do not demand secession, but they want “Assam for Assamese”. [68]Though at the beginning, their demand was mystified by the intervention of political parties, the massacre of hundreds of Bengalis,—Hindus and Muslims,— developments since January, 1983 leave no doubt that the agitators are determined to purge Assam of all people who are not of Assamese origin. These non-Assamese, however, consist of different categories.

In so far as the *citizens* of other States, such as West Bengal or Bihar, are concerned, who have settled in Assam for purposes of profession or business, the agitators must remember that these citizens of India have a fundamental right to reside and settle in “any part of the territory of India” under *Article 19*(1)(e). To oust them from the State of Assam by violence would be to give a decent burial to the *Constitution*, and if Assam is allowed to succeed, other States would most likely to follow, breaking federal India into pieces.

The first task of the Government and the agitators should, therefore, be to identify these “citizens of India”, *i.e.,* those who have acquired citizenship of India under *Articles 5* or *6* of the *Constitution* or under the provisions of the *Citizenship Act, 1955*. These people are not “foreign nationals”. They can be found out only through some peaceful machinery and not force. Good sense prevailed with the agitators to realise this.[69] But though the Tribunals set up for this purpose[70] had done substantial work by May, 1987, there has been a stalemate in finalising the decisions of the Tribunal owing to a controversy on principles.

(iii) The problem of infiltration from Bangladesh.

Not only the security of India but the entire social and political structure of India has been threatened by the mass infiltration of Bangladeshis into the border States of Assam and West Bengal.

The question involved is not communal but legal, namely that of sovereignty. No independent State, other than India, would welcome infiltrators from another State. As early as 1964-65, cases brought before the Calcutta High Court[71] clearly demonstrated that large number of immigrants had overstayed after expiry of their visas,

with the support of their kinsmen or friends in the bordering districts of West Bengal. In pursuance of the judgments passed in these cases, the Police pushed back many of these immigrants into Bangladesh, but the operation was stalled by the utterance of a Chief Minister of Bengal that he himself was neither a Hindu nor a Muslim, and that he would view the problem of illegal immigration or infiltration as a *humanitarian* problem caused by a shortage of food or employment in Bangladesh.[72]

The Government of India also shut their eyes to the problem even when some leaders in Bangladesh threatened to conduct a "long march" of Pakistani nationals through India or even when the infiltrants demanded Indian citizenship at a mammoth gathering at the Calcutta Press Club under the nose of the Police.[73] They were roused to their senses only when the infiltrators reached the capital city of Delhi (as did Bahadur Shah Zafar!), and when they are demanding Indian citizenship on the strength of their Ration Cards and entries in the electoral roll,[74] and forming Muslim pockets[75] which would lead to a demand for their autonomy.

It is a pity that the same Central Government who had earlier overlooked the illegal immigration as a human problem has now held it to be a serious threat to the integrity of Indian[76] at a conference of Chief Ministers called by the Centre, and the same Party in West Bengal which had so long prized the votes of the infiltrators,[77] has made a clean breast of the *modus operandi* adopted and the seriousness of the problems created by them.

It was held that there could be a unique type of bloodless aggression from a vast and incessant flow of millions of human beings illegally migrating from one country to another which is likely to cause serious "internal disturbances" in the shape of insurgency of alarming proportion, making life of the people wholly insecure and creating a fear of psychosis. The court was referring the migration of people from Bangladesh to State of Assam. It was held that such migration can in certain circumstances be termed as "aggression" or "war". It was further held it was the foremost duty of the Central Government to defend its borders of the country, prevent any trespass and make life of citizens safe and secure.[78]

More striking is the fact that the "operation push back" which had been started by the Centre has been suddenly and unceremoniously suspended owing to the following facts reported in the newspapers:

(a) Protest by Bangladesh Government[79] (with which the Government of India is anxious to maintain friendly relations), on the plea that none of those who had been pushed back are nationals of Bangladesh.

(b) Protest by the West Bengal Government[80] on the ground that when the infiltration takes place through several bordering States, West Bengal should not be singled out as the scapegoat for performing this odious task (forgetting that West Bengal is a part of India and should co-operate in resolving a problem which is affecting the economy of West Bengal as well, and that most of the infiltrators had entered through the borders of West Bengal).

(c) An alleged assurance to a Congressman that the infiltrators will vote for his Party if spared from ouster.

The result of this debacle will only discourage the B.S.F. and encourage the infiltration and border crimes (supported by fundamentalists in Bangladesh) and further scramble in India for the votes of the illegal immigrants.

Apart from anything else, infiltration has thus come to operate as a divisive force threatening the integrity of India, which can be rooted only by firmly carrying out a plan of action after realising the gravity of the situation.[81]
(iv) Other separatist forces.

If India has to survive as a nation against external aggression, divisive forces must be nipped in the bud. But the multitudinous factors which foster separatism start with humble and surreptitious beginnings which are not always obvious, but unless they are rooted out at that stage, it becomes too late when they assume an alarming dimension.
Language as a separatist force.

One of such factors is that the people having a separate language must have a separate political status and autonomy. The initial *blunder* of the Government in this behalf was committed when the States were reorganised on a primarily linguistic basis and that current is still unimpeded, thus raising the original number of States in Parts A-B (18) to 25, in 1987, and the scramble for *Gorkhaland, Jharkhand,Uttarkhand, Bodoland* arose. Jharkhand and Uttarakhand were eventually granted state-hood, However, the issue of language chauvinism continues to appear in public debates.

Gorkhaland agitation.

The secessionist nature of the *Gorkhaland* agitation is veiled and equivocal and not so patent as in the case of that for *Khalistan,* and that is why the Government of India was initially misled to assume that the *Gorkhaland* agitation was not anti-national, until the Government of West Bengal came out with a well-documented White Paper which gives written evidence of what the GNLF (Gorkha National Liberation Front) means, according to its "President" Ghising.

The *Gorkhaland* agitation relates to the West Bengal District of Darjeeling where a large number of Nepalis reside as immigrants, under a reciprocal treaty of friendship between India and Nepal of 1950. The GNLF claim that Darjeeling was a part of Nepal and came to the British Government by way of cession from Nepal is, however, not correct because the territory of Darjeeling belonged to Sikkim and Bhutan and the British acquired the territory by grant, agreement or annexation of which the other party was not Nepal but Sikkim or Bhutan, during the 19th century. Nepal entered into the 1950—Agreement with India, because the immigrants to Darjeeling were people of Nepali origin (*Gorkhas*) whereas many Indians were similarly residing in Nepal, so that "reciprocal rights and privileges" were of interest to both Nepal and India.

The agitation for Gorkhaland took a concrete shape by the submission of a Memorandum by the GNLF leader the King of Nepal on December 23, 1983 This contained clearly a demand for creating a separate State for the Gorkhas in the territory of Darjeeling, The appeal was to the King of Nepal to revoke all treaties and agreements which might stand in the way of severing Gorkhaland from India. It also spoke of the "right of *self-determination"* of the Gorkhas, and copies of this Memorandum were simultaneously sent to the heads of foreign States, such as the U.S.A., France, Pakistan, Britain, the United Nations (besides India). There was *not aword* in this Memorandum as to Gorkhaland being created as a separate State *within* the Union of India. The birth of the Gorkhaland movement was thus clearly for *secession* from India.

The Author had, in the 12th Edn of his *Introduction to the Constitution of India*, suggested that if the Government does not create a separate State it would have to offer *regional autonomy* after its terms were settled by a tripartite talk between India, West Bengal and the Gorkha leaders. This has come to be true. In July, 1988, an agreement was signed creating a Gorkha Hill Council, followed by election in pursuance thereof, and Subhas Ghisingh has been elected Chairman of the Council.

A formidable corollary from the linguistic demand is the struggle for getting one's language included in the 8th Schedule of the *Constitution*. Obviously, there is little material gain from such inclusion. The only two relevant provisions of the *Constitution* are *Articles 344*(1) and 351. The former gives the people representing a language specified in the 8th Schedule to have a member in the Official Language Commission and the latter gives that language a footing to be considered for contribution towards the development of the Hindi language. The real motive behind the struggle for inclusion of a particular language, therefore, is *political*, namely, to lay the corner-stone for demanding a separate political entity for the people speaking that language, as in the case *Gorkhaland.*

Be that as it may, the demand for every language to be included in the 8th Schedule is wild because there are as many as 1652 languages in India[82]. Hence, there must be standard according to which the status of the 8th Schedule may be conferred on a language. Unfortunately, there is no such standard laid down in the *Constitution* itself and that is opening an avenue for diverse factions to raise demands which, if conceded, would lead to a suicidal fragmentation of the Union. Outside the *Constitution*, of course, there is an understanding that only languages which are spoken by over 1 lakh of people are entitled to enter into the 8th Schedule. But this understanding is too feeble to resist indiscriminate claims from any faction which may gather force enough to intimidate the Government. It is, therefore, advisable to include this or some similar standard in the *Constitution* itself, so that Government shall have a better foothold in fighting against the divisive forces; resort to *ad hoc* palliatives has proved to be dangerous for the Nation in the long run.

It is lamentable that notwithstanding the foregoing warning offered by the Author in the 13th Edn of his *Introduction to the Constitution of India,* Government of India failed to amend the *Constitution* to lay down any definite standard for inclusion in the 8th Schedule and, instead they have been obliged to amend the 8th Schedule itself[83] to include three new languages, *viz., Konkani, Manipuri* and *Nepali,* because for the time being, their demand became irresistible. But even then the case for the elevation of other languages continues unabated. Curiously, Mr. Ghising is not contended with the inclusion of Nepali alone; he wants additional entry for *Gorkhali,* contending that it is a language separate from Nepali which is for all residents of Nepal, apart from the Gorkhas.

In its Preamble, abolishing any reservation or representation on the basis of the religious colour of any individual or community; and such reservation, if made now, would violate the guarantee of equality in *Articles 15*(1) and *16*(1)-(2), as explained by the Supreme Court.[84] Of course, all these guarantees acknowledge the constitutionality of reservation or other special provisions in the interests of the "backward classes", so that any community which is *socially or educationally* backward[85] may be entitled to special consideration under the existing *Constitution*, irrespective of its religious complexion.

(v) Constitutional status to Minority Commission.

Another demand of a minority community is that the Minority Commission, set up administratively, during the Desai regime, should be given a constitutional footing and a *binding force* to its recommendations.[86] In course of time, the Minority Commission suggested that the position be strengthened by conferring statutory powers of enquiry under the Commission of Enquiry Act 1952. The Commission also suggested that it be given a constitutional status, so that it could function effectively. Accordingly, the Parliament enacted *National Commission for Minorities Act 1992* to establish National Commission for Minorities on a statutory basis. This Act was amended by Act XLI of 1995.

In fact, the *Constitution* (46th Amendment) Bill was tabled before the Parliament seeking to insert *Article 338A* in Pt XVI that would provide for appointment of a minority Commission by the President. Till 2013 the Minorities Commission has only a statutory status.[87] The learned author says: "Till now we have a Minority Commission without a constitutional recognition. We shall have then (*i.e.,* when it gets constitutional status) to put it in a straight line, a constitutional minority Commission suggesting job reservation on the basis of religion along with a constitutional provision injuncting the State not to discriminate on the ground of religion (*inter alia*) in job reservation and constitutionally empowering the citizen to restrain the State through the judiciary from discriminating on the ground of religion. Is the initial abortion of the 46th Amendment, a symbolic gesture of retributive justice to the beleaguered equality principle? But then the wheel of amendment may be set in motion.[88]

Apart from the fact that none of the various investigatory Commissions set up by the existing *Constitution* has got more than recommendatory status, the broad consideration against any such drastic proposal is that, if conceded, it would mean a Government by the Minority Commission, resulting in the abdication of the Government by the peoples' representatives voted to power.[89] To quote the words of SIR SAMUEL HOARE, who rejected the suggestion that the recommendation of the Public Service Commission should be binding on the Government—

> The danger is that if you give them mandatory powers you then set up two Governments. [90]

The same view has been taken by the Supreme Court wherein it was held that recommendations by the Commission are only in the nature of opinions and can have no binding effect. The court also declared that it was not in the contemplation of the framers of the *Constitution* to add to the list of religious minorities.[91]

Besides, what would happen if the members of the Minority Commission (which must necessarily be a collegiate body representing the various minority communities) fail to agree (as has already happened since one of the Members of an erstwhile Commission, Professor John, in a reasoned discourse, exposed the blatantly unreasonable, anti-national and anti-majority views and outlook of some of his colleagues)?[92] When the Commission is divided, it is obvious that Government must have the discretion to find out which of its views is consonant with reason and national interests. Even when the Minority Commission speaks in one voice, it cannot claim an imperative command simply because it is *not a body responsible tothe people.*[93] In short, to accede to the present demand would be to subvert the very institution of *representative democracy* which is the soul of the present *Constitution*, from its Preamble right up to its end.

Besides, what should be the proper jurisdiction of the Minority Commission, what would happen to any recommendation of the Commission which is *ultra vires* or outside that jurisdiction and who will decide whether any of its recommendations is beyond its jurisdiction? Insurmountable confusion and chaos would result if, in spite of these considerations, binding force is given to the recommendations of the Minority Commission. Let us take a concrete instance:

The only proper jurisdiction of any such Commission, under the existing *Constitution*, would be the safeguards included in *Articles 25-30*.[94] If, notwithstanding this, some of the Members of the Minority Commission advocate separate representation or reservation in the Services for members of the minority communities, and the recommendations of the Commission or those of its majority are made constitutionally binding on the

Government, notwithstanding the anti-national impact of such recommendations as just explained, it would tantamount to enthrone the minority over the majority, and to cast to the winds all that we fought for to attain Independence even at the cost of truncating the Motherland.

In *Bal Patil's case* (*supra*), the court further held that:

> differential treatment to linguistic minorities based on language within the State is understandable, but if the same concept for minorities on the basis of religion is encouraged, the whole country which is already under class and social conflicts due to various divisive forces will further face division on the basis of religious diversities. Such claims to minority status based on religion would increase in the fond hope of various sections of the people getting special protections, privileges, and treatment as part of the constitutional guarantee. If, only on the basis of different religious thought or less numerical strength or lack of health, wealth, education, power or social rights, a claim of a section of Indian society to the status of "minority" is considered and conceded, there would be no end to such claims in a society as multi-religious and multi-linguistic as India is. A claim by one group of citizens would lead to a similar claim by another group of citizens and conflicts and strife would ensue. As such, a Hindu society, being based on caste, is itself divided into various minority groups. Each caste claims to be separate from the other. In the caste-ridden Hindu society, no section or distinct group of people can claim such status because of small number and expect protection from the State on the ground that they are backward. If each minority group feels afraid of the other group, an atmosphere of mutual fear and distrust would be created posing serious threat to the integrity of our nation. That would sow seeds of multi-nationalism in India. Encouragement of such fissiparous tendencies would be a serious jolt to the secular structure of constitutional democracy. We would guard against making our country akin to a theocratic state based on multi-nationalism.

Opposition to Uniform Civil Code: Article 44.

Another demand is that the Directive in *Article 44* for establishing "a uniform civil code throughout the territory of India" should not be applicable to the Muslims who should be allowed to be governed by the *Shariat* as their personal law.[95]

This demand, again, seeks to put the clock back. At the time when the *Constitution* was framed, all such claims were considered and rejected on the grounds that (a) matters such as marriage, inheritance and the like falling under the category of "personal law" are secular matters having no essential relation to religion[96] and that (b) without a Common Civil Code, *inter alia,* the people of India, belonging to heterogeneous elements, could never be united into a nation. The provision in *Article 44* is nothing but an implementation of the objective of "fraternity unity and integrity of the Nation" which is not only enshrined in the Preamble to the *Constitution*, but is since buttressed by the Fundamental Duties in *Article 51A*(c), (e).

It may be mentioned that when the Law Commission of India took up the question of framing a Common Code of Marriage and Divorce, not only the Muslims but the Christians too opposed the move and that the very Government which had induced the Hindus to give up their scriptural laws relating to these matters gave way to the Minority resistance, for "political" reasons. Now that *Article 51A* has been embodied in the *Constitution*, a constitutional lawyer might urge that any opposition to *Article 44* by any member of any minority community would be a violation of *Article 51A*, and any Government which yields thereto would be a party to such violation of the *Constitution*.[1]

But, as a first step towards this goal, the Parliament codified law relating to Hindus in respect of marriage, divorce, succession, minority and guardianship, maintenance and adoption in the years 1955 and 1956. But, no further steps were taken in respect of all Indians. Even a secular bill for adoption of children was withdrawn from the Parliament in 1978. Recently, the Parliament has amended the Parsi Marriage Act and *Divorce Act* 1936 and the *Indian Divorce Act* which governs Christians, in 2000 to make these laws more egalitarian and to bring in provisions comparable with *Special Marriage Act 1954* into these Acts. The *Indian Succession Act*, in so far as it governs Parsi Inheritance and Succession has also been amended in 1991 by inserting new section 51 to remove gender discrimination from this law. The reluctance on the part of Government to pass a Common Civil Code is based on the apprehension that the party might lose its support of the Muslims at the time of election. Hence, so long as the ruling political party continues to entertain this apprehension, there is very little likelihood of implementing this Directive Principle.

The Supreme Court expressed the hope that uniform education system would achieve the code of common culture, removal of disparity and depletion of discriminatory values in human relation. It would enhance virtues and improve the quality of human life, elevate the thoughts which advance our constitutional philosophy of

equal society. In future, it may prove to be a basic preparation for the Uniform Civil Code as it may help in diminishing opportunities to those who foment fanatic and fissiparous tendencies.[2]

It is curious that while polygamy has been either abolished or controlled by Islamic States like Turkey and Bangladesh and is discouraged even in Pakistan, Indian Muslims are pressing to uphold it as their religious right, founded on the *Shariat*[3] and eventually protected as a fundamental right, by the *Constitution of India*.[4]

It is regrettable that the Government went a step forward. Overriding the clear mandate of *Article 44* and its support by the Shiah Muslims and learned Muslim scholars, and overriding the emphatic observations of the Supreme Court in the *Shah Bano case*[5], the Government enacted the *Muslim Women (Protection of Rights on Divorce) Act, 1986*, providing that the statutory provisions contained in this Act should govern, unless the divorced woman and her former husband apply to the Court that they would prefer to be governed by the provisions of *section 125, Code of Criminal Procedure, 1973*, as to the right of maintenance of the divorced wife.

The Government, thus, gave way to certain section of people to violate the Supreme Court decisions as well as the *Constitution*, which enjoined the State to make a Common Civil Code, overriding any personal law to the contrary. Once one particular community is permitted to urge anti-national demands, it is natural that *other* minority communities will start clamouring for other privileges which might serve their own sectional interests.[6]

The claim of Harijans who have embraced Buddhism to be still treated as “Scheduled Castes” for being entitled to the special reservations for Scheduled Castes in Parts III and XVI of the *Constitution* notwithstanding conversion to a religion other than Hindusim, may be cited as an instance.
Claim of Hindu converts to other religions.

An impartial observer should wonder how such claim could be advanced by the Buddhist, Muslim or Christian converts in the face of the history and meaning of the very expression “Scheduled Castes”. *It is, in the first instance to be recalled that this expression is not a coinage of the Constitution of Independent India, but had its origin in Para 2 of the Scheduled Castes Order, 1936, which had been issued in pursuance of the direction in Para 26 of Schedule I of the Government of India Act, 1935—to determine the classes who were “depressed classes” (called “Harijans” by Mahatma Gandhi).* In this pre-*Constitution* Scheduled Castes Order of 1936, it was categorically declared that *no* person who is an “Indian Christian” or who professes “Buddhism” or a “tribal religion” should be regarded as a member of a Scheduled Caste even though he might originally have belonged to the list of Scheduled Castes prescribed by that Order. It does not appear that any Anglo-Indian or Buddhist ever protested against this provision of the Order of 1936.

The framers of the *Constitution* made two categories for favourable treatment (a) Scheduled Castes and Tribes, and (b) “socially and educationally backward classes” even though they might not belong to any of the listed Scheduled Castes [*Article 15*(4)]. The reason why the separate category of “Scheduled Castes” was still maintained was that the caste system was prevalent only amongst Hindus and the Sikhs, owing to their social history, and it was this caste system which resulted in their degradation. *Casteism (as such) is not professed by other religions, such asChristianity, Buddhism and Islam.* That is particularly the reason why the makers of the Government of India Act, 1935 and the Orders thereunder did not entertain any reservation in favour of Hindu converts to those religions.

In the Scheduled Castes Order, 1950, which was framed under the *Constitution*, it is, accordingly, laid down (para 3) that a person shall *not* be deemed to be a Scheduled Caste “if he professes a religion different from the Hindu or Sikh religion.” The validity of this exclusion was challenged by persons converted to Buddhism under the auspices of Dr Ambedkar, but it was rejected by a unanimous decision of the *Constitution* Bench of the Supreme Court.[7] It is patent truth that the Hindus form the target of conversion by proselytising religions, such as Christianity, Islam or Buddhism, on the ground that Hinu Harijans suffer because of the caste system. After converting them to their own fold, their object is to *overturn* the aforesaid decision of the Supreme Court. If any Government entertains softness to concede the demands of the converts from Hinduism, they might, juridically, be abettors of conversion from one religion to another and an act of aggression against the non-proselytising Hindu religion—quite contrary to the guarantee of secularism in *Article 25 of the Constitution*.[8]

Of course, if any section of converts comes under the “socially and educationally backward” classes, they would still be entitled to the special privileges under *Articles 15*(4), 16(4). But that would be a different matter.[9]

Notwithstanding these decisions of the highest tribunal of the land and the irrefutable grounds stated in the foregoing pages, the National Front Government has enacted the *Constitution* (Scheduled Castes) Orders

(Amendment) Act, 1990 (Act 15 of 1990) extending the Scheduled Caste privileges to the Buddhist converts from Hinduism. It is reported to be considering to make similar concessions in favour of Christian converts. This will further erode the unity of the nation.

The advocates of guaranteeing further minority rights in India supplanting the existing *Constitution*, if necessary, pretend to overlook the following broad considerations which distinguish the status of minorities in India from the international problem of minorities in post-War Europe which has inspired the International movement for minority safeguards:
No minority problem in the international sense.

In the international sphere, the demand for special safeguards to protect the cultural or linguistic identity of minority communities originated from the principle that owing to war or like circumstances causing territorial changes *without the consent* of the people residing in those territories, the identity of such communities who have been torn as under by circumstances beyond their control [such as the Germans being divided into two halves by World War II] should be preserved from ethnic extinction, by affording proper safeguards through international Charters and national Constitutions.

The partition of India which left a portion of the Muslim community in India took place in the *opposite* way. The pre-independence demand of the Muslim community led by their acknowledged leader, Mr. Jinnah, was to have a separate home-land for the Muslims who, it was asserted, constituted a nation separate from the Hindus. The British Rulers conceded to this demand overruling the contention of the nationalist Indians that the Muslims and Hindus as well as the other people residing in India constituted one nation and not two or more. The result of the acceptance of the two-nation theory was the lamentable partition of India and the creation of a separate Dominion, named Pakistan. As a sequel of such division, the Hindu leaders in India could have insisted upon an exchange of population between Pakistan and India, so that all the Muslims in undivided India could be transferred to Pakistan. But they did not prevent any Muslim from staying behind in India, *as an Indian.* Those who remained in India, did so *of their free will and option.* The partition was the seeking of their own community and *not the result of any circumstances beyond their control,* such as the first or second World War which created the international minority problem in the world.

Of course, in consonance with the liberal attitude of the Hindu leaders, the framers of the *Constitution* of independent India embodied certain safeguards for minorities in the manner as the International Charters. But these safeguards were extended to all numerical minorities of *all* religions, languages and cultures and not to the Muslims in particular. The Muslims who opted not to go to Pakistan did so with their *eyesopen* as to the safeguards they might get under the draft *Constitution* and not because of any covenant that they would be allowed *to demand more and more to serve theirsectional interests,* as they did in undivided India to bring about the partition.

It is to be noted that the Universal Declaration did not contain any provision in respect of minorities so that the makers of the Indian *Constitution* had no international obligation to include in the *Constitution* of 1949 any special provisions to protect the minorities. Subsequent thereto, in 1966, the International Covenant was adopted, including *Article 27*[10] as follows:

> ***Article 27*.—**In those States in which ethnic, religious or linguistic minorities exist, persons belonging to such minorities shall not be denied the right, in community with the other members of their group, to enjoy their own culture, to profess and practise their own religion, or to use their own language.

U.N. Charter.

Nor is a minority, as such, entitled to the right of “self-determination”. This right, referred to in *Article 1* of the U.N. Charter, was evolved to secure the liberation of people who had been subjected to the domination of another State by occupation or annexation, and the U.N. Trusteeship Territories. Minority communities, such as the Muslims or the Sikhs, are permanent residents of India, who were not annexed to India by war or occupation. Such a minority is not entitled to assert the right of self-determination.[11]
International Covenant: Article 1(1)

Of course, *Article 1*(1) of the International Covenant[12] uses the dubious word “peoples”, to say—

> All people have the right of self-determination.

But this article is nothing but an echo of *Article 1*(2) of the U.N. Charter which uses the word “peoples” in juxtaposition with the word “nations’:

> To develop friendly relations among *nations* based on respect for the principle of equal rights and self-determination of *peoples,* and to take other appropriate measures to strengthen universal peace.

Considering the Dictionary meaning of the word “people” in the plural, and the context of the preceding international documents, it seems that the word “peoples” has been used to denote groups of people who are analogous to “nations” but are short of that status because of lack of territorial integrity, sovereignty and the like,—who have been subjected to a foreign rule against their consent. The Sikh were the original Hindu inhabitants of India who embraced the tenets of Guru Nanak, only some five hundred years ago. Similarly, the majority of the Muslim population of India represents Hindu inhabitants of India converted to Islam, since the time of Sultan Mahmud, roughly 1000 years ago. No question of colonialism arose in either case.
Article 27.

Turning now to Article 27 of the International Covenant, it is evident that the only rights it assures to persons belonging to minority communities are to enjoy their own culture, language and religion, which they may *enjoy along with other members of the community. The Indian Constitution has already guaranteed these rights, as “fundamental rights”, in Articles 25, 29, 30 and similar provisions.[13] If any of these rights is invaded by any action of the State—legislative or executive, the person aggrieved may get proper relief from the courts.*

But to urge for *political* or other rights not provided for by the *Constitution*, would not only unconstitutional but anti-national, because the makers of the *Constitution* wanted to build up *one* Nation, namely, India, in which persons belonging to the majority and the minority would embrace themselves into a Fraternity [Preamble].

In the international sphere, it has been emphatically made clear[14] that the only object of offering the minority safeguards in the Charters was to protect the minority from discrimination by the majority who administer a country under a representative system of democracy. But this is on the condition that the minority “must be loyal to the State of which they are nationals”, and must not set up an “*imperium in imperio*“ founded on their minority status.

The framers of the Indian Constitution, fondly believed that, having established a secular State (i.e., a State which has no established religion of its own, and treats all religions equally) and offered safeguards for the preservation of the religious, cultural and linguistic identity of the minorities,—not, only Muslims, but all the minorities who remained in India as Indian citizens, would be united as one Nation by the bond of “fraternity” (Preamble).[15]
(vi) Has Parliamentary Democracy failed in India?

The Parliamentary system was adopted by the fathers of our *Constitution* from England, but there has been a breakdown in its working for more than four decades because the major premises which ensure its success in England, disappeared or failed to grow up in India.

DR. RAJENDRA PRASAD at the concluding session of the Constituent Assembly said: “We have prepared a democratic *Constitution*. But the successful working of democratic institution requires in those who have to work them, willingness to respect the viewpoint of others, capacity for compromise and accommodation. Many things which cannot be written in a *Constitution* are done by conventions. Let us hope we shall show those capacities and develop conventions”.[16]

> DR. RAJENDRA PRASAD further added: Whatever the *Constitution* may or may not provide, the welfare of the country will depend upon the way in which the country is administered. That will depend upon the men who administer it. It is a trite saying that a country can have only the government it deserves. Our *Constitution* has provisions in it which appear to some to be objectionable from one point of view or another. We must admit that the defects are inherent in the situation and the people at large. If the people who are elected are capable and men of character and integrity, they would be able to make the best even of a defective *Constitution*. If they are lacking in these, the *Constitution* cannot help the country. After all, a *Constitution* like a machine is a lifeless thing. It acquires life because of men who control it and operate it and India needs today nothing more than a set of honest men who will have the interest of the country before them. There is fissiparous tendency arising out of various elements in our life. We have communal differences, caste differences, language differences, provincial differences, and so on and so forth. It requires men of strong character, men of vision, men who will not sacrifice the interest of the country at large for the sake of smaller groups and areas and who rise above the prejudices which are born of these differences.[17]

> In India today I feel that the work that confronts is even more difficult than the work which we had when we were engaged in the struggle. We did not then have any conflicting claims to reconcile, no loaves and fishes to distribute, no powers to share. We have all these now and the temptations are really great. Would to God that we shall have the wisdom and strength to rise above them and to serve the country which we have succeeded in liberating.[18]

Multiple Parties

The first condition for its success is the existence of two major political parties,—one in power and the other in the opposition, each having clear-cut alternative policies, so that the Electorate have no difficulty, at periodical intervals, to make or revise their choice as between the two alternatives, in the light of their experience during the preceding period.
Absence of free and fair election.

The second major premise of a Parliamentary Democracy is a system of free and fair election. It rests on the concept of an appeal “from the bullet to the ballot box”.

During my stay in the U.K. and the U.S.A. on several occasions of Parliamentary and Presidential elections, I have never found any resort to violence to attain victory by silencing the opponents. The fight is on *issues* and between alternative solutions Congress Party had an absolute majority in the *Lok Sabha*, and the Cabinet system worked *fairly* well so long as the Congress Party retained this majority. offered by rival parties and the candidates.[19] It is commonplace to find two rivals to address public gatherings from the same platform and the whole process of changeover from one Government to another becomes smooth and peaceful.
Resort to violence to capture power.

In *India,* on the other hand, it has become commonplace that when a political leader is determined to win an election at any cost he uses younger people as tools in his election campaign of bloodshed. It is the young people who either kill or are killed. At the General Election of Parliament held in November, 1989, over 100 lives were lost in the election clashes and a similar figure is to be attributed to the State Assembly Election in several States which took place in February, 1990. At the election for the 10th Lok Sabha held in 1991 the death toll has exceeded 289. Side by side was the open declaration of a Chief Minister that, whatever might be the result of a Poll, the issue of a certificate of the Returning Officer was under his control. This cannot be brushed aside as a hyperbole because it was attended with unlawful practices which led to unprecedented intervention by the Election Commission in some such States.

This is not a Parliamentary democracy, but it’s a death-knell. It will be a glorious failure of democracy in India if the younger generation does not cry a halt to this scheme of massacre. It is for them to rise as a man to protest against the nefarious tactics of the heads of various political parties, at *their cost.*
Non-participation of peace-loving marginal voters.

At a General Election, it is the marginal voters, who owe their allegiance to the Nation above the Parties immersed in “Power Politics”, who decide the fate of a “free and fair election”. But, in India, these marginal voters are abstaining from the Poll owing to various reasons, including uncontrolled violence and corrupt practices.

Some people suggest that compulsory voting should be introduced in order to compel the intelligentsia to attend the polling booth. This would, however, be not only unreasonable but even cruel on the part of a State which fails to protect the booths from bombing and terrorism, kidnapping of voters, forcible removal of ballot boxes, massive impersonation and other devices of rigging. It is no election where a Chief Minister could proclaim that whatever happened at the poll, the Returning Officer’s certificate was under *his* control.
Fall in the quality in the average legislator, and decline of talents in the Legislature.

Such violence has desisted a peace-loving member of the educated section not only from voting but also from standing as a candidate whether as a subservient member of a fighting faction or as an independent. The result has been a fall in the quality and character of the legislators and, necessarily, of the administrators.

A basic foundation of Democracy lies on the assumption that “no man is more indispensable than any other”. In India, on the other hand, owing to the cumulative operation of the foregoing factors, power has glided into the hands of certain aggressive families or groups who can survive in such turmoil. This is not Democracy but Oligarchy.

The Parliamentary system of the British type (which India adopted) means a Cabinet system of Government or Government by the Party having a majority in the popular House in Parliament. When *our*Constitution was adopted in 1949, the Congress Party had an absolute majority in the *Lok Sabha*, and the Cabinet system worked *fairly* well so long as the Congress Party retained this majority.

Growth of mushroom parties.

But since 1967, this picture of the monolithic majority of one Party has changed owing to two factors: (a) Growth of numerous Parties; (b) Defection subsequent to election.

(a) Instead of strengthening the national sentiment, independence has led to the rise of clannish and personal self-interest, causing the division of the major Parties into numerous Parties having little to distinguish them from each other (from the standpoint of alternative policies) save the scramble for power of particular political leaders (such as, Morarji Desai, Charan Singh, VP Singh, Chandrasekhar—at the Union level, heading Parties named Janata, Janata Dal, Samajbadi Janata Dal, Lok Dal and so on).

In the Report of the National Commission to Review the Working of the Commission (2002), the Commission has taken note of the mushroom growth of political parties. It is said:

> In recent years, there has been sharp increase in political mobiliasation of the electorate on the basis of social cleavages based on inscriptive identities, in particular, of religion and caste. Casteism, communalism and personality domination have been the main planks around which the fragmentation of political parties has taken place. Political parties have inevitably exploited these sentiments for gaining support of the voters. These developments have necessitated a need to review the working of political parties and their role and performance in the scheme of Indian polity and *Constitution*.[20]

The Commission identified the problem areas and wanted immediate action. (a) Institutionalisation of political parties – need for a comprehensive legislation to regulate party activities, criteria for registration as a National or State party – de-recognition of parties; (b) Structural and organisational reforms – party organization – National and State and local levels – inner party democracy – regular party election, recruitment of party cadres, socialisation, development and training, research thinking and policy planning activities of the party; (c) Problem of party funding – a need for a legislation to regulate party funds – distribution and spending party funds during non-election and election times; (d) Maintenance of regular accounts by political parties – auditing and publishing and making audited accounts available for open inspection; (e) To what extent and in what way the party system could be reformed so as to pave the way for the establishment of stable government based on the concept of two party system or dual party alliance system; (f) Steps to check criminalisation of political parties; (g) Steps to curb the role of casteism and communalism; (h) Steps to encourage gender participation in political organisation; (i) Party system and governance – mechanism to make parties viable instruments of good governance.

The Commission has also recommended a comprehensive legislation (may be named as “Political Parties (Registration and Regulation) Act” which provides for recognition of political parties, and all matters mentioned above and to adopt a leadership convention system. The Commission has also recommended that the Election Commission should progressively increase the threshold criterion for eligibility for recognition, so that the proliferation of smaller parties be discouraged. It has also recommended that only parties or a pre-poll alliance of political parties registered as national parties or alliance with the Election Commission be allotted a common symbol to contest election for the Lok Sabha. State parties may be allotted symbols to contest election for State Legislature and Rajya Sabha.[21]

Minority Government.

The fragmentation of Parties results in the division of the votes of the electorate, so that no one Party comes out with a majority after a General Election. In such a situation, if another election has to be avoided, the Head of the State is left with no other alternative than to call the leader of one of the factions to from the Government. The result is a “minority Government” which can stay in power only with the support of one or two factions and only so long as these supporters do not withdraw.

(b) “Defection” has played a mischievous role in breaking Governments so much so that the *Constitution* had to be amended in 1985, to engraft a set of anti-defection provisions, by inserting the Tenth Schedule. But newer problems have emerged in the application of those provisions. In the humble opinion of this Author, no amount of tinkering with the law will solve the problem so long as the defectors do not rise to their sense of “political

morality". If one is, for any reason, dissatisfied with the performance of the Party which helped him with his ticket, honesty demands that he should surrender that seat and seek fresh election. Then there will be no problem of "defection" at all.

Report of the National Commission to Review the Working of the *Constitution* (2002) has also expressed the view as stated by learned Author. The Report says:

> The question of defection has now haunted the Indian polity for over three decades. This was sought to be eliminated by the X Schedule, but all that has happened is that while individual defection has become rare, *en bloc* defections are permitted, promoted and amply rewarded. Despite the X Schedule or because of it, countless defections have taken place without incurring any disqualification. In fact, on an average, more defections per year took place after the anti-defection law as laid down in the X Schedule came into force than ever earlier. What has been more disconcerting is that some of the Speakers have tended to act in a partisan manner and without a proper appreciation – deliberate or otherwise – of the provisions of Tenth Schedule. Almost everyone dealing with this subject agrees that defection flouts people's mandate and cannot and should not be permitted, either singly or in a group. The fact is that most candidates get elected on the basis of the party that has given them a ticket. Defections allow those candidates to theoretically go to the pole opposite of this party, which is not the basis on which people elected them. Simply because there is no accountability *vis-à-vis* the people, such a practice continues unabated. Defection encourages corruption at the higher level. Defections usually are rewarded with political position and other such perquisites so openly that it really makes a mockery of our democracy.
>
> The Commission recommends that the provisions of the Tenth Schedule of the *Constitution* should be amended specifically to provide that all persons defecting – whether individually or in groups – from the party or alliance of parties, on whose ticket they have been elected, must resign from their parliamentary or assembly seats and must contest fresh election. In other words, they should lose their membership and the protection under the provisions of split should be scrapped. The defectors should also be debarred to hold any public office of a minister or any other political post for at least the duration of the remaining term of the existing legislature or until the next general election whichever is earlier. The vote cast by the defector to topple the government should be treated as invalid. The Commission further recommends that the power to decide the question of disqualification on ground of defection should vest in the Election Commission instead of the Chairman or Speaker of the House concerned.[22]

Lack of political education.

If I remember aright, Mahatma Gandhi once advised that after Independence, the Congress party should be disbanded and its workers should go to the villages to impart political education to the masses. This could not, of course, happen because India could not do without any administration; the leader of the majority Party, therefore, had to take up the reins from the "freedom at midnight".

The pity was that even the rank and file of that party became enamoured of power. Membership of the Legislature or of the Council of Ministers came to be regarded as a *job* for many who were otherwise unemployable, while service to the nation by educating the people was left to poor mendicants such as Charu Chandra Bhandari or Vinoba Bhave, who had no "power" in their hands to dispense jobs, permits and the like, to persuade the electors to listen to them.

Nationalism thus had an unceremonial burial in a land which showed the beacon-light to all humanity under bondage. The result of all this has been rise of factions and divisive forces, corruption in every sphere, disrespect for the *Constitution* and the law, and, above all, resort to the bullet in place of the ballot, so that "free and fair election" has been reduced to a magnificent farce. No palliatives can lift us up from this quagmire save morality and *true* religion. Some people think that religion is altogether irrelevant to our national progress. This is not correct. Politics in the name of religion may be a perversion; but true religion purifies the atmosphere.
Exit of public morality and honesty.

Religion and morality keep greed and dishonesty under restraint. In *India,* the first bane of Independence is the assumption that liberty means licence; and, whatever be the true meaning of "secularism", it has generated in the minds of even the educated elite the feeling that religion and morality are a surplusage and what matters is the material prosperity of the nation, starting from the centre of "self". The result has been the enthronement of public immorality and self-aggrandizement in place of patriotism and service to the nation which are essential to the running of a representative Government.

Former Prime Minister P.V. NARASIMHA RAO strongly opined on the nexus between political parties and corruption:

> We will have to do some serious thinking on the subject, its effect on the election process, the way votes are cast, the kind of booth capturing, even crime with electoral motivation which has become more and more prevalent.
>
> All kinds of illegalities are committed or sought for electoral gains. This may shape the entire democratic system.[23]

On the other hand, the narrow-mindedness and selfishness of the "representatives" of the people was shamefacedly illustrated when on the last day of sitting of the Ninth Lok Sabha, the M.P.s unanimously voted for enhancing their pension at a double rate,[24] even though the Lok Sabha was dissolved after a short duration,— without caring to see that a bill or motion having financial liability could not be introduced without the President's recommendation.[25]

The Commission to Review the Working of the *Constitution* has recommended a law to govern political parties. In that proposed law, the recommendation is that no political party should sponsor or provide ticket to a candidate for contesting election if he was convicted by any court for any criminal offence or if the courts have framed criminal charges against him. The law should specifically provide that if any political party violates this provision, the candidate involved should be liable to be disqualified and the party de-registered and de-recognised forthwith.[26]

In *Chief Election Commissioner v Jan Chaukidar*,[27] a Division Bench of the Supreme Court upheld an order of the High Court of Patna declaring that a person who has no right to vote by virtue of sub-section (*5*) of *section 62 of the Representation of the People Act, 1951*, is not an elector and is, therefore, not qualified to contest the election to either House of Parliament or the Legislative Assembly of a State.

The Government passed the Representation of the People (Amendment and Validation) Act, 2013 and added a proviso to sub-section (5) of *section 62 of Representation of the People Act, 1951* so as to expressly provide that by reason of the prohibition to vote under the said sub-section, a person whose name has been entered in the electoral roll shall not cease to be an elector. The Representation of the People (Amendment and Validation) Act, 2013 also amended the definition of the term "disqualified" in clause (*b*) of section 7 so as to expressly provide that a member of Parliament or the Legislature of a State shall be disqualified for being chosen as or for being such member only if he is so disqualified under the provisions of chapter III of Pt II of the said Act and on no other ground.

Resort to Presidential system, no solution.

Some people think that since we have failed in the game of parliamentary democracy, we should now try our hand at the Presidential form of Government. Without going into the merits and demerits of the two systems, a jurist should point out that this will *not be possible* because an amendment of the *Constitution*, which will be necessary for the purpose, will not be tolerated by the Supreme Court so long as the thirteen-judge dogma that the Parliamentary system of Government is a "basic feature" of our *Constitution*[28] is not turned down by a larger bench, which would be another herculean task.

We have, therefore, to remain contended with the Parliamentary system.

Apart from this, unless corruption is rooted out from the grass roots, a change over to the Presidential system will merely result in the installation of irresponsibility and autocracy; wherefrom shall we get a "clean" President and a nationally inspired electorate to keep him under control? In his last speech in the Constituent Assembly,[29] DR. AMBEDKAR said:

> If we wish to maintain democracy not merely in form, but also in fact, what must we do? The first thing in my judgment we must do is to hold fast to constitutional methods of achieving our social and economic objectives. It means, we must abandon the bloody methods of revolution. It means that we must abandon the method of civil disobedience, non-cooperation and satyagraha. When there was no way for constitutional methods for achieving economic and social objectives, there was a great deal of justification for unconstitutional methods. But, where constitutional methods are open, there can be no justification for these unconstitutional methods. These methods are nothing but Grammar of Anarchy and the sooner they are abandoned the better for us.

The second thing we must do is to observe the caution which JOHN STUART MILL has given to all who are interested in the maintenance of democracy, namely, not to surrender their liberties at the feet of even a great man, or to trust him with powers which enable him to subvert their institution. There is nothing wrong in being grateful to great men who have rendered lifelong services to the country. But there are limits to gratefulness. As has been well said by Irish patriot, DANIEL O'CONNEL "no man can be grateful at the cost of his honour, no woman can be grateful at the cost of her chastity and no nation can be grateful at the cost of liberty".

A cool thinking of all the foregoing considerations will enable us to realise that in order to save our democracy, each one of us should be honest, shall not hate or kill another, should love our country as we love our mother. This can be achieved if only we realise the true tenets of our respective religions, for no religion teaches otherwise.

> The real challenge to strengthen the voice of the people in running all democratically elected institutions lies in creating people's group that keeps a continuous vigil on the functioning of their elected representatives in having strong and independent media that expose wrongdoing and express common people's concern. This can happen only when we have an educated and well-informed electorate willing to participate in the political process and willing to act for the enforcement of rights and redressal of wrongs. As a nascent democracy, we must learn how to make democratic processes work for public utility.[30]

Source of the Constitutions

It is clear that *our*Constitution is not the product of any agreement between the component units, nor the result of any revolution: it is the deliberate and cool-headed product of a group of eminent men assembled in the Constituent Assembly who prepared a Draft after "ransacking all the known Constitution of the world". They had the experience of the working of the Government of India Act, 1935, and almost 75 % of the composition, therefore, owes its origin to that Act, subject, of course, to modifications in the light of experience. The makers of the Constitution themselves had openly declared that they are making a "borrowed" Constitution.[31] It is taken from various sources, the principal of which were – the Government of India Act 1935, the English System of Parliamentary or Cabinet System of Government, the American Bill of Rights and Judicial Review. The ideological portion, namely, the Fundamental Rights, is inspired by the Constitution of the *United States*, coloured by the provisions of later Constitutions, such as that of Eire. The idea of incorporating Directive Principles, in particular, is taken from the Constitution of *Eire*. The federal form is shaped mostly in the light of the *Canadian*Constitution, on the foundation of the Government of India Act, 1935. The principles of responsible Government, on the other hand, have been borrowed from the *British* system, together with the law and practice of Parliament, in general.

The Constitution, therefore, is a unique document drawn from many sources,[32] and the interpretation given by foreign Courts upon the borrowed provisions will, accordingly, be admissible[33] in interpreting many of the provisions of our Constitution,—subject to modifications as may be necessary owing to variations in language or context.[34] There are even some provisions in the Constitution which make it obligatory to refer to the Constitution of another country, *e.g.,* England, owing to the practice of "legislation by reference" having been resorted to by the framers of the Constitution. Thus, in Articles 105(3) and 194(3), the Constitution provides that until the privileges of the Legislatures are defined by legislation, the privileges "shall be those of the House of Commons of the Parliament of the United Kingdom". Similarly, Articles 32 and 226 empower the Supreme Court and the High Courts to issue the writs of *habeas corpus, mandamus, prohibition, quo warrantoand certiorari*, without explaining the nature of those writs or the conditions under which they shall be available. An inquiry into the English law relating to these writs thus, *prima facie*, becomes necessary, subject, of course, to modifications made by the text of *our*Constitution.[35]

10. CONSTITUTIONAL DEVELOPMENTS

These developments have taken place in a very wide spectrum as mentioned below:

(1) Breach of Fundamental Rights,

(2) Common Civil Code,

(3) Consumer Protection Movement,

(4/5) Government's Liability for exercise of excess authority, and breach of Fundamental Rights,

(6) Government's Liability in Tort,

(7) Government's liability in Contract,

(8) Lok Adalats,

(9) Legal Aid Programmes,

(10) Measures for Control of Environmental Pollution,

(11) Public Interest Litigation (PIL/SAL).

(12) Upliftment of Status of Women,

(13) Women & Domestic Violence,

(14) Problematic Kashmir Issue,

(15) Code of Ethics for Judges.

10.1. Breach of Fundamental Right.—

In *Rudal Shah v State of Bihar,*[36] a person was kept in unlawful detention for fourteen years. He was compensated, keeping his right to sue the Government intact. A number of cases in this regard can be cited in which compensation was granted by the Courts for breach of public law,[37] *i.e.*, violation of right to life by the police.[38]

10.2. Common Civil Code.—

The state shall endeavour to secure for the citizens a Uniform Civil Code throughout the territory of India is the mandate of the *Constitution*.[39] The object of the Article is to effect an integration of India by bringing all communities on the common platform on matters which are at present governed by diverse personal laws, but which do not form the essence of any religion, *e.g.*, divorce,[40] maintenance for divorced wife.[41]

The Supreme Court has regarded that *Article 44* has so long remained a dead letter and recommends early legislation to implement it.[42] It requested the Government of India through the Prime Minister to have a fresh look at this Article and endeavour to secure for the citizens a Uniform Civil Code throughout the territory of India.[43] In *John Vallamattom v UOI*,[44] the Supreme Court again emphasised the importance of Civil Code and observed that the same will help the cause of national integration by removing the contradiction based on ideologies.

Even though the court has emphasised its importance, no progress, however, seems to have been made in this regard. Change of Government with different political ideology has sidelined the issue. Perhaps the Uniform Civil Code may have to wait indefinitely until a general consensus among all communities in the country emerges in this regard. Such consensus my not emerge in the foreseeable future because of growing support for pluralism within a State.

Article 44 is based on the concept that there is no necessary connection between religion and personal law in a civilized society.[45]

10.3. Consumer Protection Movement.—

In pre-*constitution* period there were some laws for the purpose but they existed only for strengthening the roots of the British Empire in India. After independence various measures have been taken to protect consumers. Not only this but also the concept of quality control measures has drawn the attention of the Government. This is quite in conformity with the welfare state.[46] A consumer is now protected against sub-standard goods. The Weights and Measures Act 1976 and its rules.[47] Besides this the *Consumer Protection Act, 1986*, secures and offers an organized protection to consumers at all levels. The Act meets long felt necessity of protecting the common man especially remedies under ordinary law for various reasons become illusory. The importance of the Act lies in promoting welfare of the society by enabling the consumer to participate directly in the market economy. It attempts to remove the helplessness of a consumer which he faces against powerful business described as "network of rackets" or a society in which "producers have secured power" to "rob the rest" and might of public bodies which are degenerating into storehouses of inaction where papers do not move from one desk to another as a matter of duty and responsibility, but for extra-consideration leaving the common man helpless, bewildered and shocked.[48] The Act not only provides for new rights for the citizens of India in their capacity as consumers, but also envisages their empowerment in this behalf.[49] The Act was brought about in the background of a worldwide movement for consumer protection and it provides for speedy and simple redressal of consumer disputes.[50]

The notable feature of this arrangement is that now the consumer organizations can file complaints on their own in courts and obtain justice for consumers. Case of *Lucknow Development Authority*[51] must draw our attention in this regard. In this case the Court ordered the State to recover the amount paid by the state to the aggrieved party from the public servant whose *mala fide* acts created such a liability for the State. The Court thus expounded the principle of compensation for public injury and extended it to mental harassment and it has been awarded directly against the guilty officers, individually,[52] particularly when the act was capricious and malicious. The *Consumer Protection Act* is a social benefit oriented legislation and therefore should be construed in favour of consumers. As decided in Cosmopolitan Hospitals case,[53] this Acts cover within its compass the medical profession too for negligent acts and disservice to consumers.

10.4. Government's Liability for exercise of excess authority and breach of Fundamental Rights.—

The Supreme Court of India has improved upon the Common law relating to *habeas corpus* proceedings by laying down that where it is shown that the petitioner was arrested and imprisoned with mischievous and malicious intent, the Court shall have the power to compensate the petitioner by awarding suitable monetary compensation[54] or exemplary costs.[55]*Article 21 of the Constitution* has been interpreted with humanist philosophy by the Supreme Court. Complaints of torture in police custody and whenever the court has come across custodial violence and death in police custody, it has treated as a constitutional tort committed by the State in violation of fundamental rights. Torture of a person in jail to extract confession is violation of *Article 21* and the courts have awarded compensation.[56] One who obtains a writ of *habeas corpus* would be able to assert a claim for compensation by way of damages for deprivation of his personal liberty by the functionaries of the State, who appears to have acted either in excess of their authority or whose action was found not to be lawful. *Sebastins case*[57] is a good example of exercise of excess authority by the State Servants.[58] The Supreme Court of India infused new life into *Article 21 of the Constitution* and this was followed by a number of other cases. [59]In Sebastin's case an officer of Baptist Church and a Head Master were taken away by Army Authorities for questioning and since then they were found missing. In a writ petition the Court ordered to pay compensation of Rs. One lakh to wife of each person for violation of fundamental right of personal liberty and life. In one case[60] where municipal authorities were creating a nuisance by discharging its soiled water mixed with garbage and chemicals near an area where people were residing, an action was filed against it. In defence the municipal authorities said that it had no money to remove the nuisance. Rejecting its contention the court by its order of "New Enforcement Direction" compelled the municipality to comply with its direction. This and such other decisions strengthen the rule of law and advances the cause of public justice which is the hallmark of a welfare state. Again in case of *Chandrima Das case*[61] an advocate filed a writ petition against the State or its instrumentality seeking not only compensation to a victim of rape committed by its employees (the railway employees) but also so many other reliefs including eradication of anti-social and criminal activities at the railway stations, the Supreme Court held that the petition was in the nature of a Public Interest Litigation and the advocate had *locus standi* for which personal injury or loss is not an essential element.[62]

Under the *Protection of Human Rights Act 1993*, the National Human Rights Commission has been expressly given the power to give immediate interim relief to victim of violation of human right.[63] Recently the court held that it is trite principle of law that in matters involving infringement or deprivation of fundamental right, abuse of process of law, harassment, *etc.* the courts have ample power to award adequate compensation to an aggrieved person not only to remedy the wrong done to him, but also to serve as a deterrent for the wrongdoer.[64]

Where neither the lawmakers nor those entrusted with the duty of implementing the laws enacted for the welfare of unorganized workers have put in place appropriate mechanism for protection of persons employed by or through contractors to whom services meant to benefit public at large are outsourced by State or its agencies or instrumentalities for doing work which are inherently hazardous and dangerous to life nor have they made provision for payment of reasonable compensation in the event of death, compensation was directed to be paid by the local authority and compensation awarded by the High Court was enhanced by the Supreme Court.[65]

10.5 Government's Liability in Tort[66].—

Article 295 deals merely with the devolution of liability, not the basis of liability for which we have to refer to *Article 300* which relates to suits and proceedings. The liability of the state under existing law, for actionable wrongs committed by its servants, cannot be so simply stated as in the case of contracts. The state of law is necessarily complicated by reason of its being founded on the position of British Crown under the Common law and of the East India Company upon its supposed representation of the sovereignty of the Crown, both of which have become archaic, owing to changes in history and in law.

Following certain observations in the *P & O case*[67] Courts in India have, generally drawn a distinction between the sovereign and non-sovereign functions of the Government and held that the Government could not be sued for torts committed by the Government or its officers in the exercise of its "sovereign" functions.[68] Hence so long as the Parliament and or the State Legislatures do not legislate in the matter the liability of the Union or a State Government to be sued is to be determined with reference to the law as it stood at the commencement of the *Constitution*.[69]

Shown of these technicalities the liability of the Government to be sued under the existing law remains and in order to claim immunity for a tortious act committed by its servant, the State must show not only that it was done in the course of his employment but that the particular act which caused the injury was done in the course of exercise of "sovereign" functions. In *Vidyavati's case* it was held[70] that the State could claim immunity from injury caused to an individual by the negligent driving of a Government jeep not merely on the ground that the jeep was owned by the Government but also on showing that when the occurrence took place the car was *being used* for the performance of a sovereign function. Since it was established that at that time the car was *returning from a garage after repairs*, it could not be said that the injury was caused in connection with the exercise of sovereign powers or functions and, accordingly, the State would be liable for damages.[71]

Similarly a suit lies against the Government for wrongs done by a public servant or transactions which a trading company or a private person could engage in.[72] However, there are certain actions which cannot possibly lie against Government. For example no proceedings for criminal contempt of Court could lie against the State, nor can the state be unpleaded as represented by an officer who is alleged to have committed the contempt;[73] the remedy lies against that particular officer. Action for civil contempt does lie against a State as a party.[74]

It has to be remembered that the defence of sovereign immunity and alien to the concept of guarantee of fundamental rights.[75] In *Rudal Shah*,[76]*PVDR v PoliceCommissioner,*[77] and in *Saheli*[78] compensation was awarded by the Supreme Court for breach of fundamental rights.

Reversing the decision in *Director of Rationing and Distribution v Corp ofCalcutta*,[79] in *State of WB v Corp of Calcutta*,[80] the Supreme Court has held that, the law established in Republican India is that the State will be bound by a statute *unless expressly excluded*. In this case[81] the Government was accordingly held liable to be prosecuted under the Calcutta Municipal Act for running a market without obtaining a trade licence.[82]

As early as in 1956 the Law Commission of India had adversely commented upon the State of law in India. The Commission referring to the expanding scope of a welfare State said that while the responsibilities of the State have increased, the increase in its activities had led to a greater impact on its citizens. Consequently it was recommended that the old distinction between sovereign functions and non-sovereign functions should no longer be invoked to determine the liability of the State. The Commission even drafted a Bill to define the scope of the States tortious liability[83], but no further action has been taken in this direction.[84] It must however be reiterated that *Articles 294*, *298* and *300* of the *Constitution of India* recognise this liability. The decision in case of *Govindbhai Jakhubhai*[85] and other cases[86] are illuminating in this area—as they go further and assert that

> the old doctrine of only relegating the aggrieved to the remedies available in civil law limits the role of the courts too much as the projector and custodian of the inalienable right of the citizens. This remedy is available under the public law since the purpose of public law is not only to civilize the public power but also to assure the citizens that they live under a legal system wherein their rights and interests shall be protected and preserved.[87]

In cases of infringement of fundamental rights, for tortuous act, the Government is made liable and compensation is awarded.[88]

As per recommendation of Law Commission's Report, a Bill was drafted and introduced in 1965. But it could not be enacted. Another attempt was also made in 1967, and certain modifications were suggested in 1969 to the Select Committee. Thereafter, there was no progress made. As on today, there is no statute fixing the liability of the Government for Tort committed by it.

In 1983, the Law Commission in a Working Paper "Damages in applications for Judicial Review Recommendations for legislation"[89] proposed parliamentary legislation to enable individuals to combine a claim for damages along with a claim for any other relief in a petition to the High Court under *Article 226*. The Commission urged that such an enlargement of the power of the High Court would remedy one defect existing procedural set up under which a claimant seeking both judicial review of the nature contemplated by *Article 226* and damages for the wrong in respect of such review is claimed must pursue each remedy in a different forum.

He must seek the first relief in the High Court and the second relief in the lower court. However, under proposed legislation (as proposed by Law Commission) it would be discretionary and not obligatory for the High Court to award damages if the illegality of the act is established. The court could refuse to entertain a claim for compensation, if there was delay in making the application, or the grant of such relief would have involved determination of question which could not conveniently be gone into in proceeding under *Article 226* or for any other reason, it was inappropriate to determine the question of compensation in such an application.

This proposal of the Law Commission was based on the premise that the High Court did not enjoy the power to grant compensation under *Article 226*. The Commission's proposal was confined only to a petition made to the High Court under *Article 226*. It did not extend to a petition filed under *Article 32*. But there was no action by the Government on the basis of the recommendation of the Law Commission. But thereafter, judicial approach was changed and compensation was awarded interpreting *Article 21 of the Constitution*.[1] In *Neelabati Behera v State ofOrissa*,[2] the court held that "the claim in public law for compensation for unconstitutional deprivation of fundamental right to life and liberty, the protection of which is guaranteed under the *Constitution* is a claim based on strict liability and is in addition to the claim in private law for damages for tortuous acts of public servant".[3]

In cases of riots, police firing, *etc.,* court has ordered payment of *exgratia* compensation for the victims.[4] Compensation is also awarded in cases of medical negligence in State-run hospitals.[5]

Compensation has been awarded either because the executive has grossly violated the individual rights or the circumstances were such that the court thought it to be just to award compensation under *Article 32*, rather than directing the petitioner to seek his remedy through civil court.[6]

Under *Article 226*, the High Court can award compensation even in case of non-fundamental rights.[7]

The Supreme Court can also award exemplary damages. But before awarding exemplary damages, it must be shown that some fundamental right under *Article 21* has been infringed by arbitrary or capricious action on the part of the public authorities and that the sufferer was a helpless victim of the act.[8]

After the husband underwent vasectomy operation, the wife conceived. This happened because of the negligence of the doctor in the Government hospital. The Allahabad High Court held that it was the duty of the State to maintain the child as the wife never wanted another child, and compensation was awarded. The Government was directed to deposit Rs. 50,000/- in a bank for the purpose.[9]

Though the High Court under *Article 226* and the Supreme Court under *Article 32* can award compensation in case of breach of fundamental right under *Article 21*, against the State or its servant, it can do so only after making proper enquiry.[10]

10.6 Government's Liability in Contract.—

Article 298 empowers the Union and the States to carry on trade or business and to the acquisition, holding and disposal of property and the making of contracts for any purpose. *Article 299* is about contracts. Its clause (1) lays down the formality of contracts on behalf of Government.[11] Contracts by Government raise some problems which do not or cannot possibly arise in the case of contracts entered into by private persons. Thus there should be a definite procedure according to which contracts must be made by its agents, in order to bind the Government; otherwise public funds may be depleted by clandestine contracts made by any and every public servant.[12] That is why it has been provided that the State should not be saddled with liability for contracts which do not stand on their face that they are made on behalf of the State.[13] A contract made in contravention of *Article 299*(1) being absolutely void, it is not capable of being ratified by the Government but such contracts are not void for collateral purposes.[14]

If the contract is in writing, executed on behalf of the Government by a person authorised in this behalf and is expressed in the name of the President or the Governor, as the case may be, the Government would be liable. If these mandatory requirements are not complied with the contract would not be legal and would not be enforced.[15] It has to be noted that non-compliance with the article will not bar enforcement of rights and liabilities which rest on statute independent of contract, *e.g.*, recovery of balance due from a bidder at public auction.[16]

Like liability for contracts the Government can also be made liable under the principle of *quasi*-contract or restitution. That is, the Government can be made liable under *section 70 of the Indian Contract Act* on the *principle of unjust enrichment*.[17]

The equitable *doctrine of Promissory Estoppel* is also applicable to the Government as against a private individual, even though there has been no contract according to the requirements of *Article 299*.[18]

Employment in Government service also comes within the purview of *Article 299*.[19]

Lastly as held in *Q.D. Shetty v International Airport Authority of India*[20], the Court has brought the State activities in contractual matters within the area of judicial review. These principles apply in cases of grant of Government largesse too.

In regard to a licence governed by a commercial contract, it may be inappropriate to apply the principles of Administrative Law, even if the licensor happens to be a "State" as defined under *Article 12 of the Constitution*.[21]

10.7 Lok-Adalats.—

Lok-Adalat means "People's Court." In such court there is a middle agency which negotiates with the parties. This movement first started in Gujarat and has now spread all over the country. The benefit of this movement is that one has not to spend money and time. The disputes are resolved on the spot and the parties reconcile themselves. The benefit of this movement is not only limited to the public but it benefits the Court by fighting to decrease the backlog of cases. Court's burden is somewhat reduced. State of Gujarat has cleared more than 21500 cases by holding as many as 135 such Adalats. It has now acquired a legal status and a statutory basis. It strengthens the rule of law.

Lok Adalat is an alternative dispute resolution mechanism. Any settlement before the Lok Adalat should be voluntary and no party can be punished for failing to reach the settlement before Lok Adalat and the court should encourage litigants to settle their disputes in an amicable manner.[22] The Lok Adalats appointed under *section 19 of Legal Services Authorities Act 1987* have no adjudicatory or judicial function. Their functions relate to conciliation and it determines a reference on the basis of compromise or settlement between the parties at their instance and put its seal of conformation by making an award in terms of the compromise or settlement. An award of Lok Adalat is an executable decree.[23]

Lok Adalat is another alternative to Judicial Justice. This is a recent strategy for delivering informal, cheap and expeditious justice to the common man by way of settling disputes which are pending in courts and also those which have not reached the courts, by negotiation, conciliation and by adopting persuasive, commonsense and humane approach to the problems of the disputant with the assistance of specially trained and experienced members of a team of conciliators. The benefits of the Lok Adalat are – (1) There is no court-fee and if court-fee has already been paid, the amount will be refunded if the dispute is settled at Lok Adalat according to the rules. (2) The basic features of Lok Adalat are procedural flexibility and speedy trial of disputes. There is no strict application of procedural laws like the *Civil Procedure Code* and the *Indian Evidence Act* by Lok Adalat while assessing the claim. (3) The parties to the dispute can directly interact with the judge through their counsel which is not possible in a regular court of law. (4) The award of the Lok Adalat is binding on the parties and has the status of a decree of civil court and it is non-appealable, which does not cause delay in the settlement of disputes finally.

Lok Adalats are a boon to the litigating public that they can get their disputes settled fast and free of cost amicably.[24]

Lok Adalats established under section 19 and section 22(B)(1) of *Legal Services Authorities Act 1987* are different. While permanent Lok Adalat constituted under section 19 has purely conciliatory function, Lok Adalat constituted under section 22(B)(1) has both conciliatory and adjudicatory functions. The nature of proceedings before a Permanent Lok Adalat is initially a conciliation which is non -judiciary in nature. Only if the parties fail to reach an agreement by conciliation, the Permanent Lok Adalat mutates into an adjudicatory body by deciding the dispute.[25]

The court held that instead of Ordinary Civil Court, if other institutional mechanisms are set up or arrangements are made by the Parliament with an adjudicatory power, such institutional mechanism or arrangements cannot be faulted on the ground of arbitrariness or irrationality. The competence of the Parliament to make a law creating tribunals to deal with disputes arising under or relating to a particular statute or statutes or particular dispute is beyond question.[26]

The amended Act in 2002 enables a party to move to the Permanent Lok Adalat for the settlement, before any

dispute is brought before the court and if no compromise or settlement is arrived at, it gives power to adjudicate.

The Act has been held as constitutionally valid and is intended to promote the principles as enunciated in *Article 39A* of Directive Principles. It was held that the Lok Adalats are enacted primarily to bring about settlement amongst the parties. The parties are normally required to be present in person and since the Act and its provisions are in the interest of litigating public, the Lok Adalats shall perform their duties and function, even if members of the Bar do not choose to appear.[27]

10.8 Legal Aid Programmes.—

Article 39-A of the Constitution enjoins the State to secure that the operation of the legal system promotes justice on the basis of equal opportunity, and shall, in particular provide free legal aid, by suitable legislation or schemes or in any other way, to ensure that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities.

It is an essential ingredient of reasonable, fair and just procedure to a prisoner who is to seek his liberation through the court's process that he should have legal services available to him. Providing free legal service to the poor and the needy is an essential element of any reasonable, fair and just procedure. The Directive Principles require the State to provide free legal aid to deserving people, so that justice is not denied to any one merely because of economic disabilities.[28] In an earlier case, the court held that the State cannot avoid their constitutional obligation to provide legal aid to the poor by pleading financial or administrative inability.[29]

The Supreme Court laid down guidelines to be followed by the State Government in order to help social and voluntary organisation to carry out legal aid and legal aid schemes set up by the Government of India or whose programmes are supported by way of grants.[30] The court has further laid down that the accused would be meted out with unequal defence if a youngster from the Bar having either little or no experience is assigned to defend him.[31] In another case, the Supreme Court set aside the judgment of the High Court on the ground that the case was decided in the absence of the lawyer.[32]

Read with *Article 21* this Directive leads to the following guides in the administration of justice:

(1) The poor and indigent accused should be offered free legal aid for his defence. This is his right. This right arises from the moment he is first produced before a Magistrate[33] and it does not require any application from him.[34]

(2) The accused in proper cases may be allowed to sue or apply in forma pauparis[35] for compensation in case of motor accident cases.

(3) Jail authorities can be compelled to supply a free copy of the judgment to a prisoner so that he may exercise his right to appeal.[36]

(4) This right to legal aid is extended to a proceeding under *section 110 of the Criminal Procedure Code, 1973*, where there is no trial.[37]

(5) The Supreme Court may issue directions to the concerned District Judge to arrange legal aid in suitable cases.[38] However, one thing may be worth noting that an accused cannot compel the State to supply him a lawyer, at the cost of the State, through a writ petition. He may apply to the Sessions Court under *section 304(1), Criminal Procedure Code, 1973*.[39]

The High Courts and other Subordinate Courts have set up Legal Aid Committees (LAC). The legal assistance at the cost of State is now treated as a part of the fundamental rights of a person accused of an offence, and unable to secure legal services on account of his poverty or other reasons.[40] Besides speedy and cheap justice these devices held to reduce arrears of cases.

"Effective and efficient legal service to the needy and indigent persons, more so in case of criminal trial, to the accused person asking the question in a perfunctory manner, without projecting and piloting him to the direction of the substantial legal assistance, is the relic of the past, whereas, the living force of the day is to appraise and utilise the concept of legal services in its utmost and fullest as an optimum utilisation-oriented purpose, so that no accused suffers for want of efficient and sufficient service of free and competent legal services.[41]

Legal aid is correlated to expenditure on administration of justice as high court fees bar effective access to justice.[42]

Even if the accused has pleaded guilty, the Magistrate is duty bound to inform the accused that free legal service is available to him and it is conditioned upon the accused himself applying for such legal assistance.[43]

10.9 Measures for Control of Environmental Pollution.[44]—

Environmental pollution is caused by polluting air, water, atmosphere and by producing noises. Releasing noxions gases in air, flourine chemical mixed water and noxions substances in water of river are the main pollutors in this age.

Under the *Constitution of India*, Pt IV-A is regarding Fundamental Duties. This part was added by Constitutional Amendment Act, 1976 and it brings our *Constitution* in line with *Article 29*(1) of the Universal Declaration of Human Rights and the *Constitution* of Japan, China and USSR.[45]

Clause (g) of *Article 51* -A imposes "Duty as to improvement of environments" It is imposed on the citizens. As held by the Supreme Court in *M.C. Mehta's* case[46] that it is a duty of the Central Government to take a number of steps in order to make this provision effective. It has also issued directions.[47]*Article 48A* provides that the State shall endeavour to protect and improve the environment and to safeguard the forests and wildlife of the country. In view of the above article, the *Constitution of India* makes two fold provision, on the one hand it gives directive to the State for protection of environment and on the other, it casts a duty on every citizen to help in the preservation of natural environment.

A cumulative effect of *Articles 48A* and *51A* appears to be that the "State" as well as the citizens both are now under a constitutional obligation to conserve, preserve, protect and improve the environment. The Supreme Court also recognised the need to conserve and protect natural resources of nation in the wider interests of mankind. The court said that rivers, forests, minerals and such other resources constitute the natural wealth. These resources are not to be fritted away or exhausted by any one generation. Every generation owes a duty to all succeeding generations to develop and conserve the natural resources of the nation in the best possible way.[48] The court also reminded that the New Delhi Municipal Corporation has a statutory obligation to scavenge and clean up the city of Delhi and the residents have a statutory right to live in a clean city.[49] Direction to the State Government for the preservation of forests and a period of six months time was given to initiate steps.[50]

After the Stockholm Declaration of 1972 (which was reason for amending the *Constitution* incorporating *Articles 48A* and *51A* by *Constitution* (42nd Amendment) Act, the Parliament has also enacted the Air (Prevention and Control of Pollution) Act 1981, the *Environment Protection Act 1986*, the *Water (Prevention and Control of Pollution) Act 1974* and Rules. In *Chameli Singh v State of UP*,[51] the court held that *Article 21* protects every person and that he is entitled for a decent and civilised life which includes not only food and water, but a decent environment also. In many organised societies, right to live as a human being is not ensured by meeting only the animal needs of man. It is secured only when he is assured of all facilities to develop himself and is freed from restrictions which inhibit his growth. All human rights are designed to achieve the object. Right to live guaranteed in any civilised society implies the right to food, water, decent environment, education, medical care and shelter. These are basic human rights known to any civilised society.

The Supreme Court has given a very wide meaning to "life" while interpreting *Article 21* and human rights and the necessity of a clean environment is now part of *Article 21*. The cases raising question of environmental degradation were really speaking cases against inaction of the State or wrong action of the State. The Court made it clear that petitions alleging environmental pollution caused by private individuals/units were not as much against those private units as against the Union of India, the State Government and the Pollution Control Boards established under the *Environment (Protection) Act 1986* which were supposed to prevent environmental hazards. Their failure to perform their statutory duties resulted in violation of the right of the residents to life and liberty guaranteed under *Article 21 of the Constitution*.[52] The subject will be fully discussed while commenting on *Article 21*, *Articles 48A* and *51A*.

10.10 Public Interest Litigation.—

PIL *Article 32* relates to remedies for enforcements of rights conferred by Pt III of the *Constitution*. Under this article the Supreme Court can issue writs in the nature of *habeas corpus*, *mandamus*, *prohibition*, *quo warranto* and *certiorari*—whichever is appropriate.

It is now established[53] that a writ petition may be moved not only by an aggrieved individual but also by a public spirited individual[54] or a journalist[55], or a social action group for the enforcement of the Constitutional or legal rights[56] of some other person, provided such person is in custody[57] or is in a disadvantaged position due to poverty, disability or other social or economical impediment and is unable to enforce his rights.[58]

The grievance in a PIL is about the content and conduct of Government action in relation to the Constitutional or statutory rights of segments of society and in certain circumstances the conduct of Government policy. The relief implies affirmative action, and the remedy is both imposed negotiated or *quasi*-negotiated.[59] The expression "Public interest" is antithesis of private or self-interest. The Court should therefore discourage[60] by awarding heavy costs[61] where the petitioner seeks to vindicate personal interest, grudge or enmity in garb of PIL.

A post emergency phenomenon the transition is characterised chiefly by judicial populism. People now know that the Court has constitutional power of intervention which can be invoked to ameliorate their miseries arising from repression, governmental lawlessness and administrative deviance. People therefore flock to the Supreme Court for justice…They bring too, a new kind of lawyering and a novel kind of judging. They add a poignant twist to the docket explosion[62], which was so far merely a routine product of the Bar committed only to justice according to the fees.

PIL is alternatively known as the Social Action Litigation—SAL and it is a distinctive product of the 1975-76 emergency. It is now a catalytic component for a movement for *"judicial democracy"*,[63] through innovative uses of judicial power. Dr. Baxi discards the nomenclature Public Interest Litigation and befittingly calls it *Social Action Litigation*.[64]

(i) SAL is primarily a judge-led and ever judge induced movement. It is related to juristic and judicial activism. (ii) SAL does not raise a problem of validity of law on the ground that it violates fundamental right. (iii) The heart of the SAL proceedings is rather that gross violation of fundamental rights which has actually occurred in the exercise of State powers, either by commission (repression) or by omission (lawless disregard of statutory or Constitutionally imposed duties). (iv) The facts relied upon by SAL petitioner, in most cases, are as stated in the Press and (v) SAL petitioner is often not the victim of repression or lawlessness, but a public citizen. (vi) SAL requires a creeping jurisdiction for its progress. (vii) It has expanded the scope of *locus standi* too from admitting petitions before it. (viii) The proceedings in SAL are not viewed by the Courts as adversarial in nature, and on the contrary it likes to foster such a relation between a SAL litigant and the State as would result in *soundinstitutional arrangement* avoiding recurrent injustice. It avoids corporation between the SAL litigant and the State. (ix) Dr Baxi calls SAL as an "establishment revolution" (x) In several types of cases writs under SAL have been issued: *e.g.* for old and infirm retired pensioners, for the release of the bonded labourers in stone quarries, against unjustifiable police atrocities, against ragging in college, against issuing ordinances and committing a fraud on the *Constitution*, for causing damage to eyes of patients in eye-camp. It has thus a bright future and it is in fact a silent social revolution strengthening the rule of law..[65]

The Supreme Court has caused social action litigation mainly as a counter-majoritarian check on democracy for the support of unpopular causes and the protection of politically powerless minorities. Bonded labour, prison inmates, accused criminals and tribals displaced during construction of dams or electric power projects belonged to this category. Numerically they were rather too small to be cared for by political parties and causes such as rights of animals or education of the children of prostitutes were not popular. Many environmental related issues particularly unhygienic urban condition of noise pollution were brought to court by socially motivated minorities on behalf of the silent diffused majority of the people.

Social action litigation has brought the Supreme Court of India closer to the people and has made it a powerful institution. The power of the court lies in the legitimacy it enjoys.[66] Public interest litigation, as we conceive, is essentially a co-operative or collaborative effort on the part of the petitioner, the State or public authority and the court to secure observance of the constitutional or legal rights, benefits and privileges conferred upon the vulnerable sections of the community and to reach social justice to them. The State or public authority against whom public interest litigation is brought should be as much interested in ensuring human rights, constitutional and legal, to those who are in a socially and economically disadvantaged position, as the petitioner who brings the PIL before the court.[67]. The court held therein that a PIL is not an adversary litigation.

Issues of public importance, enforcement of fundamental rights of a large number of the public *vis-à-vis* the constitutional duties and functions of State, if raised, the court treats a letter or telegram as a PIL upon relaxing procedural laws as also the law of pleadings and whenever injustice is meted out to a large number of people, the court will not hesitate in stepping in. *Articles 14* and *21* of the *Constitution* as well as the International Convention of Human Rights provide for reasonable and fair trial. In appropriate cases, even though the petitioner might have moved to a court in his private interest and for redressal of his personal grievances, the court, in furtherance of the public interest, may treat it necessary to enquire into the state of affairs of the subject of litigation in the interest of justice[68].

PIL as a jurisprudential concept brings into focus the rights of the plurality (as against the individual's right) especially when the plurality is for one or other reason not in a position to seek redressal of the grievances. This inadequacy may not always emerge from financial constraints. It may sometimes arise out of lack of awareness and at other times merely from the overwhelming might of the executive authority. The jurisprudential thought in this country after the emergence of PIL is seeking to strike a balance between individual rights and the rights of the plurality.[69] The court held that PIL is a mode of redressal mechanism against crony capitalism.

System of PIL was developed through judicial creativity and craftsmanship, to ensure that access to justice becomes available to all sections of society including the poor and marginalised, so that fundamental rights become meaningful to them. In the first phase of development of PIL, rule of *locus standi* was diluted and meaning of "aggrieved person" was broadened. PIL could be filed even though the person moving to the court is not personally interested and scope of right to life and personal liberty was also enlarged. In the second and third phases of development of PIL, preservation of ecology and environment protection and purity of administration and probity in governance were brought in, and in such cases, the court can, in appropriate cases, issue general directions and guidelines that may go beyond the relief to individuals.[70]

(For further discussion – see *Article 32*).
10.11 Upliftment of Status of Women.—

A person with excessive enthusiasm for something is called a fanatic. A person who has a mistaken and excessive enthusiasm for religion is also a fanatic. Religion was founded with the only aim of purifying human conduct. It was a means for development of one's sale to march towards absolute freedom, called Moksh. But people forgot this ideal and stuck to ordinary rules of outward behaviour and actions. These rules became ruts, so strong and cone that incorrigibility entered into it and. Gurus, Priests and Mullahs became the guardians of these rules. And from this state of affairs arose communalism and fanaticism. Status of women gradually became lower and lower and she was considered as a child-bearing machine and no more.

According to learned author M P JAIN:

> Women as a class neither belong to a minority group nor they are regarded as forming a "backward class". India has traditionally been a male dominated society and, therefore, presently women suffer from many social and economic disabilities and handicaps. It then becomes necessary that such condition be created and necessary ameliorative steps be taken, so that women as a class may make progress and may also be able to shed their disabilities as soon as possible.[71]

During discussion before the Constituent Assembly on *Article 14*, everyone agreed that equality before law was a right unexceptionable. But one of the learned members A.K. AYYAR thought that the phrase "equality before law" could hamper reforms. It might prevent the passing of laws differentiating between men and women, factory workers, thereby denying women special protection. It might also prevent treating children and adults differently in criminal courts. Equality before law, MR. AYYAR maintained, was a fine principle of English law, but it was self-defeating, when written into a *Constitution*. He preferred using the phrase that "no person should be denied equal protection of the law". The Advisory Committee heeded to Ayyar's advice, for, despite the contrary precedents in the Nehru Report and in the Fundamental Rights Sub-Committee's Report, the clause in the Advisory Committee's Interim Report read that no person should be denied equality before the law – and this wording was carried out in the *Constitution*.[72] Assembly members wanted the fundamental rights to be qualified. The right to equality was not to prevent the State from making special laws protecting women and children.[73]

After India non-freedom, it was considered to frame a Common Civil Code, which would bring all the sects and communities together on one platform but the idea was left off. However some portions of Hindu Law were codified and these Acts came to be known as "Four Acts." After this a committee on the status of women in India was set up and it gave its report in 1975. The Committee was of the opinion that so many personal laws in this country were a hurdle and an obstacle in the way of formation of such a code. Some of the personal codes discriminated against women which could be said to be against the fundamental rights. Practice of *sati*[74], ill-treatment of widows, child marriages, polygamy practiced by men, untouchability, purdah system in some communities and in some part of the country and human sacrifices were deep -rooted vices; and these things have stubbornly stood in the way of women and have blocked the way of their progress and upliftment. We have not to go far in the present time to find examples of such evils. Cases of *Roop Kunwar*[75] and *ShahBano*[76]

are its glaring examples shining oppressively. To remedy these evils enacting a Common Civil Code is a must; codifying some portions of Hindu Law is a beginning which should go further as an antidote for these evils.

Article 15 of the Constitution prohibits discrimination on the grounds of religion, race, caste, sex or place of birth. Discrimination shortly speaking means difference in treatment. It's dictionary meaning is to "make an adverse distinction with regard to" or "to distinguish unfavourably from others."[77]

The Law Commission of India in its report[78] has recommended for reforming Hindu Law and give coparcenary rights to a woman.[79] As per Mitakshara system a daughter cannot be a member of a coparcenary and devolution of takes place by survivorship rather than by succession. This distinction and resultant exclusion of a daughter from ancestral property only because of her being a woman is against the fundamental right of equality before law.[80] This concept of equality and equal protection of laws guaranteed by *Article 14* in its proper spectrum encompasses social and economic justice in a political democracy.[81]

Andhra Pradesh, Tamil Nadu, Maharashtra, Karnataka and Kerala have given such right to a daughter.[82] It has also abolished the idea of pious obligation of a Hindu son.[83] Historic injustice denote a woman is thus to a considerable extent removed by legislation. Dowry is still another evil which has to be removed. Legislation in this area has not been effective so as to remove the evil. It can be removed only through education, understanding and respect towards women infused into the society.

The (Indian) Christian Marriage Bill introduced would be a step forward in the direction of forming a Common Civil Code.

The Supreme Court has through its various judgements, interpreted the *Constitution*, with a view to ensure gender justice.[84] The contents of the fundamental right guaranteed under our *Constitution* are of sufficient amplitude to encompass all aspects of gender equality[85]. This includes prevention of sexual harassment and abuse.[86]*Article 15*(3) which permits special provision for women has been widely resorted to and the courts have upheld the validity of special provisions or measures in legislative or executive orders favouring women. In particular, provisions in the criminal law in favour of women or in procedural law discrimination in favour of women have been upheld.[87]

The Supreme Court has also, interpreted *Article 21*, to ensure that women are treated with dignity and to further treatment of women as equal citizens. [88]*Article 21 of the Constitution* was also used to include a woman's right to make reproduction choices. The crucial consideration is that a woman's right to privacy, dignity and bodily integrity should be respected. This means that there should be no restriction whatsoever on exercise of reproductive choices such as woman's right to refuse participation in sexual activity or alternatively insistence on use of contraceptive methods.

The court has invoked "basic interest test" and given directions to the State to protect the woman and child.[1]

The Supreme Court has taken the principles of Directive Principles of State Policy under *Articles 39*(a), 39(d) and 39(e) to confer economic empowerment on women.[2]*Articles 39*, *42* to 45 of *Constitution* refer to special provisions concerning women. The special provisions must be to the advantage of women and not to their disadvantage. In this sense, *Article 15*(3) can be considered as a clear affirmative action in favour of women and children. Calcutta High Court held that only "discrimination in favour of women" is permissible under *Article 15*(3) which view has been upheld by the Supreme Court.[3] Reservation in favour of women is valid under *Article 15*(3).[4]

10.12 Women & Domestic Violence.—

The Parliament has passed the *Protection of Women from Domestic Violence Act 2005*. Court has now ruled that even though the Act was passed only in 2005, conduct of parties even prior to coming into force of 2005 Act can be taken into consideration while granting relief. It is an enactment passed under *Article 15(3) of the Constitution*. Court has ruled that a wife who is residing separately decades before the Act came into force can claim relief. The court also ruled that domestic violence includes a case where a wife was compelled to live separately and who was not being maintained by husband. Relief under the Act includes grant of protection-cum-residence and monetary relief.[5] The statute provides for a higher right in favour of the wife. Under the Act, the wife not only acquires a right of maintenance, but also a right of residence.[6]

The *Constitution* was amended (73rd & 74th Amendment Acts in 1993) to provide that one-third membership in Panchayats and Municipalities shall be reserved for women belonging to the Scheduled Caste or Scheduled Tribe.

10.13 The Problematic Kashmir Issue (Article 370).—

The State of Jammu and Kashmir holds a peculiar position under the *Constitution*. As defined in *Article 1* it forms a part of the "territory of India." It is the 15th State included in the First Schedule as amended. It was a "Pt B" State in the original *Constitution* but the 1956 Act[7] abolished this category and included it in the list of the "States" of the Union of India.

In spite of this the J&K State enjoys a special constitutional position, so that all the provisions of the *Constitution of India* relating to the States in the First Schedule are not applicable to Jammu and Kashmir, even though it is one of the states specified in that Schedule.[8] This liberty of the Government of India has been misunderstood and misinterpreted in interested quarters, overlooking the legal implications of the accession of the State to India. It must draw our attention that:

(i) Instrument of Accession signed by the Maharaja Hari Singh on 26 October 1947 was in the same form[9] as was executed by the rulers of the numerous other states which had acceded to India following the enactment of the Indian Independence Act, 1947.

(ii) Consequently the same result should follow as was the case of other state merging.

(iii) The Britishers gave away their suzerainty over Indian states and the rulers of the states had therefore become sovereigns and competent to accede to either of the newly created Dominions of India and Pakistan. Hari Singh opted for India. Thus the legal basis[10] and the term of Accession were the same in case of those states which acceded to Pakistan and those which acceded to India.

This makes the State of J&K legally and irrevocably a part of the territory of India.[11] No third party therefore can take advantage of such extra-legal assurances (as said before) and claim that the legal act had not been completed.

The above dual attitude was naturally reflected in the *Constitution of India* and J&K thus become a State of the Union of India.[12] The *Constitution* provided that the only Articles which apply in their force to J&K were *Articles 1* and *370*. The above interim arrangement would continue until the Constituent Assembly for J&K made its decision. Consequently, the President made the *Constitution* (applicable to J&K) Order, 1950 applicable to J&K.[13]

The Constituent Assembly of J&K ratified the Accession to India and also the decision arrived at by the Delhi Agreement, early in 1954. In pursuance of this the President made the *Constitution* (Application to J&K) Order, 1954 (in force from 14 May 1954) applicable to J&K.[14] This order was amended in 1963, 1964, 1965, 1966, 1972, 1974 and 1986 which deals with the entire Constitutional position of the state within the framework of the *Constitution of India*.

As explained earlier an elected Constituent Assembly of the State was to decide the future *Constitution* of the State as well as its relationship in India. Such Constituent Assembly met for the first time 31 October 1951, and its first official task was to put an end to the hereditary princely rule of the Maharaja. As per understanding, since Maharaja was to introduce popular Government in the State, he invited Sheikh Mohammad Abdullah[15] to form an interim Government and to carry on the State administration.[16] The ruling Maharaja was forced to abdicate in favour of his son Karam Singh who was elected by the Constituent Assembly as Sadar-i-Riyasat.[17] The draft *Constitution* of J&K was finally adopted on 17 November 1957 and was made effective on 26 January 1957.[18]

Merger of Kashmir into Bharat brought pleasures in Kashmiris but the pleasure was short-lived. In spite of adoption of a separate State *Constitution* the Pro-Pakistani elements in J&K continued their agitation for holding a plebiscite to finally determine whether the state should access to India or Pakistan. As a result of an agreement on 24 February 1975 the demand for plebiscite was abandoned and as a temporary measure the special status of the State of J&K was continued under the provisions of *Article 370*.[19]

The courts will not look behind the document of Instrument of Accession and the Supreme Court has held that the act of the execution of Instrument of Accession by the Ruler and its acceptance by the Governor-General are both Acts of State into whose competency, no court can enquire.[20]

10.14(A) Code of Ethics for Judges of the High Courts and Supreme Court.—

RAMASWAMY J.: Before the Code of Ethics was adopted and declared, *JusticeRamaswamy's case* came into light.[21] Justice *Ramaswamy's* case was a result of audit by the Accountant General's office. In April, 1990 the

Accountant General's office found out certain irregularities in the Punjab and Haryana High Court—administration. These irregularities were financial. To inquire into the matter therefore a committee was set up. The committee gave its report in November 1990.

As a result of this report a motion was signed by 108 MPs to impeach the judge for his misbehaviour. As decided in *Daphtary C.K. v Gupta O.P.*[22], error in judgment, however gross, cannot amount to "misbehaviour."

Chapter IV—Union Judiciary—*Article 124*, clause (4) provides for removal of a judge of the Supreme Court. Accordingly such a judge shall not be removed from his office except—

(i) by an *order* of the President,

(ii) passed *after an address* by each House of Parliament,

(iii) Supported by a *majority of the total membership* of that house, and

(iv) by a majority of not less than the two-thirds of the members of that House present, and voting,

(v) has been *presented to the President in the same session* for such removal on the ground of proved misbehaviour or incapacity.

Thus misbehaviour of a person as a judge of a High Court can form the basis of his removal even after his elevation to the Supreme Court.[23] The procedure and manner of removal of a judge has been delineated by the Supreme Court in *Sarojini Ramaswamy v UOI*.[24]

The motion signed by 108 MPs to impeach the judge was admitted in Lok Sabha on 12 March 1991. Thereafter a Committee under the Judges Enquiry Act, 1968 was appointed. After this the Lok Sabha was dissolved. On 27 October 1991, the Supreme Court, by a majority judgment held that the motion had not lapsed due to dissolution of the Lok Sabha and the Committee charge-sheeted the judge. The judge refused to resign. Therefore on 10 May 1991, he was summoned before the Parliament to explain his conduct.

For the motion of impeachment to succeed, it has to be supported by not less than 2/3rds of the members present and voting when the motion was finally put to vote. But to defect the procedure and to aid the corrupt judge the Congress party *en masse* abstained from voting and the result was reduced to a naught. This seemed to be a predetermined plan of the party whose past stalwarts were wedded to honestly and integrity. There were an apparent misuse of the provisions of the *Constitution*, rather a fraud with the *Constitution* and the Nation. There were 266 members in favour of the motion to be passed but the treacherous intent of party politics failed and soiled the whole process. *Implications of the lapse of motion are very serious. It releases wrong signals and openly proves the political patronage of the Congress Party to Corruption.*

This infamous episode exposed the insufficiency of the provisions of *Article 124*(A). And this insufficiency, at the time when the *Constitution* was in the process of formation, was brought to the notice of the Constituent Assembly but the members had faith upon the honesty of the ruling party and hence did not think to enact some further provisions in this regard. This has now made it inevitable for the Government to legislate in this area.
(B) The Code of Ethics.[25]—

This unhappy and infamous episode gave birth to a resolution containing 15 points code which in brief runs as under:

(1) *Election contest.*—A judge should not contest election to any office of a club, society or other association.

(2) *Elective office.*—He should not hold such elective office except in a society or association connected with law.

(3) *Close association.*—Close association of a judge with individual members of the bar, particularly those who practice in the same court, must be eschewed.

(4) *Appearance before him.*—A judge should not permit any member of his immediate family such as spouse, son, daughter, son-in-law or any other close relative, if he or she is a member of the bar, to appear before him, or even be associated in any manner with a case to be dealt by him.

(5) *Residence as an office.*—A member of a judges family, if he or she is a member of the bar, should not be permitted to use the residence in which the judge actually resides, as an office.

(6) *Aloofness consistent with dignity.*—A judge should conduct himself with a degree of aloofness consistent with the dignity of his office.

(7) *Matter of relative or friend.*—A judge should not hear and decide a matter in which a member of his family, a close relative or a friend is concerned.

(8) *Public debate etc.*—A judge should not enter into public debate or express his views in public on political matters or on matters that are pending or are likely to arise for judicial determination.

(9) *Interviews with media.*—A judge is expected to speak his judgments speak for themselves. He will not give interviews to the media.

(10) *Gifts etc.*—A judge will not accept gifts or hospitality except from his family, close relatives and friends.

(11) *Interest in matter before him.*—A judge will not hear and decide a matter in which, a company in which he holds shares is concerned, unless he has disclosed his interest and no objection to his hearing the matter is raised.

(12) *Speculation.*—A judge must not speculate in shares, stocks or the like.

(13) *No trade or business.*—A judge should not engage directly or indirectly in trade or business, either by himself or in association with any other business.[26]

(14) *Prohibition against raising fund activities.*—A judge should not ask for, accept contributions or otherwise actively associate himself with the raising of any fund.

(15) Every judge must at all times be conscious that he is under the public gase and these should be no act or omission by him which is unbecoming of his office.[27]

In this conference it was also resolved this every judge (compulsorily) should declare his assets including those of his spouse and dependents.[28]

The Supreme Court has also advised how the judges should behave in court, and how they should restrain themselves while hearing cases and in the decision making process. Recently the court said that judges at all levels in this country subscribe to oath when entering upon office of judgeship to do justice without fear or favour, ill-will or malice. This commitment in the form of a solemn oath is to ensure judges that judges base their opinion objectively and impartially. The first casualty of prejudice is objectivity and impartiality. Anger deprives a human being of his ability to reason. Judges being human are not immune to such disability. It is of utmost importance that in expressing their opinion, Judges and Magistrates be guided only by the considerations of doing justice.[29]

It is a well settled principle of law that a court has the duty to give reasons as its judgment affects rights and obligations of litigating parties as they are entitled to know why the court came to such a decision, especially when the higher court disagrees with the decision of lower court.[30] Court's clear reasoning and analysis are basic requirements in a judicial determination when parties demand it, so that they can administer justice justly and correctly in relation to finding on law and facts. Judicial society at large is the result of a correct and proper application of legal rules, proper evaluation of the evidence adduced and application of legal procedure. The parties should be convinced that their case has been properly considered and decided.[31]

Judges of higher judiciary should maintain utmost judicial restraint against making disparaging remarks so far as members of lower judiciary are concerned. Merely because there is difference of view between the lower court and higher court, it cannot be a ground to criticise the lower court. It is a case of difference in approach and perception.[32]

Though judges are human beings, not autonomous, it is imperative for a judicial officer, in whatever capacity he may be functioning, that he must act with belief that he is not to be guided by any factor other than to ensure that he shall render free and fair decision, which according to his conscience is the right one on the basis of materials placed before him.[33]

Courts like other institutions also belong to the people. They are as much human institutions as any other. The other instruments and institutions of the State may survive by the power of the purse or the might of the sword, but not the court. Court has no such means of power. The court can survive only by strength of public confidence. The public confidence can be fostered by exposing courts more and more to public gaze.[34]

Impartiality, independence, fairness and reasonableness in decision making process are the hallmarks of the

judiciary. If “impartiality” is the soul of judiciary, independence is the life-blood of the judiciary; without independence, impartiality cannot thrive. Independence is not the freedom for judges to do what they like. It is the independence of judicial thought. It is the freedom from interference and pressures which provide judicial atmosphere where he can work with absolute commitment to the cause of justice and constitutional values. It is also the discipline in life, habits and outlook that enables judges to be impartial.[35]

A judge should not exercise his discretion in derogation of established principles of law, rather it has to be in strict adherence to them. Discretion has to be guided by law, duly governed by rule and cannot be arbitrary, fanciful or vague. The court must not yield to spasmodic sentiment to unregulated benevolence.[36]

A judge, like Caesar’s wife, must be above suspicion.[37]

Judges should be of stern stuff and tough fiber, unbending before power, economic or political, and they must uphold the core principle of the rule of law, which says “Be you ever so high, the law is above you”.[38]

> T.K. TOPE has said that: A judge in order to uphold independence and integrity of judiciary must avoid impropriety or even the appearance of impropriety in all his activities, regulate his extra-judicial activities so as to minimise the risk of conflict with his judicial duties. A judge must not accept hospitality from anyone particularly from litigant, except ordinary hospitality from bar members. Respect for decision would depend upon the absence of any private contact between a judge and other branches of government. No judge has individual power. It is the power of the institution. Hence a judge has to remember that his action must be consistent with the dignity of the institution of which he is a part.
>
> A Judge must behave as a judge. He must not have favourites in the bar, nor he must entertain prejudices against certain members of the bar or certain sections of the bar. Such an attitude affects the faith of the common man in the judiciary and thus the independence of judiciary is compromised by the judge himself. Judges must not have any political ambition. Judges with political ambition are likely to compromise judicial independence…
>
> > …Hence it is submitted that the *Constitution* should be amended with a view to prohibiting judges of the Supreme Court and the High Court from seeking any political office after retirement. Political office should also include membership of legislature.[39]

OLIVER WENDALL HOLMES pointed out that if judges are intransigent but honest, they will be curbed, but a worse fate will fall them if they learn to trim their sails to prevailing trends. A society whose judges have been taught to expect compliance will expect compliance and compliance under pretense of interpretation is rottenness. Judiciary is usually criticised because it is not accountable to anyone as the legislature and executive are in a democracy. But it must be remembered that the framers of the *Constitution* in their collective wisdom made provision for accountability of the legislature and executive. But they did not think it necessary, nay, they thought that such a provision would be dangerous, hence they did not provide for accountability of the judiciary in the same way as of the legislature and the executive. They have however provided for accountability for proved misbehaviour. To demand accountability of the judiciary under the present *Constitution* beyond what is provided is to be disloyal to the *Constitution*. Judges, however, remain accountable to people. They hear and decide cases in open court. Their judgments which give reasons for their decision are published and are available to anyone to examine. It is public confidence in the judiciary that ultimately gives it legitimacy.

Articles 124(4) and 218 of the *Constitution* provide for removal of the Supreme Court Judges and High Court Judges respectively for misbehaviour. Report of the National Commission to Review the Working of the *Constitution* has recommended for necessary action and for amendment regarding the law.[40]

11. THE RESERVATION RIDDLE

“Reservation” means reservation of posts in the services for the members of Scheduled Castes and Scheduled Tribes and other Backward Classes (OBC).[41]

11.1 Pandit Nehru’s Prediction.—

Let us first begin with what PANDIT JAWAHARLAL NEHRU said in a letter to Chief Ministers on 27th June, 1961 regarding reservation. He said,

> I have referred above to efficiency and to our getting out of our traditional ruts. This necessitates our getting out of the old habit of reservations and particular privileges being given to this caste or that group. The recent meeting we held here, at which the Chief Ministers were present, to consider *national integration*, laid down that help should be given on

> *economic considerations* and not on caste. It is true that we are tied up with certain rules and conventions about helping the Scheduled Castes and Tribes. They deserve help but, even so I dislike any kind of reservation, more particularly in services. I react strongly against anything which leads to inefficiency and second-rate standards. I want my country to be a first-class country in everything. The moment we encourage the second-rate, we are lost.[42]
>
> The only real way to help a backward group is to give opportunities of good education. This includes technical education which is becoming more and more important. Everything else is provision of some kind crutches which do not add to the strength or health of the body. We have made recently to decisions which are very important: one is, Universal free elementary education, that is the base; and the second is scholarships on a very wide scale at every grade of education to the bright boys and girls, and this applies not merely to literary education but, much more so, to technical, scientific and medical training. I lay stress on the bright and able boys and girls, because it is only they who will raise our standards. I have no doubt that there is a vast reservoir of potential talent in this country if only we can give it opportunity.
>
> But if we go in for reservations on communal and caste basis, we swamp the bright and able people and remain second-rate or third-rate. I am grieved to learn how for this business of reservations has gone based on communal considerations. It has amazed me to learn that even promotions are based sometimes on communal or caste considerations. This way lies not only folly, but disaster. Let us help the backward groups by all means, but never at the cost of efficiency. How are we going to build the public sector or indeed any sector with second-rate people.[43]

Learned author R.L. CHAUDHARI said:

> Regarding caste and reservation policy, it can be said that the privileges attached to each have encouraged casteism since caste is proving to be very beneficial to the persons belonging to the backward castes. Not only this, there is a general desire for the enrolment in the list of Scheduled Castes and backward classes even among those who have advanced and who have rejected the caste system for other purposes. Thus, the reservation policy, instead of removing the caste distinction, has maintained and has encouraged social tension which retards the process of social integration. It has also created obstacles in achieving the object of casteless society.[44]

11.2 Object of the Constitution framers.—

The object of the framers of the *Constitution*, as ours must be, to wipe out the cancer of caste even from Hindu Society. Only with the greatest reluctance did they agree to allow reservations for the Scheduled Castes and Tribes—for they felt that doing even this much would perpetuate caste distinctions.[45]

It must be remembered that these provisions were crafted carefully to be just *enabling* provisions. They conferred only a discretionary power on the state; they didn't cast a duty and they were not confer a right on anyone.[46] "This minute division of our people in castes and groups" writes Nehruji, "is a terrifying factor. Until we break down these barriers, and in effect, break down the caste system we shall never wholly get over the difficulties which have faced us. Inaugurating a conference on Tribal Affairs, he declared that the Government aims ultimately at removal of all these appellations, descriptions, and names which ideologically and physically separate the people as the Depressed Classes, the Harijans, the Scheduled Castes, the Scheduled Tribes, and so on."[47] With these perspectives, provisions of the *Constitution* were very carefully framed.

Reservation can never be a substitute for the uplift of the weaker sections on social and economic plane. Reservations were meaningful at the commencement of the *Constitution*, as a temporary measure, at a time when the State was required and expected to promote with special care, the educational and economic interests of the weaker section of the people, and in particular the scheduled castes and scheduled tribes. The *Constitution* did not envisage non-implementation of the Directive Principles of State Policy set out in *Articles 41*, *45* and *46* even after fifty years and continuing reservation indefinitely. The time limit of ten years mentioned in *Articles 45* and *334* is a clear indication. The Constituent Assembly Debates also reveal the same intention. The Founding Fathers intended that within ten years after commencement of the *Constitution*, every child who would have had free and compulsory education up to the age of fourteen years and that would level up the back classes with other classes in the field of education to some extent. The failure to achieve this important constitutional directive was not for reasons beyond the control of the Government.

In *Akhil Bharatiya Soshit Karmachari Sangh (Rly.) v UOI*,[48] KRISHNA IYER J. held:

> The success of the State action under *Article 16*(4) consists in the speed with which result oriented reservation withers

> away as no longer a need not in the ever widening and everlasting operation of an exception (*Article 16*(4)) as if it was a super fundamental right to continue backward all the time. To lend immortality to the reservation policy is to defeat its "*raisond'etre*" to politicise this provision for communal support and party ends is to subvert the solemn undertaking of *Article 16*(1) to castify reservation even beyond the dismal groups of backward most people, euphemistically described as Scheduled Castes and Scheduled Tribes is to run a grave constitutional risk. Caste, *ipso facto*, is not a class in a secular State.[49]

It is further said:

> The policy of caste based reservation helps political parties to divide the people by perpetuating caste system and win election. Being accustomed to reservation, the members of the backward classes neither assert their right to equality of status and of opportunity *vis-à-vis* others nor demand implementation of the Directive Principles of State Policy. At p 203, it is further said: "To continue the reservation indefinitely, neglecting implementation of the Directive Principles of State Policy, is the surest way to keep the backward classes permanently backward. Continued indefinitely, reservation promotes caste consciousness among all castes, create vested interest in remaining backward and result in perpetuating caste distinction. This is happening all over the country with the result that fraternity remains a pious hope. They stand as barriers to the evolution of India as a nation. Unity and integrity is thus at peril.[50]

But in *Indra Sawhney v UOI*,[51] the court held that "caste" could be a beginning point and a determining factor in identifying socially and educationally backward class of citizen.[52]
11.3 The Basic approach.—

The basic approach of the *Constitution* framers was specified in *Articles 14*, *15*(1), 15(2), 15(3), 16(1), 16(2), 16(4) from which the following basic propositions emerge:

- The fundamental guarantee in every provision was of equality, of non-discrimination.
- Caste was most consciously eschewed: the proviso to *Article 15*(1) spoke only of *women and children*; *Article 16*(4) spoke only of "any backward *class* of citizens."
- Where caste was mentioned, it was only to prohibit discrimination on grounds of caste.
- Where "equality" was made specific—in *Article 16*(1) in regard to employment under the State, for instance—the expression that was used was "equality of *opportunity*", an expression that (we shall soon see) has been buried deep under the rhetorical flourishes of progressives.

Moreover see *Article 29*. Its first clause provides that "Any section of the Citizens residing in the territory of India, or any part thereof having a distinct language, script or culture of its own shall have the right to conserve the same." (Note that the word "religion" is not mentioned).[53]

The second clause of *Article 29* is what is important: it was to have an immediate consequence. This clause provides "No citizen shall be denied admission into any educational institution maintained by the state or receiving aid out of state-funds on grounds only of religion, race, caste, language or any of them.

Article 46, a provision non-enforceable being Directive Principles part of the *Constitution*, provides for the weaker sections of the people and in particular the Scheduled Castes and the Scheduled Tribes, to protect them from social injustice and all forms of exploitation."[54]
11.4 Alterations and additions begin

In *State of Madras v Smt. Champakam Dorairajan,*[55] a student who had done manifestly well in the examination but who happened to have been born to parents who were not among the Scheduled Castes were denied admission, and those who had fared much worse than him, but who happened to have been born to Scheduled Castes parents, were granted admission. This was challenged. It was argued by the Madras Government that *Article 46*—a Directive Principle—overrode *Article 29*(2); that, as one of the special measures that the State was to take for the advancement of Scheduled Castes, it was entitled to grant admission to the students who had done poorly in the examinations and deny it to the non-Scheduled Caste students who had done well.

This argument was rejected decisively by the Supreme Court, saying that Directive Principles cannot override Fundamental Rights. In particular, in view of the prohibition contained in *Article 29*(2), the meritorious student cannot be denied admission on grounds of his caste, and this is what has manifestly been done, it held.

This ruling led to amendment of *Article 15*. A new clause (4) was added,[56] which provided that—"Nothing in this Article or in clause (2) of *Article 29* shall prevent the state from making any special provision for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes."

11.5 A Pattern Forms.—

This pattern was repeated again and again. The Courts would stem the tide with some dyke; politicians would blow it up. As political parties came to depend more and more on sectional appeals, in particular on stoking castes, the alternations and additions became more frequent, and of ever increasing consequence.[57]

In his book S RANGACHARI J. has said[58]:

> No one can doubt that some provisions…are essential upto a certain point of time as they serve to enable backward classes in society to overcome their initial handicaps, but have to be carefully administered. In recent years, however, there are, perhaps understandably, increasing demands for reservation on innumerable grounds.

Learned author has made reference to cases of reservation for persons such as patients of certain diseases like TB and cancer, mentally and physically handicapped persons, women, sons of the soil and so on.

Learned author further adds:

> (Reservation is claimed) in favour of various classes of persons not only on the ground of community, but other grounds as well and some of them are justified. But everyone will agree that while certain types of reservations are necessary in principle, in some cases and for sometime, there cannot be reservation of all types, for all cases and for all time. It has to be remembered that if the policy of reservation has plus points, it has also minus points. An automatic reservation of a substantial number of seats in educational institutions, public employment and promotional avenues could tend to sap all initiative and betterment. It generates, in the field of education and in public services, an atmosphere of discontent and frustration. Again, once introduced, there is a reluctance to withdraw a scheme of reservation, though originally it is limited to a defined period. It is tempting when the period is about to expire to yield to pressure to extend the period further. It often happens that, even under existing schemes of reservation, only the more dominant, powerful, fortunate or affluent sections among the classes enjoying reservation manage to secure the reserved seats and the truly backward or economically barren members of even such communities or classes do not reap the benefits of reservation policy. There is also a possibility, which should be safeguarded against, that if a good chunk of the posts or seats are taken away by various kinds of reservation, what is left for general competition will be a very insignificant proportion of the total seats or posts available. To overcome some of these difficulties, it has been suggested that reservation should only be made on economic criteria and no other.[59]

11.6 From Balaji to Indra Sawhney

From Mr. Balaji to Indra Sawhney the Supreme Court held that clause 16(4) was an exception to the fundamental guarantee provided to all citizens that they shall have equal opportunity in competing for Government employment. The Court held that an exception cannot be allowed to swallow the rule; and speaking generally, reservations should not exceed 50% of the jobs being filled.

11.7 The Adamant T.N. Government

By this time the Tamil Nadu Government had already crossed the limit. 69% of the jobs had come to be reserved on the basis of birth. The Madras High Court, as a consequence of the Supreme Court's judgment, held that while reservations in admissions to educational institutions may continue at their existing levels for 1993-94, they must be brought or down to 50% from 1994-95. Against this order the Tamil Nadu Government filed an appeal in the Supreme Court. The Court reiterated that reservations should not exceed 50%. On 9 November 1993 the Tamil Nadu Assembly unanimously, in a resolution, requested the Central Government to amend the *Constitution* so as to enable it to continue its 69% reservations. It sent a Bill[60] to this effect to the Centre under *Article 31-C*.[61] To this assent was given on 16th July, 1994—and the Bill was notified. The T.N. Government thereafter requested the Centre to take steps to place the Act in the Ninth Schedule. In response to this the *Constitution* was amended for the 76th time in 1994 and the T.N. legislation was put beyond the reach of Courts.

11.8 Reservations in matters of promotion.—

Again in May 1995 due to all party consensus the *Constitution* was amended for the 77th time, adding a new

clause (4A) to *Article 16*, providing that "nothing in this Article shall prevent the State from making any provision for *reservation in matters of promotion* to any class or classes of posts in the services under the State in favour of the SCs and STs, which, in the opinion of the State, are not adequately represented in the services under the State."

Thus it became a standard practice for governments to go on relaxing—to the point of setting aside completely—standards for inducing certain sections into governmental jobs as well as into educational institutions solely because of their birth. Even after such concession and relaxation enough candidates to fill the vacancies could not be found. Because of this position *i.e.*, when vacancies could not be filled in one year, it was decided that they should be carried over to subsequent years. Consequently, the general candidates seeking to get in on the basis of merit would get excluded from a majority of seats, so that well above 50% of the seats would get reserved. The matter came before the Supreme Court several times, and in *Indra Sawhney case* the court reaffirmed that the total quantum of reservations, including the ones carried forward from preceding years should not exceed 50%. Against this by amending the *Constitution* for the 81st time[62] it was specified that any provision for reservation made under *Article 16*(4A) shall be considered as a separate class of vacancies to be filled up in any succeeding year or years—and this class of vacancies shall not be considered together with the vacancies of the year in which they were being filled up for the purpose of determining the ceiling of 50%. Thus standard for some categories of candidates kept getting more and more relaxed. They were challenged repeatedly in courts.

11.9 The Court.—

In Courts some "progressive" judges justified relaxations, others shut their eyes to what was staring them in face. This was extremely depressing.[63]

11.10 Vinod Kumar case & the 82nd amendment.—

In *Vinod Kumar case*[64] the Supreme Court held that loosening standards violate the command of *Article 335* and therefore standards could not be relaxed or waived when it comes to promotions in government services.[65] As a rebuff to this in the year 2000, *Article 335* was amended by adding thereto a proviso[66], whereby qualifying marks and standards of evaluation for SC and ST candidates were further relaxed.

11.11 Roster system and accelerated promotions.—

Furthermore "Roster System"[67] was introduced, which came to play a havoc. Juniors got accelerated promotions and came to leap over their seniors, not because of extra merit, but because of their birth. This created anomalies, much heart burn and demoralization. The result was that one got "accelerated promotion, but not seniority." But as years passed the reservationist began to get not just accelerated promotion but also "consequential seniority". The Supreme Court in *Virpal Singh*[68] and *Ajit Singh*[69] cases struck this practice down.

11.12 Consequential seniority.—

And what was the consequences?

By an amendment to the *Constitution*,[70] a new clause (4A) which was introduced in *Article 16* by the 77th Amendment, was further amended to secure reservations in promotion with "consequential seniority."

And again, this was not the end.

11.13 Minority institutions.—

A long-running strand of litigation, relating to the right of the "minority institutions" to run their affairs without interference from the State has brought down an unexpected meteor on reservations *per se*.

11.14 The latest distortion: a positive discrimination.—

The latest distortion was brought into *Articles 29* and *30*—which help minorities to maintain their "language, script and culture." The sort of institution that is contemplated by these Articles is evident from the very words and context of these two Articles. Muslims apprehended that Urdu is dying out. They therefore set up an academy to conserve and teach it. *Article 30*, clause second says that they can set up an institution of their choice and neither the state nor others will have the authority to tell them what kind of an institution will best sustain Urdu.

By plucking words "of their choice" out of context and tearing then away from the object shown in *Articles 29* and *30*, they started a college of engineering or a college of dentistry. By no stretch of imagination such colleges can be taken to help conserve their language, script or culture of the minority. However, it was

presumed to enjoy the protection of *Articles 29* and *30* and thus be beyond the reach of the State. This was and is against the national interest and created positive discrimination.

11.15 *TMA Pai Foundation case.*—

T.M.A. Pai Foundation v State of Karnataka,[71] *Islamic Academy of Education v State of Karnataka*[72] and *P.A. Inamdar v State of Maharashtra,*[73] these three cases lead up to the latest Amendments of the *Constitution*. In Pai Foundation case the Supreme Court reaffirmed that by virtue of *Article 30*(1), minorities, of course, have a right to set up educational institutions "of their choice". It can determine its own admission policy and procedure, but they must be on transparent basis and merit must be adequately taken care of. Besides, the right to administer such institutions is not absolute, the State can intervene to ensure that educational standards and excellence are maintained, and all the more so in regard to admissions to professional institutions. The Court also ruled that the minority institution shall admit "a reasonable extent of non-minority students." The admissions procedure should be fair and transparent. Even an unaided minority institution ought not to ignore the merit of the students for admission.

11.16 *Islamic Academy Education* case.—

In *Islamic Academy Education* case the court ruled that autonomy does not mean sacrifice of merit. State can insist on merit-based admissions as a condition of extending recognition to the institution. For this purpose it prescribed a committee headed by a retired judge of the High Court to oversee the examination for admissions.

11.17 *P.A. Inamdar* case.—

In *P.A. Inamdar* case it was again emphasized that whether the *constitution* is a minority or a non -minority one "excellence in education and maintenance of high standards at this level (of graduate or post-graduate studies as also technical courses) are a must." "To fulfil these objectives the state can and rather must, in national interest step in…The education, knowledge and learning at this level possessed by individuals collectively constitute our national wealth."

11.18 The 93rd Amendment to the Constitution.—

These judgments created a howl and within days, the *Constitution* was amended for the 93rd time, adding a new clause (5) to *Article 15* which runs as follows:

> (5) Nothing in this article or in sub-clause (*g*) of clause (1) of *Article 19* shall prevent the State from making any special provisions, by law, for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes or the Scheduled Tribes in so far as such special provisions relate to their admission to educational institutions including private educational institutions, whether aided or unaided by the State, other than the minority educational institutions referred to in clause (1) of *Article 30*.

11.19 The Result.—

In short, this Amendment threw overboard the Supreme Court's judgment on both courts:

(1) whereas the Supreme Court had said that there shall be no reservations in private, unaided colleges, the Amendment decreed that *there shall be* reservations.

(2) whereas the Supreme Court had said that in this regard there shall be no difference between minority and non-minority institutions, the Amendment decreed that *there shall be* a difference.

> For thirty years, each concession, each relaxation of standards, the inclusion of each new caste in the reservations list has been decreed with just one thing in mind— the vote-banks to whom "the right signal" needs to be sent. The progressive judge can't be bothered, indeed he sees merit in this pandering to the newly risen. "Sometimes it is obliquely suggested," we are instructed in *Vasanth Kumar*, "that excessive reservation is indulged in as a mere vote catching device. Perhaps so, perhaps not. One can only say "out of evil cometh good" and quicker the redemption of the oppressed classes, so much the better for the nation…"[74]

> And that is of a piece. Our political class just throws a concession at some group, it just throws funds at some problem or region, and proclaims itself to be the champion of the poor and neglected. In states such as Jammu and Kashmir, in the Northeast, Delhi has deluded itself into believing that it has "done its duty" by pouring money into them. The money has ended up financing insurgents.[75]

If you point that out, you are accused as “anti-Kashmiri,” “anti-the people of the Northeast” Grain and sugar dispatched to ration shops under Public Distribution system reach the open market. If you point this out or put questions about such schemes[76] you are denounced as being anti-poor.

The story is exactly the same in the case of reservations. Reservations should not be allowed to become a vested interest, the Supreme Court stated in *A. Pariakaruppan*. The efficacy of the reservations policy will consist in how soon reservations can be done away with, it stated in *Soshit Karamchari Sangah*. “The policy of reservations in employment, education and legislative institutions should be reviewed every five years or so,” the then Chief Justice, Y.V. CHANDRACHUD, counselled in *Vasanth Kumar*. But today if you so much as inquire, when reservations may end, you are bound to be traduced as anti-*Dalit*, and worse.[77] And a charge would be levelled against you.[78]

This descent to lower and lower standards, to the poorer and poorer functioning of the State, the debasement of public discourse and the consequent progressive inability to arrest the descent is as inevitable as it is predictable. There is a generalized assault on excellence. The standard are dismissed as elitist; mediocrity has become the norm, vulgarity is authenticity, intimidation is argument and assault is proof. Panditji’s words come true.

We have to make sure that the virus of mediocrity does not take root. The caste system can be reinterpreted. Reinterpretation would restore it to its original meaning: a system purged of notions of superiority and inferiority, an inclusive system, a system, imbuing people with a sense of duties towards each other rather than one prescribing taboos and superstitions. As happened in so many matters, that simple and good judge. Justice H.R. KHANNA voiced in words true and straight the caution we must bear in mind. While some of his colleagues on the Bench handling *N.M. Thomas* were sweeping themselves off their feet by their own prose, he wrote with his customary diffidence:

> I may state that there is no dispute so far as the question is concerned about the need to make every effort to ameliorate the lot of the backward classes, including the members of the Scheduled Castes and the Scheduled Tribes. We are all agreed on that. The backwardness of those sections of the population is a stigma on our social set-up and has got to be erased as visualized in *Article 46 of the Constitution*. It may also call for concrete acts to atone for the past neglect and exploitation of those classes with a view to bring them on a footing of equality, real and effective, with the advanced sections of the population. The question with which we are concerned, however, is whether the method which has been adopted is constitutionally permissible under clause (1) of *Article 16*…The answer to the above question, in my opinion has to be in the negative… We have also to guard against allowing our supposed zeal to safeguard the interests of the members of Scheduled Castes and Scheduled Tribes to so sway our mind and warp our judgment that we drain off the substance of the contents of clause (1) of *Article 16* and whittle down the principle of equality of opportunity in the matter of public employment enshrined in that clause in such a way as to make it a mere pious wish and testing illusion. The ideals of supremacy of merit, the efficiency of services and the absence of discrimination in the sphere of public employment would be the obvious casualties if we once countenance inroads to be made into that valued principle beyond those warranted by clause (4) of *Article 16*.[79]

A.C. GUPTA J. concurred, and recalled the warning that GAJENDRAGADKAR J. had voiced in the context of *Article 15*(4)—namely, that in justifying steps in pursuit of one ideal we should beware lest we trample upon other ideals enshrined in the *Constitution*. In MR BALAJI, JUSTICE GAJENDRAGADKARhad observed:

> When *Article 16*(4) refers to the special provision for the advancement of certain classes or Scheduled Castes and Scheduled Tribes, it must not be ignored that the provision which is authorized to be made is a special provision; it is not a provision which is exclusive in character, so that in looking after the advancement of those classes, the State would be justified in ignoring altogether the advancement of the rest of society. It is because the interests of the society at large would be served by promoting the advancement of the weaker elements in the society that *Article 15*(4) authorizes special provision to be made. But if a provision which is in the nature of an exception completely excludes the rest of the society that clearly is outside the scope of *Article 15*(4). It would be extremely unreasonable to assume that in enacting *Article 15*(4) the Parliament intended to provide that where the advancement of the backward classes or the Scheduled Castes and Scheduled Tribes was concerned, the fundamental rights of the citizens constituting the rest of the society were to be completely and absolutely ignored.[80]

Precisely, and yet an understatement. The *Constitution* has asked that “special measures” be taken for the upliftment of the weaker sections of our society. But the “special measures” have been reduced to

"reservations". That word is waved to fool the poor. Whether it is the best way to help the poor; whether the benefits from it are reaching the truly poor—none of this is examined.

GUPTA J. also recalled what the Supreme Court had said in *State of J&K v T.N. Khosa*[81]*:*

> Let us not evolve, through imperceptible extensions, a theory of classification which may subvert, perhaps submerge, the precious guarantee of equality. The eminent spirit of an ideal society is equality and so we must not be left to ask in wonderment: what, after all, is the operational residue of equality and equal opportunity?

"I believe." GUPTA J. concluded, "these words are not just so much rhetoric, but [are] meant to be taken seriously."[82]

In short, all our country one must be lifted out of privation: privation must be erased. Inequalities based on birth must be minimised. This is best done as the framers of our *constitution* envisaged, by out lawing, on the one hand, discrimination and ostracism, and by providing, on the other, positive help which will equip the disadvantaged to outdo others.

There is no doubt at all that the disadvantaged must be helped, but all that is being done today is to pander the groups to buy votes and to dress this pandering up as "social justice". This social justice has resulted in a moral and mental paralysis.

> When a polity once accepts that this is the way to "look after the interests of the poor"—that is, by diluting standards, by making special concessions regarding outcomes to a group—it just has to go on extending, as we have seen, the ambit of dilutions and concessions. And no segment of the polity, no political party for instance, can resist the pressure to go on a hunt of its own for groups for which *it* will wrest concessions. It will issue whips to make sure that its legislators make enough of a show of support to convey "the right signal"—the signal that this party is as committed to that target group as any rival.[83]

This raises a question—where is the freedom of speech in such an atmosphere? How can rational examination survive such verbal terrorism?

Today, as we have seen in the *rulings of progressive judges*, "social justice" is taken to mean that the State must guarantee equality of *outcomes* to all, indeed in many instances that it guarantee particular outcomes to members of particular groups independently of whether or not they make the effort that is mandated for that outcome—witness the way qualifying marks are lowered, sometimes to near nothing, for candidates from particular castes.

Various groups demand various benefits. The state is tugged and pushed. It lurches from one concession to another. It becomes paralysed, it loses its legitimacy and capturing the state becomes all important. As the State loses legitimacy, rules and laws are flouted with even greater abandon, institutions like the Police and Civil Service suborned even more brazenly. And all this is done in the name of "the will of the people", "the mandate" by the janta and "social justice."[84]

Where is "freedom under the law", "Government of laws, not men" and "what is the *Constitution* when it can be altered time and again by the majority of the moment?" And alas! even the Courts are not immune from such rhetoric. Injustices are exaggerated to legitimize what the politician has, for other reasons found convenient.
11.20 A volley of questions demanding answers.—

A number of questions thus arise in this regard:[85]

(a) How is it that what was explicitely forbidden by the *Constitution*— classification based on caste—has become the rule?

(b) How is it that what were enabling provisions have become *mandatoryminima*?

(c) Where does the figure 50 % come from?

(d) How is it that in practice it is exceeded blatantly?

(e) Are the benefits not being hogged by a few; the better-off among these castes?

(f) Has the "creamy layer" been actually hived off?

(g) How is it that what were begun as reservations at entry become reservations in promotion also?

(h) How did this become a right to *accelerated* promotions?

(i) How did that become a right "accelerated promotions with consequential seniority."?

(j) How did that become a right to have the prescribed standards diluted—to the point of being waived altogether?—even in educational institutions. Is this any way to become a "knowledge super-power"?

(k) As there has been no caste-wise enumeration and tabulation since the 1931 Census, where does this mythical figure—"OBCs are 52 % of the population" come from? And what did the 1931 census itself say about its caste-wise figures?

(l) The race then was to get one's group recognized as a higher caste. How has it become a race to get it anointed as "backward"?

(m) Are the "backward castes", the weak ones who need protection and special privileges? Are they not the dominant and domineering castes? Who is most responsible pratrocities on harijans?

(n) How have the courts come to acquiesce in such wholesale perversion of the *Constitution*? Is their role to cheer such perversions on? Or is it to *conserve* to protect the *Constitution*?

(o) Where will this process end? Has it not already enfeebled the State structure? Has it not already riven our society?

(p) Has this process not subverted our parliamentary democracy? Has Pandit Nehru's warning not come true—that, *"this way lies not only folly, butdisaster?"*[86]

12. REVIEW OF THE CONSTITUTION

There was a lot of hue and cry when the National Commission for Review of the *Constitution* was appointed. This was because of misunderstanding the connotations of the word "Review." The word review means a general survey of events or of a subject; reconsideration; a critical examination and report on some book or play; re-evaluation. Review of the *Constitution* is to reform it, to improve it or to edit and infuse a new blood into the reins of the *Constitution* to strengthen it.

For this purpose, by a resolution of the Central Government, Justice M.N. Venkatachaliah, the former Chief Justice of India has been appointed as the chairperson of the Commission.

Areas for the Review:

(1) Anti-Defection laws,

(2) Adversarial system of colonial Justice,

(3) Corruption,

(4) Election laws,

(5) Human Rights,

(6) Illiteracy,

(7) Overpopulation,

(8) Poverty,

(9) Provisions about women and children,

(10) Provisions legislators, their powers, privileges, immunities and duties,

(11) Reservation Policy for Scheduled Castes and Scheduled Tribes and minorities,

(12) Relation between Union and States,

(13) Secularism-its true meaning and practice. It does not mean that illiterate and backward class of people can be all used to accept Muslim or Christian faith. Rules should be made to profess, practice and propagate religion so that outsiders do not get undue advantage of the right to "freedom" of religion."

(14) Unemployment.

12.1 Recommendations of the Commission

A number of recommendations have been made by the commission. Of these recommendations 58 are such as would involve amendments to the Constitutions, while 85 are such as would involve legislative measures. The rest involve executive action. Out of these one relates to the discussion on *Article 31* -B and Schedule IX. The Commission has recognized the need to restrict the scope of *Article 31-B* and proposed to add the following proviso to it:

> *Provided* that the protection afforded by this Article to acts and regulations which may be hereafter specified in the IX Schedule or any of the provisions thereof, shall not apply unless such Acts or regulations relate—
>
> (a) in pith and substance to agrarian reforms or land reforms;
>
> (b) to the reasonable quantum of reservation under *Articles 15* and *16*;
>
> (c) to provisions for giving effect to the policy of the State towards securing all or any of the principles specified in clause (b) or clause (c) of *Article 39*.

This proposed Amendments cut down the vast scope of *Article 31-B* to immunize statutes from judicial review *vis-à-vis* the Fundamental Rights.

In *I.R. Coelho v State of TN,*[87] it was held that amendments to the *Constitution* on or after 24 April 1973 by which the Nineth Schedule was amended by inclusion of various laws therein shall have to be tested on the touchstone of the basic structure of the *Constitution* as reflected in *Article 21*, read with *Article 14*, *Article 19* and this principles underlying them. Even though an act has been included in the Nineth Schedule by a constitutional amendment, its provision would be open to attack on the ground that they destroy or damage the basic features if the fundamental right or rights taken away or abrogated or pertains to the basic structure. If a legislation included in IX Schedule and in its constitutionality is already upheld by court, then the same cannot be re-agitated.[88]

PART-III

INTERPRETATION[89]13. INTERPRETATION AND CONSTRUCTION

Modern Acts and rules are drafted by legal experts. It is expected of these experts that the language used by them will leave no room for its interpretation. But general judicial experience is quite different. Where two views are often reasonably possible and when judicial approach has to make a choice between them the process of decision making is often very difficult and delicate.[90] This process has led to formulation of certain rules of interpretation or construction. According to Salmond[91] by interpretation or construction is meant - the process by which the courts seek to ascertain the meaning of the Legislature through the medium of authoritative forms in which it is expressed.

In a loose sense, the terms “interpretation” and “construction” are used as identical referring to:

> the process by which the Courts seek to ascertain the meaning of the Legislature through the medium of the authoritative forms in which it is expressed.[92]

Some constitutional writers, however, draw a distinction between the two.

Thus, *COOLEY,*[93] says:

> Interpretation differs from construction in that the former is the art of finding out the *true sense* of any form of words; that is, the sense which their author used to convey. Construction, on the other hand, is the drawing of conclusions respecting subjects that lie beyond the direct expression of the text; conclusions which are in the *spirit*, though not within the letter of the law.[94]

Thus, in short, interpretation means the ascertainment of the true meaning of that which is expressed by the words *used* ; while construction means the ascertainment of what the framers intended to express and the application of the text to subjects *lyingbeyond* the direct expressions of that text,—which the framers would have dealt with had they been gifted with the power of foresight.

But, as CRAWFORD[95] observes, the distinction between the two processes is often vague and, so far as the Courts are concerned, apparently has little or no importance:

> Generally the whole matter has been largely relegated to the realm of academic discussion, since for most practical purposes it is sufficient to designate the whole process of ascertaining the legislative intent as either interpretation or construction. This appears to be the customary judicial practice.

13.1 General and Particular Rules for Interpretation

There are certain general rules which are guides for the interpretation of *allstatutes,* or rather all written documents (whether they are Acts of the Legislature or the acts of parties); for, the object of interpretation in all cases is the same, *viz.,* the ascertainment of the intention sought to be expressed.[1]

It would therefore, be useful to review, in brief, the general rules of interpretation of ordinary statutes, which are applicable in the interpretation of the *Constitution*, as well.[2]

On the other hand, there are some special rules for the interpretation of a *Constitution*, by reason of its special nature as the fundamental law, just as there are some special rules for interpreting laws having a particular object (such as fiscal, penal, emergency and the like) which would not be applicable to other statutes.[3]

The task of interpreting the *Constitution* is a highly creative judicial function. A democratic society lives and swears by certain values – individual liberty, human dignity, rule of law, constitutionalism, limited government and it is the task of the judiciary to so interpret the *Constitution* and the law as to constantly inculcate these values on which democracy thrives. Also, the courts must keep in mind that the society does not stand still; it is dynamic and not static; social and economic conditions change continually. Therefore, the courts must so interpret the *Constitution* that it does not fall behind changing, contemporary societal needs. The words of the *Constitution* remain the same, but their significance changes from time to time through judicial interpretation.

The *Constitution* is not an ephemeral legal document embodying a set of legal rules for the passing hour. It sets out principles for an expanding future and is intended to endure for ages to come and consequently to be adapted to the various crises of human affairs. A purposive rather than a strict liberal approach of interpretation should be adopted. A constitutional provision must be construed not in a narrow and constricted sense, but in a wide and liberal manner so as to anticipate and take account of changing conditions and purposes, so that a constitutional provision is not fossilised but remains flexible enough to meet the newly emerging problems and challenges. This principle of interpretation is particularly apposite to the interpretation of fundamental rights.[4]

Based on the changing conditions and lessons of experience, the adaptive or “living *Constitution*” approach treats the *Constitution* more as a political than as a legal document and holds that constitutional interpretation can and must be influenced by the present day values…Insisting that such generation has the right to adapt the *Constitution* to its own needs, proponents of this approach regards *Constitution* as a “morphing document”; that means, from age to age, whatever the society and more particularly the court thinks it ought to mean.[5]

> When we are dealing with words that also are constituent acts, like the *Constitution* of United States. We must realise that they have called into life a being the development of which could not have been foreseen completely by the most gifted of its begetters. It was enough for them to realise or to hope that they had created an organism; it has taken a century and has cost their successors much sweat and blood to prove that they created a nation. The case before us must be considered “in the light of our experience and not merely in that of what was said a hundred years ago”.[6]*Constitution* is intended to endure for ages to come and consequently to be adapted to the various cries of human affairs.[7]

Let us, therefore, first discuss the general rules of interpretation which are applicable to a *Constitution* in common with other statutes, and then take up the particular rules relating to the *Constitution*.

14. GENERAL RULES OF INTERPRETATION(a) The Rule of Expressed Intention

The fundamental rule of interpretation of all enactments to which all other rules are subordinate is that “they should be construed according to the intent of the Parliament which passed the law”.[8]

For the purpose of interpretation, however, “intent” or “intention” does *not* mean what the Legislature meant to say, but what the meaning of the words employed by the Legislature is. In other words, Courts have to find out the *expressed* intention of the Legislature, from the words of the enactment itself. It is not at liberty to give:

> a speculative opinion as to what the Legislature *probably would have meant,* although there has been an omission to

> enact it. In a Court of law, or Equity what the Legislature intended to be done, or not to be done can only be legitimately ascertained from that which it has chosen to enact either in express words or by reasonable and necessary implication.[9]

In other words,

> When the meaning of words is plain, it is not the duty of Courts to busy themselves with *supposed intentions*.[10]

One approach to constitutional interpretation involves explicating the constitutional text simply on the basis of the words used therein. The basic claim of this approach seems unarguable. If the *Constitution* is to control the outcome of a case and its adorned text in plain, the constitutional interpretation should stop right there. If the language be clear, it is conclusive. There cannot be any construction where there is nothing to construe.[11] The primacy must be accorded to the text structure and history of the document being interpreted and the job of the judge is to apply the clear textual language of the *Constitution* or statute or the critical structural principle necessarily implicit in the text.[12]

A statute is an edict of the legislature.[13] The expression “intention of legislature” is a shorthand reference to the meaning of the words used by the legislature objectively determined with the guidance furnished by the accepted principles of interpretation.

The Supreme Court of India is confronted with an extensive *Constitution* comprising 395 Articles and a number of Schedules, and thus the text of the *Constitution* should be an adequate basis for ascertaining the meaning of its provision, especially *Article 367 of the Constitution* says that *General Clauses Act* be used for the interpretation of the *Constitution*.[14] Learned author further says: “When the text of the *Constitution* lacked clarity, the judges resorted to its liberal interpretation, but they were always reluctant to interpret its provision in “the spirit of the *Constitution*”. The choice of the proper method in particular cases is not always an easy decision, but discipline and consistency in methods of interpretation is essential to avoid confusion and to provide for a body of reliable rules which could be of guidance to the judiciary in the future“[15].

In a recent judgment, learned judge (minority view) expressed that the words in the *Constitution* should be read in their ordinary and natural meaning, so that a construction which brings out the true legislative intent is achieved.[16]

The above rule has been followed by the Privy Council in interpreting the Dominion Constitutions.[17] Thus, observed the Privy Council,

> In the interpretation of a completely self-governing *Constitution*, founded upon a written organic instrument such as the British North America Act, and the *Constitution* of the Commonwealth of Australia, if the text is *explicit,* it is conclusive alike in what it directs and what it forbids.[18]

Similarly, in determining the validity of the Income-tax (War-time Arrangements) Act of 1942, the Australian High Court observed that once they were satisfied that the legislation was within the powers of the Commonwealth Parliament, they had nothing to do with the wisdom or expediency of the legislation:

> The controversy before the Court is legal controversy…The Court is not authorised to consider whether the Acts are fair and just as between States—whether some States are being forced, by a political combination against them, to pay an undue share of Commonwealth expenditure or to provide money which other States ought fairly to provide. These are arguments to be used in Parliament and before the people. They raise questions of policy which it is not for the Court to determine or even to consider.[19]

According to this rule, a *Constitution* is to be interpreted in the *same manner* as any other statute, namely, by reference to its terms alone[20] and nothing is to be read into it on grounds of policy,[21] expediency or justice[22] or political exigency,[23] motives of the framers or possibility of abuse of power,[24] and the like.

> Ordinarily, the courts should adopt the grammatical construction in interpretation. But if the words used in the provision are imprecise, protean or evocative or can reasonably bear meanings more than one, the rule of grammatical constriction ceases to be a sure guide to reach at the real legislative intent. In such a case, it is legitimate for the court to go beyond the avid literal confines of the provisions and to call in aid other well recognised rules of construction, such as legislative history, the basic scheme and framework of the statute as a whole – the object sought to be

> achieved and the consequences that may flow from the adoption of one in preference to the other possible interpretations.[25]

Obligation of the judiciary is to administer justice according to law but the law must be one that commands legitimacy with the people and legitimacy of the law itself would depend upon whether it accords with justice. The interpretation, therefore, must be such that the expectation of the founding fathers and constitutionalists are fulfilled rather than frustrated. The will of the people cannot be permitted to be subordinated to political expediency of the Prime Minister or the Chief Minister, as the case may be. [26]

The general rule of interpretation which is common to statutory provisions as well as to constitutional provisions is to find out the expressed intention of the makers of the provisions from the words of the provisions themselves. It is also equally well settled that, without doing violence to the language used, a constitutional provision shall receive a fair, liberal and progressive construction, so that its true objects might be promoted.[27]

The Supreme Court of India realised that in interpreting the *Constitution* which is the fundamental law of the land, a broad and liberal interpretation of the provisions of the *Constitution* is necessary. The Court held: “The court has to be resilient, not rigid, forward looking not static, liberal not verbal in the interpretation of the organic law of the Nation”.[28] The legislative intention *i.e.,* the true or legal meaning of an enactment is derived from considering the meaning of the words used in the enactment in the light of any discernible purpose or object which comprehends the mischief and its remedy to which the enactment is directed.[29]

For the purpose of ascertaining the intention of the legislature, the Court has to direct its attention not merely to the clauses to be construed but to the entire statute; it must compare the clause with the other parts of the law, and the setting in which the clause to be interpreted occurs. Again in interpreting a constitutional document provisions conferring legislative power must normally be interpreted liberally and in their widest amplitude. [30]

When the question arises as to the meaning of a certain provision in a statute, it is not only legitimate, but proper to read that provision in its context. The context here means, the statute as a whole, the previous state of the law, other statutes *pari materia,* the general scope of the statute and the mischief that it was intended to remedy.[31]

From the above primary rule, several sub-rules follow:
Ordinarily, words are to be construed in their natural sense;

Sub-rule (1).—If the words of the enactment are themselves precise and *unambiguous,* no more is necessary than to expound those words in their *natural* and *ordinary* sense.[32] Though it is said that a construction according to plain language should ordinarily be accepted, such a construction should not be adopted where it leads to anomalies, injustice and absurdities.[33]

But, according to learned JUDGE G.P. SINGH,

> This and similar statements are not accurate statements of the rule and all that they really mean is that *prima facie* plain language may not be plain. Plain meaning rule applies at the stage when the words have been construed in their context and the conclusion is reached that they are susceptible to only one meaning. In that event, the meaning so derived is to be given effect to irrespective of consequences for no alternative construction is really open. This, of course, is subject to the qualification in India that the statute is constitutional and unreasonableness, injustice or absurdity is not of the nature and gravity which makes the statute offends the *Constitution*”.[34] According to learned judge, the words of a statute are first understood in their natural, ordinary or popular sense and phrases and sentences are construed according to their grammatical meaning, unless that leads to some absurdity or unless there is something in the context or in the object of the statute to suggest to the contrary.[35]

Thus, in interpreting the word “resident” in section 75(*iv*) of the Australian *Constitution* Act, the majority of the Australian High Court followed the literal and popular meaning of the word and held that it meant only natural persons and did not include a body corporate. The majority assumed that by “plain” and “natural” meaning is meant the literal and popular, as opposed to a figurative or technical meaning.[36]

Hence, when a word is capable of being construed either in a popular *sense or as aword of art, it is for those who assert that it is used in a technical* sense, to establish that fact.[37]
According to rules of grammar.

Sub-rule (2). Phrases and sentences are to be construed according to *rules of grammar.*[38]

To the above rules, however, there are a number of *exceptions*:

(a) If the words have acquired a technical meaning either by usage or judicial decisions, they should in the first instance be taken as used by the Legislature in that technical sense.[39]

> Where a word of doubtful meaning has received a clear judicial interpretation, the subsequent statute which incorporates the same word or the same phrase in a *similar context,* must be construed so that the word or phrase is interpreted according to the meaning that has previously been assigned to it.[40]

So, when technical terms are employed in a *Constitution*, they are to be given that meaning which they had at the time the instrument was framed and adopted, *e.g.,* technical terms of English law.[41] Such words, *e.g.,* in *our*Constitution are "territory", "property", "domicile", "*habeas corpus*", "*mandamus",* "pardon", "reprieve".

A word or expression may acquire a meaning either by its consistent use by the legislature or by judicial construction[42] in a particular sense. The ratio of the rule of interpretation that words of legal import occurring in a statute should be construed in their legal sense is that those words have, in law, acquired a definite and precise sense and that, accordingly, the legislature must be taken to have intended that they should be understood in that sense. In interpreting an expression used in a legal sense, therefore, we have only to ascertain the precise connotation which it possesses in law.[43] Mimamsa rules of interpretation was our traditional principles of interpretation for more than thousand years, and hence interpretation as provided by Mimamsa can be utilised to resolve a difficulty.[44]

A special application of this rule has been made by the Supreme Court, by interpreting the expression "sale of goods" in the State List under the Government of India Act, 1935, and the *Constitution* in the light of the meaning given to that expression in the *Sale of Goods Act, 1930*, which was prevalent when the Act of 1935 and the *Constitution* came to be made.[45]

(b) If the *context*[46] plainly shows that the words or phrases are being used in a *special* sense, the literal meaning of the words should be qualified in that sense.[47]

> In all cases, the object is to see what is the intention expressed by the words used. But, from the imperfections of language, it is impossible to know that intention without enquiring further and seeing what the circumstances were with reference to which the words were used, and what was the object, appearing from those circumstances, which the person using them had in view, for the meaning of words varies according to the circumstances with respect to which they were used.[48]

An ambiguous word should be given an interpretation which advances the object and purpose of legislation. But a word of definite and clear meaning should be given that very meaning irrespective of the consequences.[49] When language of a statute is extremely general and not clear, contextual background has to be taken into consideration for arriving at a clear interpretation.[50] When a word is not defined in an Act or rules framed thereunder, it has to be interpreted contextually keeping in view the language of the relevant provision.[51]

Thus, in an *Australian* case[52] it was held that though the literal meaning of the word "square" is perfectly clear, meaning a rectangular quadrilateral, yet when the word is used in an electoral law to describe the shape of the ballot paper, an elector cannot be disenfranchised because the printer of the ballot paper has failed to print an accurate geometrical square.

> But when the words of a statute are clear and ambiguous, and they are not unfamiliar or uncommon words as may be aptly described as "terms of art", it is unnecessary to travel beyond the Act for the purpose of construing them.[53]

Thus, *our* Federal court refused to interpret item 42 of List II, of the Government of India Act, 1935, *i.e.,* "taxes on lands and buildings, hearths and windows" as meaning a consumption tax payable by the occupier (and not the owner) on the ground that a tax on buildings is so understood in British legislative practice. It is to be noted that Entry 49 of List II of the *Constitution* (Schedule VII) also relates to "taxes on lands and buildings" and is to be interpreted as in the above case.
Avoiding unconstitutionality.

(c) If the language of an enactment is ambiguous and susceptible of two *meanings* one of which is consonant with *justice and good sense,* while the other would lead to extravagant results, a Court of law would adopt the former and reject the latter, even though the latter may correspond more closely with the literal meaning of the words employed.[54] Similarly, when two constructions are open, the Court may adopt the *more reasonable* of the two,[55] and that which is consistent with the constitutionality of the statute,[56] or which will advance the philosophy and the goals underlying the *Constitution*.[57] A statute is construed to make it effective and operative on the principle expressed in the maxim "*ut res magis valeat quampereat*". There is a presumption that the legislature does not exceed its jurisdiction and when the constitutionality of an Act is challenged, the person challenging the same has to establish it.[58]

While considering the validity of a statute, the court must be able to hold beyond any iota of doubt that the violation of constitutional provision is so glaring that the legislative provision cannot stand and only then it can be invalidated. Without flagrant violation of constitutional provision, law made by the Parliament or the legislature cannot be declared invalid. Invalidity of statute cannot be declared lightly.[59] The principle of burden of proof regarding unconstutionality, though is on the person challenging it, but once he establishes that fundamental right has been violated, it is for the State to prove that the restrictions are valid on the ground of reasonableness under *Article 19*(6).[60]

When alternative constructions are open, the Court will adopt that construction by which the intention of the legislature will be *better* effectuated[61] or which will be consistent with the *smooth working* of the system[62] which the statute purports to be regulating and that alternative is to be rejected which will introduce uncertainty, friction or confusion or anomaly[63] into the working of the system.[64] But if no alternative construction is open, the court cannot ignore a statutory provision "to relieve what it considers a distress resulting from its operation"; a statute has to be effective, whether the court likes it or not.[65]

But this rule of avoiding unconstitutionality is subject to the limitation that it applies only where two views are possible. It cannot be pushed so far as to alter the meaning of the *clear words* used in an enactment, and to, in effect, *repeal* statutory provisions by making them useless without holding them to be void.[66]

Applied to a *Constitution*, the rule means that in case of an ambiguity, that construction will be adopted which is in harmony with the general scheme" of the *Constitution*,[67] and for this recourse may be had to the history of the *Constitution*.[68]

In the words of our Supreme Court:

> If two constructions are possible, then the Court must adopt that which will ensure smooth and harmonious working of the *Constitution* and eschew the other which will lead to absurdity or give rise to practical inconvenience or make well-established Provisions of existing law nugatory.[69]

To avoid the statute becoming unconstitutional, so also words may be construed in a wider sense, if a narrow construction renders the law unconstitutional and that result is avoided by giving a wider meaning.[70]

So, where through imperfections of human language there are any doubts respecting the extent and scope of any power conferred by the *constitution*, the *objects* for which such power was bestowed are to be considered in the interpretation of the *Constitution*.[71] When two interpretations are feasible, the court will prefer that which advances the remedy and suppresses the mischief as the legislature envisioned.[72] The court should adopt an object oriented approach keeping in mind the principle that legislative utility is to be ruled out so long as the interpretative possibility permits.[73]

But the object oriented approach cannot be carried out to the extent of doing violence to the plain language used by re-writing the section or substituting the words in place of the actual words used by legislature.[74]

(*d*) When the grammatical and literal construction would lead to some *absurdity*, *repugnance or inconsistency* with the rest of the instrument, the grammatical and ordinary sense of the words may be *modified* to avoid that difficulty, and to give effect to the purpose of the Legislature,[75]*but no further.*[76]

A construction according to the literal meaning of words cannot be made where it would lead (*i*) to a plain and clear contradiction of the apparent purpose of the Act, or (*ii*) to some palpable and evident absurdity, so great.[77]

> as to convince the court that the intention could not have been to use them in their ordinary signification, and to justify

> the court in putting on them some other signification, which, though less proper, is one which the court thinks the words will bear.

But even in such a case, order to depart from the literal construction, the absurdity or repugnance must be such as manifested itself to the mind of the law-maker, and not such as may appear to the Court.[78] In other words, the absurdity must appear with reference to the facts existing at the time when the statute was enacted.[79] The absurdity may be manifest: (*i*) from the section or clause itself; or (*ii*) from the fact of its repugnance to some other provision of the same statute.[80]

Further, the doctrine of absurdity cannot be applied:

"so as to result in twisting language into a meaning *which it cannot bear.* It is a doctrine which must not be used to *re-write the language* in a way different from that in which it was originally framed.[81]

Hardship of a few cannot form the basis for determining validity[82] and it is not a valid consideration for distorting the language of a statutory provision.[83] If two constructions are possible, the one leading to anomaly, absurdity or unconstitutionality should be avoided.[84] If obvious intention of statute gives rise to obstacles in implementation, court should find ways to remove the obstacles so as to avoid absurd results.[85] The court cannot under the garb of interpretation change the language of the law.[86]
Court not concerned with the *policy* behind a provision.

Sub-rule 3.—When the language is plain and admits of *one* meaning only, that meaning, and that meaning alone must be given to it, however absurd[87] harsh, unjust,[88] arbitrary or inconvenient or anomalous[89] the consequences may be.[90]

The reason is plan, *viz.,* that in interpreting a statute the Court cannot assume the function of the legislator[1] and so it is not the province of a Court to scan the wisdom or reasonableness[2] of the policy behind a statute.[3] In the words of LORD MACNAUGHTEN;[4]

> Some people think the policy of the Act unwise and even dangerous to the community…But a Judicial tribunal has nothing to do with the policy of any Act which it may be called upon to interpret. That may be a matter for private judgment. The duty of the Court, and its only duty is to expand the language of the Act in accordance with the settled rules of construction.

If the legislature did intend that which is not expressed clearly, much more, if the legislature intended something very different, if the legislature intended pretty nearly the opposite of what is said, it is not for the judges to invent something which they do not meet within the words of the text (aiding their construction of the text always, of course, by the context).[5] These and like opinions lay stress on one aspect of intention *i.e.,* what the words mean; and undoubtedly to the extent the "referrent" is clearly indicated and the words have a "plain" meaning, the courts are not too busy themselves with "supposed intention" or with "the policy underlying the statute".[6]

Where the words of the statute are clear and unambiguous, the provision should be given its plain and normal meaning, without adding or rejecting any words. Departure from the literal rule of plain and straight reading can however be only in exceptional cases, where anomalies make the literal compliance with a provision impossible or absurd or so impracticable as to defeat the very object of the provision. Purposive interpretation to avoid absurdity and irrationality is more readily and easily employed in relation to procedural provision than with reference to substantive provision.[7] When the words of the statute are clear, there is no scope for the court to innovate or to take upon itself the task of amending the statutory provision.[8]

On the other hand, the court should not read into a statute words which are not there in the absence of *clear necessity".*[9]

Since the intention of the legislature is to be ascertained from the language employed by the legislature itself, courts cannot go into the *motive* behind a statute in interpreting it.[10]
Court cannot amend.

Sub-rule (4). The Court cannot supply supposed omissions (or *casus omissus*) of the Legislature[11] for that would be making laws. The general rule is "not to import into statutes words which are not to be found there.[12] The words of a statute should never be added to[13] or subtracted, without almost a necessity.[14]

> We cannot aid the Legislature's defective phrasing of an Act, we cannot add and amend, and, by construction, make up deficiencies which are left there.[15]

> We are not entitled to read words into an Act of Parliament unless clear reason for it is to be found within the four corners of the Act itself.[16]

Court cannot read anything into a statutory provision which is plain and unambiguous. Language employed in a statute is determinative of legislative intent. If the language of the Act is clear and unambiguous, it is not proper for the court to add any words thereto and evolve some legislative intent not found in the statute.[17] Court cannot make addition, fill up any self-perceived blank in provision and read into it something that is not there.[18]

It is not competent for any Court to proceed on the footing that the legislature has made a mistake.[19]

But where the alternative lies between either supplying by implication words "which appear to have been *accidently* omitted", or adopting a construction which deprives certain existing words of *all meaning*, it is permissible to supply the words.[20] Again, where a statute is passed for the purpose of enabling something to be done, but omits to mention in terms some *detail* which is of great importance to the proper and effectual performance of the work which the statute has in contemplation, the Courts are at liberty to infer that the statute by implication empowers the detail to be carried out.[21] In short,

> It is a very serious matter to hold that when the main *object* of a statute is clear it should be reduced to a nullity, by the *draftsman's unskillfulness* or ignorance of law. It may be necessary to a Court of justice to come to such a conclusion, but nothing can justify it except *necessity,* or the absolute intractability of the language used.[22]

The legislature is deemed not to waste its words or to say anything in vain and a construction which attributes redundancy to the legislature will not be accepted except for compelling reasons. Similarly, it is not permissible to add words to a statute which are not there unless a literal construction being given a part of the statute become meaningless. But before any words are read to repair an omission in the Act, it should be possible to state with certainty that these words would have been inserted by the draftsman and approved by the legislature had their attention been drawn to the omission before the Bill was passed into a law. At times, the intention of the legislature is found to be clear, but the unskillfulness of the draftsman in introducing certain words in the statute results in apparent ineffectiveness of the language and in such a situation, it may be permissible for the court to reject the surplus words, so as to make the statute more effective.[23]

The court can also correct obvious drafting errors and in suitable cases the court will add words or omit words or substitute words.[24] But, before interpreting a statute in this way, the court must be abundantly sure of three matters – (1) the intended purpose of the statute or provision in question; (2) that by inadvertence the draftsman and the Parliament failed to give effect to that purpose in the provision in question; (3) the substance of the provision Parliament would have made although not necessarily the precise words Parliament would have made had the error in the Bill been noticed.[25]
Defects of exclusively textual interpretation.

The various canons of statutory interpretation, however indicate different approaches to discover the meaning of the words used by the legislature and the modern view is that a strict or exclusive use of any of these canons may sometimes be misleading. It has, accordingly been pointed out by jurists that if the rule of expressed intention is strictly applied, the Court would be hemmed in by a number of cramping limitations:

(a) Even where the language employed by the legislature is defective in the sense that it fails to express the object which its makers might have in undertaking that legislation, the Court cannot modify the language of the statute, to effectuate that subject.[26] As LORD RADCLIFFE put it:

> The beliefs or assumptions of those who frame Acts of Parliament cannot make the law.[27]

Legislation founded on a mistaken or erroneous assumption has not the effect of making that the law which the legislature had erroneously assumed to do. The court will disregard such a belief or assumption and also the provision inserted in that belief of assumption.[28]

Hence, except in the case of patent *ambiguity* in the meaning of the words used in the statute, the Court cannot look into the legislative debates or other proceeding to discover the real intention of the legislature;[29] nor can it

refuse to give effect to the clear language of a statute even if the Court be "satisfied that it was *not* in the contemplation of the Legislature".[30] Recently the Supreme Court while considering the Negotiable Instruments (Amendment) Act 2002, relied on Statement of Objects and Reasons and Speech of Finance Minister in the course of the debate in the Lok Sabha.[31]

An up-to -date statement of the law on this point is to be found in a 1980— observation of LORD SCARMAN:[32]

> In the field of statute law the judge must be obedient to the will of Parliament as expressed in its enactments. In this field Parliament makes and unmakes the law [and] the judge's duty is to interpret and to apply the law, *not to change it* to meet judge's idea of what justice requires. Interpretation does, of course, imply in the interpreter a power of *choice* where *differing constructions* are possible. But our law requires the judge to choose the construction which in his judgment best meets the *legislativepurpose* of the enactment. If the result be unjust but inevitable, the judge may say so and invite Parliament to reconsider its provision. *But he must not deny the statute.* Unpalatable statute law may not be disregarded or rejected, merely because it is unpalatable.

Courts must avoid the danger of an *a priori* determination of the meaning of a provision based on their own preconceived notion of ideological structure or scheme into which the provision to be interpreted is somehow fitted.[33] Caution is all the more necessary in dealing with legislation enacted to give effect to policies that are subject to bitter public and parliamentary controversy, for, in controversial matters there is room for differences of opinion as to what is expedient, what is just and what is morally justifiable, it is the Parliament's opinion in these matters that is paramount.[34] This means that judges cannot interpret statutes in the light of their views as to policy, but they can adopt a purposive interpretation if they can find in the statute read as a whole or in the material to which they are permitted by law to refer as aids to interpretation of an expression of the Parliament's purpose or policy.[35]

A corollary which emerges from the above is the doctrine of "purposive[36] interpretation", namely, that when the language of a statute admits of two constructions the Court should adopt that one which advances the purpose of the statute. [See *post*].

(b) Phrases and sentences used by the legislature are to be construed according to the rules of *grammar*, and their *literal* meaning[37] except where that might lead to an absurdity, when read with the other parts of the statute.[38] But, then, such absurdity must arise from the provisions of the statute itself and not such as may appear to the Court.[39] Further, even where there is such absurdity, the Court cannot go to the length of "rewriting" the language to impute to it a meaning which it cannot bear.[40]

The object of the construction of a statute being to ascertain the will of the legislature, it may be pronounced that neither injustice nor absurdity was intended. If, therefore, literal interpretation would produce such a result and the language admits of an interpretation which would avoid it, then such an interpretation may be adopted.[41]

(c) It follows from the preceding rule, that the Court cannot supply any omission or defect in the text of the statute, even where the text is ambiguous, inasmuch as that would be the business of the legislature.[42] The constitutional function of the court in relation to enacted law is limited to interpreting and applying it. It is the duty of the judge to ascertain the means by which the Parliament has enacted the Act. In construing the enacting words, he may take into account what the Act discloses on the purpose that those means were intended in the sense in which they are more likely to promote than hinder the achievement. But, it is no function of a judge to add to the means by which the Parliament has enacted in derogation of rights which citizens previously enjoyed at common law, because he thinks that the particular case in which he has to apply the Act demonstrates that those means are not adequate to achieve what he conceives to be the policy of the Act…It is no offence…to do or to agree with others to do acts which, though not prohibited by legislation nor criminal nor tortuous at common law, are considered by a judge or by a jury to be calculated to defeat, frustrate or evade the purpose or intention of an Act of Parliament.[43] The gap in the law which came to be known as the Bhagwan gap was closed by the Parliament by subsequent legislation.[44]

(d) In short, an English Court will not go behind the language used by the legislature to make any factual inquiry into what might have actually been intended by the legislature.

Exceptions to literal interpretation

The defects and limitations of such a strictly textual and literal construction, evenin the non-constitutional sphere, have been noticed by judges and jurists in England,[45] and exceptions have been sought to be

introduced, from time to time, to minimise the rigours of this method of interpretation, to give a liberal and progressive meaning to a statute, particularly to meet the exigencies of newer situations which may arise subsequent to the enactment of a statute.

(i) Since language is but an imperfect medium of expression, a hunt for the literal meaning of words used in a complicated modern legislation may sometimes be baffling, as has been observed by judicial tribunals of the highest authority. There has thus been uncertainty and difference of opinion on questions, such as, whether maintenance' would include "repair';[46] the precise moment when "twilight" becomes darkness.[47]

(ii) The meaning of words may change according to their context or the situation which a legislative measure is enacted to achieve.[48] This object would be frustrated if the Court applies a fixed dictionary meaning of a word, mechanically, to any statute wherever it may have been used. In such a situation, if the Court has to find out the intention of the legislature, the court may have to read all the provisions of a statute to find out the meaning of a word, and may have to give it a colouring which, literally, may not be so obviously impelling. Generally statutes are of the "always speaking variety" and the courts are free to apply the current meaning of the statute to a present day condition.[49] There are at least two strands covered by this principle: (a) The first is that courts must apply a statute to the world as it exists today; (b) that the statute must be interpreted in the light of the legal system as it exists today.[50] Hence, a statute can be interpreted to include circumstances or situations which were unknown or did not exist at the commencement of the statute.[51]

(iii) Once it is conceded that the intention of the legislature has to be gathered not only from the provisions of the statute itself, but also from the objects of the legislation,[52] the Court may have to make inquiry behind the text of a statute.

When words are capable of *two meanings,—*
Purposive interpretation

They should be construed *purposively,* in order to give effect to the manifest broad intention of the legislature,[53]*i.e.,* to achieve the purpose of the legislation,[54] particularly in social legislation, or enactments in the national interest.[55]

In order to achieve the purpose of the legislation, in such a case, the Court is entitled to refer to the speech of the Minister sponsoring the Bill in Parliament or the Report of Committee on the basis of which the Bill had been drafted.[56]

Recent decisions[57] thus depart from the traditional doctrine of literal construction which would prohibit a reference to the proceeding in the legislature[58] or any earlier proceedings[59] for the purpose of interpreting the statute, even though the omission to do so might lead to a result contrary to what was really intended by the legislature.[60]

But as will be seen hereafter, "*travaux preparatories"* may be admissible as aids[61] to construction in certain situations. The maxim means materials used in preparing the ultimate form of an agreement or statute and especially of an international treaty, materials constituting a legislative history.[62]
(b) A Statute must be read as a whole

The meaning of the words of a statute and the intention of the legislature in enacting them can be properly understood only by a consideration of the whole instrument and every part of it.[63]

The principle that the statute must be read as a whole is equally applicable to different parts of the same section. The section must be construed as a whole whether or not one of the parts is a saving clause or a proviso.[64] The above rule is known as "elementary rule"[65] or "a compelling rule" or as a "settled rule".[66]

> Every clause of a statute should be construed with reference to the context and other clause of the Act, so as, as far as possible, to make *consistent* enactment of the whole statute.[67]

It follows that two sub-sections of a section must be read as interdependent and an attempt should be made to avoid repugnancy between them. A question as to which one will prevail will arise only if repugnancy cannot be avoided.[68]

A corollary from the above rule is the rule of *context,* namely, that the intention of the legislature behind a particular provision or expression therein is to be ascertained in the light of, and, if necessary, modified by, the

context in which it is used,[69] *e.g.*, other words in the same section,[70] other section in the Act,[71] or the scheme of the Act in general.[72]

The rule that a statute must be read as a whole is of general application as even the plainest term may be controlled by the context and it is conceivable that the legislature whilst enacting one clause in plain terms, might introduce into the same statute other enactment which to some extent qualify or neutralise its effect. The same word may mean one thing in one context and another in a different context. For this reason the same word used in different sections of a statute or even when used at different places in the same clause or section of a statute may bear different meaning. The conclusion that the language used by the legislature is plain or ambiguous can only be truly arrived at by studying the statute as a whole.[73]

(*a*) A *Constitution,* likewise, must be read as a whole. The whole *constitution* is to be examined, with a view to determining the intention of each part, and the construction must be uniform. Particularly, the *Constitution* of *India* is a very detailed one and the whole of it has to be read with the same sanctity, without giving undue weight to any part, *e.g.,* Pt III, except to the extent one is legitimately and clearly limited by the other.[74]

> As to constitutional guarantee enjoys preference, so none should suffer subordination or deletion.[75]

(*b*) If, therefore, there is an apparent conflict between different provisions of the same enactment, they should be so interpreted that, if possible, effect may be given to both.[76] It is the duty of courts to avoid "a head-on clash" between two sections of the same Act and whenever it is possible to do so to construe provisions which appear to conflict so that they harmonize.[77]

JUSTICE JOSEPH STORY has said:

> In construing the *Constitution* of United States, we are, in the first instance, to consider what are its nature and objects, its scope and design, as apparent from the structure of the instrument, viewed as a whole and also viewed in its component parts. Where the words are plain, clear and determinate, they require no interpretation. Where the words admit of two senses, each of which is comparable to general usage, that sense is to be adopted which without departing from the literal import of the words, best harmonizes with the nature and objects, the scope and design of the instrument. In examining the *Constitution*, the antecedent situation of the country and its institutions, the existence and operation of the state government, the powers and operation of the Confederation, in short, all the circumstances which had a tendency to produce, or to obstruct its formation and ratification deserve careful attention.[78]

JUSTICE OLIVER WENDELL HOLMES has also opined:

> The law embodies the story of nation's development and it cannot be dealt with as if it contained only axioms and corollaries of a book of mathematics. In order to show what it is, we must know what it has been, and what it tends to become. We must alternatively consult history and existing theory of legislation. But more difficult labor will be to understand the combination of the two into new products at every age.[79]

Well established rules of interpretation (of the *Constitution*) require that the meaning and intention of the framers of the *Constitution* – be it the Parliament or the Constituent Assembly – must be ascertained from the language of the *Constitution* with the motives of those who framed it, the court has no concern.[80] According to

JUSTICE HIGGINS:

> Although we are to interpret the words of the *Constitution*, on the same principles of interpretation as we apply to any ordinary law, these very principles of interpretation compel us to take into account the nature and scope of the Act we are interpreting, to remember that it is a *Constitution*, a mechanism under which laws are to be made, and not a mere Act which declares what the law is to be.[81]

Where the conflict between two provisions of *Constitution* is not apparent, but real, the principle of harmonious construction comes into play.[82] It was held in *Sri Venkatarama Devam's case*:

> When there are in enactment two provisions which cannot be reconciled with each other, they should be so interpreted that, if possible, effect can be given to both. Therefore, a construction which would render one provision wholly nugatory must be rejected in favour of a construction which gives effect to both the provisions.

In the aforesaid case, the court was considering the conflict between *Articles 26*(b) and *Article 25(2)(b) of the Constitution of India*. According to learned author H.M. SEERVAI, “The important thing to be noted is that the principle of harmonious construction is misapplied if it leads to one of the two provisions being rendered nugatory”.[83] In *Minerva Mills case*[84], the court interpreted Parts III and IV of the *Constitution*. The court held that the two constitutional obligations, one in regard to fundamental rights and the other in regard to directive principles are of equal strength and merit and there is no reason why, in case of conflict, the former should be given preference over the latter. Whether or not a particular mandate of the *Constitution* is justiciable has no bearing at all on its importance and significance and justiciability by itself can never be a ground for placing one constitutional mandate on a higher pedestal than the other. Parts III and IV are like two wheels of a chariot and one no less important than the other. If you snap one, the other will lose its efficacy. They are like two formulae for achieving the social revolution. The Indian *Constitution* is founded on the bedrock of the balance between Parts III and IV. To give absolute primacy to one over the other is to disturb the harmony of the *Constitution*. This harmony and balance between fundamental rights and directive principles are essential features of the basic structure of the *Constitution*.
Rule of harmonious construction

This principle of *harmoniousconstruction* of different provisions of the *Constitution* in order to reconcile them with one another has been applied in several cases by *our* Supreme Court.[85] This doctrine will be dealt with more fully hereafter.

(*c*) The meaning of words used in an Article must, therefore, be gathered from the collection of words in which it figures[86] as well as the object of the provisions, together with other parts of the *Constitution*.[87]

(*d*) A *Constitution* does not mean one thing at one time and another subsequently.[88]

> The *Constitution* is a logical whole, each provision of which is an integral part thereof, and it is, therefore, logically proper and indeed imperative, to construe one part in the light of the provision of the other parts.[89]

Thus, “when the text is *ambiguous*, as for example, when the words establishing two mutually exclusive jurisdictions (*i.e.,* regarding distribution of powers) are wide enough to bring a particular power” within either, recourse must be had to the context and the scheme of the Act”.[90]

From the above rule follow several sub-rules:

(*i*) A statute ought to be so interpreted that, if it can be prevented, no clause, sentence or word shall be superfluous, void or insignificant. A construction which will leave without effect any part of the language of statute will be rejected, unless justified on similar grounds.[91]

So, effect must be given to every clause[92] and words of the *Constitution*.[93] It is improper to omit any word which has a reasonable and proper place in it or refrain from giving effect to its meaning.[94]

An *exception* to the above sub-rule is that if there is any word or phrase to which no *sensible* meaning may possibly be given, it must be rejected as a mere surplusage.[95] In such cases, the Court acts on the maxim “*ut res magis valeat quampereat”,*[96] *i.e.,* statute should be construed in a manner that will give it validity rather than invalidity and the Court starts with a presumption against absurdity or nullity. But even then there is no justification to suppose that because a word or expression is found superfluous in one context, it would be superfluous wherever the same word or expression is used in the rest of the *Constitution*.[97]

Sometimes the legislature may use tautological expressions by way of abundant caution (*ex majori cautela*). In such a case, different meanings cannot be imputed to the different expressions, severally.[1] It is not uncommon to find the legislature inserting superfluous provision under the influence of what may be abundant caution.[2] It is only when other provisions of the Act give out that a provision in the Act owes its origin to a confusion of ideas or to a misunderstanding of the law or to abundant caution, the court reaches the conclusion that the provision is superfluous.[3]

(*ii*) When the *same* words or phrases are used in different parts of the same statute, they would *ordinarily* receive the same meaning, unless the context or the object requires otherwise.[4] So, if the meaning of a word cannot be ascertained from the section itself, other sections may be looked into to fix the sense in which the word is there.[5]

But this general presumption would give way when there is sufficient reason from the context to construe the

same word in a sense different from that which it bears in another part of the Act.[6] In other words, the same words may convey a different intention of the legislature in different circumstances, according to the context.[7]

A most conspicuous example of this is to be found in the use of the word “State” in *our*Constitution:

(*a*) Mostly, it refers to the Units of the Indian Union (*e.g.,* in Parts I, XI).

(*b*) In parts III and IV it is given an extended meaning, practically meaning any legislative or administrative authority including a statutory authority,[8] as opposed to the citizen who is given the rights included in these Parts[9]; the words “unless the context otherwise requires” (in Article 12), however, reserve that the word, “State” may have a different meaning in some provisions of these Parts. Thus, “a State” in Article 34 refers to officers of a Unit of the Union and not to servants of any local authority.

(*c*) The word “State” is also used in its ordinary political meaning as referring to an independent political community, *e.g.,* the word “foreign State” in Article 18(2) or Article 9, as defined by Article 367(3).

(*iii*) When *analogous* words are used, each may be presumed to be susceptible of a separate and distinct meaning, for the legislature is not supposed to use words without a meaning. A difference of phraseology is not therefore to be considered as accidental.[10] A change of language suggests a change of intention.[11]

This is, however, not an inflexible rule, and sometimes the variation in language is due to the inadvertence of the draftsman.[12] Thus, in *our*Constitution, the expressions “in consultation with” [Article 233(1)], “after consultation with” [Articles 98(3), 118(3) 148(5)], and “after consulting” (Proviso to Article 239) have been used to mean the same thing.

(*iv*) When a *general* intention is expressed and also a *particular* intention which is compatible with the general one, the particular intention is considered an *exception* to the general one, even when the general intention is expressed in a negative language.[13] Hence, general provisions in a statute are not to be taken as controlling or repealing the special provisions: the latter are to be treated as exceptions.[14]

The *limitations* to the rule should also be noted carefully:

(*a*) The provisions of one section cannot be used to defeat those of another unless it is *impossible* to effect reconciliation between them.[15]

(*b*) When the words of a section themselves carry a clear meaning,—

> no rule of construction can require that…it shall be necessary to introduce another part of the statute which speaks with less perspective and of which the words may be capable of such construction as by possibility to diminish the efficacy of the provisions of the Act.[16]

When the words of a statute are clear, plain or unambiguous *i.e.,* they are reasonably susceptible to only one meaning, the courts are bound to give effect to that meaning irrespective of the consequences.[17]

15. MAXIMS(1) *Expressio unius est exclusio alterius.*—

This maxim means that the express mention of a thing excludes things which are not mentioned. This maxim is also stated as—“*expressum facit cessare tactitum”*—express enactment shuts the door to further implication.[18]

> If a statute enumerates the things upon which it is to operate, everything else must necessarily and by implication be excluded from its operation and effect. So if a statute directs certain acts to be done in a specified manner by certain persons, their performance in any other manner than that specified or by any other person than is there named is impliedly pro prohibited.[19]

The maxim is a canon of construction holding that to express or include one thing implies the exclusion of the other. For example, the rule that “each citizen is entitled to vote” implies that “non-citizens are not entitled to vote”. This maxim is also termed “*inclusion unis est exclusion alterim : expressim facit cessare tacitum*”.[20]

“It is not uncommon to find the Legislature inserting superfluous provision under the influence of what may be abundant caution”. Such superfluous provisions cannot lay the foundation for an argument resting on the maximum, “*expression uniusestexclusion alterious*” and the maxim is applicable in such cases. It is only when other provisions of an Act give out that a provision in the Act owes its origin to a confusion of ideas or to a

misunderstanding of the law or to abundant caution, the court reaches the conclusion that the provision is superfluous.[21]

Our Supreme Court had the occasion to consider the applicability of this maxim in *A.K. Gopalan v State of Madras,*[22] it was held that "ordinarily when a subject is expressly dealt with in a Constitution in some detail, it has to be assumed that the intention was to exclude the application of the general provisions contained therein elsewhere. Express mention of one thing is an exclusion of the other.

In *Indira Nehru Gandhi v Raj Narain*,[23] wherein it was held that maxim means "expressly laid down mode of doing something necessarily prohibits to doing of that thing in any other manner".

A major application of the above maxim has been made under *our*Constitution in the *Delhi Laws Act case*[24] to hold that since the Constitution sets up the legislatures and describes the legislative process through the legislatures and then makes certain special provisions where legislative powers may be exercised by bodies other than the legislature (*e.g.,*Articles 123, 213, 357), "the *prima facie* presumption must be that the intention of the Constitution is that the duty of law-making is to be performed primarily by the legislative body itself", and that the legislative power cannot be delegated by the legislature to any other body or authority except under the Articles where express provision is made for such delegation (*e.g.,*Article 357).

This maxim is, however, to be used with caution. For,

> It is often a valuable servant but a dangerous master…The *exclusio* is often the result of inadvertence or accident and the maxim ought not to be applied where its application, having regard to the *subject-matter* to which it is to be applied, leads to *inconsistency* or *injustice.*[25]

(*a*) In order to apply this maxim,

> It is not enough that the express and the tacit are merely incongruous, it must be clear that they cannot reasonably be intended to co-exist.[26]

(*b*) The maxim has no application where the legislature enumerates some particulars *ex abundanti cautela,* without intending to be comprehensive.[27]

(*c*) The exclusion of a matter may also be due to accident or inadvertence of the draftsman, in which case, the maxim cannot be applied to lead to a conclusion which would be inconsistent or irrational.[28]

(*d*) The express mention of certain liabilities does not exclude implied obligations which arise under common law whenever statutory authority is conferred to do acts injurious to person or property. Thus, when a railway company is authorised to construct a railway, crossing a highway, the common law duty of the company to prevent a person from passing along the level crossing at times when it is dangerous to cross is not excluded by the fact that the statute imposes certain specific duties with respect to the maintenance of the crossing.[29]
(2) *Generalia specialibus non derogant.—*

This means that general provisions will not abrogate special provisions. In the present work, we are not concerned with the application of this maxim as between two enactments, but as between two provisions of the same statute,—one general and another special. This aspect has already been considered.
(3) *Contemporanea expositio est fortissima in lege.—*

Where a statute uses words of *doubtful* import it is legitimate to resort to the construction put upon it by long-continued usage. In such cases, "the acting under it for a long course of years may well give an interpretation to that obscure meaning and reduce that uncertainty to a fixed rule.[30] But as against the clear provisions of a statute, usage is of no avail.[31] The principle applies only to this construction of ambiguous language in old statutes.[32]

Contemporary official statements throwing light on the construction of a statute and statutory instruments made under it have been used as "*contemporaneaexpositus*" in interpreting not only ancient, but even recent statutes both in England and in India.[33] It was recently held that the applicability of the maxim is limited to interpretation given by court and not to views taken by the Government or its officials.[34]

Interpreting the Constitution is the sole prerogative of the Constitutional Courts and the stand taken by the executive in a particular case cannot determine the true interpretation of the Constitution. Merely because the

legislature has amended law accepting the interpretation of the High Court, that cannot be a ground to hold that the challenge to the law is not maintainable, since the State has taken a shorter course of amending the law instead of challenging the decision of the High Court before the Supreme Court.[35]

The best exposition of the *Constitution* is that which it has received from contemporaneous judicial decisions and enactments.[36]

At the same time, contemporaneous practical exposition of the *Constitution* cannot relieve the judiciary of the task of interpreting the *Constitution*. It is for the judiciary to determine the true legal position though it is a valuable aid to the meaning of a provision of the *Constitution* or a statute.[37] JUSTICE KHANNA observed that the contemporaneous practical exposition furnishes considerable aid in resolving the doubt as to amenability of fundamental rights for construing the provision (*Article 368*). Even JUSTICE RAY observed that when the *Constitution* was amended first time, no one doubted the change of amendment of fundamental rights. Further, JUSTICE MATHEW observed that even strong opponent to the First Amendment Act did not suggest that fundamental right cannot be amended. Silence on the part of members of the Parliament, who were also members of the Constituent Assembly was taken as a ground to hold that the fundamental right could be amended.

In the *United States*, it has been held that where there is ambiguity or doubt, the contemporaneous and subsequent construction of a constitutional provision by the legislative and executive departments of the Government are entitled to the greatest weight.[38]

As regards section 240(3) of the Government of India Act 1935 [to which corresponds *Article 311(2) of the Constitution*], the Federal Court observed that in construing this clause, the long-established practice regarding the procedure for punishing the Government servants must be kept in view.[39] In *KesavanandaBharati's* case[40], learned judge, JUSTICE CHANDRACHUD observed: "Our principal task is to construe the *Constitution* and not the judgment. Those judgments (*i.e.,* judgments relating to constitutional amendments) are without doubt, like lamp posts on the road to freedom and judges who have shed on that road the light of their learning and impress of their independence have carved for themselves a niche in the history of civil liberties".

In answering the question when a "sale" takes place within the meaning of *Article 286 of the Constitution*, BOSE J. observed:

> I have deemed it proper to refer to the then existing practice regarding taxation because in construing a statute it is legitimate to take into account existing laws and the manner in which they were acted upon and enforced. I think this rule is even more appropriate in the case of the *Constitution* because the *Constitution* itself continues in force all laws which were in existence at the date when it came into being except those which are inconsistent with itself.[41]

A special application of this rule is to respect the interpretation given by a long course of judicial decisions, even though when it may be contrary to the literal meaning of the word of expression in question.[42] A longstanding decision adopting a particular construction which may have been acted upon by persons in the general conduct of affairs may not be departed from on the doctrine of "*stare decisis*".[43]*Staredecisis* is a general maxim that when a point of law has been settled by a decision, it forms a precedent which is not afterwards to be departed from[44].

The application of this maxim i.e. *contemporanea expositio est fortissima in lege* would however be confined to very old statutes.[45] Nor would it be applied where the weakness of the reasoning in the previous decisions is established.[46]
(4) *Ejusdem generis (of the same kind and nature).—*

This maxim means that where there are general words *following* particular and specific words, the general words must be confined to things *of the same kind* as those specified.[47]

The maxim is *not* to be applied—

- *(a)* Where the context and object of the enactment do not require a restricted meaning to be given to the general words.[48]
- *(b)* Where the specific words do not belong to the same genus[49] or category. If they refer to different objects of a widely differing character, there is no room for the application of the maxim so as to curtail the meaning of the general words.[50]

The rule of "*ejusdem generis*" has no inverse application. General words preceding the enumeration of specific instances are not governed by this rule and their import cannot be limited by any such principle,[51] when the legislature before enumerating specific examples uses the words "Without prejudice to the generality of the foregoing provision, the preceding general provision cannot be restricted by applying the rule of "*ejusdem generis*"'".[52]

The term "*ejusdem generis*" – meaning of the same kind or nature – signifies a principle of construction whereby words in a statute which are otherwise wide, but associated in the text with more limited words are by implication, given a restricted operation and are limited to matters of the same class or genus as preceding them. If a list or string or family genus describing terms are followed by wider or residuary or sweeping up words, then the verbal content and the linguistic implication of the preceding words limit the scope of such words.[53]

In *Rajasthan State Electricity Board v Mohan Lal*,[54] the Supreme Court approved passages as stated in *Craies on Statute Law* and *Maxwell onInterpretation of Statutes.* On the applicability of the above principles it says

> The *ejusdem generis* rule is one to be applied with caution and not pushed too far…To invoke the application of the *ejusdem generic* rule there must be a distinct genus or category. The specific words must apply not to different objects of a widely differing character but to something which can be called a class or kind of objects. Where this is lacking, the rule cannot apply, but the mention of a single species does not constitute a genus.

MAXWELL in his book on *Interpretation of Statutes* has stated thus, "But the general word which follows particular and specific words of the same nature as itself takes its meaning from them, and is presumed to be restricted to the same genus as those words…Unless there is a genus or category, there is no room for the application of the ejusdem generis doctrine".[55]

It was held in the cases that invoke application of ejusdem generis rule, there must be a distinct genus or category running through the bodies already named.

But the applicability of the above rule was cautioned by the Supreme Court by stating thus "While dealing with the connected provisions of the *constitution*, the Court should not apply the ordinary rules of statutory interpretation to interpret constitutional instruments which are *sui generis* and which deal with situations of significance and consequence. The Court should remember that it is expounding a *Constitution* born in the mid twentieth century, but of an anti-imperialist struggle, influenced by constitutional instruments, events and revolutions elsewhere, in search of a better world, and wedded to the idea of justice, economic, social and political to all. Such a *Constitution* must be given a generous interpretation so as to give all its citizens the full measure of justice promised by it. The expositors of the *Constitution* are to concern themselves less with mere words and arrangement of words than with the philosophy and the pervading "spirit and sense" of the *Constitution*, so elaborately exposed for our guidance in the Directive Principles of State Policy and other provisions of the *Constitution*".[56]

(c) Nor is the maxim applied where instead of *several* particular words indicating a class, there is only a *single* particular word preceding the general word of wider import.

(d) Where general words are *followed by* particular words. In such cases, the generality of the preceding words cannot be curtailed with reference to the specific words that follow.[57] In other words, there is no inverse application of the rule.

Article 294(b) speaks of rights, liabilities and obligations. *Article 9* of the Indian Independence (Rights, Property and Liabilities) Order 1947, referred to loans, guarantees and other financial obligations. The Supreme Court held that the expression "other financial obligations" occurring in *Article 9* of the Order must be construed *ejusdem generis* and did not include the liability in respect of rent payable under the lease.[58]
(5) *Noscitur a sociis.*—

294(b) speaks of rights, liabilities and obligations. *Article 9* of the Indian Independence (Rights, Property and Liabilities) Order 1947, referred to loans, guarantees and other financial obligations. The Supreme Court held that the expression "other financial obligations" occurring in *Article 9* of the Order must be construed *ejusdem generis* and did not include the liability in respect of rent payable under the lease[59].. This maxim simply means that words of a doubtful meaning may take colour and precision from the nature of the words and phrases with which they are associated.[60] It is nothing but an embodiment of the broader rule of "context".

If two or more words susceptible of analogous meaning are clubbed together, they are understood to be used in their cognate sense. They take, as it were, their colour from and are qualified by each other, the meaning of the general word being restricted to a sense analogous to that of the less general. Put in other words, the included words may be clarificatory or illustrative of the general word. This principle of interpretation known as *"noscitur a sociis*" has received approval from the Supreme Court, although its indiscriminate application has been cautioned against. The maximum of *noscitur a socilis* may be a treacherous one unless the "societas" to which the "*socii*" belong, are known.[61]
(6) *Ut res magis valeat quam pereat.—*

See *post*.
(7) *Abundans cautela non nocet.*

(There is no harm done by great caution).

Though no words in a statute are to be considered as superfluous if a meaning can be imputed to them, sometimes it happens that some words are inserted in a statute without intending to be comprehensive[62] so as to exclude things which were not so enumerated. In such a case, it may be said that such words were superfluous inasmuch as the same result would have taken place even if those words were not used; the legislature has used those words only by way of abundant caution. Thus, even of a definition clause, it was said that it was merely declaratory of the common law and did not intend to change that law, and was only inserted to emphasise a particular point of view by way of abundant caution[63] in order to remove any possible doubt.

When judicial pronouncements have declared the law on the subject, statutory reiteration of the law with reference to particular cases may be an act of excessive caution so as to silence the voices of doubting by declaring the law declared by judicial pronouncement.[64]

Articles 13(1)-(2) of *ourConstitution*, invalidating laws inconsistent with the *Constitution* has been held to have been inserted by way of abundant caution,[65] for, "even in their absence, if any of the fundamental rights was infringed by any legislative enactment, the Court has always the power to declare the enactment, to the extent it transgresses the limits, invalid". It follows that it cannot be contended that because the *Constitution* has specifically mentioned the consequence of contravention of the fundamental rights, a contravention of any of the other mandatory provisions outside Pt III of the *Constitution* shall be of no effect.[66]
(8) *Quando aliquid prohibetur, prohibetur et omne per quod deventitur ad illud.—*

This maxim means that when a statute prohibits a thing, the Court should so interpret the statute as to prevent an evasion or transgression of the statute in any indirect or circuitous manner.[67] Hence, whenever the Court finds an attempt at concealment, it would "brush away the cobweb varnish, and show the transactions in their true light".[68] In other words, the Court dives into the substance of a transaction in order to determine whether there has been a legal compliance with the requirement of a statute.[69]

Applying the maxim, it was observed that what cannot be done "*per dictum*" is not permissible to be done "*per obliquem*" which means whatever is prohibited by law to be done directly cannot legally be effected by an indirect and circuitous contrivance.[70] Whenever a thing is prohibited, it is prohibited whether done directly or indirectly.[71]

In a sense, this rule may be called a particular application of the "Mischief Rule". In the sphere of constitutional law, an application of this maxim is to be found in the doctrine of "fraud on the *Constitution*" or "what cannot be done directly cannot be done indirectly". It will be dealt with separately.
16. PRESUMPTIONS

Presumptions have been laid down by the Courts, from time to time, to be applied in the matter of interpreting statutes. Some of these as are relevant to the present work may be usefully discussed in the present context.
Presumption against alteration of existing law.

(*i*) *The Legislature does not intend any alteration in the existing law except when it expressly desires.*—It is a sound rule to construe a statute in conformity with the common law rather than against it, except where or in so far as the statute is *plainly* intended and expressly declares to alter the course of the common laws.[72] It follows that—

> A statute is *prima facie* to be construed as changing the law to no greater extent than its words or necessary intendment require.[73]

It is thought to be in the highest degree improbable that the Parliament would depart from the general system of law without expressing its intention with irresistible clearness and to give any such effect to general words merely because this would be their widest, usual, natural or literal meaning would be to place on them a construction other than that which the Parliament must have supposed to be intended.[74].

The general words of the Act are not to be so construed as to alter the previous policy of the law unless no sense or meaning can be applied to those words consistently with the intention of preserving the existing policy untouched.[75]

The Supreme Court had the occasion to consider the scope of the presumption in *M.K. Ranganathan v Govt. of Madras*.[76] The question was regarding the scope of amendment to section 232(1) of Companies Act 1913 by Act 22 of 1936. The amendment was necessitated due to the judgment of Allahabad High Court in *Kayastha Trainingand Banking Corp Ltd v Sat Narain Singh*.[77] While interpreting the scope of the amendment, the court held:

> Having regard to the circumstances under which the amendment was inserted and also having regard to the context, we are not prepared to hold that the legislature in inserting that amendment intended to effect a fundamental alteration in law with irresistible clearness. Such a great and sudden change of policy could not be attributed to the legislature and it would be legitimate therefore to adopt the narrower interpretation to these words of the amendment rather than an interpretation which would have a contrary effect.

It is also presumed that the Parliament has enacted a reasonable statute.[78]

From the combined operation of this presumption and the allied presumption against impairing vested rights, another rule of construction follows:

A. In construing a State which is in derogation of common law rights the Courts adopt a rule of strict construction and hold that common law rights are not limited or altered by a statute in the absence of clear and unambiguous language,[79] or necessary intendment, and not further than what the statute expressly declares.[80]

If, therefore, two constructions are open, that one should be chosen “which involves the least alteration of the existing law”.[81]

Thus, this rule of construction is applied to—

- *(a)* Statutes which detract from common law rights of ownership[82] or contractual rights.[83]
- *(b)* Statutes which affect status,[84] or personal privileges.[85]
- *(c)* Statutes which purport to take away private property without providing for payment of compensation[86].
- *(d)* Penal statutes and statutes imposing obligations[87].
- *(e)* Statutes which seek to oust the jurisdiction of the superior Courts.[88]

The question of ouster of the existing Courts assumes importance when the legislature passes any statute creating a special tribunal or laying down a special procedure for the trial of certain matters. The law on this point is summarised in the oft-quoted propositions laid down by WILLES J. in *Wolverhampton N.W. Co v Hawkesford*[89]:

> There are three classes of cases in which a liability may be established founded upon a statute.
>
> *(a)* One is, where there is a liability existing at common law, and that liability is *affirmed* by a statute which gives a special and peculiar form of remedy different from the remedy which existed at common law: there, unless

the statute contains words which expressly or by necessary implication exclude the common law remedy, the party suing has his election to pursue either that or the statutory remedy.

(b) The second class of cases is, where the statute gives the right so sue *merely*, but provides no particular form of remedy; there party can only proceed by action at common law.

(c) But there is a third class, *viz.,* where a liability *not existing* at common law is created by a statute which at the same time gives a special and particular remedy for enforcing it…The remedy provided by the statute must be followed, and it is not competent to the party to pursue the course applicable to cases of the second class.

Where the special act provides a remedy and a procedure to be taken by the authorities, common law remedy is not barred if the action taken by the authorities has not followed the procedure, and when the action by the authorities is not in accordance with the Act, common law remedy is available.[90]

Learned judge JUSTICE G P SINGH in his authoritative text on *Principles ofStatutory Interpretation* has laid the following proposition (as a summary):- "(1) An exclusionary clause using the formula "an order of a tribunal under this Act shall not be called in question in any court" is ineffective to prevent the calling in question an order of the tribunal if the order is not really under the Act, but a nullity; (2) cases of nullity may arise when there is lack of jurisdiction at the stage of commencement of enquiry *e.g.,* when (a) the authority is assumed under an *ultra vires* statute; (b) the tribunal is not properly constituted, or is disqualified to act; (c) the subject matter or parties are such over which the tribunal has no authority to enquire, and (d) there is want of essential preliminaries prescribed by the law for commencement of the enquiry; (3) Cases of nullity may also arise during the course or at the conclusion of the enquiry. These cases are also cases of want of jurisdiction if the word "jurisdiction" is understood in a wide sense. Some examples of these are – (i) when the tribunal has wrongly determined a jurisdictional question of fact or law; (ii) when it has failed to follow the fundamental principles of natural justice *e.g.,* when the order is passed without giving an opportunity of hearing to the party aggrieved; (iii) when it has violated the fundamental provisions of the Act, *e.g.,* when it has failed to account matters which it is required to take into account or when it takes into account extraneous and irrelevant matters; (iv) when it has acted in bad faith, (v) when it grants a relief or makes an order which it has no authority to grant or make, and (vi) when by misapplication of the law, it has asked itself the wrong question"[1]. JUSTICE PARIPOORNAN of the Supreme Court, after quoting the passage, has said: "I would adopt the above statement of the law as my own".[2]

In *Dhulabhai v State of MP*,[3] it was held as follows:—

(1) Where a statute gives a finality to the orders of the special tribunal, the civil court's jurisdiction must be held to be excluded if there is adequate remedy to do what the civil court would normally do in a suit. Such provision, however, does not exclude those cases where the provisions of the particular Act have not been complied with or where the statutory tribunal has not acted in conformity with the fundamental principles of natural justice; (2) Where there is an express bar of jurisdiction of the court, an examination of the scheme of the particular act to find the adequacy or the sufficiency of the remedies provided may be relevant, but is not decisive to sustain the jurisdiction of civil court. Where there is no express exclusion, the examination of remedies and the scheme of the particular Act to find out the intendment become necessary and the result of the enquiry may be decisive. In the latter case, it is necessary to see if the statute creates a special right or a liability and provides for the determination of the right or liability and further lays down that all questions about the said right and liability shall be determined by the tribunal so constituted and whether remedies normally associated with action in civil courts are prescribed by the statute or not; (3) Challenge to the provision of particular Act as *ultra vires* cannot be brought before the Tribunals constituted under that Act. Even the High Court cannot go into that question or a revision or reference from the decision of the Tribunal; (4) When a provision is already unconstitutional or constitutionality of any provision is to be challenged, a suit is open. A writ of *certiorari* may include a direction for refund if the claim is clearly within the time prescribed by the *Limitation Act*, but it is not a compulsory remedy to replace a suit; (5) When a particular Act contains no machinery to refund of tax collected in excess of constitutional limits or illegally collected, a suit lies; (6) Questions of correctness of the assessment apart from its constitutionality are for the decision of the authorities and a civil suit does not lie if the orders of the authorities are declared to be final or there is an express prohibition in the particular Act. In either case, the scheme of the particular Act must be examined because it is a relevant enquiry; (7) An exclusion of the jurisdiction of the civil court is not readily to be inferred unless the conditions above set down apply.

The Supreme Court in *Madhuri Patel v Commissioner, Tribunal Development*,[4] directed the formation of a Scrutiny Committee for the issue of caste certificates when the claim is made by SC/ST. The Committee, though not an adjudicating body like a court, but an administrative body which verifies the facts and investigates

into a specific claim (as to caste) and ascertains whether the caste/tribal status claimed is correct or not. The direction or scheme by the Supreme Court was held “to be a statute” and the Scheme can expressly or impliedly bar cognizance of suits. The court held that the “statute” which gives rise to the cause of action is a Scheme which is a stop-gap Scheme (quasi-legislative) created by the decision of the Supreme Court. To challenge the order, a writ petition will lie and not a suit.[5]

The expression “except as provided in the Act” can limit the operation of the bar. It can reasonably be interpreted to mean that bar of a suit is limited to matters in respect whereof the Act has provided a remedy. Two conditions are to be satisfied before bar of suit – (1) the administration or authority shall have done an act or omitted to do an act in contravention of the provision of the Act; and (2) the Act has provided a remedy in respect of that act or omission.[6]

Recovery of Debts due to Banks and Financial Institutions Act 1993 enables a bank and financial institution to institute proceedings for recovery of money due to it from the borrower. Procedure is also prescribed under that Act which is different from the procedure prescribed under the *Civil Procedure Code*. A debtor or borrower cannot institute proceedings before the Tribunal constituted under that Act. A debtor under the common law of contract and also in terms of the agreement has an independent right to sue the bank or financial institution if he is aggrieved by their action before a civil court. The different procedure before a court and Special Tribunal is not a ground to hold that the suit is barred by virtue of the Act. So long as no forum is created for the enforcement of the debtor’s right, he is not precluded from filing a suit and seeking appropriate relief.[7]

B. The foregoing principle is applied even to statutes which enlarge common law rights or create new rights. In all these cases, the general rule applied is that the statute should be *prima facie* interpreted in conformity with the common law unless the statute is plainly inconsistent with the common law. In other words, when a new right or remedy is created by a statute, it does not affect pre -existing rights or remedies unless they are expressly abolished or it clearly appears that the legislature did not intend the pre-existing right and the new right should not exist together.[8]

Section 21 of the Indian Securities Act, 1920*, gives the Government a statutory right of indemnity against forgery of a Government promissory note. This does not abrogate the common law right of indemnity which existed prior to the passing of this Act and which has not been taken away by the Act by any express words to that effect. Hence, the section must be held to give an additional statutory right, which is in no way inconsistent with the common law right.[9]
Presumption against retrospective operation.

(*ii*) *Presumption against retrospective operation.*—Though it is within the competence of a legislature to legislate retrospectively[10] (subject to the constitutional limitation in *Article 20*(1) of *our**Constitution* (see *post*), *Courts* lean against a retrospective construction as it may impair vested rights.[11] Every statute which takes away or impairs vested right acquired under the existing law or creates a new obligation or imposes a new duty or attaches a new disability in respect of transaction already passed, must be presumed to be intended not to have a retrospective effect.[12] The rule of retrospective construction is not applicable merely because a part of the requisites for its action is drawn from a time antecedent to passing of the relevant law.[13] So, unless there is something in the language, context or object of a statute showing a contrary intention, the duty and practice of Courts of justice is to *presume* that the legislature enacts prospectively and not retrospectively.[14] In other words, when a statute is passed altering the law, unless the language is *expressly* to the contrary, it is to be taken to apply to a state of facts coming into existence after the Act.[15] If the statute is expressed in a language which is fairly capable of either interpretation, it ought to be construed as prospective only.[16]

The principle applies not only to legislation taking away existing rights, but also to legislation which *creates new* rights,[17] or imposes a new duty or attaches a new disability in respect of past transactions or considerations.[18] Again, the presumption applies not only to substantive rights, but also to *right of action*,[19]*e.g.,* the right to continue a duly instituted suit.[20] Provisions which, if applied retrospectively, would deprive of their existing finality orders which, when the statute came into force were final, are provisions which touch existing rights.[21] Hence, there cannot be any right of appeal by the retrospective construction of a statute against an order which was final when it was passed. On the same principle, a statute abolishing a right of appeal or transferring it to an inferior Court[22] or otherwise restricting the right of appeal,[23] should not be deemed to be retrospective. But pending rights of action may be affected not only by express words but also by necessary intendment.[24]

The legislature is undoubtedly competent to legislate with retrospective effect to take away or impair any vested right acquired under the existing laws but since the laws are made under a written *Constitution* and have to conform to the do’s and don’ts of the *Constitution*, neither prospective nor retrospective laws can be made so

as to contravene fundamental rights. The law must satisfy the requirement of the *Constitution* today taking into account the accrued or acquired rights of the parties today. The law cannot say, twenty years ago the parties had no rights, therefore the requirement of the *Constitution* will be satisfied if the law dates back to 20 years. We are concerned with today's rights and not yesterday's. A legislature cannot legislate today with reference to a situation that obtained twenty years ago and ignore the march of events and the constitutional rights accrued in the course of those 20 years. That would be most arbitrary, unreasonable and a negation of history.[25]

The maxim "*nova constitutio futuris forman imponeve debet non practertis*" means a new law ought to be prospective, not retrospective in its operation. (Broom Legal Maxim). The maxim which means that a new state of affairs of law ought to affect the future – not the past – is the foundation of the rule that the statute will not be presumed to have retrospective effect.[26]

The rule against retrospectively is a rule of interpretation aimed at preventing interference with vested right unless expressly provided or necessarily implied. To invoke the rule against retrospectively in a situation where no vested rights are involved is to give statutory status to a rule of interpretation forgetting the reason for a rule.[27] Every statute or statutory rule is prospective unless it is expressly or by necessary implication made to have retrospective effect. Unless there are words in the statute or in the rules showing an intention to affect existing rights, the rule must be held to have prospective effect only. If a rule is expressed in a language which is fairly capable of either interpretation, it ought to be construed as prospective only. In the absence of any express provision or necessary intendment, the rule cannot be given retrospective effect except in the matter of procedure.[28]

1. The Australian Commonwealth Judiciary Act, 1903, created the High Court of Australia and took away the right of appeal from the Supreme Court of Queensland to the Privy Council. It was held that there was nothing in the language of the Judicature Act which expressly or by necessary intendment allowed of the construction that it was retrospective so as to take away the right of appeal to the Privy Council which a party had as regards *judgmentspassed before the coming into operation of the Act.*
2. Section 22(1) of the C.P. & Berar Sales Tax Act, 1947, provided that no appeal against an order of assessment should be entertained by the prescribed authority unless it was satisfied that such amount of the tax as the appellant *admitted to be* due from him had been paid. In 1949, the section was amended to provide that no appeal should be admitted unless the appeal was accompanied by satisfactory proof that the tax in respect of which the appeal had been preferred had been *paid.* The appellant preferred an appeal after the amendment had come into force without depositing the amount of tax. The court held that since the proceedings for taxation had commenced in 1947, his right of appeal was governed by the law as it existed on that date since the Amendment Act did not expressly or by necessary intendment give retrospective effect to the amendment, the appeal could not be rejected for non-payment of the tax in respect of which the appeal was preferred. The Supreme Court observed—

   > That the amendment has placed a substantial restriction in the assessee's right of appeal cannot be disputed, for the amended *section* requires for the payment of the *entire* assessed amount as a condition precedent to the admission of its appeal… The right of appeal is not merely a matter of procedure. It is a matter of substantive right. This right of appeal from the decision of an inferior tribunal becomes vested in a party when proceedings are first initiated in, and before a decision is given by, the inferior Court…An intention to interfere with or to impair or imperil such a vested right cannot be presumed unless such intention be clearly manifested by express words or necessary implication.[29]

3. Section 116 of Pepsu Ordinance X of 2005 provided—

   > Notwithstanding anything contained in this ordinance, all suits, appeals, revisions, applications, reviews, executions and other proceedings, or any them, whether civil or criminal, pending in the courts and before judicial authorities in any Covenanting State shall be continued and concluded respectively in courts or before judicial authorities of the like status in the Union; and the Courts or authorities in the Union shall have the same jurisdiction in respect of all such suits, appeals, revisions, reviews executions, applications and other proceedings, or any of them, as if the same had been duly commenced and continued in such Courts or before such authorities.

> *Held,* the section obviously means that all rights which arose or are likely to arise in the future shall remain in fact notwithstanding the new set-up, and that they would be dealt with by the Union Courts in place of the Courts of the Covenanting State. There is nothing in the section to justify the view that any taking away of a vested right of appeal retrospectively was intended.[30]

Further, even when a retrospective intention clearly appears from the statute itself, Courts are slow to give any larger retrospective effect than appears to be necessary, by a proper construction of its language.[31]

Where a repeal of provision of an enactment is followed by fresh legislation by an *amending Act*, such legislation is prospective in operation and does not affect substantive or vested rights of parties unless made retrospective either expressly or by necessary intendment. Further, there is a presumption against the retrospective operation of a statute and a statute is not to be construed to have grater retrospective effect than its language renders necessary. But an *amending Act* which affects procedure is presumed to be retrospective unless the *amending Act* provides otherwise.[32]

Fiscal legislation imposing liability is generally governed by the normal presumption that it is not retrospective.[33]

Penal statutes which create offences or which have the effect of increasing penalties for existing offences will only be prospective by reason of the constitutional restriction imposed by *Article 20 of the Constitution*.[34]

Upon construction of sections 12 and 50 of the Bombay Rents, Hotels and Lodging House Rates Control Act (LVII of 1947), *held*, that the Act repealed two earlier statutes and provided that the Act should apply to all pending suits which shall be transferred to the Court under the Act, but that it shall not affect “executions and appeals’; that the Act had retrospective operation only to the limited extent as regards transferred suits, and that executions and appeals were to be governed by the law which was in force at the time when the decrees were passed. [35]

But a statute is not to be treated as retrospective merely because it relates to acts or events which took place before the commencement of the statute. It is retrospective only if it “takes away or impairs any *vested* right under existing laws or creates a new obligation, or imposes a new duty, or attaches a new disability in respect of transactions or considerations already past”.[36]
Applicable to the constitution.

The above principles have been applied in the interpretation of the provision of our *Constitution* as well. Thus, it has been observed by our Supreme Court that the *Constitution* is, generally speaking, prospective in its operation and is not to have retroactive operation in the absence of express provisions to that effect.[37] In particular, the principle has been applied in holding that—

(i) *Article 13*(1) has no retrospective operation so as to affect rights and liabilities that have accrued under an “inconsistent law” prior to the commencement of the *Constitution*.[38] [See under *Article 13*(1), *post*].

(ii) *Article 133*should be so interpreted as not to affect any right of appeal which had accrued prior to the commencement of the *Constitution*.[39]

But—

(*a*) While the presumption applies against the retrospective operation of a statute so that persons may not have their *rights* affected by laws passed subsequently, there is no vested right as regards mere *procedure*; so none can complain if during his litigation the procedure is changed provided that no injustice be done.[40] Hence, where a statute affects procedure *only*, it is retrospective and applies to proceedings instituted prior to the enactment, if pending.[41]

Substantive law creating vested right operates prospectively and procedural or declaratory law operates retrospectively unless expressly provided for otherwise in the statute itself.[42]

Even according to MAXWELL:

> No person has a vested right in any course of procedure. He has only the right of prosecution or defence in the manner

> prescribed for the time being by or for the court in which the case is pending and if, by an Act of Parliament, the mode of procedure is altered, he has no other right than to proceed according to the altered mode.[43]

Statutes providing for new remedies for enforcement of existing right are treated as procedural and apply to future as well as past causes of action.[44]

Further JUSTICE G P SINGH has stated:

> The classification of a statute as either substantive or procedural does not necessarily determine whether it may have retrospective operation. For example, a statute of limitation is generally regarded as procedural but if its application to a past cause of action has the effect of receiving or extinguishing a right to suit, such an operation cannot be said as procedural. The rule of retrospective construction is not applicable merely because a part of the requisites for its action is drawn from a time antecedent to its passing. For these reasons, the rule against retrospectively has also been stated in recent years avoiding classification of the statute into procedural and substantive and avoiding use of words like existing or vested.[45]

This principle has been applied in the interpretation of *Article 13*(1) of *ourConstitution* to hold that though the *Constitution* is not retrospective so as to affect rights and liabilities arising prior to the commencement of the *Constitution*, if such rights and liabilities are sought to be enforced after commencement of the *Constitution*, the *procedure* must be in conformity with the *Constitution*.[46] For instance, where a pre-*constitution* law prescribes a discriminatory procedure, that part of the proceedings under the law which has already been gone through before commencement of the *Constitution* cannot be held to be void on the ground of contravention of *Article 14*; but that part of the proceedings which took place under the discriminatory law subsequent to the commencement of the *Constitution* must be struck down as invalid.

But when the change in procedure is complicated by the divestment of a pre-existing right, the presumption against retrospectively revives in its full strength. Thus, to deprive a suitor in a pending action of the *right* of *appeal* to a superior Court which belonged to him as of right is a very different thing from one regulating mere procedure.[47] In short, the application of the presumption is confined to changes in the substantive law as opposed to adjective law.[48] Declaratory Acts,[49] statutes against tax evasion[50] and emergency legislation,[51] are, in proper circumstances, treated as exceptions to the presumption.

Even though the right of appeal is a vested right, the party has no vested right to have the appeal heard, by a specified number of judges of that court and a change in law in that matter will be regarded merely as a change in procedure and therefore retrospective.[52] Again, when existing civil courts are abolished and new civil courts are created by the new law, an appeal against a decision in a pending suit decided by the new civil court to which it is transferred will lie in the court which has the power to hear appeals under the new law.[53] After the transfer of a case to the Debt Recovery Tribunal under Recovery of Debt due to Banking & Financial Institution Act, the right of appeal would be governed by the special Act and not the *Code of Civil Procedure*.[54]

On the other hand, if there are words in the enactment which either expressly or *bynecessary intendment* [*e.g.,* from the object of the statute] imply that the statute is to be given retrospective operation even in respect of substantive rights or pending actions, the Courts have no other alternative than to give such operation to the statute even though the consequences may appear to be unjust or hard.[55] Thus, if the Act itself requires that it should apply to pending proceedings, it will be so applied, unless there is any saving clause in the Act to the contrary.[56]

The golden rule of construction is that, in the absence of anything in the enactment to show that it is to have retrospective operation, it cannot be construed as to have the effect of altering the law applicable to a claim in litigation at the time when the Act was passed.[57]

A new law bringing about a change in form does not affect pending action unless a provision is made in it for changeover of proceedings or there is some other clear indication that pending proceedings are affected.[58] Thus, if a new law which is enacted during the pendency of a suit in a civil court is worded in the form that “No civil court shall have jurisdiction to settle, decide or deal with” certain questions which are committed to the jurisdiction of revenue courts, and pending suit relates to those questions, the jurisdiction of civil court is ousted.[59]

Section 26N, introduced in the Bengal Tenancy Act, by the Bihar Tenancy Amendment Act, 1934, provided—

> Every person claiming an interest as landlord in any holding or portion thereof shall be deemed to have given his consent to every transfer of such holding or portion…made before the 1st day of January, 1923.

Held, this provision applied to all transfers made before January, 1923, including those which were in question in suits pending at the date of the commencement of the Amendment Act of 1934.[60]

(*iii*) *The Legislature does not intend to violate the established principles ofInternational Law.*[61]—
Presumption of acting within competence

(*iv*) *The Legislature must be presumed to act within its competence.*—In construing an enactment of a Legislature with limited competence, the Court must presume that the Legislature in question knows its limits and that it is only legislating for those who are actually within its jurisdiction. The enactment should, therefore, receive, if possible, such interpretation as will make it operative and not inoperative.[62]

From this principle follows two corollaries, *viz.,* that the Legislature must be presumed not to intend a violation of the *Constitution* by transgressing either the substantive or the territorial limitations imposed upon it by the *Constitution*.

17. AIDS TO CONSTRUCTION

Every statute seeks to explain its own meaning by its different contents and the duty of the Court is to find out the meaning of any particular section or clause with reference to those *internal aids,* apart from the rules of interpretation so far discussed. Such internal aids, for example, are supplied by the Title, Preamble, Headings, Interpretation clauses and the like.

Apart from these aids supplied by the statute itself, it is also permissible, in particular circumstances and within limits, to take *external evidence* in order to ascertain the intention of the Legislature.

The limits within which these internal and external aids may be applied should therefore be carefully borne in mind.

(*a) Internal AidsTitle.*—

The title is nowadays regarded as a part of the Act itself and it is legitimate to use it for the purpose of interpreting the Act as a whole and for ascertaining its scope.[1] Of course, the title is to be used as an aid of interpretation only where the words of an enacting section are not clear; and not to control the express provisions of the Act.[2] One cannot be impressed at once with the wording of the full title of the Act. Although there are observations in earlier English cases that title is not part of the statute and can therefore be excluded from consideration in construing the statutes, it is now settled law that the title of a statute is an important part of the Act and may be referred to for the purpose of ascertaining its general scope and for throwing light on its construction, although it cannot override the clear meaning of the enactment.[3] Wide discretion conferred on the Government under a statute and challenged as arbitrary has been upheld on the ground that the discretion so conferred can be exercised only in furtherance of the object and policy of the Act as given out by the long title and preamble and is thus not unfettered or unguided.[4]

The title of *ourConstitution* being very simple, *viz.,* "*Constitution of India*" (*Article 393*), its use in interpreting the *Constitution* will not be much called for, except for indicating that the *Constitution* will govern all the territory that will for the time being be included in "India" as defined in *Article 1 of the Constitution*.

Preamble.—

This is being separately dealt with, under the Preamble of the *Constitution* (*see post*).

Headings.—

Headings and sub-headings prefixed to sections or groups of sections indicate the general object of the provisions immediately following.[5] Thus, the Chapter on the Fundamental Rights of our *Constitution* is divided under several headings, such as General, Rights of Equality, Rights relating to Religion, Cultural and Educational Rights, Right to Constitutional Remedies. In the matter of interpretation, headings and sub-headings are treated as similar to the Preamble.[6]

That is to say, they may be usefully referred to, to determine the sense of any *doubtful* expression in the sections ranged under a particular heading.[7] But they cannot be used to give a different effect to *clear* words in the section where there is no doubt as to the ordinary meaning of the words.[8] The headings prefixed to sections

or sets of sections in some modern statutes are regarded as preambles to those sections. They cannot control the plain words of the section, but they may explain ambiguous words.[9] A chapter heading is utilised to delineate the legislative intent in its application from one chapter to another.[10] Chapter heading was made use of to ascertain the power of the Commissioner under *section 23 of the Electricity Act 2003*.[11] Only in the case of ambiguity or doubt, the heading or sub-heading may be referred to as an aid in construing the provision, but even in such cases it could not be used for cutting down the wide application of the clear words used in the provision.[12]

As a general rule, "heading" cannot be used to give a different effect to clear words of the section where there cannot be any doubt as to their ordinary meaning. But "heading" constitutes an important part of the Act itself. In comparison to the preamble of a statute, the "heading" provides a better key to the construction of the sections which follows them.[13] It was held that "heading" of a chapter indicates the factors to be considered.[14] Marginal notes or headings can be used as aids to construction and it is permissible to make use of the same in a limited role in the absence of clear, plain, discernable language.[15] Section "heading" *prima facie* furnishes clues as to the meaning and purpose of the section.[16]
Marginal Notes.—

The general rule of statutory interpretation is that—contrary to the preamble and headings,—marginal notes to the sections or articles are *not* regarded as parts of the statute and cannot, therefore, be referred to for the purpose of construing the enacting clauses,[17] if the language employed therein is clear and unambiguous.[18] But it is held that chapter "heading" and "marginal notes" are parts of the statute and they are enacted by legislature and can be taken into consideration for construing a statute. Chapter "heading" is a permitted tool of interpretation and this is because it is considered as a preamble to the section it describes. It can be taken into consideration if ambiguity exists. Chapter "heading" and "marginal notes" can be taken into consideration for resolving doubts. They are also relevant where interpretation of a section *vis-à-vis* scheme of the Act, the purport and object of legislation particularly having regard to mischief it seeks to remedy is involved. However, if the working of the statute is clear, need for referring to chapter heading and marginal notes may not arise. Similarly, chapter heading and marginal notes cannot be taken into consideration if it is inconsistent with the materials it describes.[19] A marginal note usually gives safe indication of purport of a section.[20] Marginal notes and arrangement of section are good guides for interpretation. They are gradually winning recognition as a kind of preamble to the enactments which they precede limiting or explaining their operation.[21]

In *Bengal Immunity Co v State of Bihar*,[22] DAS, ACJ observed that the marginal notes in *ourconstitution* deserved more importance because they were:

> unlike the marginal notes in Acts of the British Parliament, part of the *Constitution* as passed by the Constituent Assembly and
>
> *prima facie,* furnishes some clue as to the meaning and purpose of the Article.

In *Golak Nath's case,*[23] accordingly, SUBHA RAO, J, for the majority, relied, *interalia*, on the marginal note to *Article 368* to conclude that the article prescribed only the *procedure* for amendment and not the *power* therefor, which was to be derived from some other provision of the *Constitution*. This proposition has been critically examined in the Author's *Tagore Law Lectures*.[24] It has been shown there that in relying solely on the marginal note, the majority overlooked the heading of Pt XX which consists of only the *Article 368*, and the language of that Article itself. The conclusion of the majority is also contrary to the view taken in the United States of America and Australia, where similar provisions exist. In fact, in *KesavanandaBharati v State of Kerala*,[25] learned judges HEGDE & MUKHERJEE JJ. held that marginal note plays a "very little role in the construction of statutory provision. It should have much less importance in construing constitutional provisions". KHANNA, J said that marginal notes cannot control the scope of the article itself. The existence of power cannot be denied by invoking marginal note, if it is otherwise clear from the scheme and language of the provision.

The marginal note cannot override the text of the provision. Further it cannot control the scope of the article itself. The existence of a power cannot be denied by invoking the marginal note, if it is otherwise clear from the scheme and language of the provision.[26]

It plays a very little part in the construction of a statutory provision. In construing a *Constitution* it is of less importance. But marginal notes can serve as guidance where there is ambiguity or doubt about the true meaning of the provision.[27]

In another case, the Supreme Court held that marginal note may furnish some clue as to the meaning and purpose of the Article.[28]

Punctuation.—

Similarly, punctuation marks cannot control the meaning of a section. They are regarded as *no* part of the enactment. “In an Act of Parliament there is no such thing as brackets any more than there are such things as stops.”[29] In construing the *Constitution*, therefore, the Court is to read it without the commas and other punctuation marks inserted in the print.[30]

The Supreme Court held that punctuation mark is a minor element in the interpretation of a statute, especially in cases of subordinate legislation.[31]

While interpreting the scope of *Constitution* (Scheduled Tribes) Order 1950, the Supreme Court said that in view of common pattern adopted in most of the entries that between one entry and another, a “comma” is provided, each of the tribe specified in Entry 18 must be deemed to be a separate tribe and not a sub-tribe of another tribe.[32]

Provisos.—

(1) The proper function of a proviso is to except and deal with a case which would otherwise fall within the general language of the main enactment,[33] and its effect is confined to that case.[34] The proviso leaves the generality of the substantive enactment in the section unqualified except in so far as it concerns the particular subjects to which the proviso relates.[33] The proper function of a proviso is to except and to deal with a case which would otherwise fall within the general language of the main enactment and its effect is confined to that case.[35] As a general rule, a proviso is added to an enactment to qualify or create an exception to what is in the enactment, and ordinarily, a proviso is not interpreted as stating as a general rule.[36] A proviso may either qualify or except certain provisos from the main provision or it can change the very concept of the intendment of the main provision by incorporating certain mandatory conditions to be fulfilled or it can temporarily suspend the operation of the main provision. Ultimately the proviso has to be construed on its own terms. Merely because it suspends or stops further operation of the main provision, the proviso does not become invalid.[37] Usually a proviso cannot be interpreted as a general rule that has been provided for. Nor it can be interpreted in a manner that would nullify the enactment or take away in entirety a right that has been conferred by the statute. In case the language of the main enactment is clear and unambiguous, the proviso can have no repercussion on the interpretation of the main enactment, so as to exclude by implication, what clearly falls within the expressed terms. If upon plain and fair construction, the main provision is clear, a proviso cannot expand or limit its ambit and scope. In normal course, proviso can be distinguished from an exception for the reason that exception is intended to restrain the enacting clause to a particular class of cases, while a proviso is used to remove special cases from the general enactment, from them specially.[38]

Natural or normal or proper function of a proviso is either to create an exception or to qualify terms too general to be quite accurate. Where the enacting part is susceptible to several possible meanings, it may be interpreted as controlled by the proviso. At the same time, a proviso cannot be interpreted to import something non-existent in the enacting part.[39] A proviso must be construed strictly.[40] A proviso inserted subsequently cannot be a determinative factor for restricting the operation of the Act.[41] Normally a proviso does not travel beyond the provision to which it is a proviso. It carves out an exception to the main provision to which it has been enacted as a proviso and no other.[42]

Of course, a section must be read as a whole, each portion throwing light on the rest.[43] Unless the words are clear, an attempt should be made to reconcile the enacting clause and the proviso so as not to attribute to the Legislature an intention to give with one hand and take away with another.[44] When the language of the main enactment is *clear* and *unambiguous*, a proviso can have no repercussion on the main enactment so as to *exclude* from it by implication what clearly falls within its express terms.[33] A proviso may be used for guidance in the selection of one or other of *two* possible constructions of the main section but not as an enacting provision in itself modifying the clear effect of the main section, even if without such latter use the proviso would be found meaningless.[45]

Similarly, unless of necessity, a proviso is never construed as *enlarging* the scope of the enacting words.[46] Thus, if the language of the enacting part does not contain the provisions which are said to occur in it, those provisions cannot be derived by implication from a proviso.[47]

(2) The scope of the proviso itself must be determined with reference to the *context, i.e.,* the main enactment which it seeks to limit or define.[48] In short, a proviso should not be read out of context or to wipe out the effect of the main provision.[49]

On the other hand, where the proviso is *directly repugnant* to the enacting clause, the proviso shall stand and be a repeal of the enacting part, as it speaks of the last intention of the maker.[50] Again, the natural presumption is that, but for the proviso, the enacting part would have included the subject -matter of the proviso.[51] For the same reason, an exception contained in the proviso must be assumed to be *necessary* unless it otherwise appears from the language employed.[52]

If there are two provisos and the latter is repugnant to the earlier proviso, the latter proviso prevails.[53]

Where the enacting provision is *ambiguous*, the proviso may be looked into for construing the enacting provision.[54]

(3) When a second proviso is added, it means that the first proviso cannot be read in isolation;[55] and that the main provision is to be read in conjunction with the two provisos.
Explanation.—

An *Explanation* should be distinguished from an *Exception*. The object of an *Explanation* is not to exclude anything from the meaning of the main provision but to serve as a description. The meaning of the main provision will no doubt depend on its own language,—

> but when two interpretations are sought to be put upon a provision, that which fits the description which the Legislature has chosen to apply to it is, according to sound canons of construction, to be adopted, provided, of course, it is consistent with the language employed, in preference to one which attributes to the provision a different effect from what it should have according to its description by the Legislature. [56]

An explanation is at times appended to a section to explain the meaning of the words in the section.[57] An explanation to a section should normally be read to harmonize with and clear up any ambiguity in the main section and normally not to widen its ambit.[58] But an explanation can in certain circumstances give an extended meaning.[59]
Interpretation Clause.—

The *Constitution*, like other statutes, includes an Interpretation clause, defining certain terms, such as “agricultural income”, “corporation tax,” “existing law”, “taxation”, “foreign State”, and the like (*Article 366*).

The object of the interpretation clause, however, is not to take away the *ordinary* meaning of a word. It simply declares what *may be included* within the meaning of the term when the circumstances require that it should bear that meaning or have that ambit.

> An interpretation clause is not meant to prevent the word receiving its ordinary popular and natural sense whenever that would be properly applicable, but to enable the word as used in the Act, when there is nothing in the *context* or the subject-matter to the contrary, to be applied to some things to which it would not ordinarily be applicable. [60]

The object of a definition clause is to avoid the necessity of frequent repetition in describing all the subject matter to which the word or expression so defined is intended to apply.[61] A definition section may borrow definition from an earlier Act and the definition so borrowed may not necessarily be in the definition section, but may be in some other section of the earlier Act.[62]

This is made clear in the Interpretation clause of our *Constitution* (*Article 366*) by the use of the words “*unless the context otherwise requires.”* These mean that words take colour from the context and need not have the same meaning in every article or clause.[63]

Again, a definition clause ought not to be construed as cutting down or modifying the main enacting section unless it contains clear language to that effect.[64]

But different effects are intended by a definition clause by using the word “means” or “includes”. When the word “means” is used, the meaning of the word used in the enactment is to be restricted to the meaning given in the definition clause.[65] But when the definition used the word “includes”, the word or phrase in the enactment “must

be construed as comprehending not only such things as they signify according to their natural import, but also such things which the interpretation clause declares that they shall include".[66] In other words, the definition is extensive, when it uses the word "includes".[67]

When by an *amending Act*, the word "includes" was substituted for the words "means" in the definition clause, it was held that the intention was to make it more extensive.[68]

But in certain cases, the expression "includes" has been construed as "mean and include" and the definition was exhaustive.[69]

A definition section may also be worded in the form of "is deemed to include" which again is an inclusive or extensive definition and such a form is used to bring in by a legal fiction something within the word defined which according to its ordinary meaning is not included within it.[70]

Saving Clause.—

A saving clause is usually introduced into an Act which repeals another, to safeguard rights which, but for the saving, would be lost.[71]

"Saving clause" is used to preserve from destruction certain rights, remedies or privileges already existing and "saving" means that it saves all the rights the party previously had, not that it gives him any new rights. Saving clauses are introduced into acts which repeal others to safeguard rights which, but for saving, would be lost and these clauses are seldom used to construe the Act.[72]

Schedule.—

The *Constitution of India*, following the Government of India Act 1935, contains a number of Schedules. Schedules are as much a part of the statute as any other part. [73]Usually, the Schedules contain only matters of form or examples as to the manner in which the enacting portion is to be carried out in practice. Hence, the rule as to such Schedules is that if there is any conflict between the enacting part and the Schedules, the former shall prevail.[74]

Schedules appended to the statute form part of the statute.[75] The division of a statute into sections and schedules is a mere matter of convenience and a schedule therefore may contain substantive enactment.[76] Schedules may even go beyond the scope of the section to which they may appear to be connected by its heading. In such cases, a clear positive provision in the schedule may be held to prevail over the *prima facie* indication furnished by its heading and the purpose of the Schedule contained in the Act.[77]

In case of conflict between body of the Act and the Schedule, the former will prevail.[78] In case of doubtful words in the enactment, a scheduled form may be utilised for the purpose of "throwing light" on their meaning.[79]

But most of the Schedules of the Indian *Constitution* deal with substantive provisions, *e.g.,* as to the administration of Scheduled Areas and Tribal Areas (5th and 6th Schedules) and these provisions are to be deemed to be as important as the enacting portion of the *Constitution*. In such a case, the Schedules may be used in construing the provisions in the body of the *Constitution*.[80]

(*b*) External Aids

When the words of a statute are plain and unambiguous, the intention of the Legislature is to be ascertained from the language of the statue itself and no external evidence is admissible to construe the meaning of those words.[81] If the words of the statute are in themselves precise and unambiguous, then no more can be necessary than to expound those words in their ordinary and natural sense. The words themselves do alone in such cases best declare the intent of the law giver and when the language is plain and unambiguous and admit of only one meaning, no question of construction of a statute arises, for, the Act speaks for itself.[82] Intention of the legislature must be found in the words used in the legislation itself. If words are capable of one construction, it is not open to court to adopt any other hypothetical construction on the ground that it is more consistent with alleged object and policy of the Act. Only when such words are capable of two constructions, question of giving effect to the policy or object of the Act can legitimately arise. The court cannot re-write, recast or re-frame the legislation because it has no power to do so.[83] But when the language is *ambiguous* or susceptible of various meanings or shades of meaning, external circumstances may be referred to, in order to gather the intention of the Legislature, such as the historical setting behind the enactment, its own parliamentary history and so on.[84] Words used by the legislature do not always bear a plain meaning. Judges quite often differ on the issue whether certain words are plain, and even when there is an agreement that the words are plain, differences of opinion may result on the question as to what the plain meaning is.[85] In case of doubt, therefore, it is always

safe to have an eye on the object and purpose of the statute or reason and spirit behind it.[86] It is not possible to decide whether certain words are plain or ambiguous unless they are studied in their context and construed.[87]
Historical setting.—

Thus, in case of ambiguity in the meaning of words, the circumstances which led to the passing of the statute or the surrounding circumstances in which it was passed, may be looked into, to see what the object of the Legislature was and what the words used relate to.[88]
Rule in Heydon's case: U.K.

This rule, commonly known as the "Mischief Rule", was enunciated by the Barons of the Exchequer as early as 1584, in *Heydon's* case,[89] in the following words—

> …That for the sure and true interpretation of all statutes in general (be they penal or beneficial, restrictive or enlarging of the common law) four things are to be discerned and considered:
>
> (1st) What was the common law before the making of the Act.
>
> (2nd) What was the mischief and defect for which the common law did not provide.
>
> (3rd) What remedy the Parliament hath resolved and appointed to cure the disease of the commonwealth. And,
>
> (4th) The true reason of the remedy;
>
> and then the office of all the Judges is always to make such construction *as shallsuppress the mischief,* and advance the remedy…,according to the true intent of the makers, *pro bono publico*.

But though the rule in *Heydon's*case89 was apparently intended as an exception to the rule of literal construction, owing to the fondness of English judges to the latter rule, it is doubtful whether a full utilisation of the "Mischief rule" has been made in England, and English judges often find themselves between the horns of a dilemma even today. Thus, as a limit to this rule, the House of Lords has observed that whatever might have been in the history behind a legislation, judges cannot usurp the legislative function under the guise of interpretation and add words which are not in the statute.[90]

One practical utility of the "Mischief Rule" is where the language used by an enactment admits of *two* constructions. In such cases, that construction should be adopted by the Court as would suppress the mischief for which the statute was enacted and advance the remedy.[91]

In *CIT v Sodra Devi*,[92] the court expressed the view that the principle in *Heydon's case* is applicable only when the words in question are ambiguous and are reasonably capable of more than one meaning, which was reiterated in *Kanailal Sur v Paramnidhi Sadhkhan*.[93] But in deciding whether the words are plain or ambiguous, it has to be studied in its context and "context" embraces the previous state of the law and the mischief which the statute was intended to remedy. Hence it is not really correct to say that the rule in *Heydon's case* is not applicable when the language is not ambiguous. The correct principle is that after the words have been construed in their context and it is found that the language is capable of bearing only one construction, the rule in *Heydon's case* ceases to apply and gives way to the plain meaning rules. This view has been explained in *Maunsell v Olim*.[94] It is said therein that *Heydon's rule* is available at two stages – (1) before ascertaining the plain and primary meaning of the statute, and (2) at the stage when the court reaches the conclusion that there is no such plain meaning.[95]

The question is whether a reference to the history of a law can be of any use when the language used in the statute admits of one meaning only, and there is no ambiguity in its construction. On this point, the English view is that if the language was clear, the Court would not hesitate to come to the literal conclusion even though that was contrary to the history of the enactment.[96] In the words of REID, LJ[97]:

> …we can have in mind the circumstances when the Act was passed and the mischief which then existed so far as these are common knowledge…we can only use these matters as an aid to the construction of the words which Parliament has used. We cannot encroach on its legislative function by reading in some limitation which we may think *was probably intended but which cannot be inferred from the words of the Act*97.

But there are also cases where a wider use of the Mischief Rule has been suggested:

> …it appears to me that to construe the statute in question, it is not only *legitimate* but highly convenient to refer *both* to the former Act and to the ascertained evils to which the former Act had given rise, and to the later Act which provided the remedy. These three being compared, I cannot doubt the conclusion.[98]

Statutes should be given what has become known as “purposive construction”, that is to say, that the court should identify the “mischief” which existed before the passing of the statute and then, if more than one construction is possible, favour that which will eliminate the mischief so identified.[1] Every legislation seeks to remedy certain mischief, to supply an inadequacy, to effect change in policy or to formulate plan of a Government, and policy of legislation is to be ascertained from the statute itself.[2]

The Court is also duty bound to advance the cause or the purpose for which the law is enacted and the law must be read harmoniously, construed purposively and implemented to further advancement of the objects sought to be achieved.[3] When a too literal interpretation frustrates the very object of the statute, purposive construction has to be preferred.[4] Purposive construction has also been applied to penal statutes to avoid a lacuna and to suppress the mischief and advance the remedy.[5] If two possible and reasonable constructions can be put to a penal provision, the court must lean towards the construction which exempts the subject from penalty rather than one which imposes penalty. It is not competent for the court to stretch the meaning of an expression used by the legislature in order to carry out the intention of the legislature.[6]

It is also the law that *Heydon’s rule* should not be taken to the extreme; that if there were many problems before the enactment of the statute, it does not follow that in an effort to solve some of them, the Parliament intended to serve them all and loyalty to the rule does not require the adoption of a construction which leads manifestly to absurd results.[7] The above propositions are unexceptional, but their misapplication may lead to a narrow construction defeating the object of the statute as actually happened in that case which was overruled in the case of *R.Shipuri*[8]. If the statutory language in its primary or ordinary meaning in the context has a wider effect, it cannot be artificially confined to remedy the single identified mischief which is conceived to have occasioned the statutory provision, for, once a mischief has been drawn to the attention of parliamentary draftsman, he would have considered whether any concomitant mischief should be dealt with as a necessary corollary.[9] Words of a statute are to be read and understood in their natural, ordinary and popular sense. Purposive construction can be resorted to only when the language of the provision is capable of more than one meaning. In that case, purpose for which a particular provision is made and the provision before making the provision is considered. Adoption of that interpretation which would advance the purpose of legislation without leading to absurd results is to be accepted.[10]

In the United States of America (*U.S.A).,* the “Mischief Rule” has been applied to the construction of constitutional instruments.

U.S.A

Thus, in interpreting the Slave Clause [Article IV, section 2(3)] of the *United States*Constitution, the Supreme Court resorted to the history of the times in order to decide between two possible constructions.[11]

In interpreting sections 91-92 of the Br. North America Act, the Judicial Committee observed:

Canada

> The process of interpretation as the years go on ought not to be allowed to dim or whittle down the provisions of the original contract upon which the federation was founded, nor is it legitimate that any judicial construction of the provision of sections 91, 92 should impose a new and different contract upon the federating bodies. [12]

Similarly, in interpreting the effects of *Article 133* of *our*Constitution, the Supreme Court enumerated the categories of persons who were entitled to appeal from judgments of the High Courts at the commencement of the *Constitution* and then examined the question whether there was anything in the *Constitution* which took away, expressly or by necessary intendment, the vested right of appeal from any of these persons.[13] The rule was also applied in interpreting *Article 286*, as it originally stood.[14] But the vested right can be taken away when the State abolishes the court which is to hear the appeal and no other provision is made to hear the appeal and the vested right perishes.[15] A right of appeal is not affected if one set of courts are abolished and another set of courts of equal states are constituted and a provision is made for a change over of proceedings.[16]

In the main, however, the strict English view has been adhered to, namely, that in the absence of any ambiguity

in the language used in a statute, a court would not be justified in supplying supposed deficiencies in the statute on the ground that the language used therein does not carry out the "object" of the Act.[17]
Parliamentary history.—

The history of a legislation, which is admissible under the "Mischief Rule" in *Heydon's* case[18] must be distinguished **of** from the Parliamentary history of the legislation. While the former indicates *why* a particular statute was enacted, the Parliamentary history shows *how* it was enacted and how it fared in the legislative process up to the point of its enactment. The process being long, the materials relating to "Parliamentary history" are of different kinds appertaining to different stages in the legislative process. It would be convenient to deal with them separately.
Admissibility of Parliamentary history

U.K.

Of course, so far as *England* is concerned, the opinion, expressed by DENNING L.J. in the HOUSE OF LORDS[19] is that the "Mischief Rule" would permit a reference to the "previous state of the law" but not to the "legislative history of an enactment as they do in the United States of America." According to this theory the following are inadmissible for the purpose of construing the provisions of a statute, as passed—

(a) The original form of the Bill;[20]

(b) The amendments moved and considered during the course of the Bill in the Legislature;[21]

(c) Introductory speech of the Minister-in-charge of the Bill;[22]

(d) The debates and resolutions in Parliament;[23]

(e) The report of any Commission[24] or Conference[25] according to whose recommendations the statute or constitutional instrument may have been drafted.

The problem, however, is not so simple and it will be just seen that the trend of juristic opinion, even in England, is otherwise. It has also been held in some cases, that the Parliamentary materials may throw some light as to the circumstances in which a law was made,[26] that is to say, in aid of the "Mischief Rule".

India

In *India,* the history behind a provision has been followed in a number of cases, particularly for determining the scope of a legislative entry.[27]
Admissibility of Statement of Objects and Reasons.

Statement of Objects and Reasons.—In *England,* according to the traditional rule of textual interpretation, there is no question of referring to the Statement of Objects and Reasons of the Bill for the purpose of interpreting an Act, for "the beliefs or assumptions of those who frame Acts of Parliament cannot make the law".[28]

But according to the modern view which has adopted the "purposive approach of interpretation",[29] to the rejection of an absolute rule of literal interpretation, the intention of the Parliament as stated in the Statement of Objects cannot be excluded by the intention of the draftsman as expressed in the words used in the Act.[30]

India

In *India,* different shades of opinion have been expressed as to the admissibility of the Statement of Objects and Reasons appended to a Bill. In some cases, it has been rejected altogether,[31] as an aid to construction, following pre-*Constitution* decisions of the Privy Council,[32] on the ground that the Statement of Objects and Reasons only explains the objective of the mover of the Bill which "may or may not correspond to the objective which the majority of members had in view when they passed it into law", and that the "Bill may have undergone radical changes during its passage through the House or Houses". A Court cannot, therefore, construe a provision of the *Constitution* on the basis of the Objects and Reasons.[33]

In some other cases, it has been referred to for the purpose of applying the "mischief rule".[34]

> Though it is not legitimate to refer to the statement of objects and reasons as an aid to the construction or for ascertaining the meaning of any particular word used in the Act…", it may be referred to "for the limited purpose of

> ascertaining the *conditionsprevailing* at the time which actuated the sponsor of the Bill to introduce the same and the extent and urgency of evil which he sought to remedy.

The Statement of Objects and Reasons appended to a Bill seeking amendment to the *Constitution* was utilised for the purpose of ascertaining the conditions prevailing at the time the Bill was introduced and the purpose for which the amendment was made.[35] Statement of Objects and Reasons was also made use of while judging the reasonableness of a classification under an Act to see if it infringes *Article 14 of the Constitution of India*.[36] But the Statement of Objects and Reasons need not be referred to when the meaning of the provisions is clear and explicit. In such cases, by taking recourse to Objects and Reasons, the generality of the words used in the Statement also cannot be given.[37]

The proper view seems to be that though the opinion of the architects of a statute is not conclusive as to what meaning should be imputed to the words used by them, there is no reason why the statement of facts contained in the Statement of Objects and Reasons as well as in the speech of the Government member introducing the Bill should not be admitted as *evidence* as to the circumstances in which the measure was enacted and the objects of the legislation,[38] and, if such evidence lends any colour to the meaning of the words used in the statute which such words are capable of bearing, such interpretation should not be discarded merely because it has resulted from a reference to the Statement of Objects and Reasons.[39]
Objects and Reasons of Amending Act.

If it be permissible to refer to the Objects and Reasons to discover the “mischief”,[40] there should not have been so much of controversy on the proposition that where the Legislature changes the law by passing an *Amending Act*, it is permissible to refer to the Statement of Objects and Reasons of the amending Bill to determine the scope of the *amending Act*. In the earlier cases it was assumed that such use was permissible.[41] In the *Kochunni* case[42] SARKAR J. for the minority, protested against such use, but SUBBA RAO, J. for the majority, resorted to the Objects and Reasons of the *Constitution* (Fourth Amendment) Bill to conclude that the object of the insertion of *Article 31A* was to secure agrarian reform and that expressions used in that Article should be interpreted with this object in view. Of course, in the later case of Vajravelue,[43] SUBBA RAO, said that in the *Kochunni* case[44] he had used the Objects and Reasons not for the construction of any provision of the *Constitution* as amended by the Fourth Amendment Act., but only for the purpose of ascertaining the “mischief” for which the Amending bill had been brought. The confusion, it is submitted, has been due to arguing in a circle. If the Objects can be referred to for finding the object of an *amending Act*, such conclusion must lend colour to the interpretation of the provisions of the *Amending Act*.[45] The functions of judges being to interpret a law in consonance with and not contrary to its object[46] and thus to “suppress the mischief and advance the remedy”,[47] the reason is that an amending statute:

> comes freighted with the meaning imparted to them by the mischief to be remedied and by contemporaneous discussion. In such conditions history is a teacher that is not to be ignored.[48]

As the American Supreme Court has said, the language of a constitutional amendment should be read in connection with the known condition of affairs out of which the occasion for its adoption may have arisen, and then construed, if there be therein any doubtful expressions, in a way so far as it is reasonably possible, to forward the known purpose or object for which the amendment was adopted[49]

There is much strength in the criticism of the *Vajravelu* and the *BankNationalisation* cases[50] that had the Court referred to the Statement of Objects and Reasons of the *Constitution* (Fourth Amendment) Bill as well as the opening speech of the Home Minister, the Court could not have come to the patently anomalous position that nothing had been gained by the addition of the words at the end of *Article 31*(2),—”no such law shall be called in question in any court on the ground that the compensation provided by that law is not adequate.”[51]

The Statement of Objects and Reasons have also been referred to for collateral purposes, *e.g.,* for determining whether there were proper materials for a reasonable classification or an arbitrary discrimination was made, where a statute is challenged as violative of *Article 14 of the Constitution of India*.[52]
Introductory speech of mover of the Bill.*Introductory speech on Bill.—*

The literal school would not admit the speech in Parliament of the mover of a Bill,[53] even though the mover be the Lord Chancellor himself.[54] The reason given is that though it may be permissible to refer to these speeches to appreciate the legislative history of an Act,[55] these speeches in course of the legislation cannot be relied upon as the determining factor for interpretation of the Act as passed; if that were possible the rights conferred

on the citizens by an Act of Parliament could be enlarged or restricted by the speeches of a Minister or other member of the Legislature.[56]

Reference to parliamentary material should be permitted as an aid to the construction of legislation which is ambiguous or obscure or the literal meaning of which leads to absurdity. Even in such cases, reference in court to parliamentary material should only be permitted where such material clearly discloses the mischief aimed at or the legislative intention lying behind the ambiguous or obscure words.[57] In the same case, another learned judge observed:

> The court cannot attach a meaning to words which they cannot bear, but if the words are capable of bearing more than one meaning, why should not Parliament's true intention be enforced? It was pointed out that white papers and official reports could be looked at for finding the mischief and as a ministerial statement in Parliament was an equally authoritative source of such information, there is no reason why the courts be cut off from this source. Clear and unambiguous statements made by ministers in Parliament are as much the background to the enactment of legislation as white papers and parliamentary reports.

It was further observed:

> Given the purposive approach to construction now adopted by courts in order to give effect to the true intention of Legislature, the fine distinction between looking for the mischief and looking for the intention in using words to provide the remedy are technical and inappropriate.[58] Merely because minister's speech is based on the opinion of Advocate General, it will not make any difference. [59]

If it be legitimate to refer to the Statement of Objects and Reasons for the purpose of ascertaining the intention behind a provision there is no reason by the introductory speech of the mover of a *Constitution* Amendment Bill or of a provision in the *Constitution* should not similarly be admissible in order to determine the mischief which led to the initiation of the provision. There are cases of our Supreme Court where reference has been made to such speeches as evidence of the circumstances which necessitated the passing of an Act.[60] In *Madhu Limaye's* case,[61] reference was made to Dr Ambedkar's speech as to the scope of the draft Article 15A which corresponds to *Article 22 of the Constitution*.

A *Constitution* Bench has now laid down that the entire background should be taken as an aid to interpretation of a constitutional provision; but the weight to be given to such material is for the Court to determine.[62]
Speeches of individual members of the Legislature

Speeches of Members.—The case for admitting the speeches of individual members[62] in course of the debate on a Bill is, of course, much weaker, for the reason that "those who did not speak may not have agreed with those who did and those who spoke might differ from each other."[63] In the words of SHASTRI J. of our Supreme Court:[64]

> A speech made in the course of the debate on a bill could at best be indicative of the subjective intent of the speaker, but it could not reflect the inarticulate mental process lying behind the majority vote which carried the bill. Nor is it reasonable to assume that the minds of all those legislators were in accord.[65]

The debates in the Constituent Assembly can be relied upon for the interpretation of a constitutional provision. This is particularly so when the expression used is not defined in the *Constitution*, reference to such debates is permissible to ascertain, at any rate, the context background and objective behind them. Particularly, where the Court wants to ascertain the "original intent" such reference may be unavoidable. But the Court has to keep in mind that the debates are not conclusive or binding upon the Court because several members may have expressed their views, all of which may not be reflected in the provision finally enacted. The speeches of Dr Ambedkar on certain aspects like *Article 16(4) of the Constitution* stand on a different footing. He was not only the Chairman of the Drafting Committee which inserted the expression "backward" in draft *Article 10*(3) he was virtually piloting the draft provision.[66]

Exclusive reference was made to speeches in the Constituent Assembly to support the construction that wealth tax on net wealth including capital value of agricultural lands falls within the residuary power of the Parliament.[67] For interpreting *Article 16*(3), debates in Constituent Assembly were very much taken into consideration.[68] Dr Ambedkar's speech was taken into consideration with reference to *Articles 286*,[69] 341 and 342.[70]
The proceedings in general.

Records of proceedings.—The records of proceedings of the Legislature on a Bill obviously stand on a different footing. But the traditional English view is not to take cognizance of changes which a Bill underwent in the Legislature[71] as an aid to construction; the Court is concerned only with the finished product.

In a *Canadian* case[72] it has been suggested that a reference to the debates may be useful in case of "ambiguity" in a statute.[72]

In the *U.S.A.*, however, the debates are admissible to show the circumstances or environments in which an enactment was adopted[73] and the changes made during its passage.[74] They have been admitted for the purpose of interpretation of the statute, in case of ambiguity.[75] As to the position in the United States, American lawyers have expressed not infrequently the view that the debates which surrounded the drafting and adoption of the provisions of the American *Constitution* and its Amendments are admissible in aid of interpretation as indicative of their intended purposes. Moreover, even in the field of ordinary law-making, the American Courts are not shut off from any discussion of sources available to the legislature. Where the meaning of a statute is obscure, announcements of committees of the Legislature may be admitted in evidence as possessing considerable value of an explanatory nature regarding legislative intent. Such announcements as well as debates of the legislators may be able to shed light on any ambiguities arising in the enacted law[76]. It has even been held that where a particular construction is raised by the express words of the *Constitution* or by necessary implication, such construction cannot be rejected on the ground that a provision to the same effect was *discarded* by the Constituent Assembly which passed the *Constitution*. A most crucial illustration of the above is offered by the celebrated case of *McCulloch v Maryland.*[77] The *Constitution* of the *United States* did not expressly include the power to establish corporations in the list of powers given to Congress. On the other hand, such a power had been included in the Draft but was rejected by the National Convention. Nevertheless, the Supreme Court held that there was nothing in the *Constitution* to exclude "incidental or implied" powers. If the end be legitimate and within the scope of the *Constitution*, all the *means* which are appropriate, and are plainly adapted to that end, and which are not prohibited, may constitutionally be employed to carry it into effect.

In *India,* SASTRI J. used the Constituent Assembly Debates with regard to the deletion of the word "sedition" in order to ascertain the scope of clause (2) of *Article 19*,[78] though, later, he condemned the use of speeches in the Constituent Assembly for the purpose of interpreting *Article 286*.[79]

In *Gopalan's* case[80] KANIA C.J. expressed the opinion that a reference to the debates on a Bill was permissible to see "whether a certain phrase or expression was up for consideration at all" and held, on a reference to the Report of the Drafting Committee, together with the proceedings in the Constituent Assembly on Draft *Article 15* that "the Constituent Assembly had before it…the expression "due process of law" but they deliberately dropped the use of that expression from *our**Constitution*.[80]

In the *Express Newspapers'* case[81] BHAGWATI J. suggested that though changes or amendments made in a Bill while in Parliament are not ordinarily admissible as an aid to the construction of the Act as finally passed, they may be admissible "when the terms of the statute are ambiguous or vague."

There is little controversy on the proposition that, as in the case of all external evidence, debates in the Constituent Assembly as well as other historical facts that led to the adoption of any particular provision may be admissible where there is a latent *ambiguity* in the terms used in the *Constitution*;[82] or to ascertain the evils which the statute was intended to remedy.[83]

In *Golak Nath's* case,[84] SUBBA RAO C.J. however, made copious references not only to the speeches of Dr Ambedkar, the Chairman of the Drafting Committee, but also of other members, such as Pandit Nehru, on the floor of the Constituent Assembly, to demonstrate "the transcendental character given to the fundamental rights by two architects of the *Constitution*". His Lordship thereby sought to support his thesis that fundamental rights were immune from the amending process under *Article 378*, without admitting at the same time, that he was using the speeches "with a view to interpret the provisions of *Article 368*".[84] Even WANCHOO J. in his dissenting judgment, conceded that though the debates in the Constituent Assembly could not be looked into "to determine the interpretation of *Article 368*", nevertheless "what was accepted or what was rejected by the Constituent Assembly could not be looked into "to determine the interpretation of *Article 368*", nevertheless "what was accepted or what was rejected by the Constituent Assembly while the *Constitution* was being framed, may be taken into account in finding out the scope and extent of *Article 368*.[85] The Constituent Assembly debates and discussions were held relevant and were considered in *Bhim Singh v UOI*.[86] In that

case, the court also took note of history of a provision, insertion of a provision from the very beginning of the *Constitution* or by way of amendment to arrive at a decision.

The proper view[87] would be that the debates and proceedings in the Constituent Assembly should be admissible, along with other preparatory materials, to find out the object with which a particular provision was adopted; but if the language used in the *Constitution* failed to carry out that object, the Courts cannot assume the power to redraft that provision.
Committee Reports and Reports of Expert Bodies.

Committee Reports.—Even when the different aspects of a legislative proposal are examined by a Committee of the Legislature or other expert body, the school of literal interpretation would not admit their Report for the purpose of interpreting the statute on the ground that "it does not follow that their recommendations were accepted". [88]

If, however, such report precedes the introduction of the Bill in the Legislature, it would be admissible,[89] to show the purpose or object behind the Act, under the "Mischief Rule[90] but not for the purpose of interpreting the text of the statute.[91]

In one case,[92] the *American* Supreme Court made copious references to the Reports of the Committees of both Houses of Congress in order to determine the constitutionality of the Voting Rights Act of 1965 *vis-a-vis* the Fifteenth Amendment to the *Constitution* and drew the following conclusions from the "voluminous history':

> First : Congress felt itself confronted by an insidious and pervasive evil which had been perpetuated in certain parts of our country through unremitting and ingenious defiance of the *Constitution*.
>
> Second : Congress concluded that the unsuccessful remedies which it had prescribed in the past would have to be replaced by sterner and more elaborate measures in order to satisfy the clear commands of the Fifteenth Amendment.

U.K.

As stated earlier, the strict doctrine of textual interpretation has been under criticism of jurists even in *England*, for some time, and, as a result, the Law Commission[93] has recommended that in interpreting a statute a Court should take into consideration the following materials preparatory to the enactment of the statute:

(a) Any relevant report of a Royal Commission, Committee or other body which has been presented to or laid before Parliament or either House before the time when the Act was passed;

(b) Any relevant treaty or other international agreement which is referred to in the Act or of which copies had been presented to Parliament by command of the Crown before that time, whether or not the United Kingdom was bound by it at that time;

(c) Any other document bearing upon the subject-matter of the legislation which had been presented to Parliament by command of the Crown before that time;

(d) Any document (whether falling within the foregoing paragraphs or not) which is declared by the Act to be a relevant document for the purpose of interpretation.

If these proposals are adopted, there will be a partial abandonment of the rule of textual interpretation in England.

India.

In *India,* it has been held that in interpreting a statute, the Report of the Law Commission may be referred to in order to ascertain the legislative intent behind a provision, in case of *ambiguity.*[94]

The Supreme Court has taken into consideration the Bhuria Committee Report for interpreting *Article 243-M(4)(b) of the Constitution of India* and the legislation enacted pursuant thereto.[95] In another case, the court held that Justice Sarkaria's Report and the Report of Commission to review the *Constitution* which is pending consideration by the Government cannot be looked into when there is an express provision in the *Constitution* regarding the same. The question was whether reasons should be given when a governor is removed from office before the term of office.[96] Report of a committee which preceded the enactment of a legislation, Report

of Joint Parliamentary Committee and Report of a commission set up for collecting information leading to the legislation are permissible external aids to the construction of the Act.[97]

Reports of Drafting Committee and sub-committee of the Constituent Assembly, the draft *constitution* and the changes made thereafter in giving the *Constitution* the final shape were referred to in interpreting para 5(2) of Fifth Schedule to the *Constitution*.[98]

As regards the *Constitution,* similarly, in *Gopalan's* case,[99] KANIA C.J. opined that the Report of the Drafting Committee on the *Constitution* might be looked into even for construing an Article thereof, in case of "ambiguity".[99]

In the same case, FAZL ALI J. held:

> Whether the report of the Drafting Committee which can be used in aid of a construction which is a strain upon the language used in the clause to be interpreted is doubtful.

MUKHERJEA J. relied on the Drafting Committee Report since it was relied on by both the parties and a higher value was adapted to such reports than the debates on the floor of the House.
A more liberal use of external materials called for in constitutional interpretation.

The rule of literal construction has, of course, the virtue of certainty, which must necessarily be a prime objective of the administration of justice in the courts of law. But notwithstanding the of English judges that to depart from this "cardinal rule" is to "launch into a sea of difficulties which it is not easy to fathom".[1] A *Constitution* has to be distinguished from an ordinary statute such as the *Limitation Act*,[2] or a statute governing the relation between landlord and tenant.

As an organic instrument it cannot by its nature, be as precise and specific as ordinary statutes of the nature just mentioned. The objectives behind the adoption of a written *Constitution* are, in general, more comprehensive and far- reaching than in the case of ordinary statutes and, unless, the Courts interpret the provisions in a *Constitution* in the light of the circumstances in which the *Constitution* was made, it might involve an abuse even of the literal rule, as BLACKBURN L.J. pointed out in the *River Weir Commissioners'* case.[3]

In fact, as I pointed out at the outset, there are various provisions in our *Constitution* which cannot be properly appreciated without adverting to their origin and development. Most of the contents of Pt III of our *Constitution*, for instance, are drawn from the American Bill of Rights. It is regarding those provisions that HOLMES C.J. observed that a literal interpretation cannot lead to a discovery of their meaning and ambit:

> …the provisions of this *Constitution* are not mathematical formulas having their essence in their form; they are organic living institutions transplanted from English soil. Their significance is vital, not formal; it is to be gathered not simply by taking the words and a dictionary, but by considering their origin and the line of their growth. [4]

A *constitution* unlike other Acts is intended to provide an enduring instrument to serve through a long lapse of ages without frequent revision. It is not only designed to meet the needs of the day when it is enacted, but also the needs of altering condition of the future. It contains a framework of Government, a mechanism for making laws and resolution of constitutional disputes; and in a federation distribution of legislative fields between the centre and the state units. It very often refers to the ideals which it seeks to achieve and secure certain fundamental rights to the citizen. The fields of legislation, the ideals and the rights are expressed in general terms which are compressed sentences if not chapters. "In the interpretation of constitutional document, words are but a framework of concepts and concepts may change more than words themselves. The significance of the change of concepts themselves is vital and the constitutional issues are not solved by a mere appeal to the meaning of the words without acceptance of the line of their growth. It is aptly said that the intention of a *Constitution* is rather to outline principles than to engrave the details.[5] The judicial function of the court in interpreting the *Constitution* represents "autonomy". It calls both for building upon a continuity of principles found in the instrument and for meeting the dominant needs and aspirations of the present. "The *Constitution* is rather to be likened to a floating dock, which is firmly attached to the moorings and not therefore at the caprice of the waves, yet rises and falls with the tide of the time and circumstances".[6] In *Ajit Singh's case,* the court said that in resolving the important constitutional issues, the court must keep in mind that "it is the *Constitution* that the court is expounding".

In the same case, the court observed:

> Our *Constitution* is not a straitjacket. It is a living organism. As such it is capable of growth of expansion and of adaptation to new conditions. Growth implies changes, political, economic and social. Growth which is significant manifests itself rather in intellectual and moral conceptions of material things…[7].

A balanced and liberal construction is prescribed for constitutional statute, so that the State machinery can function freely.[8]

Even in a detailed *Constitution* such as that of India, many of the expressions have a philosophical background and content. For a better understanding of the scope of such provisions, it should be permissible for the Court to look into the Reports of the different committees of the Constituent Assembly as well as into the Draft *Constitution*.[9] As I have pointed out earlier, even in England, the judiciary is in favour of admitting such historical documents for interpreting a statutory provision. The conservative theory, as expressed by KANIA C.J. in *Gopalan's* case, [10]is that this can be done only in cases where the Court finds the language used in the *Constitution* to be "ambiguous". But "ambiguity" has a narrow scope. What is suggested by me is that there may be numerous cases where the Court might be profitably aided in *amplifying* the meaning of an expression to determine whether it may have any legitimate application to the particular case before it. There is no reason why such aid should be barred to the Court in a matter of constitutional interpretation[11] where a merely literal and technical interpretation would minimise the value of the organic instrument.

Apart from that, the exclusionary attitude of the Privy Council in the matter of statutory interpretation cannot logically be maintained in regard to constitutional interpretation where the Court is called upon to investigate into deeper questions, such as the reasonableness of a classification made or of a restriction imposed by the Legislature. In the determination of such questions, the Court must necessarily take into consideration all facts and circumstances existing at the time of the legislation and the object behind the relevant provisions of the *Constitution*.[12] The above decision was partly overruled in *State of Gujarat v Mirzapur Moti Kureshi KassabJamat*.[13] In the subsequent decision, the lower court took into consideration the development that has taken place after 1958 decision and said constitutional jurisprudence has changed from what it was in 1958. Our socio-economic scenario has progressed from being gloomy to a shining one, full of hopes and expectation and determination for the present and the future. Relationship between Pt III and IV of the *Constitution* was also taken into consideration and how far they are interconnected and how the earlier decisions were not correct to give a literal meaning to Pt IV. Of course, this does not mean that because a similar legislation existed before the *Constitution*, a classification made by the impugned law must be held to be reasonable.[14]

In *M. Nagaraj v UOI*,[15] the court said:

> The *Constitution* is not an ephemeral legal document embodying a set of legal rules for the passing hour. It sets out principles for an expanding future and is intended to endure for ages to come and consequently to be adapted to the various crises of human affairs. Therefore, a purposive rather than a strict legal approach of interpretation should be adopted. A constitutional provision must be construed not in a narrow and constricted sense, but in a wide and liberal manner so as to anticipate and take into account of changing conditions and purposes, so that a constitutional provision is not fossilised but remains flexible enough to meet the newly emerging problems and challenges.

Historical materials to be used along with the text of the Constitution.

In fine, a more liberal use of the history of the *Constitution* is warranted in India than at present. The adherence to the pre-*Constitution* tradition of literal construction of statutes in some of our Supreme Court cases to exclude materials other than the text of the *Constitution* cannot, accordingly, be supported.

The proper method to be applied by our Courts should be a combination of the literal and liberal methods, as Pomeroy spoke of in 1887.[16]

> The true method of interpretation is a resultant of these somewhat divergent forces—a combination of the precise, strict, verbal, narrow mode of the lawyer, and the broader, freer habit of the statesman. The one looks mainly at the letter, disregarding consequences, motives, reasons—*ita lex scripta est;* the other passes by the letter, and concerns himself with great principles, with considerations of a high expediency, with far-reaching national results…The one would cramp and dwarf the energies of a growing nation; the other would remove all the barriers which have been set up lest those energies should finally become self-destructive. *Combine the two*, and the essential ideas of a positive law, of a political society as the subject of that law, are preserved; the safety and stability of the government are ensured; the national development may go on uninterrupted by arbitrary restraints, and unbroken by shocks.[16]

In the words of a modern jurist:

> Nobody…has advocated that an *unlimited* and undefined mass of *travauxpreparataries* be cast upon courts; but there are certain *alternative sources* of information which, it seems pedantic to withhold from judicial review. [17]

The great generalities of the *Constitution* have content and a significance that vary from age to age and so the court is not bound to accept the meaning of a provision in a *Constitution* according to the original understanding of its makers.[18]

> Much criticism has been directed against the rule which excludes extrinsic and explanatory matters from interpretation of statutes, and which, in particular, forbids the examination of the "Parliamentary History" of a law as a means of arriving at the intention of the legislature. The principle seems to be to divest the Act of all its clothing and leave only its naked, bony frame for clinical examination. Thus the official explanatory memorandum which usually accompanies the introduction of a bill is not to be looked at – still less Departmental notes for guidance in administering the act, side-notes indicating the purport of clauses are taboo being considered to be the products of draftsman, not of Parliament and even the very title of the Act is of dubious relevance. All these exclusionary inhibitions are certainly a heavy fetter on judicial analysis. It is urged, with much reason, that real purport of statute cannot be understood if these important surrounding circumstances are shut out and it is often impossible to discover "mischief and remedy" from the mere phraseology of the statute. Anybody who has ever been concerned in drafting knows that a whole history of discussion, deliberation or policy may lie behind a few words inserted or omitted in a formal instrument.[19]

There is, in sum, no justification to exclude the historical materials altogether; what weight should be given to them is a matter that must be left to the Court in the case of various items of evidence at a judicial investigation.[20]
Previous legislation.—

Constitutions do not, in general, arise without some pre-existing legal or constitutional foundation which must necessarily affect the framers in their creation.[21] Hence, a reference to the pre-existing system is permissible when a term is ambiguous but was used in the pre-existing law.
Previous Constitutional instruments.

Thus, in determining whether the word "person" in the *British North America Act* included the female sex, the Judicial Committee referred to previous statutes of Parliament with these observations:

> In coming to a determination of a particular word in a particular Act of Parliament, it is permissible to consider two points—(*i*) The external evidence derived from the extraneous circumstances such as previous legislation and decided case. (*ii*) The internal evidence derived from the Act itself. [22]

Again, in determining the scope of the Dominion Parliament of Canada to legislate in respect of "bankruptcy and insolvency" [section 91(*21*) of the British North America Act], the Privy Council considered it relevant to refer to the usual contents of bankruptcy statutes in England.[23] The Privy Council thus observed:

> When a power is conferred to legislate on a particular topic, it is important in determining the scope of the power, to have regard to what is ordinarily treated as embraced within that topic in legislative practice and particularly in the legislative practice of the State which has conferred that power.[24]

Similarly, in the interpretation of the *Government of India Act,* 1935, a reference to the legislative practice in England and India *at the time* when the Act was passed, was held to be permissible.[24]

Thus, in the *C.P. and Berar Taxation Case,* the Federal Court held that in interpreting the language of the Government of India Act, 1935, the Court was entitled to refer to the previous practice of the Indian Legislature, for:

> Parliament must surely be presumed to have Indian legislative practice in mind, unless the context otherwise clearly requires, not to have conferred a legislative power intended to be interpreted in a sense not understood by those to whom the Act was to apply. [25]

Similarly, in *Ralla Ram v Province of East Punjab,*[26]it was held that a "tax on lands and buildings" in List II of the Act should be interpreted to embrace a tax upon the *owner* of such lands and buildings, because in municipal

areas in India such a tax on owners had been well-recognised for may years before the passing of the Government of India Act 1935.

Scope for reference to Government of India Acts in interpreting the Constitution.

As regards the use of the Government of India Acts in the interpretation of a provision of the *Constitution*, however, great caution has to be exercised, as has been explained in my *Tagore LawLectures*[27] because of the difference in the set up in which the *Constitution* for independent India was framed and the new concepts of limited Government, Bill of Rights and Judicial Review which the *Constitution* embodies.

There is no denying the fact that the foundation of the Indian *Constitution* was built on the fabric of the Government of India Act 1935, and that of all sources from which the makers of our *Constitution* borrowed their materials, they were indebted most to the Government of India Act 1935, and that "a large number of provisions were incorporated *verbatim"* from that Act.[28] This is particularly true of the federal provisions.[29] In interpreting the entries in the Legislative Lists of the *Constitution*, a reference to the corresponding entries in the Government of India Act 1935 is, therefore, quite legitimate.

But if the Government of India Act supplied the skeleton, the soul of the *Constitution of India* was borrowed from the American *Constitution* and to understand that soul, comprised of the Bill of Rights and Judicial Review, would require a reorientation of judicial outlook, without which our Courts would be voicing a skeleton, not a living organism, which, undoubtedly, every *Constitution* cannot but be.

There was little scope for judicial review under the Government of India Acts prior to that of 1935, and whenever any question on the interpretation of any of those Acts came up before the Courts, naturally, the Courts interpreted it in the same manner as they would have interpreted any other statute, according to the English common law rules relating to statutory interpretation,[30] which were a part of the existing Indian law.

Though the Government of India Act 1935, introduced judicial review by adopting a federal division of powers, its scope did not extend beyond the federal provisions,[31] inasmuch as there was no Bill of Rights and some of the non-federal provisions were held to be nonjusticiable.[32] The English Interpretation Act was also expressly made applicable for its interpretation, by an Order in Council of February 18, 1937. The result was that though the Federal Court set up under the Act occasionally observed narrow scope for judicial review under the Government of India Act 1935 that the Government of India Act, 1935, was to be interpreted with the due regard to the fact that it was a "mechanism under which laws are to be made and not a mere Act which declares what the law is to be",[32] the net effect of this concept was not felt beyond a liberal interpretation of the entries in the Legislative Lists appended to that Act,[33] and there were, at the same time, pronouncements to the effect that the Court was to interpret the Act only according to the language used in it.[33]

Earlier decisions under the Constitution.

When the *Constitution* came to be inaugurated in 1950, it was natural that the foregoing attitude towards a *Constitution* Act should persist at least for some time not only because the existing members of the Judiciary had their training under the Government of India Act and could not possibly be expected to go through the vast mass of American constitutional literature which had given birth to judicial review and the incorporation of individual rights into constitutional guarantees. This inevitably led to an over-emphasis on the premise that the Government of India Act "still remains the framework on which the present *Constitution* is built" and that, accordingly, the provisions of the *Constitution* "must be read…in the light of the Government of India Act, 1935",[34] as VENKATARAMA AIYAR J. observed in *Sundararamier's* case.[34] The assumption was correct as regards those provisions which were borrowed from the Government of India Act, but not as regards the rest which had been borrowed from the United States and which constituted the life-breath of the *Constitution* of independent India.

Gopalan's case.

The result of the continuance of the "Government of India Act mentality" was, naturally, to produce a *Gopalan* decision[35] at the outset of the judicial application of the *Constitution*. At different places of this Commentary I shall show how the different limbs of this decision have been attacked and demolished by subsequent judicial and juristic opinion. In the present context, it is proposed to point out the effects of the exclusively textual and literal interpretation of the *Constitution*, as given in this case, which was summarised by me in the following words, as early as in 1972, in vol I of my Cases on the *Constitution*.[35]

> The utility of the guarantee in *Article 21* has been undoubtedly curtailed by the interpretation given by the Supreme Court in *Gopalan's* case. According to that interpretation. *Article 21* is no guarantee against *legislative* aggression upon

> individual liberty. Provided the Legislature is competent to pass the law and no other constitutional provision stands in the way, it can enact any law authorising the deprivation of personal liberty; the Courts shall have no power to review the reasonableness or otherwise of such law. The only object that *Article 21* shall serve is to put a restraint upon the *Executive* so that it may not proceed against the life or personal liberty of an individual save under the authority of some law and in conformity with the procedure laid down therein. "Personal liberty" has also been given the narrower interpretation to mean freedom from physical restraint or coercion. The result is that *Article 21* has been reduced to present the same situation as obtains under the unwritten *Constitution* of England, *viz.,* to embody the negative right not to be subjected to imprisonment, arrest or other physical restraint or coercion that does not admit of legal justification. One may legitimately ask what was the necessity of embodying a guarantee merely against executive action in a codified Bill of Rights when the Executive cannot, patently, take any action which is not authorised by law.[36]

But gradually it came to be realised that if there was any justification for making a new *Constitution* for independent India, that was not for the reproduction of the Government of India Act in bolder types but for the imposition, upon the imperialistic foundation of that Act, the superstructure of a Bill of Rights with Judicial Review, borrowed from the United States. If India can brag of anything in her new *Constitution*, it is these two flowers which alone disseminate the flavour of independence and democracy, and a Judiciary which overlooks them would not be "upholding" the *Constitution*, according to the judicial oath, but "undermining" it.

Ultimately, the decision in *A K Gopalan's case* was completely diluted in *ManekaGandhi v UOI*,[37] which held that *Articles 14*, *19* and *21* are not mutually exclusive, but they sustain, strengthen and nourish each other.
Previous decisions

Not only preceding statutes in *pari materia* but also judicial decisions thereon are useful in interpreting the words of a later statute which incorporates the very same words which have received a particular meaning in the Courts. Thus, as regards the Australian *Constitution* it has been said:
Admissibility of previous decisions.

> When a particular form of legislative enactment, which has received authoritative interpretation, whether by judicial decision or by a long course of practice, is adopted in the framing of a later statute, it is a sound rule of construction to hold that the words so adopted were intended by the Legislature to bear the meaning which has been put upon them. [38]

> When, therefore, we find embodied in the *Constitution* provisions undistinguishable in substance though varied in form from the provisions of the *Constitution* of the United States which had long since been judicially interpreted … it is not an reasonable inference that its framers intended that like provisions should receive like interpretation. [39]

Great care must however be taken to consider each decision in the light of the circumstances of the case in view of which it was pronounced.[40]

> …resort must be had to the pre-existing law in all instances where the Code contains provisions of doubtful import or uses language which had previously acquired a technical meaning; appeal to earlier law and decisions for the purpose of interpreting a statutory Code can only be justified upon some *special ground.*[41]

The present rule will be of particular application in the interpretation of the *Constitution of India,* inasmuch as much of it has been adopted from the Government of India Act, 1935, and in many clauses the provisions of that Act have been reproduced *in toto*. So, unless there is anything in the context to indicate that the framers of the *Constitution* sought to depart from or improve upon the result arrived at by judicial decision under the Act of 1935, the same interpretation should be given to the words of the *Constitution*.

An example will make this clear:

In distributing the legislative powers between the Federation and the Provinces, the Act of 1935 used the expression "*with respect to*" and the same words have been used also in the *Constitution* and for the same purpose. Hence, the interpretation which this expression received under that Act, *viz.,* that it refers to any matter which is "directly and substantially" related to or connected with the several entries[42] and the doctrine of "pith and substance" applied to it,[43] will be applicable also in interpreting the distribution of legislative powers between the Union and the States under the *Constitution*.

But a word of caution has to be uttered as to the applicability of the Privy Council decisions in the matter of interpreting the *Constitution*. The decisions of the Privy Council which was so long the supreme appellate

tribunal, continued to have authority under *Article 372(1) of the Constitution* as the "law in force".[44] But it could hardly be overlooked that *Article 372*(1) itself made the laws in force "subject to the other provisions of this *Constitution*", which obviously meant that if any such decision was inconsistent with any provision of the *Constitution*, it must give way to the *Constitution* which was the new Sovereign installed by the people of India on the 26th of November, 1949. Before applying any decision of the Privy Council, every Court should, after the commencement of the *Constitution*, therefore, carefully consider whether that decision is inconsistent with the *Constitution*.

Nakkuda Ali and the function of licensing.

For instance, the decision in *Nakkuda Ali v Jayaratne*[45] to the effect that licensing is an administrative function, so that no hearing would be required for cancelling a licence, is inconsistent with *Article 19*(1)(g) of our *Constitution*,[46] a fact which was ignored by the majority of our Supreme Court in *Kishan Chand's* case.[47] In fact the decision in *Nakkuda Ali's case* has been disapproved by the House of Lords in *Ridge v Baldwin*.[48] Now it has been established that it is not necessary for an Act to contain a super-added obligation to act judicially; the grant or refusal of licence on which the right of the person to acquire, hold and dispose of property or to carry on any trade, business or profession depends must be considered to impose an obligation to act quasi-judicially even if there is no express provision in the Act for such a hearing. Fortunately, in later cases, the Supreme Court has come to hold that licensing of business is a quasi-judicial function[49] and that a law which enables an administrative authority to cancel or revoke such licence without a hearing would constitute an unreasonable restriction upon the right guaranteed by *Article 19(1)(g) of the Constitution of India*.[50]

More objectionable was the attitude of the majority in *Kishan Chand's* case[50a] which was that since the impugned statute, namely, the *Police Act* 1866, was a pre-*Constitution* enactment made at a time when there was no provision requiring "reasonableness", such as *Article 19*(5), no requirement of a hearing could be demanded of it, and that, if necessary, it should be saved by implying such requirements. With all respect, any such attitude is inconsistent with *Article 372*(1), read with *Article 13*(1).[51] If the Courts were to condone all the faults in a pre-*Constitution* Act when it is sought to be applied after the *Constitution*, no pre-*Constitution* Act would be liable to be struck down, even though patently inconsistent with a fundamental right, and *Article 13*(1) would be rendered otiose.

One of the Privy Council decisions frequently referred to by *our* Supreme Court particularly in the earlier cases[52] is that in *R. v Burah.*[53] It establishes a proposition of permanent value, namely, that, in the absence of any constitutional limitation, every Legislature has plenary powers and that when there are limitations imposed by a *Constitution* which set up the Legislature, any act of the Legislature which violates such limitations would be *ultra vires.* But too much reliance on this decision53 might have a cramping influence upon the power of judicial review which has been introduced by our *Constitution*.

R. v Burah,[54] recognises only "express" limitations or restrictions imposed by a *Constitution*. It was said by SELBORNE LJ:

> …and if it violates no express condition or restriction by which that power is limited…it is not for any Court of Justice to inquire further, *or to enlarge constructively* those conditions and restrictions.54

It is true that the Court is not to launch into an expedition to find out limitations which are not mentioned in the *Constitution*, in order to defeat a legislative enactment, but in the interpretation of an express limitation, the Court has to take a liberal view, unless the very object of a limitation being engrafted in a written *Constitution* is to be defeated because of changes in circumstances which call for newer remedies to meet the mischief which led to a limitation, such as a fundamental right. In the *U.S.A.*, it has been said that the ambit of a right enumerated in the Bill of Rights should not be "frozen". The right of "privacy" in its various aspects, which has been deduced from the word "liberty" in the Fourteenth Amendment, bears testimony to such liberal interpretation or expansion of an express limitation.[55]

In *India,* too, the Supreme Court, which started with a strictly literal perspective in interpreting the Constitutional limitations,[56] holding that the expression "personal liberty" in *Article 21* is limited to *bodily* restraint by way of imprisonment, arrest or other physical coercion without the authority of law, has had to acknowledge, later that the expression "personal liberty" in *Article 21* is to be given the same meaning[57] as the word "liberty" in the Fifth and Fourteenth Amendments has been given by the American Supreme Court. It has thus been expanded to comprise the sanctity of a man's home from domiciliary visits at night, even though that may not constitute any physical detention;[58] the right of a citizen to move out of India.[59] It is held that personal liberty is used in *Article 21* of the Indian *Constitution* as a compendious term to include within itself all varieties of right which goes to

make up the “personal liberty” of man other than those dealt with in several clauses. While *Article 19*(1) deals with a particular species of or attributes of that freedom, “personal liberty” in *Article 21* takes on and comprises the residue.[60] It is now held that the object of *Article 21* is to prevent encroachment upon personal liberty in any manner. *Article 21* is repository of all human rights essential for a person or a citizen. A fruitful and meaningful life presupposes life full of dignity, honour, health and welfare.[61]

For further discussion – see *Article 21 of the Constitution of India*.
Utility of Dictionaries.

Dictionaries.—Since the cardinal rule of construction of statutes is that, unless it leads to absurdity, the words used in it are to be interpreted in their literal sense[62] it follows that, in the *absence* of a statutory definition[63] or of any judicial guidance, dictionaries may be consulted, to find out the ordinary sense of a word.[64] But if there is any previous judicial interpretation of the term, which is of high authority, that would be a safer guide than a Dictionary definition, for the purpose of interpretation.[65] Further, when the *context* in which a word is used gives a particular meaning to the word, the etymological or popular meaning of the word cannot be taken with reference to the Dictionary.[66]

Where the Dictionary gives different shades of meaning to a word, the context is of importance in determining the precise sense in which the word is used in the statute.[67]

In regard to the meaning or explanations given in dictionaries, it was held that it is proper to look into the *Constitution* itself rather than on the Dictionaries. The words like “amendments” in *Article 368* or “law” in *Article 31*(2) are not words occurring in school text book so that one can find meanings in dictionary. Words which are occurring in the *Constitution* should not be looked at in a school master way or fashion. But the realization that they occur in “a single complex instrument, in which one part may throw light on another” so that “the construction must hold a balance between all its parts”.[68]

In *State Bank of India v N Sundara Money,*[69] it was held: ”

> Dictionaries are not dictators of statutory construction where the benignant mood of a law, and more emphatically, the definition clause furnish a different denotation. Similarly in *CIT, Orissa v N.C. Budhraja and Co,*[70]it was held that “A statute cannot always be construed with the dictionary in one hand and the statute in the other. Regard must also be had to the scheme, context and to the legislative history”

Eminent jurist and author H M SEERVAI says:

> The present writer (H. M. S EERVAI) does not share the current fashion which looks upon reference to a dictionary as playing the lexicographer’s role which is somehow below the dignity of constitutional interpretation.[71]

Opinion in text-books.

Text-Books and Books of authority.—If the statute contains no interpretation clause of its own as regards a term, the opinion of well-known text-books may be taken as an aid of construction,[72] but the value of the opinion will depend upon the weight of the authority of the writer. [73]In particular, a book whose author is living cannot be cited as an authority for the law propounded therein, though the Court may obtain assistance from it.[74]

> The definitions given by eminent text book writers, like Mill, have a value even in the elucidation of legal questions, because such definitions embody the common understanding of those who knew the subject and were therefore to that extent, likely to have been present to the minds of those who passed the *Constitution* Act.[75]

General Clauses Act as an aid to interpretation of the Constitution.

The General Clauses Act.—*Article 367(1) of the Constitution* expressly provides that “unless the context otherwise requires”, the *General Clauses Act 1897*, as adapted under *Article 372* shall apply for the interpretation of this *Constitution*.[76]

Because of this provision in the *Constitution*, whenever any word defined in the *General Clauses Act* occurs in the *Constitution*, the Court’s liberty to have free play with its power of judicial review is circumscribed by the statutory definition, unless of course, the Court sees its way to say that “the context” requires it to give another

meaning.[77] Apart from definitions, there are some rules of construction, laid down in the *General Clauses Act*, which also are applicable to the interpretation of the *Constitution*.[78]

The Court has, thus, interpreted:
Definitions in General Clauses Act applied to interpret the Indian Constitution.

(i) the word “person” in the *Articles 14* and *226* of the *Constitution* in the same[79] (ii) the words “offence” andsenseasinsection3(42);79 (ii) the words “offence” and “person” in *Article 20* to have the same meanings as in sections 3(37)[80] and 3(42), respectively,[81] (iii) the word “dismiss” in *Article 229*(1) to include the power to “appoint”, according to section 16;[82] (iv) the word “State”, in *Article 3*, in the light of section 3(58);[83] (v) the power of adaptation in *Article 370* has been liberalised by applying section 21, of the *General Clauses Act*.[83]

Learned G P SINGH J. quoting various authors and judges says: ”

> In the words of CARDOZO, “the Judge is not to innovate at pleasure. He is not a Knight-errant roaming at will in pursuit of his own ideal of beauty or of goodness”. As stated by JUSTICE RAMASWAMY, “to invoke judicial activism to set at naught legislative judgment is subversive of the constitutional harmony and comity of instrumentalities”. The court cannot interpret a statute the way they have developed the common law “which in a constitutional sense means judicially developed equity”. In abrogating or modifying a rule of the common law the courts exercise “the same power of creation that built up the common law through its exercise by Judges of the past. The court can exercise no such power in respect of statutes. Therefore, in their task of interpreting and applying a statute, judges have to be conscious that in the end of the statute is the master and not the servant of the judgment, and that no judge has a choice between implementing the law and disobeying it[84].

Judges have more freedom in interpreting the *Constitution*, but the freedom also has to be contained within permissible limits, for, the *Constitution* does not give unlimited powers to anyone including judges of all levels and it is necessary for protecting judicial independence that judges remain “circumspect and self-disciplined in the discharge of their judicial function”. As observed by the Chief Justice of Australia, “Judges have no right to subvert the law in the name of creativity because they disagree with a particular rule”.
Treaties and international covenants

U.S.A.

A special feature of *American* Constitutional law is that it places *treaties* entered into by the U.S.A. at par with the *Constitution* itself. *Article 6*, Clause (2) of the *Constitution* says:

> …all treaties made, or which shall be made, under the authority of the United States, shall be the *supreme law of the land;* and the judges in every State shall be bound thereby, *anything in the Constitution or laws of any State to the contrary notwithstanding.*

This provision places a treaty in a distinctive position under the American *Constitution* in several important respects:

(a) It makes a treaty a self-executory law of the land like any law made by the Legislature, so that where rights or obligations are created by the treaty itself, an individual may rely on it before the municipal courts to enforce his rights.[85]

(b) It being a duty of the Congress to implement a treaty as the supreme law of the land, a law of Congress is to be interpreted in consonance with a relevant treaty until, of course, the treaty is duly repealed by an Act of Congress.[86]

U.K.

Even in the *U.K.*, where a treaty or international convention is not a part of the municipal law, it has been held that when they are implemented by legislation, the treaty or convention is available *as an aid* to the construction of the statute or to discover the intention of the Legislature.[87]

India

One of the Directive Principles in the *Constitution of India* is *Article 51*(c) which says:

> 51. The State shall endeavour to—
>
> (c) foster respect for international law and treaty obligations in the dealings of organised peoples with one another…

This means that though a treaty does not *ipso facto* become part of the municipal law in the absence of the implementing legislation, and though municipal Courts are bound to apply the municipal law where there is an unavoidable conflict with International law, but out of respect for international law and comity of nations, the municipal Courts would so interpret rules of the municipal law that they would, if possible, not be inconsistent with those of the International law.[88] If the terms of a legislation are not clear, however, and are reasonably capable of more than one meaning, the treaty itself becomes relevant, for, there is a *prima facie* presumption that the Parliament does not intend to act in breach of the International Law, including therein specific treaty obligation, and if one of the meanings which can reasonably be ascribed to the legislation is consistent with treaty obligation and another or others are not, the meaning which is consistent is to be preferred.[89] It has been held that courts are under an obligation to give due regard to international conventions and norms for construing domestic laws more so when there is no inconsistency between them and there is a void in the domestic law.[90]

In *Kesavananda Bharati v State of Kerala*,[91] it is observed that ”

> only in cases of doubt or ambiguity the courts would interpret a statute so as not to make it inconsistent with the comity of nations or established rules of International law, but if the language of the statue is clear, it must be followed notwithstanding the conflict between municipal law and International law.

In the same case, taking into consideration *Article 51 of the Constitution*, it was observed the Court must interpret the language of the *Constitution* in the light of the United Nations Charter and the solemn declaration subscribed to by India [PER SIKRI CJ].

It was held the *Constitution* must necessarily be understood in the context of the present day scenario and having regard to international treaties and conventions – Courts are not hesitant in referring to international law in finding new rights in the context of the *Constitution*.[92] For interpreting the provisions of Persons with Disabilities (Equal Opportunities Protection of Rights and Full Participation) Act 1995, the Proclamation on the Full Participation and Equality of People with Disabilities in the region to which India is a signatory and adopted in 1992, at a meeting held in Beijing by the Economic and Social Commission of Asian & Pacific Region was made use of by the Supreme Court and directed the Indian Airlines to grant to persons suffering from locomotor disability to the extent of 80% the same concession which the Airlines was giving to those suffering from blindness.[93]

Arbitration and Conciliation Act 1996 was passed by the Parliament taking into consideration United Nations Commission on International Trade Law (UNCITRAL). Indian law has consolidated and amended the law relating to domestic arbitration, international commercial arbitration, enforcement of foreign awards and has defined the law relating to conciliation and has provided for matters connected therewith and incidental thereto taking into account the UNCITRAL Model law.[94] Freedom of speech and expression guaranteed under *Article 19(1)(a) of the Constitution* was interpreted as having its effect beyond the territory of India in view of the provisions in *Article 13* of the Universal Declaration of Human Rights.[95]Section 51 read with O XXI rule 37 of the *Civil Procedure Code* was interpreted taking into consideration *Article 11* of International Covenant on Civil and Political Rights.[96]*Article 9*(5) of the same Covenant was made use of to award damages or compensation in the case of unlawful arrest or detention while exercising powers under *Article 32* and *226* of the *Constitution* for violation of *Article 21*.[97] Any international convention not inconsistent with the Fundamental Rights and in harmony with its spirit must be read into the provisions of *Articles 14*, *15*, *19* and *21* of the *Constitution* to enlarge the meaning and content thereof to promote the object of constitutional guarantee.[98]

In *Chairman, Railway Board v Chandrima Das*,[99] the Supreme Court said:

> The applicability of the Universal Declaration of Human Rights and principles thereof may have to be read, if need be, into the domestic jurisprudence.

The Universal Declaration of Human Rights is used by the Supreme Court in various cases to interpret fundamental rights especially *Article 21* of the

Constitution.[1] Declaration on "Right to Development" was applied in *MadhuKishwar v State of Bihar*.[2]

While discussing Constitutional requirements, court and counsel must never forget the core principle embodied in the international conventions and instruments and as far as possible, give effect to the principles contained in those international instruments. The courts are under an obligation to give due regard to international conventions and norms for construing domestic laws, more so, when there is no inconsistency between them and there is a void in the domestic law.[3]

CAMPBELL L.J. said in *Turner's* case,[4]

> No universal rule can be laid down as to whether mandatory enactments shall be considered directory only or obligatory with an implied nullification for disobedience. It is the duty of Courts of justice to try to get at the real intention of the Legislature by carefully attending to the whole scope of the statute to be considered.

The Supreme Court further stated:

> The question as to whether a statute is mandatory or directly depends upon the intent of the legislature and not upon the language in which the intent is clothed. The meaning and intention of the legislature must govern, and these are to be ascertained not only from the phraseology of the provision, but also by considering its nature, its design and the consequences which would follow from construing it the one way or the other. [5]

Doctrine of Judicial Review

Since courts in democratic counties constitute a dispute-resolving mechanism, they enjoy a place of prominent significance. The responsibilities which a court carries in a country with a written *Constitution* are quite onerous than the court in a country which has no written *Constitution*.[6] Courts give meaning to the cold letters of a *Constitution* and they are not only the interpreter but are also the protector and guardian of the supremacy of the *Constitution* because they keep legislative, executive, administrative, judicial and quasi-judicial authorities within their legal limits.[7] All governmental actions must conform to the *Constitution* and the valid laws made thereunder.

Judicial review is the power of the court to determine the constitutionality of legislative acts in a case instituted by aggrieved person. It is the power of court to declare a legislative act void on the ground of unconstitutionality.

It has been defined by SMITH AND ZURCHER:

> The examination or review by the courts in cases actually before them of legislative statutes and executive or administrative acts to determine whether or not they are prohibited by a written *constitution* or are in excess of powers granted by it, and if so, declare them void and of no effect[8].

Judicial review is the power and duty of courts to disallow all legislative or executive acts of either Central or State government, which in the court's opinion transgresses the *Constitution*[9].

According to LINDLEY:

> No duty of the court which is more important to observe and no power of the court which is more important to enforce than its power of keeping public bodies within their rights.[10]

That the power to make laws is derived from the *Constitution* and therefore the only ground on which the validity of the legislative enactment can be determined is its repugnance to the *Constitution*. When the question is as to the constitutional validity of an enactment, the court's delicate and difficult office is to ascertain and declare whether legislation is in accordance with or in contravention of the provisions of the *Constitution*.[11] Similarly, when an executive action is claimed or purported to have been taken under a power derived from the *Constitution*, again the only ground to test its validity is its repugnance to or incompatibility with the *Constitution*. The term "lawfulness" we shall also see, has, in the field of judicial review, acquired a technical meaning, that is to say, has become a term of art. Briefly, a person acts unlawfully when he exceeds his powers or lacks powers.[12]

The judiciary can declare laws against the *Constitution* and exercise of power invalid if it infringes any of the provisions of the *Constitution*. It protects rights of the people and removes unjustified encroachment thereon. In a country having federal system the judiciary acts as a balance-wheel of federalism by settling disputes between the Centre and the States or among the States *inter se*.

The power of judicial review or the authority to declare legislative enactments void "is of a delicate and awful nature" and no tribunal can approach such a question without a deep sense of its importance and of the awful responsibility involved in its decision. Earl Warren C.J. on the occasion of his retirement has also stated:

> It is a responsibility that is made more difficult in this count because we have no constituency. We have no majority. We serve no minority. We serve only the public interest as we see it, guided only by the *constitution* and our own consciences. And consciences sometimes is a very severe task-master.[13]

Judicial review means over-seeing by the judiciary of the exercise of power by other co-ordinate organs of the government with a view to ensuring that they remain confined to the limits drawn upon their powers by the *Constitution*.[14]

A democratic society lives by certain values *e.g.*, human rights, individual liberty, human dignity, rule of law, constitutionalism and limited government. Interpreting the *Constitution* is a highly creative and a stupendous task. Courts must understand that everything static must droop and die and society does not stand still, it is dynamic; not static; the social and economic conditions change continually. *Constitution* therefore must be so interpreted that it does not lag behind the needs of the changing society. One must remember that the words of the *Constitution* remain the same but their significance changes with change in society, through judicial interpretation.

The term "judicial review" is not defined in the *Constitution of India* and Pakistan. It has been used in the recent English legislative instruments. In the Civil Procedure (Amendment No. 4) Rules 2000, in the Schedule, Pt 8, as modified by a new Pt 54, rule 54(1) defines "judicial review" as follows:

> (2) In this part – (a) a claim for judicial review means a claim to review of lawfulness of (i) an enactment; or (ii) a decision, action or failure to act in relation to the exercise of a public function.

Judicial Review is the means by which the High Court exercises a supervisory jurisdiction over inferior courts, tribunals or other public bodies. It is specialised remedy in public law[15]. Judicial Review has been termed as judicialisation from without[16].

Judicial review is the doctrine according to which courts are entitled to pass upon the constitutionality of an action taken by a co-ordinate branch of the Government[17].

The American *Constitution* has not defined the term "judicial review" nor is the term used therein. MARSHALL C.J. in *Marbury v Madison*,[18] in the absence of any mention of judicial review, endeavoured to demonstrate that the power of judicial review is simply a logical extension of the court's exercise of judicial power, that is, its power to decide cases. If the duty of the judge is to apply rules to facts in order to decide a case and he encounters a conflict between the rules to be applied, then must he not decide what the law is before he can apply it? Because the *Constitution* vests the judicial power of the United States "in one Supreme Court and in such inferior courts as the Congress may from time to time ordain and establish and because judicial review is a logical consequence of the exercise of judicial power, the federal judiciary must have the power of judicial review"[19].

In India, which has a written *Constitution*, judicial review is implicit and the question of any fetter for such review would not arise and especially in the 21st century there ought not to be thwarting of such a right nor even any hesitancy in that regard.[20] Our *Constitution* contains express provision for judicial review of legislation as to its conformity with the *Constitution* unlike as in America where the Supreme Court has assumed extensive power of reviewing legislative act under cover of the widely interpreted "due process" clause in the Fifth and Fourteenth Amendments. If then, the courts in this country face up to such important and none too easy task, it is not out of any desire to tilt at legislative authority in a crusader's spirit, but in the discharge of a duty plainly laid upon by the *Constitution*. This is especially true as regards "fundamental right" as to which the Supreme Court has been assigned the role of a *sentinel* on the *qui vive*. While the Supreme Court naturally attaches

great weight to the legislative judgment, it cannot desert its own duty to determine finally the constitutionality of a statute.[21]

The origin of the power of judicial review of legislative action has not been attributed to one source alone as in America, where the source of power is based on the decision in *Marbury v Madison* (*supra*). The framers of our *Constitution*, when they set out their monumental task, they were well aware that the principle that the court possesses the power to invalidate duly enacted legislation had already acquired a history of nearly a century and a half.[22]

In the *GVK Industries case*, the Supreme Court held:

> …Indeed the *Constitution* is law, in its ordinary sense too; however, it is also a law made by the people of a nation, through its constituent assembly in a foundational and constructive moment. Written constitutions seek to delineate the spheres of action of, which are more or less strictness and the extent of powers exercisable therein, by various organs of the State. Such institutional arrangements, though political at the time they were made, are also legal once made. They are legal, *inter alia* in the sense that they are susceptible to judicial review with regard to determination of *vires* of any of the action of the organs of the State constituted. The actions of such organs are also justiciable in appropriate cases, where the values of the scheme of *Constitution* may have been transgressed. Hence clarity is necessary with respect to the extent of powers granted and limits on them, so that the organs of the State charged with the working of the mandate of the *Constitution* can proceed with some degree of certitude…
>
> Our *Constitution* charges the various organs of the State with affirmative responsibilities of protecting the interest of the welfare of and the security of the nation. Legislative powers are granted to enable the accomplishment of the goals of the nation. The powers of judicial review are granted in order to ensure that legislative and executive powers are used within the bounds specified in the *Constitution*. Consequently, it is imperative that the powers so granted to various organs of the State are not restricted impermissibly by judicial fiat such that it leads to inabilities of the organs of the State in discharging their constitutional responsibilities.[23]

On the scope of judicial review, the Supreme Court held:

> …judicial review is not akin to adjudication on merit by re-appreciating the evidence as an Appellate Authority. The only consideration the Court/Tribunal has in its judicial review, is to consider whether the conclusion is based on evidence on record and supports the finding or whether the conclusion is based on no evidence. The adequacy or reliability of the evidence is not a matter which can be permitted to be canvassed before the Court in writ proceedings…
>
> …The jurisdiction is circumscribed and confined to correct errors of law or procedural error, if any, resulting in manifest miscarriage of justice or violation of principles of natural justice. This apart, even when some defect is found in the decision-making process, the Court must exercise its discretionary power with great caution keeping in mind the larger public interest and only when it comes to the conclusion that overwhelming public interest requires interference, the Court should intervene. [24]

While exercising powers of judicial review, when a legislation is challenged, the court must be able to hold beyond any iota of doubt that violation of constitutional provisions is so glaring that legislative provisions under challenge cannot stand. Without flagrant violation of constitutional provisions, the law made by the Parliament or the State legislature cannot be declared bad. Statutes enacted by the Parliament or the State legislature cannot be declared unconstitutional lightly.[25] In that case, the court, after taking into consideration the earlier decisions, held that legislative enactment can be struck down only on two grounds, namely, (1) that the appropriate legislative body does not have the competence to make the law, and (2) that it takes away or abridge any of the fundamental rights enumerated in Pt III of the *Constitution* or any other constitutional provision.[26]

The most remarkable achievement in post-*Constitution* India is the exercise of the power of judicial review by the superior Courts. So long as this power is wielded by the Courts effectively and fearlessly, democracy will remain ensured in India and, with all its shortcomings, the *Constitution* will survive. The numerous applications for the constitutional writs before the High Courts and the Supreme Court and their results testify to the establishment in India of “limited Government”, or, “the Government of laws, not of men”, as they call it in the United States of America. The Supreme Court has well performed its task of protecting the rights of the individual against the Executive, against oppressive legislation and even against the Legislature itself, when it becomes over-zealous in asserting its privileges not only against the individual but even against the judges.

At the same time, it should be observed that neither the guarantee of Fundamental Rights nor its adjunct0 Judicial Review could have full play during the first quarter of a century of the working of our *Constitution* owing to their erosion by Proclamations of Emergency over a substantial period.

The period of 15 years, when *Articles 14*, *19*, *21* and *22* remained suspended owing to the operation of *Article 358* and of Orders under *Article 359*, can hardly be overlooked. It is true that the Emergency provisions are as much a part of the *Constitution of India* as any other, and that history has proved the need for such powers to meet extraordinary situations, but, broadly speaking, if the application of the Emergency provisions overshadows the other features of the *Constitution*, the balance between the “normal” and the “emergency” provisions is palpably destroyed. Of course, the Janata Government has hemmed in the Emergency provisions in *Articles 352* and *356*, by giving a larger control to the Parliament over the exercise of such power, under the *Constitution* (Forty fourth Amendment) Act 1978. Nevertheless, even apart from Emergency, there has been an astounding erosion of Fundamental Rights owing to multiple amendments of the *Constitution*.[27]

Judicial Review has two prime functions:

(1) Legitimizing Governmental action; and

(2) to protect the *Constitution* against undue Governmental encroachment. As **See** also *State of AP v Mc.Dowell & Co,*(1996) 3 SCC 709 : AIR 1996 SC 1627.described by Dowling[28] the study of the Constitutional law may be described in general terms as a study of the doctrine of judicial review in action. Just as law is a device for social control, judicial review is a constitutional device or means to limit the government from over-reaching the individual.[29]

The need for judicial review was foreseen by HAMILTON who referred to the tendency of the legislative authority to absorb every other and laid down as follows:

> In Government purely republican, this tendency is almost irresistible. The representatives of the people in popular assembly seem sometimes to fancy that they are the people themselves and betray strong symptoms of impatience and disgust at the least sign of opposition from any other quarter, as if the exercise of its right by either the executive or the judiciary were breach of their privilege and an outrage on their dignity. The power of judicial review enables the judiciary to maintain balance particularly during the period of strong passion and feelings thus avoiding serious damage to fundamental human values[30].

To what extent the judicial interpretation supplements the written text of a *constitution* depends on how creative and activist role is played by the Courts. And this is true of the *Constitution* of USA.[31] Britain has no written *Constitution*. There is, therefore, no direct judicial review, it is indirect. The *Constitution* of Canada or Australia has no express provision for judicial review. There the judicial review has become an integral part of the constitutional process. The idea of judicial review can be traced to the Natural Law Doctrine according to which man-made law was susceptible to correction and invalidation by reference to higher law.[32]

The legislature and the executive are politically partisan bodies. They have certain commitment and some programmes which they wish to implement. They therefore cannot be trusted with the final power of constitutional interpretation. They often bend the *Constitution* to suit their own ends and policies,[33] and consequently the *Constitution* becomes a plaything of the politicians. The judiciary therefore can be expected to expound the *Constitution* dispassionately, apolitically, coolly and with a sense of detachment. Moreover it gives reasons for its decisions. PANDIT JAWAHARLAL NEHRU said:

> Let me say right at the outset that so far as the *Constitution* is concerned, it is the right and privilege of the highest court of the land to interpret it as they will; and it is not for us as individuals or even as a Government to challenge that right. The judiciary must necessarily stand above, shall, I say, political conflicts or political interpretation. They have to interpret the *Constitution* in the light of the law and with such right as they can throw on it. We respect their decisions[34].

GRANVILLE AUSTIN has said: “

> The members of the Constituent Assembly brought to the framing of the judicial provision of the *Constitution* an idealism equaled only by that shown towards Fundamental Rights. Indeed, Judiciary was seen as an extension of the Rights, for, it was for the courts that would give the Rights force. The judiciary was to be an arm of the social revolution, upholding the equality that Indians had longed for during colonial days but had not gained – not simply

> because the regime was colonial and *per force* repressive, but largely because the British had feared that social change would endanger their rule[35].

The learned author further says:

> The courts were also idealised because, as guardians of the *Constitution*, they would be the expression of the new law created by Indians for Indians... Judicial review, Assembly members believed, was an essential power for the courts of a free India and an India with a federal *constitution*. The Assembly's aim, when framing judicial provision, was to establish clearly the foundation of the Judiciary's review power and its duty to uphold the *Constitution*.

The purposes of judicial review in substance are as follows: (1) to give relief to the aggrieved party; (2) to uphold the supremacy of the *Constitution*, so that legislative acts repugnant to the *Constitution* are not enforced by a court of law; (3) to adjust the *Constitution* to new condition and needs of the time; (4) to infuse into legislature inspiration, alertness an caution to avoid legislative mistakes and to conform to the *Constitution*; (5) to set up an effective system of checks and balances – (a) between the Executive and the Legislature; (b) between the Union or Central Government and the States; (c) between State and State; (d) between authority and liberty of citizen; between the rule of the majority and the rights of the individual and also of the minority; (6) to urge the legislators in assessing the political wisdom of each statute; (7) to enforce legislators to follow another line of policy and thus cast a negative influence on policy formation; (8) to uphold individual freedom and liberty; (9) to maintain a balance of equality as desired by the *Constitution*; (10) to lead the country to social and economic uplift; (11) to protect people from arbitrary taxation and unconstitutional acquisition; (12) to help reconstructing the society with a new light and fresh thought in matters of social and economic justice, social morality, social health and social safety; (13) to protect the Government and the legislature from undesirable public comment and opinion in implementing the constitutional legislation for the benefit of the society; (14) to protect religious democracy and secularism; (15) to evolve healthy judicial legislation to function as a guide to the people in nation building[36]. Learned author has said[37]:

> The supremacy of the *Constitution* can be vindicated more properly through the process of judicial review. The popular sentiment and legal theory are distilled into a reality. Thus, the habit and the working of the judicial scrutiny in canalising the validity of a legislative act has considerably widened the province of the Constitutional law. The interpretation of the *Constitution* is solely in the hands of the judiciary.

The legislature cannot interpret its own Act with any real and practical benefit. STORY J. developed the theory that "The legislators did not know the law and were not to be trusted, that judges did know the law and were to be trusted"[38].

It is now settled that power of judicial review is part of basic structure of the *constitution* and this said power cannot be taken away even by a constitutional amendment.[39] The Supreme Court of Pakistan has also followed the same lines of resourcing.[40]

Judicial review helps establishing Constitutionalism. Constitutionalism is a legal limitation on Government; it is the antithesis of arbitrary rule; its opposite is despotic government, the government of Will instead of government of Law.[41]

On the importance of judicial review in the Indian *Constitution*, it is said that the importance attached by the Constitutional draftsmen to judicial review can be gauged by the fact that the right of the Supreme Court for enforcement of any of the fundamental rights guaranteed by the *Constitution* (*Article 32*) has itself been made a fundamental right. The court is expressly empowered to strike down any law which contravenes any enumerated fundamental right (*Article 13*). As part of its power of judicial review, the court is empowered to issue directions, orders, and high prerogative writs in the nature of *habeas corpus, mandamus,* prohibition, *quowarranto* and *certiorari*. As a Court of Record, the court has the power to punish anyone for contempt of itself (*Article 129*).

Norms of Interpretation

Untill recently, the Indian Supreme Court judges eschewed the policy approach as they treated the Indian *Constitution* as a statute and construed it according to the ordinary canon of statutory construction, except in one area, *viz*. The amenability of the *Constitution* and they usually stated that "This Court is not concerned with policy or economic considerations."[42]

In *Cooper's* case[43] the same attitude was displayed and it seems to continue. However in recent times a

"policy" approach in interpreting constitutional interpretation is seen and emphasis is placed on a more creative law-making judicial role as regards constitutional interpretation. In *Maneka Gandhi*[44] it was openly declared that the role of the Courts is to expand not to attenuate the meaning of the Fundamental Rights.[45] This judicial policy has been translated into practical terms through a series of post- Maneka cases, particularly in the order of personal liberty and freedom of speech.[46] Another notable trend the emergence of the idea of "Public Interest Litigation", meant for the protection of basic rights of the poor and the deprived.[47]

It is said that in effecting the contract of constitutionality of laws, the constitutional court does not evaluate the opportunity of laws; and, therefore, there exists no possibility of evaluating the policy which the representative body determines as the supreme organ of the authority. Consequently, the court is not transformed nor it can be transformed into an organ which directs the policy, though the decision of constitutional court can be more or less of political significance[48].

In *Sankalchand H Sheth*[49] sixteen High Court Judges were transferred from one High Court to another. It was widely believed that the Government did so as a punitive measure to punish those judges who dared to give judgments against it. The Government sought to justify these transfers on the plea of national integration and removal of narrow parochial tendencies, but this defence was rejected as "not true." CHANDRAHUD, J. observed "…

> the record of this case does not bear out the claim that anyone of the 16 High Court Judges was transferred in order to further the cause of national integration far from it.

In the words of BHAGWATI, J., in *S.P. Gupta's* case[50] what was held by the Court was that the transfer of the High Court Judges during emergency were made not for the purpose of furthering the cause of national integration, but by way of punishment.

In *Sankalchand Sheth's* case[51] the question was of interpretation of *Article 222*. The court said that the Article should be so interpreted as to permit the transfer of a judge from one High Court to another only with his consent *i.e.*, consensual transfer. The majority applied literal approach and interpreted the Article on its own terms, but the minority[52] applied liberal approach to interpreting *Article 222*.[53] The entire law regarding the transfer of High Court Judges/Chief Justices was examined afresh by the Supreme Court in the Supreme Court Advocates case[54] reconsidering Sankalchand Shethi's case[55] and S P Gupta's case.[56]

The process of Constitutional interpretation is in the ultimate analyses one of the reading values in to its clauses.[57] Lastly the Supreme Court in Ranganath Reddy's case[58] expressed another majority K. IYER J. his liberal approach in socio-economic matters as under:

> Our emphasis is on abandoning formal legalistics or sterile logomachy in assessing the vires of statutes regulating vital economic areas and adopting instead a dynamic, goal-based approach to problems of constitutionality.

Judicial interpretation is a process of slow and gradual metamorphosis of constitutional principles. Change caused thereby has to be deciphered by an analysis of a body of judicial precedents. This process is slow because it develops from case to case over a length of time and it may take a long period for a view to crystallize. As per Dr JAIN[59] it is also somewhat haphazard because the Courts do not take initiative; they interpret the *Constitution* only when the question is raised before them and the course of interpretation depends on the nature of cases and constitutional controversies which are presented to the Courts for adjudication.

The best example where this process is effectively used for adaptation of the *Constitution* is the USA where the Supreme Court has from time to time given a new meaning to the phrases and words in the *Constitution* so as to make the 18th Century *Laissez faire era* document sub serve the needs of a vast, expanding and highly industrialized civilization of the 20th Century, without many formal amendments being effectuated in its text. To a limited extent, in Canada and Australia also, the judiciary has adapted the *Constitution* to the changing circumstances.[60]

This process is in progress in India as well. By holding that it can reconsider its decisions from time to time, it has kept the doors open for adjustments in Constitutional interpretation so as to adapt it to new situations.

The question of curtailing the jurisdiction of the Supreme Court or High Courts as conferred by the *Constitution* does not arise in India. The jurisdiction conferred by the *Constitution*[61] can be taken away only by amending the *Constitution* and not by statutory enactments.[62] Even a provision in the *Constitution* conferring finality to the

decision of an authority is not construed as completely excluding judicial review under *Articles 136*, *226* and *227* of the *Constitution*[63] but limiting it to the jurisdictional errors, *viz.,* infirmities based on violation of Constitutional mandate, *mala fide*s non-compliance with the rules of natural justice and perversity.

18. SPECIAL RULES FOR CONSTITUTIONAL INTERPRETATION

We have already stated that though in general the rules for interpreting a *Constitution* are the same as those for interpreting general statute,[64] there are some special rules applicable only to the interpretation of Constitutions, and that is owing to the *special* character of a constitutional enactment.[65] The very ordinary rules of interpretation applying to general statutes compel us to take into account the nature and scope of a constitutional enactment, *viz.,* "that it is a mechanism under which laws are to be made and not a mere Act which declares what the law is to be.[66]

In the words of the Privy Council,[67]—

> There are statutes and statutes and strict construction deemed proper in the case, for example, of a penal or taxing statute or one passed to regulate the affairs of an English parish, would often be subversive to Parliament's real intention if applied to an Act passed to ensure the peace, order and good Government of a British Colony.[67]

In short, the *Constitution* is an organic law which creates the very Legislature which makes ordinary statutes, with respect to which the canons of statutory interpretation have been formulated by the courts. It follows that the rules of statutory interpretation are to be modified, while applying them to the interpretation of a written *Constitution*.

Constitution being a living organ, its ongoing interpretation is permissible. The supremacy of the *Constitution* is essential to bring social changes in the national polity evolved with the passage of time. The Supreme Court times without number has extended the scope and extent of the fundamental rights, having regard to several factors including the intent and purport of the *Constitution* makers as reflected in Pts IV and IVA of the *Constitution*.[68]

The *Constitution* is a living document. Constitutional provisions have to be construed having regard to the march of time and development of law. The fundamentalness of fundamental rights has to be examined having regard to the enlightened point of view as a result of development of fundamental rights over the years.[69] The *Constitution* is after all some kind of legal body to the ways of the Government and life of the people. A *Constitution*, if it is out of touch with the people's life, aims and aspiration, becomes rather empty; if it falls below these aims, it drags the people down. It should be something higher to keep people's eyes and minds upto a certain high mark.[70]

The *constitution* unlike other statutes is meant to be a durable instrument to serve through a longer number of years i.e., ages without frequent revision. It is intended to serve the needs of the day when it was enacted and also to meet the needs of the changing conditions of the future. Interpretation of the *constitution* is a question of new meaning in new circumstances. A *Constitution* is not a thing of today only. It is a body of ever-changing basic rules of the Government. It is an essential part of the historic development and tradition of the people. The growth of the nation and the subsequent development of the governmental system would snap under a *Constitution* which would not adapt itself to the new condition of an advancing society. If it could not stretch itself to the measure of times, it must be thrown off and left behind as a by-gone device. To be a good *constitution*, it must have the virtue of elasticity and dynamism. Its natural and healthy growth depends upon its adaptiveness. Constitutions must grow if they are to be of any value; they have roots, they ripen and endure. The *Constitution* must also be broad-based to be fitted to the future condition of life. The *Constitution* is a permanent document framed by the people and has been accepted by the people to govern them for all times to come and the words and expressions used in the *Constitution*, in that sense have no fixed meaning and must receive interpretation based on the experience of the people in the course of working of the *Constitution*. The same thing cannot be said in relation to interpreting the words and expressions in a statute.[71] The Court is the real participant in the living stream of national life and it is the court of law, which being acquainted with the current trends of life, strives to adapt the *Constitution* to the changing condition of life. But it is the solemn work and duty of the *Constitution*-makers to frame the *Constitution* not in any static form, but to dress it with the capacity of adaptability, so that when it comes into the hands of judges, they apply it to all changing conditions of life[72].

MARSHALL C.J. has said:

> A *constitution* is framed for ages to come and is designed to approach immortality as nearly as human institution can approach it. Its course cannot always be tranquil.[73]

HUGHES C.J. said:

> If by the statement that what the *constitution* meant at the time of its adoption it means today, it is intended to say that the great clauses of the *constitution* must be confined to interpretation which the framers with the conditions and outlook of their time, would have placed upon them, the statement carries its own reputation.[74]

It was to guard against such a narrow conception that MARSHALL C.J. uttered a memorable warning. “We must never forget that it is *constitution* we are expounding”.[75]

While interpreting the *constitution*, it was held that it must be left elastic enough to meet from time to time the altering conditions of the changing world with its shifting emphasis and different needs. What is considered right and proper in a given set of circumstances will be considered improper in another age and vice versa. But that will not be because the law has changed but because the times have altered and it is no longer necessary for government to wield the powers which were essential in earlier and a more troubled world. It is known as flexibility of interpretation.[76]

“When the nature of things changes, the rules of law must change too”. This is a truism in that the legislature and within the limits, the courts should change rules to keep the law abreast of change. While interpreting changing social conditions, one must take into consideration the flexibility in law. Social conditions existing at the time when the *Constitution* was made may be very different from the present conditions and hence to interpret the *Constitution* from the angle of the *constitution* makers will be completely out dated and unrealistic.[77] Similarly while considering the validity of a constitutional amendment the changing and changed circumstances that compelled the amendment are important criteria.[78]

The *Constitution* is an organic document and it is intended to serve as a guide to the solution of changing problems which the Court may have to face from time to time. Naturally in a progressive and dynamic society the shape and appearance of these problems are bound to change with the inevitable consequence that the relevant words used in the *Constitution* may also change their meaning and significance.[79]*Constitution* calls for a generous interpretation, avoiding what has been called “the austerity of tabulated legalism”, so as to give the individual the full measure of rights and freedom ensured by the *Constitution*. A constitutional instrument has, therefore, to be treated as *sui generis* calling for principles of interpretation of its own, suitable to its character, so that there is room for interpreting it “with less rigidity and greater generosity”. This is no way to say that there are no rules of law which should apply to the interpretation of the *Constitution*. A *Constitution* is a legal instrument giving rise, among other things, to individual rights capable of enforcement in a court of law. Respect must be paid to the language which has been used, to the traditions and usages which have given meaning to that language. It is quite consistent with this and with the recognition that rules of interpretation may apply, to take a point of departure for the process of interpretation, a recognition of the character and origin of the instrument, and to be guided by the principle of giving full recognition and effect of those fundamental rights and freedom with a statement of which the *Constitution* commences. This means that the interpretation of a provision in a *Constitution* must be approached with an open mind, for, the meaning of the words used in a *Constitution*, is not fixed once for all time. They usually change owing to lapse of time, the change of social condition and the changed needs and views of the society.[80]

The pole-star for constitutional adjudication is JOHN MARSHALL’S greatest judicial utterance that it is a *Constitution* that we are expounding.[81] That requires both a spacious view in applying an instrument of government “made for an undefined and expanding future” and as narrow a delimitation of the constitutional issues as the circumstances permit.[82]

It is said that “while the language of the *Constitution* does not change, the changing circumstances of a progressive society for which it was changed yield new and fuller import to its meaning”.[83] In *Missouri v Holland*,[84] it was held:

> We must realise that they called into a life a being the development of which could not have been foreseen completely by the most gifted of its begetters. It was enough for them to realise or to hope that they created an organism…The case before us must be considered in the light of our whole experience and not merely in that what was said a hundred years ago.

Reiterating the above view, the Supreme Court held that our *Constitution* is an ongoing document and should be interpreted liberally. The *Constitution* should be interpreted in the light of experience and not merely in that of what was the state of law at the time of commencement of the *Constitution*. *Constitution* has to evolve the mode for welfare of their citizens and flexibility is the hallmark of the *Constitution*. The growth of the *Constitution* shall be organic and rate of change glacial.[85]
18.1 Indian Article 367(1).

Indian *Article 367*(1).—In *India*, that the *Constitution* is capable of being interpreted by the Courts like any other law, is specifically ensured by the *Constitution* itself, by providing in *Article 367*(1) that—

> Unless the context otherwise requires, the *General Clauses Act, 1897*, shall, subject to any adaptations and modifications that may be made therein under *Article 372*, apply for the interpretation of this *Constitution* as it applies for the interpretation of an Act of the Legislature of the Dominion of India.

Not only is the *Constitution* drafted in the form of a statute, starting with a Preamble, followed by the enacting provisions in the form of Articles and Clauses [with a Definition Clause (*Article 366*)] and ending with Schedules,—by providing that the *General Clauses Act* is to be applied for its interpretation (*Article 367*), the *Constitution* leaves no doubt that, for the purpose of interpretation, the *Constitution* is to be treated as if it were "an Act of the Legislature."

It is natural, therefore, that in its earlier decisions under the *Constitution*, the Supreme Court strictly adhered to the rules of statutory construction, in interpreting the *Constitution* by reference to its terms alone, without adverting to any other considerations at all.[86]

But erelong it was realised that in view of the fact that the *Constitution* is a statute of a special kind, having for its object the governance of the country, the Supreme Court has observed that the language used in a *Constitution* should receive a "liberal and progressive" construction, so that its object might be promoted.[87]

This doctrine of liberal or purposive interpretation of a *Constitution* will be more fully explained below.

The more important of these special rules may now be summarised:
18.2 THE DOCTRINE OF LIBERAL INTERPRETATION

It follows from the very nature of a constitutional enactment as explained above, that it is not to be interpreted in any narrow and pedantic sense.[88] The liberal interpretation also has an ideological tinge to it *viz.,* the court cast themselves in the role of a protector and guardian of the *Constitution*, especially in relation to the fundamental rights of the people and the democratic values. The courts by adopting liberal approach constantly expand the frontiers of the people's fundamental rights so as to make the government more and more liberal and democratic. The courts seek to bring the static clauses in the constitutional document to life in conformity with the need of a dynamic society. A creative interpretation would involve – (1) interpreting the powers of the government affecting person or property somewhat restrictively rather than broadly, and (2) interpreting people's right, broadly and liberally rather than mechanically and literally[89]. Although we are to interpret the words of the *Constitution* on the same principles of interpretation as we apply to any ordinary law, these very principles of interpretation compel us to take into account the nature and scope of the Act we are interpreting, to remember that it is a *Constitution*, a mechanism under which laws are to be made and not a mere Act which declares what the law is to be.[90]

In *Central Province's case* (*supra*), the learned judge further said:

> A broad and liberal spirit should inspire those whose duty is to interpret (the *Constitution*), do not imply by this they are free to stretch or pervert the language of the enactment in the interests of any legal or constitutional theory or even for the purpose of supplying omissions or of correcting supposed errors. A federal court will not strengthen but only derogate from, its position, if it seeks to do anything but declare the law, but it may rightly reflect that a *Constitution* of a government is a living and organic thing, which of all instruments, has the greatest claim to be construed as "*ut res magis valeat quampereat*". This maxim means that it is better to validate a thing than to invalidate it.

Judges have more freedom in interpreting a *Constitution*, but this freedom also has to be contained within permissible limits, for, the *Constitution* does not give unlimited powers to anyone including the judges of all levels[91] and it is necessary for protecting judicial independence, that the judges remain "circumspect and self-

disciplined in the discharge of their judicial function. “Judges have, of course, the power, though not the right to ignore the mandate of a statute and render judgment in spite of it. They have the power, though not the right, to travel beyond the walls of the interstices, the bounds set to judicial innovation by precedent and custom. None the less, by that abuse of power, they violate the law”[92].

U.S.A.

Thus, in giving a liberal interpretation to the federal powers in the *American*Constitution. MARSHALL C.J. observed:

> In considering the question, then we, must never forget, that it is a *Constitution* we are expounding.[93]

Commonwealth

In interpreting the *Canadian*Constitution, the Privy Council observed:

> In interpreting a constituent or organic statute, that construction *most beneficial* to the widest amplitude of its powers must be adopted.[94]

> …If the text says *nothing,* then it is not to be presumed that the *Constitution* withholds that power altogether. On the contrary, it is to be taken for granted that the power is bestowed in some quarter, unless it is extraneous to the statute itself, or otherwise clearly repugnant to its sense. For whatever belongs to self-Government in Canada belongs either to the Dominion or to the Provinces within the limits of the British North American Act.[95]

Similarly, in interpreting the *Government of India Act* 1935, the Federal Court said that the strict rules of interpretation applicable to the interpretation of the charter of incorporation of a company or public body are not applicable to the interpretation of a *Constitution* Act.[96]

> A broad and *liberal* spirit should inspire those whose duty is to interpret it; but this does not imply that they are free to stretch or *pervert* language of the enactment in the interests of any legal or constitutional theory or even for the purpose of supplying omission or correcting supposed errors. [97]

KANIA C.J.[1] observed in the same strain with regard to *our*Constitution,—adopting the language of an Australian decision:[2]

> Although we are to interpret words of the *Constitution* as we apply to any ordinary law, these very principles of interpretation compel us to take into account the nature and scope of the Act that we are interpreting—to remember that it is a *Constitution*, a mechanism under which laws are made and not a mere Act which declares what the law is to be.[2]

In the same strain has the Privy Council observed in relation to the new Constitutions of British Dependencies, that

> …recognising the status of *Constitution* as, in effect, an Act of Parliament, there is room for interpreting it with less *rigidity*, and *greater generosity*, than other Acts, such as those which are concerned with property or succession, or citizenship.[3]

If follows that constitutional interpretation “must not be too literal”,[4] as HOLMES J. observed in many of his options. The Court cannot, therefore in this sphere, be guided solely by the Dictionary meaning of particular words used in the *Constitution* but must always bear in mind the fundamental principles for the working of a free society which the makers of the particular *Constitution* sought to achieve. The provisions of the Constitutions are not be taken as “mathematical formulas having their essence in their form…Their significance is vital, not formal”.[5]

18.2.1 India. Fundamental principles of constitutional jurisprudence not to be over-looked in making a literal interpreation.

In other words, in ascertaining the meaning of words used in a *Constitution*, “their origin and the line of their growth”[5] must be kept in view. Hence, when a *Constitution*, like *ours*, has borrowed constitutional doctrines from the United States or the United Kingdom, the primary guide for our Courts would be not the Dictionary meaning of those words, but the objects for the achievement of which that constitutional doctrine or concept

was evolved in the land of its origin and what exceptions and modifications have been engrafted upon it by subsequent development and judicial decisions. After this is ascertained, the Court should have to inquire if the context or other evidence of our *Constitution* discloses that the makers of our *Constitution* intended to make any departure, or, where alternative approaches are open, which of the alternatives was adopted by the fathers of our *Constitution*.

In general, provisions ensuring the security of personal liberty[6] and other fundamental human rights[7] should be construed so as to uphold the right,[8] having regard to the object with which they were adopted.

A constitutional provision must be construed in a wide and liberal manner so as to anticipate and take account of changing conditions and purposes, so that constitutional provision does not get fossilized, but remains flexible enough to meet the newly emerging problems and challenges. Constitutional provisions are required to be understood and interpreted with an object oriented approach. A *Constitution* must not be construed in a narrow and pedantic manner. The words used may be general in terms, but their full import and true meaning have to be appreciated considering the true context in which the same are used and the purpose which they seek to achieve. We must remember that a *Constitution* is not just a document in solemn form, but a living framework for the Government of the people exhibiting a sufficient degree of cohesion and its successful working depends upon the democratic spirit underlying it being respected in letter and spirit.[9]

The court has also declared that with a view to promote the highest democratic values in the country, that a popular mandate cannot override the *Constitution*. The *Constitution* prevails over the will of the people as expressed through the majority parts in the legislature. The will of the people as expressed through the majority prevails only if it is in accord with the *Constitution*.[10] It was held that Pt III of the *Constitution* does not confer fundamental rights. It confirms their existence and gives them protection. Its purpose is to withdraw certain subjects from the political controversy to place them beyond the reach of the majorities and officials and to establish them as legal principles to be applied by the courts. Every right has a content. Every fundamental value is put in Pt III as a fundamental right as it has intrinsic value. The converse does not apply. A right becomes fundamental right because it has fundamental value. Apart from the principles, one has also to see the stricture of the article in which the fundamental value is incorporated. Fundamental right is a limitation as to the power of the State. A *Constitution* which and in particular that of it, protects and which entrenches fundamental rights and freedom to which all persons in the State are to be entitled is to be given a generous and purposive construction. While considering the nature and content of fundamental rights, the courts must not be too astute to interpret the language in a literal sense so as to whittle them down. The court must interpret the *Constitution* in a manner which would unable the citizen to enjoy the rights as guaranteed by it in the fullest measures.[11]

After the Emergency and after the decision in *Maneka Gandhi v UOI*,[12] the Supreme Court has “breathed a new vigour and life into the concept of personal liberty and gave dimension to the right to equality”. The Supreme Court has realized that in interpreting a *Constitution* which is the fundamental law of the land, a broad and liberal interpretation of the provisions of the *Constitution* is necessary. The court observed: “The court has to be resilient not rigid, forward looking and not static, liberal and not verbal in interpreting the organic law of the nation.[13] While considering the validity of Election Symbols (Reservation and Allotment) Order 1968, the court said that while interpreting the relevant rule, the Election Commission has to consider the ground realities in mind while setting benchmarks to be achieved by a political party in order to be recognised as a State/National party and become eligible to be given a common symbol. A liberal approach was made to the rule.[14]

Where an expression is not defined in the *Constitution*, it must be understood and explained in its common parlance keeping in view the object to be achieved.[15]
18.2.2 Limits of liberal interpretation.

But there is a point beyond which liberal interpretation cannot be stretched.
18.2.3 “Spirit of the Constitution”, no aid in the *U.S.A.*

I. In the *United States*, it was asserted in some cases,[16] that there were some limitations which are essential to every free the Government, and that statutes which transgressed these limitations would be declared to be void by the Courts, even though the legislation did not violate any of the limitations imposed by the *Constitution* either expressly or by necessary implication. But it has been *settled* that the validity of a statute cannot be tested by the general spirit16 which is supposed to pervade the *Constitution* but is not expressed in words.[17]

While considering the distinction between “necessary implication” from that of “resorting to the spirit of the *Constitution*”, it is said:

> In the process of implication, the court seeks to discover the inherent meaning of the words expressly used by the legislature, when the court on the other hand, appeals to the "spirit" of the statute, it does not assume to discover the meaning of the words used by the legislature, but assumes that there is something outside the letters of the text of the statute, which had been intended by the legislature, but which it failed to embody in the text of the statute; that something is supposed to be the "spirit" of the statute.[18]

> So far as statutory construction is concerned, there is consensus of juristic opinion that in discovering the intention of legislature, the court must confine itself to the text of the statute, it would be legitimate to refer to the context, the object of the statute itself as well as all the provisions of the statute taken together, but it would be an usurpation of legislative function in the disguise of interpretation if the court travels beyond or outside the statute to discover any "supposed intention" in the spirit of the statute.[19]

The spirit of the instrument especially of a *Constitution* is to be respected not less than its letter, yet the spirit is to be collected chiefly from the words.[20]

The powers conferred as well as limitation imposed by a *Constitution* are to be discovered from its provisions. (a) Where there is an express provision and the language is clear, the court has nothing else to do than to enforce that provision; (b) Even where there is no clear provision, the court has to apply the process of implication *i.e.,* whether the alleged power or limitation can be inferred by a reasonable interpretation of any or more express provisions of the *Constitution*.[21] But in neither case it would be justified in delving beside the text of written *Constitution* (*Jacobsun supra*) and infusing something into the *Constitution* which could have been included in the *Constitution*, but which the framers of the *constitution* did not. To do so, on the part of the court, would amount to a judicial *constitution* making which is beyond the constitutional power of the judiciary itself.[22]

It is clear, therefore, that the doctrine of liberal interpretation does not mean that the *Constitution* can be interpreted in the light of any so-called "spirit'[23] or theory of the *Constitution* or according to any principles of "natural right, justice or liberty". The question is not what may be supposed to have been intended, but what has been *said*.[24]

In interpreting the *Constitution* of independent India, the Supreme Court has adhered to the view taken by the pre -*Constitution* decisions of the Privy Council24 and the Federal Court[25], in rejecting the doctrine of resorting to the "spirit of the *Constitution*."

In the very earliest case of *Gopalan*,[26] it was contended that in interpreting the expression "procedure established by law" in *Article 21*, the Court should import the principles of "due process" or "natural justice", which were not in the Article. In rejecting this contention, KANIA C.J. for the majority, observed:

> …Courts are not at liberty to declare an Act void because in their opinion it is opposed to the spirit supposed to pervade the *Constitution* but *not expressed in words.* Where the fundamental law has not limited, either *in terms or by necessary implication,* the general powers conferred upon the Legislature, we cannot declare a limitation under the notion of having *discovered* something in the spirit of the *Constitution* which is *not even mentioned in the Constitution*.[27]

Shortly thereafter, it was contended, in *Keshavan's case,*[28] that though *Article 13(1) of the Constitution of India* was not retroactive in operation, it would also affect proceedings pending at the commencement of the *Constitution* in so far as they sought to enforce pre-*Constitution* laws which had become repugnant to the fundamental rights guaranteed by Pt III of the *Constitution*. Even though no fundamental rights existed prior to the *Constitution*, it was contended that it would be contrary to the "spirit" of the *Constitution* if the Court sought to enforce laws made by an imperial power, even after independence.[29]

Rejecting this contention, DAS J. for the majority, observed:

> An argument founded on what is claimed to be the spirit of the *Constitution* is always attractive, for it has a powerful appeal to sentiment and emotion; but a court of law has to *gather* the spirit of the *Constitution**from the language of the**Constitution*.…[30]

It was held that recourse cannot be had to the spirit of the *Constitution* when its provisions are explicit in respect of a certain right or matter. The Courts are not at liberty to declare an Act void, because in their opinion it is opposed to the spirit supposed to pervade the *Constitution* but not expressed in words, has an opposite

application.[31] When the letter of the *Constitution* is not clear, the spirit of the *Constitution* as spelt out in the entire scheme must be kept in view.[32]

In *Indra Sawhney v UOI*,[33] it was held:

> Supreme Court which stands as a sentinel on the *qui vive* over the rights of people of the country has to interpret the *Constitution* in its true spirit with insight into social values and suppleness of the adoption to the changing needs upholding the basic structure of the *constitution* for securing social justice, economic justice and political justice as well as equality of status and equality of opportunity (PER PANDIAN J). [34]

MAHAJAN J., added that however unwholesome the conclusion might be, the remedy would lie in the hands of the Legislature and that the Courts could not infuse anything in the *Constitution*, its business being to interpret the *Constitution* as it is.[28] A court should avoid creating a *casus omissus* where there is none.[35]

18.2.4 Preamble and Directives embodying the "spirit" of the Constitution.

Of course, in some later cases, it has been said that social and economic justice constitutes the spirit of the *Constitution*; but that one has not to discover it from *extraneous* sources, but from the Preamble, the Directives and other provisions of the *Constitution* itself.[36] What has been done in such cases[37] is to draw the "spirit and philosophy" of the *Constitution* from the Preamble and the Directive Principles, such as *Articles 38*(2), 39(d), 41, and then to interpret a Rule or other Governmental Act (if the language so permits) consistently with that spirit, *e.g.*, to take steps for regularisation of employees who have been on casual, temporary or *ad hoc* status for a long time,[38] even though the Directives, as such, are not legally enforceable.[39]

The observations in *Gopalan's case*[40] as regards "spirit of the *Constitution*" have not, however, been overturned in any later case.[41]

18.2.5 Doctrine of "basic features"—an aberration.

But, by inventing the doctrine of "basic features, the Court has ushered in the "spirit", through the backdoor, in a more vital sphere, namely, that of amendment of the *Constitution* itself.

This is the greatest paradox involved in the doctrine of "basic features", namely, that though it does not constitute a limitation on the Legislature while enacting ordinary legislation,[42] it would operate as a limitation on the "constituent" body though in the same breath it is conceded that the latter is a "sovereign" authority[43] when the Legislature is not. This means that while determining the validity of an ordinary law, the Court can only look into the express provisions of the *Constitution* or the necessary implications thereof, but when the validity of a *Constitution* Amendment Act is challenged, the Court may travel behind or beyond the express provisions of the *Constitution* to invoke some principles superior to the express provisions to find whether the impugned amendment is in tune with those principles, which are supposed to constitute the "norm" behind the specific provisions of the *Constitution*. In short, it involves an illogical attempt to usher in the doctrines of "spirit of the *Constitution*" or for "natural law", through the backdoor, to circumscribe the *Constitution* itself, while it had been openly rejected as a limitation upon ordinary legislation.[44]

Of course, some of the judges in the minority, in *Kesavananda's case*,[45] pointed out that the introduction of this doctrine of "basic features" was, in substance, an appeal to the "spirit of the *Constitution*",[46] which the Court had rejected since 1950. Thus, RAY J. observed:

> Well-settled principles of construction in interpreting Constitutions preclude limiting the *language* of the *Constitution* by *political, juristic or social concepts* independently of the language of the *Constitution* to be interpreted…If the text is explicit, the text is conclusive, alike in what it directs and what it forbids. This is the golden rule of construction of a *written**Constitution*. (para 915).

> Fundamental rights are social rights conferred by the *Constitution*. *There is no lawabove the Constitution*. The *Constitution* does *not* recognise any type of law as *natural law* (para 953).[47]

KHANNA J. said:

> Whatever might be the justification for invoking the concept of implied limitation in a short *constitution*, so far as the *Constitution of India* with all detailed provisions is concerned, there is hardly any scope or justification for invoking the above concept. (*i.e.,* spirit of the *Constitution*). I find it difficult to accede in the submission that…in addition to what was

> said there were things, which were "not" said but which were intended to be as effective as things said…All the efforts of the framers of the *Constitution* to make its provisions to be definite and precise "would thus be undone". [48]

According to learned author, the "doctrine of basic structure" is really a "resurrection of spirit of the *Constitution*". Learned author says that by inventing the "doctrine of basic structure", the court has ushered in the "spirit" through the backdoor, in a more vital sphere, namely, that of amendment of *Constitution* itself. It is said that this is the greatest paradox involved in the "doctrine of basic structure", namely, that though it does not constitute a limitation on the Legislature while enacting ordinary legislation, it would operate as a limitation on the constituent body, though in the same breath it is conceded that latter is a sovereign authority while the language is not. This means that while determining the validity of an ordinary law, the court can look into the express provision of the *Constitution* or the necessary implication thereof, but when the validity of *Constitution* Amendment Act is challenged, the court may travel behind or beyond the express provisions of the *Constitution* to invoke some principles superior to the express provision to find whether the impugned amendment is in tune with those principles, which are supposed to constitute the "norms" behind the specific provision of the *Constitution*. In short it involves an illogical attempt to usher in the doctrine of "spirit of the *Constitution*" or of "natural law", through the backdoor, to circumscribe the *Constitution* itself, while it had been openly rejected as a limitation upon ordinary legislation.[49]

Similarly, PALEKAR J. observed that the doctrine of "basic features" as imposing additional limitations upon the amending power conferred by *Article 368*, (para 1322)[50].

But the protest of the minority did not appeal to the majority, who introduced the doctrine of "basic features" as an *implied limitation* upon the *Constitution* amending power as conferred by *Article 368 of the Constitution of India*.[51]

18.2.6 The Court cannot rewrite the Constitution.

The other limitation is that in giving a liberal interpretation, the Court cannot give the language of the *Constitution* such a meaning as it cannot possibly bear or to render some part of a provision otiose.[52]; in short, the Court cannot re-write the *Constitution*.[52]

To use the words of HUGHES C.J. :

> …it is not for the Court to amend the *Constitution* by judicial decision.[53]

18.2.7 Court cannot overlook language of Constitution when it is clear and unambiguous.

Even though, in interpreting the *Constitution*, the Court has to adopt that construction which is most beneficial to the widest possible amplitude of its powers, the Court is not free to *stretch* or *pervert* the language of the enactment in the interest of any legal or constitutional theory, or even for the purposes of supplying omissions or correcting supposed errors.[54]

18.2.8 Court cannot interfere with legislative or administrative *policy*, except on ground of *ultra vires* or unconstitutionality.

The function of the Court being to interpret the law as expressed in the statute or any subordinate legislation made thereunder, the Court cannot go behind that law to question the wisdom of the *policy* in that measure, in the absence of transgression of some provision of the *Constitution*.[55]

In the famous *Bank Nationalisation case*,[56] the court held thus:

> This court is not the forum in which these conflicting claims may be debated. Whether there is a genuine need for banking facilities in the rural sector…and whether the policy followed by the Government in office or the policy propounded by its opponent may reasonably attain the national objectives are matters which have little relevance in determining the "capability" of the measure. It is not for this court to consider the relative merits of the different political theories or economic policy. The court has the power to strike down the law on the ground of authority, but the court will not sit in appeal over the policy of the Parliament in enacting the law. The court cannot find fault with the Act merely on the ground that it is "inadvisable" to take over the undertaking of the banks, it is said by the petitioner, by thrift and efficient management had set up an impressive and efficient business organization….[57]

On the same principle, policy of government on economic matters, the courts should be very circumspect in conducting an enquiry or investigation. Process of disinvestment is a policy decision involving complex

economic factors. Just as the court does not sit over policy of the Parliament in enacting a law, similarly, it is not for the court to examine whether the policy of disinvestment is desirable or not.[58] Where a policy decision was taken by the Government not to extend the term of fast track courts, the court directed the extension on the ground that the policy affects *Article 21 of the Constitution*, *i.e.,* right of citizens for a speedy trial, and to improve justice delivery system.[59]

In regard to interference with legislative policy, in one of the early judgments, it was held:

> While the court naturally attaches great weight to legislative judgment, it cannot desert its own duty to determine finally the constitutionality of an impugned statute.[60]

The legislature is the best judge of what is good for the community, by whose suffrage it came into existence. This should be the proper approach for the court, but, the ultimate responsibility to determine whether a restriction upon a fundamental right is in the interest of the public must rest upon the court and the court should not shirk that solemn duty cast on it by the *Constitution*.[61] The courts start with the proposition that the legislature is the best judge of what is good for the community.[62] But the final power and duty to determine the constitutional validity of the law rests with the court.[63]

As regards executive – since under the system of the Parliamentary government, the Executive is responsible to the Legislature regarding the administration of the country and matters of administration are beyond the ken of the Judiciary.[64] The broad principle is that the courts would not interfere in matters involving administrative policy.[65]

Whenever the government has been given the power to determine some facts or to form an opinion on the basis theory or matter of policy, the court would start with a presumption that the executive determination is proper, unless *ultra vires* or *mala fide* is established.

The presumption in favour of executive determination enhances where the power is vested in some expert body or authority.[66] Subject to the foregoing exception, the general proposition remains that the court cannot pronounce upon the wisdom of executive policy because it does not appeal to the court[67] or substitute its judgment or wisdom.[68]

The doctrine of “liberal interpretation” has a special application in interpreting the ambit of the various entries in the Legislative Lists included in Schedule VII of our *Constitution*:

Liberal interpretation of legislative power
18.2.9 Liberal interpretation of legislative power.

In interpreting a *Constitution* Act, a wide meaning should be given to the words which confer on the Legislature the power to legislate on certain topics, and within the ambit of the words the *most* sovereign powers must be understood to be given to Legislature.[69]

Thus, an entry authorising the imposition of a tax should be read as including the power to prevent evasion of the tax imposed.[70] A general word used in an Entry must be construed to extend to all ancillary and subsidiary matters which can be fairly and reasonably held to be included in it.[71] Entries in the legislative lists are fields of legislation and receive widest construction unless their import is cut down by competing entries and other parts of the *Constitution*.[72] Legislative entries as described in Schedule VII are to be construed liberally and widely so as to attain the purpose of their enactment.[73]

Secondly, as in the Act of 1935, the allocation of the subjects in the Lists is not by way of scientific definition, but by way of a mere “*simplex enumeratio”* of broad categories.[74]

Thus, like the Act of 1935, the *Constitution*:

> seems to have been content to take a number of *comprehensive* categories and to describe them by a word of broad and general import. In the case of some of these categories, *e.g.*, “local Government”,[75] “Education”,[76] “Water”,[77] “Agriculture”,[78] the general word is amplified and explained by a number of examples and illustrations— some of which would probably on any construction have been held to fall under the more general word, while the inclusion of others might not be so obvious.[79]

According to the doctrine of liberal interpretation, the ambit of a particular power of Legislature has to be determined with reference to the "*purpose*" for which that power was conferred on that Legislature and the entry should receive such interpretation as would best effectuate that purpose rather than restrict or defeat it. The scope of a power may thus change with circumstances. Though a change in the *circumstances* may not create a power which the Legislature never possessed it may provide the *occasion* for the exercise of such power. A judge must not alter the material of which the Act is woven, but he can and should iron out the creases.[80]

The most striking application of the above principles is to be found in the interpretation of the "*defence power"* of the national Legislature of all countries.

Thus, the *Australian High Court* has said:[81]

> In dealing with that constitutional power (defence), it must be remembered that, though its meaning does not change, yet unlike some other powers its application depends upon *facts*, and as those facts change so may its actual operation as a power enabling the Legislature to make a particular law…The existence and character of hostilities, or a threat of hostilities, against the Commonwealth are facts which will determine the extent of operation of the power. Whether it will suffice to authorise a given measure will depend upon the nature and dimensions of the conflict that calls it forth, upon the actual and apprehended dangers, exigencies and course of the war, and upon the matters that are incident thereto.[81a]

So, in another case, it said:

> Because war promotes abnormal conditions, abnormal means are required to cope with them, and this justifies Parliament of the Commonwealth under the defence power enacting many laws in times of *war* which would be beyond its scope in times of *peace*… A state of war, therefore, justifies legislation in the exercise of the defence power, which makes many inroads on personal freedom, and which places many restrictions on the use of property of an abnormal and temporary nature which would not be legitimate in times of peace. A law that called up the whole of the civil population between the ages of 18 and 60 for continuous military service … in times of *peace* would be so fantastic that it could not be said to be a *real* exercise of the defence poswer. The substance and *purpose* of such a law would be to organize the Commonwealth as a military state and not to take the necessary steps to prepare for war; but it would be a valid exercise of the power to call up all or any citizens between these ages for continuous military service for the *indefinite* period of the war.[82]

But the application of this doctrine has an obvious limitation under a *Constitution* like *ours* where the powers of both the federal and State Legislatures are elaborately and precisely enumerated. In such a case, the beginning of one jurisdiction must be the limit of the other. Hence, even where the language of one power is wide enough, it may have to be interpreted in a restricted sense because otherwise the power conferred upon the other Legislature may be rendered nugatory.[83] In case of a conflict between two competing Entries, the language of the one may have to be modified in the light of the other;[84] it is the duty of the Court to reconcile the two conflicting Entries.[85]

18.3 THE DOCTRINE OF PURPOSIVE INTERPRETATION

This is, in fact, a different way of putting the doctrine of liberal interpretation[86] of a constitutional instrument, but because it has gained prominence in many recent decisions of the highest authority it deserves a separate treatment.

It is founded on the proposition that though a written *Constitution* is a statutory instrument, it is *sui generis*, so that *all* the rules of interpretation applicable to statutes pertaining to private law should not be applied to the interpretation of a written *Constitution*.[87]

This is not to say that no rules of statutory interpretation are applicable to the interpretation of a written *Constitution*. On the other hand, the Court should have respect to the *language* used in the *Constitution*, but *where possible*, interpret that language which would serve best the purpose of adoption of the *Constitution*, *e.g.*, the guaranteeing of fundamental rights and freedoms which did not exist before.[87] This means that "a *Constitution* should be construed with less rigidity and more generosity than other Acts".[88]

"The courts now adopt a purposive approach which seeks to give effect to the true purpose of legislature. (*Pepper v Hart,(1993) 1 All ER 42*) Statutes should be given what has become known as a purposive construction, that is to say, the courts should when possible identify the mischief which existed before the passing of the statute and if more than one construction is possible, favour that which will eliminate the mischief

so identified.[89] When two competing Acts construed to further the purposes behind them produce a conflict, the court may resolve the conflict by taking into consideration as to which Act represents "the superior purpose" in addition to other relevant factors.[90]

18.3.1 For protection of Fundamental Rights.

In 1984, DIPLOCK L.J. emphasised[91] that the doctrine of generous and purposive construction would apply, in particular, "to that part of the *Constitution* which protects and entrenches *fundamentalrights* to which all persons are to be entitled.

Interpretation of a *Constitution* is a complicated exercise and cannot be looked upon merely as a matter of statutory interpretation. *Constitution* is not just an ordinary statute; it is the "ground norm" and thus it conditions the entire legislative and executive process in the country. Its interpretation must of necessity proceed on lines somewhat different interpreting, say, *Transfer of Property Act* or *Indian Contract Act*.[92]

The dynamic theory of constitutional interpretation is explained by BREWNNAM J. of the Supreme Court of USA:

> We current Justices read the *Constitution* in the only way that we can : as 20th Century Americans. We look to the history of the time of framing and to the intervening history of interpretation. But the ultimate question must be what do the words of the text mean in our time. For the genius of the *Constitution* rests not on any static meaning it might have had in a world that is dead and gone, but in the adaptability of its great principles to cope with current problem and current needs. What the constitutional fundamental meant to the wisdom of other times cannot be the measure of their vision of our time. Similarly, what those fundamentals mean for us, our descendants will learn cannot be the measure to the vision of their time.[93]

A *Constitution* unlike other Acts is intended to provide an enduring instrument to serve through a long lapse of ages without frequent revision. It is not only designed to meet the needs of the day when it is enacted, but also the needs of altering condition of the future. It contains a framework of Government, a mechanism for making laws and resolution of constitutional disputes; and in a federation distribution of legislative fields between the centre and the units. It very often refers to the ideals which it seeks to achieve and secure certain fundamental rights to the citizen. The fields of legislation, the ideals and the rights are expressed in general terms which are compressed sentences if not chapters. "In the interpretation of constitutional document, words are but a framework of concepts and concepts may change more than words themselves. The significance of the change of concepts themselves is vital and the constitutional issues are not solved by a mere appeal to the meaning of the words without acceptance of the line of their growth. It is aptly said that the intention of a *Constitution* is rather to outline principles than to engrave details.[94]

The great generalities of the *Constitution* have a content and a significance that vary from age to age, and the court is not bound to accept the meaning of a provision in a *Constitution* according to the original understanding of the makers.[1] KENNEDY J. said:

> Those who drew and ratified the Due Process clauses…knew times can blind us to certain truths and later generation can see that laws once thought necessary and proper in fact serve only to oppress. As the *Constitution* endures, persons in every generation can invoke the principles in their own search for greater freedom.

In that case, an earlier decision in *Bowers v Hardwick*[2] was overruled.

The practical results from the above are:

(a) Before annulling a law on the ground of violating the *Constitution*, the Court should read in the relevant fundamental right into the impugned law, if that can be done without violence to the express languages of that law.[3]

(b) the doctrine thus becomes a means of interpretation of a statute which should, if possible, be read in the light of the fundamental rights guaranteed by the *Constitution*.[4]

Originally *Article 21 of the Constitution* was interpreted that only when a person's life or liberty is deprived by executive action unsupported by law, he can complain of violation.[5] But this view is no longer good law. Right to life and liberty by constitutional interpretation has been expanded and it is now interpreted that *Article 21* will stand violated when there is any interference in "all aspects of life" which go to make a man's life meaningful,

complete and worth living.[6] It will cover his tradition, culture, heritage and health.[7] Directive Principles of State Policy are read into the Fundamental Rights to make the Fundamental Rights more effective.

18.3.2 St. Christopher.

An application of this principle was made by the Privy Council in 1979 in a case from *St. Christopher, Nevis and Anguilla*,[8] in interpreting Reg. 3(1) of the Leeward Is. (Emergency Powers) Order in Council 1959, which empowered the Governor to order the detention of a person if the Governor was "satisfied" that the person has been concerned in acts prejudicial to public safety…The word "satisfied" was not qualified by any word such as "reasonably".

The *Constitution* of 1967, in section 3 onwards, guaranteed fundamental rights of individuals, and section 14 said—

> Nothing contained in or done under the authority of a law enacted by the Legislature shall be held to be inconsistent with…section 3 or section 13 of this *Constitution* to the extent that the law authorises the taking during any period of public emergency of measures that are *reasonably justifiable* for dealing with the situation that exists during that period.

The Privy Council held,[9] per SALMON L.J., that the word "satisfied" in Reg. 3(1) of the pre-*Constitution* Regulation should be so construed as to conform with the *Constitution* whose *purpose* was to guarantee fundamental rights, so as to read as follows:

> If the Governor is satisfied *on reasonable grounds* that any person…

The reason given per SALMON L.J. was—

> It is inconceivable that a law which gave absolute power to arrest and detain without *reasonable justification* would be tolerated by a *Constitution*…one of the principle *purposes* of which is to protect fundamental rights and freedom.

The Privy Council further held that if the doctrine of general and purposive construction was applied, there would be no difficulty in so construing the language of the Regulation "as to bring it into conformity with the *Constitution*".[10]

(c) If, however, the text of the impugned law does not admit of such construction consistent with the fundamental rights guaranteed by the *Constitution*, the Court must declare that law to be inoperative.[11]

This view[11] is in accord with the general rule of statutory interpretation, namely, that where the language of a statute is clear and does not admit of two constructions, the Court must give effect to it whatever be its *consequences*: "Consequences are for Parliament and not for the courts to consider".[12]

18.3.3 India.

In *India*, the doctrine of purposive interpretation has been applied to evolve a provision for giving interim relief (the relevant Act being silent), where without which the object of the Act would be defeated.[13]

18.4 JUDICIAL ACTIVISM

I. On the other end of the pole of literal interpretation stands the doctrine of judicial activism which, in its widest ambit, means that a judge is not a mere ideal "glossator" of the letters used in a statute but is an organ for the administration of justice and as such, must go behind the words to discover the "real" intention of the Legislature or the "spirit" of the enactment (paras 120-121),[14] and, in so doing, the judge should have the freedom to modify the language so far as possible and, to that extent, to "make law" (para 116) in order to effectively remedy the "mischief" which the Legislature intended to eradicate (paras 116-119).[15]

"Judicial activism" is defined as a judicial philosophy which motivates judges to depart from strict adherence to judicial precedents in favour of progressive and new social policies which are not always consistent with the restraint expected of appellate judges. It is commonly marked by decision calling for social engineering and occasionally these decisions represent intrusion into legislative and executive matters[16]. Judicial activism is a sort of judicial creativity. It is a creative thought process through which the court displays vigour, enterprise, initiative, pulsating with the urge of creating new and refined principles of law. It is a progressive judicial thinking, developing the law for handling constructively the contemporary problems of society. It is innovative,

dynamic and law making role of the court with a forward looking attitude discarding reliance on old cases and also mechanical, conservative and static view.[17]

CHARLES L BLACK says:

> Once it is recognised that judicial decisions are not the mechanical expressions they were once thought to be, it is clear that all judges, in all cases, make policy to some degree and that the court, so long as it performs the task of judicial review, must function to some extent and some ways as one of the policy making organs of the nation.[18]

Judicial activism means that the judge should have a collusive, deliberate function showing broad scope of judicial review which tends to judicial policy making. This is taking the progressive view in judicial review. Judicial activism is holding a more progressive view in favour of declaring a statute unconstitutional and by such decision the court rather functions as if formulating a policy. By being activist, the court's philosophy is that legislature should function strictly and truly as an agent of the sovereign people in order to establish democratic balance. It should not create legislative imbalance and it should be cautious in avoiding constitutional violation. The activists hold the view that undue tolerance in unconstitutionality would create disharmony and annoyance and instead of preserving democratic balance, it would lead the country to a great catastrophe.

WALLACE MENDELSON has given an inspiring picture of judicial activism in the domain of Judicial Review.

> A judicial activist, for example, does not deny the orthodox duty of respect for community values when the meaning of the *Constitution* is less than clear. He seems, however, to have a special gift for dissipating doubt. Where others are uncertain, he is apt to find unmistakable guidance in the plain words or the clear intention of Founding Fathers or in the history itself or in some "higher law". So too, when his preferred values are at stake, he is apt to ignore or even reverse the presumption of constitutionality. Since all this is done in the service of justice (as the activist sees it) he apparently feels no qualm in ignoring legal technicalities *i.e.,* what in other context, we call the Rule of Law.[19]

Every proceeding before the court must reflect judicial initiative, involvement, resourcefulness, concern which can be packed up in one word, namely, "judicial activism" – the moving spirit of justice. The source of this judicial activism is the crusading spirit of the concerned judge/Magistrate in delivering the substantial and speedy justice which we would like to term as "Judicial Crusadism". A charge of judicial activism is not a new one. (COKE L.J. of England in *Benhem's case*[20] – referred in AIR 1998 Journal Section 17) propounded the doctrine to adjudge void an Act of Parliament when it was against right and reasonable or repugnant or impossible to be performed.

Judicial activism stresses that judiciary was designed to be an intermediate body between the people and the legislature, in order among other things to keep the latter within the limits assigned to their authority (The Federalist No. 78). They see the Judiciary as a "noble guard" protecting people from tyrannical excesses that might otherwise be visited upon them by their more immediate representatives and justify an activist judiciary on the ground that it helps to promote qualitative, not simply quantitative, majority one. The judiciary's embrace of judicial activism has been applauded and encouraged by many of the nation's most prominent legal scholars who conceive the Supreme Court to be the "ultimate arbiter of social ethics in the nation" whose responsibility it is to "articulate the public good as…the justices understand it. In the name of "ethical norms" and "moral growth and evolution" they admonish the court to "invent" new constitutional rights and to acknowledge openly that the source of those rights that the court has come to protect are not constitutionally based. (*i.e.,* are not application of the value judgments constitutionalised by Framers), but rather wholly unconstitutional *i.e.,* are newly invented rights that are the products of "our deepening moral understanding".[21]

There are some cases which at times strengthen the idea that existing laws may be inadequate to grant relief to persons whom, the courts feel genuinely to be entitled to relief. Courts, more particularly, the Supreme Court will not abjure its duty to prevent violent miscarriage of justice, by passing such orders as are necessary to uphold the rule of law and lift the veil of purported legality over such perfidious acts. In such cases, the court should not allow itself to be deflected by red herrings drawn across the track. It has to pass such orders as the circumstances warrant, of course, within the four corners of law, to secure the interest of justice and to appease its judicial conscience. Technicalities should not stand in the way of courts doing substantive justice. Ultimately, it has to be remembered that justice has no favourite other than the truth.[22]

Judicial activism plays a key role when the statute does not provide the path and precedents abstain to lead, then sound logic, rational reasoning, commonsense and urge for public good play as guides on those who decide. Wrong must not be left unredeemed and right not left unenforced. Forum ought to be revealed when it

does not clearly exist or when it is doubted where it exists.[23] A statute can never be exhaustive. The court has the jurisdiction to pass procedural orders, though not specifically contemplated by statute. Such innovation is permissible on the basis of authority and supported by principles of justice, good sense and reason.[24]

The role of judiciary to merely interpret and declare the law was the concept of a bygone age. It is no more open to debate that it is fairly settled that the court can so mould and lay down the law formulating principles and guidelines as to adapt and adjust to the changing condition of society, the ultimate objective being to dispense justice.[25]

The primary function of the judiciary is to interpret the law. It may lay down principles, guidelines, and exhibit creativity in the field left open and unoccupied by legislation. Courts can declare the law, they can interpret the law, they can remove obvious lacunae and fill the gaps, but they cannot entrench upon the field of legislation properly meant for legislature. Binding direction can be issued for enforcing the law and appropriate direction may issue including laying down of time-limits or chalking out a calendar for proceedings to follow, to redeem the injustice done or taking care of rights violated, in a given case or set of cases depending on facts brought to the notice of court and this is permissible for the judiciary to do.[26]

Judicial activism has expanded the scope of natural justice. Originally there were said to be only two principles of natural justice – (1) rule against bias, and (2) right to be heard. However, subsequently, some more rules came to be added, namely, requirement to give reasons. Natural justice has also been held to be part of *Article 14 of the Constitution*. Natural justice is not a stagnating, but an expanding concept. It is open to court to develop new principles of natural justice in appropriate cases. Transparency and good governance has been added as a new component of natural justice by judicial interpretation. The expression “fairness” was held to be a flexible and expanding concept which the court is entitled to develop by including new rights. In that case, the court was considering the scope of communication of confidential reports.[27]

Court held that greater latitude is given to legislature by the court in respect of fiscal or taxing statutes or in the case of economic measures. However, when a statute encroaches on the civil rights and civil liberties mentioned in Pt III of the *Constitution*, such as freedom of speech, freedom of movement, equality before law, liberty, freedom of religion, *etc.,* the court will not grant such latitude to the legislature as in the case of economic measures, but will carefully scrutinise whether the legislation on these subjects is violative of the rights and liberties of the citizens and the court’s approach must be to uphold those rights and liberties for which it may sometimes even have to declare a statute to be unconstitutional. It is the solemn duty of court to uphold civil rights and liberties of citizens against executive or legislative invasion and the court cannot sit quiet in this situation, but must play an activist role in upholding civil liberties and fundamental rights in Pt III. This is necessary because though ordinarily the legislature represents the will of the people and works for their welfare, there can be exceptional situations where the legislature, though elected by the people, may violate civil liberties and rights of the people. Courts are the guardians of the rights and liberties of citizens and they will be failing in their responsibilities if they abdicate this solemn duty towards citizens.[28] At the same time, under the guise of judicial activism, court cannot amend the *Constitution* by judicial verdict or legislate or amend the law by the process of interpretation[29] and the courts should be slow to interfere with the mandate of legislature except for compelling reasons.[30]

The court has also held that judicial activism can be resorted to in exceptional circumstances when the situation forcefully demands it in the interest of the nation or the power and weaker section of society. This power must never be abused or misused, but should be exercised by the judiciary with utmost humility and self-restraint. Judges can enforce the law, but cannot create law and enforce them under the pretext of judicial activism.[31]

Judicial activism enables the Supreme Court to issue directions despite the fact that the field is covered by some statute or subordinate legislation. Such directions issued are clear pointers to show that when a question involving the greater public interest or public good, including enforcement of fundamental rights arises, the Supreme Court bestowed enormous consideration to public interest. Such directions have more often than not been issued where the question involved relates to enforcement of a human right or environmental aspects. Interpretation and application of constitutional and human right have never been limited by the Supreme Court only to the black letter of the law. Expansive meaning of such rights has all along been given by courts by taking recourse to creative interpretation which led to creation of new rights. By way of example, it may be pointed out that by interpreting *Article 21 of the Constitution*, the Supreme Court has created new rights including right to environmental protection.[32]

A *Constitution* is intended to serve the needs of the day when it was enacted and also to meet the needs of the changing conditions in new circumstances. *Constitution* has no fixed meaning and its interpretation must be

based on the experience of the people in the course of the working of the *Constitution*, though the same thing cannot be said in relation to interpreting the words and expressions of a statute.[33]

If the law fails to respond to the need of changing society, then either it will stifle the growth of society and choke the progress or if the society is vigorous enough, it will cast away the law which stands in the way of its growth. Law, therefore, must constantly be on the move adapting itself to the fast changing society and must not lag behind. It must shake off the inhibiting legacy of its colonial past and assume a dynamic role in the process of social transformation.[34]

Today it is no longer a matter of doubt that a substantial volume of law governing the lives of citizens and regulating the function of the State flows from the decision of the superior court.[35] The law must respond and be responsible to be felt and discernible to compulsion of circumstances that would be equitable, fair and just and unless there is anything to the contrary in the statute, the court must take cognizance of that fact and act accordingly.[36] The doctrine of judicial activism is evolved when a law of the past does not fit in the present context. In such circumstances, the court should evolve a new law.[37] It means that law should move forward in tune with the changed ideas and ideologies of the society.[38] While interpreting and expanding the scope and content of *Article 21 of the Constitution* (*i.e.,* right to life), the court held that constitutional and statutory provisions protect a person's right to fresh air, clean water and pollution-free environment. But the source of the right is the inalienable common law right of clean environment. Our legal system having been founded on the British common law, the right of a person to a pollution-free environment is a part of the basic jurisprudence of the land. Inaction on the part of the authorities directed by the Act (Air & Water Pollution Acts) makes it imperative for the court to pass suitable and necessary direction.[39]

The learned author T.K. TOPE, in his book, says:

> The judgment in *Golaknath v State of Punjab*,[40] was an illustration not only of very wide power of judicial review, but also of judicial law-making. The enunciation of the basic features doctrine also is a kind of judicial law-making.[41] Is this permissible? KRISHNA I YER J. laid down that in Constitutional Law, judicial law making is inevitable. CARDOZO rightly pointed out that "the greatest tides and currents which engulf the rest of men do not turn aside in their course and pass the judges".[42] Probably under the pressure of these tides and currents, judicial law-making becomes inevitable. The observation of SANKEY L.J. in *British Coal Corp v R*,[43] indicates the reason why such judicial law-making becomes inevitable. SANKEY L.J. observed: "In the field of Constitutional Law, progressive and dynamic interpretation in the light of political development must prevail". If the dynamic and progressive interpretation is to be in the light of political development, judicial law-making is really inevitable particularly in case of the highest judiciary in the land. CARDOZO expressed the view that when the law is unsettled, a duty may be cast on the court to declare it retrospectively in the exercise of a power frankly legislative in function.[44]

A dynamic enforcement of constitutional obligation and fundamental right often involves the court in examining, striking down or prescribing new administrative policies. What may not be done through judicial law-making is at times done through giving of administrative directions or guidelines and monitoring their implementation. Deficiencies in administrative policies or laxity in their implementation are at times, sought to be remedied through court's repeated or periodic interventions – whether for enforcing vehicular emission norms or preservation of forest cover or control of noise pollution. Absence of legislation has been sought to be made good by prescribing detailed guidelines as in the case of international adoptions[45] or for preventing sexual harassment.[46] The Supreme Court has in the process expanded the ambit of fundamental rights by interpreting them in the light of international human rights treaties. It has further held that where there is legislative silence, it can be filled with international human rights law to the extent consistent with any existing legislation, for the better protection of human rights. The protection of right under *Article 21 of the Constitution* has led the court to hold the State responsible in tort for breach of any public duty and violation of fundamental rights. CHANDRACHUD C.J. observed:

> It is true that *Article 32* cannot be used as a substitute for the enforcement of rights and obligations which can be enforced efficaciously through the ordinary process of the courts, civil and criminal. But in an appropriate case, the refusal of the court to pass an order of compensation in favour of the petitioner will be doing mere lip service to his fundamental right to liberty.[47]

The Supreme Court of India has, because of its judicial activism, earned the reputation of having become "the most powerful apex court in the world". In the view of PROFESSOR S P SATHE, the Supreme Court in some cases "transcended the limits of the judicial function", it has legislated like the legislature and these cases are instances of judicial excessivism. According to the learned author PROFESSOR SATHE:

> Unlike the US Supreme Court or the House of Lords in England or the highest courts in Canada or Australia, the Supreme Court of India can review even a constitutional amendment and strike it down if it undermines the basic structures of the *Constitution*.[48] It can decide the legality of the action of President of India under *Article 356 of the Constitution* whereby a statement government is dismissed.[49] We have said in chapter IV that such action cannot be judged except by political parameters. Through Public Interest Litigation, the court has granted access to persons inspired by public interest to invite judicial intervention against abuse of power or misuse of power or inaction of the government. Not only was the requirement of *locus standi* liberalised to facilitate access, but the concept of justiciability was also widened to include within judicial purview action or inaction that were not considered to be capable of resolution through judicial process according to traditional notions of justiciability. The Indian Supreme Court not only makes law, as understood in the sense of the realist jurisprudence, but has also actually started "legislating" exactly in the way in which a legislature legislates. Judicial law-making in the realist sense is what the court does when it expands the meanings of the words "personal liberty" or "due process of law" or "freedom of speech and expression".[50] It was judicial law-making in the realist sense. In that case, the court held that a commercial speech (advertisement) was entitled to the freedom of speech and expression. Similarly, the basic structure doctrine[51] or parameters for reviewing the President's action under *Article 356*[52] or the wider meaning of "life", liberty and procedure established by law" in *Article 21 of the Constitution* by the Supreme Court[53] are instances of judicial law-making in the realist sense[54].

When, however, the court lays down guidelines for inter-country adoption,[55] against sexual harassment of working women at the workplace[56] or the abolition of child labour,[57] it is not judicial law-making in the realist sense, but amounts to legislating like a legislature. In a strict sense, there are instances of judicial excessivism that fly in the face of the doctrine of separation of powers. The doctrine of separation of powers envisages that the legislature should make the law, the executive should execute it and the judiciary should settle disputes in accordance with the existing law. In reality such watertight separation exists nowhere and is impracticable. Broadly it means that one organ of the State should not perform a function that essentially belongs to another organ. While law-making through interpretation and expansion of the meanings of open textured expression such as "due process of law", "equal protection of law" or "freedom of speech and expression" is a legitimate judicial function, the making of an entirely new law which the Supreme Court has been doing through direction in the above mentioned cases, is not a legitimate judicial function. It is true that the court has not supplanted, but has merely supplemented the legislature through such direction. It has said in each case that it legislated through direction only because no law existed to deal with situation such as inter-country adoption or sexual harassment of working women and that its direction could be replaced by a legislation passed by the legislature.

The learned author concludes thus:

> Our survey of the decisional law of the Indian Supreme Court brought us to the conclusion that the court has clearly transcended the limits of judicial function and has undertaken functions that really belonged to either the legislature or the executive. Its decision clearly violated the limit that the doctrine of separation of powers had imposed on it. A court is not equipped with the skills and competence to discharge functions that essentially belong to other co-ordinate organs of government. Its institutional equipment is not adequate for undertaking legislation or administrative function. It cannot create positive rights such as right to work, the right to education or the right to shelter. It does not have the equipment for monitoring various steps that are required for the abolition of child labour. It cannot entirely stop environmental degradation or government lawlessness. Its actions in these areas are bound to be symbolic.

A striking example of "judicial activism" is a decision of the Supreme Court in *AllIndia Judges'*[58] which dealt with the working conditions of the members of subordinate judiciary throughout the country in which the court gave in the purported exercise of its judicial review jurisdiction, direction such as that the Union should take appropriate steps for setting up an All India Judicial Service, that the retiring age of judicial officers be raised to sixty years, that a working library at the residence of every judicial officer be provided, that residential accommodation to every judicial officer be provided, that every District Judge and Chief Judicial Magistrate be provided with State vehicles and that other judicial officers be given suitable loans to acquire automobiles. In fact the above direction was like a legislation by the judiciary.

Another example of "judicial activism" was the decision of the Supreme Court in *Supreme Court Advocates on Record v UOI*,[59] whereby the majority decision held that under the Indian *Constitution* no appointment of any judge to the Supreme Court or a High Court could be made unless it was in conformity with the opinion of the Chief Justice of India (CJI). It was held that opinion of the CJI was entitled to primacy.

PROFESSOR S P SATHE observed:

> How one understands judicial activism depends upon one's conception of the role of a constitutional court in a democracy. Those who conceive narrowly, as being restricted to mere application of the pre-existing legal rules to the given situation, tend to consider even a liberal or dynamic interpretation of a statute as activism. Those who conceive a wider role for a constitutional court and expect it to perform the function of providing meanings to various open-textured expressions in a written *constitution* and giving them new meanings as required by the changing times are bound to consider judicial activism not as an aberration, but as a normal judicial function[60].

In *Golak Nath v State of Punjab*,[61] the Supreme Court openly asserted a law creative role for itself in the following words:

> …*Articles 32*, *141* and *142* are couched in such wide and elastic terms as to enable this court to formulate legal doctrines to meet the ends of justice. To deny this power to the Supreme Court on the basis of some outmoded theory that the court only finds law, but does not make it is to make ineffective the powerful instrument of justice placed in the hands of the highest judiciary of the country.

According to learned author M P JAIN the two decisions of Supreme Court, *viz., Golak Nath v State of Punjab*,[62] and *Kesavananda Bharati v State of Kerala*,[63] are high watermark of judicial creativity in connection with the question of amenability of the *Constitution*. In these cases, the role played by the court can "even be characterised as constituent or that of *constitution* making"[64].

What is the purpose of judicial activism? According to learned FAZAL KARIM J. of the Pakistan Supreme Court,

> …a *Constitution* is drafted "with an eye to the future"; it is intended to endure for ages to come, and consequently to be adopted to the various crises of human affairs; it must therefore be capable of growth and development at the hands of the judges, who are to interpret it and that is possible only if a constitutional instrument is treated as "*suigeneris*", so that there is room for interpreting it with less rigidity and greater generosity. This means that the interpretation of a constitutional provision must be approached with an open mind, for, the meaning of the words "is not fixed once and for all time". They usually change owing to the lapse of time, the change is social condition and changed needs and views of the society. If this is "Judicial activism", so be it. For, by so interpreting the *Constitution*, the judges are doing what they are supposed to do; they are merely performing their ordinary day to day judicial function. They are making the law through interpretation, their "very own field of creative endeavour". There is no usurpation; no exceeding of constitutional limits. No Judge worthy of his name will knowingly exceed his judicial authority. If in performing the judicial function, the judges depart from a precedent or an accepted practice, or meaning of a provision, they do so because "it appears right to do so"; they are "deciding the law" applicable to the changed times and conditions.[65]

With the above purpose in mind, let us consider how the Supreme Court of India has developed the law by interpreting various Articles of our *Constitution*.

A very expansive definition has been given by interpretive process to the word "life" in *Article 21* of the Indian *Constitution*. It is interpreted that life means not an animal existence, but life with human dignity and the right to life includes the right to live with human dignity and all that goes along with it. The court has infused a qualitative concept in *Article 21* and from this hypothesis, a number of rights have been implied from *Article 21* and a whole lot of human rights have sprung up. *Article 21* has thus become a reservoir of Fundamental Rights. It was declared that *Article 21* aims at preventive measure as well as payment of compensation in cases where rights of citizens are violated.[66] Concept of life and liberty has been expounded by interpretative process.[67] The court interpreted *Article 21* even in the case of foreigners (whose application for citizenship is pending) and held that before deportation, the foreigner must be given an opportunity to submit his representation against the proposed action.[68] Any threat to ecology was held violative of *Article 21*.[69] Ecological balance and doctrine of sustainable development were held to be read into the statute book both in substantive legislation and also delegated legislation.[70] Doctrine of Public Trust was invoked so as to preserve environmental protection and conservation of natural resources and a part of *Article 21*.[71] Forest conservation was also held as part of public trust and *Article 21*.[72] In that case, the court created a market in forest use by laying down that there can be a price at which forest land would be available for exploitation. What is fair trial and fair hearing was explained while interpreting *Article 21*.[73] Freedom of conscience, right to marry a person of his or her choice was held part of right to life.[74] Doctrine of polluter to pay compensation when environment is degraded and how far government officers are personally accountable to affected citizen was held under *Article 21*.[75] When residential

premises or areas are converted into commercial areas, the same was directed to be closed within a specific period.[76] Right to speedy trial and investigation are part of *Article 21*.[77] Secondary education was held part of human development and indisputably a human right.[78]

In regard to communal riots in State of Orissa & Gujarat, various directions were given including formation of special investigating team, directing them to file reports within a specified period.[79]

Taking into consideration the corruption and pilferage in Public Distribution System, various directions were given to State Governments and the Union of India.[80] Court took note of starvation death and cases of malnutrition in the State of Rajasthan and gave directions to provide special package for tribals.[81]

The *Hindu Marriage Act* does not provide for divorce on the ground of irretrievable breakdown of marriage. But the Supreme Court has granted decree for divorce on that ground exercising power under *Article 42 of the Constitution*.[82]

Right to development being a basic human right, the wife cannot be directed to leave her job and she cannot be asked to choose between her career and her child. Right to better career and development is a part of *Article 21 of the Constitution of India*.[83]

Conservation of national monument also comes under the ambit of *Article 21 of the Constitution of India*.[84]

Sex workers are entitled to live with dignity, and, therefore, direction was given to rehabilitate them.[85]

Compulsory iodisation of common salt used for human consumption so as to prevent iodine deficiency disorders comes under right to take food under *Article 21* and hence right to life.[86]

Creating a sports ground and encouraging sports is a part of human resource development. It was held that it forms part of human resource development and health and welfare of citizens which is one of the main functions of the Government.[87]

There is no rule that unless a right has been expressly stated in the *Constitution* as a fundamental right, it cannot be treated as one. This means that a fundamental right need not be explicitly stated in the *Constitution*; it can also be implied from an expressly stated fundamental right. In the words of the court, “This court has not followed the rule that unless a right is expressly stated as a fundamental right, it cannot be treated as one”.[88]

The Indian *Constitution* aims at a Welfare State. The importance of a Welfare State is two fold – (1) It provides a wide range of benefits to be made available by the State to the citizens as of right; but at the same time, it enhances the power of bureaucracy, since the benefits thus provided are inevitably administered by the government department or their agents. Hence a Welfare State creates its own legal problems. These problems cannot be solved by the judiciary if it adopts the traditional rules of interpretation. Nor can they be solved by judges who play the role of disinterested umpires. Judges are a part of the constitutional set up. They have to play their role in securing all citizens of India social and economic justice. The judges can play this role effectively only when they participate in their limited way in the process of securing social and economic justice. Hence judges have to become “activist judges”. They have to protect fundamental rights of citizens which are individual rights against the tyranny of the government and the socio -economic rights, particularly of the unprivileged against the tyranny of bureaucracy, anti-social elements and unscrupulous politicians.

The Supreme Court of India has faced the challenges of a Welfare State in a unique manner. It has accepted new concepts of “*locus standi*” and “public interest litigation”. It has interpreted the constitutional provisions relating to fundamental rights and Directive Principles of State Policy in a harmonious manner, thus enabling the citizens of India to march towards the goal of socio-economic justice. It laid down that there is harmony and balance between the fundamental rights and directive principles and this harmony and balance is one of the basic features of the *Constitution*. The Supreme Court has also played the role in upholding human rights and political rights. It interpreted the term “life” in *Article 21* to include the right to livelihood, the right to speedy trial, *etc.*[89]

It read in *Article 14* the notion of fairness, reasonableness and absence of arbitrariness and thus widened the protection of *Article 14*. It evolved the doctrine of basic structure of the *Constitution* and put a check on whims of the Parliament to amend the *Constitution* as it liked. It has brought in a broader vision and deeper understanding on human rights – whether civil or political or subsistence right or other social and economic rights – as expressed in international human right treaties, declarations or conventions for the interpretation of

constitutional rights and for filling in the gaps in domestic legislation.[90] The *Constitution* is now enriched by the vision and understanding of an enlightened international community expressed through the UN or other international bodies. Thus, both in the sphere of political rights and also of economic and social rights, the activist judges of the Supreme Court have evolved a new Indian jurisprudence. This is described as "judicial law making" and is not approved by some critics. But, for interpreting a dynamic *Constitution*, such as the *Constitution of India*, a creative attitude is necessary. If such an attitude is not adopted, the Indian *Constitution* will cease to be a social document relevant to changing needs and aspirations[91]. The learned author concludes:

> When the welfare of society inclusive of individual rights of its members becomes the aim, a new concept of natural law is developed. This concept is based on ethical considerations and it gives rise to the concept of social morality. This social morality aims at making the life of every human being a decent life. The Supreme Court of India in the process of development of social jurisprudence stresses the importance of social morality and ethical values in our public life. These qualities are essential to make India a strong welfare democracy. Constitutional interpretation must take into consideration contemporary moral and political philosophy and cultural identity[92].

Court's activism has also extended to private law rights. For instance, the court laid down that workmen of an industrial undertaking that was being wound up had a right to be heard in the winding up proceedings.[93] In an earlier case, the court recognised the right of workmen in a public sector company to challenge the sale of a plant by the company's management on the ground that the sale had been made on a gross under-valuation of the plant.[94]

When the State Government is dismissed by the President under *Article 356*, the court, exercising its power of judicial review, asserted its full power including the merits of presidential action. In doing so, the court had signaled its intention to enter the political thicket where it thinks that it is necessary.[95]

In *Kesavananda Bharati v State of Kerala*,[96] the court was invited to revisit the whole question of constitutional custodianship. The court overruled the earlier decision in *Golak Nath v State of Punjab*,[97] wherein it was held that fundamental rights cannot be amended by a Constitutional amendment. The court, while overruling the decision, held and invoked the doctrine of basic structure and declared that basic structure of *constitution* cannot be amended even by a constitutional amendment. The said decision is seen as the high water mark of judicial activism in the entire history of independent India. Learned author UPENDRA BAXI went so far to argue that the judgment was the "Indian *Constitution* of the future".[98] In tactical terms, the *Kesavananda* decision has been hailed as an act of judicial statesmanship. GRANVILLE AUSTIN has further mentioned that:

> Under self-inflicted handicaps and pressure that approached psychological warfare from a government in search of a favourable decision, the court mollified the government by overruling *Golaknath* and upholding three amendments…while preserving indeed strengthening its own power of judicial review.[99]

The *Constitution* has provided for fundamental rights and also a remedy for the enforcement of fundamental rights. Earlier, for enforcement of rights, remedy can be had only if it is moved by an aggrieved person. Beginning in the early 1980, the Supreme Court waived traditional doctrines of standing and pleadings to permit concerned citizen, public interest advocates, and non-governmental organisations to petition to it on behalf of individuals or communities suffering violation of constitutionally protected rights. As a consequence, the court entertained application for constitutional protection on behalf of a wide range of traditionally powerless persons including bonded labourers, rickshaw drivers, pavement dwellers, inmates of mental infirmaries and workhouses and victims of environmental damage. In conducting these cases, the court created its own fact - finding commission to investigate alleged violations and dramatically expanded its remedial powers to include detailed supervision of government institutions and the ordering of programmes to mitigate the effects of systematic injustice. Through the development of its Public Interest Litigation (PIL) jurisdiction, the Supreme Court of India came to act as a combination of constitutional ombudsman and inquisitorial examining magistrate, vested with responsibility to do justice to the poor litigant before it by aggressively searching out the fact and the law, and by taking responsibility for fully implementing its decision. Public Interest Litigation provides a model for courts struggling to balance the transformative aspect of law against the law's tendency to favour those who are rich enough to invoke it.[1]

The Supreme Court having enlarged the concept of *locus standi*, took the next step of enlarging the concept of a writ petition. Even a letter addressed to the Supreme Court was treated as a writ petition and notices were served on the concerned persons to appear before the court. It laid down:

> Where judicial redress is sought of a legal injury or a legal wrong suffered by a person or a class of persons who by

> reason of poverty or socially and economically disadvantaged position, are unable to move the court, and the court is moved for this purpose by a member of public by addressing a letter drawing attention of the court to such legal injury or legal wrong, court could cast aside all technical rules of procedure and entertain a letter as a writ petition on judicial side and take action upon it.[2]

In another case, the court laid down:

> The court cannot close its eyes and persuade itself to uphold publicly mischievous executive actions which have been so exposed. When arbitrariness and perversion are writ large and brought out clearly, the court cannot shirk its duty and refuse its writ. Advancement of public interest and avoidance of public mischief are the paramount considerations. [3]

The power of government to promulgate ordinances repeatedly without convening the assembly was deprecated by the Supreme Court in *D.C. Wadhwa v State ofBihar*.[4] The court ruled the practice as unconstitutional.

By directing the Central Bureau of Investigation to promptly and impartially inquire into, and prosecute cases involving corruption and misuse of high office,[5] the Supreme Court has gone some way in improving standards of governance and public accountability.

In *I.R. Coelho v State of TN*,[6] the court ruled that its power to review extended to examining the validity of the inclusion in the Nineth Schedule to the *Constitution* of any law, notwithstanding that the relevant constitutional provision, *i.e.,Article 31B* had expressly precluded such review. The court based its reasoning on the "basic structure doctrine" arguing that no law should be immune from scrutiny in a constitutional scheme which underscored the importance of checks and balances. A key factor which weighed with the court was the fact that, although the Nineth Schedule was originally intended to protect a small number of essential laws, it was used by successive governments indiscriminately to immunize a wide variety of statutes (many of which were closely violative of Fundamental Rights) from judicial scrutiny.

The learned author GRANVILLE AUSTIN says:

> In a nation dedicated to the rule of law, the judiciary had great responsibilities and aroused great expectation. The country's resource of well-trained men - and at the time a few women – had been tasked with preserving the seamless web – "ordering the life of a progressive people", as Attorney General S ETALVAD has said in January 1950 (chapter 5). The judiciary has much of which to be proud. It has repelled attempted subversion and direct attacks from its constitutionally co-equal branches of government. It has struck down infringement of Fundamental Rights and unwise changes in other constitutional provision, notably using the 1973 basic structure doctrine and subsequent re-affirmation of it[7].

The Supreme Court has appointed a high level committee to uphold the rule of law to bring back to India "black money" or monies unaccounted for, when the court found that investigation by government showed only very little progress and was ineffective in exercise of its power, under *Articles 32* and *144*.[8]

(For further comments – see *Articles 14*, *19* and *21*).

Once, therefore, the Court comes to determine the true intention behind law, or the Constitution9, the Court would direct the appropriate Government to take positive action, *e.g.*, in the matter of constructing roads in hilly areas,[9] or to supervise the work of the Executive where it is dilatory in the performance of its duty[10] to take steps for its obligation, under the Directives, to ensure equality and socio-economic justice.[11]

Another facet of judicial activism in India is that while the Directive Principles are, according to *Article 37*, not enforceable in the Court like Fundamental Rights, the Court has been *indirectly* enforcing them, (a) by introducing the doctrine of "affirmative action", (b) by a liberal interpretation of *Article 21*; and (c) by a liberal use of the power to issue *directions* (under *Article 32*), which the *Constitution* meant to be used for the enforcement of fundamental rights.

According to former Chief Justice of India A M Ahmadi, judicial activism is necessary adjunct of this judicial function since protection of public interest as opposed to private interest happen to be its main concern.[12]

By such activist expansion of *Article 21*, the Court has brought the enforcement of the Directive Principles[13]

within the fold of its jurisdiction under *Article 32*. It has held that the Judiciary has the duty to enforce the Directive Principles [*e.g.*, *Article 39*(e)-(f): *Articles 48A*, *Article 51A*(g), by reading them *into* the Fundamental Rights.

In the *U.S.A.,* such intrusion in the executive sphere has been commented upon on the ground of intrusion upon the doctrine of separation of powers.[14]
18.5 THE DOCTRINE OF PROGRESSIVE INTERPRETATION18.5.1 Constitutional interpretation cannot be static.

A special incident that arises in the matter of interpretation of a *Constitution*, as distinguished from an ordinary statute, is that while an ordinary statute is capable of being amended easily and as often as may be necessary to meet the exigencies of the time, the *Constitution* is a quasi-permanent instrument which cannot be amended so easily, except where the process of amendment is the same as that for ordinary legislation. Its very nature implies that the limitations imposed by it should not be done away with to meet temporary exigencies. But the world is changing and some means, therefore, must exist, to make the *Constitution* answer to the problem that may arise in a changing society, if it cannot be formally amended so often. This means is provided by judicial interpretation, though the limits of such adaptation may not be the same under different constitutional systems.

A rule of interpretation of ordinary statutes is that their terms must be construed in the light of the meaning which they bore *at the time of the* passing of the statute.[15]

But since a *Constitution*, unlike other statutes, is intended to be *permanent* and is “to endure for ages”,[16] the chief consideration in its construction should be *present* conditions, relations and requirements and when the language of the *Constitution* will bear it, these should determine the interpretation[17] provided, of course, there is no express command or prohibition to the contrary.[18] In fact, if the ordinary rule of contemporary meaning were given to a *Constitution*, it would be “to command the race to halt in its progress”[18] and “to project oneself mentally backward through a period of transition.[18] A *Constitution* cannot be regarded as a “political straight-jacket for generations to come”[19] or “as though it were a *mathematical* abstraction, an absolute one having no relation to the lives of men”.[20]

In the words of STONE J. of the American Supreme Court[21]:

> In determining whether a provision of the *Constitution* applies to a new subject matter, it is of little significance that it is one with which the framers were not familiar. For in setting up an enduring framework of Government, they undertook to carry out for the indefinite future and in all vicissitudes of the changing affairs of men, those fundamental purposes which the instrument itself discloses. Hence, we read its words, *not as we read legislative codes,*—but as the revelation of the great purposes which were intended to be achieved by the *Constitution* as a continuing instrument of Government.[22]

The test in such cases is whether the application to the new conditions may be included in the *scope* of the powers granted by the *Constitution* in general terms and whether such application would be barred by some other provisions of the *Constitution*. It is by the application of this doctrine that the remarkable expansion of federal powers has been made possible by judicial interpretation in the United States, thus obviating the difficult processes of amending the *Constitution*.

U.S.A.

Thus, in interpreting the “commerce clause” [*Article 1*, section 8(3)] of the *American**Constitution*, the Supreme Court observed:[23]

> The powers granted…are not confined to the instrumentalities of commerce or the postal service known or in use when the *Constitution* was adopted, but they *keep pace* with the progress of the country, and *adapt themselves* to the new developments of time and circumstances. They extend from the horse with its rider to the stage-coach, from the sailing vessel to the steamboat, from the coach and the steamboat to the railroad, and from the railroad to the telegraph, as the new agencies are successively brought into use to meet the demands of increasing population and wealth.[24]

In another case,[25] the Supreme Court has been more outspoken to say that “questions of the power of Congress are not to be decided by reference to any formula” and that the validity of the Agricultural Adjustment Act should be determined by the “economics of the wheat industry” rather than the “mechanical application of the legal formulae.”

In *Missouri v Holland*,[26] HOLMES J. observed:

> …when we are dealing with words that also are a constituent act, like the *Constitution* of the United States, we must realise that they have called into life a being *the development of which could not have been foreseen* completely by the most gifted of its begetters…The case before us must be considered in the light of our whole experience and *not merely in that of what was said a hundred years ago*.

In this case, 26 the validity of the Migratory Bird Treaty Act of 1918, passed by Congress, was challenged on the ground that the migratory birds within a State are the property of that State in its sovereign capacity and that the Congress had no powers to legislate on the subject, which was reserved to the States under the Tenth Amendment:

> The powers not delegated to the United States by the *Constitution*, nor prohibited by it to the States, are reserved to the States respectively, or to the people.

The Court held that migratory birds had no permanent habitat in any State and constituted a problem of national interest, which could not be solved by the States acting individually, and that there was no express limitation in the *Constitution* upon the powers of Congress on this subject. The Treaty power of the Congress under Article VI must, therefore, be liberally construed to include the power to implement an international agreement to prohibit the capture or killing of migratory birds. The progressive rule of interpretation has also been applied by the American Supreme Court to make effective the right of the people to vote for election of members of Congress which is derived from *Article 1*, section 2(1) which says: "The House of Representative shall be composed of members *chosen…*by the *people* of the several States". The right of qualified voters to cast their ballots and to have them counted had been held to be a right secured by the *Constitution*. When the *Constitution* was framed, the party machinery of a primary election was unknown. Subsequently, the result of the general election came to be controlled by the result at the primary election which was made a part of the general election by the State legislature, so that the elector's right to vote under *Article 1*, section 1(2) would be meaningless if he was denied the right to vote at the primary election. The question before the Court in *U.S. v Classic*[27] was whether the constitutional right under *Article 1*, section 2(1) should be held to comprehend a right to vote at the primary election and to have it properly counted. Answering this question in the affirmative, STONE J. for the Court observed:

> We may assume that the framers of the *Constitution* in adopting that section, did not have specifically in mind the selection and elimination of candidates for Congress by the direct primary election any more than they contemplated the application of the commerce clause to interstate telephone, telegraph and wireless communication, which are concededly within it. But in determining whether a provision of the *Constitution* applies to a *new* subject matter, it is of little significance that it is one *with which theframers were not familiar.* For, in setting up an *enduring framework of Government* they undertook to carry out for the indefinite future and in all the vicissitudes of the changing affairs of men, those *fundamental purposes* which the instrument itself discloses. Hence, we read its words, not as we read legislative codes which are subject to continuous revision with the changing course of events, but as the revelation of the great purposes which were intended to be achieved by the *Constitution* as a continuing instrument of Government…
>
> As we have said, a dominant purpose of section 2, so far as the election of representatives in Congress is concerned, was to secure to the people the right to choose representatives by the designated electors, that is to say, by *some form of* election….
>
> There is no historical warrant for supposing that they were under the illusion that the method of effecting the choice of the electors would never change or that, if it did, the change was for that reason to be permitted to defeat the right of the people to choose representatives for Congress which the *Constitution* had guaranteed…Where the State law has made the primary election an integral part of the procedure of choice, the right of the elector to have his ballot counted at the primary election is likewise included in the right protected in *Article 1*, section 2…
>
> Unless the constitutional protection of the integrity of elections extends to primary elections, Congress is left powerless *to effect the constitutional purpose,* and the popular choice of representatives is stripped of its constitutional protection….[28]

Australia

The Privy Council applied this doctrine in interpreting the expression “trade and commerce” in sections 51(1) and 92 of the *Australian*Constitution Act, in these words:[29]

> The words used are necessarily general and their full import and true meaning can often be appreciated when considered as the years go on in relation to the vicissitudes of fact which from time to time emerge. *It is not that the meaning of words changes, but the changing circumstances illustrate and illuminate the full import of that meaning…*It may be that in 1900 the framers of the Constitution were thinking of border tariffs and restrictions in the ordinary sense and desired to exclude difficulties of that nature, and to abolish the barrier of the State boundaries so as to make Australia a single country. Thus they presumably did not *anticipate* those commercial and industrial difficulties which have in recent years led to marketing schemes and price control, or traffic regulations such as those for the co-ordination of rail and road services, to say nothing of new inventions, such as aviation or wireless. The problems, however, of the Constitution can only be solved as they emerge by giving effect to the language used.[29]

Thus, merely because radio broadcasting[30] or aviation[31] was not known when the Constitution Act had been enacted, it could not be contended that they were not included in the powers of the Commonwealth with respect to “postal”, telegraphic, telephonic and like services’[32] [section 51(*v*)] or “trade and commerce with other countries and among the States”[31] [section 51(*i*)], respectively.

Canada.

Similarly, applying the doctrine to the Canadian Constitution, the Privy Council has held[33] that the power to regulate “trade and commerce” under section 91(2) of the British North American Act extended to the creation of a “national mark” which is now a usual feature of international commerce:

> There seems no reason why the legislative competence of the Dominion Parliament should not extend to the creation of juristic rights in *novel fields,* if they can be brought *fairly* within the classes of subjects confined to Parliament by the Constitution.[34]

In a later case, the Privy Council observed:[35]

> In 1867, “postal” services” [Section 91(5) of the British North America Act] in Canada were rendered by the help of land vehicles, but nobody could contend that the modern use of aeroplanes for carrying mail, is, on that account, not within the phrase.

Similarly, in upholding the power of the Canadian Parliament to set up a Supreme Court of appeal and to abolish appeals to the Privy Council, the Privy Council itself observed:

> …It is not consistent with the political conception which is embodied in the British Commonwealth of Nations, that one member should be precluded from setting up if it so desires, a Supreme Court of Appeal having a jurisdiction both ultimate and exclusive of any other member…It is irrelevant that the question is one that might have seemed unreal *at the date of the British North America Act.* To such an organic statute the flexible interpretation must be given which changing circumstances require…[36]

In fine, since the Constitution is an instrument drawn at a particular point of time, which cannot keep pace with the progress of society and changes in the social and economic background under which it was adopted, it has to be interpreted by the Courts in a progressive and liberal manner. Though the terms of the “Constitution” do not undergo any change with time, and the nature of the grant of power must always remain the same, its *extent* and *ambit* may grow with the progress of civilisation so as to include such new specific developments of particular matter as may arise from time to time.[37] According to *WYNES,*[38] the doctrine should better be styled as the doctrine of “*generic* interpretation”, meaning, that new developments of the same subject and new means of executing an unchanging power to arise from time to time and are capable of control and exercise by the appropriate organ to which the power has been committed.[39] The doctrine does not mean that new conditions shall justify the exercise of a power not granted or to create limitations not imposed by the Constitution.[39] It only means that the powers and limitations created by the Constitution shall, if possible, be made applicable to the new conditions.[40] Such application cannot be prevented by the consideration that the new conditions could not have been foreseen or such application could not have been contemplated by the framers of the Constitution.[41]

> …while the power remains the same its extent and ambit may grow with the progress of history.[42]

Several corollaries follow from this principle of progressive interpretation:
18.5.2 Deductions from the doctrine of progressive interpretation

(i) The words of the *Constitution* should be given such flexible interpretation as may be given, without doing violence to the language, as changing circumstances may require.[43]

> It is not that the meaning of the words changes, but the changing circumstances *illustrate and illuminate* the full import of that meaning.[44]

(ii) When a new contingency is presented before the Court to which the *Constitution* has no explicit answer, the Court should guess what the *Constitution*-makers would have intended on the point, "had the point been present"[45] before them. In such a case, therefore, the Court is entitled to give an answer which *may notbe covered by the letters of the Constitution,* if the Court is convinced that were the *Constitution*-makers present *now,* they would have given the same answer.

India.

In *India,* the scope of application of the foregoing principles of constitutional interpretation is, of course, lesser than in the United States,for obvious reasons:

(a) The Indian *Constitution* is much more detailed than the American.

(b) The process of amendment is easier under the Indian *Constitution* than under the American.

(c) The ordinary rules of statutory interpretation, in so far as they are codified in the *General Clauses Act* of 1897, have been imported into the realm of constitutional interpretation by the express provision of the *Constitution* itself, in *Article 367*(1) which says:

> Unless the context otherwise requires, the *General Clauses Act, 1897*, shall, subject to any adaptations and modifications that may be made therein under *Article 372*, apply for the interpretation of this *Constitution* as it applies for the interpretation of an Act of the Legislature of the Dominion of India.

18.5.3 American Constitution in "general". Indian Constitution in "detailed".

(A) The framers of the *AmericanConstitution* did not intend to build up a Code "specifically applicable to every question which may (subsequently) occur".[46] From the beginning, the Judiciary took advantage of this fact, namely, that "the *Constitution* deals in *generals,* not details" and that minute particulars are to be "deduced".[47] Not only is the American *Constitution* brief in its contents,[48] it uses vague expressions, the task of "unfolding the contents'[49] of which was readily taken up by the Courts, while applying them to the facts of particular cases brought before them. The American Supreme Court could spin out a world of ideas because the *Constitution* itself used general terms,[50] such as "liberty[51] which, when unqualified, is capable of diverse meanings. The use of such general terms in the *Constitution* was utilised by the Court in interpreting and amplifying them for the purpose of applying them to particular occasions.

Since the *Constitution of India* more elaborately deals with particular situations and circumscribes the ambit of general expressions by qualifications or limitations, the scope for any amplifications of the text of the *Constitution* is, of course, narrower.

(B) Since the American *Constitution* was not easily amendable, the task of adapting it to the changing exigencies of the political society had to be assumed by the Judiciary.
18.5.4 Flexibility of Indian Constitution lessens scope for judicial review.

The same cannot be said of the *Constitution of India*, which, while it has just crossed its twenty -third anniversary, is being amended more than once a year on the average to keep it in conformity with the change in circumstances. In this country, therefore, the gap between the range of foresight of the makers of the *Constitution* and the objective facts for the time being to which it requires to be applied by the Courts in a

particular case is obviously narrower. In view of the fact that the *Constitution* is quite a recent one, the chances of the courts being called upon to apply the *Constitution* to circumstances not thought of by the makers of our *Constitution* must necessarily be much fewer than under ancient Constitutions such as that of the U.S.A.[52] or even of Australia.[53]

Together with this must be counted the impatience of our political leaders to achieve, by the process of amendment, what has been achieved in other lands by judicial interpretation.[54]

(C) Because of the provision in *Article 367(1) of the Constitution*, whenever any word defined in the *General Clauses Act* occurs in the *Constitution*, the Court's liberty to have free play with its power of judicial review is circumscribed by the statutory definition, unless, of course, the Court sees its way to say that "the context" requires it to give another meaning.[55] Apart from definitions, there are some rules of construction laid down in the *General Clauses Act*, which also are applicable to the interpretation of the *Constitution*.

An American cannot think of importing a statutory definition to interpret a Constitutional provision. But because of the express provision in our *Constitution*, our Courts cannot do otherwise, in the bulk of cases.

Nevertheless, it is not wholly correct to say that judicial review has thrived in the U.S.A. because of the use in the *Constitution* of broad and general expressions while we have in the Indian *Constitution* precise expressions which are not capable of such judicial jugglery. I shall show elsewhere how the word "reasonable" has been utilised by *our* Supreme Court to import the best part of the principles derived in the United States from the expression "due process';[56] how the word "reasonable" which was introduced by the makers of our *Constitution* in *Article 19* has been projected by our Supreme Court into other Articles of the *Constitution*[57] to lay down that "authority of law" means "authority of reasonable law'; how, notwithstanding the cramping adjective "personal", the word "liberty" in *Article 21* has come to comprehend more than what was probably envisaged by the fathers of our *Constitution*.

That, subject to the narrower scope, as indicated above, the doctrine of progressive interpretation must guide an Indian Court as well, in interpreting the *Constitution*, has been emphasised by a Seven-Judge Bench of the Supreme Court[58], as follows:

> The *Constitution of India*…like most other Constitutions, is an organic document. It should be interpreted in the light of the experience. It has to be flexible and dynamic[59] so that it adapts itself to the *changing conditions* and accommodates itself in a pragmatic way to the goals of *national development* and the industrialisation of the country. The Supreme Court should, therefore, interpret the entries and the powers in the *Constitution* in such a way that it helps to the attainment of undisputed national goals, as permitted by the *Constitution*.[58]

It has also to be applied in considering the validity of an amendment of the *Constitution*.[60]

The learned author D D BASU has said:
18.5.5 Function of Court is to interpret, not to make or reform the law

> Though there has been an age-long controversy amongst jurists as to whether the function of Judges is merely to *declare* the law or also to *make* it, the consensus of opinion to-day is that though some amount of laying down the law has to be undertaken by a Judge, in particular circumstances, if he is to discharge his bounden duty to do justice – the function to *make* or to *reform* the law belongs to the Legislature and not the courts.[61] Hence, it is agreed on all hands that a Judge cannot usurp the law-making *function* of the Legislature. What he can do, in the due discharge of his judicial role, must, therefore, differ, both in quality and extent, from the function of legislation. The incidents of such qualitative and quantitative difference should set the *limits to judicial activism.*[62]

18.5.6 Limits of ultraliberal interpretation in India

(i) A Judge can be called upon to declare a new proposition of law only where there is no precedent for the principle of *stare decisis* to bind him down.[63] In the *U.S.A.,* the adherence to these principles however is lesser[64] than in the *U.K.* In the constitutional sphere, the American Supreme Court has assumed a greater freedom on the ground that an amendment of the *Constitution* is a difficult and dilatory process[65] and if the court takes its hands off, it might result in great injustice.[66]

But, in *India*, the *Constitution* is not so difficult to amend as in the United States, and the machinery of amendment is practically the legislative machinery of the Parliament, with certain safeguards. Hence, it is

possible for Parliament to amend the Constitution, and so it has often done to overrule a constitutional interpretation of the court which is proved to be unsound by subsequent discussion both in the juristic and judicial spheres.

(ii) It is fairly agreed that whatever be the scope of judicial law-making, a Judge should not innovate at his pleasure or according to his personal views or ideals[67], or act upon a *priori* conclusions.[68] He has to apply the *principles* of law in his judicial determination of a legal cause and if they are not available from any direct precedent, the Judge has to discover these principles or draw them from analogous precedents, text-books and other materials. But never is it permissible for him to act according to his sentiment, even of "unregulated benevolence,"[69]*e.g.,* to do away with capital punishment or to install a particular system of socialism.

(iii) Above all, in India, since the Constitution is to be interpreted as a statute, as Article 367(1) says, the court can never overlook the language of the relevant provisions of the statute nor impute to it a meaning which the words cannot bear. This limit to the doctrine of liberal interpretation was pointed out by Gwyer C.J. of the Federal Court[70] which holds good till today:

> …a broad and liberal spirit should inspire those whose duty it is to interpret it (*i.e.,* the Constitution). But I do not imply that they are free to *stretch* or *pervert* or interpret the language of the enactment in the interest of any legal or constitutional theory.[71]

In short, a Court would be entitled to depart from the *literal meaning* of the words used in a provision of the Constitution which calls for its interpretation only where :

(a) The *context* requires a different meaning to be given to the words in question.[72]

(b) Where, read with the other parts of the Constitution, the literal meaning would lead to a patent *absurdity.*[73]

(c) Where the language is *ambiguous* or admits of two meanings.[74] In such a case, the court would be justified in relying upon extraneous materials and making an attempt to further the *objects* behind the provision[75] but not to the extent of "rewriting" the language[76] of the Constitution which could be done only through the process of amendment under Article 368.

(d) The scheme of the Constitution, and its historical setting may also be considered, where the Constitution is *silent* on any matter.[77]

(e) Where the *change in the circumstances* under which the Constitution had been drawn up calls for a "progressive interpretation" in order to adapt it to the "changed circumstances'[78] – if the Constitution is to survive as a "living" organism for the governance of the country. [79]This principle, evolved in the U.S.A., has been acknowledged in Australia.[80]

But here, again, the scope for judicial innovation is more limited in *India* than in the *U.S.A.* by reason of the patent fact that the American Constitution is an archaic and concise instrument which had to be amplified in order to meet the requirements of the myriads of changes brought about by development in science and industry, which could not possibly be envisaged in 1789. The Indian Constitution, on the other hand, is roughly three decades old and is so elaborate and precise in its language that the court cannot go far beyond literal interpretation without violating its nature and arrangement as a legal instrument.

Above all, the judges in India can hardly afford to forget that there being no provision in the American Constitution corresponding to Article 367(1) of the Indian Constitution, the judges there had a play in the matter of constitutional interpretation, the like of which cannot be claimed in India, for the patent fact that the Constitution itself directs that it should be interpreted according to the rules of statutory interpretation, except where "the context requires otherwise".

The learned author has further said thus:

> Progressive or liberal interpretation cannot enable the Judges to assume the role of a law reformer. To be precise, no lover of liberty would protest against the goal of humanising the penal law of India, so as to bring it into harmony with International charters relating to Human Rights. But the question we are instantly discussing is, how far this could be done by using the judicial process of interpretation having regard to Article 367(1) in the background[81].

18.6 DOCTRINE OF HARMONIOUS CONSTRUCTION18.6.1 Doctrine of harmonious construction

It has been seen (pp 106 ff. *ante*) that one of the primary rules for the interpretation of any statutory instrument is that it must be read as a whole.[82]

From this general proposition, Courts have evolved the doctrine of harmonious construction of the different parts and provisions of a written *Constitution* so that, in a case of any apparent conflict between them *inter se*, they should be so interpreted that none of them becomes nugatory.[83] Effect should be given to both, is the very essence of the rule. A construction that reduces one of the provisions to a "useless slumber"[84] or "dead letter"[85] is not harmonious construction. A familiar approach in all such cases is to find out which of the above two apparently conflicting provisions is more general and which is more specific and to construe the more general one and to exclude the more specific one. It is held that the statutory and constitutional provision should be interpreted broadly and harmoniously and where there is conflict between the two provisions, these should be so interpreted as to give effect to both. Nothing is surplus in a *Constitution* and no part should be made nugatory.[86] It may be that an article embodying a fundamental right may exclude another by necessary implication, but before such construction excluding the operation of one or other of the fundamental right is accepted, every attempt should be made to harmonize the two articles so as to make them co-exist.[87]

18.6.2 Government of India Act, 1935.

Occasions for the application of this doctrine arose under the Government of India Act 1935, because of numerous entries in the different. Legislative Lists, some of which were obviously overlapping. The Federal Court laid down that it should be borne in mind that it could not have been the intention of the makers of the organic instrument that there should be any conflict between the various powers created by it. In order to prevent any such result, therefore, the entries in the different Lists should be read together without giving a narrow meaning to any of them.[88] Even where an Entry is framed in wide language, it cannot be so interpreted as to cancel or override another Entry or make another Entry meaningless. In case of an apparent conflict between different Entries, it is the duty of the Court to reconcile them.[88] With this end in view, the language of one Entry should be interpreted, and where necessary, modified, in the light of the other. In that way, in most cases, it may be found possible to arrive at a reasonable and practical construction and to reconcile the respective powers the provisions contain and give effect to all of them.[88]

In the *C.P. Motor Taxation case,*[88] the Court was called upon to interpret the expression "duties of excise" in item 45 of List I *vis-a-vis* the expression "sale of goods" in item 48 of List II. It was held that though ordinarily the expression "duty of excise" was wide enough to include a tax on the sale of goods, since the power to tax a sale of goods was expressly given to the Provincial Legislature, it could not have been intended that the Provincial power should be rendered nugatory by empowering the Federal Legislature to impose such tax under the power to levy duty of excise. Hence, the Federal entry should be given a restricted meaning, to confine it to a tax on the "manufacture or production of goods", thus excluding a tax on the sale of goods, which belonged to the Provincial jurisdiction.[89]

18.6.3 The Constitution.

This principle has been followed by *our* Supreme Court, in resolving any conflict or overlapping between competing Entries in the Legislative Lists in the Seventh Schedule of the *Constitution*.[90]

As stated by VENKATARAMA AIYA J.:

> The rule of construction is well settled that when there are in an enactment two provisions which cannot be reconciled with each other, they should be so interpreted that, if possible, effect should be given to both. This is what is known as the rule of harmonius construction. [91]

The Supreme Court has also applied this doctrine to the interpretation of various substantive provisions of the *Constitution*, apart from the Entries in the Legislative Lists:

18.6.4 Articles 25(2)(*b*) and 26(*b*)

(*i*)[b] In [b]*Venkataramana v State of Mysore,*[92] it has been held that *Articles 25*(2)(*b*) and 26(*b*) should be so interpreted that neither of them becomes nugatory.

If the right of every religious denomination to manage its own affairs in matters of religion, under *Article 26*(*b*), were interpreted in an absolute sense, it would render nugatory the right of every Hindu to enter into a Hindu religious institution of a public character, under *Article 25*(2)(*b*). *Article 26* (*b*) must, therefore, be read as subject to *Article 25*(2)(*b*).[92]

(*ii*) In *State of Madras v Champakam,*[93] and *Qureshi v State of Bihar,*[94] it has been laid down that the Directive Principles have to be so interpreted and implemented as not to take away or abridge the fundamental rights. Thus, though Hindi is the national language of India and *Article 351* provides a special directive upon the State to promote the spread of Hindi, nevertheless, the object cannot be achieved by any means which contravenes the rights guaranteed by *Article 29* or *30*.[95]

(*iii*) In *Sharma v Sri Krishna,*[96] it has been held that *Article 19*(1)(a) must be reconciled with Clauses (2)-(4) of *Article 105* or *194*.

The curious feature of the case is that both the majority and minority judgments relied on the doctrine of harmonisation. Since this case raises a most controversial question which deserves to be treated at length, we must postpone its discussion until we reach *Article 105*.

(*iv*) In *Nanavati v State of Bombay,*[1] the majority of the Supreme Court held that the power of the Executive under *Article 161* (or *Article 72*) must be read subject to the limited power of the Supreme Court under *Article 142*. The Court compared the provisions in *Articles 72* and *161* with section 295(2) of the Government of India Act 1935, which opened with the words "nothing in this Act" and observed that there was no such *non-obstante* clause in *Articles 72* and *161* of the *Constitution* to override the powers of the Supreme Court "to make such order as is necessary for doing complete justice in any cause or matter *pending* before it". Because of the absence of the *non-obstante* clause, effect must be given to both the provisions, by the rule of harmonious construction:

> On that principle, the power under *Article 142* which operates in a very small part of the field in which the power under *Article 161* operates, namely, the suspension and execution of sentence during the period when any matter is *sub judice* in this Court, must be held *not to be included* in the wider power conferred under *Article 161*.[1]

18.6.5 Articles 16(4) and 335.

(*v*) There is some overlapping between the *Article 335* and *Article 16*(4) inasmuch as the reservation for "backward classes" in *Article 16*(4) obviously includes reservation for members of the Scheduled Castes and Tribes.[2]

The overlapping between the two provisions has, however, been eliminated by the Supreme Court by holding that *Article 335* operates as a limitation to the provision contained in *Article 16*(4),[2] though *Article 16*(4) does not specifically refer to *Article 335* or raise any question of "maintenance of efficiency of the administration". In *General Manager v Rangachari,*[3] WANCHOO J. expressed the opinion that the consideration of the maintenance of efficiency was "implicit" in *Article 16*(4) and that it was also permissible to read *Article 16*(4) along with *Article 335*,[4] according to the doctrine of "harmonious construction" and to conclude that the consideration of efficiency operated as a limitation not only in the case of the Scheduled Castes and Tribes who are mentioned in *Article 335*, but also in the case of *other backwardclasses* who may come in under *Article 16*(4). In the same strain GAJENDRAGADKAR J.[3] observed:

> In exercising the powers under *Article 16*(4) the problem of adequate representation of the backward classes must be fairly and *objectively* considered and an attempt must always be made to strike a reasonable balance between the claims of backward classes and the claims of other employees as well as the important consideration of the *efficiency of administration.*[3]

In the later case of *Balaji v State of Mysore*,[5] a unanimous Court, speaking through GAJENDRAGADKAR J., observed:

> There can be doubt that the *Constitution*-makers assumed…that while making adequate reservation under *Article 16*(4) care would be taken not to provide for unreasonable, excessive or extravagant reservation…Therefore, like the special provision improperly made under *Article 15*(4), reservation made under *Article 16*(4) beyond the permissible and legitimate limits would be liable to be challenged *as a fraud on the Constitution*.[5]

There has been a spate of decisions on the question as to how far the special treatment or relaxation of standards in favour of members of the S.C. or S.T. could be allowed in the case of promotion to higher posts.[6]

But all these decisions are now to be read subject to the judgment of the 9-Judge Bench of the Supreme Court

on the Mandal Commission's Report[7] which has recommended, *inter alia,* that reservation would *not* be advisable in regard to technical posts, and those requiring expertise or higher posts in education, nor to *promotions*.[7]

(*vi*) Even in the matter of interpreting two fundamental rights which are competing [*e.g.*, under *Articles 29*(2) and *30*(1)], the Court should strike a balance between them.[8] But subsequently *Article 335* was amended by the 82nd Amendment Act 2000 (w.e.f. 8 September 2000) which effectively takes away the decision in *Mandal Commissioncase* – Further Comments in *Article 335*).

This principle of harmonious construction has very often been applied in construction of apparently conflicting legislative entries in Schedule of the Government of India Act 1935 and the *Constitution*.[9]

> It is necessary to mediate between *Article 29*(2) and *Article 30*(1), between letter and spirit of these articles, between traditions of the past and the convenience of the present between societies need for stability and its need for change.

Court should make every attempt to reasonably and practically construe the entries so as to reconcile the conflict of overlapping. An effort should be made by the court to reconcile all concerned and relevant entries. To harmonize and reconcile conflicting entries in the Lists, it may be necessary to read and interpret the relevant entries together and, where necessary, restrict the ambit of the broader entry in favour of narrower entry so that it is not eaten up by the former. It may be necessary to construe a broad entry in a somewhat restricted sense than it is theoretically capable of. If one entry is general and the other limited or specific, then the former may be restricted to give sense and efficacy to the latter which may be treated as particularised and something in the nature of exception to the general entry. It has been held that though the scope of Entry of List II was widened by insertion of *Article 366*(29-A) powers of States to levy such tax is subjected to a corresponding restriction as a consequence of constitutional limits imposed on sales tax under *Article 286*(3) and section 3 and Schedule 2 (proviso) to Additional Duties of Excise (Goods of Special Importance) Act 1957.[10]

It is well established that the widest amplitude should be given to the language of the entries. But some of the entries in the different lists or in the same list may overlap or may appear to be in direct conflict with each other. It is then the duty of court to reconcile the entries and bring about a harmonious construction.[11]

An entry in one list cannot be so interpreted as to make it cancel or obliterate another entry or make another entry meaningless. In case of apparent conflict, it is the duty of court to iron out the creases and avoid conflict by reconciling the conflict. If any entry overlaps or is in apparent conflict with another entry, every attempt should be made to harmonize the same. Although the Parliament cannot legislate on any of the entries in the State list, it may do so incidentally while essentially dealing with the subject coming within the purview of the entry in the Union list. Conversely, the State legislature also while making legislation may incidentally trench upon the subject covered by the Union List. Such incidental encroachment in either event need not make the legislation *ultra vires* the *Constitution*. The doctrine of pith and substance is sometimes invoked to find out the nature and content of the legislation. However, when there is an irreconcilable conflict between the two legislations, the Central Legislation will prevail. But, every attempt would be made to reconcile the conflict.[12]

A provision beginning with the words "Notwithstanding anything in the *Constitution*" added in the *Constitution*, by a *Constitution* Amendment Act cannot be construed as taking away the provision outside the limitation on the amending power and it has to be harmoniously construed with the fundamental principles and basic features of the *Constitution*.[13] But, subject to this limitation, existing laws continued under such a provision cannot be held void on the ground that they infringe anything in the *Constitution* including *Article 13*, for, the *non-obstante* clause will preclude any such attack.[14]

18.6.6 Limits of Doctrine.

It is to be noted, however, that there is no room for the application of the doctrine of harmonious construction:

(a) Unless there is a real conflict between two different provisions.[15] If they relate to different subject-matters, effect may be given to both, without curtailing either.

(b) Even when the conflict is real, and an attempt at reconciliation fails, the Court has "to determine which is the leading provision and which is the subordinate provision, and which must give way to the other".[16]

(c) As between a general and a special provision relating to the same subject, the Court should first interpret each of them according to the ordinary, natural and grammatical meaning, and then, if any conflict remains, the special provision shall apply.[17]

18.7 *UT RES MAGIS VALEAT QUAM PEREAT* (IT IS BETTER FOR A THING TO HAVE EFFECT THAN TO BE MADE VOID)

Practically a corollary from the foregoing doctrines is the application of the maxim *ut res magis valeat quam pereat* to a *Constitution*, meaning that it should be so interpreted that it should have validity rather than it should perish.[18] A liberal construction should be put upon a written instrument and such meaning should be given to it as will carry out and effectuate to the fullest extent the intention of the makers of the instrument.[19] A construction which would defeat the very object of a statute should, if possible, be avoided.[20]

On the same principle, a constitutional provision should not be so construed as to defeat its evident purpose.[21]

A statute is construed to make it effective and operative on the principle of the above maxim, which means “It is better to validate a thing than to invalidate it”. There is a presumption that the legislature does not exceed its jurisdiction. The burden of proving that the Act is not within the competence of the legislature or that it has transgressed other constitutional mandates, such as those relating to fundamental rights is always on the person challenging it. If a case of violation of a constitutional provision is made out, then the State must justify that the law still can be protected under a saving provision. The courts strongly lean against reducing a statute to futility. As far as possible, the court shall act to make a legislation effective and operative.[22] The courts lean strongly against any construction which tends to reduce a statute to a futility. It has to be construed in such a manner to make it effective and operative. When two meanings, one making the statute absolute vague, wholly intractable and absolutely meaningless and the other leading to certainty and a meaningful interpretation, are given, in such an event the latter shall be followed.[23]

When a statute has some meaning, even though it is obscure or has several meanings, even though there is little to choose between them, the courts have to say what meaning the statute has to bear rather than reject it as a nullity.[24] A statute is designed to be workable and the interpretation thereof by a court shall be to secure that subject, unless crucial omission or clear direction makes that end unattainable.[25]

The court may complain that the enactment is “mind twisting” or an “enigma”, yet they do not readily concede that no meaning can be given to it.[26]
18.7.1 Ordinary statutes.

A. In the interpretation of ordinary statutes, the maxim is generally used to get over the draftsman’s unskillfulness, in cases of *absolute* necessity, where the object of the statute is otherwise clear. In such cases, applying the doctrine, the Court may (*i*) rectify obvious misprints; (*ii*) reject superfluous words and phrases; (*iii*) substitute one word for another; (*iv*) read negative words as affirmative and *vice versa*; (*v*) put a possible but not the usual meaning upon words; (*vi*) expand their literal meaning.[27] In all these cases, the Court interferes with the language used by the Legislature on the ground that otherwise no *sensible* meaning can be given to the statute.[28]

But in applying the maxim, the Court cannot go so far as to pose as the legislator,[29] and can in no case add words which are not in the statute.[30] “If a gap is disclosed, the remedy lies in an *amending Act*”.[30]

The scope for the application of the maxim increases where the powers of the Legislature are limited by a written *Constitution*. The limitation may be as to (*a*) legislative competence or (*b*) some specific prohibition.
18.7.2 Constitution.

B. A more liberal use of the maxim is warranted in the case of a *Constitution*, having regard to the nature of the instrument. As *our* Federal Court said:

> ‘A *constitution* of Government is a *living* and organic thing, which of all instruments has the *greatest claim* to be construed *ut res magis valeat quam pereat*.[31]

To such an organic statute the flexible interpretation must be given that changing circumstances require.[32] Legislation, both statutory and constitutional, is enacted, it is true, from experience and evils. But its general language should not, therefore, necessarily be confined to the form that the evil has taken. Time works changes, brings into existence new conditions and purposes and new awareness of limitation. Therefore, a

principle to be valid must be capable of wider application than the mischief which gave it growth. This is particularly true of the constitutional construction. Constitutions are not ephemeral enactments designed to meet passing occasion. They are designed to approach immortality as nearly as human institutions can approach it.[33]

Again, as the Privy Council has observed, with reference to the *Canadian*[34] and *Australian* Constitutions, the Court is to remember:

> that if there are at points obscurity in *language*, this may be taken to be due, not to uncertainty about general principles, but to the difficulty in obtaining ready agreement about *phrases* which attends the drafting of legislative measures by large assemblages.[34]

Thus,—

(i) If possible, the Court will construe a statute[35] or statutory instrument[35] in such manner as results in its constitutional validity rather than its invalidity.[35] In other words, a statute should not be so interpreted that it might offend against a fundamental right or other mandatory constitutional prohibition, for, no such intention could be imputed to the Legislature.[36]

In the words of the Supreme Court of the *U.S.A.*:[37]

> As between two possible interpretations[38] of a statute, by one of which it would be unconstitutional and by the other valid, our plain duty is to adopt that which will save the Act.[39]

The rule further requires that the statute must be construed in such a way as not merely to save its constitutionality, but so far as it is consistent with fair interpretation, not to raise grave doubts on that score.[40]

A construction leading to absurdity, unworkability, impracticability, anomaly, injustice or futility should be avoided. If obvious intention of statute gives rise to obstacles in implementation, court should find ways to remove the obstacles so as to avoid absurd results.[41]

(ii) The maxim has a special application in interpreting the constitutional distribution of powers to the Union and State Legislatures, and in determining whether a particular legislation has been *ultra vires* the powers of the Legislature enacting it, the Court will start with the presumption that the Legislature has acted *intra vires*, and try to give it that effect which is within the powers of the Legislature in question.[42]

> It is always to be presumed that the Legislature designed the statute to take effect and not to be a nullity.[43]

Thus, where the Legislature concerned has no power to legislate with extra-territorial effect, the Court will hold that the statute has application only within the territory over which that Legislature has jurisdiction.[44] So, if the extra-territorial provisions are *severable*, invalidity of the statute will attach only to those provisions and the rest of the statute will be saved.[45]

18.8 MANDATORY AND DIRECTORY PROVISIONS

The distinction between mandatory and directory provisions applies in the case of a *Constitution* as in the case of ordinary statutes.

The distinction is that while a mandatory enactment must be obeyed or fulfilled “exactly”, it is sufficient if a directory enactment be obeyed or fulfilled substantially.[46]

Secondly, if a provision is merely directory, penalty may be incurred for its non-compliance, but the act or thing done is regarded as good notwithstanding such non-compliance; if, on the other hand, a requirement is mandatory, non- compliance with it renders the act invalid.[47] Dismissal of a government servant was ordered without consulting Public Service Commission (PSC) as required by *Article 320(3)(c) of the Constitution of India*. It was contended that the dismissal was void for non-compliance of the Article. The court rejected the contention on the grounds:

> First, does not the *Constitution* provide for a contingency as to what is to happen in the event of non-compliance with the requirements of the *Article 320*(3)(c)? It does not either in express term or by implication provide that the result of such non-compliance is to invalidate the proceedings ending with the final order of Government.

It was further held in another case that:

> The question whether provisions in a statute are directory or imperative has very frequently arisen in this country; but it has been said that no general rule can be laid down and in every case the object of the statute must be looked into….When the provisions of a statute relate to performance of a public duty and the case is such that to hold null and void acts done in neglect of this duty would work serious general inconvenience or injustice to persons who have no control over those entrusted with the duty and at the same time, would not promote the main object of the legislature, it has been the practice to hold such provision to be directory only, the neglect of them, though punishable, not affecting the validity of the acts done.[48]

The Supreme Court in the above case held that in spite of the word "shall" being used in the article, not consulting PSC is of no consequence as to invalidate the order.[49]

But with regard to certain "appointment" to government service, consultation with PSC was held mandatory.[50]
18.8.1 Tests for determining whether a statutory provision is mandatory or directory U.K. & India.

As to when a *statutory* provision should be construed as imperative or recommendatory, there is a mass of case-law in England and in India, many of which are not easy to reconcile, but the following propositions arrived at therein may be stated generally:

(i) The language used by the Legislature is not conclusive, and words like "may", "it shall be lawful", which are *prima facie* enabling in nature have, in certain cases, been construed as mandatory,[51] while "shall" has been construed as directory.[52] The Court has to determine the real intention of the Legislature "by carefully attending to the whole *scope* of the statute to be construed",[53] the "subject-matter" and "the general object" intended to be secured by the Act and the relation of the provision in question to that object.[54] The use of the words "shall" and "may" is not always decisive. It would depend upon facts of the case, conjunctive reading of the provision with other provisions, the purpose sought to be achieved and the object behind implementation of the provision.[55] Provision (section 44) in Person with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act 1995 requires establishment in the transport sector to take special measures, but within the limits of their economic capacity to permit easy access to persons with disabilities. The court held that the words "within the limits of their economic capacity" make the provision "directory".[56]

> The object of the legislature should be determined in the light of—(a) the *context* in which the words were used; (b) the *purpose* which the law seeks to serve; (c) the consequences it produces; (d) the public interest being the paramount consideration.[57]
>
> In that case, requirement of notice to person interested, before a town planning scheme is finalised was held to be mandatory, for, the provision of notice ensures fair procedure under *Articles 14* and *21* of the *Constitution*, before a person is made to lose his property as a result of the scheme.[58]
>
> Having regard to the gravity of a dispute as to the age of High Court judge, provision for consultation with the Chief Justice of India in *Article 217*(3) was held to be mandatory.[59] Similarly, appointment to the subordinate judiciary in consultation with the High Court was held mandatory.[60]
>
> When a statute is couched in negative language, it is ordinarily regarded as peremptory and mandatory.[61]
>
> While considering the effect of the word "shall", content, subject matter and object of the statute must be considered. Use of the word "shall" is not conclusive. If consequences of non-compliance with procedural requirement are not provided by the statute, the requirement may be treated as "directory".[62]
>
> *Section 24A of the Consumer Protection Act* which provides for limitation was held to be mandatory. The court interpreted the words "shall not admit a complaint" as imperative.[63]

Where a provision is worded in a negative form, it is generally considered as imperative, even if no penalty for disobedience is provided.[64]

But, under certain circumstances, negative words are treated as directory only.[65]

The rule of imperative or mandatory character of statute or provision is subject to waiver in certain cases. *Section 80 of the Code of Civil Procedure* which relates to notice to the Government before instituting suit though worded as imperative, can be waived since no public interest is involved.[66] Impossibility of performance is also a ground for non-compliance of mandatory requirement.[67]

Enabling words used in *Article 16(4) of the Constitution* ("nothing in this article shall prevent the State from making any provision for reservation") was held to be only an enabling provision not imposing any constitutional duty nor conferring any fundamental right for reservation.[68] Provisions contained in *Articles 15* and *16* (reservation) are only enabling provisions.[69]

Formalities and requirements for making contracts or transfers have been held to be imperative. *Article 299 of the Constitution* is interpreted as mandatory.[70]

Statutes confer power to be exercised on certain conditions and the prescribed conditions are generally held mandatory.[71]

(ii) A provision would be construed as imperative where the whole object of the Legislature would be defeated if some other mode of doing the act enjoined by the statute were allowed; in such a case the absence of any express prohibitory words is not material.[72]

(iii) "When the provisions of a statute relate to the performance of a *public duty* and the case is such that to hold null and void acts done in respect of this duty would work serious *general inconvenience or injustice* to persons who have no control over those entrusted with the duty, and at the same time *would not promote* the main object of the Legislature, it has been the practice to hold such provisions to be directory only, the neglect of them, *though punishable*, not affecting the validity of acts done".[73]

(iv) In general, where a statute merely imposes a *personal* prohibition and also prescribes a penalty for doing what the statute prohibits him from doing, he is punishable for doing that, but his acts will not be void.[74]

As to procedural requirements, the general rule is that they would be treated as directory, subject to the following exceptions:

(i) Where a formality prescribed by a statute is construed as a *conditionprecedent* to the exercise of the power conferred by the statute, non-compliance with such condition renders void the act done in exercise of such power.[75]

(ii) Enactments regulating the procedure in courts are usually construed as imperative,[76] subject to the general rule that interpretation should be preferred which furthers and does not frustrate the *ends of justice.*[77] The problem of interpretation is not always solved by labelling a requirement either directory or mandatory and it may become much more important to focus on the consequences of non-compliance.[78]

(iii) Where non-compliance with the requirement would inflict *injury* upon certain persons and that would affect public interest, the requirement would be treated as mandatory[79]*e.g.,* the procedural safeguards for forminating employment.[80]

Condition prescribed for exercise of a power affecting private property must be strictly followed.[81]

18.8.1.1 As applied to Constitutional provisions.

More complication arises in relation to constitutional provisions.

18.8.1.2 U.S.A.

Though the canons of statutory construction are, in general, applicable to the constitutional sphere, in the *U.S.A.* a distinction has been made between statutory and constitutional provisions as to the construction of

any provision as directory only and a different attitude has, again, been shown in the treatment of the Federal and State Constitutions.

The general proposition which has been arrived at is that:

> Constitutional provisions are to be construed as mandatory unless, by express provision or by necessary implication, a different intention is manifest.[82]

But no provision of the Federal *Constitution* appears to have been construed as merely directory. Of course, some of the questions, though arising out of the *Constitution*, have been held by the Courts to be "political" or non-justiciable in nature. But that is not, as we have just seen, the same thing as holding that a particular provision of the *Constitution* is directory and not mandatory.

As regards State Constitutions, however, it has been held in various cases, that since State Constitutions are more detailed and contain procedural provisions, the Court has a duty to find out whether a particular provision is directory or mandatory, so that non-compliance therewith will invalidate the resultant act,[83] although there is a wide divergence amongst the decisions of the State Courts as to the circumstances under which a constitutional provision may be held to be merely directory.

18.8.1.3 India.

In *India,* on the other hand, the Supreme Court has distinguished between the various mandates of the *Constitution* having regard to their subject-matter and the consequences of violation thereof.

A liberal interpretation of *Articles 14* & *21* of the *Constitution* reading brings the requirements of natural justice to administrative actions against a person.[84]

18.8.1.4 Mandatory : Article 22(4)-(5).

I. A most conspicuous example of a constitutional provision having been treated as mandatory is to be found in the Court's treatment of the provision in *Article 22*, clauses (4) and (5) relating to preventive detention. Applying the general principle that a law taking away personal liberty should be strictly construed and the formalities prescribed by it must be strictly complied with, it has been held[85] that all the procedural requirements in clauses (4)-(5) of *Article 22* must be regarded as mandatory and that "even if one of the procedural requirements is not complied with, the order of detention would be rendered illegal". From clause (5), thus, the Court has derived in favour of the detenu a constitutional right to make a representation and a right to have such representation considered by the appropriate Government apart from any consideration by the Advisory Board constituted by it. Even if a bail application is pending before the criminal court, the detention can still be challenged on various grounds, namely, that the act in question is a law and order problem and not public order, that there was no relevant material on which detention order was passed, that there were *mala fides*, that the order was not passed by competent authority, that the condition precedent for the exercise of power did not exist, that the subjective satisfaction was irrational and there was no application of the mind, that the grounds are vague, indefinite, irrelevant, extraneous, non-existent or stale, that there was delay in passing the detention order or delay in executing it or delay in deciding the representation of the detenu, that the order was not approved by the Government, or that the failure to refer the case to the Advisory Board or that the reference was belated. It was held that personal liberty that is protected under *Article 21 of the Constitution of India* is so sacrosanct and so high in the scale of constitutional values that it is the obligation of the detaining authority to show that the impugned detention meticulously accords with the procedure established by law. The history of liberty is the history of procedural safeguards and these procedural safeguards are required to be zealously watched and enforced by the court and their rigour cannot be allowed to be diluted on the basis of the nature of the alleged activities of the detenu.[86]

Similar view has been expressed[87] in regard to clauses. (1) and (2) of *Article 22 of the Constitution of India*, which relates to all cases of arrest and detention.[88]

18.8.1.5 Article 62.

The time-limit imposed by *Article 62* for the completion of the election of the President has been held to be mandatory, in view of the public interest involved.[89]

18.8.1.6 Article 217(3)

The requirement, under *Article 217*(3), to consult the Chief Justice of India, for the determination of the disputed age of a High Court Judge, has been held to mandatory, in view of the "gravity of the problem" involved.[90]

18.8.1.7 Article 299(1)

Similarly, *Article 299*(1) which lays down certain formalities for the Government contracts, has been held to be mandatory[91] in view of the need for prevention of public funds being depleted by clandestine contracts made by public servants. As a result, if any of the conditions prescribed by the Article be not complied with, the contract would not be enforceable either by or against the Government.

II Let us now take up some provisions of our *Constitution* which have been held to be directory:

(a) The taking of an oath as prescribed in the Third Schedule is obligatory for a number of offices, under various Articles of the *Constitution*, such as those of Ministers, Members of Legislatures, Judges of the Supreme Court and High Courts.
18.8.1.8 Directory: Articles 75(4), 99, 124(6), 148(2), 173(a), 188, 219, Schedule III.

As has been held by the Supreme Court,[92] the requirement that the oath must be in the form prescribed in the relevant part of Schedule III is directory, so that any defect in the printing of the form or the like will not invalidate the taking of the oath, if the substantial requirements thereof have been satisfied. The rule is, whether a particular requirement in prescribed form is mandatory or directory may have to be decided in each case having regard to the purpose or object of the requirement and its inter-relation with other enacting provisions of the statute, and it is difficult to lay down a uniform rule.[93]
18.8.1.9 Articles 77(1), 166(1)

(b) The provision in *Article 77*(1) or 166(1) as to how the executive action of the Government of India or of a State has to be "expressed" has been held to be directory, so that a court would not annual an order of the Government if there has been a substantial compliance with the requirement.[94] It is also held that mere passing of a cabinet resolution is not enough till some action is taken in terms of *Article 166* for issuance of a government order.[95]

If, while passing an order, wrong provision is quoted, the same will not invalidate the order, and the exercise of the power will be referable to a jurisdiction which confers validity upon it.[96]
18.8.1.10 Articles 87(1), 176(1)

(c) Quite a number of questions have been raised and are likely to arise in connection with the obligation of the President and the Governor to address the Houses of Parliament and the State Legislature (as the case may be), under *Articles 87*(1) and *176*(1), respectively.

The first question is whether the duty must be performed by the President personally or he can delegate it to some other person. In England, the matter is governed by usage and it is open to the Sovereign to deliver the opening speech either in person or by commission. But since the President or the Governor is mentioned in *Article 87*(1) or 176(1) and the function of addressing the Legislature cannot be said to be an "executive power of the Union" or of the State, it would follow that the function of delivering the opening address cannot normally be delegated by him.

The next question is whether the provision is mandatory. It is evident that it cannot be mandatory in the sense that the President or Governor can be compelled to perform this function, for *Article 361*(1) bars the jurisdiction of the Courts against these Heads of State for performance of their constitutional functions. If, owing to physical inability or other reasons, it is not possible for the President or Governor to perform this function personally, resort is to be had to the provisions in *Articles 70* and *160* of the *Constitution*. The provision in *Article 160* is thus wide enough to enable the President to direct that the Governor's address may be read by some other person, in case of *inability* of the Governor to do it personally.

On the other hand, while *Articles 86*(1) and *175*(1) merely empower the President or Governor to address the Legislature on any other occasion, the use of the word "shall" in *Articles 87*(1) and *176*(1) suggests that on the occasion of the first session it is not optional but obligatory on the part of the President or Governor to address the Legislature.

Nevertheless, it does not necessarily follow that any proceeding in the Legislature or any Bill passed by it can always be invalidated by a court of law on the ground that there was no valid opening of the session of the Legislature because of a failure to deliver the opening address. In a Calcutta case,[1] though the provisions in *Articles 87*(1) and *176*(1) were held to be mandatory, eventually, the Court came to hold that a substantial compliance with the requirement would prevent the invalidity of the subsequent proceedings of the Legislature. The Court held that (a) if the Governor does not come to deliver such address at all, the Court may invalidate

the subsequent legislative business of the House, but that (b) if the Governor makes an attempt to deliver his address to the House, but is prevented from reading out his speech, in whole or in part, a publication of the speech to the members by some other means, *e.g.,* by laying it on the table of the House, should be taken by a court to be a substantial compliance with the requirement of the aforesaid Articles. But once it is conceded that substantial compliance is enough, the requirement must be described as directory.

The observations by MAY[2] and HALSBURY[3] to the effect that there cannot be any "legal beginning of a new Parliament or session of an existing Parliament" unless the Sovereign meets "the two Houses either in person or by representatives" do not suggest that the question is justiciable but merely that the ceremony of the Speech from the Throne precedes the legal business of Parliament in point of time, because no Court in England can invalidate any proceeding of Parliament on the ground that the Speech from the Throne was not duly delivered.

(d) *Article 199*(4) of *ourConstitution* provides:

> There shall be endorsed on every Money Bill when it is transmitted to the Legislative Council under *Article 198*, and when it is presented to the Governor for assent under *Article 200*, the certificate of the Speaker of the Legislative Assembly signed by him that it is a Money Bill.

18.8.1.11 Article 199(4)

It is the Speaker's certificate that is required by the foregoing provision. The question is whether the passage of a Bill as a Money Bill can be challenged on the ground that the certificate under this provision was given by the Deputy Speaker. The Supreme Court has answered this question in the negative, holding that the provision in *Article 199*(4) was merely directory and not mandatory or imperative.[4]

18.8.1.12 Article 320(3)

(e) The requirement to consult the Public Service Commission, in *Article 320*(3), has been interpreted by our Supreme Court to be directory only, so that in default of such consultation, the action of the Government under any of the sub-clauses of this clause would not be null and void.[5]

Article 320(3) runs as follows:

> The Union Public Service Commission or the State Public Service Commission, as the case may be, shall be consulted:—
>
> *(a)* on all matters relating to methods of recruitment to civil service and for civil posts;
>
> *(b)* on the principles to be followed in making appointments to civil services and posts and in making promotions and transfers from one service to another and on the suitability of candidates for such appointments, promotions or transfers;
>
> *(c)* on all disciplinary matters affecting a person serving under the Government of India or the Government of a State in a civil capacity, including memorials or petitions relating to such matters…

Though the decision in *Srivastava's* case[5a] has been followed in later decisions of the Supreme Court, the attention of the Court may be drawn to certain features of the provision in *Article 320*(3), for consideration in some future cases.

The expression "after consultation with" has been authoritatively held in England[6] as well as in India[7] to be mandatory in the sense that if there is a total *omission* to consult, the resultant act will be null and void, though the *procedure* as to consultation may be held to be directory so that substantial compliance would be enough. No different connotation can be given to the words "shall be consulted".

It is to be noted that the English decisions in *Rollo v Minister of Town Planning*[8] or *Port Louis Corp v A.G. of Mauritius*[9] were not brought to the notice of our Supreme Court in any case. In the former cases, section 1(1) of the New Towns Act, 1946, provided:

> If the Minister is satisfied, *after consultation* with any local authorities who appear to him to be concerned, that it is expedient in the national interest that any area of land should be developed…,he may make an order designating that area as the site of the proposed new town.

It was held that consultation with the local authority was obligatory, though it need not be formal; it was enough if the local authority was given an opportunity to put forward any criticism or suggestion it wished, before the Minister issued his order.[8]

In *Jyoti Prakash v Chief Justice*[10] the Supreme Court has held [p. 149, *ante*] that consultation with the Chief Justice was obligatory before the President makes an order under *Article 217(3) of the Constitution of India* which says:

> If any question arises as to the age of a Judge of a High Court, the question shall be decided by the President after consultation with the Chief Justice of India and the decision of the President shall be final.

Without referring to the previous decisions on the effect of non-consultation, the Supreme Court held that:

> before the President reaches the decision, he has to consult the Chief Justice of India; consultation with the Chief Justice of India is clearly a mandatory requirement… 10

The question of public inconvenience caused by an annulment of the determination of the President on the ground of omission to consult the Chief Justice in any cause was not considered at all and the only reason given for construing the provision as mandatory was "the gravity of the problem covered by the said provision". It is true that the dismissal or otherwise of a civil servant, coming under *Article 320*(3), differs in *degree*, as regards the "gravity of the problem", but the language in *Article 320*(3), it should be noted, is not much different from that in *Article 217*(3). *Article 320*(3) says:

> The Union Public Service Commission or the State Public Service Commission…shall be consulted…

It is one thing to say that the advice tendered by the Commission, when consulted, is not binding upon the Government and another thing to say that nothing happens on the earth if the Commission, which is supposed to be an expert on matters relating to service, is not consulted at all. Otherwise, the every object of inserting *Article 320*(3) as a safeguard against arbitrary action by the Executive in the vital sphere of public employment would be defeated.

The decision in *Normandin's case*[11] upon which the Supreme Court relied in *Srivastava's case*[12] could also be distinguished. In that case,[13] the Privy Council formulated the doctrine that when a statute prescribed a formality for the performance of a *public duty*, the formality might be regarded as directory only, if to hold it as mandatory would cause serious general *inconvenience* or *injustice*.

This principle of general inconvenience and injustice was followed by *our* Federal Court[14] in interpreting section 256 of the Government of India Act 1935, which ran as follows:

> No recommendation *shall* be made for the grant of magisterial powers to any person…*save after consultation with* the District Magistrate….

It was held[14] that an appointment of a Magistrate which was otherwise valid was not rendered invalid if it was made without consulting the District Magistrate and that the direction for consultation in the section was not mandatory.

These decisions[15] were followed by *our* Supreme Court[16] to hold that the provision for consultation of the Public Service Commission in *Article 320*(3)(*c*), of the *Constitution* is also directory and not mandatory, so that non-compliance with the provision does not invalidate the order passed by the Government without consulting the Public Service Commission or afford a cause of action to the public servant against whom such order is made, on the ground of non-compliance with the provision.

A close reading of the judgment in *Normandin's* case[17] will reveal, however, that the rationale of that decision was that where the Legislature *provides a penalty* for non-compliance with a procedural provision, the act done in non-compliance therewith should not be invalidated, if that would cause public inconvenience, because the penalty for non- compliance has already been provided by the Legislature. It is to be noted that no such penalty is provided in *Article 320(3) of the Constitution*.[18]

In the Author's opinion, an appointment or dismissal made by the Government without consulting the Public Service Commission at all should be invalid in the same manner as a decision under *Article 217*(3) made

without consulting the Chief Justice has been held to be invalid.[19] Any decision to the contrary makes little of an independent body such as the Public Service Commission and renders nugatory one of the essential checks and balances in a democratic *Constitution*. Before following the Federal Court decision[20] as to "consultation", the Supreme Court might have considered the difference in the set-up under the *Constitution* as it has done in several other cases.

18.8.1.13 Schedule III.

(f) Having regard to the object of the oath under Schedule III, the Supreme Court[21] that if the essential requirements of *Article 178*,hasheld read with their Form, are complied with, a mere misprint in the Form or inaccuracy in translation thereof will not render the election invalid.[21]

18.9 RELEVANCY OF THE DIRECTIVE PRINCIPLES IN INTERPRETING JUSTICIABLE PROVISIONS OF THE CONSTITUTION

The Preamble, the Fundamental Rights and the Directive Principles can be characterised as the trinity of the *Constitution*.[22] Directive Principles give certain directions to the Legislatures and Governments in India, as to how and in what manner and for what propose, they are to exercise their power. But these principles are specifically made non-enforceable by any Court of law.[23] The reason behind the legal non-enforceability and non-justifiability of these principles is that they impose positive obligations on the State. But no teeth have been given to these principles. The makers of the *Constitution* believed more in an awakened public opinion, rather than in court proceedings as the ultimate sanction for the fulfilment of these principles. Though not enforceable in a court of law,[24] the *constitution* has declared them as "fundamental" in the governance of the country, and the "State" has been placed under an obligation to apply them in making laws. The State has thus to make laws and use its administrative machinery for the achievement of these Directive Principles. No writ can be issued against the Government to fulfil a Directive Principle.[25]

On the other hand Fundamental Rights create negative obligations on the State *i.e.* the State is required to refrain from doing something and this negative obligation is easy to enforece. It is important to note that a land inconsistent with a Fundamental Right is void but there is no such provision as regards the Directive Principles. The Directive Principles guide the exercise of legislative power but do not control the same.[26]

(a) Though the courts are concerned with the interpretation of the justiciable provisions only of the *Constitution*, they cannot ignore the Directive Principles (Pt IV of the *Constitution*) altogether on the ground that they are non-justiciable and are, *per se,* not enforceable in the courts of law. Since they have been placed in the *Constitution*, they have to be read along with the other parts of the *Constitution*, according to the acknowledged principles of construction.[27] The question, therefore, is whether any use can be made of the Directive Principles in the matter of interpretation of the justiciable provisions of the *Constitution*, because they are also binding on the Judiciary, by reason of *Article 36*.[28]

Initially, the court adopted a strict and literal legal position and ruled that *Article 37* of the Directive Principles could not override the Fundamental Rights and in case of conflict between the two, the Fundamental Rights will prevail, which was settled in *State of Madras v Champakom Dorairajan*.[29] In that case, the court held that while fundamental rights are enforceable, the Directive Principles were not and so the laws made to implement Directive Principles could not take away fundamental rights and the Directives should conform and run as a subsidiary to the fundamental rights.

The *first* thing that is to be noted in this respect is that the case of the Directives as an aid to interpretation of the justiciable provisions of the *Constitution* stands on a higher level than the debates of the Constituent Assembly because the Directives are not "external" aids like the proceedings of the Constituent Assembly or similar historical materials; they are parts of the *Constitution* itself. The justiciable and non-justiciable provisions of the *Constitution* together make the organic law of the land and a court cannot ignore the Directives altogether without coming to the conclusion that they were intended by the *Constitution*-makers to be a surplusage,—which is not a fact. It follows that, even though the Directives themselves cannot be enforced by a Court of law in looking at the Directives while interpreting the other parts of the *Constitution*, the Court cannot be accused of resorting to any extra-legal method of interpretation, because it has been laid down by the Supreme Court that in view of the fact that our *Constitution* is a detailed one, "the whole of it is to be read with the same sanctity"[30] except to the extent one is legitimately and clearly limited by the other.[31]

The Supreme Court came to adopt another view also, that although the Directive Principles, as such were legally non -enforceable, nevertheless, while interpreting a statute, the court could look for light to the "lode star" of Directive Principles. When two judicial choices are available, the construction in conformity with the

"social philosophy" of Directive Principles has preference.[32] It has recently been held that with the development of law, even certain matters covered by Pt IV of the *Constitution* (*i.e.,* Directive Principles) have been uplifted to the status of fundamental rights, for instance, the right to education. Though the rights form part of Directive Principles of State Policy, compulsory and primary education has been treated as a part of *Article 21 of the Constitution of India*, which consequently led to the enactment of the *Right of Children to Free and Compulsory Education Act 2009*.[33]

It was also held in that case that a common thread runs through Pts III, IV and IVA of the *Constitution of India*. One part enumerates the fundamental rights, the second declares the fundamental principles of the Government and the third lays down the fundamental duties of the citizens. While interpreting any of these provisions, it shall be advisable to examine the scope and impact of such interpretation on all the three constitutional aspects emerging from these Parts. The word "fundamental" as used in the expression "fundamental in the governance of the State" is to describe the directive principles which have not legally been made enforceable. The word "fundamental" has been used in two different senses under the *Constitution*. The essential character of fundamental rights is secured by limiting the legislative power and by providing that any transgression of the limitation would render the offending law void. The word "fundamental" in *Article 37* also means basic or essentials, but it is used in the normative sense of setting before the State, goals which it should try to achieve. The significance of the fundamental principles stated in the directive principles has attained greater significance through judicial pronouncements.

In interpreting the *Constitution*, due regard has to be given to the directive principles which have been recorded as the soul of the *Constitution* in the context of India being a Welfare State. The Preamble itself is elaborated in the two vital chapters of the *Constitution* as Fundamental Rights and Directive Principles.[34]

Fundamental Rights and Directive Principles had their roots deep in the struggle for independence. And, they are included in the *Constitution* in the hope and expectation that one day the tree of true liberty would bloom in India. The Rights and Principles thus connect India's future, present and past adding greatly to the significance of their inclusion in the *Constitution* and giving strength to the pursuit of the social revolution in India.[35]

Learned author GRANVILLE AUSTIN also says (at pp 51-52):

> Although the fundamental rights primarily protect individuals and minority groups from arbitrary prejudicial State action, three of the Articles have been assigned to protect individuals against the action of other private citizens. *Article 17* abolishes untouchability; *Article 15*(2) lays down that no citizen shall suffer any disability in the use of shops, restaurants, wells, roads and other public places on account of his religion, race, caste, sex or place of birth. *Article 23* prohibits forced labour which, although it had been practiced by State, was more commonly a case of landowner and peasant. Thus, the State in addition to obeying the *Constitution*'s negative injunction not to interfere with certain of the citizen's liberties, must fulfil its positive obligation to protect the citizen's right from encroachment by society. The Fundamental Rights, therefore, were to foster the social revolution by creating a society egalitarian to the extent that all citizens were to be equally free from coercion or restriction by the State, or by society privately; liberty was no longer a privilege of the few.[36]

In the Directive Principles, however, one finds an even clearer statement of the social revolution. They aim at making Indian masses free in the positive sense, free from the passivity engendered by centuries of coercion by society and by nature, free from the abject physical condition that had prevented them from fulfilling their best selves.

To do this, the State is to apply the precepts contained in the Directive Principles of State Policy when making laws. These principles are not justiciable, a court cannot enforce them, but they are to be, nevertheless "fundamental" to the governance of the country. The essence of the Directive Principles lies in *Article 38*, which echoing the Preamble says:

> The State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political shall inform all the institutions of the national life.

To foster this goal, the other provisions of Directive Principles exhort the State to ensure that citizens have an adequate means of livelihood, that the operation of the economic system and the ownership and control of material resources of the country subserve the common good, that the health of the workers, including children, is not abused and special consideration be given to pregnant women. Workers, both agricultural and industrial, are to have a standard of living that allows them to enjoy leisure and social and cultural opportunities. Among

the primary duties of the State is the raising of the level of nutrition and the general standard of living of the people. The Principles express the hope that within ten years of the adoption of the *Constitution*, there will be compulsory primary education for children upto the age of fourteen years. The above provisions of the Principles seek equally to secure the renovation of Indian society by improving the techniques of agriculture, husbandry, cottage industry, *etc.*

By establishing these positive obligations of the State, the members of Constituent Assembly made it the responsibility of future India's Governments to find a middle way between individual liberty and the public good, between preserving the property and privileges of the few and bestowing benefits on the many in order to liberate the powers of all men for contribution to the common good".

It is true that in case of a clear conflict between the Fundamental Rights and the Directive Principles, the former must prevail before a Court of law. But even in case of an apparent conflict between different provisions of the *Constitution*, effect must be given if possible, to both,[37] and in determining the ambit of the Fundamental Rights themselves, the Court would be justified in looking at the Directives.

Secondly, it is to be noted that the process in which the Directives came into the *Constitution* is the same as that in which the Fundamental Rights were adopted.
18.9.1 Directive Principles and Fundamental Rights had a common origin.

(b) The demand for certain minimal individual rights was as old as the very formation of the Indian National Congress in 1885 and it is by a process of systematic evolution that both Pts III and IV came to be incorporated in the *Constitution of India*. At the initial stage no distinction was made between justiciable and non -justiciable rights.[38] A guarantee of certain individual rights was considered necessary in order to protect Indians against political oppression by the alien ruler. The question of the mode of their enforcement was not prominent at that stage. It was only at the later stage of drafting these rights in the *Constitution* that it was realised that the two classes of rights could not be taken up together inasmuch as the social and economic rights, which were included in Group A by Sir B N Rau[38] were non-justicable in their nature. The Drafting Committee, accordingly, recommended that these rights be placed separately, in Pt IV of the *Constitution*, as "Directive Principles of State Policy'[39].

(c) If this common origin and complementary relationship as between the Fundamental Rights and the Directives be borne in mind, much of the controversy between the two classes of provisions would disappear. The duties imposed on the State by Pt III (*i.e.,* Fundamental Rights) are essentially negative in character. By the mandate contained in this Part, the State is asked not to do certain things. The breach of these mandates is made justiciable because the nature of these mandates is such that they can be easily enforced through courts. The mandates of Pt IV (Directive Principles of State Policy) are positive mandates. Thereunder, the State is directed to take certain positive steps for the advancement of the society. For taking these steps, necessary conditions must first be created. In the very nature of things, the mandates cannot be enforced through courts. It would be wrong to say that these positive mandates are of lesser significance than the mandates under Pt III of the *Constitution*[40].

In determining the scope and ambit of the Fundamental Rights relied on by or on behalf of any person or body, the court may not entirely ignore these Directive Principles, but should adopt the principle of harmonious construction and should attempt to give effect to both as much as possible.[41]

In another case, it is said:

> The ideal we have set before us in *Article 38* is to evolve a State which must consistently strive to promote the welfare of the people by securing and making as effectively as it may be, a social order in which social, economic and political justice shall inform all institutions of national life. Under *Article 39*, the State is enjoined to direct its policy towards securing *inter alia* that ownership and control of material resources of the community are so distributed as to subserve the common good.

In the never ending race, the law must keep pace with realities of social and political evolution of the country as reflected in the *Constitution*. If, therefore, the State is to give effect to these avowed objects of the *Constitution*, we must regard as a public purpose all that will be calculated to promote the welfare of the people as envisaged in Directive Principles of State Policy, whatever else that expansion may mean.[42]

Learned author GRANVILLE AUSTIN said:

> The Indian *Constitution* is first and foremost a social document. The majority of its provisions are either directly aimed at furthering the goals of social revolution or attempt to foster this revolution by establishing the condition necessary for its achievements…The core of the commitment to the social revolution lies in Pts III and IV, in the Fundamental Rights and Directive Principles of State Policy. These are the conscience of the *Constitution*[43].

Of course, so far as the Courts are concerned there is little doubt that:
18.9.2 Difference between Directives and Fundamental Rights.

(i) It is the business of the Legislature and not the Courts to implement the Directives, however laudable their object may be.[44]

(ii) The Courts cannot declare any law as void on the ground that it contravenes any of the Directive Principles,[45] or their *spirit*.[46]

(iii) The Directives are not enforceable by the Courts[47] and, by themselves; they do not create any justiciable rights in favour of individuals.[48]

(iv) The Directives require to be implemented by legislation, and so long as there is no law carrying out the *policy* laid down in a Directive, neither the State nor an individual can violate any existing law or legal right under the colour of following a Directive.[49]

(v) The Courts are not competent to compel the Government to carry out any Directive or to make any law for the purpose,[50]*e.g.,* to provide for free and compulsory education within the time limited by *Article 45*,44 or to provide adequate means of livelihood to every citizen.[51]

(vi) Though it is the duty of the State to implement the Directives, it can do so only subject to the limitations imposed by the different provisions of the *Constitution* upon the exercise of the legislative and executive power by the State.[52] Thus, *Article 13*(2) prohibits the State from making any law which takes away or abridges the fudamental rights conferred by Pt III. The Directive Principles cannot override this categorical limitation upon the legislative power of the State.[53]

(vii) In a case of a *direct conflict* between a Fundamental Right and a Directive Principle which cannot be reconciled by applying the doctrine of harmonious construction[54] the former must prevail in the Courts.[52]

The cry, on the *political* platform, that the fundamental rights should be read as *subject* to the Directives is thus unwarranted. The foregoing conclusions emerge not because the Courts are apathetic to the non-justiciable provisions embodied in Pt IV of the *Constitution*, but because of the provisions of the *Constitution* itself, namely, *Article 37* which expressly provides that the provisions in Pt IV "shall *notbe enforceable* by any court" and *Article 13* that *any* law which is inconsistent with the provisions included in Pt III, "*shall,* to the extent of such inconsistency, *beavoid the clash*". A Directive neither confers any right upon an individual nor enables the legislature to transgress its legislative powers as circumscribed by the Seventh Schedule. At the same time, Directive Principles and Fundamental Rights mainly proceed on the basis of Human Rights. Freedom to nothing else but a chance to be better. It is this liberty to do better that is the scheme of Directive Principles.[55]

According to learned RAY J.:

> Directive Principles are also fundamental. They can be effective if they are to prevail over Fundamental Rights of a few in order to subserve the common good and not to allow economic system to result to the common detriment.

The learned judge said:

> Parts III & IV of the *Constitution* touch each other and modify. They are not parallel to each other.

Learned judge BEG said:

> The best way of describing the relationship between the Fundamental Rights of individual citizens which imposed corresponding obligation from the State and the Directive Principles would be to look upon Directive Principles as laying down the path of country's progress towards allied objectives and aims stated in the Preamble, with

> Fundamental Rights as limits of that path, like the banks of a flowing river which could be mended or amended by displacements, replacements or enlargements of any part according to the needs of those who had to use the path.

CHANDRACHUD J. said:

> Our *Constitution* aims at bringing about a synthesis between Fundamental Rights and the Directive Principles of State Policy by giving to the former a pride of place and to the latter a place of permanence. Together, not individually, they form the core of the *Constitution*. Together, not individually, they constitute its true conscience. The basic object of conferring freedom on individuals is the ultimate achievement and the ideas set out in Pt IV of the *Constitution*. Fundamental Rights which are conferred and guaranteed by Pt III of the *Constitution* undoubtedly constitute the ark of the *Constitution* and without them a man's reach will not exceed his grasp. But it cannot be overstressed that the Directive Principles of State Policy are fundamental in the governance of the country. What is fundamental in the governance of the country cannot surely be less significant than what is fundamental in life of an individual.

MATHEW J. said:

> The significant thing to note about Pt IV is that, although its provisions are expressly unenforceable, that does not affect its fundamental character. Enforcement by a court is not the real test of a law. The Conventions of English *Constitution* are not enforceable in a court of law, but they are, nevertheless binding and form part of the Constitutional Law of the land. The similarity between the Constitutional convention in England and Directive Principles of State Policy in India cannot be disputed.

The *Constitution* professes for collective life and collective responsibility on the one hand and individual rights and responsibilities on the other hand.[56]

(d) On the other hand, it does not follow that the Courts are entitled to shut their eyes to the provisions contained in Pt IV or to treat them as outside the *Constitution*, for,:

(i) *Article 37* merely says that the Directives shall not be "enforceable in the Courts; it does not say that the Courts cannot make *any* use of them at all.

(ii) A judge takes the oath to "uphold the *Constitution*", which, of course, includes every part thereof. The Courts cannot, therefore, overlook the fact that though they themselves cannot enforce the Directives, the Legislature and the Executive are enjoined by the *Constitution* (*Articles 36-7*) to enforce them. The business of the Courts, according to the *Constitution*, therefore, would be to facilitate such implementation of the Directives by the other organs of the State, in so far as that is possible, without overriding the justiciable provisions of the *Constitution*.[57]*Article 42* was read into *Article 21* and direction was given to the State to protect children from malnutrition.[58]

(iii) In the matter of interpretation of the justiciable provisions of the *Constitution* itself and also in the matter of interpretation of a statute in the context of its constitutionality, the Court has to look into Pt IV as well, for, in interpreting a *Constitution*, as in the case of an ordinary statutory instrument,[59] the instrument must be read as a whole.[60] In interpretating the *other* provisions of the *Constitution*, therefore, can the Courts overlook that the authors of the *Constitution* regarded certain principles as "fundamental in the governance of the country" and that, accordingly, their intention in incorporating the other provisions should be ascertained in the light of that fundamental postulate? Can the Courts overlook that the makers of the *Constitution*, while enshrining in the *Constitution* certain provisions for ensuring the political liberty of the individual and also a system for better government, at the same time, sought to ensure the socio-economic development of the community by exhorting the policy-makers for the time being to implement the programme chalked out in the Preamble and the Directive Principles of the *Constitution*? The rest of the *Constitution*, indeed, is an enlargement of the ideals embodied in these non-justiciable portions which have rightly been described as the very "conscience of the *Constitution*."[61] The Supreme Court said that Courts cannot interpret a social beneficial legislation on the basis as if the words therein are cast in stone. Such legislation must be given a purposive interpretation to further and not to frustrate the eminently desirable social purpose. It was held that the above view flows from the mandate of *Article 37* which provides that it is the duty of court to apply the principles enshrined in chapter IV in making laws. In that case, the question was whether illegitimate children are entitled to a share in the ancestral property of their parents. The court held that children who are innocent should not be punished for the fault, if any, of the parents and property which is no longer a fundamental right does not make any distinction between ancestral or self-acquired. The court relied on the opinion of MATHEW J. in *Kesavananda's case* (*supra*) wherein the learned judge held:

> I can see no incongruity in holding that *Article 37*, when *Article 37* says in its latter part "it shall be the duty of the State to apply these principles in making laws", that judicial process is State action and the judiciary is bound to apply Directive Principles of State Policy in making judgment.[62]

In another case, the court held that in interpreting the *Constitution*, due regard has to be given to the Directive Principles which have been recorded as the soul of the *Constitution* in the context of India being a Welfare State. The Preamble is itself elaborated in the two vital chapters of the *Constitution* as Fundamental Rights and Directive Principles and the court took note of the statement of DR AMBEDKAR in the Constituent Assembly that one of the objectives of the doctrine of Directive Principles of State Policy is to achieve economic democracy and left that in the hands of future elected representatives.

In that case, the question was, whether the Members of Parliament Local Area Development Scheme (MPLAD Scheme) was violative of *Articles 275* and *282* of the *Constitution*. It was held that the scheme which satisfies the expression of "public purpose" and the implementation of directive principles is a general responsibility of the State in view of *Article 218 of the Constitution* (right to health) and is covered under Entry l6 of List II.[63]

In considering the scope of "equal pay for equal work", the court took note of *Article 39*(d) along with *Articles 14* and *16* of the *Constitution*.[64]

Article 50 contemplates separation of judiciary from the executive. But it is now settled law that the separation of powers between the legislative, executive and judiciary are the basic features of the *Constitution*.[65]

Fundamental laws are made to make a government of laws, not of men, and directive principles are needed to lay down the objective of a good government.[66]

In *Minerva Mills v UOI*,[67] CHANDRACHUD J. said:

> Parts III & IV are like two wheels of a chariot, one no less important than the other. In other words, the Indian *Constitution* is founded on the bedrock of the balance between Pts III & IV. This harmony and balance between fundamental rights and the Directive Principles is an essential feature of the basic structure of the *Constitution*.

An attempt was made to give primacy to Directive Principles, which was held as unconditional in *Minerva Mills's case* (*supra*).

There is no disharmony[68] between the Directives and the Fundamental Rights,[69] because they supplement[70] each other in aiming at the same goal of brining about a social revolution and the establishment of a welfare State, which is envisaged in the Preamble.[71]

The *Constitution* aims at a synthesis of the two. Fundamental Rights and the Directive Principles constitute the "conscience of the *Constitution*". Together they form the core of the *Constitution*.[72]

Even the conditions for the exercise by each individual of his Fundamental Rights cannot be ensured unless and until the Directives are implemented.

Parliament is competent to amend the *Constitution* to override or abrogate any of the Fundamental Rights in order to enable the State to implement the Directives,[73] so long as the "basic features" of the *Constitution* are not affected.

18.9.3 Reading into Fundamental Rights.

(e). As a result of gradual development, the Supreme Court has come to hold[74] that in the matter of *constitutional interpretation,* the Directive Principles and the Fundamental Rights are to be treated as complementary to each other and that the Directives are to be *read into* the Fundamental Rights. In *Keshavanand Bharati v State of Kerala*,[75] SHELAT and GROVER JJ. observed in their judgement that:

> Both Pts III and IV…have to be balanced and harmonised…then alone the dignity of the individual can be achieved…They were mean to Supplement each other.

The result is that although the Directives as such are not directly enforceable in a court of law, they have come to be *indirectly* enforceable through judicial review and interpretation and the technique of "reading into" the Fundamental Rights. This proposition, suggested by the Author has thus been affirmed by the Supreme Court.

"The fundamental rights and the Directive Principles are the two wheels of the chariot as an aid to make social and economic democracy a truism",[76] and are complementary to each offer.[77] Courts have a responsibility while interpreting the *constitution* to ensure implementation of Directive principles and to harmonise the social objection underlying the Directive prinicples with the individual rights.[78]

An extreme application of the doctrine of reading the Directives into the Fundamental Rights is to be found in a recent decision of the Supreme Court[74] in which the Court has elevated the Directives as to the provision of education in *Article 41* almost to the status of a fundamental right, by striking down a capitation fee charged by the State of Karnataka for students from outside that State seeking admission to medical institutions in that State. This has been made possible in the following way:

(i) By taking recourse to the omnibus sweep of *non*-arbitrariness in *Article 14*.

(ii) By holding that the fundamental rights under *Articles 19* and *21* could not be fully enjoyed unless a citizen was educated.

(iii) By holding that the Directive Principles themselves could not be enforced, they imposed upon the State "a constitutional mandate to create conditions in which the Fundamental Rights guaranteed to the individuals under Pt III could be enjoyed at all."[79]

(iv) By holding that any State action which defeats a Directive Principle would be per se arbitrary and violative of *Article 14* (para 18).[80]

This is one step beyond the previous line of decisions which held that any State action which *implements* a Directive Principle must be treated by the Court as a "reasonable" restriction[81] within the purview of Clauses (2) to (b) of *Article 19*, so as to save a restrictive law from unconstitutionality.

The addendum in the instant case[82] empowers the Court to *invalidate* a law which defeats a Directive Principle, if that can be done through a liberal interpretation of some Fundamental Right.

The foregoing decision in *Mohini's* case has been modified by a 3:2 judgment of the *Constitution* Bench in a case from Andhra Pradesh, relating to capitation fee[83], as follows:

(a) The right to education of a child until he completes the age of 14 years (*Article 45*) is a fundamental right.

(b) But the right to any higher education beyond the age of 14 years is not a fundamental right but is subject to the economic capacity and development of the relevant State (*Article 41*).[84]

(f) The Court has applied the doctrine of harmonious construction to interpret different justiciable provisions in the light of the Directive Principles:

Re. *Fundamental Rights.*

1. The Court may look at the Directive Principles in interpreting a Fundamental Right and adopt that interpretation which makes the Right contain a Directive Principle instead of rejecting it.[85] In other words, though the Directives cannot override the Fundamental Rights, in determining the scope and ambit of the Fundamental Rights the Court may not entirely ignore the Directive Principles and should adopt the principle of harmonious construction so as to give effect to both as much as possible;[86]—reading the Directive Principles into the Fundamental Rights.[87] Thus,:

Article 14 **:** (i) A favourable classification of an object, the promotion of which is encouraged by the Directive Principles, should be regarded as a reasonable classification.[88]

(*ii*) Applying *Article 39*(d) and the word "Socialist" in the Preamble, it has been held that the right to "equal pay for equal work" as between the sexes or within the same sex is a fundamental right[89] included in *Article 14*, so as to invalidate an administrative order which violates this right,[90] by making an irrational classification.

Article 19 **:** (a) Restrictions, which are imposed on the exercise of Fundamental Rights for the purpose of securing the objectives enjoined by any of the Directives would be regarded as "reasonable" restrictions within the meaning of clauses (2) to (6) of *Article 19*.[91]

(b) Even though the implementation of a Directive Principle may cause hardship to a few individuals, it should be upheld in the larger interests of the community.[92]

(c) In view of the absolute prohibition of consumption of liquor in *Article 47*, there cannot be any fundamental right to manufacture and sell intoxicating liquor.[93]

Article 47 has thus been relied upon to conclude that the State has the power to enforce an absolute prohibition of the manufacture or sale of intoxicating liquor and has the exclusive right to carry on the business in such liquor.[93]

Article 21 **:** The biggest beneficiary of this harmonising approach has been *Article 21* by reading *Article 21* with the Directive Principles, the Supreme Court has derived therefrom a bundle of rights. Though as a result of much debate, "*free legal aid"* for the disabled was adopted as a Directive by inserting *Article 39A* in 1976 (42nd *Constitution* Amendment), it was not yet made a fundamental right.

It has eventually been made a fundamental right by *interpreting**Article 21* in the light of *Article 39A*, with the following results:

(i) Providing free legal aid to the indigent or other disabled accused in a criminal case is an integral part of the fair procedure guaranteed by *Article 21* of the Indian *Constitution*.

(a) Where a prisoner, owing to indigence or *incommunicado* situation, is disabled from engaging a lawyer to exercise his statutory right of appeal, the Court shall, if the circumstances of the case, and the ends of justice so require, assign a competent counsel for the prisoner's defence, provided the appellant does not object to that lawyer (his constitutional right being to have a counsel of his choice).[94]

(b) It is the *duty* of the State, in such a case, to pay such reasonable remuneration for the defence counsel (not a matter of charity), as may be equitably fixed by the Court.[94]

(c) The State must offer every reasonable facility to such counsel for conducting the appeal, as a condition of a "reasonable, fair and just" procedure, which is postulated by *Article 21*.[95]

(d) This right to free legal aid arises when the accused is for the first time produced before the Magistrate and continues throughout the trial.[96]

(e) It extends even to security proceedings.[97]

(f) It extends not merely to a convicted prisoner but even to *under-trial* prisoners.[98]

(g) By reason of the duty to offer legal aid under *Article 39A*, the State should support voluntary or social organisations engaged in legal aid programme.[1]

(h) Right to live with human dignity engraved in *Article 21* derives its life from Directive Principles.[2]

(i) Right to life includes the right to enjoy pollution free water, air and environment.[3]

(j) Right to health and social justice has been held to be fundamental rights of the workers. It is the obligation of the employer to protect the health and vigour of his employees/workers. The court has derived these rights by reading *Article 21* with *Articles 39*(e), 41, 43 and 48A.[4]

(k) Right to shelter.[5]

(l) Right to education implicit in *Article 21* is to be spelled out in the light of the Directive Principles.[6]

(m) Right to privacy.[7]

2. *Article 38*(2) directs the State "to eliminate inequalities in status, facilities and opportunities…". Reading *Article 21* in the light of *Article 38*(2), the Court has deduced a fundamental right of residents of hilly areas (and a corresponding obligation of the State) to have roads for access to other parts of the country.[8]

Article 31A**:** (1) Even though a contravention of *Article 26* is not expressly shielded by *Article 31A*(1), it has been held that *Article 37* imposes an obligation upon the State to make laws to regulate the conduct of men and their affairs in order to secure social welfare, including the secular activities of religious institutions, so long as the core of religion is not interfered with. There is no such interference when the State undertakes legislation for agrarian reform to prevent exploitation of tenants and cultivators or for vesting ownership of large areas of land

exceeding the ceiling fixed by law even though the ownership of such estates belong to religious institutions.[9] In this sense, the Court has to strike a reasonable balance between the competing interests under *Article 26*(c)-(d) and *Article 31A*.

Directive Principles of State Policy reflect the hopes and aspirations of people. Whenever the State is required to make laws, it must do so consistently with principles as dictated in Pt IV with intent to secure social and economic freedom so essential for establishment of an egalitarian society.[10]

Although the Directive Principles of State Policy are not enforceable by Courts, nevertheless it is the duty of the State to give effect to those principles by making appropriate laws. It has been described as matters of constitutional obligation of the State to do so in public interest and validity of such legislations is normally upheld.[11] It is held that Pts III and IV of the *Constitution* are not supposed to be exclusionary of each other. They are complementary to each other.[12]

Employees Provident Fund and Miscellaneous Provisions Act 1952 was held as a social welfare legislation and is an enactment to implement the objectives under *Articles 38* and *43* of the *Constitution**i.e.,* to protect the weaker sections of the society.[13] It was held that

> a policy-oriented interpretation, when a welfare legislation falls for determination especially in the context of a developing country is sanctioned by principle and precedent and is implicit in *Article 37 of the Constitution* since judicial branch is, in a sense, part of the State.

18.9.4 Re. Other Justiciable Provisions

(i) Not only in the interpretation of the Fundamental Rights, the Court has referred to the Directives in interpreting *other* provisions in the *Constitution*, *e.g.*, *Article 371D* (in the light of *Article 50*);[14]*Article 302* ('in the public interest", having regard to *Articles 39*, *43*).[15]

Thus,

The Directive in *Article 46* has been relied upon in upholding a Service Rule which empowers Government to exempt (for a specified period) members of Scheduled Castes or Tribes from the requirement to pass departmental tests for promotion.[16]

(ii) In interpreting the legislative Entries in the 7th Schedule:

(a) The Court has applied the Directives to give a liberal interpretation to the ambit of a legislative Entry so as to make it possible for the Legislature to implement a Directive,[17] but not so as to confer upon a particular Legislature a legislative power which it does not possess under the federal distribution of powers made by the *Constitution*.[18]

(b) Since the Directive Principles are intended to be implemented both by the Union and the State Legislatures, the ambit of the relevant Entries in the Legislative Lists is to be liberally interpreted with reference to the Directive Principles so that such implementation may be possible.[19]

18.9.5 Use of Directives in *statutory* interpretation suggested.

Is it not permissible for our Courts to go a little further, in interpreting the *statutes* themselves (even in cases where their constitutionality is not in question), in consonance with the Directives, in so far as that is possible without doing violence to unambiguous language?[20] It is hardly necessary to point out that in an age of multitudinous legislative production, there is much of imperfection and ambiguity in statutes, particularly in those where there is scope for a conflict of opinion even amongst the supporters of a particular policy. In a country like the *United States*, where the *Constitution* is brief and yet gives a power of judicial review to the Courts, the Supreme Court has resorted to conflicting economic and social ideologies, with changes in the composition of the Court. In *India,* it is not necessary for the Courts to grope in the dark, because *our**Constitution* is far more detailed and, above all, the goal of the body politic in this country is declared not only in the Preamble but in Pt IV of the *Constitution*, in unmistakable terms.

When a statute comes for interpretation before a Court in India, apart from the canons of statutory interpretation, the Court has several guides. The Fundamental Rights, of course, operate primarily as a negative force, namely, that the Court must annul the statute if it clearly offends against any of the Fundamental

Rights. But the question whether a fundamental right has, *in fact*, been offended, involves a two-way interpretation, namely, that of the relevant constitutional provision on the one hand, and of the impugned statute, on the other hand. The Court would be entitled to strike down a statute only where the mandate of the statute is clear and unambiguous[21] and such mandate violates the limitation imposed by the relevant provision of the *Constitution*, as interpreted by the Court. But where the language of the statute is not clear, the Court must give it such interpretation as will bring it in conformity with the constitutional mandate and thus save the statute:[22]

> …if a provision in a statute is capable of two interpretations then that interpretation should be adopted which will make the provision valid rather than the one which will make it invalid.[23]

18.9.6 Articles 12 and 36.

In my opinion, it is not legitimate for the Court to play the part of a mere onlooker as regards the working of the Directives, in the matter of interpreting the ambit of statutes even in cases where their constitutionality is not in question. It is to be noted that though the Court may not have any part "in making laws", it has to take notice of the fact that, under *Article 37 of the Constitution*, the Legislature is at least morally bound to implement the Directives. The question is, has the Court any obligation to assist the Legislature in carrying out this obligation, where it is possible for the Court to do this by so interpreting a statute as to enable the Legislature to discharge this obligation under Pt IV, in cases where the statute is capable of such interpretation. My answer is in the affirmative, because the word "State" is defined in *Article 36* in the same manner as in *Article 12*. If the Court has any role under *Article 12*, it must have a similar role also under Pt IV. All the Articles from 38 to 51 are addressed to the "State". In this context, we cannot overlook the fact that while the *Constitution* of *Eire* addresses the Directives solely for "the guidance of the Oireachtas" *i.e.*, the Legislaure (*Article 45*), the Directives in *our Constitution* are addressed to "the State" as defined in *Article 12*.[24]

18.9.7 Article 51.

The word "State" in *Articles 38-51* is, therefore, to be understood in the same sense as in *Article 12*. Thus, *Article 51*(c) desires that "the State shall foster respect for international law…". Even in countries where there is no such directive contained in the *Constitution*, the Courts act on the presumption that the Legislature did not intend to violate the principles of international law and would be slow to interpret a statute to violate rules of international law if any other possible construction remains.[25] In the face of the aforesaid Directive in the *Constitution*, the duty of *our* Courts cannot be otherwise; it is therefore, legitimate to read the word "State" in *Article 51* to include the Courts as well.

The foregoing observations expressed at p 118 of vol A of the 6th Edn of this Commentary, have been substantially affirmed by the Supreme Court.[26]

18.9.8 Article 50.

The same may be said of the provision in *Article 50*, relating to the separation of the Judiciary from the Executive. Though the legislation which may be necessary to effect this objective has to be undertaken by the Legislature, the Courts themselves should also take an auxiliary part to implement this Directive in the practical sphere. An example will make this clear. Prior to independence, criminal judicial functions were exercised by members of the Executive Services. Since this combination of executive and judicial functions led, in many cases, to injustice at the hands of officers subservient to the Imperial administration, the national leaders, who themselves had suffered at the hands of the executive Magistrates, declared, in *Article 50*, that the goal of independent India was to take away the judicial functions from the members of the administrative services. Once this was effected, the administration of criminal justice was to be manned exclusively by the members of the "judicial service", as defined in *Article 236*(b) and persons brought under that fold by the application of the power under *Article 237*. Unfortunately, as in other matters, the Directive in *Article 50* could not be implemented in two decades after independence; hence arose the problem under discussion. The question is whether the Judiciary had any concern to facilitate a smooth transition from the imperialistic to a democratic regime as vouchsafed by the *Constitution*. It is common knowledge that since independence, pursuant to the above objective, many statutes have provided that *quasi*-judicial posts should be held, not by members of the administrative services, but by members of the judicial services. In some of such provisions, it is clearly laid down that the post must be filled in by a Judge of a High Court or a person qualified to hold that office, or a District or Additional Judge. In such cases, little interpretation is required on the part of a court to which the statutory provision may be brought for application. But, in *section 7(3)(d) of the Industrial Disputes Act 1947*, as amended in 1956 and 1964, the expression used, in connection with the office of the presiding officer of a Labour Court, is that a person in order to be qualified for appointment to that post must have "held any *judicial*

office in India for not less than seven years". The question before the Supreme Court, in *Statesman v H.R. Deb,*[27] was whether a member of the Administrative Service, who had exercised the function of a Magistrate under the *Criminal Procedure Code* for some years, could be said to be a person who has held a "judicial *office*". It requires no argument to hold that the function of a Magistrate under the Code is a *judicial function*, because it is the function of administering criminal justice. It does not, however, follow that the *office* of a Magistrate, when held by a member of the administrative service, must also be held to be a judicial *office, even after the adoption of Article 50 in the Constitution.* The manner in which the Court came to answer this question in the affirmative is, with due respect, interesting. It was held that if a person discharging a judicial *function* could be said to have held an "office", a person exercising the *powers* of a Magistrate under the *Criminal Procedure Code* must be held to have held a "judicial *office*". Apart from the fact that this process of reasoning involves the fallacy of "excluded middle", the English precedent as to "office of a Magistrate" is not, it is submitted, appropriate since there is no question of a member of an administrative service discharging the judicial function of a Magistrate in England. The other reason, namely, that the Respondent was "holding a fixed position for nineteen years" as Magistrate, might be a good ground for refusing *Quo-warranto* which, of course, was not a writ of right. But to hold that "the distinction between judicial function and judicial office is artificial and unsubstantial" runs foul of the Directive in *Article 50*, and, indeed, of the other observation of the Court itself which were a commentary on that Article (without mentioning it) and also on the policy underlying section 7(d) of the Act which the Court was called upon to interpret:

> …the intention of the Legislature really is that men who can be described as *independent* and with sufficient judicial experience must be selected. The mention of High Court Judges and District Judges earlier in the same section *indicates that ordinarily officers from the civil judiciary must be selected at least so long as the separation of judiciary from the Executive in the public services is not finally achieved.* The appointment of a person from the ranks of civil judiciary carries with it an assurance which is unique. *The functions of a Labour Court are of great publicimportance and quasi-civil in nature…*Persons *employed on multifarious duties and in addition performing some* judicial functions, *may not truly answer the requirement* of section 7…For *it cannot be denied* that the expression "holding judicial office" signifies *more than discharge of judicial functions while holding some other office…*[28]

A layman must be bewildered to find out the reason why, in the face of such unequivocal pronouncement as above, the Court could "agree with BACHAWAT J. (who had in the meantime become a member of the Supreme Court), that a Magistrate holds a judicial office". The public may not be concerned with the particular writ of *Quo-warranto* against the Respondent in the case before the Supreme Court but may be pained to find that, finding an opportunity to construe section 7(d) of the Act in consonance with *Article 50 of the Constitution*, the Court aids the Executive in continuing to man the quasi-judicial post for years after the commencement of the *Constitution*, contrary to the mandate of *Article 50*. The Court might, without doing violence to any canon of construction, have held that since there was no statutory definition of the expression "judicial office", it should be construed "in consonance with" *Article 50 of the Constitution* so that it could not comprise within its ambit a member of the executive service who had exercised a magisterial function along with his administrative functions and all the time remaining under the administrative control of the Executive.

18.9.9 The goal of the State under the Constitution of India.

In other countries, Courts have sometimes to strive for finding out what was the "spirit of the *Constitution*" or what was the object which the makers of the *Constitution* had in their mind. In our *Constitution*, that goal or object is written clearly on the face of the *Constitution*, in Pt IV, to the effect that:

> The benefits of economic development must accrue more and more to the relatively less privileged classes of society, and there should be a progressive reduction of the concentration of incomes, wealth and economic power. The problem is to create a milieu in which the small man who has so far had little opportunity of perceiving and participating in the immense possibilities of growth through organised effort is enabled to put in his best in the increase of a higher standard of life for himself and increased prosperity for the country…For creating appropriate conditions, the State has to take on heavy responsibilities as the principal agency speaking for and acting on behalf of the community as a whole…[29]

The goal, in short, is to establish a socialistic welfare State.[30]

The only thing that I suggest in the present context is that the Court should take a similar attitude in the matter of interpretation of statutes[31] even where there is no question to interpretation or application of any provision of the *Constitution* outside the Directives. By so doing, a Court would smoothly usher in a state of affairs which is conducive to the achievement of the Directives as the goal of our State, and thereby reduce the occasion for

amending the Fundamenal Rights in order to implement the Directives which, certainly, does not sound well. An illustration might explain what I mean:

Section 47(1) of the Motor Vehicles Act 1939 empowers a Transport Authority to grant or refuse a permit for operating a vehicle as a stage carriage upon a consideration of the various circumstances specified therein. Sub-clause (a) of this Clause is couched in a very wide language, namely, "the interests of the public generally". Since section 47 is *prima facie* a restriction imposed upon the fundamental right guaranteed by *Article 19*(1)(g), a liberal interpretation cannot be given to sub-clause (a), *per se*. But if *Articles 39*(b)-(c) of the *Constitution* is kept in view in interpreting sub- clause (a), it may legitimately be held that other conditions being substantially equal between two applicants, it would be in the public interest to refuse permit to an applicant who already holds permits for a fleet of buses. In fact, the Supreme Court has, without the aid of *Articles 39*(b)-(c), come to hold that refusal of a permit on the ground that it would make the applicant a monopolist would be justified on the ground of "public interest" within the meaning of *section 47(1)(a) of the Motor Vehicles Act*.[32] What I am suggesting is that the same conclusion could follow from an application of the Directive Principle in *Articles 39*(b)-(c) even if there was any doubt as to the interpretation of the expression "public interest".

Even in a sphere where there is no question of any direct and clear conflict with the Fundamental Rights, Courts can hardly ignore the Directives once it is realised that the Directives also aim at the freedom of the individual, though from a different aspect. Historically, as I have shown, the Directives have the same source as the Fundamental Rights and it is only the non-justiciability of the Directives, by nature, by reason of which the makers of our *Constitution* were obliged to separate the Directives from the Fundamental Rights and place them under a separate part. But both sprang out of the same protest of the freedom-fighters of this country against injustice and exploitation suffered by the people under foreign domination. Thus, as early as 1931, the Congress, in a resolution on Fundamental Rights,—otherwise known as the "Karachi Resolution", declared—

> In order to end the exploitation of the masses, political freedom must include real economic freedom of the starving millions.

The makers of *our**Constitution*, therefore, desired to reach the same goal by imposing both negative and positive obligations upon the State.[33]
18.9.10 Social and economic justice.

While the Fundamental Rights seek to establish the freedom of the individual against legal inequality and arbitrary action by the State, the Directives aim at establishing social and economic justice and the dignity of the individual, which is assured by the Preamble to the *Constitution*. In a modern society, freedom from wants and freedom from exploitation by others are no less important than freedom from arbitrary exercise of power by the State. An exercise of the right to equality before the law for instance, is impossible where the aggrieved individual has no means to enforce his right to equality in a court of law. While, therefore, a Court has duty to keep the Fundamental Rights in the forefront in awarding legal and constitutional remedies, it has a similar duty to keep the Directives at the back of its mind, lest they are not forgotten altogether; and shape its decisions, wherever possible, in conformity with the ultimate goal of our society, as represented by the Directives. In fact various decisions of the Supreme Court have accepted the above principle that it has a duty not to ignore the Directive Principles of State Policy in interpreting the statutes.[34] In interpreting a legislation which was clearly in furtherance of the Directive Principles of State Policy in *Articles 39*(b) and (c) of the *Constitution*, the courts must adopt a construction which would subserve and carry out the purposes and objects of the Act rather than to defeat it.[35] The constitutionality of legislative or administrative action should be examined in the context of Directive Principles of State Policy.[36] Welfare legislations are to be liberally construed and the benefit of doubt should go to the weaker section.[37] In *Stateof Kerala v N M Thomas*,[38] the court which considered the special provision for backward classes, upheld the rule (Rule 13AA of Kerala State and Subordinate Service Rules. This rule provided exemption to candidates belonging to backward classes (SC/ST) from passing the departmental tests. The court held that *Articles 16*(1) and (2) has to be interpreted in consistent with *Article 46*.[39]

A legislation to protect and preserve the economic interest of persons belonging to the SC/ST and to prevent their exploitation as directed in *Article 46 of the Constitution* and a legislation to resume the land and to restore the same to the members of the SC/ST is valid. It was said that the members of the SC/ST require special care.[40] Constitutional validity of *Payment of Bonus Act* was upheld while interpreting *Articles 43* and *39* of the *Constitution*. The Act compelled the employer to pay minimum bonus even in case the unit was running at a loss. It was held that the restriction imposed by the Act *i.e.,* direction to pay bonus was reasonable under *Articles 19*(6) and 302. It was held that what is reasonable depends upon a variety of circumstances, but what

is important is that Directive Principles of State Policy in Pt IV of the *Constitution* are fundamental to the governance of the country.[41] *Article 46* was relied on and read along with *Article 16*(4) to consider various directions or orders by Railways to promote the SC/ST. It was held therein that preferential treatment to SC/ST is not a concession, but it is a recognition of their undoubted fundamental right to equality of opportunity.[42]

The Supreme Court interpreted the end part of *Article 37* "it shall be the duty of the State to apply these principles (*i.e.,* Directive Principles) in making laws" – is not a pariah, but a constitutional mandate. For judging the reasonability of restriction imposed on Fundamental Rights, the relevant considerations are not only those as stated in *Article 19* itself or in Pt III of the *Constitution*; the Directive Principles stated in Pt IV are also relevant. Implementation of the Directive Principles contained in Pt IV is within the expression "restriction in the interest of general public. A restriction placed on fundamental rights aimed at securing Directive Principles will be held reasonable and hence *intra vires* subject to two limitations: (1) that it does not run in clear conflict with the fundamental right, and (2) that it has been enacted within legislative competence of the enacting legislature under Pt XI chapter I of the *Constitution*.[43] If, in determining what is obscene so that the fundamental right to publish a matter may be forfeited in order to suppress an obscene matter, the Court has to find out the "national standard" and the "mores" of the community,[44] in interpreting a law of prohibition it will not be improper for a Court of law to remember that "the prohibition of the consumption of intoxicating drinks and drugs which are injurious to health" is an objective of our society, under *Article 47* of our *Constitution*, without, of course, violating the established principle that nobody can be punished for violation of a penal law which is vague or uncertain.

In the industrial sphere, the Supreme Court has, in fact, acknowledged that the principal objective of our *Constitution*, as expressed in its very Preamble, is to establish "a welfare State'—to secure to all its citizens justice, social and economic,[45] and that statutes and orders thereunder should be interpreted consistently with this objective. The Court has thus given a wider meaning to the Rules made under the *Minimum Wages Act 1948* having regard to the obligation of the State under *Article 41* to ensure to the worker a living wage and a decent standard of life, as distinguished from the statutory obligation to secure minimum wages,[46] under the pre-*Constitution* Act.[47]

The Directive Principles under Pt IV apply both to the Parliament and State legislatures. Both the Central and State governments are bound to ensure observance of various social welfare and labour laws enacted by the Parliament for the purpose of securing to the workmen a life of basic human dignity in compliance with the Directive Principles.[48] Rules empowering a State- owned corporation to terminate services of permanent employees without notice are violative of the Directive Principles contained in *Articles 39*(a) and 41 read with *Article 21* which deals with livelihood.[49]

Provision in Haryana Panchayat Raj Act disqualifying persons having more than two children to get elected as Sarpanch, Up-Sarpanch and Panch was found to be valid taking into consideration *Articles 38*, *47* along with other Articles. It was held that there is no violation of *Article 21*.[50] Upholding the validity of Maharashtra Mathadi, Hamal and other Manual Workers Act 1969, the Supreme Court held that employers have a social obligation towards have-nots of the society in view of *Articles 38*, *39*, *42* and *43* of the *Constitution*.[51] In that case, the court held that being a beneficial legislation to protect "unprotected worker", the definition has to be given a broad interpretation. Recently the court held that in a maturing society individual right and collective rights have to be balanced and true effect of *Article 14* is to ensure that a few individuals do not enrich themselves at the cost of all others, which would amount to deprivation to the plurality, *i.e.,* nation itself.[52] In that case, the court emphasised the Public Trust Doctrine while disposing of natural resources. The court held that in view of public trust doctrine, the judicial scrutiny in State action in allocating, dispensing, or alienating natural resources will be on a higher degree, no matter how consistent with existing legislation. The court held that the expression "common good" in *Article 39*(b) has to be understood and appreciated in a holistic manner and the manner in which "common good" is best served cannot be measured by any constitutional yardstick as *Article 14* does not pre-define any economic policy as a constitutional mandate nor does *Article 39*(b) impose any such restriction. It was held that revenue maximisation is not the only way in which "common good" could be achieved. In that case, the court held that auction is the best method in dispensation of natural resources and in case where auction is deviated, action of the government must be in strict compliance with *Article 14 of the Constitution of India*.

Right of an accused to get fair and speedy justice as contemplated in *Article 39-* A was held as a part of *Article 21* and financial restraints of the State cannot be a ground to deny the same.[53]

On the question of free legal aid under *Article 39-A*, it was held that it is part of *Article 21* read with *Articles 39-A*

and 22(1) and even if the accused did not demand for the same, the court must, as a constitutional duty, provide him with a lawyer.[54]

It is gratifying to note that subsequent to the foregoing observations at pp 120-122 of the 6th Edn of vol A of this Commentary, the Supreme Court has held that in view of Directives read with the Preamble, (a) it is the duty of the State to establish social[55] and economic[56] justice and (b) it is the duty of the State to take affirmative and positive measures as a result of which the foregoing objectives may be adequately achieved.[57]

The Supreme Court has thus taken up an *activist* role in applying the Directives.[58]
18.9.11 Judicial activism.

I. Even though the Directives *per se* cannot be enforced by the Court nor can the Court compel the State to undertake legislation to implement a Directive, the Supreme Court has been issuing various directions to the Government and administrative authorities to take *positive action*[59] to remove the grievances which have been caused by non-implementation of the Directives.[60] The Directives are thus being enforced, indirectly, by the Court, by issuing such directions as follows:

(i) To issue a notification under the *Minimum Wages Act* for the benefit of bonded and other exploited labourers.[61]

(ii) To set up a Joint Committee of the Union of India and a State Government concerned as a machinery to supervise and ensure that the poor and needy employees are not exploited by unscrupulous contractors in imposing terms violative of the Directives under *Articles 38*, *41*, *42*, *43* or the various labour laws.[35]

(iii) To regularise as far as possible, casual or temporary employees, to give them security of tenure as envisaged by *Article 41*, read with the Preamble.[62]

(iv) To take various steps for extending the benefit of *Article 39A* to all under-trial prisoners[63] and to engage an experienced lawyer so that the accused may offer an effective defence.[64]

(v) To lay down procedural safeguards in the matter of adoption of Indian children by foreigners, in view of *Article 39*(f).[65]

Direction was issued for safety and protection of sewage workers. In that case, an argument was taken by issuing direction the court has usurped the power of legislation which was rejected.[66] In that case, *Articles 38*, *39-A*, *42*, *39*(e) and the importance of PIL to issue direction were discussed.[67]

When the court exercises the power under *Article 32*, and human right problems are brought before the court and read along with *Article 21*, the Court issues direction, though the provisions under Directive Principles of State Policy also come for discussion.

The court has taken into consideration the role of judiciary envisaged in the Beijing Statement of Principles of the Independence of Judiciary in the LAWASIA region which was accepted by the Chief Justice of Asia. In the Beijing Statement, the objections are: (1) to ensure that all persons are able to live securely under rule of law; (2) to promote within the proper limits of the judicial function, the observance and the attainment of human rights; and (3) to administer the law impartially among persons and between persons and the State.[68]

II. The Supreme Court has, in applying statutory provisions, shaped its views in the light of the Directives.

(a) The initial approach is that a statutory provision which is challenged as violative of a fundamental right shall still be upheld as valid if it does, in fact, *implement* a Directive Principle, *e.g.**Articles 39*(b)-(c); but not otherwise.[69] The artificial definitions in *sections 11* and *23* of the *Urban Land (Ceiling and Regulation) Act 1976* was thus upheld.

The socio-economic adjustments are the main current of modern law. The doctrine of social and economic justice has been recognized in *Articles 38*, *39*, *41*, *42*, *43* & 43-A of the *Constitution*. The *Constitution* by Directives given in these articles enjoins the State to secure social justice for the welfare of the people. Social and economic justice has been given a place of pride in the *Constitution* and one of the Directive Principles of State Policy enshrined in *Article 38* requires that the State shall strive to promote the welfare of the people by securing and protecting as effectively as it may, a social order in which justice, social, economic and political shall dominate over all the institutions of national life. Besides, *Article 43* enunciates another Directive Principle

by providing that the State shall endeavour to secure suitable ways to all workers, agricultural, industrial or otherwise work, a living wage, conditions of work ensuring a decent standard of life and full enjoyment of leisure and social and cultural opportunities. *Article 43-A* allows participation of workers in management of industries. The ideal of social and economic justice is a living concept of revolutionary import. It gives sustenance to the Rule of Law and meaning and significance to the ideal of a Welfare State.[70] The concept of social justice is not narrow, one-sided or pedantic, and is not confined to industrial adjudications alone. It is comprehensive. It is founded on the basic ideal of socio-economic equality and its aim is to eliminate disparities and inequalities.[71]

Broadly speaking, the Courts should uphold, as far as possible, legislation enacted by the State to ensure "distributive justice", *i.e.*, laws which seek to remove inequalities and also attempt to achieve a fair division of wealth amongst members of the society, redressing unconscionable or unfair bargains.[72]

(b) The next step is to hold that any State action which defeats a Directive shall be hit by *Article 14* because it is *per se* arbitrary.[73]

(c) In cases of claims for compensation under the *Motor Vehicles Act*, for accidents caused by vehicles owned by the State or State Undertakings, the Court has observed that in view of *Article 41*, directing the State to "make effective provision for disablement…", the State should meet such claims with sympathy instead of indulging in wasteful litigation,[74] or raising frivolous pleas like a private litigant, forgetting that it is the duty of the State under our *Constitution* to effectuate social justice.[75]

(d) Inspired by *Article 43A* (workers' participation in management):

(i) The Court has held that the workers are entitled to appear at the hearing of the winding proceedings of the company under section 433 of the Companies Act 1956,[76] even though they have no *locus standi* under the Act.

(ii) The Court has preferred the Scheme presented by the Employees' Union to the one presented by the Management for running the sick units under the *Sick Industrial Companies (Special Provisions) Act* 1986.[77]

(e) The Court has observed that, in giving his consent to a capital issue under the Capital Issues (Control) Act 1947, the Controller of Capital Issues should have regard to the Directive under *Articles 39*(b)-(c), though he is not concerned to see how the money would be utilised.[78]

18.10 INTERPRETATION OF GUARANTEES OF FUNDAMENTAL RIGHTS IN A WRITTEN CONSTITUTION

The general principles relating to the interpretation of the provisions of a written *Constitution* have been elaborately discussed.

Applying those principles to the interpretation of particular provisions guaranteeing Fundamental Rights, the following propositions may be gathered from judicial decisions of authority:

Commonwealth.

I. Having regard to the object of guaranteeing human rights by a written *Constitution*, the provisions relating thereto should be given a *liberal* or generous interpretation, so that their object may be fulfilled and not defeated, by a strictly literal construction which is applicable to an ordinary statute under private law.[79]

Bermuda

The foregoing proposition was applied by the Privy Council in interpreting the word "child", in section 11(5)(d) of the Bermuda *Constitution* Order 1968 made under the Bermuda *Constitution* Act 1967, enacted by the British Parliament. This provision was, *inter alia*:

> (1) Except with his consent, no person shall be hindered in the enjoyment of his *freedom of movement,* that is to say, the right to move freely throughout Bermuda…
>
> (5) For the purposes of this section, a person shall be deemed to belong to Bermuda if that person – (a) possesses Bermudian status…(c) is the wife of a person to whom…the foregoing paragraphs of this sub-section applies…; or (d) is under the age of 18 years and is the *child,* stepchild or child adopted…of a person to whom any of the foregoing paragraphs…applies.

The question was whether an "*illegitimate* child" would come under the protection of section 11(1) of the foregoing *Constitution* Order, which guaranteed freedom of movement to every child of a person having Bermudian status or his wife. The Privy Council held that in private law, the word "child", without more, would refer only to a legitimate child.[80] Nevertheless, the Privy Council refused to apply that narrow construction of private law to a constitutional instrument guaranteeing fundamental rights, holding that it was the duty of a Court to "give full recognition and effect to those fundamental rights and freedoms…with an open mind".[81]

II. When a *Constitution* has been drawn up subsequent to the International Charters, such as the Universal Declaration of Human Rights, the International Covenants of 1966 or the European Convention, or in the light thereof, a Court should give, if possible, that construction to a constitutional provision relating to human rights, as would be pertinent in the interpretation of these International Charters and Covenants.[81]

This proposition is based upon the presumption that the framers of such a constitutional instrument (particularly where they are themselves parties to these International Covenants) must have had in their mind the provisions of the International instruments, when they adopted similar guarantees.[81]

Thus, in the case from *Bermuda* cited above,[81] the Privy Council held that the word "child" in *Article 24* of the International Covenant on Civil and Political Rights 1966, guarantees protection of the Rights to every "child" irrespective of his birth, and would thus include illegitimate child as well. The same interpretation should, therefore, be given to the word "child" in the Bermuda *Constitution* Order.[81]

U.K.

But, even where the *U.K.* is a party to the International Convention such as the European Convention of Human Rights, it can be invoked for interpretation of the domestic law only where the domestic law is silent or "not firmly settled".[82] Where however the domestic law is clear, it should be binding on the domestic Courts so long as the Convention does not form part of the domestic law.[82]

On the other hand, a generous interpretation does not mean that the Court was entitled to read into the constitutional document things which are *not* there.[83]

India

III. (i) In *India,* it has been held,[84] further, applying the canon of *progressive interpretation,* that the *Constitution*-makers employed a *broad phraseology* while drafting the fundamental rights so that they may be able to cater to the *needs* of a *changing society*.[84a]

(ii) Hence constitutional provisions, and in particular, fundamental rights, should receive a broad interpretation and their ambit should not be cut down by a too astute approach, unless the context otherwise requires.[85]

Provisions encroaching on fundamental rights must be strictly construed.[86] Judiciary cannot cling on to age-old motions of any underlying philosophy behind interpretation. It has to move with the times. When the nature of things changes, the rule of law must change too. This is a truism, in that, the legislature and within limits the court should change rules to keep the law abreast of the change. While interpreting the changing social conditions, one must take into consideration the flexibility of the law. The very fact that changes in society have to be respected in the interpretation of the *Constitution*, while still preserving the core constitutional intent of the *Constitution*-makers, is a factor to be reckoned with. This is more important in the age of globalization when vast changes are taking place both at the social and political levels.[87]

Thus, the broad expression "freedom of speech and expression" has been held to extend to electronic media which did not exist when the *Constitution* was drafted,[84a] such as the T.V.[84a] or Movie;[88] or a house-magazine published by an instrumentality of the State (para 11, 15).[84a]

The Supreme Court has emphasised, television plays a very important and significant role in modern life. Many people obtain the bulk of their information on matters of contemporary interest from the broadcasting medium. It was held that freedom of speech and expression includes the right to receive information and ideas as well as freedom to impart them.[89] A film certified by the Censor Board for public exhibition cannot be subjected to further censorship by the State Government.[90]

The Court interpreted that *Article 19*(1)(a) has a special relationship with *Article 32*, and to enforce the

fundamental right, there is an obligation on the part of State to furnish and the right of writ petitioners to obtain information necessary for articulating and substantiating their case to be heard. The provision of *Right to Information Act* and the right to privacy was also taken into consideration.[91]

The court held that reservation is a sensitive social issue and in a vibrant democracy, public discussion and debate on such social issues are required and are necessary for the smooth functioning of a healthy democracy. Such discussions on social issues bring in awareness which is required for effective working of the democracy. In fact, when there is a public discussion and there is some dissent on these issues, an informed and better decision could be taken which becomes a positive view and helps the society to grow.[92]

The threat of going on a hunger strike to personify the stand on some issues raised by the person, is not unconstitutional, and is a form of freedom of speech and expression.[93] In that case, the court further held that the State has a multi-dimensional role including protection of citizens and hence obliged to ensure safety of people participating in public meeting.

Flying of the national flag is a fundamental right under *Articles 19*(1)(a) and (2) of the *Constitution of India*.[94]

(iii) The same anxiety is shown by the Court in interpreting laws interfering with a person's liberty, under *Article 21*, holding that any provision belonging to the field of criminal justice which involves the liberty of the subject must be strictly construed in favour of the subject.[95]

Thus, it has been held that the object of Proviso (a) to *section 167 (2) of the Code of Criminal Procedure* is to ensure that once a person's liberty has been interfered with by the Police arresting him without a Court's order, the investigation must be completed within the maximum period allowed by the Proviso, failing which the accused would be entitled to be released on bail. This bail cannot be interfered with lightly, *e.g.*, on the ground that the Prosecution has *subsequently* submitted a charge-sheet, because such a view would introduce complacency in the investigating agency and *would destroy the very purpose of* instilling a sense of urgency as expected by section 167(2). Hence, the bail cannot be cancelled and the accused cannot be taken into custody merely on the ground that a charge-sheet has been filed (beyond the statutory period); there must exist some ground under section 437(5) or 439(2) of the Code. The grounds for refusing bail at the initial stage, *e.g.*, section 437(1) are irrelevant for cancelling a bail granted under section 167(2), Proviso (a).[95]

Scope of *Article 21* has been expanded to a very great extent and it is now interpreted that life and personal liberty includes "personal liberty makes for the worth of the human person and travel makes liberty worthwhile".[96] It is held to include right to live with dignity and all that goes along with it, namely, the bare necessaries of life such as adequate nutrition, clothing, shelter over the head and facilities for reading, writing and expressing oneself in diverse forms, freely moving about and mixing and commingling with fellow human beings.[97] A person's reputation is also part of life.[98]*Article 21* includes the right to safety against crime and accidents.[99]

(Further comments in *Article 21*).

18.11 FUNDAMENTAL DUTIES AS AN AID TO INTERPRETATION

Though the fundamental duties in *Article 51A*[1] are addressed to the citizen, this Author's view that these are also useful in the matter of constitutional and statutory interpretation has come to be broadly accepted by the Supreme Court.

A common thread runs through Pts III, IV & IV-A of the *Constitution*. One part enumerates the fundamental rights, the second fundamental principles of governance and the third lays down fundamental duties of citizens. While interpreting any of these provisions, it is always advisable to examine the scope and impact of such interpretation on all the three constitutional aspects emerging from these Parts.

As difficult as it is to anticipate the right to any freedom or liberty without any reasonable restriction, equally difficult it is to imagine the existence of a right not coupled with a duty. The duty may be direct or indirect consequence of a fair assertion of the right. Pt III of the *Constitution* although confers rights, still duties and restrictions are inherent thereunder. These rights are basic in nature and are recognised and guaranteed as natural rights, inherent in the status of a citizen of a free country; but are not absolute in nature and uncontrolled in operation. Each one of these rights is to be controlled, curtailed and regulated to a certain extent by laws made by the Parliament or the State legislature.

Rights, restrictions and duties co-exist. As, on the one hand, it is necessary to maintain and preserve freedom

of speech and expression, in a democracy, there, on the other, it is also necessary to place reins on this freedom for the maintenance of public order. The term “social order” has a very wide ambit. It includes “law and order”, public order as well as the security of the State.

There has to be a balance and proportionality between the right and restriction on the one hand, and the right and duty on the other. It will create an imbalance, if undue or disproportionate emphasis is placed upon the right of a citizen without considering the significance of duty. The true source of right is duty. Where the courts are called upon to examine the reasonableness of a legislative restriction or exercise of a freedom, the fundamental duties enunciated under *Article 51-A* are of relevant consideration. *Article 51-A* requires an individual to abide by the law, to safeguard public property and to abjure violence. It also requires the individual to uphold and protect the sovereignty, unity and integrity of the country. All these duties are not insignificant. Pt IV of the *Constitution* relates to the Directive Principles of State Policy. *Article 38* was introduced in the *Constitution* as an obligation upon the State to maintain social order for promotion of the welfare of the people. By the *Constitution* (42nd Amendment) Act 1976, *Article 51-A* was added to comprehensively state the fundamental duties of the citizens to compliment the obligation of the State. All the duties are of constitutional significance.[2] *Article 51-A* can be used to interpret ambiguous statutes.[3] It was held that fundamental duties are implicit in the concept of fundamental right, the former providing certain restrictions on the exercise of the latter. The question of enforceability of fundamental duties thus takes a back-seat.[4]

In deciding the issue of reasonable percentage of reservation in educational institutions, it was held that one of the factors to be taken into consideration would be, whether the character and quantum of reservation would stall or accelerate achieving the ultimate goal of excellence enabling the nation to rise to higher levels as prescribed in *Article 51-A*(j).[5]

While considering the *locus standi* of a citizen to challenge the constitutionality of Illegal Migrants (Determination by Tribunal) Act 1983, the court relied on *Article 51-A* (d) to hold that any citizen is entitled to bring an Act made by legislature which gives shelter and protection to illegal immigrant foreign nationals to the notice of court.[6]

Fair criticism of judicial functioning is not contempt. Highlighting certain irregularities in the functioning of a Tribunal comprising a particular member in passing wrong orders is not contempt. It was held that the person has only discharged his duty under *Article 51-A*(h).[7]

Article 21 read along with *Articles 48-A* and *51* -A (g) was interpreted by the Supreme Court to direct the polluters for expeditious clearance and disposal of toxic waste and for the preservation of ecology.[8]
(A) Constitutional Interpretation

As regards *constitutional* interpretation, the suggestion is that the role of the Duties in *Article 51A* should be similar to that of the Directives in Pt IV. Hence,

(a) If the State makes a law to prohibit any act or conduct in violation of any of the duties, the Courts would uphold that as a reasonable restriction on the relevant fundamental right,[9] even though it may cause hardship to an individual’s business.[9]

(b) Though these Duties are not directly enforceable against the State,[10] the Court may issue appropriate directions under *Article 32*.[11]

In doing so, the Court has virtually assumed that it is the duty of the State so that a citizen may be properly equipped to perform his duty as enjoined by *Article 51A*.

Thus, in view of *Article 51A*(j), a Division Bench of the Supreme Court has held that it is a *duty* of the Central Government[12] to take a number of steps in order to make this provision effective, and directed the Central Government:

(a) To direct all educational institutions throughout India to give weekly lessons in the first ten classes, relating to the protection and improvement of the natural environment including forests, lakes, rivers and wild-life.

(b) To get text-books written for the said purpose and to distribute them free of cost.

(c) To introduce short term courses for training up teachers who teach this subject.

(d) Not only the Central Government but also the State Governments and local Authorities to introduce cleanliness weeks when all citizens, including members of the Executive, the Legislature and the Judiciary, should render free personal service to keep their local areas free from pollution of land, water and air.[12]

(B) Statutory Interpretation

As regards statutory interpretation, it is regarded as an external aid.[13] Thus,

(a) The Courts may look at the Duties while interpreting equivocal statutes which admit of two constructions.[14]

(b) The fundamental duty to strive towards excellence in all spheres, in *Article 51*(A)(j) has been called in aid to justify the constitutionality in the second Proviso to rule 4 of the Civil Services Examination Rules 1986, against an attack of arbitrariness in violation of *Article 14*. This Proviso imposed certain restrictions upon a trainee officer of a civil service to appear at a higher Service Examination. It was held that the Proviso was not arbitrary.

Even in the matter of giving relief to a party, the Court should consider whether in doing so, it would be defeating a fundamental duty under *Article 51A*.

Further, even on compassionate[15] grounds the Court should not assist students of unauthorised institutions to appear at a University Examination.

In this case, the Court allowed an appeal, setting aside an order of the High Court which directed the State Government to allow some students of an unauthorised institution to sit at a University Examination, with the following observation:

> *Article 51A* enjoins every citizen by clause (h) to develop the scientific temper, humanism, the spirit of inquiry and reform and clause (j) enjoins as fundamental duty to strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement; (a) respect for national flag and national anthem; (e) to promote harmony and spirit of common brotherhood amongst all Indian people transcending religious, linguistic and regional or sectional diversities to renounce practice derogatory to the dignity of woman; (f) to value and preserve rich heritage of our composite culture, etc. are some of the basic duties which the budding students need to be inculcated and imbibed. They should be sowed in the receptive minds in their formative periods so that they take deep roots at maturity. The teacher needs, not only the training at the inception, but also periodical orientations in this behalf so that the children would reap the rich benefit thereof. The ill-equipped and ill-housed institutions and sub-standard staff therein are counter productive and detrimental to inculcate spirit of enquiry and excellence to the students. This disregard of statutory compliance would amont to let loose of innocence and unwary children…The teacher plays pivotal role in moulding the career, character and moral fibres and aptitude for educational excellence in impressive young children. The formal education needs proper equipment by the teachers to meet the challenges of the day to impart lessons with latest technics to the students on secular, scientific and rational outlook. A well equipped teacher could bring the needed skills and intellectual capabilities of the students in their pursuits…The teachers, therefore, must keep abreast ever changing technics, the needs of the society and to cope up with the psychological approach to the aptitudes of the children to perform that pivotal role. In short, teachers need to be endowed and energised with needed potential to serve the needs of the society. The qualitative training in the training colleges or schools would inspire and motivate them into action to the benefit of the students. For equipping such trainee students in a school or a college, all facilities and equipments are absolutely necessary and institutions bereft thereof have no place to exist nor entitled to recognition. In that behalf compliance of the statutory requirements is insisted upon. Slackening the standard judicial fiat to control the mode of education and examining system are detrimental to the efficient management of the education. The directions to the appellants to disobey the law is subversive of the rule of law, a breeding ground for corruption and feeding source for indiscipline. The High Court, therefore, committed manifest error in law in exercising its prerogative power conferred under *Article 226 of the Constitution*, directing the appellants to permit the students to appear for the examination etc.[15a]

(C) RULES RELATING TO DISTRIBUTION OF POWERS

The above is a summary of the more important of the general rules which will be applicable to the interpretation of *ourConstitution*. Besides, these, there are some *particular* rules which would be applicable for interpreting the distribution of powers between the Union and the States. These will be dealt with, separately, under Pt XI, *post*.

(D) RULES FOR DETERMINING CONSTITUTIONALITY OF STATUTE

Special rules are also applicable when the constitutionality of a statute is challenged. These will be explained under *Article 13*, *post*. By way of anticipation, it may be stated in the present context, that where the language of the impugned statutory provision admits of such a construction, the Court would (a) read *into* it the constitutional requirement, *e.g.*, the requirement to comply with the principles of natural justice or that of stating the reasons for an order inflicting civil consequences;[16] or (b) read *down* a wide provision so as to exclude the offending provision so as to bring it in conformity with the *Constitution* (*e.g.Articles 14* or *19*) (para 34).[17]

But neither of the two modes of liberal interpretation can be resorted to where the express language of the statute negates the same or does not admit of any other construction so as to save the statute. In such a case, the offending statutory provision must be struck down as unconstitutional (para 34).[18]

(E) RULES RELATING TO AMENDMENT OF THE CONSTITUTION[19]

An amendment is to be construed with reference to the previously existing *Constitution* and the evils and conditions under it which led to the amendment. Upon the adoption of an amendment, it is to be construed as if it had been originally incorporated in the *Constitution* and every effort should be made to harmonize the amendment with the other provisions of the *Constitution*. If, however, this is not possible, the amendment shall prevail, being the last expression of the sovereign will of the people.[20]

A provision of the *Constitution* never becomes obsolete by disuse. Nothing can be put into the *Constitution* and nothing can be taken out except through the process of amendment.[21]

(F) APPLICABILITY OF FOREIGN DECISIONS IN THE INTERPRETATION OF THE CONSTITUTION OF INDIAStatus of a “foreign decree”[22]

When the Court which passed the decree does not or did not form part of the territory of India, it would (broadly speaking) be a foreign decree in relation to the Court before which execution is sought.[23]

The peculiarities of a foreign decree are:

In international law, a decree which is passed in the absence (*ex -parte*) of the dependent is a nullity. This principle is adopted in section 13(d) of our *Civil Procedure Code* by providing that a foreign judgment is not conclusive. “Where the proceedings in which the judgment was obtained are opposed to natural justice. But either way, it does not become invalid if the defendant submits to the jurisdiction of the foreign court *e.g.* by filing a written statement (though he might absent himself thereafter),[24] or even by applying for leave to defend.[25]

Prior to the *Constitution*, a state in British India and an Indian State were “foreign states” in relation to each other.

The crucial test for determining the character of a decree is the Status of the Court which passed the decree on the date of its passing.

Nevertheless, since questions have occasionally arisen[26] in our Courts as to the relevancy of such foreign decisions, it would be useful to examine it in some detail.

Since most of the provisions relating to fundamental rights, in particular, have been taken almost verbatim from the *American**Constitution*, it is obvious that the decisions of the American Supreme Court on the Bill of Rights relating to these guarantees would be of assistance in interpreting the corresponding provisions of *our**Constitution*.

Learned author D D BASU stated:

> The framers of Indian *Constitution* did not feel ashamed to confess that they have a “borrowed *constitution*”. Nevertheless, the judicial attitude in India towards foreign precedents, presents a wonted spectacle of extreme apathy at the outset, followed by inevitable relaxation, impelled by experience[27].

During the earliest days of the working of the *Constitution*, it seemed that Courts would not touch foreign precedents with a pair of tongs - *State of Bombay v RMDC*,[28]*Sundaramaier v State of AP*,[29]*Dwarakadas v Sholapur Spg. & Wvg. Co*,[30] overlooking the patent fact that the makers of the *Constitution* themselves had openly declared that they were making a “borrowed *constitution*”[31]

In fact, BOSE J.'s thesis has been belied by the Supreme Court itself referring to American decisions to explain the guarantee of equal protection under *Article 14* of our *Constitution*;[32] the ambit of the freedoms guaranteed by Clause (1) of *Article 19*;[33] or the doctrine of immunity against double jeopardy or self-incrimination in clauses (2)-(3) of *Article 20*;[34] the meaning of "liberty" and "procedure established by law" in *Article 21*[35]; or to Australian decisions in explaining "freedom of trade and commerce" under *Article 301*.[36]
Some instances of departures from foreign constitutional precedents.

Of course, where the makers of our *Constitution* have deliberately departed from a precedent[37] or the foreign precedent is inconsistent with the constitutional set-up in India,[38] nobody will insist that the Indian Courts must arrive at the same conclusion as has been arrived at in the country of origin of the basic constitutional concept or doctrine.[39] In *Pooran Mal v Director of Inspection (Investigation)*, the court went to the extent of saying:

> It is not open to the court to strain the language of the *Constitution*, because, American Judges of American Supreme Court have spelt out certain constitutional protection from the provisions of the American *Constitution*.[40]

It is held that it is unsafe to rely on cases which arise under other Constitutions. It is not permissible to draw support from a provision of another *Constitution*, which is sufficiently worded. On the desirability of drawing heavily or relying on the provisions of the *Constitution* of other countries or on the decision rendered therein, a word of caution will be necessary. Law arises according to the requirement of time and place. Justice thus becomes a relative concept varying from society to society according to the social milieu and economic condition prevailing therein. Decisions of foreign courts and treatises and articles written on various constitutions by foreign writers will not be a safe guide in construing our *Constitution*.[41]. In *Ashok KumarThakur v UOI*,[42] it was held that the decisions of the American Supreme Court have not been applied in the Indian context as it is felt that the structure of the provisions under the two Constitutions and the social conditions as well as other factors are widely different in both countries. It was held that the Fourteenth Amendment to the US *Constitution**inter alia* provides that no State shall deny to any person within its jurisdiction equal protection of the laws; whereas in India, *Articles 14* to 18 are differently structured and certain express provisions for special provision for the advancement of socially, educationally backward community, (SEBC) ST/SC. Further, the Preamble to the *Constitution* and the Directive Principles of State Policy give a positive mandate to the State and the State is obliged to remove inequalities and backwardness from the society. While considering the constitutionality of a social legislation, it is worthwhile to note the objectives which have been incorporated by the *Constitution*-makers in the Preamble of the *Constitution* and how they are sought to be served by enacting Fundamental Rights in Pt III and Directive Principles in Pt IV. Fundamental Rights represent the civil and political rights and Directive Principles embody social and economic rights. Together they are intended to carry out the objectives set out in the Preamble of the *Constitution*. In the Indian *Constitution*, there is a specific provision under the Directive Principles of State Policy in Pt IV requiring the State to strive for justice – social, economic and political – and to minimise inequalities of income and endeavour to eliminate inequalities in status, facilities and opportunities. K.G. BALAKRISHNAN CJ. Of the US Supreme Court has held that "race" may be one of the many factors that can be taken into account while structuring an affirmative action programme. In India, it is held that "caste" may be one of the factors that may be taken into account, while providing reservation for the socially and educationally backward class. However, "caste" cannot be the only factor, just as "race" alone cannot be the only factor in the US while structuring reservation or affirmative action programme. According to learned Judges ARIJIT PASAYAT and THAKKER, there is a conceptual difference between the cases decided by the American Supreme Court and Supreme Court of India (regarding reservation). The logic of strict classification and strict scrutiny does not have much relevance. If one looks at different statutes in India, *Article 14* of our *Constitution* is conceptually different from the Fourteenth Amendment to the American *Constitution*. While interpreting the constitutional provisions, foreign decisions do not have great determinative value. They may provide materials for deciding the question regarding constitutionality. In that sense, the strict scrutiny test is not applicable and in-depth scrutiny has to be made to decide the constitutionality of a statute. Another learned judge, BHANDARI J. held:

> At the outset, it is made clear that decisions of foreign countries are not binding on Indian courts. Indian Courts have not adopted American standards of review. But judgments delivered by US Courts on affirmative action have great persuasive value and they may provide broad guidelines as to how we should tackle our prevailing condition. US law, of course, though not binding, does have great persuasive value. Where others have reviewed similar issues in great detail, it behoves us to learn from their mistakes as well as accomplishments. We need to keep our windows open and permit the light of knowledge to enter from any source. Let the path of our constitutional goals be enlightened by experience, learning, knowledge and wisdom from any quarter.

Where a law was laid down by the Supreme Court and reiterated in numerous subsequent decisions, a wider proposition of law laid down in foreign judgment is not acceptable.[43]

In his book, D D BASU has said:

> The historical survey of our *Constitution* makes it clear, that the draft *Constitution* is the deliberate and cool-headed product of a group of men who prepared a Draft after ransacking all the known Constitutions of the world. They had the experience of the Government of India Act 1935, and almost 75% of the *Constitution*, therefore, owes its origin to that law, subject of course, to modifications in the light of experience. The ideological portion, namely, the Fundamental Rights is inspired by the *Constitution* of United States. The federal form, as the framers explain, is shaped mostly in the light of Canadian *Constitution* Act, though at places there are Australian touches as well. The principle of responsible government, on the other hand, has been borrowed from the British system. The *Constitution*, therefore, is a unique document drawn from many sources and the "interpretation given by foreign courts upon the borrowed provision will accordingly be "admissible" in interpreting many of the provisions of our *Constitution*, subject, of course, to modification, as may be necessary[44].

The reason for initial allergy of the Bench and Bar towards American precedents, in particular, was patent. Without meaning any disrespect to anybody, it may be stated that prior to 1950, the Indian legal world was familiar with the Government of India Act, but had nothing to do with either the text of American *Constitution* or the judicial gloss placed thereon by the American Supreme Court. In fact, in a city like Calcutta, there was, in 1949 -50, only one broken antiquated set of American Supreme Court decision gifted by the venturesome judge SIR ASUTOSH MUKHERJEE. The very fact of limited government and judicial review borrowed from the US was "Greek" to many of those who headed the legal world during the early years of Indian *Constitution*…"[45].

(i) In India, the written *Constitution* itself acts as a limitation upon the powers of the Legislature, any talk about the sovereignty[46] or omnipotence of the Parliament[47] in the *Dicean* sense or any reliance upon British precedents, founded upon an absence of separation of functions between the Legislature *vis-a-vis* the Judiciary,[48] cannot be of any avail.[49]

The written *Constitution*, in which we have engrafted the Parliamentary system, subjects the Legislature to manifold limitations,[49] by distributing the legislative power between the Union and the State Legislatures, by adopting a justiciable Bill of Rights, by embodying in the *Constitution* other substantive and mandatory provisions which operate as limitations upon every organ of the State, and which are enforceable by the Courts to invalidate laws made by the Legislature which may transgress any of such limitations.[50]

(ii) The English common law doctrine of "franchises" has no application in India in view of the guarantee in *Article 19*(1)(g).[51]

(iii) In introducing the parliamentary or cabinet system of Government, the Indian *Constitution* has codified some of the conventions under the unwritten *Constitution* of England, subject to express exceptions, if any. Hence, in interpreting those provisions, reference to the English precedents may not be necessary.[52]

But since it was not physically possible for the framers of the Indian *Constitution* to codify all the numerous unwritten conventions upon which the Cabinet system of Government stands, on matters upon which the Indian *Constitution* is silent,—there being no express provision either adopting or rejecting the British convention,—the British convention should be imported in interpreting the codified provisions, in so far as they are relevant.

U.S.A.

(iii) Since we have adopted the Cabinet system of Government of the British model, an application of the doctrine of Separation of Powers in the American sense would be out of the question.[53]

The Supreme Court noticed in *Delhi Laws Case* (*supra*) that our *Constitution* does not vest the legislative and judicial powers in the legislature and judiciary in so many words; the majority in effect, imported the essence of modern doctrine in so many words, of powers applying the principles of "Constitutional trust". None of the organs of Government under the *Constitution* can, therefore, usurp the function or powers which are assigned to another organ by the *Constitution* expressly or by necessary implication. On the same principle, none of the organs can divest itself of the essential functions which belong to it under the *Constitution*. As to extent of operation of doctrine of Separation of Powers, since there is difference of opinion between the two judges who constituted the Bench, the case has been referred to a larger Bench.[54]

(iv) The American doctrine that the declaration by a Court of the unconstitutionality of a statute in a case binds only the parties thereto and does not operate as a judgment against the statute is not applicable in India as regards the pronouncements of the Supreme Court, in view of *Article 141 of the Constitution* which says that the law declared by the Supreme Court shall be binding on all courts within the territory of India. Once, therefore, the Supreme Court of India declares a statute as unconstitutional, no court in India can thereafter take any cognisance of that statute,[55] unless of course it is validated by a subsequent amendment of the *Constitution* itself.[56]

(v) Since by *Article 248* of our *Constitution* residuary powers have been vested in the Union Legislature,[57] it would be a blunder to apply the American theory that the Federal Legislature has only enumerated powers, the residue belonging to the States.

(vi) Since clauses (2) to (6) of *Article 19* enumerate the grounds upon which restrictions may be imposed on the respective fundamental rights conferred by Clause (1) of that Article, the grounds of restriction cannot be enlarged by appeal to the contents of the doctrine of "police powers" or the like.[58]

(vii) In view of the provisions in clauses (2)-(6) of *Article 19*, anticipatory action restraining the exercise of fundamental rights on the grounds specified in those Clauses is permissible in India and the American doctrine of "clear and present danger" cannot be imported.[59]

(viii) Similarly, the American doctrine, propounded in some cases,[60] that the freedoms embodied in the First Amendment to the *Constitution*, namely, the freedoms of speech, press, assembly and religion have such a preferred status amongst the rights enumerated in the Bill of Rights, that in their case, the presumption of constitutionality of an impugned statute will not apply, would not be applicable to India.

The reason is, that all the fundamental rights enumerated in Pt III of our *Constitution* rank together without any emphasis on any of them, so that whenever the constitutionality of a statute is alleged on the ground of contravention of any of the fundamental rights, the burden will be upon the person who makes such challenge, to establish the unconstitutionality.[61]

(ix) Since there is no guarantee in our *Constitution* regarding the impairment of obligations of contracts, the mass of the decisions on the latter part of Article I, section 10(1) of the American *Constitution* shall have no application in India.[62]

(x) The American doctrine of "original package", according to which the course of import does not cease until the original package in which the goods were brought into the State is broken, has no application in India in view of the express provision in Entry 41 of List I of the 7th Schedule of the *Constitution* that a thing is "imported" as soon as the "customs frontiers" of India are crossed.[63]

(xi) In interpreting *Article 368*, *our* Supreme Court has invented the doctrine of "basic features", not known in the U.S.[64]

Australia.

(xii) Though some of the provisions of Pt XIII of *ourConstitution*, dealing with the freedom of trade and commerce, have some analogy to sections 92, 99 of the Australian *Constitution* Act, beforeapplying the Australian decisions to the solution of any problem arising under our *Constitution*, we cannot overlook various other provisions of our *Constitution* for which there is no counterpart in the Australian *Constitution*,[65]*e.g.*, *Article 19*(1)(6) or *Articles 302-304*.

(xiii) Since in *India,* the powers of a State Legislature are as fully defined as those of the Union Parliament, the ambit of a Union power may have to be narrowed down in order that the State power may not be rendered nugatory. On this ground, *our* Courts have refused to give the wider meaning, as prevails in the *U.S.A.* or *Australia,* to the expression "duties of excise", and have excluded from its ambit a tax on the sale of goods, because the power to impose such tax is conferred by the *Constitution* upon the State Legislature.[66]
How far foreign precedents are useful in interpreting our Constitution.

But even to ascertain whether and to what extent the makers of our *Constitution* intended to depart from a foreign precedent or it was only by accident that a different language was used, we must resort to the philosophy and reasoning that lies at the back of the provision in question.

A balanced view about the use of foreign decisions in interpreting the provisions of our *Constitution* appears to have been taken by GAJENDRAGADKAR J., for the majority in the *Atiabari Case*:[67]

> It is commonplace to say that the political and historical background of the federal polity adopted by the Australian Commonwealth, the setting of the *Constitution* itself, the distribution of powers and the general scheme of the *Constitution* are different, and so it would not be safe to seek guidance or assistance from the Australian decisions when we are called upon to construe the provisions our *Constitution*…
>
> Even so the reported decisions of this Court show that in dealing with constitutional problems reference has not infrequently been made to Australian and American decisions; and that, we think, brings out the characteristic feature of the working of judicial review. *When you are dealing with the problem of construing a constitutional provision which is none-too-clear or lucid, you feel inclined to inquire how other judicial minds have responded to the challenge represented by similar provisions in other sister Constitutions*.[67]

More outspoken was the pronouncement of BHAGWATI J., for a unanimous Court, in the *Express Newspapers Case*.[68]

> It is trite to observe that the fundamental right to the freedom of speech and expression enshrined in *Article 19*(1)(a) of our *constitution* is based on…Amendment I of the *Constitution* of the United States of America and it would be therefore legitimate and proper to refer to those decisions of the Supreme Court of the United *States*….in order to appreciate the true nature, scope and extent of this right *in spite of the warning administered by this Court against the use of American and other cases*.[69]

The reasons why we have to refer to foreign decisions, at least occasionally, is not, however, the weakness of our Courts, but the *nature of ourConstitution* itself, namely, that it was framed after an examination of the different constitutional precedents available at that time. As observed by SUBBA RAO J. in the *Automobilecase*.[70]

> …our *Constitution* was not *written on a clean slate.* Many of the concepts were *borrowed*[71] from the Government of India Act or from other Constitutions and adopted to suit the conditions of our country. We cannot ignore the fact that the *Constitution* was drafted by persons some of whom had a deep knowledge of the constitutional problems of other countries, and, therefore, they must be assumed to have had a knowledge of the interpretation put upon certain legal concepts by the highest tribunals of those countries. At the same time, it can be reasonably assumed that they have made a sincere attempt to accept the good and to avoid the defects found by experience in the other Constitutions, and also to mould them to suit our conditions. Further, a brief survey of the relevant provisions of those Constitutions, which form the background of this Article, and the interpretation put on them by the highest tribunals of the respective countries would not only be relevant but also be *necessary* for appreciating the correct scope of *Article 301* of our *Constitution*.[71a]

Let us now advert to some provisions of *ourConstitution*, in the interpretation of which foreign decisions have been referred to:
Article 12.

(i) In interpreting the word “State” in *Article 12*, the Court has relied upon American decisions on the ambit of “State action”, to determine what “authorities” could be *held to be theinstrumentalities* or agencies of the Government.[72]
Article 14.

(ii) In interpreting *Article 14* on “equal protection of the laws” the Indian Supreme Court has copiously referred to American decisions, to import the doctrine of “reasonable classification”, which is inherent in the guarantee of equal protection even though not explicitly mentioned in *Article 14*.[73]
Article 19.

(iii) In interpreting the fundamental rights included in *Article 19*, and, in particular, the freedom of speech and expression[74] the Court has acknowledged the legitimacy of referring to American decisions to discover the contents of these freedoms as included in the First Amendment to the American *Constitution*, subject, of course, to this reservation that the conditions of permissible restrictions are, under the Indian *Constitution*,

specifically enumerated in the relevant limitation Clauses, in clauses (2)-(6), so that it is not necessary to rely on the American decisions which are founded on judicially-evolved American principles.[75]

In interpreting the word "reasonable" restrictions in Clauses (2)-(6) of *Article 19*, again the Supreme Court has imported the facts of *substantive* and *procedural* "due process" from American decisions under the Fourteenth Amendment.[76]

In interpreting words and expressions which are used in the *Constitution* without furnishing any definition thereof, such as "sale of goods", the court has relied on the pre-*Constitution* common law prevailing in India as embodied in English and American decisions.[77]
Article 20

(iv) Similarly the Court has relied upon American decisions in interpreting the doctrines of immunity against double jeopardy and self-incrimination, which are embodied in clauses (2)-(3) of *Article 20* of our *Constitution* (though in a different langauge).[78]
Article 21

(v) More venturesome has been the importation of the concept of "due process" into *Article 21*, which has not even the word "reasonable" in its text. On the other hand, in relation to this provision, the makers of *our*Constitution expressly sought to exclude "due process".[79] It is on this basis that the majority of the Supreme Court, in its earliest pronouncement in *Gopalan's case*,[80] flatly denied the possibility of admitting into *Article 21* any ingredient of American "due process" or even of the "reasonableness" concept from *Article 19* of our *Constitution* itself,—to arrive at the proposition that whatever was laid down by the Legislature in a penal law would satisfy *Article 21* and that the Court could not intervene even where the procedure laid down was arbitrary or "harsh, unreasonable, archaic or odious."[81]

But the nucleus of the thesis that the very word "procedure" in *Article 21* means a procedure which is not arbitrary but gives the person condemned "the right to be heard before he is condemned",—which as FAZL ALI J. demonstrated, was an ingredient of "due process",[82]—is to be found in the judgments of some of the Judges in *Gopalan's case*.[83] Most illuminating were the words of MAHAJAN J. [84]who otherwise sided with the majority conclusions:

> *Article 21*…gives also a further guarantee that in its true concept there should be some form of proceeding before a person can be condemned…It negatives the idea of *fantastic, arbitrary and oppressive forms of proceedings*.[84]

In later decisions[85], this view has prevailed, highlighting the concept of "*fairness"* being inherent in *Article 21*, following the observations in *Maneka* case[86], that the very words "procedure" and "established" in *Article 21* indicated that the procedure should be fair, just and reasonable" and not arbitrary or whimsical (paras 54, 57, 117).[87] In short "The component of fairness" is implicit in *Article 21* (para 118).[88]

In *Selvi v State of Karnataka*,[89] it was held that narco-analysis or polygraph test (lie detector test) and Brain Electrical Activation Profile conducted against the will of a person violates the principle of "procedure established by law or substantive due process" and even the tests conducted with permission or consent of person voluntarily is subject to admissibility. Various American decisions were discussed and relied on in that case. In *Mohd. Ajmal Amir Kasab v State of Maharashtra*,[90] the American decision in *Miranda v Arizona*[91] was discussed and distinguished on the ground that our *Constitution* is very strongly built and provisions of *sections 161* to *164* of the *Code of Criminal Procedure* and *sections 25*, *26* and *32* of the *Indian Evidence Act* are designed to afford complete protection to the accused against self-incrimination and no guidance need be taken from the American decision. In fact, in both cases (*i.e., Mohd. Ajmal Amir Kasab and Selvi's case*) hundreds of decisions of the American Supreme Court were discussed.

Following the American cases holding that commercial speech is protected under the First Amendment of the US *Constitution*, our Supreme Court also ruled on the same way.[92]

Right to privacy, a doctrine evolved in USA is now accepted in India.[93] Earlier, the court held that right to privacy is not guaranteed in India.[94]

After holding that the Indian Courts are not bound by the decisions of foreign countries, the Supreme Court further held that the Indian Courts can prefer to follow a minority view in a foreign judgment and can even prefer to follow an overruled decision and foreign decisions have only a persuasive value. But, in that case, the court

followed the English decision in *Airdale NHS Trust v Bland*.[95] The case related to law "right to die". In that case, the court also considered various decisions of the American Supreme Court.[96]

In *Raja Ram Pal v Hon'ble Speaker, Lok Sabha*,[97] the court held that the decisions of foreign courts, though useful to understand the different constitutional principles and trend of law as also common law principles underlying the statutes, are of limited or of no assistance in interpreting "special provision" in the Indian *Constitution*.

In *UNR Rao v Indira Gandhi*,[98] it was urged that the Supreme Court should interpret *Article 75*(3) on its own, regardless of convention that prevails in Britain. The court held that if the words of an Article are clear, notwithstanding any convention, effect will no doubt be given to the words. But, it must be remembered that we are interpreting a *Constitution* and not an Act of Parliament, a *Constitution* which establishes a Parliamentary system of Government with a cabinet. In trying to understand, one may well keep in mind the convention prevalent at the time when the *Constitution* was made.

Widest possible use of English precedents has been made in India to interpret the scope of *Articles 32* and *226*. The courts have power to issue writs under these provisions and the conditions and circumstances under which writs may be issued in India have been determined by and large on the basis of principles evolved in Britain, though the Supreme Court has emphasised that the courts in India should only follow broad and fundamental principles of these writs and not all procedural technicalities and nuances theory of English law. For *Articles 32*, *226* and *136*, at times, differentiation is made between quasi-judicial and administrative functions for which purpose again cases from Britain are freely cited. Legal parameters of judicial review *i.e.,* Wednesbury principle and Doctrine of Proportionality as found in English law are accepted in India.

On the power of amending the *Constitution*, by Parliament and its limitation, the theory founded by PROFESSOR DICTRICH CONRAD – formerly head of the Law Department, South Asia Institute of the University of Huidelburg, Germany, was accepted in India in the famous *Golak Nath v State of Punjab*[1] and later explained in *Kesavananda Bharati v State of Kerala.*[2]

The doctrine of "pith and substance" applied by the courts in India is a major contribution of the Canadian *Constitution* where the Canadian Court has interpreted sections 91 and 92 of the British North American Act.

In *UOI v Motion Pictures Assn.*,[3] the Supreme Court followed two American Supreme Court decisions[4] in which it was held that a statutory provision compelling speech as "a must carry provision" is not violative of freedom of speech guaranteed under *Article 19*(1), if it furthers informed decision making which is the essence to the right to free speech and expression. In that case, the court was considering the constitutionality of condition for issuing cinema licence which "compelled" the exhibitors of cinema film to arrange for exhibition of film like "India's news review" and film produced in India which is intended for educational purposes and film dealing with news and current events. The above condition known as "must carry provision" was held valid since it fulfils the purpose of education, information, propagation of scientific ideas to the masses who are both literate and illiterate.

Statutes enacted to give effect to international conventions are construed as far as possible consistent with the terms of the Conventions and assistance is taken from the relevant branches of International Law, for, it is almost accepted that the rules of customary international law which are not contrary to municipal law are deemed to have been incorporated in the domestic law.[5] In *Vellore Citizens' case*, the court was considering the theory of "Sustainable Development" and "Precautionary and Pollutor Pays Principles" which are part of the customary international law.[6]

Recently the Supreme Court compared the scope of freedom of speech and expression in America and in India. Court took into consideration the American decision in *Schenck v United States*,[7] and held that under our *Constitution*, the freedom is not absolute and is subject to reasonable restriction and the reasonableness.[8]

To explain "useless formality theory", when failure of natural justice is alleged, various decisions of English Courts are relied on and some cases explained.[9] Where evidence is collected illegally, can that be admissible in a court of law? The admissibility was challenged on the ground of violation of *Articles 19*(f) and (g) and the provision of *Income Tax Act 1961* in which the authorities are empowered to search and seize accounts and other materials. The court in *Pooran Mal v Directorof Inspection (Investigation)*,[10] relied on English decisions to hold that the evidence illegally collected can be received in evidence, if that is relevant to the proceeding. Much reliance was placed on the decision in *Karunna v Queen*,[11] while considering the scope of *Article 20(3) of the Constitution* and *Article 21*, regarding the scope of tape recorded conversation and the method by which it was

collected (*i.e.,* illegally collected), Court relied on the English decision in *Jones v Owen*,[12] and *R v MaqsudAli*,[13] and held that such evidences though collected illegally are admissible in evidence, if they are relevant to the issue.

In *MPV Sundararamier & Co v State of AP*,[14] the court observed:

> Valuable as the American decisions are as showing how the question is dealt with in a sister federal *Constitution*, great care should be taken in applying them in the interpretation of our *Constitution*. We must not forget that it is our *Constitution* that we are to interpret and the interpretation must depend on the context and setting of particular provision which has to be interpreted…Recognising that the decision of American Supreme Court and the comments of well known commentators like WILLOUGHBY and COOLEY have "great persuasive force" in interpreting the Indian *Constitution*, the court observed: "…too much reliance on them is not desirable.[15]

The Supreme Court did not accept the doctrine of "police power", "eminent domain", "original package", "immunity of instrumentalities" and the "due process of law". But the Supreme Court subsequently was inclined to accept the doctrine of "due process of law" atleast in the area of "personal liberty".[16] By establishing a nexus between *Articles 14* and *21*, it is now clearly established that the procedure contemplated by *Article 21* must satisfy the test of reasonableness. Thus, *Article 21* has emerged as the Indian version of the American concept of due process of law and has become the source of many substantive rights and procedural safeguards to the people. It was held in *Maneka Gandhi's case* that though the *Article 21* is couched in a negative language, it really confers the fundamental right to life and personal liberty.

The Supreme Court has refused to apply in India the American doctrine of "preferred fundamental rights". The doctrine envisages that any law restricting freedom of speech, press, religion or assembly must be taken on its face to be invalid till it is proved to be valid.[17] The result of this doctrine is to shift the burden of proof on the shoulders of those defending the law, without raising in their favour the presumption of the validity of the legislation. The Supreme Court declared that it is not possible to say that any one fundamental right is superior to the other or that *Article 19* contains a hierarchy.[18] But in *I.R. Coelho v State of TN*,[19] the court observed that the principle that "some" Articles in Pt III can stand alone has been recognised by Parliament, *i.e.,Articles 14*, *19*, *21* was held as a golden triangle, and these Articles stand on different footing. *Article 21* was held to be the heart of the *Constitution* and *Article 15* was held to be another fundamental right which represents secularism, and these fundamental rights were held to be basic structure of the *Constitution*. Right to property was held not a basic structure.[20]

Recently the Supreme Court while interpreting *Article 21* in regard to the right of an accused to be defended by a counsel, held that a criminal case should not be decided against the accused in the absence of his counsel.[21] In that case, the decision of the American Supreme Court in *Powell v Alabama*,[22]*Gideon v Wainwright*,[23] and *Brewar v William*,[24] was "relied on". In the American cases, it was held that in criminal cases, "lawyers in criminal court are not luxuries and an accused is entitled to get the assistance of a lawyer".

The concept of "due process" has been resorted to by the Supreme Court in interpreting "reasonableness".[25] It cannot be overlooked that even the test of "vagueness" for invalidating a restrictive law as "unreasonable" which had been rejected in 1969[26] came to be welcomed in 1970.[27] The concept of "due process", though it did not find favour in *A.R. Gopalan's case*,[28] it is now well settled that the word "procedure" in *Article 21* means a procedure which is not arbitrary, but gives the person "condemned" the right to be heard "before he is condemned" which is an essential ingredient of "due process". The above view has now been interpreted as a "concept of fairness" which is an ingredient of *Article 21*. Absence of arbitrariness and fairness are both essentials of the concept of "due process" as explained in the American decision.[29] In fact, the decision in *Maneka Gandhi v UOI*,[30] demonstrates that *Article 21* contemplates a procedure which is fair, just and reasonable and not arbitrary or whimsical.[31] In *Sunil v Delhi Administration*,[32] V R KRISHNA IYER J. said:

> True, our *Constitution* has no due process clause or the VIII Amendment, but in this branch of law, after *Cooper*[33] and *Maneka Gandhi*,[34] the consequence is the same. For, what is punitively outrageous, scandalizing unusual or cruel and rehabilitatingly counter- productive is unarguably unreasonable and arbitrary and is shot down by *Articles 14* and *19* and if inflicted with procedural unfairness, falls foul of *Article 21*.

In *Raja Ram Pal v Hon. Speaker, Lok Sabha*,[35] our Supreme Court referred to various decisions of the American Supreme Court and English decisions to consider the Privileges of Parliament and the power of Speaker to expel the members from the House. In that case, the majority held that power of expulsion can be claimed by the Indian legislature, *i.e.,* Parliament and the State legislatures as one of the privileges inherited

from the House of Commons through *Articles 105*(3) and *194*(3). In that case, the court relied on *Dill v Murphy*,[36]*Fielding v Thomas*,[37]*Hornet v Crick*,[38] to hold that the Parliament has the power to punish a member for contempt and consequently to expel him. *Halsbury's laws of England* was also relied on for the purpose. Reference was also made to few American decisions.[39]

Article 11 of the International Covenant on Civil and Political Rights 1966 came up for consideration in *Vargheese v Bank of Cochin.*[40]*Article 11* says: "No one shall be arrested on the ground of inability to fulfil contractual obligation". The question was, whether a judgment debtor can be arrested for failing to discharge the decree debt as provided in *section 51 of the Code of Civil Procedure* (*Code of Civil Procedure, 1908*). Applying the principle in *Article 11*, the learned judge made a liberal interpretation of the statutory provision in *Code of Civil Procedure, 1908* as well as *Article 21* and observed that such arrest and imprisonment can be made only when the conduct of judgment debtor was *mala fide*, *i.e.,* default is so willful and would thus exempt him if there were other pressing claims against his assets (though such an interpretation finds no support from *section 51, Code of Civil Procedure, 1908*).

The Supreme Court has applied and has drawn inspiration from the International Charters and Covenants: (a) in coming to the conclusion that not only Fundamental Rights in Pt III, but also Directive Principles of State Policy in Pt IV of the *Constitution* are based on "human rights", so that the Directives, even though non-justiciable, are not to be regarded as inferior to Fundamental Rights[41]; (b) In deducing unenumerated fundamental rights, as supplemental to those specified as Fundamental Rights in Pt III, *i.e.,* (i) right to human dignity, in general[42]; (ii) a guarantee against torture, cruel punishment or inhuman and degradiang treatment on an accused prisoner from *Article 21 of the Constitution*[43]; (iii) the right of an accused not to be subjected to third degree or uncivilised method to exhort confession[44]; (iv) the right of an accused to speedy trial[45]; (v) right to travel abroad[46]; (vi) right to be defended by a legal practitioner of accused's choice.[47]

Law enacted in Netherlands, Switzerland, Belgium, Spain, Austria, Italy, France, United States and Germany was taken into consideration by our Supreme Court to decide the issue of a man's right to die who is suffering from passive euthanasia[48] where various directions were given.

While considering the scope of granting anticipatory bail and the right to life and liberty under *Article 21 of the Constitution*, court followed the decision of House of Lords in *R*[49] and the decision in *R v Secretary of State for Home Department exparteBugdaycay*,[50] to hold that the right to life is the most fundamental of all human rights and any decision affecting human rights or which may put an individual's life at risk must call for the most anxious scrutiny. The sanctity of human life is probably the most fundamental of the human social value. It is recognized in all civilized societies and their legal system and by the internationally recognised statements of human rights. Court also took note of the importance of personal liberty as reflected in the Fifth Amendment to the American *Constitution* and the Fourteenth Amendment which imposes limitation on the State authorities. Under the above two amendments, the American judiciary claims to declare a law as bad if it is not in accordance with "due process" even though the legislation may be within the competency of the legislature. "Due process", conveniently understood, means procedural regularity and fairness[51]. The Court also took note of the constitutional provisions in West Germany, Canada, Bangladesh, Pakistan and Nepal along with relevant provisions of Universal Declaration of Human Rights 1948; Covenant on Civil and Political Rights 1966 and European Convention for the Protection of Human Rights and Fundamental Freedom 1950.[52]

In considering the power of Parliament to make laws under *Article 245i.e.,* to make laws for the whole or any part or Territory of India, the Court considered various decisions of foreign courts to hold that the Parliament may not exercise its legislative powers for extra-territorial aspect or causes. It was held that the Parliament is constitutionally restricted from enacting legislation with extra-territorial aspect or causes that do not have, nor are expected to have, any direct or indirect, tangible or intangible impact on or affects in or consequences for (i) the territory of welfare of, well being of or security of inhabitant of India and Indians. However, the Parliament may exercise its legislative powers with extra-territorial aspects or causes only when such extra-territorial aspect causes have some impact on or nexus with India *i.e.,* the requirement is that connection to India to be real or expected to be real and not illusory or fanciful. It was held in the Constitutional Scheme, it is clear that the Parliament may not make laws for a territory, as a first order condition unless that territory is part of India.[53] In that case, various English decisions were considered.

The decisions of the Australian High Court, US Supreme Court, South African Court Bangladesh, Sri Lanka, Nepal and Pakistan were considered to decide the question of "*locus standi*" to file a Public Interest Litigation (PIL). After elaborating various foreign decisions, the Court held that Indian courts may have taken some

inspiration from group or class interest litigation of the United States, and other countries, but the shape of PIL "as it is seen now" is predominantly indigenously developed jurisprudence.[54]

According to eminent jurist H M SEERVAI, the decisions of the Canadian, Australia and United States *Constitution* are to be used "only with great caution" in view of great difference in constitutional scheme with our *Constitution*.[55]

19. LANDMARK DECISIONS OF THE SUPREME COURT OF INDIARELATING TO CONSTITUTION[56]

These cases show how and in what direction the *constitution* has been explained and developed.

A. CONSTITUTIONAL MECHANICS

(1) *Shankari Prasad v UOI*, (1952) SCR 89.

This case deals with the issue of amending power under the *Constitution*. It was held that the ordinary legislative process and the amending process of the *Constitution* were distinct as no part of the *Constitution* could be said to be superior to the other. The amending process could not be made subordinate to and subject to Pt III of the *Constitution*. By stating this position, *Keshavanand Bharti's* case was overruled.

(2) *Golak Nath v State of Punjab*, AIR 1967 SC 1643.

The case held that a constitutional amendment is made in Parliament's legislative powers. Such amendments were "laws" within the meaning of *Article 13* and therefore subject to the fundamental rights guarantees of Pt III. This was overruled in *Shankari Prasad* case and in *Keshvanand Bharti* case (1973) 4 SCC 225.

(3) *Keshvanand Bharti v State of Kerala*, (1973) 4 SCC 225.

The case discusses the doctrine of "Basic structure". It was held that the legislature could amend any part of the *Constitution*, including fundamental rights. However, such alteration should not offend the basic structure of the *Constitution*—what the basic structure means was not elaborated, it was left to the courts discretion.

(4) *Madhav Rao Scindia v UOI*, AIR 1971 SC 530.

The case deals with the stoppage of Privy Purses where certain princely rulers were derecognized (*Article 366(22) of the Constitution of India*). A dispute arose and the Court held that it was within cognizable jurisprudence of Court. The derecognition was held invalid. Consequently the 26th Amendment to the *Constitution* was made and *Article 363* was introduced expressly authorizing the President to defendant-recognise a ruler.

(5) *Minerva Mills Ltd v UOI*, (1980) 3 SCC 625.

The amended provisions of the *Constitution* which granted immunity from judicial scrutiny to any amendment seeking to give effect to the Directive Principles were challenged. It was held that the Directive Principles and Fundamental Rights were two wheels of the same chariot and neither had primacy over the other.

(6) *Ram Jawaya v State of Punjab*, (1955) 2 SCR 225.

Executive power co-existed with legislative power. It could be resorted in the absence of any legislation.

(7) *Ramanna v IAAT*, AIR 1979 SC 1628.

The case explained the definition of "State". There is no "cut & dried formula" for this purpose. Broad guidelines, such as scrutiny of nature of operations, policy making, funding and control were laid down for this purpose.

(8) *State of Rajasthan v UOI*, AIR 1977 SC 1361.

The use of powers of President's rule was political in character and the Court could not enter into such a "political thicket".

(9) *S R Bommai v UOI*, (1994) 3 SCC 1.

The "doctrine of the Political Thicket" was revisited by this case. The Court pronounced on issues of imposition of President's Rule. It laid down 13 major conclusions.[57]

(10) *Wadhwa v State of Bihar*, (1987) 1 SCC 378.

The Court laid down pronouncement on the scope and ambit of the ordinance making power of the executive. It was, as the court said, an attempt to do indirectly what it could not do directly. It amounted to a colourable exercise of powers.

In *Kuldip Nayar v UOI,*(2006) 7 SCC 1 : AIR 2006 SC 3048, this court declared the law regarding the qualification to be member of "Rajya Sabha" as "representative of this State" and what is meant by "ordinarily Resident" for this purpose of Representation of Peoples Act.

(11) *Selvi v State of Karnataka,*AIR 2010 SC 1974 : (2010) 7 SCC 263.

This court held that narco-analysis, polygraph and BEAP test results in testimonial compulsion, but not so in the case of getting specific signature of the accused and the above tests are not permissible in law.

(12) *Ramlila Maidan Incident, In re.*(2012) 5 SCC 1.

Right to privacy is part of *Article 21*, though not specifically stated. It is unenumerated fundamental right that comes under *Article 21*.

(13) *Avinash Goenka v UOI,*AIR 2012 SC 2226 : (2012) 5 SCC 321.

Right to "safety against crime" is part of *Article 21*.

(14) *Society for Unaided Private Schools of Rajasthan v UOI,*AIR 2012 SC 3445: (2012) 6 SCC 1.

Right of Children to Free and Compulsory Education Act 2009, passed by the Parliament on the basis of *Article 21- A of the Constitution* which provides for 25% reservation for admission to Class I based on criterion of economic or financial backwardness in all government and aided schools, whether minority or non-minority, was upheld. The provision was held applicable to all unaided non-minority schools as well.

(15) (i) *Noida Enterpreneurs Assn. v NOIDA,*AIR 2011 SC 2112 : (2011) 6 SCC 508; (ii) *Centre for Public Interest Litigation v UOI,*(2012) 3 SCC 1 : AIR 2012 SC 3725.

The principle of "Public Trust doctrine" was reiterated and it was held that it is a part of *Article 21*. It was held that in essence, the action or order of the State or State instrumentality would stand vitiated if it lacks *bona fides* as it would only be a case of colourable exercise of power. The rule of law is the foundation of a democratic society.

(16) *Centre for Public Interest Litigation v UOI,*AIR 2011 SC 1267 : (2011) 4 SCC 1.

The Court quashed the appointment of Central Vigilance Commissioner. It held that the appointment to such posts must be from persons having impeccable institutional and personal integrity.

(17) *Subramanian Swami v Manmohan Singh,*AIR 2012 SC 1185 : (2012) 3 SCC 64.

The Supreme Court declared that when sanction for prosecution is sought from the Government, it cannot delay in taking a decision. Time limit of three months was allowed to pass an order of sanction for prosecution and before granting sanction, no opportunity need be given to the person against whom prosecution is sought. It was also held that a private citizen has also a right to file a private complaint against a public servant.

(18) *N Kannadasan v Ajoy Khose,*(2009) 7 SCC 1 : (2009) 7 JT 601.

The court interpreted the words "is or has been a judge" of the High Court refers only to a permanent judge of the High Court and these words will not make eligible an "additional judge" to be Chairman of State Consumer Forum under the *Consumer Protection Act*. The court made a distinction between a permanent and additional judge of the High Court.

(19) *Natural Resources Allocation, In re*. (2012) 10 SCC 1 : (2012) 9 Scale 310.

Lack of transparency in decision making process would render the decision arbitrary. It was held that the

foundational principle of executive governance is based on realisation that sovereignty rests with people and every constitutional machinery is obliged to the people and every holder of public office is accountable to the people. The question of discretion in the executive just does not arise.

(20) *Ashoka Kumar Thakore v UOI,*(2007) 4 SCC 361 : (2007) 5 Scale 179; *Nair Service Society v State of Kerala,*AIR 2007 SC 289 : (2007) 4 SCC 1.

The court reiterated the importance of “creamy layer” and to exclude them from getting the benefit of reservation. It was held that “creamy layer” is a necessary bargain between competing ends of caste based on reservation and the principle of secularism. It was held that there is need for periodical identification of the backward citizens and for this purpose the need for survey of the entire population on the basis of acceptable mechanism.

(21) *Raja Ram Pal v Hon’ble Speaker, Lok Sabha,*(2007) 3 SCC 184 : (2007) 1 Scale 241.

The court considered the scope and privileges of the Parliament in suspending or expelling a member. The Court also held that judiciary is not prevented from scrutinising the validity of legislature” action trespassing on fundamental right of citizen, subject to restriction contained in *Articles 122* and *212*.

(22) *I.R. Coelho v State of TN,*AIR 2007 SC 861 : (2007) 2 SCC 1; *M. Nagaraj v UOI,*(2006) 8 SCC 212 : AIR 2007 SC 71.

The secular character of the *Constitution* was reiterated. It was held that fundamental rights are interconnected and one has to take a synoptic view of various Articles in Pt III of the *Constitution of India* while judging the impact of laws incorporated in the Nineth Schedule. It was also held in that case that egalitarian equality exists in *Article 14* read with *Articles 16*(4), 4-A, 4-B and *Articles 15* and *16* are facets of *Article 14*.

(23) *State of Karnataka v Umadevi,*AIR 2006 SC 1806 : (2006) 4 SCC 1.

The right of temporary, contractual, casual, daily wages or *ad hoc* employees to get regularised was held *de hors* constitutional scheme and hence not entitled to regularisation as of right. The court held that a regular process of recruitment or appointment has to be resorted to when there are regular vacancies in posts. The filling of regular vacancies cannot be done in a haphazard manner or based on patronage or other considerations.

(24) *Amarnath Shrine, In re.*(2013) 3 SCC 247 : (2012) 12 JT 503.

It is the duty of the executive to secure the vacuum in law, if any, by executive orders because its field is co-terminus with that of legislature and where there is inaction even by the executive, for whatever reason, the judiciary must step in, in pursuance of its constitutional obligation to provide solution in any case till the time the legislature addresses the issue. The absence of law and a vacuum or lacunae in law can always be supplied by judicial dictum. In such cases, court can interfere and issue direction especially when the case relates to public safety, health care, means to freely move and to profess the religion in the manner as the public or section thereof desire, in so far as it is within the limitation of law.

(25) *Akhilesh Yadav v Viwanath Chaturvedi,*(2013) 2 SCC 1 : (2012) 12 JT 565; *State of WB v Committee for Protection of Democratic Rights,*(2010) 3 SCC 571 : (2010) 1 JT 474.

It was held that the Supreme Court and the High Court have power to enquire into offences alleged to have been committed in one State to order CBI enquiry without the consent of that State. It was also held that the Central Bureau of Investigation (CBI) has no obligation to submit its report to the Government.

(26) *Republic of Italy v UOI,*(2013) 4 SCC 721 : (2013) 1 Scale 462.

The Parliament has always asserted its authority to make laws applicable to persons not corporeally present within the territory of India (whether citizen or non-citizen) when India’s legitimate interests are affected. The fact that legitimate interests of India were affected in an incident, entitles the Indian court to exercise jurisdiction on concerned person.

(27) *Mallaraddi H. Itagi v High Court of Karnataka,*(2013) 5 SCC 332 : (2010) 7 SLR 215.

Assistant Public Prosecutors and Public Prosecutors cannot be said to be advocates since they are full-fledged government servants and their duties did not involve primarily conduct of cases or pleading of cases in courts on behalf of the employer, but required to form other duties. Hence, they are not qualified to be appointed as District Judges.

(28) *State of Maharashtra v Sarangdhar Singh Shivdan Singh Chavan*,(2011) 1 SCC 577 : (2010) 13 JT 456.

The Supreme Court took note of National Crime Records Bureau (NCRB) which disclosed statistics as to number of suicide by farmers due to poverty. The court indicated the importance of the Preamble, Pt III, IV & IV-A of the *Constitution* and inaction of State in not protecting farmers and their failure in discharging their constitutional duty.

B. EDUCATION AND THE LAW

(1) *St. Stephen's College v University of Delhi*, (1992) 1 SCC 358.

The Court delved into the issue of minority educational institutions and the parameters of their operational freedom. It was held that a minority institution had a right to establish an educational institution. On the question of whether such a minority institution could be directed to adopt a uniform selection criteria, the Court ruled that if the selection/interview was based on the candidate's academic record, as well as performance at the interview, such procedure cannot be disturbed by a university directive.

Merely on getting state aid such institution would not be covered by *Article 29*(2) (which prohibits denial of admission on grounds of religion alone) and lose its protection under *Article 30*(1) (right of minorities to establish an educational institution).

However, a minority cannot establish and administer educational institutions for its exclusive benefit. It can accord preference to members of its own community upto a maximum of 50 % of the annual admission.

(2) *Mohini Jain v State of Karnataka*, (1992) 3 SCC 666.

Pronouncing "capitation fee" unconstitutional, the Court ruled that for the guarantee of the right to life to be meaningful, it had to include the right to live with dignity. This was possible only through education. Therefore, the right to life included the right to education.

(3) *Unni Krishnan v State of AP*, 1993 (1) SCR 594.

The wide amplitude of the right conferred in *Mohini Jain's* case was restricted by the court in this case. It held that the right to education related only to basic education and state provision for higher education would depend upon its economic capacity. Whereas private educational institutions could charge a fee higher than government institutions, the amount could not be a capitation fee in disguise. Commercialization of education was not permissible. The Court framed a detailed scheme to minimize discretion of private educational institutions in matters of admissions and levy of fees.

(4) *TMA Pai Foundation v State of Karnataka*, (1995) 5 SCC 220.

The Court addressed the issue of abolition of capitation fees post Unni Krishnan and the scheme formulated for the admission of students. With the issue of the right of minority educational institutions pending consideration of a large bench, the court made a few modifications to the scheme to facilitate smoother functioning and gave interim directions. It also directed the Reserve Bank of India to formulate schemes to provide educational loans.

T M A. Pai Foundation v State of Karnataka,[58] it was held that admission to professional courses should be based only an merit and institutions have no right to admit students without considering merits. Court also reaffirmed the law that institutions have no right to realise or demand capitation fee. Two committees when directed to be appointed to supervise the admission process, *i.e.*, to see whether the admission are made strictly on the basis of merit list prepared pursuant to a common entrance test and another to decide the quantum of fees that could be levied by private unaided professional colleges.

(5) In *P A Inamdar v State of Maharashtra*,[59] the court declared that policy of reservation could not insisted upon in unaided private professional colleges and the State also cannot demand any quota in such institution.

But the court reiterated that admission should be based only as merit and the direction to constitute these two committees in *T.M.A. Pai Foundation case* (*supra*) is a valid directed and should be followed by State.

(6) *Gorakhpur University & Ors. v Dr Shitla Prasad Nagendra & Ors.*, JT 2001 (6) SC 285: withholding of pension.

This was a case of withholding of pension of a retired professor by the university on the ground of non - payment of dues for occupying the university accommodation. The Allahabad held the action of the University wrong and directed it to make payment of dues to the respondent with penal interest at 18 percent. In appeal, the Supreme Court observed that this court has been repeatedly emphasizing the position that pension and gratuity are no longer matters of any bounty to be distributed by the government but are valuable rights acquired and property in the hands of the pensioners. Any delay in settlement and disbursement thereof should be viewed seriously and dealt with severely by imposing penalty in the form of payment of interest.

(7) *Modern School v UOI & Ors.*, 2004(5) Scale 170: Regulation of fee and Unaided Schools.

In a petition dealing with the issue of recognized private unaided schools in Delhi indulging in large scale commercialization of education being against public interest, the Supreme Court held that the Director of Education has the authority to regulate fees of unaided schools. The management of the recognized unaided schools is, however entitled to set up a development Fund Account maintaining its account through “Fund Based System of Accounting”. The court also observed that a society running several institutions may have to impart education in different areas, slums, semi-urban or urban.” It may not, therefore, be improper for any such society to generate some surplus fund from an institution, which is situated within a metropolitan area for the purpose of starting a school in a slum or a semi-urban area.

(8) *Society for Unaided Private Schools of Rajasthan v UOI,*AIR 2012 SC 3445 : (2012) 6 SCC 1.

(9) *Environment & Consumer Protection Foundation v Delhi Administration,*(2012) 10 SCC 197 : AIR 2013 SC 1111.

Right of Children to Free and Compulsory Education Act 2009 and Commission for Protection of Child Rights Act 2005 was considered and the court held that there is obligation to ensure basic amenities and infrastructure to safeguard the rights of children.

(10) *Parshvanath Charitable Trust v All India Council for Technical Education,*(2013) 3 SCC 385 : (2013) 1 JT 557.

Regulations framed by AICTE Act 1987 have the force of law and are binding. The right to establish an educational institution does not carry with it the right to get recognition or affiliation. Recognition has to be as per statutorily prescribed conditions and their strict adherence by all concerned is mandatory.

(11) *Rajasthan Pradesh Vaidya Samiti v UOI,*AIR 2010 SC 2221 : (2010) 12 SCC 609.

Public examination in an institution not having recognition or affiliation is a serious infraction of law.

(12) *NCTE v Shal Goberdhan Lal Kabre*, (2009) 16 SCC 387 : (2002) 8 JT 289.

Merely because a course is nomenclatured as vocational course, but if the course has provided for the necessary training period and institution offers the regular standard of education therein, there should not be any justification for NCTE not to grant recognition.

(13) *Jitendra Kumar Singh v State of UP*, AIR 2010 SC 1851 : (2010) 3 SCC 119.

Age relaxation and waiver of examination fee does not amount to reservation under *Article 16*(4).

(14) *State of TN v K Shyam Sundar*, (2011) 8 SCC 737 : (2011) 4 CTC 874 : (2011) 5 LW 97.

The right to education under *Article 21-A of the Constitution* has to be read in conformity with *Articles 14* and *15* of the *Constitution* and there must be no discrimination in quality of education. A common syllabus and a common curriculum are required. The right of the child should not be restricted only to free and compulsory education, but be extended to have quality education without any discrimination on the ground of a child’s

economic, social and cultural background. A uniform education system would achieve the code of a common culture, removal of disparity and depletion of discriminatory values in human relations.

(15) *State of Orissa v Mamata Mohanty,*(2011) 3 SCC 436 : (2011) 2 Scale 377.

Importance of academic excellence of teachers themselves was emphasised.

(16) *Bharatia Education Society v State of HP*, (2011) 4 SCC 527 : (2011) 3 LW 193; *Abhyudya Sanstha v UOI*, AIR 2011 SC 2353 : (2011) 6 SCC 145.

Ineligible candidates of unrecognised teachers' training institutes seeking regularisation of admission will not be allowed. Any degree awarded on the basis of misrepresentation made by the institute also will not entitle the students to get a degree and the degree that is already awarded is also invalid.

(17) *State of Kerala v President, Parent Teachers' Assn.,*(2013) 2 SCC 705 : AIR 2013 SC 1254.

The court deprecated and strongly condemned the practice of management of aided private schools in reporting fake or bogus admissions and get the aid from government on the basis of staff strength. The court observed that the Headmaster and management should be role model for the young children studying in their schools and if they themselves indulge in bogus admissions and record wrong attendance of students for unlawful gain, they cannot expect that the guidelines of honesty, truth and other values would be imbibed by the students.

(18) *Dayanand Anglo Vedic (DAV) College Trust & Managing Society v State of Maharashtra*, (2013) 4 SCC 14 : AIR 2013 SC 1420.

Minority status once granted can be cancelled and the Government has the right to correct the mistake. Conditions necessary for the grant of minority status was also explained.

(19) *University of Kerala v Council of Principals of Colleges in Kerala,*(2011) 4 SCC 357.

Parity of democratic process and right to elect is an extension of freedom of speech and expression in election to Students' Union.

C. ELECTION LAW

(1) *Charan Lal Sahu v Fakhruddin*, AIR 1975 SC 1288.

The Petitioner had challenged the election of many Presidents. One of his grounds was that the Electoral College was incomplete on account of an assembly being dissolved or a state not represented in the Parliament. Such objection was rejected by the Court. In this particular case, the Petitioner contended that sending a cheque along with his nomination papers complied with the requirements of the Presidential and Vice-Presidential Election Act. This contention was also rejected by the Court.

(2) *Indira Nehru Gandhi v Raj Narain*, AIR 1975 SC 2299.

The Allahabad High Court had set aside the election of the then Prime MinisterIndira Gandhi on grounds of electoral malpractice. In this case, the Court had an opportunity to pronounce on the guidelines adopted by it in granting a stay on the operation of any judgment. The Court ruled that unlike the statutory right of appeal, the right to grant a stay was discretionary. Dismissing the contention that the office of the Prime Minister was involved, the Court ruled that political and the legal considerations fell outside the purview of the Court. The Court would only consider the balance of convenience and the interests of justice. Further, the Court distinguished between the office of the Prime Minister and that of a Member of Parliament (MP). It ruled that the challenge to Mrs. Gandhi's election as an MP would not affect her ability to discharge her functions in the capacity of Prime Minister.

In a related matter, the constitutionality of the Thirty nineth amendment was challenged. In order to nullify the effect of the said High Court decision, the Thirty nineth amendment was made to the *Constitution* immunizing the election of the Prime Minister from judicial scrutiny in any proceedings. Addressing the challenge to the constitutional amendment and the modification of the election law, the Court laid down the following propositions:

- Free and fair elections were not a part of the basic feature of the *constitution*.
- Parliament had the power to retroactively enact a legislation to nullify a judicial decision.
- The objection that certain members of Parliament were under preventive detention at the time of the enactment was untenable as it related to the realm of parliamentary privilege.
- The amendment revoking the remedy of an election petition against the Prime Minister would have been valid if it had created an alternative remedy/forum.
- As the validation of the election was not by the application of any law, it offended the rule of law.

(3) *Kihota v Zachilhu*, AIR 1993 SC 412.

Para 7 of the anti-defection Schedule to the *Constitution* excluded the jurisdiction of courts in respect of disputes relating to defection. A constitutional amendment which affects the jurisdiction of the Supreme Court and/or the High Courts requires the ratification of the State legislatures.

The anti -defection Schedule was challenged on the ground that such prior ratification was not obtained. The Court ruled that the provision excluding its jurisdiction was unconstitutional. However applying the principle of severability, it upheld the rest of the Schedule which required no State ratification.

(4) *Poudyal v UOI*, 1994 Supp (1) SC 324 (*Sangha constituency case*).

The Sikkim Assembly has 12 seats reserved for people of Bhutia-Lepcha origin and one seat reserved for the representative of “Sanghas”, the electoral college of the monks. On challenge of such reservation, the Court relied on historical considerations to hold that the role of the Sangha was not purely religious and hence such reservation was not exclusively on grounds of religion.

(5) *S P Anand v H D Deva Gowda*, (1996) 6 SCC 734.

The appointment of Deva Gowda as Prime Minister challenged on the ground that he was not a member on any of the house of Parliament. The Court rejected such objection, ruling that a non-member could be appointed as Prime Minister provided he was elected to either house within six months.

(6) *T N Seshan v UOI*, (1995) 4 SCC 611.

Article 324 of the Constitution of India provides for an Election Commission with a Chief Election Commissioner (CEC). The CEC challenged the appointment of a multi-member Commission alleging *mala fide*s on part of the Government to neutralize him. Upholding the appointment of the multi-member Commission the Court ruled that the CEC had no special powers or authority. All members of the Commission had equal powers. The Commission was required to arrive at a decision by consensus and failing that by a majority.

(7) *Dr R Y Prabhu v Prabhakar K. Kunte*, (1996) 1 SCC 130.

The question of law before the Court in a series of election petition was in relation to the scope and purport of *section 123(3) of the Representation of People Act* which prohibited appeal on grounds of religion, as a corrupt electoral practice. The Court ruled that this provision, being a reasonable restriction, did not violate the right to free speech. Further, as “hindutva” was synonymous with “Indianisation” and Indian culture, an appeal on grounds of Hindutva did not amount to a religious appeal. Such appeal should be scrutinized contextually to determine if in a particular context its usage carried religious overtones.

(8) *B R Kapoor v State of TN*; (2001) 6 Scale 309 : (2001) 7 SCC 231: Eligibility for appointment as Chief Minister.

In the above case the Supreme Court dealt with the most contentions question of appointment of a person convicted of a criminal offence and whose conviction had not been suspended pending appeal and who could not stand for election for this reason, as Chief Minister. The main issue that came for consideration before the Court was that whether the people’s mandate, as was supposedly acquired by the concerned person in the case under report, would prevail upon the legal and constitutional requirements about the eligibility to become a Chief Minister. The Court held that the *Constitution* is supreme and declared that the legal and constitutional requirements should be followed strictly.

(9) *UOI v Association for Democratic Reform,*[60] it was held that a voter is entitled to know the antecedents including criminal past of a candidate to membership of Parliament or legislative assembly and such a right is a fundamental right under *Article 19*(1)(a).[61]

(10) *DMDK v Election Commission of India,*AIR 2012 SC 2191 : (2012) 7 SCC 340.

It was held that for recognition as a State party, that the party should have secured not less than 6% of the total votes polled in State and also have at least two members in assembly is not unreasonable. It was also held that the word "election" in *Article 324 of the Constitution of India* is used in a wide sense and makes the Election Commission a special authority to lay down norms for conduct of election and hence an Election Commissioner cannot be equated with other authorities whose power to make law has to be interpreted in the strict sense.[62]

D. ENVIRONMENT AND THE LAW

(1) *M C Mehta v UOI*, (1987) 1 SCC 395.

Entertaining a Public Interest Litigation (PIL) initiated on behalf of Oleum gas leak victims the Court ruled that hyper technicality should be avoided in PIL. It further opined that the strict liability of *Rylands v Fletcher*, was inapplicable in India. The doctrine had evolved, and in modern times, especially in industrial torts, the "absolute liability" principle was applicable to determine liability.

(2) *Charan Lal Sahu v UOI*, (1990) 1 SCC 613.

In the wake of the Bhopal gas disaster, the Parliament enacted a legislation upon the Central Government the exclusive authority to proceed against the tort-feasor, the Union Carbide Corporation (UCC). On challenge of the constitutionality of this legislation, the Court held as under:

> The Doctrine of Parens Patria permitted the State to act as the representative of the victims.
>
> The doctrine of necessity would override the argument that the State as a joint tort-feasor was disqualified from acting in such capacity.
>
> The Government's power to conclude such settlement with the UCC was not uncanalised and arbitrary.

As legislation also provided for interim maintenance and compensation to the victims, it was not unconstitutional.

(3) *Union Carbide Corp v UOI*, (1991) 4 SCC 584.

The power of the Supreme Court to give its seal of approval to the final settlement between the Indian Government (representing the Bhopal gas leak victims) and Union Carbide was the dispute before the Court. The Court ruled that as the powers of the Supreme Court were wide, its custom of jurisdiction could not be said to be irregular. Further, in exercise of this wide jurisdiction the Court could even transfer to itself cases being heard in lower courts and sanction the quashing of criminal cases. The fact that the opinion or the grievances of the victims were not elicited and thus the victims were not a party to the settlement would not vitiate it. It also ruled that, in matters of great humanitarian concern "procedural technicalities" may be given a go-bye.

(4) *M C Mehta v UOI*, AIR 1987 SC 1036.

Taking notice of the massive pollution of the Ganga waters, the Court entertained a PIL and acquired tanneries to close operation or adopt effluent treatment norms. Adopting an inquisitional and pro- active approach, the Court laid down guidelines for the discharge of pollutants into the Court and directed the district authorities to submit detailed report on the progress made. The Court noted that life, public health and ecology had priority over unemployment and loss of revenue.

Other significant PIL, pursued by the petitioner are: Vehicular pollution (1991) 2 SCC 353, storage of hazardous chemicals 1987 (Supp.) SCC 131, gamma radiation 1987 (Supp.) SCC 517, industrial plants using hazardous chemicals (1986) 2 SCC 325, caustic chlorine plant (1956) SCR 312, Delhi industries case and Taj Pollution case.

(5) *Banwasi Seva Ahsram v State of UP,*AIR 1987 SC 374.

The case related to PIL asserting the right of adivasis and tribal people to their forest land which was sought to be acquired for a thermal power plant. Recognizing the importance of strange a balance between ecology and development, the Court issued detailed guidelines for the use of the forest land as well as the resettlement of the tribal evacuees.

(6) *T N Godavaraman Thirumulkpad v UOI*, 1996 Scale 269.

In this landmark decision, the Supreme Court ruled that felling of timber within the area of the forest was impermissible. It further ruled that the states should constitute expert committees. It identified forest areas requiring protection.

(See also 1997(2) Scale 435 where the Court constituted a “high powered committee” to even see the implementation of its orders directing the closure of saw mills).

(7) *Indian Council for Environment Legal Action v UOI*, 1996 (4) SC 263.

In 1991 the Ministry of Environment had issued a notification under the *Environment Protection Act* to regulate activities in the coastal areas *i.e.* the Coastal Regulatory Zone (CRZ). Subsequently, this regulatory regime was diluted by an amending notification in 1994. Upon challenge of this subsequent notification, the Court struck down the dilatory aspects such as relaxation of the High Tide Line, reduction of the no-development zone, permission to fence etc.

(8) *Jagannath v UOI*, 1996(9) Scale 167.

Interpreting the CRZ notification, to determine whether commercial shrimp culture was a “water front” activity and hence permitted in coastal areas, the Court ruled in the negative. The Court relied on several reports to conclude that shrimp culture was indeed environmentally deleterious hence requiring restrictions. Giving detailed guidelines prohibiting/regulating shrimp culture such as the closure of coastal farms and adoption of the polluter pays principle, the Court directed the government to set up an authority to monitor the enforcement of its directives.

(9) *M C Mehta v UOI*, 2000 (8) Scale 386, shifting and relocation of hazardous Industries.

During the last two years the closure of many industries has been ordered by the Supreme Court. In *M C Mehta v UOI*, 1996 (5) Scale 21, the Supreme Court directed that 168 hazardous industries cannot be permitted to operate and function in Delhi with effect from November 30, 1996. The Court however permitted these industries to relocate/shift themselves to any other industrial estate in the NCR.

In a subsequent order, the Supreme Court brought 513 more industries under “H” category and ordered for the stoppage of their functioning in Delhi with effect from January 31, 1997. However the temporary benefits for workers have been secured in these orders. In its further order dated December 7, 2000, the Court has directed the authorities concerned to comply with its directions under the supervision of the Nodal Agency. The order has to be complied within four weeks from the date of the order. The Industries closed and seated by the authorities have been ordered to unseal, so that the machinery etc. could be removed. However, they were not permitted to function.

(10) *Murli S Deora v UOI & Ors.*, 2001(8) Scale 6: Ban on Smoking in public places.

The Supreme Court ordered a ban on smoking in public places throughout the country with immediate effect. The public places have been said to include government buildings, courts, public transport, railways, hospitals, community halls, and stadium. The Commissioners of Police of Delhi, Mumbai, Chennai, Kolkata, Bangalore and Ahmedabad have been directed to strictly comply with the provisions of the Cigarettes (Regulation of Production, Supply and Distribution) Act 1975 relating to the rule, supply and distribution of cigarettes and submit status report of action taken against cigarettes manufactures violative the advertising code.

(11) *Forum Prevention of Environment & Sound Pollution vs. UOI*, (2005) 8 SCC 796. (Civil Appeal No. 3735/2005, decided on October 28, 2005).

Examination of the Constitutional validity of sub-rule (3) of rule 5 of the Noise Pollution (Regulation and Control) Rules 2005, effective from February 14, 2000. The rule empowers the State Government to allow use of loud-

speakers till midnight on festivals and on religious occasions for 15 days in a year. The Supreme Court agreed with the view expressed in the newspaper that the use of loudspeakers is not a must for performing religious acts and no religion ever says to force an unwilling person to listen to the expressions of religious beliefs. While using loudspeakers during religious and cultural festivals, right to life cannot be given a go bye. The heart-patients and those suffering from hypertension etc. are victims of noise-pollution should they be made to suffer for certain period in a year? Should a citizen be deprived of his life even for 15 days in a year in the name of false claim of religious and cultural rights of a group?

In *Noise Pollution (V), In Re*,[63] it was held that right to freedom of speech and expression includes the right to decline to listen and it includes negative right also. No one has a right to trespass into the mind of or ear of another or thought process and nobody can indulge in aural aggression. If anyone increases his volume of speech and that too with the assistance of artificial devices so as to compulsorily expose unwilling persons to hear a noise raised to unpleasant or obnoxious levels, then the person speaking is violating the right of others to a peaceful, comfortable and pollution-free life guaranteed by *Article 21* of the Constition of India.

(12) *T N Godavaraman Thirumulpad v UOI*(2012) 4 SCC 362 : (2012) 4 LW 777.

The Supreme Court considered the scope of anthropocentrism and ecocentric approach to environmental problems in the above case. Anthropocentrism considers humans to be the most important factor and value in the universe and states that humans have greater intrinsic value than other species. Resultantly, any species that are of potential use to human can be a reserve to be exploited which leads to the point of extinction of biological reserves. Further, that principle highlights human obligation towards environment arising out of instrumental, educational, scientific, cultural, recreational and aesthetic values that forests have to offer to humans. Under this approach, environment is only protected as a consequence of and to the extent needed to protect human well-being.

On the other hand, ecocentric approach to environment stresses the moral imperatives to respect intrinsic values, interdependence and integrity of all forms of life. Ecocentrism supports the protection of all forms of life, not just those which are value to humans or their needs and underlines the fact that humans are just one among the various life forms on earth. Ecocentric principles have roots in India. All these concepts find place in *Article 51-A*(g) and the court also took note of the intrinsic value of environment which finds place in various international conventions, like Convention for Conservations of Antarctic Marine Living Resources 1980, the Protocol to Antarctic Treaty on Environmental Protection 1998, the Bern Convention on Conservation of European Wildlife and Natural Habitats 1982, *etc.*

(13) *Centre for Public Interest Litigation v UOI*(2012) 3 SCC 1 : AIR 2012 SC 3725.

In that case, the court held that even though there is no accepted definition of natural resources, it is generally understood as elements having intrinsic utility to mankind. They may be renewable or non-renewable. They are thought of as the individual elements of the natural environment that provide economic and social service to human society and are considered valuable in their relatively unmodified natural form. A natural resource's value rests in the amount of the material available and the demand for it. The latter is determined by its usefulness to production. Natural resources belong to the people and the States legally own them on behalf of the people and hence they are considered as national assets. The State holds the natural resources as public trustee and has to deal with the same for public good only. (See also *Illinois Central Rail Road Co v People of the State of Illinois*,[64]*M.C.Mehta v Kamal Nath*,[65]*Jamshed Hormusji Wadia v Port of Mumbai*,[66]*Intellectual Forum v State of AP*,[67]*Fomento Resorts and Hotels Ltd v Minguel Martins*,[68]*Reliance Natural Resources Ltd v Reliance Industries Ltd*,[69])

(14) In *Natural Resources Allocation, In re. Special Reference No. 1 of 2012*(2012) 10 SCC 1 : (2012) 9 JT 457.

Court considered the power of the executive to alienate natural resources and the method by which it can be alienated. It was held that any alienation must be only for "common good".

E. EQUALITY

(1) *Frank Anthony Employees Union v UOI*, AIR 1987 SC 311.

Dispute regarding differential payments made to teachers and employees of an unaided public school. This discrimination offended *Article 14*.

(2) *Nakara v UOI*, AIR 1983 SC 130.

Classification of pension into two classes was held invalid, artificial and arbitrary.

(3) *UOI v Rakesh Kumar*AIR 2010 SC 3244 : (2010) 4 SCC 50.

State can treat unequals differently for creating a level playing field in social, economic and political spheres. In that case, court considered and explained the scope of different types of affirmative action *i.e.,* proportionate representation, adequate representation and compensatory discrimination.

(4) *K Krishnamoorthy v UOI*(2010) 7 SCC 202 : (2010) 5 Scale 448.

In the case of reservation for SC/ST and women in local body election, restriction on the right of political parties from participating in election was held reasonable, since it is intended to safeguard the interest of the weaker section.

(5) *Mumbai International Airport Pvt Ltd v Golden Chariot Airport*(2010) 10 SCC 422 : (2010) 10 JT 381; *Fuljit Kumar v State of Punjab*AIR 2010 SC 1937 : (2010) 11 SCC 455; *State of Karnataka v Gadilingappa*AIR 2010 SC 2548 : (2010) 2 SCC 728**;***Bondu Ramaswamy v Bangalore Development Authority;*(2010) 7 SCC 129 : (2010) 6 JT 57.

In all the above cases, it was held that plea of discrimination cannot be entertained on the ground that other persons were given benefits illegally or improperly.

(6) *C M Thrivikrama Varma v Avinash Mohanty*AIR 2011 SC 2627 : (2011) 7 SCC 385.

When a grievance is made before court by a citizen that his fundamental right to equality has been violated, the authorities have to justify their decision by placing relevant materials. It is no defence to plead that the decision was taken due to complexity of decision-making process.

(7) *Kailas v State of Maharashtra*AIR 2011 SC 598 : (2011) 1 SCC 793.

It is held that historically disadvantaged groups must be given special protection and help so that they can be uplifted from their poverty and low social status. Giving only formal equality to all groups or communities in India would not result in genuine equality.

(For further discussion, see *Article 14*).

F. JUDICIARY AND THE LAW

(1) *Supreme Court Advocates-on-record Assn. v UOI*, (1993) 4 SCC 441.

The Court addressed the issue of judicial appointments and transfers. Constitutional provisions such as "after consultation with" and "with the consent of" were interpreted to accord primacy as the opinion of the Chief Justice of India. The President can appoint judges to the Supreme Court and the High Court only if such appointment is in conformity with the opinion of the Chief Justice who would ascertain the opinion of his senior most colleagues.

(2) *Sub-Committee on Judicial Accountability v UOI*, (1991) 4 SCC 699.

Members of Parliament of the 9th Lok Sabha introduced an impeachment motion against Justice Ramaswamy. Under the *Judges (Inquiry) Act*, the Speaker appointed a committee to inquire into the allegations of judicial misconduct. However, before the motion was considered, the issue was dissolved. The issue before the Court was whether the dissolution of the House automatically led to the dissolution of the Committee and the lapse of the impeachment motion. The Court ruled that an impeachment motion and proceedings related thereto were to constitutional matter covered under *Article 124*(4) and survived the dissolution of the House.

(3) *Sampath Kumar v UOI*, (1987) 1 SCC 124.

Articles 323A and *323B* were included in the *Constitution* to facilitate the establishment of administrative tribunals. The Administrative Tribunal Act 1985 enacted under the said provisions, established tribunals which ousted the jurisdiction under *Articles 226* and *227* of the High Courts. The Court ruled that the law would not be unconstitutional if the alternate remedy provided was equally efficacious as that provided by the High Courts.

(Case law has subsequently established that the supervisory powers of the High Court could still be exercised over the functioning of the tribunals).

(4) *K. Veeraswami v UOI*, (1991) 3 SCC 655 : (1991) 3 JT 198.

The Court ruled that a judge of the Supreme Court or a High Court would be within the purview of the *Prevention of Corruption Act* (PCA) as judges were "public servants". The PCA requires a prosecution thereunder to be sanctioned by the "authority competent to remove" the concerned "public servant". Addressing these issues, the Court ruled that the President of India would be the "removing authority". To avoid executive interference in the judiciary, the Court ruled that the President could sanction a prosecution only in consultation with the Chief Justice of India (CJI) and if the CJI was involved, in consultation with other judges of the Supreme Court.

(5) *Lily Thomas, Advocate v Speaker Lok Sabha*, (1993) 4 SC 234.

The Congress party's decision to abstain from voting in the Ramaswamy impeachment was challenged as *ultra vires* the purport of *Article 124*(4). Overruling such an objection, the Court held that the right to vote included the right to abstain from voting. An abstention was neither neutrotity nor an expression of any opinion; yet it was legitimate and valid.

(6) *"K" a Judicial Officer*, JT 2001 (2) SC 397: Guidelines for Judiciary while making remarks.

A two-Judge Bench of the Supreme Court while dealing with the adverse remarks by the Delhi High Court against a judicial officer in the course of exercising powers of revision under *section 482 of the Code of Criminal Procedure* ruled that the power to make remarks or observations is there but the exercise of power must withstand judicial scrutiny on the touchstone of tests laid down. The overall test is that the criticism or observation must be judicial in nature and should not formally depart from sobriety, made ration and reserve.

(7) *Mona Panwar v High Court of Judicature of Allahabad,*(2011) 3 SCC 496 : (2011) Cr LJ 1619; *Amar Pal Singh v State of UP*, AIR 2012 SC 1995 : (2012) 6 SCC 491.

The Supreme Court examined the records when a petition was filed to expunge disparaging remarks made against a subordinate judicial officer. The court found that the judicial officer was discharging her judicial function to the best of her ability. The court observed: "To err is human". Difference in views of higher and lower courts is purely a result of difference in approach and perception. Merely because there is difference in view, it does not necessarily establish that lower courts are necessarily wrong and higher courts are always right. The court held that there is a need to adopt utmost judicial restraint against making disparaging remarks so far as members of lower judiciary are concerned.

(8) *Nahar Singh Yadav v UOI,*AIR 2011 SC 1549 : (2011) 1 SCC 307; *R C Chandel v High Court of MP,*AIR 2012 SC 2962 : (2012) 8 SCC 58.

It was held that though judges are human beings, not autonomous, it is imperative for a judicial officer in whatever capacity he may be functioning, that he must act with the belief that he is not to be guided by any factor other than to ensure that he shall render a free and fair decision which according to his conscience is the right one on the basis of materials placed before him.

A judge, like Caesar's wife, must be above suspicion. The credibility of judicial system is dependent upon the judges who man it. The standard and conduct expected of a Judge is much higher than an ordinary man. It is no excuse that since the standards in the society have fallen, the judges who are drawn from the society cannot be expected to have standards and ethical firmness required of a judge.

(9) *Narinder Singh Arora v State (Government of NCT of Delhi),*AIR 2012 SC 1642 : (2012) 1 SCC 561 : (2012) Cr LJ 2167.

No one can act in judicial capacity if his previous conduct gives ground for believing that he cannot act with an open mind or impartiality. A person trying a cause, must act not only fairly, but must be able to act above suspicion of unfairness and bias.

(10) *State of UP v Neeraj Chaubey,*(2010) 10 SCC 320 : (2010) 10 JT 12.

Judges are not free to choose their jurisdiction and as to choice of their case. If allowed to do so, the justice machinery will collapse. A judge or Bench of Judges assumes jurisdiction to hear a matter “only” when it is specially allowed as per roster and strict adherence to the above procedure has to be followed.

(11) *People’s Union for Civil Liberties v UOI,*AIR 2003 SC 2363 : (2003) 4 SCC 399.

The Supreme Court declared that the primary duty of the judiciary is to uphold the *Constitution* and the laws without fear or favour, without being biased by political ideology or economic theory.

(12) *State of WB v Committee for Protection of Democratic Rights*, AIR 2010 SC 1476 : (2010) 3 SCC 571.

No act of Parliament can exclude or curtail the powers of Constitutional Courts with regard to fundamental rights.

G. LABOUR LAW

(1) *BWSSB v Rajappa*, AIR 1978 SC 548S.

The Court defined the concept of “industry” as having the following components:

- Systematic activity.
- Organised by the co-operation between employer and employee; and
- For the production and/or distribution of goods and services.

It further ruled that the absence of the profit motive was an irrelevant consideration and its focus was functional.

(2) *PUDR v UOI*, AIR 1982 SC 1473.

In a PIL, the Court held that casual labour engaged in the construction of the Asian Games Village was entitled to the benefits of relevant industrial and labour laws.

(3) *Rajasthan State Road Transport Corp v Deen Dayal Sharma*, AIR 2010 SC 2662 : (2010) 6 SCC 697.

As to justification to decide labour matters, Court held that if infringement of Standing Orders is alleged, civil court’s jurisdiction is ousted, but if suit is based on violation of principles of common law or constitutional provision or on other grounds, civil court’s jurisdiction is not barred. Nature of right sought to be enforced is decisive in determining the jurisdiction of civil court.[70]

(4) *Karnataka SRTC v M G Vittal Rao,*(2012) 1 SCC 442 : (2011) 13 JT 247.

The Court reiterated the principle that mere acquittal in criminal case will not entitle the employee to get reinstatement, when a domestic enquiry is held wherein he was found guilty and the domestic enquiry was held in a fair manner, following principles of natural justice and dismissal was consequent to departmental enquiry. In that case, the court further held that once the employer has lost confidence in the employee and bona fide loss of confidence is affirmed, reinstatement cannot be directed. The decision in number of cases was discussed. The court also expressed the view that when the employee is charged with grave misconduct like corruption or theft, removal or dismissal from service is the only punishment that can be imposed.

(5) *Seimens Ltd v Seimen Employees” Union,*(2011) 9 SCC 775 : AIR 2012 SC 175.

The Court criticised the role of trade union in going against the interest of workers. The court held that a trade union is supposed to represent the interest of workers. When workers themselves do not consider a scheme as unfair to them, trade union cannot take upon itself the burden of saying that the scheme is unfair, and no union can insist that all workmen must remain workmen perpetually; otherwise it would be an unfair labour practice. Court also discussed as to what is unfair labour practice.

(6) *UPSEB v Laxmi Kant Gupta*, (2009) 16 SCC 562.

There is no rule “now” that when a termination is found illegal, reinstatement is to be ordered. In such cases, compensation can be given in lieu of reinstatement. Such change in approach, the court held, was due to

change in policy decision of the Government, in the wake of prevailing market economy, globalisation, privatisation and outsourcing.[71]

(7) *Chaitanya Prakash v H. Omkarappa*, (2010) 2 SCC 623.

Information given to prospective employer regarding unsatisfactory performance of employee who is a probationer (on the request of prospective employer) will not make the removal from earlier employment a punitive action.[72]

H. LIFE: RIGHT TO

(1) *Olga Tellis v Bombay Municipal Corp*, (1985) 3 SCC 545.

This case deals with paraments dwellers and here it was held that the doctrine of estoppel was inapplicable to Fundamental Rights.

(2) *ADM Jabalpur v Shiv Kant Shukla*, AIR 1976 SC 1207.

Right to life and liberty was a fundamental right flowing from *Article 21* and it could be suspended during emergency. But now *Article 359* has since been amended, and even during an emergency. *Articles 21* & *22* cannot be suspended.

(3) *Francis Coralie v Administrator, Union Territory*, (1981) 1 SCC 608.

Right of a prisoner to confer with family members and lawyers, is a part of the right to life under *Article 21*. Restriction on liberty had to be fair and just and not arbitrary.

(4) *Hussainara Khatoon v Home Secy.*, AIR 1979 SC 1360.

An undertrial had a right to speedy trial and that prolonged detention offended *Article 21*. Pre-trial detention must be based on “reasonable, just and fair” procedure. There are four cases with regard to this petitioner.

(5) *Kadra Pahadiya v State of Bihar*, (1981) 3, 671.

Pre- trial definition of young dentenues: *Article 21* included “Legal Aid” as a part of the right to life.

(6) *Maneka Gandhi v UOI*, AIR 1978 SC 597.

The right to travel abroad an integral part of “personal liberty” which as per *Article 21* could only be deprived of by “procedure” established by law. The procedure must be reasonable under rticles 14 and 19. The Court accepted the American doctrine of “due process” of law. This was a departure from the *Gopalan’s* case, AIR 1950 SC 27.

(7) *M C Mehta v State of TN*, (1996) 6 SCC 756.

Child labour in match factories and fire works factories was offensive to the Constitutional mandate.

(8) *Rathinam v UOI*, (1994) 3 SCC 394.

Section 209 of the Indian Penal Code making attempted suicide punishable challenged. The court held, it offended the spirit of *Article 21*, *i.e.* violative of *Article 21*. On review the decision was reversed.

(9) *Municipality of Ratlam v Vardichand*, AIR 1980 SC 1622.

Right to life was affected by municipal inaction and negligence. Municipality’s plea of financial inability was rejected in strong terms.

(10) *Sodhan Singh v New Municipal Committee*, (1984) 4 SCC 155.

Right of hawkers and payment traders. Such a right could be regulated by municipality by granting licences. Hawking could be prohibited in certain areas by municipality.

(11) *Sunil Gupta v State of MP,*(1990) 3 SCC 119.

The case deals with whether the hand cutting of a prisoner under judicial custody infringed fundamental rights. It was held that if in specific circumstances it is warranted the escort must record reasons for doing so.

(12) *D K Basu v State of WB*, 1996 (9) Scale 298.

Custodial death. Detailed guidelines laid down for arrest and custodial detention. Compension could be awarded even in writ cases.

(19) *Aruna Ramachandra Shanbaug v UOI,*AIR 2011 SC 1290 : (2011) 4 SCC 454.

Right to die is not included in right to life. The court held that the decision in *PRathinam v UOI*,[73] was overruled by *Constitution* Bench in *Gian Kaur v State of Punjab*,[74] without expressing any opinion on the question.

(20) *Budhadev Karmaskar (1) v State of WB,*(2011) 11 SCC 538 : (2011) Cr LJ 684.

The Central Government and the State Government were directed to take steps to rehabilitate sex workers after holding that they have also a right to live with dignity. Various directions have been issued from time to time.

(21) *Bachpan Bachao Andolan v UOI,*(2011) 5 SCC 1 : AIR 2010 SC 1561.

The Court declared employment of children below eighteen years in circus as unconstitutional, and the Government was directed to frame a scheme for rehabilitation. The Central Government was also directed to issue a notification prohibiting children from being employed in circus and to conduct raids to verify the same. The court also directed to liberate children from circus camps and to handover to their parents after proper verification.

(22) *State of WB v Committee for Protection of Democratic Rights,*AIR 2010 SC 1476 : (2010) 3 SCC 571.

The Court declared that the “State” has a duty to enforce human rights of a citizen providing for fair and impartial investigation against any person accused of commission of a cognizable offence, which may include its own officers. *Article 21* in its broad application not only takes within its fold enforcement of the rights of the accused, but also the right of the victim. In certain situation even a witness to the crime may seek for and shall be granted protection by the State. The right to life is paramount. Likewise, if *Articles 14* and *19* are out of operation, *Article 32* will be drained of its lifeblood. Being protectors of civil liberties of citizens, the Supreme Court and the High Courts have not only the power and jurisdiction, but also an obligation to protect the fundamental rights guaranteed by Pt III in general and under *Article 21 of the Constitution* in particular, zealously and vigilantly. In view of the legal position, the High Court can direct a case to be investigated by the CBI without the consent of concerned State where the offence was committed.

(23) *Selvi v State of Karnataka*AIR 2010 SC 1974 : (2010) 7 SCC 263.

Article 21 protects every person against cruel, inhuman and degrading treatment. Hence the investigating agencies cannot conduct narco- analysis, polygraph and BEAP tests on an accused. The court held that such test results may prompt the investigating agencies to inflict mental pain on the test subject. Such tests also result in pain which cannot be allowed.

(24) *Ramlila Maidan Incident, In re.*(2012) 5 SCC 1 : (2012) Cr LJ 3516.

The Court held that “liberty” which is subject to reasonable restriction, needs to be examined with reference to other constitutional rights and *Article 21* is the foundation of the Constitutional Scheme. The procedure established by law for deprivation of rights conferred by *Article 21* must be fair, just and reasonable. The rules of justice and fairplay require that State action should neither be unfair, unjust, lest it attracts the *vice* of unreasonableness, thereby vitiating the law which prescribed that procedure and consequently the action taken thereunder. Any action taken by a public authority which is entrusted with the statutory power has to be treated by the application of two standards – (1) the action must be within the scope of the authority conferred by law, and (2) it must be reasonable.

(25) *Avishek Goenka v UOI,*AIR 2012 SC 2226 : (2012) 5 SCC 321.

The Court declared that safety of society is paramount and privacy of individual is subject to the right of society.

Shaded glasses in motor vehicles which facilitate criminal activities were directed to be removed and the plea of individual privacy was held subordinate to the society's interest.

(26) *Ramlila Maidan Incident, In re.*(2012) 5 SCC 1 : (2012) Cr LJ 3516 (*supra*).

To sleep is a biological necessity. Its deprivation affects a person's health and mental condition. Interference with a person's sleep is a form of third degree method of torture prohibited by *Constitution*. (by CHAUTA J.).

(27) *Amarnath Shrine, In re. v UOI,*(2013) 3 SCC 247 : (2012) 12 JT 503 (*supra*).

Socio-economic justice for people is the very spirit of the Preamble of our *Constitution*. "Interest of the general public" in *Article 19*(5) is a comprehensive expression comprising several issues which affect public welfare, public convenience, public order, health, morality, safety, *etc.* all intended to achieve the socio-economic justice for people. The expression "life" in *Article 21* does not connote mere animal existence or continued drudgery through life. The expanded connotation of life apart from other ingredients would mean the traditional and cultural heritage of the person concerned. In that case, the court took note of persistent press reports dealing with poor arrangements and number of deaths during the yatra to Amarnath Cave Temple and gave many directions to be implemented by the Central Government and the Government of J & K.

(28) *Extra-Judicial Execution Victim Families Assn. (EEVFAM) v UOI,*(2013) 2 SCC 493AIR 2013 SC 818.

Any indication of the violation of the right to life or personal liberty would put all the faculties of the Supreme Court at high alert to find out the truth and in case the court finds that there has, in fact, been violation of the right to life and personal liberty of any person, it would be court's bounden duty to step in to protect those rights against onslaught by the State. Even if an alternative remedy is available before the National Human Rights Commission, the Supreme Court will entertain a writ petition under *Article 32*. The court held that it is not open to the State Government to cite number of policemen and security forces personnel killed to justify custodial death, fake encounters or what the Supreme Court has called "administrative liquidation". It is simply not permitted by the *Constitution*. The court will stand with the individual and prohibit the State or its agencies from violating the rights guaranteed under the *Constitution*.

(29) *Vishaka v State of Rajasthan*(1997) 6 SCC 241 : AIR 1997 SC 3011; *Medha Kotwal Lele v UOI,*(2013) 1 SCC 312; and *Medha Kotwal Lele v UOI,*(2013) 1 SCC 297 : AIR 2013 SC 93.

All the above cases relate to sexual harassment of women in workplaces which has been declared by court as violative of "dignity" of women under *Article 21*.

In *Vishaka's case,* the court exercised its power under *Article 142 of the Constitution* and gave various guidelines to protect women in workplaces. It was judicial legislation since there was a statute on the subject. When the implementation was not speedy, the court gave further instruction in the other two cases. Bar Council of India and Bar Council in States were also directed to implement the order. The direction was applicable to all professions, and Medical Council of India, Council of Architecture, Institute of Chartered Accountants, Institute of Company Secretaries and other statutory institutions were directed to implement them and any violation of those directions could be investigated by the respective High Court.

I. PUBLIC INTEREST LITIGATION AND THE LAW

(1) *Bandhua Mukti Morcha v UOI*, AIR 1984 SC 802.

In a letter addressed to the Court, an NGO sought judicial intervention to resue bonded labourers from bondage. The Court *suo moto* appointed a Commission to inquire into the allegations made. While considering the ambit of writ remedy, the court ruled that:

- No constitutional fetter prevented a petitioner not directly affected, from approaching the writ court.
- The writ remedy was not restricted to prerogative writs.

(2) *Bhopal Gas Peedit v UOI*, AIR 1989 SC 1069.

In a PIL relating to the interim relief measures for the gas leak victims of Bhopal, the Court directed the State Government to resume the relief scheme earlier sanctioned by it. It is significant to note how the Court relied on *Articles 21* and *32* to expand the supervisory or inquisitorial character of its writ jurisdiction.

(3) *Kishen Pattanayak v State of Orissa*, 1989 Supp. (1) SCC 258 (*Kalahandicase*).

This case related to the Kalahandi famine. Exercising its writ jurisdiction, the Court nominated NGO activists to an existing district level monitoring authority.

(4) *Pandey v UOI*, (1991) 4 SCC 33.

In a series of petitions filed by the petitioner, the Court recognized the fundamental rights of children who were given in inter-country adoption and judicially legislated on the issue, laying down detailed policy guidelines. Among other things, the guidelines addressed issues such as competence to adopt, registration of adoption agencies, adoption interviews etc. It is noteworthy that in the absence of a legislative policy, the Court invoked its writ power to formulate guidelines, which were legislative in character.

(5) *RELK v State of UP,*AIR 1989 SC 594.

Entertaining a PIL, the Court ordered a total ban on stone quarrying in the Doon Valley, in modification of its earlier partial ban. Ruling that *res judicata* was inapplicable, the Court observed that procedural technicalities should be dispensed with in PIL related to matters of public concern. But see *Avishek Goenka (II) v UOI*.[75] The court held that judgment in earlier PIL is a judgment *in rem*. In *Jaydeep Mukherjee v State of WB*,[76] the court held that the principles of finality and fairness demand that there should be an end of litigation and it is in public interest that issues settled by judgment of court which have attained finality should not be permitted to be agitated over and over again. The court relied on the maxim "*inerestrei publicae ut sit finis litinum*" – which maxim applies to PIL also.[77]

(6) *Sachidanand v State of W B,*AIR 1987 SC 1109.

The PIL sought to stop the construction of a five star hotel near a zoo. On facts, the Court held that the interference was unwarranted. The Court observed that a possibility existed for the tool of PIL to be misused for private interest by resort to frivolous litigation.

(7) *Sheela Barse v UOI*, (1996) 3 SCC 596.

The PIL related to the enforcement of the Children Act in State jails. The petitioner undertook to gather the information herself, a function ordinarily devolving upon of the state. The Union Government was directed to reimburse the petitioner for her expenses.

(8) *Sheela Barse v UOI*, (1988) 4 SCC 226.

The court considered the Petitioner's complaint of liberal grant of adjournments to the respondents in the petitioner's PIL on child rights. It held that the petitioner had no vested right to demand an expeditious final disposal.

(9) *State of HP v Student's Parent*, AIR 1985 SC 910.

The case related to a letter sent by a parent to the Chief Justice of the High Court alleging that his child had been ragged by students of a Government Medical College. The same was treated as a writ petition, but the contents of a letter and the name concerned were kept anonymous. The Court directed that State Government to inquire into the matter and to formulate a regulation to address ragging. The State went on appeal in the Supreme Court. While holding that even a letter could be treated as a writ petition, the Court ruled that the direction to the State Government amounted to a directive to enact legislation, which the judiciary could not do.

(10) *Sunil Batra v Delhi Administration*, AIR 1978 SC 167.

The Court treated a letter of a prisoner alleging prison excesses by jail authorities against a fellow prisoner as a writ petition. It ruled that a writ of *habeas corpus* would be available against the actions of jail authorities which violated *Articles 14*, *19* and *21*.

(11) *Tarun Bharat Sangh v UOI*, 1993 Supp. (1) 4 SCC.

The PIL related to the danger facing the Sarsika Tigar Park due to mining activities. The court issued detailed orders related to the prohibition of mining activities and the *constitution* and functioning of supervisory

committees. Appreciating the risk to which the petitioner was exposed the Court ordered special security and protective measures.

(12) *PUCL v UOI*, 1997(1) Scale 706.

In a case relating to a fake encounter killing, taking cognizance of the report of a district judge, the Court awarded a compensation of Rs. 1 lakh to each of the deceased.

(13) *Natural Resources Allocation, In Re. Special Reference No.1 of 2012*(2012) 10 SCC 1 : (2012) 9 Scale 310.

Learned judge KHEKHOR explained the jurisprudential concept of PIL and how it has developed. The concept of equality before law and equal protection of the laws emerges from the fundamental right expressed in *Article 14*. Equality is a definite concept. The variation in its understanding may at best have reference to the maturity and evolution of nation's thought. To start with breach of equality was a plea advanced by individuals claiming fair treatment. Challenges were raised also on account of discriminatory treatment. Equality was sought by those more meritorious, when benefits were bestowed on those with lesser caliber. Gradually, judicial intervention came to be sought for equitable treatment, even for a section of the society put together *via* a jurisdiction which in due course came to be described as PIL. It all started with a demand for the basic rights for respectable human existence. Over the years, the concept of determination of social rights has traversed into different directions and avenues. So much so that now rights in equity sometimes even present situation of conflict between individual rights and societal rights. In a maturing society, individual rights and plural rights have to be balanced, so that the oscillating pendulum of rights, fairly and equally, recognises their respective parameters. For a country like India, the pendulum must be understood to balance the rights of one citizen on the one side and about 1.24 billion citizens of the country on the other. The true effect of *Article 14* is to provide equality before law and equal protection of laws not only with reference to individual rights, but also ensuring that its citizens on the other side of the balance are likewise not deprived of their right to equality before law and the right to equal protection of laws. An individual citizen cannot be the beneficiary at the cost of the country *i.e.,* plurality. Enriching one at the cost of all others would amount to deprivation of the plurality *i.e.,* the nation itself.

PIL as a jurisprudential concept brings into focus the rights of the plurality, as against the individual's right, especially when the plurality is for one or other reason not in a position to seek redress of its grievances. This inadequacy may not always emerge from financial constraints. It may sometimes arise out of lack of awareness and at other times merely from the overwhelming might of executive authority. The jurisprudential thought in this country after the emergence of PIL is seeking to strike a balance between individual right and the right of the plurality.

(14) *State of Uttaranchal v Balwant Sigh Chaufal,*AIR 2010 SC 2550 : (2010) 3 SCC 402.

The Court held that genesis and source of PIL lies in constitutional obligation of the Supreme Court and the High Court to ensure that access to justice becomes available to all sections of society including poor and marginalised so that fundamental right becomes meaningful to them. System of PIL was therefore developed through judicial creativity and craftsmanship. It was held in that case that rule of *locus standi* diluted and meaning of "aggrieved person" broadened so that public spirited person or bodies could file PIL, even if not personally affected. Scope of the right to life and personal liberty was also enlarged. This was the first phase of development of PIL in India. Preservation of ecology and environment brought about by giving expanded meaning to *Article 21* and the third phase was for purity in public administration and probity in governance. It was held in a PIL that the court has the power to issue general directions and guidelines which go beyond grant of relief to individuals.

(15) *Ramlila Maidan Incident, In re.*(2012) 5 SCC 1 : (2012) Cr LJ 3516.

The Court *suo motu* took notice of the happenings in Ramlila Maidan and action was taken relying on media reports, photographs, CCTV camera footages and records along with police records.

(16) *Salal Hydro-Electric Project v State of J & K,*(1984) 3 SCC 538 ; see also *Bandhua Mukti Morcha v UOI,*AIR 1984 SC 802 : (1984) 3 SCC 161.

When persons who by reason of poverty or socially or economically in a disadvantaged position are unable to

move the court, the grievance can be addressed to the court by a letter to Chief Justice, who can treat the same as PIL. The technical rules of procedure are dispensed with.

Public interest litigation is intended as an instrument of justice to the doorstep of the poor and the less fortunate.[78]

(17) *Vishal Jeet v UOI,*(1990) 3 SCC 318; *Gaurav Jain v UOI,*AIR 1990 SC 292: 1990 (Supp) SCC 709.

In the above cases, the court asked the Government to frame policies and programmes for rehabilitation of prostitutes and for the protection of children of prostitutes, giving various directions.

(18) *People's Union for Civil Liberties (Night Shelter matter) v UOI,*(2012) 11 SCC 422 : (2013) 1 Scale 316.

The Court took judicial notice of newspaper report depicting the plight of patients and their relatives compelled to spend nights in severe and biting winter without a roof in AIIMS. It was held that it is a serious problem to be attended to forthwith.[79]

(19) *Kranti v UOI,*(2007) 6 SCC 744 : (2007) 8 JT 359.

The Supreme Court issued direction for rehabilitation of tsunami victims in Andaman & Nicobar Islands.

(20) *State of HP v Umed Ram Sharma,*AIR 1986 SC 847 : (1986) 2 SCC 68.

Direction was given to the State to complete the construction of a road in hilly areas in Himachal Pradesh, which the Court held, is part of *Article 21*.

(21) *Upendra Baxi (Dr) v State of UP,*(1998) 9 SCC 388 : (1998) 9 JT 119.

The Court directed the National Human Rights Commission to be involved in the supervision of Agra Protective Home for Women.

(For further decided cases, see *Articles 21* and *32*).
J. OTHER CASES REGARDING FUNDAMENTAL RIGHTS

(1) *Bijoe Emmanuel v State of Kerala*, (1986) 3 SCC 615.

The case refers to Central Jehovah's refusing to sing National Anthem. The students stood silently while the song was sung. There was therefore no disrespect to the anthem. Right to remain silent was held to be an integral part of the free speech doctrine.

(2) *Brahmachari Sideshwar Shai v State of WB*, (1995) 4 SCC 64.

Test to determine whether an "entity" was religious denomination" entitled to the benefit under *Article 26*(1) was laid down by Court.

(3) *Cooper v UOI*, AIR 1970 SC 564.

Bank Nationalisation Case: The Court ruled that property could be acquired by a retrospective legislation. President by an ordinance (subject to his satisfaction) could do so.

(4) *DTC v Mazdoor Union*, AIR 1991 SC 101.

Question regarding unilateral termination of services of permanent employees of public and some Government employees with one month's notice was discussed. The court held that this was "opposed to public" policy and "one sided". The Court in its equity jurisdiction, held authorised to relieve the weaker party from such "oppressive, unfair and unjust" contractual obligation.

(5) *Ramesh Thaper v State of Madras*, (1950) SC 594.

Libel and slander apart, any other restriction on free speech except on grounds of security of state was impermissible. Such a law would be struck down by the Court.

(6) *R S Sodhi v State of UP,*1994 Supp. (1) SCC 143.

(Pilibhit police encounter deaths) C.B.I. Investigation ordered.

(7) *Secy. of Ministry of Information and Broadcasting v CAB*, 1995 2 SCC 161.

Right to broadcast was an integral part of free speech guarantee. Criteria was laid down in the case.

(8) *Tata Press Ltd v Mahanagar Telephone Nigam Ltd*, (1995) 5 SCC 139.

A commercial advertisement, a form of commercial speech was held to be protected by the free speech guarantee.

(9) *Khatri v State of Bihar*, AIR 1981 SC 627.

Bhagalpur Blinding Incident—legal aid to the poor.

(10) In Re:*Arundhati Roy*, (2002) 2 Scale 538: Freedom of Speech and Contempt of Courts.

The Supreme Court in a significant judgment held that the freedom enjoyed by the press is not separate from freedom of speech of citizens. While guaranteeing such freedom it has provided under *Article 129* that the Supreme Court shall be a Court of Record and shall have all the powers of such a court including the power to punish for contempt of itself. If a citizen therefore, in the part of exercising right of free expression under *Article 19*(1) tries to scandalize the court or undermines the dignity of the court, then the court would be entitled to exercise power under *Article 129*. High Courts can exercise similar power under *Article 215 of the Constitution*.

(11) *M C Mehta v UOI & Ors.*, 2001(8) Scale 106: Taj is a national property.

In *suo motu* proceedings based on news item published in Hindustan Times, Delhi Edn, dated 16th October, 2001, regarding causing mischief in Taj Precincts by a mob, the Supreme Court held that the Taj is a national property and does not belong to any party or community. It requires full protection by all concerned including the State police.

(12) *T K Rangarajan v Government of Tamil Nadu & Ors.*, 2003 (6) Scale 84. Government staff cannot go on strike.

While considering the vital question about right to strike by the Government employees, including doctors working in State run hospitals and dispensaries, the Supreme Court held that they have no fundamental, legal, moral, or equitable right to go on strike. The court held that the “Government employees cannot hold the society to ransom by going on strike”. They can seek redressal from the statutory machinery. The court also made it clear that no political party or organization can claim a right to paralyse economic and industrial activities of a state or the nation causing inconvenience to the citizens.

(13) *Environment & Consumer Protection Foundation v Delhi Admn.,*(2011) 12 Scale 110 ; (2012) 4 Scale 243 ; (2011) 3 Scale 503 ; (2011) 11 Scale 12.

In all the above cases, the court held that not providing potable water and toilet facilities in schools violates right to free and compulsory education to children, guaranteed under *Article 21-A*. The Court directed all States and Union Territories to make available these facilities in all schools on or before a specified date. The direction was to apply to all schools, whether owned by State or privately owned, aided or unaided, minority or non-minority schools.

(14) *Bharatiya Seva Samaj Trust v Yogeshbhai Ambalal Patel,*AIR 2012 SC 3285 : (2012) 9 SCC 310.

The Court held that provision of free and compulsory education of satisfactory quality to children from disadvantaged and weaker sections is not merely the responsibility of schools run by appropriate Government but also schools which are dependant on Government funds.

K. RESERVATIONS—SC/ST

(1) *Indra Sawhney v UOI*, (1995) 5 SCC 429.

Popularly known as the “Mandal Commission case”, the dispute related to the Mandal report and issues connected with its implementation. The salient features of the judgment are as follows:

Article 14 contemplates affirmative action, not merely legal equality but also real equlity. Positive discrimination or affirmative action is necessary as an equalizing measure.

Affirmative action is not merely compensatory justice but also distributive justice.

Reservations must however be narrowly constructed and subject to a period review.

Power of the state to make “provision” under *Article 16*(4) for social advancement can be exercised by executive orders, no legislation is necessary for providing reservations.

Article 16(4) is independent of *Article 16*(1) and not an exception thereto; whereas the latter ensures “substantive equality”, the former addresses “procedural equality”.

Article 16(4) is exhaustive of the topic of reservation in favour of the backward classes.

However, all reservations are not exhaustively covered by *Article 16*(4): certain reservation may be permitted under *Article 16*(1).

Mandal report not based solely on class, hence *Article 16*(1) (which prohibits discrimination or grounds of caste only) not violated.

Backwardness need not be both social as well as educational, as the latter springs from the former.

“Creamy Layer” should be excluded but concept is applicable to OBC’s only and not SC/ST’s.

Reservation under *Article 16*(4) cannot exceed 50 % and is applicable only at the time of initial appointment and not promotions.

Certain services and posts on account of requirement of the highest levels of intelligence and skill (*e.g.* defence, scientific research) should not be open for reservations.

Reservation exclusively on economic criteria not valid.

(2) *Anjan Kumar v UOI*, (2006) 3 SCC 257. Factors guiding grant of ST certificate.

Anjan Kumar was the offshoot of the wedlock between L and K. Husband L belonged to a forward class whereas wife K belonged to a Scheduled Tribe. Anjan Kumar was issued a Scheduled Tribe certificate by the Sub-Divisional Magistrate on the ground that his mother belonged to the Oraon tribe which was recognized as a Scheduled Tribe in the State of Madhya Pradesh. Anjan Kumar appeared for the civil service examination claiming to be a Scheduled Tribe candidate. He was selected in the said examination and was allotted Indian Information Service Grade A. However, he did not receive any final posting order, which resulted in his making many representations in that regard to the Government. He therefore filed an original application before the Central Administrative Tribunal, Principal Bench, New Delhi, seeking directions to the Union of India to allow him to join the training. Before the Tribunal, the Union of India contended that Anjan Kumar had not been brought up in a tribal environment and his father was non-tribal and therefore Kumar could not be treated as belonging to a Scheduled Tribe. The Union of India then conducted an enquiry into this question which was carried out by Additional District Collector, Jaispurnagar, Madhya Pradesh. The report was against Anjan Kumar which made the Tribunal to ultimately dismiss his application.

Kumar filed a writ petition before the High Court of Madhya Pradesh at Jabalpur, challenging the enquiry report on grounds of violation of the principles of natural justice. The single judge and after him, the Division Bench of the High Court dismissed Anjan Kumar’s writ petitions. Kumar then filed an appeal by special leave in the Supreme Court.

The issues that arose before the Supreme Court were:

(1) Whether the certificate issued to Kumar of belonging to a ST was validly issued or not?

(2) On what basis could a ST certification be issued?

The Supreme Court held that:

(i) The condition precedent for granting a Scheduled Tribe Certificate is that one must have suffered disabilities wherefrom one belongs.

(ii) The object of *Articles 341*, *342*, *15*(4), 16(4) and 16(4-A) of the *Constitution* is to provide preferential treatment for the Scheduled Castes and Scheduled Tribes having regard to the economic and educational backwardness and other disabilities wherefrom they suffer. Considering the typical characteristic of the tribal including a common name, a contiguous territory, a relatively uniform culture, simplistic way of life and a tradition of common descent, the transplantation of the outsiders as members of the tribes or community may dilute their way of life apart from the facts that such persons do not suffer any disabilities.

(iii) The marriage of Kumar's mother – a tribal woman – to a forward class husband was a court marriage performed outside the village. In such a situation, the bride or the bridegroom suffers the wrath of the community of the village and runs the risk of being ostracized or excommunicated from the village community.

(iv) Kumar's visits to his mother's village during holidays and cordial relationship between him and the village community would not amount to his acceptance by the village community. By no stretch of imagination could a casual visit to one's relatives in a village provide the status of a permanent resident of the village or member of the tribal community.

(v) The Scheduled Caste and Scheduled Tribe Certificate is not a bounty to be distributed. To sustain the claim, one must show that he/she suffered disabilities- socially, economically and educationally cumulatively.

The Supreme Court quashed and set aside the certificate procured by Kumar by misrepresentation of facts, and dismissed the appeal with costs.

(3) In *M. Nagaraj v UOI,*[80] it was held that *Articles 16*(4-A) and (4-B) are duly enabling provision and the State is not bound to make reservation for SC/STs in matter of provision. It was also retreated that this ceiling limit of 50% (quantitative limitation), (2) the concept of creamy layer (qualitative exclusion), (3) the compelling reasons namely backwardness and inadequacy of representation and (4) overall administration efficiency are all constitutional requirements which have to be taken into consideration, while making any law.

(4) *Ashok Kumar Thakur (8) & UOI,*(2007) 4 SCC 361 : (2007) 5 JT 276.

The Court held that the concept of creamy layer rule is a necessary bargain between the competing ends of caste based reservation and the principle of secularism and it is part of Constitutional scheme. The court also held that there is need for periodical identification of backward class of citizens for the purpose of reservation.

(5) *Nair Service Society v State of Kerala,*AIR 2007 SC 289 : (2007) 4 SCC 1.

A group of persons, although, are not as much backward or by passage of time ceased to be backward would come within the purview of creamy layer doctrine evolved by the Supreme Court which intended to lay down a law in terms of Constitutional Scheme under which no group of persons should be held to be more equal than the other group.

(6) *Ashok Kumar Thakur v UOI,*(2008) 6 SCC 1 : (2008) 5 Scale 1.

Non-exclusion of creamy layers, and their continuance would mean keeping the weakest among the weak, always weak and leaving the fortunate ones to enjoy the benefits. When socially and educationally backward classes are determined by giving importance to caste, the segment of that caste that is economically advanced does not deserve any sort of reservation for progress in life. They are socially and educationally advanced enough to compete for the general seats along with other candidates.

(7) *Nair Service Society v Dr T Beermasthan,*(2009) 5 SCC 545 : (2009) 4 JT 614.

Reservation provisions are enabling provisions and the State is not bound to make reservation, but it is empowered to do so sin its own discretion. Different State Governments in the country may have different

methods for providing reservation, and these will be valid as long as the method adopted by a particular State Government does not violate any Constitutional provision or statute.

(8) *Anil Chandra v Radha Krishna Gaur,*(2009) 9 SCC 454 : (2009) 12 JT 468.

The ceiling limit of 50%, the concept of creamy layer and the compelling reason, namely, backwardness, inadequacy of representation and overall administrative efficiency are all constitutional requirements without which the structure of equality of opportunity in *Article 16* would collapse.

(9) *Pragjyothish Gaonila Bank v Brijal Dass,*(2009) 3 SCC 323 : (2009) 2 Scale 734.

A departmental circular exempting SC/ST candidates from being subjected to selection process of merit-cum-seniority and entitling them to promotion if their names were otherwise within the number of available vacancies is a concession and not a provision for reservation. A SC candidate whose name was below the number of available vacancies will not be entitled to promotion on the basis of the circular.

(10) *E.V. Chinnaih v State of AP,*(2005) 1 SCC 394 : AIR 2005 SC 162.

As per *Article 341 of Constitution*, there can be only one list of Scheduled Castes in regard to a State and that list shall include all specified castes, races or tribes or part or groups notified in the Presidential list. In the entire *Constitution*, whenever reference has been made to “Schedule Caste”, it refers only to the list prepared by the President under *Article 341* and there is no reference to any sub-classificaiton or division in the said list. There is no provision to sub-divide, sub-classify or sub-group these groups or these castes which are found in the Presidential list. *Constitution* intended that all castes included in the Schedule under *Article 341* would be “deemed to be” one class of person. The protection of reservation is afforded to a homogenous group. Further classification and/or re-grouping the homogenous groups by the State legislature would tinker the Presidential notification issued under *Article 341* which is constitutionally impermissible. A notification by State government which seeks to re-group the homogenous group specified in the Presidential notification for purpose of reservation would tantamount to discrimination in reverse and will not be valid under *Article 14*.

(11) *UP Power Corp v. Rajesh Kumar,*AIR 2012 SC 2728 : (2012) 7 SCC 1; *Salaluddin Ahmed v Samba Andolan,*(2012) 10 SCC 235 : AIR 2012 SC 3891; *State of Rajasthan v Bajrang Sharma,*(2012) 10 SCC 253; *Suraj Bhan Meena v State of Rajasthan,*(2011) 1 SCC 467 : AIR 2011 SC 874.

In all the above cases, the court held that promotion made without complying the direction in *M. Nagaraj v UOI*,[81] is not valid. The court held that *Article 16-* 4A is only an enabling provision and the State was not bound to make reservation for SC/ST in the matter of promotion; that if they wish to exercise their discretion in that regard, the State has to collect quantifiable data showing backwardness of the class and inadequacy in representation of that class in public employment in addition to the requirement with *Article 335*. Before making provision for reservation in promotion, the direction in *Nagaraj’s case* must be complied with.

L. WOMEN AND THE LAW

*(1) Yusuf Abdul Aziz v State of Maharashra,*AIR 1954 SC 321 : (1954) SCR 930; *Sowmitri Vishnu v UOI,*AIR 1985 SC 1618 : 1985 (Supp) SCC 137; *Revathi v UOI,*AIR 1988 SC 835 : (1988) 2 SCC 72

In all the above cases, the court held that a woman cannot be punished for the offence of adultery not even as an abettor in view of *Article 15(3) of the Constitution*.

(2) *Mohmad Ahmad Khan v Shah Bano Begum*, AIR 1985 SC 945.

“Mahr” in Muslim law explained.

(3) *All India v Nargesh*, AIR 1981 SC 1829.

This case refers to *Articles 15*(1) and *16*(2) and discusses the distinction between Air Hostesses and Flight Stewards.

(4) *Government of Andhra Pradesh v P.B. Vijay Kumar,*AIR 1995 SC 1648 : (1995) 4 SCC 520.

In the case, the court held that under *Article 15*(3), State may fix a quota for appointment of women in government services. Also, a rule saying that all other things being equal, preference would be given to the

extent of 30 % of the posts was also held valid. In that case, the court held that power under *Article 15*(3) is wide enough to cover the entire range of State activity including employment under the State.

(5) *Mudaliar v Thirukoil*, (1996) 8 SCC 526.

The case deals with the succession right of women under the Vienna Declaration and talks about the elimination of all forms of the discrimination against women. The court ruled that the right to equality of status and opportunity was a part of the the basic structure of the *Constitution*.

(6) *Valsamma Paul v Cochin University*, (1996) 3 SCC 545.

The court held that the upper cast wife became a member of SC/ST husband's cast on marriage. However she was not entitled to claim reservation on account of her advantageous birth.

(7) *Madhu Kishwar v State of Bihar*, JT (1996) 4 SC 379 : AIR 1996 SC 1864 (1996) 5 SCC 125.

The Constitutionality of certain provisions of the Chhota Nagpur Tenancy Act disentitling woman from inheritance rights arose for consideration. While upholding the discriminatory prisons, the Court ruled that the destitute women could assert a right of occupation against the state inheritors. Now, by reason of an amendment in 2005 to *Hindu Succession Act 1956*, all female heirs have been conferred equal rights in the matter of succession and inheritance with that of male heirs.[82]

(8) *Vishaka v State of Rajasthan,*AIR 1997 SC 3011 : (1997) 6 SCC 241.

The Supreme Court has come down heavily on sexual harassment of women at workplace and has declared the same as violation of women's right to dignity under *Article 21*.

(9) *Githa Hariharan (Mrs.) v RBI,*AIR 1999 SC 1149 : (1999) 2 SCC 228 : (1999) 2 Mad LJ 62 (SC).

The Court interpreted *section 6(a) of the Hindu Minority and Guardianship Act 1956* as well as section 19(6) of the Guardian & Wards Act to mean that when the father is not in actual charge of the affairs of the minor either because of his indifference or because of an agreement, oral or written, between him and the minor's mother and the minor is in exclusive care and custody of mother, or the father for any other reason is unable to take care of the minor because of his physical or/and mental incapacity, the mother can be the natural guardian and all her actions will be valid even during the lifetime of the father.

(10) *Chairman, Railway Board v Chandrima Das,*AIR 2000 SC 988 : (2000) 2 SCC 465.

The Court held that rape is a heinous crime against women and amounts to violation of her fundamental right guaranteed under *Article 21* and compensation of Rs. 10 lakh was awarded.

(11) *Centre for Enquiry into Health and Allied Themes v UOI*, 2001(4) Scale 53: Directions for effective implementation of Prenatal Diagnostic Techniques (Prevention Misuse) Act 1994 (*PNDT Act*).

The practice of female foeticide has assumed alarming proportions in our society. Inspite of laws to curb these practices such as the *PNDT Act* 1994 and the *MTP Act 1971*, it continues with impunity. On a Public Interest litigation, the Apex Court directed the Union, State Governments and other appropriate authorities to implement the act effectively. The court also directed to create public awareness against this practice.

(12) *Balwant Kaur & Anr. v Charan Singh*, JT 2000(5) SC 102: Destitute widow's right in Parent's Property.

Women were being discriminated against in right to property since decades. Though skeleton laws have been enacted to provide meager benefits to the women upon divorce and destitution, they are denied their basic rights in the society. The most contentions issue: "whether a widowed destitute daughter could acquire full ownership of a willed property or whether she had only life interest" came up before a Division Bench of the Supreme Court comprising S B MAJMUDAR and M JAGANNADH RAO JJ. The Court while upholding the women's right to maintenance out of her father's estate observed that *section 19 of the Hindu Adoptions and Maintenance Act 1956* (HAMA) creates an independent and personal right for the daughter on her parent's property during her life time if she is unable to maintain herself out of her earnings or other property.

(13) *Chiranjilal Srilal Goenka (dead) by LRS v Jasjit Singh*, AIR 2001 SC 266: Adoptive Parents' right to will the property.

In a landmark judgment a two -judge bench of the Supreme Court upheld the adoptive parents' right to will their property during their life-time.

(14) *V Muthusawami v Angammal & Ors.*, 2002 (2) Scale 308: Right to retain husbands' property for maintenance.

The Supreme Court in the above case held that, a Hindu female (a widow respondent) who had come into possession of certain land (suit land) in lien of her "pre-existing right to maintenance" out of her deceased husband's property, is entitled to be the full owner of the property and not "as a limited owner". In view of *section 14(1) of the Hindu Succession Act 1956*, the Supreme Court, on the facts and circumstances of the case, held that.

> the right of maintenance could be enforced by the respondent against the estate of her husband in the hands of her father in law and that though she was not in actual "physical possession" of the land she was in legal possession as she never parted with the right of her maintenance and she could enforce such right in law.

As a full owner she also has the power of execute an agreement for sale of such property.

(15) *Vijay Kumar Rama Chandra Bhate v Neela Vijay Kumar Bhate*, 2003(4) Scale 134: Accusations of unchastity constitute a ground for divorce.

Accusations against woman of unchastity and indecent familiarity with a person outside wedlock and allegations of extramarital relationship is a grave assault on wife's character. It is mental cruelty under section 13(1)(ia) of the *Hindu Marriage Act 1955*.

(16) *Amina v Hasam Koya*, 2003(4) Scale 365: Marriage with a pregnant woman valid.

Such a marriage is valid if the man was aware of the fact that his wife was pregnant at the time of marriage. The Court said that a Muslim marriage is valid if the groom knows that bride is pregnant at the time of marriage.

(17) *Air India Cabin Crew Assn. v Yeshaswinee Merchant,*AIR 2004 SC 187 : (2003) 6 SCC 277.

It was held that *Constitution* does not prohibit the employer to consider sex in making the employment decision where this is done pursuant to a properly or legally chartered affirmative action plan. The court said that *Articles 15* and *16* do not prohibit special treatment of women. Constitutional mandate is violated only where the females would have received some treatment with males "but for their sex".

(18) *John Vallamattom v UOI,*AIR 2003 SC 2902 : (2003) 5 Scale 384.

The Supreme Court has used the Directive Principles contained in *Articles 39*(a), 39(d) and 39(e) to confer economic empowerment on women.

(19) *Vijayalakshmi v Punjab University,*AIR 2003 SC 3331 : (2003) 8 SCC 440.

In the light of established proposition of law interpreting *Articles 14* to 16, it can be stated that there could be classification between male and female for certain posts. If separate colleges or schools for girls are justifiable, rules providing appointment of a lady Principal and teacher would also be justified. Rules empowering authorities to appoint only a lady Principal or a lady teacher or a lady doctor or woman Supt. are valid.

(20) *Medha Katwal Lele v UOI & Ors.*, 2004(5) Scale 573: Concern about non-implementation of guidelines on sexual harassment.

The case of non-implementation of guidelines given in *Vishaka v State ofRajasthan*, 1997(5) Scale 453 came for consideration before the Supreme Court. The Court said in respect of such cases the complaint committees have not been formed in accordance with the said guidelines. The Court therefore issued directions providing for the *constitution* of the said committees and further declared that any such complaint committee, as envisaged by the court in its judgment in Vishakha Case, will be deemed to be an inquiry authority for the purpose of Central Civil Service (Conduct) Rules 1964 and the report of the Complaint Committee shall be deemed to be an enquiry report under these rules. Thereafter the disciplinary authority will act on the report in accordance with the rules.

(21) *A. Rita Mahajan v IOC,*(2009) 3 SCC 506 : (2009) 2 JT 327.

In the matter of distribution of State largesse, where dealership of retail outlets of petrol pumps were reserved for women, financial capacity and ability to provide infrastructure and facilities are not relevant and material criteria when the instrumentality of State is providing finance and the concerned outlet site is owned and retail outlet is to be operated by such instrumentality.

(22) *V.D. Bhanot v Savitha Banot,*AIR 2012 SC 965 : (2012) 3 SCC 183.

In interpreting *section 3 of Protection of Women from Domestic Violence Act 2005*, the Court held that where a woman after more than years of marriage having no children was compelled to live alone without any means of sustenance, it amounted to “domestic violence”.
Recent developmentMarriage registration made mandatory by Apex Court

The Supreme Court made it mandatory for all marriages to be registered and directed authorities across the country to amend rules so that its order could be implemented within three months. This judgment could have significant impact on child marriages, which continue despite the enactment of the *Child Marriage Restraint Act*. In Sri Lanka, it was found that after registration was made compulsory, there was a dramatic decrease in child marriages.

The court asked the Central Government to give wide publicity to the order and said the public could give their objections within a month. The new rules should be notified after taking into consideration such objections, it said. The Central and State Governments will have to incorporate appropriate provisions for the consequences of non-registration as well as false declaration during the registration of marriages. The court also made it clear that the rules should specifically contain a provision for appointment of an officer for this purpose.

The judges agreed with the National Commission for Women (NCW), which had said the compulsory registration of marriages would be of critical importance to various women-related issues like prevention of child marriages and ensuring the minimum age of marriage, prevention of marriages without the consent of parties, checking illegal bigamy or polygamy, enabling married women to claim their right to live in matrimonial houses, and widows to claim their inheritance rights and other privileges that they were entitled to after the death of their husbands.

While the States of Maharashtra, Gujarat, Karnataka and Himachal Pradesh had enacted a law, most states did not have any legislation for registration of marriages. The NCW also said it favoured a Central legislation on registration of marriages as there were several lacunae in the existing state laws.
Sexual Harassment: The Bench on Trial[83]

The *Vishakha* judgment gave legal recognition to the hostility women face in the workplace and laid down norms to tackle such misdemeanours. Despite this decade-old palpable accomplishment, ground realities seem to be uninflected. The legal profession is no exception – sexual harassment is real and felt by a number of women lawyers at the hands of judges, much of which is simply dismissed as “humorous” or in bad taste. Accountability is being screamed out from the rooftops but who will judge the judges? In *Medha Kotwal Lele v UOI*,[84] the court issued further direction to implement the decision in *Vishakha’s case.* The Court directed to constitute Sexual Harassment Complaint Committee to be headed by a woman, with an independent member to be associated with each Complaint Committee. The Report of Complaint Committee was to be treated as preliminary investigation or enquiry leading to a disciplinary action, but shall not be treated as a finding or report in enquiry into misconduct of delinquent officer. Direction was also given to Bar Council of India, State Bar Council, Medical Council of India, Council of Architecture, Institute of Chartered Accountants, Institute of Company Secretaries and other statutory institutions shall also implement the directions in *Vishakha’s case.*[85]
A judge above contempt

On 7th February this year, when advocates of Delhi’s Tis Hazari Courts were on a strike, Ms. Navratan Chaudhary appeared in the court of Delhi District Judge S.N. Dhingra as a proxy counsel in a bail matter and asked for an adjournment. The judge took the view that since proxy counsels cannot be recognized, the adjournment sought could not be allowed. He then ordered her to leave the court premises, even threatening police action if she failed to obey. At this juncture, Ms. Saroj Sharma, another woman advocate present in the court, intervened on Ms. Choudhry’s behalf and requested the judge to maintain the dignity of the court and respect the modesty of a woman advocate.

Judge Dhingra then turned his ire on both the lady advocates and commented in open court that he knew “what characters they had and that they had no modesty worth protecting.” He went so far as to insinuate that women lawyers were unprofessional and they had made it into the profession by dubious means. After this incident, Ms. Choudhry filed a police complaint against the offending judge under *section 354 of the Indian Penal Code* (outraging the modesty of a woman) as well as under provisions of the Contempt of Court Act. She then sent copies of her complaint to the Chief Justice of India, Chief Justice of the High Court of Delhi, the Delhi Commissioner of Police, the President and the Prime Minister of India. Judge Dhingra, in the meantime, made a reference to the High Court for action to be taken for contempt of court against the concerned women lawyers.

The police did not take any action against the errant judge and refused to register an FIR despite repeated written reminders to the Commissioner of Police and other authorities. Ms. Navratan Chaudhary filed a writ petition in the High Court of Delhi seeking appropriate sanction for prosecution, registration of FIR and the initiation of departmental proceedings against the judge in accordance with the Vishakha guidelines. At the time of hearing, Ms. Choudhry’s counsel argued that if an offence is reported, the FIR must be registered and no judicial officer would be immune to the operation of law of criminal procedure. Justice Dhingra had not only acted against the dignity of the court but had also clearly manifested a gender bias. The Bench comprising Justices Vijendra Jain and Rekha Sharma instead of granting relief directed that since the matter concerned the Bench and the Bar it would be better to work it out in an atmosphere of understanding rather than litigate in court.

Other women advocates practicing at the Tis Hazari Courts who had heard about Ms. Choudhry’s predicament, rallied around her and a meeting was called soon thereafter. At this meeting, numerous testimonies of sexual harassment suffered by the women lawyers at the hands of judges were shared. The fact that courts in this country were yet to formulate a sexual harassment policy on the lines of the Vishakha judgment was also brought to light. Justice Vijendra Jain of the High Court urged that the matter be resolved between the Bar and the Bench. Mr. Amarjeet Singh Chandok, President of the Delhi High Court Bar Association was solicited to mediate between the women lawyers and the judge. With the intervention of Mr. Chandok, the matter was amicably resolved with a statement by the judge that he believed that the dignity of women must be maintained in court proceedings. Thereafter the women lawyers thought it best to withdraw the petition, approached the court where the petition was pending, informed the judge that the matter was amicably resolved and withdrew the petition. The strike called by the advocates of the Tis Hazari Courts was also withdrawn later.

In Chennai, a woman employee filed a petition alleging harassment by a member of the court staff, but *the court refused to constitute a committee in accordance withthe Vishakha guildelines.* The silence surrounding sexual harassment lies in the inability to give acts of sexism a specific name; forcing recognition of these acts as sexist is imperative especially for those who refuse to “see”. The Vishakha judgment did precisely that, but the courts themselves have flouted its guidelines. With the resolution of Choudhry’s case out of court, the demand of women for formulation of a sexual harassment policy by the courts to be adhered to at the workplace, remains unfulfilled.

This sort of behaviour is an abuse of power. Men give various reasons for this which are all lame. Such abuse of power and authority should be construed as gendered aggression against the rights and dignity of women.

It is now well settled that judiciary cannot cling to age-old notions of any philosophy behind interpretation. It must more with times and has moved. Law must keep abreast of change. During 2004 it has interpreted various fundamental rights best suited to rhythm of the society. Reservation is one of such topic.[86] In *NavinJindal* case[87], the Supreme Court has held that flying the national flag is a symbol of free expression under *Article 19*(1)(a) and in James Martin,[1] it has held that in the name of Hartal/Bandh or strike no one has any right to cause inconvenience to any person or to cause a threat or apprehension of risk of life liberty and property of any citizen.

The Supreme Court has followed and applied to law laid down in T.M.A. Pai Foundation[2] and Islamic Academy of Education case[3], in many cases.[4] In regard to “state” it held that Bombay Port Trust,[5] co-operative societies[6] and U.P. Rajya Karmachari Kalyan Nigam[7] are “state” as defined in *Article 12 of the Constitution*.

Flag-code is not a law, since if contains executive instructions.[8]
Protective discrimination

The Supreme Court held[9] that the *Constitution of India* has provided for only one list of Scheduled Castes to be

prepared by the President with a limited power of inclusion and exclusion by the Parliament. Consequently *sub-classification* or *micro-classification* of Scheduled Castes is violative of *Article 14 of the Constitution*. Sub-divisions of other backward classes (OBC) are not applicable to Scheduled Castes and Scheduled Tribes. Mini classifications based on micro-distinctions are false to our egalitarian faith and only substantial or straight forwards classifications plainly promoting relevant goods can have constitutional validity.[10] S B SINHA J.'s separate but concurring judgement should not be lost sight of. It goes deep to the heart of the problem and explains that in Andhra Pradesh two communities were hardly educated. Hence, to bring them on the same platform with the members of other Scheduled Tribes, what was necessary in the situation was to provide them with scholarship, hostel facilities and special coaching. Providing reservations for them in engineering or medical discipline or in public service would not solve their problem. Without basic education how and when they would be joining public service! This is a myth and the benefit of this provision would go to other categories.[11] Right of a meritorious student to get admission in post-graduate course is a fundamental and human right, which is required to be protected. Such a valuable right cannot be permitted to be whittled down at the instance of less meritorious students.[12]*Reservation is authithesis torule of merit*.[13]

In one case[14] a question was raised whether the candidates holding the status of SCs/STs/OBCs in a State or Union territory can claim benefit of reservation as such in another State/Union territory? In *Chandigarh Admn. v Surinder Kumar*,[15] the Supreme Court replied this question in affirmative. But if one looks into provisions of *Articles 341* and *342* of the *Constitution*, it would be clear that the decision given was not correct, since the words used in these Articles are *"with respect to any Stateor Union Territory"* show that the President specifies them as such in a particular state and consequently those candidates should not be considered for the benefit of reservation in another State. The matter therefore in *S. Pushpa's*[16] case was referred to a Larger Bench for resolution of the conflict raised. The three judge bench in its turn[17] confirmed the two judge bench decision. This is not proper since a division bench cannot overrule another division bench. The law on the point is therefore required to be settled by a *Constitution* bench of the Supreme Court. In *UOI v Shantiranjan Sarkar*,[18] the Supreme Court held that the effect of a notification of a case "in a State as scheduled caste" has to be treated as Scheduled Caste for getting reservation "Central Government Service anywhere in India".

The Supreme Court has recently held[19] that the "right to information" is a facet of the right of "speech and expression" as contained in *Article 19(1)(a) of the Constitution*. It is thus a fundamental right. But it is subject to reasonable restrictions.[20] Dissemination of news and for popular consumption is permissible under our constitutional scheme. An expression of opinion (*i.e.,* about pre-marital sex) in favour of non -dogmatic and non- conventional morality has to be tolerated as the same cannot be a ground to penalize the author.[21] What is meant by the concept of "fair trial" in criminal proceedings is laid down in the Best Bakery case.[22]

In *Ashok Kumar Pandey v State of WB*,[23] the Supreme Court remarked that Public Interest Litigation should not be turned into *"publicity interest litigation"* or *"private interest litigation"*. Tirupati Balaji[24] case discusses and enunciates the contours of the relationship between the Supreme Court and the High Courts,[25] particularly with regard to appellate powers of the former against the orders/decisions of the latter.[26]

The right to marry person of one's choice is a right to freedom of conscience and freedom of expression and court directed that responsibility of law enforcement agencies is to prevent any interference in such marriage.[27]

The Court declared that Haj subsidy by government is improper and subsidy is not in conformity with tenets of Islam. Subsidy is not desirable, even though it has been declared constitutionally permissible, and progressive reduction of subsidy and compete discontinuance was directed within a period of ten years.[28]

---

1 Jain M.P., *Indian Constitutional Law*, 5th Edn, Reprint 2007. p 1-3.

2 John Salmond, *Jurisprudence*, 10th Edn (Glanville L. Williams Ed.), 1947, 129.

3 J.L. Brierly, *The Law of Nations*, 5th Edn, 1955, p 118.

4 Black.2 Law Dictionary, 7th Edn, 1999.

5 T.M. Cooley, *A Treatise on Constitution Limitations*, vol I.

6 See John Alder, *Constitutional and Administrative Law*, 6th Edn, p 111.

7 T.M. Cooley, *A Treatise on Constitutional Limitations,* p 1

8 Hood Philips, *Constitutional and Administrative Law,* 3rd Edn, 1962, p 5.

9 Ridges, *Constitutional Law*, 8th Edn, 1950, p 1.

10 7 Wall 700 : 19 L Ed 227.

11 *P. Ramanatha Aiyar*, Concise Law Dictionary, 3rd Edn, Reprint 2007, p 241.

12 Pylee M.V., *Constitutions of the World*, 2nd Edn, 2003, Introduction, p ix.

13 Walker D.M., *The Oxford Companion to Law*, 1980, p 277.

14 *B.R. Kapur v State of TN,*(2001) 7 SCC 231: AIR 2001 SC 3435 : 2001 (Supp-3) SCR 191.

15 *India Cements Ltd v State of TN,*AIR 1990 SC 85 : 1990 (1) SCC 12 : 1989 Supp (1) SCR 692.

16 *M. Nagaraj v UOI,*(2006) 8 SCC 212 : AIR 2007 SC 71.

17 *Saurabh Chandni v UOI,*(2003) 11 SCC 146 : AIR 2004 SC 361.

18 *Ashok Tanwar v State of HP,*AIR 2005 SC 614 : (2005) 2 SCC 104.

19 *Kehar Singh v UOI,*AIR 1989 SC 653 : (1989) 1 SCC 204.

20 *D.C. Wadhwa v State of Bihar,*AIR 1987 SC 579 : (1987) 1 SCC 378; *T.N. Godavarman Thirumulpad (102) v Ashok Khot,*AIR 2006 SC 2007 : (2006) 5 SCC 1.

21 *Zenit Mahaplast Pvt Ltd v State of Maharashtra,*(2009) 10 SCC 388 : (2009) 12 Scale 432.

22 *G.V.K. Industries Ltd v ITO,*(2011) 4 SCC 36 : (2011) 3 Scale 111; *Nandini Sundar v State of Chattisgarh,*(2011) 7 SCC 547 : AIR 2011 SC 2839.

23 *K.T. Plantations Pvt Ltd v State of Karnataka,*(2011) 9 SCC 1; **see also***Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225.

24 *Federation of Pakistan v Mubhashir Hassan, – Article 264 of Constitution of Pakistan* (similar to *Article 13* of our *Constitution*) (2012) 2 SCC (FJ) 9; **see also***State of WB v Committee for Protection of Democratic Rights,*AIR 2010 SC 1476 : (2010) 3 SCC 571 : (2010) 2 CTC 84 : (2010) 1 Ker LT 723.

25 *Ramlila Maidan Incident, Re.*(2012) 5 SCC 1 : AIR 2012 SC (Civil) 2021 : (2012) Cr LJ 3516.

26 *Subramanian Swamy v Manmohan Singh,*AIR 2012 SC 1185 : (2012) 3 SCC 64 : (2012) Cr LJ 1519.

27 *Rameshwar Prasad v UOI,*(2006) 2 SCC 1 : AIR 2006 SC 980, per ARIJIT PASAYAT, J.

28 Ridges, Constitutional Law, 8th Edn, 1950 at p 4.

29 See Justice H.R. Khanna, *Making of India's Constitution,* 2nd Edn, 2008, pp 3-4.

30 A.W. Bradley and K.D. Ewing, *Constitutional and Administrative Law,* 13th Edn, pp 4-5.

31 In India, the Supreme Court has such a power.

32 LORD BOLINGBROKE, 1733. See Letter X in Henry St. John Bolingbroke, *A Dissertation Upon Parties.*

33 Hailsham, *On The Constitution*, p 1.

34 Whittington*, Constitutional Construction*.

35 See *R v Secretary of State for Foreign and Commonwealth Affairs, ex-parte Quark Fishing Ltd,(2006) 3 All ER 111*.

36 Friedrich, *Ltd Government: A Comparison,* 1974.

37 James Tully, *The Unfreedom of the Moderns in Comparison to Their Ideals of Constitutional Democracy*, The Modern Law Review, vol 65, Issue 2, pp 204-228, March 2002.

38 Hood Philips, *Constitutional and Administrative Law,* 3rd Edn

39 Ridges, *Constitutional Law,* 8th Edn, 1950.

40 *M. Nagaraj v UOI,*(2006) 8 SCC 212 : JT (2006) 9 SC 191.

41 M.P. Jain, *Cases and Materials on Constitutional Law*, 1965, 19 (Jain quoting Dowling).

42 *Ashok Tanwar v State of HP,*AIR 2005 SC 614, (2005) 2 SCC 104.

43 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225.

44 Cooley, *A Treatise on Constitutional Limitation,* Indian Reprint, 2005, p 4.

45 *Madbury v Madison,* 5 US (1 Cranch) 137 (1803).

46 *Gompers v United States*(1914) 233 US 604 (610); **see also***Natural Resources Allocation, In Re : Special Reference No.1 of 2012*(2012) 10 SCC 1 : (2012) 9 Scale 310; *State of WB v Committee for Protection of Democratic Rights,*AIR 2010 SC 1476 : (2010) 3 SCC 571 : (2010) 2 CTC 84 : (2010) 1 Ker LT 723.

47 *Golak Nath v State of Punjab,*AIR 1967 SC 1643, 1659 : (1967) 2 SCR 762, 788.

48 *B.R. Kapur v State of TN,*AIR 2001 SC 3435 : (2001) 7 SCC 231.

49 *Romesh Thappar v State of Madras,*AIR 1950 SC 124 : 1950 SCR 594.

50 *Chandrakumar L. v UOI*, AIR 1997 SC 1125; *Kilhoto Hollohan v Zachillhu*, AIR 1993 SC 412.

51 *Daryao v State of UP,*AIR 1961 SC 1457; *K.K. Kochunni v State of Madras*, AIR 1959 SC 725; *Kharak Singh v State of UP*, AIR 1963 SC 1295, and *Andhra Industrial Works v Chief Controller of I&E*, AIR 1974 SC 1539; **see also***In Re : Special Reference No.1 of 2012*(2012) 10 SCC 1 : (2012) 9 Scale 310; *Maninderjit Singh Bitta v UOI,*(2012) 1 SCC 273 : (2011) 11 Scale 634; *I.R. Coelho v State of TN,*AIR 2007 SC 861 : (2007) 2 SCC 1; *Ashok Kumar Thakur v UOI,*(2008) 6 SCC 1 : (2008) 5 Scale 1.

52 This statement seems to be an exaggerated one, but it does reveal the truth about court's role.

53 AIR 1980 SC 1789.

54 **See also***B.R. Kapur v State of TN,*AIR 2001 SC 3435 : (2001) 7 SCC 231.

55 W. Iver Jennings, *Law and the Constitution,* 1933 **cited by** the Supreme Court in *Golak Nath v State of Punjab,*AIR 1967 SC 1643.

56 *G.V.K. Industries Ltd v ITO,*(2011) 4 SCC 36 : (2011) 3 Scale 111.

57 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225; *I.R. Coelho v State of TN,*AIR 2007 SC 861 : (2007) 2 SCC 1.

58 AIR 2009 SC 2098 : (2009) 12 SCC 635.

59 *B.R. Kapoor v State of TN,*AIR 2001 SC 1435 : (2001) 7 SCC 731.

60 *Govt. of AP v P. Lakshmi Devi,*AIR 2008 SC 1640 : (2008) 4 SCC 720.

61 (1935) 294 US 330).

62 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225; *Indira Gandhi v Raj Narain,*AIR 1975 SC 2299 : 1975 (Supp) SCC 1.

63 M.P. Jain, *Indian Constitutional Law,* 6th Edn, 2010, vol I, pp 28-29.

64 *Gita Hariharan v Reserve Bank of India,*AIR 1999 SC 1149 : (1999) 2 SCC 228.

65 See *Raghupath Rao Ganapath Rao v UOI,*AIR 1993 SC 1267 : 1994 (Supp-1) SCC 191; **see also***Natural Resources Allocation, Re : Special Reference No.1 of 2012,*(2012) 10 SCC 1; *State of WB v Committee for Protection of Democratic Rights,*AIR 2010 SC 1476 : (2010) 3 SCC 571 : (2010) 2 CTC 84 : (2010) 1 Ker LT 723.

66 *S.C. Advocates-on-Record Association v UOI,*AIR 1994 SC 268 : (1993) 4 SCC 441.

67 D.D. Basu, *Comparative Constitutional Law,* 2nd Edn, 2008, pp 242-243

68 See *Bengal Immunity Co v State of Bihar,*AIR 1955 SC 661 : (1955) 2 SCR 603 (regarding *Article 286*); *State of Mysore v Sanjeeviah,*AIR 1967 SC 1189 : (1967) 2 SCR 361; *Deputy Collector v Ibrahilm,*AIR 1970 SC 1275 : (1970) 1 SCC 386 (regarding *Article 301*) and in cases relating to distribution of legislative powers under Schedule VII; see *Reference under Article 143*AIR 1965 SC 745 : (1965) 1 SCR 413; *State of Bombay v Chamurbangwala,*AIR 1957 SC 699 : (1957) SCR 874; *Nanuih Lal v ITAA Commissioner,*AIR 1965 SC 1375 : (1965) 3 SCR 909; *ChiefCommissioner v DCM,*AIR 1978 SC 118 : (1978) 2 SCC 367; **see also***A.K. Gopalan v State of Madras*, (1950) SCR 88 : AIR 1950 SC 27.

69 See D.D. Basu, *Comparative Constitutional Law,* 2nd Edn, 2008, p 234

70 *Raja Ram Pal v Hon'ble Speaker, Lok Sabha*(2007) 3 SCC 184 : (2007) 1 Scale 241.

71 *Goodyear India v State of Haryana,*AIR 1990 SC 781; *U.P. State Co-operative Land Development Bank Ltd v Chandrabhan Dubey,*AIR 1999 SC 753 : (1999) 1 SCC 741.

72 *Indira Nehru Gandhi v Raj Narain,*AIR 1975 SC 2299 : (1975) Supp SCC 1.

73 See *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 43 SCC 225 (PER CHANDRACHUD, J).

74 *Oliver Wendell Holmes in Gompers v United States*, (1914) 233 vs. 604 (610).

75 Hans Kelsen.

76 Hans Kelsen : General Theory of Law and State.

77 Stanley I. Bem : On the Uses of Sovereignty (Defence of Sovereignty, pp 67, 70).

78 Hans Kelsen : General Theory of Law and State, p 116.

79 According to Kelsen it is the “ground norm”.

80 Pylee M.V. quoting K.C. Wheare, *Modern Constitutions*, pp 98, 99.

81 Ridges, *Constitutional Law,* 8th Edn, 1950, p 3.

82 John Alder, *Constitutional and Administrative Law,* 6th Edn, pp 3-4.

83 Hood Phillips, *Constitutional and Administrative Law,* 8th Edn, pp 8-9.

84 Encyclopedia of the Laws of England.

85 AIR 1986 SC 1272 : 1986 (Supp) SCC 409.

86 *State of Karnataka v UOI,*AIR 1978 SC 68 : (1977) 4 SCC 608 : (1978) 2 SCR 1.

87 D.D. Basu, *Comparative Constitutional Law,* Revised 2nd Edn, 2008, pp 145.

88 See Corwin, *The Constitution of the United States of America: Analysis and Interpretation,* Library of Congress, 1953, pp 145-146.

89 Holland, *Jurisprudence*, 13th Edn., p 379.

90 *Kihoto Hollohan v Zachillhu,*AIR 1993 SC 412 : 1992 Supp (2) SCC 651.

91 The American Constitution is hailed as a remarkable document for its “brevity, restraint and simplicity”. India’s Constitution is one of the longest Constitutions.

92 Speech on the occasion of American Revolution.

1 Charles H. Mcilwain, *Constitutionalism : Ancient and Modern*, 21; S.A. De Smith, *Constitutional and Administrative Law*, 1977, 34 ; Govanni Sartori, *Constitutionalism : A Preliminary Discussion*, (1962) 56 Am Pol. SC Rev. 853; Jain, p 5.

2 *Rameshwar Prasad v UOI,*(2006) 2 SCC 1 – Para-100 : AIR 2006 SC 980.

3 *M. Nagaraj v UOI,*(2006) 8 SCC 212 : JT (2006) 9 SC 191.

4 Op. Cit., 7 in M.P. Jain, *Indian Constitutional Law,* p 6.

5 Acquinas, Paine, Locke, Grotius, Rousseau, Friedmaun, Dias and Hughes, Lloyd and Arthur Sutherland.

6 M.P. Jain, *Indian Constitutional Law*, 5th Edn, Reprint 2007, p 6.

7 *S.S. Bola v B.D. Sardana,*AIR 1977 SC 3127 : (1997) 8 SCC 522.

8 *I.R. Coelho v State of TN,*AIR 2007 SC 861 : (2007) 2 SCC 1.

9 See M.P. Singh, *Comparative Constitutional Law,* p 31.

10 See John Alder, *Constitutional and Administrative Law,* 6th Edn, pp 7-8.

11 See D.J. De, *The Constitution of India,* 2nd Edn, vol I, p 12.

12 *I.R. Coelho v State of TN,*AIR 2007 SC 861 : (2007) 2 SCC 1.

13 *Granville Austin, The Indian Constitution — Cornerstone of a Nation,* 9th impression, 2005.

14 *Pratap Singh v State of Punjab,*AIR 1964 SC 72 : (1964) 4 SCR 733; **see also***State of Bihar v Sonabati Kumari,*AIR 1961 SC 221 : (1961) 1 SCR 728).

15 *Jaisinghani S.G. v UOI*, AIR 1967 SC 1427 : (1967) 2 SCR 703.

16 *Madras Bar Assn. v UOI,*(2010) 11 SCC 67 : (2010) 5 Scale 445.

17 *Akhil Bharatiya Upabhokta Congress v State of MP,*AIR 2011 SC 1834 : (2011) 5 SCC 29.

18 See A.V. Dicey, *Introduction to the Study of the Law of Constitution*, 10th Edn, pp 202-203..

19 See D.D. Basu, *Comparative Constitutional Law*, 2nd Edn, 2008, pp 327-328.

20 *NCTE v Venus Publication Society,*AIR 2013 SC 941 : (2013) 1 SCC 223.

21 *Rajesh Awasthi v Nand Lal Jaiswal,*AIR 2013 SC 78 : (2013) 1 SCC 501.

22 See *G.V.K. Industries Ltd v ITO,*(2011) 4 SCC 36 : (2011) 3 Scale 111; *Nandini Sundar v State of Chhattisgarh,*(2011) 7 SCC 547 : AIR 2011 SC 2839; *K.T. Plantations Pvt Ltd v State of Karnataka,*(2011) 9 SCC 1 : AIR 2011 SC 3430.

23 *State of Punjab v G.S. Gill,*AIR 1997 SC 2324 : (1997) 6 SCC 129.

24 *Superintending Engineer v Kuldip Singh,*(1997) 9 SCC 119 : (1996) 9 Scale 262; **see also***Natural Resources Allocation, Re : Special Reference No.1 of 2012,*(2012) 10 SCC 1 : (2012) 9 Scale 310.

25 AIR 1983 SC 339 : (1982) 2 SCC 583.

26 See *P.A. Jacob v Supt. of Police,*AIR 1993 Kerala 1; *Noise Pollution V, Re,*AIR 2005 SC 3136 : (2005) 5 SCC 733.

27 *K.T. Plantations Pvt Ltd v State of Karnataka,*(2011) 9 SCC 1 : AIR 2011 SC 3430.

28 *Noida Enterpreneurs Assn. v Noida,*AIR 2011 SC 2112 : (2011) 5 SCC 508.

29 See John Alder, Constitutional and Administrative Laws, 6th Edn, pp 150-151.

30 *A.K. Kraipak v UOI,*AIR 1970 SC 150 : (1969) 2 SCC 262.

31 By JUSTICE CHANDRACHUD in *Indira Gandhi v Raj Narain,*AIR 1975 SC 2299 : 1975 (Supp) SCC 1.

32 AIR 1976 SC 1207 : (1976) 2 SCC 521.

33 *ADM, Jabalpur v S. Shukla,*AIR 1976 SC 1207 : (1976) 2 SCC 521.

34 AIR 1955 SC 549 : (1955) 2 SCR 225.

35 **See also***Bennett Coleman & Co v UOI,*AIR 1973 SC 106 : (1972) 2 SCC 788; *State of MP v Thakur Bharat Singh,*AIR 1967 SC 1170 : (1967) 2 SCR 454; *Naraindas Indurkya v State of MP,*AIR 1974 SC 366 : (1974) 1 SCC 468.

36 *Roberts v Parole Board,*(2006) 2 All ER 39; *R (Ullah) v Special Adjudicator,(2004) 3 All ER 785*.

37 *I.R. Coelho v State of TN,*AIR 2007 SC 861 : (2007) 2 SCC 1.

38 **See also***M. Nagraj v UOI,*(2006) 8 SCC 212 : AIR 2007 SC 71.

39 *Maya Devi v Raj Kumar Batra,*(2010) 9 SCC 486 : (2010) 9 Scale 262. See also *Hindustan Times Ltd v UOI,*(1998) 2 SCC 242 : AIR 1998 SC 688; *Arun v IG of Police,*(1986) 3 SCC 696; *UOI v Jai Prakash Singh,*(2007) 10 SCC 712 : AIR 2007 SC 1363; *Victoria Memorial Hall v Howrah Ganatantrik Nagrik Samiti,*(2010) 3 SCC 732 : AIR 2010 SC 1285; *Ram Phal v State of Haryana,*(2009) 3 SCC 258 : (2009) 2 Scale 285; *Director, Horticulture, Punjab v Jagjivan Parshad,*(2008) 5 SCC 539 : (2008) 6 Scale 103.

40 *State of UP v Ram Sajivan,*AIR 2010 SC 1738 : (2010) 1 SCC 529.

41 *B.P. Singhal v UOI,*(2010) 6 SCC 331 : (2010) 5 Scale 134.

42 Nani Palkhiwala, *Our Constitution Defaced and Defiled,* 1974 – **approved in***Centre for Public Interest Litigation v UOI,*(2012) 3 SCC 117 : (2011) 4 Scale 583.

43 **See also***Akhil Bharatiya Upabhokta Congress v State of MP,*AIR 2011 SC 1834 : (2011) 5 SCC 29.

44 *T.N. Godavarman Thirumulpad (102) v Ashok Khot,*AIR 2006 SC 2007 : (2006) 5 SCC 1.

45 *Global Energy Ltd v Central Electricity Regulatory Commission,*(2009) 5 SCC 570.

46 *National Human Rights Commission v State of AR,*AIR 1996 SC 1234 : (1996) 1 SCC 742; *Chairman, Railway Board v Chandrima Das,*AIR 2000 SC 988 : (2000) 2 SCC 465.

47 *Pancham Chand v State of HP,*AIR 2008 SC 1888 : (2008) 7 SCC 117.

48 AIR 1960 SC 1355 : (1961) 1 SCR 158.

49 AIR 1997 SC 610 : (1997) 1 SCC 416.

50 **See also***Munshi Singh Gautam v State of MP,*AIR 2005 SC 402 : (2005) 9 SCC 631 and in many cases, the Supreme Court has awarded compensation. See *Commissioner v Shivakka,*(2011) 12 SCC 419 : (2011) 2 Scale 422; *Mehboob Batcha v State,*(2011) 7 SCC 45 : (2011) 4 Scale 20; *Jayawant P. Sankpal v Suman Ghalap,*(2010) 11 SCC 208 : (2010) 7 Scale 540; *Prithipal Singh v State of Punjab,*(2012) 1 SCC 10 : (2011) 12 Scale 411(2).

51 AIR 1978 SC 597 : (1978) 1 SCC 248.

52 See *Nilabati Behera v State of Orissa,*AIR 1993 SC 1960 : (1993) 2 SCC 746; **see also***Rudul Shah v State of Bihar,*AIR 1983 SC 1086 : (1983) 4 SCC 141; *Arvinder Singh Bagga v State of UP,*AIR 1995 SC 117 : (1994) 6 SCC 565, *etc.*

53 *Ajay Hassia v Khalid Mujib,*AIR 1981 SC 487 : (1981) 1 SCC 722; *Kasturilal v State of J & K,*AIR 1980 SC 1992 : (1980) 4 SCC 1.

54 *Kelvin Cinema v State of Assam,*AIR 1996 Gauhati 103; **see also***Commissioner of Customs v Essar Oil Ltd,*JT (2004) 9 SC 12 : (2008) 8 Supreme 304; *Collector v P. Mangamma,*(2003) 4 SCC 488; *Gujarat W.S. & S.B v Unique Erectors (Gujarat) Pvt Ltd,*AIR 1989 SC 973; *Delhi Municipal Corp v Jagan Nath Ashok Kumar,*AIR 1987 SC 2316; *Rana Drego v Lal Chand Soni,*AIR 1998 SC 1990; *Raghunath G. Pantalu v Chaganlal Sundarji,*(1999) 8 SCC 1, *etc.* .

55 *Maneka Gandhi v UOI,*AIR 1978 SC 597 : (1978) 1 SCC 248; *Sunil Batra v Delhi Admn.,*AIR 1978 SC 1675 : (1978) 4 SCC 494; *Jolly George Varghese v Bank of Cochin,*(1980) 2 SCC 360; *Bachan Singh v State of Punjab,*AIR 1982 SC 1325 : (19820 3 SCC 24; *Javeed Ahmed v State of Maharashtra,*(1985) 1 SCC 275; *Suman Gupta v State of*

J&K,(1983) 4 SCC 339; *Olga Tellis v Bombay Municipal Corp,*(1985) 3 SCC 545; *Air India v Nargesh Murza,*AIR 1981 SC 1829 : (1981) 4 SCC 335.

56 AIR 1983 SC 473 : (1983) 2 SCC 277.

57 AIR 1978 SC 597 : (1978) 1 SCC 248.

58 *Transport & Dock Workers Union v Mumbai Port Trust,*(2011) 2 SCC 575 : (2010) 12 Scale 217.

59 *Asha Sharma v Chandigarh Administration,*(2011) 10 SCC 86 : (2011) 9 Scale 549.

60 *State of TN v Shyam Sundar,*(2011) 8 SCC 737 : AIR 2011 SC 3470; **see also***A.P. Dairy Development Corp v B. Narasimha Reddy,*(2011) 9 SCC 286 : AIR 2011 SC 3298.

61 *Ramlila Maidan Incident, Re,*(2012) 5 SCC 1 : AIR 2012 SC (Civil) 2021; (2012) Cr LJ 3516.

62 See Dr. C.D. Jha, *Judicial Review of Legislative Acts,* LexisNexis, 2nd Edn, 2009, p 34.

63 *Basantibhai v State of Maharashtra,*AIR 1984 Bombay 366; *State of Maharashtra v Basanttibhai,*(1986) 2 SCC 516.

64 *Haryana State Industrial Development Corp v Shakuntala,*AIR 2010 SC 468 : (2010) 12 SCC 448.

65 See Dr. C.D. Jha, *Judicial Review of Legislative Acts,* 2nd Edn, 2009, pp 35, 36.

66 AIR 1976 SC 1207 : (1976) 2 SCC 521.

67 Presidential Address by Shri Udai Narain in the 15th Session of Bihar Lawyers' Conference in 1963.

68 See under "Rules of Interpretation,—Historical Setting", *post.*

69 For its text, see Author's *Constitutional Documents,* vol I.

70 J.P.C. Report (1933-4), vol I.

71 The Muslim League, professedly a Communal party, was formed in 1906. While its earlier objective was to secure separate representation of the Muslims in the political system, in its Lahore Resolution of March, 1940, it asserted its demand for the creation of a separate Muslim State in the Muslim majority areas. This idea was developed into the claim for dividing India into two independent States, when the Cripps offer was announced.

72 Led by the Secretary of State for India, Lord Pethick-Lawrence.

73 The Constituent Assembly was composed of representatives of the Provinces and of the Indian States, on the basis of one representative for a million of the population. Representatives of the Provinces were elected by the members of the lower (or only) House of each Provincial Legislature. In the case of the Indian States, they were elected by electoral colleges constituted by the Rulers. For membership of the Constituent Assembly, see Table II, of the Author's *Introduction to the*Constitution of India, 19th Edn, Reprint 2007.

74 As to how the partition of these Provinces took place, see under First Schedule : The States.

75 For the text of the Indian Independence Act, 1947, Author's *Constitutional Documents* : Appendix 27 in M.P. Jain, *Indian Constitutional Law*, 5th Edn, vol II, p 2807.

76 Under the Act, the Dominion of India got the residuary territory of India excluding the Provinces of Sind, Baluchistan, West Punjab, East Bengal; and the N.W.F. Province and the district of Sylhet in Assam (which had voted in favour of Pakistan at a referendum, before the Act came into force).

77 *See section* 8 of the Indian Independence Act, 1947, and *Article 395 of the Constitution*, *post.*

78 With the setting up of the two Dominions, the responsibility of the Crown for the government of the erstwhile British India would cease and its suzerainty over the Indian "States would lapse (section 7).

79 Section 19(3)(*a*), Indian Independence Act, 1947.

80 In the Commentary, the parallel or analogous provisions of "Other Constitutions" have been reproduced under each Article, to indicate the sources, as well as to provide materials for comparison.

81 See Appendix 10 in M.P. Jain, *Constitutional Law of India*, 5th Edn, vol II, p 2505.

82 Vide Report of the Indian Statutory Commission (Simon Report).

83 For text, see Basu's *Constitutional Documents*.

84 For text, see Basu's *Constitutional Documents*: Appendix 19 in M.P. Jain, *Constitutional Law of India,* 5th Edn, vol II, p 2541.

85 For text, see Basu's *Constitutional Documents*: Appendix 22 in M.P. Jain, *Constitutional Law of India,* 5th Edn, vol II, p 2547.

86 Panikkar, *Asia and Western Dominance*, 1953, p 155.

87 Nehru, *Discovery of India*, 1956, p 385.

88 See Government of India Act, 1912 : (2 of 3 Geo 5, c. 6 – for text see Appendix 24 in M.P. Jain, *Constitutional Law of India,* 5th Edn, vol II, p 2551. See Government of India Act, 1915-19 (5 of Geo 5 Ch. 61; 6 of 7 Geo 5, Ch. 37; and 9 & 10 Geo 101) for text see M.P. Jain, *Constitutional Lawof India,* 5th Edn, vol II, p 2553.

89 See Basu's *Constitutional Documents*, vol I.

90 See Basu's *Constitutional Documents*.

91 In form, it was an Amendment Act (9 & 10 Geo. 5, Ch. 101) which amended the Act of 1915 (5 & 6 Geo. 5, Ch. 61, described as the "principal Act'). Later, a Consolidated "Government of India Act" was published, incorporating all the amendments up to 1919.

92 Report of the Joint Parliamentary Committee, Simon Report, vol I, pp 122-126; 148-156.

93 Report of the Joint Parliamentary Committee, Simon Report, vol I, pp 232-8.

1 Vide Basu's *Constitutional Documents,* vol I, p 113.

2 It is to be noted that "Dominion Status", which was promised in 1929, was not conferred by the Government of India Act, 1935.

3 For text of the Act. See Appendix 26 in M.P. Jain, *Constitutional Law of India,* 5th Edn, vol II, p 2621 (26 Geo V & 1 Edn VIII, C. 2).

4 Report of the Joint Parliamentary Committee (1933-34).

5 This was done by section 2 of the Government of India Act, 1935.

6 Sections 5-6, Government of India Act, 1935.

7 Cf. sections 11, 102, 126(4), Government of India Act, 1935.

8 Section 12, Government of India Act, 1935.

9 Section 126, Government of India Act, 1935..

10 Sections 43-4, Government of India Act, 1935.

11 Section 93, Government of India Act, 1935.

12 Section 102, Government of India Act, 1935.

13 Section 103, Government of India Act, 1935.

14 Section 107, Government of India Act, 1935.

15 Section 104, Government of India Act, 1935.

16 Section 32, Government of India Act, 1935.

17 Section 40(2), Government of India Act, 1935.

18 Sections 43-44, Government of India Act, 1935.

19 Section 108, Government of India Act, 1935.

20 Sections 200-218; *Basu's* Constitutional Documents.

21 For the text of the India (Provisional *Constitution*) Order, 1947, see the Author's *Constitutional Documents*.

22 Constituent Assembly Debates, vol VII, pp 35-38.

23 Constituent Assembly Debates, vol VII, pp 2, 242; Constituent Assembly Debates, vol VII, pp 613, 616.

24 As to the implications of a written *Constitution* and "limited government", see Author's Tagore Law Lectures on *Ltd Government and Judicial Review* and *Comparative Constitutional Law*.

25 *Marbury v Madison,*(1803) 1 Cr. 137; T.M. Cooley, *A Treatise on Constitution Limitations*, vol I.

26 See *Natural Resources Allocation, Re : Special Reference No.1 of 2012,*(2012) 10 SCC 1 : (2012) 9 Scale 310; *State of WB v Committee for Protection of Democratic Rights,*AIR 2010 SC 1476 : (2010) 3 SCC 571 : (2010) 2 CTC 84 : (2010) 1 Ker LT 723.

27 See Dicey, *Parliament and Non-Sovereign Law making Bodies*, 10th Edn, chapter II.

28 See D.D. Basu, *Comparative Constitutional Law*, 2nd Edn, 2008, p 352.

29 *State of Rajasthan v UOI,*AIR 1977 SC 1761; **see also***Gupta v President of India,*AIR 1982 SC 149 : 1981 Supp (1) SCC 87.

30 *Reference No.1 of 1964*, AIR 1965 SC 745.

31 *Indira Gandhi v Raj Narain,*AIR 1975 SC 2299 : 1975 (Supp) SCC 1.

32 *Myers v US,*(1926) 272 US 52.

33 See Dr. C.D. *Jha, Judicial Review of Legislative Acts,* 2nd Edn, 2009, pp 476-77.

34 *Indira Gandhi v Raj Narain,*AIR 1975 SC 2299 : 1975 (Supp) SCC 1; *Sadashiv v State of Orissa,*(1956) SCR 43; *Kathuria v Manak,*AIR 1970 SC 694 : (1969) 3 SCC 268.

34a As to the implications of a written *Constitution* and "limited government", see Author's Tagore Law Lectures on *Ltd Government and Judicial Review* and *Comparative Constitutional Law*.

35 *Muller v Oregon,* (1909) 298 U.S. 412.

36 Cf. *Re* Delhi Laws Act, 1912, (1951) SCR 747 (*758-9; 857; 889; 941; 969*).

37 *State of Madras v V.G. Row,*(1952) SCR 597 (*605*).

38 *Gopalan v State of Madras,*(1950) SCR 88 (100, KANIA C.J.); *Kochuni v State of Madras,*AIR 1959 SC 725 (*730*)

39 Cf. *Re* Delhi Laws Act, 1912, (1951) SCR 747 (*758-9; 857; 889; 941; 969*).

40 Ref. under *Article 143*, AIR 1965 SC 745 (*762*); *R.M.D.C. v UOI,*(1957) SCR 930 (*940*). (There are certain non-justiciable provisions in the *Constitution* which, of course, cannot be enforced by the Courts; see Author's Tagore Law Lectures on *Ltd Government and JudicialReview, pp* 88 *et seq*); *Comparative Constitutional Law*. [Cases under Pts IV-IVB, *post*].

41 During the period 1950-2013, while a number of Articles have been omitted,—97Articles and 4 Schedules have been added to the *Constitution*, viz., *Articles 31A*—31C, 33, 39A, 43A, 43B, 45, 48A, 51A, 71, 81, 82, 85, 131A, 134A, 139A, 224A, 233A, 239A, 239AA, 239AB, 239B, 243, 243A – 243Z, 243ZA – 243ZT, 244A, 258A, 268A, 290A, 300A, 312A, 323A, 323B, 338A, 350A, 350B, 361A, 361B, 363A, 370, 371A—371-I, 372A, 378A, 394A. By the end of 2013, the *Constitution of India* consisted of 461 Articles and 12 Schedules.

42 The American *Constitution* consists of some 7,000 words only, with seven original Articles *and* 26 added by amendments, the last of which was ratified in 1971. [*Vide* S.C.W. (3rd) pp 64 ff.]. The Japanese *Constitution* of 1946 contains 103 Articles while the *Constitution* of the fifth Republic of France (1958) includes only 92 Articles.

43 Granville Austin, *The Indian Constitution—Cornerstone of a Nation*, 9th Impression, 2005, pp 326-27.

44 Constituent Assembly Debates, vol IX, pp 839-40.

45 Of course, some of these provisions have been eliminated by the *Constitution* (7th Amendment) Act, 1956, which abolished the distinction between different classes of States.

46 See Constituent Assembly Debates, vol X, pp 5, 162-163. In fact, there was an attempt to have a separate *Constitution* for the States – see Granville Austin, *The Indian Constitution: Cornerstone of a Nation*, 9th impression, 2005, pp 251-52.

47 See Wheare, *Federal Government,* p 97.

48 A.H. *Birch, Federation, Finance and Social Legislation in Canada, Australia & United States*, p 305.

49 See Granville Austin, *The Indian Constitution: Cornerstone of a Nation*, 9th impression, 2005, p 187.

50 DR. RAJENDRA PRASAD, Constituent Assembly Debates, vol X, p 891.

51 Vide *Article 45 of the Constitution* of *Eire* : Author's *Select Constitutions of the World*; *Mohini v State of Karnataka,*(1992) 2 UJSC 331 (para 9)

52 Granville Austin, *The Indian Constitution: Cornerstone of a Nation*, 9th impression, 2005.

53 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225; *Hanif v State of Bihar,*AIR 1958 SC 731 : [1959] 1 SCR 629; *Jagannath v Authorised Officer, (Land Reforms)*(1972) 1 SCC 893; *Asst. Commissioner v B & Co,*AIR 1970 SC 169 : (1969) 2 SCC 55; *Chief Justice v Dikshithalu,*(1979) 2 SCC 34; *State of Mumbai v Abdulbhai,*AIR 1976 SC 1455; *Bai Tahira v Ali,*(1979) 2 SCC 316.

54 S.K. Hegde, Journal of Constitutional and Parliamentary Studies, vol V No. 2 (April-June 1971) at p 157.

55 *Ramlila Maidan Incident, Re,*(2012) 5 SCC 1 : AIR 2012 SC (Civil) 2021; (2012) Cr LJ 3516.

56 *Bhim Singh v UOI,*(2010) 5 SCC 538 : (2010) 5 Scale 37.

57 *Ramkrishna v Municipal Committee,*AIR 1950 SC 11(*13*) vide elaborate discussion under *Article 244A*.

58 *Gopalan v State of Madras,*(1950) SCR 88 (*109*).

59 *Venkataramana v State of Mysore,*AIR 1958 SC 255; *Yakub v State of J&K,*AIR 1968 SC 765; *Balaji v State of Mysore,*AIR 1963 SC 649 (*664*); *Devadasan v UOI,*AIR 1964 SC 179 (188).

60 *Re Delhi Laws Act*, 1912, (1951) SCR 747.

61 *Aruna Ramachandra Shanbaug v UOI,*(2011) 4 SCC 454 : AIR 2011 SC 1290.

62 *Indian Express Newspapers (Bombay) Pvt Ltd v UOI,*AIR 1986 SC 515 : (1985) 1 SCC 641; see also *Secretary, Ministry of Information & Broadcasting, Govt. of India v Cricket Assn. of Bengal,*AIR 1995 SC 1236 : (1995) 2 SCC 161.

63 AIR 1973 SC 1461 : (1973) 4 SCC 225.

64 *Ashoka Kumar Thakkur v UOI,*(2008) 6 SCC 1 : (2008) 5 Scale 1.

65 AIR 1973 SC 1461 : (1973) 4 SCC 225. **See also***I.R. Coelho v State of TN,*(2007) 2 SCC 1 (para 48) : AIR 2007 SC 861.

66 AIR 1980 SC 1789: (1980) 3 SCC 625.

67 Granville Austin, *The Indian Constitution: Cornerstone of a Nation,* 9th Impression, 2005, p 198.

68 The original title of this Act was the "Untouchability (Offences) Act, 1955". It has been extensively widened and made more rigorous, and renamed as the "*Protection of Civil Rights Act, 1955*", by Act 106 of 1976.

69 Wheare, *Modern Constitutions*.

70 Constituent Assembly Debates, vol VII, pp 322-23.

71 Jennings, *Some Characteristics of the Indian Constitution,* 1953, pp 2, 6, 25-26.

72 See Author's *Constitution Amendment Acts*.

73 The requirement of double majority may be illustrated with the strength of the Janata Party in the *Rajya Sabha* in September, 1977. The Rajya Sabha having a total membership of 250 members (roughly),—under the first part of *Article 368*(2), a *Constitution* Amendment Bill could be passed only if at least 126 members voted for it. But since the Janata Party had a following of 41 only (roughly) in the *Rajya Sabha,* they could not rely on their own strength, in obtaining a passage of such Bill.

The second part of *Article 368*(2) is no less, perhaps more, rigorous. It requires that 2/3 of the members who are present on the date of voting on the *Constitution* Amendment Bill and actually tender their vote, must vote in favour of the Bill. If so, the Bill could be passed only if 168 members voted in its favour; and that was too much for the Janata Party commanding only 41 members of their own. That is why the fate of the amendment Bill proposed by the Janata depended on the pleasure of the Congress Party.

The same difficulty was faced by Mrs. Gandhi after her return to power in January, 1980 and her son Mr. Rajiv Gandhi coming to power in 1984. The position of the subsequent Prime Minister— Mr. V.P. Singh and Mr. Chandra Sekhar was worse because they had to rely on the support of other Parties even in the House of the People. At the election of 1991, Congress (I) was returned as the largest single Party, but without absolute majority, so that the new Prime Minister was obliged to admit that he would have to rule with the consensus of all the Parties. This means that the *Constitution* can no longer be amended to suit the conveniences of the ruling Party.

74 *Ogden v Saunders,*(1827) 12 Wh. 213 (270).

75 Author's *Comparative Federalism*.

76 Jennings, *Some Characteristics of the Indian Constitution*.

77 Wheare, *Modern Constitutions*, p 143.

78 Author's *Introduction to the Constitution of India,* (Reprint) 2007.

79 Vide Cb, pp 179 ff.

80 The requirement of double majority may be illustrated with the strength of the Janata Party in the *Rajya Sabha* in September, 1977. The Rajya Sabha having a total membership of 250 members (roughly),—under the first part of *Article 368*(2), a *Constitution* Amendment Bill could be passed only if at least 126 members voted for it. But since the Janata Party had a following of 41 only (roughly) in the *Rajya Sabha,* they could not rely on their own strength, in obtaining a passage of such Bill.

The second part of *Article 368*(2) is no less, perhaps more, rigorous. It requires that 2/3 of the members who are present on the date of voting on the *Constitution* Amendment Bill and actually tender their vote, must vote in favour of the Bill. If so, the Bill could be passed only if 168 members voted in its favour; and that was too much for the Janata Party commanding only 41 members of their own. That is why the fate of the amendment Bill proposed by the Janata depended on the pleasure of the Congress Party.

The same difficulty faced Mrs. Gandhi after her return to power in January, 1980 and her son Mr. Rajiv Gandhi coming to power in 1984. The position of the subsequent Prime Minister—Mr. V.P. Singh and Mr. Chandra Sekhar was worse

because they had to rely on the support of other Parties even in the House of the People. At the election of 1991, Congress (I) was returned as the largest single Party, but without absolute majority, so that the new Prime Minister was obliged to admit that he would have to rule with the consensus of all the Parties. This means that the *Constitution* can no longer be amended to suit the conveniences of the ruling Party.

81 *Kesavananda v State of Kerala,*AIR 1973 SC 1461 (FB).

82 *Natural Resources Allocation, Re : Special Reference No.1 of 2012*(2012) 10 SCC 1 : (2012) 9 Scale 310.

83 *State of Bihar v Bal Mukund Sha,*AIR 2000 SC 1296 : (2000) 4 SCC 640; *State of UP v Sanjay Kumar,*(2012) 8 SCC 537 : (2012) 8 Scale 3; *State of WB v Committee for Protection of Democratic Rights,*AIR 2010 SC 1476 : (2010) 3 SCC 571 : (2010) 2 CTC 84 : (2010) 1 Ker LT 723; *Bhim Singh v UOI,*(2010) 5 SCC 538 : (2010) 5 Scale 37.

84 *S.R. Bommai v UOI,*AIR 1994 SC 1918 : (1994) 3 SCC 1; *Valsamma Paul v Cochin University,*(1996) 3 SCC 545; *Dalmia Cement (Bharat) Ltd v UOI,*(1996) 10 SCC 104 : (1996) 4 SCC 14.

85 *Special Reference No.1 of 2002, Re. (Gujarat Assembly Election Matter,*(2002) 8 SCC 237 : AIR 2003 SC 87; *Kihoto Hollahan v Zachilhu,*AIR 1993 SC 412 : 1992 (Supp-2) SCC 651.

86 *Indira Gandhi v Raj Narain,*AIR 1975 SC 2299 : 1975 (Supp) SCC 1; *Indra Sawhney v UOI,*AIR 2000 SC 498 : (2000) 1 SCC 168.

87 *S.C. Advocates-on-Record Association v UOI,*AIR 1994 SC 268 : (1993) 4 SCC 441.

88 Cf. *Minerva Mills v UOI,*AIR 1980 SC 1789 (para 93).

89 See **fuller** treatment in Author's *Comparative Federalism*. Wheare, *Modern Constitutions*, p 143.

90 Draft *Constitution* (21 February 1948), p iv.

91 Constituent Assembly Debates, vol VII, p 43.

92 See Justice H.R. Khanna, *Making of India's Constitution*, 2nd Edn, 2008, pp 130-31.

93 See Justice H.R. Khanna, *Making of India's Constitution*, 2nd Edn, 2008, pp 131-32.

1 Prof. W.T. Wagner, *Federal States and Their Judiciary*, Moulton & Co, 1959, p 25.

2 Livingstone, *Federation and Constitutional Change*, 1956, pp 6-7.

3 Wheare, *Federal Government,* 2nd Edn, pp 11, 28.

4 An exception on this general rule is furnished by Switzerland where the federal Supreme Court has no power to guard the *Constitution* as against the Federal Legislature (see under Pt V, *post*).

5 **Cf**. *Gujarat University v Sri Krishna*, AIR 1963 SC 703 (715-6); *Waverly Mills v Raymon & Co*, AIR 1963 SC 90 (95).

6 **Cf**. *State of WB v UOI*, AIR 1963 SC 1241.

7 **Cf**. *Atiabari Tea Co v State of Assam,*(1961) 1 SCR 809 (860); *Automobile Transport v State of Rajasthan*, AIR 1962 SC 1406 (1416).

8 Wheare, *Federal Government*, 2nd Edn, pp 11 28.

9 Wheare, *India's New Constitution Analysed*, (1950) 5 DLR 25 (Journal)

10 Jennings, *Some Characteristics of the Indian Constitution*.

11 Constituent Assembly Debates, vol XI, pp 657-58.

12 Clokie, *Canadian Government and Politics*, 1944, p 206.

13 *A.G. for Commonwealth v Colonial Sugar Refining Co,(1914) AC 237*.

14 *A.G. for Commonwealth v Colonial Sugar Refining Co,(1914) AC 237*.

14a *A.G. for Commonwealth v Colonial Sugar Refining Co,(1914) AC 237*.

15 In a manner similar to that of the British North America Act, 1867.

16 Though the federal system as envisaged by the Government of India Act, 1935 could not fully come into being owing to the failure of the Indian States to join it, the provisions relating to the Central Government and the Provinces were given effect to as above.

17 This view of the Author, stands supported by the majority decision in *State of WB v UOI*, AIR 1962 SC 1241.

18 Vide Appendix to the Author's *Introduction* to the *Constitution of India*.

19 *Texas v White*, (1868) 7 Wall, 700 (*720*).

20 Article IV, section 3(1) of the American *Constitution*.

21 Sections 123-4, Australian *Constitution*.

22 *State of WB v UOI*, AIR 1963 SC 1241.

23 *State of WB v UOI*, AIR 1963 SC 1241.

24 No. 53/69/53-Public, Dt. 29 December 1953, Gaz. of India, Extraordinary, Pt I, section 1, Dt. 29 December 1953.

25 Report of the States Reorganisation Commission, 1955.

26 With one exception in the case of Jammu & Kashmir [*vide* under *Article 370*(2), *post*.

27 **Cf.***Bank of Toronto v Lambe,*(1887) 12 AC 575.

28 Section 45 of the Canada Act, 1982 [SCW (3rd), p 107].

29 *OurConstitution* thus avoids all the implications that arise out of double allegiance and different sets of privileges and immunities as in the *U.S.A.*

30 **Cf.***Kapur Singh v UOI*, AIR 1960 SC 493 (*497*).

31 Vide J.P.C. Report, vol I, para 219, p 129, p 120; Section 26, Government of India Act, 1935.

32 Douglas, *From Marshall to Mukherjee (TLL 1956)*, p 86.

33 Ferguson & McHenry, *American Federal Government,* 1947, p 308.

34 With this difference, that in the case of appointment of a Judge of a High Court, the Chief Justice and the Governor of that State are to be consulted [*Articles 217*(1)].

35 *State of WB v UOI,*AIR 1963 SC 1241. (Vide Author's *Comparative Federalism,*).

36 *State of WB v UOI,*AIR 1963 SC 1241. (Vide Author's *Comparative Federalism,*).

37 *A.G. for Commonwealth v Colonial Sugar Refining Co,(1914) AC 237*.

38 The Indian Union, in short, is not like the United States "an indestructible union composed of *indestructible States"* [*Texas v White,* (1869) American Supreme Court said—"The 7 Wall 700]. In another case, the people of each State compose a State, having its own Government, and endowed with all the functions essential to separate and independent existence…without the States in the Union, there could be no such political body as the United States" [*County of Lane v Oregon,* (1868) 71 (*76*)].

As pointed out by our Supreme Court in *State of WB v UOI*, AIR 1963 SC 1241, it is possible for the Union Parliament under our *Constitution* to destroy the very existence of a State or States by means of an ordinary legislation to alter boundaries (sections 3-4). **See also***Babulal v State ofBombay*, AIR 1960 SC 51 (*55*).

39 This power has not been used up to April 2014.

40 *A.G. for Ontario v A.G. for Canada,(1896) AC 332* (361). **See also***A.G. for Ontario v Canada Temp. Federation,*(1946) 50 Cal WN 534 (538) (PC).

41 In the *U.S.A.,* on the other hand, the remarkable expansion of federal power has taken place through judicial interpretation of the requirements of the national interest [*vide U.S. v S.E. Underwriters'Association,*(1944) 322 US 533, and other cases cited under Pt IX *post*].

42 This power had been used no less than 81 times in 40 years [Author's *Introduction* to the *Constitution of India*].

43 **Cf.***Atiabari Tea Co v State of Assam,*(1961) 1 SCR 809 (860); *Automobile Transport v State of Rajasthan*, AIR 1962 SC 1406 (*1416*).

44 **Cf.***Re Delhi Laws Act*, 1912, (1951) SCR 747 (*941*) : (1950-51) CC 328 (*344*), MAHAJAN J. The same view has been taken in the United States [*Ashton v Cameron County,*(1936) 298 US 513] and Canada [*A.G. of Nova Scotia v A.G. of Canada,*(1951) SCR 31].

45 **Cf.***N.Y. v U.S.,*(1946) 326 US 572 (*592*).

46 Constituent Assembly Debates, vol VII, pp 34-35

47 Livingstone, *Federation and Constitutional Change*, 1956, pp 6-7.

48 As Prof. Wheare does [*Modern Constitutions*, 2nd Edn, p 21.

49 As Prof. Wheare does [*Modern Constitutions*, 2nd Edn, p 21.

50 *E.g,* Santhanam, *Union-State Relations in India*, 1960.

51 Griffith, *The Impasse of Democracy*, 1930, quoted in Godshall, *Government in the United States*, p 114; **see also** Irish Prothro, *The Politics of American Democracy* (1971).

52 **Cf.** Birch, *Federalism*. See elaborate discussion in Author's *Comparative Federalism*.

53 *Automobile Transport v State of Rajasthan*, AIR 1962 SC 1406 (*1415-6*); **see also***Atiabari Tea Co v State of Assam,*(1961) 1 SCR 809 (*860*).

54 Sp. Ref. I of 1964, AIR 1965 SC 745 (*762*).

55 *State of WB v UOI*, AIR 1963 SC 1241.

56 **Cf.***Narasimha Rao v State of AP*, AIR 1970 SC 422 (*425*).

57 *Ramakrishna v Secy., Municipal Committee,*AIR 1950 SC 11 (*13*); *Waverly Jute Mills v Raymon & Co,*AIR 1963 SC 90 (*95*).

58 *State of WB v UOI,*AIR 1963 SC 1241.

59 *State of WB v UOI,*AIR 1963 SC 1241.

60 *Ramakrishna v Secy., Municipal Committee,*AIR 1950 SC 11 (*13*); *Waverly Jute Mills v Raymon & Co,*AIR 1963 SC 90 (*95*).

61 *State of Karnataka v UOI*, AIR 1978 SC 68 (para 27, 39, 41, 98, 128).

61a *State of Karnataka v UOI*, AIR 1978 SC 68 (para 27, 39, 41, 98, 128).

62 *State of WB v UOI,*AIR 1963 SC 1241.

63 *State of Karnataka v UOI*, AIR 1978 SC 68 (para 27, 39, 41, 98, 128).

64 See M.P. Jain, *Indian Constitutional Law*, 6th Edn, 2010, vol I, p 1014 and D.D. Basu, *Comparative Federalism*, 2nd Edn, 2008, pp 471-72; **see also***Jaora Sugar Mills v State of MP,*AIR 1966 SC 416 : (1966) 1 SCR 523; *Re Sea Customs Act,*AIR 1963 SC 1760 : [1964] 3 SCR 787.

65 See T.K. Tope, *Constitutional Law of India*, 3rd Edn, pp 885-86.

66 See Justice H.R. Khanna, *Making of India's Constitution*,– 2nd Edn, 2008, pp 133, 134, 136, 137, 138, 139, 142, 158-165.

67 *Re Kerala Education Bill*, AIR 1958 SC 956.

68 *Statesman,* Calcutta, dated 26 February 1979, p 1.

69 As Dr. Ambedkar explained in the Constituent Assembly (Constituent Assembly Debates, vol VII, pp 33-34), the political system adopted in the *Constitution* could be "both unitary as well as federal according to the requirements of time and circumstances".

70 K.C. Wheare, *Federal Government,* 1951.

71 **Cf.** Strong, *Political Constitutions*, (1966), p 133.

72 T.K. Tope, *Constitutional Law of India*, 2nd Edn, pp 1040-41.

73 Granvile Austin, *The Indian Constitution,* 1966, p 186 agrees with this view when he describes the Indian federations as "a *new* kind of federalism to meet India's peculiar needs". **Cf** Jennings, *SomeCharacteristics of the Indian Constitution,* p 55. An ambitious reader who wants to know more about Federalism should read Author's *Comparative Federalism* where Federalism has been dealt with elaborately on a comparative basis, on the background of the Indian *Constitution*. It is also worthwhile to read the Report of the National Commission to Review the Working of the *Constitution*, 2002, Chapter Report of the Commission on Centre-State Relation (Summary)—regarding this special feature of the federal and unitary character of the Indian *Constitution*, pp 536-93 (Dr Subhash C. Kashyap, *Constitution Making Since 1950 – An Overview*, 2004).

74 DR. AMBEDKAR, Constituent Assembly Debates, vol VII, pp 34-35.

75 M.P. Jain, *Indian Constitutional Law*, 6th Edn, 2010, vol I, p 28.

76 AIR 1984 SC 1420 : (1984) 3 SCC 654.

77 AIR 1978 SC 68 : (1977) 4 SCC 608 (*supra*).

78 AIR 1994 SC 1918 : (1994) 3 SCC 1.

79 *Automobile Transport (Rajasthan) Ltd v State of Rajasthan,*AIR 1962 SC 1406 : (1963) 1 SCR 491.

80 (2006) 7 SCC 1 : AIR 2006 SC 3127.

81 AIR 1963 SC 1241 : (1964) 1 SCR 371; *ITC Ltd v Agricultural Produce Market Committee,*(2002) 9 SCC 232 : (2002) 1 Scale 327; *State of WB v Kesoram Industries Ltd,*AIR 2005 SC 1646 : (2004) 10 SCC 201.

82 See *Bhim Singh v UOI,*(2010) 5 SCC 538, para 45 : (2010) 5 Scale 37.

83 (2007) 3 SCC 184 : (2007) 1 Scale 241.

84 (2011) 3 SCC 139 : (2011) 1 Scale 533.

85 T.K.Tope, *Constitutional Law of India,* 3rd Edn, pp 1039-41.

86 AIR 1963 SC 1241 : [1964] 1 SCR 371.

87 AIR 2005 SC 1646 : (2004) 10 SCC 201 (*supra*).

88 See also *Kuldip Nayar v UOI,*AIR 2006 SC 3127 : (2006) 7 SCC 1.

89 AIR 2001 SC 2616 : (2001) 6 SCC 89.

90 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225; *S.R. Bommai v UOI,*AIR 1994 SC 1918 : (1994) 3 SCC 1.

91 Granville *Austin, Working a Democratic Constitution: A History of the Indian Experience,* 2nd Impression, 2004, pp 560-61.

1 Constituent Assembly Debates, vol XI, No. 12, p 987.

2 Santhanam, *Union-State Relation*, p 13.

3 Constituent Assembly Debates, vol VII, p 34.

4 Constituent Assembly Debates, vol VII, pp 34, 35.

5 *State of WB v UOI,*AIR 1963 SC 1241 : (1964) 1 SCR 371.

6 *State of Rajasthan v UOI,*AIR 1977 SC 1361; (1977) 3 SCC 592.

7 Charles Evans Hughes, *Addresses of Charles Evans Hughes, 1906-1916*, 2nd Edn, p 185.

8 May, *Parliamentary Practice,* 16th Edn, p 28.

9 A.B. Keith, *Constitutional Law of England,* 7th Edn, p 167.

10 Dicey, *An Introduction to the Study of Law of the Constitution*, 10th Edn, pp xxxiv and xxxxv.

11 *Manuel v Attorney General,(1983) Ch.77*; *Vauxhall Estate Ltd v Liverpool Corp,(1932) 1 KB 733*; *Ellen Street Estates Ltd v Minister of Health,(1934) 1 KB 590*.

12 N.K. Bose, *Selection from Gandhi*, 1957, pp 114-115.

13 *People's Union for Civil Liberties v UOI,*AIR 2003 SC 2363 : (2003) 4 SCC 399.

14 *I.R. Coelho v State of TN,*AIR 2007 SC 861 : (2007) 2 SCC 1.

15 *Natural Resources Allocation, In Re : Special Reference No.1 of 2012*(2012) 10 SCC 1 : (2012) 9 Scale 310.

16 *Mohd. Ajmal Amar Kasab v State of Maharashtra,*AIR 2012 SC 3565 : (2012) 9 SCC 234 : 2012 Cr LJ 4770.

17 *Re* Delhi Laws Act, 1912, (1951) SCR 747 (*765*), KANIA C.J.

18 *State of Madras v Row*, AIR 1952 SC 196 (*199*).

19 *Meyer v Nebraska,*(1923) 262 US 390 (*400*).

20 *Chintamanrao v State of MP,*(1950) SCR 759 (*765*).

21 *UOI v Sankalchand Himatlal Sheth,*AIR 1977 SC 2328 : (1977) 4 SCC 193.

22 (1936) 297 US 1 : 56 S.Cr.312.

23 T.M. Cooley, *Treatise on the Constitutional Limitation*, pp 159-60.

24 Hamilton's view in The Federalist No. 48. See Stone, Seidman, Sunshein, Tushnet and Karlan, *Constitutional Law,* 5th Edn, p 41.

25 *Sunil Kumar v West Bengal Government,*AIR 1950 Cal 274 (SB).

26 See Law Commission Report dated 26 September 1958 – para 7, vol II – p 678; **see also** Dr. C.D. Jha, *Judicial Review of Legislative Acts*, – 2nd Edn, pp 163-164.

27 *Natural Resources Allocation, Re : Special Reference No.1 of 2012,*(2012) 10 SCC 1 : (2012) 9 Scale 310.

28 *Daryao v State of UP,*AIR 1961 SC 1457 : (1962) 1 SCR 574.

29 For instance, the interpretation of clause (2) of *Article 19* by the Supreme Court in the cases of *Ramesh Thappar v State of Madras,*(1950) SCR 594 : (1950-51) CC 40 and *Brij Bhusan v State of Delhi,*(1950) SCR 605, has been superseded by passing the *Constitution* (First Amendment) Act, 1951, which has inserted "public order" and "incitement to an offence" in *Article 19*(2). Similarly, the interpretation given to *Article 31* in the group of cases led by *State of WB v*

Subodh Gopal, AIR 1954 SC 170, which stood in the way of agrarian reform, has been superseded by the enactment of the *Constitution* (Fourth Amendment) Act, 1955.

30 *Golak Nath v State of Punjab*, AIR 1967 SC 1643.

31 This has been held by our Supreme Court, repeatedly [*Ram Jawaya v State of Punjab,*(1955) 2 SCR 225 (*232-6*); *Sanjeevi v State of Madras*, AIR 1970 SC 1102 (*1106*); *Rao v Indira*, AIR 1971 SC 1002 (*1005*).

32 *UNR Rao v Indira Gandhi,*AIR 1971 SC 1002 : (1971) 2 SCC 63; **see also***R.C. Cooper v UOI,*AIR 1970 SC 564 : (1970) 1 SCC 248.

33 See Granville Austin, *The Indian Constitution — Cornerstone of a Nation,* p 116.

34 See *UNR Rao v Indira Gandhi,*AIR 1971 SC 1002 : (1971) 2 SCC 63; *Adegbenro v Akintola,(1963) 3 All ER 544*; *Gupta v UOI,*AIR 1982 SC 149 : 1981 (Supp) SCC 87; *Shamsher v State of Punjab,*AIR 1974 SC 2192; *Ningkan v Govt. of Malaysia,(1970) AC 379* (PC); *Madzimbamto v Lardner Burke,(1968) 3 All ER 561* (PC). **See also** D.D. Basu, *Comparative Constitutional Law*, 2nd Edn, 2008, p 21.

35 **See**, for instance, *State of Punjab v Satyapal*, AIR 1969 SC 903 (*911*), as to the circumstances when the power of adjournment may be exercised by the Speaker and the power of prorogation of the Legislative Assembly may be exercised by the Governor. The same case also throws light as to the extent of the Ordinance-making power of the Governor [vide Author's T.L.L. *on Ltd Government and Judicial Review*].

36 This topic will be more fully dealt with under *Article 74*.

37 Hood Phillips, *Constitutional Law*, 1957, p 64.

38 Our *Constitution* though federal in its structure

39 **Cf.***Shamser v State of Punjab*, AIR 1974 SC 2192 : (1974) 2 SCC 831.

40 The *Constitution* (Forty Second Amendment) Act, 1976.

41 *Rao v Indira Gandhi*, AIR 1971 SC 1002 (*1004-5*).

42 *UNR Rao v Indira Gandhi,*AIR 1971 SC 1002 : (1971) 2 SCC 63; *Shamsher v State of Punjab,*AIR 1974 SC 2192 : (1974) 2 SCC 831.

43 *S.C. Advocates-on-Record Association v UOI,*AIR 1994 SC 268 : (1993) 4 SCC 441.

44 *Consumer Education Research Society v UOI,*(2009) 9 SCC 648 : (2009) 11 Scale 708.

45 See *Liversidge v Anderson,(1942) AC 206*; *British Coal Corp v The King,(1935) AC 500*; *Carltoma Ltd v Commr. of Works,(1943) 2 All ER 560*; *Attorney General v Janathan Cape Ltd,(1975) QB 752*; *R v Secretary of State for Home Dept. exp. Hoseball,(1977) 1 WLR 766*.

46 **But see***S.C. Advocates-on-Record Association v UOI,*AIR 1994 SC 268 : (1993) 4 SCC 441 (*supra*).

47 See Hood Phillips & Jackson, *Constitutional & Administrative Law*, 8th Edn, chapter VII, paras 5, 6, pp 139-40.

48 Hood Phillips & Jackson, *Constitutional & Administrative Law,* 8th Edn, chapter VII, para 8, p 142.

49 See *Article 75*(2) in this regard.

50 See *UNR Rao v Indira Gandhi,*AIR 1971 SC 1002 : (1971) 2 SCC 63; *Shamsher v State of Punjab,*AIR 1974 SC 2192 : (1974) 2 SCC 831. **See also** D.D. Basu, *Comparative Constitutional Law*, 2nd Edn, 2008, p 22.

51 AIR 1997 SC 272 : (1996) 6 SCC 734.

52 See M.P. Jain, *Indian Constitutional Law*, 6th Edn, 2010, vol II, p 2309.

53 See the Report of the Commission on Centre-State Relations in Dr. Subhash C. Kashyap, *Constitution making since 1950, – An Overview*, pp 591-92.

54 *M. Nagaraj v UOI,*AIR 2007 SC 71 : (2006) 8 SCC 212.

55 Hurwith & Thornton, *Civil Liberty*, (1989), pp 193 **ff**.; De Smith, (1989), pp 434 **ff.**, 502.

56 K.M. Panikkar, *Hindu Society at Cross-Roads*, pp 63-64.

57 **See also** Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, 9th Impression, 2005, pp 46-47. **See also***Bihari Lal Rada v Anil Jain (Tinu),*(2009) 4 SCC 1 : (2009) 2 Scale 559.

58 Rep. of the First General Elections in India (1951-2), vol I.

59 *I.e.*, up to 2020 A.D.; vide the *Constitution* (95th) Amendment Act, 2009; see *Article 334*.

60 See Author's *Constitutional Law of India*.

61 *Mehta v UOI,*(1992) 1 SCC 358 (pp 2,6); *Mohini v State of Karnataka,*(1992) (2) UJSC 331 (para 9).

62 *Mohini v State of Karnataka,*(1992) (2) UJSC 331 (Para 9).

63 *I.R. Coelho v State of TN,*AIR 2007 SC 861 : (2007) 2 SCC 1.

64 *Bhim Singh v UOI,*(2010) 5 SCC 538 : (2010) 5 Scale 37.

65 See Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, 9th Impression, 2005, p 51.

65a *Mohini v State of Karnataka*, (1992) 2 UJSC 331 (Para 9).

65b *Mohini v State of Karnataka*, (1992) 2 UJSC 331 (Para 9).

66 Granville Austin, *The Indian Constitution – Cornerstone of a Nation,* 9th Impression, 2005, at p 164.

67 *State of WB v Committee for Protection of Democratic Rights,*AIR 2010 SC 1476 : (2010) 3 SCC 571 : (2010) 2 CTC 84 : (2010) 1 Ker LT 723.

68 Jennings, *Some Characteristics of the Indian Constitution,* 1953.

69 *Keshavananda v State of Kerala*, AIR 1973 SC 1461; *Sub-Committee v UOI*, AIR 1992 SC 320 (para 8) CB.

70 S.C. Shah, *The Constitution of India – A Comparative Study*, 1960, p 334.

71 K.V. Rao, *Parliamentary Democracy in India*, 1961, p 213.

72 *State of WB v Committee for Protection of Democratic Rights,*AIR 2010 SC 1476 : (2010) 3 SCC 571 : (2010) 2 CTC 84 : (2010) 1 Ker LT 723 (*supra*).

73 *Golak Nath v State of Punjab*, AIR 1967 SC 1643.

74 *Keshavananda v State of Kerala*, AIR 1973 SC 1461; *Sub-Committee v UOI*, AIR 1992 SC 320 (para 8) CB.

75 The Janata Government's efforts to enshrine the "basic features theory" in the Constitution itself, by requiring a *referendum* to amend four "basic features", failed owing to Congress opposition to the relevant amendments of Article 368 of the Constitution, as proposed by the 45th Amendment Bill, 1978. The four basic features mentioned in that Bill were—(i) Secular and democratic character of the Constitution; (ii) Fundamental Rights under Pt III; (iii) Free and fair elections to the Legislatures; (iv) Independence of the Judiciary.

76 The Janata Government's efforts to enshrine the "basic features theory" in the Constitution itself, by requiring a *referendum* to amend four "basic features", failed owing to Congress opposition to the relevant amendments of Article 368 of the Constitution, as proposed by the 45th Amendment Bill, 1978. The four basic features mentioned in that Bill were—(i) Secular and democratic character of the Constitution; (ii) Fundamental Rights under Pt III; (iii) Free and fair elections to the Legislatures; (iv) Independence of the Judiciary.

77 *Minerva Mills v UOI*, AIR 1980 SC 1789 (paras 21-26, 28, 91, 93-94); *Waman v UOI*, AIR 1981 SC 271 (para 15, CHANDRACHUD, C.J.); *Bhim v UOI*, AIR 1981 SC 234 (para 82); *Sampath v UOI*, AIR 1987 SC 386 (para 2); *Sambamurthy v State of UP*, AIR 1987 SC 663 (para 4) CB; *Addl. Secy. v Alka,* (1992) Supp. (1) SCC 496 (para 30) three Judges.

78 *Kameshwar Singh v State of Bihar,*AIR 1951 Pat 91.

79 Article 31-A with retrospective effect, *i.e.* from 26 January 1950.

80 1951 SCJ 775 : AIR 1951 SC 458.

81 1951 SCJ 29 : 1950 SCR 869.

82 1954 SCJ 127 : AIR 1954 SC 92 : 1954 SCR 587.

83 AIR 1954 SC 119.

84 **See also***Sagir Ahmed v U.P.*, AIR 1954 SC 728. (Protection of Article 31(2) attracted); *WestBengal v Bela Banerjee*, AIR 1954 SC 170. (Question of adequacy of compensation. Provisions of West Bengal Land Development & Planning Act, 1948—regarding compensation, held unconstitutional.

85 (1965) 1 SCR 614.

86 In *UOI v Metal Corp*, (1967) 2 SCR 255, 264-265 (The same view was taken), but in *State of Gujarat v Shantilal Mangaldas,*(1969) 3 SCR 341, it was **overruled**.

87 *R.C. Cooper v UOI*, (1970) 3 SCR 530.

88 (1969) 3 SCR 341.

89 *I.C. Golak Nath v State of Punjab*, AIR 1967 SC 1643.

90 AIR 1967 SC 1643.

91 AIR 1971 SC 1461.

92 *R.C. Cooper v UOI*, AIR 1970 SC 564.

93 AIR 1971 SC 1461.

94 AIR 1980 SC 1989.

95 AIR 1973 SC 1461.

1 AIR 1978 SC 597 : (1978) 1 SCC 248.

2 See *Indore Vikas Pradhikaran v Pune Industrial Coke & Chemicals Ltd,*(2007) 8 SCC 705 : AIR 2007 SC 2458; *Lachhman Dass v Jagat Ram,*(2007) 10 SCC 448 : (2007) 3 Scale 349; *Indian Handicrafts Emporium v UOI,*(2003) 7 SCC 589 : AIR 2003 SC 3240; *Vimlaben Ajitbhai Patel v Vatsalaben Ashokbhai Patel,*(2008) 4 SCC 649 : AIR 2008 SC 2675; *Chandigarh Housing Board v Major General Devinder Singh,*(2007) 9 SCC 67 : AIR 2007 SC 1723; *Karnataka State Financial Corp v N. Narasimhaih,*(2008) 5 SCC 176 : AIR 2008 SC 1797; *Entertainment Network (India) Ltd v Super Cassette Industries Ltd,*(2008) 13 SCC 30 : (2008) 9 Scale 69.

3 *K.T. Plantations Pvt Ltd v State of Karnataka,*(2011) 9 SCC 1 : AIR 2011 SC 3430.

4 *Laxmanlal v State of Rajasthan,*(2013) 3 SCC 764 : AIR 2013 SC 1578; **see also***Tukaran Kana Joshi v Maharashtra Industrial Dev. Corp,*(2013) 1 SCC 353 : AIR 2013 SC 565.

5 T.K. Tope, *Constitutional Law of India*, 3rd Edn, p 983.

6 *Shankari Prasad v UOI*, AIR 1951 SC 458; *Sajjan Singh v State of Rajasthan*, AIR 1951 SC 845; and *Golak Nath v State of Punjab*, AIR 1967 SC 1643.

7 AIR 1951 SC 458.

8 AIR 1967 SC 1643.

8a AIR 1967 SC 1643.

9 *Keshavanand Bharathi v State of Kerala*, AIR 1973 SC 1461.

10 *See Keshavanand Bharathi, Indira Gandhi v Raj Narayan*, AIR 1975 SC 2299; *Minerwa Mills Ltd v UOI*, AIR 1980 SC 1789; *Waman Rao v UOI*, AIR 1981 SC 271.

11 *Indira Nehru Gandhi v Shri Raj Narain,*AIR 1975 (Supp 1) SCC 1 : AIR 1975 SCC 2299; *M. Nagaraj v UOI,*(2006) 8 SCC 212 : AIR 2007 SC 71.

12 AIR 2007 SC 861 : (2007) 2 SCC 1.

13 *Glanrock Estate Pvt Ltd v State of TN,*(2010) 10 SCC 96 : (2010) 9 Scale 270.

14 *J & K National Panthers Party v UOI,*AIR 2011 SC 3 : (2011) 1 SCC 228.

15 *State of Madras v Smt. Champakan Dorairajan*, 1951 SCR 525; *Kameshwar Singh v State of Bihar*, AIR 1951 Pat. 91.

16 *Shankari Prasad v UOI*, 1951 SCJ 775; See para 3 *ante*, captioned "*Constitution* & Private Property."

17 *Articles 15*, *19*, *31*, *85*, *87*, *341*, *342*, *372*, *376*. See : *Motilal v Govt. of U.P.*, AIR 1951 All 257; *Chiranjilal v UOI*, AIR 1951 SC 41; *Romesh Thaper v State of Madras*, 1950 SCR 594; *Brij Bhushan v Delhi,*AIR 1950 SC 129; *Sri Nivas v State of Madras,*AIR 1951 Mad 70; *State of Bihar v Kameshwar Singh*, AIR 1951 SC 252.

18 AIR 1950 SC 124; *Brij Bhushan v State of Delhi*, 1950 SC 129; *Champakam Dorairajan v State of Madras*, AIR 1957 SC 257.

19 *State of WB v Subodh Gopal*, 1954 SCR 587; *Dwarkadas v Sholapur Spinning Co*, 1954 SCR 674.

20 *Saghir Ahmed v State of UP*, (1955) 1 SCR 707.

21 *State of WB v Bela Banerjee*, 1954 SCR 558 : AIR 1954 SC 170.

22 *See State of Bombay v United Motors (India) Ltd*, (1953) SCR 1069; also *see Bengal Immunity Co Ltd v State of Bihar*, AIR 1955 SC 661.

23 Statement of Objects and Reasons appended to the 9th Amendment Bill (no. 29/1956) which was enacted as The *Constitution* (Seventh Amendment) Act, 1956, quoted in M.P. Jain's *Indian Constitutional Law*, 5th Edn, 2003, vol 2, p 2332.

24 Special Reference No. 1 of 1959.

25 Due to *Berubari* case *i.e.* Berubari Union and Exchange of Enclaves, In re, AIR 1960 SC 845 : (1960) 3 SCR, this amendment had to be made.

26 These Portuguese enclaves were integrated with India after the judgment of the International Court in India's favour.

27 *See Poudyal v UOI*, AIR 1993 SC 1804 (Para 15) : Held that the power of Parliament under *Article 2* to admit a new state is not unlimited but is subject to judicial review, and it is open to the Courts examine whether the terms and

conditions for such admission as provided by Parliament are consistent with the Constitutional Scheme and the basic features of the Indian *Constitution*.

28 *See* clause (1H) of *Article 226*.

29 *See**Article 17*

30 AIR 1965 SC 845 : 1965 (1) SCR 973.

31 *Chandra Mohan v State of UP*, AIR 1966 SC 1987 : (1967) 1 SCR 77.

32 The original *Constitution* enumerated 14 languages. By adding Sindhi the number became 15 and by adding Konkani, Nepali and Manipuri it became 18. In January 1987 by Goa Language Act, Konkani has been made an official language of the Union Territory, in addition to Marathi & Gujarati. The *Constitution* (Ninety Second Amendment) Act, 2003 added another four languages — Bodo, Dogri, Maithili and Santhali — bringing the total number of languages to 22.

In 1973, there began a movement to promote the study of Sanskrit at the higher level. The movement is by Rashtriya Sanskrit Sanshthan. One should remember that sanskrit is the base of Indian "heritage and culture" which the *Constitution* seeks to ensure (*Article 51A* (f); 351). Anything added to it has taken place after the Sanskritic culture had prevailed over this land for some three or four thousand years.

33 See *Article 244A*, *Article 371-B*. Accordingly, Parliament passed The Assam Re-organisation (Meghalaya) Act, 1969 to set up the State of Meghalaya within the State of Assam. This was a new experiment to meet regional aspirations within a state.

34 *Golak Nath v State of Punjab*, AIR 1967 SC 1643. *Golak Nath* case has since been overruled by his Holiness *Keshavananda Bharti Sripadagalvarn v State of Kerala*, AIR 1973 SC 1641. The latter case has upheld the validity of the Twenty Fourth Amendment also. See also *Shankari Prasad SinghDeo v UOI*, AIR 1951 SC 458 and *Sajjan Singh v State of Rajasthan*, AIR 1965 SC 845.

35 *Rustom Cavasgee Cooper v UOI*, AIR 1970 SC 564 : (1970) 1 SCC 248 : (1970) 3 SCR 830; Bank Nationalisation case.

36 *Madhav Rao Scindia v UOI*, AIR 1971 SC 530 : (1971) 1 SCC 85.

37 *Madhav Rao Jivaji Rao Scindia v UOI*, AIR 1971 SC 530 : (1971) 1 SCC 85.

38 *Raghunath Rao v UOI*, AIR 1993 SC 1267 : (1994) Supp (1) SCC 191.

39 *See S.K.G. Sugar v State of Bihar*, AIR 1974 SC 1533 : (1974) 4 SCC 827 and *Pran Nath v UOI*, AIR 1977 Del. 167. For details and discussion of Emergency Provisions see D.D. Basu, *Introduction to the Constitution of India*.

40 Cases connected with emergency :

ADM Jabalpur v Shivkant Shukla, AIR 1976 SC 1207; *State of Rajasthan v UOI*, AIR 1977 SC 1361; *Minerva Mills v UOI*, AIR 1980 SC 1789; *Bommai v UOI*, (1994) 3 SCC 1; *Naga People's Movement of Human Rights v UOI*, (1998) 2 SCC 109; *C.K. Ningkan v Government of Malayasia*, *(1970) AC 379* (384) PC. (*See Lakhanpal P.L. v UOI*, AIR 1967 SC 243, 244; *Baburao v UOI*, AIR 1988 SC 440). *Samsher Singh v State of Punjab*, AIR 1974 SC 2192 : (1974) 2 SCC 831. *Birinder Singh Rao v UOI*, AIR 1968 P&H 441; *Bijayanand Patnaik v President of India*, AIR 1974 Ori 52; *Mahabir PrasadSharma v P.C. Ghose*, AIR 1969 Cal. 198 : Cal WN 328; *Rao UNR v Indira Gandhi*, AIR 1971 SC 1002 : (1971) 2 SCC 63; *Gokulanand Roy v Tarapada Mukherjee*, AIR 1973 Cal. 233; *Manoharlal v UOI*, AIR 1970 Del. 178; *Ram Prasad v State of Punjab*, AIR 1966 SC 1607; *Makhan Singh Tarsikko v State of Punjab*, AIR 1964 SC 381; *UOI v Bhanudas Krishna Gawde*, AIR 1977 SC 1207; *District Collr. of Hyderabad v Ibrahim & Co*, AIR 1970 SC 1275 : (1970) 1 SCC 386; *A.G. for India v Amratlal Pramjivandas*, (1994) 5 SCC 54. *Amdavalasa Co-op.Agricultural & Industrial Society v UOI*, AIR 1976 SC 958 : 1976 (2) SCR 731 : (1976) 2 SCC 934.

41 pp i-ii.

42 Since the amendment of *Article 352* in 1978, it is no longer possible to make a proclamation of Emergency on the ground of mere "internal disturbance" which does not constitute an "armed rebellion."

43 **Cf**. *State of Rajasthan v UOI*, AIR 1977 SC 1361 (paras 124, 144); *Minerva Mills v UOI*, AIR 1980 SC 1789 (paras 103-104); *S.R. Bommai v UOI*, (1994) 3 SCC 1. The Proclamation in case of failure of the Constitutional machinery differs from a proclamation of emergency. For difference see D.D. Basu, *Introduction to the Constitution of India*.

44 (1994) 3 SCC 1. For details see Dr. D.D. Basu, *Introduction to the Constitution of India*.

***** Changes made by *Section 3 of the Constitution* (Forty-fourth Amendment) Act, 1978 yet to be enforced.

1 **See***The State of Madras v Gannon Dunkerley & Co*, AIR 1958 SC 560; *State of Punjab v Associated Hotels of India*, AIR 1972 SC 1131; *New India Sugar Mills Ltd v Commissioner of Sales Tax, Bihar*, AIR 1963 SC 1207; *ONGC v State of Bihar*, AIR 1976 SC 2478; *Vishnu Agencies v Commercial Tax Officer*, AIR 1978 SC 449; *Northern India Caterers (India) Ltd v Lt. Governor of Delhi*, AIR 1978 SC 159.

2 Ninth Schedule, Entries 188 to 202 added. **See***Ram Nath v UOI*, AIR 1984 SC 1178 and *Ram Kishan Sinha v DFO*, AIR 1965 SC 625.

3 *A.D.M. Jabalpore v Shivkant Shukla*, AIR 1976 SC 1207 : (1976) 2 SCC 521 : (1976) 2 SCC 531 : 1976 Supp. SCR 172.

4 **See also** The *Constitution* (Forty-Fifth Amendment) Act, 1980 (in force from 25 January 1980).

5 **See** The *Constitution* (Sixty-Fourth Amendment) Act, 1990 (in force from 16 April 1990).

6 Reasons for extension same as in the *Constitution* (Sixty Fourth Amendment) Act 1990.

7 **See***Velpur Gram Panchayat v Asstt. Director of Marketing, Guntur*, AIR 1998 AP 142—(Comments on these provisions). Cases relating to Panchayat matters :

Jagdish Prasad Bhunjwa v State of MP, AIR 1997 M.P. 184 (Powers of Gram Sabha); *State of Uttar Pradesh v Pradhan Sangh Kshettra Samiti,*AIR 1995 SC 1512 : 1995 Supp. (2) SCC 305 (Powers of Gram Sabha).

*Vinayak Rao Ganga-Ramji Deshmukh v P.C. Agarwal,*AIR 1999 Bom. 142; *Jagdish Prasad Bhunjwa v State of MP,*AIR 1997 MP 184 (offices at the Gram Panchayat).

*Kirshna Kumar Mishra v State of Bihar,*AIR 1996 Pat. 112—(It is *well* within the domain of the legislative to determine as to who is the Backward Class and the caste can be one of the factors for such determination). **See also***Indra Sawhney v UOI*, AIR 1993 SC 477 : 1992 Supp (3) SCC 217.

Mukesh Kumar Ajmera v State of Rajasthan, AIR 1997 Raj. 250—(*Powers* of Panchayats).

*Lakshmappa Kallappa v State of Karnataka,*AIR 2000 Kant. 61—(Any law made by a State Legislature which runs counter to the constitutional provisions, requires to be declared as unconstitutional).

8 Civil writ petition 506/1986 and other writs.

9 The “appropriate legislature” means Parliament or the State Legislature which may be competent to legislate with respect to the concerned matter in accordance with the scheme of distribution of power under *Article 246* read with Schedule VII.

10 AIR 1993 SC 477.

11 **See** The *Constitution* (Seventy-Seventh Amendment) Act, 1995 (17 June 1995).

12 AIR 1993 SC 477 : 1992 Supp. (3) SCC 217.

13 *P.A. Inamdar v State of Maharashtra,*(2005) 6 SCC 537 : AIR 2005 SC 3226.

14 For example: The *Constitution* Amendment Act nos. 1, 4, 17, 14, 42 & 44.

15 For example: The *Constitution* Amendment Act nos. 1, 7, 8, 21, 22, 23, 27, 32, 45, 53, 57, 62, 65, 72, 76, 82, 85, 89, 93.

16 For example: The *Constitution* Amendment Act nos. 10, 12, 14, 55 & 56.

17 **See** Appendix to *Introduction*, *pos*t.

18 M P *Jain, Indian Constitutional Law*, 6th Edn 2010, vol II, p 2440.

19 M P *Jain, Indian Constitutional Law*, Edn 6th, 2010, vol II, pp 2442-2443

20 Dr. Subhash C *Kashyap, Constitutional Making Since 1950* – An Overview, p 13.

21 Massey*, American Constitutional Law – Powers and Liberties*, 2nd Edn, p 52.

22 William Y. Elliott & Neil A. Mc. *Donald, Western Political Heritage*, Prentice Hall, INC., 10th Printing, 1963.

23 CF Strong, *A History of Modern Political Constitutions*, Capricorn Books, New York, 1963.

24 *The Dynamic Aspects of the Rule of Law in the Modern Age – Para 110, International Commission of Jurists, Report on the Proceedings of the South-East Asian and Pacific Conference of Jurists*, Bangkok, February 15-19, 1965.

25 Frank R *Strong, American Constitutional Law,* Hein and Company, 1950.

26 *Marbury v Madison,* 5 US 137 (1803).

27 Store, Seidman Semstein, Tushnet and *Karlan, Constitutional Law*, 5th Edn, p 79.

28 M P *Jain, Indian Constitutional Law,* 5th Edn, 2003, vol 2. p 1998.

29 The Bill to abolish Privy Purses, in 1970 failed to get the requisite votes in Rajya Sabha.

30 Such as the *Constitution* Law Amedment nos. VII, VIII, X, XII, XIV, XXI, XXII, XXIII.

31 Such as the *Constitution* Law Amedment nos. I, IV, XVII, XXIV, XXV and XLII these amendments were criticized on the ground that they constituted open attempts to negative some of the firm principles of judicial pronouncements which the

ruling party regarded as a hurdle in enacting its socio-economic legislation or which gave a wide scope to a Fundamental Right.

32 Land Laws.

33 *I.R. Coelho v State of TN,*(2007) 2 SCC 1 : AIR 2007 SC 861.

34 **See** landmark decisions—*ante*.

35 *Article 21* has to be interpreted in conformity with the international law as India is a signatory to the International Covenant on Civil and Political Rights, 1966 (**See***PUCL v UOI*, (1997) 1 SCC 301 (paras 20 & 26) : AIR 1997 SC 568). Consequently right to development has become part of *Articles 21*, *38*, *39* and *46* (**See***Samatha v State of AP*, (1997) 8 SCC 191 (para 75) : AIR 1997 SC 329.). D.D. Basu, Shorter *Constitution of India*, 13th Edn, Reprint 2003, pp 258-282).

The following rights have been enshrined in *Article 21* :

(i) Right to life (*State of Maharashtra v Chandrabhan*, AIR 1983 SC 803 (paras 1, 20) : (1983) 3 SCC 38)—a right which gives meaning to a man's life, *e.g.*, his tradition, culture, heritage and its protection in full measure).

(ii) Right to livelihood (*Dalmia Cement (Bharat) Ltd v UOI*, (1996) 10 SCC 104 (para 21).

(iii) Right of women to be treated with decency and proper dignity. (*State of Punjab v Baldev Singh*, (1999) 6 SCC 172 (para 24) : AIR 1996 SC 484.

(iv) Right to personal liberty (*Gopalan A.K. v State of Madras*, 1950 SCR 88 : AIR 1950 SC 27) : It includes :

> (1) Right to go abroad, (2) Right to privacy, (3) Right against solitary confinement, (4) Right against bar fetters, (5) Right to legal aid, (6) Right to speedy trial, (7) Right against hand cuffing, (8) Right against delayed execution, (9) Right against custodial violence, (10) Right against public hanging, (11) Right to doctors assistance, (12) Right to shelter, (13) Right to health and medical aid of workers, (14) Right to social justice and economic empowerment, (15) Right to pollution free water and air (16) Right to a reasonable residence. (17) Right to food, clothing, decent environment and protection of cultural heritage, (18) Right of every child to a full development, (19) Right of hilly-area-residents to access to roads, (20) Right to education, (21) maintenance and improvement of public health, (22) improvement of means of communication, (23) rehabilitation of bonded labourers, (24) Providing human conditions in prison and protective homes, (25) Providing hygienic condition in a slaughter-house, (26) Right to marry, (27) Right to fair & open trial, (28) Right against custodial death. For details

see Dr. Acharya Durga Das Basu's "Shorter *Constitution of India*", Wadhwa & Company, Nagpur.

36 In 1983, the Union Government, appointed the Sarkaria Commission, under pressure of political circumstances. The scope of this Commission, however, was a review of the Centre-State relations, *i.e., the federal* provisions and not a comprehensive revision of the *Constitution* as suggested by this Author. Ere long, this shall have to be undertaken. It is also remarkable that though this Commission submitted its Report in 1988, it has not yet been implemented by the end of 1992. On 23 February 2000, the President appointed Shri M N Venketachalliah J., former Chief Justice of India as the Chairperson and ten other eminent persons for the following purpose. "The Commission shall examine, in the light of the experience of the past fifty years, as to how best the *Constitution* can respond to the changing needs of efficient, smooth and effective system of governance and socioeconomic development of modern India within the framework of the Parliamentary democracy and to recommend changes, if any, that are required in the provisions of the *Constitution* without interfering with its basic structure or features". The Commission presented the Report in March 2002. So far no action has been taken on the same.

37 [The tussle between the Supreme Court and some Speakers of State Legislatures is continuing as regards the jurisdiction of the Supreme Court over decisions of Speakers and contempt of Court. See this scope of Judicial Review on Speaker's decision to expel members of Parliament for misconduct (*Raja Ram Pal v The Hon'ble Speaker, Lok Sabha,*JT 2007 (2) SC 1 : (2007) 3 SCC 184)*Vide* Statesman, 7 November 1992, re. Speaker of Manipur Legislature Assembly].

38 (2007) 3 SCC 184 : (2007) 1 Scale 241.

39 **See also** DD *Basu, Comparative Constitutional Law*, 2nd Edn, 2008, pp 54-55.

40 The Planning Commission was set up in 1950 with the object of guiding the Union and the States in the matter of implementing the goal of social and economic justice assured in the Preamble and the Directives in Pt IV, and this has been reflected in its successive Report since then Gazette of India Extraordinary, 15 March 1950; Rep. of the First 5-year Plan, p 8, para 4, Rep. of the Second 5-year Plan, pp 22-24; Rep. of the Third 5-year Plan, pp 10-19.

41 **Cf**. *Mohini v State of Kerala*, AIR 1992 SC 1858 (paras 8-9).

42 *Kesavananda Bharti v State of Kerala*, AIR 1973 SC 1461 (paras 486, 596, 712-15, 1036, 1044, 1212) : (1973) 4 SCC 25; *Markandeya v State of AP*, AIR 1989 SC 1308 (para 9).

43 *Bandhua v UOI*, AIR 1984 SC 802 (para 10); *Literate Assocn. v State of Karnataka,*(1990) 2 SCC 396; *Girish Kalyan v UOI,*(1991) 1 SCC 611 (para 6).

44 AIR 1973 SC 1461 : (1973) 4 SCC 225.

45 (1980) 3 SCC 625.

46 **See** Justice Sujata V. Manohar, *TK Tope's Constitutional Law of India*, 3rd Edn, 2010, p.440..

47 *India,* 1884, pp 231 ff.

48 Canada, *Federal Finance, p* 279, *et seq.*

49 Canada, *Federal Finance, p* 186, *et seq.*

50 A K *Chandra, Indian Administration*..

51 **See** M P *Jain, Indian Constitutional Law*, 6th Edn, 2010, Vol 1, p 1033..

52 *Statesman,* 18 July 1967, p 1

53 *India,* 1884, p 231 ff.

54 **See**, for instance, *Atiabari Tea Co v State of Assam*, (1961) 1 SCR 809 (860); *Automobile Transport v State of Rajasthan*, AIR 1962 SC 1406 (1416); *Kadar v State of Kerala*, AIR 1974 SC 2272.

55 **See**, for instance, *Atiabari Tea Co v State of Assam*, (1961) 1 SCR 809 (860); *Automobile Transport v State of Rajasthan*, AIR 1962 SC 1406 (1416); *Kadar v State of Kerala*, AIR 1974 SC 2272.

56 **Cf***. State of WB v UOI*, AIR 1963 SC 1241 (*vide Author's Comparative Federalism*).

57 It would have been impossible to achieve this strength over-night if the unitary elements in the *Constitution* had not been utilised by the Union in times of peace to make the country understand that strength lay in greater cohesion and unity. The Author is therefore unable to agree that "the most surprising thing about Indian politics during the last ten years is that, while keeping intact the formal legal relations, the distribution of functions, powers and finances between the Union and the States has been altered to an extent that was not at all contemplated by the Constituent Assembly" (Santhanam, Union –State Relations, 1960, vii).

58 Bangladesh itself has raised an unexpected problem for India, having turned into an Islamic Republic in the lap of the Islamic States of the world and aspiring for a "confederation" with Pakistan.

59 *Statesman*, 11 May 1983; 21 June 1983, p 8.

60 Of course, a tilt against Pakistan is discernible in American foreign policy since the disintegration of the U.S.S.R. in 1989, and the disillusionment of President Bush in the profession and conduct of the Pakistan Government.

61 An elaborate treatment of this topic is to be found in Author's *Comparative Federalism.*

62 Many Opposition Parties joined with the Akalis to form the "Opposition Conclave".

63 A resolution adopted by the Akalis at the Anandpur Gurudwara on October 16, 1973 and ratified by the All India Akali Sammelan in October, 1978, at Ludhiana.

64 Raising a volunteer force of 1 lakh at the first instance [*Statesman,* 14 March 1983].

65 It is not correct to say that the agitation for "Khalistan" is the work of a group of terrorists. The steps in which it has advanced from the Akali organisations cannot be overlooked : 54th All India Educational Conference of the Chief Khalsa Dewan—asserting that the Sikhs were a *separate* Nation and should also be admitted to the U.N. as a member—"Khalistan" [18 March 1981]; Reiterated by the Shiromani Gurudwara Prabandhak Committee [*Times of India,* 30 August 1981]; Anandpur Sahib Resolution; as added by the Akali Dal (Talwandi) at the World Sikh Convention [April, 1981],—asserting that the Sikhs are a separate Nation and that this status of the Sikh Nation has been recognised by the major Powers of the World; letter written by the Akali Leader Bhindranwale to Jagjit Singh, the "Khalistan" leader in London [*Statesman,* 6 January 1983]; Sant Longowal's thesis that Sikhs are a "separate race" [*Statesman,* 16 June 1983]; harbouring extremist leaders and criminals [*Statesman,* 20 June 1983, p 7]. Simranjit Singh Mann's appeal to the U.S.A. [*Statesman,* 14 March 1991] followed by pre-Khalistani Resolution in the U.S. Congress [*Hindusthan Times,* 4 October 1992]. **See also** the writing of Saran Singh in the Statesman of 30 June 1992.

66 *Ananda Bazar Patrika,* 18 May 1985.

67 *Statesman,* 25 July 1985.

68 The present agitation, in fact, is not a new movement, but is a logical sequel of the "*Bangal Khedao"* movement, which started as a language drive, more than two decades ago. It would be an eyeopener to many people in other parts of India, that one group of the agitators calls its movement as "the 18th war of *independence",* to carve out a separate homeland for the Assamese who belong to the Mongolian stock, with a separate flag [*Time*, 7 March 1983].

69 *Statesman,* 23 March 1983.

70 *Statesman,* 7 June 1983.

71 *Vide Abdul v S.D.O.*, AIR 1965 Cal 160; *Golam v Supdt.,*AIR 1965 Cal 302, and cases cited therein.

72 Critics say that the illegal immigrants have been entertained by the Parties in power by granting them Ration Cards and eventually entering their names in the Electoral Roll [**Cf**. *Ali v E.R.O.*, AIR 1965 Cal. 1 (paras 1, 6)], in order to gain their votes.

73 *Statesman*, 13 February 1991; *Anandabazar*, 15 February 2009].

74 If they succeed in this plan, they will simply fulfil their pledge to "recover Hindusthan by a joke" (*larke lia Pakistan, larke lenge Hindusthan),* which was their slogan at the time of the Referendum held in 1947 in Sylhet.

75 *Anandabazar,* 8 August 1992; *Statesman,* 15 February 1991; 2 August 1991.

76 *Anandabazar,* 8 August 1992.

77 *Statesman,* 15 February 1991; 2 August 1991.

78 *Sarbananda Sonowal v UOI,*AIR 2005 SC 2920 : (2005) 5 SCC 665.

79 **Cf**. *Anandabazar*, 29 October 1992.

80 *Statesman,* 12 October 1992; 5 November 1992.

81 **Cf.***Statesman,* 2 August 1991 (*Bokaro correspondent*). Bangladesh Government is now allowing the terrorist groups from Pakistan to establish terrorists' training camps and helps with the aid of Pakistan to allow them to cross its border and enter into India and continue their terrorist activities.

82 DD *Basu, Introduction to the Constitution of India*.

83 By the *Constitution* (71st Amendment) Act, 1992.

84 *Nain Sukh v State of UP*, AIR 1953 SC 384 (*385*); *State of Madras v Champakam,*(1951) SCR 525 (*530, 533*); *Balaji v State of Mysore*, AIR 1963 SC 649 (*663*); *State of AP v Sagar*, AIR 1968 SC 1379; *Triloki v State of J&K*, AIR 1969 SC 1.

85 It may be noted that the foregoing suggestion of the Author in *Introduction to the Constitution of India* has been adopted by the 9-Judge Supreme Court decision Dated 16 November 1992 [*Indra v UOI,* (1992) Supp. (3) SCC 217 (paras 741, 860 (2); 325(2), (4); 552(1), (2); 635(2)]. After this judicial verdict which is binding on the Union and State Governments as well as all instrumentalities of the Governments the plea for proportional representation on communal basis should be nipped in the bud by the heads of "secular' India.

86 All-India Muslim Conference at Lucknow [*Statesman,* 29 December 1978; 11 December 1979]; **see also** Muslim League's demand in Kerala [*Statesman,* 27 February 1983].

87 **See** V P Bharatiya, *Minorities Commission – Constitutional Metamorphosis,* Law Faculty University of Jodhpur. .

88 **See***Journal of Indian Law Institute*, 1979, Vol 21, p 268.

89 It is a pity that the existing Minority Commission could urge [Anandabazar, Dated 2 April 1992] that they should be given constitutional status so that they might independently implement their recommendations,—feigning ignorance of the broad proposition that to do so would be to install the Commission as a super-Government over the head of the elected responsible Government of the land.

It is also to be pointed out in this context that, for the purpose of implementing programmes for the all-round welfare of the minorities, Government of India has set up a "Minorities Cell" since 1983, including the recruitment of the minorities to the Services, Army and Police forces [India 1988-89, p 225].

90 *Ibid.*

91 *Bal Patil v UOI,*(2005) 6 SCC 690 : AIR 2005 SC 3172.

92 *Statesman,* 30 November 1979 (Zakir Hussain Memorial Lecture).

93 It is a pity that the existing Minority Commission could urge [Anandabazar, Dated 2 April 1992] that they should be given constitutional status so that they might independently implement their recommendations,—feigning ignorance of the broad proposition that to do so would be to instal the Commission as a super-Government over the head of the elected responsible Government of the land.

It is also to be pointed out in this context that, for the purpose of implementing programmes for the all-round welfare of the minorities, Government of India has set up a "Minorities Cell" since 1983, including the recruitment of the minorities to the Services, Army and Police forces [India 1988-89, p 225].

94 *Vide India* 1988-89, pp 224-25. It should be noted that so far as the linguistic interests of Minorities are concerned there is already a provision for the appointment of a Special Officer for linguistic minorities, in *Article 350B*.

95 The *Jamiat-ulama-i-Hnd* goes to the extent of urging for the deletion of *Article 44* [*Statesman,* Dated 2 October 1979, p 3] or to exempt Muslims from its operation [*Statesman,* 8 April 1985].

96 This view has been supported by many Muslim judges and scholars who possess special knowledge about the *Shariat* [**see** Author's *Commentary on the Constitution of India]*. It is on this view that personal law has been reformed or partially replaced in Muslim majority countries such as Egypt, Indonesia, Iraq, Jordan, Malaysia, Morocco, Syria, Tunisia, Turkey, and a Uniform *Penal* Law was established in India itself by the British. This shows that the *Shariat* is a *social* regulation and not of the "essence" of the Muslim *religion.*

1 If Government yields to this demand of the Muslims now, could it resist a similar demand of the Christians and the nascent demand of the Akali leader that there should be a separate code of personal laws for the Sikhs [*Statesman,* 16 June 1983]. For similar demand for Christian converts; which has been turned down by the Supreme Court, **see***Soosai v UOI*, AIR 1986 SC 733 (para 8).

2 *State of TN v K. Shyam Sundar,*(2011) 8 SCC 737 : (2011) 4 CTC 874 : (2011) 5 LW 97.

3 *Ananda Bazar Patrika,* Dated 5 February 1982.

4 A Muslim divorced wife brought an application for maintenance under *section 125 of the Criminal Procedure Code*, which was decreed. The husband appealed to the Supreme Court on the ground that section 125 should not apply to Muslims as it is contrary to Muslim Personal law. The Supreme Court rejected this contention upon the interpretation of section 125, namely, that it applied to all "persons", irrespective of their religion or personal law, and dismissed the husband's appeal.

In the judgment [*Ahmed v Shah Bano*, AIR 1985 SC 945 (para 32)], the Supreme Court observed that it was a pity that the State had not made any attempt to make a Common Civil Code even though *Article 44* issued a clear mandate on the State in this behalf,—whether the lead came from the Muslim community or not :

"*A belief seems to have gained ground* that it is for the Muslim community to take a lead in the matter of reforms of their personal law. A common Civil Code will help the cause of national integration by removing disparate loyalties to laws which have conflicting ideologies…*It is the State which is charged with the duty* of securing a uniform Civil Code for the citizens of the country…"

The Supreme Court repeated its views on *Article 44* in *Jorden v Chopra*, AIR 1985 SC 935 (para 1).

As a learned Professor of the Bombay University, Professor Siddiqui, observed, if the State took the lead, ultimately the Muslim community would accept it because it was in accord with the notions of modern civilised society :

"The issue should not be decided in terms of textual conformity with the Koran but in the context of *modern civilised society.* And then even if the law goes against the Koran, the Government must enact it. Ultimately, the community will accept it". [*Sunday Observer,* 6 May 1984].

5 AIR 1985 SC 945.

6 If Government yields to this demand of the Muslims now, could it resist a similar demand of the Christians and the nascent demand of the Akali leader that there should be a separate code of personal laws for the Sikhs [*Statesman,* 16 June 1983]. For similar demand for Christian converts; which has been turned down by the Supreme Court, **see***Soosai v UOI*, AIR 1986 SC 733 (para 8).

7 *Punjabrao v Meshram*, AIR 1965 SC 1179 (C.B.), followed by *Ramalingam v Abraham,*(1969) 1 SCC 24; *Soosai v India*, AIR 1986 SC 733 (para 8).

8 *Punjabrao v Meshram*, AIR 1965 SC 1179 (C.B.), followed by *Ramalingam v Abraham,*(1969) 1 SCC 24; *Soosai v India*, AIR 1986 SC 733 (para 8).

9 It is to be seen that the judgment in the 9-Judge Bench in the *Reservation case,* (1992) Supp (3) SCC 217, (para 761), has *not* overruled the earlier cases cited in the preceding footnote.

10 3 SCW 57.

11 Henkin*, International Bill of Rights,* 1981, p 276.

12 3 SCW 45.

13 *Vide* summary printed in of Author's *Introduction to the Constitution of India*.

14 Resolution of the U.N. Sub-Commission on the Prevention of Discrimination and Protection of Minorities (1950).

15 **See** Virendra *Kumar, Towards a Uniform Civil Code—Judicial Vicissitudes, Journal of Indian Law Institute*, 2001, Vol 42, p 314..

16 Justice HR Khanna, *Making of India's Constitution*, 2nd Edn

17 **See** Justice HR Khanna, *Making of India's Constitution*, 2nd Edn, p 174-76.

18 **See** Justice HR Khanna, *Making of India's Constitution*, 2nd Edn, p 176 for Dr Rajendra Prasad's words at the concluding session.

19 The TV has now brought to our doors these scenes in the election campaign in England and the U.S.A. But the voters as well as their leaders, in India, prefer to rely on their guns and bombs than to learn the lession from those from whom they have adopted the system of Government by vote.

20 Chapter IV, Para 27(2), *Report of the National Commission to Review the Working of the Constitution* (31 March 2002), vide Government Resolution dated 22nd February, 2000.

21 **See** Dr Subhash C *Kashyap, Constitution Making Since 1950 – An Overview*, 2004, pp 356-58. .

22 Chapter IV, Para 18*, Report of the National Commission to Review the Working of the Constitution* (31 March 2002), *vide* Government Resolution dated 22 February 2000, pp 351-52.

23 *Statesman*, 14 November 1992.

24 **Cf**. *Statesman,* 2 May 1991.

25 **See***Article 117(1) of the Constitution of India*.

26 Chapter IV, Para 34, Report of the National Commission to Review the Working of the *Constitution* (31 March 2002), vide Government Resolution dated 22nd February, 2000, p 359.

27 (2013) 7 SCC 507 : 2013 (8) Scale 487.

28 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (*1565, 1609, 1048, 1860*), Sikri, C.J., Shelet, Grover, Hegde, Mukherjea, Reddy & Khanna, JJ..

29 *Constitutional Assembly Debates*, Vol X-XII, p 978.

30 **See** Justice Sujata V. Manohar, *TK Tope's Constitutional Law of India*, 3rd Edn, 2010, p 1176.

31 Dr B R *Ambedkar, Constitutional Assembly Debates*, vol VII 31 (38). **See** D D *Basu, Comparative Constitutional Law*, 2 nd Edn, 2008, pp 13-14.

32 **See***Constituent Assembly Debates.*

33 This will be discussed under "Interpretation" *below.*

34 In this commentary, the parallel or analogous provisions of "Other Constitutions" have been reproduced under each Article, to indicate the sources, as well as to provide materials for comparison.

35 **Cf**. *Rashid Ahmed v Municipal Board,*(1950) SCR 566; *Basappa v Nagappa,*(1955) 1 SCR 250; *Election Commn. v Saka Venkata,*(1953) SCR 1144 (*1150*); *Dwarka v I.T.O.*, AIR 1966 SC 81 (*84*).

36 (1983) 4 SCC 141. **See also***R.D. Upadhay v State of AP,*(2001) 1 SCC 437 : (2000) 8 Scale 1; *Neelabati Behera v State of Orissa,*(1993) 2 SCC 746; *Mehmood Nayyar Azam v State of Chattisgarh,*AIR 2012 SC 2573 : (2012) 8 SCC 1 : (2012) Cr LJ 3934; *Raghuvansh Dewanchand Bhasin v State of Maharashtra,*AIR 2011 SC 3393 : (2012) 9 SCC 791; *A.S. Mohammed Rafi v State of TN,*AIR 2011 SC 308 : (2011) 1 SCC 688; *People's Union for Democratic Rights v Police Commissioner,*(1989) 4 SCC 730. (For further discussion, **see***Article 21*).

37 *State of Gujarat v Govindbhai Jakhnbhai*, AIR 1999 Guj. 316.

38 *See* also *Chairman Railway Board v Chandrima Das*, (2000) 2 SCC 465 (breach of Human Rights and Fundamental Rights). *Bhimsingh v State of J&K*, 1985 4 SCC 677 (detention of Member of Legislative assembly), *Nilbati Behera v State of Orissa*, (1991) 2 SCC 746 (Death in Police Custody).

39 *Article 44, Constitution of India*.

40 *Jorden Diengdeh v Chopra S.S.*, AIR 1985 SC 935 : (1985) 3 SCC 62.

41 *Mohmad Ahmed Khan v Shah Bano Begum*, AIR 1985 SC 945 : (1985) 2 SCC 556.

42 *Jorden Diengdeh v Chopra S.S.*, AIR 1985 SC 935 : (1985) 3 SCC 62; *Mohmad Ahmed Khan v Shah Bano Begum*, AIR 1985 SC 945 : (1985) 2 SCC 556.

43 *Sarla Mudgal v UOI*, (1995) 3 SCC 635 : AIR 1995 SC 1531. The Supreme Court reiterated that it never issued directions in this respect but only expressed its views in the facts and circumstances of various cases, *Lily Thomas v UOI*, (2000) 6 SCC 224 (para 68) : AIR 2000 SC 1650.

44 AIR 2003 SC 2902 : (2003) 6 SCC 611.

45 *Sarla Mudgal v UOI*, (1995) 3 SCC 635 : AIR 1995 SC 1531.

46 **See***Pandey & Khanorkar, "Role of quality control legislation in Consumer Protection" in Legal News & Views*, 1993, September, pp 299-306.

47 The Standard of Weights and Measures (Packaged Commodities) Rules, 1977.

48 *Lucknow Development Authority v M.K. Gupta,*AIR 1994 SC 787 : (1994) 1 SCC 243.

49 *State of UP v Jeet S. Bishi,*(2007) 6 SCC 586 : (2007) 8 Scale 35.

50 *V. Krishna Rao v Nikhil Superspeciality Hospital,*(2010) 5 SCC 513 : (2010) 4 Scale 662.

51 *Lucknow Development Authority v M.K. Gupta*, (1994) 1 SCC 243 : AIR 1994 SC 787.

52 *Lucknow Development Authority v M.K. Gupta*, (1994) 1 SCC 243 : AIR 1994 SC 787 : (1994) 1 SCJ 103 (paras 12-13).

53 *Vasantha P. Naik v Cosmopolitan Hospitals*, (1991) 2 CPJ 444; *Mopuna v Dr. Premavati Elango*, (1991) 2 CPR 466 (Mad.); *Y. Minakshi v D.H. Nandish*, (1991) 2 CPJ 533 (Kant.); *Subhash N. Pandya v Secretary, Baroda City Consumers Association*, (1991) 2 CPR 537 (Guj.). ***See*** also Legal News & Views, 1993, April, pp 133-135—Pushpa Girimaji's Article, "Letting Doctors Off the Hook."

54 *Rudal Shah v State of Bihar*, AIR 1983 SC 1086 (paras 10-11) : (1983) 4 SCC 141; *Postsangbam Ningal Thockchom (Smt.) v General Officer Commanding*, (1997) 7 SCC 725 (para 6) : Army picking up young boys. Plea to have been released them, proved wrong. Compensation of Rs. 1,25,000/- ordered to be paid to each mother.

55 *Sebastin M. Hongray v UOI*, AIR 1984 SC 1026 (para 7) : (1984) 3 SCC 82; *Rudal Shah v State of Bihar*, AIR 1983 SC 1086 : (1983) 4 SCC 141; *Bhimsingh v State of J&K*, AIR 1986 SC 494 (para 3) : (1985) 4 SCC 677.

56 *Kartar Singh v State of Punjab,*(1994) 3 SCC 569 : 1994 Supp (1) Scale 1; *People's Union for Civil Liberties v UOI,*(1997) 3 SCC 433 : AIR 1997 SC 1203; *Sube Singh v State of Haryana,*(2006) 3 SCC 178 : AIR 2006 SC 1117; *Murti Devi v State of Delhi,*(1998) 9 SCC 604 : (1998) 232 ITR 318; *UOI v Luitukla,*(1999) 9 SCC 273 : 2000 SCC (Cr) 238; *Khatri v State of Bihar,*AIR 1981 SC 928 : (1981) 1 SCC 627; **see** also *Mehboob Batcha v State,*(2011) 7 SCC 45) : (2011) 4 Scale 20.

57 *Supra*.

58 *Rudal Shah v State of Bihar*, AIR 1983 SC 1086 : (1983) 4 SCC 141 (unlawful detention for 14 years); *Bhimsingh v State of J&K*, (1985) 4 SCC 677 (detection of MLA); *Nilbati Behra v State of Orissa*, (1991) 2 SCC 746 (Death in Police Custody); *Delhi Domestic Working Women Forum v UOI*, (1995) 1 SCC 14 (rape on domestic working women), *P. Rathinam v State of Gujarat*, 1994 SCC (Cri) 1163 (Rape of tribal woman in police custody); *P.A. Narayanan v UOI*, (1998) 3 SCC 67, (Negligence of Railway Servants & rape, robbery and murder in a running train); *State of Gujarat v Govindbhai Jakhnbhai*, AIR 1999 Guj. 316 (violation of right to life by police).

59 *Rudal Shah v State of Bihar*, AIR 1983 SC 1086 : (1983) 4 SCC 141 (unlawful detention for 14 years); *Bhimsingh v State of J&K*, (1985) 4 SCC 677 (detection of MLA); *Nilbati Behra v State of Orissa*, (1991) 2 SCC 746 (Death in Police Custody); *Delhi Domestic Working Women Forum v UOI*, (1995) 1 SCC 14 (rape on domestic working women), *P. Rathinam v State of Gujarat*, 1994 SCC (Cri) 1163 (Rape of tribal woman in police custody); *P.A. Narayanan v UOI*, (1998) 3 SCC 67, (Negligence of Railway Servants & rape, robbery and murder in a running train); *State of Gujarat v Govindbhai Jakhnbhai*, AIR 1999 Guj. 316 (violation of right to life by police).

60 *Municipality of Ratlam v Vardichand*, AIR 1980 SC 1622.

61 *Chairman, Railway Board v Chandrima Das*, (2000) 2 SCC 465.

62 Paras 14, 15, 16, 17 & 18 of *Chairman, Railway Board v Chandrima Das*, (2000) 2 SCC 465.

63 **See also***Bhim Singh v State of J&K,*(1985) 4 SCC 677.

64 *Raghuvansh Dewanchand Bhasin v State of Maharashtra,*AIR 2011 SC 3393 : (2012) 9 SCC 791.

65 *Delhi Jal Board v National Campaign for Dignity and Rights of Sewage and Allied Workers,*(2011) 8 SCC 568 : (2011) 7 Scale 489; **see also***Railway Board v Chandrima Das,*(2000) 2 SCC 465 : AIR 2000 SC 988; *Vishaka v State of Rajasthan,*(1997) 6 SCC 241 : AIR 1997 SC 3011; *Vineet Narain v UOI,*(1998) 1 SCC 226 : AIR 1998 SC 889; *UOI v Assn. for Democratic Reforms,*(2002) 5 SCC 294 : AIR 2002 SC 2112.

66 **See***Article 300* in *D.D. Basu's Shorter Constitution of India*.

67 *P&O Steam Navigation Co v Secy. of State*, (1861) 5 Bom HCR APP 1.

68 *Ibid*.

69 *Kasturilal Ralia Ram Jain v State of UP*, AIR 1965 SC 1039 : 1965 (1) SCR 375.

70 *State of Rajasthan v Vidyavati*, AIR 1962 SC 933 (935, 940) : 1962 Supp (2) SCR 989.

71 The following have been considered to be sovereign functions : (i) commanding goods during war (*Kesoram v Secy. of State*, (1926) 54 Cal. 969; (ii) making or repairing a military road; (iii) administration of justice; (iv) improper arrests (*Secy. of State v A. Cockraft*, (1914) 39 Mad. 351; (v) negligence, (*Mata Prasad v Secy. of State*, (1929) 5 Luck. 157; *Beleswari Prasad v Secy. Of State*, AIR 1937 All 158; *Gurucharan Kaur, Maharani v Provo. of Madras*, AIR 1944 FC 41) or trespass by Police Officers, (*Shiva Bhajan Durga Prasad v Secy. of State*, (1904) 28 Bom. 314; *Ross A.M. v Secy. of State*, (1913) 37 Mad 55; (vi) wrongful refusal by officers of a Revenue Deptt. to issue licence to the plaintiff, causing him damage (*Nobin Chander Dey v Secy. of State*, (1875) 1 Cal. 11; (vii) Negligence of the officers of the Court of wards in the administration of an estate under its charge, (*Secy. of State v Sreegovinda Chandhuri*, (1932) 36 Cal

WN 606; (viii) Wrong committed by officers in the performance of duties imposed upon then by the Legislature unless, of course, the statute itself prescribes the limits of conditions under which the executive acts are to be performed (*Secy. of State v Hari*, (1882) 2 Mad. 273; (ix) or the wrongful act was expressly authorised or ratified by the State (*Sewkissendas Bhatter v Dominion of India*, AIR 1957 SC Cal. 617 (673) : 61 Cal WN 389; (x) Loss of movables from Government Custody owing to negligence of officers, (*Secy. of State v Ram Nath Bhatta*, (1933) 37 Cal WN 95); *Ross A.M. v Secy. of State*, (1913) 37 Mad. 55; *Shiva Bhajan Durga Prasad v Secy. of State*, (1904) 28 Bom. 314 (325); *Dist. Board of Bhagalpur v Prof. of Bihar*, AIR 1954 Pat. 529 : 1954 BJLR 603; *Ram Gulam v U.P. Govt.*, AIR 1950 All 206 : 1950 All LJ 46; *Udar Chand Mahtab v Prof. of Bengal*, (1947) 2 Cal. 141. (xi) payment of money in custody of Government to a person other than the rightful owner, owing to negligence of an officer in the exercise of statutory powers, where Government does not derive any benefit from transaction (*Kasturilal Ralia Ram Jain v State of UP*, AIR 1965 SC 1039 : 1965 (1) SCR 375; *Ram Gulam v U.P. Govt.*, AIR 1950 All 206 : 1950 All LJ 46; *Udar Chand Mahtab v Prof. of Bengal*, (1947) 2 Cal. 141; *Distt. Board of Bhagalpur v Provine of Bihar*, AIR 1954 Pat. 529 : 1954 BLJR 603.) *e.g.*, by a treasury officer paying money to a wrong person on a forged cheque owing to negligence in performing his statutory duty to compare the signature (*UOI v Ayed Ram*, AIR 1958 Pat. 439 : 1958 Pat. LJR 139; *Dist. Board of Bhagalpur v Prof. of Bihar*, AIR 1954 Pat. 529 : 1954 BJLR 603. (xii) Wrongful seizure of confiscation of goods in the purported exercise of statutory powers; (xiii) Injury caused by a driver or a military car on duty (*UOI v Harbans Singh*, AIR 1959 Punj. 39 : 61 Punj LR 30;

But (*xiv*) Running of a railway is a commercial function and it cannot be equated with exercise of sovereign power, (*Chairman RG. Bd. v Chandrima Das*, (2000) 2 SCC 465 : AIR 2000 SC 989 and same is the case with running of hospitals (*Achyutrao Haribhan Khodwa v State of Maharashtra*, (1996) 2 SCC 634; *State of Haryana v Santra*, (2000) 5 SCC 182 (Negligence in Sterilization operation of Govt. hospital compensation).

72 **See***State of AP v Challa Ramakrishna Reddy*, (2000) 5 SCC 712 (Para 15).

73 *K.C. Nag v Secy. of State*, (1912) 40 Cal. 452; *Tarafatulla Mondal v S.N. Maitra*, AIR 1952 Cal 919.

74 *State of Bihar v Rani Sonabati Kumari*, AIR 1961 SC 221 : 1961 (1) SCR 728.

75 *Consumer Education and Research Centre v UOI*, (1995) 5 SCC 42 (para 29) : AIR 1995 SC 922.

76 *Rudal Shah v State of Bihar*, AIR 1983 SC 1086 : (1983) 4 SCC 141.

77 *Peoples' Union for Democratic Rights v Police Commissioner Delhi*, (1989) 4 SCC 730 : 1990 Cr LJ 240 (SC).

78 *Saheli A Women's Resources Centre v Commr. of Police, Delhi,*AIR 1990 SC 513 (para 11) : (1990) 1 SCC 422.

79 AIR 1960 SC 1355 : (1961) 1 SCR 158.

80 AIR 1967 SC 997 : (1967) 2 SCR 170.

81 *State of WB, Superintendent & Remembrancer of Legal Affairs v Corp of Calcutta*, AIR 1947 SC 997 : 1967 (2) SCR 170.

82 ***See*** also *UOI v Jubbi & Dunia*, AIR 1968 SC 360 : 1968 (1) SCR 447.

83 *First Report, Liability of the State in Tort*, Law Commission of India Report, 1956..

84 *Blackshield, Tortions Liability of Government : Jurisprudential Case note*, 8 JILI 643 (1966); 12 JILI 333.

85 *State of Gujarat v Govindbhai Jakhubhai*, AIR 1999 Guj. 316.

86 *Chairman Railway Board v Chandrima Das*, AIR 2000 SC 968 : (2000) 2 SCC 465; *Saheli's* case, AIR 1990 SC 513 : (1990) 1 SCC 422.

87 *State of Gujarat v Govindbhai Jakhubhai*, AIR 1999 Guj. 316.

88 *Chairman, Railway Board v Chandrima Das,*AIR 2000 SC 988; (2000) 2 SCC 465 : (2000) Cr LJ 1473; *People's Union for Democratic Rights v State of Bihar,*AIR 1987 SC 355; *D.K. Basu v Ashok K. Johri,*AIR 1997 SC 610 : (1997) 1 SCC 416; *People's Union for Civil Liberties v UOI,*AIR 1997 SC 1203 : (1997) 3 SCC 433.

89 Tenth Law Commission, Law Commission of India Report, 1984.

1 **See***Rudul Shah v State of Bihar,*AIR 1983 SC 1086 : (1983) 4 SCC 141; (1986) Cr LJ 1644.

2 AIR 1993 SC 1960 : (1993) 2 SCC 746.

3 **See** also *D.K. Basu v State of WB,*AIR 1997 SC 610 : (1997) Cr LJ 743; *Kumari (Smt) v State of TN,*AIR 1992 SC 2069 : (1992) 2 SCC 223; *Chairman, Railway Board v Chandrima Das,*AIR 2000 SC 988; (2000) 2 SCC 465 : (2000) Cr LJ 1473.

4 *Sakuntala Devi v Delhi Electricity Supply Undertaking,*(1995) 2 SCC 369 : (1995) 1 Scale 318.

5 *Jacob George (Dr.) v State of Kerala,*(1994) 3 SCC 430 : (1994) Cr LJ 3851.

6 *Deoki Nandan Prasad v State of Bihar,*AIR 1983 SC 1134 : (1983) 4 SCC 20 – **see also**AIR 1984 SC 1560 1984 (Supp) SCC 410 (same case).

7 *R. Gandhi v UOI,*AIR 1980 Mad 205.

8 *Rabindra Nath Ghosal v University of Calcutta,*(2002) 7 SCC 478 : AIR 2002 SC 3560.

9 *Shakunthala Sharma v State of UP,*AIR 2000 All 219.

10 *Rajender Singh Pathamia v State (NCT of Delhi),*(2011) 13 SCC 329 : (2011) 9 Scale 124.

11 **See** D.D. Basu *: Shorter Constitution of India*.

12 *Chaturbhuj Vithaldas Jasani v Moreshwar Parashram*, (1954) SCR 817 (835) : AIR 1954 SC 236.

13 *Bhikhraj Jaipuria v UOI*, AIR 1962 SC 113 : 1962 (2) SCR 860; *UOI v Hanuman Oil Mills Ltd*, (1987) Supp. SCC 84.

14 *New Marine Coal Co (Bengal) Pvt Ltd v UOI*, AIR 1964 SC 152 : 1964 (2) SCR 859.

15 *Tarandas v State of Karnataka*, (1990) 2 SCC 488; *Ram Gajasherd Nishad v State of UP*, (1990) 2 SCC 486.

16 *Damodaran v State of Kerala*, AIR 1976 S C 1533 (Paras 7, 8) : (1976) 3 SCC 61.

17 *Tinsukhia Electric Supply Co v State of Assam*, AIR 1990 SC 128. **See also***State of WB v B.K. Mondal,*AIR 1962 SC 779 : 1962 (Supp-1) SCR 876; *Mulamchand v State of MP,*AIR 1968 SC 1174 : (1973) 1 SCC 639; *Manohar Lal v UOI,*AIR 1974 Pat 56; *Rambabu v State,*AIR 1981 All 16.

18 *Century Spinning and Mfg. Co Ltd v Ulhasnagar Municipal Council*, AIR 1971 SC 1021 (1024) : (1970) 3 SCR 854; *Motilal Padampat Sugar Mills Co Pvt Ltd v State of UP*, AIR 1979 SC 621 (622) : (1979) 2 SCC 409; *K.C.P. Ltd v State Trading Corp of India*, 1955 Supp. (3) SCC 466 (Para 11).

19 *Subodh Ranjan v O'Callaghan Major N.A.*, AIR 1953 Cal. 319.

20 (1979) 2 SCC 489.

21 *Bharat Petroleum Corp Ltd v Chembur Service Station,*(2011) 3 SCC 710 : (2011) 3 Scale 209.

22 *B.P. Moideen Sevamandir v A.M. Kutty Hassan,*(2009) 2 SCC 198 : (2009) 1 Ker LT 235.

23 *State of Punjab v Jalour Singh,*(2008) 1 SCC 660 : AIR 2008 SC 578.

24 **See***P.T. Thomas v Thomas Job,*(2005) 6 SCC 478 : AIR 2005 SC 3575.

25 *Interglobe Aviation Ltd v N. Satchidanand,*(2011) 7 SCC 463 : (2011) 7 Scale 159; **see also***LIC v Suresh Kumar,*(2011) 7 SCC 491 : (2011) 4 Scale 137.

Note: This decision was rendered after the Amendment to the Act in 2002 and earlier decision was concerned with the scope of section 19.The court held that there is no constitutional right of any person to have the dispute adjudicated by means of court only. Chapter VIA of the Act has been enacted to provide an institutional mechanism through the establishment of Permanent Lok Adalat for settlement of disputes concerning public utility service before the matter is brought before court and in the event of failure to settle, empowering Lok Adalat to adjudicate upon the dispute.

26 *Bar Council of India v UOI,*AIR 2012 SC 3246 : (2012) 8 SCC 243.

27 **See***S.N. Pandey v UOI,*(2012) 8 SCC 261. This decision was affirmed in *Bar Council of India v UOI,*AIR 2012 SC 3246 : (2012) 8 SCC 243.

28 *Hussainara Khatoon v State of Bihar,*AIR 1979 SC 1369 : (1980) 1 SCC 81; *Hussainara Khatoon IV,*AIR 1979 SC 1377; *State of Maharashtra v Manubhai Pragaji Vashi,*AIR 1996 SC 1 : (1995) 5 SCC 730.

29 *Khatri v State of Bihar, (I)*AIR 1981 SC 928 : (1981) 1 SCC 635). In the same case, further direction was given. **See**(1981) 1 SCC 623 : (1981) 1 SCC 627.

30 *Centre for legal Research v State of Kerala,*AIR 1986 SC 2195 : (1986) 1 SCC 706.

31 *Kishore Chand v State of HP,*AIR 1990 SC 2140 : (1991) 1 SCC 286.

32 *Jainendra Kumar Vijaykumar Badjuto v State of Maharashtra,*AIR 1990 SC 1234 : 1990 (Supp) SCC 777.

33 *Khatri v State of Bihar*, AIR 1981 SC 928 (para 4) : (1981) 1 SCC 635.

34 *Suk Das v Union Territory of Arunachal Pradesh*, AIR 1986 SC 991 : (1986) 2 SCC 401 : 1986 (2) Crimes 40.

35 *State of Haryana v Darshana Devi (Smt.)*, AIR 1979 SC 855 : (1979) 2 SCC 236.

36 *Hoskot Madhav Hayawadanrao v State of Maharashtra*, AIR 1978 SC 1548 (Paras 11-13, 24) : (1978) 3 SCC 544.

37 *Gopalanachari v State of Kerala*, AIR 1981 SC 674 (Para 6) : 1980 (Supp.) SCC 649.

38 *Bhajiben Salambhai Chauhan v U.P.S.R.T.C.*, 1990 (Supp.) SCC 769.

39 *Kishore Chand v State of HP*, (1991) 1 SCC 286 (Paras 12, 13).

40 *M.H. Hoskot v State of Maharashtra*, (1978) 3 SCC 544.

41 *Labhu Laxumbhai Vghasia v State of Gujarat,* (1999) 1 Gujarat Law R. 889.

42 *Central Coalfields v Jaiswal Coal Co,*AIR 1980 SC 2125 : 1980 (Supp) SCC 720.

43 *Hiralal Gopilal Rathore v M.P. State,*(1988) Cr LJ 457 (MP); *Ram Sarup v UOI,*AIR 1965 SC 247 : (1965) 1 Cr LJ 236 : (1964) 5 SCR 931.

44 In this connection see *Indian Penal Code, 1860* provisions. Also see *Water (Prevention and Control of Pollution) Cess Act, 1977*, *Environment (Protection) Act, 1986*. ***See****M.C. Mehta v UOI*, (1986) 2 SCC 176 : AIR 1987 965 : *M.C. Mehta v UOI*, (1987) 4 SCC 463 : AIR 1988 SC 1037.

45 **See** D.D. Basu, *Select Constitutions of the World(Including International Charters),* Lexis Nexis India, 2009.

46 *M.C. Mehta v UOI*, (1988) 1 SCC 471 (Paras 24-26) : AIR 1988 SC 1115—an ultra activist judgment.

47 (1) Educational Institutions throughout India should give weekly lessons in first 10 classes, relating to protections & improvement of natural environment including forests, lakes, rivers & wild-life. (2) Text-books should be written for the purpose & to distribute them free of cost. (3) To introduce short term courses for training up teachers who teach this subject. (4) Cleanliness weeks to be introduced by all states, local authorities, all citizens and all members of the Executive, Legislature & Judiciary & should give free personal service to keep their local areas free from pollution of law, water and air.

48 *State of TN v Hind Stone,*AIR 1981 SC 711 : (1981) 2 SCC 205.

49 *B.L. Wadhera v UOI,*AIR 1996 SC 2969 : (1996) 2 SCC 594.

50 *Pradeep Krishna v UOI,*AIR 1996 SC 2040 : (1996) 8 SCC 599.

51 AIR 1996 SC 1051 : (1996) 2 SCC 549.

52 *Indian Council for Enviro-Legal Action v UOI,*AIR 1996 SC 1446 : (1996) 3 SCC 212.

53 *State of HP v A Parent of a Student of Medical College, Shimla*, AIR 1985 SC 910 : (1985) 3 SCC 169.

54 *Upendra Baxi v State of UP*, (1981) 3 Scale 1136 : (1983) 2 SCC 308, cited in *Gupta S.P. v UOI*, AIR 1982 SC 149 (Paras 16-17) : *PUDR v Police Commr. Delhi*, (1989) 4 SCC 730.

55 *Bholanath Tripathi v State of UP*, (1990) Supp. SCC 151 (Para 1).

56 *Shenoy K. Ramdas v Chief Officer, Town Municipal Council, Udipi*, AIR 1974 SC 2177 : (1974) 2 SCC 506.

57 *Sunil Batra v Delhi Administration*, AIR 1980 SC 1579 : (1980) 3 SCC 488.

58 *Gupta S.P. v UOI*, AIR 1982 SC 149 (Paras 14, 17, 25, 141, 609); *Banbasi Ashram v State of UP*, AIR 1987 SC 374 : (1986) 4 SCC 753.

59 *Sheela Barse v UOI*, AIR 1988 SC 2211 : (1988) 4 SCC 226.

60 *Chhetriya Pradushan Mukti Sangharsh Samiti v State of UP*, AIR 1990 SC 2060 : (1990) 4 SCC 449.

61 *Subhash Kumar v State of Bihar*, AIR 1991 SC 420 (Paras 7-8) : (1991) 1 SCC 598.

62 **See** R. Dhavan, "*The Supreme Court under strain : "The Challenge of Arrears" (1977*); Upendra Baxi : "The crisis of the Indian legal system" pp 58-83 (1962).

63 For this Dr. Baxi gives 3 reasons in his paper "Taking Suffering Seriously: Social Action Litigation in the Supreme Court of India."

64 **See** Baxi *Upendra, The Indian Supreme Court and Politics*, Eastern Book Co, 1980

65 *Hussainara Khatoon v Home Secretary, State of Bihar*, AIR 1979 SC 1360 : (1980) 1 SCC 81. (Right to socialise with members of one's family and friends); *Hussainara Khatoon v Home Secretary, State of Bihar*, (1995) 5 SCC 326 (expeditions disposal of cases of undertrials); *Hussianara Khatoon v State of Bihar (II)*, AIR 1979 SC 1377 : (1980) 1 SCC 108, (fairness would be imposed if there is no speedy trial of the accused); *Hussainara Khatoon v State of Bihar, Home Secretary*, AIR 1979 SC 1369 : (1980) 1 SCC 98 (Fairness would be impaired if the undertrial prisoner is kept in jail for a period longer than the maximum term of imprisonment which could have been awarded on his consviction); *PUDR v UOI* (Asiad Case—Breachs of labour laws provisions. PIL is a "Strategic arm of the legal aid movement "which is intended to bring justice within the reach of the poor masses who constitute low visibility area of humanity."—Per BHAGWATI J.); *Janta Dal v Chowdhury H.S.*, (1992) 4 SCC 305 : AIR 1993 SC 892 : *J. Jayalalitha v Govt. of Tamil Nadu*, (1999) 1 SCC 53 : AIR 1999 SC 2330 (Question of *locus standi*); *S.P. Anand, Indore v H.D. Deve Gowda*, (1996) 6 SCC 734 para 18 : AIR 1997 SC 272 (No one has a right to waive the rule of *locus standi*); *Bandlma Mukti Morcha,*AIR 1984 SC 802 : 1984 3 SCC 161 (Supreme Court case take cognizance of letters from individuals complaining of the infraction of Fundamental Rights and has treated such letters as writ petitioners—**See***Sunil Batra v Delhi Administration (II)*, AIR 1980 SC 1579 : (1980) 3 SCC 488.

66 **See** SP Sathe, *Judicial Activism in India – Transgressing Borders and Enforcing Limits,* Oxford University Press, 2nd Edn, 2003, pp 19-20.

67 *People's Union for Democratic Rights v UOI*, AIR 1982 SC 1473 : (1982) 3 SCC 235.

68 *Guruvayur Devaswom Managing Committee v C K Rajan*, AIR 2004 SC 561 : (2003) 7 SCC 546.

69 *National Resources Allocation, Re : Special Reference No. 1 of 2012*, (2012) 10 SCC 1.

70 *State of Uttaranchal v Balwant Singh Chaufal,*AIR 2010 SC 2550 : (2010) 3 SCC 402.

71 M P *Jain, Indian Constitutional Law*, 6th Edn, 2010, p 2041.

72 **See** Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, Nineth Impression, 2005, p 64. ".

73 Granville *Austin, The Indian Constitution – Cornerstone of a Nation*, Nineth Impression, 2005, p 69.

74 It is an offence under the *Indian Penal Code*, 1952 SCR 435 (442) : AIR 1952 SC 123.

75 She was made "Sati" by force.

76 An educated and aged Muslim giving "Talak" to his wife after 50 years of married life.

77 *Kathi Raning Rawal v State of Saurashtra,*AIR 1952 SC 123.

78 *Property Rights of Women Proposed Reforms under the Hindu Law, 174th Report, Law Commission of India*, 2000.

79 **See** Lawyers Collectives : July, 2000, editorial, p 3.

80 *Article 14*: The state shall not deny to any person equality before law or the equal protection of the laws within the territory of India.

81 *Dalmia Cement (Bharat) Ltd v UOI*, (1996) 10 SCC 104 (Para 15).

82 **See** Kerala Hindu Family (Abolition) Act, 1975.

83 The Law Commission has recommended deleting *section 23 of the Hindu Succession Act*, which places restriction on the right of a female heir to claim partition of the dwelling house.

84 In *Githa Hariharan v RBI*, AIR 1999 SC 1149 : (1999) 2 SCC 228. the court agreed with the premise that "gender equality" is one of the basic principles of the *Constitution*. While interpreting section 6(a) of *Hindu Minority and Guardianship Act 1956*, the court held that mother could act as natural guardian even when the father is alive. In *Madhu Kishwar v State of Bihar*, 1996 AIR 1864 : 1996 SCC (5) 125, court considered the provisions of the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW). The court held that the same was an integral scheme of the Fundamental Right and Directive Principle.

85 In *Air India v Nargesh Meerza*, AIR 1981 SC 1829 : (1981) 4 SCC 335, a regulation framed by Air India authorising the employer to terminate services of an air hostess on her first pregnancy was held to be arbitrary and unreasonable. **See also***Anuj Garg v Hotel Assn. of India,*AIR 2008 SC 663 : (2008) 3 SCC 1. The court has also held provisions ensuring reservation of certain posts for women as not violative of *Article 14*, in following cases *UOI v K.P. Prabhakaran*, (1997) 11 SCC 638., *Rajesh Kumar Gupta v State of UP*, AIR 2005 SC 2540 : (2005) 5 SCC 172, *Renuka v State of AP*, AIR 2002 SC 1523 : (2002) 5 SCC 195

86 In *Vishaka v State of Rajasthan*, AIR 1997 SC 2011 : (1997) 6 SCC 241, the court held that sexual harassment of working women amounts to violation of right to gender equality and right to life and liberty **See also***Apparel Export Promotion Council v A.K. Chopra*, AIR 1999 SC 625 : (1999) 1 SCC 759; *D.S. Grewal v Vimmi Joshi*, (2009) 2 SCC 210; *Delhi Domestic Working Women's Forum v UOI*, (1995) 1 SCC 14.

87 **See***Girdhar v State*, AIR 1953 MB 147 (*section 154 of Indian Penal Code, 1860*); *Yusuf v State of Bombay*, AIR 1954 SC 321 : (1954) SCR 930 (under *section 497 Indian Penal Code, 1860*); **see also***Chocki v State of Rajasthan*, AIR 1957 Rajasthan 10 (Bail); *Shathab v Abdulla*, AIR 1967 J & K 120 (service of summons on men only in civil cases.

88 In *Vikram Deo Singh Tomar v State of Bihar,*1988 AIR 1782, court reminded the duty of the State to provide destitute women and children kept in care homes or protective homes with minimum conditions consistent with human dignity. **See also***Chandrika Prasad Yadav v State of Bihar*, (2009) 4 SCC 415. The court in *Budhadev Karmaskar (1) v State of WB*, (2011) 11 SCC 538, gave various directions for rehabilitation of sex workers or prostitutes. The court held that sex workers also have a right to live with dignity since they are also human beings. **See also** under the same cause-title (2011) 10 SCC 351 : AIR 2011 SC 2636 : (2011) 10 SCC 277 : (2011) 10 SCC 283 : (2011) 10 SCC 354. The court held that the right to live with human dignity is the fundamental right of every citizen.

1 *Suchita Srivastava v Chandigarh Administration*, (2009) 9 SCC 1.

2 *John Vallamattom v UOI*, (2003) 6 SCC 611.

3 *Mahadeb Jiew v B.B. Sen,*AIR 1951 Calcutta 563; *Anjali Roy v State of WB*, AIR 1952 Calcutta 825; **see also***Dattatraya Motiram v State of Bombay*, AIR 1953 Bombay 311; *Sanmitri Vishnu v UOI*, AIR 1985 SC 1618 : (1985) Supp SCC 137.

4 *Government of AP v P.B. Vijayakumar*, AIR 1995 SC 1648 : (1995) 4 SCC 820; *P. Sagar v State of AP*, AIR 1968 AP 165.

5 *V.D. Bhanot v Savita Bhanot*, AIR 2012 SC 965 : (2012) 3 SCC 183; **see also***Maroti Dewaji Lande v Gangubhai Maroti Lande*, (2012) Cr LJ 87 (Bombay).

6 *Vimalaben Ajithbai Patel v Vatsalaben Ashokbhai Patel*, (2008) 4 SCC 649.

7 The *States Reorganisation Act, 1956* and the *Constitution* (Seventh Amendment) Act, 1956.

8 History of Kashmir :

Before 175 years ruled by Sikh Ruler Ranjit Singh. His Suba was Gulab Singh—who was succeeded by Parabat Singh. He was fond of opium and cricket. His Diwans in fact ruled the territory. Parabat Singh being issueless appointed his nephew Hari Singh as his successor. He was an autocrat and characterless.

Geographically Kashmir consists of (i) Kashmir Valley (excepting Azad Kashmir under the heels of Pakistan)—15948 square miles,—Muslims in majority. (ii) Jammu—26293 sq. miles Hindus are in majority and (iii) Laddakh—96701 sq. miles. Baudhohas are in majority. One stream of people favours Kashmir's merger with India, another group is opposite to it and favours independent Kashmir while the third group favours merger with Pakistan. The fact lower remains that Kashmir is a State of the UOI.

Under the British regime J&K was an Indian State ruled by a hereditary Maharaja. On 26 October 1947, Azad Kashmir was attacked with support of Pakistan and Maharaja Hari Singh sought India's help. An Instrument of Accession was signed by the ruler. India acquired jurisdiction over it. At the time of accession the Government of India had declared that it was the people of the State of J&K, acting through their constituent assembly, who were to finally determine the *Constitution* of the State and the jurisdiction of the UOI. This was embodied in *Article 370 of the Constitution of India*.

9 *Vide* White Paper on Indian States (MS. 6) rule pp 111, 165.

10 Sections 5/6 of the Government of India Act, 1935 read with 5.7(1)(b) of the Indian Independence Act, 1947.

11 *Anand Adarsh Sein, Kashmir Accession to India, Journal of Indian Law Institute*, Vol VI, 1964, p 69. **See also***Anand Adarsh Sein, Accession of Jammu & Kashmir State – Historical High and Legal Perspective*, Chief Justice of India, Journal of Indian Law Institute, Vol XLIII, 2001, p 455.

12 **See***Article 1, Constitution of India*.

13 In relation to Defence, Foreign Affairs and Communication with respect to which J&K had acceded to India.

14 Order of 1950 was supersedded. By order of 1954 jurisdiction of the Union was extended to all Union Subjects, under the *Constitution of India* (Subject to slight alterations) instead of only 3 subjects.

15 President of the All Jammu & Kashmir National Conference.

16 The Interim Government later changed into full-fledged Cabinet, with the Sheikh as the first Prime Minister.

17 The Government of India accepted this position and made a declaration of the President under *Article 370(3) of the Constitution* (on 15 November 1952) for the propose. This name was subsequently changed to that of Governor.

18 For important provisions of the State *Constitution* of J&K as amended upto 1984, **see** Author's Introduction to the *Constitution of India*, 19th Edn, Reprint 2006, Ch. 15, pp 259 –260.

19 Agreement of 24 February 1975, however could not be implemented due to differences. For this a fresh Presidential order under *Article 370* was issued for salient features of the Constitutional position of the State of J&K, **see** Author's Introduction to the *Constitution of India*. **See also**: *Justice A S Anand, Constitution of Jammu and Kashmir – Its Development and Comments*, Ch. IV, pp 54-71.

20 *Virendra v State of UP,*AIR 1954 SC 447 : (1955) 1 SCR 415. **See also**: *Justice A S Anand, Accession of Jammu & Kashmir – Historical Legal Perspective*, Journal of Indian Law Institute, Vol XLIII, 2001, p 455(Vol IV).

21 He was a sitting judge of the Supreme Court.

22 AIR 1971 SC 1132 (Para 68) : (1971) 1 SCC 626.

23 *Krishna Swamy v UOI*, (1992) 4 SCC 605 : 1992 (Supp) 1 SCR 53.

24 (1992) 4 SCC 506 (para 95) : AIR 1992 SC 2219.

25 **See** Motion of Impeachment under *Article 124(4) of the Constitution* Lawyers Collective, vol 15, No. 2, p 24.

26 Publication of a legal treatise or any activity in the nature of a hobby will not be contrued as trade or business.

27 Released by Chief Justice A.S. Anand at Chief Justices' annual conference.

28 **New Bill on judicial accountability** Apr. 2006 p 4, buyers collective

According to the proposed National Judicial Council Bill, judges will be mandated to declare their assets at the time of taking oath as well as each successive year until their retirement.

Finalized by the Government, the proposed law to bring accountability in the judiciary will be introduced in Parliament after the Holi recess.

On action against judges, the Bill has the following new provisions.

- "Censure provision" under which an errant judge found guilty would be compelled to quit on his own.

  Ban on the judge to handle any judicial work (*i.e.* he cannot hear any case) against whom a complaint and inquiry are pending until he is found not guilty by the NJC.

- The Chief Justice of India (CJI) will be the *ex-officio* Chairman of NJC, which will comprise four other members, all of whom will be SC judges next to the CJI, in order of seniority.

  This step is being seen as a key to introducing not only transparency in the function of judiciary but also to check alleged corruption in the judiciary.

  New Bill on Judicial Accountability, Lawyers Collective, April 2006 p 4.

29 *Lanka Venketeswaralu v State of AP,*AIR 2011 SC 1199 : (2011) 4 SCC 363 : (2011) 3 LW 26.

30 *Syed Mohammed v New India Assurance Co Ltd,*(2011) 11 SCC 625 : (2011) 4 Scale 496.

31 *State of Uttaranchal v Sunil Kumar Vaish,*(2011) 8 SCC 670 : (2011) 9 Scale 131.

32 *Mona Panwar v High Court of Judicature of Allahabad,*(2011) 3 SCC 496 : (2011) Cr LJ 1699; *K.A. Judicial Officer v High Court of AP,*AIR 2010 SC 2801 : (2010) 11 SCC 722 : AIR 2010 SC 2801; *Amar Pal Singh v State of UP,*AIR 2012 SC 1995 : (2012) 6 SCC 491 : (2012) Cr LJ 2921.

33 *Nahar Singh Yadav v UOI,*AIR 2011 SC 1549 : (2011) 1 SCC 307.

34 *Mohd. Shahabuddin v State of Bihar,*(2010) 4 SCC 653(2010) 3 Scale 204.

35 *UOI v Madras Bar Association,*(2010) 11 SCC 1 : (2010) 3 CTC 517.

36 *Jai Prakash Singh v State of Bihar,*AIR 2012 SC 1676 : (2012) 4 SCC 379 : (2012) Cr LJ 2101.

37 *R.C. Chandel v High Court of MP,*AIR 2012 SC 2962 : (2012) 8 SCC 58.

38 *S.P. Gupta v UOI,*AIR 1982 SC 149 : 1981 (Supp) SCC 87.

39 *Justice Sujata V. Manohar*, *TK Tope's on Constitutional Law of India*, 3rd Edn, 2010, pp 759-60.

40 Chapter VII, Para (3):(8) of the Report on National Commission to Review the Working of the *Constitution*.

41 Madhya Pradesh Lok Seva (Anusuchit Jatiyan, Anusuchit Jan Jatiyan or Anya Pichhade Vargon Ke Liye Arakshan) Adhiniyam (M.P., Act No. 21 of 1994), Section 2(c).

42 Arun Shourie, *Falling Over Backwards : An essay against Reservations and against Judicial Populism*, 1st Edn, 2006 : "This way lies not only folly, but disaster,", pp 9-10.

43 Arun *Shourie, Falling Over Backwards : An essay against Reservations and against Judicial Populism*. 1st Edn, 2006 : "This way lies not only folly, but disaster," p 10.

44 R L Chaudhary, *The Concept of Secularism in Indian Constitution*, 1987, p 184.

45 Arun Shourie, *Falling Over Backwards* : *An essay against Reservations and against Judicial Populism*, 1st Edn, 2006 : "This way lies not only folly, but disaster," p 4.

46 **See** Constituent Assembly Debates, vol VIII, 26 May 1949, pp 329-32 and also Letters to Chief Ministers, 1947-64, vol I, 3 June 1949, p 363; and vol III, 1952-1954, 18 March 1953, pp 270-71.

47 Jawaharlal Nehru's Speeches, 1953-1957, Publications Division, New Delhi, 1958, p 459.

48 AIR 1981 SC 298 : (1981) 1 SCC 246.

49 **See** Senior Advocate PP *Rao, Right to Equality and Reservation Policy*, Journal of the Indian Law Institute, vol XLII, 2000, p.193.

50 **See** Senior Advocate PP *Rao, Right to Equality and Reservation Policy*, Journal of the Indian Law Institute, vol XLII, 2000, p.201.

51 AIR 1993 SC 477 : 1992 (Supp-3) SCC 217.

52 **See also***Ashok Kumar Thakur v UOI,*(2008) 6 SCC 1 : (2008) 5 Scale 1.

53 Contrast that with the way this provision and the succeeding *Article 30*, are invoked these days, to assert for instance "rights" of the Muslims *qua* Muslims.

54 **See also***Article 335* : claims of SCs and STs to Services and Posts.

55 AIR 1951 SC 226.

56 Added by the *Constitution* (First Amendment) Act, 1951, Section 2.

57

(1) *B. Venkataramana v State of Madras*, AIR 1951 SC 229.
(2) *Station Masters and Asstt. Station Masters Assn. v General Manager, Central Railways*, (1960) 2 SCR 311.
(3) *General Manager, Southern Rlys v Rangachari*, AIR 1962 SC 36.
(4) *M.R. Balaji v State of Mysore*, AIR 1963 SC 649.
(5) *T. Devadasan v UOI*, AIR 1964 SC 179.
(6) *R. Chitralekha v State of Mysore*, AIR 1964 SC 1823.
(7) *Minor P. Rajendran v State of Madras*, (1968) 2 SCR 786.
(8) *State of AP v P. Sagar*, AIR 1968 SC 1379.
(9) *State of Punjab v Hiralal*, (1970) 3 SCC 567.
(10) *State of AP v U.S.V. Balram*, (1972) 1 SCC 660.
(11) *A. Peeria Karuppan v State of TN*, (1973) 7 SCC 38.
(12) *Janki Prasad Parimoo v State of J&K*, (1973) 1 SCC 420.
(13) *Arati Ray Choudhury v UOI*, (1974) 1 SCC 87.
(14) *Indira Nehru Gandhi v Raj Narain*, (1975) 2 SCC 159.
(15) *Indira Nehru Gandhi v Raj Narain*, (1975) Supp. SCC 1.
(16) *State of UP v Pardip Tandon*, (1975) 1 SCC 267.
(17) *State of Kerala v N.M. Thomas*, (1976) 2 SCC 310.
(18) *Dr. Jagdish Saran v UOI*, (1980) 2 SCC 768.
(19) *Bhim Singhji v UOI*, (1981) 1 SCC 166.
(20) *Akhil Bhartiya Soshit Karmachari Sangh (Rly) v UOI*, (1981) 1 SCC 246.
(21) *State of MP v Nivedita Jain*, (1981) 4 SCC 296.
(22) *Dr. Pradeep Jain v UOI*, (1984) 3 SCC 654.
(23) *K.C. Vasanth Kumar v State of Karnataka*, (1985) Supp. SCC 714.
(24) *Comptroller & Auditor-General of India v K.S. Jagannathan*, (1986) 2 SCC 679.
(25) *Marri Chandra Shekhar Rao v Dean, Sheth G.S. Medical College*, (1990) 3 SCC 130.
(26) *Indira Sawhney v UOI*, (1992) Supp. (3) SCC 217.
(27) *Ajay Kumar Singh v State of Bihar*, (1994) 4 SCC 401.
(28) *Ashok Kumar Thakur v State of Bihar*, (1995) 5 SCC 403.
(29) *UOI v Virpal Singh Chauhan*, (1995) 6 SCC 684.
(30) *R.K. Sabharwal v State of Punjab*, (1995) 2 SCC 745.
(31) *S. Vinod Kumar v UOI*, (1996) 6 SCC 580.
(32) *Ajit Singh Januja v State of Punjab*, (1996) 2 SCC 715.
(33) *Chatter Singh v State of Rajasthan*, (1996) 11 SCC 742.
(34) *Dr. Preeti Srivastav v State of MP*, (1997) 7 SCC 120.
(35) *Ashok Kumar Gupta v State of UP*, (1997) 5 SCC 201.
(36) *UOI v Brij Lal Thakur*, (1997) 4 SCC 278.
(37) *Post Graduate Institute of Medical Education & Research v K.L. Narasimhan*, (1997) 6 SCC 283.
(38) *UOI v Madhav*, (1997) 2 SCC 332.
(39) *Ram Bhagat Singh v State of Haryana*, (1997) 11 SCC 417.

(40) *P.G. Institute of Medical Education & Research, Chandigarh v Faculty Association*, (1998) 4 SCC 1.

(41) *Ajit Singh (II) v State of Punjab*, (1999) 7 SCC 209.

(42) *Indra Sawhney (II) v UOI*, (2000) 1 SCC 168.

(43) *State of Bihar v Bal Mukund Sah*, (2000) 4 SCC 640.

(44) *M.G. Badappananvar v State of Karnataka*, (2001) 2 SCC 666.

(45) *T.M.A. Pai Foundation v State of Karnataka*, (2002) 8 SCC 481.

(46) *Saurabh Chandhri v UOI*, (2003) 11 SCC 146.

(47) *Islamic Academy of Education v State of Karnataka*, (2003) 6 SCC 697.

(48) *E.V. Chinnaiah v State of AP*, (2005) 1 SCC 394.

(49) *P.A. Inamdar v State of Maharashtra*, (2005) 6 SCC 537.

58 Justice S *Rangachari, Constitution of India – Five Decades* (1950-1999), p 312.

59 **See**: Sri Nehru *Dutt, Need for Review of Criteria for Determining Backwardness*, AIR 1987 SC 101 (Journal).

60 The T.N. Backward classes, SCs and STs (Reservation of Seats in Educational Institutions and of appointment or posts in the Services under the State) Bill, 1993.

61 *Article 31-C* : Saving of Laws giving effect to certain Directive Principles.

62 Clause (4B) was added to *Article 16*.

63 Arun *Shourie, Falling Over Backwards : An essay against Reservations and against Judicial Populism*, 1st Edn, 2006 : "This way lies not only folly, but disaster,", pp 12-13.

64 *S. Vinod Kumar v UOI*, (1996) 6 SCC 580.

65 The Supreme Court reaffirmed what it had held in *Indra Sawhney case*.

66 By *Constitution* Amendment (82nd) Act, 2000.

67 By this specified vacancies at each level came to be set apart for persons who belonged to such and thus caste; *e.g.*, vacancies numbers 23, 37, 51 shall be set apart for candidates from caste.

68 *UOI v Virpal Singh Chauhan*, (1995) 6 SCC 684.

69 *Ajit Singh Januja v State of Punjab*, (1996) 2 SCC 715.

70 *Constitution* Amendment (85th) Act, 2001.

71 (2002) 8 SCC 481 : AIR 2003 SC 355.

72 (2003) 6 SCC 697 : AIR 2003 SC 3724.

73 (2005) 6 SCC 537 : AIR 2005 SC 3226.

74 Justice O. Chinnappa Reddy, *K.C. Vasanth Kumar v State of Karnataka*, (1985) Supp. SCC 714, p 752, para 58.

75 Arun *Shourie, "Falling over Backwards*", 1st Edn, 2006, ch. 18, p 347.

76 **See**, for instance, Planning Commission, Midterm Appraisal of Ninth Five Year Plan, 1997-2002, Government of India, October 2000, p 163.

77 Arun Shourie, "*Falling over Backwards*", 1st Edn, 2006, ch. 18, p 348.

78 "This is all a conspiracy to cast doubt on the whole policy of reservations and thereby snatch the meagre benefits that have been secured by the backwards after untold sufferings and endless struggles."

79 *State of Kerala v N.M. Thomas*, (1976) 2 SCC 310,p. 400-401, para 221.

80 (1963) Supp (1) SCR 439 : AIR 1963 SC 649.

81 1974 AIR 1 : 1974 SCR (1) 771.

82 *State of Kerala v N.M. Thomas*, op. cit. at 405-406, para 232.

83 Arun *Shourie, "Falling over Backwards*", 1st Edn, 2006, p 360.

84 Witness what has happened to administration and development projects in U.P. as a result of the conflict that has been stirred between Mayawati's "*Dalits*" and Mulayam Singh's "backwards". The leader of each group foments a zero-sum mentality, cheered, as we have seen, by many a judge, to say nothing of commentators. That mentality congeals into convictions as, aided by the paralysis that the rival claims to "social justice" have caused, the sum indeed does not grow as rapidly as it might.

85 Arun Shourie, "*Falling Over Backwards*,"1st Edn, 2006, cover page flap.

86 With trenchant evidence from the Archives of the 1930s and 40s, from censuses, from judgments of the Supreme Court, with telling facts about the situation that has already come to prevail on the ground, Shri Arun Shourie nails the perversion of the *Constitution* and urges a complete reversal. The weaker sections must be helped, but by altogether different methods. (Cover flap inside).

87 *I.R. Coelho v State of TN,*AIR 2007 SC 861 : (2007) 2 SCC 1.

88 *Dropti Devi v UOI,*AIR 2012 SC 2550 : (2012) 7 SCC 499.

89 For an elaborate treatment of the subject **see** Author's Tagore Law Lectures on *Ltd Government and Judicial Review*.

90 *Keshav Mills Co Ltd v CIT*, AIR 1965 SC 1636 (at p 1644) : 1965 (2) SCR 908.

91 Salmond, *Jurisprudence*, 11th Edn p 152.

92 Ibid.

93 Cooley, *Constitutional Limitations*,.

94 Quoted by the Judicial Committee in *Webb v Qutrim,(1907) AC 31*; **See** also Wynes, *Legislative and Executive* "Powers",p. 9.

95 Crawford, *Statutory Construction, p* 240; *U.S. v Keitel,*(1909) 211 US 370 (*386*).

1 John *Kerr, Law of the Australian Constitution*, p 45 : *Grey v Pearson,*(1857) 6 HLC 61 (106); *Brophy v A.G. of Manitoba,*(1895) App Cas 202 (216) PC; *Crawford v Spooner,*(1847) 4 Moo Ind App 179 (187) PC; *Leader v Duffey,(1888) 13 App Cas 294* (*301*).

2 *Badger v Haidale,* 88 F 2d 298.

3 *Tennant v Smith,(1892) AC 150* (*154*) HL; *Partington v A.G.,*(1869) LR 4 HL 100 (*122*); *Canadian Eagle Oil Co v R,(1945) 2 All ER 499* (*507*) P.C.; *A.G. v Sillem,*(1864) 33 LJ Ex 92 (*110*); *Commrs. of Customs v Top Ten,(1969) 3 All ER 39* (*93, 95*) HL.

4 *M. Nagaraj v UOI,*AIR 2007 SC 71 : (2006) 8 SCC 212.

5 **See***Trop v Dulles,*(1957) 356 US 86.

6 *Missouri v Holland,*(1920) 252 US 346.

7 *Mc.Culloch v Maryland,* (1819) 17 US (4 Wheat) 316.

8 *Sussex Peerage Case,*(1844) 65 RR 11; Maxwell, *Interpretation of Statutes*, 9th Edn, p 1. **See also***Raheja Universal Ltd v NRC Ltd,*AIR 2012 SC 1440 : (2012) 4 SCC 148 : (2012) 2 CTC 103; *Subramanian Swamy v Manmohan Singh,*AIR 2012 SC 1185 : (2012) Cr LJ 1519 : (2012) 3 SCC 64.

9 *Salomon v Salomon*, *(1897) AC 22* (38). **See also***Kannailal Sur v Paramnidhi Sadhukan,*AIR 1957 SC 907 : (1958) SCR 360; *Padmasundara Rao v State of TN,*AIR 2002 SC 1334 : (2002) 3 SCC 533; *Unique Butyle Tube Industries Ltd v UP Financial Corp,*AIR 2003 SC 2103 : (2003) 2 SCC 455; *Mohammed Shahabuddin v State of Bihar,*(2010) 4 SCC 653 : (2010) 4 SC 653.

10 *Pakala Narayana v Emperor*, AIR 1939 PC 47 (51).

11 *United States v Hartwell,* (1868) 73 US (6 Wall) 385.

12 *Coy v Iowa,*(1988) 487 US 1012.

13 *Vishu Pratap Sugar Works Pvt Ltd v Chief Inspector of Stamp, UP*AIR 1968 SC 102 : (1967) 3 SCR 920; *Institute of Chartered Accountants of India v Price Water House,*AIR 1998 SC 74 : (1997) 6 SCC 312; *Padmasundara Rao v State of TN,*AIR 2002 SC 1344 : (2002) 3 SCC 533.

14 **See** Charles Henry *Alexandrowicz, Constitutional Development in India*, p 19.

15 Ibid, p 20.

16 *Purna Agitok Sangma v Pranab Mukherjee,*(2013) 2 SCC 239 : AIR 2013 SC 372.

17 *Brophy v A.G. of Manitoba*, (1895) AC 2002 (126) PC; *Bank of Toronto v Lambe,(1887) 12 App Cas 575* (579, 587); A.G. for Ontario, *(1937) AC 326*; *Colonial Sugar Refining Co v A.G.,(1914) AC 237*.

18 *Attorney-General for Ontario v Attorney-General for Canada*, *(1912) AC 571* (583).

19 *South Australia v Commonwealth*, (1942) 65 CLR 373*(408)*.

20 *Chiranjit Lal v UOI*, AIR 1951 SC 41 (*58*); *Gopalan v State of Madras*, AIR 1950 SC 27 (*42*); *State of Bihar v Kameshwar*, AIR 1952 SC 252 (*309*). **See also***C. Venketeshalam v Ajit kumar C. Sheh*, (2011) 9 SCC 707; *Muncipal committe v Punjab SEB*, (2010) 13 sce 216 : (2011) ILW 523.

21 *State of Bombay v Bombay Education Society*, AIR 1954 SC 561 (*567*).

22 *U.S. v Brunett,* 53 F. 2d 219.

23 *Amalgamated Society of Engineers v Adelaide Steamship Co,*(1920) CLR 129 (*142*).

24 *Bank of Toronto v Lambe,*(1887) 12 AC 575 (*586*).

25 *Chief Justice of AP v L.V.A. Dixithalu,*AIR 1979 SC 193 : (1979) 2 SCC 34.

26 *S.R. Chaudhuri v State of Punjab,*AIR 2001 SC 2702 : (2001) 7 SCC 126.

27 *Moti Ram Deka v General Manager, North East Frontier Railway,*AIR 1964 SC 600 : (1964) 5 SCR 683, See also *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461: (1973) 4 SCC 225.

28 *R.S. Joshi v Ajit Mills Ltd,*AIR 1977 SC 2279 : (1977) 4 SCC 98.

29 *State of HP v Kailash Chand Mahajan,*AIR 1992 SC 1277 : 1992 (Supp-2) SCC 351; *UOI v Elphinstone Spg. & Wvg. Co Ltd,*AIR 2001 SC 724 : (2001) 4 SCC 139.

30 *State of WB v UOI,*AIR 1963 SC 1241 : (1964) 1 SCR 371. **See also***State Trading Corp of India, Ltd v CTO,*AIR 1963 SC 1811 : (1964) 4 SCR 99. **See also***R.S. Raghunath v State of Karnataka,*AIR 1992 SC 81 : (1992) 1 SCC 335; *The Mor Modern Co-operative Transport Society Ltd v Financial Commission,*AIR 2002 SC 2513 : (2002) 6 SCC 269.

31 *R.S. Raghunath v State of Karnataka,*AIR 1992 SC 81 : (1992) 1 SCC 335; *UOI v Elphinstone Spg. & Wvg. Co Ltd,*AIR 2001 SC 724 : (2001) 4 SCC 139; *Phillips India Ltd v Labour Court,*AIR 1985 SC 1034 : (1985) 3 SCC 103; *Osmania University Teachers' Assn. v State of AP,*AIR 1987 SC 2034 : (1987) 4 SCC 671; *Mohan Kumar Singhania v UOI,*AIR 1992 SC 1 : 1992 (Supp-1) SCC 594.

32 *Sussex Peerage Case*(1844) 65 RR 11; *Crawford v Spooner,*(1847) 4 Moo Ind App 179 (*181*) PC; *Wimpey & Co v B.O.A.C.,*(1954) All ER 661 (*664*) (HL); *U.S. v S.E. Underwriters' Assocn.,*(1940) 322 US 533; *Jugal v Raw Cotton Co*, AIR 1955 SC 376; *Ramavatar v S.T.O.*, AIR 1961 SC 1325 (1326).

33 *Girdharlal & Sons v Balbir Nath Mathur,*(1986) 2 SCC 237 : AIR 1986 SC 1099; **see** also *UOI v Hansoli Devi,*AIR 2002 SC 3240 : (2002) 7 SCC 273.

34 Unreasonableness may attract *Article 14*. *Ajay Hasia v Khalid Mujib,*AIR 1981 SC 487 : (1981) 1 SCC 722; *Bhagawanti v UOI,*AIR 1989 SC 2088 : (1989) 4 SCC 103; *State of Kerala v Travancore Chemicals and Mfg. Co,*(1998) 8 SCC 188). **See further** Commentaries on *Article 19*.

35 *Colgate Palmolive (India) Ltd v MRTP Commission,*AIR 2003 SC 317 : (2003) 1 SCC 129; *Mohd. Ali Khan v CWT* JT, (1997) 3 SC 250 : AIR 1997 SC 1165; *Gurudevadatta VKSSS Maryadit v State of Maharashtra,*AIR 2001 SC 1980; *Olga Tellis v Bombay Municipal Corp,*AIR 1986 SC 180 : (1985) 3 SCC 545; *Doypack System Pvt Ltd v UOI,*AIR 1988 SC 782 : (1988) 2 SCC 299; *Oswal Agro Mills Ltd v Collector of Central Excise,*AIR 1993 SC 2288 : 1993 Supp (3) SCC 176. **See** Justice G P *Singh, Principles of Statutory Interpretation*, 9th Edn.

36 *Mutual Life Assurance Society v Howe,*(1922) 31 CLR 329 affirmed in *Cox v Journeaux,*(1934) 52 CLR 282. *United Offset Process Pvt Ltd v Asst. Collector of Custom,*AIR 1989 SC 622 : 1989 Supp (1) SCC 131; *UOI v Garware Nylons Ltd,*AIR 1996 SC 3509 : (1996) 10 SCC 413; *Alphine Industries v Collector of Central Excise,*(2003) 3 SCC 111 : AIR 2003 SC 935.

37 *Inland Revenue Commissioner v Gribble,(1913) 3 KB 212*.

38 *Caledonian Ry. v North British Ry.,(1881) 6 AC 114* (*121*); *Gray v Pearson,*(1857) 6 HLC 61 (*106*), Maxwell, 9th Edn, p 3.

39 *R. v CIT,(1888) 22 QBD 296* (*300*); *L.N.E.R. v Berriman,(1946) 1 All ER 255* (*257*) HL; *Lalit v Chukkan,*(1897) 24 Cal 834 (PC); *Pugh v Ashutosh*, AIR 1929 PC 69.

40 *Barras v Aberdeen Steam Co,(1933) AC 402*.

41 **Cf**. *Willoughby, Constitutional Law,*Vol I, p 53; *Smith v Alabana,*(1888) 124 US 465.

42 *Rucknaboye v Lullobhoy,*(1851) 2 Moo Ind App 234 (*250*) PC; *Kupuswamy v King*, AIR 1949 FC 1 (*3-4*). See also *State of Madras v Gannon Dunkerly & Co,*AIR 1958 SC 560 : (1959) SCR 379; *Diamond Sugar Mills v State of UP,*AIR 1961 SC 652 : (1961) 3 SCR 242; *Gordhandas Hargovindas v Municipal Commissioner,*AIR 1963 SC 1742 : (1964) 2 SCR 608; *Thampanoor Ravi v Charupara Ravi,*AIR 1999 SC 3309 : (1999) 8 SCC 74; *Keshavji Ravji & Co v CIT,*AIR 1991 SC 1806 : (1990) 2 SCC 231.

43 *State of Madras v Gannon Dunkerly & Co,*AIR 1958 SC 560 : (1959) SCR 379; *Everest Copiers v State of TN,*AIR 1996 SC 2662; *Hindustan Shipyard Ltd v State of AP,*AIR 2000 SC 2411 : (2000) 6 SCC 579.

44 *B. Premanand v Mohan Koikal,*AIR 2011 SC 1925 : (2011) 4 SCC 266 : (2011) 2 Ker LT 26.

45 *State of Madras v Dunkerly*, AIR 1958 SC 560 (*573*).

46 *U.S. v Sprague,*(1931) 282 US 716.

47 *Altrineham E.S. Ltd v Sale Urban Council,*(1936) 154 LT 739 (HL); *A.G. v Augustus,(1957) 1 All ER 49* (*53, 61*) HL; *Darshan Singh v State of Punjab*, AIR 1953 SC 83 (*86*); *Ram Narain v State of UP*, AIR 1957 SC 18 (*23*); *Mangoo v Election Tribunal*, AIR 1957 SC 871 (*874-5*).

48 *River Weir Commrs. v Adamson,(1877) 2 AC 743* (*764*).

49 *Sandeep Structures Pvt Ltd v Maharashtra Small-scale Industries Development Corp Ltd,*AIR 2010 SC 1497 : (2010) 3 SCC 34.

50 *State of MP v Balram Mihani,*(2010) 2 SCC 602 : (2010) 2 Scale 37.

51 *Chattisgarh SEB v Central Electricity Regulatory Commission,*AIR 2010 SC 2061 : (2010) 5 SCC 23. **See** also *Delhi Airtech Services Pvt Ltd v State of UP,*(2011) 9 SCC 354 : AIR 2012 SC 573; *Kolkata Metropolitan Development Authority v Gobind Chandra Makal,*(2011) 9 SCC 207 : AIR 2011 SC 3834; *Offshore Holdings Pvt Ltd v Bangalore Development Authority,*(2011) 3 SCC 139 : (2011) 1 Scale 533.

52 *Chanter v Blackwood,* I CLR 39.

53 *Ralla Ram v East Punjab,*(1949) 12 FLJ 3 (*11*) (FC).

54 *Cox v Hakes,(1890) AC 506* (542) (HL); *Altrincham E.S. Ltd v Sale Urban Council,*(1936) 154 LT 379 (HL).

55 *Countess of Rothes v Kirkaldy Waterworks,(1882) 7 AC 694* (*702*) (HL).

56 *State of MP v Chhotabhai*, AIR 1972 SC 971 (*975*).

57 *Jacob v Kerala W.A.,*(1991) 1 SCC 28 (Paras 8, 15).

58 *K.K. Bhaskaran v State,*AIR 2011 SC 1485 : (2011) 2 CTC 887 : (2011) 4 LW 501 : (2011) 3 SCC 793; *Offshore Holdings Pvt Ltd v Bangalore Development Authority,*(2011) 3 SCC 139 : (2011) 1 Scale 533; *State of WB v Kesoram Industries Ltd,*(2004) 10 SCC 201 : AIR 2005 SC 1646; *Assn. of Natural Gas v UOI,*(2004) 4 SCC 489 : AIR 2004 SC 2647; *Nagaland Senior Govt. Employees Welfare Assn. v State of Nagaland,*(2010) 7 SCC 643 : (2010) 6 Scale 342.

59 *State of MP v Rakesh Kohli,*AIR 2012 SC 2351 : (2012) 6 SCC 312 : (2012) 3 CTC 770 : (2012) 4 LW 541; **see also***UOI v Elphinstone Spg. & Wvg. Co Ltd,*AIR 2001 SC 724 : (2001) 4 SCC 139.

60 *Welfare Assn. ARP., Maharashtra v Ranjit P. Gohil,*AIR 2003 SC 1266 : (2003) 9 SCC 358.

61 *R. v Halliday,(1917) AC 260*.

62 *Chandramohan v State of UP*, AIR 1966 SC 1787; *Shyam Kishori v Patna Municipal Corp*, AIR 1966 SC 1678 (*1679*).

63 *Velluswami v Raja*, AIR 1959 SC 422. [But this rule has little scope where the subject matter itself is complicated and productive of difficulties—*Duckerling v Gollan,(1965) 2 All ER 115* (HL)].

64 *Shannon Realities v St. Michael,(1924) AC 185*. Re *Viscount Rhondda's Claim,(1922) 2 AC 339*.

65 *Martin Burn Ltd v Calcutta Corp,*AIR 1966 SC 524 : (1966) 1 SCR 493.

66 *State of Punjab v Prem,*(1977) 2 SCC 744 (*777*); See also *Delhi Transport Corp v DTC Mazdoor Union,*AIR 1991 SC 101 : 1991 (Supp-1) SCC 600; *Commissioner of Wealth Tax v Hasmatunnisa Begum,*AIR 1989 SC 1024 : 1989 (Supp-2) SCC 43.

67 *Murray v Collector,* 1 CLR 32.

68 *Tasmania v Commonwealth,*(1904) 1 CLR 329; The historical aspect will be treated separately.

69 *State of Punjab v Ajaib Singh,*(1953) SCR 254 (*264*) : AIR 1953 SC 10. **See***Githa Hariharan v RBI,*AIR 1999 SC 1149 : (1999) 2 SCC 228; *Govindlalji v State of Rajasthan*AIR 1963 SC 1038 : (1964) 1 SCR 561; *R.L. Arora v State of UP*AIR 1964 SC 1230 : (1964) 6 SCR 784; *IOC v Municipal Corp,*AIR 1993 SC 844 : (1993) 1 SCC 333; *State of Punjab v Kailash Nath*AIR 1989 SC 558 : (1989) 1 SCC 321; *B.R. Enterprises v State of UP,*AIR 1999 SC 1867 : (1999) 9 SCC 700.

70 **See***Express Newspapers Ltd v UOI,*AIR 1958 SC 578 : (1959) SCR 12; **see also***Charan Lal Sahu v UOI,*AIR 1990 SC 1480 : (1990) 1 SCC 613.

71 *Gibbons v Ogden,*(1824) 9 Wh. 1; *Workman v D.T.E. Management*, AIR 1958 SC 353 (*356*); *New India Sugar Mills v Commr. of S.T.*, AIR 1963 SC 1207 (*1213*).

72 *A One Granites v State of UP,*AIR 2001 SC 1203 : (2001) 3 SCC 537; *The Mor Modern Cooperative Transport Society Ltd v Financial Commission,*AIR 2002 SC 2513 : (2002) 6 SCC 269; *Bipinchandra Parshottamadas Patel v State of Gujarat,*(2003) 4 SCC 642 : AIR 2003 SC 2256.

73 *Buxhing Schmitz Pvt Ltd v P.T. Menghani,*AIR 1977 SC 1569 : (1977) 2 SCC 835; *S.P Jain v Krishan Mohan Gupta,*AIR 1987 SC 222 : (1987) 1 SCC 191.

74 *CIT v Budhraj & Co,*AIR 1993 SC 2529 : (1993) 3 SCC 631.

75 *Mahadeolal v Administrator General,*(1960) 3 SCR 578.

76 *Astor v Pery,(1935) AC 398* (*416*); *Grey v Pearson,* (1857) 6 HLC (*106*); *Tirath Singh v Bachittar*, AIR 1955 SC 830 (*833*); *Empress Mills v Municipal Committee*, AIR 1958 SC 341 (*346*). **See also***CIT v J.H. Gotla Yadgiri,*AIR 1985 SC 1698 : (1985) 4 SCC 343; *R. Rudraih v State of Karnataka,*AIR 1998 SC 1070; *Malar Mal v Kay Iron Works Pvt Ltd,*AIR 2000 SC 1261 : (2000) 4 SCC 288; *Padmasundara Rao v State of TN,*AIR 2002 SC 1334 : (2002) 3 SCC 533; *CIT v National Taj Traders,*AIR 1980 SC 485 : (1980) 1 SCC 370; *K.P. Varghese v Income Tax Officer,*AIR 1981 SC 1922; *State of TN v Kodaikanal Motor Union,*AIR 1986 SC 1173 : (1986) 3 SCC 91. **See also***Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225; *Nandini Satpati v P.L. Dani,*AIR 1978 SC 1025 : (1978) 2 SCC 424; *UOI v Rajiv Kumar,*AIR 2003 SC 2917 : (2003) 6 SCC 516.

77 *Buzloor v Shamsoonissa,*(1867) 11 Moo Ind App 604.

78 *Cox v Hakes,(1890) AC 506* (*542*) HL.

79 *A.G. v Augustus,(1957) AC 436*.

80 *Nuth v Tamplin,(1881) 8 QBD 247* (*253*).

81 *Countess of Rothes v Kirkaldy Waterworks,(1882) 7 AC 694* (*702)* HL.

82 *Avishek Goenka v UOI,*AIR 2012 SC 3230 : (2012) 8 SCC 441 : (2012) 4 CTC 772.

83 *CCE v Fiat India Pvt Ltd,*(2012) 9 SCC 332.

84 *Institute of Chartered Accountants of India v Vimal Kumar Surana,*(2011) 1 SCC 534 : (2010) 12 Scale 667; *Delhi International Airport Pvt Ltd v UOI,*(2011) 12 SCC 449 : (2011) 10 Scale 478.

85 *H.S. Vankani v State of Gujarat,*AIR 2010 SC 1714 : (2010) 4 SCC 301; **see also***GE India Technology Centre Pvt Ltd v CIT,*(2010) 10 SCC 29 : (2010) 9 Scale 226.

86 *D. Veluswamy v D. Patchaiammal,*(2010) 10 SCC 469 : (2010) 6 CTC 216 : (2010) 4 Ker LT 384.

87 *Astor v Pery,(1935) AC 398* (*416*); *Grey v Pearson,* (1857) 6 HLC (*106*).

88 *State of Rajasthan v Leela*, AIR 1965 SC 1296.

89 *Velluswami v Raja*, AIR 1959 SC 422.

90 *Buzloor v Shamsoonissa,*(1867) 11 Moo Ind App 604.

1 *King-Emperor v Benoarilal,*(1944) 49 Cal WN 178 (PC); *I.R.C. v Hinchy,(1960) 1 All ER 505* (508) HL.

2 *Jagannath v United Provinces,*(1946) 50 Cal WN 674 (*679*) (PC).

3 *Cooke v Charles,(1901) AC 102* (*107*).

4 *Vacher & Sons v London Society of Compositors,(1913) AC 107* (*118*) HL.

5 *Robert Wigram Crawford v Richard Spooner* (4 Moo Ind App 179-PC).

6 *Pakala Narayanaswami v Emperor,*AIR 1939 PC 41; *Bola v B.D. Sardana,*AIR 1997 SC 3127 : (1997) 8 SCC 522; *S. Gurmej Singh v Sardar Pratap Singh Kairon,*AIR 1960 SC 122 : (1960) 1 SCR 909. **See** Justice G P *Singh, Principles of Statutory Interpretation*, 9th Edn

7 *Afcom Infrastructures Ltd v Cherian Varkey Construction Co Ltd,*(2010) 8 SCC 24 : (2010) 7 Scale 293; **see also***Bhagwan Das v State of UP,*AIR 2010 SC 1532 : (2010) 3 SCC 545.

8 *C. Ronald v Union Territory of Andaman & Nicobar Islands,*(2011) 12 SCC 428; **see also***Bharat Aluminium Co v Kaiser Aluminium Technical Services Inc.,*(2012) 9 SCC 552 : (2012) 5 CTC 615.

9 *Thompson v Goold,(1910) AC 409* (*420*) HL.

10 Re C.P. & Berar Act, (1939) FCR 18 (*36*).

11 *Hansraj v Dehra Dun Tramway Co*, AIR 1933 PC 63; *Hiradevi v Dt. Bd.*, AIR 1952 SC 362; *Magor & St. Mellons v Newport Corp,(1951) 2 All Er 839* (*841*) HL.

12 *King v Burrell,*(1840) 12 A & E 460 (*468*).

13 *Sri Ram v State of Bombay,*1959 SC 459 (*470*); *B.I. Ins. Co v Itbar Singh*, AIR 1959 SC 1331 (1334) *Jumma Musjid v Kodmaniandra*, AIR 1962 SC 847 (*850*).

14 *Cowper-Essex v Acton,*(1889) 14 AC 153 (*169*).

15 *Crawford v Spooner,*(1847) 6 Moo PC 9.

16 *Vickers Sons v Evans,(1910) AC 444*; *I.R.C. v Saxone Ltd,(1967) 1 WLR 501* (HL); *Felix v Thomas,(1967) 1 AC 292* (*306*) PC.

17 *Mohd. Shahabuddin v State of Bihar,*(2010) 4 SCC 653 : (2010) 3 Scale 204.

18 *Mandvi Co-op. Bank Ltd v Nimash B. Thakore,*AIR 2010 SC 1402 : (2010) 3 SCC 83 : (2010) 1 CTC 693 : (2010) 1 Ker LT 32.

19 *CIT v Pemsel,(1891) AC 531*; *Nalinakhya v Shyam*, AIR 1953 SC 145 (*152*). **See also***Rohitash Kumar v Om Prakash Sharma,*2012 AIR SCW 6157.

20 *Jubb v Hull Dock Co,(1846) 9 QB 455*.

21 Craies*, Statute Law,* 1952, p 105.

22 *Salmon v Duncombe,*(1886) 11 AC 627 (634); *Cramas Properties v Connaught Fur Trimmings,(1965) 1 WLR 892* (*899*) HL.

23 *UOI v Hawsoli Devi,*AIR 2002 SC 3240 : (2002) 7 SCC 273.

24 *Inco Europe Ltd v First Choice Distribution (a firm),(2000) 2 All ER 109* (HL).

25 **See also***Ranjit Singh Kalra v UOI,*(1991) 2 SCC 87; *H.C. Suiman v Rehabilitation Ministry Employees Co-op. House Building Society Ltd,*AIR 1991 SC 2160 : (1991) 4 SCC 485; *M.J. Exports Ltd v Custom, Excise and Gold (Control) Appellate Tribunal,*AIR 1992 SC 2014 : 1993 Supp (1) SCC 169.

26 *Preston v Buckley,(1870) 5 QB 391* (394); *Magor & St. Mellons R.D.C. v Newport Corp,(1950) 2 All ER 1226*.

27 *I.R.C. v Dowdall O'Mahoney & Co,(1952) AC 401* (*426*) : (1952) All ER 531.

28 *Hariprasad Shivshankar Shukla v A.D. Divelkar,*AIR 1957 SC 121 : (1957) SCR 121; *Nalinikant Ambalal Mody v CIT Bombay,*AIR 1967 SC 193 : 1966 (Supp) SCR 295; *Dharangadhara Chemical Works v Dharangadhara Municipality,*AIR 1985 SC 1729 : (1985) 4 SCC 92.

29 *Escoigne Properties v I.R.C.,(1958) AC 549* (*566*) HL.

30 *Cox v Hakes,(1890) 15 App Cas 506* (*528, 542*); *Mersey Docks v Turner,(1893) AC 468* (*477*).

31 *Mandvi Co-op. Bank Ltd v Nimash B. Thakore,*AIR 2010 SC 1402 : (2010) 3 SCC 83 : (2010) 1 CTC 693 : (2010) 1 Ker LT 32; *UOI v Nitdip Textile Processsors Pvt Ltd,*(2012) 1 SCC 226; **see also***Indra Sawhney v UOI,*AIR 1993 SC 477 : 1992 (Supp-3) SCC 217; *UOI v Harbhajan Singh Dhillon,*AIR 1972 SC 1061 : (1971) 2 SCC 779; *State of Maharashtra v Milind,*AIR 2001 SC 393 : (2001) 1 SCC 4.

32 *Duport v Sirs,(1980) 1 All ER 529* (*551*) HL.

33 *D.A. Venketachalam v Dy. Transport Commissioner,*AIR 1977 SC 842 : (1977) 2 SCC 273; *UOI v Elphinstone Spg. & Wvg. Co Ltd,*AIR 2001 SC 724 : (2001) 4 SCC 139; *Padmasundara Rao v State of TN,*AIR 2002 SC 1334 : (2002) 3 SCC 533; *Harbhajan Singh v Press Council of India,*AIR 2002 SC 1351 : (2002) 3 SCC 722; *Unique Butyle Tube Industries Pvt Ltd v UP Financial Corp,*AIR 2003 SC 2103 : (2003) 2 SCC 455.

34 *Duport Steels Ltd v Sin,(1980) 1 All ER 529* (HL) (*supra*); *UOI v Elphinstone Spg. & Wvg. Co Ltd,*AIR 2001 SC 724 : (2001) 4 SCC 139.

35 *State v Barnet London Borough Council,(1983) 1 All ER 226* (HL); *S Sundaram Pillai v Pattabhiraman,*AIR 1985 SC 582 : (1985) 1 SCC 591. **See also** G P Singh, *Principles of Statutory Interpretation*, 9th Edn, 2004.

36 *Secy. of State v Nottinghamshire C.C.,(1986) 1 All ER 199* (*213*) HL; *Pickstone v Freemans,(1988) 2 All ER 801* (*807, 815, 818*) HL. **See also***Mandvi Co-op. Bank Ltd v Nimash B. Thakore,*AIR 2010 SC 1402 : (2010) 3 SCC 83 : (2010) 1 CTC 693 : (2010) 1 Ker LT 32.

37 *Caledonian Ry. v North British Ry.,(1881) 6 AC 114* (*121*).

38 *Grey v Pearson,*(1857) 6 HLC 61 (*106*). **See also***Shamrao v Dt. Magistrate,*AIR 1952 SC 324 : (1952) SCR 683.

39 *Cox v Hakes,(1890) 15 App Cas 506* (*528, 542*); *Mersey Docks v Turner,(1893) AC 468* (*477*).

40 *Countess of Rothes v Kirkaldy Waterworks,(1882) 7 AC 694* (*702*) HL.

41 *Owen Thomas Margin v IRC,(1971) 2 WLR 39* : *(1971) 1 All ER 179*; *Imperial Chemical Industries v Colmer,(1996) 2 All ER 23*.

42 *Magor & St. Mellons R.D.C. v Newport Corp,(1951) 2 All ER 839* (*841, 847*) HL, rejecting DENNING L.J.'s view in *(1950) 2 All ER 1226* (*1236*) C.A.

43 *Director of Public Prosecution v Bhagwan,(1970) 3 All ER 97* (HL).

44 *Azam v Secretary of State,(1973) 2 All ER 765* (HL). **See** G P Singh, *Principles of Statutory Interpretation*, 9th Edn, 2004. .

45 *E.g.*, *Allen, Law in the making,* 1964, pp 506 *et seq.*; *Paton, Jurisprudence,* 3rd Edn, p 221.

46 *L.N.E.R. v Berriamn,(1946) 1 All ER 255* (HL); *Hamilton v National Coal Bd.,*(1960) All ER 76 (HL).

47 *Boyse v Rossborough,*(1857) 6 HLC 2.

48 *Altrincham E.S. Ltd v Sale U.C.,* (*1936*) 154 LT 379 (HL); *Victoria City v Bishop of Vancouver*, AIR 1921 PC 240 (*242*).

49 *R v Ireland,(1997) 4 All ER 225*; *Fitzpatrick v Sterling Housing Assn. Ltd,(1999) 4 All ER 705* (HL); *State v S.J. Choudhary,*AIR 1996 SC 1491 : (1996) 2 SCC 428; *State of Maharashtra v Dr. Praful B. Desai,*AIR 2003 SC 2053 : (2003) 4 SCC 601.

50 *McCartan Turkington Breen (a firm) v Times Newspaper Ltd,(2000) 4 All ER 913* (HL).

51 *Senior Electrical Inspector v Laxminarayan Chopra,*AIR 1962 SC 159 : (1962) 3 SCR 146; *Vishnu Agencies Pvt Ltd v CTO,*AIR 1978 SC 449 : (1978) 1 SCC 520; *J.K. Cotton Spg. & Wvg. Mills Ltd v UOI,*AIR 1988 SC 191; *Municipal Corp of Greater Bombay v IOC,*AIR 1991 SC 686; *Royal College of Nursing of the UK v Dept. of Health and Social Security,(1981) 1 All ER 545* (HL); *R v R (rape : marital exemption),(1991) 4 All ER 481* (HL).

52 *Heydon's* case, (1854) 3 Co Rep. 7a; Re, Mayfair Property Co, *(1898) 2 Ch. 28* (*35*); *Holme v Guy,(1877) 5 Ch. D. 901* (*905*); *Hickman v Pearcy,(1945) AC 304* (*316*). [This doctrine will be elaborated hereafter].

53 *Pickstone v Freemans,(1988) 2 All ER 801* (*807, 815, 818*) HL; *Administrator v Dattatraya,* (1992); SCC 361 (para 4).

54 *V.V.P. v Nori,* (1991) Supp. (2) SCC 228 (para 19).

55 *L.I.C. v Escorts*, AIR 1986 SC 1370 (*1403*); *Mohan v UOI,*(1992) Supp. (I) SCC 594 (para 45). See also *State of Gujarat v R.A. Mehta,*(2013) 1 SCC 1; *S.P. Jain v Krishna Mohan Gupta,*(1987) 1 SCC 191; *RBI v Peerless General Finance & Investment Co Ltd,*(1987) 1 SCC 424; *Tinsukhia Electric Supply Co Ltd v State of Assam,*(1989) 3 SCC 709; *UCO Bank v Rajinder Lal Capoor,*(2008) 5 SCC 257; *Grid Corp of Orissa Ltd v Eastern Metals & Ferro Ltd,*(2011) 11 SCC 334; *MSR Leathers v S. Palaniappan,*(2013) 1 SCC 177.

56 *Pickstone v Freemans,(1988) 2 All ER 801* (*807, 815, 818*) HL; *Administrator v Dattatraya,* (1992); SCC 361 (para 4). See also *Southern Electricity Supply Co of Orissa Ltd v Sril Seetharam Rice Mill,*(2012) 2 SCC 108; *Mandvi Co-op. Bank Ltd v Nimash B. Thakore,*AIR 2010 SC 1402 : (2010) 3 SCC 83 : (2010) 1 CTC 693 : (2010) 1 Ker LT 32; *UOI v Nitdip Textile Processsors Pvt Ltd,*(2012) 1 SCC 226; *UOI v Rakesh Kumar,*AIR 2010 SC 3244.

57 *Read v Secq. of State,(1989) LRC (Const.) 349* (*357*) HL : (988) 3 All ER 993(HL); **See** also *Ji Mac William Co Inc. v Mediterranian Shipping Co SA The Rafaela SA,*(2003) 3 All ER 359.

58 *Vacher v London Society,(1913) AC 107*.

59 *Salkeid v Johnson,*(1848) 2 Exch. 256.

60 *I.R.C. v Dowdall & Co,(1952) AC 401* (*426*); *Elleman Lines v Murray,(1931) AC 126*.

61 *Read v Secq. of State,(1989) LRC (Const.) 349* (*357*) HL.

62 Bryan A. Garner, *Black's Law Dictionary,* 7th Edn, 1999.

63 *Leader v Duffey,(1888) 4 AC 294* (*301*); *B.N.C.B. v Babubhai,*(1987) 1 SCC 606 (para 4).

64 *Jennings v Kelly,(1939) 4 All ER 464*; *Tahsildar Singh v State of UP,*AIR 1959 SC 1012 : 1959 (Supp-2) SCR 875; *UOI v Elphinstone Spg. & Wvg. Co Ltd,*AIR 2001 SC 724 : (2001) 4 SCC 139.

65 *AG v HRH Earnest Augustus,(1957) 1 All ER 49*.

66 *Pappatlal Shah v State of Madras,*AIR 1953 SC 274 : (1953) SCR 652; *Mysore State Road Transport Corp v Mirza Khasim Ali Beg,*AIR 1977 SC 747; *Kailash Chandra v Mukundi Lal,*AIR 2002 SC 829; (2002) 2 SCC 678; *Padmasundara Rao v State of TN,*AIR 2000 SC 1334 : (2000) 3 SCC 533; *The Mor Modern Co-operative Transport Society Ltd v Financial Commission,*AIR 2002 SC 2513 : (2002) 6 SCC 269; *Raheja Universal Ltd v NRC Ltd,*AIR 2012 SC 1440 : (2012) 4 SCC 148 : (2012) 2 CTC 103; *CIT, Kerala v A. Krishna Warrier,*AIR 1965 SC 59 : (1964) 8 SCR 36; *CCT v Ramkishan Srikishan Jhavir,*AIR 1968 SC 59 : [1986] 1 SCR 148; *Hiralal Ratanlal v STO,*AIR 1973 SC 1034 : (1973) 1 SCC 216.

67 *Canada Sugar Refining Co v R,(1898) AC 735* (*741*).

68 *Madanlal v Changdeo Sugar Mills*, AIR 1962 SC 1548 (1551). **See also***Tahsildar Singh v State of UP,*AIR 1959 SC 1012 : 1959 (Supp-2) SCR 875.

69 *Administrator-General v Premlal*, (1895 : ILR 22 P.C. 788 : 22 IA 107 (115-6).

70 *Jewish Blind Society v Henning,(1961) 1 All ER 47*.

71 *Longhurst v Guildford Dt. Water Bd.,(1963) AC 265*; *A.G. v Augustus,(1957) 1 All ER 49* (HL).

72 *Brown v National Coal Bd.,(1962) AC 574*.

73 **See***Chief Justice, AP v LVA Dikshithalu,*AIR 1979 SC 193 : (1979) 2 SCC 34; *Forbes v Attorney General,(1937) 1 All ER 249*; *Ramanarayan Mor v State of Maharashtra,*AIR 1964 SC 949 : (1964) 5 SCR 1064; *Indian Iron and Steel Co*

*Ltd v Biswanath Sonar,*AIR 1967 SC 77 : 1966 (Supp) SCR 15; *K. Ramanathan v State of TN,*AIR 1985 SC 660 : (1985) 2 SCC 116i; *Bangalore Water Supply and Sewerage Board v A. Rajappa,*AIR 1978 SC 548 : (1978) 2 SCC 213; *Gramaphone Co of India Ltd v Birendra Bahadur Pandey,*AIR 1984 SC 667 : (1984) 2 SCC 534; *Banares Hindu University v Indra Pratap Singh,*AIR 1992 SC 780 : 1992 (Supp-2) SCC 2). **See also** Justice G P *Singh, Principles of Statutory Interpretation*, 9th Edn.

74 *Gopalan v State of Madras,*(1950) SCR 88 (109, KANIA C.J.); *Kihots v Zachilhu,* (1992) Supp. (2) SCC 651 (para 26) CB.

75 *Ullmann v U.S.,*(1955) 350 US 422 (*428*).

76 *Venkataramana v State of Mysore*, AIR 1958 SC 255 (*268*).

77 *Raj Krishna v Binod Kanungo,*AIR 1954 SC 202 : (1954) SCR 913; *Sulthana Begum v Premchand Jain,*AIR 1997 SC 1006 : (1997) 1 SCC 373; *Kailash Chandra v Mukundi Lal,*AIR 2002 SC 829 : (2002) 2 SCC 678; *CIT v Hindustan Bulk Carriers,*(2003) 3 SCC 57; *University of Allahabad v Amritchand Tripathi,*AIR 1987 SC 57 : (1986) 4 SCC 176; *Krishna Kumar v State of Rajasthan,*AIR 1992 SC 1789 : (1991) 4 SCC 258.

78 Justice Joseph *Story, Commentaries to the Constitution of United States*, Vol 1, 1833, pp 387-388.

79 Justice Oliver Wendell *Holmes, The Common Law*, Mark de Wolfe Howe, ed., 1963.

80 *Re. The C.P. & Berar Acts,*AIR 1939 FC 1.

81 *AG for N.S.W v Brewery Employees Union,*(1906) 6 CLR 469, pp 611-612. **See** H M *Seervai, Constitutional Law of India*, Universal Law Publishers, 4th Edn, Vol I, p 172.

82 **See***Sri Venkatarama Devam v State of Mysore,*AIR 1958 SC 255 : (1958) SCR 895.

83 **See** H M *Seervai, Constitutional Law of India*, Universal Law Publishers, 4th Edn, Vol I, p 218; **see also***Moinuddin v State of UP,*AIR 1960 Allahabad 484; *K.M. Nanavati v State of Bombay,*AIR 1961 SC 112; *Minerva Mills v UOI,*(1980) 3 SCC 625 : AIR 1980 SC 1789.

84 *Minerva Mills Ltd v UOI*, 1980 AIR 1989 : 1981 SCR (1) 206.

85 *Venkataramana v State of Mysore*, AIR 1958 SC 255 (*268*); *State of Madras v Champakam,*(1951) SCR 525 (*531*); *Quareshi v State of Bihar*, AIR 1958 SC 731 (*739*); *State of Bombay Education, Society,*(1955) 1 SCR 568 (*584*).

86 *State of Assam v Ranga Md.*, AIR 1967 SC 903.

87 ***Cf.****Sanjeevyya v Election Tribunal,*(1967) SC [CA 1/67, Dt. 27 January 1967] : AIR 1967 SC 1211: (1967) 2 SCR 147.

88 Cooley*, Constitutional Law, p* 427.

89 Willoughby, *Constitutional Law*, Pt I, p 65.

90 *A.G. for Ontario v A.G. for Canada,(1912) AC 571* (583).

91 *R.V. Bishop of Oxford,(1979) 4 QBD 245* (261). **See also***Aswini Kumar Ghose v Arabindo Ghose,*AIR 1952 SC 369; *UOI v Hansoli Devi,*AIR 2002 SC 3240 : (2002) 7 SCC 273; *Rao Shiv Bahadur Singh v State of UP,*AIR 1953 SC 394; *State of UP v Radhey Shyam,*AIR 1989 SC 682 : (1989) 1 SCC 591; *State of Maharashtra v Santosh Shanker Acharya,*(2000) 7 SCC 463 : AIR 2000 SC 2504; *Borosil Glen Work Ltd Employees' Union v D.D. Bambode,*AIR 2001 SC 378 : (2001) 1 SCC 350.

92 *Marbury v Madison,*(1803) 1 Cr 137 (*174*).

93 *U.S. v S.E. Underwriters Assn.,*(1944) 322 US 533.

94 *Gopalan v State of Madras,*(1950) SCR 88 (102).

95 *Stone v Corp of Yeovil,(1876) 1 CPD 691* (*701*); *Salmon v Duncombe,*(1886) 11 AC 627 (PC).

96 This maxim is more fully dealt with hereafter.

97 *Gopalan v State of Madras,*(1950) SCR 88 (*102*).

1 *I.R.C. v Dowdell,(1952) 1 All ER 531* (*537*) HL; *Shri Gopal v Calcutta S.E. Assocn.*, AIR 1964 SC 244 (*253-4*).

2 *Gokaraji Rangaraju v State of AP,*AIR 1981 SC 1473 : (1981) 3 SCC 132; *Walker (Inspector of Taxes) v Centaur Clothes Group Ltd,(2000) 2 All ER 589* (HL); *Hakim Ali v Board of Revenue,*AIR 1991 SC 972 : 1991 (Supp-1) SCC 565; *State of UP v UOI,*AIR 2003 SC 1147.

3 *Shri Gopal Jalan & Co v Calcutta Stock Exchange Assn.,*AIR 1964 SC 250; *Madanlal Fakir Chand Dudhediya v Shree Changdeo Sugar Mills Ltd,*AIR 1962 SC 1543 : 1962 (Supp-3) SCR 973).

4 *Knightsbridge v Byrne,(1940) AC 613* (*621*). **See also***Suresh Chand v Gulam Christo,*AIR 1990 SC 897 : (1990) 1 SCC 593; *Central Bank of India v Ravindra,*AIR 2001 SC 3095 : (2002) 1 SCC 367.

5 *Spencer v Metropolitan Board,(1882) 22 Ch D 142*.

6 *Re National Savings Bank,*(1866) 1 Ch A 547. **See also***D.N. Banerjee v P.R. Mukherjee,*AIR 1953 SC 58; *Subramania Iyer v Official Receiver,*AIR 1958 SC 1 : (1958) SCR 257; *Bangalore Water Supply & Sewerage Board v A. Rajappa,*AIR 1978 SC 548; *Banares Hindu University v Indra Pratap Singh,*AIR 1992 SC 780 : 1992 (Supp-2) SCC 2.

7 *Edinburgh St. Tramways v Torbain,(1878) 3 AC 58* (HL); Story on Constitution, Article 454; COOLEY, *Constitutional Limitations*, 1, 135. **See also***Ramanarayan Mor v State of Maharashtra,*AIR 1964 SC 949 : (1964) 5 SCR 1064; *Anand Nivas Pvt Ltd v Anandji Kalyanji Padhi,*AIR 1965 SC 414 : (1964) 4 SCR 892; *Samatha v State of AP,*AIR 1997 SC 3297 : (1997) 8 SCC 191; *Bhogild Chunnilal Pandya v State of Bombay,*AIR 1959 SC 356.

8 *Rajasthan State Electricity Board v Mohan*, AIR 1967 SC 1837 (*1861-3*); *Basheshar v CIT*, AIR 1959 SC 149 (*159*).

9 **Cf.***Article 12 of the Constitution of India*.

10 *Martin v Hunter's Lessee,*(1816) 1 Wh 304.

11 Maxwell, 9th Edn, p 324; *Bd. of Revenue v Benthall*, AIR 1956 SC 35 (*38*). **See** also *CIT v East West Import & Export Pvt Ltd,*AIR 1989 SC 836 : (1989) 1 SCC 760.

12 *Ramdas v Amarchand*, AIR 1916 PC 7; *Cramas Properties v Connaught Fur,*(1965) All ER 382 (387-7) HL.

13 *Taylor v Corp of Oldham,(1876) 4 Ch D 410*.

14 *State of Bombay v United Motors*, AIR 1953 SC 252 (*273*).

15 *Sher Khan v Swami Dayal,*(1921) 28 Cal WN 79 (*85*) (PC) : AIR 1922 PC 17. **See** also *Sanjeevayya v Election Tribunal,*AIR 1967 SC 1211 : (1967) 2 SCR 489; *Krishna Kumar v State of Rajasthan,*AIR 1992 SC 1789 : (1991) 4 SCC 258; *Sultana Begum v Premchand Jain,*AIR 1997 SC 1006 : (1997) 1 SCC 373; *CIT v Hindustan Bulk Carries,*(2003) 3 SCC 57. See *Minerva Mills v UOI,*AIR 1980 SC 1789 : (1980) 3 SCC 625; *Re. Kerala Education Bill,*AIR 1958 SC 956 : (1959) SCR 995; *State of TN v L. Abu Kavur Bai,*AIR 1984 SC 326 : (1984) 1 SCC 515.

16 *Warburton v Loveland,* (1828) 1 H&B 623.

17 *Nelson Motis v UOI,*AIR 1992 SC 1981 : (1992) 4 SCC 711; *Gurudevdutt VKSSS Maryadutt v State of Maharashtra,*AIR 2001 SC 1980 : (2001) 4 SCC 534.

18 *Whiteman v Sadler,(1910) AC 510* (*527*).

19 Crawford*, Statutory Construction, p* 333. **See also***Jose Augustine v State of Kerala,*AIR 1999 Kerala 293.

The maxim means that the express intention of one person or thing is the exclusion of another. Applying the maxim, the Supreme Court held that continuance of the existing legislation, in the absence of an express provision of repeal by implication lies on the person asserting the same. (*State of MP v Kedia Leather & Liquor Ltd,*(2003) 7 SCC 389 : AIR 2003 SC 3236; **see also***Delhi Abibhavak Mahasang v UOI,*AIR 1999 Del 124; *Rajaram Maize Products v M.P. Electricity Board,*AIR 1999 MP 44; *Kishorebhai Khamanchand Goyal v State of Gujarat,*(2003) 12 SCC 274 : AIR 2004 SC 1006; *Krishi Utpadan Mandi Samithi v Pilibhit Pantnagar Buj Ltd,*(2004) 1 SCC 391 : (2003) 10 Scale 432; *Khemka & Co (Agencies) Pvt Ltd v State of Maharashtra,*(1975) 2 SCC 22.

20 Bryan A. Garner, *Black's Law Dictionary,* 7th Edn, 1999.

21 Justice G.P. *Singh, Principles of Statutory Interpretation*,, 9th Edn 2004, pp 76, 77.

22 AIR 1950 SC 27 : 1950 SCR 88.

23 AIR 1975 SC 2299 : 1975 Supp SCC 1.

24 *Re* Delhi Laws Act, 1912, (1951) SCR 747 : (1960-51) CC 328 (*345, 349*), Mahajan & Mukherjee, JJ.

25 *Colquhoun v Books,(1889) 21 QBD 52* (*65*); *Dean v Wiesengrund,(1955) 2 All ER 432* (CA).

26 *Lowe v Dorling,(1906) 2 KB 722* (*784*).

27 *Gorham v Bishop of Exeter,(1850) 15 QBD 52* (*73*); *Burrow-Giles Lithogrphic Co v Sarony,*(1884) 111 US 53 (*57*).

28 *Colquhoun v Books,(1889) 21 QBD 52* (*65*); *Dean v Wiesengrund,(1955) 2 All ER 432* (CA).

29 *Lunt v London & N.W. Rly.,(1866) 1 QB 277*.

30 *Gorham v Bishop of Exeter,(1850) 15 QBD 52* (*73*); *Burrow-Giles Lithogrphic Co v Sarony,*(1884) 111 US 53 (*57*).

31 *Magistrates of Dunbar v Duchess of Roxburgh,*(1835) 3 Cl. & F. 325 (*354*).

32 *Doypack System Pvt Ltd v UOI,*AIR 1988 SC 782 : (1988) 2 SCC 299; **see also***J.K. Cotton Spg. & Wvg. Mills Ltd v UOI,*AIR 1988 SC 191; *Senior Electric Inspector v Laxminarayan Chopra,*AIR 1962 SC 159 : (1962) 3 SCR 146; *Raja Ram Jaiswal v State of Bihar,*AIR 1964 SC 828 : (1964) 2 SCR 528.

33 *R v Wandsworth London Borough Council, Exparte Beckwith,(1996) 1 All ER 129* (HL); *Indian Metals and Ferro Alloys Ltd v Collector of Central Excise,*AIR 1991 SC 1028 : 1991 (Supp-1) SCC 125; *Keshavji Ravji & Co v CIT,*AIR 1991 SC

1806; *Raymond Synthetics Ltd v UOI,*AIR 1992 SC 847 : (1992) 2 SCC 225; *Kasilingam v P.S.G. College of Technology,*AIR 1995 SC 1395 : 1995 Supp (2) SCC 348.

34 *Bhuwalka Steel Industries Ltd v Bombay Iron & Steel Labour Board,*(2010) 2 SCC 273; **see also***Employees State Ins. Corp v R.K. Swamy,*(1994) 1 SCC 445 : AIR 1994 SC 1154.

35 *Jamshed N. Guzdor v State of Maharashtra,*AIR 2005 SC 862 : (2005) 2 SCC 591.

36 *Golaknath v State of Punjab,*AIR 1967 SC 1643: (1967) 2 SCR 762.

37 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461: (1973) 4SCC 225.

38 *McPherson v Blacker,*(1892) 146 US 1; *Downes v Bidwell,*(1901) 182 US 244.

39 *Afzalur v Emp.,*(1943) FCR 7.

40 *Kesavananda Bharati v State of Kerala*, AIR 1973 SC 1461 : (1973) 4 SCC 225 (para 2016 of SCC)

41 *State of Bombay v United Motors*, AIR 1953 SC 252 (*246*) – **overruled on** another point in *Bengal Immunity Co Ltd v State of Bihar,*AIR 1955 SC 661 : (1955) 2 SCR 603.

42 Earl of Waterford's Claim, (1832) 6 Cl 8 F 133 (*172*).

43 *Mishrilal v Dhirendra Nath,*AIR 1999 SC 2286; *Janba v Gopikabai,*(2000) 4 SCC 1 : AIR 2000 SC 1771; *Saurashtra Cement and Chemical Industries v UOI,*AIR 2001 SC 8 : (2001) 1 SCC 91; *Darshan Singh v Rampal Singh,*AIR 1991 SC 1654 : 1992 (Supp-1) SCC 191; *Mahesh Ratilal Shah v UOI,*AIR 2010 SC 676 : (2010) 2 SCC 706; *State of Uttaranchal v Balwant Singh Choufal,*AIR 2010 SC 2550 : (2010) 3 SCC 402; *Abay Singh Chautala v CBI,*(2011) 7 SCC 141 : (2011) 6 Scale 658; *Ram Avatar Singh v Bansi,*AIR 1987 SC 987 : (1987) 2 SCC 482.

44 The doctrine of *stare decisis*" originated in England and is the basis of common law. It is also firmly rooted in American jurisprudence

45 *Campbell College v Commrs. of Valation,(1964) 1 WLR 912*.

46 *West Ham Union v Edmonton Union,(1908) AC 1* (*5*).

47 *R. v Edmundson,*(1859) 28 LJ MC 213 (*215*); *Powell v Kempton Park,(1899) AC 143*; *Evans v Cross,(1938) 1 KB 694*; *Chajju Ram v Neki*, AIR 1922 PC 112.

48 *Lilavati v State of Bombay*, AIR 1957 SC 521 (*529*). **See also***Hamdard Dawakhana v UOI,*AIR 1965 SC 1167 : (1965) 2 SCR 192; *Grasim Industries Ltd v Collector of Customs,*AIR 2002 SC 1706 : (2002) 4 SCC 297.

49 *London C.C. v Tann,(1954) 1 WLR 371*. **See***Shankarshaw Ramaiya Das Goswami v State of Orissa,*AIR 1967 SC 59.

50 *Tillimans & Co v Knutsford,(1908) AC 207*.

51 *Thakur Amarsingji v State of Rajasthan,*AIR 1955 SC 504; *Timblo Irmaos Ltd v Margao. v Jorge Anibal Motos Sequeira,*AIR 1977 SC 734 : (1977) 3 SCC 474.

52 *Abzal Ullah v State of UP,*AIR 1964 SC 26i4 : (1964) 4 SCR 991; *Shiv Kripal Singh v V.V. Giri,*AIR 1970 SC 2097 : (1970) 2 SCC 567.

53 *Siddeswari Cotton Mills Pvt Ltd v UOI,*AIR 1989 SC 1019 : (1989) 2 SCC 458.

54 AIR 1967 SC 1857 : (1967) 3 SCR 377.

55 Peter Benson *Maxwell, Interpretation of Statutes*, W Mazwell and son, 1883.

56 *K.C. Vasanth Kumar v State of Karnataka,*AIR 1985 SC 1495 : 1985 Supp SCC 714.

57 *Re Wellsted's Trusts,(1949) 1 All ER 577* (*587*).

58 *State of WB v Shaik Serajuddin Batley,*AIR 1954 SC 193 : (1954) SCR 378.

59 *State of WB v Shaik Searjuddin Batley*, AIR 1954 SC 193 : (1954) SCR 378.

60 *I.R.C. v Frere,(1965) AC 402*. See also *Leelabhai Gajanan Pansare v Oriental Ins. Co,*(2008) 9 SCC 720 : AIR 2009 SC 523; *State of Bombay v Hospital Mazdoor Sabha,*AIR 1960 SC 610 : [1960] 2 SCR 866; *Rainbow Steels Ltd v Sales Tax Commissioner,*AIR 1981 SC 2101 : (1981) 2 SCC 141; *Ajaib Singh v Punjab University,* AIR 2002 P & H 168; *K. Bhagirathi v K.P. Ballakurayya,*AIR 1999 SC 2143 : (1999) 4 SCC 135; *Chhanalal A. Patel v State of Gujarat,*AIR 1961 Guj 27; **see also***Rohit Pulp and Paper Mills Ltd v CCE,*(1990) 3 SCC 447; *K. Janardanan Pillai v UOI,*AIR 1981 SC 1485 : (1981) 2 SCC 45.

61 *Godfrey Phillips India Ltd v State of UP*, AIR 2005 SC 1103 : (2005) 2 SCC 515; **See also***State of Karnataka v UOI*, AIR 1978 SC 68: (1977) 4 SCC 608.

62 *Gorham v Bishop of Exeter,(1850) 15 QBD 52* (73).

63 *West Riding J.J. v R.,* (1883), 8 App Cas 781 (796).

64 *Gokaraju Rangaraju v State of AP,*AIR 1981 SC 1473 : (1981) 3 SCC 132; **see also***UOI v Charanjit S. Gill,*(2000) 5 SCC 742 : JT (2000) 5 SC 135.

65 *Gopalan v State of Madras,*(1950) SCR 88 (*100*).

66 **See** Author's Tagore Law Lectures, on *Ltd Government and Judicial Review, pp* 37, 88, 292.

67 *Jeffries v Alexander,*(1860) 8 HLC 594.

68 *Collins v Blantern,*(1767) 2 Wils KB 347.

69 *Crickitt v Casino,(1968) 1 WLR 53* (HL); *Chow Yoong v Choong Fah,(1962) AC 209* (PC).

70 *Rampati v State of UP,*AIR 1997 All 170.

71 *Swantraj v State of Maharashtra,*AIR 1974 SC 517 : (1975) 3 SCC 322; *CCE v Acer India Ltd,*(2004) 8 SCC 173 : AIR 2004 SC 4805; *Sant Lal Gupta v Modern Co-op. Group Housing Society,*(2010) 13 SCC 336 : (2010) 11 Scale 27; *Noida Entrepreneurs Assn. v NOIDA,*(2011) 6 SCC 508 : AIR 2011 SC 2112.

72 *R. v Morris,*(1867) LR 1 CCR 90 (95); *Leach v R.,* (1912) AC (*311*).

73 *Secy. of State v Bank of India,*(1938) 65 IA 286 (*298*).

74 Peter Benson Maxwell, *Interpretation of Statutes*, 12th Edn, p 116.

75 *Minet v Leman,*(1855) 20 Bear 269 : 52 ER 606.

76 AIR 1955 SC 604 : (1955) 2 SCR 374.

77 AIR 1921 All 149 : ILR (1921) 43 Allahabad 433.

78 *Bharat Petroleum Corp Ltd v Maddula Ratnawalli,*(2007) 6 SCC 81 : (2007) 6 Scale 353.

79 *R v Morris,*(1867) LR 1 CCR 90 (*95*).

80 *National Assistance Board v Wilinson,(1952) 2 All ER 255* (*259*).

81 *George v B.O.A.C.,(1955) AC 169* (*191*).

82 *Westminister Corp v L. & N.W.R. Co,(1905) AC 426* (*439*).

83 *Walsh v Secy. of State,*(1963) 10 HLC 637 (*386*).

84 *National Assistance Board v Wilkinson,(1952) 2 All ER 255* (*259*); *R. v Harrald,(1872) 7 QB 361*.

85 Re, *Boaler,(1915) 1 KB 21* (CA); *Leach v R.,(1912) AC 305* (*311*).

86 **See under***Article 31 of the Constitution of India*, *post*.

87 **See under***Articles 21*, *265*, *post.*

88 *Albon v Pyke,* (1842) 4 M&G 421 (*424*).

89 *Wolverhampton N.W. Co v Hawkesford,*(1859) 6 CB (NS) 336 (*356*). **See***Premier Automobiles Ltd v Kamlekar Shantaram Wadke,*AIR 1975 SC 2238: (1976) 1 SCC 496; *Rajasthan SRTC v Bal Mukund Bairwa,*(2009) 4 SCC 299 : (2009) 2 Scale 428.

90 *M.P. Electricity Board v Vijaya Timber,*AIR 1997 SC 2364 : (1997) 1 SCC 68; *Dhulabhai v State of MP,*AIR 1969 SC 78 : (1968) 3 SCR 662.

1 G P *Singh, Interpretation of States*, 9th Edn, 2004, p 670.

2 **See***Mafatlal Industries v UOI,*(1997) 5 SCC 536 : JT (1996) 11 SC 283.

3 AIR 1969 SC 78 : (1968) 3 SCR 662 (*supra*).

4 (1994) 6 SCC 241: AIR 1995 SC 94.

5 *Dayaram v Sudhir Batham,*(2012) 1 SCC 333 : AIR 2012 SC (Supplement) 678; **see also***Ramkanya Bai v Jagdish,*AIR 2011 SC 3258 : (2011) 7 SCC 452.

6 *Raichand Amulakh Shah v UOI,*AIR 1964 SC 1268 : (1964) 5 SCR 148.

7 *Nahar Industrial Enterprises Ltd v Hong Kong Shangai Banking Corp,*(2009) 8 SCC 646; for further comments **see** s .9 of the *Civil Procedure Code* (*Sarkar on Code of Civil Procedure, 1908*).

8 *O'Flaherty v M'Dowell,*(1957) 6 HCL 142 (*157*).

* Repealed by the *Government Securities Act, 2006* (38 of 2006).

9 *Secy. of State v Bank of India Ltd,*(1938) 65 IA 286.

10 *J.K. Jute Mills v State of UP*, AIR 1961 SC 1534; *Jawaharlal v State of Rajasthan*, AIR 1966 SC 764 (*770*).

11 *Thomson v Lack,(1846) 3 CB 540* (*550*).

12 *Re. Pulborough Parish School Board Election, Bourke v Nutt,(1894) 1 QB 725*; *Amireddi Raja Gopal Rao v Amireddi Sitaramamma,*AIR 1965 SC 1970 : (1965) 3 SCC 122; *Sri Vijayalakshmi Rice Mills v State of AP,*AIR 1976 SC 1471 : (1976) 3 SCC 37; *K. Gopinathan Nair v State of Kerala,*AIR 1997 SC 1925 : (1997) 10 SCC 1.

13 *N.K. Bajpai v UOI,*AIR 2012 SC 1310 : (2012) 4 SCC 653.

14 *Kerr v Alisa,*(1854) 1 Macq. 736; *Gardner v Lucas,(1878) 3 App. Cas 582* (601).

15 *Queen v Guardian,(1877) 2 QBD 547* 269; *Pritambar v Thakorsidas,* 7 Mad 109 PC; *Delhi Cloth Mills v CIT,*(1927) 32 Cal WN 237 (PC).

16 *Re Athlumney,(1898) 2 QB 547* (551).

17 *Lalmohan v Jogendra,* (1887) 14 Cal.

18 Re *Pulborough School Board,(1894) 1 QB 725(737)*; *Sadarali v Dalimuddin,*(1928) 52 Cal 512 (SB).

19 *Wright v Hale,*(1861) 30 LJ Ex 40.

20 *Venugopala v Krishnaswami*, AIR 1943 FC 24.

21 *Delhi Cloth Mills v CIT,*(1927) 32 Cal WN 237 (PC).

22 *Colonial Sugar Refining Co v Irving,(1905) AC 369*.

23 *Hoosein v State of MP,*(1953) SCR 987.

24 *Hutchinson v Jauncey,(1950) 1 All ER 165* (168) CA.

25 *State of Gujarat v Raman Lal Keshav Lal Soni*, AIR 1984 SC 161; (1983) 2 SCC 33; **see also***B.S. Yadav v State of Haryana*, AIR 1981 SC 561 : 1980 (Supp) SCC 524; **see also***T. Tulsi Das v Government. of AP*, AIR 2003 SC 43 : (2003) 1 SCC 364; *National Agricultural Co-op. Marketing Federation of India Ltd v UOI*, (2003) 5 SCC 23 : AIR 2003 SC 1329; *Railway Board v C.R. Rangadhamiah*, AIR 1997 SC 3828 : (1997) 6 SCC 623; *A.P. Dairy Development Co-op. Federation v B. Narasimha Reddy*, (2011) 9 SCC 286 : AIR 2011 SC 3298.

26 *Pinhorn v Sonster,(1852) 8 Ex 138* relied on in *Om Prakash v Motilal,*AIR 1958 All 409 (FB); *Rajputana Hotels Pvt Ltd v Pradeep Kumar Sriya,*AIR 1999 Raj 312.

27 *LIC v Escorts Ltd,*AIR 1986 SC 1370 : (1986) 1 SCC 264.

28 *P. Mahendran v State of Karnataka,*AIR 1990 SC 405 : (1990) 1 SCC 411; **see also***Zile Singh v State of Haryana*, (2004) 8 SCC 1 : AIR 2004 SC 5100; *Shiv Shakti Co-op. Housing Society v Swaraj Developers,*AIR 2003 SC 2434 : (2003) 6 SCC 659; *K. Kapen Chako v Provident Investment Co Pvt Ltd,*(1977) 1 SCC 593.

29 *Hoosein v State of MP,*(1953) SCR 987.

30 *Ganpat v Aggrawal Chamber of Commerce,*(1953) SCR 752.

31 *Lauri v Read,(1892) 3 Ch. 402* (*421*); Halsbury, *Hailsham Edn,* vol XXXI, pp 515-6.

32 *Shyam Sundar v Ram Kumar,*AIR 2001 SC 2472 : (2001) 8 SCC 24.

33 *UOI v Madan Gopal,*AIR 1954 SC 158 : (1954) SCR 541; *CCE v Ashoka Mills Ltd,*AIR 1990 SC 33 : (1989) 4 SCC 81; *Reliance Jute & Industries Ltd v CIT,*AIR 1980 SC 251 : (1980) 1 SCC 139.

34 *West Ramnad Electric Distribution Co Ltd v State of Madras,*AIR 1962 SC 1753 : (1963) 2 SCR 747; *State of Maharashtra v K.K.S. Ramaswamy,*AIR 1977 SC 2091 : (1977) 3 SCC 525; *Soni Devarajbhai Babubhai v State of Gujarat,*AIR 1991 SC 2173 : (1991) 4 SCC 298; *Kalpanath Rai v State,*AIR 1998 SC 201 : (1997) 8 SCC 733.

35 *Manibhai v Ladhamal,*(1951) SCJ 265.

36 Craies, *Statute Law, 6th Edn, p 386; Rattanlal v State*, AIR 1965 SC 444 (*446-7*).

37 *Janardan v State,*(1950) SCR 940 (946); *Ranjit v CIT*, AIR 1962 SC 92 (96).

38 *Keshavan v State of Bombay,*(1951) SCR 228 : AIR 1951 SC 128. **See also***Babu v Municipal Board,*AIR 1976 All 328; *Pannalal Binjraj v UOI,*AIR 1957 SC 397; *Guru Dutta Sharma v State of Bihar,*AIR 1961 SC 1684: (1962) 2 SCR 292; *Sri Jagadguru v Commissioner, HRC Endowments,*(1962) 8 SCR 252; *Rabindranath Bose v UOI,*AIR 1970 SC 470 : (1970) 1 SCC 84.

39 *Garikapati v Subbiah*, AIR 1957 SC 540 (*554*); *Dajisaheb v Shanker,*(1955) 2 SCR 872 (*876*).

40 *Republic Costa Rica v Erlanger,(1876) 3 Ch D 62* (*69*).

41 *River Wear Commrs. v Adamson,(1877) 2 App. Cas 743* (*752*). **See also***Delhi Cloth & General Mills Co v CIT, Delhi,*AIR 1927 PC 242; *Jose De Costa v Bascora Sadasiva Sinai Narconim,*AIR 1975 SC 1843 : (1976) 2 SCC 917; *Gurbachan Singh v Satpal Singh,*AIR 1990 SC 209 : (1990) 1 SCC 445; *Hidentra Vishnu Takur v State of Maharashtra,*AIR 1994 SC 2623 : (1994) 4 SCC 602.

42 *Purbanchal Cables & Conductors Pvt Ltd v Assam SEB,*AIR 2012 SC 3167 : (2012) 7 SCC 462 : (2012) 4 CTC 524.

43 Maxwell, *Interpretation of Statutes*, 11th Edn, p 216; **see also***Gurbachan Singh v Satpal Singh,*AIR 1990 SC 209 : (1990) 1 SCC 445; *Blyth v Blyth,(1966) 1 All ER 524* (HL).

44 *Dilip v Mohd. Azizul Haq,*AIR 2000 SC 1976 : (2000) 3 SCC 607.

45 **See** Justice G P *Singh, Principles of Statutory Interpretation*, 9th Edn, pp 443-44.

46 *Lachmandas v State of Bombay,*(1952) SCR 710.

47 *Colonial Sugar Refining Co v Irving,(1905) AC 369*. **See also***Hossein Kasam Dada (India) Ltd v State of MP,*AIR 1953 SC 221 : (1953) SCR 987; *Garikapati v N. Subhaih Choudhary,*AIR 1957 SC 540 (*supra*); *State of Bombay v Supreme General Film Exchange,*AIR 1960 SC 980; *Kasi Bai v Mahadu,*AIR 1965 SC 703; *Lakshmi Narayan v 1st Addl. Dt. Judge,*AIR 1964 SC 489 : (1964) 1 SCR 362.

48 *Hitchock v Way,*(1837) 6 A & E 943; Re *Joseph Ltd,* (*875*) 1 Ch D 43.

49 *A.G. v Theobald,(1890) 24 QBD 557*.

50 *Howard v Revenue Commissioners,(1942) 1 KB 389* (*398*).

51 *Bank Line v Capel,(1919) AC 435*.

52 *Mohd. Meera Labhai v Thirumalaya Gounder Ramaswami,*AIR 1966 SC 430 : (1966) 1 SCR 574.

53 *Maria Christian De Souza Sodder v Amria Zurana Periare Pinto,*AIR 1979 SC 1352 : (1979) 1 SCC 92.

54 *Anamika v Debt Recovery Appellate Tribunal,*(2001) AIHC (NOC) 19 (Karnataka).

55 Re *Williams & Stephney,(1891) 2 QB 257*; *Quilter v Mapleson,(1883) 9 QBD 672*.

56 *K.C. Mukherjee v Ramratan*, AIR 1923 PC 49.

57 *Garikapati v N. Subbiah Choudhary,*AIR 1957 SC 540 (*supra*); *R. Rajgopal Reddy v Padmini Chandrasekharan,*AIR 1996 SC 238; *Dy. Collector v S. Venketaramaiah,*(1996) 5 Scale 521; *Maharaja Chintamani Nath Shahdeo v State of Bihar,*AIR 1999 SC 3609 : (1999) 8 SCC 16; *Shyam Sundar v Ram Kumar,*AIR 2001 SC 2472 : (2001) 8 SCC 24.

58 *Mohd. Idris v Sat Narain,*AIR 1966 SC 1499; *CIT v Dhadi Sahu,*1993 AIR SCW 3578; *CIT v R. Sharadamma,*AIR 1996 SC 3199 : (1996) 8 SCC 388; *R. Kapilnath v Krishna,*AIR 2003 SC 565 : (2003) 1 SCC 444.

59 *Inacio Martines v Narayan Hari Naik,*AIR 1993 SC 1756 : (1993) 3 SCC 123; *Judith Fernandez (Mrs.) v Conceicao Anrtonio Fernandez,*AIR 1996 SC 2821 : (1996) 10 SCC 401; *United Bank of India v Abhijit Tea Co Pvt Ltd,*AIR 2000 SC 2957 : (2000) 7 SCC 357.

60 *Lalmohan v Jogendra,* (1887) 14 Cal.

61 **See under***Article 51 of the Constitution of India* (*post*).

62 *State of Bihar v Charushila*, AIR 1959 SC 1002 (*1010*).

1 *Vacher v Society of Compositors,(1913) AC 106* (*128*).

2 *Fenton v Thorley,(1903) AC 447*. **See also***Ward v Holman,(1964) 2 All ER 729*; *Manoharlal v State of Punjab,*AIR 1961 SC 418; *R v Galvin,(1987) 2 All ER 851*; *CIT v Ahmedbhai Umarbhai & Co,*AIR 1950 SC 134 : (1950) SCR 335.

3 *Ashwinikumar Ghose v Arabinder Bose,*AIR 1952 SC 369 : (1953) SCR 1; **see also***Pappatlal Shah v State of Madras,*AIR 1953 SC 274 : (1953) SCR 677; *Kedar Nath Bajoria v State of West Bengal,*AIR 1953 SC 404 : (1954) SCR 30.

4 *Re. Kerala Education Bill*AIR 1958 SC 956 : (1959) SCR 995; *Bishwambhar Singh v State of Orissa,*AIR 1954 SC 139 : (1954) SCR 842).

5 *Fletcher v Birkenhead Corp,(1907) Kb 205* (*218*).

6 *Martins v Fowler,(1926) AC 746* (PC).

7 *Martins v Fowler,(1926) AC 746* (PC); *Fletcher v Birkenhead Corp,(1907) KB 205* (*218*)**;***Bhinka v Charan*, AIR 1959 SC 960 (*966*); *State of Rajasthan v Leela*, AIR 1965 SC 954 (*956-7*).

8 *R. v Surrey,(1947) 2 All ER 276*; *Atiabari Tea Co v State of Assam*, AIR 1961 SC 418 (*419*); *Poppatlal v State of Madras*, AIR 1953 SC 274; *Frick v UOI*, AIR 1990 SC 689 (para 8). **See also***CIT v Ahmedbhai Umarbhai & Co,*AIR 1950 SC 134 : (1950) SCR 335.

9 *Bhinka v Charan Singh,*AIR 1959 SC 960 : (1959) (Supp-2) SCR 798.

10 *National Ins. Co Ltd v Sinitha,*AIR 2012 SC 797 : (2012) 2 SCC 356 : (2012) 1 LW 120 : (2011) 4 Ker LT 821.

11 *Tata Power Co Ltd v Reliance Energy Ltd,*(2009) 16 SCC 659 : (2009) 7 Scale 513.

12 *Frick India Ltd v UOI,*AIR 1990 SC 689 : (1990) 1 SCC 400; *Forage & Co (of Lushala) v Municipal Corp of Greater Bombay,*AIR 2000 SC 378 : (1999) 8 SCC 577; **see also***Eastern Coalfields Ltd v Sanjay Transport Agency,*(2009) 7 SCC 345 : (2009) 8 Scale 720; *Mohan Raj v Dibeswari Saikia,*(2007) 15 SCC 115 : AIR 2007 SC 232; *CCE v Saurashtra Chemicals Ltd,*(2007) 10 SCC 352.

13 *Iqbal Singh Marwah v Meenakshi Marwah,*AIR 2005 SC 2119 : (2005) 4 SCC 370 : (2005) Cr LJ 2161; *National Ins. Co v Sinithes,*AIR 2012 SC 797 : (2012) 2 SCC 356 (*supra*); *Tata Power Co Ltd v Reliance Engg. Ltd,*(2009) 16 SCC 659 (*supra*).

14 *Mathai v State of Kerala,*AIR 2005 SC 710 : (2005) Cr LJ 898 : (2005) 3 SCC 260.

15 *Raichurmetham Prabakar v Rawatmal Dugar,*AIR 2004 SC 3025 : (2004) 4 SCC 766; *N C Dhoundial v UOI,*AIR 2004 SC 1272 : (2004) 2 SCC 579.

16 *Oriental Ins. Co Ltd v Hansarjbhai v Kodala,*AIR 2001 SC 1832 : (2001) 5 SCC 175.

17 *Balraj v Jagatpat,*(1904) 26 All 393 (PC); *K. Emperor v Sadasiv,*(1947) 51 Cal WN 769 (PC).

18 *Nalinakhya v Shyam*, AIR 1953 SC 145 (*150*); *Western India Theatres v Municipal Corp*, AIR 1959 SC 586 (*589*); *Chandroji v CIT,*AIR 1970 SC 1582 (*1583*).

19 *Tata Power Co Ltd v Reliance Energy Ltd,*(2009) 16 SCC 659 : (2009) 7 Scale 513.

20 *Dalco Eng. Pvt Ltd v Satish Prabhakar Padhye,*AIR 2010 SC 1976 : (2010) 4 SCC 378; **see also***Atul Manubhai Parekh v CBI,*(2010) 1 SCC 603 : (2010) Cr LJ 2113 : (2009) 4 Ker LT 945.

21 *K.M. Nanavati v State of Bombay,*AIR 1961 SC 112 : (1961) 1 SCR 497 : (1961) 1 Cr LJ 173.

22 *Bengal Immunity Co v State of Bihar,*(1955) 2 SCR 603.

23 *Golak Nath v State of Punjab*, AIR 1967 SC 1643 (para 22).

24 **See** Author's Tagore Law Lectures on *Limited Government & Judicial Review*.

25 AIR 1973 SC 1461 : (1973) 4 SCC 225.

26 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461: (1973) 4 SCC 225 [per Khanna J]. **See also***Nandini Satpati v P L Dani,*AIR 1978 SC 1025 : (1978) 2 SCC 424; *Western India Theatres Ltd v Municipal Corp, Poone,*AIR 1959 SC 586 : 1959 (Supp-2) SCR 71; *Kalawati Bai v Soiryabai,*AIR 1991 SC 1581 : (1991) 3 SCC 410; *Board of Muslim Wakfs, Rajasthan v Radhakrishnan,*AIR 1979 SC 289 : (1979) 2 SCC 468.

27 *UOI v H.S. Dhillon,*AIR 1972 SC 1061: (1971) 2 SCC 779.

28 *Bengal Immunity Co Ltd v State of Bihar,*AIR 1955 SC 661 : (1955) 2 SCR 603.

29 *Duke of Devonshire v O'Comor,(1890) 24 QBD 468*. **See***Fuerst Day Lawson Ltd v Jindal Exports Ltd,*AIR 2011 SC 2649 : (2011) 8 SCC 333.

30 *Pugh v Ashutosh*, AIR 1929 PC 69 (*71*).

31 *Bihar State Electricity Board v Pulak Enterprises,*(2009) 5 SCC 641 : (2009) 5 Scale 611; **see also***Sree Durga Distributors v State of Karnataka,*AIR 2007 SC 1751 : (2007) 4 SCC 476.

32 *State of Maharashtra v Mana Adim Jamat Mandal,*(2006) 4 SCC 98 : (2006) 2 Ker LT 724 : AIR 2006 SC 3446.

33 *Shah Bhojraj Mills v Subhash*, AIR 1961 SC 1596 (*1600*).

34 *R N Sons v Asst. S T Commr.*, AIR 1955 SC 765 (*769*).

35 *Madras & Southern Maharatta Rly. Co v Bezwada Municipality,*AIR 1944 PC 71; *CIT, Mysore v Indo Merchantile Bank Ltd,*AIR 1959 SC 713 : 1959 (Supp-2) SCR 256; *S Sundaram Pillai v P Pattabiraman,*AIR 1985 SC 582 : (1985) 1 SCC 501.

36 *Motiram Ghelabhai v Jagannagar,*AIR 1985 SC 709 : (1985) 2 SCC 279.

37 *State of Kerala v Six Holiday Resorts Pvt Ltd,*(2010) 5 SCC 186 : (2010) 2 Scale 839.

38 *Rohitash Kumar v Om Prakash Sharma,*2012 AIR SCW 6157.

39 *Binani Industries Ltd v CCT,*(2007) 15 SCC 435 : (2007) 5 Scale 429.

40 *Holani Auto Links Pvt Ltd v State of MP,*(2008) 13 SCC 185 : (2008) 7 Scale 77.

41 *Mahim Patram Pvt Ltd v UOI,*(2007) 3 SCC 668 : (2007) 3 Scale 584.

42 *A.N. Sehgal v Raje Ram Sheoram,*AIR 1991 SC 1406 : 1992 (Supp-1) SCC 304; *Tribhuvandas Haribhai Tamboli v Gujarat Revenue Tribunal,*AIR 1991 SC 1538 : (1991) 3 SCC 442; *Kerala State Housing Board v Rampriya Hotels Pvt Ltd,*(1994) 5 SCC 672 : (1994) 3 Scale 565; *Ramesh Kumar Sharma v UOI,*(2006) 6 SCC 510; *Ali M.K. v State of Kerala,*(2003) 11 SCC 632; *Harshad Chiman Lal Modi v DLF Universal Ltd,*AIR 2005 SC 4446 : (2005) 7 SCC 791.

43 *Jennings v Kelly,(1940) AC 206* : *(1939) 4 All ER 464* (Hz).

44 *Tahsildar v State of UP*, AIR 1959 SC 1012 (*1022*).

45 *West Derby Union v Metropolitan Society,(1897) AC 647*. **See also***Binani Industries Ltd v CCT,* (2007) 15 SCC 435 : (2007) 5 Scale 429.

46 *CIT v I.M. Bank*, AIR 1959 SC 713 (*717*).

47 *Governor-General v Municipal Council*, AIR 1949 PC 39.

48 *No-Nail Cases v No- Nail Boxes,*(1903) 1 All ER 528 (CA); *Abdul v State of J&K*, AIR 1957 SC 281 (*284*).

49 *Sehgal v Kaje,* (1992) Supp (1) SCC 304 (paras 14-15).

50 *A.G. v Chelsea Waterworks,*(1731) 9 Fitz 195.

51 *Mullins v Treasurer of Surrey,*(1880) QBD 173.

52 *Province of Bombay v Hormusji*, AIR 1947 PC 220.

53 *King v Dominion Engg. Co Ltd,*AIR 1947 PC 94.

54 *Hindustan Ideal Ins. Co v L.I.C.*, AIR 1963 SC 1083 (*1087*).

55 *Mohan v UOI,*(1992) Supp. (I) SCC 594 (paras 77-78).

56 *State of Bombay v United Motors*, AIR 1963 SC 252 (*258*).

57 *S. Sundaram Pillai v Pattabhiraman,*AIR 1985 SC 582 : (1985) 1 SCC 591.

58 *Zakia Begum v Shanaz Ali,*AIR 2010 SC 3385 : (2010) 9 SCC 280.

59 *Vijaya Bank v Shyamal Kumar Lodh,*AIR 2010 SC 3563 : (2010) 7 SCC 635.

60 *Robinson v Barton,(1883) 8 AC 801* .

61 **See***Nimet Resources Inc. v Essar Steels Ltd,*(2009) 17 SCC 313 : (2007) 8 Scale 671.

62 *Life Insurance Corp v Crown Life Insurance,*AIR 1965 SC 1985 : (1965) 3 SCR 474.

63 *Knightsbridge Estates v Byrne,(1940) AC 613*.

64 *Jobbins v Middlesex County Council,(1948) 2 All ER 610* (*620*) (CA).

65 **See***Kasilingam v PSG College of Technology,*AIR 1995 SC 1395 : 1995 Supp (2) SCC 348; *Vanguard Fire & General Ins. Co Ltd v Fraser & Ross,*AIR 1960 SC 971 : [1960] 3 SCR 857; *UOI v Assn. of Unified Telecom Service Providers of India,*(2011) 10 SCC 543 : AIR 2012 SC 1693; **see also***DDA v Bhola Nath Sharma,*AIR 2011 SC 428 : (2011) 2 SCC 54.

66 *Dilworth v Commr. of Stamps,(1899) AC 99* (*105-6); Reynolds v CIT,(1967) AC 1* .

67 *State of Bombay v Hospital Mazdoor Sabha*, AIR 1960 SC 610 (*614*). **See also***Bhulwalka Steel Industries Ltd v Bombay Iron and Steel Labour Board,*(2010) 2 SCC 273 : (2009) 14 Scale 623.

68 *Gollaleshwar Dev v Gangarwa Kom Shantalykya Math,*AIR 1986 SC 231: (1985) 4 SCC 393.

69 *South Gujarat Roofing Tile Manufacturers' Assn. v State of Gujarat,*AIR 1977 SC 90 : (1976) 4 SCC 601; *Reserve Bank of India v Peerless General Finance & Investment Co Ltd,*AIR 1987 SC 1023 : (1987) 1 SCC 424.

70 **See** Justice G P *Singh, Principles of Statutory Interpretation*, 9th Edn, 2004, p 168.

71 *Shah Bhojraj Mills v Subhash*, AIR 1961 SC 1596 (*1600*).

72 *Agricultural and Processed Food Products v UOI,*AIR 1996 SC 1947 : (1996) 4 SCC 297; *Shah Bhojraj Kuverji Oil Mills v Sulabh Chandra Yograj Sinha,*AIR 1961 SC 1596.

73 *A.G. v Lamplough,(1878) 3 Ex D 214* (*229*).

74 *Deen v Green,(1881) 8 PD 79* (*89*).

75 *Ujagar Prints v UOI,*AIR 1989 SC 516 : (1989) 3 SCC 488; *Aphali Pharmaceuticals v State of Maharashtra,*AIR 1989 SC 2227 : (1989) 4 SCC 378.

76 **See***Ujagar Prints v UOI,* (*supra*); *Aphali Pharmaceuticals* (*supra*).

77 **See***CIT, West Bengal v Calcutta National Bank Ltd,*AIR 1959 SC 928 : 1959 Supp(2) SCR 660; *Ujagar Prints* (*supra*); *Aphali Pharmaceuticals* (*supra*).

78 *Aphali Pharmaceuticals Ltd v State of Maharashtra* (*supra*).

79 *Anardevi v Nathuram,*JT (1994) 4 SC 164 : (1994) 4 SCC 250; *CIT v Ajanta Electricals,*1995 AIR SCW 3378.

80 **Cf**. *Cajee v Jormanik*, AIR 1961 SC 276.

81 **Cf**. *R. v Legal Aid Committee,(1967) 2 QB 482*.

82 *State of UP v Vijay Anband Maharaj,*AIR 1963 SC 946; (1963) 1 SCR 1; *Om Prakash Gupta v Dig Vijendrapal Gupta,*AIR 1982 SC 1230 : (1982) 1 SCC 61; *Jitendra Tyagi v Delhi Admn.,*AIR 1990 SC 487 : (1989) 4 SCC 653; *Oswal Agro Mills Ltd v CCE,*AIR 1993 SC 2288 : 1993 (Supp-3) SCC 716; *Council of Homeopathic System of Medicine v Suchintan,*AIR 1994 SC 1761 : 1993 (Supp-3) SCC 99.

83 *Satheedevi v Prasanna,*AIR 2010 SC 2777 : (2010) 5 SCC 622; *Shanker Raju v UOI,*(2011) 2 SCC 132.

84 *CIT v Sodra Devi*, AIR 1957 SC 832 (*835*).

85 *Newbury Dt. Council v Secretary of State for Environment,(1980) 1 All ER 731* (HL).

86 *Utkal Contractors and Joinery Pvt Ltd v State of Orissa,*AIR 1987 SC 1454 : (1987) 3 SCC279; *Oriental Ins. Co Ltd v Hansrajbhai v Kodala,*AIR 2001 SC 1832 : (2001) 5 SCC 175.

87 *D. Saibaba v Bar Council of India,*AIR 2003 SC 2502 : (2003) 6 SCC 186; *Ibrahimpatnam Taluq Vyavasaya Coolie Sangam v K. Suresh Reddy,*(2003) 7 SCC 667 : AIR 2003 SC 3592.

88 *Holme v Guy,(1877) 5 Ch D 901* (1905); *Herron v Rathmines Commissioners,(1892) AC 498*; *Baxter v Commissioner,*(1907) 4 CLR 1087 (*1109*); *Kathi Ranning v State of Saurashtra,*(1953) SCR 435.

89 *Heydon's case,*(1584) 3 Co Rep 7a (*7b*).

90 *Magor & St. Mellons v Newport Cotton,*(1951) All ER 839 (*841*) HL

91 *Nokes v Doncaster Collieries,*(1940-3) All ER 549; *Kanai Lal v Paramnidhi*, AIR 1957 SC 907 (*910*); **see also***Chandra Mohan v State of UP*, AIR 1966 SC 1987 (1993, para 14); *State of Punjab v Okara*, AIR 1964 SC 669 (*684-5*); *Kanwar Singh v Delhi Administration,*(1965) I SCW 896 (*902*).

92 AIR 1957 SC 832 : (1958) SCR 1 (*supra*).

93 AIR 1957 SC 907 : (1958) SCR 360.

94 *(1975) 1 All ER 16* (HL).

95 **See** Justice G P *Singh, Principles of Statutory Interpretation*, 9th Edn 2004, p 119.

96 *Miller v Salomons,(1853) 7 Ex 475* : 8 Ex 778; *Bank of England v Vaglino,*(1891) App. Cas 107 (*144-5*).

97 *A.G. for Northern Ireland v Gallaghar,(1963) AC 349* (*366*); *A.G. v Prince Augustus,* (1957) AC (*467-8*).

98 *Eastman Photographic Co v Comptroller General,(1898) AC 571* (*576*); *Herron v Ratharines,(1892) AC 498* (*502*); *River Weir Commrs. v Adamson,(1877) 2 App Cas 743* (*763*); *Prath v Cook,(1939) 1 KB 364* (*382*).

1 *Anderton v Ryon,(1985) 2 All ER 355* (HL); *Mandal Revenue Officer v Goundha Venkaiah,*AIR 2010 SC 744 : (2010) 2 SCC 461.

2 *Tata Power Co Ltd v Reliance Energy Ltd,*(2009) 16 SCC 659 : (2009) 7 Scale 513.

3 *Sindhi Education Society v Chief Secretary, Govt. of NCT of Delhi,*(2010) 8 SCC 49 : (2010) 7 JT 98.

4 *Surjit Singh v MTNL,*AIR 2008 SC 2226 : (2009) 16 SCC 722; **see also***Afcom Infrastructures Ltd v Cherian Varkey Construction Co Ltd,*(2010) 8 SCC 24 : (2010) 7 Scale 293.

5 *State of Kerala v Mathew Vargheese,*AIR 1987 SC 33 : (1986) 4 SCC 593.

6 *Aslam Babalal Desai v State of Maharashtra,*AIR 1993 SC 1 : (1992) 4 SCC 272; *Bijay Kumar Agarwala v State of Orissa,*AIR 1996 SC 2531 : (1995) 5 SCC 1.

7 *Anderton v Ryan,(1985) 2 All ER 355* (HL) (*supra*).

8 *(1986) 2 All ER 334* (HL)

9 *Maunsell v Olins,(1975) 1 All ER 16* (*supra*); *R v Secretary for the Environment ex parte Spath Home,(2001) 1 All ER 195* (HL); **see also** Justice G P *Singh, Principles of Statutory Interpretation*, 9th Edn 2004.

10 *Grid Corp of Orissa Ltd v Eastern Metals & Ferro Alloys,*(2011) 11 SCC 334 : (2010) 9 JT 404.

11 *Prigg v Pennsylvania,* 4645 (16 Pet) 539 (1842).

12 *Re Acronautics, (1932)* AC 54 *(70).*

13 *Garikapati v Subbiah*, AIR 1957 SC 540 *(554).***See also***State of Bombay v Supreme General Film Exchange,*AIR 1960 SC 980 : [1960] 3 SCR 640; *Kasibai v Mahadu,*AIR 1965 SC 703 : (1965) 2 An WR 116; *Laxmi Narayan v I Addl. Dt. Judge,*AIR 1964 SC 489 : (1964) 1 SCR 362; *ColonialSugar Refining Co v Irving,(1905) AC 369* (PC).

14 *Bengal Immunity Co v State of Bihar*, AIR 1955 SC 661 (*674*).

15 *Daji Saheb v Shanker Rao,*AIR 1956 SC 29 : (1955) 2 SCR 872; *Jose De Costa v Bascora Sadasiva Sinai Narconim,*AIR 1975 SC 1843 : (1976) 2 SCC 917.

16 *Ganapat Rai Hiralal v Chamber of Commerce,*AIR 1952 SC 409 : (1953) SCR 752.

17 *Janapada Sabha v C.P. Syndicate*, AIR 1971 SC 57 (*60*).

18 *Heydon's case,*(1584) 3 Co Rep 7a (*7b*).

19 *Escoign Properties v I.R.C.,(1958) AC 549* (*566*) HL.

20 *Herron v Rathmines Commr.,(1892) AC 498* (HL).

21 *Viscount Rhondda's case,(1922) 2 AC 339* (HL).

22 *Assam Rys. v I.R. Commrs.,*(1934) All ER 646 (*655*) HL.

23 *Hollinshead v Hazleton,* (*1914-5*) All ER 1117 (*1121*) HL.

24 *Magor R.D.C. v Newport Corp,(1951) 2 All ER 839* (*841*) HL.

25 *Katikiro v A.G.,(1960) 3 All ER 849* (*885*) PC.

26 *Eastman Co v Comptroller-General of Patents,(1898) AC 571*; *Assam Rys. v I.R.C.,(1935) AC 445(458*); *Ladore v Bennet,*(1939) 4 All ER 98 (*101*) PC; *Pillai v Mudnayake,(1955) 2 All ER 833* (*837*) PC.

27 *Trivedi v State of Gujarat*, AIR 1986 SC 1423 (para 31); *State of Madras v Gannon*, AIR 1958 SC 560.

28 *I.R.C. v Dowdall O'Mahoney & Co,(1952) AC 401* (*426*).

29 *Kammins v Zenith Investments,*(1970) 2 All ER 670 (HL); *A.G. v Jobe,(1985) LRC (Const.) 556* (*565*) PC (from Gambia); *Oug v P.P.,(1981) AC 648* (PC).

30 *Bucanan v Babco,(1977) 1 All ER 518* (CA).

31 *R.M.D.C. v UOI*, AIR 1957 SC 628 (*632,* para 10); *Aswini v Arabinda,*(1953) SCR 1 (*28*); *Central Bank of India v Workmen*, AIR 1960 SC 12 (*21*); *Jialal v Delhi Administration*, AIR 1962 SC 1781 (*1787).*

32 *Administrator-General v Prem Lal,*(1895) 22 IA 107 (*118*); *Krishna v Nallaperumal,*(1919) 47 IA 33 (*42*).

33 *Vajravelu v Sp. Dy. Collector*, AIR 1965 SC 1017 (*1021*).

34 *State of West Bengal v Subodh Gopal,*(1954) SCR 587 (*628*); *State of West Bengal v UOI*, AIR 1963 SC 1241 (*1247*); *Kochuni v State of Madras*, AIR 1960 SC 1080 (*1087*); *Ranganathan v Govt. of Madras*, AIR 1955 SC 604; *Jeevraj v Madras Chillies Workers Union*, AIR 1969 SC 530. **See also***Vargheese K. Joseph v Custodian,*AIR 2011 SC 832 : (2011) 3 SCC 394; *Diwan Chand Builders & Contractors v UOI,*(2012) 1 SCC 101 : (2012) 1 CTC 421; *National Seeds Corp Ltd v M. Madhusudan Reddy,*AIR 2012 SC 1160 : (2012) 2 SCC 506; *Eureka Forbes Ltd v Allahabad Bank,*(2010) 6 SCC 193 : (2010) 4 Scale 625; **see also***A. Manjula Bhasin v A.P. Women's Co-op. Financial Corp Ltd,*(2009) 8 SCC 431 : AIR 2010 SC 3143; *State of Maharashtra v Bharat Shanti Lal Shah,*(2008) 13 SCC 5; *Bharat Glass Tube Ltd v Gopal Glass Works Ltd,*AIR 2008 SC 2520 : (2008) 10 SCC 657; *State of Gujarat v Mirzapur Moti Kureshi Kassab Jamat,*AIR 2006 SC 212 : (2005) 8 SCC 534.

35 *K.K. Kochunni v State of Madras & Kerala,*AIR 1960 SC 1080 : (1960) 3 SCR 887.

36 *A. Thangavel Kunju Musaliar v M. Venkatachalam Poti,*AIR 1956 SC 246 : (1955) 2 SCR 1196; *Sashikant Lakshman Kale v UOI,*AIR 1990 SC 2114 : (1990) 4 SCC 366; *Bhaiji v Sub Divisional Officer,*(2003) 1 SCC 692 : (2002) 9 Scale 467.

37 *Raymond Ltd v State of Chattisgarh,*AIR 2007 SC 2854 : (2007) 3 SCC 79; *S.S. Bola v B D Sardana,*AIR 1997 SC 3127 : (1997) 8 SCC 522; *State Bank Staff Union (Madras Circle) v UOI,*AIR 2005 SC 3446 : (2005) 7 SCC 584.

38 **Cf**. *Chamarbaugwala v UOI*, AIR 1957 SC 628 (para 6).

39 *Shivanarayan v State of Madras*, AIR 1967 SC 986; *Sevantilal v CIT*, AIR 1968 SC 697.

40 *Prashar v Vasantsen*, AIR 1963 SC 1856 (*1867, 1871*).

41 *Ranganathan v Govt. of Madras,*(1955) 2 SCR 374 (*385*); *CIT v Sodra Devi*, AIR 1957 SC 832 (*839,* para 25).

42 *Kochuni v State of Madras*, AIR 1960 SC 1080 (*1086, para 15).*

43 *Vajravelu v Sp. Dy. Collector*, AIR 1965 SC 1017 (*1021,* para 10).

44 *Kochuni v State of Madras*, AIR 1960 SC 1080 (*1086, para 15).*

45 **Cf**. *Sutaria v Bhanvadia*, AIR 1970 SC 765 (*767*).

46 *R. v Hall,(1822) 107 ER 47* (51) : The Lion, *(1869) 16 ER 688* (PC); *Workmen v Management, D.T.E.*, AIR 1958 SC 353 (*356*); *State of UP v Tobit*, AIR 1958 SC 414 (*416*). *Ramji v State of Bihar*, AIR 1962 SC 1088 (*1091*); *Kanwar v Delhi Administration*, AIR 1965 SC 871 (*874*); *New India Sugar Mills v C.S.T.*, AIR 1963 SC 1207 (*1213*).

47 *Heydon's case,*(1584) 3 Co Rep 7a (*7b*).

48 *Duparguet v Evans,*(1935) 80 Ed. 591 (*594*).

49 *Maxwell v Dow,*(1899) 176 US 581.

50 *Cooper v UOI*, AIR 1970 SC 564 (para 99).

51 *Vide pp* 324 *et seq.* of Author's Tagore Law Lectures on *Limited Government and Judicial Review.*

52 *Jullunder Manufacturers' Assocn. v UOI*, AIR 1970 SC 1589 (*1596*). **See also***UOI v Nitdip Textile Processsors Pvt Ltd,*(2012) 1 SCC 226 : (2011) 12 Scale 386 (*supra*); *Mandvi Co-op. Bank Ltd v Nimash B. Thakore,*AIR 2010 SC 1402 : (2010) 3 SCC 83: (2010) 1 CTC 693 : (2010) 1 Ker LT 32; *A P Dairy Development Co-op. Federation v B. Narasimha Reddy,*(2011) 9 SCC 286 : AIR 2011 SC 3298.

53 *State of WB v UOI*, AIR 1963 SC 1241, Sinha C.J.

54 **Cf**. *R. v Bishop of Oxford,(1879) 4 QBD 525*; *Assam Rys. v I.R.C.,*(1934) All ER 646 (*655*) HL; *Magor R.D. C. v Newport Corp,(1951) 2 All ER 839* (*841*) HL.

55 *Lim v I.G.P.,(1988) LRC (Const.) 477* (*483*) Malaysia.

56 *R. v Hosenball,(1977) 3 All ER 452*.

57 *Pepper v Hart,(1993) 1 All ER 42* (HL).

58 **See also***Warwickshire County Council v Johnson,(1993) 1 All ER 299* (HL); *Stubbings v Webb,(1993) 1 All ER 322* (HL); *Chief Adjudicating Officer v Foster,(1993) 1 All ER 705* (HL).

59 *R v Secretary of State for Foreign Exchange and Commonwealth Affairs,(1994) 1 All ER 457*; *State of MP v Dadabhoy's New Chirmiri Ponri Hill Colliery Co Pvt Ltd,*AIR 1972 SC 614 : (1972) 1 SCC 298; **see also***UOI v Steel Stock Holdings Syndicate,*AIR 1976 SC 879: (1976) 3 SCC 108; *Mandvi Co-op. Bank Ltd v Nimash B. Thakore,*AIR 2010 SC 1402 : (2010) 3 SCC 83 : (2010) 1 CTC 693 : (2010) 1 Ker LT 32 (*supra*).

60 *Chiranjit Lal v UOI*, AIR 1951 SC 41 (*45-6*); *Musaliar v Venkatachalam*, AIR 1956 SC 246 (*265*).

61 Re *Madhu Limaye*, AIR 1969 SC 1014 (*1018*, para 11).

62 *Sub-Committee v UOI,*(1991) 4 SCC 699 (paras 46, 144, 150-51) CB.

63 *U.S. v Trans-Missouri Freight Assocn.,*(1897) 166 US 290 (*318*).

64 *Gopaln v State of Madras,*AIR 1950 SC 27 : (1950) SCR 88.

65 *Gopalan v State of Madras*, (1950) SCR 88 (201-2); *State of TC v Bombay Co*, AIR 1952 SC 366 (368-9); *Golak Nath v State of Punjab*, AIR 1967 SC 1643 (1682; 1728); *State of WB v UOI*, AIR 1963 SC 1241 (1247); *Aswini v Arabinda*, AIR 1952 SC 369.

66 *Indra Sawhney v UOI,*AIR 1993 SC 477: 1992 Supp (3) SCC 217. **See also***Aruna Roy v UOI,*AIR 2002 SC 3176: (2002) 7 SCC 368; *TMA Pai Foundation v State of Karnataka,*AIR 2003 SC 355: (2002) 8 SCC 481; *Balaji Raghavan v UOI,*AIR 1996 SC 770: (1996) 1 SCC 361; *Kesava Bharathi v State of Kerala,*AIR 1973 SC 1461 (1973) 4 SCC 225; *S.R. Chaudhuri v State of Punjab,*AIR 2001 SC 2707: (2001) 7 SCC 126; *B R Kapur v State of TN,*AIR 2001 SC 3435: (2001) 7 SCC 231; *A.K. Gopalan v State of Madras,*AIR 1950 SC 27 : (1950)SCR 88; *Golak Nath v State of Punjab,*AIR 1967 SC 1643 (1967) 2 SCR 762.

67 *UOI v Harbhajan Singh Dhillon,*AIR 1972 SC 1061 : (1971) 2 SCC 779.

68 *A V S. Narasimha Rao v State of AP,*AIR 1970 SC 422 : (1969) 1 SCC 839; *Ajit Singh v The State of Punjab,*AIR 1999 SC 3491 : (1999) 7 SCC 209.

69 *Builders' Assn. of India v UOI,*AIR 1989 SC 1370 : (1989) 3 SCC 98).

70 *Marrichandra Shekhar Rao v Dean Seth G.S. Medical College,*(1990) 3 SCC 13; *State of Maharashtra v Milind,*AIR 2001 SC 303 : (2001) 1 SCC 4.

71 *Millar v Taylor*, (1769) 4 Burr 2303 (2308); *Viscount Rhondda's Case*, *(1922) 2 AC 339* (383, 390) *HL; A.G. v Augustus*, *(1957) 1 All ER 49* (61) HL; *Administrator-Genl. v Premlal*, (1895) 22 Cal 788 (799-800) PC. But some use of Parliamentary proceedings was made in *Hebbert v Purchas*, (1871) LR 3 PC 605.

72 *Gosselin v R,*(1903) SCC 255 (264) (Can.).

73 *Standard Oil Co v U.S.*, (1911) 221 US 1 (50); *Fed. Trade Comm. v Raladom Co,*(1930) 283 US 643 (650). **See also***Federal Trade Commission v Raladem Co,* 75 Law Ed. 1324.

74 *U.S. St. Paul Ry*., (1919) 247 US 310 (316).

75 *Caminetti v U.S*., (1918) 242 US 247.

76 **See** Charles Henry *Alexandrowicz, Constitutional Developments in India*, p 14.

77 *McCulloch v Maryland*, (1819) 4 Wh. 316.

78 *Romesh v State of Madras*, AIR 1950 SC 124 (*128*).

79 *State of TC v Bombay Co*, AIR 1952 SC 366 (*368*).

80 pp. 110-1 of (1950) SCR 88; Shastri and Mukherjea, JJ. also referred to the Report to come to the same conclusion [A 1950 SC 27 (*70, 73, 98, 100-1*)].

81 *Express Newspapers v UOI*, AIR 1958 SC 578 (*622*).

82 *State of Trav. Cochin v Bombay Co,*(1952) SCR 1112 (*1121*).

83 *Assam Rlys. v Inland Rev. Commrs.,(1935) AC 445*; *A.G. for Br. Columbia v A.G. for Canada*, AIR 1937 PC 91; *State of WB v UOI*, AIR 1936 SC 1241 (*1247*). **See also***Zee Telefilm v UOI,*AIR 2005 SC 2l677 : (2005) 4 SCC 649; *S.R. Choudhari v State of Punjab,*AIR 2001 SC 2707 : (2001) 7 SCC 126; *UOI v Tulsiram Patel,*AIR 1985 SC 1416 : (1985) 3 SCC 398; *B R Kapoor v State of TN,*AIR 2001 SC 3435 : (2001) 7 SCC 231; **see also***Aruna Roy v UOI,*AIR 2002 SC 3176 : (2002) 7 SCC 368; *Re. Gujarat Assembly Election – Special Ref. No. 1 of 2002*AIR 2003 SC 87 : (2002) 8 SCC 237; *Prof. Yashpal v State of Chattisgarh,*AIR 2005 SC 2026 : (2005) 5 SCC 420; *Balaji Raghavan v UOI,*AIR 1996 SC 770 : (1996) 1 SCC 361.

84 *Golak Nath v State of Punjab*, AIR 1967 SC 1643 (*1657*).

85 *Golak Nath v State of Punjab*, AIR 1967 SC 1643, 1682, para 92.

86 (2010) 5 SCC 538(2010) 5 JT 166.

87 *Indra Sawhney v UOI,*(1992) Supp. (3) SCC 217 (para 772) – 9 Judge Bench.

88 *Assam Rlys. v I.R.C.,(1935) AC 445* (*458*); *Letang v Cooper,(1964) 2 All ER 929* (*933*) CA; In *Beswick v Beswick,(1968) AC 58* (*105*), Lord Upjohn referred to the Report of the Joint Committee of Parliament for the purpose of interpreting the Law of Property Act 1925, but this has been characterised as “exceptional” in Maxwell (2th Edn), p 51.

89 In an old case, the report of a statutory commission was rejected to arrive at a conclusion contrary to the intention of Parliament which had acted upon that report [*Farley v Bonham,*(1861) 30 LJ Ch 239]

90 *Eastman Photographic Materials v Comptroller-General,(1898) AC 571* (*576*) HL; *Ladore v Bennett,*(1939) 4 All ER 98 (*100*); *Pillai v Mudanayake,(1955) 2 All ER 833* (*837*) PC.; *Musaliar v Venkatachalam,*AIR 1956 SC 246 (*259*); *Madanlal v Changdeo Sugar Mills,*AIR 1962 SC 1543 (*1553*); *Kshatriya v UOI,*AIR 1963 SC 1591; *Arunachala v State ofMadras,*AIR 1959 SC 300 (*302-5*).

91 *Katikiro v A.G.,(1960) 3 All ER 849* (*855*) PC.

92 *S. Carolina v Katzenbach,*(1966) 383 US 301; **see also***Duparauet Co v Evans,* (1935) 297 US (*220-1*).

93 White Paper, *Law Commission,* p 21.

94 *Mithilesh v Prem,*(1989) 2 SCJ 98 (paras 15-16); *Santa v State of Punjab,*(1977) 1 SCJ 45.

95 *UOI v Rakesh Kumar,*AIR 2010 SC 3244 : (2010) 4 SCC 50.

96 *B P Singhal v UOI,*(2010) 6 SCC 331 : (2010) 5 JT 640.

97 *R S Nayak v A R Antulay,*AIR 1984 SC 684 : (1984) 2 SCC 183; **see also***Haldiram Bhujawala v Anand Kumar Deepak Kumar,*AIR 2000 SC 1287 : (2000) 3 SCC 250; *Allahabad Bank v Canara Bank,*(2000) 4 SCC 406 : AIR 2000 SC 1535; *Shrimant Shamrao Suryavanshi v Prahlad Bhaidrob Suryvanshi,*AIR 2002 SC 960 : (2002) 3 SCC 676; *Mithilesh Kumari v Prem Bihari Khare,*AIR 1989 SC 1247 : (1989) 2 SCC 95; *Waliram Waman Hiray (Dr.) v Mr. Justice B. Lenin,*AIR 1988 SC 2267 : (1988) 4 SCC 419; *Sante Singh v State of Punjab,*AIR 1976 SC 2386 : (1976) 4 SCC 190; *Ravinder Kumar Sharma v State of Assam,*AIR 1999 SC 3571 : (1999) 7 SCC 435; *Rajkishore Prasad v State of Bihar,*AIR 1996 SC 1931 : (1996) 4 SCC 495.

98 *Samatha v State of AP,*AIR 1997 SC 3297 : (1997) 8 SCC 191.

99 *Gopalan v State of Madras*, AIR 1950 SC 27 (*38*).

1 *Abbot v Middleton,(1858) 28 LJ Ch 110* (*114*) HL.

2 *Nagendra v Suresh*, AIR 1932 PC 165 (*167*).

3 *River Weir Commrs. v Adamson,(1877) 2 App Cas 743* (*763*); see Author's Tagore Law Lectures on *Limited Government and Judicial Review*.

4 *Gompers v U.S.,*(1914) 233 US 604 (*610*).

5 *R C Poudyal v UOI,*AIR 1993 SC 1804: 1994 (Supp-1) SCC 324; **see also***Special Reference 1 of 2002 (under Article 143(1) of the Constitution),*AIR 2003 SC 87 : (2002) 8 SCC 237.

6 quoted in *Ajit Singh v State of Punjab,*AIR 1999 SC 3471 : (1999) 7 SCC 209; *Special Reference No. 1 of 2002 under Article 143(1) of the Constitution,*AIR 2003 SC 87 : (2002) 8 SCC 237.

7 Brande's papers, Harvard Law School, as extracted in *Ajit Singh's case (supra).*

8 *Prafull Goradia v UOI,*(2011) 2 SCC 568 : (2011) 1 CTC 747 : (2011) 3 LW 44 : (2011) 1 Ker LT 584.

9 **See,** for instance, Re *Madhu Limaye*, AIR 1969 SC 1014 (*1018*) and *State of MP v Sobharam*, AIR 1966 SC 1910 as to the interpretation of *Article 22*(*1*) of the Indian *Constitution*.

10 *Gopalan v State of Madras*, AIR 1950 SC 27 (*38*).

11 The decisions of the Privy Council which have occasionally been relied upon by our Supreme Court for rejecting the preparatory materials all refer to statutory interpretation : *Administrator-General v Premlal,*(1895) 22 IA 107 (*118*); *Krishna v Perumal,*(1920) 47 IA 33 (*42*); *Assam Rlys. v C.I. Rly.,(1935) AC 445* (*448*).

12 **Cf.***Quareshi v State of Bihar*, AIR 1958 SC 731 (*741*).

13 AIR 2006 SC 212 : (2005) 8 SCC 534.

14 *S K Dutta v Lawrence,*(1968) 1 SCJ 722.

15 (2006) 8 SCC 212 : AIR 2007 SC 71.

16 Pomeroy, *Introduction to the Constitutional Law of the United States,* 1886, p 16.

17 Allen, *Law in the Making*, 7th Edn, p 527.

18 **See***Supreme Court Advocates on Record v UOI,*AIR 1994 SC 268 : (1993) 4 SCC 441; *Kapila Hingorani v State of Bihar,*(2003) 6 SCC 1 : (2003) 4 Scale 712.

19 **See** Allen, *Law in the Making*, 7th Edn, pp 510-11.

20 This view of the author has been affirmed by a Constitutional Bench in *Sub-Committee v UOI,*(1991) 4 SCC 699 (paras 46, 144, 150-51) CB : AIR 1992 SC 320.

21 *Wynes, Legislative and Executive Power*, 1956, p 24.

22 *Henrietta v A.G. for Canada,*1930 PC 120 (*121*).

23 *Croft v Dunphy*, AIR 1933 PC 16 (*19*).

24 *Wallace v CIT,*(1948) 2 DLR (PC) 848; *Re C.P. and Berar Motor Spirit Taxation Act,*(1939) FCR 18.

25 *Re C.P. & Berar Motor Taxation Act,*(1939) FCR 18 : AIR 1939 FC 1.

26 *Ralla Ram v Prov. of East Punjab,*(1948) FCR 207 : AIR 1949 FC 81.

27 p.355 *et seq.* of Author's Tagore Law Lectures. on *Limited Government and Judicial Review.*

28 *State of West Bengal v UOI*, AIR 1963 SC 1241 (1252); **see also***Sundararamier & Co v State of A P,*(1958) SCR 1422 (*1478*).

29 *State of W B v UOI*, AIR 1963 SC 1241 (*1252*).

30 **Cf.***Alcock Ashdown & Co v Chief Revenue Authority,*(1923) 50 IA 227; *R. v Burah,(1878) 3 AC 889*; *Rangachari v Secy. of State,* 64 IA 40.

31 Re Motor Spirits Taxation Act, AIR 1939 FC 1 (*35-7*); *United Provinces v Atiqa,*(1940) FCR 110 (*134*); **Cf.***Shyamakant v Ram Bhajan,*(1939) FCR 193; *Subramanyam v Muttuswami,*(1940) FCR 188; *Bhola Prasad v K.E.,*(1942) FCR 17; *Hulas Narain v Deen Md.*, AIR 1943 FC 9; *Jaganath v U.P.*, AIR 1943 Fc 29; *Bankof Commerce v Amulya,*(1944) FCR 126; *Bank of Commerce v Kunja,*(1944) FCR 371; *Manikkasundara v Nayyudu,*(1946) FCR 67 (*68*). Of course, there were a few decisions in which the Federal Court invalidated some Ordinances and Acts affecting the liberties of the subjects, but even in these cases, the decision was founded on the vires or competence of the authority to make the Ordinance or the Act [*K.E. v Benoari Lal,*(1943) FCR 96 (*140*); *Basanta v K.E.,*(1944) FCR 295 (*306*)]. The only decision where the Federal Court evolved a constitutional doctrine appears to be *Jatindra v Prov. of Bihar,*(1949) FCR 595 (unconstitutional delegation of legislative power). But this, it must be noted, was a post-Independence decision.

32 *Re, Motor Spirits Taxation Act*, AIR 1939 FC 1 *(35-7)*.

33 *United Provinces v Atiqa,*(1940) FCR 110*(134)*

34 *Sundararamier & Co v State of AP,*(1958) SCR 1422 (*1478*).

35 *Gopalan v State of Madras,*(1950) SCR 88 : AIR 1950 SC 27.

36 D D Basu, *Cases on the Constitution*.

37 AIR 1978 SC 597 : (1978) 1 SCC 248.

38 *Webb. v Qutrim,(1907) AC 81*. **See also***Kathamma Nachiar v Dorasinga Thevar,*(1875) 2 IA 169 (PC); *Vajravelu Mudaliar v Special Dy. Collector,*AIR 1965 SC 1017 : (1965) 1 SCR 614; *F.S. Gandhi v CWT,*AIR 1991 SC 1866 : (1990) 3 SCC 627; *Banarsi Debi v ITO,*AIR 1964 SC 1742 : [1964] 7 SCR 539; *Diwan Brothers v Central Bank,*AIR 1976 SC 1503 : (1976) 3 SCC 800.

39 *D'Emden v Pedder,* (1903) 1 CLR (*113*).

40 *A.G. of Canada v A.G. of Ontario*, AIR 1932 PC 36 (*40*).

41 *Robinson v Canadian Pacific Ry.,(1892) AC 481*.

42 *United Provinces v Atiqa Begum*, AIR 1941 FC 16 (*35*).

43 *Prafulla v Bank of Commerce,*(1947) 74 IA 23.

44 Even though fresh appeals to the Privy Council were abolished by the Abolition of Privy Council Jurisdiction Act 1949.

45 *Nakkuda Ali v Jayaratne,(1951) AC 66* (PC).

46 **See** Author's Tagore Law Lectures on *Limited Government and Judicial Review*.

47 *Kishan Chand v Commr. of Police*, AIR 1961 SC 705 (*701*).

48 *(1964) AC 40*.

49 *Chaturbhai v UOI*, AIR 1960 SC 424; *Mahabir v State of UP*, AIR 1970 SC 1302 (*1304*). **See also***S.D. Shetty v K.D. Billimoria,*AIR 1959 Bom 346; *Govindji Vithaldas & Co v Municipal Corp, Ahmedabad,*AIR 1959 Bom 20; *G. Vallikumari v Andhra Education Society,*(2010) 2 SCC 497.

50 *Faruk v State of MP,*(1969) 1 SCR 833 (*857*). **See***Automotive Tyre Manufacturers' Assn. v Designated Authority,*(2011) 2 SCC 258 : (2011) 1 Scale 149; *Sayeedur Rahman v State of Bihar,*(1973) 3 SCC 333; *Maneka Gandhi v UOI,*AIR 1978 SC 597 : (1978) 1 SCC 248; *Mohinder Singh Gill v Chief Election Comissioner,*(1978) 1 SCC 405; *Darshan Lal Nagpal v Govt. of NCT of Delhi,*AIR 2012 SC 412 : (2012) 2 SCC 327.

50a *Kishan Chand v Commr. of Police*, AIR 1961 SC 705 (*701*).

51 **Cf**. *S.K. Dutta v Lawrence,*(1968) 1 SCJ 722.

52 *E.g.,* Re Delhi Laws Act, (1951) SCR 747.

53 *R. v Burah,*(1878) 5 IA 178 (*194*).

54 *R. v Burah,*(1878) 5 IA 178 (*194*).

55 *Pierce v Society of Sisters,*(1925) 268 US 510; *American Communications v Douds,*(1950) 339 US 382 (*383*); *Shelton v Tucker,*(1960) 364 US 479 (*486*); *Griswold v Connecticut,*(1965) 381 US 479 (*484-5*); **See** Author's Tagore Law Lectures on *Limited Government and Judicial Review*.

56 *Gopalan v State of Madras,*(1950) SCR 88 : A 1950 SC 27.

57 *Satwant v A.P.O.*, AIR 1967 SC 1836.

58 *Kharak Singh v State of UP,*AIR 1963 SC 1295.

59 *Satwant v A.P.O.*, AIR 1967 SC 1836. **See***Maneka Gandhi v UOI,*AIR 1978 SC 597 : (1978) 1 SCC 248; *Rameshbhai Chandubhai Rathod v State of Gujarat,*(2009) 5 SCC 740 : (2009) 6 Scale 469.

60 *Sidharam Satlingappa Mhetri v State of Karnataka,*AIR 2011 SC 312 : (2011) 1 SCC 694; **see also***Kartar Singh v State of Punjab,*(1994) 3 SCC 569 : (1994) 2 JT 423.

61 Right to life and personal liberty is fully discussed in *Sidharam Satlingappa's case* (paras 51-67 of SCC) and how after *Gopalan's case*, it has developed.

62 p. 99 ff, *ante*,

63 *CIT v Benoy*, AIR 1957 SC 768 (*772*).

64 *McVittie v Bolton Corp,(1945) 1 All Er 379* (*384*) (CA). **See also***CCE v Wockhardt Life Sciences Ltd,*AIR 2012 SC 1681 : (2012) 5 SCC 585; *G.V.K. Industries v ITO,*(2011) 4 SCC 36 : (2011) 3 JT 356; *D. Veluswamy v D. Patchiammal,*(2010) 10 SCC 469 : AIR 2011 SC 479. **See also***Dharmarth Trust v Dinesh Chander Nanda,*(2010) 10 SCC 331 : (2010) 9 JT 506.

65 *Midland Ry. v Robinson,*(1889) 15 AC 91 (*34*).

66 *R. v Hall,*(1822) 1 B. & C. 123; *Dy. Chief Controller v Kosalram*, AIR 1971 SC 1283 (*1289*).

67 *Ramnarain v State of UP,*AIR 1957 SC 18 (*23*); *Mangoo v Election Tribunal*, AIR 1957 SC 871 (*874-5*). **See also***R.S. Nayak v A R Antulay,*AIR 1984 SC 684 : (1984) 2 SCC 183; *Gramaphone Co of India Ltd v Bir Bahadur Pandey,*AIR 1984 SC 667 : (1984) 2 SCC 534; *CIT v J H Gotea Yadgiri,*AIR 1985 SC 1698 : (1985) 4 SCC 343; *CIT v Venateswara Hatcheries Ltd,*AIR 1999 SC 1225 : (1999) 3 SCC 632; *CI Trivandrum v Anand Theatres,*(2000) 5 SCC 393; *Tarachand Deosharma v State of Punjab,*AIR 2001 SC 2524; *Karnataka State RoadTransport Corp v Ashrafulla Khan,*AIR 2002 SC 629 : (2002) 2 SCC 560. But a dictionary meaning cannot be adopted if it will make some existing words redundant or will require reading of some additional words. (*Dental Council of India v Hari Prakash,*AIR 2001 SC 3303 : (2001) 8 SCC 61.

68 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461: (1973) 4 SCC 225, **See also***Sajjan Singh v State of Rajasthan,*AIR 1965 SC 846: (1965) 1 SCR 933.

69 AIR 1976 SC 1111.

70 AIR 1993 SC 2529.

71 H M *Seervai, Constitutional Law of India*, Universal Law Publishers, 4 th Edn, vol I, p 256.

72 *R. v Hall,*(1822) 1 B & C 123.

73 Odgers, *Costruction of Deeds and Statutes,* 1946, p 218.

74 *Nawazizh v Ali Raza*, AIR 1948 PC 134 (*139*).

75 *Re C.P. Motor Spirit Act*, AIR 1939 FC 1 (*35*).

76 *Vide* Author's Tagore Law Lectures on *Limited Government and Judicial Review*

77 *E.g., in Kanniyan v I.T.O.*, AIR 1968 SC 637.

78 **Cf.***Pradyat v Chief Justice*, AIR 1956 SC 285 [*section 16 of the General Clauses Act* applied in interpreting *Article 229(1) of the Constitution*].

79 *Chiranjit Lal v UOI,*(1950) SCR 869.

80 *Maqbool v State of Bombay,*(1953) SCR 730; *Jawala v State of Pepsu*, AIR 1962 SC 1246 (*1248*).

81 *Ramnarain v State of UP,*AIR 1957 SC 18 (*23*); *Mangoo v Election Tribunal*, AIR 1957 SC 871 (*874-5*).

82 **Cf.***Pradyat v Chief Justice*, AIR 1956 SC 285 [*section 16 of the General Clauses Act* applied, in interpreting *Article 229(1) of the Constitution*].

83 *Ram Kishore v UOI*, AIR 1966 SC 644 (*648*).

84 GP Singh, Principles of Statutory Interpretation, 9th Edn, pp 23-25.

85 *U.S. v Schooner,*(1801) 1 Cr 103; Head Money Cases, (1884) 112 US 580 (*598*).

86 *U.S. v Schooner,*(1801) 1 Cr 103; Head Money Cases, (1884) 112 US 580 (*598*); *Cook v U.S.,*(1933) 288 US 102.

87 *Read v Secy. of State,(1989) LRC (Const.) 349* (*357*) HL; **Cf.***Perumal v I.T.F.,(1985) LRC (Const.) 514* (*522*)—Mauritius.

88 *Gramophone Co v Birendra*, AIR 1984 SC 667 (paras 5-6); *Tractoro-export v Tarapore*, AIR 1971 SC 1(*8*).

89 *Kubic Daricoz v UOI,*AIR 1990 SC 605 : (1990) 1 SCC 568 ; *Chairman, Railway Board v Chandrima Das,*AIR 2000 SC 988 : (2000) 2 SCC 465; *Article 51*(c) though not enforceable in a court of law, since it is Directive of State Policy, can be kept in view in interpreting other parts of the *Constitution* and statutes made under it which are capable of more than one meaning. *People'sUnion for Civil Liberties v UOI,*AIR 1997 SC 568 : (1997) 1 SCC 301.

90 *Apparel Export Promotion Council v A K Chopra,*AIR 1999 SC 625 : (1999) 1 SCC 759; *Githa Hariharan (Mrs.) v RBI,*AIR 1999 SC 1149 : (1999) 2 SCC 228 : (1999) 2 Mad LJ 62 (SC).

91 AIR 1973 SC 1461: (1973) 4 SCC 225.

92 *Pratap Singh v State of Jharkhand*, AIR 2005 SC 2731 : (2005) 3 SCC 351.

93 *Javed Abidi v UOI,*AIR 1999 SC 512 : (1999) 1 SCC 467.

94 *Fuerst Day Lawson Ltd v Jindal Exports Ltd,*(2011) 8 SCC 333 : AIR 2011 SC 2649.

95 *Maneka Gandhi v UOI,*AIR 1978 SC 597 : (1978) 1 SCC 248.

96 *Jolly George Varghese v Bank of Cochin,*AIR 1980 SC 470 : (1980) 2 SCC 360.

97 *Nilabati Behera v State of Orissa,*AIR 1993 SC 1960 : (1993) 2 SCC 746; *People's Union for Civil Liberties v UOI,*AIR 1997 SC 1203 : (1997) 3 SCC 433.

98 *Vishaka v State of Rajasthan,*AIR 1997 SC 3011 : (1997) 6 SCC 241; **see also** (for decision which goes along with international convention) *Githa Hariharan (Mrs.) v RBI,*AIR 1999 SC 1149 : (1999) 2 SCC 228 : (1999) 2 Mad LJ 62 (SC); *Municipal Corp of Delhi v Female Workers (MusterRoll),*AIR 2000 SC 1274 : (2000) 3 SCC 224; *John Vallamattom v UOI,*(2003) 6 SCC 611 : AIR 2003 SC 2902.

99 AIR 2000 SC 988 : (2000) 2 SCC 465 (*supra*).

1 **See***M.H. Hoskot v State of Maharashtra,*AIR 1978 SC 1548 : (1978) 3 SCC 544; *Randhir Singh v UOI,*(1997) 1 SCC 301 : AIR 1997 SC 568.

2 AIR 1996 SC 1864 : (1964) 5 SCC 125.

3 *Apparel Export Promotion Council v A.K. Chopra,*(1999) 1 SCC 759. **See also***Prem Shankar Shukla v Delhi Administration,*AIR 1980 SC 1535 : (1980) 3 SCC 526; *Mackinnon Mackenzie and Co Ltd v Audrey D. Costa,*AIR 1987 SC 1281: (1987) 2 SCC 469; *Sheela Barse v Secretary, Children's Aid Society,*AIR 1987 SC 656 : (1987) 3 SCC 50; *Vishaka v State of Rajasthan,*AIR 1997 SC 3011 : (1997) 6 SCC 241; *People's Union for Civil Liberties v UOI,*AIR 1997 SC 1203: (1997) 3 SCC 433; *D.K. Basu v State of WB,*AIR 1997 SC 610 : (1997) 1 SCC 416.

4 *Liverpool Borough Bank v Turner*, (1861) 30 LJ CH 379, pp 380, 381. **See***Shashikant Singh v Tarkeshwar Singh*, AIR 2002 SC 2031, 2034 : (2002) 5 SCC 738; In the matter of Special Ref. No. 1 of 2002 (Gujarat Assembly Election Matter, (2002) 8 SCC 237, 232; *Bhavnagar University v Palitana Sugar Mills P. Ltd*, (2003) 2 SCC 111, 126 : AIR 2003 SC 511, 520.

5 A passage from Crawford : statutory construction, p 516 approved in *State of UP v Manbodhanlal Shrivastava*, AIR 1957 SC 912, 918 : 1958 SCR 533. **See***State of MP v Pradeep Kumar*, (2000) 7 SCC 372, 377 : (2000) 10 JT 349 quoted in G P Singh, *Principles of Statutory Interpretation*,, Ninth Edn, 2004, pp 338-339.

6 In Britan Courts interpret the laws, not the *Constitution*.

7 Material elucidating the interpretative process in U.S.— (i) From Marshall to Mukherjea : Studies in American and Indian Constitutional law, (1956); (ii) Ramaswamy : The Creative Role of the Supreme Court of the United States; (1956); (iii) Schwartz : The Supreme Court (1957); (iv) Swisher : The Supreme Court in Modern Role, (1958); (v) Ziegler : The Supreme Court and the American Economic Life, (1982); (vi) McCloskey : Essays in the Constitutional land (1962); (vii) Freund : On understanding the Supreme Court, (1951); (viii) Roberts : The Court and the *Constitution* (1951); (ix) Chase and Ducat : Constitutional Interpretation, (1974); (x) Irani : The Courts and the Legislature in India, 14 ICLQ 950, (1965); (xi) Cappelletti : Judicial Review in the Contemporary world; (xii) Hiller : The Law—Creative Role of Appellate Courts in Developing Countries : An Emphasis on East Africa, 24 Int. & Comp LQ 205 (1975); (xiii) Seervai : The Position of the Judiciary Under the *Constitution of India*, (1970); (xiv) V.S. Deshpande : Judicial Review of Legislation (1975) and Dr. M.P. Jain's Review thereof in 16 JILI 727 (1974); (xv) Diplock : The Courts as Legislators, (1965); (xvi) Jaffe : English and American Judges as Law Makers, (1969); (xvii) M.P. Jain : Role of the Judiciary in a Democracy, (1979) JMCL 239; (xviii) S.P. Sathe : Judicial Activism in India (2002); (xix) T.R. Andhyarugina : Judicial Activism & Constitutional Democracy in India, (1992).

8 Edward Conard Smith and Arnold John Zurcher, *Dictionary of American Politics*, 1959, p 212.

9 Edward S Corwin, *A Constitution of Power in a Secular State*, 1951.

10 *Roberts Gwyfai v Dt. Council,(1899) 2 Ch. 608*.

11 *US v Butler,* (297) US 1 : 80 L Ed 477.

12 *Hoffmann-La-Roche v Secretary of State,(1974) 2 All ER 1128*.

13 On the occasion of his retirement, Chief Justice Earl Warren spoke of "the very awesome responsibility". **See also***Mc Cullock v Maryland,* 17 US 316 (1819).

14 S P Sathe, *Judicial Activism in India*, Third Impression, chapter 1, Introduction p 1. **See also** p 18 of the 2006 edition.

15 Richard Gordon, *Judicial Review and Procedure*, 2nd Edn,, p 1.

16 C Neal Tate and Torbjorn Vallinder, *Global Expansion of Judicial Power*.

17 Craig R Ducat, *Constitutional Interpretation*, 8th Edn, p 3.

18 548 (1 Cranch) 137; 2 L Ed 60.

19 Craig R Ducat, *Constitutional Interpretation*, 8th Edn, p 4

20 *Narinderjit Singh Sahni v UOI,*(2002) 2 SCC 210 : AIR 2001 SC 3810.

21 *State of Madras v V.G. Row,*AIR 1952 SC 196 : (1952) SCR 597 : (1952) 2 Mad LJ 135 : (1952) Cr LJ 966.

22 *A.K. Behra v UOI,*(2010) 11 SCC 322 : (2010) 5 JT 290.

23 **See***G V K. Industries v ITO,*(2011) 4 SCC 36 : (2011) 3 JT 356.

24 *Nirmala J Jhala v State of Gujarat,*AIR 2013 SC 1513 : (2013) 4 SCC 301.

25 *State of MP v Rakesh Kohli,*AIR 2012 SC 2351 : (2012) 6 SCC 312 : (2012) 3 CTC 770 : (2012) 4 LW 541.

26 **See** also *State of AP v Mc.Dowell & Co,*(1996) 3 SCC 709 : AIR 1996 SC 1627.

27 The means to prevent any such conflict between competing interests is to process all proposals for constitutional amendment through an expert and objective machinery, which would ensure the progressive adaptation of the *Constitution* to the Copernican changes in the social, economic and political background, apart from the views of the political supporters of the Party in power and the bureaucrats. **See** Author's Tagore Law Lectures on Limited Government and Judicial Review, pp 13-14.

28 Dowling, *Cases & Materials on Constitutional Law*, 1965.

29 Justice Fazil Karani, Judicial Review of Public Action, 2006 Edn, vol I, p 4.

30 T K Tope, *Constitutional law of India*, 3rd Edn, p 604.

31 **See***Marbury v Madison*, 1 Cranch 137 : 2 L Ed. 60.

32 M J Harmon, *Political thought from PLATO to the Present; Grant : The Natural Law Background of Due Process*, 31 Col LR 56; Corwin, *The "Higher Law" Background of American Constitutional Law*, 42 Haru LR 149.

33 Very Recent example of this trend is the Office of Profit Bill.

34 Jawaharlal Nehru's Speeches, The Publication Division, Government of India, vol II, 3 rd Impression, 1949-53, p 483.

35 Granville Austin, *The Indian Constitution – Cornerstone of the Nation*, chapter VII, 9th Impression, 2005, pp 164-65.

36 Dr C D Jha, *Judicial Review of Legislative Acts*, 2nd Edn, pp 118-19.

37 Dr C D Jha, *Judicial Review of Legislative Acts*, 2nd Edn, pp 115.

38 The Essay on the Nationalism of Joseph Story, The Bacon Lectures on the *Constitution* of the United States, 1940-1950, 1953, p 65.

39 *I.R. Coelho v State of TN,*AIR 2007 SC 861 : (2007) 2 SCC 1; *Fertiliser Corp of India v UOI,*AIR 1981 SC 344 : (1981) 1 SCC 568; *State of Rajasthan v UOI,*AIR 1977 SC 1361 : (1977) 3 SCC 592; *M. Krishnaswami v UOI,*AIR 1993 SC 1407 : (1992) 4 SCC 605; *L. Chandra Kumar v UOI,*(1997) 3 SCC 261. **See also***Mahmadhusen Abdulrahman Kalota v UOI,*(2009) 2 SCC 1 : (2008) 13 JT 207.

40 *Zafar Ali Shah v Pervaiz Musharaf,* PLD 2000 SC 869.

41 Mc L Lewain, *Constitutionalism, Ancient & Modern*, 21-22, 146 (1958).

42 *State of Bombay v Bombay Education Society*, AIR 1954 SC 561, 567 : (1955) 1 SCR 568.

43 *Cooper v UOI*, AIR 1970 SC 564, 601 : (1970) 1 SCC 248.

44 *Maneka Gandhi v UOI*, AIR 1978 SC 597 : (1978) 1 SCC 248.

45 Per Bhagwati J. **see also***Pathumma v State of Kerala*, AIR 1978 SC 771 : (1978) 2 SCC 1.

46 **See** "Landmark Decisions" and "Recent Developments".

47 **See** "Recent Developments" and "Landmark Decisions".

48 **See** article: Parle Nikolic, Constitutional Review of Laws by Constitutional Courts and Democracy – Problem of Legitimacy, in Mahendra P Singh, Comparative Constitutional Law, 1989.

49 AIR 1977 SC 2279 : (1977) 4 SCC 98.

50 *S P Gupta v UOI*, AIR 1982 SC at 218.

51 AIR 1977 SC 2279 : (1977) 4 SCC 98.

52 M.P Jain, *Indian Constitutional Law,* 5th Edn, 2003, vol 2, Pt VII, chapter XL, pp 1819-81, at p 1845.

53 Bhagwati and Vutwalia JJ.

54 *Supreme Court Advocate on Record Association v UOI*, 1993 4 SCC 441 : AIR 1994 SC 268.

55 *UOI v Sankalchand Himatlal Sheth*, AIR 1977 SC 2328 (Paras 15, 21, 37, 41, 44-45, 63, 102, 114, 124) : 1977 4 SCC 193; *Gupta S.P. v President of India*, AIR 1982 SC 149 : 1981 (Supp) SCC 87.

56 **See** D.D. Basu's : Shorter *Constitution of India, Article 222*, pp 785-787 wherein these propositions 1 to 10 have been laid down in detail. **See also** special reference No. 1 of 1998 : Re (1998) 7 SCC 739 {paras 36, 37, 39, 40 and 44(2)

and (3)]. The 9 Judges Bench expressed its optimistic view that the successive chief justices shall henceforth act in accordance with the *Second Judges* case and the opinion in the instant reference.

57 *UOI v S.H. Sheth*, AIR 1977 SC 2328, at 2362 : (1977) 4 SCC 193.

58 *State of Karnataka v Rauganath Reddy*, AIR 1978 SC 215 at 234 : (1977) 4 SCC 471.

59 Author's Indian Constitutional Law, 5th edn.

60 Author's Indian Constitutional Law, 5th edn.

61 Regarding Supreme **Court, see***Articles 131-134*, *136*, *142*, *143* and *Articles 32* and *129*. Regarding High **Courts, see***Articles 215*, *226* to 228.

62 *Pritam Pal v High Court of M P,*AIR 1992 SC 904 : 1993 Supp. (1) SCC 529; *Surya Devi Rai v Ram Chander Rai*, (2003) 6 SCC 675 at P. 694-695 : AIR 2003 SC 3044.

63 *Kilhota Hallahan v Zachilhu*, AIR 1993 SC 412 at 445-446 : 1992 Supp. (2) SCC 651. **See** Principles of Statutory Interpretation: G P Singh, 9th Edn, Reprint, 2004, chapter 5, syn. 6, pp 364-392. Express or Implied Conditions for Judicial Review.

64 *Chief Justice v Dikshitulu*, AIR 1979 SC 193 (paras 63-64) CB.

65 **Cf**. *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (paras 15, Sikri CJ, 523, Shelat and Grover, JJ; 650, Hedge and Mukherjea, JJ; 1381, 1395, 1448, Khanna J; *State of Karnataka v UOI*, AIR 1978 SC 68 (paras 84-85, 90-93); *India Cement v State of TN,*(1990) 1 SCC 12 (para 16) – 7 Judges.

66 *India Cement v State of TN,*(1990) 1 SCT 12 (Para 16) – 7 Judges, *James v Commonwealth,(1936) AC 578* (*614*). *Re C.P. Motor Spirit Act*, AIR 1939 FC 1 (*35*).

67 *Edwards v A.G. for Canada,(1930) AC 124* (*137*); **see** also *Br. Coal Corp v R,(1935) AC 500* (*518*).

68 *UOI v Naveen Jindal,*AIR 2004 SC 1559: (2004) 2 SCC 510.

69 *I.R. Coelho v State of TN,*(2007) 2 SCC 1 : AIR 2007 SC 861.

70 Jawaharlal Nehru's Speechs, The Publication Division, Ministry of Information and Broadcasting, Government of India, vol 1, 1958, pp 31-32.

71 *Ashok Tanwar v State of HP,*AIR 2005 SC 614: (2005) 2 SCC 104. **See** also *Aruna Roy v UOI,*(2002) 7 SCC 368; *R C Poudyal v UOI,*1994 Supp (1) SCC 324; *Supreme Court Advocates-on-Record Association v UOI,*(1993) 4 SCC 441.

72 C D Jha, *Judicial Review of Legislative Acts*, 3rd Edn

73 *Cohens v Virginia,*(1821) 6 Wheat 264.

74 *Home Building & Loan Association & Blaisdell*(1934) 290 US 398

75 *McCullock v Maryland,*(1819) 17 US 316; 4 L Ed 579.

76 *State of WB v Anwar Ali Sarkar,*AIR 1952 SC 75 : 1952 SCR 284.

77 *State of Punjab v Devans Modern Breweries Ltd*, (2004) 11 SCC 26.

78 *Kilhoto Hollohan v Zachillhu,*AIR 1993 SC 412: 1992 Supp (2) SCC 651.

79 *Sajjan Singh v State of Rajasthan,*AIR 1965 SC 845: (1965) 1 SCR 933.

80 *Minister for Home Affairs v Fisher,(1979) 3 All ER 21*; **see** also *Riley v AG of Jamaica,(1982) 3 All ER 469*.

81 *McCullock v Maryland,*(1819) 17 US 316 (*supra*).

82 *Hurtado v California,* 110 US 516.

83 *Sweezey v New Hampshire,* (354) US 234 : 1 L Ed 2nd 1311.

84 (1920) 252 US 416).

85 *Zee Tele films Limited v UOI*, AIR 2005 SC 2677: (2005) 4 SCC 649. **See also***Video Electronics Pvt Ltd v State of Punjab,*AIR 1990 SC 820: (1990) 3 SCC 87; *Pratap Singh v State of Jharkhand,*AIR 2005 SC 2731: (2005) 3 SCC 551; *Re, Gujarat Assembly Election matter*, AIR 2003 SC 87. **See** also *M. Nagaraja v UOI,*AIR 2007 SC 71.

86 *Chiranjit Lal v UOI*, AIR 1951 SC 41 (58); *Gopalan v State of Madras*, (1950) SCJ 174 (191).

87 *Motiram v N.E.F. Ry*., AIR 1964 SC 600 (para 65); *Kamala v State of Maharashtra*, AIR 1981 SC 814 (para 5). **See** J.P. *Banksal v State of Rajasthan,*2003 ALR SCW 1848 at p 1854 : AIR 2003 SC 1415.

88 *James v Commonwealth of Australia*, *(1936) AC 578* (614). **See also***Re. the CP & Berar Act, 1938 (The Central Provinces case)*(1939) FCR 18; *Pathumma v State of Kerala,*AIR 1978 SC 771 : (1978) 2 SCC 1; *R.S. Joshi v Ajith Mills,*AIR 1977 SC 2279 : (1977) 4 SCC 98.

89 M P Jain, *Indian Constitutional Law*, 6th Edn, 2010, vol II, p 2245.

90 *Victoria v Commonwealth,*(1908) 6 CLR 469; **see** also *India Cements Ltd v State of TN,*AIR 1990 SC 85 : (1990) 1 SCC 12.

91 *State of Rajasthan v Prakashchand,*(1998) 1 SCC 1 : AIR 1998 SC 1344.

92 Cardozo, The Nature of Judicial Process, p 129.

93 *McCulloch v Maryland*, (1819) 4 Wh 316.

94 *British Coal Corp v The King*, AIR 1935 PC 158.

95 *A.G. for Ontario v A.G. for Canada,(1912) AC 571* (*583*).

96 *J.K. Gas v King-Emperor,*(1947) 52 Cal WN (FR) 25; *Bhola v King-Emperor,*(1942) 46 Cal WN (FR) 32 (*36*).

97 *Re C.P. Motor Taxation Act,*(1938) 2 FLJ 6 (*15*). [**See also** Re *Customs Act*, AIR 1963 SC 1760 (*1780*)].

1 *Gopalan v State of Madras,*(1950) SCR 88 (*120*); **see also***Ram Parashad v State of Punjab*, AIR 1966 SC 1607 (*1610*); *Moti Ram v General Manager*, AIR 1964 SC 60 (*621*).

2 *A.G. of N.S.W. v Brewery Employees' Union,*(1908) 6 CLR 469 (*611-2*).

3 *Min. of Home Affairs v Fisher,(1979) 3 All ER 21* (*26*) PC [re. section 11 of the Bermuda *Constitution* Order, 1968]; *A.G. of Christopher v Reynolds,(1979) 3 All ER 129* (*136*) PC [re. section 3 of the Leeward Islands (Emergency Powers) Order in Council, 1959]; *Ong v P.P.,(1981) AC 648* PC; *A.G. v Jobe,(1985) LRC (Const.) 556* (*565*) PC [from Gambia].

4 *Bain Peanut Co v Pinson,*(1931) 282 US 499 (*501*).

5 *Gompsers v U.S.,*(1913) 233 US 604.

6 *Boyd v U.S.*(1886) 116 US 616; *Byars v U.S.,*(1927) 273 US 28.

7 *Madhav Rao v UOI*, AIR 1971 SC 530, para 133, Shah J., *L.I.C. v Manubhai,*(1992) 3 SCC 637 (para 7).

8 *Dwarkadas v Sholapur Spinning Co*, AIR 1954 SC 119 (138).

9 *S.R. Choudhari v State of Punjab,*AIR 2001 SC 2707 : (2001) 7 SCC 126; **see also***Good Year India Ltd v State of Haryana,*AIR 1990 SC 781 : (1990) 2 SCC 71; *LIC of India v Manubhai D. Shah,*AIR 1993 SC 171 : (1992) 3 SCC 637.

10 *B.R. Kapur v State of TN,*AIR 2001 SC 3435 : (2001) 7 SCC 231.

11 *M. Nagaraj v UOI,*AIR 2007 SC 71 : (2006) 8 SCC 212.

12 AIR 1978 SC 597 : (1978) 1 SCC 248

13 *R.S. Joshi v Ajit Mills Ltd,*AIR 1977 SC 2279 : (1977) 4 SCC 78.

14 *DMDK v Election Commission of India,*AIR 2012 SC 2191 : (2012) 7 SCC 340.

15 *Mehar Singh Saini, Re.*(2010) 13 SCC 586 : (2010) 12 JT 374.

16 *Loan Association v Topeka,*(1875) 20 Wall 655; *Calder v Bull* (Chase J.) (1798) 3 Dall 386; *Downes v Bidwell*, (1901) 182 US 244.

17 Cooley, *Constitutional Law,* p 196; *Constitutional Limitations,* pp 350-9; Willoughby, *Constitutional Law,* vol I, p 71**. See also***Martin v Hunter's Lessee,*(1816) 1 Wh. 304; *Cohens v Virginia,*(1821) 6 Wh. 264; *Loan Assn. v Topeka,*(1874) 20 Wall 655; *Sturges v Crown in shield,*(1819) 17 US 122.

18 Cooley, *Constitutional Law*, vol 1, p 97.

19 *Magor v Newport Corp,*(1951) All ER 839 (HL); *Brophy v A.G, Manitoba,(1895) AC 216*; *Henrietta v AG,*AIR 1930 PC 120.

20 *Sturges v Crown in shield,*(1819) 17 US 122 (*supra*).

21 *Jacobsun v Massachussetts,*(1905) 197 US 11.

22 **See** D D Basu, *Comparative Constitutional Law*, 2 nd Edn, 2008, p 183.

23 *Gopalan v State of Madras,*(1950) SCJ 174 (191, Kania C.J.; pp 246-7, Mahajan J.); *Keshavan v State of Bombay,*(1951) SCR 228 (*232*), Das J. also Re Custom Act, AIR 1963 SC 1760.

24 *Henrietta v A.G. of Canada*, AIR 1930 PC 120 (*126*).

25 *J.K. Gas v King-Emperor,*(1947) 52 Cal WN (FR) 25; *Bhola v King-Emperor,*(1942) 46 Cal WN (FR) 32 (*36*); *Re C.P. Motor Taxation Act,*(1938) 2 FLJ 6 (*15*). [**See** also Re *Customs Act*, AIR 1963 SC 1760 (*1780*)].

26 *Gopalan v State of Madras,*(1950) SCR 88 (*120; 220; 321*).

27 *Gramophone Co v Birendra*, AIR 1984 SC 667 (paras 5-6); *Tractoro-export v Tarapore*, AIR 1971 SC 1(*8*).

28 *Keshavan v State of Bombay,*(1951) SCR 228 (*232*), Das J.; also Re *Customs Act*, AIR 1963 SC 1760.

29 **See** also *Dental Council of India v Hari Prakash*, AIR 2001 SC 3303, 3308; (2001) 8 SCC 61; *J.P. Bansal v State of Rajasthan*, 2003 AIR SCW 1848, 1855; *Shyam Kishori Devi v Patna Municipal Corp*, AIR 1966 SC 1678, 1682; *Antuley v R.S. Nayak*, (1984) 2 SCC 500, 518, 519 : AIR 1984 SC 718; *Mohammad Alikhan v Commr. of Wealth Tax*, AIR 1997 SC 1165, 1167 : (1997) 3 SCC 511; *Institute of Chartered Accountants of India v Price Waterhouse*, AIR 1998 SC 74, 90 : (1997) 6 SCC 312; *State of Maharashtra v Nanded Parabhani Operator Sangh*, AIR 2000 SC 725, 727; (2000) 2 SCC 69; *Grasim Industries Ltd v Collr. of Customs*, AIR 2002 SC 1706, 1709 : (2002) 4 SCC 297; *Harbhajan Singh v Press Council of India*, AIR 2002 SC 1351 : (2002) 3 SCC 722.

30 *Keshavan v State of Bombay,*(1951) SCR 228 (*232*), Das J.; also Re *Customs Act*, AIR 1963 SC 1760.

31 *State of Bihar v Kameshwar Singh,*AIR 1952 SC 252 : [1952] 1 SCR 1020.

32 *P.A. Inamdar v State of Maharashtra,*AIR 2005 SC 3226: (2005) 6 SCC 537.

33 AIR 1993 SC 477: 1992 Supp (3) SCC 217.

34 **See** also *State of Rajasthan v UOI,*AIR 1977 SC 1361: (1977) 3 SCC 592.

35 *Marvti Wire Industries Pvt Ltd, v STO 1st Circle, Mantancherry*, AIR 2001 SC 1413; *Padmasundar Rao v State of TN*, AIR 2002 SC 1334, 1340; *Unique Butyle Tube Industries Pvt Ltd v U.P. Financial Corp*, AIR 2003 SC 2103, 2107 (Legislative *casus omissus* cannot be supplied by judicial interpretative process); *UOI v, Ravi Kumar*, (2003) 6 SCC 516, 525-526 : AIR 2003 SC 2917.

36 *A.B.S.K. Singh v UOI*, AIR 1981 SC 298 (para 123).

37 *A.B.S.K. Singh v UOI*, AIR 1981 SC 298 (para 123); *Jacob v K.W.A.,*(1991) 1 SCC 28 (para 15).

38 *Jacob v K.W.A.,*(1991) 1 SCC 28 (Para 15); *D.C.L. v UOI,*(1988) 1 SCC 122 (paras 7, 9).

39 *D.C.L. v UOI,*(1988) 1 SCC 122 (paras 7,9).

40 *Gopalan v State of Madras,*(1950) SCR 88 (*120; 220; 321*).

41 *Municipal Committee v State of Punjab*, AIR 1969 SC 1100 (para 7).

42 *Indira v Rajnarain*, AIR 1967 SC 2299 (paras 132-34, Ray C.J.; 346-48, 358, Mathew, J., 477, Beg J.; 693-94,Chandrachud J.); *Bhim v UOI*, AIR 1981 SC 234 (para 21).

43 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (1926, Mathew J.; 1975,.Ben J.; 1668, Ray J.); **see** Cooley, at p 224, *ante;* By further extension, a *Constitution* Bench has observed that in interpreting a Constitutional provision, the Court should adopt a construction which strengthens the basic structure of the *Constitution* [*Sub-Committee v UOI,*(1991) 4 SCC 699 (para 16)] CB; *India v Rajnarain*, AIR 1975 SC 2299 (paras 280-82,Mathew J.).

44 *Gopalan v State of Madras,*(1950) SCR 88 (*111-12; 120; 220; 287; 307; 321*).

45 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (1926 MATHEW J. 1975, Ben J. ; 1668, Ray J.) See Cooley, at p 224, *ante*.

46 By further extension, a *Constitution* Bench has observed that in interpreting a Constitutional provision, the Court should adopt a construction which strengthens the basic structure of the *Constitution* [*Sub-Committee v UOI,*(1991) 4 SCC 699 (para 16)] CB.

47 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (1926 Mathew J. 1975, Ben J.: 1668, Ray J.) **See** Cooley, at p 224, *ante*.

48 *Kesavananda v State of Kerala*, AIR 1973 SC 1461, paras 1455, 1457, 1458.

49 *Indira Gandhi v Raj Narain,*AIR 1975 SC 2299 : 1975 (Supp) SCC 1. This topic will be further discussed in *Article 368 of the Constitution of India*. **See** also D D Basu, *Comparative Constitutional Law*, 2nd Edn, 2008, pp 195-202.

50 *Keshavananda v State of Kerala*, AIR 1973 SC 1461

51 *Keshavananda v State of Kerala*, AIR 1973 SC 1461 (paras 227, 671, 751, 757, 759(3), 1438) 11 Judges.

52 *Antulay v Nayak,*(1984) SCC 500 (*518-19*) CB.

53 *Carter v Carter Coal Co,*(1936) 298 US 238.

54 *India Cement v State of TN,*(1990) 1 SCC 12 (para 17) –7 Judges.

55 **Cf.***Tamil Nadu Assocn. v State of TN*, AIR 1980 SC 379 (paras 8-10; 16-17); *Indira v Rajnarain*, AIR 1975 SC 2299 (para 232); *Gupta v UOI*, AIR 1982 SC 149 (para 45); *Cooper v UOI*, AIR 1970 SC 564 (paras 71A-72); *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (para 2101). **See***Brij Mohan Lal v UOI*(2012) 6 SCC 502 : (2012) 4 Scale 450.

56 *Cooper v UOI,*AIR 1970 SC 564 : (1970) 1 SCC 248.

57 **See also***Sanjeev Coke Mfg. Co v Bharat Coking Ltd,*AIR 1983 SC 239 : (1983) 3 SCC 616.

58 *Balco Employees' Union v UOI,*AIR 2002 SC 350: (2002) 2 SCC 333; **see also***Aruna Roy v UOI,*(2002) 7 SCC 368 : AIR 2002 SC 3176; *Sanchi Bansal v Joint Admission Board,*AIR 2012 SC 214 : (2012) 1 SCC 157.

59 *Brij Mohan Lal v UOI,*(2012) 6 SCC 502 : (2012) 4 Scale 450.

60 *State of Madras v Rao,*(1952) SCR 597 : AIR 1952 SC 195.

61 *Mohd. Hanif Quareshi v State of Bihar,*AIR 1958 SC 731 : (1959) SCR 629; *Hamdard Dawakhana v UOI,*AIR 1960 SC 554 : (1960) 2 SCR 671; *Inder Singh v State of Rajasthan,*AIR 1957 SC 510 : (1957) SCR 605; *D.C.G.M v UOI,*AIR 1983 SC 937 : (1983) 4 SCC 166; *Garg v UOI,*AIR 1981 SC 2138 : (1981) 4 SCC 675.

62 *State of Bihar v Kameshwar Singh,*AIR 1952 SC 252 : (1951) SCR 1056.

63 *Abdul Hakim v State of Bihar,*AIR 1961 SC 448 : (1961) 2 SCR 610 : (1961) 1 Cr LJ 573.

64 *Virendra v State of Punjab,*AIR 1957 SC 896 : (1958) SCR 308.

65 *Tamil Nadu Assn. v State of TN,*AIR 1980 SC 379 : (1980) 3 SCC 97) or relating to the day to day administration unless - (a) some constitutional provision is violated by such administrative action (*State of Madras v Rao,*AIR 1952 SC 195 : (1952) SCR 597 (*supra*); *Joseph v RBI,*AIR 1962 SC 1371 : 1962 (Supp-3) SCR 632); (b) where the administrative policy is irrational or *mala fide* (*Tamil Nadu Assn. v State of TN,*AIR 1980 SC 379 : (1980) 3 SCC 97 (*supra*); *Barium Chemicals v Co Law Board,*AIR 1967 SC 295 : 1966 (Supp) SCR 311; *Ishwarlal v State of Gujarat,*AIR 1968 SC 870 : (1968) 2 SCR 267; *Swadeshi Cotton Mills v S.I. Tribunal,*AIR 1961 SC 1381 : (1962) 1 SCR 422; *UOI v Jyoti Prakash,*AIR 1971 SC 1093 : (1971) 1 SCC 396; *UOI v Sankalchand,*AIR 1977 SC 2328 : (1977) 4 SCC 193; *Gupta v UOI,*AIR 1982 SC 149 : 1981 (Supp) SCC 87) or where the administrative power is conferred or regulated by statute, the impugned action is *ultra vires*.

66 *Tamil Nadu Assn. v State of TN*AIR 1980 SC 379 : (1980) 3 SCC 97; *Joseph v RBI,*AIR 1962 SC 1371 : 1962 (Supp-3) SCR 632; *Prag Oil Mills v UOI,*AIR 1978 SC 1296 : (1978) 3 SCC 459 or the matter involves what is called "expertise" *Joseph v RBI,*AIR 1962 SC 1371 : 1962 (Supp-3) SCR 632; *Prag Oil Mills v UOI,*AIR 1978 SC 1296 : (1978) 3 SCC 459*e.g.,* as to what is needed for the maintenance of integrity and efficiency in the public services.

67 *Gupta v UOI,*AIR 1982 SC 149 : 1981 (Supp) SCC 87.

68 *Wing Commander J. Kumar v UOI,*AIR 1982 SC 1064 : (1982) 2 SCC 116. **See also** D D Basu, *Comparative Constitutional Law*, 2nd Edn, 2008, pp 241-42.

69 Re *C.P. and Berar Sales Taxation Act,*1939 FC 1.

70 *Baldev Singh v CIT*, AIR 1961 SC 736; *Balaji v I.T.O.*, AIR 1962 SC 123 (*125*).

71 Odgers, *Costruction of Deeds and Statutes,* 1946, p 218

72 *Balaji v IT Officer*, AIR 1962 SC 123 : (1962) 2 SCR 983; *UOI v H.S. Dhillon*, AIR 1972 SC 1061 : (2002) 2 SCC 779; *UOI v State Gobardhanlal Kabra Teachers' College*, (2002) 8 SCC 228 : AIR 2002 SC 3675; *Welfare Assn. ARP, Maharashtra v Ranjit P. Gohil*, AIR 2003 SC 1266 : (2003) 9 SCC 358; **see** also *Indu Bhushan Bose v Rama Sundari Debi*, (1969) 2 SCC 289; *Chaturbhai M. Patel v UOI*, AIR 1960 SC 424 : (1960) 2 SCR 362; *Diamond Sugar Mills Ltd v State of UP*, AIR 1961 SC 652 : (1961) 3 SCR 242; *Synthetics & Chemicals Ltd v State of UP*, (1990) 1 SCC 109; *State of Madras v Ganon Dunkerly*, AIR 1958 SC 560 : (1959) SCR 379; *Jagannath Balch Singh v State of UP*, AIR 1962 SC 1563 : (1963) 1 SCR 220; *Express Hotels Pvt Ltd v State of Gujarat*, AIR 1989 SC 1349 : (1989) 3 SCC 677; *Elel Hotels & Investments Ltd v Govt. of Kerala*, 1995 (Supp-2) SCC 187; *UOI v Delhi High Court Bar Assn.*, AIR 2002 SC 1479 : (2002) 4 SCC 275; *UOI v Shah Gobardan L. Kabra Teachers' College*, (2002) 8 SCC 228AIR 2002 SC 3675; *Indian Handicrafts Emporium v UOI*, AIR 2003 SC 3240: (2003) 7 SCC 589.

73 *Offshore Holdings Pvt Ltd v Bangalore Development Authority*(2011) 3 SCC 139 : (2011) 1 Scale 533.

74 *Navinchandra v CIT*, AIR 1955 SC 58 (*61*); *Jagannath v State of UP*, AIR 1962 SC 1563 (*1568*).

75 Entry 5, List II of the *Constitution of India*.

76 Entry II, List II of the *Constitution of India*.

77 Entry 17, List II of the *Constitution of India*.

78 Entry 14, List II of the *Constitution of India*.

79 Re *C.P. and Berar Sales Taxation Act,*1939 FC 1.

80 *Seaford Court Estates Ltd v Asher*, *(1949) 2 All ER 155*, 164 (CA). **See also***Offshore Holdings Ltd v Bangalore Development Authority,*(2011) 3 SCC 139; *UOI v H.S. Dhillon,*AIR 1972 SC 1061 : (2002) 2 SCC 779; *Harakchand Ratanchand Banthia v UOI,*AIR 1970 SC 1453 : (1969) 2 SCC 166; *Ujagar Prints (2) v UOI,*AIR 1989 SC 516 : (1989) 3 SCC 488.

81 *Andrews v Howell,*(1941) 6 CLR 255 (*278*).

81a *Andrews v Howell,*(1941) 6 CLR 255 (*278*).

82 *Adelaide Co v Commonwealth,*(1943) 67 CLR 116 (*161*).

83 Re C.P. & Berar Act, (1939) FCR 18 (*14*); *Calcutta Gas Co v State of WB*, AIR 1962 SC 1014 (*1050*).

84 *Calcutta Gas Co v State of WB*, AIR 1962 SC 1014 (*1050*).

85 *Citizens Ins. Co v Parsons,(1881) 7 App Cas 96* (*108*). **See** also *Calcutta Gas (Prop) Ltd v State of WB,*AIR 1962 SC 1044 : 1962 (Supp-3) SCR 1; *Waverly Jute Mills v Raymon & Co,*AIR 1963 SC 90 : (1963) 3 SCR 209; *UOI v State Gobardhanlal Kabra Teachers' College,*(2002) 8 SCC 228 : AIR 2002 SC 3675; *Welfare Assn. ARP, Maharashtra v Ranjit P. Gohil,*AIR 2003 SC 1266 : (2003) 9 SCC 358; **see** also *ITC Ltd v Agricultural Produce Market Committee,*AIR 2002 SC 852 : (2002) 9 SCC 232.

86 **Cf**. CCL pp 204-05.

87 *Min. of Home Affairs v Fisher,(1979) 3 All ER 21* (*26*) PC (from Bermuda).

88 *A.G. v Reynolds,(1979) 3 All ER 129* (*136*) PC (from Leeward Is).

89 *Anderson v Ryan,(1985) 2 All ER 355*. See also *M. Nagaraj v UOI,*AIR 2007 SC 71 : (2006) 8 SCC 212.

90 *Allahabad Bank v Canara Bank,*(2000) 4 SCC 406 : JT (2000) 4 SC 411.

91 *A.G. v Jobe,(1985) LRC (Const.) 556* (*565*) PC (from Gambia); **see** also *Ong.* P.P., *(1980) AC 648* PC (from Singapore).

92 M P Jain, *Indian Constitutional Law*, 6th Edn, 2010, vol II, p 2255.

93 M P Jain, *Indian Constitutional Law*, 6th Edn, 2010, vol II, p 2235

94 *R.C. Poudyal v UOI*, AIR 1993 SC 1804: 1994 (Supp-1) SCC 324; **see** also *Special Reference 1 of 2002 (under Article 143(1) of the Constitution)*AIR 2003 SC 87 : (2002) 8 SCC 237).

1 Bhagawati J., *Judicial Interpretation in Constitutional Law – Dimension of Law*, p 30. **See** also *Supreme Court Advocates on Record v UOI,*AIR 1994 SC 268 : (1993) 4 SCC 441; *Kapila Hingorani v State of Bihar*, (2003) 6 SCC 1. In *Lawrence v Texas*, (2003) 539 US 558.

2 (1986) 478 US 186.

3 *A.G. v Jobe,(1985) LRC (Const.) 556* (*565*) PC (from Gambia), p 143 ; **see** also *Ong.* P.P., *(1980) AC 648* PC (from Singapore).

4 *Societe v Government of Mauritius,(1985) LRC (Const.) 801* (*841*) PC (from Mauritius).

5 *A.K. Gopalan v State of Madras,*AIR 1950 SC 27 : (1950) SCR 88.

6 *Ashok (Dr) v UOI,*AIR 1997 SC 2298 : (1997) 5 SCC 10.

7 *Kapila Hingorani v State of Bihar,*(2003) 6 SCC 1 : (2003) 4 Scale 712.

8 *A.G. v Reynolds,(1979) 3 All ER 129* (136) PC (from Leeward Is), p 136-7.

9 *A.G. v Reynolds,(1979) 3 All ER 129* at p 136.

10 *A.G. v Reynolds,(1979) 3 All ER 129* at p 136.

11 *Clarke v Karika,(1985) LRC (Const.) 732* (753) Cook Is.

12 *Ajay v State of MP,*(1988) 4 SCC 514 (518).

13 *Charan v UOI*, AIR 1990 SC 1480 (1535, para 101) CB.

14 *D.T.C. v D.T.C. Mazdoor Congress,* (1991) Supp (I) SCC 600 (CB), paras 116-121.

15 *D.T.C. v D.T.C. Mazdoor Congress,* (1991) Supp (I) SCC 600.

16 Black's Law Dictionary, 6th Edn

17 **See** Ramanathier's Law Lexicon.

18 B Shiva Rao, *The Framing of India's Constitution – Select Documents*.

19 Wallace Mendelson, The Supreme Court Law and Discretion, The Bobbs Merril Company Inc., 1967, p 15.

20 (1608) 77 ER l646

21 Ralph A Rosum and G Alan Tarr, *American Constitutional Law – The Structure of Government*, vol 1, p 65.

22 **See***DDA v Skipper Construction,*(2007) 15 SCC 601 : (2005) 3 Scale 756.

23 *Dhannalal v Kalawatibhai,*AIR 2002 SC 2572 : (2002) 6 SCC 16.

24 *Rakesh Wadhawan v Jagdamba Industrial Corp,*AIR 2002 SC 2004 : (2002) 5 SCC 440; **see** also *Mahanthi Ram Das v Ganga Das,*AIR 1961 SC 882 : (1961) 3 SCR 763; *Jaipur Mineral Development Syndicate v CIT,*(1977) 1 SCC 508 : AIR 1977 SC 1348; *Newabgunj Sugar Mills Co Ltd v UOI,*AIR 1976 SC 1152 : (1976) 1 SCC 120; *Manohar Lal Chopra v Rai Bahadur Rao Raja Seth Hiralal,*AIR 1962 SC 527 : 1962 (Supp-1) SCR 450.

25 *Rupa Ashok Hurra v Ashok Hurra,*(2002) 4 SCC 388) : AIR 2002 SC 1771.

26 *P. Ramachandra Rao v State of Karnataka,*(2002) 4 SCC 578 : AIR 2002 SC 1856.

27 *Dev Dutt v UOI,*AIR 2008 SC 2513 : (2008) 8 SCC 725.

28 *Government of AP v P. Laxmi Devi,*AIR 2008 SC 1640 (2008) 4 SCC 720; **see** also *Maneka Gandhi v UOI,*AIR 1978 SC 597 : (1978) 1 SCC 248; *Gujarat Agro Industries Co Ltd v Municipal Corp of City of Ahmedabad,*AIR 1999 SC 1818 : (1999) 4 SCC 468; *Bengal Immunity Co Ltd v State of Bihar,*AIR 1955 SC 661; *ITO v T.S. Devinatha Nadar,*AIR 1968 SC 623.

29 *Swamy Sraddananda v State of Karnataka,*AIR 2007 SC 2531 : (2007) 12 SCC 288.

30 *Som Lal v Vijay Laxmi,*AIR 2008 SC 2088 : (2008) 11 SCC 413.

31 *Aravali Golf Club v Chander Hass,*(2008) 1 SCC 683 : (2008) 3 JT 221.

32 *Bombay Dyeing & Mfg. Co Ltd v Bombay Environmental Action Group,*AIR 2006 SC 1489 : (2006) 3 SCC 434). (**See** also *Vineet Narain v UOI,*(1996) 2 SCC 199; *UOI v C. Dinakar,*(2004) 6 SCC 118 : AIR 2004 SC 2498; *Kapila Hingorani v State of Bihar,*(2003) 6 SCC 1 : (2003) 5 JT 1.

33 *Ashok Tanwar v State of HP,*AIR 2005 SC 614 : (2005) 2 SCC 104.

34 *National Textile Workers' Union v V.R. Ramakrishnan,*AIR 1983 SC 75 : (1983) 1 SCC 228.

35 *UOI v Raghubir Singh,*AIR 1989 SC 1933 : (1989) 2 SCC 754.

36 *Pomal Kanji Govindji v Vrajlal Karsandas Purohit,*AIR 1989 SC 436 : (1989) 1 SCC 458.

37 *M.C. Mehta v UOI,*AIR 1987 SC 1086 : (1987) 1 SCC 395.

38 *Central Inland Water Transport Corp v Broja Nath Ganguly,*AIR 1986 SC 1571 : (1986) 3 SCC 156.

39 *Vellore Citizen's Welfare Forum v UOI,*AIR 1996 SC 2715 : (1996) 5 SCC 647.

40 AIR 1967 SC 1643 : (1967) 2 SCR 762.

41 *State of Karnataka v Ranganatha Reddy,*AIR 1978 SC 215 : (1977) 4 SCC 471.

42 Nature of Judicial Process, 1914, p 178.

43 *(1935) AC 500*.

44 T K Tope, *Constitutional Law of India*, 3rd Edn, revised by Sujata V Manohar, 2010, p 408.

45 *Lakshmikant Pandey v UOI,*AIR 1984 SC 469 : (1984) 2 SCC 244.

46 *Vishaka v State of Rajasthan,*(1997) 6 SCC 241 : AIR 1997 SC 3011.

47 *Rudul Sah v State of Bihar,*AIR 1983 SC 1086 : (1983) 4 SCC 141.

48 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225.

49 *S.R. Bommai v UOI,*AIR 1994 SC 1918 : (1994) 3 SCC 1.

50 *Tata Press Ltd v Mahanagar Telephone Nigam,*AIR 1995 SC 2438 : (1995) 3 SCC 139.

51 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225.

52 *S R Bommai v UOI,*AIR 1994 SC 1918 : (1994) 3 SCC 1.

53 *Maneka Gandhi v UOI,*AIR 1978 SC 597 : (1978) 1 SCC 248.

54 Professor S P Sathe, *Judicial Activism in India*, 2nd Edn, p 249-51.

55 *Laxmi Kant Pandey v UOI,*AIR 1987 SC 232 : (1987) 1 SCC 66.

56 *Vishaka v State of Rajasthan,*AIR 1997 SC 3011 : (1997) 6 SCC 241.

57 *M C Mehta v State of TN,*AIR 1997 SC 699 : (1996) 6 SCC 756.

58 *Assn. v UOI,*AIR 1992 SC 161 : (1992) 1 SCC 119.

59 AIR 1994 SC 268 : (1993) 4 SCC 441.

60 Professor S P Sathe, *Judicial Activism in India*, 2nd Edn, p 27.

61 AIR 1967 SC 1643 : (1967) 2 SCR 762.

62 AIR 1967 SC 1643 : (1967) 2 SCR 762.

63 AIR 1973 SC 1461 : (1973) 4 SCC 225.

64 M P Jain, *Indian Constitutional Law*, 6th Edn, 2010, vol II, p 2251.

65 **See** Fazil Karim J., *Judicial Review of Public Action*, Pakistan Supreme Court, 2006, vol 1, **pp** 479-80.

66 *Bombay Dyeing & Mfg. Co Ltd (3) v Bombay Environmental Action,*AIR 2006 SC 1489 : (2006) 3 SCC 434.

67 *Confederation of Ex-Servicemen, Assam v UOI,*AIR 2006 SC 2945 : (2006) 8 SCC 399.

68 *Hasin Ali Raihany v UOI,*AIR 2006 SC 1714 : (2006) 3 SCC 705.

69 *T N Godavarman Thirumulpad v UOI,*(2006) 1 SCC 1 : AIR 2005 SC 4256.

70 *Bombay Dyeing & Mfg. Co Ltd v Bombay Environmental Action Group,*AIR 2006 SC 1489 : (2006) 3 SCC 434 (*supra*).

71 *Intellectual Forum v State of AP,*AIR 2006 SC 1350 : (2006) 3 SCC 549.

72 *T N Godavarman Thirumulpad v UOI,*(2006) 1 SCC 1 : AIR 2005 SC 4256.

73 *Zahira Habibullah Sheikh v State of Gujarat,*AIR 2006 SC 1367 : (2006) 3 SCC 374.

74 *Lata Singh v State of UP,*AIR 2006 SC 2522: (2006) 5 SCC 475.

75 *M C Mehta v UOI,*AIR 2006 SC 1325 : (2006) 3 SCC 399.

76 *M C Mehta v UOI*(2006) 7 SCC 456 : (2006) 12 JT 351.

77 *Moti Lal Saraf v State of J & K,*(2006) 10 SCC 560 : AIR 2007 SC 56.

78 *State of Bihar v Project Uchcha Vidya Sikshak Sangh,*(2006) 2 SCC 545; *Vikram Vir Vohra v Shalini Bhalla,*AIR 2010 SC 1675 : (2010) 4 SCC 409.

79 *Archbishop Raphael Cheerath SVD v State of Orissa,*(2009) 17 SCC 87 : (2009) 17 SCC 86; (2009) 17 SCC 704; (2009) 17 SCC 90; *NHRC v State of Gujarat,*(2009) 17 SCC 616; (2010) 12 SCC 508.

80 *People's Union for Civil Liberties v UOI,*(2010) 11 SCC 719 : (2010) 7 Scale 488.

81 *People's Union for Civil Liberties v UOI,*(2009) 16 SCC 596.

82 *Manish Goel v Rohibni Goel,*AIR 2010 SC 1099 : (2010) 4 SCC 393.

83 *Vikram Vir Vohra v Shalini Bhalla,*AIR 2010 SC 1675 : (2010) 4 SCC 409 (*supra*).

84 *M C Mehta v UOI,*(2010) 12 SCC 172 : (2010) 2 Scale 20.

85 *Budhadev Karmaskor v State of West Bengal,*(2011) 10 SCC 283 : (2011) 9 Scale 327; (2011) 10 SCC 277 : AIR 2011 SC 2636; (2011) 10 SCC 354 : (211) 12 JT 15; (2011) 10 SCC 538; (2011) 10 SCC 351.

86 *Academy of Nutrition Improvement v UOI,*(2011) 8 SCC 274 : (2011) 8 JT 16.

87 *Krishan Lal Gera v State of Haryana,*AIR 2011 SC 2970 : (2011) 10 SCC 529; **see** also *Jayalalitha v Government. of Tamil Nadu*(1999) 1 SCC 53 : AIR 1999 SC 2330.

88 *Unnikrishnan v State of AP,*AIR 1993 SC 2178 : (1993) 1 SCC 645.

89 *State of Maharashtra v Champalal Punjaji Shah,*AIR 1981 SC 1675 : (1981) 3 SCC 610; *Hussainara Khatoon (v) v State of Bihar,*(1980) 1 SCC 108; *Sheela Barse v State of Maharashtra,*AIR 1983 SC 378 : (1983) 2 SCC 96; *Rudul Sah v State of Bihar,*AIR 1983 SC 1086 : (1983) 4 SCC 141; *Sunil Batra v Delhi Admn.,*AIR 1980 SC 1579 : (1980) 3 SCC 488; *Board of Trustees of the Port of Bombay v Dilip Kumar,*AIR 1983 SC 109 : (1983) 1 SCC 124; *M.H. Hoskot v State of Maharashtra,*AIR 1978 SC 1548 : (1978) 3 SCC 544.

90 *Vishaka v State of Rajasthan,*AIR 1997 SC 3011 : (1997) 6 SCC 241 (*supra*).

91 T K Tope, *Constitutional law of India*, 3rd Edn, revised by Sujatha V Manohar, 2010, p 725, 727-28.

92 T K Tope, *Constitutional law of India*, 3rd Edn, revised by Sujatha V Manohar, 2010, p 729.

93 *National Textile Workers' Union v P.R. Ramakrishnan,*AIR 1983 SC 75 : (1983) 1 SCC 228.

94 *Fertilizer Corp Kamgar Union v UOI,*AIR 1981 SC 344 : (1981) 1 SCC 568.

95 *S.R. Bommai v UOI,*AIR 1994 SC 1918 : (1994) 3 SCC 1; **see** also *Rameshwar Prasad (VI) v UOI,*(2006) 2 SCC 1 : AIR 2000 SC 980.

96 AIR 1973 SC 1461 : (1973) 4 SCC 225.

97 AIR 1967 SC 1643 : [1967] 2 SCR 762.

98 Upendra Baxi, *The Constitutional Quicksands of Kesavananda Bharati and the Twenty-FifthAmendment*, Supreme Court Cases (Journal), vol 1, 1974, p 45.

99 Granville Austin, *Working a Democratic Constitution*, p 276.

1 **See** Burt Neuborne, The Supreme Court of India, International Journal of Constitutional Law, 2003, **p** 476.

2 *Salal Hydro-Electric Project v State of J & K,*(1984) 3 SCC 538.

3 *Chaitanya Kumar v State of Karnataka,*AIR 1986 SC 825 : (1986) 2 SCC 594.

4 AIR 1987 SC 579 : (1987) 1 SCC 378.

5 *Vineet Narain v UOI,*AIR 1998 SC 889 : (1998) 1 SCC 226.

6 AIR 2007 SC 861 : (2007) 2 SCC 1.

7 Granville Austin, *Working a Democratic Constitution – A History of the Indian Experience*, Second Impression, 2004, p 662.

8 *Ram Jethmalani v UOI,*(2011) 8 SCC 1 : (2011) 7 JT 104. (**See** also *Vineet Narain v UOI,*(1996) 2 SCC 199 : AIR 1996 SC 3386; *NHRC v State of Gujarat,*(2004) 8 SCC 610 : (2004) 10 Scale 121; *Sanjiv Kumar v State of Haryana,*(2005) 5 SCC 517 : (2006) 1 SCC (Cri) 235; *Centre for Public Interest Litigation v UOI,*(2011) 1 SCC 560 : (2010) 13 Scale 501.

9 *State of HP v Umed*, AIR 1986 SC 847 (*851*).

10 *Bandhua v UOI*, AIR 1984 SC 802.

11 *D.R.C.L. v UOI,*(1988) 1 SCC 122 (para 9); *Jacob v K.W.A.,*(1991) 1 SCC 28 (para 8); *State of Haryana v Piara,*(1992) 4 SCC 118 (para 21) — 3 Judges; *Indra Sawhney v UOI,* (1992) Supp (3) SCC 217 (paras 22-28, 320-23) 9 Judges.

12 A M Ahmadi, Judicial Process : Social Legitimacy and Institutional Validity, (1996) 4 SCC (Journal) pp 1-10.

13 *Vishal v UOI*, AIR 1990 SC 1412 (paras 8, 14).

14 *Minersville Bd. v Gobitis,*(1940) 310 US 599 (*601*).

15 *Trustees of Clyde Navigation v Laird,* 8 App. Cas 673.

16 *Mcculloch v Maryland,*(1819) 5 Wh 316*(415)*.

17 *Toronto Corp v Bell Telephone Co,(1905) AC 52*.

18 *Borgins v Falk,*(1911) 147 Wis 327.

19 *Att.-Gen. v Holland,* 15 CLR 46.

20 *Schneiderman v U.S.,*(1942) 320 US 118.

21 *Martin v Struthers,* (1942) 319 U.S. 141.

22 *U.S. v Classic,*(1941) 313 US 299.

23 *Pensacola Tel. Co v W.U. Tel. Co,*(1877) 96 US 1.

24 **See also** Re Debs., (1895) 158 US 564.

25 *Wickard v Filburn,*(1942) 317 US 111.

26 *Missouri v Holland,*(1920) 252 US 416 (*433*).

27 **Cf.** C.C.L., pp 204-05.

28 *U.S. v Classic,* (1941) 313 U.S.

29 *James v Commonwealth,(1936) AC 587* (614).

30 *R. v Brislan,*(1935) 54 CLR 262.

31 *R. v Burgess,*(1936) 55 CLR 608; *Australian National Airways v Commonwealth,*(1947) 71 CLR 29.

32 **Cf.** C.C.L., pp 204-05.

33 *Trustees of Clyde Navigation v Laird,* 8 App. Cas 673.

34 *A.G. of Ontario v A.G. of Canada*, AIR 1947 PC 99 (*100*).

35 *A.G. of Alberta v A.G. of Canada,(1939) AC 117*.

36 *A.G. of Ontario v A.G of Canada,(1947) AC 127* (*153*).

37 *Trustees of Clyde Navigation v Laird,* 8 App Cas 673.

38 *Borgins v Falk,*(1911) 147 Wis 327.

39 Wynes, Legislative and Executive Powers, 1962, pp 32-36.

40 Willoughby, *Constitutional Law,* vol I, p 71.

41 *Dartmouth College v Woodward,*(1819) 4 Wh 518; *State of Madras v Dunkerly,*(1959) SCR 379 (*416*).

42 *Dartmouth College v Woodward,*(1819) 4 Wh 518.

43 *A.G. of Ontario v A.G. of Canada*, AIR 1937 PC 99; *A.G. of Alberta v A.G. of Canada*, AIR 1948 PC 194 (198).

44 *James v Commonwealth,(1936) 2 All ER 1449* (*1464-5*) PC.

45 Gray, *Nature & Source of the Law,* Article. 370.

46 Abraham Lincoln, *First Inaugural Address*; *Martin v Hunter's Lessee,*(1816) 1 Wh 304 (*326*).

47 *Bank of U.S. v Deveaux,*(1809) 5 Cr 61 (*87*); *McCulloch v Maryland,*(1819) 4 Wh 316 (*407*).

48 Some six thousand words or so.

49 Frankfurter J. in *Graves v N.Y.,*(1939) 306 US 466 (*491*); *Fed. Housing Admn. v Darlington,*(1958) 358 US 84 (*92*).

50 Similarly broad terms are "due process", "cruel and unusual punishment", "necessary and proper" [Article I, section 8(18)]; "general welfare" [Article. I, section 8(1)].

51 The framers of our *Constitution* assumed that the expression "personal liberty" would leave no room for judicial speculation but recent decisions of our Supreme Court are seeking to spin out as much as possible from the expression (**see** under Artile 21, *post*).

52 **Cf**. *Pensacola Tel. Co v W.U. Tel. Co,*(1878) 96 US 1.

53 **Cf.***R v Brislan,*(1935) 54 CLR 262; *R. v Vizzard,*(1933) 50 CLR 30; *R. v Burgess,*(1936) 55 CLR 608.

54 Parliamentary Debates, Pt II, pp 8817-8.

55 *E.g., in Kanniyan v I.T.O.*, AIR 1968 SC 637 (*640*).

56 *Khare v State of Delhi,*(1950) SCR 519 (*532*); *State of Madras v Row,*(1952) SCR 597 (*606-7*); *Indu Singh v State of Rajasthan*, AIR 1957 SC 510 (*517*); Author's Tagore Law Lectures on *Limited Government and Judicial Review,* Lecture V.

57 **Cf**. *Kochunni v State of Madras,* (II), AIR 1960 SC 1080 (*1091*); *Cooper v UOI,*(1970) 1 SCC 248.

58 *India Cement v State of TN,*(1990) 1 SCC 12 (para 17) – 7 Judges; *UOI v Raghuvir,*(1989) 2 SCC 754 (paras 7-15) CB.

59 **Cf**. *Municipal Corp v I.O.C.,* (1991) Supp. (2) SCC 18 (paras 18, 19); *Gupta v UOI,*(1981) Supp SCC 87; *L.I.C. v Manubhai,*(1992) 3 SCC 637 (paras 6–7).

60 *Kihota v Zachillhu,* (1992) Supp (2) SCC 651 (paras 27-28) CB.

61 (*Lynch v D.P.P.,(1975) 1 All ER 913* (943) (HL); *Miliangos v George,(1975) 3 All ER 801* (823) (HL). (**See** p 180, *ante*).

62 D D Basu, Function of court to interpret, not to make or reform law, *Comparative ConstitutionalLaw*, 2008, pp 228-230.

63 Cardozo, Nature of the Judicial Process, 1921, pp 19-21; *Mutual Life Assce. Co v Evan,*(1969) 122 CLR 556 (563).

64 ***Cf.***.*N.Y v U.S.,*(1946) 326 US 572 (590-91); *U.S. v International Boxing Club,*(1955) 348 US 236 (249).

65 ***Cf.***.*N.Y v U.S.,*(1946) 326 US 572 (590-91); *U.S. v International Boxing Club,*(1955) 348 US 236 (249).

66 *Smith v Allwright,*(1944) 321 US 649; *Burnet v Coronado Oil Co,*(1932) 285 US 393 (405-10).

67 Cardozo, *Nature of Judicial Process*, 1921, p 141; *Myers v DPP,* (1965) AC 1009 (1021-22)

68 *Cooper v UOI,*(1970) 1 SCC 248 (294).

69 Cardozo, *Nature of Judicial Process*, 1921, p 141; *Myers v DPP,* (1965) AC 1009 (1021-22)

70 *Re. C.P. & Berar Act,*(1939) FCR 18 (37).

71 *Re. C.P. & Berar Act,*(1939) FCR 18 (37).

72 *River Wear Commmrs. v Adamson,(1877) 2 App. Cas. 743* (764-765), Blackburn J. (766-67); *A.G. v Augustus,(1957) AC 436* (460-61); *State of TN v Malhotra,*AIR 1976 SC 800 : (1976) 1 SCC 834.

73 *River Wear Commmrs. v Adamson,* (1877) 2 App.Cas. 743 (764-765); Blackburn J. (766-67); *A.G. v Augustus,(1957) AC 436* (460-61); *State of TN v Malhotra,*AIR 1976 SC 800. **Cf.***Grey v Pearson,*(1857) 6 HLC 61 (106) or gross injustice (*River Wear Commmrs. v Adamson,* (1877) 2 App.Cas. 743 (764-765); Blackburn J. (766-67).

74 *Geelong Trust Commrs. v Gibbs,*(1974) 48 ALJR 1 (4) PC; *State Bank of India v Sundara,*AIR 1976 SC 1111; *Chandra Mohan v State of UP,*AIR 1966 SC 1987 (para 14).

75 *Heydon's case*(1854) 3 Co Rep 7a; *Hickman v Parcy,(1945) AC 304* (315); *R.M.D.C. v UOI,*(1957) SCR 930 (936).

76 **Cf**. *Magor & St. Mellons R.D.C. v Newport Corp,(1951) 2 All ER 839* (841, 847) (HL); *Gupta v UOI,*AIR 1982 SC 149 (paras 1, 271, 273.

77 **Cf**. *Liyanage v R.,(1967) AC 259* (286-88).

78 *McCullock v Maryland,*(1819) 4 Wh 316 (413).

79 *Pensacola Tel. Co v W.U. Tel. Co,*(1877) 96 US 1.

80 *South Australia v Commonwealth,*(1942) 65 CLR 373 (409-10).

81 D D Basu, Function of court to interpret, not to make or reform law, *Comparative ConstitutionalLaw*, 2008, p 226..

82 *Phillips India Ltd v Labour Court*, (1985) 3 SCC 103, 112 : AIR 1985 SC 1034 : (1985) 3 SCC 103; *Mohan Kumar Singhania v UOI*, AIR 1992 SC 1, 29 : 1992 Supp. (1) SCC 594; *Kailash Chandra v Mukundi Lal*, AIR 2002 SC 829, 833 : (2002) 2 SCC 678; *Padma Sundar Rao v State of TN*, AIR 2002 SC 1334, 1340 : (2002) 3 SCC 533. **See** also *UOI v Elphinstone Spg. & Wvg. Co Ltd,*AIR 2001 SC 724; *State of WB v UOI,*AIR 1963 SC 1241 : (1964) 1 SCR 371; *The More Modern Co-op. Transport Society Ltd v FinancialCommissioner,*AIR 2002 SC 2513 : (2002) 6 SCC 269.

83 *Citizens Ins. Co v Parsons,(1881) 7 App Cas 96* (*108*).

84 *Calcutta Gas Co (Prop.) Ltd v State of WB,*AIR 1962 SC 1044 : 1982 (Supp-3) SCR 1; *Sultana Begum v Premchand Jain,*AIR 1997 SC 1006 : (1997) 1 SCC 373; *CIT v Hindustan Bulk Carriers,*(2003) 3 SCC 57 : AIR 2003 SC 3942.

85 *J & K Cotton Spg. & Wvg. Mills v State of UP,*AIR 1961 SC 1170 : (1962) 1 SCJ 417; *Anwar Hasan Khan v Mohammed Shaji,*AIR 2001 SC 2984 : (2001) 8 SCC 540.

86 *Marri Chandra Shekhar Rao v Dean, Seth G.S. Medical College,*(1990) 3 SCC 130; **see** also *Golak Nath v State of Punjab,*AIR 1967 SC 1643 : (1967) 2 SCR 762.

87 *K.K. Kochunni v UOI,*AIR 1060 SC 1080 : (1960) 3 SCR 887; *T Devadasan v UOI,*AIR 1964 SC 179 : (1964) SCR 680; *Prem Chand Garg v Excise Commr.,*AIR 1963 SC 996 : 1963 (Supp-1) SCR 885.

88 Re C.P. Motor Spirit Act, AIR 1939 FC 1 (*31*).

89 Re C.P. Motor Spirit Act, AIR 1939 FC 1 (*31*).

90 *Navinchandra v CIT,*(1955) 1 SCR 829; *Waverly Jute Mills v Raymon & Co*, AIR 1968 SC 90 (95); *State of Bombay v Balsara*, AIR 1951 SC 318; *Tika Ramji v State of UP*, AIR 1956 SC 676.

91 *Venkataraman Devaru v State of Mysore*, AIR 1958 SC 255 : 1958 SCR 895; *Krishna Kumar v State of Rajasthan*, AIR 1992 SC 1789, 1794 : 1991 (3) SCR 500; *Sultana Begum v Prem Chand Jain*, AIR 1997 SC 1006, 1009, 1010 : 1997 (1) SCC 373; *British Airways Plc. v UOI*, AIR 2002 SC 391, 393.

92 *Venkataramana v State of Mysore*, AIR 1958 SC 255 (268).

93 *State of Madras v Champakam,*(1951) SCR 525 (*531*).

94 *Qureshi v State of Bihar*, AIR 1958 SC 731 (*739*).

95 *State of Bombay v Bombay Education Society,* (1955) 1 SCR (*584*).

96 *Sharma v Sri Krishna*, AIR 1959 SC 394.

1 *Nanavati v State of Bombay*, AIR 1961 SC 112 (*123*).

2 *Devadasan v UOI*, AIR 1964 SC 179 (*188*); *General Manager v Rangachari*, AIR 1962 SC 36 (*46*).

3 *General Manager v Rangachari*, AIR 1962 SC 36 (*46*).

4 *Comptroller v Jagannathan*, AIR 1987 SC 537 (paras 21-22, 30-31).

5 **Cf.***Balaji v State of Mysore*, AIR 1963 SC 649 (*664*).

6 *B.S.H.K.P. v UOI*, AIR 1985 SC 983 (para 3); *Jayasree v State of Kerala*, AIR 1976 SC 2381.

7 *Indra Sawhney v UOI,* (1992) Supp. (3) SCC 217 (paras 827-29, 838).

8 *St. Stephen's College v University of Delhi,*(1992) 1 SCC 558 (para 96) CB (per SHETTY, J.)

9 Re, *C.P. & Berar Motor Spirit & Lubricants Taxation Act*, AIR 1939 FC 1, 5; *G.G. in Council v Priovince of Madras*, AIR 1945 PC 98, pp 100, 101; *Calcutta Gas (Proprietory) Ltd v State of West Bengal*, AIR 1962 SC 1044, 1050; *Waverly Jute Mills Co Ltd v Raymon & Co (India) Pvt Ltd*, AIR 1963 SC 90, 95 : 1963 (3) SCR 209.

10 *Godfrey Phillips India Ltd v State of UP,*AIR 2005 SC 1103 : (2005) 2 SCC 515.

11 *Harakchand Ratanchand Banthia v UOI,*AIR 1970 SC 1453 : (1969) 2 SCC 166; *Hoechst Pharmaceuticals Ltd v State of Bihar,*AIR 1983 SC 1019 : (1983) 4 SCC 45.

12 *Special Ref. No. 1 of 2001, Re.*AIR 2004 SC 2647 : (2004) 4 SCC 489; **see** also *Tripura Goods Transport Assn. v Commr. of Taxes,*AIR 1999 SC 719 : (1999) 2 SCC 253; *Express Hotels Pvt Ltd v State of Gujarat,*AIR 1989 SC 1349 : (1989) 3 SCC 677; *Elel Hotels & Investments Ltd v Government. of Kerala,* 1995 (Supp-2) SCC 187; *UOI v Shah Gobardhan L Kabra Teachers' College,*AIR 2002 SC 3675 : (2002) 8 SCC 228). In *SIEL Ltd v UOI,*AIR 1998 SC 3076 : (1998) 7 SCC 26, the principle of harmonious construction was applied to resolve the apparent conflict between entry 52 of List I and entries 24, 26 of List II. (*State of AP v National Thermal Power Corp,*AIR 2002 SC 1895 : (2002) 5 SCC 203; *Zameer Ahmed Latiful Rehman Sheik v State of Maharashtra,*AIR 2010 SC 2633 : (2010) 5 SCC 246; *Kartar Singh v State of Punjab,*(1994) 3 SCC 569; *Bharat Hydro Power Corp Ltd v State of Assam,*(2004) 2 SCC 553).

13 *R.C. Poudyal v UOI,*AIR 1993 SC 1804 : 1994 Supp (1) SCC 325.

14 *State of Sikkim v Surendra Prasad Sharma,*AIR 1994 SC 2342 : (1994) 5 SCC 282.

15 *Warburton v Loveland,*(1832) 2 D &Cl. 480 (*500*).

16 *Institute of Patent Agents v Lockwood,(1894) AC 347* (*360*) HL; *Laxmi Devi v Mukand*, AIR 1965 SC 834 (*838*).

17 *St. Stephen's College v University of Delhi,*(1992) 1 SCC 558 (para 96, 140) CB (per Shetty J.)

18 *J.K. Synthetics Ltd v Commercial Taxes Officer*, JT 1994 (3) SC 671, 685 : AIR 1994 SC 2393, 2400. **See** also *Management of Advance Ins. Co Ltd v Gurudasmal,*AIR 1970 SC 1126 : (1970) 1 SCC 633; *CIT v Hindustan Bulk Carriers,*(2003) 3 SCC 57; *D. Saiba v Bar Council of India,*AIR 2003 SC 2502.

19 *Harihar v Ram Sashi*, AIR 1918 PC 102. [As in a welfare legislation : *C.S.C. v ESIC*, AIR 1993 SC 252 (para 15); *Hajir v I. Ry.*, AIR 1993 SC 361 (para 5)].

20 *CIT v Teja Singh*, AIR 1959 SC 352.

21 *U.S. v Classic,*(1941) 313 US 299.

22 *Welfare Assn., ARP, Maharashtra v Ranjit P. Gohil,*AIR 2003 SC 1266 : (2003) 9 SCC 358.

23 *Pratap Singh v State of Jharkhand,*AIR 2005 SC 2731 : (2005) 3 SCC 551.

24 *Faweett Properties Ltd v Buckingham County Council,(1960) 3 All ER 503*.

25 *Whitney v IRC,(1926) AC 37*; *Tinsukhia Electric Supply Co v State of Assam,*AIR 1990 SC 123 : (1989) 3 SCC 709; **see** also *Andhra Bank v B. Satyanarayana,*(2004) 2 SCC 657; *Indian Handicrafts Emporium v UOI,*AIR 2003 SC 3240 : (2003) 7 SCC 589; *Shyam Kishori Devi v Patna Municipal Corp,*AIR 1966 SC 1678 : (1966) 3 SCR 466.

26 *CIT v Distributor (Baroda) Pvt Ltd,*AIR 1972 SC 288 : (1972) 4 SCC 353; *Udhayan Chinubhai v R.C. Bali,*AIR 1977 SC 2319 : (1979) 4 SCC 309; *Krishna Chandra Gangopadhyaya v UOI,*AIR 1975 SC 1389 : (1975) 2 SCC 302.

27 Halsbury's *Laws of England*, 2nd Edn vol 27, p 147.

28 *Yorkshire Fire & Life Ins. Co v Clauton,(1881) 8 QBD 421*.

29 *Crawford v Spooner,* (1846) 6 Moo, PC 9.

30 *Mager & St. Mellons v Newport Corp,(1951) 2 All Er 839* (*841*) HL.

31 Re *C.P. Motor Spirit Taxation Act,*(1938) 2 FLJ 6 (*15*) : AIR 1939 FC 1.

32 *A-G. of Ontario v A-G. of Canada,*(1938) 25 Cal WN 886 (*896*) (PC).

33 *DTC v DTC Mazdoor Congress,*AIR 1991 SC 101 : 1991 (Supp-1) SCC 600.

34 *John Deere Plow v Wharton,(1915) AC 330* (*338*).

35 *Kamra v N.I.A.,*(1992) 2 SCC 36 (para 4); *D.T.C. v D.T.C. Mazdoor,* (1991) Supp (1) SCC 600 (para 118) CB : AIR 1991 SC 101.

36 *Kanaiyalal v Indumali*, AIR 1958 SC 444 (*447*).

37 *United States v Delaware,*(1909) 213 US 336.

38 *Peirsacola Tel. Co v W.U. Tel. Co,* (1877) 96 U.S. 1.

39 Cf. Kerala Education Bill, Re, AIR 1958 SC 956; *Prem Sagar v Standard Oil Co,*(1964) 5 SCR 1030 (*1038*); *Kedar Nath v State of Bihar*, AIR 1962 Sc 955 (*969*); *Govindlalji v State ofRajasthan*, AIR 1963 SC 1638 (*1655*). **See** also *Daniel Latif v UOI,*AIR 2001 SC 3958 : (2001) 7 SCC 740; *UOI v Elphinstone Spg. & Wvg. Co Ltd,*AIR 2001 SC 724; *B.R.Enterprises v State of UP,*AIR 1999 SC 1867 : (1999) 9 SCC 700; *UOI v Tulsiram Patel,*AIR 1986 SC 1541 : (1986) 3 SCC 398; *Anirudha Ramakrishna Karlekar v Janakibhai R. Bedakar,*AIR 1991 SC 503 : (1991) 1 SCC 649; *Hotel Balaji v State of AP,*AIR 1993 SC 1048; *Githa Hariharan (Mrs.) v RBI,*AIR 1999 SC 1149 : (1999) 2 SCC 228 : (1999) 2

Mad LJ 62 (SC); *Re. Hindu Women's Right to Property Act,*AIR 1941 FC 72; *Express Newspapers Ltd v UOI,*AIR 1958 SC 578 : (1959) SCR 12.

40 *Northern Securities Co v US,* 193 US 197 t p 400.

41 *H.S. Vankani v State of Gujarat,*AIR 2010 SC 1714 : (2010) 4 SCC 301.

42 *State of Bihar v Charushila*, AIR 1959 SC 1002 (*1010*). **See** also *K.K. Baskaran v State,*AIR 2011 SC 1485 : (2011) 3 SCC 793 : (2011) 4 LW 501 : (2011) 2 CTC 887; *Offshore Holdings Pvt Ltd v Bangalore Development Authority,*(2011) 3 SCC 139.

43 Cooley, *Constitutional Limitations,* p 217. [**See** under *Article 245*, *post*].

44 *McLeod v A.G. for New South Wales*, *(1891) AC 455*.

45 *McLeod v A.G. for New South Wales*, *(1891) AC 455*; *R.M.D.C. v UOI*, AIR 1957 SC 628.

46 *Punjab Co-operative Bank v I.T.O.*, AIR 1940 PC 230 (233).

47 *Bhikraj v UOI*, AIR 1962 SC 110 (*113*).

48 *State of UP v Manbhodan Lal Srivastava,*AIR 1957 SC 912 : (1958) SCR 533; following *Mantiel Railway v Normandin,(1917) AC 170*; **see** also *Bishwanath Khemka v R,*AIR 1945 FC 67 : (1945) FCR 99.

49 **See** also *Ram Gopal v State of MP,*AIR 1970 SC 158 : (1970) 1 SCR 472; **see** also *State of AP v Rahimuddin Kamal,*AIR 1997 SC 947 : (1997) 10 SCC 570.

50 *R. Hariharan v V.K. Balachandran Nair,*AIR 2000 SC 2933 : (2000) 7 SCC 399.

51 *R. v Tithe Commrs.,(1850) 14 QB 474*; *Re Shutter*, *(1960) 1 QB 142*; *Baron v Jennings,(1965) 2 All ER 714* (732); *State of UP v Jogendra*, (1964) 2 SCR 197 (*202*).

52 *Hari Vishnu v Ahmad,*(1955) 1 SCR 1104 (*1125*); *State of MP v Azad Bharat Finance Co*, AIR 1967 SC 276.

53 *Liverpool Bank v Turner,*(1860) 2 De G.F. & J. 502 (*507-8*).

54 *Howard v Bodington,(1877) 2 PD 203* (*211*).

55 *Dinesh Chandra Pandey v High Court of MP,*AIR 2010 SC 3055 : (2010) 11 SCC 500.

56 *Dalco Engg. Pvt Ltd v Satish Prabhakar Padhye,*(2010) 4 SCC 378 : AIR 2010 SC 1310.

57 *Jaswant v A.M.C.,* (1992) Supp (1) SCC 5 (para 17) - 3 Judges; *Lakshmanasami v CIT,*(1992) 1 SCC 91 (paras 4, 6).

58 **See** also *Municipal Corp of Greater Bombay v Dr Hakimvadi Tenants Assn.,*AIR 1988 SC 233 : 1988 (Supp.) SCC 55; *Bhavnagar University v Palitana Sugar Mills Pvt Ltd,*AIR 2003 SC 511 : (2003) 2 SCC 111.

59 *Jyoti Prakash Mitter v Chief Justice of Calcutta High Court,*AIR 1965 SC 961 : (1965) 2 SCR 53.

60 *Chandra Mohan v State of UP,*AIR 1966 SC 1987 : 1967 (1) SCR 77; *State of J & K v A.R. Zakki,*AIR 1992 SC 1546 : 1992 (Supp-1) SCC 548.

61 *Vijay Narayan Thatte v State of Maharashtra,*(2009) 9 SCC 92 : (2009) 15 JT 92.

62 *Ram Deen Maurya (Dr) v State of UP,*(2009) 6 SCC 735 : (2009) 6 Scale 189.

63 *SBI v B.S. Agriculture Industries,*AIR 2009 SC 2210 : (2009) 5 SCC 121.

64 *Harinder Singh v Bagun Sumbrai,*AIR 1972 SC 1242 : (1973) 3 SCC 889; *Lakshmi Narain v UOI,*AIR 1976 SC 714; *M. Pentiah v Muddala Veeramallappa,*AIR 1961 SC 1107 : (1961) 2 SCR 295; *Nasiruddin v Sitaram Agarwal,*(2003) 2 SCC 577.

65 *Lamba v UOI,*AIR 1985 SC 1019 : (1985) 2 SCC 604; *Lila Gupta v Laxmi Narain,*AIR 1978 SC 1351 : (1978) 3 SCC 258; *Bombay Union of Journalists v State of Bombay,*AIR 1964 SC 1617 : (1964) 6 SCR 22.

66 *Dhian Singh Sobha Singh v UOI,*AIR 1958 SC 274 : (1958) SCR 781; *Vellayan Chettiar v Government of Madras,*AIR 1947 PC 197; *Vasant v Bombay Municipality,*AIR 1981 Bombay 394 (FB); *Bishan Dayal & Sons v State of Orissa,*(2001) 1 SCC 555 : AIR 2001 SC 544.

67 *Special Ref. No.1 of 2002 (under Article 143 of the Constitution - Gujarat Election case*), AIR 2003 SC 87 : (2002) 8 SCC 237; *Ashok Singh v Asst. Controller of Estate Duty,*AIR 1992 SC 1756; *Raj Kumar Dey v Tarapada Dey,*AIR 1987 SC 2195 : (1987) 4 SCC 388; *Vatan Mal v Kailash Nath,*AIR 1989 SC 1534 : (1989) 3 SCC 79.

68 AIR 1999 SC 3491 : (1999) 7 SCC 209 (*supra*); **see** also *M. Nagaraj v UOI,*(2006) 8 SCC 212 : AIR 2007 SC 71.

69 *AP Public Service Commission v Balaji Badhavath,*(2009) 5 SCC 1 : (2009) 4 JT 614; *Nair Service Society v Dr T. Beermastan,*(2009) 5 SCC 545 : (2009) 4 JT 614.

70 *Biharilal v Bhuri Devi,*AIR 1997 SC 1879 : (1997) 2 SCC 279; **see** also *K P Chowdhary v State of MP,*AIR 1967 SC 203 : (1966) 3 SCR 919; *Mulam Chand v State of MP,*AIR 1968 SC 1218 : (1968) 2 SCR 880; *State of UP v Murari Lal,*AIR 1971 SC 2210 : (1971) 2 SCC 449; *N. Ramanatha Pillai v State of Kerala,*AIR 1973 SC 2461; *Jit Ram Shivkumar v State of Haryana,*AIR 1980 SC 1285 : (1981) 1 SCC 11.

71 *Harinder Singh v Bagun Sumbrai,*AIR 1972 SC 1242 : (1973) 3 SCC 889 (*supra*); *Centre for Public Interest Litigation v UOI,*AIR 2003 SC 3277 : (2003) 7 SCC 532.

72 *Stevens v Gourley,*(1859) 29 LJ CP 1.

73 *Montreal Street Ry. v Normandin,(1917) AC 170* (*174*).

74 *R. v Herefordshire J.J.,*(1820) 1 Chit 700; *Margate Pier Co v Hannam,(1819) 106 ER 661*; *R v Fox,* (1858) E & B 939.

75 *Cullimore v Lyne Regis. Corp,(1961) 3 All ER 1008*. **See** also *Baru Ram v Parsanni,*AIR 1959 SC 93 : (1959) SCR 1043.

76 *Public Prosecutor v Koi,(1968) AC 829* (*852*) PC : *(1968) 1 All ER 419* (*422*) PC. **See** also *Manilal Mohanlal Shah v Sardar Sayed Ahmed Syed Mohammed,*AIR 1954 SC 349 : (1955) 1 SCR 108; *Rao Mohmood Ahmed Khan v Ranbir Singh,*1955 AIR SCW 1584; *BOI Finance Ltd v Custodian,*AIR 1997 SC 1952 (1997) 10 SCC 488.

77 *C.B.I. v Kulkarni,*(1992) 3 SCC 141 (para 11).

78 Attorney General's (Ref. No. 3 of 1999), *(2001) 1 All ER 577* at p 583 (e-f) (HL).

79 *Jaswant v A.M.C.,* (1992) Supp (1) SCC 5 (para 17) - 3 Judges

80 *Ranjit v UOI*, AIR 1987 SC 2386.

81 *Bhavnagar University v Palitana Sugar Mills Pvt Ltd,*AIR 2003 SC 511 : (2003) 2 SCC 111 (*supra*); **see** also *Nuttakki Sesharatnam v Sub Collector, L.A.,*AIR 1992 SC 131 : (1992) 1 SCC 114; *State of Haryana v Raghbar Dayal,*(1995) 1 SCC 133; *State of Haryana v Raghubar Dayal,*(1995) 1 SCC 133; *Mandi Samithi v Makrand Singh,*(1995) 2 SCC 497; *Syed Hasan Rasul v UOI,*AIR 1991 SC 711 : (1991) 1 SCC 401.

82 *Ranjit v UOI*, AIR 1987 SC 2386.

83 16 Corpus Juris Section, *Articles 61-65*, p 174; Cooley, *Constitutional Limitations*, pp 159-60.

84 *UOI v Tulsiram Patel*, (1985) 3 SCC 398 : AIR 1985 SC 1416; *Olga Tellis v Bombay Municipal Corp*, (1985) 3 SCC 545 at 577-584; *Charanlal Sahu v UOI*, AIR 1990 SC 1480 at 1540-1541 : (1990) 1 SCC 613; *Managing Director, ECIL v B. Karunakar*, AIR 1994 SC 1074, 1103 : (1993) 4 SCC 727.

85 *Abdul Karim v State of WB*, AIR 1969 SC 1028 (*1034*); *Pankaj v State of WB*, AIR 1970 SC 97 (*101*); *Khairul v State of WB,*(1969) 2 SCWR 529; *Durga Show, in re,*(1069) 2 SCWR 439; *Jaynarayan v State of WB*, AIR 1970 SC 675 (*679*). **See** also *Huidrom Konungjao Singh v State of Manipur,*AIR 2012 SC 2002 : (2012) 7 SCC 181; *Rashid Kapadia v Medha Gadgil,*(2012) 11 SCC 745 : (2012) 7 JT 429; *Mohinuddin v Dt. Magistrate,*(1987) 4 SCC 58; *Harshala SantoshPatil v State of Maharashtra,*(2006) 12 SCC 211 : (2007) 1 SCC (Cr) 680; *Pebam Ningol Mikoi Devi v State of Manipur,*(2010) 9 SCC 618 : (2010) 10 Scale 248; *Ummu Sabeena v State of Kerala,*(2011) 10 SCC 781 : (2011) 13 JT 609.

86 *Rekha v State of TN,*(2011) 5 SCC 244 : (2011) 4 JT 392; **see** also *Kamalesh Kumar Ishwardas Patel v UOI,*(1995) 4 SCC 51; *Abdul Latif Abdul Wahab Sheikh v B.K. Jha,*(1987) 2 SCC 22).

87 *Madhu Limaye, in re*, AIR 1969 SC 1014 (*1919); State of MP v Sobharam*, AIR 1966 SC 1910 (*1918*).

88 **See** also *Raghuvansh Dewanchand Bhasin v State of Maharashtra,*AIR 2011 SC 3393 : (2012) 9 SCC 791 : (2011) 6 CTC 228; *Ramlila Maidan Incident, Re.*(2012) 5 SCC 1 : AIR 2012 SC (Civil) 2021; (2012) Cr LJ 3516.

89 *Narayan v Election Commission,*(1957) SCR 108.

90 *Jyoti Prakash v Chief Justice,*1965 SC 961 (*966*).

91 *State of WB v B.K. Mandal*, AIR 1962 SC 779 (*783*); *Bhikraj v UOI*, AIR 1962 SC 110; *New Marine Coal Co v UOI*, AIR 1967 SC 203.

92 *Sutaria v Bhanbhadia*, AIR 1970 SC 765 (*767*) : (1969) SCC 77.

93 **See***Maharashtra State Road Transport Corp v Babu Govardhan Regular Motor Service,*AIR 1970 SC 1926 : (19l69) 2 SCC 746; *Megna Mills Co Ltd v Asoka Marketing Ltd,*AIR 1971 SC 166 : (1970) 3 SCC 168; *Shere Punjb Silk Store v CIT,*AIR 1973 SC 2401.

94 *State of Bombay v Purshottam,* AIR 1952 SC 317*; Dattatraya v State of Bombay,* AIR 1952 SC 181*; Chitralekha v State of Mysore,* AIR 1964 SC 1323 *(1329); Barsay v State of Bombay,* AIR 1961 SC 1762*. See also State of Rajasthan v Sripal Jain,* AIR 1963 SC 1323 *:* (1964) 2 SCR 722*; Bijoya Cotton Mills v State ofWB,* AIR 1967 SC 1145 *:* (1967) 2 SCR 406*; State Govt. Houseless Harijan Employees' Assn. v State of Karnataka,* AIR 2001 SC 437.

95 *J.P. Bansal v State of Rajathan,*2003 AIR SCW 1848.

96 *UOI v Tulsiram Patel,*AIR 1985 SC 1416 : (1985) 3 SCC 398; *P. Radhakrishna Naidu v Government of AP,*AIR 1977 SC 854 : (1977) 1 SCC 561; *Municipal Corp of Ahmedabad v Benttiraben Manilal,* AIR 183 SC 537 : (1983) 2 SCC 422; *Balakotiah v UOI,*AIR 1958 SC 232 : (1958) SCR 1052; *Berar Swadeshi Vanaspati v Municipal Committee,*AIR 1962 SC 420 : (1962) 1 SCC 596; *Gopal Narain v State of UP,*AIR 1964 SC 370 : (1964) 4 SCR 869.

1 *Syed Abdul v Legislative Assembly*, AIR 1966 Cal 363 (*369-70*).

2 May, *Parliamentary Practice,* 17th Edn, pp 289-291.

3 Halsbury, 3rd Edn, vol 7, Article 511, p 238.

4 *State of Punjab v Satya Pal*, AIR 1969 SC 903 (*916*) : (1969) 1 SCR 478.

5 *State of UP v Srivastava*, AIR 1957 SC 912 : (1958) SCR 533; *Ram Gopal v State of MP*, AIR 1970 SC 158 (*160*). **See** also *UOI v T.V. Patel,*(2007) 4 SCC 785; *Ram GopalChaturvedi v State of MP,*(1969) 2 SCC 240; *Varadarajulu v State of Madras,*AIR 1960 Mad 393; *U.P. Bhat v UOI,*AIR 1962 SC 1344; *State of Bombay v N.T. Advani,*AIR 1963 Bom 12; *J.J. Modi v State of Bombay,*AIR 1962 Guj 197; *Dambarudher Das v State of Orissa,*AIR 1960 Ori 62.

5a *State of UP v Srivastava, ibid.*

6 *Rollo v Minister of Town Planning,(1948) 1 All ER 13* (*17*) CA; *Port Louis Corp v A.G. of Mauritius,(1965) 3 WLR 67* (*72*) PC.

7 *Jyoti Prakash v Chief Justice*, AIR 1965 SC 961 (*966*).

8 *Rollo v Minister of Town Planning,(1948) 1 All ER 13* (*17*) CA

9 *Port Louis Corp v A.G. of Mauritius,(1965) 3 WLR 67* (*72*) PC.

10 *Jyoti Prakash v Chief Justice*, AIR 1965 SC 961 (*966*).

11 *Montreal St. Ry. v Normandin,(1917) AC 170* (*174*).

12 *State of UP v Srivastava*, AIR 1957 SC 912 : (1958) SCR 533; *Ram Gopal v State of MP*, AIR 1970 SC 158 (*160*).

13 *Montreal St. Ry. v Normandin,(1917) AC 170* (*174*).

14 *Biswanath v Emp.*, AIR 1945 PC 912 (*918*) : (1945) FC 67.

15 *Montreal St. Ry. v Normandin,(1917) AC 170(174); Biswanth v Emp.*, AIR 1945 F.C. 67 *(68)*.

16 *State of UP v Srivastava*, AIR 1957 SC 912 (*918*); **See** also *Hazari Mal v I.T.O.*, AIR 1961 SC 200 (*292*); *Ram Gopal v State of MP*, AIR 1970 SC 158 (*160*).

17 *Montreal St. Ry. v Normandin,(1917) AC 170* (*174*).

18 *Kenchiah v State of Recruitment Committee*, AIR 1966 Mys 36 : 1965(2) Mys LJ 160.

19 *Jyoti Prakash v Chief Justice*, AIR 1965 SC 961 (*966*).

20 *Biswanath v Emp.*, AIR 1945 FC 67 (*68*).

21 *Sutaria v Bhanvadia*, AIR 1970 SC 765 (*767*).

22 M P Jain, Justiciability of Directive Principles : Indian Constitutional Law, 5th Edn 2003, chapter XXXIV, Pt V, pp 1599-1600.

23 **See***Article 37, Constitution of India*. **See** also *Kesavananda Bharathi v State of Kerala,*1973 4 SCC 225; *Bhatt v UOI,*(1990) 3 SCC 65; *Markandeya v State of AP,*(1989) 3 SCC 191.

24 Re, M. Thomas, AIR 1953 Mad. 21; *Gadadhar v State of WB*, AIR 1963 Cal. 565; *P.M. Ashurathannarayana Setty v State of Karnataka*, AIR 1989 SC 100 : (1989) Supp. (1) SCC 696.

25 *Ranjan Dwivedi v UOI*, AIR 1983 SC 624 : (1983) 3 SCC 307; *Lily Thomas v UOI*, AIR 2000 SC 1650, 1669 : (2000) 6 SCC 224; *UBSE Bd. v Hari Shankar*, AIR 1979 SC 65, 69 : (1958) 4 SCC 16; *Workmen Minakshi Mills Ltd v Meenakshi Mills Ltd*, AIR 1994 SC 2696 at 2713 : (1992) 3 SCC 336.

26 Re, Krishandas Mandal, AIR 1987 Cal. 11.

27 *Vide* Austin, *Indian Constitution* (1966), p 76.

28 *U.P.S.E.B. v Hari*, AIR 1979 SC 65 (para 4A).

29 AIR 1951 SC 226 : (1951) SCR 525.

30 *Gopalan v State of Madras,*(1950) SCR 88 (*109*).

31 *Venkataramana v State of Mysore*, AIR 1958 SC 255 (*268*).

32 *Mumbai Kamgar Sabha v Abdulbhai,*AIR 1976 SC 1455 : (1976) 3 SCC 832; *Marwa Manghai v Sangram Sanpat,*AIR 1960 Punj 35; *UP State Electricity Board v Hari Shankar,*AIR 1979 SC 65 : (1978) 4 SCC 16.

33 *Ramlila Maidan Incident, Re.*(2012) 5 SCC 1 : AIR 2012 SC (Civil) 2021; (2012) Cr LJ 3516.

34 *Bhim Singh v UOI,*(2010) 5 SCC 538 : (2010) 5 JT 166.

35 Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, Nineth Impression, 2005, p 50.

36 Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, Nineth Impression, 2005, pp 51,52

37 *Venkataramana v State of Mysore*, AIR 1958 SC 255 (*268*).

38 **See** Author's Tagore Law Lectures on Limited Government and Judicial Review.

39 **See** also Granville Austin, *The Indian Constitution – Cornerstone of the Nation*, Nineth Impression, 2005, pp 75-83.

40 S K Hegde, *Journal of Constitutional and Parliamentary Studies*, vol 5 No. 2, 1971, p 157. **See** also *State of WB v Subodh Gopal,*AIR 1954 SC 92 : [1954] 1 SCR 587.

41 *Kerala Education Bill, Re. 1957,*AIR 1958 SC 956 : [1959] 1 SCR 995.

42 *State of Bihar v Kameshwar Singh,*AIR 1952 SC 252 : [1952] 1 SCR 1020.

43 Granville Austin, *The Indian Constitution – Cornerstone of the Nation*, Nineth Impression, 2005, p 50.

44 Ref. on the Kerala Education Bill, AIR 1958 SC 956. *Article 21-A* is inserted as a fundamental right for free and compulsory education to all children between the age of six to fourteen years as per *Constitution* Amendment Act (86th Amendment Act of 2002). The Parliament has also enacted *Right of Children to Free and Compulsory Education Act 2009*.

45 *Deep Chand v State of UP,*AIR 1959 SC 648 (*664*).

46 *Sikshak Sangh v State of Rajasthan,*(1961) SC [W.P. 34/59, Dated 11 April 1961].

47 *Jacob v K.W.A.*, AIR 1990 SC 2228 (para 8).

48 *Syed Abdul v Legislative Assembly*, AIR 1966 Cal 363 (*369-70*).

49 *Mangru v Commissioners of Budge Budge,*(1951) 87 CLJ 369.

50 *U.P.S.E. Bd. v Hari*, AIR 1979 SC 65 (para 4A).

51 *Keshavananda v State of Kerala,*(1973) 4 SCC 225.

52 *State of Madras v Champakam,*AIR 1951 SC 226 : (1951) SCR 525.

53 *Quareshi v State of Bihari*, AIR 1958 SC 731.

54 *Som v UOI*, AIR 1981 SC 212 (para 33) - 3 Judges.

55 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225 – by Hegde and Mukherjee, JJ..

56 *Ramlila Maidan Incident, Re.*(2012) 5 SCC 1 : (2012) Cr.LJ 3516.

57 **See***Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225; *Hanif v State of Bihar,*AIR 1958 SC 731 : (1959) SCR 629; *Jagannath v LRO,*(1972) 1 SCWR 655; *Asst. Commissioner v B & C Co,*AIR 1970 SC 169 : (1969) 2 SCC 55; *Chief Justice v Dikshithalu,* IR 1979 SC 193 : (1979) 2 SCC 34; *Mumbai Kamgar Sabha v Abdulbhai,*AIR 1976 SC 1455 : (1976) 3 SCC 832; *Bai Tahira v Ali,*AIR 1979 SC 362: (1979) 2 SCC 316.

58 *People's Union for Civil Liberties v UOI,*(2009) 16 SCC 598 : (2004) 5 Scale 128; also **see**(2009) 16 SCC 596.

59 *Astor v Perry,(1935) AC 398* (*416*).

60 *Quareshi v State of Bihai*, AIR 1958 SC 731 (*739*).

61 Granville Austin, The Indian *Constitution*, 1966, p 50.

62 *Revana Siddappa v Mallikarjun,*(2011) 11 SCC 1 : (2011) 3 LW 255 : (2011) 2 Ker LT 176 : (2011) 2 CTC 810.

63 *Bhim Singh v UOI,*(2010) 5 SCC 538 : (2010) 5 JT 166.

64 *Randhir Singh v UOI,*(1982) 1 SCC 618; *Selvaraj v Lt. Governor of Island Port Blair,*(1998) 4 SCC 291; *State of West Bengal v Pantha Chatterjee,*(2003) 6 SCC 469; *Arindam Chattopadhyay v State of Bihar,*(2013) 4 SCC 152.

65 *State of WB v Committee for Protection of Democratic Rights,*AIR 2010 SC 1476 : (2010) 3 SCC 571 : (2010) 1 Ker LT 723; **see** also *Kartar Singh v State of Punjab,*(1994) 3 SCC 569; *CRavichandra Iyer v Justice A.M. Bhattacharjee,*(1995) 5 SCC 457 : (1995) 5 Scale 142 (2); *All India Judges' Assn. (II) v UOI,*(1993) 4 SCC 288; *All India Judges' Assn. v UOI,*(2006) 12 SCC 178 : (2005) 1 Scale 615; *N Kannadasan v Ajay Khose,*(2009) 7 SCC 1 : (2009) 7

JT 601; *Nixon M. Joseph v UOI,*AIR 1998 Kerala 385; *Kumar Padma Prasad v UOI,*AIR 1992 SC 1213 : (1992) 2 SCC 428.

66 *Golak Nath v State of Punjab,*AIR 1967 SC 1643 : [1967] 2 SCR 762.

67 (1980) 3 SCC 625.

68 *Minerva Mills v UOI*, AIR 1980 SC 1789 (paras 16, 115, 117).

69 *Keshavananda v State of Kerala,*(1973) 4 SCC 225 (paras 486, 596; 712-15; 1036, 1044, 1212).

70 **See** also *Chandra Bhawan v State of Mysore*, AIR 1970 SC 2042 (para 13); *State of Kerala v Thomas*, AIR 1976 SC 496.

71 *Keshavananda v State of Kerala,*(1973) 4 SCC 225.

72 *Markandeya v State of AP*, AIR 1989 SC 1308 (para 9).

73 Ref. on *the Kerala Education Bill*, AIR 1958 SC 956.

74 *Mohini v State of Karnataka,*(1992) 3 SCC 666 (paras 8, 9, 18).

75 AIR 1973 SC 1461 at 1641 : (1973) 47 SCC 223; **see** also *State of Kerala v N.M. Thomas*, AIR 1976 SC 490 : (1976) 2 SCC 310; *Unnikrishnan v State of AP*, AIR 1993 SC 2178, 2230 : (1993) 1 SCC 643; *Dalmia Cement (Bharat) Ltd v UOI*, (1996) 10 SCC 104.

76 *Jilubhai Nanbhai Khachar v State of Gujarat,*AIR 1995 SC 142 : 1995 (Supp. 1) SCC 596.

77 *State of MP v Pramod Bhartiya,*(1993) 1 SCC 539.

78 *Kesavananda Bharti v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225; *Lingappa Pochanna Appealwar v State of Maharashtra,*AIR 1985 SC 389 : (1985) 1 SCC 479; *Manchegowda v State of Karnataka,*AIR 1984 Sc 1151 : (1989) 3 SCC 301; *Pathumma v State of Kerala,*AIR 1978 SC 771 : (1978) 2 SCC 1.

79 *Mohini v State of Karnataka,*(1992) 3 SCC 666 (paras 8, 9, 18).

80 *Mohini v State of Karnataka,*(1992) 3 SCC 666 (paras 8, 9, 18).

81 *State of Bombay v Balsara,*(1951) SCR 682; *Hanif Quareshi v State of Bihar*, AIR 1958 SC 731.

82 *Mohini v State of Karnataka,*(1992) 3 SCC 666.

83 *Statesman,* Dated 5 February 1993.

84 *Statesman,* Dated 5 February 1993.

85 *A.B.S.K. Sangh v UOI*, AIR 1981 SC 298 (*335*).

86 Ref. on the Kerala Education Bill, AIR 1958 SC 956; *Quarashi v State of Bihar*, AIR 1958 SC 731 (*739*).

87 *Randhir v UOI*, AIR 1982 SC 879 (para 8); *Grih Kalyan v UOI,*(1991) 1 SCC 611 (para 6); *Literate Assocn. v State of Karnataka,*(1990) 2 SCC 396.

88 *Oriental Weaving Mills v UOI*, AIR 1963 SC 99.

89 *G.K.K.W.U. v UOI*, AIR 1991 SC 1173 (para 6).

90 *Randhir v UOI*, AIR 1982 SC 879 (paras 8-9).

91 *State of Bombay v Balsara,*(1951) SCR 682; *Bijay Cotton Mills v State of Ajmer,*(1955) 1 SCR 752; *Hanif Quareshi v State of Bihar*, AIR 1958 SC 731.

92 *Sonia v State of UP*, AIR 1981 SC 1274 (para 29); *Laxmi Khandsari v State of UP*, AIR 1980 SC 873 (paras 33-35).

93 *Nashirwar v State of MP*, AIR 1975 SC 360 (para 23).

94 *Hoskot v State of Maharashtra*, AIR 1978 SC 1548 (paras 20, 21, 24-26).

95 *Hussainara v State of Bihar*, AIR 1979 SC 1369 (paras 6-7).

96 *Khatri v State of Bihar*, AIR 1981 SC 928 (para 4).

97 *Gopalanachari v State of Kerala*, AIR 1981 SC 674 (para 6).

98 *Sheela v State of Maharashtra*, AIR 1983 SC 378.

1 *Centre for Legal Research v State of Kerala,*(1983) 3 SCJ 17.

2 *Bandhua Mukti Morcha v UOI,*AIR 1984 SC 802 : (1984) 3 SCC 161.

3 *Subhash Kumar v State of Bihar,*AIR 1991 SC 420 : (1991) 1 SCC 598.

4 *Consumer Education and Research Centre v UOI,*AIR 1995 SC 922 : (1995) 3 SCC 42; *LIC v CERC,*AIR 1995 SC 1811 : (1995) 5 SCC 482.

5 *Chameli Singh v State of UP,*AIR 1996 SC 1051 : (1996) 2 SCC 549.

6 *Unnikrishnan v State of AP*AIR 1993 SC 2178 : (1993) 1 SCC 645.

7 *Mr. X v Hospital Z,*(1998) 8 SCC 296 : AIR 1999 SC 495; *R. Rajagopal v State of TN,*(1994) 6 SCC 632; *Directorate of Revenue v Mohd. Nissar Holia,*(2008) 2 SCC 370 : (2007) 13 JT 408.

8 *State of HP v Himed*, AIR 1986 SC 847 (para 11) 3 Judges.

9 *Narendra v State of Gujarat*, AIR 1974 SC 2098 (para 29).

10 *Jacob M. Puthenparambil v Kerala Water Authority,*AIR 1990 SC 2228 : (1991) 1 SCC 28.

11 *Razakbhai Issakbai Mansuri v State of Gujarat,* 1993 (Supp-2) SCC 659.

12 *State of MP v Pramod Bhartiya,*AIR 1993 SC 286 : (1993) 1 SCC 539.

13 *Maharashtra State Co-op. Bank Ltd v Provident Fund Commr.,*(2009) 10 SCC 123 : AIR 2010 SC 868; **see** also *Organo Chemical Industries v UOI,*(1979) 4 SCC 573.

14 *Chief Justice v Dikshitalu,*(1979) 2 SCC 34 (paras 66-78).

15 *Jalan Trading v Aney*, AIR 1979 SC 233.

16 *State of Kerala v Thomas*, AIR 1976 SC 490 (paras 42, 125).

17 *Jagannath v L.R.O.,*(1972) 1 SCWR 655 (*674*).

18 *Naserwaiji v State of Bombay*, AIR 1951 SC 210.

19 *Naserwaiji v State of Bombay*, AIR 1951 SC 210.

20 **Cf.***Veerawami v UOI,*(1991) 3 SCC 655 (para 102)—3 Judges.

21 *Hanif Quareshi v State of Bihar*, AIR 1958 SC 731 (*744, 755*).

22 *Narinder v UOI,*(1960) SCJ 214 (*217*); *Re Kerala Education Bill*, AIR 1958 SC 956 (987, para 35).

23 *Re Kerala Education Bill*, AIR 1958 SC 956 (987, para 35).

24 *Bloxam v Favre,*(1884) 9 PR 130 : *Moriensen v Peters,*(1906) 43 SC LR 872; Re Debtors, *(1936) 1 Ch. 622* (CA).

25 *The Charming Betsy*, 2 Cr 64.

26 *Gramophone Co v Birendra*, AIR 1984 SC 667 (Para 5) – 3 Judges.

27 *Statesman v H.R. Deb.*, AIR 1968 SC 1495 (paras 21, 22, 29). [Better view has been expressed by a 3 Judge Bench in *Kumar v UOI*, AIR 1992 SC 1213 (paras 25, 36)].

28 *Statesman v H.R. Deb.*, AIR 1968 SC 1495 (paras 21, 22, 29). [Better view has been expressed by a 3 Judge Bench in *Kumar v UOI*, AIR 1992 SC 1213 (paras 25, 26)].

29 Second Five Year Plan, p 22.

30 *G.B. Pant University of Agriculture & Technology v State of UP,*AIR 2000 SC 2695 : (2000) 7 SCC 109; *HSEB v Suresh,*AIR 1999 SC 1160 : (1999) 3 SCC 601; *Samantha v State of AP,*AIR 1997 SC 3297 : (1997) 8 SCC 191; *Air India Statutory Corp v United Labour Union,*AIR 1997 SC 645 : (1997) 9 SCC 377.

31 It is interesting to note that the framers of the *Constitution* of Bangladesh (1972) have taken this suggestion of the Author made at pp 409, 413 of his Tagore Law Lectures. Pt II of that *Constitution* contains "Fundamental Principles of State Policy' which are not justiciable, like our "Directive Principles". But *Article 8*(2), at the same time, says:

"The principles set out in this Part …shall be *a guide to the interpretation of the Constitution and ofthe other laws of Bangladesh…"* [3 S.C.W. 381].

32 *Sri Ram Vilas Service v Chandrasekaran*, AIR 1965 SC 107 (*109*).

33 **Cf.** the rights listed under (a) Fundamental rights and (b) duties of Labour, in the Karachi Resolution of 1931. [It is somewhat striking that in his subsequent Tagore Law Lectures on The Indian Parliament and Fundamental Rights (pp. 41-44), ex-Chief Justice Gajendragadkar, adopts the foregoing analysis of the Directive Principles].

34 *UP State Electricity Board v Har Shanker Jain,*AIR 1979 SC 65 : (1978) 4 SCC 16; *Bai Tahira v Ali Hussain Sidhali Chothia,*AIR 1979 SC 360 : (1979) 2 SCC 316; *Jacob Puthenparambil v Kerala State Water Authority,*AIR 1990 SC 2228 : (1991) 1 SCC 28; *State of Karnataka v Appa Bala Ingale,*AIR 1993 SC 1126 : 1995 (Supp-4) SCC 469.

35 *National Textile Corp v Sitaram Mills Ltd,*AIR 1986 SC 1234 : 1986 (Supp) SCC 117; *OrganicChemical Industries v UOI,*AIR 1979 SC 1803 : (1979) 4 SCC 573; *Yedilak Chakradhara Rao v State of AP,*(1990) 2 SCC 523; *Government*

of Union Territory of Pondicherry v Mohammed Hussain,(1994) 5 SCC 121; *Maharashtra State Co-op. Bank Ltd v Provident Fund Commr.,*(2009) 10 SCC 123 : AIR 2010 SC 868.

36 *Nakara D.S. v UOI,*AIR 1983 SC 130 : (1983) 1 SCC 305.

37 *Bai Tahira v Ali Hussain Sidhali Chothia,*AIR 1979 SC 360 : (1979) 2 SCC 316.

38 AIR 1976 SC 496 : (1976) 2 SCC 310.

39 **See** also *Lingappa Pochanna Appelwar v State of Maharashtra,*AIR 1985 SC 389 : (1985) 1 SCC 479.

40 *Manchegowda v State of Karnataka,*AIR 1984 SC 1151 : (1984) 3 SCC 301.

41 *Jalan Trading Co Pvt Ltd v D.M. Aney,*AIR 1979 SC 233 : (1979) 3 SCC 220.

42 *Akhil Bharatiya Soshit Karmachari Sangh v UOI,*AIR 1981 SC 298 : (1981) 1 SCC 246.

43 *State of Gujarat v Mirzapur Moti Kureshi Jamat,*AIR 2006 SC 212 : (2005) 8 SCC 534; **see** also *Indian Handicrafts Emporium v UOI,*(2003) 7 SCC 589; *MRF Ltd v Inspector, Kerala Government,*(1998) 8 SCC 227; *Workmen v Meenakshi Mills Ltd,*(1992) 3 SCC 336; *Papanasam Labour Union v Madura Coats Ltd,*(1995) 1 SCC 501; *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225; *Municipal Corp of City of Ahmedabad v Jan Mohd.Usmanbhai,*(1986) 3 SCC 20.

44 *Ranjit v State of Maharashtra*, AIR 1965 SC 881 (paras 21, 22, 29).

45 *Crown Aluminium Works v Workmen*, AIR 1958 SC 30 (34); *Bengal Chemical & Pharmaceutical Works v Workmen*, (1959) Supp (2) SCR 136.

46 *Mamarde v Authority under the Minimum Wages Act*, AIR 1972 SC 1721 (1727).

47 In fact, much earlier, in *State of Bombay v Balsara*, (1951) SCR 682 (706), the Court had referred to the Directive under *Article 47* to uphold the vires of a definition in a pre-*Constitution* statute, *viz*., the Bombay Prohibition Act 1949.

48 *Bandhua Mukti Morcha v UOI,*AIR 1984 SC 802 : (1984) 3 SCC 161.

49 *Central Inland Water Supply Corp Ltd v Broja Nath Ganguly,*AIR 1986 SC 1571 : (1986) 3 SCC 156; *Olga Tellis v Bombay Municipal Corp,*AIR 1986 SC 180 : (1985) 3 SCC 545.

50 *Javeed v State of Haryana,*AIR 2003 SC 3057 : (2003) 8 SCC 369.

51 *Bhuvalka Steel Industries Ltd v Bombay Iron & Steel Labour Board,*(2010) 2 SCC 273 : (2009) 14 JT 269.

52 *Natural Resources Allocation, Re. Special Reference No.1 of 2012,*(2012) 10 SCC 1 : (2012) 9 JT 457.

53 *Brij Mohan Lal v UOI,*(2012) 6 SCC 502 : (2012) 4 JT 212; see also *Sudevanand v State,*(2012) 3 SCC 387 : (2012) Cr.LJ 1320.

54 *Mohd. Ajmal Amir Kasab v State of Maharashtra,*AIR 2012 SC 3565 : (2012) 9 SCC 1; **see** also *Hussainara v Home Secretary, State of Bihar,*AIR 1979 SC 1369 : (1980) 1 SCC 98; *M.H. Hoskot v State of Maharashtra,*AIR 1978 SC 1548 : (1978) 3 SCC 544; *Khatri (III) v Stateof Bihar,*AIR 1981 SC 928 : (1981) 1 SCC 627; *Sukh Das v Union Territory,*AIR 1986 SC 991 : (1986) 2 SCC 401; *Kishore v State of HP,*AIR 1990 SC 2140 : (1990) 1 SCC 286.

55 *State of Haryana v Darshna*, (1979) 2 SCC 236; *C.I.W.T.C. v Brojo,*(1986) 3 SCC 156 (paras 82, 89).

56 *Fateh Chand v State of Maharashtra*, AIR 1977 SC 1825 (1831).

57 *Indira v UOI*, (1992) Supp. (3) SCC 217 (paras 25, 173, 294, 321, 647)—9 Judge **Bench. See** also *Lingappa Pochanna Appelwar v State of Maharashtra,*AIR 1985 SC 389: (1985) 1 SCC 479.

58 **See** "Doctrine of Judicial Review," *ante*.

59 *State of HP v Umed*, AIR 1986 SC 847 (para 11).

60 *Comptroller v Jagannathan*, AIR 1987 SC 537 (paras 20-21).

61 *Mukesh v State of MP,*AIR 1985 SC 1363 (paras 17, 21); *Bandhua v UOI*, AIR 1984 SC 802 (paras 10, 27, 29, 31, 34-36).

62 *P.&T. Manch v UOI*, AIR 1987 SC 2342 (2347); *Jacob v K.W.A.,*AIR 1990 SC 2228 (paras 11, 17).

63 *Sheeta v State of Maharashtra*, AIR 1983 SC 378 (paras 3, 4).

64 *Kishore v State of HP*, AIR 1990 SC 2140 (paras 12-13).

65 *Laxmi Kant v UOI*, AIR 1987 SC 232 (paras 2ff).

66 *Delhi Jal Board v National Campaign for Dignity and Right of Sewerage and Allied Workers,*(2011) 8 SCC 568 : (2011) 7 Scale 489.

67 **See** also *People's Union for Democratic Rights v UOI,*(1982) 3 SCC 235; *HussainaraKhatoon v State of Bihar,*(1980) 1 SCC 98; *State of Uttaranchal v Balwant Singh Chaufal,*(2010) 3 SCC 402 : AIR 2010 SC 2550.

68 *Vishaka v State of Rajasthan,*AIR 1997 SC 3011: (1997) 6 SCC 241; **see***Vineet Narain v UOI,*(1998) 1 SCC 226 : AIR 1998 SC 889; *UOI v Association for Democratic Reforms,*(2002) 5 SCC 294 : AIR 2002 SC 2112. **See** also *Delhi Jal Board v National Campaign for Dignity and Rights of Sewerage and Allieed Workers,*(2011) 8 SCC 568 : (2011) 7 Scale 489 (*supra*).

69 *Bhim v UOI*, AIR 1981 SC 234 (paras 4, 5B) C.B.; *Jalan Trading v Aney*, AIR 1979 SC 233; **Cf.***C.I.W.T.C. v Brojo*, AIR 1986 SC 1571 (para 111).

70 *State of Mysore v Workers of Gold Mine,*AIR 1958 SC 923 : (1959) SCR 895 : *(1958) 2 LLJ 479* (SC).

71 *JK Cotton Spg. & Wvg. Mills Co v Labour Appellate Tribunal of India,*AIR 1964 SC 737 : (1964) 3 SCR 724 : *(1963) 2 LLJ 436*.

72 *Lingappa v State of Maharashtra*, AIR 1985 SC 389 (paras 1, 20); *Manchegowda v State of Karnataka*, AIR 1984 SC 1151.

73 *Mohini v State of Karnataka,*(1992) 3 SCC 666 (paras 8, 9, 18).

74 *R.S.R.T.C. v Narain,*(1980) 2 SCC 180 (paras 2-3).

75 *State of Haryana v Darshna,*(1979) 2 SCC 236.

76 *N.T.W.U. v Rama Krishnan*, AIR 1983 SC 75 (paras 6, 14, 66) CB : (1983) 1 SCC 228. **See** also *Straw Board Mfg. Co Ltd v Workmen,*AIR 1977 SC 941 : (1977) 2 SCC 329; *Navanit R. Kamini v R.R. Kamini,*AIR 1989 SC 9 : (1988) 4 SCC 387; *All India Bank Officers' Assn. v UOI,*AIR 1989 SC 1985 : (1989) 4 SCC 90.

77 **Cf**. *Kamani v Kamani*, AIR 1989 SC 9 (para 13).

78 *Parthasarathy v CCI*, AIR 1991 SC 1420 (paras 89-90); *Maheswari v UOI,*(1989) 3 SCR 43.

79 *Min. of Home Affairs v Fisher,(1979) 3 All ER 21(25-27)*; *Hunter v Southam,* (1984) 11 DLR (4th) 641 (*650*) SC (Con).

80 *Sydall v Castings,(1966) 3 All ER 770* (*774*) P.C. (from Bermuda).

81 *Min. of Home Affairs v Fisher,(1979) 3 All ER 21* (*25-27*).

82 *B.B.C. v A.G.,*(1980) WLR 109 HL.

83 *A.G., Fiji v D.P.P.,(1983) 2 WLR 275* (*281*) PC.

84 *L.I.C. v Manubhai,*(1992) 2 SCC 637 (paras 6-7); *Odyssey v L.S.,*(1988) 3 SCC 410. **See** also *Ramesh v UOI,,*AIR 1988 SC 775 : (1988) 1 SCC 668.

85 *L.I.C. v Manubhai,*(1992) 2 SCC 637 (paras 6-7); *Odyssey v L.S.,*(1988) 3 SCC 410; *Sakal Papers v UOI,*AIR 1962 SC 305. **See** also *Post Graduate Institute of Medical Education & Research v K.L. Narasimhan,*AIR 1997 SC 3687 : (1997) 6 SCC 283.

86 *Prag Ice & Oil Mills v UOI,*AIR 1978 SC 1296 : (1978) 3 SCC 450.

87 *State of Punjab v Devan Modern Breweries Ltd,*(2004) 11 SCC 26 – *per* Sinha J. : (2003) 10 JT 485.

84a *L.I.C. v Manubhai,*(1992) 2 SCC 637 (paras 6-7); *Odyssey v L.S.,*(1988) 3 SCC 410. **See** also *Ramesh v UOI,,*AIR 1988 SC 775 : (1988) 1 SCC 668.

84a *L.I.C. v Manubhai,*(1992) 2 SCC 637 (paras 6-7); *Odyssey v L.S.,*(1988) 3 SCC 410. **See** also *Ramesh v UOI,,*AIR 1988 SC 775 : (1988) 1 SCC 668.

88 *Rangarajan v Jagjivan,*(1989) 2 SCC 574 (para 10).

84a *L.I.C. v Manubhai,*(1992) 2 SCC 637 (paras 6-7); *Odyssey v L.S.,*(1988) 3 SCC 410. **See** also *Ramesh v UOI,,*AIR 1988 SC 775 : (1988) 1 SCC 668.

89 *Secretary, Ministry of Information and Broadcasting v Cricket Assn. of Bengal,*AIR 1995 SC 1236 : (1995) 2 SCC 161.

90 *Prakash Jha Productions v UOI,*(2011) 8 SCC 372 : (2011) 9 Scale 265.

91 *Ram Jethmalani v UOI,*(2011) 8 SCC 1 : (2011) 6 Scale 691.

92 *Prakash Jha Productions v UOI,*(2011) 8 SCC 372 : (2011) 9 Scale 269 (*supra*).

93 *Ramlila Maidan Incident, Re.*(2012) 5 SCC 1 : AIR 2012 SC (Civil) 2021 : (2012) Cr LJ 3516.

94 *V.K. Naswa v UOI,*(2012) 2 SCC 542 : (2012) 2 LW 427 : (2012) 1 Ker LT 363; **see** also *UOI v Naveen Jindal,*(2004) 2 SCC 510 : AIR 2004 SC 1559.

95 *Aslam v State of Maharashtra,*AIR 1993 SC 1 (paras 14-15), per 2 : 1 in a Bench of 3 Judges.

96 *Maneka Gandhi v UOI,*AIR 1978 SC 597 : (1978) 1 SCC 248.

97 *Francis Coralie v State of Delhi,*AIR 1981 SC 746 : (1981) 1 SCC 608; **see** also *P. Rathinam v UOI,*AIR 1994 SC 1844 : (1994) 3 SCC 394.

98 *State of Maharashtra v Public concern for Government Trust,*(2007) 3 SCC 587 : AIR 2007 SC 777.

99 *Avishek Goenka v UOI,*AIR 2012 SC 2226 : (2012) 5 SCC 321; **see** also (2010) 15 SCC 224 (*suo moto action*); **see** also *Ramlila Maidan Incident, Re.*(2012) 5 SCC 1 : AIR 2012 SC (Civil) 2021; (2012) Cr LJ 3516.

1 Inserted in 1976.

2 **See***Ramlila Maidan Incident, Re.*(2012) 5 SCC 1 : AIR 2012 SC (Civil) 2021; (2012) Cr LJ 3516.

3 *Mumbai Kamgar Sabha v Abdulbhai,*AIR 1976 SC 1455 : (1976) 3 SCC 855; *Mohan v UOI,* 1992 (Supp-1) SCC 594; *P.A. Inamdar v State of Maharashtra,*(2005) 6 SCC 537 : AIR 2005 SC 3226.

4 *UOI v Naveen Jindal,*AIR 2004 SC 1559 : (2004) 2 SCC 510.

5 *AIIMS Students' Union v AIIMS,*AIR 2001 SC 3262 : (2002) 1 SCC 428; **see** also *P.A. Inamdar v State of Maharashtra*(2005) 6 SCC 537: AIR 2005 SC 3180.

6 *Sarbananda Sonowal v UOI,*AIR 2005 SC 2920 : (2005) 5 SCC 665.

7 *Income-Tax Practitioners' Assn. v R.K. Jain,*(2010) 8 SCC 281 : AIR 2011 SC 2234.

8 *Indian Council for Enviro-Legal Action v UOI,*(2011) 12 SCC 739.

9 *R.L.E. Kendra v State of UP,*AIR 1985 SC 652 (para 12).

10 *Surja v UOI,*AIR 1982 Raj 1 (para 19).

11 *R.L.E. Kendra v State of UP,*AIR 1985 SC 652 (para 12); *Surja v UOI,*AIR 1982 Raj 1 (para 19); *Rural Litigation v State of UP,*AIR 1987 SC 369 (paras 19-20); *Sachidanand v State of W B,*AIR 1987 SC 1109 (para 4).

12 *Mehta v UOI,*(1988) 1 SCC 471 (paras 24-26)-[an ultra-activist judgment].

13 *Mohan v UOI,* (1992) Supp. (1) SCC 594 (paras 41-42).

14 **Cf.***Mumbai Kamgar Sabha v Abdulbhai,*AIR 1976 SC 1455 (para 29).

15 *State of Maharashtra v V.S.R.,*(1992) 2 UJSC 680 : AIR 1992 SC 1926 : (1992) 4 SCC 435 (paras 10, 12) – 3 Judges. **See** also *Adarsh Shiksha Mahavidyalaya v Subhash Rahangdale,*AIR 2012 SC 1097 : (2012) 2 SCC 425; *St. John's Teachers' Training Institute for Women v State of TN,*(1993) 3 SCC 595; *N.M. Nagesharamma v Stateo AP,* 1986 (Supp) SCC 166; *A.P. Christian Medical Educational Society v Government of AP,*(1986) 2 SCC 667; *Shri Morvi Sarvajanik Kelavni Mandal Sanchalit MSKM B.Ed College v National Council for Teachers' Education,*(2012) 2 SCC 16 : (2012) 2 LW 769; *Bharatiya Equcation Society v State of HP,*(2011) 4 SCC 527 : (2011) 3 Scale 48.

15a *State of Maharashtra v V.S.R., Ibid.*

16 *Gautam v UOI,*(1993) 1 SCC 78 (paras 28-30) CB : AIR 1994 SC 771.

17 *Gautam v UOI,*(1993) 1 SCC 78 (paras 28-30) CB : AIR 1994 SC 771.

18 *Gautam v UOI,*(1993) 1 SCC 78 (paras 28-30) CB : AIR 1994 SC 771.

19 As to judicial review of *Constitution* Amendment Acts themselves, see Author's Tagore Law Lectures on "Limited Government and Judicial Review", and under *Article 368*, *post.*

20 **Cf**. *Cooley, Constitutional Limitations*, 8th Edn, 1, p 129.

21 *Ulbnann v U.S.,* (1955) 350 U.S. 422 (*428*).

22 *D.D. Basu : Shorter Constitution of India*.

23 **See**section 2(5)-(6), *Civil Procedure Code, 1908*.

24 *Narhari Shivram Shet Narvekar v Pannalal Umediram*, AIR 1977 SC 164 (Para 15) : (1976) 3 SCC 203; *Lalji Raja & Sons v Hansraj Nathuram*, AIR 1971 SC 974 : (1971) 1 SCC 721.

25 *Shaligram v Daulatram*, AIR 1963 SC 358.

26 *E.g.*, *State of Bombay v R.M.D.C.*, AIR 1957 SC 699 (*717*); *Sundararamier v State of AP*, AIR 1958 SC 468 (*495*); *Dwarkadas v Sholapur Spinning & Weaving Co,*(1954) SCR 674 (*731-2*); *Jaganath v Authorised Officer*, AIR 1972 SC 425 (*434*).

27 D D Basu, *Comparative Constitutional Law*, 2nd Edn, 2008, p 13.

28 AIR 1957 SC 699 : [1957] 1 SCR 874.

29 AIR 1958 SC 468 : [1958] 1 SCR 1422.

30 (1954) SCR 674.

31 Dr Ambedkar, VIII CAD 31(38), composed of various sources, the principal of which are – The Government of India Act 1935, the English System of Parliamentary or Cabinet System of Government, the American Bill of Rights and Judicial Review at p 14

32 *Chiranjit Lal v UOI,*(1950) SCR 869 (*910, 932*); *State of West Bengal v Anwar Ali*, (1952) SCR 234 (*333*).

33 *Ramesh Thappar v State of Madras,*(1950) SCR 594 (597); *Express Newspapers v UOI*, AIR 1958 SC 578 (*615*).

34 *Maqbool v State of Bombay,*(1953) SCR 730 (*737*); *M.P. Sharma v Satish,*(1954) SCR 1077 (*1083*).

35 *Maneka v UOI*, AIR 1978 SC 597 (para 54); *Sunil v Delhi Admn.* (I), AIR 1978 SC 1675 (para 53).

36 *Atiabari Tea Co v State of Assam,*AIR 1961 SC 232 (*257*); *Automobile Transport v State of Rajasthan,*AIR 1962 SC 1406 (*1426-27*).

37 *Gopalan v State of Madras*, AIR 1950 SC 27 (*102*).

38 **Cf.** Re C.P. & Berar Motor Spirit Taxation Act, 1 (1939) FCR 18 (*38*).

39 *State of Maharashtra v V.S.R.,*(1992) 2 UJSC 680 (paras 10, 12) – 3 Judges.

40 AIR 1974 SC 348 : (1974) 1 SCC 345.

41 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225, Jagmohan Reddy and Dwivedi, JJ.

42 (2008) 6 SCC 1 : (2008) 5 JT 1,

43 *BSES Ltd v Fenner India Ltd,*AIR 2006 SC 1148 : (2006) 2 SCC 728.

44 D D Basu, *Comparative Constitutional Law*, 2nd Edn, 2008.

45 D Basu, *Comparative Constitutional Law*, 2 nd Edn, 2008, pp 14-15.

46 *Sub-Committee v UOI,*(1991) 4 SCC 699 (paras 61-63) CB.

47 **Cf**. Pandit Nehru's speech in vol IX CAD 1195.

48 ***Cf****. Liyanage v R.,(1966) 1 All ER 650* (*658*).

49 Re Delhi Laws Act, (1951) SCR 747 (*888-90, 969-70, 985*); Ref. under *Article 143*, AIR 1965 SC 745 (*762*, para 39).

50 *Kochuni v State of Madras,*AIR 1959 SC 725 (*730*).

51 *Saghir Ahmad v State of UP,* (1955), SCR 707 (*718-9*).

52 *Samsher v State of Punjab,*AIR 1974 SC 2192 (para 153); *Sanjeevi v State of Madras,*AIR 1970 SC 1109 (para 11); *Rao v Indira,*AIR 1971 SC 1002 (paras 7, 10); *Gupta v UOI,*AIR 1982 SC 149 (paras 618, 747-750).

53 Re Delhi Laws Act, 1912, (1951) SCR 747 (*831, 883, 965*); *A.C. Cos v Sharma,*(1965) 1 SCA 723 (*737*); *Ram Jawaya v State of Punjab,*(1955) 2 SCR 225 (*236-7*).

54 *University of Kerala v Council of Principals of College,*(2010) 1 SCC 353 : (2010) 1 Scale 437.

55 *Behram v State of Bombay,*(1955) 1 SCR 613 (*654*).

56 *Bhikaji v State of MP,*(1955) 2 SCR 589; *Jagannath v Authorised officer,*AIR 1972 SC 425 (*435*).

57 *Second G.T.O. v Hazareth,*AIR 1970 SC 999 (*1001*).

58 ***Cf.****Express Newspapers v UOI,*AIR 1958 SC 578 (*618*); *Sakal Papers v UOI,*AIR 1962 SC 305 (*315*); *Ghosh v Joseph,*AIR 1963 SC 812 (*814*); *Kameshwar v State of Bihar,*AIR 1962 SC 1166 (*1172*).

59 *Babulal v State of Maharashtra,*AIR 1961 SC 884 (*890*).

60 *Thomas v Collins,*(1944) 323 US 516.

61 *Madhu Limaye v S.D.M.,*AIR 1971 SC 2486 (*2493*, para 11).

62 *Raghubar v UOI,*AIR 1962 SC 263 (*273-4*).

63 *State of Bombay v Balsara,*(1951) SCR 682 (*697-700*).

64 *Keshavananda v State of Kerala,*AIR 1973 SC 1461; *Minerva Mills v UOI,*AIR 1980 SC 1789 (paras 21-26, 28, 91, 93, 94).

65 *State of Bombay v R.M.D.C.,*AIR 1957 SC 699 (*717*).

66 Re C.P. & Berar Motor Spirit Taxation Act, (1939) F.C.R. 18 (43); *Tata Iron & Steel Co v Stateof Bihar,*AIR 1958 SC 453 (*459*).

67 *Atiabari Tea Co v State of Assam,*AIR 1961 SC 232 (*257*).

68 *Express Newspapers v UOI*, AIR 1958 SC 578 *(615)*.

69 *Express Newspapers v UOI,*AIR 1958 SC 578 *(615)*.

70 *Automobile Transport Ltd v State of Rajasthan,*AIR 1962 SC 1406 *(1426-7)* : (1963) 1 SCR 491.

71 The above observations affirm the view taken by the Author in the previous Edition of this Commentary.

71a The above observations affirm the view taken by the Author in the previous Edition of this Commentary.

72 *Ramana v I.A.A.,*AIR 1979 SC 1628 (para 15); *Sukhdev v Bhagatram,*AIR 1975 SC 1331 (1359-60).

73 *Chiranjit Lal v UOI,*(1950) SCR 869, AIR 1951 SC 41 (*912*); *State of Bombay v Balsara,*(1951) SCR 682 (*708-09*); *Special Courts Bill,* in re, (1979) 1 SCC 380 (para 78).

74 *Romesh Thappar v State of Madras,*(1950) SCR 594 (*597*).

75 *Bennett Coleman v UOI*, AIR 1973 SC 108 (para 46-49).

76 A fairly comprehensive list of the corollaries arrived at is to be found in *Pathunna v State ofKerala*, AIR 1977 SC 770 (paras 14, 15, 20, 22, 24)—a 7 Judge Bench.

77 *State of Madras v Dunkerly,*AIR 1958 SC 560; *Vishnu Agencies v CTO,*AIR 1978 SC 449 : (1978) 1 SCC 520.

78 *Maqbool v State of Bombay,*(1953) SCR 730 (*737*); *M.P. Sharma v Satish,*(1954) SCR 1077 (1083).

79 VII CAD 853, 1000.

80 *Gopalan v State of Madras,*(1950) SCR 88 (*111; 199, 201-02; 274-76; 316-19, 321*).

81 **Cf.***Khare v State of Delhi,*(1950) SCR 519 (*524*); *Maneka v UOI*, AIR 1978 SC 597 (paras 27, 82).

82 (1950) SCR 88, pp 163, 169.

83 *Gopalan v State of Madras,*(1950) SCR 88 (*111; 199, 201-02; 274-76; 316-19, 321*).

84 (1950) SCR 88, p 230.

85 *A.K. Roy v UOI,*AIR 1982 SC 710 (para 66) C.B.

86 *Maneka Gandhi v UOI,*AIR 1978 SC 597 (para 54)-7 Judges; **see also***Bachan Singh v State of Punjab,*AIR 1980 SC 898 : (1980) 2 SCC 684; *Hussainara v Home Secretary,*AIR 1979 SC 1360 : (1980) 1 SCC 93; *Sunil v Delhi Admn.,*AIR 1978 SC 1675 : (1978) 4 SCC 494; *State ofMaharashtra v Champalal,*AIR 1981 SC 1675 : (1981) 3 SCC 610.

87 *A.K. Roy v UOI,*AIR 1982 SC 710.

88 *A.K. Roy v UOI,*AIR 1982 SC 710.

89 (2010) 7 SCC 263 : AIR 2010 SC 1974.

90 AIR 2012 SC 3565 : (2012) 9 SCC 1.

91 384 US 436 (1966).

92 *Tata Press Ltd v Mahanagar Telephone Nigam Ltd*, AIR 1995 SC 2438 : (1995) 5 SCC 139; *Central Hudson Gas Electric Corp v Public Service Commission,*(1980) 447 US 557 : 65 L Ed 2d 241; *Posadas de Puerto Rico Assn. v Tourism Co of Puerto Rico,* 92 L Ed 2d 266; *Board of Trustees of State University of New York v Todd Fox,* 106 L Ed 2d 388.

93 *Govind v State of MP,*AIR 1975 SC 1378 : (1975) 2 SCC 148; *Dt. Registrar & Collector v Canara Bank,*AIR 2005 SC 186 : (2005) 1 SCC 496.

94 *Kharak Singh v State of UP,*AIR 1963 SC 1295 : (1964) 1 SCR 332.

95 *(1993) AC 789* : (1993) WLR 316 : *(1993) 1 All ER 821* (HL).

96 *Aruna Ramachandra Shanbaug v UOI,*AIR 2011 SC 1290 : (2011) 4 SCC 454; **see** also *United India Ins. Co Ltd v Manubhau Dharmasinhbhai Gajera,*(2008) 10 SCC 404.

97 (2007) 3 SCC 184 : (2007) 2 JT 1.

98 AIR 1971 SC 1003 : (1971) 2 SCC 63.

1 AIR 1967 SC 1643 : (1967) 2 SCR 762.

2 AIR 1973 SC 1461: (1973) 4 SCC 225.

3 AIR 1999 SC 2334 : (1999) 6 SCC 150.

4 In *Neat R. Wooby v George Maynard,*(1977) 430 US 705 and *Turner Broadcasting System Inc. v Federal Communication,*(1997) 512 US 622.

5 *ADM v Shivakant Shukla,*AIR 1976 SC 1207 : (1976) 2 SCC 521 – by Khanna J.. (**See** also *Jolly George Vargheese v Bank of Cochin,*AIR 1980 SC 470 : (1980) 2 SCC 360; *Gramaphone Co of India Ltd v Birendra Bahadur Pandey,*AIR 1984 SC 667 : (1984) 2 SCC 534 and followed in *Vellore Citizens Welfare Forum v UOI,*AIR 1996 SC 2715 : (1996) 5 SCC 647.

6 **See** also *A.P. Pollution Control Board v Prof. M.V. Nayudu,*AIR 1999 SC 812 : (1999) 2 SCC 718; *K.M. Chinnappa v UOI,*AIR 2003 SC 724 : (2002) 9 JT 200.

7 (1919) 249 US 47 : 63 L Ed 470.

8 *Ramlila Maidan Incident, Re.*(2012) 5 SCC 1 : (2012) 2 Scale 682.

9 *M.C. Mehta v UOI,*AIR 1999 SC 2583 : (1999) 6 SCC 237.

10 AIR 1974 SC 348 : (1974) 1 SCC 345.

11 *(1955) AC 197*; **see** also *Pratap Singh v Director of Enforcement,*AIR 1985 SC 989 : (1985) 3 SCC 72; *Magraj Patodia v P.K. Birla,*AIR 1971 SC 1295 : (1970) 2 SCC 888). In *R.M. Malkani v State of Maharashtra,*AIR 1973 SC 157 : (1973) 1 SCC 471.

12 (1870) 34 JP 759.

13 *(1965) 2 All ER 464*.

14 AIR 1958 SC 468 : (1958) SCR 1422.

15 **See** also *Jagannath v Authorised Officer, Land Reforms,*AIR 1972 SC 245 : (1971) 2 SCC 893.

16 *Maneka Gandhi v UOI,*AIR 1978 SC 597 : (1978) 1 SCC 248.

17 *Kovacs v Cooper,*(1947) 373 US 77.

18 *Madhu Limaye v SDM, Monghyr,*AIR 1973 SC 2486 : (1970) 3 SCC 738.

19 AIR 2007 SC 861 : (2007) 2 SCC 1.

20 **See***Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225.

21 *Mohd. Sukur Ali v State of Assam,*(2011) 4 SCC 729 : AIR 2011 SC 1222 : (2011) Cr LJ 1690.

22 (1932) 287 US 45 : 77 L Ed 158.

23 (1962) 372 US 335 : 9 L Ed 799.

24 (1976) 430 US 387 : 51 L Ed 2d 424.

25 **See***Pathumma v State of Kerala,*AIR 1978 SC 771 : (1978) 2 SCC 1.

26 *Municiplal Committee v State of Punjab,*(1969) 2 SCC 823 : AIR 1970 SC 2182.

27 *Abbas v UOI,*AIR 1971 SC 481 : (1970) 2 SCC 780.

28 (1950) SCR 88.

29 *Joint Anti-Fascist Committee v Mc Grath,*(1951) 341 US 123; *Beth v Brady,*(1942) 316 US 455; *Rochin v California,*(1952) 342 US 165.

30 AIR 1978 SC 597: (1978) 1 SCC 248.

31 **See** also *Re. Special Courts Bill 1978,*AIR 1979 SC 478 : (1979) 1 SCC 380.

32 AIR 1978 SC 1675 : (1978) 4 SCC 494.

33 Known as *Bank Nationalisation case,*AIR 1970 SC 564

34 AIR 1978 SC 597 : (1978) 1 SCC 248,

35 (2007) 3 SCC 184 : JT *(2007) 2 SC 1*.

36 *(1864) 15 ER 784*.

37 *(1896) AC 600*.

38 *(1908) AC 470*.

39 *H. Snowden Marshall v Robert B. Gorden,*(1917) 243 US 521 : 61 L Ed 881; *Anderson v Dunn,*(1821) 5 L Ed 242 : 6 Wheat 204).

40 (AIR 1980 SC 470 : (1980) 1 SCC 360.

41 *Minerva Mills v UOI,*AIR 1980 SC 1789 : (1980) 2 SCC 591.

42 *Kesavananda Bharati v State of Kerala,*AIR 1973 SC 1461 : (1973) 4 SCC 225.

43 *Francis v Union Territory,*AIR 1981 SC 746; (1981) 1 SCC 608.

44 *Sunil v Delhi Admn.,*AIR 1978 SC 1675 : (1978) 4 SCC 494.

45 *Kadra v State of Bihar,*AIR 1981 SC 939 : (1981) 3 SCC 671; *Sidharam Satlingappa Mhetri v State of Karnataka,*AIR 2011 SC 312 : (2011) 1 SCC 694; *Ramlila Maidan Incident, Re.*(2012) 5 SCC 1.

46 *Maneka Gandhi v UOI,*AIR 1978 SC 597 : (1978) 1 SCC 248.

47 *Mohd. Hussain v State (Government of NCT of Delhi),*(2012) 9 SCC 408 : (2012) Cr LJ 4537; **see** also *Mohd. Ajmal Amir Kasab v State of Maharashtra,*AIR 2012 SC 3565 : (2012) 9 SCC 1; *Rajoo v State of MP,*AIR 2012 SC 3034 : (2012) 8 SCC 553 : (2012) Cr LJ 4343.

48 *Aruna Ramachandra Shanbaug v UOI,*(2011) 4 SCC 454 (*supra*).

49 *Pretty v Director of Public Prosecution,(2002) 1 All ER 1* : *(2002) 1 AC 200*.

50 *(1987) 1 All ER 940* : *(1987) AC 514*.

51 Craig R Ducat, *Constitutional Interpretation*, 8th Edn, p 475.

52 See *Sidharam Satlingappa Mhetri v State of Karnataka,*AIR 2011 SC 312 : (2011) 1 SCC 694.

53 *GVK Industries v ITO,*(2011) 4 SCC 36 : (2011) 3 JT 356.

54 *State of Uttaranchal v Balwant Singh Chaufal,*(2010) 3 SCC 402 : AIR 2010 SC 2550.

55 H M Seervai, *Constitutional Law of India*, 4th Edn, vol 1, pp 236-38.

56 Lawyers collective, vol XII (1997) Nos. 8, 9, pp 43-54 & Lawyers collective, vol XV (2000) No. 1, pp 5-19; Indian Law Institute Newsletter Quarterly, yrs. 2000 to 2006, vol I to vol VIII.

57 **See** also *Rameshwar Prasad VI v UOI,*(2006) 2 SCC 1 : AIR 2006 SC 980.

58 *T.M.A. Pai Foundation v State of Karnataka,*(2002) 8 SCC 697.

59 *P.A. Inamdar v State of Maharashtra,*AIR 2005 SC 3226 : (2005) 6 SCC 537.

60 *UOI v Association for Democratic Reform,*AIR 2002 SC 2112 : (2002) 5 SCC 294.

61 **See** also *People's Union for Civil Liberties (PUCL) v UOI,*AIR 2003 SC 2363 : (2003) 4 SCC 399.

62 **See** also *UOI v Association for Democratic Reforms,*(2002) 5 SCC 294; *People's Unionfor Civil Liberties v UOI,*AIR 2003 SC 2363 : (2003) 4 SCC 399.

63 *Noise Pollution (V), In Re,*AIR 2005 SC 3136 : (2005) 5 SCC 733.

64 (1892) 146 US 387 : 36 L Ed 1018.

65 (1997) 1 SCC 388.

66 (2004) 3 SCC 214 : AIR 2004 SC 1815.

67 (2006) 3 SCC 549 : AIR 2006 SC 1350.

68 (2009) 3 SCC 571 : (2009) 1 JT 470.

69 (2010) 7 SCC 1 : (2010) 5 JT 413.

70 **See** also *Rajasthan SRTC v Bal Mukund Bairwa* (2) (2009) 4 SCC 299 : (2009) 2 JT 423; *Rajasthan SRTC v Krishna Kant*(1995) 5 SCC 75 : AIR 1995 SC 1118.

71 **See** also *UP State Brassware Corp Ltd v Uday Narain Pandey,*(2006) 1 SCC 479 : AIR 2006 SC 586; *Haryana State Electronic Dev. Corp v Mamni*, (2006) 9 SCC 414 : AIR 2006 SC 2407.

72 **See** also *Abhijit Gupta v SNB National Centre Basic Science,*(2006) 4 SCC 469 : AIR 2006 SC 3471; *Mathew P. Thomas v Kerala State Civil Supplies Corp*, (2003) 4 SCC 263; *Pavenendra Narayana Verma v Sanjay Gandhi Post Graduate Institute of Medical Sciences*, (2002) 1 SCC 520 : AIR 2002 SC 23.

73 (1994) 3 SCC 394 : AIR 1994 SC 1844.

74 (1996) 2 SCC 648 : AIR 1996 SC 1257.

75 AIR 2012 SC 3230 : (2012) 8 SCC 441 : (2012) 4 CTC 772.

76 AIR 2011 SC 1169 : (2011) 2 SCC 706.

77 **See** also *Kalyaneshwari v UOI,*(2011) 3 SCC 287 : (2011) 2 JT 38.

78 **See***People's Union for Democratic Rights v UOI,*AIR 1982 SC 1473 : (1982) 3 SCC 235.

79 **See** also (2012) 11 SCC 728 : (2011) 14 SCC 349.

80 *M. Nagaraj v UOI,*AIR 2007 SC 71 : (2006) 8 SCC 212.

81 (2006) 8 SCC 212 : AIR 2007 SC 71.

82 **See***G. Sekhar v Geetha,*(2009) 6 SCC 99 : AIR 2009 SC 2649.

83 Lawyers collective, June 2006, pp 30-31. **See** also Editorial of the June issue by Indira Jaising at p 3/5.

84 (2013) 1 SCC 297 : AIR 2013 SC 93.

85 **See** also *Medha Kotwal Lele v UOI,*(2013) 1 SCC 311 and also at p 312 : (2004) 5 Scale 573.

86 **See***ante* "The Reservation riddle".

87 *UOI v Navin Jindal*, (2004) 2 SCC 510 : AIR 2004 SC 1559. **See** XL ASIL (2004) pp 78-128.

1 *James Martin v State of Kerala*, (2004) 2 SCC 203 : (2003) 10 JT 371.

2 *T.M.A. Pai Foundation v State of Karnataka*, (2002) 8 SCC 481 : AIR 2003 SC 355.

3 *Islamic Academy of Education v State of Karnataka*, (2003) 6 SCC 697 : AIR 2003 SC 3724.

4 *E.G. Modern School v UOI*, (2004) 5 SCC 583 : AIR 2004 SC 2236; *Brahmo Samaj Education Society v State of WB*, (2004) 6 SCC 224 : AIR 2004 SC 3358; *P.A. Inamdar v State of Maharashtra*, (2004) 8 SCC 139 : (2004) 6 Scale 245; *Modern Dental College and Research Institute v State of MP*, (2004) 8 SCC 213; *South Indian Education Society v Nirmal Narayan P.*, (2004) 8 SCC 216 : (2005) 5 Scale 647; *Islamic Academy of Education v State of Karnataka*, (2004) 8 SCC 217.

5 *Jamshed H. Wadia v Bd. of Trustees, Port of Mumbai*, (2004) 3 SCC 214 : AIR 2004 SC 1815.

6 *A. Umarani v Registrar, Co-op. Societies*, (2004) 7 SCC 112 : AIR 2004 SC 4504.

7 *Virendra Kumar Srivastava v U.P. Rajya Karmachari Kalyan Nigam*, (2005) 1 SCC 149 : AIR 2005 SC 411.

8 *Union of IndiaUOI v Navin Jindal*, (2004) 2 SCC 510 : AIR 2004 SC 1559.

9 *E.V. Chinnaiah v State of AP*, (2005) 1 SCC 394 : AIR 2005 SC 162.

10 *E.V. Chinnaiah v State of AP*, (2005) 1 SCC 394 at p 416 : : AIR 2005 SC 162.

11 *E.V. Chinnaiah v State of AP*, (2005) 1 SCC 394 at p 435 : AIR 2005 SC 162.

12 SINHA J. in *Saurabh Chandri (Dr.) v UOI*, (2004) 5 SCC 618, at p 630 : AIR 2004 SC 2212.

13 SINHA J. in *Saurabh Chandri (Dr.) v UOI*, (2004) 5 SCC 618, at p 628 : AIR 2004 SC 2212.

14 *Action Committee v UOI*, (1994) 5 SCC 244 and *MCD v Veena*, (2001) 6 SCC 571 : AIR 2001 SC 2749. **Followed** in *State of Maharashtra v Milind,*(2001) 1 SCC 4 : AIR 2001 SC 393; *E.V. Chinniah v State of AP,*(2005) 1 SCC 394 : AIR 2005 SC 162; *MCD v V. Veena,*(2001) 6 SCC 571 : AIR 2001 SC 2749.

15 (2004) 1 SCC 530 : AIR 2004 SC 992.

16 *S. Pushpa v Sivachanmugavelu*, (2004) 3 SCC 132 : (2004) 2 Scale 694 (decision by two-judge bench).

17 *S. Pushpa v Sivachanmugavelu*, (2005) 1 SCC 1 : AIR 2005 SC 1483.

18 (2009) 3 SCC 90 : (2009) 1 JT 467.

19 *People's Union for Civil Liberties v UOI*, (2004) 2 SCC 476 at 495 : AIR 2004 SC 1442.

20 *People's Union for Civil Liberties v UOI*, (2004) 2 SCC 476 at 499 : : AIR 2004 SC 1442. (List of restrictions given). **See** also *TMA Pai Foundations* case, (2002) 8 SCC 481: AIR 2003 SC 355; *Islamic Academy of Education v State of Karnataka*, (2003) 6 SCC 697; *Brahmo SamajEducation Society v State of WB*, (2004) 6 SCC 224 : AIR 2004 SC 3358. **See** also *Ram Jethmalani v UOI,*(2011) 8 SCC 1 : (2011) 6 Scale 691.

21 *S. Khushboo v Kanniammal,*AIR 2010 SC 3196 : (2010) 5 SCC 600 : (2010) Cr LJ 2828.

22 *Zahira Habibullah H. Sheikh v State of Gujarat*, (2004) 4 SCC 158 : AIR 2004 SC 3114 (popularly known as Best Bakery case).

23 2004 3 SCC 349, (wherein death sentence was imposed on Dhananjay Chatterjee).

24 *Tirupati Balaji Developers Pvt Ltd v State of Bihar*, (2004) 5 SCC 1 : AIR 2004 SC 2351.

25 **See** Justice R.C. Lahoti's observations, in ibid at pp no. 14, 15.

26 **See** XL ASIL (2004) pp 78-128.

27 *Ashok Kumar Todi v Kishwar Jahan,*AIR 2011 SC 1254 : (2011) 3 SCC 758; *Arumugham Servai v State of TN,*AIR 2011 SC 1859 : (2011) 6 SCC 405; *Bhagwan Das v State (NCT of Delhi)*, AIR 2011 SC 1863 : (2011) 6 SCC 396; *Lata Singh v State of UP,*(2006) 5 SCC 475 : AIR 2006 SC 2522.

28 *UOI v Rafique Shaikh Bhikani,*AIR 2012 SC 2453 : (2012) 6 SCC 265.

End of Document

APPENDIX TO INTRODUCTION

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

APPENDIX TO INTRODUCTION

Important Facts and Figures at a Glance

1. FACTS TO START WITH

(*Figures rounded up, primarily on the basis of the 2011 census*)

India has—

an area of over 32,87,263 sq. km. of which 10,861 sq. miles are included in the Union Ter-ritories and the rest in the States;

5,97,483 villages as against 7,935 towns; and 70 % of the population live in villages;

a population (in 2011) of over 1,210,193,422—of whom Hindus constitute 80.5 %, Muslims 13.4 %, and other religions together 6.1 %; who speak as many as 1,652 languages of which 22 languages are spoken by over a lakh of people each and these 22 have, accordingly, been included in the Eighth Schedule of the *Constitution*.

a per capita annual income of Rs. 13,193 (at the price level of 1997-98).

a literacy of 82.14% males & 65.46% females [In 1951, it was 18 % only.]

Every man and woman of 18 and over is an elector for the House of the People and respec-tive Legislative Assembly. At the fifth general election held in 1971, the number of persons on the electoral roll was 290 m., which is more than the population of the U.S.A. or the U.S.S.R. On the revision of the electoral roll, in 1986, this number rose up to 361 m.; and as a result of the lowering of the voting age to 18, in the 1989-election, the number exceeded 490 m. In the 1996 polls the number of voters was more than 590 million.

General elections have been held in 1951, 1957, 1962, 1967, 1971, 1977, 1980, 1984, 1989, 1991, 1996, 1998, 1999, 2004-2009 and 2014

India’s Annual Budget for 2013-2014 is Rs. 16,65,297 crores, of which Defence includes Rs. 2,03,672 crores.

APPENDIX TO INTRODUCTION

The Constituent Assembly had its first sitting on 9.12.1946.

The Draft *Constitution of India*, which was prepared by the Drafting Committee of the con-stituent Assembly and presented by it to the President of the constituent Assembly on 21.2.1948, contained 315 Articles and 8 Schedules.

The *Constitution of India*, as adopted on 26.11.1949, contained 395 Articles and 8 Sched-ules, After subsequent amendments, the *Constitution* as it stood on 31.1.2014, contained 461 Articles and 12 Schedules.

Up to December, 2013, the *Constitution* has been amended 98 times by *Constitution* Amendment Acts passed in conformity with *Article 368 of the Constitution*.

2. FUNDAMENTAL RIGHTS

APPENDIX TO INTRODUCTION

Right to Equality	***Right to Freedom***	***Right against Exploitation***	***Right to Freedom of Religion***	***Cultural and Educational Rights***	***Right to Property***[1]	***Right to Constitutional Remedies***
1. Equality before law and Equal protection before law [*Article 14*]. 2. Prohibition of discrimination on ground of religion etc. [*Article 15*]. 3. Equality of opportunity in employment [*Article 16*]. 4. Abolition of untouchability [*Article 17*]. 5. Abolition of titles [*Article 18*].	1. Freedom of speech and expression; assembly; association; movement; residence and settlement; … profession [*Article 19*] 2. Protection in respect of conviction for offences [*Article 20*]. 3. Protection of life and personal liberty [*Article 21*]. 4. Right to education The State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may, by law, determine.[*Article 21A*] 5. Protection against arrest and detention in certain cases [*Article 22*].	1. Prohibition of traffic in human beings and forced labour [*Article 23*]. 2. Prohibition of employment of children in hazardous employment [*Article 24*].	1. Freedom of conscience and free profession [*Article 25*]. 2. Freedom to manage religious affairs [*Article 26*]. 3. Freedom as to payment of taxes for promotion of any particular religion [*Article 27*]. 4. Freedom as to attendance at religious instruction in certain educational institutions [*Article 28*].	1. Protection of language, script or culture of minorities [*Article 29*]. 2. Right of minorities to establish and administer educational institutions [*Article 30*].		1. Remedies for enforcement of the fundamental rights conferred by this Part,— writs of *habeas corpus*, mandamus, prohibition, *certiorari* and *quo warranto* [*Article 32*].

APPENDIX TO INTRODUCTION

3. FUNDAMENTAL DUTIES OF CITIZENS[1]

(a) To abide by the *Constitution* and respect its ideals and institutions, the National Flag and the National Anthem;

(b) to cherish and follow the noble ideals which inspired our national struggle for free-dom;

(c) to uphold and protect the sovereignty, unity and integrity of India;

(d) to defend the country and render national service when called upon to do so;

(e) to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities; to renounce practices derogatory to the dignity of women;

(f) to value and preserve the rich heritage of our composite culture;

(g) to protect and improve the natural environment including forests, lakes, rivers and wild life, and to have compassion for living creatures;

(h) to develop the scientific temper, humanism and the spirit of inquiry and reform;

(i) to safeguard public property and to abjure violence;

(j) to strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement.

(k) who is a parent or guardian to provide opportunities for education to his child or, as the case may be, ward between the age of six and fourteen years.[2]

4. Directive Principles of State Policy

APPENDIX TO INTRODUCTION

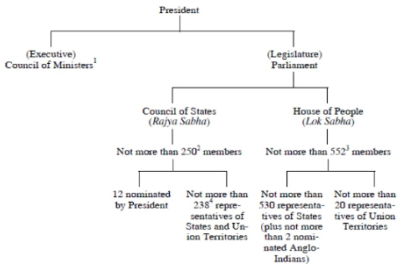
APPENDIX TO INTRODUCTION

Directives in the Nature of Ideals of the State	*Directives Shaping the Policy of the States*	*Non-justiciable Rights of Citizens*
1. The State shall strive to promote the welfare of the people by securing a social, economic and political justice [Art. 38(1)]; *to minimise inequality in income, status, facilities and opportunities, amongst individuals and groups* [Art. 38(2)].[1]	1. To establish economic democracy and justice by securing certain economic rights (to be enumerated in the next column).	1. Right to adequate means of livelihood [Art. 39(a)].
2. The State shall endeavour to secure just and human conditions of work, a living wage, a decent standard of living and social and cultural opportunities for all workers [Art. 43].	2. To secure a uniform civil code for the citizens [Art. 44].	2. Right of both sexes to equal pay for equal work [Art. 39(d)].
3. The State shall endeavour to raise the level of nutrition and standard of living and to improve public health [Art. 47].	3. The State shall endeavour to provide early childhood care and education for all children until they complete the age of six years[2] [Art. 45].	3. Right against economic exploitation [Art. 39(e)].
4. The State shall direct its policy towards securing equitable distribution of the material resources of the community and prevention of concentration of wealth and means of production [Art. 39(b)-(c)].	4. To prohibit consumption of liquor and intoxicating drugs except for medical purposes [Art. 47].	4. *Right of children and the young to be protected against exploitation and to opportunities for healthy development, consonant with freedom and dignity* [Art. 39(e)(f)][3]
5. The State shall endeavour to promote international peace and amity [Art. 51].	5. To develop cottage industries [Art. 43].	5. *Right to equal opportunity for justice and free legal aid* [Art. 39A].[3]
	6. To organise agriculture and animal husbandry on modern lines [Art. 48].	6. Right to work [Art. 41].
	7. To prevent slaughter of useful cattle, *i.e.*, cows, calves, and other milch and draught cattle [Art. 48].	7. Right to public assistance in case of unemployment, old age, sickness and other cases of undeserved want [Art. 41].
	8. To organise Village Panchayats as units of self-government [Art. 40].	8. Right to humane conditions of work and maternity relief [Art. 42].
	9. To promote educational and economic interests of weaker sections and to protect them from social injustice [Art. 46].	9. Right to a living wage and conditions of work ensuring decent standard of life for workers [Art. 43].
	10. *To protect and improve the environment and to safeguard forests and wild life* [Art. 48A].[3]	10. *Right to workers to participate in management of industries* [Art. 43A].[3]
	11. To protect and maintain places of historic or artistic interest [Art. 49].	11. Right of early childhood care and education to children below the age of six years[2] [Art. 45].
	12. To separate the judiciary from the Executive [Art. 50].	

1. Added by the 44th Amendment Act, 1978.
2. Substituted by Constitution (Eighty Sixth Amendment) Act, 2002, s. (w.e.f. 1-4-2010).
3. Added by the 42nd Amendment Act, 1976, s. 10 (w.e.f. 3-1-1977).

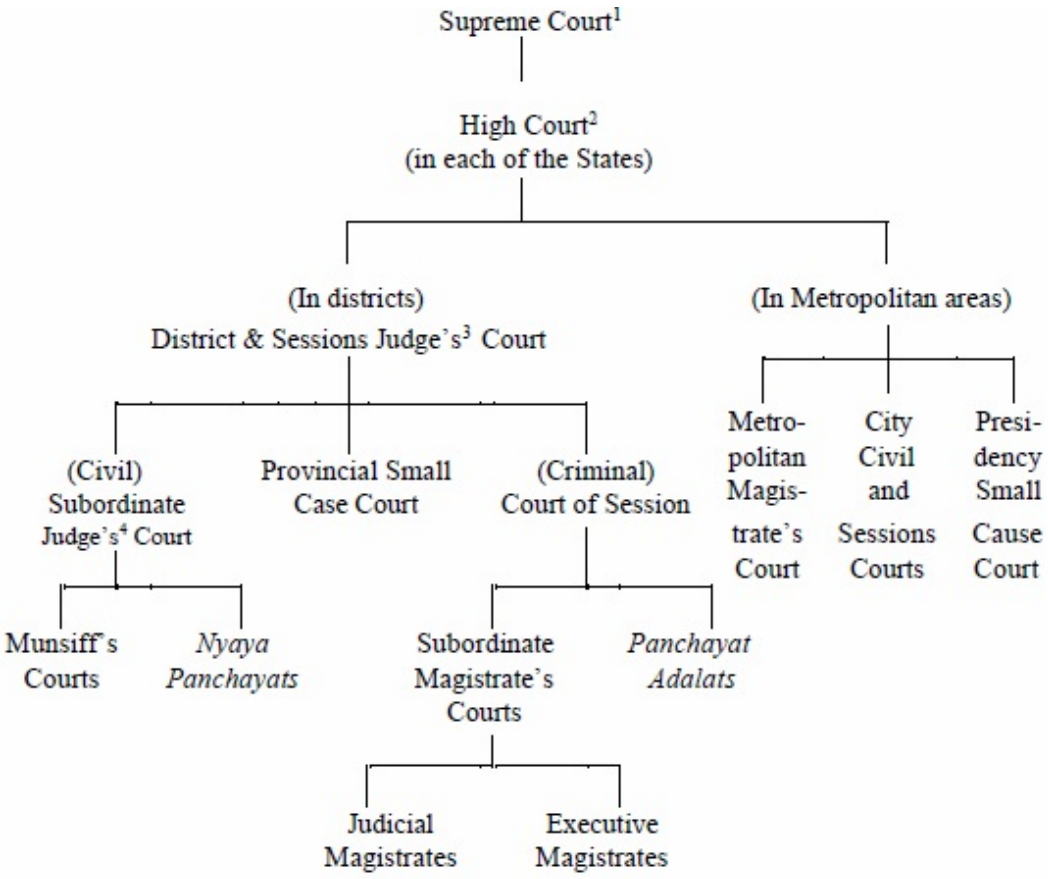
APPENDIX TO INTRODUCTION

5. GOVERNMENT OF THE UNION



1 2 3 4

6. THE JUDICIARY



1 2 3 4

7. Jurisdiction & seats of High Courts

APPENDIX TO INTRODUCTION

APPENDIX TO INTRODUCTION

Name	Year of Establishment	Territorial Jurisdiction	Seat
Allahabad	1866	Uttar Pradesh	Allahabad (Bench at Lucknow)
Andhra Pradesh*	1954*	Andhra Pradesh*	Hyderabad*
Bombay	1862	Maharashtra, Dadra and Nagar Haveli and Goa, Daman and Diu	Bombay (Bench at Nagpur, Panaji and Aurangabad)
Calcutta	1862	West Bengal and Andaman and Nicobar Islands	Calcutta (Circuit bench at Port Blair)
Chhatisgarh	2000	Chhatisgarh	Bilaspur
Delhi	1966	Delhi	Delhi
Gauhati[1]	1948	Assam, Nagaland, Mizoram and Arunachal Pradesh	Guwahati (Bench at Kohima , Aizwal and Itanagar)
Gujarat	1960	Gujarat	Ahmedabad
Himachal Pradesh	1971	Himachal Pradesh	Shimla
Jammu and Kashmir	1957	Jammu and Kashmir	Srinagar and Jammu
Jharkhand	2000	Jharkhand	Ranchi
Karnataka[2]	1884	Karnataka	Bangalore, Dharwad and Gulbarga
Kerala	1956	Kerala and Lakshadweep	Ernakulam
Madhya Pradesh	1956	Madhya Pradesh	Jabalpur (Benches at Gwalior and Indore)
Madras	1862	Tamil Nadu and Pondicherry	Madras
Manipur	2013	Manipur	Imphal
Meghalaya	2013	Meghalaya	Shillong
Patna	1916	Bihar	Patna (Bench at Ranchi)
Punjab and Haryana[3]	1966	Punjab, Haryana and Chandigarh	Chandigarh
Rajasthan	1950	Rajasthan	Jodhpur (Bench at Jaipur)
Sikkim	1975	Sikkim	Gangtok
Tripura	2013	Tripura	Agartala
Uttarakhand[4]	2000	Uttaranchal	Nainital

* On and from the 2nd day of June, 2014 refer Ss. 30, 31 of the Andhra Pradesh Reorganisation Act, 2014 (6 of 2014) in respect of the High Court for the State of Telangana and a separate High Court for the State of Andhra Pradesh.

1. Originally known as Assam High Court, renamed as above in 1971.
2. Originally known as Mysore High Court, renamed as above in 1973.
3. Originally known as Punjab High Court, renamed as above in 1966.
4. Originally known as Uttaranchal High Court, renamed as above in 2006

APPENDIX TO INTRODUCTION

8. TERRITORIAL JURISDICTION OF BENCHES OF CENTRAL ADMINISTRATIVE TRIBUNAL

Sl. No.	Bench	Jurisdiction of the Bench
(1)	(2)	(3)
1.	Principal Bench (New Delhi)	National Capital Territory of Delhi
2.	Ahmedabad Bench	State of Gujarat
3.	Allahabad Bench	State of Uttar Pradesh excluding the District mentioned against serial Number 4 under the jurisdiction of Lucknow Bench
4.	Lucknow Bench	Districts of Lucknow, Hardoi, Kheri, Rai Barelli, Sitapur, Unnao, Faizabad, Baharaich, Barabanki, Gonda, Pratapgarh and Sultanpur in the State of Uttar Pradesh
5.	Bangalore Bench	State of Karnataka
6.	Calcutta Bench	States of Sikkim and West Bengal and Union Territory of Andaman and Nicobar Islands
7.	Chandigarh Bench	States of Jammu * Kashmir, Haryana, Himachal Pradesh and Punjab and the Union Territory of Chandigarh
8.	Cuttack Bench	State of Orissa
9.	Ernakulam Bench	State of Kerala and Union Territory of Lakshadweep
10.	Guwahati Bench	State of Assam, Manipur, Meghalaya, Nagaland and Tripura and the Union Territories of Arunachal Pradesh and Mizoram
11.	Hyderabad Bench	State of Andhra Pradesh
12.	Jabalpur Bench	State of Madhya Pradesh
13.	Jodhpur Bench	State of Rajasthan excluding the District mentioned against serial Number 14 under the jurisdiction of Jaipur Bench
14.	Jaipur Bench	Districts of Ajmer, Alwar, Baran, Bharatpur, Bundi, Dausb, Dholpur, Jaipur, Jhallawar, Jhunjhun, Kotah, Sawai-Modhopur, Sikar and Tonk in the State of Rajasthan
15.	Madras Bench	State of Tamil Nadu and the Union Territories of Pondicherry
16.	Bombay Bench	State of Maharashtra and Goa the Union Territories of Dadra and Nagar Haveli and, Daman and Diu.

APPENDIX TO INTRODUCTION

Sl. No.	Bench	Jurisdiction of the Bench
(1)	(2)	(3)
17.	Patna Bench	State of Bihar.

9. LANGUAGES

[Articles 344(1), 351, 8th Schedule]

1. Assamese.
2. Bengali.
3. Bodo. [2]
4. Dogri. [2]
5. Gujarati.
6. Hindi.
7. Kannada. [2]
8. Kashmiri.
9. Konkani. [1]
10. Maithili. [4]
11. Malayalam.
12. Manipuri. [1]
13. Marathi.
14. Nepali. [1]
15. Odia. [1]
16. Punjabi.
17. Sanskrit.
18. Santhali. [2]
19. Sindhi. [3]
20. Tamil.
21. Telugu.
22. Urdu.

10. PRESIDENTS OF INDIA

Name	Tenure
1. Dr. Rajendra Prasad (1884-1963)	26 January, 1950 — 13 May 1962
2. Dr. Sarvepalli Radhakrishnan (1888-1975)	13 May 1962 — 13 May 1967
3. Dr. Zakir Hussain (1897-1969)	13 May 1967 — 3 May 1969 (died)
4. Varahagiri Venkatagiri (1884-1980)	3 May 1969 — 20 July 1969 (Acting)
5. Justice Mohammad Hidayatullah (1905-1992)	20 July 1969 — 24 August 1969 (Acting)
6. Varahagiri Venkatagiri	24 August 1969 — 24 August 1974
7. Fakhruddin Ali Ahmed (1905-1977)	24 August 1974 — 11 February 1977 (died)
8. B.D. Jatti (b. 1913)	11 February 1977 — 25 July 1977 (Acting)

APPENDIX TO INTRODUCTION

Name	Tenure
9. Neelam Sanijva Reddy (1913-1996)	25 July 1977 — 25 July 1982
10. Giani Zail Singh (1916-1994)	25 July 1982 — 25 July 1987
11. M. Hidayatullah (1905-1992)	6 October 1982 — 31 October 1982 (discharged the functions of the President)
12. R. Venkataraman (b. 1910)	25 July 1987 — 25 July 1992
13. Dr. Shankar Dayal Sharma (1918-1999)	25 July 1992 — 25 July 1997
14. Dr. K.R. Naryanan (b. 1920)	25 July 1997 — 25 July 2002
15. Dr. A.P.J. Abdul Kalam (b. 1931)	25 July 2002 — 25 July 2007
16. Smt. Pratibha Devisingh Patil (b. 1934)	25 July 2007 — 25 July 2012
17. Dr. Pranab Mukherjee.	25 July 2012 — till date

11. VICE-PRESIDENTS OF INDIA

Name	Tenure
1. Dr. Sarvepalli Radhakrishnan	1952 — 1962
2. Dr. Zakir Hussain	1962 — 1967
3. Varashagiri Venkatagiri	1967 — 1969
4. Gopal Swarup Pathak (1896-1982)	1969 — 1974
5. B.D. Jatti	1974 — 1979
6. Mohammad Hidayatullah	1979 — 1984
7. R. Venkataraman	1984 — 1987
8. Dr. Shankar Dayal Sharma	1987 — 1992
9. Dr. K.R. Naryanan	1992 — 1997
10. Krishan Kant	1997 — 2002
11. Bhairon Singh Shekhawat (b. 1923)	2002 — 2007
12. Shri Mohammad Hamid Ansari	2007 — 2012
13. Shri Mohammad Hamid Ansari	Re-elected in 2012 - till date

12. PRIME MINISTERS OF INDIA

Name	Tenure
1. Jawaharlal Nehru (1889-1964)	15 August 1947 — 27 May 1964 (died)
2. Gulzari Lal Nanda (b. 1898)	27 May 1964 — 9 June 1964 (Acting)

APPENDIX TO INTRODUCTION

Name	Tenure
3. Lal Bahadur Shastri (1904-1966)	9 June 1964 — 11 January 1966 (died)
4. Gulzari Lal Nanda (b. 1898)	11 January 1966 — 24 January 1966 (Acting)
5. Indira Gandhi (1917-1984)	24 January 1966 — 24 March 1977
6. Morarji Desai (1896-1995)	24 March 1977 — 28 July 1979
7. Charan Singh (1902-1987)	24 July 1979 — 14 January 1980
8. Indira Gandhi (1917-1984)	14 January 1980 — 31 October 1984 (died)
9. Rajiv Gandhi (1944-1961)	31 October 1984 — 1 December 1989
10. Vishwanath Pratap Singh (b. 1931)	2 December 1989 — 10 November 1990
11. Chandra Shekhar (b. 1927)	10 November 1990 — 21 June 1991
12. P.V. Narasimha Rao (b. 1921)	21 June 1991 — 16 May 1996
13. Atal Bihari Bajpayee (b. 1924)	16 May 1996 — 1 June 1996
14. H.D. Deve Gowda (b. 1933)	1 June 1996 — 20 April 1997
15. I.K. Gujral (b. 1919)	21 April 1997 — 18 March 1998
16. Atal Bihari Bajpayee (b. 1926)	19 March 1998 — 13 October 1999
17. Atal Bihari Bajpayee (b. 1926)	13 October 1999 — 22 May 2004
18. Dr. Manmohan Singh (b. 1932)	22 May 2004 — till date

13. MEMBERS OF THE FIRST LAW COMMISSION OF INDEPENDENT INDIA

Chairman: Shri M.C. Setalwad, Attorney General of India

1. Shri M.C. Chhagla, Chief Justice, High Court of Bombay,
2. Shri K.N. Vanchhu, Chief Justice, High Court of Rajasthan,
3. Shri G.N. Das, Retired Judge, High Court of Calcutta,
4. Shri P. Satyanarayanrao, Retired Judge, High Court of Madras,
5. Dr. N.C. Sengupta, Advocate, Calcutta,
6. Shri V.K.T. Charry, Advocate-General, Madras,
7. Shri Narsa Rajah, Advocate-General, Andhra,
8. Shri S.M. Sikri, Advocate-General, Punjab,
9. Shri G.S. Pathak, Advocate, Allahabad,
10. Shri G.N. Joshi, Advocate, Bombay,
11. Shri N.A. Palkhiwala, Advocate, Bombay.

APPENDIX TO INTRODUCTION

14. CHIEF JUSTICE OF THE SUPREME COURT OF INDIA

1. Harilal J. Kania	26.01.1950 — 6.11.1951
2. M. Patanjali Shashtri	7.11.1951 — 03.01.1954
3. Maher Chand Mahajan	04.01.1954 — 22.12.1954
4. B.K. Mukherjee	23.12.1954 — 31.01.1956
5. S.R. Das	01.02.1956 — 30.09.1959
6. Bhuvaneshwar Prasad Sinha	01.10.1959 — 31.01.1964
7. P.B. Gajendragadakar	01.02.1964 — 15.03.1966
8. A.K. Sarkar	16.03.1966 — 29.06.1967
9. K. Subbarao	30.06.1966 — 11.04.1967
10. K.N. Vanchhru	12.04.1967 — 24.02.1968
11. M. Hidayatullah	25.02.1968 — 16.12.1970
12. J.C. Shah	17.12.1970 — 21.01.1971
13. S.M. Sikri	22.01.1971 — 25.04.1973
14. A.N. Ray	26.04.1973 — 28.01.1977
15. M.H. Beg	29.01.1977 — 21.02.1978
16. Y.V. Chandrachud	22.02.1978 — 11.07.1985
17. Prafulla Chandra N. Bhagwati	12.07.1985 — 20.12.1986
18. R.S. Pathak	21.12.1986 — 18.06.1989
19. E.S. Venkatramiah	19.06.1989 — 17.12.1989
20. S. Mukherjee	18.12.1989 — 25.09.1990
21. Rang Nath Mishra	26.09.1990 — 24.11.1991
22. K.N. Singh	25.11.1991 — 12.12.1991
23. M.H. Kania	13.12.1991 — 17.11.1992
24. L.M. Sharma	18.11.1992 — 11.02.1993
25. M.N. Venkatachaliah	12.02.1993 — 24.10.1994
26. A.M. Ahmadi	25.10.1994 — 24.03.1997
27. J.S. Verma	25.03.1997 — 17.01.1998
28. M.M. Pamchhi	18.01.1998 — 09.10.1998
29. A.S. Anand	10.10.1998 — 31.10.2001

30. S.P. Bharucha	01.11.2001 — 05.05.2002
31. B.N. Kirpal	06.05.2002 — 08.11.2002
32. G.B. Patnaik	08.11.2002 — 18.12.2002
33. V.N. Khare	19.12.2002 — 02.05.2004
34. S. Rajendra Babu	02.05.2004 — 31.05.2004
35. R.C. Lahoti	01.06.2004 — 31.10.2005
36. Y.K. Sabharwal	01.11.2005 — 14.01.2007
37. K.G. Balakrishnan	14.01.2007 — 11.05.2010
38. S.H. Kapadia	12.05.2010 — 28.09.2012
39. Altamas Kabir	29.09.2012 — 18.07.2013
40. P. Sathasivam	19.07.2013 — till date

15. CHIEF ELECTION COMMISSIONERS OF INDIA

1. Sukumar Sen	21.03.1950 — 19.12.1958
2. K.V.K. Sundaram	20.12.1958 — 30.09.1967
3. S.P. Sen Verma	01.10.1967 — 30.09.1972
4. Dr. Nagendra Singh	01.10.1972 — 06.02.1973
5. T. Swaminathan	07.02.1973 — 17.06.1977
6. S.L. Shakdhar	18.06.1977 — 17.06.1982
7. R.K. Trivedi	18.06.1982 — 31.12.1985
8. R.V.S. Peri Shastri	01.01.1986 — 25.11.1990
9. Smt. V.S. Rama Devi	26.11.1990 — 11.12.1990
10. T.N. Seshan	12.12.1990 — 11.12.1996
11. M.S. Gill	12.12.1996 — 13.06.2001
12. J.M. Lyngdoh	13.06.2001 — 08.02.2004
13. T.S. Krishna Murthy	08.02.2004 — 15.05.2005
14. B.B. Tandon	16.05.2005 — 29.06.2006
15. N. Gopalaswami	30.06.2006 — 20.04.2009
16. Navin Chawla	21.04.2009 — 29.07.2010
17. S.Y. Qureshi	30.07.2010 — 10.06.2012
18. V.S. Sampath	11.06.2012 — till date

16. LOK SABHA AND ITS SPEAKER(S)

APPENDIX TO INTRODUCTION

Lok Sabha			Speaker(s)		
	Date of first meeting after its *constitution*	**Date of dissolution**	**Name**	**From**	**To**
First Lok Sabha	13 May 1952	4 April 1957	Ganesh Vasudev Mavalankar	15 May 1952	27 Feb. 1956
			M. Anathasayanam Ayyanger	8 March 1956	10 May 1957
Second Lok Sabha	10 May 1957	31 March 1962	M. Anathasayanam Ayyanger	11 May 1957	6 April 1962
Third Lok Sabha	16 April 1962	3 March 1967	Hukam Singh	17 April 1962	16 March 1967
Fourth Lok Sabha	16 March 1967	27 Dec. 1970	Neelam Sanjiva Reddy	17 March 1967	19 July 1969
			Dr. Gurdial Singh Dhillon	8 Aug. 1969	19 March 1971
Fifth Lok Sabha	19 March 1971	18 Jan. 1977	Dr. Gurdial Singh Dhillon	22 March 1971	1 Dec. 1975
			Bali Ram Bhagat	5 Jan. 1976	25 March 1977
Sixth Lok Sabha	25 March 1977	22 Aug. 1979	Neelam Sanjiva Reddy	26 March 1977	13 July 1977
			K.D. Hegde	21 July 1977	21 Jan. 1980
Seventh Lok Sabha	21 Jan. 1980	31 Dec. 1984	Dr. Bal Ram Jakhar	22 Jan. 1980	15 Jan. 1985
Eighth Lok Sabha	15 Jan. 1985	27 Nov. 1989	Dr. Bal Ram Jakhar	16 Jan. 1985	18 Dec. 1989
Ninth Lok Sabha	18 Dec. 1989	13 March 1991	Rabi Ray	19 Dec. 1989	9 July 1991
Tenth Lok Sabha	9 July 1991	10 May 1996	Shivraj Patil	10 July 1991	22 May 1996
Eleventh Lok Sabha	22 May 1996	4 Dec. 1997	P.A. Sangma	23 May 1996	23 March 1998
Twelfth Lok Sabha	23 March 1998	26 April 1999	G.M.C. Balayogi	24 March 1998	20 Oct. 1999
Thirteenth Lok	20 Oct. 1999	06 Feb, 2004	G.M.C. Balayogi	22 Oct. 1999	03 March, 2002
Sabha			Manohar Gajanan Joshi	10 May, 2002	02 June 2004
Fourteenth Lok Sabha	02 June 2004	02 March 2009	Somnath Chatterjee	04 June 2004	31 May 2009
Fifteenth Lok Sabha	June 2009	-	Meira Kumar	03 June 2009	till date

16. Lok Sabha and its Speaker(s)

APPENDIX TO INTRODUCTION

Sl. No.	State/U.T.	No. of times President's rule imposed	Duration of President's rule	
			From	To
(1)	(2)	(3)	(4)	(5)
1.	Andhra Pradesh	2	15.11.1954	28.03.1955
			18.01.1973	10.12.1973
2.	Assam	4	12.12.1979	06.12.1980
			30.06.1981	13.01.1982
			19.03.1982	27.02.1983
			27.11.1990	30.06.1991
3.	Bihar	8	29.06.1968	26.02.1969
			04.07.1969	16.02.1970
			09.01.1972	19.03.1972
			30.04.1977	24.06.1977
			17.02.1980	08.06.1980
			28.03.1995	04.04.1995
			12.02.1999	08.03.1999
			07.03.2005	24.11.2005
4.	Goa	5	02.12.1966	05.04.1967
			27.04.1979	16.01.1980
			14.12.1990	25.01.1991
			10.02.1999	09.06.1999
			04.03.2005	07.06.2005
5.	Gujarat	5	13.05.1971	17.03.1972
			09.02.1974	18.06.1975
			12.03.1976	24.12.1976
			17.02.1980	07.06.1980
			19.09.1996[1]	23.10.1996
6.	Haryana	3	21.11.1967	21.05.1968
			30.04.1977	21.06.1977
			06.04.1991	23.06.1991
7.	Himachal Pradesh	2	30.04.1977,	22.06.1977
			15.12.1992[2]	03.12.1993
8.	Jammu and Kashmir	5	26.03.1977	09.07.1977
			07.09.1986	06.11.1986
			19.07.1990	09.10.1996
			18.10.2002	02.11.2002
			11.07.2008	05.01.2009
9.	Karnataka	4	27.03.1971	20.03.1972
			31.12.1977	27.02.1978
			21.04.1989	20.11.1989
			10.10.1990	17.10.1990
			09.10.2007	11.11.2007
			20.11.2007	27.05.2008

1. Writ Petition challenging the Proclamation is pending before the Gujarat High Court.
2. Writ Petition challenging Proclamation brought before the Supreme Court has been dismissed and the validity of these Proclamations have been upheld by a 9-Judge Bench [*Bommai v. Union of India*, AIR 1994 SC 1918 (paras. 91 (x), 366)].

(1)	(2)	(3)	(4)	(5)
10.	Kerala	9	23.03.1956	01.11.1956
			01.11.1956	05.04.1957
			31.07.1959	22.02.1960
			10.09.1964	24.03.1965
			24.03.1965	06.03.1967
			04.08.1970	03.10.1970
			05.12.1979	25.01.1980
			21.10.1981	28.12.1981
			17.03.1982	24.05.1982
11.	Madhya Pradesh	3	30.04.1977	23.06.1977
			17.02.1980	09.06.1980
			15.12.1992[3]	07.12.1993
12.	Maharashtra	1	17.02.1980	09.06.1980
13.	Manipur	11	12.01.1967	19.03.1967
			25.10.1967	18.02.1968
			17.10.1969	22.03.1972
			21.01.1972	20.03.1972
			28.03.1973	04.03.1974
			16.05.1977	29.06.1977
			14.11.1979	13.01.1980
			28.02.1981	19.06.1981
			07.01.1992	08.04.1992
			01.01.1994	13.12.1994
			02.06.2001	06.03.2002
			10.11.1978	08.05.1979
14.	Mizoram	2	07.09.1988	24.01.1989
15.	Nagaland	4	22.03.1975	25.11.1977
			07.08.1988	25.01.1989
			02.04.1992	22.02.1993
			03.01.2008	12.03.2008
16.	Odisha	6	25.02.1961	23.06.1961
			11.01.1971	03.04.1971
			03.03.1973	06.03.1974
			16.12.1976	29.12.1976
			30.04.1977	06.06.1977
			17.02.1980	09.06.1980
17.	Patiala and East Punjab States Union (PEPSU)	1	04.03.1953	07.03.1954
18.	Punjab	8	20.06.1951	17.04.1952
			05.07.1966	01.11.1966
			23.08.1968	17.02.1969
			15.06.1971	17.03.1972
			30.04.1977	20.06.1977
			17.02.1980	07.06.1980
			06.10.1983	29.09.1985
			11.05.1987	25.02.1992
19.	Rajasthan	4	13.03.1967	26.04.1967
			30.04.1977	22.06.1977
			17.02.1980	06.06.1980
			15.12.1992[4]	04.12.1993

3. Writ Petition challenging Proclamation brought before the Supreme Court has been dismissed and the validity of these Proclamations have been upheld by a 9-Judge Bench [*Bommai v. Union of India*, AIR 1994 SC 1918 (paras. 91 (x), 366)].
4. Writ Petition challenging Proclamation brought before the Supreme Court has been dismissed and the validity of these Proclamations have been upheld by a 9-Judge Bench [*Bommai v. Union of India*, AIR 1994 SC 1918 (paras. 91 (x), 366)].

APPENDIX TO INTRODUCTION

APPENDIX TO INTRODUCTION

(1)	(2)	(3)	(4)	(5)
20.	Sikkim	2	18.8.1979	17.10.1979
			25.5.1984	08.03.1985
21.	Tamil Nadu	4	31.01.1976	30.06.1977
			17.02.1980	09.06.1980
			30.01.1988	27.01.1989
			30.01.1991	24.06.1992
22.	Tripura	3	21.01.1972	20.03.1972
			05.11.1977	04.01.1978
			12.03.1993[5]	09.04.1993
23.	Uttar Pradesh	9	25.02.1968	26.02.1969
			01.10.1970	18.10.1970
			13.06.1973	08.11.1973
			30.11.1975	21.01.1976
			30.04.1977	23.06.1977
			17.02.1980	09.06.1980
			06.12.1992[6]	04.12.1993
			18.10.1995[7]	17.10.1996
			18.10.1996[8]	21.03.1997
24.	West Bengal	4	20.02.1968	25.02.1969
			19.03.1970	02.04.1971
			29.06.1971	20.03.1972
			30.04.1977	21.06.1977
25.	Arunachal Pradesh	1	03.11.1979	18.01.1980
26.	NCT Delhi	1	16.2.2014	—
27.	Goa	3	03.12.1966	05.04.1967
			28.04.1979	16.01.1980
			14.12.1990	25.01.1991
28.	Meghalaya	1	10.10.1991	05.02.1992
29.	Mizoram	2	11.05.1977	02.06.1978
			11.11.1978	08.05.1979
30.	Puducherry	6	18.09.1968	17.03.1969
			03.01.1974	06.03.1974
			28.03.1974	02.07.1977
			12.11.1978	16.01.1980
			24.06.1983	16.03.1985
			12.01.1991	04.07.1991
31.	Jharkhand	3	19.01.2009	29.12.2009
			01.06.2010	11.09.2010
			18.01.2013	12.07.2013
		127		

5. As a stop-gap arrangement to enable a fresh election of the State Assembly, which had not taken place before the expiry of its term.
6. On ground of failure of B.J.P. Government to prevent demolition of the disputed Babri Masjid structure.
7. On the B.S.P. Government of Mayavati losing majority on the withdrawal of the support of the B.J.P.
8. On the failure of any Party to be able to form a Government. A writ petition challenging the proclamation was allowed by the Allahabad High Court. An appeal is pending the Supreme Court (January 1997).

APPENDIX TO INTRODUCTION

17. Presidents Rule in States and Union Territories

Sl. No.	Act	Date of assent by President	Date of commencement	Whether ratified by more than half of State Legislatures, as required by the Proviso to Article 368	Amendment made
(1)	(2)	(3)	(4)	(5)	(6)
1.	The Constitution (First Amendment) Act, 1951	18.06.1951	18.06.1951 (retrospective at Part)		Articles amended—15, 19, 85, 87, 174, 176, 341, 342, 376. Articles inserted—31A, 31B. Schedule added—Ninth.
2.	The Constitution (Second Amendment) Act, 1952	01.05.1953	01.05.1953	Since the Amendment Bill sought to make a change in the representation of States in Parliament, it had to be referred to the Legislatures of the States in Parts A and B for their ratification. The Bill was accordingly passed in Parliament on 19.12.1952, and then referred to the States. On receiving the ratification of not less than one-half of the State Legislatures, the President gave his assent on 01.05.1953.	Article amended—81.
3.	The Constitution (Third Amendment) Act, 1954	22.02.1955	22.02.1955	The Bill was passed by Parliament on 28.09.1954. Since the Bill sought to amend a List of the Seventh Schedule, it required ratification by the Legislatures of not less than one-half of the States specified in Parts A and B of the First Schedule. After having	Schedule amended—Seventh Schedule—List III, Entry 33.
(1)	(2)	(3)	(4)	(5)	(6)
				received such ratification, the President gave his assent on 22.02.1955.	
4.	The Constitution (Fourth Amendment) Act, 1955	27.04.1955	27.04.1955	... ...	Articles amended—31, 31A, 305. Schedule amended—Ninth. Article amended—3.
5.	The Constitution (Fifth Amendment) Act, 1955	24.12.1955	24.12.1955	... ...	
6.	The Constitution (Sixth Amendment) Act, 1956	11.09.1956	11.09.1956	The Bill was passed by Parliament on 31.03.1956. It required ratification by not less than half of the State Legislatures because it sought to amend the Legislative Lists. Having received such ratification the Bill was assented to by the President on 11.09.1956.	Articles amended—269, 286. Schedule amended—Seventh Schedule—List II, Entry 54; List I, Entry 92A inserted.
7.	The Constitution (Seventh Amendment) Act, 1956	19.10.1956	01.11.1956	For obvious reasons, this Bill required ratification. Hence, it was referred to the State Legislatures, having been passed by Parliament on 11.09.1956. After obtaining the required ratification, the President gave his assent	Articles amended—49, 80, 81, 82, 131, 153, 158, 168, 170, 171, 216, 217, 220, 222, 224, 230, 231, 232, 239, 240, 298, 371. Articles inserted—258, 290A, 350A, 350B, 372A, 378A. Schedules amended—First, Second, Fourth, Seventh—List I, Entries 82, 67, List II, Entries 12, 24; List III, Entry 49. Articles omitted—238, 242, 243, 259, 278, 306, 379-391.
(1)	(2)	(3)	(4)	(5)	(6)
					Schedule omitted—Second, Part B. Consequential amendments in numerous provisions.
8.	The Constitution (Eighth Amendment) Act, 1959	05.01.1960	05.01.1960	... ...	Article 334 amended—'20 years' substituted for '10 years'.
9.	The Constitution (Ninth Amendment) Act, 1960	28.12.1960	17.01.1961	Views of the Legislature of the State of W.B. ascertained, under Art. 3, but ratification was not required as cession territorial change was not a matter specified in the Proviso to Art. 368.	First Schedule amended—to transfer certain territories from the States of Assam, Punjab, West Bengal and the Union Territory of Tripura to Pakistan, implementing the Indo-Pakistan agreements of 6-7 former date.
10.	The Constitution (Tenth Amendment) Act, 1961	16.08.1961	11.08.1961 (with retrospective effect)	... ...	Article 240 and First Schedule amended—to incorporate Dadra and Nagar Haveli as a Union Territory.
11.	The Constitution (Eleventh Amendment) Act, 1961	19.12.1961	19.12.1961	... ...	Articles 66(1) and 71(3)—to remove doubts/disputes arising out of election of President or Vice-President.
12.	The Constitution (Twelfth Amendment) Act, 1962	27.03.1962	20.12.1961 (retrospectively)	... ...	Article 240 and First Schedule amended—to incorporate Goa, Daman and Diu as a Union Territory.
13.	The Constitution (Thirteenth Amendment) Act,	28.12.1962	01.12.1963	Yes	Article 371A inserted—to make special provisions for the
(1)	(2)	(3)	(4)	(5)	(6)
	1962				administration of the State of Nagaland.
14.	The Constitution (Fourteenth Amendment) Act, 1962	28.12.1962	28.12.1962 But as 3 & 7(c) came into force on 16.08.1962 (retrospectively).	Yes	Provided that Pondicherry, Karaikal, Mahe and Yanam, the former French territories, should be specified in the Constitution as the Union Territory of Pondicherry. Enabled the Union Territories of Himachal Pradesh, Manipur, Tripura, Goa, Daman and Diu and Pondicherry to have Legislatures and Councils of Ministers as the same pattern as in some of the Part C States before the States' reorganisation. The Act also provided that the mechanism/ organisation for Union Territories in the Lok Sabha should be raised from 25 to 25, to enable the Union Territory of Pondicherry to be represented adequately.
15.	The Constitution (Fifteenth Amendment) Act, 1963	05.10.1963	05.10.1963	Yes	Amends a number of Arts. 124, 128, 217, 222, 224, 224A, 226, 297, 311, 316, Entry 78, List I. The more important of these changes are—the raising of the age
(1)	(2)	(3)	(4)	(5)	(6)
					of retirement of a High Court Judge from 60 to 62; the extension of the jurisdiction of a High Court to issue writs under Art. 226 to a Government or authority situated outside its territorial jurisdiction where the cause of action arises within such jurisdiction; modifying the protection supposed by Art. 311 upon the pleasure of the President or Governor to dismiss a civil servant.
16.	The Constitution (Sixteenth Amendment) Act, 1963	05.10.1963	05.10.1963	Yes	Amends Art. 19 to enable Parliament to make laws providing restrictions upon the freedom of expression questioning the sovereignty or integrity of the Union of India, with consequential changes in Arts. 84, 173, Third Schedule.
17.	The Constitution (Seventeenth Amendment) Act, 1964	20.06.1964	20.06.1964	... ...	Amends Art. 31A (definition of 'estate' amended with retrospective effect). Entries 73—64 added to the Ninth Schedule.
18.	The Constitution (Eighteenth Amendment) Act, 1966	27.01.1966	27.01.1966	... ...	Adding Explanations to Art. 3. Provision was made for the formation of two

18. The Constitution Amendment Acts

APPENDIX TO INTRODUCTION

(1)	(2)	(3)	(4)	(5)	(6)
					States, Punjab and Haryana by reorganising Punjab on linguistic basis. The explanation added to Art 3 was to clarify that the Parliament has the power to create a new State or Union Territory.
19.	The Constitution (Nineteenth Amendment) Act, 1966	11.12.1966	11.12.1966	... ...	Amending Art. 324 to clarify the duties of the Election Commission.
20.	The Constitution (Twentieth Amendment) Act, 1966	22.12.1966	22.12.1966	... ...	Art. 233A inserted to validate the appointment of District Judges.
21.	The Constitution (Twenty-first Amendment) Act, 1967	10.04.1967	10.04.1967	... ...	Includes 'Sindhi' in the List of Languages in the Eighth Schedule.
22.	The Constitution (Twenty-second Amendment) Act, 1969	25.09.1969	25.09.1969	Yes.	Inserts Arts. 244A, 371B and Cl. (1A) in Art. 275, to constitute an autonomous State within the State of Assam (Meghalaya) comprising certain areas specified in Part A of the Sixth Schedule.
23.	The Constitution (Twenty-third Amendment) Act, 1970	23.01.1970	23.01.1970	Yes.	Amending Arts. 330, 332, 333, 334 (to extend the period of reservation for Scheduled Castes and Tribes).
24.	The Constitution (Twenty-fourth Amendment) Act,	05.11.1971	05.11.1971	Yes.	Inserting Cl. (4) in Art. 13, amending Art. 368. The object of the amendment

(1)	(2)	(3)	(4)	(5)	(6)
	1971				was to clarify that the Parliament has the power to amend every part of the Constitution. The intention was to wipe out the effect of Golak Nath Ajf ter this amendment the President is bound to assent to a Constitution Amendment Bill.
25.	The Constitution (Twenty-fifth Amendment) Act, 1971	20.04.1972	20.04.1972	Yes.	Clause (2) of Art. 31 amended and Cl. (2A) inserted, Art. 31C inserted. The jurisdiction of the Courts to determine the adequacy of compensation on acquisition of property was taken away. A new Clause was added to lay down that no law which declared that it was for giving effect to the principles specified in Cls. (b) and (c) of Art. 39 would be called in question on the ground that it is inconsistent with the fundamental rights.
26.	The Constitution (Twenty-sixth Amendment) Act, 1971	28.12.1971	28.12.1971	... ...	Omitting Arts. 291, 362, inserting Art. 363A, amending Art. 366(22). The recognition to the Rulers of Princely States was withdrawn and their privy

(1)	(2)	(3)	(4)	(5)	(6)
					purses were abolished.
27.	The Constitution (Twenty-seventh Amendment) Act, 1971	30.12.1971	n 3 from 30.12.1971, rest from 17.02.1972	... ...	Amending Art. 239A, inserting Art. 239B; amending Art. 240; inserting Art. 371C. Two new Union Territories viz. Mizoram and Arunachal Pradesh, were formed.
28.	The Constitution (Twenty-eighth Amendment) Act, 1972	27.08.1972	29.08.1972	... ...	Inserting Art. 312A; omitting Art. 314. The conditions of service and privileges of former Indian Civil Service officers were abolished.
29.	The Constitution (Twenty-ninth Amendment) Act, 1972	09.06.1972	09.06.1972	... ...	Adding items 65-66 to the Ninth Schedule. Two Kerala Acts pertaining to land reforms were included in the Ninth Schedule.
30.	The Constitution (Thirtieth Amendment) Act, 1972	22.02.1973	27.02.1973	Yes	Amending Art 133(1). Appeals to the Supreme Court were curtailed. Only such appeals can be brought which involve a substantial question of Law.
31.	The Constitutions (Thirty-first Amendment) Act, 1973	17.10.1973	17.10.1973	... ...	Amending Arts. 81, 330, 332. Elected seats in Lok Sabha increased from 525 to 545.
32.	The Constitution (Thirty-second Amendment) Act,	03.05.1974	01.07.1974	... ...	Amending Art. 371(1) and inserting Arts. 371D-371E.

(1)	(2)	(3)	(4)	(5)	(6)
	1973				amending Entry 63 of List I, Seventh Schedule. The object was to include six provisions in regard to Andhra Pradesh.
33.	The Constitution (Thirty-third Amendment) Act, 1974	19.03.1974	19.03.1974	... ...	Amending Arts. 101, 190. It was provided that if a member of a State legislature or Parliament sends his resignation, the Chairman or Speaker would satisfy himself that it is voluntary and genuine.
34.	The Constitution (Thirty-fourth Amendment) Act, 1974	07.09.1974	07.09.1974	Yes.	Adding items 67-86 to the Ninth Schedule.
35.	The Constitution (Thirty-fifth Amendment) Act, 1974	22.02.1975	01.03.1975	Yes.	Inserting Art. 2A and amending Arts. 80-81; adding Tenth Schedule. Sikkim was made an associate State.
36.	The Constitution (Thirty-sixth Amendment) Act, 1975	10.03.1975	26.04.1975	Yes.	Omitting Art. 2A, Schedule X; adding item 22 to Schedule 2; inserting Art. 371F; adding Entry 23 to Schedule IV. Sikkim was made a full fledged State.
37.	The Constitution (Thirty-seventh Amendment) Act, 1975	03.05.1975	03.05.1975	... ...	Amending Arts. 239A-240; repealing Tenth Schedule. Provision was made for a legislative Assembly and Council of Ministers for

(1)	(2)	(3)	(4)	(5)	(6)
					the Union Territory of Arunachal Pradesh.
38.	The Constitution (Thirty-eighth Amendment) Act, 1975	06.08.1975	01.08.1975	Yes.	Amending Arts. 123, 213, 239B, 352, 356, 358, 360. Declaration of Emergency by the President and promulgation of Ordinances by the President or Governor made issues over which the judiciary would not be able to exercise its power of review.
39.	The Constitution (Thirty-ninth Amendment) Act, 1975	10.08.1975	10.08.1975	Yes.	Amending Art. 71; inserting Art. 329A. Questions regarding elections of President, Vice-President, Prime Minister and Speaker of Lok Sabha taken out of the purview of the judiciary.
40.	The Constitution (Fortieth Amendment) Act, 1976	27.05.1976	27.05.1976	... ...	Substituting Art. 297; adding Entries 115 to 183 to Schedule IX. It was provided that all lands, materials etc. underlying the ocean within the territorial waters or the continental shelf or the exclusive economic zone of India shall vest in the Union. Power to demarcate the limits of territorial waters,

APPENDIX TO INTRODUCTION

(1)	(2)	(3)	(4)	(5)	(6)
					continental shelf etc. was vested in the Parliament.
41.	The Constitution (Forty-first Amendment) Act, 1976	07.09.1976	07.09.1976	... ...	Amending Art. 316. Upper age for members of State Public Service Commission raised from 60 to 62.
42.	The Constitution (Forty-second Amendment) Act, 1976	18.12.1976	Different dates, commencing from 03.01.1977, 1-2-1977 and 1-4-1977 [G.S.R. 2(E), dt. 3-1-1977]	Yes.	Amending Preamble, Art. 31C, 39, 55, 74, 77, 81, 82, 83, 100, 102, 103, 118, 145, 166, 170, 172, 189, 191, 194, 208, 217, 225, 227, 228, 311, 312, 330, 332, 352, 356, 357, 358, 359, 366, 368, 371F, Seventh Schedule. Substituting Arts. 103, 150, 192, 226; inserting Arts. 31D, 32A, 39A, 43A, 48A, 51A, 131A, 139, 144A, 226A, 228A, 257A, 323A, 323B. This amendment was almost a complete revision of the Constitution and many material changes were incorporated. It was enacted during an emergency. The next government, that came into power in 1977 repealed most of the amendments.

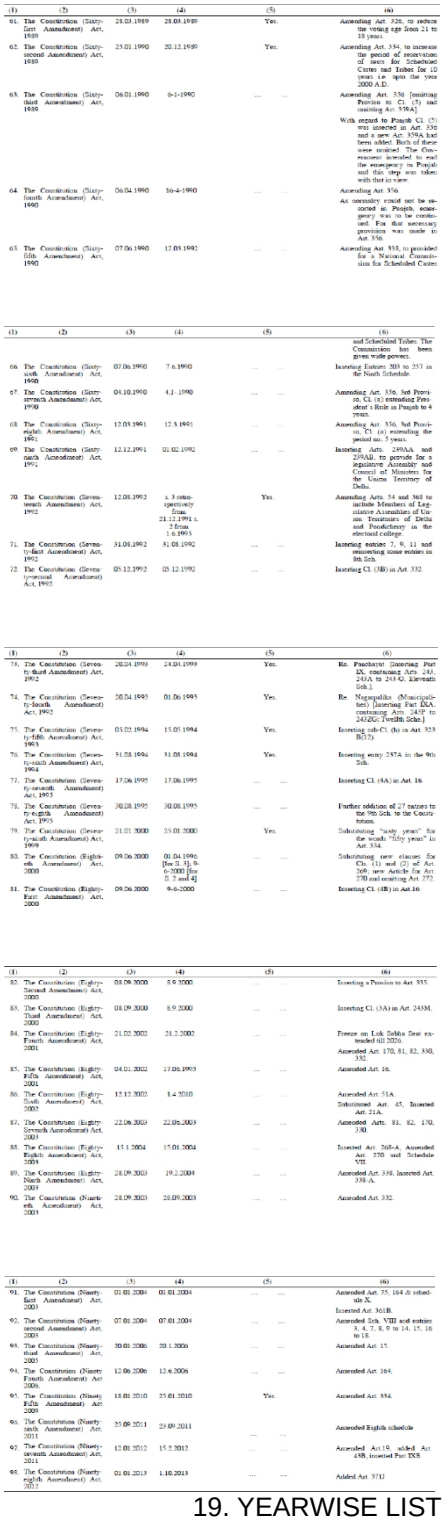
(1)	(2)	(3)	(4)	(5)	(6)
43.	The Constitution (Forty-third Amendment) Act, 1977	13.04.1978	13.04.1978	Yes.	Omitting Arts. 31D, 32A, 131A, 144A, inserted by Act 43 of 1977. This amendment omitted many articles inserted by the 42nd Amendment Act. Some articles were changed.
44.	The Constitution (Forty-fourth Amendment) Act, 1978	30.04.1979	Different dates as notified by Central Government, for different provisions [19.06.1979 and 1.8.1979 [G.S.R. 383(E), dt. 19-6-1979]; 6-9-1979 [G.S.R. 526(E), dt. 5-9-1979]]	Yes.	Omitting Arts. 19(1)(f), 31, 77(4), 123(4), 166(4), 213(4), 239B(4), 257A, 329A. Inserting Arts. 30(1A), 134A, 300A, 361A. Amending and substituting Arts. 19(1), 22, 31A, 31C, 38, 71, 74, 85, 105, 105, 123, 132-134, 139A, 172, 192, 194, 217, 223, 226, 227, 329, 352, 356, 358, 359, 360, Sch. 371F. Cancelling the amendments made by the 42nd Amendment Act to Arts. 100, 103, 103, 118, 191, 194, 208. (6 clauses of the Bill were rejected by the Rajya Sabha). The changes made by the 42nd Amendment Act were repealed or altered and the

(1)	(2)	(3)	(4)	(5)	(6)
					Constitution was brought back in its original form. But the right to Property was taken away from the Chapter of Fundamental Rights and put in a new Art. 300A.
45.	The Constitution (Forty-fifth Amendment) Act, 1980	14.04.1980	25.01.1980	Yes.	Extending reservation under Art. 334 from 30 to 40 years.
46.	The Constitution (Forty-sixth Amendment) Act, 1982	02.02.1983	02.02.1983	... ...	Amending Arts. 269, 286, 366, List I, relating to Sales Tax.
47.	The Constitution (Forty-seventh Amendment) Act, 1984	26.08.1984	26.08.1984	... ...	Adding Entries 188-202, to the Ninth Schedule.
48.	The Constitution (Forty-eighth Amendment) Act, 1984	26.08.1984	26.08.1984	... ...	Inserting Proviso to Cl. (2) of Art. 356 to extend President's Rule in Punjab.
49.	The Constitution (Forty-ninth Amendment) Act, 1984	11.09.1984	01.04.1985	... ...	Amending Art. 244, fifth & sixth Schedules. Sixth Schedule was made applicable to Tripura.
50.	The Constitution (Fiftieth Amendment) Act, 1984	11.09.1984	11.09.1984	... ...	Substituting Art. 33. Its scope was enlarged and many other Forces were included in its ambit.
51.	The Constitution (Fifty-first Amendment) Act, 1984	...	16.06.1980	Yes.	Amending Arts. 330, 332.
52.	The Constitution (Fifty-second Amendment) Act, 1985	15.02.1985	01.03.1985	... ...	Amending Arts. 101, 102, 190, 191; adding Tenth Schedule (anti-defection). It was declared that a member who defects from his party would become subject to disqualification.

(1)	(2)	(3)	(4)	(5)	(6)
53.	The Constitution (Fifty-third Amendment) Act, 1986	14.08.1986	20.2.1987	... ...	Adding Art. 371G. Mizoram was made a State.
54.	The Constitution (Fifty-fourth Amendment) Act, 1986	...	01.04.1986	... ...	Amending Arts. 125, 221, Second Schedule. Appropriate provisions were made to increase the salary of the judges of the Supreme Court and High Courts.
55.	The Constitution (Fifty-fifth Amendment) Act, 1986	23.12.1986	20.02.1987	... ...	Inserting Art. 371H. State of Arunachal Pradesh was formed.
56.	The Constitution (Fifty-sixth Amendment) Act, 1987	23.05.1987	30.05.1987	... ...	Inserting Art. 371-I The Union Territory of Goa, Daman, Diu was divided. Goa was made a State and provision for a State Assembly were inserted. Daman and Diu to be a Union Territory.
57.	The Constitution (Fifty-seventh Amendment) Act, 1987	15.09.1987	21.09.1987	... ...	Clause (3A) inserted in Art. 332. Articles 330 and 332 were amended to make provision for reservation

(1)	(2)	(3)	(4)	(5)	(6)
					of seats for Scheduled Tribes of Nagaland, Meghalaya, Mizoram and Arunachal Pradesh, in the Lok Sabha and in the legislative assemblies of Nagaland and Meghalaya.
58.	The Constitution (Fifty-eighth Amendment) Act, 1987	09.12.1987	09.12.1987	... ...	Inserting Art. 394A.] The people had been demanding that the authoritative text of the Constitution should be published in Hindi. This amendment authorised the President to publish the authoritative text of the Constitution in Hindi.
59.	The Constitution (Fifty-ninth Amendment) Act, 1988	30.03.1988	30.03.1988	... ...	Inserting Art. 359A: Amending Art. 356 Art. 356 was amended to provide that the declaration of emergency may remain in operation up to 3 years. The amendment made in Art. 352 provided that the emergency with respect to Punjab shall operate only in that State.
60.	The Constitution (Sixtieth Amendment) Act, 1988	20.12.1988	20.12.1988	... ...	Amending Art. 276, to increase the limit of profession-tax from Rs. 250 to Rs. 2,500.

APPENDIX TO INTRODUCTION



(1)	(2)	(3)	(4)	(5)	(6)
61.	The Constitution (Sixty-first Amendment) Act, 1989	28.03.1989	28.03.1989	Yes.	Amending Art. 326, to reduce the voting age from 21 to 18 years.
62.	The Constitution (Sixty-second Amendment) Act, 1989	25.01.1990	20.12.1989	Yes.	Amending Art. 334, to increase the period of reservation of seats for Scheduled Castes and Tribes for 10 years i.e. upto the year 2000 A.D.
63.	The Constitution (Sixty-third Amendment) Act, 1989	06.01.1990	6-1-1990	... ...	Amending Art. 356 [omitting Proviso to Cl. (5) and omitting Art. 359A]. With regard to Punjab Cl. (5) was inserted in Art. 356 and a new Art. 359A had been added. Both of these were omitted. The Government intended to end the emergency in Punjab and this step was taken with that in view.
64.	The Constitution (Sixty-fourth Amendment) Act, 1990	06.04.1990	16-4-1990	... ...	Amending Art. 356. An anomaly could not be resorted in Punjab, emergency was to be continued. For that necessary provision was made in Art. 356.
65.	The Constitution (Sixty-fifth Amendment) Act, 1990	07.06.1990	12.03.1992	... ...	Amending Art. 338, to provided for a National Commission for Scheduled Castes and Scheduled Tribes. The Commission has been given wide powers.
66.	The Constitution (Sixty-sixth Amendment) Act, 1990	07.06.1990	7.6.1990	... ...	Inserting Entries 203 to 257 in the Ninth Schedule.
67.	The Constitution (Sixty-seventh Amendment) Act, 1990	04.10.1990	4.1 .1990	... ...	Amending Art. 356, 3rd Proviso, Cl. (a) extending President's Rule in Punjab to 4 years.
68.	The Constitution (Sixty-eighth Amendment) Act, 1991	12.03.1991	12.3.1991	... ...	Amending Art. 356, 3rd Proviso, Cl. (a) extending the period to 5 years.
69.	The Constitution (Sixty-ninth Amendment) Act, 1991	12.12.1991	01.02.1992	... ...	Inserting Arts. 239AA and 239AB, to provide for a legislature Assembly and Council of Ministers for the Union Territory of Delhi.
70.	The Constitution (Seventieth Amendment) Act, 1992	12.08.1992	s. 3 retrospectively from 23.12.1991 s. 2 from 1.6.1993	Yes.	Amending Arts. 54 and 368 to include Members of Legislative Assemblies of Union Territories of Delhi and Pondicherry in the electoral college.
71.	The Constitution (Seventy-first Amendment) Act, 1992	31.08.1992	31.08.1992	... ...	Inserting entries 7, 9, 11 and consecting some entries in 8th Sch.
72.	The Constitution (Seventy-second Amendment) Act, 1992	05.12.1992	05.12.1992	... ...	Inserting Cl. (1B) in Art. 332.
73.	The Constitution (Seventy-third Amendment) Act, 1992	20.04.1993	24.04.1993	Yes.	Re. Panchayat [inserting Part IX, containing Arts. 243, 243A to 243-O, Eleventh Sch.]
74.	The Constitution (Seventy-fourth Amendment) Act, 1992	20.04.1993	01.06.1993	Yes.	Re. Nagarpalika (Municipalities) [inserting Part IXA, containing Arts. 243P to 243ZG, Twelfth Sche.]
75.	The Constitution (Seventy-fifth Amendment) Act, 1993	03.05.1994	15.05.1994	Yes.	Inserting sub-Cl. (b) in Art. 323 B(2).
76.	The Constitution (Seventy-sixth Amendment) Act, 1994	31.08.1994	31.08.1994	Yes.	Inserting entry 257A in the 9th Sch.
77.	The Constitution (Seventy-seventh Amendment) Act, 1995	17.06.1995	17.06.1995	... ...	Inserting Cl. (4A) in Art. 16.
78.	The Constitution (Seventy-eighth Amendment) Act, 1995	30.08.1995	30.08.1995	... ...	Further addition of 27 entries to the 9th Sch. to tie Constitution.
79.	The Constitution (Seventy-ninth Amendment) Act, 1999	21.01.2000	25.01.2000	Yes.	Substituting "sixty years" for the words "fifty years" in Art. 334.
80.	The Constitution (Eighty-eth Amendment) Act, 2000	09.06.2000	01.04.1996 [See S. 3], 9-6-2000 [See S. 2 and 4]	... ...	Substituting new clauses for Cls. (1) and (2) of Art. 269, new Article for Art. 270 and omitting Art. 272.
81.	The Constitution (Eighty-First Amendment) Act, 2000	09.06.2000	9-6-2000	... ...	Inserting Cl. (4B) in Art.16.
82.	The Constitution (Eighty-Second Amendment) Act, 2000	08.09.2000	8.9.2000	... ...	Inserting a Proviso to Art. 335.
83.	The Constitution (Eighty-Third Amendment) Act, 2000	08.09.2000	8.9.2000	... ...	Inserting Cl. (3A) in Art. 243M.
84.	The Constitution (Eighty-Fourth Amendment) Act, 2001	21.02.2002	21.2.2002	... ...	Freeze on Lok Sabha Seat extended till 2026. Amended Art. 170, 81, 82, 330, 332.
85.	The Constitution (Eighty-Fifth Amendment) Act, 2001	04.01.2002	17.06.1995	... ...	Amended Art. 16.
86.	The Constitution (Eighty-Sixth Amendment) Act, 2002	12.12.2002	1.4.2010	... ...	Amended Art. 51A. Substituted Art. 45. Inserted Art. 21A.
87.	The Constitution (Eighty-Seventh Amendment) Act, 2003	22.06.2003	22.06.2003	... ...	Amended Arts. 81, 82, 170, 330.
88.	The Constitution (Eighty-Eighth Amendment) Act, 2003	15.1.2004	15.01.2004	... ...	Inserted Art. 268-A. Amended Art. 270 and Schedule VII.
89.	The Constitution (Eighty-Ninth Amendment) Act, 2003	28.09.2003	19.2.2004	... ...	Amended Art. 338, inserted Art. 338 A.
90.	The Constitution (Ninetieth Amendment) Act, 2003	28.09.2003	28.09.2003	... ...	Amended Art. 332.
91.	The Constitution (Ninety-first Amendment) Act, 2003	01.01.2004	01.01.2004	... ...	Amended Art. 75, 164 & schedule X. Inserted Art. 361B.
92.	The Constitution (Ninety-second Amendment) Act, 2003	07.01.2004	07.01.2004	... ...	Amended Sch. VIII and entries 3, 4, 7, 8, 9 to 14, 15, 16 to 18.
93.	The Constitution (Ninety-third Amendment) Act, 2005	20.01.2006	20.1.2006	... ...	Amended Art. 15.
94.	The Constitution (Ninety-Fourth Amendment) Act 2006.	12.06.2006	12.6.2006	... ...	Amended Art. 164.
95.	The Constitution (Ninety-Fifth Amendment) Act 2009	18.01.2010	25.01.2010	Yes.	Amended Art. 334.
96.	The Constitution (Ninety-sixth Amendment) Act, 2011	25.09.2011	23.09.2011	... ...	Amended Eighth schedule
97.	The Constitution (Ninety-seventh Amendment) Act, 2011	12.01.2012	15.2.2012	... ...	Amended Art.19, added Art. 43B, inserted Part IXB
98.	The Constitution (Ninety-eighth Amendment) Act, 2013	01.01.2013	1.10.2013	... ...	Added Art. 371J

19. YEARWISE LIST OF AMENDMENTS MADE IN CONSTITUTION OF INDIA BY OTHER AMENDMENT ACTS

Year	No. of *Amending Act*	Name of Amendment Act
(1)	(2)	(3)
1951	47	*Assam (Alteration of Boundaries) Act, 1951*

APPENDIX TO INTRODUCTION

Year	No. of *Amending Act*	Name of Amendment Act
(1)	(2)	(3)
1953	30	Andhra State Act, 1953
1954	18	*Lushai Hills District (Change of Name) Act, 1954*
1954	32	Himachal Pradesh * Bilaspur (New State) Act, 1954
1954	36	*Chandernagore (Merger) Act, 1954*
1956	37	*States Reorganisation Act, 1956*
1956	40	Bihar and West Bengal (Transfer of Territories) Act, 1956
1957	37	Legislative Councils Act, 1957
1957	42	Naga Hills - Tuensang Area Act, 1957
1959	47	Rajasthan and Madhya Pradesh (Transfer of Territories) Act, 1959
1959	56	Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959
1960	11	*Bombay Reorganisation Act, 1960*
1960	64	*Acquired Territories (Merger) Act, 1960*
1962	27	*State of Nagaland Act, 1962*
1966	31	Punjab Reorganisation Act, 1966
1968	53	Madras State (Alteration of Name) Act, 1968
1968	24	Bihar and Uttar Pradesh (Alteration of Boundaries) Act, 1968
1968	36	Andhra Pradesh and Mysore (Transfer of Territories) Act, 1968
1969	20	West Bengal Legislative Council (Abolition) Act, 1969

APPENDIX TO INTRODUCTION

Year	No. of *Amending Act*	Name of Amendment Act
(1)	(2)	(3)
1969	46	*Punjab Legislative Council (Abolition) Act, 1969*
1969	55	*Assam Reorganisation (Meghalaya) Act, 1969*
1970	53	*State of Himachal Pradesh Act, 1970*
1971	81	North Eastern Areas (Reorganisation) Act, 1971
1971	83	Government of Union Territories (Amendment) Act, 1971
1973	31	Mysore State (Alteration of Name) Act, 1973
1973	34	Laccadive, Minicoy and Amindivi Islands (Alteration of Name) Act, 1973
1974	56	Repealing and *Amending Act*, 1974
1976	101	Fifth Schedule to the *Constitution* (Amendment) Act, 1976
(1)	**(2)**	**(3)**
1979	31	Haryana and Uttar Pradesh (Alteration of Boundaries) Act, 1979
1985	34	Andhra Pradesh Legislative Council (Abolition) Act, 1985
1986	34	*State of Mizoram Act, 1986*
1986	40	Tamil Nadu Legislative Council (Abolition) Act, 1986
1986	69	*State of Arunachal Pradesh Act, 1986*
1987	18	*Goa, Daman and Diu Reorganisation Act, 1987*
1988	67	Sixth Schedule to the *Constitution* (Amendment) Act, 1988
1995	42	Sixth Schedule to the *Constitution* (Amendment) Act, 1995

APPENDIX TO INTRODUCTION

Year	No. of *Amending Act*	Name of Amendment Act
(1)	(2)	(3)
2000	28	Madhya Pradesh Reorganisation Act, 2000
2000	29	*Uttar Pradesh Reorganisation Act, 2000*
2000	30	Bihar Reorganisation Act, 2000
2003	44	Sixth Schedule to the *Constitution* (Amendment Act, 2003
2006	01	Andhra Pradesh Legislative Council Act, 2005
2006	44	*Pondicherry (Alteration of Name) Act, 2006*
2006	52	Uttarachal (Alteration of Name) Act, 2006
2010	16	Tamil Nadu Legislative Council Act, 2010
2011	15	*Orissa (Alteration of Name) Act, 2011*
2014	6	Andhra Pradesh Reorganisation Act, 2014

20. INTELLIGENCE AND SECURITY ORGANIZATIONS ESTABLISHED BY THE CENTRAL GOVERNMENT[1]

1. Intelligence Bureau.
2. Research and Analysis Wing of Cabinet Secretariat.
3. Directorate of Revenue Intelligence.
4. Central Economic Intelligence Bureau.
5. Directorate of Enforcement.
6. Narcotics Control Bureau.
7. Aviation Research Centre.
8. Special Frontier Force.
9. Border Security Force.
10. Central Reserve Police Force.
11. Indo Tibetian Border Police.
12. Central Industrial Security Force.

13. National Security Guards.
14. Assam Rifles.
15. Sashtra Seema Bal.
16. Directorate General of Income-tax (Investigation).
17. National Technical Research Organisation.
18. Financial Intelligence Unit, India.
19. Special Protection Group.
20. Defence Research and Development Organisation
21. Border Road Development Board.
22. National Security Council Secretariat.

---

1 Right to property omitted from Pt III of the *Constitution*, by the *Constitution* (44th Amendment) Act, 1978.

1 Added by the *Constitution* (42nd Amendment) Act, 1976, section 11 (w.e.f. 3 January 1977).

2 Added by *Constitution* (Eighty Sixth Amendment) Act, 2002, section 4 (w.e.f. 1 April 2010).

1 On November 14, 2000 there were in the Council of Ministers—
(a) 30 Ministers of the Cabinet, including the Prime Minister;
(b) 44 Ministers of State.

2 In July, 1989, the actual number of Members of the Council of States was 245, of whom 233 were representatives of the States and Union Territories, and 12 nominated by the President.

3 On 18 November 1999, the actual number of seats in the House of the People was 543, consisting of— 529 representatives of States (including 6 from Jammu and Kashmir).
14 representatives of Union Territories of Delhi; Pondicherry; Chandigarh; Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli; Daman and Diu.
2 nominated Anglo-Indians (for a population of 1,40,000).

4 In July, 1989, the actual number of Members of the Council of States was 245, of whom 233 were representatives of the States and Union Territories, and 12 nominated by the President.

1 The Supreme Court (Number of Judges) Amendment Act, 2008 (11 of 2009) increases the number of Judges in Supreme Court from 25 to 30 (excluding the Chief Justice of India).

APPENDIX TO INTRODUCTION

2 At the end of 1996, there were over 517 Judges in the 21 High Courts. The number of High Courts has been increased by three (Manipur, Meghalaya and Tripura) *vide* North Eastern Areas (Reorganisation) and other Related Laws (Amendment) Act, 2012 (26 of 2012). See also the Andhra Pradesh Reorganisation Act, 2014 (6 of 2014) in respect of the High Court for the State of Telangana and a separate High Court for the State of Andhra Pradesh.

3 At the end of 1996, there were about 2,067 District and Sessions Judges, and 1,376 Senior Civil Judges and Chief Judicial Magistrates.

4 At the end of 1996, there were about 4,307 Munsiffs/Subordinate Judges.

1 Inserted by *Constitution* (71st Amendment) Act, 1992.

2 Inserted by *Constitution* (92nd Amendment) Act, 2003.

1 Inserted by *Constitution* (71st Amendment) Act, 1992.

2 Inserted by *Constitution* (92nd Amendment) Act, 2003.

1 Inserted by *Constitution* (71st Amendment) Act, 1992.

2 Inserted by *Constitution* (92nd Amendment) Act, 2003.

2 Inserted by *Constitution* (92nd Amendment) Act, 2003.

3 Substituted by the *Constitution* (96th Amendment) Act, 2011

1 Inserted by *Constitution* (71st Amendment) Act, 1992.

4 Inserted by *Constitution* (21st Amendment) Act, 1967.

1 Refer The *Right to Information Act, 2005* (22 of 2005) Sch II.

PREAMBLE

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PREAMBLE

Preamble.

WE, THE PEOPLE OF INDIA having solemnly resolved to constitute India into a [1][SOVEREIGN ***SOCIALIST SECULAR*** DEMOCRATIC REPUBLIC] and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship; **EQUALITY** of status and of opportunity; and to promote among them all;

FRATERNITY assuring the dignity of the individual and the [2] [unity and integrity of the Nation];

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS *CONSTITUTION*.**

1. OTHER CONSTITUTIONS

Constitution of Islamic Republic of Afghanistan (2004).—Preamble.—"We the people of Afghanistan :

1. with the firm faith in God Almighty and relying on His lawful mercy, and believing in the Sacred Religion of Islam;

2. Realising the injustice and short-coming of the past, and the numerous troubles imposed on our country;

3. While acknowledging the sacrifices and the historic struggles, rightful Jehad and just resistance of all peoples of Afghanistan, and respecting the High position of the martyrs for the freedom of Afghanistan;

4. Understanding the fact that Afghanistan is a single united country and belongs to all ethnicity residing in the country;

5. Observing the United Nation Charter and respecting the Universal Declaration Human Rights;

6. For consolidating rational unity, safeguarding independence, national sovereignty, territorial integrity of the country;

7. For establishing a Government based an peoples" will and democracy;

8. For creation of a civil society free of oppression, atrocity, discrimination, and violances and based on the rule of law, social justice, protection of human rights, and dignity and ensuring the fundametal rights and freedom of people;

9. For strengthening of political, social, economic and defensive institution of the country;

10. For insuring a prosperous life and sound environment for all those residing in this land;

11. And finally for regaining Afghanistan deserving place in the international community.

Have adopted the *Constitution* in compliances with historical, cultural and social requirement of the era, through our elected representatives in the Grand Council (Loya Jirga) dated 14 Jaddi 1382 in the city of Kabul.

Declaration of American Independence, 1776. "We hold these truths to be self-evident; that all men are created equal; that they are endowed by their creator with certain inalienable rights; that among these are *life, liberty,* and the pursuit of *happiness;* that to secure these rights, Governments are instituted among men, deriving their just powers from the consent of the government……"

French Declaration of the Rights of Man, 1789. "The representatives of the people of France, formed into a National Assembly considering that ignorance, neglect, or contempt of human rights, are the sole causes of public misfortunes and corruptions of Government, have resolved to set forth in a solemn declaration, these natural, imprescriptible, and inalienable rights, that this declaration being constantly present to the minds of the members of the body social, they may be ever kept attentive to their rights and their duties; that the acts of the legislative and executive powers of Government, being every moment compared with the end of political institutions, may be more respected; and also, that the future claims of the citizens, being directed by simple and incontestable principles, may always tend to the maintenance of the *constitution*, and the general happiness.

For these reasons the national assembly both recognise and declare in the presence of the Supreme Being, and with the hope of His blessing and favour the following sacred rights of men and citizens:

I. Men are born, and always continue, free and equal in respect of their rights. Civil distinctions, therefore, can be founded only on public utility.

II. The end of all political associations is the preservation of the natural and imprescriptible rights of man; and these rights are Liberty, Property, Security, and Resistance of Oppression.

III. The nation is essentially the source of all sovereignty; nor can any individual or any body of men, be entitled to any authority which is not expressly derived from it.

IV. Political liberty consists in the power of doing whatever does not injure another. The exercise of the natural rights of every man, has no other limits than those which are necessary to secure to every other man the free exercise of the same rights; and these limits are determinable only by the law.

V. The law ought to prohibit only actions hurtful to society. What is not prohibited by the law should not be hindered; nor should anyone be compelled to that which the law does not require.

VI. The law is an expression of the will of the community. All citizens have a right to control, either personally or by their representatives in its formation. It should be the same to all, whether it protects or punishes; and all being equal in the right, are eually eligible to all honours, places and employments, according to their different abilities, without any other distinction than that created by their virtues and talents.

VII. No man should be accused, arrested, or held in confinement, except in cases determined by the law, and according to the forms which it has prescribed. All who promote, solicit, or cause to be executed, arbitrary orders, ought to be punished, and every citizen called upon, or apprehended by virtue of the law, ought immediately to obey, and renders himself culpable by resistance.

VIII. The law ought to impose no other penalties but such as are absolutely and evidently necessary, and no one ought to be punished, but by virtue of a law promulgated before the offence, and legally applied.

IX. Every man being presumed innocent till he has been convicted, whenever his detention becomes indispensable, all rigour to him, more than is necessary to secure his person, ought to be provided against by the law.

X. No man ought to be molested on account of his opinions, not even on account of his religious opinions, provided his avowal of them does not disturb the public order established by the law.

XI. The unrestrained communication of thoughts and opinions being one of the most precious rights of man, every citizen may speak, write and publish freely provided he is responsible for the abuse of this liberty, in cases determined by the law.

XII. A public force being necessary to give security to the rights of man and of citizens, that force is instituted for the benefit of the community and not for the particular benefit of the persons with whom it is entrusted.

XIII. A common contribution being necessary for the support of the public force, and for defraying of the other expenses of Government, it ought to be divided equally among the members of the community, according to their abilities.

XIV. Every citizen has a right, either by himself or his representatives, to a free voice in determining the necessity of public contributions, the appropriation of them, and their amount, mode of assessment, and duration.

“The French people hereby solemnly proclaim their attachment to the Rights of Man and to the principles of national sovereignty as defined by the Declaration of 1789, confirmed and complemented by the Preamble to the *Constitution* of 1946……”

XV. Every community has a right to demand of all its agents an account of their conduct.

XVI. Every community in which a separation of powers and security of rights are not provided for, wants a *constitution*.

XVII. The right to property being inviolable and sacred, no one ought to be deprived of it, except in cases of evident public necessity, legally ascertained, and on condition of a previous just indemnity.

[3]*Preamble to the Constitution of the United States of America, 1789.*—"We, the people of the United States, in order to form a more perfect Union, establish justice, ensure domestic tranquility, provide for the common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, do ordain and establish the *Constitution* for the United States of America."

Preamble to the Constitution of Bangladesh.—"We the people of Bangladesh, having proclaimed our Independence on the 26th day of March, 1971 and through a historic war for national independence, established the independent, Sovereign People's Republic of Bangladesh;

Pleading that the high ideals of absolute trust in faith of the Almighty Allah, nationalism, democracy and socialism meaning economic and social justice, which inspired our heroic people to dedicate themselves to, and our brave martyrs to sacrifice their lives in the war of national independence, shall be fundamental principles of the *Constitution*.

Further pledging that it shall be a fundamental aim of the State to realise through democratic process to socialist society, free from exploitation—a society in which the rule of law, fundamental human rights, and freedom, equality and justice—political, economic and social, will be secrured to all citizens;

Affirming that it is our sacred duty to safeguard, protect, and defend the *Constitution* and to maintain its supremacy as the embodiment of the will of the people of Bangladesh so that we may prosper in freedom and may make our full contribution towards international peace and co-operation in keeping with the progressive aspirations of mankind.

In our Constituent Assembly this 18th Day of Kartick 1379 B.S. corresponding to this 4th day of November 1972 A.D., do hereby adopt, enact and give to ourselves this *Constitution*."

This Preamble to the *Constitution* of South Africa (adopted on 8 May 1996 and came into force on 7 February 1997) recognises the injustice of the past and suffering for justice and freedom in the country. We proclaim the *Constitution* as the Supreme Law of the land so as to the heal the divisions of the past and establish a society based on democratic values, social justice and fundamental human rights.

[4]*Preamble to the Constitution of Switzerland, 1874.*—"In the Name of Almighty God: "THE SWISS CONFEDERATION, resolved to consolidate the alliance of the confederated members and to maintain and increase the unity, strength and honour of the Swiss nation, has adopted the following Federal *Constitution*……".

[5]*Preamble to the Constitution of Eire, 1937*.—"In the name of the most Holy Trinity from whom is all authority and to whom as our final end all actions both of men and states must be referred, we, the people of the Eire, humbly acknowledging all our obligations to our Divine Lord Jesus Christ, who sustained our fathers through centuries of trial, gratefully remembering their heroic and unremitting struggle to regain the rightful independence of nation and seeking to promote the common good with due observance of prudence, justice and charity, so that the dignity and freedom of the individual may be secured, true social order attained, the unity of our country restored, and concord established with other nations, do hereby accept, enact and give to ourselves this *constitution*."

[6]*Preamble to the Constitution of Japan, 1946*.—"We, the Japanese people, acting through our duly elected

representatives in the National Diet, determined that we shall secure for ourselves and our posterity of the fruits of peaceful co-operation with all nations and the blessings of liberty throughout this land, and resolved that never again shall we be visited with the horrors of war through the action of government, do proclaim that sovereign power resides with the people and do firmly establish this *Constitution*."

[7]*Preamble to the Constitution of the Fourth French Republic, 1946.*—"On the morrow of the victory of the free peoples over the regimes that attempted to enslave and degrade the human person, the French people proclaims once more that every human being, without distinction of race, religion or belief, possesses inalienable and sacred rights. It solemnly reaffirms the rights and freedoms of man and of the citizen consecrated by the Declaration of Rights of 1789……"

[6]*Preamble to the Constitution of the Fifth French Republic, 1958*.—The French *Constitution* of 1958 adopts the foregoing Preamble of the *Constitution* of the Fourth Republic with the words:

[8]*Preamble to the Constitution of West Germany (Bonn Constitution), 1949*.—"Conscious of its responsibility before God and mankind, filled with the resolve to preserve its national and political unity and serve world peace as an equal partner in a united Europe, the German people in the Laender (states) Baden, Bavaria, Bremen, Hamburg, Hesse, Lower Saxony, North Rhine-Westphalia, Rhineland-Palatinate, Schleswig-Holstein, Wuerttemberg-Baden, and Wuerttemberg-Hohenzollern has, by virtue of its constituent power, enacted this basic law of the federal republic of Germany to give a new order to political life for a transitional period.

It acted also on behalf of those Germans to whom participation was denied.

The entire German people is called upon to accomplish, by free self-determination, the unity and freedom of Germany."

Constitution of Sri Lanka—Preamble (Svasti).—The people of Sri Lanka, having, by their mandate freely expressed and granted on the sixth day of the waxing moon in the month of Adhi Nikini in the year two thousand four hundred and twenty one of the Buddhist Era (being Thursday the twenty first day of the month of July in this year one thousand nine hundred and seventy-seven) entrusted to and empowered their Representatives elected on that day to draft, adopted and operate a new Republican *Constitution*, in order to achieve the goals of a Democratic Socialist Republic and having solemnly resolved by the grant of the mandate and the confidence reposed in their said representations who were elected by an overwhelming majority, to constitute SRI LANKA into a Democratic Socialist Republic, whilst ratifying the immutable republican principles of Representative Democracy, and assuring all people Freedom, Equality, Justice, Fundamental Human Rights and the Independence of the judiciary as the tangible heritage that guarantees the dignity and well-being of succeeding generations of the People of SRI LANKA and of all the people of the world, who came to share with those generations the effort of working for the creation, and preservation of a just and free society.

We, the freely elected Representatives of the peoples of SRI LANKA, in pursuance of such mandate, humbly acknowledging our obligation to our peoples, and greatly remembering their heroic and enumerating struggle to regain and preserve their rights and privileges so that the dignity and freedom of the individual may be assured—Just, Social, Economic and Cultrual Order attained, the unity of the country restored and concord established with other Nations, do hereby adopt and enact "this Constitute as the Supreme Law of the Democratic Socialist Republic of SRI LANKA".

Constitution of Islamic Republic of Pakistan (adopted on 12 April 1973).—Whereas sovereignty over this entire universe belongs to the Almighty alone and the authority to be exercised by the people of Pakistan within the limits prescribed by HIM is a sacred trust;

PREAMBLE

And whereas it is the will of the people of Pakistan to establish order; Wherein the State shall exercise its powers and authority through the chosen representatives of the people;

Wherein the principle of democracy, freedom, quality, tolerance and social justice as enunciated by Islam, shall be fully observed;

Wherein the Muslim shall be enabled to order their lives in the individual and collective spheres, in accordance with the teachings and requirements of Islam as set out with Holy Quran and Sunneh;

Wherein the adequate provision shall be made for the minorities freely to profess and practice their religion and develop their cultures;

Wherein the territories now included in or in accession with Pakistan and such other territories as may hereafter be included in or accede to Pakistan shall form a Federation wherein the units will be autonomous with such boundaries and limitations on their powers and authority as may be prescribed;

Therein shall be guaranteed fundamental rights, including of States, of opportunity and before law, social, economic and political justice and freedom of thought, expression, belief, faith, worship and association, subject to law and public minority.

Wherein adequate provision shall be made to safeguard the legitimate interests of minorities and backward and depressed classes;

Wherein the independence of the judiciary shall be fully secured;

Wherein the integrity of the territories of the federation, its independence and all its rights, including its sovereign rights on land, sea, and air shall be safeguarded;

So that the people of Pakistan may prosper and attain their rightful and honoured place amongst the nations of the world and make their full contribution towards in territorial peace and progress and happiness of the humanity: “Now, therefore, we the peoples of Pakistan, cognizant of our responsibility before Almighty Allah and men; cognizant of the sacrifices made by the people in the cause of Pakistan; faithful to the declaration made by the founder of Pakistan, Quaid- I-Azam Mohammed Ali Jinnah that Pakistan would be a democratic State based on Islamic principles of social justice.

Dedicated to the preservation of democracy achieved by the unremitting struggle of the people against oppression and tyranny;

Inspired by the resolve to protect our national and political unity and solidarity by creating an egalitarian society through a new order;

Do hereby, through our representatives in the National Assembly, adopt, enact and give to ourselves, this *Constitution*.

Preamble to the Constitution of the People’s Republic of China, 1982.[9]

Preamble to the Constitution of the Russian Federation, 1993.[10]

2. INDIA 3. Amendment

By the *Constitution* 42nd Amendment Act, 1976, the words (a) “socialist, secular” (b) “and integrity” were inserted in the Preamble, as shown by italics. [11]

As to the effects of the insertion of these words, see *post*.

4. Object and Scope of the Preamble

The proper function of a Preamble of any statute is to explain certain facts which are necessary to be explained before the enactments contained in the Act can be understood.[12] In short, it contains a recital of the facts or state of the law for which it is proposed to legislate by the statute; the *object* and *policy* of the legislation and the evils or inconveniences, it seeks to remedy.[13] But though it is a recital of *some* inconveniences, it does not exclude others, for which remedy is given by the enacting parts of the statute.[13]

Hence, where the language of the enacting section is *clear* and *unambiguous*, the terms of the Preamble cannot qualify or cut down that enactment.[14] There may be cases where the enacting part of a statute is not co-extensive with the object enunciated in the Preamble. In such cases, if the language of the section be *clear, it is the section which will prevail*, for the general terms of the Preamble may not indicate or cover all the mischiefs which in the enacting portions of the Act itself are found to be provided for.[15]

But where the enacting part of the statute is *ambiguous*, the Preamble can be referred to, to explain and elucidate it. In such a case, the Preamble may afford a useful light as to what a statute intends to reach.[16]

> If any doubt arises from the terms employed by the Legislature, it has always been held a safe means of collecting the intention, to call in aid the ground and cause of making the statute, and to have recourse to the Preamble…which is a “key to open the mind of the makers of the Act, and the mischiefs which they intended to redress.[17]

Thus, where very *general* language is used in a statute which, it is clear, must be intended to have a limited application, the Preamble may be referred to find out in what *particular* instances the enactment is intended to be applicable.[18]

But the Preamble is *not* the source of any substantive power.[19]

The Preamble in itself is not an enacting provision and is not of the same weight as an aid to construction of a section of an Act as are other relevant enacting words to be found elsewhere in the Act: the utility of Preamble diminishes on a conclusion as to clarity of enacting provision.[20] Preamble is only an abbreviation for purpose of reference is not useful aid to construction. The Preamble of an Act, no doubt, can also be read along with other provisions to decide whether they are clear or “ambiguous”.[21]

In short, a Court may look into the object and policy of the Act as recited in the Preamble when a doubt arises in its mind as to whether the narrower or the more liberal interpretation ought to be placed on the language which is capable of bearing both meanings,[22] but an ambiguity cannot be *created* or imagined in order to bring in the aid of the Preamble as that would be frustrating the enactment.[23]

This does not mean, however, that the Court has no business to look at the Preamble so long as a supposed

ambiguity as to the meaning of an enacting provision does not arise in its mind. A statute must be read as a whole and a Preamble is as much a part of the statute as its enacting Article No one should profess to understand any part of a statute before he has read the whole of it and it is often different to say that any terms in the enacting part are clear and unambiguous until they have been studied in their "*context*", which not only includes the other enacting provisions but also the Preamble.[24]

5. *Constitutional interpretation.*

It is conventional for a written *Constitution* to start with a Preamble to explain the objectives of the *Constitution*, as in other Statutes.

U. S. A.

(A) Thus, of the Preamble to the *Constitution* of the *United States,* the Supreme Court has observed:

> Although the Preamble indicates the *general purposes* for which the people ordained and established the *Constitution*, it has never been regarded as the source of any *substantive* power conferred on the Government of the United States or any of its Departments. Such powers embrace only those expressly granted in the body of the *Constitution*, and such as may be implied from those powers.[25]

India.

(B) 1. Like the Preamble to the American *Constitution*, the Preamble to *our Constitution* serves two purposes:-

(a) It indicates the *source* from which the *Constitution* derives its authority,

(b) It also states the objects[26] which the *Constitution* seeks to establish and promote.[27] It is "a key to open the mind of the makers".[28]

The purpose of this Preamble is to clarify who has made the *Constitution*, what is its source, what is the ultimate sanction behind it; what is the nature of polity which is sought to be established by the *Constitution* and what are its goals and objectives?[29] The *Constitution*, including the Preamble must be read as a whole and in case of doubt, it is interpreted consistent with the basic structure to promote the great objectives stated in the Preamble.[30] The contrary opinion expressed in the reference on the Agreement relating to Berubari Union and Exchange of Enclaves known as *Re Berubari Union,*[31] was overruled in *Kesavananda's case.*

The majority judgment in *Kesavananda Bharati's case* (*supra*) and *Minerva Mills* (*supra*) strongly relied on the Preamble in reaching the conclusion that the power of amendment conferred by *Article 368 of the Constitution* was limited and did not enable the Parliament to alter the basic structure or framework of the *Constitution*.

By *section 2 of the Constitution* (42nd Amendment) Act 1976, two amendments were made in the Preamble. First, for the words "Sovereign Democratic Republic" the words "Sovereign Socialist Secular Democratic Republic" were substituted and second, for the words "unity of the nation", the words "unity and integrity of the nation" were substituted. These amendments were held to be valid in *Minerva Mills v UOI,*[32] The addition of the words "Socialist" enabled courts to lean more in favour of nationalisation and economic equality.[33]

The Preamble to the *Constitution* is not a mere flourish of words, but was an ideal set up for practices and observance as a matter of law through Constitutional mechanism.[34]

The philosophy of the seamless web infuses the *Constitution* and is especially apparent in certain provisions. Unity and integrity are mentioned in the *Constitution*'s Preamble, which establishes India as a "Union of States"

and the *Constitution* highly centralised federalism had unity and integrity as its purpose. The country shall be a sovereign democratic republic says the Preamble and the framers adopted adult suffrage because it would engage all in the common enterprise and being democratic, it would help break the mould of traditional society. The essence of the democracy and social reform strands is to be found throughout the *Constitution* in the democratic political institutions and the processes of the parliamentary system, in adult suffrage and in the independent judiciary and in Pts III & IV of the *Constitution*, which lay down the Fundamental Rights and the Directive Principles of State Policy (taken from Irish *Constitution*).[35]

It is well accepted by thinkers, philosophers and academicians that if Justice, Liberty, Equality and Fraternity including social, economic and political justice, the golden goals set out in the Preamble of the *Constitution* are to be achieved, the Indian polity has to be educated and educated with excellence.[36]

6. Embodies the philosophy and ideal underlying the Constitution.

The mode of realisation of this ideal, namely, the establishment of an egalitarian society, permeated by social, economic and political justice, is carried out in detail by the various provisions of the *Constitution*.[37] *Constitution* is an instrument to achieve the goal of economic democracy along with political and social democracy. DR. AMBEDKAR in his concluding speech on Preamble said: “Political democracy cannot last unless there lies at the base of it social democracy. What does social democracy mean? It means a way of life which recognises liberty, equality and fraternity.” Emphasizing upon the significance of the three concepts of liberty, equality and fraternity used in the Preamble, DR. AMBEDKAR observed in his closing speech in the Constituent Assembly on 25 November 1949:

> The principles of liberty, equality and fraternity are not to be treated as separate items in a trinity. They form a union of trinity in the sense that to divorce one from the other is to defeat the very purpose of democracy. Liberty cannot be divorced from equality, equality cannot be divorced from liberty. Nor can liberty and equality be divorced from fraternity. Without equality, liberty would produce the supremacy of the few over many. Equality with liberty would kill individual initiative.[38]

It was declared that “it (Preamble) contains in a nutshell, its ideals and its aspirations. The Preamble is not a platitude but the mode of its realisation is worked out in detail in the *Constitution*”.

> It is this declaration *i.e.* (Preamble) that makes our *Constitution* sublime and it is the guarantees mentioned in the Chapter as fundamental rights that make it one of the greatest charters of liberty and of which the people of this country may well be proud. The charter has not been forced out of unwilling hands of a sovereign like the “MAGNA CARTA”, but it has been given to themselves by the people of the country through their “Constituent Assembly”.[39] The *Constitution* has a noble and grand vision contained in the Preamble. Though in an ordinary statute, much importance are not attached to Preamble, all importance has to be attached to the Preamble in a Constitutional Statute.[40] Preamble relates to the basic structure or framework of the *Constitution* (Per KHANNA, J). In a subsequent case Supreme Court observed that Preamble, Fundamental Rights and Directive Principles of State Policy were “trinity” intended to remove discrimination or disability on the grounds of social justice or gender. It was held that Preamble to be part of basic structure of the *Constitution*.[41]

But the Preamble is not[42] the source either of any power[43] or of any limitation.[43] It cannot thus be argued that the power to cede any part of the territory which belongs to every state as an attribute of sovereignty, does not exist under the Indian *Constitution* because the Preamble says that “the people of India” have “solemnly resolved to constitute India a sovereign democratic republic”.[43] Nor is any appeal to the Preamble permissible to override the express provisions of the *Constitution*.[43]

The Drafting Committee of the Constituent Assembly formulates the Preamble in the light of the "Objectives Resolution", but restricted it "to defining the essential features of the new State and its basic "socio-political objective" and the draft of the Preamble was considered by the Assembly last after considering other parts of the Draft *Constitution*—"to see that it was in conformity with the *Constitution*". (Dr. Subhash C. Kashyap, *Framing of India's Constitution—A Study,* 2nd Edn, p.130).

2. On the other hand, in constituting the Fundamental Rights enumerated in Pt III of the *Constitution*, the high purpose and spirit of the Preamble, namely, that it assured to the citizen the dignity of the individual and other cherished human values as a means to the full evolution and expression of his personality, should be borne in mind.[44] The emphasis of our *Constitution*, as expressed in the Preamble, is to establish a "Welfare State".[45] What is the meaning of a "Welfare State"? Welfare does not mean that we have only to strive for fulfillment of political theory "the greatest good of the greatest number". Our motto from Vedic times has been "*Sarva jan hitay, sarva jan sukhai*" (*i.e.,* benefit of all and happiness of all).[46]

The Preamble to our *Constitution* shows that one of the cherished objects of our *Constitution* is to assure to all its citizens the liberty of thought, expression, belief, faith and worship.

To implement and fortify these purposes, Pt III has provided certain fundamental rights including *Article 26 of the Constitution* which guarantees the right of every religious denomination or a section thereof to establish and maintain institution for religious and charitable purposes to manage its affairs in matters of religion, to acquire property and to administer it in accordance with law.[47]

The importance of Preamble was also emphasised by Supreme Court in the case under *Prevention of Corruption Act*. The court held that "Today, corruption in India not only poses a grave danger to concept of constitutional governance, it also threatens the very foundation of the Indian democracy and the Rule of law. The magnitude of corruption in public life is incompatible with the concept of a socialist, secular democratic republic. Where corruption begins, all rights end. Corruption devalues human rights, chokes development and undermines justice, liberty, equality, fraternity which are the core values in Indian Preambular vision".[48]

A blinkered vision of development, complete apathy towards those who are highly adversely affected by the development process and a cynical unconcern for the enforcement of laws leads to the situation where the rights and benefits promised and guaranteed under the *Constitution* hardly ever reach the most marginalised citizens. The court pointed out deficiencies in achieving the social and destitute justice which has negated the assurance given by the *Constitution* as seen in the Preamble and Pts III and IV therein.[49]

The Preamble, the Fundamental Rights and Directive Principles of State Policy have been characterised as the "trinity" of the *Constitution*.[50] The Supreme Court has emphasized that the words "fraternity assuring the dignity of the individual" have a "special reference in Indian context" because of the social backwardness of certain sections of the community who had in the past been looked down upon".[51]

The Preamble does not make any grant of power, but it gives a direction and purpose to the *Constitution* which is reflected in Pts III and IV. A comparison of the Preamble, with the broad features of this *Constitution* it would appear that the Preamble is an epitome of these features or to put it differently these features on an amplification or concretisation of the concepts set out in the Preamble. The Preamble has the stamp of deep deliberation and is marked by precision. It would suggest that framers of *Constitution* attached special significance to Preamble.[52] The Court held that the Preamble, Pt IV and Pt IX of the *Constitution* must guide our understanding of Panchayat Raj institutions and the role they play in the lives of the people in rural parts of the country. The conceptualism of Village Panchayat as a unit of self-government having the responsibility to promote social justice and economic development and as a representative of the people within its jurisdiction must be borne in mind while interpreting the laws enacted by the State which seek to define the ambit and scope of the powers and functions of Panchayats at various levels.[53]

The true function of the Preamble is to suspend the nature and extent and application of the powers actually conferred by the *Constitution* and not substantially to create them; (as per SHELET and GROVER J.J. in *Keshavananda Bharati v State of Kerala*.)[54] Other learned Judges who expressed their opinion on Preamble state that: "From the Preamble, it is quite clear that the two primary objectives that were before the Constituent Assembly (1) to constitute India into Sovereign Democratic Republic and (2) to secure to its citizens the right mentioned therein. It was a plan to build a "Welfare State" and an *egalitarian* society. The statement in the Preamble that the people of this country conferred the *Constitution* on themselves is not open to challenge. The facts set out in the Preamble has to be accepted by Court as correct." (Per HEDGE and MUKHERJEE, JJ.)

But the scope of Preamble in the *Constitution* was narrowed down in *Indira Nehru Gandhi v Raj Narain*.[55] It was held therein "The Preamble, though part of *Constitution*, is neither a source of power or a limitation upon that power. The Preamble sets out the ideological aspirations of the people. The essential features of this great concept set out in the Preamble are delineated in the various provisions of the *Constitution*. It is these specific provisions in the body of the *Constitution* which determines the type of democracy which the founders of that instrument established; the quality and nature of justice, political, social and economic which was their desideratum, the context of liberty of thought and expression, which they entrenched in that document, the scopes of equality of status and of opportunity which they enshrined in it. These specific provisions enacted in the *Constitution* alone can determine the basic structure of *Constitution* as established. These specific provisions, either separately or in combination determine the conduct of the great concept set out in the Preamble. It is impossible to spin out any concrete concept of basic structure and of the gossamer concept set out in the Preamble. The specific provisions of the *Constitution* are the stuff from which basic structure have to be woven.

The Preamble, generally, uses words of "passion and power" in order to move the hearts of men and to stir them into action. Its own meaning and implication being in doubt, the Preamble cannot affect or throw light on the meaning of the enacting words of the *Constitution*. Therefore, though our Preamble was voted upon and is a part of the *Constitution*, it is really "a preliminary statement of the reasons" which made the passing of the *Constitution* necessary and desirable. The Preamble of the *Constitution* cannot be regarded as a source of any prohibition or limitation."

3. Again, whenever a question has arisen as to whether the Legislature has laid down the policy of a statute whether in connection with *Article 14*[56] or the rule against delegated legislation,[57] our Supreme Court has sought to find out the policy from the Preamble. Reading the Preamble and *Article 12*, *53*, *79*, *124*, *154*, *168*, *214*, *233*, *245* and *246* together, the court said that power of each organ of State and its agents can be used only for promotion of constitutional values and vision (as seen in the Preamble).[58]

To provide substantive equality and distributive justice, which are the heart of Indian understanding of concept of equal protection, the State can treat unequals differently for creating a level playing field in social, economic and political spheres under *Article 14*, *39*(b), 39(c), Preamble and Pt IX of the *Constitution*. In that case, the court upheld the constitutional validity of the statute providing 100% reservation to chairperson of Panchayats at all levels in Scheduled Areas to Scheduled Tribes as valid.[59]

The Supreme Court has said that though each of the 22 Parts of the *Constitution* has its own significance, the common man is by and large concerned with Pts III, IV and IV-A. The State has an obligation under the Directive Principles contained in Pt IV to enact laws for weaker sections to achieve the objectives of social justice and equality. Pt IV-A emphasises a "citizen's" duty towards the nation and fellow citizens because unless everyone does his duty, it is not possible to achieve the goals of equality and justice enshrined in the Preamble. Similarly, *Article 51-A* also enjoins certain duties on the citizens. What has been incorporated in the form of Pt IV-A was implicit in the Preamble, Pt III and Pt IV of the *Constitution* because fundamental rights of the citizens can become meaningful only if the State and citizens do their duty to bring about real equality amongst the people belonging to different segments of society. Pt IV-A of the *Constitution* was enacted with a fond hope that every citizen will honestly play his role in building a homogeneous society in which every Indian will be able to live with dignity, without having to bother about the basics like food, clothing, shelter, education,

medical aid and the nation will constantly march forward and will take the place of pride in the comity of nations.[60]

The Preamble has resolved equality of status and of opportunity and the same is reflected in *Article 14* and *15* of the *Constitution*. *Section 7 of the Hindu Adoptions and Maintenance Act 1956* prescribes the consent of wife in the case of adoption by a male Hindu. The court held that mere presence of wife in adoption ceremony will not be consent and she has to express her consent in participating in the decision-making process. The idea behind this "consent" was declared by the Supreme Court as giving an equal opportunity to women as resolved in the Preamble along with other Articles.[61]

In *Republic of Italy v UOI,*[62] the court held that India can exercise its sovereign rights (Preamble declares India as "Sovereign" Socialist Secular Democratic Republic) over twenty four nautical miles from the base line on the basis of which width of territorial waters is measured and exercise of sovereignty includes exercise of all rights that a sovereign exercises over its subjects and territories, of which the exercise of penal jurisdiction under Criminal law is an important part.

In repelling the contention that section 15 of the Rajasthan (Prosecution of Tenants) Ordinance, 1949, conferred uncanalised power upon the Governor to grant exemptions from the operation of the Ordinance and thus offended against *Article 14 of the Constitution*, the Supreme Court observed[63]—

> It is true that the section does not itself indicate the grounds on which exemption can be granted, but the Preamble to the Ordinance sets out with sufficient clearness the policy of the Legislature; and *as that governs section 15 of the Ordinance*, the decision of the Government thereunder cannot be said to be unguided.[63]

4. The majority of the nine-Judge Bench in *Bommai's case*,[63] have laid down a new application of the Preamble under *Constitution* as follows:

I. The Preamble indicates the basic structure of the *Constitution* [paras 28, 116, 121, 132,183,187].[63]

II. A Proclamation under *Article 356*(1) is open to judicial review on the ground of violating the basic structure of the *Constitution* [paras 91 (viii); 199; 263; 365(7)-(10)].[63]

III. It follows that a Proclamation under *Article 356*(1) which violates any of the basic features as summarised in the Preamble of the *Constitution* is liable to be struck down as unconstitutional [*Article 365*(10)].[63]

IV. A further extension of this innovation is that a political Party which appeals to religion in its election manifesto, acts in violation of the basic structure [para 132], and the President may impose President's rule on a report of the Governor that a Party in power has issued such a manifesto [para 187].[63]

Three of the nine Judges in *Bommai's case*[64] have opined that the word "secularism" in the Preamble of our *Constitution* has a further utility, on the following reasoning:

(a) Secularism is a part of the basic structure of the *Constitution*.[65]

(b) This Secularism, *inter alia*, means that the freedom of religion which is guaranteed by the Constitution only permits the free pursuit of *spiritual* life as distinct from secular life, which pertains to the exclusive domain of the affairs of the State. Secularism, thus, prohibits any encroachment of religion into secular activities and prohibits any citizen from mixing religion into a political activity such as election, *over and above what is already contained in section 123(3)-(3a)* of the *Representation of the People Act, 1951* [para 88]. It was also held therein that secularism means religious tolerance and equal treatment to all religion.

> The Kerala High Court held that "secularism" is not an anti-religious doctrine despite its emphasis on absolvent of politics from religion and theocratic society is not the solitary antonym of secular society.[66]
>
> In an earlier case, the Supreme Court held that secularism is a system of utilitarian ethics, seeking to maximise human happiness or welfare quite independently of what may be either religious or the occult.[67]

(c) A violation of the goal of Secularism by acts and professions in furtherance of a particular religion, in the Election Manifesto of a political Party, followed by the destruction of the objects of some other religion would, therefore, be a violation of the Constitution.

(d) Hence, the acts of a State Government which are calculated to subvert or sabotage "Secularism" can be lawfully deemed to give rise to a situation in which the Government of that State cannot be carried on in accordance with the provisions of the Constitution and would thus offer a legitimate ground for imposition of President's Rule under Article 356 [para 91 (VIII)].[68]

Though only three Judges lay down the above conclusion *in toto*, others indicate their tacit assent by asserting parts which lead to that conclusion, as follows:—

(i) "Secularism" forms part of the basic structure of the Constitution even from insertion of this word in the Preamble by the 1976-Amendment [para 28 (Ahmadi, J.); paras 116, 124 (Ramaswami, J.); para 365(10) (Jeevan Reddy & Agrawal, JJ.)].[69]

(ii) the word "provisions of the Constitution" in Article 356(1) include the Preamble [para 236 (Jeevan Reddy & Agrawal, JJ.)].[69]

(iii) Secularism, which is a "basic feature" of our Constitution, implies that in matters of state, religion has no place. While freedom of religion is guaranteed to all persons in India, from the point of view of the State, the religion, faith or belief of a person is immaterial. No political party can simultaneously be a religious party. Politics and religion cannot be mixed. Any State Government which pursues unsecular policies or unsecular course of action acts contrary to the Constitutional mandate and renders itself amenable to action under Article 356.[68]

In *Praful Guradia v UOI,*[70] the question was, whether financial assistance in the nature of grant to Haj Pilgrims was violative of Article 14, 15 and 27 of the Constitution. While upholding the policy of Govt. and also Haj Committee Act 1959, the Court held that since India is a country of great diversity, it is absolutely essential for unity of the country to have tolerance and equal respect for all communities and sects. The court further held that Article 27 would be violated only if a substantial part of the entire central excise or custom duties or sales tax or a substantial part of any other tax collected in India were to be utilised for the promotion of maintenance of any particular religion or religious denomination. If only a relatively small part of any tax collected is utilised for providing some convenience or facilities or concession to any religious denomination, that would not be

violative of *Article 27*. Such an approach *i.e.,* tolerance and equal respect of all communities will promote secularism as provided in the Preamble.[71] In *Himsa Virodh Sangh's case,* the court said that India is a Union of States and not an association or confederation of States. In order to keep the country united, it is necessary to have tolerance and respect for all communities and sects.

7. The philosophical and legal meaning of the Preamble

7.1 *The Preamble serves several important purposes.—*

(1) The broad contours of the basic elements or fundamental features of our *Constitution* are clearly delineated in the Preamble.[72]

The end of the *Constitution* is to grant powers; to limit government and to require those who govern to conform to the mandates of the *Constitution*. It is also the aim of the *Constitution* to establish a harmonious and cohesive structure of the society based on ideal common morality and its entire activity is concentrated on the common good and individual liberty and the action of the people as well as the persons conducting the government are also controlled by the *Constitution*. In the words of Montesquieu, "At the birth of societies…the rulers of Republic establish institutions and afterwards the institutions mould the rulers".[73]

Thus, the objects of the *Constitution*, in short, are to limit the arbitrary action of the government, to guarantee the rights of the governed and define the operation of sovereign power. The written *constitution* defines clearly the functions and powers of legislature, the executive and the Judiciary, the rights guaranteed to the individual and provides procedural remedies for the protection of the rights guaranteed. It is an eternal truth that history of liberty is the history of limitation upon powers of the Government.[74]

(2) It declares and guarantees the great rights and freedoms which the people of India intended to secure to all its citizens;[75] it declares the basic types of government and polity, which is sought to be established in the country. It was a plan to build a welfare state. It declares people of India as the sovereign political body who hold the ultimate power.

Liberty of the individual to do as he pleases, even in innocent matters must yield to the common good. What the *Constitution* attempts to do is to strike a balance between individual liberty and social control. While one limb guarantees the right, the other limb incorporates restrictions on the exercise of the rights, so that it may not conflict with public welfare or morality.[76]

A. Students of Political Science find in the Preamble of a written *Constitution* the political *philosophy* behind it[77], which is supposed to be reflected in the substantive provisions of the *Constitution*.

It is in this sense that RAY, C.J., in *Indira's Case*[78] observed—

"Constitutions are written…in the rarefied atmosphere of *high ideology…* Preambles of written Constitutions are intended primarily to reflect the hopes and aspirations of people.[79] They resonate the *ideal* which the Nation seeks to achieve…they are *metaphysial* like slogans. For example, the concept of *fraternity* which is referred to in our Preamble is *not* carried into any provision of the *Constitution* and the concept is hardly suitable for encasement in a coercive *legal* formula".[79a]

According to the foregoing philosophical interpretation, in short, the Preamble remains an *ideal* and is *not* concerned with the legal interpretation of the *Constitution* before a court of law. This philosophical aspect

justifies the existence and values of the Preamble in those Constitutions which are *not* enforceable in a court of law like a legal instrument, such as those of *France*, the *U.S.S.R.* and *China*.

On the other hand, under those Constitutions which are justiciable, such as those of the *U.S.A.* and *India*, the *Constitution* is a legal instrument,[80] and its provisions (excepting those which are, in their nature non-justiciable or are withheld from the jurisdiction of the Courts by the *Constitution* itself,[80] are enforceable by the Courts as any other statutory provision. A lawyer being concerned with this legal aspect of the *Constitution*, is not primarily concerned with the Preamble because it cannot be legally enforced like any enacting provision of the *Constitution* which is mandatory.

It is from this *legal* standpoint that the Supreme Court observed, in the Berubari case.[81]

> The declaration made by the people of India in exercise of their sovereign will in the Preamble to the *Constitution* is "a key to open the mind of the makers" which may show the general purposes for which they made the several provisions in the *Constitution*, but nevertheless the Preamble is *not a part of the Constitution*, and it has never been regarded as the source, of any substantive power conferred on the Government of the Indian Union or on any of its departments. Such powers embrace only those *expressly* granted in the body of the *Constitution* and such as may be *implied* from those so granted. What is true about the powers is equally true about the prohibitions and limitations. Besides, the assumption that the first part of the Preamble postulates a very serious limitation on one of the very important attributes of sovereignty itself is not correct. One of the attributes of sovereignty is the power to cede parts of national territory if necessary. At the highest it may perhaps be arguable that if the terms used in any of the Articles in the *Constitution* are *ambiguous* or are capable of two meanings, in interpreting them some assistance may be sought in the objectives enshrined in the Preamble.[82]

But the learned author and eminent jurist H.M. SEERVAI has a different view on the Preamble. According to the learned author,

(a) The words "Justice, liberty, equality and fraternity" are words of passion and power – that the last three were the watchwords of French Revolution. If they are to retain their power to move man's heart and to stir them into action, the words must be used absolutely – as they are used in the Preamble. But, do they throw any light on the provisions of the *Constitution*? The only one of the objectives which is directly incorporated in any article is "Justice, social, economic and political" for *Article 38* provides "The State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political" shall inform all the institutions of the natural life: And *Article 39* amplifies the concept of justice by providing that the State shall "in particular" direct its policy towards securing the objectives set out of clauses (a) to (f) of that article.

(b) The second objective in the Preamble is not "Liberty" generally, but liberty of thought, expression, belief, faith and worship. This objective in its absoluteness means different things to different men, and is not reflected in any article of the *Constitution*. However, subject to public order, morality and health, this objective can be related to *Article 25*, which confers on every person the freedom of conscience and the right to freely profess, practise and propagate religion, for, such freedom necessarily requires liberty of thought, expression, belief, faith and worship. Further, it is possible to hold that liberty of thought and expression also covers freedom of speech and expression covered by *Article 19*(1)(a), but here the liberty is even more severely curtailed that it is in *Article 25* as is clear from the restrictions in *Article 19*(2). The result therefore is that the enacting provisions of our *Constitution* fall far short of the "Liberty" mentioned in the Preamble. However, there is one aspect in which liberty in *Article 25* goes

beyond the Preamble, for, whereas the Preamble secures liberty to citizens, *Article 25* (unlike *Article 19*) is not limited to citizens, but extends to every person.

(c)

(i) The third objective is not "equality" generally, but equality of status and opportunity. Equality has two aspects – negative and positive; equality may be achieved to some extent by removing inequality. Slavery was a most flagrant denial of the equality of human rights as human beings, and when slavery was abolished in the USA by the 13th Amendment, the slaves secured with other citizens the status of a human being and a citizen. Again, for centuries a great blot on Indian society was "untouchability" – a doctrine held by our Supreme Court to be a part of Hindu Religion – under which millions of men, women and children were untouchables; their presence in a temple defiled the temple and their touch and in some places, even their shadow, defiled or polluted other Hindus. The abolition of untouchability by *Article 17* secured to millions of Indian citizens equality of status as human beings. The throwing open of Hindu temples (other than private temples) to "untouchables" secured to them equality of status in matters of religion (*Article 25*(2)) and the injunction to the State not to discriminate against citizens on the ground of "race", religion or caste, secured to "untouchables" equality of status, by giving them equal access to shops, restaurants, hotels and places of public entertainment and also the equal right to use wells, tanks, burning ghats (for the disposal of dead) and places of public resort which are dedicated to public or maintained wholly or partly out of State funds (*Article 15*(2)). But, though restored to the status of human beings, "untouchables" belonged to "backward classes" and *Article 15*(4) enables the State to discriminate "in their favour" by taking steps to secure their advancement and *Article 16*(4) increases their opportunities by employment in the public service of the Union or the States, because posts in those services can be reserved for them. These are massive achievements.

(ii) But, equality of status and opportunity, used "absolutely" as they are in the Preamble, cannot be realized because they mean more than the removal of inequality. No one believes that an Indian peasant is equal in status and opportunities to the Prime Minister of India. Again, opportunity is partly a matter of chance, partly a matter of capacity to seize the opportunity should it come. Opportunity can make or mar a man's life according as he rises to the opportunity or sinks under its weight. Besides, the opportunity may be for good as well as evil.

(iii) Nor does equality of status involve a dead level of mediocrity. *Article 18* abolishes titles and abolishing hereditary titles, it abolishes the artificial inequality resulting from birth. However, *Article 18* does not seek to discourage, but to encourage distinction due to merit, for, it provides that "No title, not being military or academic distinction" shall be conferred by the State.

(iv) *Article 14*which is the general Article on equality does not in terms provide for equality of status and opportunity. It provides that the State shall not deny to any person equality before law or the equal protection of the laws. To some extent, these provisions help to secure equality of status and opportunity, but the doctrine of classification makes large inroads on the concept of equality of status and opportunity…In one respect, *Article 14* goes beyond the Preamble, because *Article 14* is not limited to citizens alone. Here again, it is not the Preamble which enables us to interpret the relevant Articles, it is the relevant articles which throw light on the preamble which goes beyond or falls short of, those articles.

(d) "Fraternity", the fourth objective in the Preamble, was added by the Drafting Committee because the Committee felt that the need for fraternal concord and goodwill in India was never greater than now and that this particular aim of the *Constitution* should be emphasised by special reference in the *Constitution*.[83] Fraternity as an object is not reflected in any Article of the *Constitution* – no *Constitution* and no law can produce brotherly feeling or concord. There are provisions of the *Constitution* which are designed to promote fraternity, such as common citizenship (*Article 5*) and the right of citizens of India to move freely throughout the territory of India, to reside and settle in any part of India and to acquire, hold and dispose of property, to pratise any profession, or to carry on any trade or calling in any part of India (*Article 19*(1)(d) to (g)). There are however other provisions which militate against fraternity, such

as division of States on linguistic lines and the provision relating to language. A fair and evenhanded executive administration can do more to promote fraternity than any constitutional or legal provision. The fourth objective refers to a moral and political ideal and it can throw no light on the interpretation of the *Constitution* nor does any provision of our *Constitution* give a clear content fraternity.

(e) The result of the discussion (a) to (d) above shows that the four objectives set out in the Preamble are themselves ambiguous and they cannot throw any light on the provisions of the *Constitution* because they stand in need of interpretation themselves. The fact that Supreme Court judgments which have referred to the Preamble, have not pointed out that the objectives of the Preamble are ambiguous, does not have the effect of making ambiguous objectives clear and distinct.[84]

8. Use of the Preamble in interpretation of Constitution.

Originally the Preamble was not interpreted as part of the *Constitution*.[85] This decision was held as wrong. It was held: "It seems to me that the Preamble of our *Constitution* is of extreme importance and the *Constitution* should be read and interpreted in the light of the grand and noble vision expressed in the Preamble.[86] Learned Judge further held that the Preamble was expressly voted to be part of the *Constitution*. The holding that the Preamble is not a source of power (*i.e., Berubari's case*) and cannot be extended as regards prohibition and limitation. In fact, limitations have been derived in certain cases.[87]

(C) To say that the Preamble, as such, cannot create any substantive rights or liabilities, does not, however, mean that it is of no use to a Court of law.

Since it embodies the philosophy underlying the *Constitution* and it cannot be brushed aside as a surplusage, the Supreme Court has made frequent use of the Preamble in interpreting the substantive provisions of the *Constitution*, in the following cases, *inter alia*

I. A most clear case is where the language of an enacting provision of the *Constitution* is *ambiguous* or capable of two meanings, the Court should adopt that meaning which is consistent with the Preamble or advances its purpose.

IA. Government actions, laws and administrative policies must develop democratic tradition, social and economic democracy set down in Preamble, Pt IV of the *Constitution*.[88] It was held that the intention behind all government actions and purposes is to further the public welfare and national interest. Public good is synonymous with protection of this interests of citizens as a territorial limit or nation as a whole.

II. An analogous case is where there is *no* provision in the *Constitution* on the matter before the Court,[89] *i.e.*, on a matter on which the *Constitution* is silent.

III. In the early case of *Gopalan*,[90] it was observed that in interpreting the Fundamental Rights enumerated in Pt III of the *Constitution*, the high purpose and spirit of the Preamble, namely, that it assured to the citizen the dignity of the individual and other cherished human values as a means to the full evolution and expression of his personality, should be borne in mind.[90]

IIIA. Majority judgment in *Keshavananda Bharati's* case has strongly relied on the Preamble in reaching the conclusion that power of amendment conferred by *Article 368 of the Constitution* was limited and did not enable Parliament to alter basic structure or framework of the *Constitution*.[91] The concept of "economic equality" at equal pay for equal work was held ingrained in the *Constitution* as one of the basic aspects for which much importance was given to the amendment of Preamble by 42nd Amendment of the *Constitution*.[92] The addition of word "Socialist" in the preamble enabled the Courts to learn more and more in favour of nationalisation and state ownership.[93]

Whether it is the *Constitution* that is expanded or the Constitutional validity of a statute that is considered, a cardinal rule is to look to the Preamble to the *Constitution* as the binding light and the Directive Principles of State Policy as the Book of Interpretation.[94] It was held in that case that the inclusion of word “socialist” is a beacon to guide and inspire all that is enshrined in the articles of the *Constitution* – is clearly to set up a vibrant throbbing socialist welfare society”, in the place of a “feudal exploited society.”

When the Court tests the reasonableness of a State action, “it should be done by posing a question whether such State action to ameliorate social economic and political poverty; whatever be reason, delays the journey towards the proclaimed goal of equality”. If a measure tends to perpetuate inequality and makes the goal of equality a mirage, such measure should not receive the approval of the Court.[95] Welfare of the people in the ultimate goal of all laws, and state actions and above all the *Constitution*. They have one common object, that is to promote the well-being and larger interest of the society as a whole, and not of any individual or particular group carrying any brand names. Secularism is a part of fundamental law and an inalienable segment of the basic structure of the country’s political systems.[96]

Our *Constitution* makes it imperative for the state to secure to all its citizens the rights guaranteed by the *Constitution* and where the citizens are not in a position to assert and secure their rights, the statement comes into picture and protect and fight for the rights of the citizen. The Preamble to the *Constitution* read with Directive Principles and State Policy, *Articles 38*, *39* and *39A* enjoin the State to take up these responsibilities. It is a protective measure to which social welfare state is committed.[97]

It was held that Preamble can be used for assistance in interpreting Articles which are ambiguous and are capable of two meanings. While interpreting or examining the constitutional validity of legislative or administrative action, the touchstone of Directive Principles of State Policy in the light of the Preamble, will provide a reliable yardstick to hold one way or the other.[98] The Preamble is a “lode star” and guides those finding themselves in a grey area while dealing with its provisions. While interpreting a beneficial legislation enacted to give effect to the Directive Principles of State Policy, which is otherwise constitutionally valid, consideration of the court cannot be divorced from those objectives.[99]

While considering the scope of *Article 14*, the Supreme Court held that the object of *Article 14* is to secure to all persons, citizens and non-citizens equality of status and opportunity referred to in the Preamble. The court held that allocation or dispensation or alienation of natural resources by State must be based on the principle of “public trust doctrine”. The court held that all natural resources are held by the State as trustees of the public and must deal with them in a manner consistent with the nature of trust and any action by the State must be for “common good”. Though disposal of natural resources must generally be made by public auction, it is not absolute rule. If auction method is deviated from, the State must explain the compelling reasons and has to justify its action. This is to prevent “crony capitalism” which is against the principles declared in the Preamble.[11]

The Supreme Court observed that “corruption” threatens constitutional governance and shakes the foundation of democracy and rule of law. Corruption is opposed to democracy and social order as being not only anti-people, but also due to the fact that it affects economy of a country and destroys its cultural heritage. It threatens the security of the society, undermines the ethical value and justice jeopardizing sustainable development. Corruption devalues human rights, chokes development and corrodes the moral fabric of society. It causes considerable damage to national economy, national interest and image of the country. The very object, noble and grand vision of the Preamble will be defeated if corruption is not curbed immediately.[2]

In an early American case, it was held that the *Constitution* was the creation of the people and not of States and was designed to deprive the States of sovereignty and hence the interpretation of *constitution* must be consistent with the Preamble.[3]

While considering the provisions of *Immoral Traffic (Prevention) Act 1956*, the court took into consideration the scope of the Preamble along with *Article 21*, *14*, *19*(g), *etc.* for the purpose of rehabilitation of sex workers and

the court constituted Sex Workers Rehabilitation Panel and further directed the Centre and States to provide funds and other infrastructure.[4]

To discourage caste based bias and to implement the noble and grand vision of “fraternity”, the Supreme Court directed the States to take necessary action under the *SC and ST (Prevention of Atrocities) Act 1989* where “two tumbler” system was prevalent in Tamil Nadu. The “two tumbler” system is a practice prevalent in many parts of Tamil Nadu where separate tumblers are used for serving tea or other drinks to SCs and STs.[5]

Hindu Succession Act was amended by inserting section 6-A by Karnataka Assembly whereby the daughter was given equal right in coparcenary property and this was held valid in view of the Preamble (which aims at equality) read along with *Articles 14* and *15*.[6]

Part IV-A of the *Constitution* was held as implicit in the Preamble read along with Pts III & IV. In that case, the court took notice of number of suicide by farmers due to poverty and indebtedness. The court said that it cannot ignore stark realities and misuse of public office for private gains. The court observed that constitutional objectives of social justice and egalitarian values have been sacrificed and that some members of political class who are entrusted with greater responsibilities and who take oath to do their duties in accordance with the *Constitution* and the law without fear or favour, affection or ill-will have by their act and omission demonstrated that they have no respect for system based on rule of law.[7] It was a case of favouritism shown by the Chief Minister of Maharashtra to protect an individual, who was a money-lender. Direction was given to the State to protect the farmers. The court said that the paramount duty of Supreme Court is to protect rule of law and constitutional norms as envisaged in the Preamble and Pts III, IV and IV-A of the *Constitution*.

Substantive equality and distributive justice are the concepts of equal protection and the concept of equality in the Preamble contemplates that the State can treat unequals differently for creating a level playing field in social, economic and political system.[8]

It has been held that Preamble and Directive Principles are guides to the interpretation of *Constitution*.[9] When the validity of compassionate appointment was challenged, the court said: “The court cannot be a mute spectator where reliefs are denied to the horrendous sufferings of a family which has lost its breadwinner. Constitutional philosophy should be allowed to become a part of everyman’s life and then only *Constitution* can reach every man. This principle should be taken into consideration in the case of compassionate appointment.[10]

In *Kesavananda Bharati v State of Kerala,*[11] majority of the Judges relied on the Preamble to hold that the power of amendment by *Article 368* was limited and did not enable the Parliament to alter the basic structure of the *Constitution*. Great importance was given to the Preamble. Sikri CJ observed: “Preamble of our *Constitution* is of extreme importance and the *Constitution* should be read and interpreted in the light of the grand and noble vision expressed in the preamble”. According to learned Judges Shelot and Grover, “the constant strain which runs throughout each and every Article of the *Constitution* is reflected in the Preamble”. Justice Jagmohan Reddy referred to the Preamble as embodying the purpose or objectives which the *Constitution* was intended to subserve. According to Justice Khanna, “Preamble also to the extent it reflected the basic structure or framework of the *Constitution* was outside the amending power”.

Learned Judges Hegde and Mukherjee, after considering the history of the nationalist movement from 1885 upto the Objective Resolution passed by the Constituent Assembly in January 1947, observed that the resolution was a precursor to the Preamble and the objective tests set out therein that were before our *Constitution* makers were incorporated in the Preamble.[12]

In *Minerva Mills v UOI,*[13] Chief Justice Chandrachud gave importance to the Preamble as reflecting the objectives and basic structure of the *Constitution*. It was held that the Preamble assures to the people of India a polity whose basic structure is described therein as a Sovereign Democratic Republic. The learned Judge held: “The edifice of our *Constitution* is built upon the concept crystallised in the Preamble”.

The Preamble makes it clear that the *Constitution* emanates from the people of India and not from any external or lesser source.[14] It is a conclusive assumption and a legal fiction which cannot be tested or questioned in any court.[15] The Preamble clearly acknowledges, recognises and proclaims that the *Constitution* emanates from the people. “Unless a man is an absolute pedant, one cannot understand that a body of people 292 in number representing this vast continent, in their representative capacity, could not say that they were acting in the name of the people of this country”.[16]

The Preamble is meant to embody in a very few and well defined words the key to the understanding of the *Constitution*.[17]

The interpretation of *Article 32* should be guided not by any verbal or formalistic canons of construction, but by the paramount object and purpose for which the articles has been enacted and its interpretation must receive light from the Preamble, the Fundamental Rights and Directive Principles.[18] To arrive at the true meaning of any particular phrase in a statute, that particular phrase is not to be viewed detached from its context in the statute; it is to be viewed in connection with its whole context – meaning by this as well the title and Preamble as the preview or enacting part of the statute.[19]

Constitution is not an ephermal legal document embodying a set of legal rules for the passing hour. It sets out principles for an expanding future and is inclinded to endure for ages to come and consequently to be adopted to the various crisis of human affairs…A constitutional provision must be constructed not in a narrow and constricted sense, but in a wide and liberal manner so as to anticipate and take account of changing conditions and purposes, so that constitutional provisions does not get fossilized but remains flexible enough to meet the newly emerging problems and challenges.[20]

IV. More frequent use has been made in interpreting statutes and subordinate legislation.

It has been held that the Preamble and the Directive Principles in Pt IV of the *Constitution* embody the socio-economic goals which the State must strive to attain.[21]

Hence, wherever the language of a statute or statutory rule so permits, the Court should so interpret it as advances the aforesaid goal or philosophy of the *Constitution*.[22]

V. A more realistic appeal to the philosophical aspect was made by the activist Judge Chinappa Reddy, J., for the *Constitution* Bench, in *Atma Prakash’s case*,[23] in these words:

> Whether it is the *Constitution* that is expounded or the constitutional validity of a statute that is considered, a cardinal rule is to look to the Preamble to the *Constitution* as the guiding light and to the Directive Principles of State Policy as the Book of Interpretation.
>
> The Preamble embodies and expresses the hopes and aspirations of the people, The Directive Principles set proximate goals. When it is the task of examining statutes against the *Constitution*, it is through these glasses that the Court must look, “distinct vision” or “near vision”. The *Constitution* being *sui generis*, where Constitutional issues are under consideration, narrow interpretative rules which may have relevance when legislative enactments are interpreted may be misplaced.
>
> In 1977 the 42nd amendment proclaimed India as a Socialist Republic. The word “socialist” was introduced into the

> Preamble to the *Constitution*. The implication of the introduction of the word “socialist”, which has now become the centre of the hopes and aspirations of the people — a beacon to guide and inspire all that is enshrined in the articles of the *Constitution*, is clearly to set up a “vibrant throbbing socialist welfare society in the place of a “Feudal exploited society”. Whatever article of the *Constitution* it is whose constitutional validity is sought to be questioned, the Court must strive to give such an interpretation as will promote the march and progress towards a Socialistic Democratic State (para 5).

(ii) VI. In the same strain, the Court has read the Preamble together with the Directive Principles to come to the conclusion thai) The goal of the State, in India, is to create a “Welfare State” the object of which is to discharge the various obligations imposed upon it by the fundamental Rights and Directive Principles.[24]

(ii) The Government has to assume the role of *parens patriae* to protect the rights and privileges of all its citizens and, in particular, of all disabled persons who are not in a position to fight for their rights.[24]

In litigation with third parties, the State has thus the power to act as the guardian of persons under legal disability, and, in that capacity, even to deprive them of their individual right of action.

The relation between the Preamble, the Fundamental Rights and the Directive Principles has been pithily expressed in these words[25]—

> The Preamble promises socio-economic justice, the fundamental rights confer certain justiciable socio-economic rights and the Directive Principles fix the socio- economic goals which the State must strive to attain. These three together constitute the core and conscience of the *Constitution* (para 8).[26]

The *Constitution* through its Preamble, Fundamental Rights and Directive Principles created a secular state based on the principles equality, non-discrimination, striking a balance between the rights of individuals and the duty and the commitment of the State to establish an egalitarian social order.[26]

The socialistic pattern of society as envisaged in the Preamble to the *Constitution* has to be attributed its full swing and the Constitutional Philosophy should be allowed to become a part of every man’s life and then only the *Constitution* can reach everyone and the ideas of *Constitution* framers would be achieved since the people would be nearer the goal by the *Constitution*. The Law Courts should not be made spectators and constitutional philosophy should be interpreted in favour of society for whose benefit the law is made.[27] It was held that social, economic and political justice is the goal to the people of India as per Preamble of the *Constitution* and administration of justice can no longer be merely protector of legal rights, but must be dispenser of social justice.[28]

The Preamble, taken along with Pt III and IV basic liberties are guaranteed, and individual initiative is encouraged. The State has got this role of ensuring that no class prospers at the cost of other class and no person suffers because of drawbacks which are not his, but social. *Article 14* guarantees the fundamental right to equality before law on all persons. Great social unjustice resulted from treating sections of Hindu community “as untouchable” and, therefore, *Article 17* abolished untouchability and *Article 25* permitted the State to make any law providing for throwing open all public Hindu religious temples to untouchables. Therefore, provision of Pt IV also provides for political and social justice.[29]

The result that the State has to read all these provisions together, in making legislation, and consequently the Court has to take them together while interpreting those laws.

By *section 2 of the Constitution* (42nd Amendment) Act 1976, two amendments were made in the Preamble. First, for the words “Sovereign Democratic Republic”, the words “Sovereign Socialist Secular Democratic Republic” were substituted and secondly for the words “Unity of India”, the words “Unity and Integrity of the Nation” were substituted. These amendments were held in *Minerva Mills v UOI*.[30] The addition of the word “socialist” enabled the courts to lean more in favour of nationalisation and economic equality.[31] It was also used for rejecting a classification based on notions of feudalistic society *i.e.,* kinship.[32]

While interpreting Pts III & IV along with Preamble, the court held: “Rights traditionally have been divided into civil rights, political rights and socio-economic rights, the former rights are often called the first generation rights and the latter second generation rights. The first generation rights have been described as negative rights because they impose a duty and restraint on the State and generally no positive duties flow from them with some exceptions. Overlapping of both the rights is not uncommon. It is puerile to think that the former rights can be realised in isolation of the latter or one overrides the other. The socio-economic rights generally serve as a vehicle for facilitating the values of equality, social justice and democracy and the State is a key player in securing that goal.” The court also held that, “the inspiring Preamble to our *Constitution* shows that one of the cherished objects of our *Constitution* is to assure to all its citizens the liberty of thought, expression, belief, faith and worship. To implement these purposes, Pt III has provided certain fundamental rights including *Article 26 of the Constitution* which guarantees the right of every religious denomination or a section thereof to establish and maintain institutions for religious and charitable purpose; to manage its affairs in matters of religion, to acquire property and to administer in accordance with law.” In this case, the court was considering the validity of *Right of Children to Free and Compulsory Education Act 2009* and it was held to be a valid piece of legislation.[33]

9. What is meant by saying that the Preamble is a part of the Constitution

1. The observation in *Kesavananda’s case*[34] that the Preamble formed a part of the Indian *Constitution* because it was separately passed *after* the enacting provisions had been passed and thus became a part of the *Constitution*, has created some confusion. In order to clear this confusion, it would be necessary to refer to its context.

A motion was adopted by the Assembly that “Preamble stands part of the *Constitution*” (Constituent Assembly Debates, vol X, pp 429- 456). The expression “provisions of the *Constitution* in *Article 356* (1) would include the Preamble.[35]

Preamble is part and basic structure of *Constitution*.[36]

The recognition of the Preamble as an integral part of the *Constitution* makes the Preamble a valuable aid in the construction of the provision of the *Constitution* because unlike the Preambles to an Act, the Preamble of the *Constitution* occupies the same position as other enacting words or provisions of the *Constitution*.[37]

9.1 Berubari case

2. In the *Berubari case*,[38] which was a Reference to the Supreme Court under *Article 143 of the Constitution*, it was contended, in short, that the Preamble constituted an implied limitation on the power to amend the *Constitution* under *Article 368* and that since the Preamble set up a sovereign Republic, no part of its territory could be ceded to a foreign power, even by amending the *Constitution*.

This contention was negatived by the unanimous 7-Judge Bench38, holding that—

(a) The Preamble could not be used as an implied limitation upon the power of a sovereign Legislature to cede any part of its territory to a foreign State [para 29].[39]

(b) The only purpose of a Preamble was to show the general purposes for which the authors of the Constitution made the (*i.e.*, the enacting) several provisions in the Constitution. But it could not be regarded as an independent source of any substantive power or prohibition, which could only be drawn from the express provisions in the body of the Constitution or by implication therefrom [para 28].[39]

It is in this connection, that it was observed that the Preamble was "not a part of the Constitution" [para 28].[39]

(c) The only use that could be made of the Preamble in interpreting the Constitution was that where "the terms used in the articles of the Constitution are ambiguous or are capable of two meanings, in interpreting them some assistance may be sought in the objectives enshrined in the Constitution" [para 29].[40]

9.2 Golak Nath's case

3. Following the *Berubari* opinion40, it was held in *Golak Nath's case*[41] that the Preamble could not impose any implied prohibition or limitation on the power to amend the Constitution contained in Article 368.

9.3 Kesavananda's case.

4. The 13-Judge Bench in *Kesavananda*[42] overruled *Golaknath* [paras 1078(3), 1343(2), 1798, 2008(1), 2156].[41] The observation in the *Berubari case*[43] that the Preamble was not a part of the Constitution was also negatived but the *entire* opinion as to the *scope* and *use* of the Preamble does *not* appear to have been overruled.

It was now held that the Preamble to the Indian Constitution was put to vote after enacting its substantive provisions by the same process and then adopted as a "part" of the Constitution.[44] The words "this Constitution" in Article 368, therefore, includes the Preamble and it is not beyond the pale of the amending power, nor does anything in the Preamble restrict the amending power conferred by Article 368.

Notwithstanding the foregoing conclusion, in *Kesavananda*,[42] the majority propounded the novel doctrine of "basic features" as an implied limitation upon the amending power conferred by Article 368, not from the Preamble,– but from an interpretation of the word "amend" in Article 368 itself.

The Court spoke in many voices, and the consensus of the majority judgements as explained in *Waman's case*[45] (paras 54,64,65) was that the basic structure of the Constitution could not be destroyed or damaged by amending the Constitution in exercise of the power under Article 368.

Of course, in formulating the basic features the Court referred to the objectives specified in the Preamble, as other provisions, but *it was nowhere stated that the Preamble as such* constituted any *substantive* source of power or limitation apart from its enacting provisions.[46]

5. This Author submits that from the thicket of diverse opinions in *Kesavananda*[47] and the subsequent decisions, it would appear that the following propositions have not been wiped out:

(i) All powers must be founded in some enacting provision of the Constitution.[48]

It was *not* suggested that some additional power could be derived from the Preamble.

(ii) The Preamble may be liberally interpreted as embodying the philosophy behind the Constitution where there is any *ambiguity* in an enacting provision so that it is capable of two constructions, but it cannot be relied upon as a source of additional power or limitation.

In *Kesavananda Bharati's case,* learned CHIEF JUSTICE SIKRI said: "The word "amendment" in Article 368 if found ambiguous, Preamble can be referred to find out the construction which will fit in with it. The Preamble of our Constitution is of "extreme importance" and the Constitution "should" be read and interpreted in the light of the grand and noble vision expressed in the Preamble. Learned JUDGE JAGMOHAN REDDY said: "Where Preamble conveys a clear and definite meaning, it would prevail over the enacting words which are relatively obscure or indefinite or if the words are capable of more than one construction, the construction which fits the Preamble may be preferred". Learned Judges SHELOT and GROVER held: "If any provision in the Constitution had to be interpreted and if the expressions are ambiguous, the Preamble would certainly furnish valuable guidance in the matter".

6. It is to be noted that in *Waman's case*[49] a Constitution Bench upheld the validity of the pre-*Kesavananda* Amendments on the ground that these amendments did not deprive the people of the gains of the Constitution" [para 26][49] but were either "a contemporary *practical exposition of* the Constitution"[50] [para 26]49; or "to *effectuate the purpose*" of what was "a part of the Constitution as *originally enacted*" [para 27].[51] In short, they did not "*damage*" the basic structure of the Constitution [paras, 1,32,64].[51]

7. Any amendment subsequent to 24 April 1973 can, therefore, be challenged on its merits, *viz*., that it damages the basic structure of the Constitution. It follows, therefore, that the 1976 – amendment of the Preamble (e.g., inserting the word "secular') must be struck down if it does anything *more* than effectuating what was *already* contained in the enacting provisions of the Constitution, – such as supplying a plea for appeasing the "sentiments" of a religious minority, by expanding the contents of Articles 25-30 or the general guarantee of Equality in Articles 14-15.

8. Whatever confusion there might have been earlier, has been cleared by the Constitution Bench decision of 1993 in *Raghunathrao's case*[52], thus :

> Therefore, though our Preamble was voted upon as is a part of the Constitution, it is really "a preliminary statement of the reasons" which made the passing of the Constitution necessary and desirable. As observed by GAJENDRAGADKAR, J., in *In re, Berubari Union*,[53] what Willoughby has said about the Preamble to the American Constitution, namely, that it has *never been regarded as the source of any substantive power*, is equally true about the prohibitions and limitation. The Preamble of our Constitution *cannot, therefore, be regarded as a source of any prohibitions or limitations*." (para 177).[54]

It was further added that to say that the Preamble is an integral part of the Constitution is *not* to concede that the *entire* Preamble is a basic feature of the Constitution which would be immune from amendment (para 179).[54]

After the foregoing explicit observations of a recent Constitution Bench, made after reviewing the previous case-law, the hoax of the Preamble having any substantive meaning beyond the enacting provisions must be taken to have been silenced.

PREAMBLE

The Preamble of the *Constitution of India* says that "We the people of India…adopt enact and give unto ourselves this *Constitution*." Everyone knows that "historically" this is not a fact.

"**We the people of India".** Though there is, in our *Constitution*, no independent article in the enacting portion declaring that all powers are derived from the people[55] or vesting the sovereignty[56] or the reserved powers[57] in the people - the words "we the people of India" echo the opening words in the Preamble to the Constitutions of the *United States* and of *Eire* and emphasises the ultimate sovereignty of the people and that the *Constitution* itself is founded on the authority of the people "who hold the power and conduct the Government through their representatives."[58]

Though *our Constitution* has been made by men who cannot be said to be fully representative of the nation and it has not been ratified by a direct vote of the people, *our Constitution*, like that of the *United States*[59] professes that it is founded on the consent and acquiescence of the people.

The assertion of some of the makers of the *Constitution* proceeded from the people can only be taken as a rhetorical flourish, probably to lay its foundation as the more solid basis of popular will and to give it an unquestionable supremacy. A Preamble represents at the most, only an intention, which an Act seeks to effect and it is a recital of present intention.[60] The fact set out in the Preamble have to be accepted as correct and its correctness cannot be gone into. (Per HEDGE and MUKHERJEE JJ). The Preamble indicates the source from which the *Constitution* comes. (Per SHELAT and GROVER JJ). The Preamble as expressed, is the sovereign will of People of India.[61] The *Constitution of India*, is a constitutive document fundamental to the governance of the country, whereby, according to accepted political theory, the people of India have provided a constitutional polity, consisting of certain primary organs, institution and functionaries to exercise the power provided in the *Constitution*. All power belongs to the people and is entrusted by them to specified institutions and functionaries with the intention of working out, maintaining and operating a constitutional order.[62] The source of the *Constitution* are the people themselves from whom the *Constitution* derives its ultimate sanction. Their assertion affirms the republican and democratic character of the Indian Polity and sovereignty of the people. The people of India thus constitute the sovereign political body who hold the ultimate power and who conduct the government of the country through their elected representatives. (M.P. Jain, *Indian Constitutional Law,* 6th Edn, 2010, p 16, Pt I, chapter I- Salient Features of the Indian *Constitution*).

Learned author WHEARE in his book *Modern Constitution,* 1960, has said "In India the people" enact the *Constitution* "in our Constituent Assembly" but that assembly was composed of representatives elected by a minority of the people of India and the *Constitution* itself was never submitted to the people directly. It is not unreal in any case to speak of "the people" enacting a *Constitution* "in" or "through" a constitutional assembly? It is seldom indeed that the people are asked even to approve a *Constitution* ostensibly enacted in their name. Moreover, once a *Constitution* is enacted even when it has been submitted to the people for approval, it binds thereafter not only the institutions, which it establishes, but also the people itself. They may amend the *Constitution*, if at all, only by the methods, which the *Constitution* itself provides.

Learned author H.M. SEERVAI has said: "In *Kesavananda's case,*[63] a question arose whether the court could inquire into the correctness of the declaration "We the people of India" because, our *Constitution* was framed by Constituent Assembly which was elected on a very narrow franchise and the *Constitution* was not submitted to the people for ratification. On this point, different views were expressed in *Kesavananda's case* by Hegde J. and by Mathew J. However, it is not necessary to enter into this controversy, for, the Indian Independence Act 1947 undoubtedly gave legal authority to the Constituent Assembly of India to frame a *Constitution* for India. Whether the authority of the *Constitution* is derived from the Indian Independence Act 1947 which partitioned British India into Dominion of India and Pakistan (a partition which leaders of an undivided India accepted) and which as a consequence altered the composition of the Constituent Assembly of India by certain exclusions and inclusions or whether the authority is derived from the people as recited in the Preamble, is purely academic. The reason is that the Supreme Court owes its existence to the *Constitution*. Again, the *Constitution* provided that judges of High Court in any province holding office immediately before the commencement of *Constitution* unless "they had elected otherwise" should become judges of the High Court in the corresponding State on commencement of *Constitution* (see *Article 376*) and subsequent appointment had to be made "under" the

Constitution. Hence, the challenge to the validity of the Constitution is impossible before the Supreme Court or High Court, for, a prayer to declare the Constitution invalid would result in a declaration that those Courts are illegally constituted and therefore lack jurisdiction to decide the matter whatsoever".[64]

It is not imposed by any external authority as was the Government of India Act, 1935. The Supreme Court has, from this aspect of the Preamble, drawn the power of the Legislatures set up by the Constitution to enact laws with restrospective operation beyond the commencement of the Constitution itself. Thus it was observed in *UOI v Madangopal*[65]—

> *Our* Constitution, as appears from the Preamble, derives its authority from the people of India, and learned counsel conceded that it was open to the people to confer on the legislatures established by the Constitution, which they framed through their representatives, power to make laws having operation in relation to periods prior to the commencement of the Constitution.[65]

It is by authority derived from the people that the Constitution "blotted out in one magnificent sweep all vestiges of arbitrary and despotic power in the territories of India';[66] and conferred upon the subjects of autocratic Princes (of Indian States) the full-fledged citizenship of India.[67]

Again, as interpreted in the *United States*,[68] the word "people" indicates that the Constitution is not created by the States or by the people of the several States, but by the people of India in their aggregate capacity.[69] Hence, it would not be open to any State, or group of States, either to put an end to *our* Constitution or to secede from the Union created by it.[70]

Though historically, it owed its origin in an agreement of Indian leaders with the British Government, followed by an Act of the British Parliament, *i.e.*, the Indian Independence Act, from the *legal* standpoint, once the Constituent Assembly began to function, it could exercise all powers of a sovereign Legislature[71] – constituent as well as legislative, – including a repeal of the Indian Independence Act itself (by *Article 395 of the Constitution* made by "the people of India').

As to the constituent power, the Constituent Assembly of India exercised not only the *initial* constituent power by providing the Constitution of 1949 but also the amending constituent power in vesting the future amending power in the body specified in *Article 368*.

In *Kesavananda's case*,[72] it has further been observed that the expression "we the people" highlights the promise that all power under the Indian Constitution is derived from the people and that sovereignty rests not even in the Parliament; and even the constituent body set up under *Article 368* cannot amend the *basic structure* of the Constitution set up by the people. "The people, in the final analysis, are the ultimate sovereign" (para 1444).[72] Hence, the basic structure of the Constitution cannot be amended or repealed in exercise of the amending power conferred by *Article 368* [paras 1437-38, 1550(vii)].[72] Perhaps a new Constitution could be set up by the people through a revoution.[72]

10. *"Sovereign".*

The word "sovereign" is presumably taken from *Article 5 of the Constitution* of *Eire*.

> Sovereign or supreme power is that which is absolute and uncontrolled within its own sphere.[73]

In the words of Cooley,[74]

> A State is sovereign when there resides within itself a supreme and absolute power, acknowledging no superior.
>
> The term “sovereign” means a political superior who is not subject to any other political superior.[75]

Sovereign means “A person, body, or state in which independent and supreme authority is vested A chief ruler with supreme power; a king or other ruler with limited power, supreme civil, military, and political power; the person or body of persons in whom the ultimate authority of law rests.”[76]

“What is the true import of the expression “Govt. of India”? In its narrowest sense, the Govt. of India is only the executive limb of the State. It comprises a group of people, the administrative bureaucracy that controls the executive function and powers of the State at a given time. Different governments, in continuous succession, serve the State and provide the means through which the executive power of the State is employed. The expression “Govt. of India” is surely not used in this narrow and restricted sense in *section 121 Indian Penal Code, 1860*. In our considered view, the expression “Govt. of India” is used in *section 121 Indian Penal Code, 1860* to imply the Indian State, the juristic embodiment of the sovereignty of the country that derives its legitimacy from the collective will and consent of the people. The use of the phrase “Government of India” to signify the notion of sovereignty is consistent with the principles of Public International Law, wherein sovereignty of a territorial unit is deemed to vest in the People of the territory and exercised by a representative government.”[77] It was held therein that in a republic, sovereignty vests with the people of the country and the lawfully elected government is simply the representatives and a manifestation of the sovereign, that is, the people.

In *Ram Kishore Sen v UOI,*[78] (which is known as *Berubari II case*), a village known as “Chilavati” was allotted to Pakistan, but by inadvertence, a part of it was not delivered to Pakistan on the occasion of partition which followed the Radcliffe Award and continued to be administered as West Bengal under Entry 13 of 1st Schedule. The Supreme Court held that this area had not constitutionally and validly become part of West Bengal and that being so, there was no question about the constitutional validity of the proposed transfer of that area to Pakistan.

The term is used in England to designate the King, or Queen, of the United Kingdom; often also in the phrases “Our Sovereign Lord the King” or “our Sovereign Lady the Queen” in Acts of Parliament and proclamations. There is implied in it the theory that the King is the possessor of sovereignty or the powers of supreme government, as a monarch in the strict sense of jurists and constitutional writers; and in that sense it has long ceased to be a correct designation. The King is neither “sovereign” nor “monarch”, but this notwithstanding he hardly is mentioned oftener by his appropriate and affected names.[79]

I. Sovereignty, in short, means the independent authority of a State.

Sovereignty means supremacy in respect of power, dominion or rank; supreme dominion authority or rule. It implies supreme, absolute, uncontrollable power by which any state is governed.[80] Sovereignty has external and internal aspects. Internal sovereignty is divided between the Union and the States. As a general rule, there are no limitations on sovereign power. A State, in the exercise of its sovereign power, can invoke the doctrine of “*parens patriae*”.[81] Exercise of judicial power is an aspect of sovereignty.[82] It is an essential attribute of

sovereignty that a sovereign can acquire foreign territory and in case of necessity, cede a part of its territory in favour of a foreign State and this can be done in exercise of its treaty making power.[83]

Sovereignty, pre-eminently, has two main constitutional aspects – (i) its location and (2) its nature. If the sovereignty is located in the People, the legality of legislative law becomes subject matter of judicial scrutiny; but in the case of Parliamentary sovereignty, the court is powerless to determine the validity of Parliamentary enactments. The people themselves are considered to be present in Parliament and the legislative enactments, by legal fiction, are considered to be the verdict of the people and their legality is not to be scrutinised by courts.

The nature of sovereignty is either unitary or federal. In federal sovereignty, there is distribution of legislative powers between the Union and the State legislature and the encroachment of the legislative power by either is a constitutional conflict to be decided by court. Judicial review is the proper institution to effectuate the constitutional arrangement regarding location and nature of sovereignty and the concept of sovereignty has a practical significance.[84]

In *Synthetics and Chemicals Ltd v State of UP,*[85] it was held “it is the exercise of sovereign power which gives the State sufficient authority to enact any law subject to the limitations of the *Constitution* to discharge its functions. The sovereign power is plenary and inherent in every sovereign State to do all things which promote the health, peace, morals, education and good order of the people. This power of sovereignty is, however, subject to Constitutional limitations.”

In *UOI v Sukumar Sengupta,*[86] the Supreme Court observed, “Sovereignty is a quality of right. It depends on the facts and the circumstances of each case. In the present and modern context sovereignty has and must have a more restrictive meaning that it had in the earlier centuries when on the emergency of individual national States, no limits on the power of States were acknowledged. The complexities of modern developed societies need amicable and peaceful settlement of boundary disputes which are in the interests of the international community. The older and absolute ideas of sovereignty and independence has thus necessarily to be modified in the dawn of the 21st century.”

According to Black[87], “Sovereignty is 1. Supreme dominion, authority, or rule 2.

The supreme political authority of an independent State. 3. The State itself.

In JAMES BRYCE, *Studies in History and Jurisprudence*, 1901, pp 504-05, it is stated, “In the ordinary popular sense it means Supremacy, the right to demand obedience. Although the idea of actual power is not absent, the prominent idea is that of some sort of title to exercise control. An ordinary layman would call that person (or body of persons) Sovereign in a State who is obeyed because he is acknowledged to stand at the top, whose will must be expected to prevail, who can get his own way, and make others go his, because such is the practice of the country. Etymologically the work of course means merely superiority, and familiar usage applies it in monarchies to the monarch, because he stands first in the State be his real power great or small.”

It has two aspects – external and internal.

(a) 1. *External* sovereignty or sovereignty in international law means the independence of a State of the will of other States.

> Sovereign in its relation between States signifies *independence*. Independence in regard to a portion of the globe is the right to exercise therein, to the exclusion of any other States, the function of a State…[88]

Now, India ceased to be a “Dependency” of the British Empire by the passing of the Indian Independence Act, 1947.[89] Whatever subjection or limitation was still implied has been abjured by India declaring herself a Republic in the *Constitution*. So, India is now as sovereign a State as the United States of America.

Of course, at the Prime Ministers’ Conference at London (27 April 1949), India has made a declaration to the effect that notwithstanding her becoming “a sovereign, independent Republic”, she will continue—

“her full membership of the Commonwealth of Nations and her acceptance of the King as the symbol of the free association of the independent nations and as such the Head of the Commonwealth.[90]

10.1 Membership of the Commonwealth not incompatible with India’s sovereignty

But it is to be noted that this declaration is *extra-legal* and there is no mention of it him prior to the *Constitution*), and there is no question of allegiance of the citizens of India to the Crown of England. Again, though as a member of the Commonwealth, India has a right to be represented in Commonwealth conferences, decisions at Commonwealth conferences will not be binding on her and no treaty with a foreign power or declaration of war by any member of the Commonwealth will be binding on her, without her express consent. Hence, this voluntary association of India with the Commonwealth[91] does not affect her sovereignty to any extent and it would be open to India to cut off that association as easily as it has been declared. The term “Commonwealth” ordinarily signifies (first), the voluntary association of independent sovereign states which are recognised by each other as associated for the purpose of consultation and co-operation and which recognise the Queen of England as the symbol of free association and as such the Head of Commonwealth and (secondly) the whole of the territories and dependencies of the States, thus associated as members of Commonwealth. (Halsbury’s Laws of England, 4th Edn, vol VI, para 801). Commonwealth is the Association of the United Kingdom and the self-governing nations whose territory originally formed part of British Empire; independent community, a republic a Federation of States. (See Ramanathier, *Advanced Law Lexicon*, 3rd Edn, 2005).

2. The *external* sovereignty of India also means that it can acquire foreign territory and also cede[92] any part of the Indian territory, subject to limitations (if any) imposed by the *Constitution*.

3. The doctrine of absolute sovereignty has, however, undergone a change in International Law in order to achieve international amity, which is indispensable under modern conditions. It is, therefore, now acknowledged that external sovereignty is not impaired by self-imposed or customary restraints.[93]

It follows that the grant of a servitude such as the right of passage over an Indian enclave, by agreement, would not amount to a transfer of Indian sovereignty or cession of Indian territory to Bangladesh.[94]

4. It has been held[95] that the judicial power of this country flows from its national sovereignty and that the superior courts have all the jurisdiction to redress the grievances of its citizens according to what is perceived by the Court to be principles of justice, equity and good conscience. The Admiralty Jurisdiction of our Courts of record is thus an aspect of this judicial sovereignty in exercise of which the superior courts may enforce claims of its citizens against foreign ships. Thus, jurisdiction under *Article 226 of the Constitution* to enforce the citizens’ fundamental right to carry on business cannot be frozen by archaic English statutes.

In the result, the High Courts in *India*, being courts of unlimited jurisdiction, are repository of all judicial power, save what is excluded by the *Constitution*.[96]

(b) 1. *Internal* sovereignty, on the other hand, refers to the relation between the State and the individuals within

its territory. (1) It means the power to compel “obedience and to punish for disobedience”, or, the power to determine what rules shall have the force of law and to enforce them.

2. From the positive standpoint, it means that the State has the power to legislate on any subject, to promote the health, morals, education and good order of the people, subject only to the federal division of legislative powers and other limitations imposed by the *Constitution*, e.g., the fundamental rights.[97]

3. On the other hand, there is no scope for importing the *American* doctrine of “police power” or the English doctrine of royal “privileges”, to interpret the ambit of the sovereign power under the Indian *Constitution*.[97] In India, no Legislature – Union or State – has any extra-legislative or taxing power which could not be derived from any specific article of the *Constitution* or any Entry in the three legislative Lists of the 7th Schedule 97 In India, the powers of all the organs of the State are defined by the *Constitution* and neither the Executive nor the Legislature can claim any extra - Constitutional power, that is, any power which cannot be justified under any of the express provisions of the *Constitution*.[97]

The entire scheme of the *Constitution* is such that it ensures the sovereignty and integrity of the country as a republic and the democratic way of life by Parliamentary institution based on free and fair elections. The doctrine of parliamentary sovereignty as it obtains in England does not prevail in India except to the extent and in the fields provided by the *Constitution*.[98]

It was held that unorganized mass of the people cannot be sovereign. In no country, except perhaps in a direct democracy can people *en manse* be called legal sovereign. Political power must be in a determinate person or body of persons for the people at large, the whole people, as distinct from particular person or persons, are incapable concerted action and hence, of exercising political power and therefore of legal supremacy. The supremacy enjoyed by the *Constitution* has led some to think that the document must be regarded as sovereign. They talk about government of laws and not of men; but sovereignty by definition, must be vested in a person or body of persons. The *Constitution* by itself is incapable of action.[99] In the same case another learned Judge held that there is no transfer of legal sovereignty to the people and *Constitution* is the legal sovereignty recognized by Courts; although the ultimate “political” sovereignty may and does reside in the people. It was further held that sovereignty is not vested in all its aspects in any one of the three organs of the State, but may be divided between them. (Per BEG, J.).

Sovereignty vests in the people and is articulated in the provisions of the *Constitution* and the laws of India.[1] By the *Constitution of India 1950*, India has been constituted a “Sovereign Democratic Republic”. The expression means that absolute power vested in the people of India under the *Constitution* is to be exercised by them through their duly elected representatives.[2]

In a sense, the *Constitution* appears to be sovereign as it is the supreme law of the land.[3] Learned author V.N. SHUKLA in his book *Constitution of India* (10th Edn, p A-25) has said thus:- “However a document cannot be the sovereign. The people of India according to the Preamble have given to themselves the *Constitution*. The source of *Constitution* is the people of India who have solemnly resolved to constitute India into a sovereign democratic republic. The people of India will continue to be governed under the *Constitution* so long as it is acceptable to them and its provisions promote their aims and aspirations. It is true that the *Constitution* was adopted by the Constituent Assembly which was not directly elected by the people. But that does not necessarily mean that the Constituent Assembly, as it came to be constituted, did not project the feelings of the people. The fact that the *Constitution* has been in operation for more than fifty years with a number of general elections from time to time is an evidence of the people having accepted the *Constitution* in its present form. Following the course of Indian history, and the pattern of Indian politics, it may be said that, unlike the Western society, it is the elite of Indian society rather than people themselves who have to set the tone for the reformation of the society. For example, it is the field of legislative activity, the enactment of law is not brought about as a culmination of the urges of the people reflecting changes in the social and economic order, but a measure which chalks out a course of action for the people who later acquiesce into it. The same may be said about the framing of the *Constitution* which was enacted and adopted by the Constituent Assembly which took the lead in projecting a system to be identified with the aims

and aspirations of the people. Besides the fact that Preamble provides that the People of India have enacted and given to themselves the *Constitution*, the successful working of the *Constitution* and its continued acceptance by the people over the years lead to no other conclusion except that the binding force of the *Constitution* is the sovereign will of the people of India. If, at any stage of history, people find that the *Constitution* is not serving the needs of the Indian society, the people of India may, if necessary, set in motion a machinery which provides for a system suited to the aims and aspirations of the people. It may, therefore, be rightly observed that sovereignty lies with the people of India".

While considering the true import of the expression "Government of India" as expressed in *section 121 of Indian Penal Code, 1860*, the court held: "In our considered view, the expression "Govt. of India" is used in *section 121 Indian Penal Code, 1860* to imply the Indian State, the juristic embodiment of the sovereignty of the country that derives legitimacy from the collective will and consent of the people. The use of the phrase "Govt. of India" to signify the notion of sovereignty is consistent with the principle of Public International Law, wherein sovereignty of a territorial unit is deemed to vest in the people of territory and exercised by a representative government.[4]

The term "sovereign" is only used in the Preamble of *Constitution*. One has to presume that the *Constitution* was actually made by people of India by virtue of their political sovereignty which enabled them to create a legally Sovereign Democratic Republic to which they consigned or entrusted, through the *Constitution*, the use of sovereign power to be exercised, in its different forms, by the three organs of the Government, each acting on behalf of whole people, so as to serve the objects stated in the Preamble. The reference to "the people of India" is much more than a legal fiction. Sovereignty, as the power of taking ultimate or final decision on broad politico-legal issues in any proposed changes in the law, becomes divisible. The people are not excluded from the exercise of it. They participate in all the operations of the Republic through the organs of the State. They bind themselves to exercise their individual and collective rights and powers only in the way sanctioned and through the agencies indicated by the *Constitution*.

In as much as the *Constitution* is the instrument which regulates the distribution between and exercise of sovereign power, by three organs of the State, and it is there constantly to govern and to be referred to and to be appealed to in any and every case of doubt and difficulty, it could itself, conceptually, be regarded as the true or "ultimate" sovereign, that is to say, sovereign as compared with "immediate" sovereignty of the organ of the Republic acting within its own sphere and at its own level.[5]

If it is made clear that sovereign is not a "Mortal God" and can express himself or itself only in the manner and forms prescribed by law and can be sovereign only when he or it acts in a certain way also prescribed by law, then this perhaps the use of the expression will have no harmful consequence. "Legal sovereignty" is a capacity to determine the actions of persons in certain intended ways by mean of law…where the actions of those who exercise the authority, in those respect in which they do exercise it, are not subject to any exercise by other persons of the kind of authority which they are exercising. (Per MATHEW, J.)

4. In *India*, the power to "regulate" follows from the sovereign power to legislate (subject to constitutional limitations) and not from any doctrine of "police power".[6] In that case, the Court laid down: "The Indian State between the Centre and the States has sovereign power. The sovereign power is plenary and inherent in every sovereign State to do all things which promote health, peace, morals, education and good order of the people. This power *i.e.,* sovereignty is however subject to constitutional limitation. This power, according to some constitutional authorities, is to the public what necessity is to the individual".[7]

5. In *India*, the sovereign's right to choose anybody for entering into any contract and to terminate that contract, including public employment, is subject to constitutional limitations such as *Articles 14*, *16*, as well as the express provision in *Article 311*(2).[8]

II. The orthodox theory of sovereignty is that sovereignty is *indivisible*. But while this is true in a Unitary State, an exception has to be made under a Federal *Constitution* which divides all power between the national and State Governments.

In the *United States*, the judicial view[9] is that the sovereignty is divided between the Union and the States, each being sovereign as regards the subjects committed to it by the *Constitution*. Sometimes the two sovereignties may operate within the same territory; thus, the same act may constitute an offence against a federal law and another offence against a State law and each government may punish for the respective offences separately, in the exercise of their separate sovereignties.[10]

> The powers of the general government and of the State, although both exist and are exercised within the same territorial limits, are yet separate and distinct sovereignties, acting separately and independently of each other, within their respective spheres. And the sphere of action appropriated to the United States is as far beyond the reach of the judicial process issued by a State judge or a State Court, as if the line of division was traced by landmarks and monuments visible to the eye.[11]

The theory of divided sovereignty has also been expressed in several cases in *Australia*, thus –

> It is manifest from the whole scope of the *Constitution* that, as the Commonwealth and State are regarded as distinct and *separate* sovereign bodies, with sovereign powers limited only by the ambit of their authority under the *Constitution*, so the Crown, as representing those several bodies, is to be regarded not as one, but as several juristic persons…[12]

> In considering the respective powers of the Commonwealth and of the States it is essential to bear in mind that each is, within the ambit of its authority, a sovereign State, subject only…to the provisions of the *Constitution*, either expressed or necessarily implied.[13]

In the *Indian Constitution*, though there is a division of powers between the Union and the States, there is lesser scope for such theory of divided sovereignty; for, though the division of powers is to be respected in all normal times, the *Constitution* itself vests the Union with power to override the division in the national interests, in emergencies and other specified cases. Of course, in normal times and so long as the Union does not exercise any of these overriding powers, the Union and the States are autonomous within their respective spheres as outlined by the division of powers effected by the *Constitution*, but the sovereignty of a State becomes illusory when its constitutional government is suspended and its functions assumed by the Union (e.g., under *Articles 356*, *365*).

On the other hand, sovereignty cannot be ascribed to the Union Parliament alone, in the same manner as it can be ascribed to the British Parliament, becaues whether in normal times or in emergencies, the powers of the Union are *limited by the Constitution*, and any of its acts which transgresses the *Constitution* would be unconstitutional and invalid. Further, though the power of amendment is primarily vested in the Union Parliament under *Article 368*(1), ratification by the State Legislatures is required for the amendment of the federal provisions. In *I.R. Coelho v State of TN,*[14] the Court observed that there is difference between Parliamentary and Constitutional sovereignty. The *Constitution* was framed by Constituent Assembly and not by the Parliament. For the preservation of liberty and prevention of tyranny, we have accepted the separation between the Legislature, Executive and Judiciary and it is the duty of Supreme Court to uphold constitutional values and enforce constitutional limitations. The Court held that there is a distinction between the making of a *Constitution* by a Constituent Assembly which was not subject to restraints by any external authority as a plenary law making power, and a power to amend the *Constitution*, a derivative power derived from the *Constitution* and subject to the limitation imposed by the *Constitution*. No provision of the

Constitution framed in exercise of plenary law making power can be *ultra vires* because there is no touchstone outside the Constitution by which the validity of provisions of the Constitution can be adjudged. This power of framing the Constitution has no limitation or constraints; it is primary power, the real plenary power. The power of amendment (under Article 368) cannot be equated with such power of framing the Constitution. The amending power has to be within the Constitution and not outside. It has constraints of the document, *viz.,* the Constitution which creates it". The derivative power can be exercised within the four corners of what has been conferred on the body constituted, namely, the Parliament. (paras 54 & 118 of SCC).[15]

But even in the *United States*, there has grown a tendency to hold that both the Federal and State Governments are organs with limited powers, while sovereignty belongs to the People as a whole, who made the Constitution and can unmake it.[16] This may be said to be the doctrine of *ultimate* or *political* sovereignty, as Political Scientists view it. Though the doctrine is subject to strong criticism from the legalist's point of view, at the same time, as Prof. Laski has pointed out, the attempt to discover the sovereign authority in a federal state, from the legalistic point of view, is "an impossible adventure." The theory of political or ultimate sovereignty has the prime advantage that it reminds everybody of the constitutional foundation of authority; and this doctrine may easily be imported into *India*, by reason of the words "we the people of India…… this Constitution" in Preamble.[17]

Under the Indian Constitution the *legal* sovereignty undoubtedly belongs to the Parliament, but that is not as unlimited as that of the British Parliament, because it is "subject to the limitations" imposed by the Constitution [e.g. Articles 13(2), 245(1)] as well as the federal distribution of powers [Article 246; 7th Schedule].

The *political* sovereignty resides in the electorate which elects the members of the Legislatures [Article 326].

In *Kesavananda Bharati v State of Kerala,*[18] JUSTICE MATHEW observed: "As regards the people of India being sovereign, it is difficult to understand how the unorganised mass of people can "legally" be sovereign. In no country, except perhaps to a direct democracy, can the people "*en masse*" called legally sovereign. Political power must be in a determinate person or body of persons, for the people at large the whole people, as distinct from particular person or persons, are incapable of concerted action and hence in exercising political power and therefore legal supremacy. The supremacy enjoyed by the Constitution has led some to think that the document must be regarded as sovereign. They talk about government of laws and not men; but sovereignty, by definition must be vested in a person or body of persons. The Constitution itself is incapable of action." (paras 1606 and 1607 of SCC).

The *ultimate* sovereignty, on the other hand, rests with the "People" who made the Constitution, because even though the constituent power has been vested in the body specified by Article 368, the power to set up a new order altogether, through *revolution*, remains with the People. This proposition has gained importance since the invention of the doctrine of "basic features" by the 13-Judge Bench of the Supreme Court in 1973[19], according to which only a limited[20] amending power has been conferred by Article 368, because, according to this doctrine, the basic structure or basic features of the Constitution of 1949 cannot be amended in exercise of thepower under Article 368. When a Constitution makes some provision unamendable (like basic features as propounded by Supreme Court) that limitation cannot be circumvented by introducing the will or vote of the people in that place.[21]

After the amending power is vested by the Constitution in a particular body and to be exercised in a prescribed manner, the people cannot amend the Constitution regardless of that constitutional provision for amendment, and if they seek to do so, the amendment sought to be made by the people shall be declared by the court to be void.[22] It is, because, legally, the sovereignty by way of amending the Constitution is vested in the constituent body created by people themselves through the Constitution.

When the people who made the Constitution vested the constituent power in a specified machinery, the constituent power may not be supposed to reside in two authorities at the same time, namely, the people as well as the machinery set up by the Constitution. The Constitution once enacted binds, not only the institution

established by the Constitution, but the people themselves (Wheare, *Modern Constitution*, 1966, p 62) and they can throw off the yoke only by resorting to a revolution. Nobody would suggest that people's right to revolt could be taken away by any Constitution made by people themselves. (See Ebenstein, *Modern Political Thought*, 1954, pp 127-147 and Friedrich, *Constitutional Government and Democracy,* 1950, pp 129-30). In fact, the amending provision is included in a Constitution only to avert violent revolution, by providing a method of legal change. Hence, if people think of effecting a change in the "legal" manner, they cannot do it otherwise than according to the process laid down in the Constitution.[23] (See D.D. Basu, *Comparative Constitutional Law,* 2nd Edn, 2008, pp 100-02).

11. *"Socialist".*

The expression "Socialist" is not defined in the Constitution. Though an attempt was made to define "socialist" and "secular" in the 45th Amendment Bill (which later became the 44th Amendment) by amending Article 366, the same could not be passed since the amendment was not accepted by Council of States. (Rajya Sabha).

The Supreme Court in *Excel Wear v UOI,*[24] held that "the addition of the word "socialist" in the Preamble might enable the court to lean more and more in favour of nationalisation and State ownership of industry. However, as long as the private ownership of industries was recognised and it governed an overwhelmingly large proportion of our economic structure, the principles of socialism and social justice are not to be pushed to such an extent as to ignore completely or to a very large extent, the interest of another section of the public – the private owners of the undertakings". From the Statement of Objects and Reasons of the 42nd Amendment Act, 1976, it appears that he world "socialism" was inserted "to spell out expressly the *high ideals* of socialism". The implication of the introduction of the word "socialist" which has become the centre of hopes and aspirations of the people, a beacon to guide and inspire all that is enshrined in the article of the Constitution is clearly to set up a "vibrant throbbing socialist welfare society in the place of Feudal exploited society".[25] What is meant by "socialism" is explained in the same context but there is no reference to collectivism or nationalisation but mere "social justice". These words are—

> ……the objective of *socio-economic* revolution, which would end *poverty* and *ignorance* and *disease* and *inequality of opportunity*……[26]

The Fourth Amendment to the Constitution wanted changes in Article 31. Accompanying the 4th amendment's drafting was drafting of a resolution introduced and adopted in the Lok Sabha, the day after the introduction of the amending bill. This was named "socialist pattern of society" as the nation's goal. Explaining it, Pandit Nehru said that the resolution did not mean adherence to any rigid or doctrinaire pattern, but, we are aiming at a particular type of society where there will be an approach to equality and where the State owns or controls the means of production…not everything but…all the strategic points.[27] Socialism brings within its sweep the establishment of an egalitarian social order.[28]

11.1 *Nakara v UOI.*

In 1983, The Constitution Bench in *Nakara's case*[29] explained the meaning of "socialist" in the Preamble, with reference to the foregoing Statement of Objects and reasons appended to the Constitution (42nd Amendment) Act, 1976, in these words –

> "The principal aim of a socialist State is to *eliminate in equality* in income and status and standards of life. The basic framework of socialism is to provide a decent standard of life to the working people and especially provide security from cradle to grave. This amongst others on economic side envisaged *economic equality and equitable distribution of income*. This is a blend of Marxism and Gandhism leaning heavily towards *Gandhian socialism*. During the formative years, socialism aims at providing all opportunities for pursuing the educational activity. For want of wherewithal or financial equipment the *opportunity to be fully educated* shall not be denied. Ordinarily, therefore, a socialist State

provides for the education from primary to Ph.D. but the pursuit must be by those who have the necessary intelligent quotient and not as in our society where a brainy young man coming from a poor family will not be able to prosecute the education for want of wherewithal while the ill-equipped son or daughter of a well-to-do father will enter the portals of higher education and contribute to national wastage. After the education is completed, socialism aims at equality in pursuit of excellence in the chosen avocation without lit or hindrance, of caste, colour, sex or religion and with full opportunity to reach the top not thwarted by any considerations of status, social or otherwise. But even here the less equipped person shall be assured *a decent minimum standard of life and exploitation in any form shall be eschewed.* There will be equitable distribution of national cake and the worst off shall be treated in such a manner as to push them up the ladder. Then comes the old age in the life of everyone, be he a monarch or a mahatma, a worker or a pariah. The old age overtakes each one, death being the fulfilment of life providing freedom from bondage. But here socialism aims at providing an economic security to those who have rendered unto society what they were capable of doing when they were fully equipped with their mental and physical powers. In the fall of life the State shall ensure to the citizens a reasonable decent standard of life, medical aid, freedom from want, freedom from fear and the enjoyable leisure, relieving the boredom and the humility of dependence in *old age*. This is what *Article 41* aims at when it enjoins the State to secure public assistance in *old age*, sickness and disablement. *It was such a socialist State which the Preamble directs the centres of power Legislative, Executive and Judiciary to strive to set up.*[30]

Economic justice is not mere legal jargon but in the new millennium, it is an obligation for all to confer this economic justice on a sarker. If society is to remain, social justice in the order and economic justice is the rule of the day. A narrow pedantic approach to statutory document no longer survives. Justice, social and economic, ought to be made available with utmost expedition, so that socialistic pattern of the society as dreamt by founding pattern can thrive and have its foundation, so that future generations do not live in dark and cry for social and economic justice.[31] In the earlier portion, it was held “Socialistic concept of society should be implemented in the true spirit of the *Constitution*.” “Socialism” in the Indian *Constitution* means to crystallise a social State securing to its people socio-economic justice by interplay of Fundamental Rights and the Directive Principles.[32]

T.K. Tope in his book on *Constitutional Law of India* (3rd Edn, p 7) says: ““What is the exact connotation of the word “socialist”? Socialism is explained by G.D.H. Cole as follows:- The basic idea of socialism involves not only the socialism of essential instrument of production in the widest sense, but also the abolition of private incomes which allow men to live without rendering or having rendered – any kind of useful service to their fellows and also the sweeping away of educational preferences and monopoly which divide men into social classes. It involves in effect whatever is needed for establishment of what “socialists” call a “classless society”. Our socialism means bettering the life of people of India. Socialism is now further diluted as a result of a policy of privatisation. A globalised market economy requires efficiency and competitive pricing. “Public” ownership or government control over production has failed to generate either in India. Hence there is a legitimate move to dismantle the “licence-control Raj” and move towards an efficient and competitive economy. However, socialism in the sense of economic empowerment of every vulnerable segment of society remains.[33] We cannot bring it about unless we have greater economic empowerment of the deprived segment of our people. This is a new concept of socialism”.

An eminent economist observed that “equitable distribution of income and maximisation of production is the object of socialism under the *Constitution* to solve problem of unemployment, low income and mass poverty and to bring about a significant improvement in the national standard of living. To bring about socialism, deliberate and purposive action on the part of the State, in regard to the production as well as distribution and the necessary savings, investment, use of human skill and use of science and technology should be brought about. Changes in property relation, taxation, public expenditure, education and the social service are necessary to make a socialist State under the *Constitution* a reality”.[34]

Socialism bears interspersion in the provisions of the *Constitution*. The preambulary reference to socialism was intended to ushering in a socio-economic revolution. It is meant to end poverty, socio-economic exploitation and inequalities. It is intended to do programming of social justice and social welfarism by elimination of inequality in income and status and standards of life. It is intended to provide a decent standard of life of the working people

and to provide them social security from the cradle to grave. It is inclined to promote the objective of lessening exploitation and improving equitable distribution of income. The socialist State should secure and ensure for everyone fair opportunity for education and equality in pursuit of excellence in the chosen avocation without let or hindrance of caste, colour, sex, religion or undeserved disabilities and liabilities. Articulated in best terms, the preambulary expectation for Justice – social, economic and political – mandates the State to accord justice to all persons, to secure just and human conditions assuring decent standard of life to all. It promotes meaningful social change for all without any exception whatever. Justice must be done even to the man standing at the lowest level of the social order, the poor, the weak, the have-not.[35]

In an earlier case, the Supreme Court held that socialistic status as enshrined in the *Constitution* ought to be given its full play. It was held that law Courts exist for society and in the event of there being a question posed in the matter of interpretation of a beneficial piece of legislation, question of interpreting the same with a narrow pedantic approach would not be justified. It was held that law Courts should rise to the occasion to meet and redress the expectation of people.[36]

The Preamble to the *Constitution* in the Rodestar and guides those who find themselves in a grey area while dealing with its provision. (*Articles 23*, *38*, *39*, *43*, *43-A*). It is now well settled that in interpreting a beneficial legislation enacted to give effect to the Directive Principles of State Policy, the consideration of the Court cannot be divorced from its objectives.[37]

In the case of compassionate appointment, it was held that the denial would neither be fair nor reasonable in the context of Constitutional Philosophy. The concept of social justice is the yardstick to the justice administrative system or legal justice. It was held that whatever is beneficial for the society, the endeavour of the law court would be to administer justice having due regard to it.[38] The principle enunciated in the Preamble "socialism" was applied in the case of granting maternity benefit to female workers (muster roll) engaged by Municipal Corporation of Delhi and much emphasis was laid on the Preamble.[39]

The Directive Principles of State Policy contained in Pt IV of the *Constitution* are designed for the achievement of the socialistic goal envisaged in the Preamble. In particular, clause (1) of *Article 38* provides that the State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political shall inform all institutions of the national life. *Article 39* requires the State to direct its policy to secure that the ownership and control of material resources of the community are so distributed as to subserve the common good and the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment. In *State of Karnataka v Ranganath Reddy,*[40] three learned Judges have given a very wide meaning by holding that nationalisation is a distributive process for the good of the community and falls within it. This interpretation will be consistent with the goal of socialism now expressly stated in the Preamble, for, the socialist nationalism or State ownership is a matter of principle and its justification is the general notion of social welfare.[41] It was held that the Preamble read with *Articles 38* and *39* embodies the jurisprudential doctrine of distributive justice.[42]

In regard to industrial disputes, it was held that emphasis should be on social justice, which is founded on the basic ideal of socio-economic equality as enshrined in the Preamble.[43]

Economic empowerment is a fundamental right of weaker sections of the people; in particular the scheduled caste and scheduled tribes, ensured under *Article 46 of the Constitution* as a part of social and economic justice envisaged in the Preamble of the *Constitution* as the State is enjoined to promote their welfare effectuated under *Article 38*.[44]

Establishment of the egalitarian social order through rule of law is the basic structure of the *Constitution*. Fundamental rights and Directive Principles are the means, as two wheels of the chariot, to achieve the above object of democratic socialism. The word "socialist" used in the Preamble must be read from goals. *Articles 14*, *15*, *16*, *17*, *23*, *38*, *39*, *46* and all other cognate articles seek to establish, *i.e.* to reduce inequalities in income and status and to provide equality of opportunities and facilities. Social justice enjoins the Court to uphold the

Governments' endeavour to remove economic inequalities, to provide decent standard of living to the poor and to protect the interests of the weaker section of the society so as to assimilate all the sections of the society in a secular integrated socialist Bharat with dignity of person and equality of status to all.[45]

It was held that after inclusion of the word "socialist" in the Preamble, was clearly to set up a "vibrant, throbbing welfare society" in the place of a feudal exploited society. The Court must strive to give such an interpretation as will promote the march and progress towards socialistic, democratic state".[46]

Greater concern must be shown to improve the condition of poor population of the country and every effort should be made to allow them as much benefit as may be possible after insertion of words "Socialist" in the Preamble was accepted by the Supreme Court in *Sohan Singh v New Delhi Municipal Committee*.[47] But it was further held that the *Constitution* as it originally was committed to economic justice and welfare of the needy. It was further held that for that reason, other provision of the *Constitution* cannot be ignored. Addition of the word "Socialism" is to alienate inequalities in income and status and standard of life. The emphasis is on economic equality in a socialist welfare society and while considering whether any classification is consistent with the socialist goal, set out in the Preamble, must also be taken into consideration.[48]

While considering the scope of citing English decision and other foreign journals, (in a matter coming under *Companies Act*) a learned Judge of Supreme Court (Bahaml Islam, J.) held "the case cited may be good law for England with altogether a different system of economy; but is abhorrent" to India especially after the introduction of "socialist" concept in the Preamble to our *Constitution*.[49]

The Supreme Court has also laid emphasis on "social justice" so as to attain substantial degree of social, economic and political equality. Social justice and equality are complimentary to each other.[50]

It was held that socio-economic objectives set out in the Preamble, *Articles 23*, *24*, and Pt IV especially *Article 43-A* clearly mandate that the management should not be left entirely in the hands of suppliers of capital, but the workers who supply labour should also be given an equal right to participate in the management.[49]

The institution of marriage is one of the second social institutions to bring harmony and integration in social fabric. Inter caste marriages and adoption are two important social institutions through which secularism would find its fruitful and solid base for an egalitarian social order under the *Constitution*. Equal protection provisions under *Articles 14*, *15*(1), 16(1) should operate consistently with *Articles 15*(4), 16(4), 38, 39, 46 and 335 so as to provide affirmative action for Dalits, Scheduled Castes, Tribes and OBC's.[51] Dalits, (SC) and Tribes are victims of social injustices, practice of untouchability and segregation from mainstream of national life. The object of protective discrimination as envisaged in Preamble, *Articles 15*(4), 16(4), 16(4-A) is to integrate them into national mainstream, so as to establish an integrated social order with equal dignity of person in which justice, social, economic and political – are enjoyed by them in equal measures with general member of society.[52]

> In regard to policy of reservation, it must be considered from the social objective angle, having regard to Constitutional Scheme and not as a political issue. Even if the caste system has got struck in society, if any legislation is passed to do away with the civil effect thereof, it has to be in accordance with Constitutional Scheme. Reservation to a backward class is not Constitutional mandate, but a prerogative of the State.[53]

12. State Socialism or nationalisation.

In Political Science, the word Socialism has many facets and includes State Socialism or collectivism which means that all means of production should be owned by the State or brought under State control. It is in this

sense that the word “Socialist” appears in *Article 1* of the *U.S.S.R. Constitution* of 1972 and *Article 1 of the Constitution* of *China*, 1982.[54]

As to what is meant by the word, it would be useful to refer to *Article 10* of the 1972-*Constitution* of the *U.S.S.R.*[55] :

> The foundation of the economic system of the USSR is socialist ownership of the means of production in the form of state property (belonging to all the people), and collective farm-and-co-operative property.
>
> No one has the right to use socialist property for personal gain or other selfish ends.

Article 6 of the 1982-*Constitution* of China, similarly, says –

> The basis of the socialist economic system of the People’s Republic of China is socialist public ownership of the means of production, namely, ownership by the whole people and collective ownership by the working of the people.

This means the *total exclusion* of private ownership or property in the means of production. That the word “Socialist” was not intended in this sense, in India by the *Constitution* (42nd Amendment) Act is evident from the fact that it did not abolish private property. In the original *Constitution*, the right to individual ownership was guaranteed by *Articles 19*(1)(f) and *Article 31*. Even though these provisions were removed from the list of Fundamental Rights by the *Constitution* (44th Amendment) Act, 1978, the right of an individual to own property was not substituted by State ownership but was only brought under legislative control, be will as clear from the new provision in *Article 300A*, which was inserted by the same 44th Amendment Act :

No person shall be deprived of his property save by authority of law.

12.1 *Excel Wear v UOI.*

In short, the system of private ownership was not abolished. This was realised by Untwalia, J., speaking for a *Constitution* Bench in 1979[56], when he said that the insertion the word “Socialist” in the Preamble–

> ……may *enable* the Courts to ban more and more in favour of *nationalisation* and State ownership of industry…… But so long as the private ownership of an industry is recognized and governs an overwhelmingly large proportion of our economic structure, is it possible to say that principles of socialism and social justice can be pushed to such an extreme as to ignore completely… the interests of the private owners of the undertaking ?[57]

The answer was that the two interests of the State and of the individual had to be reconciled and adjusted.

12.2 *State of TN v Abu.*

A more pronounced step towards nationalisation was taken by another Constitution Bench in 1984, by holding that, read with Article 39(b) which was in the Constitution since 1949, it would be in the public interest to completely nationalise a particular industry or business, relying on the word "distributed" in that provision.[58]

12.3 a critique

The author *is* of the opinion that from the standpoint of legal interpretation the view taken by the Supreme Court that the word "socialism" in the Preamble along with Article 39(b)-(c) would warrant *nationalisation* of material resources was not sound; it may be that the Judges of the Supreme Court have their own views, individually, as regards socialism but their individual views cannot override canons of legal interpretation. Had nationalisation been the goal of the Indian economic system, there was nothing to prevent the makers of the Constitution to insert a clear provision to that effect in Pt IV, instead of the dubious provision in Article 39(b)-(c) which speaks of "*distribution* of material resources" and not nationalisation.

It is obvious that the Judges who saw the seeds of nationalisation in the mere insertion of the word "Socialism" in the Preamble were carried by their *a priori* notions in favour of State Socialism. What will they now say after the adoption of the policy of "liberalisation" by the Rao Government in 1991, which has not only led to the privatisation of State undertakings such as the State Bank of India, but also opened the doors for foreign industries to compete with State owned or controlled industries in India ? Even the ideology of State Socialism has fallen into disrepute since the disintegration of the *U.S.S.R.* Will the activist Judges of the Supreme Court now subvert their process of interpretation to hold that the word "Socialism", read with Clauses (b) and (c) of Article 39 does *not* mean State Socialism or Nationalisation?

13. Socialistic pattern of society

When Pandit Nehru spoke of "socialistic pattern of society", he had before him Article 39(b)-(c) but he did not understand that provision to mean nationalisation. Between that time and 1984, nothing had happened to the Constitution excepting the insertion of the word "socialism" in the Preamble. In the ultimate analysis, therefore, the Judges who decided the under-mentioned cases[59] had, therefore, nothing new to rely upon, excepting the word "socialism" in the Preamble. But as this Author has been consistently repeating, anything in the Preamble cannot add any substantive power which is not already contained in the substantive provisions of the statute or the Constitution.

Learned author GRANVILLE AUSTIN in his book,[60] while narrating "Which Road to Social Revolution" says: "What was of greatest importance to most Assembly members, however, was not that socialism be embodied in the Constitution, but that a democratic constitution be embodied with a socialist bias be framed so as to allow the nation in the future to become as "socialist" as its citizens desired or as its needs demanded. Being in general, imbued with the goals, the humanitarian bases and some of the techniques of social democratic thought, such was the type of constitution that Constituent Assembly members created". (At pp 41 & 42, the learned author has narrated the various views of socialism by political parties, PANDIT NEHRU and SARDAR PATEL, *etc.*). According to PANDIT NEHRU, the road to socialism was, "Service of India means the service of the millions who suffer. It means the ending of poverty and ignorance and disease and inequality of opportunity. The ambition of the greatest man of our generation has been to wipe every tear from every eye. That may be beyond us, but as long as there are tears and suffering, so long our work will not be over". (See at p 26).

Of course, the Supreme Court has held that nationalisation would be justified by the Directive in Article 39(b)[61]. But if that be so, there was no need of inserting the wide political term "socialist" in the Preamble. It is evident that this has been done to serve political purposes.

Now that nationalisation has come to be discredited in its home countries in the West and India has taken a somersault in favour of economic liberalisation;[62] would our Judges now change their interpretation and held that their previous interpretation was wrong?

GRANVILLE AUSTIN in his book *The Indian Constitution – Cornerstone of a Nation*, 9th Impression, 2005) after

discussing the views expressed by various members of Constituent Assembly said: “What was of greatest importance to most Assembly members, however, was not that socialism be embodied in the *Constitution*, but that a democratic *constitution* with a “socialist bias” be framed, so as to allow the nation in the future to become as socialist as its citizens desired or as its needs demanded. Being in general, imbued with the goals, the humanitarian bases and some of the techniques of social democratic thought, such was the type of *constitution* that Constituent Assembly members created”. (at p 43). At page 51, the learned author further says: “In the Directive Principles of State Policy, however, one finds an even clearer statement of social revolution. They aim at making the Indian masses free in the positive sense, free from passivity engendered by centuries of coercion by society and by nature free from the abject physical condition that had prevented them from fulfilling their best selves”. At page 52, it is further said: “By establishing these positive obligations of the State, the members of the Constituent Assembly made it the responsibility of future Indian government to find a middle way between individual liberty and the public good. Between preserving the property and the privilege of the few and bestowing benefits on the many in order to liberate the powers of all men equally for contribution to the common good”. According to the learned author, the Indian *Constitution* is first and foremost a social document. The majority of its provisions are either directly aimed at furnishing the goals of social revolution or attempt to foster this revolution by establishing the condition necessary for its achievement. Yet, despite the permeation of the entire *Constitution* by the aim of national renaissance, the core of the commitment to the social revolution lies in Pts III & IV, the Fundamental Rights and the Directive Principles of State Policy. These are the conscience of the *Constitution*.

While tracing the history of *Article 38* and *43* of the *Constitution* (included in Pt IV), Supreme Court said: “The framers of the *Constitution* were very much alive to the plight of the working class and particularly the unorganised labour employed in factories and other establishments. They were also conscious of the fact that the goals of justice – social, economic and political – and equality of status and of opportunity proposed to be incorporated in the Preamble of the *Constitution* will remain illusory for the weaker sections of the society unless the State takes affirmative legislation and administrative measures for ameliorating the conditions of those sections including the workers employed in factories, *etc.* Therefore, a specific provision was incorporated in Pt IV of the *Constitution* with the title “Directive Principles of State Policy”, casting an obligation upon the State to apply that principle in making laws. Regarding *Article 43*, the court said that the said article casts a duty on the State to make efforts to secure by suitable legislation or economic organisation or in any other way, to all workers, agricultural, industrial or otherwise, work, a living wage, condition of work and in particular social opportunities. The State is required to make special endeavour to promote cottage industries on an individual or co-operative basis in rural areas. The court therefore held that *Employees Provident Fund* Ordinance and the subsequent Act were enacted to achieve the mandate of *Article 38* and *43*, and the same is intended to give social security to the workers employed in factories and other establishments.[63] A Scheme known as “Members of Parliament Local Area Development Scheme (MPLAD Scheme) was formulated for enabling Members of Parliament to identify small works of capital nature based on locally felt needs in their constituencies. The objective is to enable the Members of Parliament to recommend works of development nature with emphasis on the creation of durable community assets based on locally felt needs to be taken up in their constituencies. The Supreme Court held that the scheme was valid since it is intended to achieve economic democracy.[64]

The principles enunciated in Directive Principles have been characterised as “basic to our order” as they seek to build a socially just society. These principles have been drafted in a general and flexible language and leave enough leeway to the various governments in the country to frame their policies from time to time in accordance with the contemporary needs of the society to achieve the goals set out therein. At the same time, these principles do not inspire any socio -economic philosophy. These principles have played a crucial role in legislative and administrative policy-making in the country. They have inspired the idea of a socialist pattern of society; the process of planning has been oriented towards achieving the goals contained in them; agrarian economy has been reconstructed, right to property has been much diluted. The insertion of *Article 31-A* by the First Amendment with retrospective effect was intended to abolish the zamindari system and various similar tenures. There were various challenges to *Article 31-A* even thereafter and finally by 44th Amendment with effect from 20 June 1979, the State was empowered to acquire estates, even without making any provision for payment of compensation and fundamental right to property was also taken away and the courts were also prevented or had no power to examine the validity of any legislation on the ground that it violates *Article 14*, *19* and *31*. All these amendments were done with a view to enable the State to achieve the object of social welfare. The constitutional validity of *Article 31-A* was upheld by the Supreme Court in the famous *Minerva Mils Ltd v UOI,*[65] and *Waman Rao v UOI,.*[66] With effect from 20 June 1979 (the *Constitution* 44th Amendment Act)

Article 19(1)(f) and 31 were deleted and *Article 300* -A was added. Various judicial pronouncements on the extent of right to property in the context of land reform legislation made it difficult for Parliament to implement certain Directive Principles with the result that there were difficulties in securing the ideal of socio- economic justice. The difficulties were sought to be removed by amendment to the *Constitution* particularly *Article 31* and other relevant articles from time to time.

The Supreme Court has also pointed out that taxation is also a tool in achieving social objective.[67]

The Court held that socialist pattern of society in the *Constitution* has to be attributed its full meaning.[68] The *Constitution* seeks to establish a secular socialist democratic republic in which every citizen has equality of status and of opportunity, to promote among the people dignity of the individual, unity and integrity of the nation, transcending them from caste, sectional, religious barriers, fraternity among them in an integrated Bharath. The emphasis therefore is, on a citizen to improve excellence and equal status and dignity of the person. With the advancement of human rights and constitutional philosophy of social and economic democracy in a democratic polity to all citizens on equal footing, secularism has been held to be the basic feature of the *constitution* and egalitarian social order is its foundation. Unless free mobility of the people is allowed, transcending all sectional, caste, religious or regional barriers, establishment of secular socialist order becomes difficult.[69] Democratic socialism aims to end poverty, ignorance, disease and inequality of opportunity.[70]

JUSTICE CHINNAPPA REDDY in his inaugural address in the Seminar on *Socialism – Constitution of the Country today* said: “All socialistic roads lead to KARL MARX, who was first to provide a scientific, logical, coherent, systematic history based on Socialist theory for the benefit of the working class movement. He replaced the vague dreams of earlier socialists with the laws of history and science and fashioned tools for waging the struggle to end all class struggles.

It should be obvious that one cannot conceive a Socialist State where the right to work, the right to decent wage and right to education, particularly scientific education are not guaranteed. It is equally obvious that we cannot conceive of a socialist State where what is sought is not the elimination of private property and ownership and the complete control of all the means of production of wealth and not mere prevention of concentration of wealth and the means of production. Nor is it possible to contemplate a socialist State where workers are not involved and are not required to participate in the decision -making managerial and planning activity. Unless the basic tenets of socialism are duly and appropriately incorporated into the *Constitution*, it is difficult to contemplate our *Constitution* as the *constitution* of a socialist State. The mere incorporation of the word “Socialist” in the Preamble of the *Constitution* does not make it a Socialist *Constitution*. It may be and indeed it is, a liberal *Constitution*, but liberalism and scientific socialism are far removed from each other. Liberalism is of the past. It is a useful enough ideological weapon in the struggle of the bourgeois against feudal forces, but it is not sharp enough or scientific weapon to be successfully employed in the proletariat’s evolutionary struggle against capitalist forces”.

In *Dalmia Cement (Bharat) Ltd v UOI,*[71] the Court held that the Preamble to the *Constitution* is the epitome of the basic structure built in the *Constitution* guaranteeing justice – social, economic and political. The court further observed that social justice is the comprehensive form to remove social imbalances by law harmonising the rival claims or the interests of different groups and/or sections in the social structure or individuals by means of which alone it would be possible to build up a Welfare State. The ideal of economic justice is to make equality of status meaningful and life worth living at its best removing inequality of opportunity and of status – social, economic and political. Social democracy means a way of life which recognises liberty, equality and fraternity as principles of life. They are the trinity. One cannot divorce from the other. Without equality, liberty will prove supremacy of the few over many. Equality without liberty would denude the individual of his initiative to improve excellence. Without fraternity, liberty and equality would not mature as their natural habitat. Social and economic justice is a constitutional right enshrined for the protection of society. The right to socio-economic justice in the trinity, the Preamble, Fundamental Rights and Directive Principles is to make quality of life of disadvantaged people meaningful. The Court held that social and economic justice in the context of Indian *Constitution* must be understood in a comprehensive sense to remove any inequality and to provide equal opportunity to all citizens in social and economic activities and in every part of life. Social Justice forms the

basis of progressive stability in the society and human progress and the courts must strive to give harmonious interpretation to propel forward march and progress towards establishing an egalitarian social order.[72]

In *Atam Prakash v State of Haryana,*[73] the Court declared that the word "Socialist" introduced into the Preamble of the *Constitution*, became the centre of hopes and aspirations of people, it is a beacon to guide and inspire all that is enshrined in the articles of the *Constitution*, and clearly sets up a "vibrant, throbbing socialist Welfare Society, in the place of feudal exploited society.

It was held in *Air India Statutory Corp v United Labour Union,*[74] that the term "Socialist" has been brought in the *Constitution* by the 42nd Amendment to the Preamble to establish a egalitarian social order through rule of law as its basic structure. It was further observed that the concept of social justice which the *Constitution of India* engrafted consists of diverse principles essential for the orderly growth and development of personality of every citizen. "Social Justice" is thus an integral part of justice in the generic sense. Justice is the genus of which social justice is one of its species. Social justice is a dynamic device to mitigate the sufferings of the poor, weak, dalits, tribals and deprived sections of society, and to elevate them to the level of equality to live a life with dignity of person. The aim of social justice is to attain substantial degree of social, economic and political equality. If a law is made to further socio -economic justice, it is *prima facie* reasonable and in public interest. In other words, if it is in negative, it is unconstitutional.[75] It is the duty of the State under our *Constitution* to function as a Welfare State and look after the welfare of the citizens.[76] In *Bhuwalka Steel Industries Ltd v Bombay Iron & Steel Labour Board,*[77] the Court recognised and accepted the theory (enunciated by Prof. Mohd. Yunus of Bangladesh) of social business as against the business to earn maximum profit and it would be better if the employers could realise their social obligation, more particularly towards have-nots of the society.[78]

The Supreme Court has observed that blinked vision of development, complete apathy towards those who are highly adversely affected by the development process and cynical unconcern for the enforcement of laws lead to a situation where the rights and benefits promised and guaranteed under the *Constitution* hardly even reach most marginalised citizens.[79]

JUSTICE SUJATHA V. MANOHAR (Retd. Judge of Supreme Court of India and revising author of T.K. Tope's *Constitutional Law of India* (3rd Edn, 2010, p 444) has said: "In the last ten years, particularly after the disintegration of Soviet Republic and the emerging world consensus on the universality of human rights, whether civil and political or economic, social and cultural, the old concept of socialism and Welfare State are rapidly nearing obsolescence. A State is increasingly perceived as duty bound to promote, protect and enforce all human rights, all within State's umbrella. And, all human beings are entitled as of right to enjoy all human rights, but consistent with human rights of others. With this, the doctrine of liberal democratic state protecting the rights of its diverse groups and in functioning as an inclusive democracy is intertwined, mainly because of the historic background of civil and political rights."

The entire concept of Welfare State has therefore now undergone a sea change. A State is duty bound to adopt policies which promote development, it does not dispense mere benevolence. The right to development is itself a human right and entails promotion and protection of an individual's social, economic, cultural as well as civil and political right. Also human rights are increasingly perceived as inter-connected and inseparable, existing within the inclusive democracy. Entitlement of these rights and the corresponding obligations on the part of individuals as well as groups and the State to respect these rights are considered essential for human well-being. Fundamental rights and Directive Principles – civil and political rights as well as economic, social and cultural rights – are increasingly perceived as inter-connected human rights which can be interpreted, expanded and applied by the court in the light of international human rights law. A new dimension has thus been added to the interpretation of fundamental rights and directive principles as well as debates about the justiciability of Directive Principles. Pts III & IV are thus increasingly and inextricably linked and supporting each other. Both are essential for the well-being of the people and the rights in these parts as well as rights laid down in international human right treaties, conventions, covenants, *etc.* must be respected and upheld by the administration and judiciary in a manner laid down in the judgment of the Supreme Court. It is interesting to find that the language of rights, entitlement and corresponding duties express very well the constitutional concept of fundamental rights, directive principles and fundamental duties.

14. "*Secular*".

1. The object of inserting this word, as explained in the Stateman of Objects and Reasons[80] was—

> to spell out expressly the high ideas of socialism, secularism and the integrity of the nation,

because—

> "these institutions have been subjected to considerable stresses and strains and vested interests have been trying to promote their selfish ends to the great detriment of public good."[80]

The object of the Government, in making this amendment, was to make explicit what was *already provided* in the *Constitution*, but which, in the absence of such emphasis was going to be denigrated by "vested interests' "to promote their selfish ends". So far as "secularism" is concerned, the relevant provisions in the *Constitution* were in *Articles 25-30*, *inter alia*, and the possible imputation underlying the Objects and Reasons was that the majority community (*i.e.* the Hindus) were oppressing the religious minority (*i.e.* the Muslims) trampling over the guarantee of equality of all religions in *Article 25 et seq*

15. Dictionary meaning.

One of the Dictionary meanings attributed to the word "secualrism" is—'A system of doctrine and practice that *disregards* or *rejects* any form of religious faith and worship". The other meaning is—'The belief that religious and ecclesiastical affairs should not enter into the function of the State" (*Webster's New World Dictionary*).

Secularism means that the State should have no religion of its own, and no one could proclaim to make the State house are such or endeavor to create a theoretic state. Persons belonging to different religions live throughout the length and breadth of the country. Each person, whatever be his religion, must get assurance from the State that he has the protection of law freely to profess, practice and propagate his religion and freedom of consciences.[81] It was held in that case that secularism is part of fundamental law and an inalienable segment of the basic structure of the *Constitution*. It means religious tolerance and equal treatment to all religions.[82] It is a system of utilitarian ethics, seeking to maximise human happiness or welfare quite independently of what may be either religious or the occult.[83]

"Secular State" in its political context can and has assumed different meanings in different countries, depending broadly on historical and social circumstances, the political philosophy and the felt needs of a particular country. In one country, "secularism" may mean an actively negative attitude to all religions and religious institutions; in another it may mean a strict "wall of separation" between the state and religion and religious institutions. In India, the State is secular in that there is no official religion. India is not a theoratic State. However the *Constitution* does envisage the involvement of the State in matters associated with religion and religious institutions and even indeed with the practice, profession and propogation of religion in its most limited and distilled meaning.[84] In *Islamic Republic of Pakistan v Abdul Wali Khan,*[85] after referring to the Preamble of Pakistan's *Constitution*, the Supreme Court of Pakistan has said: "In a secular State, the legislature is supreme and laws are made in accordance with the will of the majority, free from outside curbs. Recently, legislation was reported to have been introduced in one of the Scandinavian countries to legalise marriage between brother and sister. This would be an impossibility in Pakistan…because of the Quranic injunction." (See Justice Fazal Karim, *Judicial Review of Public Action,*, vol I, p 42).

On 31 January 1952, PANDIT JAWAHARLAL NEHRU wrote to Chief Ministers that, "the word "secular" meant more

than the free play of all religion…and conveys the idea of social and political equality. Thus a caste-ridden society is not properly secular. Communalism means the dominance of one religious community and is thus a negation of nationalism".[86]

Secularism in India means that there shall be no discrimination between citizen and citizens on the ground of religion. (*Article 14*, *15* and *16*). It means freedom of speech and expression for all citizens (*Article 19*). Therefore, a study of different religions and their philosophy is permissible though imparting religious instructions in a State funded institution is not.[87] India is a Union of States and not an association or confederation of States. There is only one nationality *i.e.,* Indian. Every Indian has a right to go or settle anywhere in India. In order to keep the country united, it is necessary to have tolerance and respect for all communities and sects.[88]

A secular State means non –religious and not irreligious State.[89] Secularism is not an anti-religious doctrine in spite of its emphasis on absolvent of politics from religion, and theocratic society is not a solitary antonym of secular society.[90] It is a political ideology which may not strictly accept any religion as the basis of State action.[91] The teaching of Sanskrit is not against secularism.[92] It has been held that secularism is the essence of our democratic system. Secularism and brotherhood is a golden thread that runs through the entire Constitutional Scheme formulated by the Framers of the *Constitution*.[93]

"Secularism" is the basic structure of the *Constitution*. The word "secularism" used in the Preamble is reflected in the provisions of *Articles 25* to 30 and Pt IV-A to the *Constitution* containing *Article 51-A* prescribing fundamental duties. "Secularism" has to be understood as the basis of more than 50 years' experience of the working of the *Constitution*. The complete neutrality towards religion and apathy for all kinds of religious teachings in institutions of the State have not helped in removing mutual misunderstanding and intolerance *inter se* between section of people of different religions, faiths and beliefs. "Secularism" therefore, is susceptible to a positive meaning that is developing understanding and respect towards different religions. The essence of "secularism" is non-discrimination of people by the State on the basis of religious differences.[94]

The term "Secular" has advisedly not been defined presumably because it is a very elastic term not capable of a precise definition and perhaps best left undefined.[1] "Secularism" in the *Constitution* is not anti-God and it is sometimes believed to be a stay in a free society. Secularism represents faith born out of the exercise of national facilities. It enables people to see the imperative requirements for human progress in all aspects and cultural and social advancement and indeed for human survival itself. It also not only improves the material condition of human life, but also liberates the human spirit from bondage of ignorance, suppression, irrationality, injustice, fraud, hypocrity and oppressive exploitation. In other words, though the whole course of human history discloses an increasing liberation of mankind accomplished thought all is covered by the term "secularism"—per RAMASWAMY, J.) "Secularism" is more than a passive attitude of religious tolerances. It is a positive concept of equal treatment of all religions. This attitude is described by some as one of neutrality towards religion or as one of benevolent neutrality. It is absolutely erroneous to say that secularism is a "vacuous word" or a "phantom concept—per JEEVAN REDDY and AGARWAL, J.J.).

The Preamble of this *Constitution* read in particular with *Articles 25* to 28, emphasizes the guarantee of equality in the matter of religion to all individuals and groups irrespective of their faith emphasizing that there is no religion of the State itself. It is in this manner the concept of secularism embodied in the Constitutional scheme, as a creed adopted by the Indian people has to be understood while examining the Constitutional validity of any legislation on the touchstone of the *Constitution*. The concept of secularism is one facet of the right to equality woven as the central golden thread in the fabric depicting the pattern of the scheme of *Constitution*.[2] It was held in that case that "Secularism is absolute; the State may not treat religions differently on the ground that public order requires it. The principle of secularism illumines the provision of *Articles 15* and *16*. (per AHMEDI and BHARUCHA, JJ.).

The Supreme Court has held that "in a country like ours where discrimination on the ground of caste or religion is a taboo, taking lives of persons belonging to another caste or religion is bound to have a dangerous and reactive effect on the society at large. It strikes at the very root of the orderly society which the Founding

Fathers of our *Constitution* dreamt of. Our concept of secularism is that the State will have no religion. The State shall treat all religions and religious groups equally and with equal respect without in any manner interfering with their individual right of religious faith and worship…There is no justification for interfering in someone's religious belief by any means."[3]

Though not explicitly found in the unamended *Constitution* (*Constitution* before 1st Amendment), the original Framers made it clear that India was to be a secular democracy. Discrimination based on religion was prohibited by *Articles 14*, *15*(1) and 15(2), 16(1) and 16(2), 29(2) and 325. The original Framers went out of their way to ensure that minorities would be able to maintain their identity (See *Articles 25* to 30). Secularism is the constitutional goal and a basic feature of *Constitution* and any step inconsistent with this constitutional policy is, in plain words, unconstitutional.[4]

School children faithful to Jehovahs' witnesses (whether a religious denomination or such) refusing to sing National Anthem, though respectfully standing for it— cannot be held that they have shown disrespect to National Anthem and they have not violated their Fundamental Duties under *Article 51-A*(a). When the *Constitution* guarantees to all persons freedom of conscience and the right to freely profess, practice and propagate religion and when the law implies that all religions shall be equally respected, the State cannot compel anyone to join the singing of National Anthem despite his genuine conscientious religious objection, then such compulsion will be violative of rights guaranteed under *Article 19*(1)(a) and *Article 25*(1).[5]

Articles 25 to *28* of the *Constitution* deal with religion. These four Articles emphasize the secular and non-denominational nature of democracy. *Articles 25* and *26* embody the principle of religious toleration and lay emphasis on secularism.[6] But the freedom guaranteed under *Article 25 of the Constitution* is only such freedom which does not encroach upon a similar freedom of other persons.[7] The word "Secular" appears only in the Preamble of the *Constitution* and it embodies the quintessence of diverse facets of secularism and secularism is a goal as well as a process.[8]

In order to find out in which of the above two senses the word "secular" has been inserted in the Preamble to the Indian *Constitution*, we must not forget that the *Constitution of India* is a *legal* instrument which is interpreted and enforced by the Courts of law, and secondly, that the Preamble itself is not a source of substantive law, and that the connotation of the word "secular" is to be found out from the substantive provisions of the *Constitution* which deal with religion, namely, *Articles 25-30*.[9]

Thus, the first Dictionary meaning can be rejected on the threshold because instead of setting up a State which is totally unconnected with religion, *Article 25*(1) guarantees that all persons have the fundamental right to "freely profess, practise and propagate religion".[10] It is, therefore, quite clear that the *Constitution of India* does not set up an irreligious State but only that the State shall have no religion of its own, *i.e.*, a State religion, which can be imposed on its citizens – each of whom has the guaranteed right to "freedom of conscience" and "to practise his own religion". In this context it may be mentioned an irresponsible criticism from a section of uninitiated people some of whom even profess the Hindu religion, that it is anti- secular for the President or the Prime Minister of India to pay homage to Hindu shrines. These people shut their eyes to *Article 25*(1) which does not say that a person ceases to be a "person" and must forget his personal religion as a condition for his becoming the Head of the State. It becomes unsecular only if, as a Head of the State, he shows any *discrimination* in favour of Hinduism or against other religions. To the contrary, those very Hindu heads of State who visit Hindu shrines, also participate in Muslim religious functions and even hold "*iftar*" dinners at their official residence, to celebrate the *id.*

If the word "secular" in the Preamble cannot add anything which was not already in the enacting provisions of the *Constitution*, the insertion of this word becomes a mere confusing surplusage, which can and *should be omitted*, by a subsequent amendment. The entire matter should be left to judicial interpretation of *Articles 25-30*.

Based on the concept of "*Sarva-Dharma-Sambhava*", a definition of the expression "secular" was attempted in

the 45th Amendment Bill of the *Constitution* which was ultimately passed as the *Constitution* (44th Amendment) Act 1978. The definition could not be adopted because of inadequate support in Rajya Sabha. It read: "In the Preamble to the *Constitution* – (1) the expression "Republic" as qualified by the expression "secular" means a republic in which that there is equal respect for all religions." Interestingly, the Congress party which was ruling at that time, blocked the adoption of the definition introduced in the *Constitution* (80th Amendment) Bill 1993 which proposed to insert a new Article 28-A on the lines of that definition. It read: "The State shall have equal respect for all religions". The Amendment was, however, not pursued and passed.

If the ideal of "*Sarva-Dharma-Sambhava*" means unrestricted use of religion in politics or matters of religion, so long as religion is not used for creating ill-will among different communities, the secular image of the State will remain questionable because the religion of the majority community will be much visible in public life rather than religions of minorities. The State must, therefore, keep itself away from religion except for the purpose of its regulation when it comes in the way of other rights of the individual and constitutional values.[11] Acceptance of India's composite culture is at the heart of the concept of secularism. Without it, secularism is reduced to a husk.[12]

Article 27 is one of the essential consequences of secularism. If the State extracts money through a tax whose proceeds are assigned for the benefit of a particular religion, obviously the State favours or patronises and supports that particular religion. But, government providing subsidy on airfare for Haj pilgrims is not violative of *Article 27* since only a small portion of tax proceeds is utilised for providing some convenience or facilities or concession to any religious denomination is not violative of *Article 27*.[13] However, in a subsequent decision, the Court held that subsidy to Haj pilgrims is not in conformity with the tenets of Islam and Haj pilgrimage ought to be performed with one's own means. The Court held that despite the fact that the same has been held as constitutional, the same has to be discontinued within a period of ten years.[14]

Secularism inserted under *Constitution* by 42nd Amendment, 1976 does not mean the *Constitution* of an atheist society.[15]

Dr. Radhakrishnan, former President of India in his book *Recovery of Faith* explained secularism as follows:- "When India is said to be a secular State, it does not mean that we reject the reality of an unseen spirit or the relevance of religion to life or that we exalt irreligion. It does not mean that secularism itself becomes a positive religion or that the State assumes divine prerogatives. We hold that not one religion should be given preferential status…This view of religious impartiality or comprehension and forbearance has a prophetic role to play within the National and International life". (at p 184).

16. Propositions emerging from Articles 25-30.

2. The propositions which emerge from the provisions in *Articles 25-30* and which canalise the meaning of "secularism" under the Indian *Constitution* are as follows :

16.1 There shall be *no "State religion"* in India

A secular State is founded on the idea that the State is concerned with the relation between man and man and not with the relation between man and God which is a matter for individual conscience.[16]

In short, it is a State which observes an attitude of neutrality and impartiality towards all religions [para 183]16. It does not extend patronage to any particular religion or against any particular religion [para 183].[16]

The State will neither establish a religion of its own[17] nor confer any special patronage upon any particular religion. It follows from this that –

(a) the State will not compel any citizen to pay any taxes for the promotion or maintenance of any particular religion or religious institution [*Article 27*];

(b) no religious instruction shall be provided in any educational institution *wholly provided* by State funds [*Article 28*(1)];

(c) even though religious instruction be imparted in educational institutions *recognised* by or *receiving aid* from the State, no person attending such institution shall be compelled to receive that religious instruction without the consent of himself or of his guardian (in case the pupil be a minor). In short, while religious instruction is totally banned in State-owned educational institutions in other denominational institutions it is not totally prohibited but it must not be imposed upon people of other religion without their consent [*Article 28*(3)].

In *Indira's case*[18], CHADRACHUD, J., explained the basic feature of secularism to mean that—

> The State shall have no religion of its own[19] and all persons shall be equally entitled to the freedom of conscience and the right freely to profess, practice and propagate religion [para 665].[19]

It is to be noted that all this was said (in 1993) at a time *when there was no word* "*secular" in the Preamble*, and on the assumption that secularism followed from the enacted provisions of the *Constitution*, such as *Article 25*.[20]

The concept of secularism to put it in a nutshell is that the "State" will have no religion.[21]

16.2 Equality of treatment as between all religions

This proposition[22] stems from the premise that the State has no religion of its own.

A Single Judge of the Andhra High Court[23] has held that it is not uncontitutional for the Government or public bodies to hold religious ceremonies in State functions such as the inauguration of new institutions or to display the photos etc. of religious leaders or Gods in Government offices. This has been justified as a legitimate exercise of the fundamental right under *Article 25*(1) of the particular individuals who organise such functions.

But this proposition appears to be out of tune with the Supreme Court decision[24] that the attitude of the State should be one of neutrality towards all religions.

III. This principle of equality as between all religions is "more than a passive attitude of *religious toleration*. It is a *positive* concept of *equal treatment* of all religious" [para 304].[25]

From the above emerge the corollaries that –

(i) "the State shall not discriminate against any citizen on the ground of religion only" [vide *Article 15*(1) and *16*(2)].[26]

(ii) generation of a sense of security in the followers of all religions.[27]

building up of a harmonious multi-religious society, of which inter-caste marriage and adoption are a means to achieve.[28]

16.3 Equal freedom of each individual

Article 25 guarantees to every individual the freedom to profess and practise his own religion, and it cannot be contended that "if a person is a devout Hindu or a devout Muslim, he ceases to be secular".[29]

3. There is an elaborate discussion as to what is secularism in the 9-Judge decision in *Bommai's case*,[30] as follows :

(a) The word "secular", which was inserted in the Preamble by the 42nd Amendment, "highlights the fundamental rights guaranteed by *Articles 25* to 29".[31]

(b) It means equal treatment of all religions (paras 151, 304).[30]

It was held in that case that religion and secularism operate at different fields. Religion is a matter of personal belief and mode of worship and prayer, personal to the individual while secularism operates on the temporal aspect of the State activity in dealing with the people professing different religious faiths. The more devoted a person in his religious belief, the greater should be his sense of heart, spirit of tolerance, and adherence to secular path. Secularism is not antithesis of religious devoutness. (per RAMASWAMY, J.). Learned Judge held that freedom of conscience means that a person cannot be made answerable for rights of religion. It means that no man possesses a right to dictate to another what the religion he believes in, what philosophy he holds, what shall be his politics or what views he shall accept *etc.* It was further held that "Rule of Law" has been chosen as an instrument of social adjustment and resolution of conflicting social problems to integrate diverse sections of society professing multi-religious, faiths, creed, caste or region fostering among them fraternity, transcending social, religious, linguistic or regional barriers. Citizen is either by birth or by domicile and not as a member of religion, caste, sect, region or language.

(4) © Secularism "does not mean that the State has no say whatsoever in matters of religion. Law may be made *regulating* the *secular affairs* of temples, mosques and other places of religions worships" [para 304].[32]

This is why the property belonging to a religious community is *not* immue from the power of compulsory acquisition belonging to the State,[33] along with its adjacent properties, if necessary [para 49][34]; or from the general law of limitation or adverse possession [paras 80-81].[34]

4. The decision in *Bommai's case*[35] has been followed by a *Constitution* Bench in *Ismail case*.[34] There is, however, one observation in the minority judgement of BHARUCHA and AHMADI JJ., which appears to be *too wide*. Even while referring to the provision in *Article 25*(1) [para 143]34, that "exercise of the right of the individual to profess, practise and propagate religion is subject to public order", in the next sentence, BHARUCHA J., observes—

> "Secularism is *absolute*; the State *may not treat religions differently* on the *ground that public order requires it* [para 143].[36]

Just as the State cannot shut its eyes to the demolition of an object of religious worship of one community by members of another community merely because that is done on the ground of religion [para 52][37], for the same reason, the State should not play the role of a mute observer when, in the name of observing the religious

ceremony of *Muharram*, fanatic members of that community parade through city highways in open trucks, brandishing real swords, year after year, and throwing the gauntlet in the face of the keepers of the peace, by invading their very headquarters;[38] or squatting on public streets for saying prayers,[39] causing a total blockade of the traffic. Muslim graves coming up unauthorisedly and illegally on another's land can be shifted in the larger interest of society for maintaining public order. Such action of shifting of graves would not be non-Islamic and will not be violative of *Articles 25* and *26*. In that case, the dead body of a saint buried in a school compound was directed to be removed and the Court rejected the plea that once a Muslim is buried, the same cannot be opened and re-buried.[40] Under the guise of religious freedom, unauthorized religious construction made in public places was directed to be removed and the State authorities were directed to prevent such structures from coming up in future.[41]

Another loose observation in the majority judgment of Verma J. [para 37]37, which is debatable is:

> ……the concept of secularism embodied in the constitutional scheme *as a creed* adopted by the Indian people has to be understood while examining *the constitutional validity of any legislation* on the touchstone of the *Constitution*.

The Author submits that if a Court has to strike down a law as anti-secular, it will do so only if it can hold that law is violative of any of the Articles from 25 to 29,[42] - and not because of any supposed "creed". Courts of *law* should have nothing to do with any supposed *spirit* or "creed", or the *policy* behind a provision,[43] which cannot constitute limitations upon the powers of the Legislature [under *Articles 245-246*], as a ground for *invalidating* a statute.[44]

The doctrine of "basic features" was invented to strike down an aggressive amendment of the *Constitution* [45] and not for invalidating an *ordinary law*, so long as the Court cannot find out a specific provision of the *Constitution* which the law has clearly invaded.

The Preamble and *Articles 25* to 30 clearly shows that the object behind *Constitution of India* into a secular State is not to prevent the practice of religion, but to provide liberty, freedom, equality and fraternity between persons belonging to different religions.[46]

The concept of secularism is not merely a passive attitude of religious tolerance. It is also a positive concept of equal treatment of all religions. A secular state does not extend patronage to any particular religion. The State is neither pro any particular religion nor anti any particular religon. The State maintain neutrality in matters of religion and provides equal protection to all religions subject to regulation of secular parts.[47]

The concept of secularism is not static; it is elastic in connotation. In this area, flexibility is most desirable as there cannot be any fixed views on this concept for all time to come. The Courts decides from time to time the contours of the concept of secularism and enforce it in practice.[48] Secularism merely means equal status of all religions without any preference in favour of or discrimination against any one of them. It does not mean an atheist society.[49]

17. What is not secular.

B. Conversely, what is contrary to the enacting provisions of the *Constitution* cannot be committed in the name of secularism.

17.1 Article. 14.

I. The foremost of such provisions is *Article 14* which forbids discrimination by the State against any person or persons. It follows that in the name of secularism or maintenance of communal amity, the State cannot do anything which discriminates in favour of or against a particular religion which would violate *Article 25*(1), read with *Article 14*.[50]

17.2 Articles 15-16.

II. *Articles 15*(1)-(2) and 16(1)(2) of the *Constitution* prohibits discrimination as between one citizen and another solely on the ground of "religion".[51]

This is subject to the protective discrimination in favour of "backward classes", under clause (4) of *Articles 15* to 16, or in favour of minorities under *Articles 29*(2); 30(1A). Such discrimination has been justified by the Supreme Court [52] on the ground that the principle of equality does not mean identical treatment of "unequals" but "relative equality *i.e.* to treat equally who are equally placed. Hence, in order to achieve "real" equality, it is necessary to provide protective measures to promote the advancement of the weaker sections in the society, who are socially, economically and educationally backward, in order to bring them to the level of the society.[52]

If this test of backwardness is satisfied, such reservation would not be bad simply because those classes belong to religious minorities.[53]

If, however, such protective measures are pursued by the State beyond the terms of the Constitutional provisions as interpreted by the Supreme Court, in the name of the "sentiments" of the religious minority, such action would be hit by the equality provisions and other fundamental rights belonging to the rest of the people.[54]

For the same reason, any claim of any minority for additional privileges beyond those guaranteed by *Constitution* cannot be justified on the mere ground of the "sentiments" of the members of that community.

An instance to the point is the demand that Muslim women using *burkhas*, should be exempted from offering their photos for the preparation of identity cards asked for by the Election Commission with the object of preventing false votes. The Election Commission has rightly rejected this demand[55] on the ground that if such women can appear before the camera for obtaining a passport, how can they object (in the name of "sentiments') to furnish *photos* for exercising their statutory right to vote, which can be exercised only in accordance with the provisions of the law of election?

17.3 Articles 19(1) and 25(1).

III. The State cannot prohibit Hindu religious processions or even issue an order under *section 144 of the Cr.P.C.* against both[56] the parties, when it is evident that the Muslim oppositionists were interfering with the legitimate exercise of the fundamental rights of the Hindu processionists under *Articles 19*(1)(b) and 25. Once the right of a Hindu community to take out a religious procession is established, it cannot be interfered with by the State on the ground that it would offend against the "sentiments of another community".[55]

IV. The State cannot allow Muslim processionists to brandish open swords in trucks, or fail to take proper steps against such law-breakers even when they invade the Police headquarters at Calcutta[57], while prohibiting Hindu processionists to carry tridents[58]; or offer tax rebate o concession to *Haj* pilgrims to the extent of 6 crores[59] while taxing *Ganga Sagar* pilgrims [vide *Article 27*].[60]

17.4 Article 25(1) Mass conversion.

V. Any State action which allows or upholds the conversion of Hindus by fraud, allurement or inducement, committed by members of proselytising religions, e.g., Christianity[61] and Islam, offends against *Article 25*(1) and cannot, therefore, be justified in the name of secularism. In the Author's opinion, the word "propagate" cannot be interpreted to provide a fundamental right to convert against the word "conscience" which enunciates a right *not to be converted*, except under one's free will.[62]

It was held in that case, freedom of religion enshrined in *Article 25* is not guaranteed in respect of one religion only, but covers all religions alike and it can be properly enjoyed by a person if he exercises his right in a manner commensurate with the like freedom of persons following other religions. What is freedom for one, is a freedom for another, in equal measures.

Direct proof of allurement or inducement is difficult to secure, but it can be palpably inferred when *mass* conversion of thousands is effected (whether that is into Buddhism or Islam or Christianity) and thereafter to go on, collectively, to press for further privileges, such as, renaming an administrative area according to the *religion* of the converts, or to insist that members of Scheduled Castes or Tribes should be entitled to the privileges afforded to the S.C. and the S.T. even after their conversion into some religion which secured the conversion on the assertion that the latter is not founded on casteism, and though the Supreme Court has repeatedly condemned such claim.[63]

Under the guise of religion, no one is entitled to interfere with another's fundamental right. *Articles 25* and *26* of the *Constitution*, which emphasizes the secular nature of Indian democracy is also subject to "public order, morality and health". Hence no one can insist that religions can be preached only through prayers performed by voice amplifiers and by beating drums. Fundamental right of a person have to co-exist in harmony with the exercise of another fundamental right by others and also with reasonable and valid exercise of power by the State in the light of Directive Principles of State Policy in the interests of social welfare as a whole.[64]

17.5 Article 27.

VI. The expenditure of the public revenues (raised by taxes) for the promotion or maintenance of any *particular* religion contravenes *Article 27*. Hence, a State Government cannot build a Church out of public revenues on the plea that it relieve unemployment. But in *Praful Guradia v UOI,*[65] it was held that if only a small portion of tax is utilised for subsidies for Haj pilgrimage for their air travel, it is not violative of the *Constitution*.

17.6 *Santosh v Secy.*

The Secretary of the Ministry of H.R.D. of the Union Government challenged before the Supreme Court a circular of the Central Board of Secondary Education to include Sanskrit as an *elective* subject in the Syllabus of secondary education, on the ground that it was anti-secular unless similar treatment was offered to Arabic and Persian.

The point for decision before the Supreme Court was [p. 196][66]—

> Is teaching of Sanskrit against culture?

Fortunately for the Indian *Constitution* and for human civilisation, a Division Bench of the Supreme Court [66] turned down the blatantly unjustifiable stand of the Government counsel, by an illuminating judgment :

The direct answer of the Division Bench [66] was "no", because Sanskrit was the mother of all languages not only of India but also a large part of the world (para 12) and, also, the foundation of Indian cultural heritage (paras 4, 20).[66] HANSARIA J., for the Bench, observed—

> Sanskrit is a mother of all Indo-aryan languages and it is the language in which our Vedas, Puranas and Upanishadas have been written and in which Kalidas, Bhanabhati … with their classics. Teachings of Shankaracharya, Ramanuj … would not have been woven into fabric of Indian culture if Sanskrit would not have been available to them… (para 1).[66]

17.7 Article 351.

It was also observed that to eliminate Sanskrit would, on the contrary, be an infringement of the directive in *Article 351 of the Constitution*

> Indeed, our *Constitution* *requires* giving of fillip to Sanskrit because of …*Article 351*, in which while dealing with the *duty of the Union* to promote the spread of Hindi… it would draw, whenever necessary or desirable, for its vocabulary, primarily on Sanskrit. (para 19).[67]

17.8 8th Schedule

> Encouragement to Sanskrit is also *necessary* because of it being one of the languages included in the Eighth Schedule. (para 19).[67]

The Court also pointed out that Arabic and Persian, for whom the Additional Solicitor-General so vehemently pleaded, were not mentioned either in *Article 351* or the 8th Schedule Hence,

> "making of Sanskrit along as an *elective*[68] subject, while not [68] conceding this status to Arabic and/or Persian, would *not* in any way militate against the basic tenet of secularism" (para 20).[67]

The Court also shared the view that in promoting the *unity* of India, the *common* culture and heritage of India, of which the *foundation* is the Sanskrit language, Sanskrit must play a leading part (para 18).[67]

In this context, the Author would submit that the promotion of Sanskrit would also not militate against the ideal of "composite culture" as held out in *Article 51A(f) of the Constitution*.

The reason is that the original population of India was Hindu. Thereafter it was subjected to Muslim and British rule. Because of its wonderful tolerance the Hindu culture imbibed these alien cultures and thus grew up a "composite culture" in India [para 118][69]:

> Hindu religion developed resilience to accommodate and imbibe with tolerance the cultural richness with religious assimilation and became a land of religious tolerance [para 118][69] … each religion made its contribution to enrich the *composite* Indian culture as a happy blend or synthesis. Our religious tolerance(thus) received reflections in our *Constitutional* creed [para 126].[69]

X. A three-Judge Bench of the Supreme Court has also held that since the slaughter of a healthy cow on the Bakrai'd day, is not a religious requirement in Islam, it cannot be exempted by the State on the ground of "secularism" or "wishes of the minority".[70]

18. Secularism and Politics

In *Bommai's case*,[71] a new meaning was added to the word secularism as follows :

(a) The neutrality of the State would be violated if religion is used for *political* purposes and advocated by the

political parties for their political ends. An appeal to the electorate on grounds of religion offends secular democracy [para 128].[72] Politics and religion cannot be mixed (para 131).[72]

(b) If a State Government does this, it will be a fit case for application of *Article 356 of the Constitution* against it [para 365(10)]72

(c) It is in this sense that secularism is to be regarded as a basic feature of the *Constitution* [paras 124, 231, 365(10)].[72]

No sane man would question the proposition that the objects of religion and politics are different and that they should not be mixed up. Obviously, the *cause of both will be ruined* if the one is used for achieving the purposes of the other. It may also be conceded that if "secularism" be a basic feature of the *Constitution*, it would be impaired if the freedom of religion is subverted to achieve political purposes.

18.1 *Bommai v UOI, a critique*

But more precarious is the assertion that if any State Government allows any political party to mix up religion with its political agenda and activities, it would be legitimate to apply *Article 356* to that State, because such activity is anti-secular, and, therefore, militates against the "basic structure" of the *Constitution*. The reason is that it begs the question – what is the precise scope of the judicial innovation of "basic structure'? Until *Bommai's* case,[72] the Supreme Court had consistently held that the only object of the doctrine was to stall undesirable amendments to the *Constitution* (C7, vol A, p 65).

Now, the Court asserts that it can be harnessed for imposing *Article 356* on a State, apart from a breach of any of the articulate *provisions* of the *Constitution*.

The only thing that the Court [72] stopped short of saying was that the State could outlaw a political Party on the ground of mixing religion with its politics. The reason is that a political Party is an *association* within the protection of *Article 19*(1)(c), whose integrity cannot be demolished except on the ground specified in *Article 19*(4). As "basic features" is not specified therein, the object can be achieved only by amending *Article 19*(4), with consequential changes in *Article 25*. Mr. Rao's Government attempted to do that but failed owing to lack of the required majority in the Rajya Sabha.[73]

19. "*Democratic*".

"Democracy" is one of the most comprehensive terms used in Political Science[74]. It may mean a political, social as well as economic condition. Since the word "democratic" in *our Constitution* is used as an attribute of "Republic" it may seem that it refers only to political democracy or a form of government. But the following words of the Preamble explain that it does not refer *merely* to a form of government, but to a democratic State in which social, economic and legal equality and justice prevail.

The expression "democracy" and "democratic" have been used in varying senses in different countries and in many places have been subjected to denote the state of affairs which is in complete negation of the meaning in which they are understood. In our *Constitution*, it refers to denote what it literally means, that is, "people's power". It stands for the actual, active and effective exercise of power by the people in this regard. "Schumpter" gives a simple definition of democracy as "the ability of a people to choose and dismiss a Government." GIOVANNI SARTORI, translates the same idea in institutional forms and says that democracy is a multi party system in which the majority governs and respects the rights of minority. It refers to the political participation of the people in running the administration of the government. It conveys the state of affairs in which each citizen is assured of the right to equal participation in the polity.[75]

The Preamble does not tell what kind of "democratic" Republic is established in India. The enacting provisions of our

Constitution show that, broadly speaking, the *Constitution* has set up a “parliamentary democracy” of the type established in the federal *Constitution* of Canada to Australia”. The word “Republic” presents no present difficulty[76]

The main characteristics of democracy are – (i) the people must be free; the free people choose their rulers and rulers must govern according to the wishes of the people[77]. Democracy is the means of determining who shall govern and to what ends. The government under democracy is by the agents of the people, who have to conform to their wishes. In a democracy, the people are supreme.[78] A State is democratic when all authority is in the hands of the people themselves. In a democracy, laws secure equal justice for all and the public opinion welcomes and honours talent in every kind of achievement on the grounds of excellence done.[79] The original Greek concept of people’s rule has lost none of its vitality even in the modern age.[80]

Democracy is a term that describes a process by which citizens compete for the power to turn their preferences into law. It is a game of numbers that makes several important assumptions that all votes are equal, that citizens have an equal right to participate; that the resources necessary to political competition are relatively evenly spread, and that wins and losses in the political process will be more or less evenly distributed over the populace.

Different political majorities, it was expected, would rise and fall from one issue to another. Above all, the Founders supposed this to be a system that would avoid the scepter of perpetual winners who make policy at the expense of perpetual losses; this is the definition of tyranny.[81]

In the Constitutional perspectives, the term “democracy” is not only a descriptive or denotative, but also a normative and a persuasive process. The definitional problem is two fold, pertaining both descriptive and prescriptive functions. In the perspective of constitutional democracy, it means the rule of “the many, that is, the rule of the majority in the political community as a whole including its various sections, classes and groups. It postulates that form of government in which the governance is constitutionally conducted must be broad based and it should not be the concern of any particular class, classes, groups or obligancy. In the absence of unanimity, social consensus provides for the basis of all democratic government. Proverbially, it is the government of the people, for the people and by the people. The Govt. by the people is carried on by representatives of the people, arrived on by the people, and chosen by election. Elections conducted at regular intervals enable the people to elect their representatives belonging to organised and recognised political parties on the basis of declared manifest plan and programme of counted political action. The governance is carried on by the majority or the majority party which is bodily unchangeable. The rule of the majority for the time being is intended to approximate to the “rule by consent” and government by popular opinion and support. The establishment of such majority government is brought about through the process of popular representation in the deliberative and policy framing organs and apex political executive. The essential feature of such representative government is that it is organised and conducted for the benefit and welfare of the people generally. It has certain commitments for the betterment and uplift of the masses and the millions. Neither it is authoritarian nor dictatorial. It ensures the attainable degree of socio-political justice, liberty and equality – political, social and economic.[82]

I. As a form of Government, Democracy means a Government in which the mass of adult population has a direct or indirect share.

20. Democracy.

One of the three forms of government; that in which the sovereign power is neither lodged in one man, as in a monarchy, nor in the nobles, as in an oligarchy, but in the collective body of the people; government by the people; state in which such a government prevails; the principle that all citizens have equal political rights.[83]

In *R.C. Poudyal v UOI,* [84]the Supreme Court observes that “The expressions “democracy” and “republic” have conveyed not exactly the same ideas throughout the world, and little help can be obtained by referring to another *constitution* for determining the meaning and scope of the said expressions with reference to our

Constitution." So far the Indian Constitution is concerned; "democratic republic" refers to the political participation of the people in running the administration of the Government. It conveys the state of affairs in which each citizen is assured of the right of equal participation in the polity."

21. Political Democarcy.

(a) In a direct democracy, the entire body of the people directly exercise the political power. Here the legal as well as political sovereignty rest in the people as a whole who not only carry on the government but can even change the Constitution itself by their direct vote. It is interesting to note that this is the original and etymological meaning of the word "democracy". It is derived from Greek "*demos*" (the people) and "*Kratos*" (authority), to mean government by the people as contrasted with government by the one or the few. It was used by the Greeks to refer to the direct democratic governments of their City States. The subsequent development of the term has, however, departed from its original meaning primarily because of the impracticability of carrying on the government of a modern State according to the vote of the entire body of the people.

(b) In an indirect or representative democracy, on the other hand, the great mass of the people,[85] the electrorate, choose their representatives who carry on the government. The electorate must exercise its will through the representatives chosen by it. But the government by the representatives, or rather the majority of them, rests on the consent of the electorate which actively manifests itself occasionally, through elections.

In some Constitutions, representative democracy is combined with some ultimate direct devices. Thus, in *France*,[86] though the government is representative, there is provision for Referendum for purposes of constitutional amendment. Under the Constitution of the Fifth Republic (1958), a bill for amendment of the Constitution shall, after it is passed by the two Houses of Parliament, be submitted to a referendum, except where the President submits it to a joint session of the two Houses, to be approved by a majority of the votes cast (Article 89). Similarly, Article 20(2) of the Constitution of West Germany (1949) provides that the people may exercise their authority not only through elections but also by means of *plebiscite.*

22. A representative democracy.

The *Indian* Constitution aims at a representative democracy, but it is far more radical than the erstwhile American[87] democracy in as much as it does not admit of any restriction on adult suffrage[88] - on the basis of property, income, taxation, education or the like. The entire adult population of the vast territory of India, numbering some 290 million,[89] forms the electorate and thus shares in the political power. At the same time, it is not open to the electorate to exercise any political function by their direct vote. They can act only through their representatives. It is the representatives of the people, elected at a general election, who will exercise the legislative function and the administration will be carried on with the advice of Ministers responsible to that legislative body.

The trite saying that democracy is "for the people, of the people and by the people" has to be remembered for ever. In a democratic republic, it is the will of the people that is paramount and becomes the basis of the authority of the Government. The will is expressed in periodic election based on universal adult suffrage held by means of secret ballot. It is through the ballot that voter expresses his choice or preference for a candidate. Voting is formal expression of will or opinion by the person entitled to exercise the right on the subject or issue. The citizens of the country are enabled to take part in the government through their chosen representatives. In a parliamentary democracy like ours, the Government of the day is responsible to the people through their elected representatives. The elected representatives act or are supposed to act as a live-link between the people and the government. The peoples' representatives fill the role of law makers and custodian of Government. People look to them for ventilation and redressal of their grievance.[90]

In democracy, all citizens have equal political rights. Democracy means actual, active and effective exercise of power by the people in this regard. It means political participation of the people in running the administration of the Government. It conveys the state of affairs in which each citizen is assured of the right of equal participation in the polity.[91]

In an earlier case, the Court held that democracy is a Govt. by the people *via* open discussion. The democratic form of government itself demands its citizens an active and intelligent participation in the affairs of the

community. The public discussion with peoples' participation is a basic feature and a rational process of democracy which distinguishes it from all other forms of government. The democracy can neither work nor prosper unless people go out to share their views. The truth is that public discussion on issues relating to administration has positive value. In a democracy it is not necessary that everyone should sing the same song. Freedom of expression is the rule and it is generally taken for granted.[92]

The right to get information in a democracy is recognised all throughout and it is a natural right flowing from the concept of democracy. In a democratic form of government, voters are of utmost importance. They have a right to elect or re-elect on the basis of the antecedents and past performance of the candidate. The voter has a choice of deciding whether holding of educational qualification or holding of property is relevant for electing or re-electing a person to be his representative. The voter has to decide whether he should cast vote in favour of a candidate who is involved in criminal cases. In a democracy, the electoral process has a strategic role. The little man of the country would have the basic right to know full particulars of a candidate who is to represent him in the legislature, where laws to bind his liberty and property may be enacted.[93]

As per the 73rd and 74th Amendments to the *Constitution*, local government has been given a constitutional status with the main objective of democratic decentralisation, greater accountability between citizen and State apparatus and empowerment of weaker section of society.[94] The Preamble, Pt IV, Pt IX and IX-A of the *Constitution* show that local governments *i.e.,* Panchayats and Municipalities have the responsibility to promote social justice and economic development as a representative of the people within its jurisdiction and are not organs simply to obey the orders of political executive of the State. It is democracy at lower level and has status as the third tier of the Government.

"Parliamentary Democracy" generally envisages (1) representation of the people responsible government (3) accountability of the Council of Ministers to the Legislature. The essence of this is to draw a direct line of authority from the people through the legislature to the executive. The character and content of "parliamentary democracy" in the ultimate analysis depends upon the quality of persons who man the legislature as representatives of the people. The members of legislature, thus, must owe their power directly or indirectly to the people. The Council of Ministers of which the Chief Minister is the head in the State and on whose aid and advice the Governor has to act must, therefore, owe their power to the people either directly or indirectly.[95]

There is no provision for direct devices such as the Initiative, Plebiscite, Referendum or Recall, either for ordinary or constitutional purposes. The power of amendment of the *Constitution* are placed not in the hands of the electorate, but in the hands of the Legislature, of course, voting with a special majority.[96]

As to what is meant by the word "democratic" in the Preamble to our *Constitution*, in its political aspect, the proper approach is to go through its enacting provisions[97] instead of ransacking political theories.

The following may be mentioned as the main features of our democratic political system:

(a) Universal Suffrage

[*Article 325*] by one electoral constituency containing the entire adult population [*Article 326*], - none being excluded on grounds only of religions, race, caste, sex or any of them. It embodies the right of the entire population to "equal participation in the polity'98[98] and a democracy based on adult franchise is part of basic structure of the *Constitution*.[99] The entire scheme of this *Constitution* is such that it ensures the sovereignty and integrity of the country as a republic and the democratic way of life by parliamentary institutions based on free and fair elections.

Alladi Krishnaswamy Ayyar, while discussing in Constituent Assembly, said: "The Assembly has adopted the principle of adult franchise with an abundant faith in the common man and the ultimate success of democratic rule, and in the full belief that the introduction of democratic government on the basis of adult suffrage will bring enlightenment and promote the well-being, the standard of life, the comfort and the decent living of the common man. (Constituent Assembly Debates, vol XI, p 835). Ayyar also said: "…the only alternative to adult suffrage

was some kind of indirect election based on village community or local bodies and by constituting them into electoral colleges". – That was not found feasible.

Adult suffrage gave a voice, indeed power to millions who had previously to depend on the whim of others even for a vague representation of their interest. Direct election brought – or could bring – national life and consciousness to individuals in the village. This new awareness through a new channel of communication made possible new allegiances, national instead of local, thus creating an alternative to the caste and other purely local loyalties that impeded national unity. And, if one local loyalty merely supplanted another, as a result of direct election, atleast village society had a new fluidity. It is very difficult if indirect election would have had this effect.

Adult suffrage has social implications far beyond its political significance. Many social groups previously unaware of their strength and barely touched by the political changes that had taken place, suddenly realised that they were in a position to wield power.[1] President DR. RADHAKRISHNAN said that adult suffrage is the most powerful instrument devised by man for breaking down social and economic injustice and destroying the walls that imprison man's minds. [2]

The Preamble of our *Constitution* proclaims that we are a Democratic Republic. Democracy being a basic feature of our Constitutional set up, there can be no two opinions that free and fair elections to our legislative bodies alone would guarantee the growth of a healthy democracy in the country.[3]

(b) The role of the Party system in Indian democracy

The electorate vote for their representation in the Union Parliament as well as the State Legislatures through Party organisation. The Government, so formed, is known as the Parliamentary system of Government.[4]

In *Kanhiya Lal's case*[5], the Supreme Court observed –

> Although till recently the *Constitution* had not expressly referred to the existence of political parties, by the amendments made to it by the *Constitution* (52nd Amendment) Act, 1985 there is now a recognition of the political parties by the *Constitution*. The 10th Schedule to the *Constitution* which is added by the above *Amending Act* acknowledges the existence of political parties and sets out the circumstances when a member of Parliament or the State Legislature would be deemed to have defected from his political party and would thereby be disqualified for being a member of the House concerned.[5]

The Report of the National Commission to Review the Working of the *Constitution* (dt. 31 March 2002) has recommended a comprehensive law regulating the registration and functioning of political parties or alliance of parties in India. It must provide for registration, de -registration, recognition and de-recognition of parties, and for appointing the body of auditors, it should be the Election Commission.[6]

For a strong vibrant democratic government, it is necessary to have a parliamentary system which involves a majority as well as minority, so that there may be a full-fledged debate on controversial issues on the floor of the House. This is best achieved by party system. To abolish or ignore the party system would be to permit a chorus of discordant notes to replace an organised discussion. It is idle to suggest that for establishing a true democratic society, the party system should be ignored.[7]

In any democratic system of government, political parties occupy a distinct and unique place. It is through them that the generality of people attempt to voice and ventilate their grievances. Considering also the power which

they wield in the administration of government affairs, a special conferment of benefits on them in the matter of modalities governing the election process cannot be regarded as unreasonable or arbitrary.[8]

In Parliamentary form of democracy, political parties play vital role and occasionally they sponsor candidates for the election.[9] Political parties are voluntary organisations which play an important role in the democratic process; they enable the citizens to play a role in policy-making and are the principle means for the representation of electors in both national and local government.[10] Central to the role of modern democracy are political parties; they provide the policies and personnel of government (and opposition) and have other important functions as well. Although electors vote individuals to represent them in Parliament, the candidates will typically be chosen by a political party. But, in spite of great importance to political parties, they still remain voluntary organisations.[11]

> Liberalism regards political parties as private; self-governing organisation even though they are central to government. In the interests of freedom there is, therefore, resistance to legal controls over political parties, for example, in respect of how they raise funds. On the other hand, fair elections require certain controls – a tension characteristic of liberal democracy. (See John Alder, *Constitutional & Administrative Law,* 6th Edn, p 41).

(c) Free and fair election.

The democratic set up envisaged by the Preamble requires free and fair elections to our legislative bodies, through an independent body, insulated from political or legislative interference.[12]

Fair election contemplates the disclosure by the candidate of his past including the assets held by him so as to give a proper choice to the candidate according to his thinking and opinion.[13]

23. Social and economic democracy

II. That by the word “democratic” the makers of our *Constitution* envisaged not merely political but also *social* and *economic*[14] democracy is evidenced by the other parts of the Preamble itself.[14] This can be best explained by reproducing the concluding speech of Dr. Ambedkar in the Constituent Assembly[15]—

> What we must do is not to be content with mere political democracy. We must make out political democracy a social democracy as well. Political democracy cannot last unless there lies at the base of it a social democracy. What does *social democracy* mean ? *It means a way of life which recognizes liberty, equality and fraternity as the principles of life. These principles - liberty, equality and fraternity*[16] - are not to be treated as separate items in a trinity. They form a union a trinity in the sense that to divorce one from the other is to defeat the very purpose of democracy. Liberty cannot be divorced from equality, equality cannot be divorced from liberty. Nor can liberty and equality be divored from fraternity. Without equality, liberty would produce the supremacy of the few over the many. Equality without liberty would kill individual initiative. Without fraternity, liberty and equality could not become a natural course of things. It would require a constable to enforce them. We must begin by acknowledging the fact that there is complete absence of two things in Indian society. One of these is equality. On the social plane, we have in India a society based on the principle of graded inequality, which means elevation for some and degradation for others. On the economic plane, we have a society in which there are some who have immense wealth as against many who live in abject poverty.
>
> On 26 January, 1950 we are going to enter into a life of contradictions. In politics we will have equality and in social and economic life we will have inequality. In politics we will be recognizing the principle of one man, one vote and one vote, one value. In our social and economic life we shall, by reason of our social and economic structure, continue to deny the principle of one man, one value. If we continue to deny it for long we will do so only by putting our political democracy in peril.[17]

The success of parliament Govt. largely depends upon systematic organisation of political parties and fair election. Elections can be free and fair only if they are held without any interference from the Government of the day. The *Constitution* has laid down special provisions with a view to securing fair and free election to the legislature. Holding free and fair election by the Election Commission is part of basic structure of the *Constitution*.[18] For this purpose, Election Commission has been appointed, a body autonomous in character and insulated from political pressures or executive influence. Care has been taken to ensure that the Commission functions as an independent agency free from external pressure from the party in power or the executive of the day. The expression "election" in *Article 324* is used in a wide sense and makes Election Commission a "special authority" to lay down norms for conduct of election and an Election Commission cannot be equated with other authorities whose power to make law has to be interpreted in a strict sense.[19]

Members of Constituent Assembly also agreed that the control and supervision of election should be in the hands of an independent body. This Commission, though appointed by the President, is a non-party, *quasi*-judicial body and not to suffer from any political interference in the performance of its duties.[20]

Social and economic democracy is the foundation on which political democracy would be a way of life in the Indian polity. Law as a social engineering is to create just social order removing inequalities in social and economic life socio- economic disabilities with which poor people are languishing by providing positive opportunities and facilities to individuals and groups of people. The core Constitutional objective of "social and economic democracy", in other words, just social order, cannot be established without removing the inequalities in income and making endeavour to eliminate inequalities in status through rule of Law. The mandate of social and economic transformation requires that the material resources or their ownership and control should be so distributed as to subserve the common good.[21]

24. *"Republic".*

In political literature, the word "Republic" is used in various senses.

(a) In a narrow sense, it is used simply in opposition to "Monarchy", and means a form of government under which the head of the executive is chosen by the people (*Leacock*). According to *Jellinek*, a Republic is a Government, not by a single person, but by a collegial organisation more or less numerous.[22] At the same time it is to be distinguished from oligarchy or class-rule. In the words of *Madison*, a Republic—

> is a government which derives its powers directly or indirectly from the great body of the people, and is administered by persons holding their offices during pleasure, for a limited period, or during good behaviour. It is essential to such a government that it be derived from the great body of the society, not from an inconsiderable proportion, or a favoured class……[23]

Though the *American* Supreme Court has refused[24] to explain the precise implications of the expression "republican form of government" which is guaranteed to every State by Article IV, *section 4 of the Constitution*, on the ground that it is not justiciable question but a "political" question to be determined by the Congress, it is clear that the essence of the republican form as understood in the *United States* and as gathered from her prefederal State Governments is that the Government under this form derives its power directly or indirectly from the bulk of the people, –

> that the supreme power resides in the body of the people.[25]

Republican government means a government in the republican form; a government of the people; a government by representatives chosen by the people.[26] What is republican government? It is a political question. In effect it means that the head of the State is not a hereditary monarch enjoying the obedience of the bulk of his people in his own right, to the sovereignty. In a republic, the sovereignty vests in the people and the head of the State is only a person elected by the people for a fixed term with no claim to the sovereignty of the State or the constituent power. He owes his allegiance to the *Constitution* of the Union and enters into his office under an oath to preserve, protect and defend the *Constitution* and the laws. He occupies the office under a popular mandate to act for and devote himself to the "service of the well being of the people". The constituent power is exercised with or without his co-operation either with participation of the people directly in a referendum or indirectly through the elected representatives in the manner and mode prescribed by the *Constitution*.

The supreme political power is held by the whole polity, the political community – the people's will. Under the *Constitution*, the "sovereign authorities" include the President, Parliament and Supreme Court. Their acts and action derive legitimacy and sanction from the *Constitution* and the laws. The *Constitution* was enacted by the chosen representatives of the people assembled in a constituent assembly or convention in the name of the people and for the people. The governance of the country is the burden of the established organs, departments and agencies, and is conducted in the manner ordained by the *Constitution*. The legislators are elected popularly for a fixed period. The ministers too are elected directly or indirectly and are accountable to the legislature or the electorate in accordance with popular mandate. The subordinate authorities derive their powers and authority from the popular will, the *Constitution* and the laws.[27]

"Republicanism" is a form of government in which power resides in the people and is exercised by their elected representatives; government is the common business of citizens conducted for common good. The idea for republicanism may be traced to the Greek Philosopher Aristotle, who advocated a "mixed" *constitution* that contained principles of democratic and oligarchic government.[28] A republic is a Government for the protection of the citizen against the exercise of all unjust power. If a government administered by a few, as the representatives of the people and for their benefit.[29]

> A republic is an independent sovereign power, in other words, a state, just as certainly and in the same sense as a monarchy, limited or absolute; and every state is a person, an artificial person, in a more extensive and far higher sense than an ordinary corporation

The word "republic" as understood by common man is a system which is opposed to "Monarchy" and in its political conception it can be traced back to the days of French Revolution of 1789. Leacock calls it a government under which head of the executive is chosen by the people and according to Jellinak it is Government by a collegial organization and not by single person.

In another sense this term represents the exercise of the power not by one man but by a body of people who do not hold this power as a proprietary right.[30]

COOLEY identifies it with representative government :

> By the Republican form of government is understood a government by representatives chosen by the people; and it contrasts on one side with a democracy in which the people or community as an organised *whole* wield sovereign powers of government, and, on the other, with rule of one man as King, Emperor, Czar or Sultan or with that of one *class* of men, as an aristocracy.[31]

It is in this sense that the term is defined in the New English Dictionary, Oxford –

> Republic means a state in which the supreme power rests in the people and their elected representatives or officers, as opposed to one governed by King or a similar ruler.

(b) In a wider sense, the word "Republic" denotes a Government where no one holds the public power as a proprietary right, but all power is exercised for the common good, - where the inhabitants are subjects and free citizens at the same time (*Bluntschli*).

When the Draft *Constitution* was circulated for eliciting opinion, the Drafting Committee itself was not unanimous on the precise implication of the word "Republic" *vis-à-vis* India's membership of the commonwealth. Much controversy over the use of the word "Republic" in the Preamble, in so far as it had a bearing on the question of India's continued membership of the Commonwealth lost all its force when by a Declaration adopted at the end of April 1949, the Government of various Commonwealth countries announced their acceptance and recognition of India's continued membership even after the adoption of Republican *Constitution*.[32]

It may be said that the Preamble to *our Constitution* uses the term in both these senses. For, not only shall we have an elected President instead of a hereditary King at the head of our State, but the State will also be characterized by the absence of any ruling or privileged class, and all office, – from the humblest to the highest (including that of the President), – will be open to all citizens without any distinction of caste, religion or sex [*Article 16*]. Thus, Indian citizens will be "subjects and free citizens at the same time".

The term "Republic" denotes that the head of the State is not a hereditary monarch, but an "elected functionary".[33]

We have also seen that in our Republic the ultimate power will reside in the body of the people, enfranchised by universal adult suffrage [*Articles 325-6*]. This has been held to be a "basic feature" of the *Constitution*.[34]

25. "*Justice*".

Justice, briefly speaking, is the harmonious reconcilement of individual conduct with the general welfare of society. Every man acts according to his self-interest, but his act or conduct is said to be "just" only if it promotes the general well-being of the community.[34] Justice is what is demanded by or conforms to public good. Therefore, all that is laid down by the law in conformity with public good is at once in conformity with justice. In the modern democratic set up, justice has not only to be done, but it must be shown to be done. This is what is generally known as "Rule of Law". A mature civilisation can scarcely be attained unless be justice minded and the undivided attention of the judge is directed towards justice. Justice kindles light and gives vision to every citizen. Justice is the objective reality of law. The *Constitution* assures justice. Judges who conform to justice, equality and impartiality are sentinels of democracy.

There could be no republic except one founded on justice. Justice is eternal. Without justice, political as well as judicial administration of the State cannot run and the country may verge upon anarchy and rebellion. Justice is not temporal, but eternal. Justice is not the product of a man's intellect, but the product of spirit. The Govt's action ought to be just and the governmental institution such as law courts ought to ensure the preservation of justice.[35]

The essence of justice is the attainment of the common good as distinguished from the good of individuals or even of the majority of them. *Our* Constitution professes to secure to *all* its citizens social, economic and political justice, even though the form of Government prescribed by the Constitution is a majority government which lies at the foundation of the representative system.

Ordinarily, the word “justice” indicates legal justice[36] which is available only through the Courts which decides dispute between two individuals or between an individual and the State itself, when such dispute assumes the form of a litigation.

The administration of justice according to established law, usage and custom of the country is legal justice. Legal justice becomes more harmonious and effective when the element of equality is also infused in practical operation of judicial administration. In the modern dynamic society, rigid standard of legal justice founded merely on the letter of the law is not appropriate. Flexible standard based on the spirit of the law, equity and moral philosophy of life is the proper solution. Morality operates as supplement to justice and legal order and is the sweetest tie of humanity.

F.E. DOWRICK in *Justice according to English Common Lawyer*, 1961, p 204, interpreting the English concept of legal justice, remarks: “In a dynamic society, the inevitable gaps in law, the difficulties inherent in the application of the precedent rulings and the statutory provision to specific facts, the flexible standard laid down for the courts in many general laws – these factors compel the English judges to look beyond the established laws of the land in the process of adjudication”.[37]

The rule of law is a precondition to the idea of Justice or legal justice. A society devoted to conception of rule of law, may pay a price, certainly in efficiency and possibly in the communitarian spirit that too much concern with law is supposed to cripple. But that society makes an important promise to each individual and the value of the promise seems worth the cost. It encourages each individual to suppose that his relations with other citizen and with the government are matters of justice and it encourages him and his fellow citizens to discuss as a community what justice requires these relationships to be. It promises a forum in which his claim about what he is entitled to have will be steadily and seriously considered at his demand. It cannot promise him that the decision will suit him or even that it will be right. But that is not necessary to make the promise and the sense of justice that it creates valuable. It may seem as if democracy and rule of law were at war. That is not so; on the contrary, both of these important political values are rooted in a more fundamental ideal that any acceptable government must treat people as equals. The rule of law enriches democracy by adding an independent forum of principle and that is important, not just because justice may be done there, but because the forum confirms that justice is in the end a matter of individual right and not independently a matter of public good.[38]

In the Preamble, the Constitution speaks of *other* forms of justice which a welfare State is bound to dispense to the People who made the Constitution.

The word “Justice” envisioned in the Preamble is used in a broad spectrum to harmonise individual right with the general welfare of the society. “Justice” in the Preamble implies equality consistent with the competing demands between distributive justice with those of cumulative justice. Justice aims to promote the general well-being of the community as well as individuals” excellence. [39]

According to Advanced Law Lexicon by P. Ramanatha Aiyar,[40] “Justice” is the dictate of right, according to the consent of mankind generally, or of that portion of mankind who may be associated in one government, or who may be governed by the same principles and morals

“Justice,” says Vattel: “is the basis of a state; a sure bond of all commerce. Human society, far from being an intercourse of assistance and good offices, would be no longer anything but a vast scene of robbery, if there were no respect of this virtue, which secures to every one his own. It is still more necessary between nations

than between individuals, because injustice produces more dreadful consequences in the quarrels of these powerful bodies politic, and it is still more difficult to obtain redress.

"Justice," the establishment and enforcement of which is the object of all law, is a comprehensive term, in which are included the three great objects for which, according to our Declaration of Independence, governments among men are instituted. Whatever rule of the unwritten law, therefore, is at variance with this great purpose of justice – the security of life, liberty, and the pursuit of happiness – is one not suited to our condition and circumstances.

In a judicial sense, justice is nothing more or less than exact conformity to some obligatory law; and all human actions are either just or unjust as they are in conformity to or in opposition to law.

> There is not in this country one rule by which the rich are governed, and another for the poor. No man has justice meted out to him by a different measure on account of his rank or fortune, from what would be done if he were destitute of both. Every invasion of property is judged of by the same rule; every injury is compensated in the same way; and every crime is restrained by the same punishment, be the condition of the offender what it may. It is in this alone that true equality can exist in society.[41]

In *Delhi Administration v Gurdip Singh Uban,*[42] the Supreme Court observes that "The words "justice" and "injustice", in our view, are sometimes loosely used and have different meaning to different persons particularly to those arrayed on opposite sides. "One man's justice is another's injustice"[43]. Justice Cardozo said: "The web is tangled and obscure, shot through with a multitude of shades and colours, the skeins irregular and broken. Many hues that seem to be simple, are found, when analysed, to be a complex and uncertain blend. Justice itself, which we are wont to appeal to as a test as well as an ideal, may mean different things to different minds and at different times. Attempts to objectify its standards or even to describe them, have never wholly succeeded.[44]

Our *Constitution* realises that a true democracy requires not only equality but also justice. As a result of this twofold ideal, it not only provides for securing equality of status and opportunity by prohibiting discriminations by the State on grounds of religion, race, etc., but at the same time makes special provisions for the promotion of the interest of the backward and weaker sections of the people, in whose case mere equality of status and opportunity may not be adequate to secure their well-being as a part of general welfare of society. With this end in view, the *Constitution* makes special provisions for the weaker sections in *Article 16*(*2*),(*4*); Pt XVI. *Articles 14* and *16*(4) of the *Constitution* intend to remove social and economic inequality to make equal opportunities available. In reality, the right to social and economic justice envisaged in the Preamble and elongated in the Fundamental Rights and Directive Principles of the *Constitution*, in particular, *Article 14*, *15*, *16*, *21*, *38*, *39* and *46* are to make the equality of the life of the poor, disadvantaged and disabled citizens of the society, meaningful.[45]

The *Constitution* which is the fundamental law of the country has given supreme importance to justice. A nation bereft of justice has no civilisation, no democracy and no prosperity. In the present constitutional set up, social and economic justice has seriously been engaging the attention of the Court. Rightly have the framers of the Indian *Constitution* set justice above everything else and social and economic justice above political justice. The foundation of a good government in a democratic Welfare State is predominantly founded on social and economic equalities equality of opportunities in every walk of life, liberty of thought, culture, faith, religion and movements and protection of rights and property. The *Constitution* assures the people the benefit of these essentials of life. Economic, social and political justice have been explicitly assured. Thus, to get justice is the constitutional right of every citizen of India. The denial of justice is the violation of the *Constitution* itself.

This ideal behind the Preamble to *our* Constitution can hardly be better expressed than in the words of the Father of the Nation, Mahatma Gandhi himself, before the Second Round Table Conference:

> ……I shall work for an India, in which the poorest shall feel that it is their country in whose making they have an effective voice; an India in which there shall be *no high class and low class of people*; and India in which all communities shall live in perfect harmony. There can be no room in such an India for the curse of *untouchability* or the curse of intoxicating drinks and drugs. *Women shall enjoy the same rights as men……*

The goal, read with the Directives in Pt IV of the Constitution, is to build a "welfare State", in which economic and social justice prevails, - which is a "basic feature" of the Constitution.[46]

A peculiar feature of the Indian Constitution is that it does not rest with the enumeration of political rights as does the Constitution of the *U.S.A.* and other Constitutions modelled upon the American, but combines social and economic rights along with political and justiciable legal rights.[47] While the latter are embodied as "Fundamental Rights" in Pt III, the former are declared as Directives of State Policy in Pt IV. As will be explained hereafter, at the initial stage, the framers of our Constitution took up the rights of both classes together[48] to be guaranteed in the Constitution of free India, but later it came to be realised that a distinction must be made because many of the social and economic rights could not be legally enforced. They were accordingly embodied as goals which the future State was to achieve in order to establish social justice, to make the masses free in the positive sense"—

> free from the passivity engendered by centuries of coercion by society and by nature, free from the abject physical conditions that had prevented them from fulfilling their best selves.[47]

26. Provisions of the Constitution which are aimed at securing Socio-economic justice.

In various cases, the Supreme Court has referred to the substantive provisions which aim at securing the "Socialistic pattern of Society'[49] or "Socialism'[49] in *our* Constitution.

In 1983, BHAGWATI, J. observed –

> The Preamble contains the profound declaration …that India shall be a Socialist democratic republic where social and economic justice will inform all institutions of natural life……

As illustrations of the "new socio-economic order envisaged in the Preamble and the Directive Principles of State Policy", the following Articles may be mentioned:

Articles 14, 15, 16, 21, 23, 24, 38, 39, 41, 42, 43, 43A, 46[49]

27. 'Justice, Social, Economic and Political'

Political justice relates to the principle of rights of the people, *i.e.*, the right to universal justice, the right to

democratic form of Government the right to participation in political affairs.[50] According to the *Constitution*, political justice means equality of treatment and absence of discrimination and arbitrariness in political sphere. The means of securing it is the universal adult suffrage, prohibition against communal reservation and throwing open employment under the State to all citizens without distinction of race, caste, sex, place of birth or religion. *Articles 14*, *15* and *16* of the *Constitution* guarantee fundamental rights to the citizens of India in the matter of equality of opportunity and in the matter of employment. Violation of political justice becomes a matter of judicial review. No legislation can be framed arbitrarily denying political justice and any such discriminatory law is unconstitutional. Political justice refers to all citizens having equal voting rights and no one can be denied such rights arbitrarily and on irrelevant grounds. The above is only one aspect of describing political justice, because, it has a larger scope and it correlates with social justice as well.

Political justice refers to the use of judicial process for the purpose of gaining (or upholding or enlarging) or limiting (or destroying) political power or influence. Political justice usually involves the courts, which may be invoked either by public officials or in those societies which permit open competition for political power, by private individuals. The party invoking the judicial arm must present its demands in a form susceptible of legal determination. The party's allegations in regard to facts must be open to incrimination and proof under the specific legal system involved. These allegations may relate to intrinsically political acts or to common crimes in which the criminal is charged with political motivation, for example, bank robbery to finance revolutionary activity. (International Encyclopedia of Social Sciences – vol XII, p 246).

The concept of political equality underlying a democratic system is a political value. Perfect political equality is only ideological.[51]

Economic justice is enshrined in *Article 39 of the Constitution* (para 96).[52] Economic empowerment is a basic human right and a fundamental right as a part of right to life to make political democracy stable. Socio-economic democracy must take strong roots and becomes way of life. The State is enjoined to provide adequate means of livelihood to the poor, weaker sections of the society, the dalits and the tribes and distribute material resources of the community to them for common welfare.[53] Right to livelihood is an integral part of right to life and that right is higher than a legal right. The framers of *Constitution* guaranteed to secure to its citizens justice, social, economic and political as well as equality of status and opportunity.[54] *Articles 38* and *39* of the *Constitution* direct the State to frame policies and implement the same to ensure people adequate means of livelihood, fair distribution of wealth, equal pay for equal work and protection of children and labour. When the *Constitution* makers envisaged development in social, economic and political fields, they did not desire that it should be a society where a citizen will not have the dignity of the individual.[55]

(For further comments, see *Article 21*, *38* and *39*).

Social justice is enshrined in *Article 38* (para 96).[52] The object of socio-economic justice is to make meaningful the quality of life of the poor, disadvantaged and disabled citizens.[56]

28. Social Justice

The objective of "social justice" has been embodied not only in the second clause of the Preamble but also in various provisions of the Directive Principles[57] in Pt IV, *e.g.*, *Article 38*.[57]

Social justice is one of the sub-divisions of the concept of justice. It is concerned with the distribution of benefits and burdens throughout a society as it results from social institutions – property systems, public organisation etc.[58] It was held therein that there are three criteria to judge the basis of distribution, namely, rights, deserts or needs. These three criteria can be put under two concepts of equality: "formal equlity" and "proportional equity". There is a difference between formal equality and egalitarian equality. "Formal equality" means that law treats everyone equal and does not favour anyone either because he belongs to the advantaged section of the society or to the disadvantaged section of the society. Concept of "proportional equlity" expects the State to take affirmative action in favour of disadvantaged sections of the society within the frame work of liberal democracy. Proportional equality is equality, infact "whereas "formal equality" is equality "in law". Egalitarian equality is proportional equality".

Social justice has been defined by PROF. ADAMS :- “What is Social Justice? The question is as old as history, and generation to come will repeat the question. Justice is in its nature social, for, it consists in right relation of individual to another. But, when we speak of Social Justice, we are thinking of the collective impression to the idea of justice through the laws and custom, the orders and the social provisions which express the will of the community”.[59] “Socialism” in the Indian *Constitution* means to crystallise a social State securing to the people socio-economic justice by interplay of Fundamental Rights and the Directive Principle.[60] Social Justice and equality are complementary to each other, so that both should maintain their vitality. Rule of Law, is a potent instrument of social justice to bring about equality in result.[61] *Articles 14* and *16* read with Preamble give equality of opportunity in matters relating to employment or appointment in any office under the State. The Principles of reservation is an affirmative action to accord socio economic justice guaranteed by the Preamble.[62] Disregarding the Preamble and provisions like *Articles 15*(1), 16(2) and 29(2) would plunge the nation to disaster.[63]

The concept of “Social Justice” which the *Constitution of India*, engrafted, consists of diverse principles essential for the orderly growth and development of personality of every citizen. “Social Justice” is an integral part of “Justice” in the generic sense. “Justice” is the genus, of which “Social Justice” is one of the species. Social Justice is a dynamic device to mitigate the sufferings of the poor, weak, dalits, tribals, deprived sections of the society and to elavate them to the level of equality to live a life with dignity of person.

The concept of a “Welfare State” wherein the Governmental tasks have increased by several folds, setting up various administrative agencies to carry out the objectives of a “Social Welfare State” centres around the problems concerning “social justice” and more particularly, the necessity to balance between “private” and “social interests”. The bulk of the legislation related to “social justice”, as “too many people, still lack the simplest necessities of life and too many are deprived of basic human rights. (Jimmy Carter’s Address to Georgia Institute of Technology dt. 20 February 1979 – quoted in AIR 1996 Journal 49). In the same article, it is said that the urgent need of mankind is not recognition and declaration of fundamental human rights, but their protection by International Community. (H. Lauterpacht, *International Law and Human Rights*).

The doctrine of socio-economic justice has been recognised in *Article 38*, *39*, *41*, *42*, *43*, *43* -A of the *Constitution*. The *Constitution* by these Articles which are directives to the State enjoins to secure social justice for the welfare of the people. The Supreme Court, after considering the Constitutional Amendment to *Article 15* by inserting clause(5), has held that the objective of the amendment was to secure social justice incorporated in the Preamble and Directive Principles by inserting clause (5) to *Article 15*.[64] All State action should be such as to make socio-economic democracy with liberty, equality and fraternity, a reality to the people through democratic socialism under the rule of law. Right to social and economic justice is held a fundamental right.[65] In *LIC of India v Consumer Education and Research Centre* (*supra*), the court said: “The authorities or private persons or industry are bound by the directives contained in Pt IV, Pt III and the Preamble of the *Constitution*. The right to carry on trade is subject to directives contained in the *Constitution*, the Universal Declaration of Human Rights, European Convention of Social, Economic and Cultural Rights and the Convention on Right to Development for Socio-Economic Justice. Social security is a facet of socio-economic justice to the people and a means to livelihood. The Preamble, Chapter on Fundamental Rights and Directive Principles of State Policy accord right to livelihood as a meaningful life, social security and disablement benefits are integral parts of socio -economic justice to the people, in particular, to the middle class and lower middle class and all offendable people…In an earlier case, the court said that Directive Principles should guide and shape corporate philosophy.”[66] *Employees Provident Fund* Ordinance and Act were enacted by Parliament in furtherance of the mandate of *Article 38* and *43* of the *Constitution* as a social security measure to the workers employed in factories and other establishments and were held to be valid.[67] The expression “public purpose”, it was held, must be interpreted in accordance with *Article 37* and *39* of the *Constitution*. According to *Article 39*, the State shall, in particular, direct its policy towards securing that the ownership and control of material resources of the community are so distributed as best to subserve the common good. The laws made for the purpose of securing the constitutional intention and spirits have to be for public purpose and it shall be the duty of State to apply the above principle when land is acquired.[68]

Since natural resources are public goods, the doctrine of equality which emerges from the concept of justice and fairness must guide the State in determining the actual mechanism for distribution of natural resources. In this regard, the doctrine of equality has two aspects – first, it regulates the rights and obligations of the State *vis-à-vis* its people and demands that the people be granted equitable access to natural resources and for its products and that they are adequately compensated for the transfer of resources to the private domain, and second, it regulates the rights and obligations of the State *vis-à-vis* private parties seeking to acquire/use the resources and demands that the procedure adopted for distribution is just, non-arbitrary and transparent and that it does not discriminate between similarly placed private parties. The State is the legal owner of natural resources as a trustee of the people and although it is empowered to distribute the natural resources, the process of distribution must be guided by constitutional principle including doctrine of equality and the "larger public good".[69]

In the case of public employment, the court said that *Article 226* is not to be used for issue of direction which defeats the concept of social justice, equal opportunity for all and constitutional scheme of public employment.[70]

On the question of payment of backwages to a workman who is reinstated, the Court held that industrial courts and Tribunal under the Act have to take decision which must be in consonance to create a climate of goodwill and has to decide "what was due to a person in equity" and "justice" and not to apply the cold letters of statutes mechanically. That will promote socio-economic justice.[71]

In *Bipin Chandra J. Diwan v State of Gujarat,*[72] it was held that whatever may be precise content of social justice, it is held to include recognition of the needs of weaker sections of the community on "human being".

Only when the needs and aspirations of all sections of the society, weaker or stronger are fully met and fulfilled and they feel that they are getting full justice in every walk of life, it can be said that there is "social democracy". According to MR. JUSTICE BRENNAN as quoted in *Labhu L Vghasiya v State,*[73] "Nothing rankles more in the human heart than a brooding sense of injustice. Illness we can put up with, but not injustice which makes us want to pull things down. When only the rich can enjoy the law doubtfully as a luxury, and the poor, who need it most, cannot have it because its expense puts it beyond their reach, the threat to the continued existence of free democracy is not imaginary but very real because democracy's very life depends upon making the machinery of justice so effective that every citizen shall believe in and benefit by its impartiality and fairness".

While basic liberties are guaranteed, and individual initiative is encouraged, the State has got the role of ensuring that no class prospers at the cost of other class, and no person suffers because of drawbacks which are not his, but social.[74]

"Social Justice" is not a simple or single idea of a society, but is an essential part of complex social change to relieve the poor *etc.* from handicaps, penury to ward off distress and to make their life liveable for greater good of the society at large. In other words, the aim of social justice is to attain substantial degree of social, economic, and political equality, which is the legitimate expectation. Social security, just and humane conditions of work and leisure to workman are part of his meaningful right to life and to achieve self-expression of his personality and to enjoy the life with dignity.[75]

(i) *Social* justice requires the abolition of all sorts of inequities which result from inequalities of wealth and opportunity, race, cast, religion and title. Thus, the provision for humane conditions of work, maternity relief, leisure and cultural opportunities to every individual; prevention of exploitation of child in labour and industry, provision for free primary education for all, the promotion of the educational and economic interests of the backward classes [Pt IV]; banning of forced labour [*Article 23*], are all programmes of social justice, held out by *our Constitution*.

Social justice, in short, is the harmonisation of the rival claims of the interests of different groups and sections in

the social structure by means of which alone it is possible to build up a "Welfare State".[76] Thus, in the industrial sphere, its object is to ensure industrial peace which is essential for the development and expansion of the national peace which is essential for the development and expansion of the national industry;[77] and this is possible only if the labour foce is contented on the one hand and a steady and progressive return is ensured on the other to attract the investing public to the industry.[78] Instead, therefore, of leaving the matter to contract, "social justice" inspires a Welfare State to secure to the workmen a minimum wage [76] having regard to the capacity of each industry [78] as would establish harmony and co-operation between labour and capital in the task of production,[76] and also enable the worker to achieve a decent standard of living.[78] The object is specifically emphasised by *Article 43* of *our Constitution*, and is held out by the Supreme Court [76] as the ultimate ideal of industrial adjudication –

> There can be no doubt that in fixing wage structures in different industries, industrial adjudication attempts, gradually and by stages though it may be, to attain the principal objective of a welfare state, to secure "to all citizens justice, social and economic". To the attainment of this ideal the Indian *Constitution* has given a place of pride and that is the basis of the new guiding principles of social welfare and common good to which we have just referred.

In *J.K. Cotton Spinning & Weaving Co Ltd v Labour Appellate Tribunal of India,*[79] Supreme Court held thus "The concept of social justice is not narrow, or one-sided, or pedantic, and is not confined to industrial adjudication alone. Its sweep is comprehensive. It is founded on the basic ideal of socio-economic equality and its aim is to assist the removal of socio economic disparities and inequalities; nevertheless, in dealing with industrial matters, it does not adopt a doctrinaire approach and refuses to yield blindly to abstract notions, but adopts a realistic and pragmatic approach. It therefore, endeavours to resolve the competing claims of employers and employees by finding a solution which is just and fair to both parties with the object of establishing harmony between capital and labour and good relationship.

29. Function of a Court in India to ensure social justice.

(ii) *Our* Supreme Court[80] has 78ecognize78 that in view of the objective of social and economic justice in the Preamble and Pt IV of the *Constitution*, which are binding on the Judiciary, it is the duty of Indian Courts not only to decide justiciable causes between two parties, as in other countries governed by the rule of law, but also to ensure social and equal justice "between chronic unequals" in a more positive and meaningful sense; India, therefore, needs a Judiciary "which is in tune with the (this) social philosophy of the *Constitution*."[80]

This was made clear by FAZL ALI, J., in the following words –

> Administration of justice can no longer be merely protector of *legal* rights, but must whenever possible, be dispenser of social justice.[81]

(iii) The philosophy of socio-economic justice should, therefore, be borne in mind–

(a) While appointing Judges.[82]

(b) While interpreting the relevant provisions of the Constitutions.[83]

I While appreciating the span of independence of the Judiciary which is a "basic features" of the *Constitution*.[83]

(d) If, in enforcing *legal* rights, it is possible, without depriving any party by his existing legal rights, the Court should lean towards that conclusion which would 79ecognize human beings as human beings and their human needs and ensure social justice.[84]

Social Justice is the comprehensive form to remove social imbalances by law harmonizing the rival claims or the interests of different groups and/or section in the social structure or individual by means of which alone it would be possible to build up a “Welfare State”. Social Justice forms the basis of progressive stability of society and human progress.

The bulk of “social legislation” as interpreted by courts, containing a high component of social justice relates to “abolition of bonded labour'[85] eradication of untouchability (*Article 17 of the Constitution*), award of compensation in accident cases[86]; Child Welfare (*Article 39*(f) of the Directive Principles of State Policy and the decision in *Sheela Borse v Secretary, Children Aid Society,*[87] right to livelihood[88] social and economic justice in industrial disputes[89] protective discrimination in favour of backward classes[90] securing the liberty of women and children detained[91] women welfare[92] for loss of life and damage due to administrative lapses[93] rehabilitation of sexual workers[94] are some of the instances where the court gave great importance to social justice. In fact, the judiciary has given directions to State to legislate so as to give effect to social justice, such as the desirability of legislation to ban ragging in educational institutions.[95]

Social and Economic Justice in the context of our Indian *Constitution* must, be understood in a comprehensive sense to remove every inequality and to provide equal opportunity to all citizens in social as well as economic activities and in every part of life.[96]

The aim of Social Justice is to attain substantial degree of social, economic and political equality. Social Justice and equality are complimentary to each other, so that both should maintain their vitality.[1]

Article 38 of the Constitution requires promoting welfare of the people by securing and protecting as effectively as it may, a social order in which social, economic and political justice shall be assured. The people cannot lead a peaceful life if there is no “social safety”. But the State cannot transgress the constitutional limits in enacting social safety measures, which instead of affording safety, may infringe the liberty and freedom of people.

A law designed to abate a grave nuisance and for protection of public health is one enacted for the protection of the interest of the public. In such cases, a law extinguishing the right of the owner of an animal in its carcass with a view to destroying it for abetting the nuisance and preventing danger to public health was protected.[2]

Though the Court should have in favour of social justice the principle cannot be applied where the legislature has already taken note of the same and has prescribed the norms to pay compensation. The Court cannot award more than the rates prescribed.[3]

The aim of “Social Justice” or “Socialism” is the distribution of the material resources of the community in such a way as to subserve the common good. The principle embodied in *Article 39(b) of the Constitution* is one of the essential directives to bring about the distribution of material resources and it would give full play to the distributive justice.[4]

It was held that all State actions should be such to make socio-economic democracy with liberty, equality and fraternity, a reality to all people through democratic socialism under rule of law.[5] The Hon’ble Supreme Court has also used the word “socialist” in the Preamble for evolving a concept of social democracy which comes closer to the concept of “Social Welfare State” expressed as “Social State for example in the *Constitution* of France and Germany.[6]

Granville Austin, *The Indian Constitution – Cornerstone of a Nation*,[7] has said: "The Indian *Constitution* is first and foremost a social document. The majority of its provisions are either directly aimed at furthering the goals of social revolution or attempt to further this revolution by establishing the conditions necessary for its achievement. Yet, despite the permeation of the entire *Constitution* by the aim of national renaissance, the core commitment to the social revolution lies in Pts III and IV, in the Fundamental Rights and in the Directive Principles of State Policy. These are the conscience of the *Constitution*".

SARDAR K.M. PANIKKAR, member of Constituent Assembly, believed that Rights and Principles have been the source and inspiration of reform legislation, for, under their aegis "the Indian Parliament has been active in the matter of social legislation, whether it be called Hindu code or by another name. The Fundamental Rights of other *Constitution* may have served as well as – or even better than – those of Indian *Constitution* in protecting the existing rights and liberties of the people concerned. It is very doubtful, however, if in any other *Constitution* the expression of positive or negative rights have provided so much impetus towards changing and rebuilding society for the common good".[8]

The element of social justice has thus entered into the sphere of non-constitutional relations. Thus, where certain persons in need of shelter entered into a land as trespassers and built hutments, continued in possession and when the land was put up to Court sale, offered to bid at that sale on competitive price, the Supreme Court held that their application should *not* be rejected on the sole legal ground that they had no footing, being trespassers. The Court observed—

> It is true that the persons who were alleged to be in possession, are with unclean hands, but they came for shelter and built in hutments. They do not want to legitimate their stay by illegal entry, they want to be rehabilitated at a competitive bargain price. Should they be denied that opportunity on the ground of their original illegitimacy? I am definitely of the opinion that in these circumstances they should not be so denied rehabilitation……
>
> Before we reject social justice as something alien to legal justice, we should remember that a meaningful definition of the rule of law must be based on the realities of contemporary aspects are – men, are in acute shortage of living accommodation and if they are prepared to bargain and rehabilitate themselves on competitive terms, they should be encouraged and no technical rules would stand in their way.[9]

30. Social Justice and Natural Justice

Social Justice has to be distinguished from Natural Justice.

Though both are in the nature of ideals, while Social Justice is, by nature, unenforceable at law and has been embodied in the Directive Principles in Pt IV of *our Constitution*, Natural Justice, though not enumerated as a fundamental right in Pt III, has been elevated to that status, by judicial interpretation of *Articles 14*, *19* and *21* (see under these Articles, *post*).

31. Economic Justice

The ideal of *economic* justice means that there will be no distinction between man and man from the standpoint of economic value. In short, it means equality of reward for equal work [*Article 39*(*d*)][10] Every man should get his just dues for his labour, irrespective of caste, sex or social position. It also means the abolition of those economic conditions which ultimately result in the inequality of economic value between man and man, viz., the concentration of wealth and means of production in the hands of a few [*Article 39*(*c*)]. Though *our Constitution* is not tied to any particular school of social philosophy like Socialism, Communism or the like and though it does not advocate State ownership of the means of production,[11] it holds out the above ideals of economic justice in its Chapter on the Directive Principles of State Policy.

The meaning of “economic justice” has been explained, in a well-reasoned judgment, by RAMASWAMI J., for a Division Bench.[12] In short, economic justice aims at establishing economic democracy and a “welfare State”.[12]

The Parliament has enacted *Equal Remuneration Act 1976* to implement *Article 39*(d). The Act provides for equal remuneration to men and women workers for the same work or work of similar nature and for prevention of discrimination on the grounds of sex. The Act also provides that there shall be no discrimination against the recruitment of women and provides for setting up of an advisory committee to promote employment opportunities for women.

Economic Justice means abolition of these economic conditions which ultimately results in inequality of economic values between men. It means to establish a democratic way of life built upon socio-economic structure of the society to make the rule of law dynamic.

Equality before law is a co-relative to the concept of rule of law for all-round evaluation of healthy social order. Directives set forth social principles to eliminate inequalities in income, in status and opportunity and to provide facilities and opportunities to every citizen to make the fundamental rights meaningful and the life of every citizen worth living and at its best, with the dignity of person and fraternity, lest they remain empty vessels and teasing illusions to majority population. The concept of equality and equal protection of law guaranteed under *Article 14 of the Constitution* in its proper spectrum encompasses social and economic justice in a political democracy as its species to eliminate inequalities in status and to provide facilities and opportunities among the individual and groups of people to secure adequate means of livelihood which is the foundation for stability of political democracy.[13]

32. Social and economic Justice for women

The words “all citizens” at the beginning of the Preamble obviously include women. The *Constitution*, therefore, lays down various provisions for ensuring justice, equality of status and opportunity and dignity to women.[14] Thus, –

Article 14 guarantees equality “to any person” in the broadest terms.

Article 15(1) prohibits discrimination against women on the ground of sex and C1.(3) of the Article further enjoins the State to make special provisions for women which would render their equality of status meaningful, by removing all disabilities. C1.(3) is intended to remedy past injustice and to *advance* their status, socio-economic and political.[15] In *Anuj Garg v Hotel Assn. of India,*[16] a provision prohibiting women from working in public places serving liquor was held invalid since it violated the equality clause.

In *Vishaka v State of Rajasthan,*[17] the Court came down heavily on sexual harassment of women at workplaces and has declared the same to be violation of women’s right under *Article 21*.[18]

Articles 39(a), 39(d) and 39(e) were invoked to confer economic empowerment on women.[19]

The Supreme Court has severely criticised the approach towards women (housewife/home makers) who are not treated equally in cases of accident when she dies. The court found that categorising women as “non - workers” clubbing them with beggars, prostitutes and prisoners as most improper. The court held that such an attitude betrays a totally insensitive and callous approach towards the dignity of labour of women and expressed the hope that suitable amendment will be made to *Motor Vehicles Act*, matrimonial laws and other relevant laws for giving compensation when the victim is a home maker.[20]

Article 15(3) enables the State to make “special provision” in regard to women and children.

The Supreme Court declared that prostitutes or sex workers also have right to dignity and explained the circumstances in which a woman may become a prostitute. The Court directed that these women have a right to live with dignity and have to be rehabilitated. The Court observed that a woman becomes a prostitute not for pleasure, but because of abject poverty. Such women should be given an opportunity to avail some vocational or technical training, so that they would be able to earn a living by such vocational training and skill instead of by selling their bodies.[21]

The *Dowry Prohibition Act* of 1961, as amended, may be mentioned as an instance of special provision for the protection of women.

Article 16(1) accords equality of opportunity to women in the matter of employment under the State.

Applying this Article, the Court has held that the following should *not* disqualify a woman for such employment or to continue it –

Marriage[22]; pregnancy.[23]

The Directive in *Article 38*(2) to minimise inequalities in income, status and opportunity would extend to women.[24]

The Directive in *Article 39*(d) to ensure *equal pay* for equal work expressly includes women. So also *Article 39*(e) which enjoins that the health and strength of workers is *not abused*.

Article 42 further directs the State to ensure just and human conditions of work and maternity relief to women workers.[25]

A just social order can be achieved only when inequalities are obliterated and everyone is provided what is legally due. Women who constitute almost half of the segment of the society have to be honoured and treated with dignity at places where they work to earn their livelihood. Whatever be their nature of duties, their avocation and the place where they work, they must be provided with all facilities to which they are entitled. “Whatever is needed to facilitate the birth of child to a woman who is in service, the employer has to be considerate and sympathetic towards her and must realize the physical difficulties which a working woman would face in performing her duties at the workplace while carrying a baby in the womb or while rearing up the child after birth. The *Maternity Benefit Act, 1961*, aims to provide all these facilities to a working woman in a dignified manner. So that she may overcome the state of motherhood honourably, peacefully undeterred by the fear of being victimised for forced absence during the pre or post natal period. Hon’ble Supreme upheld the decision of the Industrial Tribunal granting benefits of *Maternity Benefit Act* to female workers (Muster Roll) employed by Delhi Municipal Corporation.[26]

Provision in, for appointment of lady Principal or a lady teacher, or a lady doctor or a woman superintendent of hostel in a women’s college is a precautionary, preventive and protective measure based on public morals and protected under *Article 15(3) of the Constitution*.[27]

Women after thirty one years of marriage, having no children, compelled to live alone at an advanced age of more than sixty years were held entitled to protection under the *Domestic Violence Act* 2005. Compelling a woman to live alone was held to amount to “domestic violence”. In that case, the Court further held that conduct of parties even prior to coming into force of the Act can be taken into consideration for granting relief to the woman.[28]

In a case of dowry death, the accused is generally charged under *section 304-B of Indian Penal Code, 1860*. The Supreme Court has said that dowry death is a heinous and barbaric crime against women and the accused must be charged under *section 302 Indian Penal Code, 1860* also, so that the death sentence can be imposed on the accused.[29]

Sexual harassment of women at place of work amounts to violation of fundamental rights to gender equality under *Article 16*(2).[30]

Section 497 of CrPC 1898 (present *section 437 Code of Criminal Procedure, 1973*) prohibited release of a person accused of a capital offence on bail, except a woman or a child under the age of 16 or a sick person. The provision was held valid as it metes out a special treatment to women which is consistent with *Article 15(3) of the Constitution*.[31]

Special allowance to women principals (alone) was upheld holding that though it amounts to discrimination under *Article 16*, it is saved under *Article 15*(3). The court held that as *Articles 14*, *15* and *16* are constituents of a single code of constitutional guarantee, and supplement each other, clause (3) of *Article 15* can be invoked for construing and determining the scope of *Article 16*(2).[32]

The Court after holding that the reservation policy of State Govt. in force is contrary to *Article 14*, *15* and *16*, took into consideration the fact that a large number of young girls below the age of ten years were taught in primary schools and it would be preferable that such young girls are taught by women and further held that reservation of 50% in favour of female candidates was valid.[33]

In the matter of State largesse where dealership of retail outlets of petrol pumps was reserved for women, it was held that financial capacity and ability to provide infrastructure and facilities are not relevant material criteria when the instrumentality of the State is providing finance and concerned outlet site is owned and retail outlet is to be operated by such instrumentality.[34]

In *Govt. of AP v P.B. Vijay Kumar,*[35] explaining the object for inserting clause (3) to *Article 15*, the Court said: "The insertion of clause (3) of *Article 15* in relation to women is a recognition of the fact that for centuries, women of this country have been socially and economically handicapped. As a result, they are unable to participate in the socio-economic activity of the nation on a footing of equality. It is in order to eliminate this socio-economic backwardness of women and to empower them in a manner that would bring about effective equality between men and women that clause (3) is placed in *Article 15*. Its object is to strengthen and improve the status of women."

Article 51 -A provides that it shall be the duty of every citizen of India "*inter alia*" to abide by the *Constitution* and respect its ideals and institutions and to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religion, linguistic and regional or sectional diversities, to renounce practice to the derogatory of women.

The practice of the Life Insurance Corporation of India requiring women candidates for jobs to provide information about their menstrual cycles and pregnancies was successfully challenged not on the ground of alleged violation of equality, but on the ground of violation of right to privacy under *Article 21*.[36] In that case, the Court observed that the intention of LIC was to deny maternity leave and remove women from service.

In Kerala, there is a very famous temple known as Sabarimala Ayyappan Temple. It is under the control of Travancore Devaswom Board. In that temple, women between the ages of ten and fifty are not allowed to offer prayer. The said prohibition was challenged. Although it was argued on behalf of the Board that the above prohibition was due to hazardous terrain that a worshipper has to climb to reach the deity, the real reason was

the traditional notion of impurity of menstruating women. The Kerala High Court observed that the words “all classes and sections of Hindus” in *Article 25(2)(b) of the Constitution* meant those classes and sections that were prevented from entering the temple because of their caste and did not include women.[37] (The matter is still pending before the Supreme Court). In order to determine how far such a ban will be valid, the Court has to look at *Article 15*(2).

Article 15(3) enables to make “any special provision for women and children”. *Articles 15* and *16* read together prohibit direct discrimination between members of different sexes. The two Articles do not prohibit special treatment for women. The Constitutional mandate is infringed and where the females would have received same treatment with males “but for their sex”.[38]

The broad provision in *Article 46* to promote the educational and economic interests of the weaker sections and to protect them from “exploitation” should comprise women as well.[39]

33. Political Justice

Political Justice means the absence of any arbitrary distinction between man and man in the political sphere. This is secured under our *Constitution* by the adoption of universal adult suffrage and the abolition of communal reservation, and by throwing open employment under the State to all citizens without distinctions of race, caste, sex, descent, place of birth or religion.

34. *“Liberty”.*

“Liberty” was originally understood only as a negative concept, viz., the absence of undue or arbitrary interference with individual action on the part of Government. But to modern thinkers it has become a positive concept as comprising “liberties” or rights which are essential to the development of the individual and the perfection of the national life, *e.g.*, liberty of thought and expression.[40]

Our Constitution regards the liberty of “thought”, belief, faith and expression to be essential to the development of the individual and the nation, and these it promises to secure, in the Preamble. The exact contents of these rights or *liberties* are, however, defined by the Chapter on Fundamental Rights; but in cases of doubt, it may be useful to refer to the ideal of liberty embodied in the Preamble. [See, further, under *Article 21*, *post*].

In an ordered society, the liberty of no individual can be absolute or unfettered. It must be subject to social control, in order to protect the collective interests of the aggregate of individuals who constitute that society *e.g.*, for the prevention and investigation of crimes and the prosecution of criminals. This has been highlighted by the dissenting Judge, RAMASWAMY, J., in *Kartar Singh’s case*[41] in his words –

> … Life and personal freedom are the prized jewels under *Article 19* conjointly assured by *Articles 20*(3), 21 and 22 of the *Constitution*……Liberty aims at freedom not only from arbitrary restraint but also to secure such conditions which are essential for the *full development of human personality*. Liberty is the essential concomitant *for other rights* without which a man cannot be at his best. The essence of all civil liberties is to keep alive the freedom of the individual subject to the limitations of *social control* envisaged in diverse Articles in the chapter of Fundamental Rights Pt III in harmony with *social* good envisaged in the Directive Principles in Pt IV of the *Constitution*. Freedom cannot last long unless it is coupled with order. Freedom can never exist without order……41
>
> Though one of the main functions of the democratic Government is to safeguard liberty of the individual, unless its exercise is subject to social control, it becomes anti- social or undermines the security of the State. The Indian democracy wedded to rule of law aims not only to protect the fundamental *rights* of its citizens but also to establish an egalitarian *social order…*[41]
>
> Liberty cannot stand alone but must be paired with a companion virtue, liberty and morality; liberty and law; liberty and

> justice; liberty and common good; liberty and responsibility which are concomitants for orderly progress and social stability……42
>
> Unless restraint is enforced on and accepted by all members of the society, the liberty of some must involve the oppression of others. If liberty be regarded a social order, the problem of establishing liberty must be a problem of organising restraint which society controls over the individual. Therefore, liberty of each citizen is borne of and must be subordinated to the liberty of *the greatest number*, in other words, common happiness as and end of the society, lest lawlessness and anarchy will tamper social weal and harmony and powerful courses or forces would be at work to undermine social welfare and order. Thus, the *essence of civil liberty* is to keep alive the freedom of the individual subject to the limitation of social control which could be adjusted according to the needs of the dynamic social evolution.[42]

Liberty is the most cherished possession of a man. Liberty is the right of doing an act which the law permits. *Constitution* has recognized the existence of the right in every man. It was not be guaranteed or created. One inherits by birth. This absolutism has not been curtailed or eroded. Restriction has been placed on exercise of power by the State by using the negative in *Article 21*. It is the State which is restrained from interfering with freedom of life and liberty except in accordance with the procedure established by law.[43]

Article 21 did not positively confer a fundamental right to life or personal liberty like *Article 19*, because great concepts like liberty and life were purposely left to gather meaning from experience. They relate to the whole domain of social and economic fact. The drafters of the *Constitution of India* know too well that only a stagnant society remains unchanged. Therefore, it is not correct to state that because the article (*i.e.,* *Article 21*) is couched in a negative language, positive rights to life and liberty are not conferred. The right to life and liberty inheres in every man. There is no need to provide for the same in a positive manner.[44]

Liberty of social man consists in the protection of unrestrained action in as high a degree as the same claim of protection of each individual admits of or in the most efficient protection of his rights, claims, interests as a man or citizen or of his humanity manifested as a social being and natural liberty is the right which nature gives to all mankind of disposing of their persons and property after the manner they judge most consonant to their happiness, on condition of their acting within the limits of law of nature and so as not to interfere with an equal exercise of the same rights by other means.

A doubt might arise whether a regulation made for anyone class of citizens, entirely arbitrary in its character, and restricting their rights, privileges, or legal capacities in a manner before unknown to the law, could be sustained, notwithstanding its generality. Distinction in these respects should be based upon some reason which renders them important – like the want of capacity in infants and insane persons; but if the legislation should undertake to provide that person following some specified lawful trade or employment should not have the capacity to make contracts or to receive conveyances or to build such houses as others were allowed to erect or in any other way to make such use of their property as was permissible to others, it can scarcely be doubted that the act would transcend the due bounds of legislative powers, even if it did not come into conflict with express constitutional provision. The man or the class forbidden the acquisition or enjoyment of property in the manner permitted to the community at large would be deprived of “liberty” in particulars of primary importance to his or their “pursuit of happiness”.[45]

It is the right of an individual to be free from restrictions or encroachments on the person, whether these restrictions or encroachments are directly imposed or indirectly brought about by calculated measures.

Right to personal liberty takes in not only a right to be free from restrictions placed on his movements, but also free from encroachments on his private life. It is an essential ingredient of personal liberty. If physical restraints on a person’s movement affect his personal liberty, physical encroachment on his private life would affect it in a

larger degree. Indeed, nothing is more deleterious to a man's physical happiness and health than a calculated interference with his privacy.[46]

Personal liberty means freedom from physical restraints of a person by incarcerations or otherwise.[47] The words "personal liberty" in *Article 21* have been used as a compendious term to include in them all the varieties of rights which go to make up the personal liberties of man other than those dealt with in *Article 19*. Personal liberty in *Article 21* takes in and comprises all residue.[48] There is the liberty of a man in the capacity of an individual, his "personal liberty" or as we may also say, his "civil liberty". (International Encyclopedia of Social Sciences, vol XII, p 246).

Liberty is confined and controlled by law, whether common law or statute. It is a regulated freedom. It is not an abstract or absolute freedom. The safeguards of liberty is in the good sense of the people and in the system of representative and responsible government, which has been evolved. Liberty is itself the gift of law and may by the law forfeited or abridged.[49]

In ordinary language "personal liberty" means liberty relating to or concerning the body of the individual and "personal liberty" in this sense is the antithesis of "physical restraint or coercion"[50]

The juristic conception of "personal liberty" is that it consists in freedom of movement and locomotion. (per FAGAL ALI, J.)

Right to travel abroad is part of personal liberty.[51]

Personal liberty covers a variety of rights which go to constitute the personal liberty of men and some of them have been raised to the status of distinct fundamental right and additional protection under *Article 19*.[52]

"Next to my "civil liberty", there is my liberty in the capacity of a citizen, my liberty as a member of the public and a part of legal association, my public and political liberty. Government is not external: it is in us: or springs from us and we regard political liberty as positive in its nature. It is a liberty not of curbing Government, but of constituting and controlling it; constituting by a general act of choice of election, in which we all freely share according to our capacities. Besides civil liberty which belongs to me in my capacity of an individual person and the political liberty which belongs to me in my capacity as a citizen and a member of the public, there is also a third form of liberty in my capacity as a worker, whether with hand or brain, engaged in some gainful occupation or service, and it may be argued that the conception introduces an unnecessary distinction.

These three forms of liberty may quarrel with one another. The liberty of citizen in the political sphere may quarrel with the individual person in the civil sphere; for example, the enjoyment of intellectual freedom for the expression of thought and belief, which is one of the great articles of civil liberty, may come into conflict with parliamentary majority, acting in the name of political liberty, if such a majority seeks to lay down condition adverse to the free expression of thought and belief on the ground that it is seditious and calculated to excite disaffection against the government or to promote hostility between classes. Similarly, the liberty of individual in the civil sphere may quarrel with that of the worker in economic sphere; and the worker's enjoyment of some share in determining his usages and the condition of work may be challenged, as in past it was, by a claim on the other side to the enjoyment of a freedom of contractual action which narrates the employer in practically dictating the terms of wages and conditions of work. Here, political liberty can, and has, come to the rescue of economic liberty; but it is also possible that a parliamentary majority acting in the name of political liberty, may seek to impose condition adverse to the enjoyment of economic liberty as that liberty is conceived and claimed by the workers and their organization". (Barker, *Principles of Social and Political Theory, pp* 146-47).

In *S.S. Bola's case* (*supra*), it was held: "The essence of civil liberty is to keep alive the freedom of individual subject to the limitation of social control which could be adjusted according to the needs of the dynamic social

evolution. Liberty, equality and fraternity are not to be treated as separate entities, but a trinity. They form a union, in that, to divorce one from the other is to defeat the very purpose of democracy. Liberty cannot be divorced from equality. Equality cannot be divorced from liberty. Nor can equality and liberty be divorced from fraternity. Without fraternity, liberty and equality would not become a natural course of things. Court, as "sentinel on qui vive", therefore, must strike a balance between the changing needs of society for peaceful transformation with order and protection of the rights of citizens. This could be achieved through securing and protecting liberty, equality and fraternity with social justice and economic empowerment and political justice to all citizens only under the rule of law". (by JUSTICE RAMASWAMY in para 82).

There can be no liberty without social restraints. Liberty, as a social conception is a right to be assured to all members of a society. Unless restraint is enforced on and accepted by all members of the society, the liberty of some must involve the oppression of others. Liberty of each citizen is borne of and must be subordinated to the liberty of the greatest member, in other words, common happiness as an end of the society. The essence of civil liberty is to keep above the freedom of the individual subject to the limitation of social control which could be adjusted according to the needs of the dynamic social revolution.[53]

> Liberty denotes not merely freedom from bodily restraint but also the right of the individual to contract, engage in any of the common occupations of life, to acquire useful knowledge, to marry, establish a home and bring up children, to worship God according to the dictates of his own conscience, and generally to enjoy those privileges long recognized at common law as essential to the orderly pursuit of happiness by free men.[54]

"The word liberty has become a symbol around which have clung some of the most generous human emotions. We have been brought up to thrill with admiration at the men who say, Give me liberty or give me death. But the philosopher asks whether all those who are devoted to liberty mean the same thing. Does liberty or freedom, for instance, involve free trade? Does it involve freedom to preach race hatred or the overthrow of all that we regard as sacred? Many who believe in liberty characterize the freedom which they are not willing to grant, as license, and they do it so often that one may be inclined to think that what we really need is less liberty and more license. Moreover, there is a confusion between the absence of legal restraint and the presence of real freedom as positive power to do what we want. The legal freedom to earn a million dollars is not worth a cent to one who has no real opportunity. It is fashionable to assert that men want freedom above all other things, but a strong case may be made out for the direct contrary. Absolute freedom is just what people do not want.[55]

According to John Salmond in his book "Jurisprudence [10th edition at p 239] "The sphere of my legal liberty is that sphere of activity within which the law is content to leave me alone"

35. Civil Liberties have to be distinguished from Human Rights

Human Rights are those that have derived from the natural law which have evolved out of natural rights, right inherent to people by virtue of their being human and being of a moral and natural in origin and having a common capacity to reason. This comprises a core of basic guarantees, including the right to life, freedom from torture or inhuman treatment or punishment, freedom from slavery, servitude and forced labour, the right to free movement (mobility) and the right to food and shelter.

These are very basic rights that are necessary for a human being to survive in the world at large. For, being subjected to torture or forced labour, is not conducive to survival. On a more basic level, being a right to seek food or shelter will invariably deprive one of his or her capacity to survive. Hence, today's notion of human right has descended from natural laws which have evolved as a part of natural right. They are not positivistic in the sense that the State has contracted a deal with its citizenry, they are more natural in origin.

Civil rights or civil liberties, on the contrary, are positivistic in nature. They are rights which the State has contracted with the citizens and are political in nature. State-made, and State enforced rights of the nature are

now synonymous with what are known as civil liberties. Such rights would include the right to participate in free elections, or perhaps the right to a fair and impartial hearing when accused of a criminal offence. Civil liberties of this nature are based on the western notion of democracy and are permitted by laws enacted by respective government.

But, in spite of difference between the two, it is important to note that they are indeed inextricably linked. There is a seamless web where one sometimes folds into the other. So, if sometime the accused are denied a fair trial by an independent and impartial tribunal, it means, they are denied their civil rights as guaranteed by the State. But, if they are imprisoned for this, and thus denied their freedom of movement or subjected to servitude (for no legitimate reason), then they are being denied their basic human rights as well.

There is a cross-road effect between civil liberties and human rights. As a result of this overlap, many theories emerge, and practitioners would not make a distinction between human rights and civil liberties. For, it is often difficult to tease out the differences between the two. Seeing that the two concepts are so inextricably interlinked, today they have virtually become one.[56]

In India, the courts have declared that "personal liberty" in *Article 21* is of the widest amplitude and it covers a variety of rights which go to constitute the personal liberty of men. Some of them have been raised to the status of distinct fundamental rights and given additional protection under *Article 19*.[57] The Supreme Court has held that "personal liberty" cannot be identified, with strict boundaries, but at the same time mandates that such liberty must also accommodate public interest. A woman's right to make reproductive choices has been held to be a dimension of "personal liberty" within the meaning of *Article 21*.[58] It was held that "it is important to recognise that reproductive choices can be exercised to procreate as well as to abstain from procreating. The crucial consideration is that a woman's right to privacy and bodily integrity should be respected."

The State can treat unequals differently for the purpose of creating level playing fields in social, economic and political spheres.[59]

36. *"Equality".*

The Declaration of the Rights of Man and Citizen adopted by the authors of the French Revolution included –

> Men are born and remain free and equal in rights. Social distinctions can be based only upon public utility……
>
> *Law* is the expression of the general will……It must be the *same for all*, whether it *protects or punishes*. All citizens being equal in its eyes, are *equally eligible* to all public dignities, places and employments, according to their capacities, and without any other distinction than that of their virtues and talents.

It is exactly this equality of "status and opportunity" that *our Constitution* professes to offer to the citizens, by the Preamble. And the object is secured in the body of the *Constitution*, by making illegal all discriminations by the State between citizen and citizens, on the ground of religion, race, caste, sex or place of birth [*Article 15*]; by throwing open "public places" to all citizens [*Article 15*(2); by abolishing untouchability [*Article 17*]; by abolishing titles of honour [*Article 18*]; by offering equality of opportunity in matters relating to employment under the State [*Article 16*]; by guaranteeing equality before the law and equal protection of the laws, as justiciable rights [*Article 14*]. The cumulative effect of all these guarantees is certainly wider than what Jefferson could comprehend when he explained equality as—

> the denial of every pre-eminence but that annexed to legal office and particularly the denial of a pre-eminence of birth,

for, notwithstanding the solemn guaranty in the American *Constitution* of the equal protection of the laws and the heroic efforts of the Supreme Court to enforce it (see under *Article 14*, *post*), America has till now failed to root out discriminations on the ground of birth and colour.

The Indian *Constitution* not only guarantees the "liberty and equality" envisaged in the Preamble as Fundamental rights, but also empowers "the Judiciary to enforce them against all State action, including legislative. Judicial review over legislation is thus a feature of the Indian *Constitution* as of the American.[60]

"Equality before law" is a dynamic concept having many facets – the facet – the most commonly acknowledged – is that there shall be no privileged person or class and that none shall be above Law. A facet which is of immediate relevance is the obligation upon the state to bring about, through the machinery of law, a more equal society envisaged by the Preamble and Pt IV of the *Constitution*. For equality before Law can be predicated meaningfully only in an equal society *i.e.* in a society contempted by *Article 38 of the Constitution*.[61] The right to equality is not confined to citizens alone, but to any person within the territory of India. Equality before Law is a negative concept. It declares that no one can claim special privilege and all classes are equally subject to the ordinary laws of land. Equal protection of law, which is a pointing one, postulates equal protection of all alike in the same situation and under similar circumstances.[62]

The principle of equality of law means not the same law should apply to everyone, but that a law should deal alike with all in one class; that these should be equality of treatment under equal circumstances. It means "that equals should not be treated unlike and unlikes should not be treated alike. Likes should be treated alike."[63]

Equality is one of the magnificent cornerstones of Indian Democracy[64] and equality status permeates the basic structure of the *Constitution*.[65]

The rule of equality is intended to advance justice by avoiding discrimination[66] and is available to citizens as well as non-citizens[67] and it is a right which is secured from all legislative and executive tyranny by way of discrimination.

An independent judiciary has to play its role in maintaining the rule of law and the common man's faith in the justice delivery system. Both rule of law and equality before law are cardinal principles in constitutional laws as well as in international law and in this context the role of judiciary is very vital. Courts while maintaining the rule of law must structure their jurisprudence on the famous formulation of Lord Coke, where the Law Lord made a comparison between "the golden and streight metwand of law" as opposed to "the uncertain and crooked cord of discretion".[68]

But the principle of equality has no application in perpetuating an illegality. Once the court comes to the conclusion that a wrong order has been passed, the benefit of wrong order cannot be applied to another person on the ground of equality and discrimination.[69]

(For further discussion, see *Article 14*).

A person or a citizen cannot give up or waive a breach the fundamental right of equality which is conferred or guaranteed under *Article 14*.[70]

37. *"Fraternity".*

Democracy would indeed be hollow if it fails to generate a spirit of brotherhood among all sections of the

people, – a feeling that they are all children of the same soil, the same motherland. It becomes all the more essential in a country like India, composed of so many races religions, languages and cultures.

Article 1 of the Declaration of Human Rights (1948), adopted by the United Nations, says :

> All human beings are born free and equal in *dignity* and rights. They are endowed with reason and conscience and should act towards one another in a spirit of brotherhood

In the words of the Supreme Court –

> …Fraternity means a sense of common brotherhood of all Indians. In a country like ours with so many disruptive forces of regionalism, communalism and linguism, it is necessary to emphasise and re-emphasise that the unity and integrity of India can be preserved only by a spirit of brotherhood. India has one *common citizenship* and every citizen should feel that he is *Indian first* irrespective of other basis.[71]

It is this spirit of brotherhood that the Preamble of our *Constitution* refers to.

The unity and fraternity of the people of India, professing numerous Faiths, has been sought to be achieved by enshrining the ideal of a “secular State”, which means that the State protects all religions equally and does not itself uphold any religion as the State religion. There is no provision in the *Constitution* making any religion the “established Church” as some other Constitutions do. On the other hand, the liberty of “belief, faith and worship” promised in the Preamble is implemented by incorporating the fundamental right of all citizens relating to “freedom of religion” in *Articles 25* -29, which guarantee to each individual freedom to profess, practice and propagate his own religion without interference and at the same time assures strict impartiality on the part of the State and its institutions towards all regions. This itself is one of the glowing achievements of Indian democracy when her neighbours, such as, Pakistan and Burma (now *Myanmar*), uphold particular religions as State religions.

According to learned jurist H.M. Seervai in his book *Constitutional Law Of India,* 4th Edn, vol I, p 282) “Fraternity as an object is not reflected in any article of the *Constitution* – no *Constitution* and no law can produce brotherly feeling or concord. These are provisions of the *Constitution* which are designed to promote fraternity, such as a common citizenship (*Article 5*) and the right of citizen of India to move freely throughout the territory of India to reside and settle in any part of India, or to acquire hold and dispose of property to practice any profession, or to carry on any occupation, trade or calling in any part of India (*Articles 19*(1)(a) to (g). These are however, other provisions which militate against fraternity, such as the division of States on linguistic lines and the provision relating to language. A fair and even handed executive administration can do more to promote fraternity than any constitutional or legal provision. The fourth objective refers to moral and political ideal, and it can throw no light on the interpretation of our *Constitution* nor does any provision of our *Constitution* give a clear content to fraternity.”

The Preamble to the *Constitution of India* secures as one of the objects, fraternity assuring the dignity of individual and the unity and integration of nation to “We, the People of India”. Reservation, unless protected by the *Constitution* itself, as given to us by the Founding Fathers and as adopted by the people of India, is subversion of fraternity, unity and integrity and dignity of the individual. While dealing with Directive Principles of State Policy, *Article 46* is taken note of often overlooking *Article 41* and *Article 47* obliges the State *inter alia* to

make effective provision for securing the right to work and the right to education. Any reservation in favour one to the extent of reservation is an inroad on the right of others to work and to learn.[72]

BARKER in his book *Principles of Social and Political Theory* (at pp 142-43) has said: "We may seek to formulate it (fraternity) by saying that the legal association, besides treating each individual member as a free agent in its scheme of law and an equal factor in the operation of that scheme, will also follow a third principle in distributing among its members the various rights which are the conditions of their personal development. This is the principle of providing for all and distributing among all the common equipment, material and mental which is needed by all as the common background and the common basis of their individual lives. All of us individually need liberty and equality in ourselves, all of us need collectively a common equipment for our common benefit. The usage of revolutionary France has given the name of fraternity to the principle which leads to the distribution of this common equipment for common enjoyment, fraternity in its strict sense in our emotion than a principle and in that sense it cannot be said to be in *pari materia* with the principles of liberty and equality. But, it is a term which has been traditionally used in a broader sense, and it may perhaps be used provisionally to designate a principle, governing the distribution of rights which might also be called by the name of "co-operation" or "solidarity". The liberty of each individual as a free agent, the equality of each as a legal factor in the legal association and the fraternity of all in the common enjoyment of a common equipment provided by common and co-operative effort – these, in summary, are the three principles long associated by an ancient tradition which goes back to a Greek origin, on which the State and its law proceed in determining the distribution of rights.

During the Constituent Assembly Debates, DR. AMBEDKAR said: "….a sense of common brotherhood of all Indians, if Indian being one people. It is this principle which gives unity and solidarity to social life. It is a difficult thing to achieve…In India there are castes. The castes are anti-national. In the first place, because they bring about separation in social life. They are anti-national also because they generate jealousy and antipathy between caste and caste. But, we must overcome all these difficulties if we wish to become a nation of unity. For, fraternity can be a fact only when there is a nation. Without fraternity, equality and liberty will be no deeper than coat of paint".[73]

In his book *Competing Equalities – Law and the Backward Classes in India,* MARE GALANTER says: "The *Constitution* sets forth a general programme for the reconstruction of Indian society. In spite of its length, it is surprisingly undetailed in its treatment of the institution of caste and existing group structure of Indian society. But it clearly sets out to secure to individuals equality of status and opportunity, to abolish invidious distinction among groups, to protect the integrity of a variety of groups – religious, linguistic and cultural, to give free play to voluntary association, to confer the widest freedom of association to the individual and generally the widest personal freedom consonant with public good. Without pursuing all of these in detail, it is clear that the following general principles are consistently in evidence – (1) a commitment to the replacement of ascribed status by voluntary affiliation; (2) an emphasis on the integrity and autonomy of groups within society; (3) a withdrawal of government recognition of rank ordering among groups." (at p 350).

The Supreme Court has expressed great displeasure about the caste system that is prevalent in India. The court observed: "In a civilised country like India, centuries old Indian caste system still take its toll from time to time and it is absolutely imperative to abolish caste system as expeditiously as possible for smooth functioning of rule of law and democracy in India.[74] In a subsequent decision, the Court held that freedom from discrimination and right to live with dignity is a fundamental right under *Articles 15*(2), 17 and 21. Insulting or hurting anyone's feelings on account of his caste, religion, tribe, language cannot be allowed. The Court observed that one of the main causes holding up India's progress is linked to mental attitude of Indian society to regard a section of their own countrymen as inferior and this mental attitude is simply "unacceptable".[75] In *Swaran Singh v State,*[76] the Court held that calling a person by his low caste is affecting his dignity and hurt his feelings.

The *Protection of Civil Rights Act 1955* and The Scheduled Caste and *Scheduled Tribes (Prevention of Atrocities) Act 1989* are some of the legislations to promote the cause of weaker sections which are held as constitutionally valid. *Article 38* and *46* enable the State to legislate to promote the interests of weaker sections and SC/ST to assure the dignity of the individual. As seen from the Preamble, the aim of any civilised society

should be to secure dignity of every individual. There cannot be dignity without equality of status and opportunity.[77] The Court held that fraternity assuring the dignity of the individual has a special relevance in the Indian context.

In *Raghunathrao Ganapath Rao v UOI,*[78] the Court held that in a country like ours with so many disruptive forces of regionalism, communalism and linguism, it is necessary to emphasise and re-emphasise that the unity and integrity of India can be preserved only by a spirit of brotherhood. India has one common citizenship and every citizen should feel that he is an Indian first, irrespective of other basis.

38. *"Dignity of the individual".*

A fraternity cannot, however, be installed unless the dignity of each of its members is maintained. The Preamble, therefore, says that the State, in India, will assure the dignity of the individual. The *Constitution* seeks to achieve this object by guaranteeing equal fundamental rights to each individual, so that he can enforce his minimal rights, if invaded by anybody, in a court of law. Seeing that these justiciable rights may not be enough to maintain the dignity of an individual if he is not free from wants and misery, a number of Directives have been included in Pt IV of the *Constitution*, exhorting the State so to shape its social and economic policies that, *inter alia*, "all citizens, men and women equally, have the right to an adequate means of livelihood" [*Article 39*(a)], "just and humane conditions of work" [*Article 42*], and "a decent standard of life and full enjoyment of leisure and social and cultural opportunities" [*Article 43*].

The "Fraternity" cherished by the framers of the *Constitution* will be achieved not only by abolishing untouchability amongst the different sects of the same community, but also by abolishing all communal or sectional or even local anti-social feelings which stand in the way of the unity of India.

It is to be noted that *our* Supreme Court has read the Preamble with *Article 21* to come to the conclusion that the right to dignity is a fundamental right.[79]

In this context, it would be useful to appreciate the ambit of this expression with reference to foreign decisions under *Article 1* of the Universal Declaration of Human Rights, 1948, which says –

> All human beings are born free and equal in *dignity* and rights……

This aspect of human dignity is brought out more clearly in *Article 10* of the U.N. Covenant on Civil and Political Rights, 1966 –

> All persons deprived of their liberty shall be treated with humanity and with respect for the *inherent dignity* of the human person.

The dignity of the human person in all situations is also emphasised by *Article 6* of the Universal Declaration –

> Everyone has the right to recognition *everywhere* as a person before the law.

This right to dignity has become a fundamental right in *West Germany* in view of *Article 1 of the Constitution* which says –

> The dignity of man is inviolable. To respect and protect it is the duty of all State authority.

39. West Germany.

The Federal Constitutional Court has interpreted this right to dignity as "the supreme value in law'[80] and has used it not only in interpreting other fundamental rights but also ordinary laws, so that a civil court must take into consideration this supreme principle while interpreting general provisions of the civil law[81] and even for the purpose of annulling private law which is inconsistent with this basic right.[82]

Even in the sphere of public law, this right has been treated as self-executing. German decisions go to the extent of holding that this right to dignity entitled a prisoner, even after conviction for an offence, to a minimum standard of decent living as distinguished from a degrading one. Hence, a convict could not be put into a one - man cell with two others, having a toilet which was not partitioned for privacy.[83]

Every individual cannot be assured of human dignity unless his personality is developed. This is why *Article 26*(ii) of the Universal Declaration of Human Rights emphasises—

> Education shall be directed to the full development of the human personality…

In realisation of the need for development of personality to secure the supreme principle of "dignity of man", the *West German Constitution* formulates it as a basic right in *Article 2*(1) thus :

> Everyone has the right to the *free* development of his personality in so far as he does not violate the rights of others or offend against the constitutional order or the moral code.

The Federal *Constitution* Court had held this right to personality as the genus of which the other basic rights, such as freedom of belief, expression, profession, the privacy of correspondence and the like, are species.[84]

The only limits to this individual right to personality, according to the *German Constitution*, are – (a) the rights of others; (b) public morals; (c) the constitutional order, that is to say, the exercise of constitutional powers by the public authorities, within the limits set forth by the *Constitution*.

"Fraternity" is the fourth objective in the Preamble was added by the Drafting Committee because "the Committee felt that the need for fraternal concord and good will in India was never greater than now and that the particular aim of the *Constitution* should be emphasized by specific reference in the Preamble."[85]

40. "*Unity of the nation".*

While emphasising the need for individual liberty and dignity, the Preamble of *our* Constitution points out the prime need for the unity of the nation.

Unity amongst the inhabitants of this vast sub-continent, torn as under by a multitude of problems and fissiparous forces, was the first requisite for maintaining the independence of the country as well as to make the experiment of democracy successful. But neither the integration of the people nor a brotherhood amongst heterogenous population, belonging to different races, religions and cultures. Composed of people of so many races, religions, languages and cultures, India can attain unity only if there is a spirit of brotherhood amongst all sections of the people,– a feeling that they are all children of the same soil, the same Motherland.[86]

The experience of the Partition of India and its aftermath emphasised in the minds of the makers of the Constitution the need for a strong Central authority. This explains the elaborate Emergency Provisions in Pt XVIII of the Constitution as well as the overriding powers of the Federal authority, even in times of peace, which have already been explained.

Article 51-A(c) which deals with "Fundamental Duties" says that it shall be the duty of every citizen of India to uphold and protect the sovereignty, unity and integrity of India.

It is said that fundamental duties are foundations of human dignity and national character. If every citizen performs his duties irrespective of consideration of caste, creed, colour and language, most of the malaise of the present day polity could be contained, if not eradicated and the society as a whole uplifted. Rich or poor, in power or out of power, obedience to citizenship duty, at all costs and risks, is the essence of civilised life.

Making a reference to Article 51-A(c), the Supreme Court has said that every citizen has the right to fly the national flag subject to restrictions specified in Article 51-A(c).[87]

41. Judicial Review and Judicial Activism

One significant feature of the use of the Preamble by the Courts in India is to treat the Preamble as the goal of the constitutional aspirations of the people and to develop the constitutional law beyond its substantive provisions[88] in order to achieve what is assured in the Preamble.

I have mentioned some instances where the Supreme Court has expanded the law by resorting to the Progressive and Purposive doctrines of Interpretation, as applied to the Constitution as well as statutes.

42. Basic features and amendment of the Constitution.

In the present context, I am mentioning the doctrine of "basic features" of the Constitution of India and its application so as to annul even Constitutional Amendment Acts, duly enacted in accordance with the procedure prescribed by Article 368.

The Constitution provided a separate Part, viz., Pt XX, which contains only one Article, *i.e.*, Article 368 - an exclusive provision dealing with "Amendment of the Constitution". The Constitution-makers never imagined that if *any* provision of the Constitution was amended by Parliament in conformity with the requirement of Article 368, the validity of that Amendment Act might still be subject to the power of judicial review (which is a power of the Courts to examine the vires of an ordinary statute where the country adopts a written Constitution as its "fundamental law').

To remove any uncertainty in the original Constitution on the foregoing point, the Constitution was amended in 1976, to provide [clause (5)] that the power conferred by Article 368 upon Parliament was a "*constituent power*" which means that the power of amendment conferred by Article 368 was absolutely unlimited, so that no Court would be competent to question the validity of a Constitution Amendment Act which had been duly passed in

accordance with the procedure prosecuted by the foregoing clauses of *Art 368*. The Supreme Court, however, struck down clause (5) of *Article 368* as violative of the "basic structure" of the *Constitution*, which the Court invented in *Kesavananda's* case.[89] This doctrine, in brief, meant that there are certain "basic" features of the *Constitution*, which were immune from the power of amendment conferred by *Article 368*, which, according to the Court, was subject to "implied" limitations which were inherent in the very word "amend".

One of these "basic features", according to the Court, was the power of judicial review, which had been violated by the 42nd *Constitution* Amendment Act which had inserted clause (5) in *Article 368*. As a result of this 13-Judge pronouncement of the Supreme Court[90] the validity of a *Constitution Amending Act* is now liable to be challenged not only on the ground of *procedural ultra vires* but also of *substantive ultra vires*, viz., on the ground of violating any of the "basic features" as enumerated by the Court.

Having fortified its own power of judicial review as a "basic feature", the Supreme Court has been expanding this power, by adding to Indian constitutional law novel doctrines outside the text of the *Constitution* as it was enacted in 1949. This power of the Court to "make" law in the name of interpretation is known as "judicial activism".

Of the products of judicial activism may be mentioned—

(a) The doctrine of *unenumerated* fundamental rights.[1] See Commentaries on *Article 21* and Directive Principles of State Policy.

(b) Public interest litigation.[2] See Commentaries on *Article 32* and *141*.

(c) Prospective overruling.[3] See Commentaries on *Article 32* and *226*.

(d) Progressive interpretation.[4]

(e) Imposing restrictions on the Parliament's claim of Constitutional power.[5] The principle of basic features was invoked, by which the Court declared that the same cannot be amended by the Parliament.[6]

(f) The concept of separation of powers between legislature, executive and judiciary as well as the fundamental concept of the independent judiciary are now elevated to the level of basic structure of the *Constitution* and are the very heart of the Constitutional Scheme.[7] Rule of law is a basic structure.[8]

(g) With regard to appointments to the posts of Chairman and Member of Public Service Commission, even though the *Constitution* does not lay down any qualifications, the Supreme Court has said that the Service Commission should be free from political patronage and persons of integrity and impartiality should be appointed, and there should be transparency in the decision making process.[9]

The Hon'ble Supreme Court held that "fundamental rights themselves have no fixed content, most of them are empty vessels with which each generation must pour its content in the light of experience. The attempt of the Court should be to expand the reach and ambit of the fundamental rights by process of judicial interpretation. The *Constitution* is required to be young, energetic and alive." It was held that "freedom of speech and expression" is given the meaning to include the right to know the antecedent of candidates contesting the election and such right to know could not be set at naught by legislature.[10] It was further held that fundamental rights are dynamic concepts having no fixed contents and Court expands them in the changing context so as to make them vibrant and lively. Expansive meaning given to these rights by Court are equally enforceable and cannot be ignored by legislature on the ground of being derivate rights.

It was held that in keeping with the spirit of Universal Declaration of 1948, the Preamble of the *Constitution* embodies a solemn resolve of its people to secure, *inter alia*, to its citizens liberty of thought and expression. It was held the right or freedom of speech and expression guaranteed by *Article 19*(1) has been advisedly set out only in broad terms leaving the scope for their expansion and adaption, through interpretation, to the changing needs and evolving notion of a free society. It was interpreted that freedom of speech and expression includes right to information. Right of information is a facet of the right to speech and expression and hence the same is also a fundamental right.[11]

43. Amendment of the Preamble

I. In the *Kesavananda* case,[12] 7-Judges out of 13 held that the objectives specified in the Preamble contain the basic structure of *our Constitution*, which cannot be amended in exercise of the power under *Article 368 of the Constitution*.

Paradoxically, however, within three years thereafter, the Preamble was amended to insert the words “socialist, secular”, by the *Constitution* (42nd Amendment) Act, 1976. It is to be noted that this amendment is subsequent to 24 April 1973 and cannot, therefore, be saved by saying that the judgment in *Kesavananda* had no retrospective effect to invalidate *Constitution* Amendment Acts enacted prior to 24 April 1973.

II. The ratio upon which the *Constitution* Bench, in *Waman’s case* [paras 27, 55][13] upheld the validity of the 1st, 4th and 25th Amendment Acts which inserted *Articles 31A*, *31B*, *31C*, was that the provision in *Article 39*(b)-(c) was *already* a part of the *Constitution* as originally enacted and that the object of these amendments was only to *effectuate the purpose* of that Directive and not to destroy the original structure of the *Constitution*.

If the validity of the 42nd Amendment Act, 1976, which amended the Preamble has to be upheld by the Supreme Court today, it would have to resort to the same argument. If, therefore, the insertion of “socialist”, “secular” be justified on the ground that these concepts were already there in the Articles of the 1949-*Constitution*, there is no reason why the Preamble should not be subject to amendment under *Article 368* in the same manner as the other articles.

But the judicially invented doctrine of “basic features” stands in the way,[14] since most of the ingredients of the Preamble have been held to be “basic features” – e.g., “sovereign”, “democratic”, “republican” structure; “unity and integrity of the nation’; “social and economic justice’; “secularism”.

The question, therefore, arises – how can the “basic features” embodied in the Preamble or in any other part of the *Constitution* be amended, if not under the *Constitution*? After eliminating all other alternatives, the only answer lies in a “revolution”, – to amend the basic features or to replace the 1949-*Constitution* altogether. Because, as Khanna J., observed in *Kesavananda’s case*,[15] if the *Constitution* itself does not contain any provision as to how its essential parts cannot be amended, the people, who gave to themselves the *Constitution* of 1949, would find a process *outside* the *Constitution* to effectuate their will.

---

1 Subs. by the *Constitution* (Forty-second Amendment) Act, 1976, section 2, for “SOVEREIGN DEMOCRATIC REPUBLIC” (w.e.f. 3 January 1977).

2 Subs. by the *Constitution* (Forty-second Amendment) Act, 1976, section 2, for “unity of the Nation” (w.e.f. 3 January 1977).

3 SCW (3rd), p 64.

4 SCW (3rd), p 115.

5 SCW (3rd), p 173.

6 SCW (3rd), p 205.

7 SCW (3rd), p 264.

6 SCW (3rd), p 205.

8 SCW (3rd), p 217.

9 SCW (3rd), p 356.

10 SCW (3rd), p 505.

11 See Author's *Constitution Amendment Acts*.

12 Thring, *Practical Legislation*, p 92.

13 7 Bac Abr Statute(1).

14 *Powell v Kemption Park Co.*, *(1899) AC 143* (*157, 185*) HL ; *Burrakpur Coal Co v UOI,* AIR 1961 SC 954 (*956*).

15 *Secretary of State v Maharaja of Bobbili,* (1920) 43 Mad 529 (PC).

16 *Burrakpur Coal Co v UOI,* AIR 1961 SC 954 (*956*); *Re Berubari Union,* AIR 1960 SC 845 (*856*).

17 *Re Berubari Union,* AIR 1960 SC 845 (*856*); The Sussex Peeage Case (1844) 8 ER 1037 (*1057*).

18 *Powell v Kemption Park Co.*, *(1899) AC 143* (*157, 185*) HL.

19 *Re Berubari Union*, AIR 1960 SC 845 (*856*).

20 Justice G.P. Singh, *Principles of Statutory Interpretation*, 9th Edn, pp 144-145.

21 *UOI v Elphinstone Spinning and Weaving Ltd,* (2001) 4 SCC 139 : AIR 2001 SC 724 .

22 *Re Berubari Union*, AIR 1960 SC 845 (*856*).

23 *Gopalan v State of Madras,* (1950) SCR 88 (*198*, Shastri J.) : AIR 1950 SC 27 .

24 *A.G. v Prince Augustus,* *(1957) 1 All ER 49* (*53, 57*) HL; *Darshan Singh v State of Punjab*, AIR 1953 SC 83 .

25 *Jacobson v Massachussets*, (1905) 197 US 11. **See also** *Roe v Wade,* 410 US 113 (1973) by JUSTICE DOUGLAS.

26 It echoes, with minor changes the Objectives Resolution adopted by the Constituent Assembly, at its inception.

27 *Golak Nath v State of Punjab*, (1967) II SCWR 1006 (*1021-2*, para 14; AIR 1967 SC 1643).

28 *Re Berubari Union*, AIR 1960 SC 845 (*856*).

29 M.P. Jain, *Indian Constitutional Law,* 5th Edn, Reprint 2007.

30 *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 ; *Minerva Mills Ltd v UOI,* AIR 1980 SC 1789 : (1980) 3 SCC 625 ; *Behram Khurshid Pesikala v State of Bombay,* AIR 1955 SC 123 : (1955) 1 SCR 613 ; *Re, Kerala Education Bill 1957*, AIR 1958 SC 956 ; *Beshashar Nath v ITC,* AIR 1959 SC 149 : 1959 (Supp-1) SCR 528.

31 AIR 1960 SC 845 [1960] 3 SCR 250 .

32 AIR 1980 SC 1789 : (1980) 3 SCC 625 .

33 *Excel Wear v UOI,* AIR 1979 SC 25 : (1978) 4 SCC 224 : (1979) 1 SCR 1009 ; *Sanjeev Coke Mfg. Co v Bharat Coking Coal Ltd,* AIR 1983 SC 239 : (1983) 1 SCC 147 ; *D.S. Nakara v UOI,* AIR 1983 SC 130 : (1983) 1 SCC 305 ; *Kerala Hotels and Restaurants Assn. v State of Kerala,*

AIR 1990 SC 913 ; *Dharwad Dt. PWD Literate Daily Wages Employees Assn. v State of Karnataka,* AIR 1990 SC 883 : (1990) 2 SCC 396 .

34 *Indra Sawhney v UOI,* 1992 (Supp-2) SCC 217 : AIR 1993 SC 447 . **See also** *Commr. of Police v Acharya Jagadishwarananda Avadhuta,* AIR 2004 SC 2984 : (2004) 2 SCR 1019 : (2004) 12 SCC 770 .

35 Granville Austin, *Working a Democratic Constitution—A History of the Indian Experience,* 2nd Impression, 2004, p 7.

36 *P.A. Inamdar v State of Maharashtra,* AIR 2005 SC 3226 : (2005) 6 SCC 537 .

37 *Golak Nath v State of Punjab*, (1967) II SCWR 1006 (*1021-2*, para 14) : AIR 1967 SC 1643 .

38 B. Shiva Rao, *The Framing of India's Constitution: Select Documents,* vol IV, p 944.

39 *A.K. Gopalan v State of Madras,* AIR 1950 SC 27 : 1950 SCR 88 Per MAHAJAN, J.

40 *Keshavananda Bharati v State of Kerala,* (1973) 4 SCC 225 : AIR 1973 SC 1461 Per SIKRI C.J.

41 *Masilamani v Idol of Swaminatha Swami,* (1996) 8 SCC 525 : AIR 1996 SC 1697 . See also *M. Nagaraj v UOI,* AIR 2007 SC 71 : (2006) 8 SCC 212 **See also** *Ahmedabad Municipal Corp v Nawabhkhan Gulab Khan,* AIR 1997 SC 152 : (1997) 11 SCC 121 ..

42 *Burrakpur Coal Co v UOI,* AIR 1961 SC 954 (*956*).

43 *Berubari Union, re*, AIR 1960 SC 845 (*855-6*); *Raghunathrao v UOI*, AIR 1993 SC 1267 (para 177) CB.

44 *Gopalan v State of Madras,* (1950) SCR 88 (*198*, SHASTRI J.) : AIR 1950 SC 27 .

45 *Basheshar v C.I.T.*, (1959) Supp 1 SCR 528 : AIR 1959 SC 149 , per S.K. DAS, J.

46 *N.D. Dayal v UOI,* AIR 2004 SC 867 : (2004) 9 SCC 362 : JT 2003 (Supp-2) SC 1.

47 *Society for Unaided Private Schools of Rajasthan v UOI,* AIR 2012 SC 3445 : (2012) 6 SCC 1 .

48 *Subramanian Swamy v Manmohan Singh,* (2012) 3 SCC 64 : AIR 2012 SC 1185 .

49 *Mahanadi Coalfields Ltd v Mathias Oram,* (2010) 11 SCC 269 : (2010) 5 JT 553 .

50 *Ahmedabad Municipal Corp v Nawabhkhan Gulab Khan,* AIR 1997 SC 152 : (1997) 11 SCC 121 .

51 *Indra Sawhney v UOI,* AIR 1993 SC 477 : 1992 (Supp-3) SCC 217.

52 *Sajjan Singh v State of Rajasthan,* AIR 1965 SC 845 : (1965) 1 SCR 933 .

53 *Village Panchayat, Calangute v Addl. Director of Panchayat II,* (2012) 7 SCC 550 : AIR 2012 SC 2697 .

54 (1973) 4 SCC 225 : AIR 1973 SC 1461 *(supra).*

55 1975 (Supp) SCC 1 : AIR 1975 SC 2299 : (1976) 2 SCR 347 .

56 *Biswambhar v State of Orissa*, (1954) SCR 842 (*855*); *Kerala Education Bill*, in re, AIR 1958 SC 956 (*974*).

57 *Harishankar v State of MP*, (1954) SCR 380 (*388*); *Bhatnagar v UOI*, AIR 1957 SC 478 (*486*).

See also *Natural Resources Allocation, Re, Special Reference No.1 of 2012,* (2012) 10 SCC 1 : (2012) 9 JT 457 ; *Sahara India Real Estate Corp Ltd v SEBI,* (2012) 10 SCC 603 : (2012) Cr LJ 4584 ; *Ramlila Maidan Incident, In Re.* (2012) 5 SCC 1 : (2012) Cr LJ 3516 ; *Prakash Jha Production v UOI,* (2011) 8 SCC 372 ; *Society for Unaided Private Schools of Rajasthan v UOI,* (2012) 6 SCC 1 : AIR 2012 SC 3445 .

58 *Nandini Sunder v State of Chattisgarh,* AIR 2011 SC 2839 : (2011) 7 SCC 547 ; see also *G.V.K. Industries v ITO,* (2011) 4 SCC 36 : (2011) 3 Scale 111 .

59 *UOI v Rakesh Kumar,* (2010) 4 SCC 50 : AIR 2010 SC 3244 .

60 *State of Maharashtra v Sarangadhar Singh Shivdas Singh Chavan,* (2011) 1 SCC 577 : (2010) 13 JT 456 .

61 *Ghisalal v Dhapubhai,* (2011) 2 SCC 298 : AIR 2011 SC 644 .

62 (2013) 4 SCC 721 : (2013) 2 JT 1 .

63 *Bommai v UOI,* AIR 1994 SC 1918 [paras 19, 24, 28, 183, 263, 365(7)-(10)].

64 *Bommai v.UOI,* AIR 1994 SC 1918 [para 1 (Pandian, J.); paras 88-89 (Sawant & Kuldip SINGH, JJ.)]; **see also** *Ismail v UOI,* (1994) 6 SCC 360 (para 135) CB.

65 *Bommai v UOI,* AIR 1994 SC 1918 [para 1 (Pandian, J.); paras 88-89 (Sawant & Kuldip SINGH, JJ.)]; **see also** *Ismail v UOI,* (1994) 6 SCC 360 (para 135) CB. **See also** *Commr. of Police v Acharya Jagadishwarananda Avadhuta,* AIR 2004 SC 2984 : (2004) 2 SCR 1019 : (2004) 12 SCC 770 ; *State of Karnataka v Praveen Bhai Thogadia,* AIR 2004 SC 2081 : (2004) 4 SCC 684 .

66 *Peethambaram v Supt. of Police, CBI* (1996) 1 Ker LT 173 .

67 *Ziyauddin Burharuddin Bukhari v Brijmohan Ramdos Mehra,* AIR 1975 SC 1788 : (1976) 2 SCC 17 .

68 *Bommai v UOI,* AIR 1994 SC 1918 [para 1 (PANDIAN, J.); paras 88-89 (Sawant & Kuldip Singh, JJ.)]; **see also** *Ismail v UOI,* (1994) 6 SCC 360 (para 135) CB. **See also** *Commr. of Police v Acharya Jagadishwarananda Avadhuta,* AIR 2004 SC 2984 : (2004) 2 SCR 1019 : (2004) 12 SCC 770 ; *State of Karnataka v Praveen Bhai Thogadia,* AIR 2004 SC 2081 : (2004) 4 SCC 684 .

69 *Bommai v UOI,* AIR 1994 SC 1918 [paras 19, 24, 28, 183, 263, 365(7)-(10)].

70 (2011) 2 SCC 568 : (2011) 3 LW 44 : (2011) 1 CTC 747 : (2011) 1 Ker LT 584 ,

71 See also *Kailas v State of Maharashtra,* (2011) 2 SCC 793 : AIR 2011 SC 598 ; *Himsa Virodhak Sangh v Mirzapur Moti Kuresh Jamat,* (2008) 5 SCC 33 : AIR 2008 SC 1892 .

72 *Keshavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 *(supra).*

73 William Y. Elliott L & Neil A. McDonald, *Western Political Heritage*, 1963, p 610.

74 See Dr C.D. Jha, *Judicial Review on Legislative Act*, 2nd Edn, 2009 at p 6.

75 *A.K. Gopalan v State of Madras,* AIR 1950 SC 27 : 1950 SCR 88 : 1950 SCJ 174 *(supra).*

76 *Commissioner of Police v Acharya Jagadishwaranda Avadutha,* AIR 2004 SC 2984 : (2004) 2 SCR 1019 : (2004) 12 SCC 770 by LAKSHMANAN AR. J.

77 As to the philosophy behind the Indian *Constitution*, see Author's *Introduction to the Constitution of India*.

78 *Indira v Raj Narain*, AIR 1975 SC 2299 (para 666).

79 *Atam Prakash v State of Haryana*, AIR 1986 SC 859 (para 5) CB.

79a *Indira v Raj Narain*, AIR 1975 SC 2299 (para 666).

80 See Author's *Comparative Constitutional Law*.

81 *Berubari Union, in re,* AIR 1960 SC 845 (*855-6*); *Raghunathrao v UOI*, AIR 1993 SC 1267 (para 177) CB.

82 *Berubari Union, in re,* AIR 1960 SC 845 (*855-6*); *Raghunathrao v UOI*, AIR 1993 SC 1267 (para 177) CB.

83 See Shiv Rao, *The Framing of India's Constitution — Select Documents,* vol III, p 510.

84 H.M. Seervai, *Constitutional Law of India,* 4th Edn, Reprint 2007, vol I, pp 280-82.

85 *Re. Berubari Union and Exchange of Enclaves* AIR 1960 SC 845 : (1960) 3 SCR 250 .

86 *Per* Sikri CJ in *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 .

87 **See also** *UOI v Madhav,* AIR 1997 SC 3074 : (1997) 2 SCC 332 – Constituent Assembly Debates, vol X, pp 429 and 456.

88 *Secretary, Jaipur Development Authority v Daulat Mal Jain,* (1997) 1 SCC 35 .

89 *C.I.W.T.C. v Brojo*, AIR 1986 SC 1571 (para 93).

90 *Gopalan v State of Madras,* AIR 1950 SC 27 (*92*).

91 *Keshavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 ; **See also** *Minerva Mills Ltd v UOI,* (1980) 3 SCC 625 : AIR 1980 SC 1789 .

92 *Dharwad Distt. PWD Literate Daily Wages Employers Association v State of Karnataka,* (1990) 2 SCC 396 : AIR 1990 SC 883 .

93 *Excel Wear v UOI,* (1978) 4 SCC 224 : AIR 1979 SC 25 : 1978-II-LLJ-527 ; *Sanjeev Coke Manufacturing Co v Bharat Coking Coal Ltd,* AIR 1983 SC 239 : (1983) 1 SCC 147 .

94 *Atam Prakash v State of Haryana,* (1986) 2 SCC 249 : AIR 1986 SC 859 .

95 *Islamic Academy of Education v State of Karnataka,* 2003 (6) SCC 697 by Justice SINHA (para 118) : AIR 2003 SC 3724 .

96 *State of Karnataka v Praveen Bhai Thogadia,* (2004) 4 SCC 684 : AIR 2004 SC 2081 .

97 *Charan Lal Sahu v UOI,* AIR 1990 SC 1480 : (1990) 1 SCC 613 .

98 *Nakara D.S. v UOI,* AIR 1983 SC 130 : (1983) 1 SCC 305 .

99 *State Authority of India v National Union Waterfront Workers,* AIR 2001 SC 3527 : (2001) 7 SCC 1 .

1 *Natural Resources Allocation, In Re. Special Reference No.1 of 2012* (2012) 10 SCC 1 : (2012) 9 Scale 310 .

2 *State of Gujarat v R.A. Mehta,* AIR 2013 SC 693 : (2013) 3 SCC 1 .

3 *Martin v Hunter's Lessee,* 14 US 304 : 4 L Ed 97 (1816).

4 *Budhadev Karmakar (3) v State of WB,* AIR 2011 SC 2636 : (2011) 10 SCC 277 ; see also (2011) 10 SCC 351 ; *Budhadev Karmakar (1) v State of WB,* (2011) 11 SCC 538 : (2011) Cr LJ 1684 .

5 *Arumugham Servai v State of TN,* AIR 2011 SC 1859 : (2011) 6 SCC 405 ; (2011) Cr LJ 2899 .

6 *Prema v Nanje Gowda,* AIR 2011 SC 2077 : (2011) 6 SCC 462 .

7 *State of Maharashtra v Sarangadhar Singh Shivdass Singh Chavan,* (2011) 1 SCC 577 : (2011) 98 AIC 202 .

8 *UOI v Rakesh Kumar,* AIR 2010 SC 3244 : (2010) 4 SCC 50 .

9 *Atam Prakash v State of Haryana,* AIR 1986 SC 859 : (1986) 2 SCC 249 ; see also *Sadhuram Bansal v Pulin Behari Sarkar,* AIR 1984 SC 1471 : (1984) 3 SCC 410 .

10 *Balbir Singh v Steel Authority of India,* AIR 2000 SC 1596 : (2000) 6 SCC 493 .

11 AIR 1973 SC 1461 : (1973) 4 SCC 225 .

12 **See also** *Smt. Indira Nehru Gandhi v Raj Narain,* AIR 1975 SC 2299 : 1975 (Supp) SCC 1).

13 AIR 1980 SC 1789 : (1980) 3 SCC 625 .

14 *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 .

15 *Kehar Singh v UOI,* AIR 1989 SC 653 : (1989) 1 SCC 204 .

16 AMBEDKAR, Constituent Assembly Debates, vol X, p 455.

17 *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 – *per* Shelat & Grover, JJ.

18 *Bandhua Mukti Marcha v UOI,* AIR 1984 SC 802 : (1984) 3 SCC 161 .

19 *A-G v Prince Ernest Augustus,* *(1957) AC 436* .

20 *M. Nagaraj v UOI,* AIR 2007 SC 71 .

21 *Jacob v Kerala W.A.*, (1991) 1 SCC 28 (paras 8, 15); *L.I.C. v Consumer Centre*, (1995) 5 SCC 482 (para 18); *Consumer Centre v U.B.I.*, (1995) 3 SCC 42 (para 18) - 3 Judges.

22 *Jacob v Kerala W.A.*, (1991) 1 SCC 28 (paras 8, 15).

23 *Atma Prakash v State of Haryana,* AIR 1986 SC 859 (para 5).

24 *Charan v UOI*, AIR 1990 SC 1480 (paras 35,36,63,100) CB.

25 *Jacob v Kerala W.A.*, (1991) 1 SCC 28 (paras 8, 15).

26 *Valsamma Paul v Cochin University,* AIR 1996 SC 1011 : (1996) 3 SCC 545 ; *C. Ravindran Iyer v Justice A.M. Bhattacharjee,* (1995) 5 SCC 457 .

27 *Balbir Singh v Steel Authority of India,* AIR 2000 SC 1596 : (2000) 6 SCC 493 .

28 *Ajay Kapoor v Pramila Kapoor,* AIR 1992 All 283 .

29 *M. Nagaraj v UOI,* (2006) 8 SCC 212 : AIR 2007 SC 71 .

30 AIR 1980 SC 1789 : (1980) 3 SCC 625 .

31 *Excel Wear v UOI,* AIR 1979 SC 25 : (1978) 4 SCC 224 ; **see also** *Sanjeev Coke Mfg. Co v Bharat Coking Coal Ltd,* AIR 1983 SC 239 : (1983) 1 SCC 147 ; *Kerala Hotels and Restaurants Assn. v State of Kerala,* AIR 1990 SC 913 ; *Dharwad Dt. PWD Literate Daily Wages Employees Assn. v State of Karnataka,* AIR 1990 SC 883 : (1990) 2 SCC 396 .

32 *Atam Prakash v State of Haryana,* AIR 1986 SC 859 : (1986) 2 SCC 249 .

33 *Society for Unaided Private Schools of Rajasthan v UOI,* AIR 2012 SC 3445 : (2012) 6 SCC 1 .

34 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (paras 902,1168,1316) - 13 Judges.

35 *S.R. Bommai v UOI,* AIR 1994 SC 1918 : (1994) 3 SCC 1 .

36 *State of UP v Dina Nath Sukhla,* AIR 1997 SC 1095 : (1997) 9 SCC 662 .

37 *Charan Lal Sahu v UOI,* AIR 1990 SC 1480 : (1990) 1 SCC 613 ; *Jacob M. Puthuparambil v Kerala Water Authority,* AIR 1991 SC 2228 : (1991) 1 SCC 28 : *1991 (II) LLJ 65* . See also *Kuldip Nayar v UOI,* (2006) 7 SCC 1 .

38 *Re Berubari Union,* AIR 1960 SC 845 (paras 28-29) - 7 Judges.

39 *Re Berubari Union,* AIR 1960 SC 845 (paras 28-29) - 7 Judges.

40 *Re Berubari Union,* AIR 1960 SC 845 (paras 28-29) - 7 Judges.

41 *Golak Nath v State of Punjab*, AIR 1967 SC 1643 (paras 98, 264, 269) - 11 Judges; *Indira v Rajnaraian*, AIR 1975 SC 2299 (para 666) CB.

42 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (paras 902,1168,1316) - 13 Judges.

43 *Re Berubari Union,* AIR 1960 SC 845 (paras 28-29) - 7 Judges.

44 X CAD. 429, 456; Vide paras, 1168, 1316, 2099 of AIR 1973 SC 1461 .

45 *Waman v UOI*, AIR 1981 SC 271 (CB).

46 Almost all the Judges in *Kesavananda* referred to the *Berubari case*, but none of the majority Judges questioned the proposition that the Preamble could not be used as the source of any substantive power or limitation.

47 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (paras 902,1168,1316) - 13 Judges.

48 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (paras 902,1168,1316) - 13 Judges; **Cf.** *Synthetics v State of UP*, (1990) 1 SCC 109 (para 108) - 7 Judge Bench.

49 *Waman v UOI*, AIR 1981 SC 271 (CB).

50 *Gopalan v State of Madras*, AIR 1950 SC 27 (*92*).

51 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (paras 902,1168,1316) - 13 Judges.

52 *Raghunathrao v UOI*, AIR 1993 SC 1267 (paras 177) CB.

53 *Re, Berubari Union,* AIR 1960 SC 845 (paras 28-29) - 7 Judges.

54 *Raghunathrao v UOI*, AIR 1993 SC 1267 (paras 177) CB.

55 **Cf.** Constitution of Eire, Article 6(*1*), Article 20(*2*) of th e West German Constitution (1948).

56 **Cf.** Article 3 Constitution of the Fourth French Republic; Preamble to the Japanese Constitution.

57 **Cf.** Tenth Amendment to the Constitution of the U.S.A.

58 *Scott v Stanford*, (1857) 19 How 393; *Hawke v Smith*, (1920) 253 US 221.

59 **Cf.** Munro, *Government of the United States*, p 62.

60 *Keshavananda Bharati v State of Kerala,* AIR 1973 SCC 1461 : (1973) 4 SCC 225 - by MATHEW J.

61 *A.K. Gopalan v State of Madras,* AIR 1950 SC 27 *(supra)*).

62 *Kehor Singh v UOI,* AIR 1989 SC 653 : (1989) 1 SCC 204 .

63 AIR 1973 SC 1461 : (1973) 4 SCC 225 .

64 See H.M. Seervai,, 4th Edn, vol I, at pp 278-79.

65 *UOI v Madan Gopal*, (1954) SCR 541 (*655*).

66 *Virendra v State of UP*, (1955) 1 SCR 415 .

67 *State of Gujarat v Vora*, AIR 1964 SC 1043 (*1050*).

68 *Martin v Hunter's Lessee*, (1816) 1 Wh. 304 (*324*); *McCulloch v Maryland*, (1819) 4 Wh. 316 (*429*).

69 It did not even require ratification by the States, as in the United States.

70 1 CAD 55-6 (Pandit Nehru).

71 1 CAD 50 (Dr. Rajendra Prasad).

72 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 .

73 Salmond's Jurisprudence, 1948, p 143; Burgess, Political Science and Constitutional Law, vol I, p 53.

74 Cooley, *Constitutional Law*, p 18; *A Treatise on the Constitutional Limitations*, p 1.

75 Hibbert, *Jurisprudence*, as cited in *State of Orissa v Ramachandra Das,* AIR 1991 Ori 197 , 199; *Gurdwara Sahiba Siri Tej Bahadur Gaja v Piyara Singh (Full Bench),* AIR 1953 Pepsu 1 , 4.

76 Ramanatha Aiyar, *Advanced Law Lexicon*, 3rd Edn, 2005, Book-4, p 4413.

77 See *Mohd. Ajmal Amir Kasab v State of Maharashtra,* AIR 2012 SC 3565 : (2012) 9 SCC 1 .

78 AIR 1966 SC 644 : (1966) 1 SCR 430 .

79 Austin, *Jurisprudence*, Campbell's Edition note, p 242.

80 *Govindrao and others v State of MP,* AIR 1982 SC 1201 , 1204.

81 *Charanlal Sahu v UOI,* AIR 1990 SC 1480 : (1990) 1 SCC 613 .

82 *M.V. Elizabeth v Harwan Investment & Trading (P) Ltd,* AIR 1993 SC 1014 : 1993 (Supp-2) SCC 433.

83 *Berubari Union, In Re.* AIR 1960 SC 845 : (1960) 3 SCR 250 .

84 See Dr. C.D. Jha, *Judicial Review of Legislative Acts*, 2nd Edn, 2009, pp 103-04.

85 AIR 1990 SC 1927 .

86 AIR 1990 SC 1692 .

87 7th Edn, 1999.

88 Schwarzenberger, *International Law*, 1945, vol I, p 44.

89 Section 7 of Independence Act, *ante.*

90 Thus, while *Eire* has, on becoming a Republic, severed her connections with the British Commonwealth of Nations (by passing the Republic of Ireland Act, 1948), India has preferred to remain a member of the Commonwealth even after declaring herself a Republic.

91 As to the privileges of Commonwealth citizenship, see under *Article 11*, *post.*

92 *Maganbhai v UOI*, (1970) 3 SCC 100 .

93 Starke, *Introduction to International Law*, 9th Edn, p 94.

94 *UOI v Sukumar*, (1990) Supp. SCC 545 (paras 15, 25, 26).

95 *Elizabeth v H.I.T.*, AIR 1993 SC 1014 (paras 87, 89, 101).

96 *Elizabeth v H.I.T.*, AIR 1993 SC 1014 (paras 87, 89, 101).

97 *Synthetics v State of UP*, (1990) 1 SCC 109 (paras 56, 64, 106-108) [unanimous decision of 7 Judges].

98 *People's Union for Civil Liberties (PUCL) v UOI,* AIR 2003 SC 2363 : (2003) 4 SCC 399 .

99 *Keshavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 *(supra)*.

1 *M.V. Elisabeth v Harwan Investment and Trading (P) Ltd,* AIR 1993 SC 1014 : 1993 Supp (2) SCC 433 .

2 *Ram Nandan v State,* AIR 1959 All 101 : (1958) 28 AWR 796 .

3 *In Re. Article 143 of the Constitution* (1965) 1 SCR 413 .

4 *Mohd. Ajmal Amir Kasab v State of Maharashtra,* AIR 2012 SC 3565 : (2012) 9 SCC 1 .

5 *Indira Nehru Gandhi v Raj Narain,* 1975 Supp SCC 1 Per BEG, J.

6 *Synthetics v State of UP*, (1990) 1 SCC 109 (paras 56, 64, 106-108) [unanimous decision of 7 Judges].

7 According to the learned author T.K. Tope, "the notion of sovereign power as evolved by the Supreme Court is unsatisfactory. The Supreme Court was right in rejecting the doctrine of police power. But the attempt to develop another notion of sovereign power which is subject to constitutional limitation is hardly convincing". See T.K. Tope, *Constitutional Law of India*, 3rd Edn, p 136.

8 *D.T.C. v Mazdoor Union*, AIR 1991 SC 101 (paras 244, 251); *C.I.W.T.C. v Brojonath*, AIR 1986 SC 1571 .

9 *Chisholm v Georgia*, (1792) 2 Dallas, 435; *McCulloch v Maryland*, (1819) 4 Wh. 316; *Cohens v Virginia*, (1812) 6 Wh. 382; *Collector v Day*, (1870) 11 Wall. 113. [Oppenheim also expresses this view regarding federal States (International Law, vol I, p 459)].

10 *U.S. v Lanza,* (1922) 260 US 377 (*382*); *Abbate v U.S.*, (1958) 359 US 187 (*194*).

11 *Ableman v Booth*, (1859) 21 How. 506 (*516*); Licence Cases, (1847) 5 How. 504 (*538*).

12 *D' Emben v Pedder*, (1904) 1 CLR 91 (*109*).

13 *Municipal Council v Commonwealth*, (1904) 1 CLR 208 .

14 AIR 2007 SC 861 : (2007) 2 SCC 1 .

15 **See also** *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 ; *Minerva Mills Ltd v UOI,* (1980) 3 SCC 625 AIR 1980 SC 1789 : ; *Smt. Indira Nehru Gandhi v Raj Narain,* AIR 1975 SC 2299 : 1975 (Supp) SCC 1; *Sampath Kumar v UOI,*

AIR 1987 SC 386 : (1987) 1 SCC 124 ; *Waman Rao v UOI,* AIR 1981 SC 271 : (1981) 2 SCC 362 ; *Bhim Singhji v UOI,* AIR 1981 SC 234 : (1981) 1 SCC 166 .

16 Wills, *Constitutional Law*; T.M. Cooley, *A Treatise on Constitutional Limitations*, vol I, pp 159, 175; *Yick Wo v Hopkins*, (1886) 118 US 356.

17 This view of Author, expressed in vol I of the 4th Edn, has found the approval of the Supreme Court in *State of WB v UOI*, (1964) 1 SCR 371 (*398*).

Unfortunately, however, there has been a confusion in that judgement between the expressions “legal” and “political” sovereignty. It is said that “legal sovereignty of the Indian nation is vested in the people of India” while “the political sovereignty is distributed between ……the Union of India and the States with greater weightage in favour of the Union.” This, it is submitted, is a complete retroversion of the two expressions as they are understood in Political Science. To quote Garner (Political Science & Government, Indian reprint)—

“…a distinction is frequently made between *legal* sovereignty and *political* sovereignty. The former represents the lawyer’s conception of sovereignty; that is, sovereignty as the Supreme *law -making* power. The legal sovereign, therefore, is that determinate authority which is able to express in legal form the highest commands of the State……Behind the legal sovereign, however, is another power, *legally unknown*, unorganized, and in capable of expressing the will of the State in the form of legal command, yet withal a power to whose mandates the legal sovereign will in practice bow and whose will must *ultimately* prevail in the State. This is the political sovereign. In a narrower sense, the electorate constitutes the political sovereign, yet in a wider sense it may be said to be the whole mass of the population……”

18 AIR 1973 SC 1461 : (1973) 4 SCC 225 .

19 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (paras 411, 624, 694, 759, 929, 1271, 1521, 1798, 1870, 1970, 2156).

20 *Minerva Mills v UOI*, AIR 1980 SC 1789 (paras, 21, 22, 25, 28, 93-94).

21 *In Re. Initiative and Referendum Act* *(1919) AC 935* (PC).

22 *Hawke v Smith,* (1920) 253 US 221; *Leser v Garnett,* (1922) 258 US 130; *AG for NSW v Trethowan,* *(1932) AC 526* .

23 See *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 by Justice Mathew. (para 1622 in AIR and by Justice Palekar in para 1243.

24 AIR 1979 SC 25 : (1978) 4 SCC 224 : (1979) 1 SCR 1009 .

25 *Atam Prakash v State of Haryana,* AIR 1986 SC 859 : (1986) 2 SCC 249 .

26 Vide Author's *Constitution Amendment Acts*.

27 Granville Austin, *Working a Democratic Constitution – A History of the Indian Experience*, 2nd Impression, 2004, p 107.

28 *Air India Statutory Corp v United Labour Union,* AIR 1997 SC 645 : (1997) 9 SCC 377 .

29 *Nakara v UOI*, AIR 1983 SC 130 (para 33) C.B; **See also** *Randhir v UOI,* AIR 1982 SC 879 : (1982) 1 SCC 618 ; *Minerva Mills v UOI,* AIR 1980 SC 1789 : (1980) 2 SCC 591 .

30 *Nakara v UOI*, AIR 1983 SC 130 (para 33) C.B; **See also** *Randhir v UOI,* AIR 1982 SC 879 : (1982) 1 SCC 618 ; *Minerva Mills v UOI,* AIR 1980 SC 1789 : (1980) 2 SCC 591 .

31 *G.B. Pant University of Agriculture Technology v State of UP,* AIR 2000 SC 2695 : (2000) 7 SCC 109 .

32 *Minerva Mills v UOI,* (1980) 3 SCC 625 .

33 *Panchayat Varga Sharmajivi Samudaik Sahakari Khedut Co-op. Society v Haribhai Mevabhai,* AIR 1996 SC 2578 : (1996) 10 SCC 320 ; *Dalmia Cements (Bharat) Ltd v UOI,* (1996) 10 SCC 104 ; **see also** *Valsamma Paul v Cochin University,* AIR 1996 SC 1011 : (1996) 3 SCC 545 ; *Kirloskar Bros. Ltd v ESI Corp* (1996) 2 SCC 682 ; *Samatha v State of AP,* AIR 1997 SC 3297 : (1997) 8 SCC 191 .

34 Dr. V.K.V.R. Rao, *Socialism, Retrospective and Prospective*.

35 Kagzi, *Constitution of India*, 6th Edn, vol I, pp 327-28.

36 *Secretary HSEB v Suresh,* AIR 1999 SC 1160 : (1999) 3 SCC 601 : 1999-I-LLJ-1086 .

37 *Steel Authority of India Ltd v National Union Waterfront Workers,* AIR 2001 SC 3527 : (2001) 7 SCC 1 : 2001 (Supp 2) SCR 343 : 2001-II-LLJ-1087 .

38 *Balbir Kaur v Steel Authority of India,* AIR 2000 SC 1596 : (2000) 6 SCC 493 : *2000 (II) LLJ 1* .

39 *Municipal Corp of Delhi v Female Workers (Muster Roll),* AIR 2000 SC 1274 : (2000) 3 SCC 224 : *2000 (I) LLJ 846* .

40 AIR 1978 SC 215 : (1977) 4 SCC 471 .

41 *Akadashi v State of Orissa,* AIR 1963 SC 1047 : (1963) 2 (Supp) SCR 691.

42 *Central Inland Water Transport Corp v Broja Nath Ganguly,* AIR 1986 SC 1571 : (1986) 3 SCC 156 .

43 *Ajaib Singh v Sirhind Co-operative Marketing-cum-Processing Service Society Ltd,* AIR 1999 SC 1351 : (1999) 6 SCC 82 : *1999 (I) LLJ 1260* .

44 *Tara Chand Vyas v Chairman and Disciplinary Authority,* (1997) 4 SCC 565 : *1997 (II) LLJ 26* .

45 *Samatha v State of AP,* AIR 1997 SC 3297 : (1997) 8 SCC 191 .

46 *Atam Prakash v State of Haryana,* AIR 1986 SC 859 : (1986) 2 SCC 249 .

47 AIR 1989 SC 1988 : (1984) 4 SCC 155 .

48 *Kerala Hotel and Restaurant Association v State of Kerala,* AIR 1990 SC 913 : (1990) 2 SCC 502 ; *Atam Prakash v State of Haryana,* AIR 1986 SC 859 : (1986) 2 SCC 249 *(supra)*.

49 *National Textile Corp Workers Union v P.R. Ramakrishnan,* AIR 1983 SC 75 : (1983) 1 SCC 2286 : 1983-I-LLJ-45 .

50 *Air India Statutory Corp v United Labour Union,* AIR 1997 SC 645 : (1997) 9 SCC 377 : 1997-I-LLJ-1113 .

51 *Valsamma Paul v Cochin University,* AIR 1996 SC 1011 : (1996) 3 SCC 545 .

52 *Post Graduate Institute of Medical Education and Research v K.L. Narasimhan,* (1997) 6 SCC 283 – over-ruled an another point in *Preeti Srivastava v State of MP,* AIR 1999 SC 2894 : (1999) 7 SCC 120 .

53 *E.V. Chinniah v State of AP,* (2005) 1 SCC 394 .

54 3 SCW, pp 325-26; 357-58. [This concept of "State socialism' has been overturned by the Yeltsin *Constitution* of 1993, which protects *private* property [*Article 8*(2)] and uses the expression "social State' in *Article 7(1) of the Constitution*.

55 3 SCW, pp 325-26; 357-58. [This concept of "State socialism' has been overturned by the Yeltsin *Constitution* of 1993, which protects *private* property [*Article 8*(2)] and uses the expression "social State' in *Article 7(1) of the Constitution*.

56 *Excel Wear v UOI*, AIR 1979 SC 25 (paras 24, 25, 42, 46).

57 *Excel Wear v UOI*, AIR 1979 SC 25 (paras 24, 25, 42, 46).

58 *State of TN v Abu*, AIR 1984 SC 326 (paras 19, 77-82, 89, 92, 95-96) CB.

59 *Excel Wear v UOI*, AIR 1979 SC 25 (paras 24, 25, 42, 46); *State of TN v Abu*, AIR 1984 SC 326 (paras 19, 77-82, 89, 92, 95-96) CB.

60 Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, 9th Impression, 2005, p 43.

61 *Tinsukia E.S.C. v State of Assam,* (1989) 3 SCC 709 (para 62).

62 Introduced by Prime Minister, Narasimha Rao and his Finance Minister, Manmohan Singh, in 1991 [Statesman, 27 December 1995].

63 *Maharashtra State Co-op. Bank Ltd v Provident Fund Commissioner,* (2009) 10 SCC 123 : AIR 2010 SC 868 ; **see also** *Bhuwalka Steel Industries Ltd v Bombay Iron and Steel Labour Board,* (2010) 2 SCC 273 : (2009) 15 JT 269 .

64 *Bhim Singh v UOI,* (2010) 5 SCC 538 : (2010) 5 Scale 37 .

65 AIR 1980 SC 1789 : (1980) 3 SCC 591 .

66 AIR 1981 SC 271 : (1981) 2 SCC 362 .

67 *Elel Hotels & Investments Ltd v UOI,* AIR 1990 SC 1664 : (1989) 3 SCC 698 ; *Sri Srinivasa Theatre v Govt. of Tamil Nadu,* AIR 1992 SC 999 : (1992) 2 SCC 643 .

68 *Balbir Kaur v Steel Authority of India,* AIR 2000 SC 1596 : (2000) 6 SCC 493 .

69 *S.R. Bommai v UOI,* AIR 1994 SCV 1918 : (1994) 3 SCC 1 ; *Valsamma Paul v Cochin University,* AIR 1996 SC 1011 : (1996) 3 SCC 545 .

70 *G.B. Pant University of Agriculture & Technology v State of UP,* AIR 2000 SC 2695 : (2000) 7 SCC 109 ; *D.S. Nakara v UOI,* AIR 1983 SC 130 : (1983) 1 SCC 305 ; *Secretary, Haryana State Electricity Board v Suresh,* AIR 1999 SC 1160 : (1999) 3 SCC 601 .

71 1996) 10 SCC 104 : JT (1996) 4 SC 555 .

72 **See also** *Panchayat Varga Sharmajivi Samudaik Khedut Co-op. Society v Hanbhai Morabhai,* (1996) 10 SCC 320 : AIR 1996 SC 2578 .

73 AIR 1986 SC 859 : (1986) 2 SCC 249 .

74 AIR 1997 SC 645 : (1997) 6 SCC 377 .

75 *Kasturi Lal v State of J & K,* AIR 1980 SC 1992 : (1980) 4 SCC 1 .

76 *UOI v Prabhakaran Vijaykumar,* (2008) 9 SCC 527 ; **see also** *DDA v Joint Action Committee of SFC Flats,* (2008) 2 SCC 672 : AIR 2008 SC 1343 .

77 (2010) 2 SCC 273 : (2009) 14 Scale 623 .

78 **See also** *Ashok Kumar Thakur v UOI,* (2008) 6 SCC 1 : (2008) 5 JT 1 .

79 *Mahanadi Coalfields v Mathias Oram,* (2010) 11 SCC 269 : (2010) 7 JT 352 .

80 Author's *Constitution Amendment Acts*.

81 *State of Karnataka v Dr. Praveen Bhai Thogadia,* AIR 2004 SC 2081 : (2004) 4 SCC 684 .

82 *S.R. Bommai v UOI,* AIR 1994 SC 1918 : (1994) 3 SCC 1 .

83 *Ziyauddin Burharuddin Bukhari v Brijmohan Ramdos Mehra,* AIR 1975 SC 1788 : (1976) 2 SCC 17 .

84 *T.M.A. Foundation v State of Karnataka,* AIR 2002 SC 355 : (2002) 8 SCC 481 Per RUMA PAL J.

85 PLD 1976 SC 57 .

86 See Granville Austin, *Working a Democratic Constitution – A History of the Indian Experience*, 2nd Impression, 2004, pp 557-58.

87 *Javeed v State of Haryana,* AIR 2003 SC 3057 : (2003) 8 SCC 369 ; *John Vallamattom v UOI,* AIR 2003 SC 2902 : (2003) 6 SCC 611 .

88 *Himsa Virodh Sangh v Mirzapur Moti Kureh Jamat,* AIR 2008 SC 1892 : (2008) 5 SCC 33 .

89 *Perunchithiranar v State of TN,* AIR 1986 Mad 83 .

90 *Peethambaram v Supt. of Police, CBI* (1996) 1 KLJ 173 .

91 *A.S. Narayan Deekshithalu v State of AP,* AIR 1996 SC 1765 : (1996) 9 SCC 548 .

92 *Santosh Kumar v Secretary, Ministry of Human Resources Development,* AIR 1994 SC 293 : (1994) 6 SCC 579 .

93 *Sindhi Education Society v Govt. of NCT, of Delhi* (2010) 8 SCC 49 : (2010) 6 Scale 578 .

94 *Aruna Roy v Unions of India,* AIR 2002 SC 3176 : (2002) 7 SCC 368 per DHARMADHIKARI, J.), *Sri Adi Visheswara of Kasi Vishwanath Temple v State of UP,* (1997) 4 SCC 606 ; *R.C. Pondyal v UOI,* AIR 1993 SC 1804 : 1994 Supp (1) SCC 324 ; *M. Ismail Faruqui v UOI,* (1994) 6 SCC 360 .

1 *S.R. Bommai v UOI,* AIR 1994 SC 1918 : (1994) 3 SCC 1 : per AHMEDI J.

2 *M. Ismail Faruqui v UOI,* (1994) 6 SCC 360 .

3 *Dara Singh v Republic of India,* (2011) 2 SCC 490 : 2011 Scale 741 .

4 *Ashok Kumar Thakur v UOI,* (2008) 6 SCC 1 : JT (2008) 5 SCC 1 following *S.R. Bommai's case,* (1994) 3 SCC (*supra*).

5 *Bijoe Emmanuel v State of Kerala,* AIR 1987 SC 748 : (1986) 3 SCC 615 .

6 *Sardar Syedna Taher Saifudden Sahib v State of Bombay,* AIR 1962 SC 853 : 1962 Supp (2) SCR 496 .

7 *Lily Thomas v UOI,* AIR 2000 SC 1650 : (2000) 6 SCC 224 .

8 *Atheist Society of India v Govt. of Andhra Pradesh,* AIR 1992 AP 310 .

9 *Bommai v UOI*, (1994) 3 SCC 1 (para 183, RAMASWAMY, J., para 29, JEEVAN REDDY, J.); *Ismail v UOI*, (1994) 6 SCC 360 (para 37).

10 This view of the Author is now affirmed by the Supreme Court in *Santosh v Secy.,* AIR 1995 SC 293 (para 17).

11 See V.N. Shukla, *Constitution of India* , 10th Edn, p A-28.

12 See A.G. Noorani, *Constitutional Question and Citizen*. A compilation of various articles by learned journalist A.G. Noorani – published in various newspapers – containing the chapter dealing with Citizen's Rights, Judges and State's Accountability – Section I – Chapter 10 – "Supreme Court on Hindutva" – see at p 76(81).

13 *Praful Garodia v UOI,* (2011) 2 SCC 568 : (2011) 1 CTC 747 : (2011) 3 LW 44 .

14 *Syed Intesar Mehdi v UOI,* (2012) 6 SCC 265 : AIR 2012 SC 2453 .

15 *M.P. Gopalakrishna Nair v State of Kerala,* AIR 2005 SC 3053 : AIR 2005 SC 3053 .

16 *Bommai v UOI*, (1994) 4 SCC 1 (paras 178, 183, RAMASWAMY, J., para 304, JEEVAN REDDY, J.

17 *Indira v Rajnarain*, AIR 1975 SC 2299 (para 665).

18 *Indira v Rajnarain*, AIR 1975 SC 2299 (para 665).

19 In other words, it shall not be a "theocratic State' [para 666, HEGDE & MUKHERJEE, JJ. in *Kesavannda's Case*, AIR 1973 SC 1461].

20 See also *Bommai v UOI*, (1994) 3 SCC 1 (para 183, RAMASWAMY, J.,).

21 *Bal Patil v UOI,* (2005) 6 SCC 690 : AIR 2005 SC 3172 .

22 *Bommai v UOI*, (1994) 3 SCC 1 (para 151, SAWANT, J.). **See also** *Bal Patil v UOI,* (2005) 6 SCC 690 : AIR 2005 SC 3172 .

23 *Atheist Society v Govt. of A.P.*, AIR 1992 A.P. 310 (para 29).

24 *Ismail v UOI*, (1994) 6 SCC 360 (para 33) CB

25 *Bommai v UOI*, (1994) 3 SCC 1 (para 151, SAWANT, J.). **See also** *Bal Patil v UOI,* (2005) 6 SCC 690 : AIR 2005 SC 3172 .

PREAMBLE

26 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (para 1437) - KHANNA, J.; This was reiterated in *Rajnarain's case* [AIR 1975 SC 2299 (para 251)].

27 *Valsama v Cochin University*, AIR 1996 SC 1011 (paras 25, 30).

28 *Valsama v Cochin University*, AIR 1996 SC 1011 (paras 25, 30).

29 *Santosh v Secy. Ministry of H.R.D.*, AIR 1995 SC 293 (para 17).

30 *Bommai v UOI*, (1994) 3 SCC 1 .

31 *Ismail v UOI*, (1994) 6 SCC 360 (para 33).

32 *Bommai v UOI*, (1994) 3 SCC 1 ; *Ismail v UOI*, (1994) 6 SCC 360 (para 33).

33 *Ismail v UOI*, (1994) 6 SCC 360 (para 33); *Suryapal v State of UP*, (1952) SCR 1056 ; *Mahant v State of Punjab*, AIR 1981 SC 1376 (para 3).

34 *Ismail v UOI*, (1994) 6 SCC 360 (para 33).

35 *Bommai v UOI*, (1994) 3 SCC 1 .

36 *Ismail v UOI*, (1994) 6 SCC 360 (para 33) CB.

37 *Suryapal v State of UP*, (1952) SCR 1056 ; *Mahant v State of Punjab*, AIR 1981 SC 1376 (para 3).

38 Statesman, 12 Jyly 1992 (photo); Jugantar, 3 August 1990; Aajkal, 4 August 1990; Statesman, 4 August 1990. [It is striking that none of them was prosecuted].

39 Statesman, 3 February 1993.

40 *Mohd. Hamid v Badi Masjid Trust,* (2011) 13 SCC 61 : (2011) 4 LW 796 : (2011) 3 Ker LT 401 ; *Abdul Jalil v State of UP,*

(1984) 2 SCC 138 ; *Gulam Abbas v State of UP,* (1984) 1 SCC 81 .

41 *UOI v State of Gujarat,* (2011) 14 SCC 42 : (2011) 12 Scale 237 ; see also (2011) 14 SCC 65 : (2011) 14 SCC 52 .

42 Cf. *Ghulam v State of UP*, AIR 1981 SC 2198 ; *Mithar v UOI*, AIR 1983 SC 1 (paras 77-78); *Sarup v State of Punjab*, AIR 1959 SC 860 (*866*); *Ramaniya v State of TN*, AIR 1972 SC 1596 .

43 *State of Bombay v B.E.S.*, AIR 1954 SC 561 (*567*).

44 *Gopalan v State of Madras*, (1950) SCJ 174 (*191*); *Municipal Committee v State of Punjab*, AIR 1969 SC 1100 ; *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (paras 915, 1926, 1975).

45 *Waman v UOI*, AIR 1981 SC 271 (paras 50-52, 64, 65) CB Paras 692-93 of CHANDRACHUD, J. in *Indira v Rajnarain*, AIR 1975 SC 2299 (CB) make this emphatically clear.

46 *Atheist Society of India v Government of Andhra Pradesh,* AIR 1992 AP 310 .

47 M.P. Jain, Indian Constitutional Law, 5th Edn, vol II, Reprint 2007, p 1406.

48 M.P. Jain, Indian Constitutional Law, 5th Edn, vol II, Reprint 2007, p 1407.

49 *M.P. Gopalakrishnan Nair v State of Kerala,* JT 2005 (4) SC 436 : AIR 2005 SC 3053 : (2005) 11 SCC 45 .

50 *Bommai v UOI*, (1994) 3 SCC 1 (paras 151, 183, 304).

51 See *State of Rajasthan v Thakur Pratap Singh,* AIR 1960 SC 1208 ; *Pondyal R.C. v UOI,* AIR 1993 SC 1804 : 1994 (Supp-1) SCC 324).

52 *St. Stephen's College v University of Delhi*, (1992) 1 SCC 558 (paras 70-101) CB. **See also** *Preeti Srivastava v State of MP,* (1999) 7 SCC 120 : AIR 1999 SC 2894 ; *Manchegowda v State of Karnataka,* AIR 1984 SC 1151 : (1984) 3 SCC 301 .

53 *Indra v UOI*, (1992) Supp. (3) SCC 217 (paras 161, 478, 782, 784-9 Judges.

54 **Cf.** *State of Rajasthan v Pratap*, AIR 1960 SC 1208 (*1210*); *Kesavananda v State of Kerala*, AIR 1973 SC 1641 (para 552); *Indra v UOI*, (1992) Supp. (3) SCC 217 (paras 299, 808) - 9 Judges.

55 Statesman, 4 April 1994, p 1.

56 **Cf.** *Gulam Abbas v State of UP*, AIR 1981 SC 2198 : (1982) 1 SCR 1077 : (1982) 1 SCC 71 (paras 19, 26, 29, 32) - 3 Judges.

57 Vide Jugantar, 3 August 1990; 27 August 1990; Statesman, Calcutta, dt. 3 August 1990; 4 August 1990; 12 July 1992.

58 *Jagadiswarananda v C.P.*, AIR 1990 Cal 336 (appeal dismissed by D.B., dt. 8 November 1990).

59 *Ajkaal*, dt. 23 May 1993.

60 Of course, the tax on Ganga Sagar pilgrims has been imposed by the State Government; but if it is hit by *Article 14*, the Union Government could have pointed out that is the State Government.

61 It is striking that even Christianity is now protesting against possible conversion of Christians in Pakistan during the Benazir regime. See also Art, 28 of the Yeltsin *Constitution* of Russia, 1993 [3 SCW, 560-61].

62 This view in *Stainislaus v State of MP,* 1977 SC 908 (911) : (1977) 1 SCC 677 followed and relied on *Satya Ranjan Majhi v State of Orissa,* (2003) 7 SCC 439 .

63 *Punjabrao v Meshram*, (1966) II SCA 85; *Soosai v UOI*, AIR 1986 SC 733 : (1985) Supp (3) SCR 242 : 1985 (Supp) SCC 590 : 1985(2) Scale 773 (para 8). Of course, whether they can claim to come in as O.B.C. is a different question [cf. *Indra v UOI*, AIR 1993 SC 477 (paras 80-82; 661) : (1992) Supp (3) SCC 212 : (1992) 6 JT 273 : (1992) 6 SLR 321].

64 *Church of God (Full Gospel) in India v K.K.R. Majestic Colony,* AIR 2000 SC 2773 : (2000) 7 SCC 282 .

65 (2011) 2 SCC 568 : (2011) 3 LW 44 :

(2011) 1 CTC 747 : (2011) 1 Ker LT 584
.

66 *Santosh v Secy.*, AIR 1995 SC 293
.

67 *Santosh v Secy.*, AIR 1995 SC 293 .

68 In the opinion of the Author, once it is held that Sanskrit is the foundation of the common heritage and culture of India, what stands in the way of making it a *compulsory* subject at *some* stage of a child's education – as it was even in the British days?

69 *Bommai v UOI*, (1994) 3 SCC 1 (paras 151, 183, 304).

70 *State of WB v Ashutosh*, (1995) 1 SCC 189 (para 10) - 3 Judges.

71 *Bommai v UOI*, AIR 1994 SC 1918 - 9 Judge Bench.

72 *Bommai v UOI*, AIR 1994 SC 1918 - 9 Judge Bench.

73 Vide 12 Sh. 223. [See the difficulties [Statesman, 17 March 1996] arising out of the *Hindutva* Judgment *Bal Thackeray v Prabhakar*, (1996) 1 SCC 130 (paras 43-44); *Suryakant v Saroj*, (1996) 1 SCC 384 (para 14)]; *Aslam v UOI*, (1996) 2 SCC 749 (paras 3-4).

74 **Cf.** Bryce, *Modern Democracies*, vol II, chapter 1.

75 *R.C. Pondyal v UOI,* AIR 1993 SC 1804 : 1994 (Supp-1) SCC 324.

76 H.M. Seervai, *Constitutional Law of India*, 4th Edn, vol I, p 280.

77 Sir Ivor Jennings, *The British Constitution,* 1962, p 204.

78 Saul K. Padover, *The Meaning of Democracy*, 1967, p 79.

79 Funeral Address of Pericles delivered in 430 BC – quoted in William Ebenstein, *Two Ways of Life*, p 16.

80 Ralph K. White & Ronald Lippitt, *Autocracy and Democracy*, 1960, p 2. See Dr. C.D. Jha, *Judicial Review of Legislative Acts*, 2nd Edn, 2009, p 2.

81 See Craig R. Ducat, *Constitutional Interpretation*, 8th Edn, p 89.

82 See Kagzi, *The Constitution of India*, 6th Edn, vol I, pp 328-29.

83 P. Ramanatha Aiyar, *Advanced Law Lexicon*, 3rd Edn, 2005 – Book 2, p 1312.

84 AIR 1993 SC 1804 : 1994 Supp (1) SCC 324 .

85 **Cf.** Bryce, *Modern Democracies*, vol II, chapter 1.

86 **See also** section 128 of the Commonwealth of Australia *Constitution* Act, 1900; *section 46 of the Constitution* of Eire; *Article 96* of the Japanese *Constitution*; and the Swiss *Constitution*, reproduced under *Article 368*, *post.*

87 In *England*, universal adult suffrage has been introduced only as late as 1949, by the *Representation of the People Act*, 1949. In the *U.S.A.* such requirements have been removed only in 1970 (26th Amendment). But even then racial discrimination is still operating againts the "blacks' through indirect devices.

88 *Article 326*.

89 According to the census of 1991.

90 *People's Union for Civil Liberties v UOI,* AIR 2003 SC 2363 : (2003) 4 SCC 399 .

91 *R.C. Poudyal v UOI,* AIR 1993 SC 1804 : 1994 (Supp-1) SCC 324; **see also** *Ravi Yashwant Bhoir v Collector,* AIR 2012 SC 1339 : (2012) 4 SCC 407 .

92 *S. Rangarajan v P. Jagjivan Ram,* (1989) 2 SCC 574 ; see also *Prakash Jha Production v UOI,* (2011) 8 SCC 372 : (2011) 10 JT 102 .

93 *UOI v Association of Democratic Rights,* AIR 2002 SC 2112 : (2002) 5 SCC 294 .

94 *K. Krishnamurthy v UOI,* (2010) 7 SCC 202 ; **see also** *UOI v Rakesh Kumar,* (2010) 4 SCC 50 ; **see also** *Village Panchayat, Calangutte v Addl. Director of Panchayat,* AIR 2012 SC 2697 : (2012) 7 SCC 550 .

95 *S.R. Choudhari v State of Punjab,* AIR 2001 SC 2707 : (2001) 7 SCC 126 .

96 *Article 368*.

97 **Cf.** *U.D.M. v Governor-General*, *(1991) L.R.C. (Const.) 328* - Mauritius (on *s.1 of the Constitution*); *Poudyal v UOI*, (1994) Supp. (1) SCC 324 (*362*).

98 *Poudyal v UOI*, (1994) Supp. (1) SCC 324 (*362*).

99 *People's Union for Civil Liberties (PUCL) v UOI*, AIR 2003 SC 2363 : (2003) 4 SCC 399

1 K.M. Panikkar, *Hindu Society at Cross Roads*, pp 63-64. See Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, 9th Impression, 2005, pp 46-47.

2 See Dr. Radhakrishnan's "Foreword' in Shiva Rao, *The Framing of India's Constitution – A Study*.

3 *T.N. Seshan v UOI*, (1995) 4 SCC 611 .

4 Vide Author's *Introduction to the Constitution of India*.

5 *Kanhiya Lal v Trivedi*, AIR 1986 SC 111 (para 10).

6 See Dr. Subhash C. Kashyap, *Constitution Making since 1950 – An Overview*, pp 355-61. **See also** *DMDK v Election Commission of India*, AIR 2012 SC 2191 : (2012) 7 SCC 340 .

7 *Rama Kant Pandey v UOI*, AIR 1993 SC 1766 : (1993) 2 SCC 438 .

8 *P. Nalla Thampi v UOI*, AIR 1985 SC 1133 : 1985 (Supp) SCC 189.

9 *Dhartipakar Madan Lal Agarwal v Rajiv Gandhi*, AIR 1987 SC 1577 : 1987 (Supp) SCC 93.

10 See Hood Phillips & Jackson, *Constitutional & Administrative Law*, 8th Edn, chapter X, para 38, p 218

11 See A.W. Bradley & K.D. Ewing, *Constitutional & Administrative Law*, 13th Edn, p 155.

12 *Seshan v UOI*, (1995) 4 SCC 611 .

See also *DMDK v Election Commision of India*, AIR 2012 SC 2191 : (2012) 7 SCC 340 .

13 *UOI v Association for Democratic Reforms,* AIR 2002 SC 2112 : (2002) 5 SCC 294 .

14 **Cf**. *Jilubhai v State of Gujarat*, (1995) Supp. (1) SCC 596 (paras 47, 51); *Consumer E.R.C. v UOI,* (1995) 3 SCC 42 .

15 Constitutent Assembly Debates, vol XI, dt. 25 November 1949.

16 *Valsamma v Cochin University*, AIR 1996 SC 1011 (para 6).

17 Constituent Assembly Debates, vol XI, dt. 25 November 1949. **See also** *Dalmia Cement (Bharat) Ltd v UOI,* (1996) 10 SCC 104 .

18 *Indira Nehru Gandhi v Raj Narain,* AIR 1975 SC 2299 : 1975 (Supp) SCC 1; **see also** *T.N. Seshan v UOI,* (1995) 4 SCC 61 .

19 *DMDK v Election Commission of India,* AIR 2012 SC 2191 : (2012) 7 SCC 340 .

20 See Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, 9th Impression, p 130.

21 *Samatha v State of AP,* AIR 1997 SC 3297 : (1997) 8 SCC 191 .

22 **Cf.** Garner, *Political Science*, p 177.

23 Madison, Federalist, No. xxxix.

24 *Cf. Pacific States T. & T. Co v Oregon*, (1912) 223 U.S. 118; *Ohio v Akron Metropolitan Park District*, (1930) 281 U.S. 74.

25 *Chisholm v Georgia*, (1792) 2 Dall. 419 (*457*).

26 *Re Duncan,* 139 US 449 : 11 Supreme Court 573 : 35 Law Edn 219. [P. Ramanatha Aiyar, *Advanced Law Lexicon*, 3rd Edn, 2005, Book-4, p 4078]

27 See Kagzi, *The Constitution of India*, 6th Edn, vol I, p 330-31.

28 See Janda, Berry & Goldman, *The Challenge to Democracy* – Government of America, p 86

29 P. Ramanatha Iyer, *Advanced Law Lexicon*, 2007 Reprint.

30 P. Ramanatha Aiyar, *Advanced Law Lexicon*, 3rd Edn, 2005, Book-4, p 4078.

31 Cooley, *Constitutional Law*, chapter XIX.

32 Dr. Subhash C. Kashyap, *The Framing Of India's Constitution—A Study,* 2nd Edn, 2004, p 130.

33 M.P. Jain, *Indian Constitutional Law,* vol I, 5th Edn, Reprint 2007, p 14.

34 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (*1535, 1603, 1628, 1860*).

35 See Dr. C.D. Jha, Judicial Review on Legislative Acts, 2nd Edn, 2009, p 38.

36 **Cf.** *Kartar v State of Punjab*, (1994) 3 SCC 569 (paras 399, 414) - Ramaswamy, J. (CB).

37 See Dr. C.D. Jha, Judicial Review on Legislative Acts, 2nd Edn, 2009, p 40.

38 Ronald Dworkin on Matter of Principle under the Chapter "Political Judges and the Rule of Law" – published in M.P. Singh, *Comparative Constitutional Law* – the author was comparing two ideas and two countries *i.e.*, England and United States – at p 3 (at 25). According to the author, the American system gives importance to individual rights and justice, whereas in England, importance is given to "a class".

39 *Dalmia Cement (Bharat) Ltd v UOI,* (1996) 10 SCC 104 *(supra)*.

40 3rd Edn, 2005, Book-3 P 2543.

41 Buller, J., *Trial of O'Coigly and others* (1798), 26 Howells' State Trials 1193.

42 AIR 1999 SC 3822 : (2000) 7 SCC 296 .

43 *Ralph Waldo Emerson*: Essays (1803-820, First Series, 1841, "Circles".

44 Selected Writings of Cardozo, Falcon Publications, 1947, pp 223-24.

45 *Valsamma Paul v Cochin University,* AIR 1996 SC 1011 : (1996) 3 SCC 545 .

46 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (*1535, 1603, 1628, 1860*).

47 A feature which has won for the Indian *Constitution* the encomium of being "first and foremost a *social "document*", from Granville Austin, *The Indian Constitution*, 1966, pp 50-51.

48 Vide Author's *Introduction to the Constitution of India*.

49 *Natinal T.W.U. v Ramakrishnan*, (1983) 1 SCC 228 (para 6); *Valsamma v Cochin University*, AIR 1996 SC 1011 (para 6).

50 *Raghunathrao v UOI*, AIR 1993 SC 1267 (para 96).

51 *R.C. Poudyal v UOI,* AIR 1993 SC 1804 : 1994 (Supp-1) SCC 324.

52 *Raghunathrao v UOI*, AIR 1993 SC 1267 (para 96).

53 *R. Chandraveerappa v State of Karnataka,* (1995) 6 SCC 309 : (1995) 5 Scale 620 ; *Air India Statutory Corp v United Labour Union,* AIR 1997 SC 645 : (1997) 9 SCC 377 .

54 *Centre for Environmental and Food Security v UOI,* (2011) 5 SCC 676 ; *Dewan Chand Builders and Contractors v UOI,* (2012) 1 SCC 101 : (2012) 1 CTC 421 .

55 *Kesavananda Bharathi v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 .

56 *National T.W.U. v Ramakrishnan*, (1983) 1 SCC 228 (para 6); *Valsamma v Cochin University*, AIR 1996 SC 1011 (para 6).

57 *Gupta v UOI*, AIR 1982 SC 149 (para 26) - 7 Judges; *Consumer Centre v UOI*, AIR 1995 SC 922 .

58 *M. Nagaraj v UOI,* AIR 2007 SC 71 : (2006) 8 SCC 212 .

59 See Introduction by Prof. Adams in Charles W. Pipkin, The Ideas of Social Justice, 1927.

60 *Minerva Mills Ltd v UOI,* AIR 1980 SC 1789 : (1980) 3 SCC 625 .

61 *All India Statutory Corp v United Labour Union,* AIR 1997 SC 645 : (1997) 9 SCC 377 : 1997-I-LLJ-1113 .

62 *Chattar Singh v State of Rajasthan,* AIR 1997 SC 303 : (1996) 11 SCC 742 .

63 *Indra Sawhney v UOI,* AIR 1992 SC 477 : 1992 Supp (3) SCC 210 .

64 *Ashoka Kumar Thakur v UOI,* (2008) 6 SCC 1 .

65 *LIC of India v Consumer Education and Research Centre,* AIR 1995 SC 1811 : (1995) 5 SCC 482 ; *CESC Ltd v S.C. Bose,* AIR 1992 SC 573 : (1992) 1 SCC 441 .

66 *National Textile Workers' Union v P.R. Ramakrishnan,* (1983) 1 SCC 228 .

67 *Maharashtra State Co-op. Bank Ltd v Provident Fund Commissioner,* (2009) 10 SCC 123 : AIR 2010 SC 868 .

68 *Daulat Singh Surana v First Land Acquisition Collector,* AIR 2007 SC 471 : (2007) 1 SCC 641 ; **see also** *Bhim Singh v UOI,* (2010) 5 SCC 538 : (2010) 5 Scale 37 .

69 *Centre for Public Interest Litigation v UOI,* AIR 2012 SC 3725 : (2012) 3 SCC 1 . **See also** *Natural Resources Allocation, In Re. Special Reference No.1 of 2012* (2012) 10 SCC 1 : (2012) 9 Scale 310 .

70 *Secretary, State of Karnataka v Umadevi (3),* AIR 2006 SC 1806 : (2006) 4 SCC 1 .

71 *UP State Brassware Corp Ltd v Uday Narain Pandey,* (2006) 1 SCC 479 : AIR 2006 SC 586 .

72 (2001) 2 Guj LR 1394.

73 (1999) 1 Guj LR 889.

74 *M. Nagaraj v UOI,* AIR 2007 SC 71 : (2006) 8 SCC 212 .

75 *Consumer Education and Research Centre v UOI,* AIR 1995 SC 922 : (1995) 3 SCC 42 *(supra).*

76 *Crown Aluminium Works v Workmen*, AIR 1958 SC 30 . See also *R.S. Swamiji v State of Mysore,* AIR 1966 SC 1171 .

77 **Cf.** *Muir Mills v Suti Mills Mazdoor Union*, (1955) 1 SCR 991 : AIR 1955 SC 170 .

78 *Express Newspaper v UOI*, AIR 1958 SC 578 (*600-1*); *Standard Vacuum Refining Co v Workmen*, AIR 1961 SC 895 (*901*); *Hindustan Times v Workmen*, (1964) 1 SCR 234 . See *UP State Brassware Corp Ltd v Uday Narain Pandey,* (2006) 1 SCC 479 : AIR 2006 SC 586 .

79 AIR 1964 SC 737 , 743.

80 *Gupta v UOI*, AIR 1982 SC 149 (para 26) - 7 Judges.

81 *Sadhuram v Pulin*, AIR 1984 SC 1467 (paras 30, 31).

82 *Gupta v UOI*, AIR 1982 SC 149 (para 26) - 7 Judges; *Sadhuram v Pulin*, AIR 1984 SC 1467 (paras 30, 31)

83 *Gupta v UOI*, AIR 1982 SC 149 (para 26) - 7 Judges.

84 *UOI v Sankalchand*, AIR 1977 SC 2328 .

85 *Bandhua Mukti Morcha v UOI,* AIR 1984 SC 802 : (1984) 3 SCC 161 .

86 *M.C. Mehta v UOI,* AIR 1986 SC 1086 .

87 AIR 1987 SC 656 : (1987) 3 SCC 50 .

88 *Olga Tellis v Bombay Municipal Corp,* AIR 1986 SC 180 : (1985) 3 SCC 545 .

89 *Crown Aluminium Works v Their Workmen,* AIR 1958 SC 30 : [1958] 1 SCR 651 .

90 *State of Kerala v Jacob Mathew,* AIR 1964 SC 316 .

91 *Kamala Devi v State of Punjab,* (1989) Scale 767 .

92 *Pratibha Rani v Suraj Kumar,* AIR 1985 SC 628 .

93 *Rudul Sah v State of Bihar,* AIR 1983 SC 1086 : (1983) 4 SCC 141 .

94 *Budhadev Karmaskar (1) v State of WB,* (2011) 11 SCC 538 : (2011) Cr LJ 1684 .

95 *State of UP v Parent of student, Medical College, Simla* AIR 1985 SC 910 : (1985) 3 SCC 169 .

96 *Dalmia Cement (Bharat) Ltd v UOI,* (1996) 10 SCC 104 .

1 *Air India Statutory Corp v United Labour Union,* AIR 1997 SC 645 : (1997) 9 SCC 377 : *1997 (I) LLJ 1113* **overruled** on another point prospective in *Steel Authority of India v National Union Waterfront Workers,* (2001) 7 SCC 1 : *2001 (II) LLJ 1087*).

2 *State of Maharashtra v H.N. Rao,* AIR 1970 SC 1157 : (1971) 73 Bom LR 75 ; **see also** *P.H. Mawle v State of AP,* AIR 1965 SC 1827 : [1965] 3 SCR 743 ; *Babulal Pawde v State of Maharashtra,* AIR 1961 SC 884 : (1961) 2 Cr LJ 163 : (1961) 3 SCR 763 .

3 *Om Oil and Oil Seeds Exchange Ltd v Workmen,* AIR 1966 SC 1657 : *1966 (II) LLJ 324* ; *N.S. Giri v Corp, City of Mangalore,* AIR 1999 SC 1958 : (1999) 4 SCC 697 : *1999 (II) LLJ 690* ; *Gorden Woodroff Agencies (P) Ltd v Presiding Officer,* (2004) 8 SCC 90 .

4 *State of Karnataka v Regunatha Reddy,* AIR 1978 SC 215 : (1977) 4 SCC 471 .

5 *Sanjeev Coke v Bharat Coking Coal Ltd.*, AIR 1983 SC 239 : (1983) 1 SCC 147 ; *State of TN v L. Abu,* AIR 1984 SC 326 : (1984) 1 SCC 515 .

6 *Balbir Kaur v Steel Authority of India,* AIR 2000 SC 1596 : (2000) 6 SCC 493 : *2000 (II) LLJ 1* .

7 9th Impression, 2005, p 50.

8 Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, 9th Impression, 2005, pp 114-15.

9 *UOI v Sankalchand*, AIR 1977 SC 2328 .

10 see *Randhir Singh v UOI,* AIR 1982 SC 879 : (1982) 1 SCC 618 ; *D.S. Nakara v UOI,* AIR 1983 SC 130 : (1983) 1 SCC 305 ; *Grih Kalyan Kendra v UOI,* AIR 1991 SC 1173 : (1991) 1 SCC 619 ; *Associate Bank Officers' Assn. v State Bank of India,* AIR 1998 SC 32 : (1998) 1 SCC 428 ; *Federation of All India Customs & Central Excise Stenographers v UOI,* AIR 1988 SC 1291 : (1988) 3 SCC 91 ; *State of Haryana v Jasmer Singh,* AIR 1997 SC 1788 : (1976) 11 SCC 77 ; *Surayanarayana Sahu v CSIR,* AIR 1998 SC 548 : (1998) 2 SCC 162 ; *State of Bihar v Bihar State Plus II Lecturers' Assn.,* (2008) 7 SCC 231 ; *UOI v Dineshan,* (2008) 1 SCC 586 ; *V. Markandeya v State of AP,* AIR 1989 SC 1308 : (1989) 3 SCC 191 .

11 **Cf.** Articles. 4 and 6 of the Soviet *Constitution*; In fact, however, a number of industries and businesses have been nationalised during the last two decades, to prevent mismanagement as well as to prevent concentration of wealth in the hands of a few.

12 *Jilubhai v State of Gujarat*, (1995) Supp. (1) SCC 596 (paras 47, 51).

13 *Dalmia Cement (Bharat) Ltd v UOI,* (1996) 10 SCC 104 ; *Murlidhar Dayandeo Kesekar v Viswantha Pandu Borde,* 1995 (Supp-2) SCC 549.

14 *Bodhisattwa v Subhra*, (1996) 1 SCC 490 (para 6).

15 *Thota v Thota*, (1991) 3 SCJ 543 (para 13). **See also** *Pritham Kaur v State of Pepsu,* AIR 1963 Punjab 9 (FB); *Raj Rajeswari Devi v State of UP,* AIR 1954 All 608 .

PREAMBLE

16 AIR 2008 SC 663 : (2008) 3 SCC 1 .

17 (1997) 6 SCC 241 : AIR 1997 SC 3011 .

18 *D.S. Grewal v Vimmi Joshi,* (2009) 2 SCC 210 : (2009) 1 Scale 54 .

19 *John Vallamattom v UOI,* (2003) 6 SCC 611 : AIR 2003 SC 2902 .

20 *Arun Kumar Agarwal v National Ins. Co Ltd,* AIR 2010 SC 3426 : (2010) 9 SCC 218 : (2010) 3 Ker LT 230 ; **see also** *National Ins. Co Ltd v Deepika,* (2009) 6 Mad LJ 1003.

21 *Budhadev Karmakar (1) v State of WB,* (2011) 11 SCC 538 : (2011) Cr LJ 1684 .

22 *Muthamma v UOI*, (1980) 1 SCR 663 .

23 *Air India v Nargesh*, (1982) 1 SCR 438 : (1981) 4 SCC 335 **affirmed in** *Air India Cabin Crew Assn. v Yeshaswinee Merchant,* (2003) 6 SCC 278 .

24 *Thota v Thota*, (1991) 3 SCJ 543 (para 13). **See also** *Pritham Kaur v State of Pepsu,* AIR 1963 Punjab 9 (FB); *Raj Rajeswari Devi v State of UP,* AIR 1954 All 608 .

25 *Thota v Thota*, (1991) 3 SCJ 543 (para 13).

26 *Municipal Corp of Delhi v Female Workers (Muster Roll),* AIR 2000 SC 1274 : (2000) 3 SCC 224 : *2000 (I) LLJ 846* .

27 *Vijay Lakshmi v Punjab University,* AIR 2003 SC 3331 : (2003) 8 SCC 440 .

28 *V.D. Bhanot v Savita Bhanot,* AIR 2012 SC 965 : (2012) 3 SCC 183 .

29 *Rajbir v State of Haryana,* AIR 2011 SC 568 : (2010) 5 SCC 116 .

30 *Apparel Export Promotion Council v A.K. Chopra,* AIR 1999 SC 625 : (1999) 1 SCC 759 .

31 *Mt. Choki v State of Rajasthan,* AIR 1957 Raj 10 ; *Shehat Ali v State of Rajasthan,* (1992) Cr LJ 1335 .

32 *Shamsher Singh v State of Punjab,* AIR 1970 P & H 372. **But see** *Walter Alfred Baid, Sister Tutor (Nursing) Irwin Hospital v UOI,* AIR 1976 Del 302 .

33 *Rajesh Kumar Gupta v State of UP,* AIR 2005 SC 2540 : (2005) 5 SCC 172 .

34 *A. Ritu Mahajan v IOC,* (2009) 3 SCC 506 : (2009) 2 JT 327 .

35 AIR 1995 SC 1648 : (1995) 4 SCC 520 .

36 *Neera Mathur v LIC,* AIR 1992 SC 392 : (1992) 1 SCC 286 .

37 *S. Mahendran v Travancore Devaswom Board,* AIR 1993 Ker 42 .

38 *Air India Cabin Crew Assn. v Yeshashince Merchant,* AIR 2004 SC 187 : (2003) 6 SCC 278 : *2003 (III) LLJ 1* .

39 *Thota v Thota*, (1991) 3 SCJ 543 (para 13).

40 **Cf.** Laski, *A Grammer of Politics*.

41 *Kartar Singh v State of Punjab*, (1994) 3 SCC 569 (paras 373-75) (CB) : (1994) 2 JT 423 - Ramaswamy, J.

42 *Kartar Singh v State of Punjab*, (1994) 3 SCC 569 (paras 373-75) (CB) - Ramaswamy, J.

43 *Kartar Singh v State of Punjab,* (1994) 3 SCC 569 per SAHAI, J.

44 *Unnikrishnan v State of AP,* AIR 1993 SC 2178 : (1993) 1 SCC 645 per MOHAN, J.

45 See T.M. Cooley, *A Treatise on Constitutional Limitations*, p 393.

46 *Kharak Singh v State of UP,* AIR 1963 SCC 1295 : (1964) 1 SCR 332 ; *Sharda v Dharmpal,* AIR 2003 SC 3450 : (2003) 4 SCC 493) .

47 *J.K. (Bombay) Ltd v Bharthi Matha Mishra,* AIR 2001 SC 649 : (2001) 2 SCC 700) – Doubted on another point and referred to a larger Bench in *Lalitha Jalan v Bombay Gas Co.,* AIR 2002 SC 3129 : (2002) 7 SCC 37 : 2002 (II) LLJ 1080 .

48 *Kharak Singh v State of UP,* AIR 1963 SC 1295 : [1964] 1 SCR 332 .

49 *ADM v Shivkant Shukla,* AIR 1976 SC 1207 : (1976) 2 SCC 52 – Ray CJ.

50 *A.K. Gopalan v State of Madras*, AIR 1950 SC 27 : 1950 SCR 88 (per Mukherjee, J.).

51 *Maneka Gandhi v UOI,* AIR 1978 SC 597 : (1978) 1 SCC 248 ; *Satwant Singh Sawhney v D. Ramarathan,* AIR 1967 SC 1836 : (1967) 3 SCR 525 —per majority.

52 *District Registrar and Collector v Canara Bank,* (2005) 1 SCC 496 .

53 *S.S. Bola v B.D. Sardana,* AIR 1997 SC 3127 : (1997) 8 SCC 522 .

54 *Meyer v Nebraska,* 262 US 390, 399 : 43 Supreme Court 625, 626 (1923).

55 Morris R. Cohen, *Reason and Law*, 1961, pp 101-02.

56 See Edwin Shorts & Clarie de Than, *Civil Liberties – Legal Principles and Individual Freedom*, 1998, pp 12-14.

57 *Maneka Gandhi v UOI,* AIR 1978 SC 597 : (1978) 1 SCC 248 .

58 *Suchita Srivastava v Chandigarh Admn.,* (2009) 9 SCC 1 : AIR 2010 SC 235 .

59 *UOI v Rakesh Kumar,* AIR 2010 SC 3244 : (2010) 4 SCC 50 .

60 In this context, it is to be noted that even the rule of equality before the law is subject to the judicially acknowledged exception of reasonable classification to provide the social interest in extraordinary stituations, e.g., the trial of terrorist [**cf**. *Kartar Singh v State of Punjab*, (1994) 3 SCC 569 (paras 269 ff.) CB].

61 *Sri Srinivasa Theatre v Govt. of Tamil Nadu,* AIR 1992 SC 999 : (1992) 2 SCC 643 .

62 *State of UP v Deoman Upodhaya,* AIR 1960 SC 1125 – per SUBBA RAO, J.

63 *Gouri Shankar v UOI,* AIR 1995 SC 55 .

64 *Indra Sawheny v UOI,* AIR 1993 SC 477 : 1992 (Supp-3) SCC 217.

65 *Velamuri Venketa Sivaprasad v Kothari Venkateswaralu,* AIR 2000 SC 434 : (2000) 2 SCC 139 .

66 *Mohd. Usman v State of AP*, AIR 1971 SC 1801 : (1971) 2 SCC 188 .

67 *Natural Resources Allocation, In Re. Special Reference No.1 of 2012* (2012) 10 SCC 1 : (2012) 9 Scale 310 .

68 *Subramanian Swamy v Manmohan Singh,* AIR 2012 SC 1185 : (2012) 3 SCC 64 : (2012) Cr LJ 1519 .

69 *State of Orissa v Mamata Mohanty,* (2011) 3 SCC 436 : (2011) 2 Scale 377 .

70 *Basheshar Nath v CIT,* AIR 1959 SC 149 : 1959 Supp (1) SCR 528 .
Nar Singh Pal v UOI, AIR 2000 SC 1401 : (2000) 3 SCC 589 ; *Olga Tellis v Bombay Municipal Corp,* AIR 1986 SC 180 : (1985) 2 SCC 545 .

71 *Raghunathrao v UOI*, 1993 SC 1267.

72 *AIIMS Students' Union v AIIMS,* AIR 2001 SC 3262 : (2002) 1 SCC 428 ; **see also** *Kailashben Nimama v Gujarat University,* AIR 2005 Guj 328 .

73 Constituent Assembly Debates, vol XI, pp 979-80.

74 *State of UP v Ram Sajivam,* AIR 2010 SC 1738 : (2010) 1 SCC 529 .

75 *Arumugham Servai v State of TN,* (2011) 6 SCC 405 : AIR 2011 SC 1859 ; **see also** *Kailas v State of Maharashtra,* (2011) 1 SCC 793 : AIR 2011 SC 598 .

76 (2008) 8 SCC 435 : (2008) 1 Scale 346 .

77 *Indra Sawhney v UOI,* AIR 1993 SC 477 : 1992 (Supp-3) SCC 212.

78 AIR 1993 SC 1267 : (1993) 1 Scale 363 .

79 *L.I.C. v Consumer Centre*, (1995) 2 U.J.S.C. 442 (para 16) : 1995) 5 SCC 482 : AIR 1995 SC 1811 . **See also** *Consumer Education Research Centre v UOI,* (1995) 3 SCC 42 ; *Regional Director ESI Corp v Francis De Costa,* 1993 (Supp-4) SCC 100.

80 12 B.V.G.E. 45 (*53*).

81 7 B.V.G.E. 198, 205 ff., 230 ff.

82 (1967) Yearbook of Human Rights, 103.

83 12 B.V.G.E. 45 (*53*).

84 7 B.V.G.E. 198, 205 ff., 230 ff.

85 B. Shiva Rao, *The Framing of India's Constitution — A Study*, vo. III, p 510.

86 *L.I.C. v Consumer Centre*, (1995) 2 UJSC 442 (para 16) : 1995) 5 SCC 482 : AIR 1995 SC 1811 ; *Santosh v Secy.*, (1994) 6 SCC 579 (para 18).

87 *UOI v Naveen Jindal,* AIR 2004 SC 1559 : (2004) 2 SCC 510 .

88 *Ravichandran v Bhattacharjee*, (1995) 5 SCC 457 (para 14).

PREAMBLE

89 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 .

90 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 .

1 *Unnikrishnan v State of UP*, (1993) 1 SCC 645 (para 166) CB

2 *Nilabati v State of Orissa*, (1993) 2 SCC 746 (para 20) - 3 Judges.

3 *Golak Nath v State of Punjab*, AIR 1967 SC 1643 (paras 50-51) - 11 Judges. **See also** *Waman Rao v UOI,* AIR 1981 SC 271 : (1981) 2 SCC 362 .

4 *Poudyal v UOI*, (1994) Supp. (1) 325 (para 124) CB; *State of Karnataka v Appa*, (1995) 4 SCC 469 . **See also** *Maneka Gandhi v UOI,* AIR 1978 SC 597 : (1978) 1 SCC 248 ; *Pathumma v State of Kerala,* AIR 1978 SC 771 : (1978) 2 SCC 1 .

5 *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 .

6 **See also** *Minerva Mills Ltd v UOI,* AIR 1980 SC 1789 : (1980) 3 SCC 625 ; *Valsamma Paul v Cochin University,* AIR 1996 SC 1011 : (1996) 3 SCC 545 ; *R.C. Poudyal v UOI,* AIR 1993 SC 1804 : 1994 (Supp-1) SCC 324; *M. Ismail Faruqui v UOI,* (1994) 6 SCC 360 ; *S.R. Bommai v UOI,* (1994) 3 SCC 1 ; *Smt. Indira Nehru Gandhi v Raj Narain,* AIR 1975 SC 2299 : 1975 (Supp) SCC 1.

7 *State of Bihar v Bal Mukund Sah,* AIR 2000 SC 1296 : (2000) 4 SCC 640 .

8 *K.T. Plantation (P) Ltd v State of Karnataka,* (2011) 9 SCC 1 : AIR 2011 SC 3430 .

9 *Mehr Singh Saini, In Re.* (2010) 13 SCC 586 : (2010) 12 JT 374 ; **see also** *Centre for Public Interest Litigation v UOI,* AIR 2011 SC 1267 : (2011) 4 SCC 1 (regarding the appointment of CVC.

10 *People's Union for Civil Liberties v UOI,* AIR 2003 SC 2363 : (2003) 4 SCC 399 .

11 *Peoples' Union for Civil Liberties v UOI,* AIR 2004 SC 1442 : (2004) 2 SCC 476 .

12 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 .

13 *Waman v UOI*, AIR 1981 SC 271 .

14 *Raghunathrao v UOI*, AIR 1993 SC 1267 (paras 84ff.; 174ff.) (CB).

15 *Kesavananda v State of Kerala*, AIR 1973 SC 1461 (paras 1444) - 13 Judge Bench.

[Art 1] Name and territory of the Union-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART I THE UNION AND ITS TERRITORY

[Art 1] Name and territory of the Union-

(1) India, that is Bharat, shall be a Union of States.

(2) The States and the territories thereof shall be the States and the territories specified in Part A, B and C of the First Schedule.

(3) The territory of India shall comprise–

(a) the territories of the States;

(b) the territories specified in Part D of the First Schedule; and

(c) such other territories as may be acquired.

Before 1 November 1956.	***After 1 November 1956***
[*Art 1*] Name and territory of the Union-(1) India, that is Bharat, shall be a Union of States.	**[*Art 1*] Name and territory of the Union**-(1) India, that is Bharat, shall be a Union of States. (2) **The** States and the territories thereof shall be as [1] specified in…[1] the First Schedule.
(2) The States and the territories thereof shall be the States and the territories specified in Part A, B and C of the First Schedule.	(3) The territory of India shall comprise–
(3) The territory of India shall comprise–	
(a) the territories of the States;	(a) the territories of the States;
(b) the territories specified in Part D of the First Schedule; and	(b) the *Union*[1] territories specified in [1] …the First Schedule; and
(c) such other territories as may be acquired.	(c) such other territories as may be acquired.

See Preamble, quoted at p 370, *ante.*

(B) *Canada.*

The Preamble to the British North America Act, 1867, says-

> Whereas the Provinces of Canada, Nova Scotia, and New Brunswick have expressed their desire to be federally united into one Dominion, under the Crown of the United Kingdom of Great Britain and Ireland, with a *constitution* similar in principle to that of the United Kingdom:
>
> And whereas such a *union* would conduce to the welfare of the Provinces and promote the interest of the British Empire……

(C) *Australia.*

The Preamble to the Commonwealth of Australia *Constitution* Act, 1900 says –

> Whereas the people of New South Wales, Victoria, South Australia, Queensland, and Tasmania, humbly relying on the blessing of Almighty God, have agreed to unite in one indissoluble Federal Commonwealth under the Crown of the United Kingdom of Great Britain and Ireland, and under the *Constitution* hereby established:

The Commonwealth includes the "original States", *i.e.*, such States as were part of the Commonwealth at the date of its establishment as well as territories subsequently admitted into the Commonwealth as States (ss.6, 121).

Besides these States, there may be "territories" either surrendered by the States to the Commonwealth (section 111) or otherwise acquired by the Commonwealth and the governance of such territories shall be exclusively regulated by laws of the Commonwealth Parliament. *Section 122 of the Constitution* Act says –

> The Parliament may make laws for the government of any territory surrendered by any State to and accepted by the Commonwealth, or of any territory placed by the Queen under the authority of and accepted by the Commonwealth, or otherwise acquired by the Commonwealth, and may allow the representation of such territory in either House of the Parliament to the extent and on the terms which it thinks fit.

As the Preamble unequivocally declares, the Federal Union is "indissoluble."

(D) *Switzerland.*

Article 1 of the Swiss *Constitution* (1874) says –

[Art 1] Name and territory of the Union-

> *The peoples of the twenty-two sovereign Cantons of Switzerland united in the present alliance, namely: Zurich, Bern, Lucerne, Uri, Schwyz, Uterwalden (Upper and Lower), Glaris, Zug, Freibury, Solothurn Basel (City and Country), Schaffhousen, Appenzell (the two Rhodes), St. Gall, Grisons, Aargau, Thurgaw, Ticino, Vaud, Valais, Neuchatel, and Geneva* form together the Swiss Confederation.

Though the Swiss *Constitution* calls itself a “Confederation” and reserves the “sovereignty of the Cantons so far as their sovereignty is not limited by the Federal *Constitution*” [*Article 31*], the Swiss *Constitution* is regarded by scholars as a full-fledged Federal *Constitution*, next to the American.[2]

(E) *West Germany.*

Article 20(1) of the West German *Constitution* (1949) says—

> The Federal Republic of Germany is a democratic and social federal state.

As to its territory, *Article 23* provides—

> For the time being, this Basic Law shall apply in the territory of the Laender Baden, Bavaria, Bremen, Greater Berlin, Hamburg, Hesse, Lower Saxony, Northrhine-West Phalia, Rhineland-Palatinate, Schleswig-Holstein, Wuerttemberg-Baden, and Wuerttemberg-Hohenzollern. In other parts of Germany it shall be put into force on their accession.

(F) *Republic of South Africa.*

The Preamble to the *Constitution* of the Republic of South Africa, 1996 says—

> “We, the people of South Africa, Recognise the injustices of our past;
>
> Honour those who suffered for justice and freedom in our land;
>
> Respect those who have worked to build and develop our country; and
>
> Believe that South Africa belongs to all who live in it, united in our diversity.
>
> We therefore, through our freely elected representatives, adopt this *Constitution* as the supreme law of the Republic so as to
>
> Heal the divisions of the past and establish a society based on democratic values, social justice and fundamental human rights;

[Art 1] Name and territory of the Union-

Lay the foundations for a democratic and open society in which government is based on the will of the people and every citizen is equally protected by law;

Improve the quality of life of all citizens and free the potential of each person; and

Build a united and democratic South Africa able to take its rightful place as a sovereign state in the family of nations.

May God protect our people.

Nkosi Sikelel' iAfrika. Morena boloka setjhaba sa heso.

God seën Suid-Afrika. God bless South Africa.

Mudzimu fhatutshedza Afurika. Hosi katekisa Afrika.

[Art 1.2] INDIA

[Art 1.2.1] Amendment

The Article has been amended by the *Constitution* (Seventh Amendment) Act, 1956, as shown in the text. (The Amendment was given effect to from 1 November 1956.).

[Art 1.2.2] Effects of Amendment

In the original *Constitution*, the States which formed the Union of India were classified into three categories and enumerated in Pts A, B and C of the First Schedule of the *Constitution*. At the date of the *Constitution* (Seventh Amendment) Act, 1956, the number of these States was 10, 8 and 9 respectively, making a total of 27. Besides these 27 States of different categories, there was another category, *viz.*, a territory specified in Pt D of the First Schedule.

The *Constitution* (Seventh Amendment) Act, 1956 reduced these 4 categories into two only. Instead of three categories of States, there would now be only one class of "States", and the number of such States after the "reorganisation" became 14. After subsequent amendments the number has come up to 25, by the end of 1987.[3]

The category of "territory in Pt D" was also replaced by "Union Territories", and the class now includes not only the Andaman and Nicobar Islands which were previously included in Pt D, but also some of the erstwhile Pt C States. The total number of these Union Territories thus became 6. Others have been subsequently added, raising the number of Union Territories to 7.[4]

[Art 1.3] CLAUSE (1)

[Art 1.3.1] India, a Union of States

The word "Union" was deliberately selected by the Drafting Committee from the Preamble to the British North America Act, in order to explain that the type of federation that the *Constitution* was going to adopt, was of the Canadian type. According to Dr. Ambedkar, the Chairman of the Drafting Committee, the word was adopted to indicate two things, *viz.,* (a) that the Indian federation is not the result of an agreement by the units and (b) that the component units have no freedom to secede from it.[5]

Dr. Ambedkar said that the unitary government of South Africa was called a Union so that it was not contrary to

the usage to describe India as a Union. The Committee wanted to make it clear that though India was to be Federation, the Federation was not the result of an agreement by the State to join a Federation and that the Federation, not being the result of any agreement, no State had the right to secede from it. The Federation was a Union because it was indissoluble.[6]

The leaders in the Constituent Assembly would draft a highly centralised *Constitution*, many of whose provisions were designed to contribute to unity: centralised administration, the federal government's executive, financial and legislative powers, a unified court system, single citizenship and adult suffrage. This top-down federalism has been described thus:- "In India, the Union is not a federation of sovereign states. This is an important distinction between the Indian Union and other democratic federations where the federating units existed before the federal union…and could therefore insist on coming into those federations on their own terms".[7] According to GRANVILLE AUSTIN, the various political leaders wanted putting national unity first since they believed in a strong central government as well as strong States.[8]

During the Constituent Assembly debates, some members of the Constituent Assembly proposed that India should be described as a Federation. However, instead of the word "Federation", the word "Union" was deliberately selected by the Drafting Committee of the Constituent Assembly to indicate: (a) that the Indian Union was not the result of an agreement by the States which constituted it, and (b) that the component States are not free to secede from it. The Federation is a Union because it is indestructible. Therefore, despite India being divided into different States for convenience of administration, the country is an integral whole, its people a single people living under a single imperium, derived from a single source. The Drafting Committee thought that it is better to make it clear at the outset rather than to leave it to speculation or to dispute. Thus, India is not an association or confederation of States, it is a Union of States and there is only one nationality, that is, Indian.[9]

In India, the Union is not a federation of sovereign States. This is an important distinction between the Indian Union and some other democratic federations where the federating units existed before the federal union…and could therefore insist on coming into those federations on their own terms.[10] But the words "Union of States" indicate that the Indian Union is federal, though the Union has some rights against States.[11]

Article 1 of the Constitution says that India is a Union of States and the States and the territories thereof are specified in First Schedule. None of the constituent units of the Indian Union was sovereign and independent in the sense the American colonies and Swiss Cantons were before they formed their federal unions. The Constituent Assembly of India, deriving its power from the sovereign people, was unfettered by any previous commitment in evolving constitutional pattern suitable to the genius and requirements of the Indian people as a whole.[12]

The definition of India as a Union of States emphasizes the important part which the States have to play in our *Constitution*. The *Constitution* itself says by *Article 1* that India is a Union of States and in interpreting the *Constitution* one must keep in view the essential structure of a federal or a quasi-federal *Constitution* namely that the units of the Union have also certain powers as has the Union."[13]

The word "Union" however, does not indicate any particular type of federation, inasmuch as it is used also in the Preamble of the *Constitution* of the United States – the model of federation; in the Preamble of the British North America Act (which, according to Lord Haldane, did not create a true federation at all);[14] in the Preamble to the Union of South Africa Act, 1909, which patently set up a unitary *Constitution*.[15]

[Art 1.3.2] Essential features of Indian federation.

We have already analysed the salient features of the Indian federation to show that though it resembles the Canadian federation in its centralising tendency, it even goes further than the Canadian precedent and engrafts certain novel provisions which are not to be found in the text of the Canadian *Constitution*.

In *State of Rajasthan v UOI,*[16] it was observed by Beg, C.J. (as he was then) that the Indian *Constitution* "as more unitary than federal". It was held "In a sense, therefore the Indian Union is federal. But, the extent of federalism in it is largely watered down by the deeds of progress and development of a country which has to be nationally integrated, politically and economically co-ordinated and socially, intellectually and spiritually uplifted. It was further observed that "Our *Constitution* creates a Central Government which is "amphibian" in the sense that it can move either on a federal or a unitary plane. The choice based on the assessment of the situation is a matter for the Union Government itself to decide.[17] The same learned Judge held in *State of Karnataka v UOI,* that "Our *Constitution* has, despite whatever federalism may be found in the structure, so strongly unitary features also in it.[18] Reliance was placed by the learned Judge on the book *The Indian Constitution – Cornerstone Of A Nation* by Granville Austin where the learned author has described our system "if it could be called federal" could be described as "co-operative federalism."

Austin goes on to state that A.H. BIRCH, in his book *Federalism, Finance and Social Legislation in Canada, Australia and the United States* (p. 305) says: "…the practice of administrative co-operation between general and regional governments, the partial dependence of the regional governments upon payment from the general government and the fact that the general government, by the use of conditional grants, frequently promote in matters which are constitutionally assigned to the region." Austin says that this definition applies to India with the exception of conditional grant, a device rarely used under the *Constitution*. Federal disbursements within the framework of national planning, however, have had the same centralising effect to some effect, but this has been over and above the normal operation of federal finance.

In *Kuldip Nayar v UOI,*[19] it was held that under "strict federalism", the Lower House represents "the people" and the Upper House consists of the "Union" of the federation. In strict federation, both the Chambers have equal legislative powers and financial powers. However, in the Indian context, strict federation is not adopted. The Indian Union has been described as the "holding together" of different areas by the *Constitution* framers, unlike the "coming together" of the constituent units as in the case of USA and Confederation of Canada.

The *Constitution* does incorporate the concept of federalism in various provisions. The provisions which establish the essence of federalism *i.e.,* having States and Centre, with a division of functions between them with sanction of the *Constitution*, include among others Lists II and III of Seventh Schedule that give plenary powers to the State legislature; the authority to Parliament to legislate in a field covered by the States under *Article 252* only with the consent of two or more States with provision for adoption of such legislation by any other States; the competence of Parliament to legislate in matters pertaining to the State List, only for a limited period under *Article 259* in the "national interest" and under *Article 250* during "emergency", vesting the President with powers under *Article 258*(1) to entrust a State Government with the consent of the Governor function in relation to matters to which executive power of the Union extends, notwithstanding anything contained in the *Constitution*, decentralisation of power by formation of independent municipalities and panchayats through 73rd and 74th Amendments, *etc.*

Thus, though the federal principle is dominant in our *Constitution*, and has been affirmed as one of its basic features, it is also equally true that federalism under Indian *Constitution* leans in favour of a strong Centre, a feature that militates against the concept of strong federalism. Some of the provisions that can be referred to in this context include the power of the Union to deal with extraordinary situation such as during the emergency (*Article 250*, *252*, *253*) and in the event of a proclamation being issued under *Article 356* that the governance of the State cannot be carried on in accordance with the provision of the *Constitution* and the power of Parliament to legislate with respect to a matter in the State list in the national interest in case there is a resolution of the Council of States supported by prescribed majority. (*Article 249*). *Article 251* when read with *Article 259* in effect permits the Rajya Sabha to encroach upon the specified legislative competence of a State legislature by declaring a matter to be of national importance. Though it may have been incorporated as a safeguard in the original Constitutional Scheme, this power allows the Union Government to interfere with the functioning of State Govt., which is more often prompted by the existence of opposing party affiliation at the Centre and State levels. Other provisions include the power of Parliament to provide for creation and regulation of All India Services common to the Union and the States in case there is a resolution of the Council of States supported by not less than a two-third majority (*Article 312*); there is only one citizenship, namely, Citizenship of India and perhaps the most important, the power of Parliament in relation to the formation of new States and alterations

of areas, boundaries or names of States. (*Article 3*). This bias towards "Unitary power" under normal circumstances is not seen either in USA or Canada.

Therefore, the position emerges that India is not a federal State in the traditional sense of the term. Federalism in India is not related to concepts of territory, given that India is not a true federation formed by agreement between various States and territorially it is open to the Central Government under *Article 3 of the Constitution*, not only to change the boundaries, but even to extinguish a State. Further, when it comes to exercising powers, they are weighed in favour of Centre so much so that various descriptions have been used to describe India such as a *pseudo*-federation or *quasi*-federation in an amphibian form.[20]

The Supreme Court has held that it is the essence of a Federal *Constitution* that there should be a distribution of legislative powers between Centre and the Provinces.[21] In a Federal *Constitution*, unlike a legally omnipotent legislature like British Parliament, the constitutionality of a law turns upon the construction of entries in the legislative list.[22]

In *Bhim Singh v UOI,*[23] the Court described India as having a *quasi*-federal *Constitution*. It was held that when the *Constitution* is not strictly federal and is only *quasi*-federal, every article should be given the widest possible and flexible interpretation and no article can be given a restrictive and narrow interpretation.[24]

Reiterating the principle of federal supremacy, the Supreme Court, while interpreting *Article 246(1) of the Constitution*, has said that in inevitable cases of conflict between the Union and State powers, the former will prevail.[25]

In an earlier case, *State of WB v UOI,*[26] it was held that the unitary features in our *Constitution* are many, and the federal features almost disappear. The minority judgment held that Indian *Constitution* accepts the federal concept and distributes the sovereign powers between co-ordinate constitutional entities, namely, the Union and the states "and this concept implies that one cannot encroach upon the governmental functions or instrumentalities of the other, unless the *Constitution* expressly provides for such interference." (SUBBA RAO, J.).

In *Prof. Yashpal v State of Chhattisgarh,*[27] it was held that the foundation for a federal set up for the nation was laid in this Govt. of India Act, 1935. Though in every respect the distribution of legislative power between the Union and State as envisaged in 1935 Act has not been adopted in Indian *Constitution*, but the basic framework in the same.

H.M. SEERVAI in his book on *Constitutional Law of India*, 4th Edn (reprinted in 1997) vol I has given various reasons to conclude that the view expressed in the above judgment are not correct. The learned author says that the view expressed in the Supreme Court judgments that the position that the principle of Federalism has been watered down in our *Constitution* is not supported by an examination of its provisions when compared with corresponding provisions in admitting federal *Constitution*. (p 303). According to the learned author, "in order to be called "federal", it is not necessary that a *Constitution* should adopt the federal principle completely. It is enough if the federal principle is the predominant principle in the *Constitution*" (p 286). The mere presence of unitary features in a *Constitution* which may make a *Constitution* quasi-federal in law, does not prevent the *Constitution* from being predominantly federal in practices. (p 287). According to the learned author, Federalism in India is mainly historical (p 284).

The framers did not adopt a doctrinaire approach based on the outmoded concept of classified federalism, but adopted a functional approach and devised a system in tune with the peculiar needs, traditions and aspirations of the Indian people.[28] Indian federalism is a *sui generis* system. In devising the federal system, the framers of the *Constitution* sought to ensure its vitality as well as its adaptability to the changing needs of a dynamic society." Merely because the centre enjoys predominance over the States to some extent, the Indian *Constitution* does not cease to be federal. Federal form of government has no fixed connotation. No two federal

constitutions are alike. Each federal government has its own federal character. Each is the culmination of certain historical processes. One basic feature of such federation however is that there is a division of powers between the Centre and the regional units by the *Constitution* itself. If the essence of federalism in the existence of units and the centre, with a division of functions between them by the sanction of the *Constitution*, then these elements are present in India."[29]

The classical definition of a federation is given by E.A. FREEMAN. According to him, "Two requisites seem necessary to constitute a federal government in its most perfect form. On the one hand, each of the members of the Union must be "wholly independent" in those matters which concern each member only. On the other hand, all must be subject to a common power in those matters which concern the whole body of members collectively. ….Each member is "perfectly independent" within its sphere."[30] The shortest definition of classical federation is given by WHEARE. He says: "By the Federal Principle, I mean the method of dividing powers so that the general and regional governments are each within its sphere "independent".[31] On the other hand, according to modern view, "A federal system of Government is one in which there is division of powers between one general and several regional authorities, each of which, in its own sphere, is coordinating with the others.[32] The major change in the new definition of the federation relates to dropping out of the word "independent" and shifting the emphasis to co-ordination and co-operation between federal and regional governments. Yet, the essential aspect of federalism *viz.,* the division of power between the federal and regional government remains. In the words of REAGON, "Old style of federalism is described as non- relationship between national and State government. New style of federalism refers to multi-faced positive relationship of shared action. The meaning of federalism today lies in a process of joint action, not in a matter of legal status. It lies not in what governments are, but in what they do. It is a matter of action, rather than structure. It is dynamic and changing, not static and constant".[33]

The modern States are no longer the "laissez-faire", frontier guarding and land and order maintaining States. They are welfare, socialist or socialistic States which are engaged in social and economic activities in a big way. Today social control is no longer considered to be degrading to manhood of an individual and subversive of individual right as a citizen.[34] Rather, the State exercises social control on the individual even before he is born (by providing anti-natal clinics) and even after he is dead (by imposing death duties). In this background, the emphasis is not on "two independent" sets of government, but "two co -ordinate and co-operative" sets of governments are retained, but both governments do not essentially act independently of each other, but co-operate with each other and co-ordinate each other's activities. If the federal and regional governments do not co-operate and co-ordinate, the planning can never be successful. This seems to be the reason why in modern federation there is a large concurrent area.[35]

India is a Union of States. Each State has its own individualistic way of governance under the *Constitution*. Our State is not bound to follow the rules and regulations applicable to the employees of the other states or if had adopted the same rules and regulations. Merely because the State as per policy and practice has been adopting the same pay scales for the employers as sanctioned from time to time by another state, cannot be treated as a "command." The principle of "accepted policy and common practice" should not be applied while interpreting the provision of law.[36]

The essential feature of Indian *Constitution* is the establishment of a Government for governing the entire body. In doing so, the *Constitution* prescribes the powers of the Central Government, and the powers of the State Government and the relationship between the two. In a sense, if the word "federation" can be used at all, it is a federation of various States which are designated under the *Constitution* for the purpose of efficient administrative and governance of the country. The powers of the Centre and States are demarcated under the *Constitution*. It is futile to suggest that the States are independent, sovereign or autonomous units, which had joined the federation under certain condition. No such state ever existed or acceded to the Union.[37]

Since then the nature of Indian federation has been comprehensively reviewed in the 9- Judge decision of the Supreme Court in *Bommai's case*,[38] which affirms by and large, the views of the Author, referred to above.

> The fact that under the scheme of our *Constitution*, greater power is conferred upon the Centre *vis-à-vis* the States does not mean that States are mere appendages of the Centre. Within the sphere allotted to them, *States are supreme*…… More particularly, *the Courts should not adopt* an approach, an interpretation, which has the effect of or tends to have the *effect of whittling down the powers reserved to the States*…… Let it be said that the federalism in the Indian *Constitution* is *not a matter of administrative convenience, but one of principle* - the outcome of our own historical process and a recognition of the ground realities [para 21].[39]

The above view is supported by SAWANT & KULDIP SINGH JJ., in these words [para 66]:[39]

> ….the States have an independent constitutional existence…. They are neither satellites nor agents of the Centre. The fact that during emergency and of certain other eventualities their powers are overridden or invaded by the Centre is *not destructive* of the *essential* federal feature of our *Constitution*…. They are exceptions and have to be resorted to only to meet the exigencies of the *special situations*. The *exceptions are not a rule*. [para 66].[39]

The Indian *Constitution* has, in it, not only features of a pragmatic federalism which, while distributing legislative powers and indicating the spheres of governmental powers of State and Central Government is overlaid by strongly “unitary” features, particularly exhibited by lodging in Parliament the residuary legislative powers, and in the Central Government the executive power of appointing certain Constitutional functionaries including High Court and Supreme Court Judges and issuing appropriate directions to the State Government and even displacing the State legislatures and the Government in emergency situation. (Per AHMADI, J.).

The majority decision in *S.R. Bommai’s* case held that “Federalism is a basic feature in which Union of India is permanent within the territorial limits set in *Article 1*, and in indestructible and law made by *Articles 2* to 4 made the State with no territorial integrity, but a permanent entity with its boundaries alterable by a law made by Parliament.

The Supreme Court held in 2001 that the Indian *Constitution* is basically federal in form and is marked by the traditional characteristics of a federal system, namely, supremacy of the *Constitution*, division of power between the Union and States and existence of an independent judiciary.[40]

The Constituent Assembly deliberately described India as a “Union” instead of “Federation”. From the discussion above, it becomes clear that India is not an association or confederation of States. It is a “Union” of States and there is only one “nationality”, that is, Indian. Hence, every citizen has a right to go anywhere in India, to settle anywhere, and work and do business of his choice in any part of India, peacefully. What are the attributes when India is a Union of States? It is held that since this is a country of great diversity, it is absolutely essential, if we wish to keep our country united, to have tolerance and respect for all communities and sects. It was due to the wisdom of Founding Fathers that we have a *Constitution* which is secular in character and which caters to the tremendous diversity in our country. Thus, it is the *Constitution of India* which is keeping us together despite all our tremendous diversity, because, the *Constitution* gives equal respect to all communities, sects, lingual and ethnic groups, *etc.* in the country.[41]

The Commission on Inter -State Relation (the Sarkaria Commission) in its report has specifically said that the *Constitution* as emerged from the Constituent Assembly in 1949, has important federal features, but it cannot be federal in the classical sense. (paras 8 & 9 of the Report of the Commission on Central State Relation, Pt I and paras 1 March 2004, 1 March 2005, 1 March 2006 and 1 March 2007 relied on by the Supreme Court in *Kuldip Nayar’s* case (supra)

[Art 1] Name and territory of the Union-

[Art 1.4] CLAUSE (2)

[Art 1.4.1] Territories of the States

The territories of the States comprising the Union are described in (the first part of) the First Schedule, *post.*

The history of the formation and reorganisation of these States is fully explained under the First Schedule, *post.* Nevertheless, a summary thereof may be useful at this stage;

As has been already stated, in the *Constitution* as it was promulgated in 1949, there were three categories of States which formed the Union of India. *viz.*, the States in Pts A, B and C of the First Schedule.

Broadly speaking, the States in Pt A corresponded to the Governor's Provinces under the Government of India Act, 1935,—the Provinces of the Punjab and Bengal having been truncated by the Partition. The States in Pt B represented the 275 bigger Indian States as integrated into groups under "the Patel Scheme".[42] The States in Pt C, on the other hand, represented the Chief Commissioner's Provinces under the Act of 1935, plus 61 viable Indian States which were placed under the Chief Commissioners prior to the commencement of the *Constitution* under the same Patel Scheme relating to Indian States. Subsequent alterations in the names or territories of the States were made by Acts such as the Andhra State Act (XXX of 1953); The *Himachal Pradesh and Bilaspur (New State) Act, 1954*.[43]

In the original *Constitution*, there were 27 States placed under three categories, – in Pts A, B and C of the First Schedule, having different status and features. These States underwent some changes by subsequent legislation, until the *Constitution* (7th Amendment) Act of 1956 abolished the three categories and placed all the States on the same footing (being 14 in number) - as a result of the reorganisation made by the *States Reorganisation Act, 1956*, which was incorporated in the *Constitution* (7th Amendment) Act. By the *Bombay Reorganisation Act* (11 of 1960), the State of Bombay was split up into two States – Maharashtra and Gujarat. A new State, namely, Nagaland, was formed with effect from 1 February 1964, by the *State of Nagaland Act, 1962*. The next change was introduced by the Punjab Reorganisation Act, 1966, which split up the State of Punjab into two States – Punjab and Haryana, with effect from 1 November 1966. The status of the Union Territory of Himachal Pradesh was upgraded to that of a State by the Himachal Pradesh Act, 1970, and similarly, Manipur, Tripura and Meghalaya were upgraded by the N.E. Areas (Reorganistaion) Act, 1971, and Mizoram (which had been made a Union Territory by the said Act of 1971), has been upgraded as a State by the *State of Mizoram Act, 1986*. Sikkim was added as the 22nd State of the Union, by the *Constitution* (36th Amendment) Act, 1975, with effect from 26 April 1975. Mizoram and Arunachal Pradesh became States on 20 February 1987. Goa gained statehood on 30 May 1987. In 2000, the States of Uttar Pradesh, Madhya Pradesh and Bihar were split into two States each to create Uttaranchal, Chhattisgarh and Jharkhand respectively. Andhra Pradesh was split into Telangana and Andhra Pradesh by the Andhra Pradesh Reorganisation Act, 2014 (6 of 2014) with effect from 2 June 2014.[44]

[Art 1.5] CLAUSE (3)

[Art 1.5.1] Membership of the Union and Territory of India

As clause (1) says, the "Union of India" will be composed only of the States. But the *Constitution* will extend to any territory which comes within the scope of the expression "territory of India" as defined in Cl. (3) of the present Article.

These three categories, as altered by the *Constitution* (Seventh Amendment) Act, 1956, are—

(a) The "States", and these are members of the "Union of States" referred to in clause (1). These are now 25 in number, by the end of 1995.

These are specified in the first part of the First Schedule of the *Constitution*.

(b) The “Union Territories”, being 7 in number at the end of 1995.

These are specified in the second part of the First Schedule of the *Constitution*.

(c) Any territory that may be acquired by India, at any time. Thus–

(i) Chandernagore, which was acquired by a Treaty of Cession from France, was governed as an “acquired territory since 9 June 1952, to 2 October 1954, when it was merged with West Bengal as a result of the *Chandernagore (Merger) Act, 1954*.

(ii) Goa, Daman and Diu, acquired from the Portuguese by annexation, were being administered since 20 December 1961 as “acquired Territory”, until they were incorporated as a Union Territory, by the *Constitution* (Twelfth Amendment) Act, 1962, with effect from 29 March 1962.

(iii) The French Settlement of Pondicherry (together with Karaikal, Mahe and Yanam), which was *de facto* ceded to India by the French Government in 1954 was being administered as a foreign territory under the *Foreign Jurisdiction Act* until 16 August 1962, inasmuch as the Treaty of Cession had not yet been ratified by the French Parliament.[45] After such ratification, the territory of this French Settlement was administered as “acquired territory” until 28 December 1962, when it was constituted a “Union Territory”, by the *Constitution* (Fourteenth Amendment) Act, 1962.

An “acquired territory” is included within the definition of “Union Territory” in *Article 366* (30), *post*. In the result, such territories will also be governed by the provisions in Pt VIII, until they are admitted as States.

Article 1(3)(c) does not purport to confer power on India to acquire territories; it merely provides for and recognises automatic absorption or assimilation into the territory of India of territories which may be acquired by India by virtue of its inherent right as a sovereign state to acquire foreign territory[46] and “acquired” means acquired by any of the means recognised by International Law.[47] Mere physical possession of a territory by force of arms is not “acquisition”. Such territory must be annexed.[48]

[Art 1.6] Difference in status of the States and the Union Territories

1. (a) Since the *Constitution* (Seventh Amendment) Act, 1956, there is no distinction between the “States” *inter se*. All of them now belong to one class, and all provisions of the *Constitution* which are applicable to the “States” are applicable to them alike. Barring Jammu & Kashmir (for which special provisions are maintained), the provisions of Pt VI form the *Constitution* of all States alike.

There are certain provisions applicable to Maharashtra and Gujarat (*Article 371*), Nagaland (*Article 371A*), Assam (*Article 371B*), Manipur (*Article 371C*), Andhra Pradesh (*Article 371D*), Sikkim (*Article 371F*), Mizoram (*Article 371G*), Arunachal Pradesh (*Article 371H*), and Goa (*Article 371-I*) which override the general provisions applicable to States as a class.

It is to be noted that the administration of the Scheduled Areas, Scheduled Tribes and Tribal Areas as are included within the States are taken out from the operation of the general provisions of Pts VI and VIII, and are placed under the Fifth and Sixth Schedules which provide certain self-contained provisions regarding them [*Article 244*].

(b) The “Union Territories” shall be governed according to the provisions contained in Pt VIII. These territories,

in short, will be governed (subject to legislation by Parliament, if any) by the President acting through an "Administrator" appointed by him.

(c) As regards "acquired territories", – they are included within the definition of "Union Territories", in *Article 366*(30). Such territories will also be governed by provisions in Pt VIII.

When a territory is "acquired" by a Sovereign State for the first time, that is an Act of State. It matters not how the acquisition has been brought about. It may be by conquest, it may be by cession following on treaty, it may be by occupation of territory hitherto unoccupied by a recognised ruler. In all cases, the result is the same. Any inhabitant of the territory can make good in the municipal Courts established by the new sovereign only such rights, as that sovereign has through his officers recognized. Such rights as he had under the predecessors avail him nothing.[49]

The term acquired should be taken to a reference to "acquisition" as understood in Public International Law. If there were any public notification, assertion or declaration or treated as a territory as part and parcel of India, the Courts would be bound to recognise an "acquisition" as having taken place with the consequences that the territory would be part of the territory of the Union.[50]

Goa was liberated on 20 December 1961. Twelfth amendment to our *Constitution* received the assent of the President on 27 March 1962, which made Goa part of India and it became a Union Territory. Hence Goa must be considered as part of India from 20 December 1961 and indisputably at any rate from 27 March 1962. Thereafter Goa ceased to be a foreign territory.[51]

2. Though administered by the President through an Administrator, a Union Territory is not merged with the Central Government. As a result,–

(a) A person who has entered into a contract with the Government of a Union Territory cannot be held to have entered into a contract with the Central Government, within the meaning of *section 7(d) of the Representation of the People Act, 1951*.[52]

(b) A suit against a Union Territory should be brought not against the Central Government but against the Administration of the Union Territory,[53] which is represented by the Administrator, in view of section 2(7)(b)(iii) of the *General Clauses Act*, which defines the "Central Government" as including–

> *in relation to the administration of a Union Territory, the Administrator* thereof acting within the scope of the authority given to him under *Article 239 of the Constitution*.

Under *Article 239 of the Constitution of India*, the Union Territories are administered by the President of India acting through an administrator to be appointed by him. But this does not mean that the Union Territory becomes merged with the Central Government. They are centrally administered, but they retain their independent entity.[54] A Union Territory is to be administered by the President, acting to such extent as he thinks fit, through an Administrator to be appointed by him with such designation or he may specify.[55] Union territories form part of no State and yet are the territories of the Union. Union territory does not entirely lose its existence as an entity, though large control is exercised by the Union.[56] Even though the Union Territory has independent existence, under *Article 246(4) of the Constitution*, Parliament is empowered to make laws on an entry in the State list in so far as Union territory is concerned. Even when a legislature is created for a Union Territory, Parliament has superior power of legislation in relation to the Union Territory. Hence, any instruction or directive issued by the Central Government or the President is binding on the administration of the Union Territory.[57]

But it is not clear why, after the substitution of the definition of “State” in *section 3(58) of the General Clauses Act* by A.O. I of 1956, a Union Territory cannot sue or be sued in its own name in the same manner as a State. This definition, which controls the meaning of “State” in *Article 300 of the Constitution*, says—

> ‘State’….
>
> (b) as respects any period after such commencement [i.e. the commencement of the *Constitution* (Seventh Amendment)] Act, 1956, shall mean a State specified in the First Schedule to the *Constitution* and shall include Union Territory.

When Union Territory retains its existence as an entity, it can file petitions or pursue an appeal by itself, even though Union of India is also, impleaded.[58]

Even if there is complete transfer of administrative control that will not amount to a transfer of territory, where a ratification is required by the Assembly. The transfer of territory and acquisition is complete, only when there is a ratification by the Assembly and ratification the territory cannot be treated as part of Indian territory.[59]

[Art 1.6.1] Status of Jammu & Kashmir

On October 26, 1947, when the Indian State of Jammu & Kashmir was attacked by Azad Kashmir Forces backed by Pakistan, the State acceded to Dominion of India. By the Accession, India acquired jurisdiction over the State with respect to the subjects of Defence, External Affairs and Communications, and like other Indian States which survived as political units at the time of the making of the *Constitution of India*, the State of Jammu & Kashmir was included as a Pt B State in the First Schedule of the *Constitution*.

Nevertheless, the provisions relating to the *constitution* of the States in part B contained in *Article 238*, were *not* applied to the State of Jammu and Kashmir and entirely separate provisions for this State were made. The reasons for this special treatment of Jammu and Kashmir are mostly political. In view of the commitment of the Government of India that the people of this State, through their own Constituent Assembly, would determine the internal *Constitution* of this State and the nature and extent of jurisdiction of the Union of India over the State, until the decision of the Constituent Assembly the State of the *Constitution of India* could only provide an interim arrangement regarding this State.

The only Articles of this *Constitution* which apply of their own force to Jammu and Kashmir are – *Articles 1* and *370*. The application of the other Articles was to be determined by the President in consultation with the Government of the State. The relationship of Kashmir with India was initiated on a federal basis and there was a clear “division of sovereignty” between the Centre and the State which is the normal feature of a federation, beyond the powers transferred to the Union, the State enjoyed complete residuary sovereignty.[60]

Article 370(1)(d) lays down that the provision of the *Constitution*, besides those mentioned in the Instrument of accession, could be applied to the State with or without “modification” by order of President. The “power of modification” has been interpreted by the Supreme Court thus “We are therefore of opinion that the context of the *Constitution* we must give the widest effect to the meaning of the word “modification used in *Article 370*(1) and in that sense it includes an amendment. There is no reason to limit the word “modification” as used in *Article 370*(1) only to such modification as do not make any “radical transformation”.[61] Parliament is vested with power to make laws in respect of Jammu and Kashmir with respect to matters enumerated in Entries 1 to 96 of List I Schedule VII and the residuary power is retained by the Jammu and Kashmir Legislature.[62]

Subsequently, the Constituent Assembly of Jammu & Kashmir ratified the accession to India and also the decisions arrived at the Delhi Agreement as regards the future relationship of the State with India, in February, 1954. In pursuance of this, the President, in consultation with the State Government, made the *Constitution* (Application to Jammu and Kashmir) Order, 1954. The Order of 1954 superseded the *Constitution* (Application to Jammu & Kashmir) Order 1950 and defined precisely the scope and extent of the limitations on the State's sovereignty, consequent upon its accession to India. The Order of 1954 was amended on various occasions and the effect of all those amendments has been to bring the position prevailing in the State more on par with the rest of the country and further strengthen the bonds of harmonious association of the State with the rest of the country.[63]

By the application of *Article 1 of the Constitution of India* which declares the name and territory of the Union, Jammu and Kashmir forms part of the territory of India. At the time of inauguration of the *Constitution of India* in 1950, Kashmir was included as a part "B" State. But the distinction between Pt A, B and C States has been abolished and India now comprises of 25 States and 7 Union Territories. Jammu & Kashmir is shown as the 15th State in the *Constitution* (First Schedule). But the status of Jammu & Kashmir is different from other States due to historical reasons.

According to the Order of 1954, in short, the jurisdiction of the Union will extend to *all* Union subjects under the *Constitution of India* (subject to certain slight alterations), instead of only the three subjects of Defence, Foreign Affairs and Communications with respect to which the State had acceded to India in 1947. The Order deals with the entire constitutional position of the State within the framework of the *Constitution of India*, excepting only the internal *Constitution* of the State Government, which would be framed by the constituent Assembly of the State.

By the *Constitution* (Seventh Amendment) Act, 1956, the category of Pt B States having been abolished, the State of Jammu & Kashmir became a full -fledged State, with effect from 1 November 1956. On 17 November 1956, the Constituent Assembly of Jammu & Kashmir drew up the internal *Constitution* for the State, which was brought into force on 26 January 1957.

In the result, while the other States of the Union of India have no separate State *Constitution* and are governed by the provisions of Pt VI of the *Constitution of India*, Jammu & Kashmir has a separate *Constitution* for the governance of the State, so that Pt VI of the *Constitution of India* is not applicable to Jammu & Kashmir,[64] except as modified by the *Constitution* (Application to Jammu & Kashmir) Order, 1960. The applicability of the other provisions of the *Constitution of India* to that State is serially shown under *Article 370* of this Commentary.

The territory of the State of Jammu & Kashmir has been defined by the *Constitution* (Seventh Amendment) Act 1956 as "The territory which immediately before the commencement of the *Constitution*, was comprised in the Indian State of Jammu & Kashmir". Thus, territory includes the area of the State at present held by Pakistan (tribesmen) and which is not "*de facto*" under India's control.

The Security Council has recognised the sovereignty of Govt. of Jammu & Kashmir over the "whole" area as in its resolution of 15 January 1958, it said that the Plebiscite Administrator would describe his authority for conducting plebiscite in the State of Jammu & Kashmir (which includes the area in the hands of tribesmen) from the Govt. of Jammu & Kashmir. Also, as FERGUSON remarks, "…it was the "whole" State of Jammu & Kashmir that acceded to India, and although some regions had broken away, they had done so illegally, and their illegal action could not confer any right on Pakistan."[65]

(For further discussion, see *Article 370*).

[Art 1.6.1.1] Extent of 'Territory' under International Law

The word "territory" in International Law, is not co-terminous with the geographical boundary of the land of a State, but comprises –

> the whole area, whether of land or water, included within definite boundaries, as ascertained by occupation, prescription or treaty; together with such inhabited or uninhabited lands as are considered to have become attendant on the ascertained territory through occupation or accretion."[66] "Territory is the space within which that State and no other State exercises its supreme authority.

The areas *attendant* on the territory of a State are –

(a) such parts of sea as are known as "territorial waters";

(b) such adjacent islands as are either situated within a distance of three miles from the coast, or are otherwise regarded as natural appendages of the territory.

The territory of a State consists, in the first place, of the land within its boundaries. To this must be added, in the case of States with a sea coast, certain waters which are within or adjacent to its land boundaries.[67] These waters are of two kinds – (a) national and (b) territorial. National waters consist of the waters in its lakes, in its canals, in its rivers together with their mouths, in its ports and harbours, and in some of its gulfs and bays. These different kinds of national, or as they are sometimes called internal or inland waters, must be distinguished from territorial waters. National waters are in fact, legally though not physically, equivalent to national land.

India is entitled both under domestic law and public international law to exercise rights of sovereignty upto 24 nautical miles from the baseline on the basis of which the width of territorial waters is measured.[68] It was held therein that sovereignty of a nation/State over the land mass comprised within territorial boundaries of the State is an established principle of both constitutional theory and international law. The authority of the sovereign to make and enforce laws within the territory over which the sovereignty extends is unquestionable in constitutional theory. That the sovereignty of a "coastal State" extends to territorial waters, is also a well-accepted principle of international law, though there is no uniformity shared legal norm establishing the limit of territorial waters – "maritime territory". Whether the maritime territory is also a part of national territory of the State is a question on which difference of opinion exists. In *B.K. Wadeyar v Daulatram Rameshwarlal,*[69] the Court held that territorial limits would include the territorial waters of India. The *Territorial Waters, Continental Shelf, Exclusive Economic Zone and other Maritime Zones Act* (80 of 1976) declares that the sovereignty of India extends and has always extended to the territorial waters of India. Section 3 of the Act declares that sovereignty of India extends and always extended to the territorial waters and to the seabed and subsoil underlying and air space over such water and the limit of territorial waters is the line every point of which is at a distance of twelve nautical miles from the nearest point of appropriate baseline. The Act also authorises the Govt. to alter the limit of territorial waters by a notification by both Houses of Parliament, with due regard to International Law and State practice.

Land, minerals underlying ocean within territorial waters or the continental shelf or the exclusive economic zone of India shall vest in the Union of India and will be held for the purpose of the Union under *Article 297*(1). All other resources of exclusive economic zone of India shall also similarly vest in the Union and will be held for the purpose of Union.

Whereas internal waters are subject to the absolute territorial sovereignty of a State, the position of territorial waters is clearly defined. *Article 1* of the Territorial Sea Convention provides that sovereignty of a State extends beyond its land territory and its internal waters, to a belt of sea. Although the State has a right to prohibit the ships of other States from fishing and to prevent the hostile operation of foreign vessels within its territorial

waters, the sovereignty is nevertheless subject to a number of exemptions in favour of ships of foreign States, principally the right of innocent passage.[70]

The expression "territory" of India, in *our* Constitution, therefore, includes such attendant areas as well, and since other provisions of the Constitution use expressions such as "territorial waters" [*e.g.,* Article 297], it would be useful to note the contents of those attendant areas under International law:

[Art 1.6.1.2] *Territorial waters.*

The "territorial waters" of a State comprise (i) the littoral or marginal sea; (ii) inlets, exhibiting a well-marked configuration, such as gulfs and bays and inland seas; (iii) straits, not exceeding 6 miles in breadth.[71]

(i) *The littoral or marginal sea.*

Every State has sovereignty over its adjacent territorial waters comprising the "maritime belt" of the open sea. While the open sea cannot be the subject of dominion of any State, the above littoral zone adjoining the coast of each State has been treated as part of the territory of that littoral State, by general assent, since sovereignty over the littoral zone is necessary for the defence and security of that State.

According to English decisions[72] the maritime belt is three-mile zone (one marine league) measured from the low-water mark on the coast.

But international law is not uniform as to the extent of this maritime belt.

The President of India has, therefore, issued a Proclamation[73] fixing the limit of the "territorial waters of India" at "*six nautical miles*" into the sea "measured from the appropriate base line."

By a subsequent Proclamation,[74] the territorial waters of India was extended into the sea to a distance of twelve nautical miles, measured from the appropriate base line.[74] Section 3(2) of the Territorial Waters, Continental Shelf, Exclusive Economic Zone and other Maritime Zones Act, 1976 now provides that the limit of the territorial waters is the line, every point of which is at a distance of twelve nautical miles from the nearest point of the appropriate base line. Another notification of the Government dated 15 January, 1977 has extended the "exclusive economic zone" of India up to a distance of 200 nautical miles into the sea from the shore base line. This has been done under the Territorial Waters, Continental Shelf, Exclusive Economic Zone and other Maritime Zones Act, 1976, passed after the Constitution (40th Amendment) Act, 1976.

(ii) *Inlets.*

Harbours, estuaries and land-locked bays belong to the territory of the State possessing the shores around them.[75] There is no agreement as to what maximum width at its point of actual junction with the open sea would constitute a "territorial bay", but the British view puts it at 6 miles.[76]

(iii) *Straits.*

Straits are broadly governed by the same principles as applicable to the "littoral sea",[76] so that the breadth of a "strait" should not exceed 6 miles in order to be "territorial".[77]

(iv) *Rivers*

wholly enclosed within the limits of a State form part of its territory. The rivers which flow *through* the territory also form a part of the domain from their sources to their mouths, or as far as they flow within the territory, including the bays or estuaries formed by their junction with the sea.[78]

[Art 1.6.1.3] 'Territories as may be acquired' [Sub-clause (c)]

Sub-clause (c) provides that besides the territories included in the several parts of the First Schedule, such other territories as may be "acquired" by India at any time, shall form part of the territory of India, within the meaning of clause (3) of this Article.[79]

The power to "acquire" territory, however, is not conferred by the clause; it is a power which every sovereign State has the inherent right to exercise by virtue of its sovereignty.[80] It merely provides for and recognises automatic absorption or assimilation into the territory of India of areas which may be acquired by India. Foreign territories which thus become a part of the territory of India may, either, be admitted into the Union or constituted new States or Union Territory[81], under *Article 227* or merged into an existing State under *Article 3*(a) or (b).

Such territory cannot be treated as a "foreign territory" after it is made a part of the territory of India under *Article 1*(3)(c).[82]

Of course, a foreign territory would not come under *Article 1*(3)(c) until there is a legal transfer of territory to India so as to constitute its "acquisition" in International Law.[83]

The word "acquired" obviously, refers to the modes of acquisition as understood in Public International Law.[84] On acquisition of territory, the pre-acquisition laws and the rights acquired therein may continue only if the new government chooses to recognize them unequivocally.[85] *Article 1*(3)(c) in including the acquired territory as part of Indian territory merely states a factual situation and does not confer a power on Parliament to acquire a foreign territory.[86] The expression "Act of State" is not limited to hostile action between rulers resulting in the occupation of territories. It includes all acquisitions of territory by a sovereign state for the first time whether it be by conquest or cession.[87]

Since the question whether any particular territory forms a part of the "territory of India" under the present Clause is to be determined by the rules of International law, the declaration of the Government on this point is binding on the municipal Courts.[88] Ordinarily, a municipal court should take judicial cognisance of the territories of its own State, but if the Court is unacquainted with the fact whether a particular place is or is not within the territory of its State, it is entitled to make such enquiries as it considers necessary.[89] If the Court refers the question to the Government, the Court would be bound to accept the views of the Government,[90] because the question as to the extent of the territory of a State is a "political" question.[91]

[Art 1.6.1.4] Modes of Acquisition of Territory

1. International law prescribes different modes in which territory may be validly acquired by a State. These are (i) Cession, (ii) Occupation, (iii) Prescription, (iv) Accretion, (v) Subjugation. So, India will be competent to add to its territory in any of the above modes of acquisition, which may now be explained in some detail.

(i) *Cession.*

A territory may be ceded by one State to another by voluntary arrangement, such as sale, gift, exchange or treaty. Sometimes cession may be made by an act of a non-sovereign power such as a native ruler[92] or by the general consent or desire of the inhabitants of the ceded territory[93]. These latter cases may properly be called "annexation".[94]

No cessation of Indian territory can take place without a constitutional amendment.[95] However, an agreement to refer a boundary dispute involves the ascertainment and representation on the surface of the earth a boundary line dividing two neighbouring countries and the very fact of referring such a dispute implies that the executive may do such acts as may be necessary for permanently fixing a boundary. A settlement of boundary dispute cannot, therefore, be held to be a cession of territory. It contemplates a line of demarcation on the surface of earth. It only seeks to reproduce a line a suitable boundary and it is so fixed. The case is one in which each

contending State *ex facie* is uncertain of its own right and, therefore, consents to the appointment of an arbitral machinery.

Such a case is clearly distinguishable from a case of cession of territory known to home "territory".[1] Similarly, a perpetual lease to use a part of Indian territory by another country such as Teena Bigha by Bangladesh does not amount to cession of Indian territory and can be executed without amendment of *Constitution*.[2]

The powers given to Parliament to re-organise States cannot be availed of by it to cede any Indian territory to a foreign country.[3]

(ii) *Occupation,*

Occupation is the appropriation by one State of territory not belonging to any civilized State. In order to acquire valid title by occupation - (a) There must be some *formal* act of appropriation on behalf of the occupying State, done under circumstances reasonably sufficient to bring it to the notice of other States. (b) Such act of appropriation must be followed by actual settlement and establishment of an effective exclusive *control* by the occupant over the area in question. Mere discovery, without actual appropriation and settlement will confer no title to such territory. If an occupied territory is abandoned by the occupant, it becomes again open to occupation by other States.[4]

(iii) *Prescription.*

Title to a territory may be acquired by long possession and user, on a principle akin to that of prescriptive acquisition under municipal law. When the exclusive user by one State is acquiesced in by other States, for a long period (say, for 50 years[5]) the occupied territory becomes part of that State which has exercised dominion over the prescriptive period.[6] Acquisition by prescription is, of course, possible only when the territory was in fact lying derelict.

(iv) *Accretion.*

Accretion means the addition of new land to the existing territory of a State by the action of water.

(v) *Subjugation.*

Subjugation means military conquest followed by annexation.

Conquest is the effective occupation of enemy territory during war, followed by retention of the same after termination of the war, without any treaty.

> Conquest above does not *ipso facto* make the conquering State the sovereign of the conquered territory ……Conquest is only a mode of acquisition if the conqueror, after having firmly established the conquest, formally annexes the territory.[7]

2. India has already acquired territory by two of these modes –

(a) Cession – Chandernagore; Pondicherry.

(b) Subjugation – Goa, Daman & Diu.

[Art 1.6.1.5] When is a territory “acquired” for the purposes of Article 1(3)(c)

Since acquisition has a technical meaning under International law, the acquisition by India of foreign territory must be complete, according to the principles of International law,[8] before it may be treated as “acquired territory” within the meaning of *Article 1*(3)(c), and as a part of the “territory of India”. Thus,

Cession.

(a) As regards cession, a general principle is that both possession and a legal transfer, say, by a treaty, is necessary to complete the acquisition by the State to which the territory is ceded.[9] Sometimes even a treaty of cession by the ceding State may not be sufficient to denude it of its title to the territory where, according to the *constitution* of the State, e.g., Great Britain, legislation is necessary to legalise the cession.[10]

A question as to when Pondicherry became a part of the “territory of India” within the meaning of *Article 1*(3)(c) came up before the Supreme Court of India in the case of *Masthan Sahib*.[8]

[Art 1.6.1.6] *Masthan Sahib v Chief Commr*

In pre-Independence India, Mahe, Yanam, Karaikal and Pondicherry were French possessions. There was a *de facto* transfer of these territories by the Government of France to India, by an Agreement of 21 October 1954. It was stipulated in this Agreement that the cession was to be completed by the execution of a *de jure* transfer by a treaty, which required to be ratified by the French Parliament, according to French *Constitution*.[11] A treaty of Cession was, accordingly, signed by the Government of France on 28 May 1956, but before it could be ratified, the Petitioner appealed to the Supreme Court (under *Article 136*) against the decision of the Chief Commissioner of Pondicherry refusing stage carriage permit to the Petitioner and also brought a petition under *Article 32* to challenge that order. A preliminary point was raised in the appeal, namely, whether the Transport Authorities in Pondicherry were situated within the “territory of India”, because under *Article 142 of the Constitution*, a decree or order of the Supreme Court could be enforced only within the territory of India. It was *held* that the expression “territory of India” in *Article 136* or *142* was governed by the definition in *Article 1*(3) and that until there was a complete *de jure* transfer of the French territory to India by the ratification of the Treaty of Cession, mere *de facto* cession or possession by India was not sufficient to render the ceded territory a “territory of India” within the meaning of *Article 1*(3)(c). Accordingly, the Supreme Court had no jurisdiction to entertain the appeals. Though *Article 32* had no such territorial limitation, the Writ Petition was also dismissed on the ground that the Transport Authorities, being quasi-judicial authorities, could not be said to have been under the “control of the Government of India” within the meaning of *Article 12*.

Eventually, after the *de jure* transfer was completed by the ratification of the Treaty of Cession by the National Assembly of France, the French possessions of Mahe, Yanam, Karikal and Pondicherry were constituted as a Union Territory under the name of Pondicherry, by the *Constitution* (Fourteenth Amendment) Act, 1963.

Conquest.

(b) Similarly, in the case of conquest, modern International law makes a distinction between a temporary hostile occupation and annexation by retention of the territory even after the termination of war, evincing an intention to incorporate it with the dominions of the conquering State.[12] In short, it is annexation,[13] not military occupation, that is a mode of acquisition of territory under International law.

Such formal annexation has become all the more necessary in view of the moral obligation imposed by *Article 2* (4) of the U.N. Charter which says –

> Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any State.

An interesting suggestion in this behalf was raised before the Rajasthan High Court[14] after the War with Pakistan in 1971. Gadra City, along with other parts of Sind in Pakistan, had been occupied by the Indian Forces in the War of December, 1971. But shortly, after cease-fire, India entered into an agreement with Pakistan for the return of mutual territories, known as the Simla Agreement. An Indian citizen, who was not allowed by the military authorities to enter the City, brought a Petition under *Article 226 of the Constitution*, alleging that the City was already a part of the territory of India and as such, the Petitioner had a fundamental right to enter and settle there and also that the Indian Government had no power to transfer this territory to Pakistan without an Act of Parliament. The Petition was dismissed on the ground that the occupation by India of the Pakistan territory did not go beyond military occupation and that by entering into the Simla Agreement, Government of India expressed its intention not to annex or incorporate that territory into the territory of India.

Conversely, in the case of Goa, Daman and Diu, military occupation by India on 20 December 1961 was immediately followed by annexation. They were made a part of the territory of India under *Article 1 (3)(c) of the Constitution*, by an Ordinance made by the President of India to that effect being the Goa, Daman and Diu (Administration) Ordinance, 1962, which was replaced by Act I of 1962, enacted by Parliament,[15] and made a Union Territory, by the *Constitution* (12th Amendment) Act, 1962, w.e.f. 20 December 1961. Subsequently, Goa has been separated from Daman and Diu and made a State by the Goa, Daman and Diu (Reorganisation) Act, 1986.

[Art 1.6.1.7] Government of Acquired Territory

(A) *U.S.A.*

In the United States, territory acquired by purchase or conquest is not, *ipso facto*, placed on the same footing as the States. It has been held that the *Constitution* is applicable to such territory, only in so far as Congress shall direct[16] under its power over "territory" [Article IV, section 3(2)]. So, a territory, though belonging to the United States, does not become a "part" of the United States until it is "incorporated'[17] by a formal Congressional declaration.[18] As a result, while the "natural rights" guaranteed by the *Constitution*, e.g., freedom of religion, speech, person and property and "such other immunities as are indispensable to a free government" apply automatically to all territories acquired by the U.S.A., – the artificial or remedial rights which are peculiar to Anglo-Saxon jurisprudence, such as citizenship, suffrage, the right to a preliminary indictment in trial of manslaughter, or the right to jury trial, extend to such territories only on specific legislation by Congress.[19]

(B) *Australia.*

Australia. There is a specific provision in the Australian *Constitution* (section 122) which empowers the Commonwealth Parliament to make laws for the section the Commonwealth Parliament is not subject to the limitations on its powers which are imposed by other provisions of the *Constitution*, *e.g.*, relating to the distribution of legislative powers between the Commonwealth and States, creation of Courts, and the like.[20]

Until a "territory" is admitted into the Commonwealth as a State (under section 121; see *post*), it is a mere dependency[21] and the power of the Commonwealth Parliament with respect to such territory is plenary.

(C) *India.*

Under *our* *Constitution*, the "Union" shall be composed only of the States specified in the first part of the First Schedule. But the "territory of India" is a larger concept, including not only the States but also the "Union Territories" specified in the second part of the First Schedule as well as any other territory as may be acquired by India at any time [*Article 1*(3)]. The term "territory of India" has been used in several articles of the *Constitution* and in every article where their phraseology is used it means "territory of India" for the time being is falls within *Article 1*(2) and that phrase cannot mean different territories in different article.[22] It was held therein that any statement by the Government is to whether a territory is part of India or not a binding on courts. The definition in *Article 366*(30) makes it clear that, unless the context otherwise requires, the expression "Union Territory" will include not only the Union Territories specified in the second part of the First Schedule but also any other territory comprised within the territory of India but not specified in the First Schedule. An acquired territory, therefore, will be governed by the provisions relating to "Union Territories", and will, accordingly, be governed in the manner laid down in Pt VIII (*Articles 239-241*), in so far as they are applicable, *i.e.*, by the

President, through an Administrator. Again, the legislative powers of Parliament as regards such territories, shall also include matters enumerated in the State List [*Article 246* (4)].

The provisions relating to Union Territories will, however, apply only after a foreign territory has been duly "acquired" according to International law. Until such acquisition, any territory which is under the *de jure* control of the Government of India, shall be governed under the provisions of the *Foreign Jurisdiction Act, 1947*.[23] This Act was originally enacted under the title - "Extra-Provincial Jurisdiction Act. It enables the Government of India to exercise a jurisdiction "which by means of treaty, agreement, grant, usage, sufferance or other lawful means the Central Government has for the time being in or in relating to any area *outside India* ". The Central Government may exercise such foreign jurisdiction "in such manner as it thinks fit", and has the power to make orders for the purpose or to delegate its power to any officer or authority.

By a treaty, India can acquire full jurisdiction over a foreign territory which under the same treaty may nonetheless remain as a foreign territory.[24] The exercise of sovereignty is not conclusive of a territory being part of India. Where the exercise of power and authority and the right to administer is referable to an agreement between two states, this question whether the territory has become integrated with and become part of the territory of the state exercising *de facto* control depends wholly as the terms upon which the New Government was invited or permitted to exercise such control and authority.

After the accession of the Indian States to the Dominion of India consequent upon the passing of the Indian Independence Act, the *Foreign Jurisdiction Act* was used to administer the territories of those States until they were merged with some neighbouring Province of India, by the States' Merger (Governor's Provinces) Order, 1949. The Orders passed by the Central Government or its delegate had the force of law, during this intervening period, by virtue of section 4 of the Act.[25]

It has also been stated that the French Settlements of Pondicherry *etc*. were governed by this Act from the date of the *de facto* cession by the French Government until the ratification of the Treaty of Cession by the French National Assembly.[26]

An acquired territory shall become a member of the Union only when admitted as a new State or included in an existing State by Parliament by a law under *Articles 2* and

4. But so long as it remains as "acquired territory", it shall have no seat in the Council of States (not being specified in the Fourth Schedule) or in the House of the People.

The mode of acquisition of foreign territory and the specific time when such acquired territory becomes a part of territory of India are determined in accordance with the International Law. It is only upon such acquired territory becoming a part of the territory of India that the Parliament would have the power to pass legislation in respect of that territory. Under the Constitutional Scheme, it is clear that the Parliament may not make laws for a territory, as a first order condition, unless that territory is part of India.[27]

The area of the exclusive economic zone or continental shelf where oil rigs are stationed (outside territorial waters) is deemed to be part of the territory of India under the Central Government notification issued pursuant to the provisions of the *Territorial Waters, Continental Shelf, Exclusive Economic Zone and Other Maritime Zones Act, 1976*.[28] Therefore, the supply of imported spares, spare parts, fuel and other equipments or goods the oil rigs carry on operation in designated areas, by a ship will attract import duty and the ship employed for transshipment of the goods for that purpose would not be a foreign going vessel. The coastal State has sovereignty over the territorial sea.[29]

[Art 1.6.1.8] Effects of the transfer of sovereignty upon municipal law relating to private rights: the doctrine of 'State succession'

I. The general principle in International law is that on the transfer of sovereignty over an inhabited territory, the

pre-existing laws of such territory continue to be in force until they are duly altered by the new sovereign.[30] It is applicable to any transfer of sovereignty, whether by conquest, occupation or cession. When cession takes place by treaty, the treaty usually preserves or modifies the private rights of the subjects of the ceded territory.[31] But even without such express provision the existing laws of the ceded territory relating to private rights continue to be in force,[32] unless altered wholly or in part by the laws of the acquiring State.[33]

U.S.A.

In other words, though the allegiance of the residents of the territory changes, their private rights remain undisturbed,[34] unless and until the pre-existing laws are changed by the new sovereign.[35] In some cases, a distinction is made between public and private rights, and between rights to immovable property[36] and contractual or personal rights.[37] This view has been adopted in the *U.S.A*.[38]

II. But, according to the principles of *English law*,[38] as applied to India,[39] this is only a principle of international morality, meaning that the new Sovereign should respect the existing rights of private property; but if the new sovereign refuses to do so, no municipal court can enforce such obligation even though arising out of a treaty,[40] and the only remedy, if any, is diplomatic,[41] as between the high contracting parties.[42]

[Art 1.6.1.9] U.K., India.

Whatever be the position at International law or between subjects,[41] *inter se*, of the former Sovereign, the subjects of the new Sovereign do not carry with them any rights available in the municipal courts against the new Sovereign after the acquisition.[43]

The reason is that the “acquisition” of territory, whether by conquest or cession, is an “act of State”.[44] An act of State is an act of a sovereign against another sovereign or an alien outside its territory. It is a sovereign act which is not grounded in law. As an act of State derives its authority not from municipal law, but from ultra-legal or supra-legal means, municipal courts have no power to examine its propriety or legality. There is legal immunity in respect of acts done by the State against alien outside its territory.[45] An act of State cannot be questioned or made the subject of legal proceedings in municipal courts. But “act of State” cannot be pleaded as a defence by a government against its own citizens.[46] The inhabitants of the new territory cannot enforce in the municipal courts any rights against the new Sovereign other than those which that Sovereign has recognised. The successor State does not automatically inherit the rights and obligations of the former State.[47] In cases of acquisition of territory by conquest, rights which had accrued under the old laws do not survive and cannot be enforced against the new Government unless it chooses to recognize those rights. In order to recognize the old rights, it is not necessary for the new Government to continue the old laws under which those rights had accrued because, old rights can be recognized without continuing the old laws, or for example, by contract or executive action. On the one hand, the mere continuance of old laws does not imply the recognition of old rights which had accrued under those laws. Something more than the continuance of old laws is necessary in order to support the claim that old rights have been recongised by the new Government.[48] The Act of State terminates only after *de jure* sovereignty is assumed.

III. A municipal court established by a Sovereign has the jurisdiction to investigate and enforce only such rights as are recognised by the Sovereign, by legislation, agreement or otherwise.[49] Hence, a municipal Court has the jurisdiction to find out whether the new Sovereign, in the case of State succession, has or has not recognised or acknowledged the rights in question, either expressly or by implication.[49] Even if an obligation is recognised by the new government, the Legislature would still be competent to enact a law altering the terms and conditions of a previous contract or of a grant under which the liability of the Government arose. The legislative competence of Parliament or the State legislature can only be circumscribed by an express prohibition contained in the *Constitution* itself. Without there being any provision in the *Constitution* prohibiting legislation on the subject, there can be no fetter on the plenary power of the legislature to legislate on the topics enumerated in the relevant test.[50] Whether an act of State has reference to public rights or private rights, the result is the same, that it is beyond the jurisdiction of Municipal Courts.[51] In *State of Gujarat v Vora Fiddali,*[52] the Court held that the new sovereign is not required to announce his decision when he assumes or accepts sovereign power over foreign territory, about the rights created by the quondam sovereign, on pain of being held bound by the right so created.

This recognition need not be made by any formal act. It may be express or implied. It is possible for the new Sovereign to "waive" its rights not to recognise any obligation in connection with the act of State; hence, the recognition of the new Sovereign of the existing private rights may be given either by legislation[53] or by proclamation[54] or statutory order and it can be even inferred from the mode of dealing with the property *after* the cession.[55] Anything done by the new Sovereign prior to this assumption of *de jure*[56] sovereignty is of no avail for this purpose.[57]

IV. Whether the new Sovereign has recognised the rights of the new subjects as against itself and has undertaken the liabilities arising therefrom, is a question of fact depending upon the action of the new Sovereign *after* acquisition of the territory concerned.[58]

A. Such recognition may be inferred from the following circumstances, *inter alia* –

(i) Where the act of the former Sovereign constitutes "law" and the new Sovereign continues the existing laws, without any reservation,[59] *e.g.,* by covenants in a Merger Agreement.[60] Old rights can be continued even by an executive action. Law is not necessary for that purpose.[61]

But the following have been held not to be "laws" for this purpose –

Grants[62] or agreements[63] made by the Rulers of Indian States, except where the grants were made in pursuance of and in conformity with laws of the State.[64]

B. On the other hand, there cannot be any implication of recognition–

(i) Where the new Sovereign has enacted a law which negatives such recognition.[65]

(ii) From the mere fact that the old laws were allowed to continue, it cannot be inferred that the new Sovereign assumed *all* the liabilities of the former State, where there are other circumstances indicating the contrary.[66]

(iii) Where the new Sovereign issues an order or Proclamation recognising only specified rights or liabilities, there would be an inference that those not specified therein were not recognised.[67]

(iv) Since pension was an *ex gratia* payment, payment for some time before revocation cannot constitute recognition.[68]

(v) Where claims are entertained only for the purpose of *investigation*, the new State is not precluded from rejecting such claims even without making due inquiry.[69]

(vi) But the burden of proving that the new Sovereign has recognised the old rights lies on the party who asserts it.[70]

The principle has been applied by *our* Supreme Court as regards the Indian States that *acceded* to India after the lapse of "paramountcy"[71]; or those States which entered into Covenants for "merger". Any right or liability created by an acceding State even between the date of its accession and its complete merger in the Dominion of India is not binding upon the Union of India.[72]

(vii) Where there has been no completed transfer or cession of a territory from one Sovereign to another Sovereign and the territory is vested *de jure* in the former, there may be some doubts. But in *India*, it has been held that whenever the Government of India has acquired the right to administer a territory in respect of which it has a perpetual lease or other grant short of an absolute transfer of title and such territory is administered under the provisions of the *Foreign Jurisdiction Act, 1947*, it is competent for the Parliament of India to override existing rights by legislation.[73]

(viii) In *India*, there is a specific provision in *our Constitution* which should be remembered in this connection, namely, *Article 363*, which says that no dispute or right arising out of any agreement or treaty or covenant entered into before the commencement of the *Constitution* with the Ruler of any Indian State shall be cognisable by any Court in India.[74]

Hence, even if it is stipulated in the treaty of cession or other treaty by which the new territory has been acquired that the existing rights of the subjects shall be respected, such stipulations cannot be enforced in a court of law by the individual citizens against the new Sovereign, because they were no party to those stipulations,[73] – unless the rights in question have been recognised by the new Sovereign.[73]

[Art 1.6.2] Law applicable to acquired territory

The pre-acquisition laws and the rights acquired therein may continue only if the new Government chooses to recognise them, unequivocally.[75]

[Art 1.6.3] Applicability of Article 1 to Jammu & Kashmir

Article 1 applies to the State of J. & K. [*Article 370*(1)(c)], which means that J. & K. is a part of the territory of India.

---

1 Changes made by the *Constitution* (Seventh Amendment) Act, 1956.

2 **Cf**. Wheare, *Federal Government,* 1963, p 20; Strong, *Modern Political Constitutions,* 1966, p 114.

3 These are Andhra Pradesh, Arunachal Pradesh, Assam, Bihar, Goa, Gujarat, Haryana, Himachal Pradesh, Karnataka, Kerala, Madhya Pradesh, Maharashtra, Manipur, Meghalaya, Mizoram, Nagaland, Orissa, Punjab, Rajasthan, Sikkim, Tamil Nadu, Tripura, Uttar Pradesh, West Bengal, Jammu & Kashmir.

4 There are – Delhi, the Andaman & Nicobar Islands, Lakshadweep, Dadra & Nagar Haveli, Daman & Diu, Pondicherry, Chandigarh, vide Author's *Introduction to the Constitution of India*

5 Constituent Assembly Debates, vol VII, No. 1, p 43.

6 Constituent Assembly Debates, vol VII, p 43.

7 Report of the States Re-organisation Committee – Manager of Publication – Govt. of India, New Delhi, 1955, p 165.

8 See Granville Austin, *"Working a Democratic Constitution – A History of the Indian Experience,* 2nd Impression, 2004, p 145.

9 *Hinza Virodhik Sangh v Mirzapur Kureshi Jamat,* AIR 2008 SC 1892 : (2008) 5 SCC 33 .

10 See Granville Austin, *Working a Democratic Constitution – A History of the Indian Experience*, 2nd Impression, 2004, p 146.

11 *State of WB v UOI,* AIR 1963 SC 1241 : (1964) 1 SCR 371 ; *State of Rajasthan v UOI,* AIR 1977 SC 1361 : (1977) 3 SCC 592 .

12 *Babulal Parate v State of Bombay,* AIR 1960 SC 51 : (1960) 1 SCR 605 .

13 *Automobile Transport Ltd. v State of Rajasthan,* AIR 1962 SC 1406 : (1963) 1 SCR 491 . Apart from the States, India does not exist. H.M. Seervai, *Constitutional Law,* 4th Edn, vol I, p 307).

14 *A.G. for Commonwealth v Colonial Sugar Refining Co Ltd*, *(1914) AC 237* (*252-4*).

15 The government of the Provinces being *subordinate* to that of the Union [**Cf**. Wheare, *Federal Government*, 1963, pp 7-9].

16 *State of Rajasthan v UOI,* AIR 1977 SC 1361 : (1977) 3 SCC 592 (Beg C.J.), at para 54.

17 *State of Rajasthan v UOI,* AIR 1977 SC 1361 : (1977) 3 SCC 592 (BEG C.J.).

18 *State of Karnataka v UOI,* AIR 1977 SC 68 : (1977) 4 SCC 608 .

19 AIR 2006 SC 3048 : (2006) 7 SCC 1 .

20 See *Kuldip Nayar v UOI,* AIR 2006 SC 3127 .

21 *A.S. Krishna v State of Madras,* AIR 1957 SC 297 , at para 8 : [1957] 1 SCR 399 .

22 See Seventh Schedule and *Article 245* & *246*; *Offshore Holdings Pvt Ltd. v Bangalore Development Authority,* (2011) 3 SCC 139 : (2011) 1 JT 384 .

23 (2010) 5 SCC 538 : (2010) 5 Scale 37 .

24 **See also** *State of Karnataka v UOI,* (1977) 4 SCC 608 ; *S.R. Bommai v UOI,* (1994) 3 SCC 1 ; *ITC Ltd. v Agricultural Produce Market Committee,* (2002) 9 SCC 232 ; AIR 2002 SC 852 ; *State of WB v Kesoram Industries Ltd,* (2004) 10 SCC 201 .

25 *State of Kerala v Mar Appraem Kuri Co Ltd,* (2012) 7 SCC 106 : AIR 2012 SC 2375 .

26 AIR 1963 SC 1241 : (1964) 1 SCR 371 .

27 (2005) 5 SCC 420 : AIR 2005 SC 2026 .

28 Report of the First Commission on Center State Relations, Ministry of Home Affairs, Government of India (1988).

29 M.P. Jain, *Indian Constitutional Law*, 5th Edn, Reprint, 2007, vol I, p 852.

30 E.A. Freeman, *The History of Federal Government*, 1863, p 3.

31 K.C. Wheare,. *Federal Government*, 1967, p 10.

32 A.H. Birch, *Federalism, Finance and Social legislation*, 1955), 306.

33 Michael D Reagon, *The New Federalism*, 1972, p 14.

34 *God Charles v Wiseman,* 322 US 304.

35 Paras Diwan, *Constitutional Law of India*, vol I, pp 67-68 (M. Hidayatullah, ed.) (Bar Council of India Trust) (1989).

36 *State of HP v P.D. Attri,* (1999) 3 SCC 217 .

37 *M. Karunanidhi v H.V. Hande,* AIR 1977 Mad 192 .

38 *Bommai v UOI*, AIR 1994 SC 1918 (paras 20, 182, 211) - 7 Judges.

39 This view, expressed by JEEVAN REDDY and AGARWAL JJ., is joined by PANDIAN J. (para 2).

40 *Ganga Ram Moolchandani v State of Rajasthan,* AIR 2001 SC 2616 : (2001) 6 SCC 80 .

41 See *Hinza Virodhik Sangh v Mirzapur Kureshi Jamat,* AIR 2008 SC 1892 : (2008) 5 SCC 33 .

42 For the history of the Pt B States, see under Pt VII, *post.*

43 For the history of Pt C States, see under Pt VII, *post.*

44 Vide Author's *Introduction to the Constitution of India*.

45 **Cf.** *Masthan Sahib v Chief Commissioner*, (1962) Supp. (1) SCR 981 (*998, 1008*) : AIR 1962 SC 797 ; **see also** *Amar Singh v State of Rajasthan,* AIR 1955 SC 504 : (1955) 2 SCR 303 .

46 In *Re Berubari Union,* AIR 1960 SC 845 : (1960) 3 SCR 250 .

47 *N. Masthan Singh v Chief Commissioner,* AIR 1962 SC 797 : 1962 (Supp-1) SCR 981 (*supra*).

48 *S.R. Bhansali v UOI,* AIR 1973 Raj 49 .

49 *Thakur Amar Singhji v State of Rajasthan,* AIR 1955 SC 523 : (1955) 2 SCC 303 .

50 *N. Masthan Sahib v Chief Commissioner, Pondicherry,* AIR 1963 SC 533 : 1962 Supp (1) SCR 981 .

51 *Harivansh Lal Mehra v State of Maharashtra,* AIR 1971 SC 1130 : (1971) 2 SCC 54 . **See also** *Thakur Amarsinghji v State of Rajasthan,* AIR 1955 SC 504 : (1955) 2 SCR 303 .

52 *Satya Dev v Padam Dev*, AIR 1954 SC 586 (*591*).

53 **Cf.** *State of V.P. v Moula Bux*, AIR 1962 SC 145 .

54 *Chandigarh Administration v Surinder Kumar,* AIR 2004 SC 992 : (2004) 1 SCC 530 . **See also** *Satya Dev Bushahri v Padam Dev,* AIR 1954 SC 587 : (1955) 1 SCR 549 ; *Vindhya Pradesh v Shri Moula Bux,* AIR 1962 SC 145 : (1962) 2 SCR 794 .

55 *Dilip Chowdhary v Registrar of Co-op. Societies Act A and N. Islands, Port Blair,* AIR 2000 Cal 228 ; *Andaman Wood Products India Pvt Ltd. v UOI,* AIR 2001 Cal 61 .

56 *New Delhi Municipal Corporation v State of Punjab,* AIR 1997 SC 2847 : 1997 (7) SCC 339 ; *Govt. of NCT Delhi v All India Central Civil Account JAO's Association,* AIR 2001 SC 3090 : (2002) 1 SCC 344 .

57 *S. Pushpa v Sivachanmughavelu,* AIR 2005 SC 1038 : (2005) 3 SCC 110 .

58 *Govt. of NCT Delhi v All India Central Civil Accounts JAO's Association,* AIR 2001 SC 3090 : (2001) 1 SCC 344 .

59 *N. Masthan Sahib v Chief Commissioner, Pondicherry,* AIR 1962 SC 797 : 1962 Supp (1) SCR 981 .

60 Abdullah S.M., *Kashmir & India – Constitutional Aspect*, p 15 as quoted in Justice A.S. Anand, *The Constitution of Jammu & Kashmir — Its Development and Comments*, 6th Edn, p 108.

61 *Puranlal Lakhanpal v UOI,* AIR 1961 SC 1519 : (1962) 1 SCR 688 .

62 *Express Hotel Pvt Ltd v State of Gujarat,* AIR 1989 SC 1949 : (1989) 3 SCC 677 ; *East India Hotels Ltd. v State of J. & K.,* 1994 Supp (2) SCC 580 .

63 *J.K. Cigarettes Co. Ltd. v UOI,* 1988 (18) ECC 34

64 *Prem Nath v State of J. & K*, AIR 1959 SC 749 ; see *Sampat v State of J. & K.*, 1970 SC 1118 .

65 See Justice A.S. Anand, *Constitution of Jammu & Kashmir,* 6th Edn, 2010, p 137.

66 Hall, *International Law*, 1924, p 125. Acquisition of territory is specifically referred to in clause (3)(c) of *Article 1 of the Constitution*.

67 See *Reference by President of India under Article 143(1) of the Constitution* AIR 1960 SC 845 : (1960) 3 SCR 250 .

68 *Republic of Italy v UOI,* (2013) 4 SCC 721 : (2013) 1 Scale 462 .

69 AIR 1961 SC 311 : (1961) 1 SCR 924 ,

70 Greig, *International Law, p* 193.

71 See Oppenheim, *International Law*, vol I, pp 451-52.

72 *R. v Keyn*, (1876), 2 Ex. 63 Pitt Cobbett, 1947, vol I, p 154.

73 S.R.O. 669, d. 22 March 1956; *Gaz. of India*, Pt. I, d. 23 March 1956.

74 Proclamation by the President of India published on September 30, 1967 (Gazette of India Extraordinary Pt III, Section 2, Notification of the Ministry of External Affairs No. FL/111(1)67.

75 *Direct United States Cable Co. v Anglo-American Telegraph Co*, *(1877) 2 App. Cas. 394* .

76 Pitt Cobbett, 1947, vol I, p 158.

77 Pitt Cobbett, 1947, vol I, p 165; Fenwick, *International Law*, Ch. XIX.

78 Pitt Cobbett, 1947, vol I, p 129.

79 Thus, Chandernagore has been ceded to India by France, by a treaty dated 9 June 1952.

80 **Cf.** *American Ins. Co. v Canter* (1828) 1 Pet. 511: *Jones v U.S.*, (1890) 137 US 202. **See also** *Re Berubai Union,* AIR 1960 SC 845 .

81 **Cf.** *Harivansh v State of Maharashtra*, (1971) 2 SCC 54 (56).

82 **Cf.** *Harivansh v State of Maharashtra*, (1971) 2 SCC 54 (56).

83 *Masthan Sahib v Chief Commr*, AIR 1962 SC 797 . **See also** *Harivansh Lal Mehra v State of Maharashtra,* AIR 1971 SC 1130 : (1971) 2 SCC 54 (*Supra*).

84 *Re Berubari Union*, AIR 1960 SC 845 (*858*): Casebook, p 7. **See also** *N. Masthan Saheb v Chief Commission, Pondicherry,* AIR 1962 SC 797 .

85 *Vinod Kumar v Gangadhar,* AIR 1981 SC 1946 : (1981) 4 SCC 226 .

86 *In re. Berubari Union,* AIR 1960 SC 845 [1960] 3 SCR 250 .

87 *Dalmia Dadri Cement Co. Ltd. v CIT,* AIR 1958 SC 816 : (1959) SCR 729 .

88 *Masthan Sahib v Chief Commr*, AIR 1962 SC 797 ; The *Fagernes*, (1927) p 311: HALSBURY, 4th Edn, vol 7.

89 *Masthan Sahib v Chief Commr*, AIR 1962 SC 797 . **See also** *Harivansh Lal Mehra v State of Maharashtra,* AIR 1971 SC 1130 : (1971) 2 SCC 54 (*Supra*).

90 Thus, the Supreme Court accepted the statement of the Government of India that between the *de facto* and *de jure* transfer of Pondicherry by the Government of France to the

Government of India, Pondicherry was not a part of the territory of India under *Article 1*(3)(c), even though the Government of India was exercising full administrative jurisdiction over it, under the *Foreign Jurisdiction Act, 1947*, and that, accordingly, the Supreme Court could not during this period, exercise its jurisdiction under *Article 32* against an authority in Pondicherry [*Masthan Sahib v Chief Commr*, AIR 1962 SC 797)].

91 **Cf**. *Wilson v Shaw*, (1906) 204 US 24.

92 *Amodu v Secretary, Southern Nigeria*, *(1921) 2 AC 399* .

93 *Sammut v Strickland*, AIR 1939 PC 39 .

94 Pitt Cobbett, 1947, vol I, pp 113-114; *Arbitral Award on the Subject of the Difference Relative to the Sovereignty over Clipperton Island*, *American Journal of International Law*, (1932), vol 26, p 390.

95 *Maganbhai Ishwarbhai Patel v UOI,* AIR 1969 SC 783 : (1970) 3 SCC 400 , **approved in** *Dinesh Gurjar v UOI* 1999 (2) MPLJ 649

1 *Maganbhai Ishwarbhai Patel v UOI,* AIR 1969 SC 783 : (1970) 3 SCC 400 .

2 *UOI v Sukumar Sen Gupta,* AIR 1990 SC 1692 : 1990 (Supp) SCC 545.

3 *Re Berubari,* AIR 1960 SC 845 *(supra)*.

4 Pitt Cobbett, 1947, vol I, pp 113-114; *American Journal of International Law*, (1932), vol 26, p 390.

5 *Treaty of Washington*, 1897; FENWICK, *International Law*, Ch. XVIII; *Legal Status of Eastern Greenland*, (1931) PCIJ (Series A/B, No. 53).

6 *Direct United States Cable Co. v Anglo-American Telegraph Co*, *(1877) AC 394* .

7 Oppenheim, *International Law*, vol I, 1955, p 567.

8 *Masthan Sahib v Chief Commr*, AIR 1962 SC 797 (*803*).

9 **Cf**. The *Iloilo Case*, (1925) 4 UNRIAA 158.

10 **Cf**. *Damodhar v Deoram*, (1876) LR 1 App Cas 332.

11 *Article 53* of the French *Constitution* of 1958.

12 The GERAMISO, (1857) 11 Moo, PC 88; *U.S. v Hayward*, 2 Gall, 485 (*501*).

13 Oppenheim, *International Law*, 1955, pp 566-7.

14 *Bhansali v UOI*, AIR 1972 Raj 296 .

15 *Harivansh v State of Maharashtra,* (1971) 2 SCC 54 (para 4).

16 It is by this process that Alaska was, in 1958, admitted as the forty-ninth State of the U.S.A. Hawaii was also an “incorporated territory” before conferment of the status of a State upon it in August, 1959, as the fiftieth State of the USA.

17 *Downes v Bidwell,* (1901) 182 US 194.

18 *Balzac v Parto Rico,* (1922) 258 US 298. It is by this process that Alaska was, in 1958, admitted as the forty-ninth State of the U.S.A. Hawaii was also an “incorporated territory” before conferment of the status of a State upon it in August, 1959, as the fiftieth State of the U.S.A.

19 The District of Columbia which locates the capital city of Washington, is neither a State nor a “territory” but an area governed by Congressional legislation, under power conferred by Article I, section 8(17).

20 *Buchanan v Commonwealth*, (1913) 16 CLR 315 ; Wynes, *Legislative & Executive Powers*, 1956, pp 152-160.

21 *Australian National Airways v Commonwealth*, (1945) 71 CLR 29 (*79*).

22 *N. Masthan Sahib v Chief Commr, Pondicherry,* AIR 1962 SC 797 : 1962 (Supp-1) SCR 981.

23 *Masthan Sahib v Chief Commr*, AIR 1962 SC 797 (*803*).

24 *M. Masthan Sahib v Chief Commr, Pondicherry,* AIR 1962 SC 797 : 1962 (Supp-1) SCR 981,

25 *Promod v State of Orissa*, (1962) Supp. (1) SCR 405 (*425*).

26 *Masthan Sahib v Chief Commr*, AIR 1962 SC 797 (*803*).

27 *GVK Industries Ltd. v ITO*, (2011) 4 SCC 36 : (2011) 3 JT 356 ; **see also** *Re. Berubari Union*, AIR 1960 SC 845 .

28 For a brief discussion of the Central Government notifications issued under the *Territorial Waters, Continental Shelf, Exclusive Economic Zone and Other Maritime Zones Act, 1976*, see *Aban Loyd Chiles Offshore Ltd. v UOI*, (2008) 227 E.L.T. 24 .

29 *Pride Foramer v UOI*, AIR 2001 Bom 332 : (2002) 4 Bom CR 751 : (2002) 1 All MR 151.

30 See the discussion in *Promod v State of Orissa*, (1962) 1 Supp. 405 (*426-436*).

31 *Amodu v Nigeria*, *(1921) AC 399* .

32 *Campbell v Hall*, (1774) J. & Y. 39; *Hettihewage v Queen's Advocate*, *(1884) 9 App. Cas. 571* ; *Molyneux v Natal Co*, *(1905) AC 555* ; *McDermott v Br. Guiana*, (1868) LR 2 PC 341; *Escallier v Escallier*, *(1885) 10 App Cas 312* P.C.; Schwarzenberger, *International Law*, vol I, p 81.

33 Moller, *International Law*, 1931, Pt I, p 121.

34 *U.S. v Percheman*, (1933) 7 Pet. 51.

35 The German Settlers Case, (1923) PC I.J. Rep. Ser. B, No. 6.

36 O'Connell, *Law of State Succession, pp* 78-9; *Charles v U.S*, (1835) 9 L.Ed. 117 (*131*).

37 **Cf.** *West Rand Gold Mining Co v R*, *(1905) 2 KB 391* .

38 *Cook v Sprigg*, *(1899) AC 572* (*578*).

39 *Vajesingji v Secy. of State*, AIR 1924 PC 216 ; *Secy. of State v Rajabai*, AIR 1915 PC 59 .

40 *Hoani Te Heuheu v Aotea District Board*, *(1941) AC 308* .

41 *Dalmia Cement Co. v CIT*, AIR 1958 SC 816 (*823*); *Thakur Amar Singhji v State of Rajasthan*, (1955) 2 SCR 303 (*335*).

42 *Pema v UOI*, (1966) 1 SCR 357 (*360*).

43 *Pema v UOI*, (1966) 1 SCR 357 (*360*); *Jagannath v State of Orissa*, AIR 1961 SC 1361 **followed in** *Vinod Kumar Shantilal Gosalia v Gayasher Narasinghdas Agarwal,* (1981) 4 SCC 226 : AIR 1981 SC 1946 (Sup).

44 *Vajesingji v Secy. for State of India*, 1924 51 IA 357 ; *Rajendar v Sukhi*, (1956) SCR 889 .

45 *Eshugbayi Eleko v Govt. of Nigeria,* *(1931) AC 662* ; *Johnstone v Pedlar,* *(1921) 2 AC 262* .

46 *B.K. Mohapatra v State of Orissa,* AIR 1988 SC 24 : (1987) Supp SCC 553 .

47 *Firm Bansidhar v State of Rajasthan*, (1966) Supp. SCR 81 (84). **See also** *Thakur Amar Singhji v State of Rajasthan,* AIR 1955 SC 523 ; *Vinod Kumar v Gangadhar,* AIR 1981 SC 1946 : (1981) 4 SCC 226 (*supra*).

48 *Vinod Kumar Shantilal Gosalia v Gayadhar Narasingdas Agarwal,* AIR 1981 SC 1946 : (1981) 4 SCC 226 **followed and relied on** in *State of Haryana v Amar Nath Bansal,* AIR 1997 SC 718 : (1997) 10 SCC 700 . **See also** *State of Gujarat v R.B. Chandrachud,* AIR 1971 SC 846 : (1969) 1 SCC 300 .

49 *Promod v State of Orissa*, (1962) Supp (1) SCR 405 (*425*).

50 *Jagannath Baksh Singh v United Provinces,* AIR 1949 PC 127 ; *Umeg Singh v State of Bombay,* AIR 1955 SC 540 : (1955) 2

SCR 164 ; see also *Maharaja Shree Umaid Mills Ltd. v UOI,* AIR 1963 SC 953 : 1963 (Supp-2) SCR 515.

51 *Pramod Chandra Deb v State of Orissa,* AIR 1962 SC 1288 : 1962 (Supp-1) SCR 405.

52 AIR 1964 SC 1043 : (1964) 6 SCR 461 .

53 *Forester v Secy. of State*, (1872-3) 73 I.A. Supp 10(*17*).

54 *Secy. of State v Bai Rajbai,* (1915) 42 IA 229 (39).

55 *Amarchand v UOI,* AIR 1964 SC 1658 .

56 *State of Saurashtra v Jamadar*, (1962) 3 SCR 970 (*988*).

57 *Dalmia Cement Co. v CIT*, AIR 1958 SC 816 (*823*); *Thakur Amar Singhji v State of Rajasthan*, (1955) 2 SCR 303 (*335*).

58 *Pema v UOI*, (1966) 1 SCR 357 (*360*).

59 *State of MP v Shyamlal*, AIR 1964 SC 1495 .

60 *Dalmia Cement Co. v CIT*, AIR 1958 SC 816 (*823*); *Thakur Amar Singhji v State of Rajasthan*, (1955) 2 SCR 303 (*335*); *State of MP v Shyamlal*, AIR 1964 SC 1495 ; *State of Gujarat v Chandrachud*, AIR 1971 SC 846 (*853*) : (1969) 1 SCC 300 .

61 *Vinod Kumar Shantilal Gosalia v Gangadhar Narasingha Agarwal,* AIR 1981 SC 1946 : (1981) 4 SCC 226 .

62 *State of Gujarat v Vora Fiddali*, (1964) 6 SCR 461 (*471*); *UOI v Gwalior Rayan Co*, (1964) 7 SCR 892 ; *State of MP v Raghavendra*, (1966) 2 SCR 56 ; *State of MP v Ram Pal*, (1966) 2 SCR 53 .

63 *Umaid Mills v UOI*, (1963) Supp. 2 SCR 515.

64 **Cf.** *Promod v State of Orissa*, (1962) Supp. 1 SCR 405. **See also** *Draupadi Devi v UOI,* (2004) 11 SCC 425 : AIR 2004 SC 4684 .

65 *State of Rajasthan v Shyamlal*, AIR 1964 SC 1658 (*1662*); *Firm Bansidhar v State of Rajasthan*, (1966) Supp. SCR 81 (*88*).

66 *Pema v UOI*, (1966) 1 SCR 357 (*363-4*).

67 *Firm Bansidhar v State of Rajasthan*, (1966) Supp. SCR 81 (*88*); *Pema v UOI*, (1966) 1 SCR 357 (*363-4*).

68 *State of MP v Ram Pal*, (1966) 2 SCR 53 (*55*).

69 *Jagannath v State of Orissa*, (1962) 1 SCR 205 .

70 *State of Gujarat v Vora*, (1964) 6 SCR 461 (*503-510*), **Disapproving** the American view in *U.S. v Percheman*, (1833) 32 US 51 (*86*); *Promod v State of Orissa*, (1962) Supp. 1 SCR 405; *State of Gujarat v Chandrachud*, AIR 1971 SC 846 (*851*).

71 *Shiv Bahadur v State of V.P*, (1953) SCR 1188 (1206).

72 *State of Gujarat v Vora*, (1964) 6 SCR 461 (*503-510*), **Disapproving** the American view in *U.S. v Percheman*, (1833) 32 US 51 (*86*); *Promod v State of Orissa*, (1962) Supp. 1 SCR 405; *State of Gujarat v Chandrachud*, AIR 1971 SC 846 (*851*).

73 **Cf.** *Promod v State of Orissa*, (1962) Supp 1 SCR 405.

74 *Dalmia Cement Co. v C.I.T*, AIR 1958 SC 816 . **See also** *Draupadi Devi v UOI,* (2004) 11 SCC 425 : AIR 2004 SC 4684 ; *Karan Singh (Dr.) v State of J & K,* (2004) 5 SCC 698 : AIR 2004 SC 2480 .

75 *Vinod Kumar v Gangadhar*, AIR 1981 SC 1946 (paras 29-30).

[Art 2] Admission or establishment of new States.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART I THE UNION AND ITS TERRITORY

[Art 2] Admission or establishment of new States.-

Parliament may by law admit into the Union, or establish, new States on such terms and conditions as it thinks fit.

[Art 2.1] OTHER CONSTITUTIONS (A) *U.S.A.*

Article IV, *section 3(1) of the Constitution* of the United States says:

> New States may be admitted by the Congress into this Union; but no new State shall be formed or erected within the Jurisdiction of any other State; nor any State be formed by the Junction of two or more States, or Parts of States, without the Consent of the Legislatures of the States concerned as well as of the Congress.

The *Constitution* provides no definite procedure[76] to be followed by Congress for admission of any new State to the Union, nor any conditions for their eligibility. So, the Congress has full discretion to admit or refuse a new State and it can impose any *condition* for such membership, *e.g.*, abolition of polygamous marriage.[77] It has been held, however, that once a State is admitted into the Union, the State is free to override the condition,[78] unless the condition has created a *property right* in favour of the citizen,[79] or the term relates to *federal property* which the State has contracted to manage under the direction of Congress.[80] The reason is that any State newly admitted or otherwise, is not bound by any limitation outside the Federal *Constitution*, which places it upon a footing of equality with the other States.[81] The American Union is a "Union of equal States".[81] Whatever be the size of the new State, it shall have equality of representation in Senate (two members), by virtue of *Article 1*, section 3(1).

(B) *Australia,*

Section 121 of the Australian *Constitution* Act provides–

> The Parliament may admit to the Commonwealth or establish new States, and may upon such admission or

establishment make or impose such terms and conditions, including the extent of representation in either House of the Parliament, as it thinks fit.

So, the Commonwealth Parliament has plenary powers in this respect and there is no condition as regards equality of the new State as in the American *Constitution*. The admitted State would be bound by whatever condition may be imposed by Parliament, including the extent of its representation in Parliament.

The word “admit” refers to the admission of a duly organised political community which might be called a “State” from before[82] such admission; while “establish” refers to the *creation* of a State, where none existed before.

[Art 2.2] INDIA [Art 2.2.1] Admission or Establishment of a New State

Since, according to *Article 1*(1), only States are members of the Union of India, “admission into the Union” may take any of the following forms :

(i) Promotion of an inferior category, such as a Union Territory, into Statehood, as has happened in the cases of Himachal Pradesh, Manipur, Tripura, Mizoram, Arunachal Pradesh and Goa.[83]

(ii) A foreign territory acquired into India may forthwith be made a State and admitted into the Union.

Article 2 which enabled Parliament by law to admit with the Union, or establish, new states showed that foreign territories, which an acquisition became a part of the territory of India under *Article 1*(3)(c), could by law be admitted with the Union. The acquisition of foreign territory in the exercising sovereignty automatically made that territory part of India and after such territory was actually made part of India, it could be assimilated by law under *Article 2* or *Article 3*(a) or (b). Territory acquired by India may be framed with a new state or be united to another state under *Article 3*(a).[84]

(iii) Another mode was resorted to in the case of Meghalaya. It was originally constituted a “sub-State” by truncating a portion of territory from the State of Assam, by the *Assam Reorganisation (Meghalaya) Act, 1969*, read with the *Constitution* (Twenty-second) Amendment Act, 1969. The status of this unit since then up to the passing of the *North-Eastern Areas (Reorganisation) Act, 1971*, was neither that of a State nor of a Union Territory. From that status, it was admitted into the Union as a State, by the latter Act, with effect from 21 January 1972.[85]

Some of the modes in which a new State may be created are mentioned in *Article 3*(a), *post*.

This Article shows that foreign territories which after acquisition would become part of the territory of India under *Article 1*(3)(c) can by law be admitted into the Union under *Article 2*. Such territories may also be assimilated under *Article 3*(a) or (b).[86] Whenever a new State is established or admitted into the Union, suitable amendment to the First and Fourth Schedule as provided in *Article 4* must be made.[87]

No parliamentary legislation is necessary to acquire foreign territory, since it is the inherent attribute of a sovereign State. It is in this context that *Article 1*(3)(c) includes among the territories in India “such other territories as may be acquired”. *Article 1*(3)(c) merely provides for and recognises automatic absorption into the

territory of India a new territory which may be acquired by India by virtue of its inherent right as a sovereign State. However, for assimilation of acquired territory, formal legislation is necessary.

[Art 2.2.2] 'Upon such terms and conditions as it thinks fit'

In the 6th Edn of this Commentary, it was stated—

> These words mean that full discretion as to whether a State should be admitted into the Union, and if so, the time and manner of such admission, rests fully with the Parliament and that it can impose any condition as requisite for admission.
>
> Whether a territory should be admitted into the Union and what terms should be imposed thereon are thus non-justiciable.

This statement has now to be restated and modified in the light of the observation made by the *Constitution* Bench of the Supreme Court in 1993.[88]

In this case,[88] the majority held that the "political questions" doctrine has been relaxed even in the *U.S.A.* and, in India, it is to be read subject to the doctrine of "basic features" which has been evolved by the Supreme Court; and the correct position would be as follows:

Though, the power under *Article 2* is, from the very nature of the power, very wide, and its exercise is necessarily guided by political issues, this power is not unlimited or unfettered and, the terms and conditions "which Parliament may deem fit to impose *cannot be inconsistent with or violate the Constitutional Scheme or the basic features* of the Indian *Constitution*, for *e.g.*, with the democratic pattern envisaged by the *Constitution*. The reason is that in exercising the amending power under *Article 368*, Parliament cannot transgress the limitations on the amending power itself, such as the basic features of the *Constitution*. In the result, in exercise of the legislative power, Parliament cannot do what it could not do as a constituent body.

Provisions of *Article 371-F*—which incorporates special provision in regard to Sikkim was challenged before the Supreme Court on the ground that it is inconsistent with "basic features" of the *Constitution* *viz*. "equality and secularism". By a majority judgment, the Supreme Court upheld the provisions in the light of historical, cultural and political background of Sikkim. It was held that the provisions in the particular situation and the permissible latitudes cannot be said to be unconstitutional. It was found to be valid in view of strategic border area and the departure, if any, are not as to negate fundamental principles of democracy.[89]

It was held in that case that terms and conditions did not seek to establish a form or system of Government or political and governmental institutions alien to and fundamentally different from those the *Constitution* envisages.

The power conferred on Parliament under *Article 2* "is not power to override the Constitutional Scheme."[90]

Article 2 involves the exercise of Constitutional power where the significance and importance of the political components of the decision deemed fit by Parliament cannot be put out of consideration.[91]

On power of Judicial Review it was held that it is open to the Court to examine whether the terms and conditions as provided in the law enacted by Parliament under *Article 2* are consistent with the Constitutional Scheme or not. This would mean that power conferred on Parliament under *Article 2* is not wider in ambit than the amending power under *Article 368*. The law passed by Parliament under Article is open to Judicial Review.[92]

The power of sovereignty to acquire new territories is inherent and hence it is mentioned in express terms in the *Constitution*. If an acquisition of new territories is made by a treaty or under an agreement, the terms of the same will be beyond the scrutiny of Courts. But when the new territory is made part of India by giving the same status as is enjoyed by an existing State, under the *Constitution of India*, the process of such a merger has to be made under the *Constitution*. No other different process adopted can achieve this result and the procedures so adopted must be in accordance with the *Constitution* and Court's jurisdiction to examine the validity of the process cannot be excluded (per SHARMA, J.)

Article 2 provides that Parliament may by law admit into the Union, or establish, new States on such terms and conditions as it thinks fit. The Law so made must confirm to the requirements of *Article 13 of the Constitution*.[93] Consequently no State can be formed, or set up by law under *Article 4* by Parliament, which has not effective legislative, executive and judicial organs.[94] In that case, the Court held: "Power with which the Parliament is invested by *Articles 2* and *3* is power to admit, establish or form new States which conform to the democratic system envisaged by the *Constitution* and the power which the Parliament may exercise by law is supplemental, incidental or consequential to the admission, establishment or formation of a State as contemplated by the *Constitution* and is not a power to override the Constitutional Scheme." If the terms and conditions stipulated in a law made under *Article 2* go beyond the constitutionally permissible latitude, that law can be questioned as to its validity.

In *State of Uttaranchal v Sidharth Srivastava,*[95] the question before the Court was whether the selection of candidates made by the Uttar Pradesh Public Service Commission was binding on the State of Uttaranchal. In that case, when the selection process had been initiated, the State of Uttaranchal was not in existence. But, by the time the selection was completed and recommendations made, the state of Uttar Pradesh had been reorganised and the State of Uttaranchal had been formed. In the Act which established the State of Uttaranchal, there was no provision which made the Public Service Commission (PSC) of Uttar Pradesh to serve as the PSC of the State of Uttaranchal as well. The Indian constitutional scheme provides that each State shall have a Public Service Commission. In view of the constitutional scheme and the provisions of the *Uttar Pradesh Reorganisation Act 2000*, the Court held that the list prepared by Uttar Pradesh Public Service Commission was not binding upon the State of Uttaranchal.

Under *Article 2*, the Parliament, representing the people, has been vested with the power of admitting or establishing new States and also with the power of re-organisation of the existing States. In 1975, Sikkim was admitted as part of India, but without invoking power under *Article 2*. Instead, resort was made to a constitutional amendment. Thirty -Fifth Amendment Act 1974 started the process of integration of Sikkim with India. Subsequent to it, Thirty -Sixth Amendment was passed, following an opinion poll in Sikkim and completed the integration process and the name of Sikkim was inserted in the First Schedule to the *Constitution* and Sikkim became a member of Union of India.

Of course, if the admission is made by a treaty or agreement between India and an erstwhile independent State, the terms of admission by such treaty or Agreement are not subject to judicial review [para 14].[96]

[Art 2] Admission or establishment of new States.-

It is to be noted that there being under the Indian *Constitution* no theory of equality of States,[97] the terms imposed by the Parliament under the present Article would be binding upon the new State even after the admission, even though they may be "discriminatory" or unequal.

For admitting into the Indian Union or establishing a new State, a parliamentary law is necessary and the new State so admitted or established cannot claim complete equality with other Indian States because Parliament has power to admit or establish a new State "on such terms and conditions as it thinks it".[1] The words "as it thinks fit" in *Article 2 of the Constitution* cannot be construed as empowering Parliament to provide terms and conditions for admission of a new State which are inconsistent with the basic features of the *Constitution*. The said words can only mean that within the framework of the *Constitution*, it is permissible for Parliament to prescribe the terms and conditions on which a new State is admitted in the Union. It is open to the court to examine whether the terms and conditions as provided in the law enacted by Parliament under *Article 2* are consistent with the constitutional scheme or not. This would mean that the power conferred by law so made cannot alter any of the basic features of *Constitution*.[2] The law so made must conform to the requirement of *Article 13*.[3]

[Art 2.2.3] Status of the Admitted State

But subject to the terms and conditions imposed under the present Article, the status of the admitted State will not, in any way, be inferior to that of the other States under the *Constitution*. In *Australia*, it has been maintained that on admission, the new State shall have all the "State rights" as are implied by section 6 of that *Constitution* Act[4] and that the admitted State shall not be liable to any special construction of the *Constitution*.[5]

Under *our Constitution*, similarly, since the admission will be effected by an amendment of the First Schedule to the *Constitution* [*Article 4* (1)], it follows that the provisions of the *Constitution* applicable to the States specified in the First Schedule (in which the new State is included), will be applicable equally to the new State and it will be governed in the same way. Its representation in the Council of States, however, shall be as provided by the law of Parliament referred to in *Article 4*, *post*, by proper amendment of the Fourth Schedule,[6] and such representation would obviously be unequal.

---

76 As to the procedure usually followed, **cf.** West, *American Government*, 1946, p 290.

77 Munro, *Government of the United States*, 1944, p 547.

78 *Coyle v Smith*, (1911) 221 US 559.

79 *Stearns v Minnesota*, (1900) 179 US 223.

80 *Ervien v U.S*, (1919) 251 US 41.

81 *Bollin v Nebraska*, (1900) 176 US 83.

82 Wynes, *Legislative & Executive Powers*, pp 113-4.

83 See Author's *Annotated Constitution of India*; *Introduction to the Constitution of India*.

84 See H.M. Seervai, *Constitution Law of India*, 4th Edn, vol I, p 308.

85 Similarly, Sikkim was first made an "associate state" and thereafter promoted to be a "State".

86 See Author's *Annotated Constitution of India*; *Introduction to the Constitution of India*.

87 *Nalluri Venketaraju v State of AP,* AIR 1961 AP 50 .

88 *R.C. Poudyal v UOI*, AIR 1993 SC 1804 (para 70) : 1994 (Supp-1) SCC 324.

89 *R.C. Pondyal v UOI,* AIR 1993 SC 1804 : 1994 (Supp-1) SCC 324.

90 *Mangal Singh v UOI,* AIR 1967 SC 944 : (1967) 2 SCR 109 .

91 *R.C. Pondyal v UOI,* AIR 1994 SC 1804 : 1994 (Supp 1) SCC 324.

92 Per AGARWAL, J. in *R.C. Pondyal v UOI,* AIR 1993 SC 1804 : 1994 (Supp 1) SCC 324.

93 *State of Sikkim v Surendra Prasad Sharma,* AIR 1994 SC 2342 : (1994) 5 SCC 282 ,

94 *Mangal Singh v UOI,* AIR 1967 SC 944 : (1967) 2 SCR 109 .

95 AIR 2003 SC 4062 : (2003) 9 SCC 336 .

96 *Poudyal v UOI*, AIR 1993 SC 1804 (para 70).

97 See Author's *Annotated Constitution of India*; *Introduction to the Constitution of India*.

1 See Paras Diwan, *Constitutional Law of India,* vol I, p 58 (M. Hidayatullah, ed.) (Bar Council of India Trust) (1989), a position **approved** in *R.C. Poudyal v UOI,* (*supra*).

2 *R.C. Poudyal v UOI,* AIR 1993 SC 1804 : 1994 (Supp-1) SCC 324 (*supra*).

3 *State of Sikkim v Surendra Prasad Sharma,* AIR 1994 SC 2342 : (1994) 5 SCC 282 (*supra*).

4 Wynes, *Legislative & Executive Powers*, pp 113-4.

5 Kerr, *Law of the Australian Constitution*, p 57.

6 See, for instance, *section 6 of the State of Nagaland Act, 1962*.

Article 2A. [Sikkim to be associated with the Union.] Rep. by the Constitution (Thirty-sixth Amendment) Act, 1975, section 5 (w.e.f. 26 April 1975).

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART I THE UNION AND ITS TERRITORY

Article 2A. [*Sikkim to be associated with the Union*.] *Rep. by the Constitution (Thirty-sixth Amendment) Act, 1975, section 5 (w.e.f. 26 April 1975).*

Sikkim was first made an "Associate State" by the *Constitution* (35th Amendment) Act, 1974, but made a full-fledged *State*, by the *Constitution* (36th Amendment) Act, 1975, with effect from 26 April 1975.[7]

The only instance of admission to the Union of India of a full-fledged sovereign State is provided by Sikkim. On 8 May 1973, the Chogyal of Sikkim, the leaders of political parties of Sikkim and India entered into an agreement under which it was agreed that Sikkim should become an associate member of the Union of India. On 11 May 1974, the Sikkim assembly passed a resolution to that effect and further passed the Government of Sikkim Bill 1974 unanimously which was promulgated by the Chogyal on 4 July 1974. The Act empowered the Government of Sikkim to seek participation and representation for the people of Sikkim in the political institutions of India. Thereupon, the Chief Minister of Sikkim made a request to the Government of India to take formal steps to give effect to the Government of Sikkim Act. This led to the passing of the *Constitution* (35th Amendment) Act 1974 under which Sikkim became an associate member of the Union of India and its position was safeguarded by inserting the name of Sikkim in Schedule I to the *Constitution* and a new *Article 2-A* was inserted in the *Constitution* to give effect to the concept of associate States of the Indian Union. However, the events in Sikkim moved rapidly. Not happy with new arrangements, the Chogyal of Sikkim wanted to sabotage them. On 10 April 1975 the Sikkim Assembly passed a unanimous resolution which, after noting that the persistent and harmful activities of the Chogyal aimed at undermining the responsible democratic government set up under the Agreement of 1973 and the Government of Sikkim Act 1974, declared that the activities of Chogyal were not only violative of the agreement of 8 May 1973 between India and Sikkim, but also ran counter to the wishes of the people of Sikkim and impeded their democratic development, particularly in the political and economic life of India. The resolution further provided for the abolition of the institution of Chogyal and for making Sikkim a full-fledged constituent unit of India, enjoying a democratic and fully responsible government. On the basis of the resolution, a Referendum was held and the people of Sikkim voted in favour by 59637/1496 votes. The result of the referendum was communicated to the Govt. of India with a request to make immediate response and accept the verdict of the referendum. As a result, the 36th amendment was passed and Sikkim was made the 22nd State of the Union of India. Sikkim was allotted one seat in Lok Sabha and one seat in Rajya Sabha. As a consequence, *Article 2-A* became redundant and was repealed.[8]

Article 2A. [Sikkim to be associated with the Union.] Rep. by the Constitution (Thirty-sixth Amendment) Act, 1975, section 5 (w.e.f. 26 April 1975).

7 Vide Author's *Constitution Amendment Acts*; *Introduction to the Constitution of India*.

8 See Paras Diwan, *Constitutional Law of India*, vol I, pp 59-60 (M. Hidayatullah, ed.) (Bar Council of India Trust) (1989)

End of Document

[Art 3] Formation of new States and alteration of areas, boundaries or names of existing States.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART I THE UNION AND ITS TERRITORY

[Art 3] Formation of new States and alteration of areas, boundaries or names of existing States.-

Parliament may by law –

(a) form a new State by separation of territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State;

(b) increase the area of any State;

(c) diminish the area of any State;

(d) alter the boundaries of any State;

(e) alter the name of any State;

> *Provided* that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affects the boundaries of any State or States specified in Pt A or Pt B of the First Schedule or the name or names of any such State or States, the views of the Legislature of the State or, as the case may be, of each of the States both with respect to the proposal to introduce the Bill and with respect to the provisions thereof have been ascertained by the President.

Before 24 December 1955	***After 24 December 1955***
[*Art 3*] Formation of new States and alteration of areas, boundaries or names of existing States.- Parliament may by law –	**[*Art 3*] Formation of new States and alteration of areas, boundaries or names of existing States.-** Parliament may by law –
(a) form a new State by separation of territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State;	(a) form a new State by separation of territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State;
(b) increase the area of any State;	(b) increase the area of any State;
(c) diminish the area of any State;	(c) diminish the area of any State;

[Art 3] Formation of new States and alteration of areas, boundaries or names of existing States.-

Before 24 December 1955	***After 24 December 1955***
(d) alter the boundaries of any State;	(d) alter the boundaries of any State;
(e) alter the name of any State;	(e) alter the name of any State;
Provided that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affects the boundaries of any State or States specified in Pt A or Pt B of the First Schedule or the name or names of any such State or States, the views of the Legislature of the State or, as the case may be, of each of the States both with respect to the proposal to introduce the Bill and with respect to the provisions thereof have been ascertained by the President.	[9][*Provided* that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affects the *areas, boundaries or name of any of the States.* [10]*[***], the Bill has been referred by the President to the Legislature of that State for expressing its views thereon within such period as may be specified in the reference or within such further period as the President may allow and the period so specified or allowed has expired.*
Before 27 August 1966	*After 27 August 1966*
	[11] *[Explanation I.–In this article in clauses (a) to (e), "State" includes a Union territory, but in the proviso, "State" does not include a Union territory.*
	Explanation II.–The power conferred on Parliament by clause (a) includes the power to form a new State or Union territory by uniting a part of any State or Union territory to any other State or Union territory.]

[Art 3.1] OTHER CONSTITUTIONS

(A) *U.S.A.*

Article IV, section 3 (1) of the American *Constitution* says –

> …….But no new State shall be formed or erected within the jurisdiction of any other State, nor any State be formed by the junction of two or more States, or parts of States, without the consent of the Legislatures of the States concerned, as well as of the Congress.

This is one of the provisions by which the integrity of the States in the federal system is maintained. It means that it will not be open to one of the parties (*viz.*, the national Government or the Union) to redraw the map of the United States. It prevents the merger or partition of States without their consent.[12] The plenary power of Congress to admit new States into the Union is subject to this limitation.

(B) *Australia,*

sections 123-4 of the Australian *Constitution* Act are as follows:

[Art 3] Formation of new States and alteration of areas, boundaries or names of existing States.-

The Parliament of the Commonwealth may, with the consent of the Parliament of a State, and the approval of the majority of the electors of the State voting the question, increase, diminish, or otherwise alter the limits of the State, upon such terms and conditions as may be agreed on, and may, with the like consent, make provision respecting the effect and operation of any increase or diminution or alteration of territory in relation to any State affected. (Section 123).

A new State may be formed by separation of territory from a State but only with the consent of the Parliament thereof, and a new State may be formed by the union of two or more States or parts of States, but only with the consent of the Parliaments of the States affected. (Section 124).

The Commonwealth Parliament has, thus, the power – (a) to create new States, from an old State or from parts of old States with the consent of the Legislature of the States affected; and (b) to alter the boundaries of a State, with the consent of the Legislature of that State and the approval of the electors of such State.

(C) *West Germany.*

Article 29 of the West German *Constitution* (1949) provides –

(1) The federal territory shall be reorganised by a federal law[13] with due regard to regional ties, historical and cultural connections, economic expediency and social structure. Such reorganisation should create Laender which by their size and capacity are able effectively to fulfil the functions incumbent upon them.

(2) In areas which, upon the reorganisation of the Laender after 8 May 1945, became, without plebiscite, part of another Land, a specific change in the decision then taken regarding the Land boundaries may be demanded by popular initiative within a year from the coming into force of this Basic Law. Such popular initiative shall require the assent of one tenth of the population entitled to vote in Land-tag elections. If the popular initiative receives such assent, the Federal Government must include in the draft of the reorganisation law a provision determining to which Land the area concerned shall belong.

(3) After the law has been passed, such part of the law as provides for the transfer of an area from one Land to another must be submitted to a referendum in that area. If a popular initiative received the assent required under para (2), a referendum must in any event be held in the area concerned.

(4) Insofar as the law is rejected in at least one area, it must be reintroduced into the Bundestag. After it has been passed again, it shall require to that extent acceptance by a referendum in the entire federal territory.

(5) In a referendum the majority of the votes cast shall decide.

(6) The procedure shall be established by a federal law. The reorganisation should be concluded before the expiration of three years after promulgation of the Basic Law and, should it become necessary as a result of the accession of another part of Germany, within two years after such accession.

(7) The procedure regarding any other change in Land boundaries shall be established by a federal law which shall require the consent of the Bundesrat and of the majority of the members of the Bundestag.

(D) *Government of India Act, 1935.*

Section 290 (1) of the Act provided :

> Subject to the provisions of this section, the Governor-General may by Order –
>
> (a) create a new Province;
>
> (b) increase the area of any Province;
>
> (c) diminish the area of any Province;
>
> (d) alter the boundaries of any Province.
>
> *Provided* that before making any such Order the Governor-General shall ascertain the views of the Government of any Province which will be affected by the Order, both with respect to the proposal to make the Order and with respect to the provision to be inserted therein.

This section followed section 52A of the Government of India Act, 1919, in exercise of which Burma was constituted a Governor's Province in 1921.

The following Orders were issued in exercise of the power conferred by section 290 of the Government of India Act, 1935:

1. The Bombay (Enlargement of Area and Alteration of Boundaries) Order, 1947, by which certain areas of the Gujarat States, Agency were included in the Province of Bombay [see under Schedule 1, *post*].

2. The Provinces and States (Absorption of Enclaves) Order, 1950,[14] by which certain enclaves were transferred from some acceding States to the neighbouring Provinces and *vice versa*, for expediency of administration [see under Schedule I, *post*].

3. The India and Hyderabad (Exchange of Enclaves) Order, 1950,[14] by which a mutual exchange of certain enclaves between the State of Hyderabad and the Dominion of India was effected (see under Schedule I, post).

(1) The italicised words in the Proviso were substituted by the *Constitution* (Fifth Amendment) Act, 1955, in order to put a time limit within which the States are to express their views on any proposal for reorganisation referred to them under *Article 3*.

By the amendment, the President has been given the power to specify the period at the time of making the reference and also the power to extend the period so specified. If, within the period so specified or extended any State does not express its views, the Bill may be introduced even though the views of that State have not been ascertained by the President.

[Art 3] Formation of new States and alteration of areas, boundaries or names of existing States.-

(2) Explanations I and II were added by the *Constitution* (Eighteenth Amendment) Act, 1966, w.e.f. 27 August 1966.

The First part of Explanation I codifies what was overlooked in *Re Berubari Union*[15] and acknowledged in *Ramkishore v UOI*,[16] namely, that by reason of the definition of the word "State" in the *General Clauses Act, 1897*, the word "State" in this Article must be read as including a "Union Territory".

The second part of Explanation I excepts the Proviso from the definition. The result is that *Article 3* empowers Parliament to form a new Union Territory, alter the boundaries of an existing Union Territory or include the whole or part of a Union Territory in a State (Explanation II) and in doing so, the Bill need not be referred to the Legislature of the Union Territory in question.

[Art 3.2.2] Scope of Article 3

The States which form the Union [*Article 1*(1)] for the time being are specified in the First Schedule. The present Article provides the procedure for the formation of new States as well as alteration of the boundaries, names, etc. of the States forming part of the Union at any point of time. Broadly speaking, *Article 3* deals with the internal adjustment *inter se* of the territories of the constituent States of India.[17] The scope of this article is different from *Article 2*. *Article 2* relates to admission on establishment of new States which are "not" part of Indian Union. This article provides for the formation of, or a change in, the existing States including Union Territories.

This article is important from the point of view of the federal nature of the *Constitution*. The power to alter the boundaries of States or create new States within the territories of India is given only to Parliament with a provision for taking into account the views of the legislature of the affected States. This is a "unitary" feature of our federal *Constitution*. The federation of States under the Union of India is very differently structured from the federation of States in the United States. This provision was relied upon by the Supreme Court to deny sovereignty of a State under the *Constitution* in *State of WB v UOI,*[18] The Court said: "What appears to militate against the theory regarding the sovereignty of State is the wider power with which the parliament is invested to alter the boundaries of the States, and even to extinguish the existence of a State". The Parliament has been invested with the exclusive power of admitting or establishing new States, increasing or diminishing the area of an existing State or altering its boundaries; the legislature or legislatures of the States concerned having only the right to an expression of views on the proposals. For making such territorial adjustments, it is not necessary even to invoke the provision governing Constitutional Amendment.[19]

> When this article was drafted, Princely States had not been fully integrated. There was also in the air the possibility of re-organising the States on linguistic basis. The Constituent Assembly foresaw that such re-organisation could not be postponed for long. Accordingly *Article 3* was incorporated in the *Constitution* providing for an easy and simple method for re-organisation of the States at any point of time.[20]

For the purpose of determining the true scope and effect of *Article 3*, one must take such considerations as are germane to the interpretation of an organic like the *Constitution*; but it will be improper to import into the question by constriction doctrines of democratic theory and practice obtaining in other countries, unrelated to the tenor, scheme and words of the provisions which have to be construed.[21]

The purpose of re-organisation of States is not to take away any fundamental right.[22]

Law under *Article 3* by virtue of *Article 4*(2) is not to be treated as a Constitutional amendment for the purpose

of *Article 368*.[23] In the *Re Berubari*[24] opinion it was observed that "no cessation of Indian territory can take place without Constitutional amendment".[25]

This can be done only by legislation by the Union Parliament (as in the *United States, Australia and West Germany*), but legislation in this respect is subject to the condition that no Bill for this purpose shall be introduced except on the recommendation of the President.

There is a further condition, namely, that before recommending the introduction of such Bill, the President shall refer the Bill for the views of the Legislature of the State or States whose area, boundaries or name is to be *affected* by it. If however, a State Legislature does not express its views within the time specified by the President he may recommend the introduction of the Bill without obtaining the views of such State.

The idea of "mobile" State frontiers and that of altering State boundaries even without the consent of the State concerned appears to have been imbibed by the framers of *our Constitution* from the provisions of the *Constitution* of Weimar Germany, but they went further in not requiring even the consent of the population of the territory affected.

[Art 3.2.3] "Parliament may by law"

The five acts specified in the Article can be done only by legislation by Parliament and not by the Executive without the sanction of Parliament,[26] even though it involves the implementation of a treaty.[27] The creation of new State by altering territories and boundaries of existing states is within the exclusive domain of Parliament. The power of Parliament is exclusive and plenary. The law-making power under *Articles 3* and *4* is paramount and plenary and traverses over all legislative subjects as are necessary for effectuating a proper re-organisation of State and it is not subjected to any fetters by *Article 246* and Schedule VII and Lists II and III and validity of laws passed by the Parliament under *Articles 3* and *4* cannot be questioned on the ground of lack of legislative competence with reference to Schedule VII. The new State owes its very existence to the law made by Parliament. It would be incongruous to say that the provision of an Act which gives birth to a State is *ultra vires* a legislative entry which the State may operate after it has come into existence and the power of State to pass legislation under *Articles 3* and *4* is subject to the parliamentary legislation under *Articles 3* and *4*.[28] It is because of this power under *Articles 3* and *4*, it is said: "India is an indestructible Union of destructible units".[29] In that case, the Court held: "Under *Article 3* and *4* of the *Constitution* together empower Parliament to make laws to form a new State by separation of the territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State and in so doing to increase or diminish the area of any State and to alter its boundaries and further to give effect through measures to provide for the representation in the legislatures of State or States affected by such law by varying the composition, the numerical strength thereof or even affecting the very existence of State legislature. (para 176).

The power of the Parliament under *Articles 3* and *4* to make laws is not referred to in any entry in the legislative lists nor is it subject to any fetter under *Article 246*. It establishes a "Constituent power", and not merely a legislative power simpliciter. It refers to no entry in any legislative lists of VII Schedule. It sets forth an amending power without the necessity of the normal amending procedure established by *Article 368*. It establishes a special procedure which is dissimilar with legislative procedure and is also not comparable with the amendatory procedure under *Article 368*.[30] The State has a privilege to express its views at the time of formulation of a plan for re-organisation and the Parliament has full power to implement the plan whether as originally conceived in the Bill or in a modified form. The condition of ascertaining the view is not considered equal to taking consent of a State except in the case of State of Jammu & Kashmir.[31]

With regard to the State of Jammu & Kashmir, the "consent" of the State legislature is necessary for introducing a Bill providing for increasing or diminishing the area of the State or for altering the name or the boundary of that State (a proviso is added to *Article 3* in so far as State of Jammu & Kashmir is concerned). It reads thus:-

> Provided that that no Bill providing for increasing or diminishing the area of the State of Jammu & Kashmir or altering the name or boundary of that State shall be introduced in Parliament without the consent of legislature of the State.

"Jammu & Kashmir is a State and forms part of the territory of India under *Article 1*(3). But it would be possible for Parliament of India to increase or diminish the area of Jammu & Kashmir, to alter its name or boundaries in the manner in *Article 3* & *4* only if the legislature of Jammu & Kashmir "consents". Herein the State of Jammu & Kashmir markedly differs from that of other States. In the case of other States, only the views of their legislature are ascertained by the President before recommending the introduction of a Bill relating to these matters (Proviso to *Article 3*). But in the case of Jammu & Kashmir, no such Bill shall be introduced in Parliament unless the State legislature has given its consent".[32] The law making power under *Articles 3* & *4* is paramount and is not subjected to nor fettered by *Article 246* and Lists II and III of the Seventh Schedule to the *Constitution*. The *Constitution* confers Supreme and exclusive power an Parliament made *Article 3* & *4* so that which creating new State by reorganisation, Parliament may enact provisions for dividing land, water and other resources; distribute the assets and liabilities of predecessor states amongst new states, make provisions for contracts and other legal rights and obligation. The State cannot claim to have legislation competence our such waters which are subject of an interstate agreement which is contained by Parliamentary enactment, namely the State Reorganisation Act enacted under *Article 3* and *4* of the *Constitution*.[33]

[Art 3.2.4] "State"

The word "State" in *Article 3* (excepting the Proviso) includes a Union Territory, by reason of the definition of "State" in *section 3(58) (b) of the General Clauses Act, 1897* [*Explanation I*].[34]

[Art 3.2.5] Clause (a) : Formation of New State

The modes enumerated by the present clause for the formation of a new State are: (i) separation of territory from an existing State;[35] (ii) union of two or more States or parts of States;[36] (iii) uniting a "territory" to a part of any State.[37] In *V. Subramanian v UOI,*[38] it was held that by virtue of Section 12 of States Re-organisation Act, 1956, there appears any distinction between "existing state" and a "New State" as all the Pt A states of *States Reorganisation Act*, whether it is named as transfer of territory or formation of State, is a "New State". A legal fiction is formed regarding formation of a "New State".

[Art 3.2.6] "Separation of territory from any State"

Our *Constitution* does not guarantee the continued existence of any State. Even its consent is not required for its transformation (unlike under Article IV, section 3(1) of the American *Constitution* p 462, *ante*). There is nothing in *Article 3* to preclude Parliament from cutting away the entire area of a State to form a new State or to increase the area of another State.[39] For instance, by the *States Reorganisation Act, 1956*, Pt B State of Hyderabad was disintegrated *in toto* and its territory transferred to the States of Andhra Pradesh and Mysore [see under Schedule I, *post*].

[Art 3.2.7] "Uniting two or more States"

SINHA J. of the Calcutta High Court[40] had expressed the view that this clause only authorises a complete union of two States and that there is no provision in the *Constitution* for two States to unite in some matters and not to unite in respect of other matters. But parts of two States may be united to form a third State.

[Art 3.2.8] "Uniting any territory to a part of any State"

This clause may be illustrated with reference to the case of Andhra Pradesh. This State was originally created, by taking out certain areas from the State of Madras, by the Andhra State Act, 1953. Subsequently, a new State was created by the *States Reorganisation Act, 1956*, under the name of Andhra Pradesh, by the addition of certain territories, as specified in section 3(1) of that Act.

[Art 3.2.9] Clause (b): "Increase the area of any State"

The area of the State of West Bengal, for instance, was increased by the merger of Chandernagore (ceded French territory), by the *Chandernagore (Merger) Act* (36 of 1954).

The area of Andhra Pradesh was increased by the First Schedule of the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959.

[Art 3.2.10] Clause (c): "Diminish the area of any State"

The Supreme Court has held[41] that the scope of this clause is restricted to inter-State adjustments and does not cover the case of cession of a part of the territory of India to a *foreign* State, for which an amendment of the *Constitution* under *Article 368* is necessary.

As a result of this view an amendment of the *Constitution* seemed to be necessary to validate the cession of a strip of Assam to Bhutan, which was made by the *Assam (Alteration of Boundaries) Act, 1951*.

[Art 3.2.11] Proviso: "Recommendation of the President"

Article 255 debars the Court from enquiring into the validity of a law on the ground that the Bill was introduced without such recommendation.

[Art 3.2.12] "Referring" the Bill to State Legislature

The provisions of our *Constitution* as regards reorganisation of States are less stringent than those in the American or Australian Constitutions. Under the *American Constitution*, no alteration of the boundaries of existing States can be made without their consent. The *Australian Constitution* requires not only the consent of the Legislature of the affected State but also of the electors of such State (p. 651, *ante*).

The Proviso to the present Article of *our Constitution*, as it stood prior to the amendment in 1955, required the President to "ascertain" the views of the Legislature of the State or States affected. The language was adopted from section 290(1) of the Government of India Act, 1935, to make it clear that the President was not necessarily bound to act according to the wishes of the Legislature concerned. This position has been made more clear by the amendment of 1955, which has omitted the word "ascertained" and has substituted the word "referred". Further, if the State concerned does not express its views within the time specified[42] by the President, the Bill may be introduced even though the views of the State have not been obtained by the President. But a reference to the State appears to be obligatory.

Nor is here anything in the Proviso to indicate that Parliament must accept or act upon the views of the State Legislature,[43] if received in time. Under *our Constitution*, thus there is no guarantee of the territorial integrity of the States constituting the Union.[44]

But the *consent* of the State Legislature of Jammu & Kashmir is necessary in the case of any Bill for altering the area of that State.

[Art 3.2.13] *"Bill has been referred"*

Once the original Bill is referred to the State or States, the purpose of the Proviso is served and no fresh reference is required every time an amendment to the Bill is moved and accepted according to the rule of procedure in Parliament. Parliament is not bound to accept or act upon the views of the State Legislature, even if those views are received in time.[43]

[Art 3.2.14] Whether the Bill may be amended after the views of the State Legislatures' have been ascertained

It has been ruled by the Speaker of the House of the People that the Bill having once been referred by the President to the State Legislatures concerned and thereafter duly introduced in Parliament, amendments seeking to make provisions different from those contained in the Bill as introduced and thereby affecting the area, boundaries or names of the States are in order and are not *ultra vires* of the *Constitution*. These amendments are not required to be referred again to the State Legislatures concerned; nor is any fresh recommendation of the President necessary for their consideration.[45]

It is to be noted that while prior to the amendment of the Proviso in 1955, the views of the State Legislatures were to be ascertained not only with respect to the proposal to introduce the Bill but also with respect to the "provisions" of the Bill, the amended Proviso has omitted these words and it now requires only a reference of the Bill which comes within the purview of *Article 3*. Once such reference has been made, the Bill is properly introduced and thereafter its legislative career will be governed by the ordinary rules of procedure in Parliament.

The question is whether the Courts are also powerless to interfere where Government substantially amends the Bill after its introduction so as to transform it altogether and gets it enacted without a fresh reference being made to the State Legislatures. The Supreme Court[46] has taken the same view as the Speaker, namely, that once the Bill is referred to the State or States, the purpose of the Proviso is served, and that no fresh reference shall be required every time an amendment to the Bill is moved and accepted, according to the rules of procedure in Parliament.

[Art 3.2.14.1] *Illustration*

The States Reorganisation Bill, 1956, which had been referred to the Bombay Legislature, proposed for the reorganisation of the State of Bombay into three separate units, namely, (i) Union Territory of Bombay, (ii) State of Maharashtra, (iii) State of Gujarat. But the Act, as passed, provided for a composite State of Bombay, instead of three separate units. *Held*, that the Act did not contravene Act. 3, even though the amendment of the Bill was not referred to the State Legislature at all.[47]

[Art 3.2.15] Explanation I: Alteration of area or boundaries of a Union Territory

In the Reference *Berubari Union*,[48] it was observed that *Article 3* does not refer to Union territories so that the alteration of areas of Union territories cannot be effected by making a law under *Article 3*, and that the only mode of doing that would be an amendment of the *Constitution* under *Article 368*.

It appears that the definition of a "State" as given in *section 3(58)(b) of the General Clauses Act, 1897*, was not placed before their Lordships –

> 'State", as respects any period after such commencement [that is, commencement of the *Constitution* (Seventh Amendment) Act, 1956] shall mean a State specified in the First Schedule to the *Constitution*, and shall include a Union territory.

If the *General Clauses Act, 1897* is attracted to the interpretation of *Article 3 of the Constitution* by *Article 367*, there is no reason, it is submitted, why the reference to a State in *Article 3* in all the places shall not include a reference to a Union territory and an alteration of the area or the boundaries of a Union territory cannot be effected by a law made under *Article 3* in the same way as it is possible as regards States.

The foregoing view of the Author, expressed at p 471 of the Commentary was accepted by the Supreme Court in a later case,[49] and has been made clear by Parliament by inserting *Explanation 1* by the *Constitution* (Eighteenth Amendment) Act, 1966. But there is no question of referring the Bill by the President, in the case of a Union Territory, which is under the administration of the President himself (through an Administrator). The *Constitution* (Eighteenth Amendment) Act, 1966 added two explanations to *Article 3* incorporating the decision of Supreme Court in *Ram Kishore Sen v UOI*.[50] This case clarified that the term "State" in *Article 3* includes a Union Territory. By the first explanation, it is provided that the term "State" includes "Union Territory", but since there is no such necessity with regard to the proviso to *Article 3*, it is also provided that in the proviso, the term "State" shall not include Union Territory. The reason is that in the case of alteration of boundaries of the States, it is necessary to elicit the opinion of the affected States. But, since the Union Territory is governed by Parliament itself, inclusion of "Union Territory" in the term "State" occurring in the proviso would have been

redundant. The second explanation further clarifies the power of Parliament. It provides that Parliament's power under clause (a) of *Article 3* includes the power to form a new State or Union Territory by uniting a part of any State or Union Territory to any other State or Union Territory.

The addition of the new Union Territories of Dadra & Nagar Haveli, Goa, Daman & Diu, Pondicherry, Chandigarh, Mizoram and Arunachal Pradesh has been made under this power.

[Art 3.2.16] Explanation II: 'Uniting parts of State or Union territory'

The addition of this Explanation gives as much flexibility to the power of Parliament to reorganise the States and Union Territories as may be envisaged. It provides that –

(a) A new State may be formed by uniting a part of (i) an existing State or (ii) Union Territory to another (i) State or (ii) Union Territory.

(b) A new Union Territory may be formed by uniting a part of (i) any State or (ii) Union Territory to another (i) State or (ii) Union Territory.

[Art 3.2.17] Power to cede territory under the Constitution

Cession means the transfer of sovereignty over a territory from one State to another. As an attribute of sovereignty,[51] every sovereign State possesses the power not only to acquire new territory but also to cede any part thereof to a foreign State. It is effected by means of a treaty between the two States accompanied by an actual transfer of possession to the transferee State. But though the power to cede is derived from sovereignty, it may be subjected to limitations by the constitutional law of the land subject to which only a sovereign can act when the rights of its citizens are to be affected.[52]

2. Clause (c) of *Article 3* is restricted to inter-State adjustments and does not apply to cession of territory in favour of a foreign State.[53] Hence an agreement which involves a cession of a part of the territory of India in favour of a Foreign State cannot be implemented by passing a law under this Article.[53] It can be effected only by an amendment of the *Constitution*[53]. But a *settlement* of boundary dispute cannot be held to be a cession of territory.[54]

(A) *England.*

It is now practically settled that, notwithstanding the prerogative of the Crown to make treaties,[55] a treaty of cession, inasmuch as it affects the citizens inhabiting the ceded territory, *e.g.*, as regards their nationality, and involves an alteration of the existing law,[56] must be implemented by Parliamentary legislation, before it can be enforced by the municipal courts in the U.K.,[57] and in modern times, treaties of cession have been made only with the authority of an Act of Parliament, *e.g.*, the Anglo-German Agreement Act, 1890; the Anglo-French Convention Act, 1904; the Anglo-Italian Treaty Act, 1925.

(B) *France.*

Article 53 of the Constitution of the Fifth French Republic (1958) makes specific provision with respect to cession of territory. Though *Article 52* empowers the President of the Republic "to negotiate and ratify treaties", *Article 52* provides –

……treaties….. that call for the cession, exchange or addition of territory may be ratified or approved only by a law……

No cession, no exchange, no addition of territory shall be valid without the consent of the populations concerned.

(C) *U.S.A.*

A cession can be made only by a treaty.[58] The President can make a treaty only with the consent of the Senate (which represents the States), provided 2/3 thereof concur [Article II, section 2 (2)].

In the United States, the *Constitution* itself declares a treaty to be the "supreme law of the land" [Article VI, section 2]. It is consequently to be regarded in courts of justice as equivalent to an act of the Legislature and it operates without the aid of any legislative provision.[59] A treaty will therefore be enforced by the Courts even though there is no legislation to implement it, provided, of course, the treaty is not contrary to the *Constitution* of the United States.[60]

A treaty is valid even if it conflicts with the *Constitution* or the laws[61] of any State.

The States are prohibited by the federal *Constitution* from making treaties with foreign States [Article I, section 10(3).][62]

(D) *India.*

I. The Supreme Court has opined[63] that though the power to cede territory is derived from sovereignty, under the Indian *Constitution*, it cannot be effected by a mere treaty; an amendment of the *Constitution* is necessary because it would involve an alteration of the territory of India, which can be done only by an amendment of the First Schedule to the *Constitution*, in accordance with *Article 368*. For the same reason, an ordinary law made by Parliament would *not* suffice, unlike in the U.K.[64]

II. But cession is to be distinguished from a *settlement* of a boundary dispute or *bona fide doubt* or mistake as to boundaries between India and a foreign State.[65] When such a dispute is referred to international arbitration, the implementation of the Award of such arbitration would not require an amendment of the *Constitution*,[66] and can be effected by an executive agreement, without any legislation even.[66]

III. Whether it is a case of cession or of a settlement of a boundary dispute is, however, a justiciable question,[66] though not always easy to answer.

(i) Thus, in the first *Berubari Case*,[67] transfer of a territory which was under the administration of India was regarded as a case of cession, while in the second *Berubari Case*,[68] prior administration was considered to be of no moment on the ground that the territory *de jure* belonged to Pakistan (under the Radcliffe Award) but had continued to remain in the possession of India through *mistake*. In the *Kutch Case*,[69] similarly, possession was not taken into consideration because the parties had referred the matter to arbitration.

[Art 3.2.17.1] The Berubari Case.

(ii) Agreements were entered into between India and Pakistan in 1958 and between India and Bangladesh in 1974 and 1982 regarding cession. The Agree-ment with Pakistan was as regards Berubari Union and Pakistan enclaves of Dahagram and Angarpota. It was not given effect to by any Constitutional amendment; hence, the enclaves of Dahagram and Angarpota never became Indian territories.

Subsequent agreements with Bangladesh (a Sovereign State which came into existence in 1971 with respect to East Pakistan) were entered into, not to exchange the Dahagram and Angarpota enclaves. Perpetual lease to use "Teen Bigha" was also given to Bangladesh, under the agreements.

Held, that implementation of the agreements with Bangladesh did not involve cession of Indian territory. As there was no Gazette notification fixing any "appointed day" within the meaning of the Ninth *Constitution* Amendment in respect of the Eastern India areas, it was clear that 9th Amendment, so far as it related to exchange of the enclaves in Eastern India, had not come into effect by virtue of the said 9th Amendment. It was expressly provided in the Ninth Amendment that only from the appointed day in respect of the territories in the Eastern India, it would come into force. The First Schedule to the *Constitution* remained unamended, in so far as Eastern India concerned, particularly the Berubari Union and the enclaves of Dahagram and Angarpota. As such neither in fact nor in law, there was any accession to India in respect of the two enclaves and they remained part of Bangladesh as they were, before. Therefore, the implementation of the 1974 and 1982 Indo-Bangladesh agreements, which provided (*inter alia*), that the two enclaves would not be exchanged, would not amount to cession of any Indian territory which would require any *Constitution* amendment.[70]

[Art 3.2.18] Effects of reorganisation of territory on existing laws

The principles relating to a change of sovereignty in international law are not applicable to a reorganisation of the territory of a State under the present Article.[71] When such adjustment or reorganisation of territories takes place, the existing laws as well as administrative orders in a particular territory continue to be in force and binding upon the successor State so long as it is not modified or changed or repudiated by the successor State.[72]

Balbir Singh's case was applied by the Supreme Court wherein it was held that when there is no change of sovereignty and it is merely an adjustment of territories by reorganisation of State, the administrative order made by the Government of the erstwhile State continue to be in force and effective and binding on the successor States until and unless they are modified, changed or repudiated by the Government of successor States.[73]

In the case of selection made by a State Public Service Commission, and a new State is formed thereafter, the new State is not bound to appoint persons from the select list and new State can follow its own policies or appointment and reservation even if the newly formed State was part of the State which prepared the select list.[74]

While exercising powers under *Article 3*, Parliament cannot take away the powers of State executive or State legislature in respect of matters enumerated in Schedule VII List II.[75]

In the case of inter-state territorial dispute, the general principle is that land situated at some distance away from the inter-state boundary cannot be claimed by the State as its territory. The general rule is that the extent of a province should be based on the principle of territorial continuity.[76]

Legislation by Parliament.[77] *Assam (Alteration of Boundaries) Act* (XLVII of 1951); Andhra State Act (XXX of 1953); *Himachal Pradesh and Bilaspur (New State) Act* (XXXII of 1954); *Chandernagore (Merger) Act* (XXXVI of 1954); *States Reorganisation Act* (37 of 1956); Bihar and West Bengal (Transfer of Territories) Act (40 of 1956); Rajasthan and Madhya Pradesh (Transfer of Territories) Act, 1959; Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959; *Bombay Reorganisation Act, 1960*; *Acquired Territories (Merger) Act, 1960*; *State of Nagaland Act* (27 of 1962); Punjab Reorganisation Act, 1966; *Assam Reorganisation (Meghalaya) Act, 1969*; *Naga Hills-Tuensang Area Act, 1957*; North Eastern Areas (Reorganisation) Act, 1971; Haryana and Uttar Pradesh (Alteration of Boundaries) Act, 1979; *State of Mizoram Act, 1986*; *State of Arunachal Pradesh Act, 1986*; Goa, Daman and Diu (Reorganisation) Act, 1986, Laccadive, Minicoy and Amindivi Islands (Alteration of Name) Act, 1973. Bihar Re-organisation Act, 2000; Uttar Pradesh Re-organisation Act, 2000; Madhya Pradesh Re-organisation Act, 2000; Andhra Pradesh Re-organisation Act, 2014.

As to the changes made by these Acts, see under the First Schedule *post*.

9 Changes introduced by the *Constitution* (Fifth Amendment) Act, 1955 w.e.f. 24 December 1955.

10 The words and letters "specified in Pt A or Pt B of the First Schedule" omitted by the *Constitution* (Seventh Amendment) Act, 1956, section 29 Sch.

11 *Explanations* I and II were added by the *Constitution* (Eighteenth Amendment) Act, 1966, w.e.f. 27 August 1966.

12 *Downes v Bidwell,* (1901) 182 US 194.

13 In accordance with this provision, a new State (*Land*) was created by the name of Baden - Wuerttemberg, out of the Former States of Baden, Wuerttemberg-Baden and Wuerttemberg-Hohenzollern, by passing a Federal law on 4 May 1951.

14 *White Paper on Indian States*, M.S. 6, App. LI, p 341; App. LII, p 355.

15 Re *Berubari Union*, AIR 1960 SC 845 (*536*).

16 *Ramkishore v UOI*, AIR 1966 SC 644 (*653*).

17 Re *Berubari Union*, AIR 1960 SC 845 .

18 AIR 1963 SC 1241 : (1964) 1 SCR 371 .

19 *Babulal Parati v State of Bombay,* AIR 1960 SC 51 : (1960) 1 SCR 605 .

20 See M.P. Jain, *Indian Constitutional Law,* 6th Edn, vol I, p 411.

21 *Babulal Parati v State of Bombay,* AIR 1960 SC 51 : (1960) 1 SCR 605 *(supra)*.

22 *Director of Industries and Commerce v V. Venketa Reddy,* AIR 1973 SC 827 : (1973) 1 SCC 99 : (1973) 2 SCR 562 .

23 *Mangal Singh v UOI,* AIR 1967 SC 944 .

24 AIR 1960 SC 845 .

25 See comments by H.M. Seervai, *Constitutional Law*, vol I, 4th Edn, p 308-309 and 311. **See also** *Maganbhai Ishwarbhai Patel v UOI,* AIR 1969 SC 783 : (1970) 3 SCC 400 .

26 Re *Berubari Union*, AIR 1960 SC 845 .

27 *Nirmnal v UOI*, AIR 1959 Cal. 506 .

28 *Mullaperiyar Environmental Protection Forum v UOI,* AIR 2006 SC 1428 : (2006) 3 SCC 643 .

29 *Raja Ram Pal v Hon. Speaker, Lok Sabha,* (2007) 3 SCC 184 : (2007) 1 Scale 241 .

30 See Kagzi, *The Constitution of India*, 6th Edn,vol I, p 380.

31 *Babulal Parati v State of Bombay,* AIR 1960 SC 51 : [1960] 1 SCR 605 (*supra*); see also *Nalluri Venketaraju v State of AP,* AIR 1961 AP 50 .

32 See A.S. Anand, *The Constitution of Jammu and Kashmir - Its Development and Comments,* 6th Edn,. 2010, 195.

33 *Mullaiperiyad Environmental Protection Forum v UOI,* (2006) 3 SCC 643 : AIR 2006 SC 1428 .

34 *Ram Kishore Sen v UOI,* AIR 1966 SC 644 : (1966) 1 SCR 430 .

35 See the Andhra State Act (XXX of 1953) which created a new State, *viz.* Andhra, by separating some territory from the State of Madras. This Act also transferred some territory from Madras to Mysore. This Act, thus, formed a new State by diminishing the area of one State and also increased the area of another [See further, under the First Schedule, *post*].

The *State of Nagaland Act* (27 of 1962) has created the State of Nagaland comprising the territories in the Naga Hills Tuensang Area which formed part of the State of Assam. **Cf.** Himachal Pradesh & Bilaspur (New) State Act (XXXII of 1954).

36 **Cf.** Himachal Pradesh & Bilaspur (New) State Act (XXXII of 1954).

37 **Cf.** section 3, State Reorganisation Act, 1956.

38 (2004) 4 LW 250 .

39 *Srikrishan v State*, AIR 1957 A.P. 734 (*737*).

40 *H.C. Sen Gupta v Speaker*, (1956) 60 Cal WN 555 (*563*).

41 Re *Berubari Union*, AIR 1960 SC 845 .

42 The form of reference of the States Reorganisation Bill, 1956, may be noted in this connection—

"WHEREAS the Government of India, after considering the Report of the States Reorganisation Commission and consulting the State Governments and the parties and interests concerned propose that a Bill to provide for the reorganisation of the States of India for matters connected therewith should be introduced in Parliament as early as practicable;

AND WHEREAS the proposal contained in the Bill affects, *inter alia*, the areas, boundaries or name of each of the following States, namely, Andhra, Bombay, Madhya Pradesh, Madras, Punjab, Hyderabad, Madhya Bharat, Mysore, Patiala and East Punjab States Union, Rajasthan, Saurashtra and Travancore Cochin.

NOW THEREFORE, in pursuance of the proviso to *Article 3 of the Constitution of India*, I hereby refer the Bill to the Legislature of each of the aforesaid States for expressing its views thereon within a period of one month from the date of its reference."

43 *Babulal v State of Bombay*, AIR 1960 SC 51 (*54*).

44 Re *Berubari Union*, (1960) 3 SCR 250 .

45 L.S.D. (II) 7 August 1956.

46 *Babulal v State of Bombay*, AIR 1960 SC 51 (*54*). It is submitted that the limits of this proposition deserve a consideration in some future case. True, it is that the Proviso imposes a precedent to the introduction of the "Bill", and once this condition has been fulfilled, the future course of the Bill is in the hands of the Legislature and that the *Constitution* does not specifically require a fresh reference during any future stage of the Bill. But, however, weak it is, it constitutes a constitutional limitation upon the power of the Union Legislature to affect a federal units by its unilateral act, and it is the duty of the Court to see that the constitutional limitation is not reduced to an empty task, by an extreme application of literal interpretation. It is a serious matter for consideration whether the object of the Proviso would be served if the Union Government is allowed to introduce a bill in Parliament after referring it to the States and then to substantially replace it by another Bill by the process of amendment in Parliament. There must be a reserve of power in the hands of the Court to pronounce whether a particular amendment was so drastic as to virtually substitute the Bill that was introduced, so as to attract the operation of the Proviso and to require a fresh reference.

Article 255 precludes the Court from invalidating the Act on the ground that its introduction was not recommended by the President but there is nothing in the *Constitution* to debar the Court from questioning the validity of such Act on the ground that it was not referred to the States as required by the Proviso to *Article 3*.

47 *Babulal v State of Bombay*, AIR 1960 SC 51 (*54*).

48 Re *Berubari Union*, AIR 1060 SC 845 (*860*).

49 *Ramkishore v UOI*, AIR 1966 SC 644 (*648*).

50 AIR 1966 SC 644 : [1966] 1 SCR 430 .

51 Cooley, *Constitutional Law*, 4th Edn, p 409; *Starks, International Law,* 1972, p 181.

52 Re *Berubari Union*, AIR 1960 SC 845 (*857*).

53 Re, *Berubari Union*, AIR 1960 SC 845 (*856*); e.g. *Chandernagore Merger Act, 1954*.

54 *Maganbhai Ishwarbhai Patel v UOI*, AIR 1969 SC 783 (*798*).

55 *Damodar v Deoram*, *(1876) 1 App. Cas. 332* (*381*).

56 **Cf**. *A.G. of Canada v A.G. of Ontario*, AIR 1937 PC 82 (86).

57 Wade & Phillips, *Constitutional Law,* 8th Edn, 1970, p 277; McNair, *Law of Treaties*, 1961, pp 94 *et sep*.; Starke, *International Law,* 1972, p 90.

58 ILOILO Case, (1925) 4 U.N.R. I.A.A. 158.

59 But McNair (on Treaties, 1961, p 80) expresses the opinion that legislation would be required for cession of territory, to lay down the procedure how it is to be effected [Cooley, *Constitutional Law*, 4th Edn, p 409].

60 *Foster v Nelson*, (1829) 2 Pet. 253; *Geofroy v Riggs*, (1890) 133 US 258 (*267*).

61 *Martin v Hunter's Lessee*, (1816) 1 Wh 304.

62 The Cherokee Tobacco, (1871) 11 Wall. 616; *Headmoney* Cases, (1884) 112 US 580.

63 Re *Berubari Union* (1960) 3 SCR 250 : AIR 1960 SC 845 . [In pursuance of this decision, the *Constitution* (Ninth Amendment) Act, 1960, was passed to implement the Nehru-Noon Agreement for the transfer of a part of the Indian territory of Berubari to *Pakistan Sudhangshu v UOI*, (1968) 72 Cal WN 349 (*332-39*).

64 H.M. Seervai has said that the decision in the *Re Berubari case* is wrong and the *Constitution* (Ninth Amendment) Act, 1960 was unnecessary. The learned author says that a law referable to *Article 3* would have been adequate to implement the agreement. See H.M. Seervai, *Constitutional Law of India*, 4th Edn, vol 1, p 309.

65 *Ramkishore v UOI*, AIR 1966 SC 644 [otherwise known as the second *Berubari case*].

66 *Maganbhai v UOI*, AIR 1969 SC 783 (*798*, para 44; *301*, para 59).

67 Re *Berubari Union* (1960) 3 SCR 250 : AIR 1960 SC 845 . [In pursuance of this decision, the *Constitution* (Ninth Amendment) Act, 1960, was passed to implement the Nehru-Noon Agreement for the transfer of a part of the Indian territory of Berubari to Pakistan *Sudhangshu v UOI*, (1968) 72 C.W.N. 349 (*332-39*).

68 *Ramkishore v UOI*, AIR 1966 SC 644 [otherwise known as the second *Berubari case*].

69 *Maganbhai v UOI*, AIR 1969 SC 783 (*798*, para 44; *301*, para 59).

70 *UOI v Sukumar*, AIR 1990 SC 1692 (CB).

71 *Ramkishore v UOI*, AIR 1966 SC 644 (*648*).

72 *State of Punjab v Balbir*, AIR 1977 SC 629 (paras 13-14) : (1976) 3 SCC 242 **followed and relied on** *Dhayanand v UOI,* (1996) 7 SCC 47 : AIR 1996 SC 2877 .

73 *Sher Singh v Financial Commissioner, Planning,* AIR 1987 SC 1307 : (1987) 2 SCC 439 ; *Commissioner of Commercial Taxes, Ranchi v Swarn Rekha Cokes and Coals Pvt Ltd,* (2004) 6 SCC 689 .

74 *State of Uttaranchal v Sidharth Srivastava,* AIR 2003 SC 4062 : (2003) 9 SCC 336 .

75 *State of HP v UOI,* (2011) 13 SCC 344 : (2011) 11 Scale 144 .

76 *State of Orissa v State of AP,* (2010) 5 SCC 674 : (2010) 5 Scale 14 .

77 As to the texts of these Acts, see Author's *Acts, Rules & Orders under the Constitution of India*.

End of Document

[Art 4] Laws made under Articles 2 and 3 to provide for the amendment of the First and the Fourth Schedules and supplemental, incidental and consequential matters.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART I THE UNION AND ITS TERRITORY

[Art 4] Laws made under Articles 2 and 3 to provide for the amendment of the First and the Fourth Schedules and supplemental, incidental and consequential matters.-

(1) Any law referred to in *Article 2* or *Article 3* shall contain such provisions for the amendment of the First Schedule and the Fourth Schedule as may be necessary to give effect to the provisions of the law and may also contain such supplemental, incidental and consequential provisions (including provisions as to representation in Parliament and in the Legislature or Legislatures of the State or States affected by such law) as Parliament may deem necessary.

(2) No such law as aforesaid shall be deemed to be an amendment of this *Constitution* for the purposes of *Article 368*.

[Art 4.1] OTHER CONSTITUTIONS

Government of India Act, 1935. Section 290(2) provided –

> :(2) An Order made under this section may contain such provisions for varying the representation in the Federal Legislature of any Governor's Province the boundaries of which are altered by the Order and for varying the composition of any such Province, such provisions with respect to apportionments and adjustments of and in respect of assets and liabilities, and such other supplemental, incidental and consequential provisions as His Majesty may deem necessary or proper:
>
> *Provided* that no such Order shall vary the membership of either Chamber of the Federal Legislature.

The corresponding provision in the Government of India Act, 1919, was section 52A.[78]

[Art 4.2] INDIA

[Art 4.2.1] Scope of Article 4

This Article gives the Union Parliament the power to admit new States or alter boundaries, etc. and to make all consequential changes in the *Constitution*, including provisions as to representation of such States in

Parliament, and in the State Legislatures, without going through the special provisions for amendment provided in *Article 368*. In other words, an ordinary majority of Parliament in usual course of legislation (subject to the Proviso of *Article 3*) will suffice for the passing of a Bill brought under *Articles 2-3*. Thus, by a change in the First Schedule a new State may be included therein, incorporating the State into the Union. On the other hand, the representation of the State will be fixed by a similar change in the Fourth Schedule Cl. (2) expressly lays down that an Act of Parliament coming within the scope of the present Article will not be deemed to be "an amendment of the *Constitution*".

The utility of this provision was illustrated by the passage of the Andhra State Bill, 1953, as an ordinary Bill, though it affected the representation of the existing State of Madras in Parliament, and provided for the composition of its Legislature, and the jurisdiction of its High Court.

[Art 4.3] CLAUSE (1)

[Art 4.3.1] *"Supplemental, incidental and consequential provisions"*

1. This expression is wide enough to include provisions relating to the setting up of the legislative, executive and judicial organs of the State, formed under *Articles 2-3*, essential to the effective administration of that State under the *Constitution* expenditure and distribution of revenue, apportionment of assets and liabilities, provisions as to services, application and adaptation of laws, transfer of proceedings and other related matters.[79] These may not necessarily be consequential to the amendment of the First or the Fourth Schedule. Of course, the power to make such supplemental provisions is not to override the constitutional scheme and would not go to the length of including a power to *abolish* any of the organs of the State altogether.[79]

2. The words "as may be necessary to give effect to the provisions of the law" also make it clear that the supplemental and incidental provisions will cease to have effect when the purpose of the law referred to in *Article 4* is *completed*, *e.g.*, when the re-organisation of the State or States is completed.[80] Accordingly, the directions issued by the Central Government under section 84 of the Punjab Reorganisation Act, 1966, which divested the State of its power to deal with the Services, would cease to have effect after the reorganisation of the services was completed.

Articles 3 and *4* deal with a special situation and so long as provision of law of Parliament can be considered as supplemental, incidental or consequential to the formation of a new State, it would be enforceable even though it amounts to an amendment of certain provisions of the *Constitution*. When on re-organisation of a State, some judges of the existing High Court are allotted to the new High Court, such allotment does not amount to transfer. Hence, such Judges are not allowed compensatory allowance under *Article 222*(2).[81] The Supreme Court held that "allotment" pursuant to State Re-organisation is not a "transfer".

When a new area is created or acquired, its administration cannot be left in the air. Hence, Parliament is given power, by the present Article, to make all incidental provisions to set up the necessary machinery for the administration of the new area or areas, while legislating for the formation of the new area or areas.[82]

States Reorganisation Act, is a Law under *Article 3 of the Constitution* and *Article 4* provides that the law referred to in *Article 3* may contain "such supplementary, incidental and consequential provisions as Parliament may deem necessary". These powers continue to exist and *States Reorganisation Act* being a permanent piece of legislation, it could be exercised from time to time as occasion arises.[83]

Article 4 provides that a law under *Articles 2* and *3* shall contain the necessary provisions for the amendment of Schedule I and Schedule IV and such supplemental, incidental and consequential provisions a Parliament may consider necessary. And *Article 4*(2) provides that a law referred to in *Articles 2*, *3* and *4*(1) is not to be deemed to be an amendment of the *Constitution* for the purpose of *Article 368*. The power under *Articles 2*, *3*, *4* Articles 169 and 240 is given to Parliament to amend certain parts of the *Constitution*, but in each case it is laid down that no such law should be deemed to be amendment for the purpose of *Article 368*. These amendments can be effected by a bare majority such as that required for passing of any ordinary law.[84] In all, till date Parliament

has passed twenty-three Acts under *Articles 3* and *4* since 1950 to effect changes in the areas, boundaries of names of States. (Report of Sarkaria Commission p 73).

The constitutional validity of a law made under *Articles 3* and *4* cannot be questioned on the ground of legislative competence with reference to the list under Schedule VII. The new State owes its very existence to the law made by the Parliament. The State cannot claim to have legislative power over waters which are subject of inter-State agreement which is continued by a Parliamentary enactment, namely, "The States Re-organisation Act 1956" which is enacted under Articles. 3 and 4. The power of the Parliament to make law under *Article 3* and *4* is plenary and covers all legislative subjects as are necessary for effectuating a proper re-organisation of the States.[85]

Under the power conferred by this clause, Parliament may, in the law effecting the reorganisation of States, provide, *inter alia*, for –

(i) The integration of the public services of the units which are reorganised, overriding the laws of the erstwhile units.[86]

(ii) The continuance of the existing laws of the different units, until altered by the new State, even though the result may be discriminatory, in the reorganised State.[87]

(iii) The adaptation, with modifications, if any, in the existing laws of the units.[88]

(iv) The alteration of the jurisdiction of the Courts, including a High Court.[89] Under the Articles, there is ample power to clothe Parliament to invest such High Court with necessary "jurisdiction and powers". Investment of powers in High Court set up in a new or re-organised state; the source of power is *Article 4*, which is an independent power not referable to List I Entry 78.[90] It has been held by the Court that Entry 78 of List I is referable to *Articles 2*, *3* and *4* of the *Constitution* and there is ample power under *Article 4* to clothe Parliament to invest High Court with necessary powers and the *Constitution* has conferred jurisdiction on High Courts, for instance, under *Articles 226*, *227*. Apart from the same, various enactments both Central and State, confer certain jurisdiction on the High Court. Hence, constituting and organising a High Court will be sufficient when power is exercised under *Article 4*.[91]

(v) The alteration in the size of its Legislature notwithstanding the minimum prescribed by *Article 170*.[92]

[Art 4.4] CLAUSE (2)

[Art 4.4.1] Process of amendment not required

This clause lays down that a law for the formation of a new State or for the reorganisation of existing States (under *Article 2* or *3*) shall not be deemed to be an amendment of the *Constitution* under *Article 368*. In the result, such law may be passed by Parliament as an ordinary Bill, without going through the special procedure prescribed by *Article 368*, even though it may effect amendments of the First and Fourth Schedules of the *Constitution* and contain other supplemental, incidental and consequential provisions.[93]

Thus, the State of Hyderabad was altogether omitted from Schedule I by the *States Reorganisation Act, 1956*.[93]

Article 4 confers powers of widest amplitude to make laws which become necessary as a result of the redistribution of States or areas and may also contain such supplemental, incidental and consequential provision including as to representation in Parliament and in the legislature or legislatures of the State or States affected by such as Parliament may deem necessary. The power vested by this article in Parliament is not controlled by a legislative list and is in the nature of constituent power.[94]

For the purpose of *Article 4*, the expression "amend" has a narrow meaning and is used to confer a narrow power, *i.e.,* a power merely to effect changes within prescribed limits.[95]

The effect of *Article 4* is that the laws relatable to *Article 2* or *Article 3* are not to be treated as consequential amendments for the purpose of *Article 368*. This means that if legislation is competent under *Article 3*, it would be unnecessary to invoke *Article 368*. On the other hand, it is equally clear that if legislation in respect of the relevant topic is not competent under *Article 3*, *Article 368* would inevitably apply.[96]

---

78 See Author's *Constitutional Documents*.

79 *Mangal Singh v UOI*, AIR 1967 SC 944 (*945*) : (1967) 2 SCR 109 ; *State of Maharashtra v Narayan*, AIR 1982 SC 1198 (para 3).

80 *Swaran Lata v UOI*, (1979) 3 SCC 165 (para 37-40). **See also** *Firm Bansidhar Premsukhdas v State of Rajasthan,* AIR 1967 SC 40 : 1966 (Supp) SCR 81.

81 *V.B. Raju v State of Gujarat,* AIR 1980 SC 2075 : (1981) 1 SCC 1 .

82 *Srikishan v State*, AIR 1957 AP 734 (*738*).

83 *State of Maharashtra v Narayan Shamrao Puranik,* AIR 1982 SC 1198 : (1982) 2 SCC 440 .

84 *Shankari Prasad Singh Deo v UOI,* AIR 1951 SC 458 : 1952 SCR 89 .

85 *Mullaperiyar Environment Protection Forum v UOI,* AIR 2006 SC 1428 : (2006) 3 SCC 643 .

86 *Ramappa v Govt. of A.P.*, (1964) 1 SCR 671 (*675*); *Patel v State of Gujarat*, AIR 1965 Guj 23 (*60*).

87 *State of MP v Bhopal Industries*, (1964) 6 SCR 846 (*852*).

88 *Sriram v Madhusudan*, AIR 1968 Bom 219 (*222*).

89 *Madappa v Apparao*, AIR 1960 Mys. 310 (*312*).

90 *Jamshed N. Guzdar v State of Maharashtra,* (2005) 2 SCC 591 .

91 **See also** *Abdul Taiyab Abbasbhai Malik v UOI,* AIR 1977 MP 116 (FB).

92 *Mangal Singh v UOI*, AIR 1967 SC 944 (*945*) : (1967) 2 SCR 109 ; *State of Maharashtra v Narayan*, AIR 1982 SC 1198 (para 3).

93 *Srikishan v State*, AIR 1957 AP 734 (*738*).

94 *Nalluri Venketaraju v State of AP,* AIR 1961 AP 50 (*supra*).

95 *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 .

96 *Re Reference by President of India under Article 143(1) –Re Berubari Union,* AIR 1960 SC 845 : (1960) 3 SCR 250 (*supra*).

[Art 5] Citizenship at the commencement of the Constitution.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART II CITIZENSHIP

[Art 5] Citizenship at the commencement of the Constitution.-

At the commencement of this *Constitution*, every person who has his domicile in the territory of India and –

(a) who was born in the territory of India; or

(b) either of whose parents was born in the territory of India; or

(c) who has been ordinarily resident in territory of India for not less than five years immediately preceding such commencement,

shall be a citizen of India.

[Art 5.1] OTHER CONSTITUTIONS

I. *Nepal*. *Article 7 of the Constitution* of Nepal (1962) provided –

"Every person who has his domicile in Nepal and –

(a) who was born in Nepal; or

(b) either of whose parents was born in Nepal; or

(c) who is a woman having any kind of matrimonial relation with a citizen of Nepal in accordance with the laws and customs of Nepal; or

(d) who has already obtained a certificate of citizenship in accordance with the laws of Nepal;

shall be a citizen of Nepal at the commencement of this *Constitution*."

Article 8 of the new *Constitution* of 1990[1] says—

> *Citizenship at the commencement of Constitution* : Following persons, who have their permanent residence in Nepal shall be deemed to be the citizen of Nepal.

[Art 5] Citizenship at the commencement of the Constitution.-

(a) person who is a citizen of Nepal pursuant to the provision of either *Article 7 of the Constitution* of Nepal, 1962 or section 3 of Nepal *Citizenship Act*, 1964;

(b) a person who is a naturalised citizen of Nepal pursuant to the provisions of section 6 of Nepal *Citizenship Act*, 1964.

II. *Bangladesh*. There is no corresponding provision in the *Constitution* of Bangladesh, 1972.[1] Citizenship is entirely left to be determined by legislation (*Article 6*).

III. *Belgium. Article 8* of Belgium *Constitution* says—(1) The title of "Belgian" is acquired, preserved and lost according to rules determined by civil law.

(2) The *Constitution* and other laws relative to political rights determine which are, apart from this "title", the necessary condition for the exercise of these rights.

IV. *Brazil. Article 12 of Constitution* of Brazil says – (o) The following are Brazilian:

(i) *by birth* (a) those born in Federal Republic of Brazil, even if of foreign parents provided that they are in the service of their country; (b) those born abroad of a Brazilian father or a Brazilian mother provided that either of them is serving the Federative Republic of Brazil; (c) those born abroad, of a Brazilian father or Brazilian mother provided that they are registered with a proper Brazilian authority, or those who come to live in Brazil before coming of age and having come of age opt for Brazilian nationality at any time.

(ii) *Naturalised*: (a) those who, as set forth by law, acquire Brazilian nationality and for persons obtaining from Portuguese speaking countries, the only requirement being residence for one uninterrupted year and moral integrity; (b) foreigners of thirty years uninterruptedly and without any criminal conviction, provided that they apply for Brazilian nationality.

I. The rights inherent to born Brazilian shall be attributed to Portuguese citizen permanently residing in Brazil, if Brazilians are afforded reciprocal treatment, except in the event set forth in the *Constitution*.

II. The law may not establish any distinction between born and naturalised Brazilian, except in the event set forth in the *Constitution*.

III. Only "born" citizen may hold office of (a) President and Vice-President of the Republic; (b) President of House of Representatives; (c) President of Federal Senate; (d) Justice of the Federal Supreme Court; (e) diplomatic career; (f) officer of the Armed Forces.

IV. Loss of nationality shall be declared for a Brazilian who (a) has his naturalisation cancelled by court decision by virtue of an activity detrimental to the national interest; (b) acquire another nationality except in the case of (i) recognition of the original nationality by foreign legislation; (ii) imposition of naturalisation by foreign rules, to the Brazilian resident in foreign State, as a condition for him to stay in its territory or for the exercise of civil right.

V. *Article 26 of Constitution of Indonesia* says – 26(1). Citizens are native Indonesian persons or persons of other nations who have acquired a legal status as citizens; 26(2) Condition to acquire and other matters on citizenship shall be determined by law.

[Art 5] Citizenship at the commencement of the Constitution.-

VI. According to *Article 10 of Japanese Constitution* – The conditions necessary for being a "Japanese" national shall be determined by law.

VII. *Article 27 of Kuwait Constitution* only says – "Kuwaiti Nationality is defined by law. No deprivation or withdrawal of nationality may be effected except within the limits prescribed by law".

VIII. *Constitution of Netherlands* – *Article 2*(1) says – (1) Dutch Nationality shall be regulated by Parliament.

IX. *Article 6*(1) of Russian *Constitution* says that citizenship of the Russian Federation shall be acquired and terminated in accordance with the Federal Law and shall be one and equal irrespective of the grounds on which it has been acquired.

X. *Pt X – Articles 120, 12, 122, 123 and 127 of Singapore Constitution* deal with acquiring status of citizenship of Singapore. The status of citizen is acquired by birth (*Article 121*); by descent (*Article 122*); by registration (*Article 123*); and citizenship by naturalisation (*Article 127*).

XI. *Article 11 (Chapter I) of Spanish Constitution* says – 11 (1) Spanish nationality is acquired, preserved and lost in accordance with provision established by law. (2) No one of Spanish birth may be deprived of his nationality. (3) The State may make dual nationality treaties with Ibero-American countries and with those which may have had, or have, a special bond with Spain. In these countries, even when they do not grant their own citizen a reciprocal rights, Spaniards may become naturalised without losing their nationality of origin.

British citizenship is the only type of citizenship under British Nationality Act 1981 which confers a legal right to live in and to come and go into and from United Kingdom by right.

British citizenship is acquired, as a general rule, in the case of persons born before 1 January 1983, if they were patrials, that is, citizens of United Kingdom and Colonies who under the Immigration Act 1971 were entitled to enter UK by right.

Patrials were (a) citizens of United Kingdom and Colonies and (b) Commonwealth citizens who possessed one of the special links with United Kingdom defined in the Immigration Act. That status largely corresponds to British citizenship as defined in 1981 Act in the case of person born after 1 January 1983.

In the case of person born after commencement of the Act, British citizenship is acquired by (1) *Birth* in the United Kingdom provided that one parent was at the time of birth a British citizen or was settled in the United Kingdom. A person who does not acquire citizenship by birth in the United Kingdom may however be subsequently entitled to citizenship, for example, if one of his parents later acquires citizenship or he spends the first ten years of his life in the United Kingdom. (2) *Descent* – When birth occurs abroad, but one parent is a British citizen other than by descent. As per the new rule, the acquisition of citizenship by descent is restrictive since it allows acquisition by descent for one generation only. (3) Acquisition of citizenship by *Naturalisation*.[2]

In *American Constitution*, section (1) of Fourteenth Amendment says: "All persons born or naturalised in the United States are citizens of United States and of the State where they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States nor shall any State deprive any person of life, liberty or property without process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

Section 3, chapter 1 of the *Constitution* of the Republic of South Africa, 1996 states the following:

[Art 5] Citizenship at the commencement of the Constitution.-

(1) There is a common South African citizenship.

(2) All citizens are—

(a) equally entitled to the rights, privileges and benefits of citizenship; and

(b) equally subject to the duties and responsibilities of citizenship.

(3) National legislation must provide for the acquisition, loss and restoration of citizenship.

[Art 5.2] INDIA [Art 5.2.1] Commencement

Article 5-9 came into force on 26 November 1949[3] [see *Article 394 post*].

[Art 5.2.2] Applicability to Jammu & Kashmir

This Part shall be deemed to have been applicable in relation to the State of Jammu and Kashmir as from the 26th of January, 1950. [See, p 508, *post*].

[Art 5.2.3] Scope of Articles 5-8

These articles do not prescribe, permanently, the Indian law of citizenship. They only give tentative provisions for acquisition of Indian citizenship at the commencement of the *Constitution*,[4] *Articles 5* to 8 were intended to deal with citizenship at the commencement of *Constitution*[5] and for the convenience of the initial elections and for the exercise of civic rights till Parliament could legislates on the subject [*Article 11*]. The power of Parliament to legislate as regards citizenship is plenary, notwithstanding the constitutional provisions in *Articles 5* to 8. Hence, any person who is a citizen of India at the commencement of the *Constitution* according to any of the provisions of *Articles 5* -8, may lose his citizenship by reason of subsequent Parliamentary legislation. But so long as Parliament does not modify the provisions of the present Articles, one who is a citizen at the commencement of the *Constitution* shall continue to be a citizen of India [*Article 10*].

Article 5 is not exhaustive of the conditions in which the citizenship of India could be claimed at the commencement of the *Constitution*; persons who do not satisfy the requirements of *Article 5* could still be citizens if conditions mentioned either clause (a) or (b) of *Article 6* are satisfied. *Article 7* engrafts an exception both upon *Articles 5* and *6*. A person who satisfies the conditions of *Articles 5* and *6* may still not to be deemed to be a citizen of India, if he had migrated to Pakistan after 1 March 1947, unless he after migrating has returned to India under a permit for resettlement.[6]

It will be noted under *Article 11*, *post*, that Parliament, while enacting the *Citizenship Act, 1955*, has *not* modified the provisions of *Articles 5-8*, relating to the acquisition of citizenship at the commencement of the *Constitution*. The *Citizenship Act, 1955*, deals with the law as to acquisition and termination of citizenship *subsequent* to the commencement of the *Constitution*.[7]

[Art 5.2.4] Citizenship

Citizens are members of the political community to which they belong. They are the people who compose the State and who in their associated capacity have established or subjected themselves to the dominion of a Government for the promotion of their general welfare and for the protection of their individual as well as their collective rights.[8]

“Citizen” is a term usually employed under republican form of government as the equivalent of “subject” in monarchies of feudal origin. Though it means properly the inhabitant of a city, it is now used of person possessing civil rights in any city or town or village.[9]

[Art 5] Citizenship at the commencement of the Constitution.-

The term “citizen” as understood in our law is precisely analogous to the term “subject” in the common law and the change of phrases has entirely resulted from the change of government. The sovereignty has been changed from one man to a collective body of the people and he who before was a subject of the King is now a citizen of the State.

There cannot be a nation without people. The very idea of a political community such as a nation is, implies an association of persons for the promotion of their general welfare. Each one of the persons associated becomes a member of the nation formed by the association. He owes its allegiance and is entitled to its protection. Allegiance and protection are, in this connection, reciprocal obligations. The one is a compensation for the other; allegiance for protection and protection for allegiance. For convenience, it has been found necessary to give a name to this membership. The object is to designate by title the person and the relation he bears to the nation. For the purpose, the words “subject”, “inhabitant” and “citizen” have been used, and the choice between them is sometimes made to depend upon the form of government. Citizen is now more commonly employed, however, as it has been considered better suited to the description of one living under a republican government, it was adopted by nearly all the states of the United States of America upon their separation from Great Britain and was adopted in the Articles of Confederation and in the *Constitution* of United States. When used in this sense, it is understood as conveying the idea of membership of a nation and nothing more.[10]

A man’s citizenship is not a fact which occurs at a particular moment, but is a continuing legal relationship between the sovereign State on the one hand and the citizen on the other. The fundamental basis of a man’s citizenship is the membership of an independent political community. The legal relationship involves rights and corresponding duties upon both – on the part of the citizen no less on the part of the State.[11]

In common parlance, all people are citizens.[12] A citizen is one who owes allegiance to the State and he has a reciprocal right to get protection from State.[13] Citizens with federal *constitution* mean those who are entitled, upon terms prescribed by institutions of the State, all the rights and privileges conferred by those institutions upon the highest class of society and to be “citizen” it is necessary that one should be entitled to enjoyment of these privileges and immunities upon some terms upon which they are conferred on their citizens.

A citizen is defined by WEBSTER as “a person native or naturalised, who has the privilege of voting for public offices and is qualified to fill public offices in the gift to the people”.

BOUVIER gives the definition of the word “citizen” in American Law as one who under the *Constitution* and the Law of United States has a right to vote.

ABBOTT defines the word “citizen” as a person who owes allegiance to and may claim reciprocal protection from a Government.

“Citizen” can only be a natural person. The fact that Corporations may be nationals of the country for the purposes of international law, will not make them citizens of the country for the purpose of municipal law or the *Constitution*.[14] It was held that “Company” registered under *Companies Act* is not a citizen.[15] What is an Ideal Citizenship, Justice E.S. VENKATARAMIAH in his book on *Citizenship—Rights And Duties*[16] has stated thus “Who is an ideal citizen? Every person who can be called a citizen under Pt II of the *Constitution of India* is not necessarily an ideal citizen. There are three basic postulates according to late Shri V.S. SRINIVASA SASTRY which make an ideal citizen: (i) a sense of public spirit, meaning by that the desire to sink his own personal ends in the larger ends of his community; the anxiety to subordinate himself whenever necessary for the benefit of the society of which he is a member, (ii) that the citizen should have what we regard as practical common sense, a shrewd eye on the affairs of the world, and (iii) that the citizen must be able to understand and appreciate what lies at the bottom of the welfare of society that is what are the different elements that go to make up that welfare. A training of a citizen is not complete unless it includes a preparation not only to understand but to value and promote the constituents of social welfare.

The population of a State is divided into two classes – citizens and aliens. While citizens enjoy full civil and

political rights, aliens do not enjoy all of them. On the other hand, though citizens and friendly aliens residing within the territory of a State are equally entitled to the protection of the State – while the relation of a citizen with the State is personal and permanent, the relation between a State and its resident aliens is territorial and temporary.[17] An alien owes temporary allegiance[18] to the State of his residence and is entitled to its protection during the period of his residence in that State.

Citizenship is a status of being a citizen, a relation of allegiance and protection between individuals and the Government. As distinguished from *"alienage"* the right of citizenship is a national right or condition. Sex is not involved in citizenship. A woman is a citizen. Age of majority is not involved. A minor is a citizen.[19]

Whether a person is a citizen or not of a State, is to be determined by the municipal laws of the State.[20]

[Art 5.2.5] Citizenship and Nationality

While the term "citizenship" refers to the relationship of an individual with a State from the internal aspect, "nationality" refers to similar relationship from the international aspect.

The term "citizenship" and "nationality" are often used as synonymous or interchangeable, but sometimes a distinction has been drawn.[21] In that case, CHIEF JUSTICE SINHA explained the distinction between the two concepts of "nationality" and "citizenship" as follows:

> Nationality has reference to the jural relationship which may arise for consideration under International Law. On the other hand, "citizenship" has reference to the jural relationship under municipal law. In other words, nationality determines the civil right of a person, natural or artificial, particularly with reference to international law, whereas citizenship is intimately connected with civil rights under municipal law. Hence, all citizens are nationals of a particular State, but all nationals may not be citizens of the State. In other words, citizens are those persons who have full political rights as distinguished from nationals who may not enjoy full political rights and are still domiciled in that country.

The term "national" is frequently used as synonymous with "citizen". However, the former term has a broader significance than the latter, being applicable to all persons owing permanent allegiance to a State; while the latter usually signifies the possession of special rights, such as the right of suffrage, not enjoyed by all nationals.[22]

It means, distinctive national qualities; membership of a nation; race forming part of one or more political nations.

Nationality is the condition or status of belonging to a nation or state, either by birth or naturalization.

Membership of a particular nation or the fact or state of belonging to a nation.

A legal bond between a State and an individual, corporation, ship or aircraft whereby such objects of international law are allocated to subjects of international law.[23]

Nationality is the status or quality of belonging to some particular nation or State, from the international standpoint. The concept of nationality is related to the territory of a State, irrespective of the rights enjoyed by a person under the municipal law of that State. The basis of a man's nationality is his membership of an independent political community,[24] but every such community or State has the prerogative to "determine for itself, and according to its own *Constitution* and laws what classes of persons shall be entitled to its citizenship".[25] Though a State may also confer nationality upon any person, other States may not recognise it,

unless it conforms to the general principles of International law, *e.g.*, that there must be a genuine connection between the State and such person.[26] It follows that all nationals of a State are not its citizens though all citizens of a State must be its nationals.[27]

> Nationality of an individual is his quality of being a subject of a certain State and therefore a citizen. In general, in matters not, as far as Law of Nations are concerned that Municipal Law may distinguish between different kinds of subjects – for instance those who enjoy full political rights, and are on that account named citizens and those who are less favoured, and are on that account not named citizens.[28]

Nationality represents a main political status by virtue of which he owes allegiance to some particular country; domicile indicates his civil status and it provides the law by which his personal rights and obligations are determined. Nationality depends, apart from naturalization, on the place of birth or on parentage; domicile is constituted by residence in a particular country "*animo manendi*". It follows that a man may be a national of one country, but domiciled in another."[29]

It is not possible to be a citizen of one country and national of another. All citizens are nationals of a particular State, but all national may not be citizens of the State. It would follow from that an Indian citizen cannot be a national of another State.[30]

Nationality determines the civil rights of a person, natural or artificial particularly with reference to international law, whereas citizenship is intimately connected with civil rights under municipal law. Hence all citizens are nationals of a particular state, but all nationals may not be citizens of the State. Citizens are those persons who have full political rights as distinguished from nationals who may not enjoy full political rights and are still domiciled in that country. Citizenship and nationality are not similar concepts, though the words are sometimes used interchangeably owing to the fact that most citizens are also nationals and *vice versa*. But strictly speaking citizenship is a term of municipal law and denotes the possession within the particular state of full civil and political rights, subject to special disqualification such as minority and sex. The conditions on which citizenship is acquired are regulated by municipal law."[31]

The word "nationality" has two distinct meanings—a political one by which is indicated the membership of a State and an ethnic one denoting membership of a nation. Citizenship also means membership of a State, but in a municipal aspect.[32] Nationality is that quality or character which arises from the fact of a person belonging to a nation or State. It determines the political status of the individual, with reference to allegiance. It is the most frequent and sometimes the only link between an individual and a State ensuring that effect be given to that individual's rights and obligation at international law. It is the status of membership of the collectivity of the individuals whose acts, decisions and policies are vouchsafed through the legal concept of the State representing those individuals. Allegiance and protection are the correlative aspects of nationality.[33]

The concept of citizenship has fundamental links with the development of political thought throughout the centuries.The present day word "citizen" itself is derived from the French root word "citoyen". As at present understood, it has two meanings. According to the first meaning, it is linked with a particular city, for example, as when one speaks of "citizen of Paris". In the second meaning, it carries connection with the State or the nation and indicates a certain type of relationship with a particular nation. It is for this reason that the word "nationality" is often used in other countries to denote the political and legal link that exists between a particular State and those who owe permanent allegiance to it. However, the one disadvantage of the expression "nationality" is that it has a negative and disjunctive quality about itself. It indicates a sociological affinity. It emphasizes the demarcating barrier between one nation and another and makes subordinate the philosophical link between a State and its own nationals. The modern nation States owe their origin to the idea of nationality like, the French, the Germans or the Dutch. The idea that a person who is not a member of a nation can also be a citizen is overlooked. In contrast, the word "citizen" makes it possible to hind at the fact that within a geographical territory organized as a political entity, there could be a number of persons between whom and the political organisation there is affinity. Citizenship in this case may be acquired by birth or by naturalization.

[Art 5] Citizenship at the commencement of the Constitution.-

The present day United States of America is an ideal illustration to explain this concept. People who originally belonged to different nationalities have now become citizens of the United States of America. Citizenship in this case is an affinity that makes them care for the political organisation and also makes that organisation care for them. It is thus a cementing tie, positive in its content and constructive in its approach. The fact that citizens may, if necessary, take up arms for the State to which they belong and may be called upon to do so is incidental to this relationship. What is of primary value is that in their daily life and conduct, they owe obligations to the State.[34]

The "nationals" of a State comprise all persons who are *politically* members of that State and owe *allegiance* to that State but all of them may not possess the full *civic* privileges or political rights which are conferred upon "citizens".[35] It is also possible for a person to lose his citizenship of a State without losing his nationality.[36]

[Art 5.2.5.1] Incidence of nationality.

Again, nationality may or may not be accompanied by residence within the State. The status and privileges of nationality continue even when the national is outside the territorial limits of the State. Nationality may be acquired by (a) birth, (b) naturalisation, (c) marriage, (d) repatriation, (e) cession or conquest of territory.

The incidence of nationality in International law may be summed up as follows –

(i) Every State has within certain limits a right to protect the persons of its nationals while they are outside its limits;[37] and every State has a corresponding duty to protect the nationals of other States within its territory.

(ii) Every State may intervene for the protection of the property of its nationals abroad.

(iii) Every State is entitled to allegiance and obedience to certain of its laws, from its nationals even while they are residing within the jurisdiction of another State.[38] (A breach of the duty of allegiance constitutes treason in municipal law).[39]

(iv) Every State is bound to receive back its nationals if a foreign State desires to deport them, and cannot claim a right to deport its own nationals to a foreign State.[40]

(v) The State of which a person is a national may become "responsible" to another State, in certain circumstances, for the wrongful acts committed by such persons.

The concept of citizenship is of little importance in International law. For the application of a rule of International law to a person it is necessary to determine, in the first instance, what is his nationality.

[Art 5.2.5.2] U.S.A.

But though nationality is of importance in international law, the status of nationality is determined by the municipal law of each State.[41] Thus, the United States Nationality Act, 1940, expressly, recognises a class of persons who are "nationals, but not citizens" of the *United States*, meaning persons who, though not citizens, "owe permanent allegiance" to the United States, while the *Constitution* speaks only of "citizens". Similarly, the Immigration and Naturalisation Act, 1952, designates persons born in American Samoa and certain other territories, which have not yet been admitted into the Union, as American nationals entitled to exercise the privilege of voting and holding office, and yet they are not called citizens of the United States.

[Art 5.2.5.3] U.K.

In the *United Kingdom*, similarly, the residents of British Protectorates and corporations formed in any territory for which the British Crown is responsible, are British "nationals" but not British citizens under the British Nationality Act, 1948.[42] Under the same Act, a citizen of a Commonwealth country enjoys certain privileges in the U.K., though they are not British nationals.

[Art 5.2.5.4] India.

In *India*, neither the *Constitution* nor the *Citizenship Act, 1955*, uses the term "nationality" and both the

provisions relate to the citizenship of India. There is no doubt that every person who thus becomes an Indian citizen would also be regarded as an Indian national. Nevertheless, International law may recognise other persons as Indian nationals though the law of India may not confer citizenship of India upon them. Thus, in International law, subjugation is one of the modes of acquiring nationality. Hence, in the case of annexation, as in the case of Dadra and Nagar Haveli, the residents of those territories, who were Portuguese nationals, became Indian nationals forthwith but they did not acquire Indian citizenship *ipso facto*. They could be Indian citizens only if the Government of India so declared, by an Order issued under *section 7 of the citizenship Act*.

In Constitutional law, we are more concerned with citizenship inasmuch as a citizen possesses certain special rights and obligations in his State, which aliens (i.e. non-citizens) cannot have, *e.g*., the rights under *Article 19*.[43]

[Art 5.2.6] "*Every person*"

1. The expression "every person" includes –

(a) a prisoner;[44]

(b) a member of the armed forces (but subject to *Article 33*).[45]

2. Though the word "person" ordinarily includes both natural and artificial persons,[45] the question whether a corporation can acquire citizenship under *Article 5* of *our Constitution* has raised a controversy.

It is now settled that the expression "citizen" includes only natural persons and not juristic persons like corporations. The definition of the word "person" in section 2(1)(f) of *Citizenship Act* does not include any company or Association or body of individuals whether incorporated or not. Hence all subsequent provisions of the Act relating to citizenship by birth (section 3) citizenship by descent (section 4), citizenship by registration (section 5); citizenship by naturalisation (section 6) and citizenship by incorporation by territory (section 7) have nothing to do with juristic person.

Under our *Constitution*, all citizens are "persons" but all "persons" are not "citizens."

Pt II of the *Constitution* and the provisions of *Citizenship Act* are completely exhaustive of the citizens of this country and these deal only with natural persons. The fact that corporation may be nationals of the country for the purpose of international law will not make them citizens of this country for the purpose of Municipal laws or for the *Constitution*.

"Nationality" has reference to the jural relationship, which may arise for consideration under "International Law". On the other hand "citizenship" has reference to jural relationship under Municipal Law. In other words, nationality determines civil rights of a person, natural or artificial, particularly with reference to international law, whereas citizenship is intimately connected with civic rights under Municipal Law. Hence all citizens are nationals of a particular state, but all nationals are not citizens of the State. In other words "citizens" are those persons who have full political rights as distinguished from nationals who may not enjoy full political rights and are still domiciled in that country.[46]

In that case, the Supreme Court further held: "It is clear on a consideration of the provisions of Pt III of the *Constitution* that the makers of the *Constitution* deliberately and advisedly made a clear distinction between fundamental rights available to "any person" and those guaranteed to all "citizens". In other words, all "citizens" are "persons", but all persons are not citizens." It was further observed: "It is thus absolutely clear that neither the provisions of the *Constitution*, Pt II nor the *Citizenship Act* aforesaid, either confers the right of citizenship on or recognises as citizen any person other than a "natural" person. This appears to be the legal position, on an examination of the relevant provision of the *Constitution* and the *Citizenship Act*." On the question whether a Corporation can acquire citizenship, it was observed: "It seems to us, in view of what we have said already as

to the distinction between citizenship and nationality, that Corporation may have nationality in accordance with the country of their incorporation, but that does not necessarily confer citizenship on them". It was further held that Pt II of the *Constitution* and *Citizenship Act* are completely exhaustive of the citizens of this country and these citizens can only be "natural persons". The fact that Corporations may be nationals of the country for purpose of international law will not make them citizens of this country for the purpose of municipal law or the *Constitution*. Nor do we think that the word "citizen" used in *Article 19 of the Constitution* was used in a different sense from that in which it was used in Pt II or the *Constitution*."[47]

[Art 5.2.7] "*Citizen of India*"

It has been pointed out at the outset, that while in the *United States* there is a dual citizenship (*viz.,* federal and State) with separate "privileges and immunities",[48] and the citizen is sometimes under a conflict of allegiance,– in *India* there shall be a single citizenship, notwithstanding the adopting of a federal policy.[49] This is one of the elements that gives the India Union the strength of a unitary State. Together with this we should notice the freedoms guaranteed by clauses (d) and (e) of *Article 19* (1) which seek to remove artificial State barriers and *Article 301* which guarantees freedom of trade, commerce and intercourse "throughout the territory of India".

The *Constitution*, however, does not define what is citizenship or what is citizenship of India. As stated at the outset, the *Constitution* (*Articles 5-8*) only declares which persons shall be "citizens of India" at the commencement of the *Constitution*, *i.e.* on 26 January 1950. If any question arises as to whether a person was entitled to citizenship of India on that date, the various tests mentioned in these Articles have to be applied. These tests were necessarily complicated by reason of the excessive exodus of persons from India to Pakistan and *vice versa* owing to the riots and killings which attended the Partition of India.

Even the *Citizenship Act, 1955*, which governs the law of citizenship of India since 26 January 1950, does not define the expression "citizen of India", but provides the modes in which Indian citizenship may be acquired, since the commencement of the *Constitution*. [See, further, under *Article 11*, *post*].

[Art 5.2.8] Rights and privileges of Indian citizenship

A citizen of India shall have the following special rights and obligations which aliens shall not have:

(i) Some of the Fundamental Rights belonging to citizens alone – see *Articles 15*; 16; 18(2); 19[50]; 29.

(ii) Right to hold the offices of President [*Article 58*(1)(a)]; Vice-President [*Article 66*(3)(a)]; Judge of the Supreme Court [*Article 124*(3)] or of a High Court [*Article 217*(2)]; Attorney-General [*Article 76*(1)]; Governor of a State [*Article 157*]; Advocate-General [*Article 165*].

(iii) Right of suffrage for election to the House of the People (of the Union) and the Legislative Assembly of every State (*Article 326*); right to become a member of Parliament (*Article 84*) and of the Legislature of a State [*Article 191*(*d*)].

[Art 5.2.9] Constitutional duties of citizens

The *Constitution of India*, while guaranteeing fundamental rights to Indian citizens and other persons, now also lays down the duties of the country's citizens. *Article 51A of the Constitution*, inserted in 1976, enumerates these duties. *Article 51-A of the Constitution* reads thus:

"51-A Fundamental duties.—It shall be the duty of every citizen of India –

(a) to abide by the *Constitution* and respect its ideals and institutions, the National Flag and the National Anthem;

(b) to cherish and follow the noble ideals which inspired our national struggle for freedom;

(c) to uphold and protect the sovereignty, unity and integrity of India;

(d) to defend the country and render national service when called upon to do so;

(e) to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities; to renounce practices derogatory to the dignity of women;

(f) to value and preserve the rich heritage of our composite culture;

(g) to protect and improve the natural environment including forests, lakes, rivers and wildlife, and to have compassion for living creatures;

(h) to develop the scientific temper, humanism and the spirit of inquiry and reform;

(i) to safeguard public property and to abjure violence;

(j) to strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement."

51[(k) who is a parent or guardian to provide opportunities for education to his child or, as the case may be, ward between the age of six and fourteen years.]

The above article refers only to citizens of India unlike some fundamental rights *e.g.,* *Article 14* or *21* which apply to all persons, whether citizens or non-citizens.

There is no specific provision in the *Constitution* as to the sanctions to be applied for the enforcement of these duties. Public opinion is the principal sanction for securing compliance with duties. Unlike *Article 37*, there is no provision as to non-justiciability of fundamental duties. Fundamental duties will provide the inspiration for campaign for maintenance of the values which they reflect. They will nourish an urge to exercise measures that go against the ideals underlying them. They remind future generations of the glorious past of India – it being a specific duty of the citizen "to value and preserve the rich heritage of our composite culture". They do, of course, provide a weapon in the armoury for battles to be fought for women's status. For, it is the duty of every citizen to renounce practices derogatory of the dignity of women. It is not inconceivable that where there are serious ambiguities in a statute, some of these duties may be pressed into service for resolving these ambiguities one way or the other. It is held that *Article 51-A* plays a significant role in determining constitutional validity of a statutory provision or for testing reasonableness of any restriction cast by law or the exercise of fundamental right.[52]

[Art 5.2.10] Alien and "foreigner"

Any person other than a citizen of India is an alien in relation to India.

Aliens are either "friendly aliens" or "enemy aliens". An *alien* enemy is a person who voluntarily resides or carries on business in enemy territory.[53] The term includes not only subjects of a State at war with India but also Indian subjects voluntarily residing in or trading with an enemy country.[54] It (alien enemy) also means a citizen or subject of a country at war with country in which the citizen or subject is living or travelling – also termed as "enemy aliens".[55]

In its natural meaning the term "alien enemy" indicates a subject of a state with which his country is at war; but in considering the enforcement of civil rights, the test is not nationality, but residence or places of business. Hence, if a person in a voluntarily resident in or in carrying on business in an enemy country, then he is an "alien enemy" even though he is a British subject or subject of a neutral State.[56]

[Art 5] Citizenship at the commencement of the Constitution.-

Alien enemies of a country are those foreigners whose country is at war with it. (ABBOT LAW DICTIONARY)

Every person residing in a foreign country, the Government of which is at war with India and carrying on business in that country without a licence in that behalf granted by Central Government shall for the purposes of *section 83 of Code of Civil Procedure* "Code – (Explanation) be deemed to be an alien enemy residing in a foreign country. It means during allegiance to an adverse belligerent State; a person owing allegiance to a country which is at war with India. (*Sec. 83 Code of Civil Procedure, 1908*).

"Alien friend" is a person owing allegiance to a country which is in alliance; or a person owing allegiance to a country which is at place with India. (*Sec. 83 Code of Civil Procedure, 1908*) An "alien enemy" is a alien who is a citizen or subject of a friendly power – also termed "alien amy" or "alien ami".[57]

At common law, an alien was subject to a foreign State (the question who are the nationals of a foreign State is a matter for the law of that State to decide) who was not born with the Queen's allegiance. Birth with the Queen's allegiance meant exclusive birth within the Queen's dominion. A person having no nationality or origin or having lost his nationality or origin without acquiring another nationality was an "alien" at Common Law. But the Common Law with regard to alien was almost entirely superseded by statutory provision like Aliens Restricted Act 1914, with amendment of 1919 and Status of Aliens Act 1914. Under the British Laws, an alien had restricted legal rights of enjoyment for his person, his family and effects. An alien was entitled to acquire, hold and dispose of his real property of every description in the same manner as a British citizen, but for any office or franchise with no right or privilege conferred on him as a British subject.

Under the provisions of *section 3 of the Citizenship Act 1955*, particularly sub-s. (2)(b), a person whose father is an enemy alien and the birth of such a person occurred in a place under the occupation by the enemy at the time of his birth, shall not be a citizen of India by virtue of the above section.

A foreigner once a friendly alien, may become an enemy alien after he enters India, if his country later on enters into war with the country where he may be or even though belonging to a friendly nation, a foreigner may himself indulge in undesirable activities jeopardising the security of the country where he may be or foreigners may come in such numbers or put in such competition as may upset the economic set up of the country.[58]

The certificate of the Central Government is conclusive and binding on the Court as to–

(a) Whether any territory is a part of the territory of India.[59]

(b) Whether a state of war exists as between India and any other State.[60]

[Art 5.2.11] Foreigners Act

The statute law of *India*, instead of using the term "alien" uses the term foreigner. The *Foreigners Act, 1946*, has been amended after independence, to bring it into conformity with the *Constitution*. The definition of "foreigner" in section 2(a) of this Act has been amended in 1957 to mean the same thing as "alien" as explained above, i.e., "a person who is not a *citizen* of India".[61] As a result of this amendment British subjects or citizens of other Commonwealth countries, who were not "foreigners" in India under the law as it stood before the amendment of 1957, just referred to, became "foreigners" under the amended *Foreigners Act*. To mitigate this hardship, the Amendment Act empowered the Central Government to exempt persons from the purview of the Act. By the Foreigners (Exemption) Orders made by the Central Government in exercise of this power, citizens of Commonwealth countries have been exempted from the operation of the *Foreigners Act*, excepting two classes of persons–

[Art 5] Citizenship at the commencement of the Constitution.-

(i) A person who is in India in connection with missionary work;

(ii) A person who or either of whose parents was at any time of Chinese nationality.

Persons who had opted for and had gone to Pakistan in 1947 was a foreigner if he came back on a Pakistani passport. It was held that the defence that the person was born in India, that he owns a house in India and was therefore a citizen of India was found to be not a valid defence, when he migrated to Pakistan and got employed as a Pakistani citizen. In such cases, *Article 7* alone would apply and not *Article 5* or the provisions of *Citizenship Act, 1955* as amended in 1957.[62]

Where a person enters India on a Pakistani passport and overstays, he cannot take a defence that he is not a foreigner.[63] To determine the status of a person whether he is a foreigner or not, (at a time before 19 January 1957 when the Foreigner Act was amended) the definition of foreigner relevant was that in the Act before the amendment.[64]

[Art 5.2.12] Rights and Disabilities of Aliens

Broadly speaking, a person is an alien in a State of which he is not a citizen. But the question whether a person is an alien or not with respect to a State is to be determined by the law of that State.[65]

(A) *England.*

U.K.

At Common Law, an alien was a subject of a foreign State who was not born within the allegiance of the Crown. But now an alien may become a British subject by naturalisation, and a British subject may become an alien by renunciation of British citizenship (see *post*). On the other hand, the concept of a British subject has been widened by the British Nationality Act, 1948. Since this Act, the term “alien” in England means a person other than a citizen of the United Kindom and her Colonies or of any Commonwealth country or of the Republic of Ireland, or a British subject without citizenship or a British protected person.[65] At present, the law is governed by the terms of British Nationality Act, 1981.

Aliens are either *friends* or *enemies*.

I. An *alien enemy* is a person who carries on business or is voluntarily resident in a country whose sovereign is at war with the British Crown or a country occupied by such enemy State.[66]

An alien enemy may be sued in England and if sued, has a right of appeal, but cannot sue unless he be within the realm under licence from the Crown.[67] Contracts made with an alien enemy are void,[68] while executory contracts made in times of peace with a person who afterwards becomes an alien enemy, are suspended during hostilities.[69] After the restoration of peace, however, action lies by an alien who was an enemy during war, in respect of a contract made before the commencement of the war.[70] The Crown may claim any property of an enemy, found in England, under the prerogative; and any property captured at sea or abroad as prize or booty.[71] An alien enemy has no right to *habeas corpus*, and he can be arrested and imprisoned under the Royal prerogative,[72] or deported[73] and “Act of State” is an absolute plea available against him.[74] “Enemy character” is largely of importance in relation to corporation and in relation to offences under the Trading with Enemy Acts.

An enemy alien cannot bring an action in the British country, nor if he was plaintiff in an action begun before the war, can he appeal during the war, for the enemy cannot be given the advantage of enforcing his rights by the assistance of the sovereign with whom he is at war. On the other hand, an enemy alien can be sued during the war as that permits British subject or friendly aliens to enforce their rights with the assistance of sovereign against the enemy, and if he is sued, justice demands that he be allowed to appear and defend. Further, if he is

unsuccessful as defendant, he may appeal, for, he is entitled to have the case decided according to law and, therefore, to have the error of a court of first instance rectified.[75]

In the event of a war being declared against the foreign State, citizens of that State who are within United Kingdom are liable to be detained as “enemy aliens” and an attempt to secure their release in British court may be met with the plea of “Act of State”. Where war has not been declared by the United Kingdom against foreign State, but military action is undertaken, nationals of that State resident in United Kingdom are entitled to protection of the courts against unlawful detention, just as other friendly aliens within the jurisdiction are entitled to be protected against unlawful action.[76]

II. Aliens, other than “alien enemies” are *alien friends*. By statute law, alien friends in England have been conferred full *civil* rights as opposed to *civic* or political rights. Thus, an alien friend can – (a) bring and defend actions and prosecutions like British subjects, including actions against the Crown and its officers;[77] (b) acquire property; (c) enjoy full personal liberty; (d) enter into contracts, trade or commerce; (e) can have the benefits of the English law relating to patents, designs and copyright; bankruptcy; wills and descent, subject to certain conditions.[78]

But aliens cannot – (i) exercise parliamentary, municipal or other franchise; (ii) hold any office or place of trust, civil or military; (iii) sit as juror, if challenged; (iv) own a British ship or, with certain exceptions, act as the chief officer of a British ship; (v) become a member of Parliament or of the Privy Council.[79]

As they owe local allegiance, they are entitled to the protection of the State where they reside, but they cannot complain if they suffer in common with the subjects of that State, *e.g.*, owing to Civil War or invasion.[79]

An alien, whether domiciled or not, owes a temporary *local* allegiance to the State where he is actually resident for the time being and so long as such residence continues.[79] Such allegiance is due from all aliens present (otherwise than as invading enemies) on British territory, and thus an alien whose country is at war with the Crown, but who is not a part of the enemy forces of invasion, is guilty of treason if he aids the enemy, as much as he is a subject. It is no defence that the British Crown had temporarily withdrawn its protection *de facto* owing to enemy occupation of the territory.[80] On the other hand, even if the alien is absent from England for a time, leaving his family and effects under the protection of the Crown, he may be charged with treason if he joins the enemies during such absence.[81] Again though local allegiance is primarily dependent on residence within the territory to which such allegiance is due, – an alien who goes abroad with a British passport, continues to have the protection of the Crown and the privileges of a British subject, by virtue of the passport, and is accordingly, liable in England for treason committed abroad, so long as he retains his passport.[82] An alien friend is liable to be sued for torts and prosecuted for crimes committed in England or abroad.[83]

Friendly aliens may, in some context, include nationals of countries with which the Crown is at war, but who have come to reside or are allowed to remain in England by Sovereign licence.[84] Sovereign licence, express or implied, gives the protection of the laws and the court.[85] A licence is commonly implied by the fact that an alien has been registered and allowed to remain.[86]

(B) *U.S.A.*

U.S.A.

A citizen of the United States has certain special rights and privileges,[87] *e.g.* to participate in the Government; to demand care and protection of the United States when abroad, and so on; to acquire and possess property of any kind subject to restraints imposed by the State for the common good.[88]

Any individual “who is not a native-born or naturalized citizen of the United States” is an alien.[89] Though aliens are not entitled to the special rights and privileges of citizens, resident aliens,[90] in lieu of their temporary allegiance, are given various civil rights by the *Constitution* as well as by legislation. Thus, –

[Art 5] Citizenship at the commencement of the Constitution.-

Under the “equal protection clause”, an alien is safeguarded in all criminal prosecutions against self-incrimination, double jeopardy and the like.[91] A right to trial by jury is conceded to an alien similarly as in the case of citizens, for any crime committed within the United States, or for punishment for illegal entry into the United States.[92] He is entitled to the writ of *habeas corpus* to protect his personal liberty[93] and, unless he is an enemy alien, his property cannot be taken without just compensation.[94] He is also entitled to protection against discrimination in the matter of profession or other economic opportunities;[95] or property;[96] or welfare benefits.[97]

But the guarantee of equal protection does not extend to the regulation or distribution of the public domain or the public resources of the State, the enjoyment of which may be limited to its citizens. Thus, a State may forbid the employment of aliens upon its own public works;[1] prohibit transfer of interest in agricultural land to aliens who have not declared their intention to be citizens;[2] restrict to citizens to plant oysters in the rivers of the State[3] forbid aliens to kill wild games except in defence of person or property.[4]

The State may also require citizenship as a qualification for office. Such power inheres in the State by virtue of its obligation to preserve the basic conception of a political community. And this power and responsibility of the State applies not only to qualification of voters but also to persons holding State elections or important non-elective posts of legislative and judicial positions, for officers who participate directly in the formulation, execution or review of broad public policy, perform functions that go to the heart of representative government. This is no more than a recognition of the State’s historical power to exclude aliens from participation in its democratic political institution.[5] The employment of a non-citizen in State police force was found to be valid.[6] In another case, the court upheld a New York statute forbidding certification as a public school teacher to any person who is not a citizen unless the person had manifested an intention to apply for citizenship[7].

In recognising the rule for governmental function as an exception to the strict scrutiny standard generally, applicable to classification based on alienage, the court followed an important principle inherent in the *Constitution*. The distinction between alien and citizen, though ordinarily irrelevant in private activity, is fundamental to the definition and government of a State, and the constitutional references to such a distinction indicate that the status of citizenship was meant to have significance in the structure of government.[8]

An alien is also entitled to the protection of the “Due Process” clause,[9] and cannot be deported without a hearing.[10]

But absence of judicial review does not invalidate an order for deportation[11] or exclusion of an alien from entry,[12] and an alien may be held without bail pending deportation, if charged with being a Communist.[13]

As a sovereign State, the United States has an unlimited right to expel or deport unnatualized and undesirable aliens,[13] even after a long residence.[11] Again, a deportation proceeding is considered to be a civil proceeding so that the prohibition against *ex post facto* legislation in *Article 1*, section 10(1), is inapplicable to a law authorising deportation.[14]

Under a federal law,[15] resident aliens are on the same footing as citizens as regards the right to make and enforce contracts and to sue and to be sued and are subject to like pains, penalties, taxes and licences.

But an alien has no *political rights*. Thus, an alien cannot be chosen or elected as the President, the Vice-President, a member of the Senate[16] or the House of Representatives,[17] or have a right to vote for the above elections. The 15th and 19th Amendments to the *Constitution*, on the other hand, guarantee the voting rights of United States citizens from being denied on the grounds of race, colour or sex.

(C) *India.*

India.

[Art 5] Citizenship at the commencement of the Constitution.-

Any person, who is not a citizen is an alien. The rights and disabilities of aliens are left to legislation by Parliament under Entry 17 of List I. But the *Constitution* itself makes some provisions in that respect. We have seen that some of the Fundamental Rights are expressly confined to "citizens". The rest of the provisions in Pt III shall apply to aliens who are included within the word "person", e.g. *Articles 14*, *20*[18], 2118, 22(1)18, (2), (4)-(7). The machinery of *Article 14* cannot be invoked to obtain fundamental rights under *Article 19*(1)(d) and (e) of the *Constitution* since they are expressly withheld to foreigners.[19] But, persons who are not citizens of India and have come to India merely as tourists or in any other capacity, will be entitled to the protection of their lives in accordance with constitutional provision. They also have a right to life in India. They have a right to live, so long as they are here with human dignity. Just as the State is under an obligation to protect the life of every citizen of this country, so also the State is under an obligation to protect the life of the persons who are not citizens. (See *Article 21*).[20]

It has been long recognised that persons who reside in the territory of countries of which they are not nationals possess a special status under International Law. States have traditionally reserved the right to expel them from their territory and to refuse to grant them certain rights which are enjoyed by their own nationals *e.g.,* right to vote, hold public office or to engage in political activities. Aliens may be prohibited from joining the civil service or certain profession or from owning some categories of property and State may place them under restriction in the interests of national security or public order. Nevertheless, once lawfully admitted to a territory, they are entitled to certain minimum rights necessary to the enjoyment of ordinary private life.[21] WARWICK MCKEAN further says (at pp 195-96) that "General International Law provides that aliens should not be discriminated against in their enjoyment of property rights once they have been acquired. If alien property is nationalised whereas the property of nationals remains unaffected, then that act is discriminatory and has been prohibited under International Law. It has long been recognised that in certain matters *e.g.,* the general treatment of foreigners in a country or compensation for property which may be expropriated or nationalised, non-discrimination as between persons of different nationalities or against foreigners as compared with persons of local nationality to a breach of rule of international law, the breach of which gives rise to a valid claim on the part of the foreign Government whose national is involved".

An alien who comes to India on a foreign passport cannot acquire Indian citizenship by residence, under *Article 5*(c).[22]

Even though *Article 21* extends to all persons, a foreigner is not entitled to reside or settle in India under *Article 19*(1)(e), which is confined to citizens.[22]

No foreigner can have a fundamental right or much less a right to register himself as Indian citizen. Hence such a person also cannot challenge the provision of any enactment as *ultra virus* of the *Constitution*[23] and once an application for registration as a citizen is made, it totally repels the plea of Indian citizenship.[24]

What is the distinction between citizens and non-citizens? "…most of the provisions of the *Constitution* relating to fundamental rights, guarantee these rights, irrespective of the status of citizenship. The rights are either phrased so as to be available to "persons" (for example, *Article 14*) or are otherwise so formulated that the aspect of citizen's status as such does not become prominent.

The most important article, dealing with equality before law, reads: "The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India". Certain species of this right, dealt with in *Articles 15* and *16*, confine the relevant provisions to citizens. Thus, *Article 15* prohibits discrimination against any "citizen" on grounds only of religion, race, caste, sex, place of birth, or any of them and, in particular, prohibits subjecting any citizen to any disability, liability, restriction or condition with regard to—

(a) access to ships, public restaurants, hotels and places of public entertainment; or

(b) the use of wells, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds or dedicated to the use of the general public.

Article 16 of the Constitution deals with equality of opportunity in matters of public employment for all “citizens” and provides also that no citizen shall, on grounds only of religion, race, caste, sex, descent, place of birth, residence or any of them, be ineligible for, or discriminated against in respect of, any employment or office under the State. Both *Articles 15* and *16* are subject to certain qualifications for specified situations, not material for the present purpose.

Article 19 of the Constitution which guarantees the six freedoms as it now stands, is confined to citizens. It provides that subject to certain restrictions, citizens shall have the right—

(a) to freedom of speech and expression;

(b) to assemble peaceable and without arms;

(c) to form associations or unions [24A][or co-operative societies];

(d) to move freely throughout the territory of India;

(e) to reside and settle in any part of the territory of India; and (f) [25][* * * * *]

(f) to practice any profession, or to carry on any occupation, trade or business.

Some of the cultural and educational rights are also confined to citizens. Thus, for the protection of the interests of minorities, the *Constitution*, in *Article 29* (which is confined to citizens) provides as follows:

> **“29. Protection of interests of minorities.—**(1) Any section of the citizens residing in the territory of India or any part thereof having a distinct language, script or culture of its own shall have the right to conserve the same.
>
> (2) No citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, language or any of them.

The mention of “citizens” in *Article 29 of the Constitution* appears to possess some significance, in as much as persons who cannot establish their citizenship or groups which are not citizens as such cannot claim these rights. Thus, if a number of refugees of foreign countries are permitted to settle in India, they do not come to acquire a constitutional right to conserve their “distinct language, script or culture” in terms of *Article 29*(1). Similarly, if admission to a State owned or State aided educational institution is denied to them on the ground of, say, race or language, they cannot claim the protection of *Article 29*(2). It should not however, be assumed that such groups have no other constitutional protection. Under *Article 30*(1), all minorities, whether based on religion or language, have the right to establish and administer educational institutions of their choice. This is not merely a right to be exercised by the minorities only with their own resources. For, *Article 30(2) of the Constitution* further provides that the State shall not, in granting aid to educational institutions, discriminate against any educational institution on the ground that it is under the management of a minority, whether based on religion or language. It follows, that atleast so far as religious and linguistic minorities are concerned, their right to education, including education with State aid, receives positive constitutional protection by virtue of *Article 30*. It is further to be pointed out that it is now well established that the test of “minority” in this context

should be applied, not country wise but State wise. Thus if, within a particular State, a certain group is a numerical minority and if it is a religious or linguistic group, then it gets the protection of *Article 30*, even if it is a group of aliens.

Besides this, there is a much wider protection flowing from the equality clause (*Article 14*). Even where a specific right is confined to citizens and therefore becomes inapplicable to aliens, the omnibus protection under *Article 14* may still become available, because, under that article, the State must not deny to any "person" equality before the law or the equal protection of the law within the territory of India. To spell out the implications of this article in respect of the myriad situations that may occur in life is beyond the scope of the present lecture. It is enough to say that by and large, the Supreme Court and the High Courts in India have placed on this article a liberal construction. They have not gone by narrow technical doctrines or by mere pedantry. Classification making a discrimination between one person and another or between one group of persons and another is permissible but only on certain recognized principles. It seems that *Article 14* combines (i) the English doctrine of the "rule of law'; (ii) the equal protection clause of the Fourteenth Amendment to the American *Constitution*[26]; and (iii) the concept of equality before the law as found in the *Constitution* of Ireland.[27] The tests usually adopted to determine the permissibility of classification of the context of *Article 14* are (i) that the classification must be founded on an intelligible differentia which distinguishes persons or things that are grouped together from others left out of the group; and (2) that the differentia must have a rational relation to the object sought to be achieved by statute in question.[28]

It would thus be seen that while specific provisions of the *Constitution* may limit the right flowing there under to citizens, more general provisions dealing with fundamental rights might still be availed of by non-citizens for securing social, economic and political justice; particularly through the doctrine of equality.[29]

The same comment may be made regarding the Directive Principles of State Policy under Pt IV of the *Constitution*. Some of the provisions of this Part are confined to citizens, but many others are not. Of the provisions which are confined to citizens, one may, at the outset, mention *Article 39*(a). It provides that the State shall, in particular, direct its policy towards securing (*Article 39*(a)) "that the "citizen" men and women equally, have the right to an adequate means of livelihood. Similarly, *Article 39-A* (equal justice and free legal aid) provides "The State shall secure that the operation of the legal system promotes justice, on the basis of equal opportunity, and shall, in particular, provide legal aid, by suitable legislation or schemes or in any other way, to ensure that opportunities for securing justice are not denied "to any citizen" by reason of economic or other disabilities".

Similarly, *Article 44* (relating to Uniform Civil Code) is primarily meant to apply to a citizen. It provides that the State shall endeavour to secure for citizen, a Uniform Civil Code throughout the territory of India.

But the narrow textual scope of some of these articles as confined to a citizen should not make us lose sight of the fact that the omnibus provision in *Article 38 of the Constitution of India* and also the specific provision of many other articles not mentioned above, enunciates Directive Principles of State Policy whose scope is not confined to citizens as such. The Welfare State inspired by the ideals of justice forms the subject matter of *Article 38* which reads as follows:-

> *Article 38*: State to secure a social order for the promotion of welfare of the people – (1) The State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political, shall inform all the institutions of the national life.
>
> (2) The State shall, in particular, strive to minimise the inequalities in income and endeavour to eliminate inequalities in status, facilities and opportunities, not only amongst individuals, but also amongst groups of people residing in different areas or engaged in different vocations.

Besides *Article 38*, many other articles specifying the Directive Principles of State Policy extend their umbrella to all persons.[30]

But "enemy aliens" suffer from a special disability; they are not entitled to the benefit of the procedural provisions in clauses (1)-(2) of *Article 22* (see *post*). Even friendly aliens may lose these rights during a Proclamation of Emergency.[31] An alien has no right of suffrage nor can he hold any of the offices specially meant for citizens.

The *Foreigners Act, 1946*, imposes various restrictions upon foreigners in India:

(a) Their entry into and departure from India is subject to orders made by the Government of India [s. 3(1)].

(b) In particular, such order may direct a foreigner to reside in a particular place or impose restrictions on his movements or expel him from India. A person against whom an order to quit India has been made in exercise of such power is not entitled to *habeas corpus* on the ground of contravention of *Article 21*[31] or 22[32] of the *Constitution*.

(c) The discretion of the Government to expel a foreigner is not fettered by anything in the *Constitution*.[33]

Consequently, no citizen of India has a fundamental right to invite any foreigner, whom he believes to be a foreigner, without complying with the provisions of *Foreigners Act*. 1946 or the Order made under the legislation. The object of the Order is to see that a foreigner who arrives in India, stays in India under valid documents and valid permit or visa and that his movements are controlled by State under its Regulations. As such, no citizen can claim any fundamental right to harbour any foreigner in his household or in the premises in his occupation or control.[34]

But a foreigner or alien who enters India upon a single entry permit issued to him is entitled to be heard before his deportation. He must be given an opportunity to submit his representation against proposed expulsion and the said procedure can be deported only on compelling reasons.[35]

[Art 5.2.13] Commonwealth Citizenship

A citizen of India would retain citizenship of the Commonwealth, notwithstanding India being a Republic, by virtue of the India (Consequential Provisions) Act,[36] 1949, read with the British Nationality Act, 1948.

Citizenship of the Commonwealth does not, however, entail any allegiance to the British Crown.

As to the privileges of Commonwealth citizenship, see under *Article 11*, *post*.

The *Citizenship Act* makes a distinction between a Commonwealth citizen and a citizen of India. Under *section 11 of Citizenship Act*, every person who is a citizen of a Commonwealth country specified in First Schedule shall, by virtue of that citizenship has a status of Commonwealth citizen in India. But the conferment of all or any of the rights of a citizen of India on a citizen of any country in the First Schedule can be made only by the Central Govt. under section 12 of the Act, by an order notified in the official Gazette. When there is no such notification, a person who migrated to Pakistan after 1March 1947 and did not return to India till the commencement of *Constitution*, cannot be considered to be citizen of India either by virtue of any provision in the *Constitution* or *Citizenship Act*, merely because he was in Pakistan, a Commonwealth country.[37] A citizen of Pakistan on his Commonwealth citizenship cannot claim Fundamental Rights under our *Constitution*.[38]

Section 11 of Citizenship Act 1955 provides that every person who is a citizen of a Commonwealth country,

specified in First Schedule shall by virtue of that citizenship, have a status of Commonwealth citizen in India. *Article 367*(3) provides that for the purpose of the *Constitution*, "Foreign State" means any State other than India provided that subject to the provisions of any law made by Parliament, the President may by order declare any State not to be a foreign State for such purposes as may be specified in the order. Accordingly, the *Constitution* (Declaration as to Foreign States) Order 1950 was promulgated, whereby every country within Commonwealth was declared not to be a foreign State for the purpose of *Constitution*. The effect of this declaration is not that the citizen of all Commonwealth countries of which Pakistan is one became citizens of India even for the purpose of *Article 7* and *9*, which do not contain the words "foreign State". Again, a Commonwealth citizen is not a citizen within the meaning of *Article 19*. It is clear from *section 12 of Citizenship Act 1955* that in the absence of a notification conferring the right of a citizen of India on a Commonwealth citizen, he cannot claim such rights.[39]

[Art 5.2.14] Articles 5-9.

Article has to be read with the provisions of *Articles 6-9*.

Article 6 supplements the provisions of *Article 5*. Even though a person does not come under *Article 5*, he shall be deemed to be a citizen of India at the commencement of the *Constitution*, if he has migrated to India and fulfils the conditions laid down in *Article 6*.

Articles 5 and *6* are not exhaustive and persons who do not satisfy the requirements of *Article 5* could still be citizens if the conditions mentioned in section 6(a) or section 6(b) were satisfied.[40] *Article 6* extends the rights of persons who would not satisfy the tests of *Article 5*.[41]

Article 7 forms an exception to both *Articles 5* and *6*: A person who fulfils the requirements of either *Article 5* or *6* shall not be deemed to be a citizen of India at the commencement of the *Constitution* if he had migrated to Pakistan after the first day of March, 1947, unless he has returned to India under a permit for permanent resettlement.[42]

Where a person continued to be in India till July 1950, he was a citizen of India on a *prima facie* reading of *Article 5* read with *Article 7*. He continued to be so till the date of offence committed by him unless he shows that he has voluntarily acquired citizenship of a foreign State. Migration to Pakistan by itself is not enough to show that he has lost his Indian citizenship.[43]

Under *Article 8*, persons of Indian origin, residing in foreign countries, who cannot come under *Article 5*, may nevertheless become citizens of India, after complying with the requirements laid down in that Article. *Article 8* is thus supplementary to *Article 5*. According to *Article 8*, even a person who has migrated to Pakistan after 1 March 1947, and thereby lost Indian citizenship under *Article 7*, may, if he is an ordinary resident in a foreign country other than Pakistan, get himself registered as an Indian citizen by diplomatic or consular representative of India in such foreign country.[44]

Article 9 is an overall exception to the provisions of *Articles 5*, *6* and *8*. One who has voluntarily acquired the citizenship of a foreign State cannot be a citizen of India under any of the foregoing provisions. In *Nalini Sriharan v UOI,*[45] the petitioner was convicted for murder, having murdered Prime Minister Rajiv Gandhi. While in prison, she gave birth to child, who after some time, was taken to Sri Lanka. The child wanted to be with her mother, which was not allowed on the ground that she was not a citizen of India. It was held that since the child was born in India, she is a citizen of India and whether she has lost her citizenship is to be decided by Central Government. Till a decision is made, she continues to be an Indian citizen and the Central Govt. was directed to issue a permit for her entry into India.

In a case where the petitioners asserted that they are not willing to give up their British and Finnish nationalities, the Supreme Court directed the Central Government to consider their claim for Indian citizenship shows that a claim for dual citizenship including Indian citizenship is possible under certain circumstances.[46] In that case it was held that the question of acquiring voluntarily citizenship from other countries (by obtaining passports) is a rebuttable one.[47]

[Art 5] Citizenship at the commencement of the Constitution.-

[Art 5.2.15] Persons who are Citizens of India at the commencement of the Constitution

The following persons shall be citizens of India *at the date of commencement of the Constitution* (i.e. 26 January 1950, see p 478, *ante*), under *Articles 5-8*:

I. A person born as well as domiciled in the "*territory of India*" (see under *Article 1*(3), *ante*) irrespective of the nationality of his parents [*Article 5*(*a*)].

> The Petitioner was born in Bombay in 1922. His father was an Irani who came from Persia for business in the year 1902. The Petitioner was brought up and educated in Bombay; after attaining majority, he served in a factory and started a business of his own at Sholapur in 1947, making India his permanent home and never left India after his birth. *Held*, that even though his domicile of origin might have been in Persia, he had acquired a domicile of choice in India prior to the commencement of the *Constitution* and acquired Indian citizenship under *Article 5*(a).[48]

II. A person domiciled in the territory of India, either of whose parents was born in the "territory of India", irrespective of the nationality of his parents or the place of birth of such person [*Article 5*(*b*)].

Thus, a person born of an Indian mother and an alien father in a foreign territory would be an Indian citizen at the commencement of the *Constitution* if the person was domiciled in the "territory of India".

III. A person who or whose father was not born in the "*territory of India*", but who (a) has his domicile in the territory of India, and (b) has been *ordinarily* residing within the territory of India for not less than 5 years immediately preceding the commencement of the *Constitution* shall be a citizen of India. In this case also, the nationality of the person's parents is immaterial [*Article 5*(*c*)].

Conditions (a), (b) and (c) are not cumulative, but alternative and therefore, any one of them needs to be fulfilled by a person having domicile in India to be an Indian citizen.[49]

A mother, who is a resident of Pakistan occupied Kashmir, conceived in India while she was in jail custody. Court presumed that it is servant of the State who is responsible for the act and compensation was directed to be paid. It was held that since the child was born in India, it should be deemed to be an Indian citizen.[50]

Thus, a subject of a Porluguese Settlement, residing in India for 5 years preceding the commencement of the *Constitution*, with the intention of permanently residing in India, would (subject to *Article 9*) become a citizen of India, at the commencement of the *Constitution*. Persons born in Indian States of parents born there would also come under the present clause.

IV. A person who has migrated to India from Pakistan, provided –

(i) he or either of his parents or grandparents was born in "India as defined in the Government of India Act, 1935 (as originally enacted)'; and–

(ii) (a) if he was migrated before July 19, 1948,[51] he has ordinarily resided within the "territory of India" [see *Article 1*(3), *ante*], since the date of such migration (in this case *no registration* of the immigrant is necessary for citizenship); or

(b) if he has migrated on or after July 19, 1948, he further makes an application before the commencement of this *Constitution* for registering himself as a citizen of India to an officer appointed by the Government of India, and is registered by that officer, being satisfied that the applicant has resided in the territory of India for at least 6 months before such application.

Migration envisaged in *Article 6* only means coming to India from outside[52] and it must have taken place before and not after the commencement of *Constitution*.[53] It was held in that case that residence in India after migration for atleast six months, does not mean that for every day of this period the person should have resided in India.

Those who migrated after 25 July 1949 could not fulfil the condition of residence for six months before applying for registration. The problem of citizenship of persons who migrated to India after 25 July 1949 is not covered by clause 6(b)(ii) and it is also not covered by any other provision in the *Constitution*. In fact, DR. AMBEDKAR said: “I may say Sir, that it is not possible to cover every kind of cases for a limited purpose, namely, the purpose of conferring citizenship on the date of commencement of the *Constitution* and if there is any category of people who are left out by the provision contained in this amendment, we have given power to Parliament subsequently to make provision for them.[54]

The expression “migrate” was interpreted by the Supreme Court in *Shanno Devi v Mangal Sain,*[55] which gave a narrow meaning *i.e.,* to come or move to a place “without an intention to reside permanently” was sufficient to get citizenship. But this decision was overruled subsequently wherein it was held that the expression “migrate” was used in the wider sense of moving from one country to another, provided that such movement was not for a short visit or special purpose.[56]

V. A person who migrated from India to Pakistan after 1st March 1947,[57] but has subsequently *returned* to India under a permit issued under the authority of the Government of India for re-settlement or permanent return or under the authority of any law, provided he gets himself registered in the same manner as under *Article 6*(b)(ii). [*Article 7*].

Migration means departure from one country to another with the intention of settling in the country. This will affect a person’s right of citizenship in the country from which he migrates. The influx from Pakistan as a result of the Pakistan (Control) Act (23 of 1949) required a permit for entry into India from Pakistan for any person. This Act was repealed in 1952 by Act 76 of 1952. The Supreme Court held that *Article 7* overrides *Article 5*.[58] Migration under *Article 7* refers to migration between the period from 1 March 1947 to 26 January 1950 only. It has no application to the migration of a person to Pakistan subsequent to coming into force of the *Constitution*.[59] A person who migrated to Pakistan from India after 1 March 1947, is not to be deemed to be a citizen of India, even though he retains his Indian domicile or returned to India before 19 July 1948 unless he so returns under a permit for permanent settlement.[60]

VI. A person who, or any of whose parents or grandparents was born in “India as defined in the Government of India Act, 1935 (as originally enacted)[61] but who is ordinarily residing in any country outside India provided he gets himself registered as a citizen of India (whether *before or after the* commencement of this *Constitution*), on application in the prescribed form, to the consular or diplomatic representative of India in the country of his residence [*Article 8*].

The provisions of *Articles 5*, *6* and *7* were applicable only to those who were in India at the commencement of *Constitution*. Acquisition or loss of citizenship at the commencement of *Constitution* is not possible under these articles. But many Indians, who at the commencement of *Constitution* were abroad, were eager to be Indian citizens and *Article 8* was made applicable to such class of persons and *Article 8* is the only article that provides for acquisition of citizenship even after the commencement of *Constitution*. *Article 8* is applicable only to persons ordinarily residing in any country outside India. Hence persons residing in Pakistan cannot take advantage of *Article 8*.

[Art 5] Citizenship at the commencement of the Constitution.-

So, under this Article, a person born of Indian parents but residing in Malaya or section Africa, may acquire Indian citizenship under the *Constitution* by mere registration at the Indian consulate in that country.

[Art 5.2.16] 'Domicile'

By the term "domicile" in its ordinary acceptation is meant the place where a person lives or has his home. In this sense, the place where a person has his actual residence inhabitancy or commorancy, is sometimes called "domicile".[62]

By domicile is meant a permanent home. Domicile means the place which a person has fixed as a habitation for himself and his family not for a mere special or temporary purpose, but with a present intention of making it his permanent home.

Domicile of choices is the result of a voluntary choice. A person cannot have two simultaneous domiciles. Domicile denotes connection with the territorial system of law. Domicile of choice is that which every person of full age is free to acquire in substitution for that which he possesses at the time of choice. Every person must have domicile. A person cannot have two simultaneous domiciles. Domicile denotes connection with the territorial system of law. Mere residence is not domicile.[63] "That place is properly the domicile of a person in which his habitation is fixed without any present intention of removing therefrom".[64]

Domicile has been defined to be "the country which is taken to be a man's permanent home[65] for the purpose of determining his *civil* status",[66] as distinguished from "nationality" which determines his political status. A person who has his domicile in a country may not be its national and may not have any nationality at all (as in the case of Stateless[67] persons). While nationality is a concept of public international law, domicile is a concept of private international law.

Citizenship and domicile are two distinct concepts in the conflict of laws. "Membership in a political society is called citizenship and implies a duty of allegiance on the part of the member and a duty of protection on the part of the society. A citizen, in the popular and appropriate sense of the term is one who, by birth, naturalization or otherwise, is a member of independent political society, called a State, Kingdom or Empire and as such subject to its laws and entitled to its protection in all his rights incident to that relation.[68]

Where citizenship is used to individual relationship to one of the States of the United States, the term is generally synonymous with domicile, "whether for the purpose of determining jurisdiction of a Federal Court, of a State Court of divorce or alimony action or any other purpose.[69]

Domicile is not identical with the popular meaning of residence.[70] It is a legal concept meaning—

> The place with which a person has a settled connection for certain legal purposes, either because his home is there or because that place is *assigned to him by law*.[70]

A person is, in general, domiciled in the country in which he is considered by English law to have his permanent home.[71]

Domicile may be defined as the place with which a person, either through the exercise of his own free will or through the fact of dependence on other members of his family, has the closest personal connection in matters of domestic life. Looked at another point of view, domicile is the legal relation existing between a person and the system on law of a place in fact or by legal fiction is deemed to be that person's home."[72]

[Art 5] Citizenship at the commencement of the Constitution.-

A domicile once acquired is retained until it is changed for another domicile, – (a) in the case of an independent person, by his own act; or (b) in the case of a dependent person, by the act of someone an whom he is dependent.

Domicile may be acquired – (1) by birth; (2) by choice; and (3) by operation of law.

The expression “place of birth” is not synonymous to the expression “domicile” and they reflect two different concepts.[773]

It is impossible to lay down an absolute definition of domicile. An intention to reside forever in a country where one has taken up his residence is an essential constituent element for the existence of domicile in the country. Domicile has been described in Halsbury’s Laws of England (4th Edn, vol VIII, para 421) as the legal relationship between individual and a territory with a distinctive legal system, which invokes that system as his personal law. Every person must have a personal law and accordingly everyone must have a domicile. He receives at “birth a domicile” of origin, which remains his domicile wherever he goes, unless and until, he acquires a new domicile. The new domicile acquired subsequently, is generally called a “domicile of choice”. The “domicile of origin” is received by operation of law at birth and for acquisition of a domicile of choice one of the conditions is the intention to remain permanently. The domicile of origin is retained and cannot be divested until the acquisition of the domicile of choice. By merely leaving his country, even permanently, one will not in the eye of law, lose his domicile until he acquires a new one. Thus the proposition that the domicile of origin is retained until acquisition of a domicile of choice is well established and does not admit of any exception.

Domicile mean the place at which a person is physically present and that the person regards as home; a person’s true, fixed, principal, and permanent home, to which that person intends to return and remain even though currently residing elsewhere. – Also termed permanent abode. 2. The residence of a person or corporation for legal purposes. – Also termed (in sense 2) legal residence. Black, 7th Edn 1999.

With regard to the right to vote and conditions necessary for its exercise, it is stated as follows:- “One of these is that, the party offering to vote must reside within the district which is to be affected by the exercise of the right. If a State officer is to be chosen, the voter must be a resident of the State; and if a county, city, or township officer, he must reside within such country, city or township. This is the general rule, and for the more convenient determination of the right to vote, and to prevent fraud, it is now generally required that the elector shall take part in either local or general election at the place of his residence, where he will be known and where the opportunities for illegal or fraudulent voting will be less than if allowed to vote at a distance and among strangers. And where this is the requirement of the *Constitution*, any statute permitting voters to deposit their ballots elsewhere must necessarily be void.

A person’s residence is the place of his domicile or the place where his habitation is fixed without any present intention of moving therefrom. The words “inhabitant”, “citizen” and “resident” as employed in different constitutions to define the qualification of electors, mean substantially the same thing; and one is an inhabitant, resident or citizen at the place where he has a domicile or home. Every person at all times must be considered as having a domicile somewhere, and that which he has acquired at one place is considered as continuing until another is acquired at a different place. It has been held that a student in an institution of learning, who has residence there for purposes of instruction, may vote at such place provided he is emancipated from his father’s family and for the time being has no home elsewhere”.[74]

> It is difficult to give a definition of domicile that will cover at once domicile by operation of law and domicile by choice. The idea of domicile certainly includes the idea of place and the idea of settled connection with the place. Domicile of choice is so closely connected with the idea of home that it seems desirable to include that idea in any definition, and yet the idea is not applicable to many kinds of domicile by operation of law. It has therefore seemed best to state this element in the alternative. If a home is in the place, that is sufficient. If there is no home, or if the party is not sui juris,

> then the place is assigned by law without his will. (Joseph H. Baele, *A Treatise on the Conflict of Laws,* 1935, section 9.1, 89-90.
>
> Though the idea of permanent home is the central practical feature of domicile, Lord CRANWORTH'S definition has a deceptive simplicity; for domicile … is a conception of law employed for the purpose of establishing a connection for certain legal purposes between an individual and the legal system of the territory with which he either has the closest connection in fact or is considered by law so to have because of his dependence on some other person. (R.H. Graveson, *The Conflict of Laws*, 7th Edn, 1974, 185.

Roman Law still holds good that "it is not by naked assertion but by deeds and acts that a domicile is established.'[75]

By "domicile" is meant a permanent home. Domicile means the place which a person has fixed as a habitation of himself and his family not for a mere special and temporary purpose, but with a present intention of making it his permanent home. Domicile denotes connection with the territorial system of law. Mere residence is not domicile.[76]

Etymologically "resident" and "domicile" carry the same meaning, in as much as both refer to the permanent home; but under private international law "domicile" carries a little different sense and exhibits many facets. In spite of having a permanent home, a person may have a commercial, a political or a forensic domicile. "Domicile" may also take many colours; it may be domicile of origin, domicile of choice, domicile by operation of law or domicile of dependence. In private international law, domicile jurisprudentially has a different concept altogether. It plays an important role in the conflict of laws. Domicile and residence are relative concepts and have to be understood in the context in which they are used, having regard to the nature and purpose of the statute in which these words are used.[77] In that case, the learned Judge took note of and approved the passage in P.B. Mukherjee, *New Jurisprudence* (The Grammar of Modern Law) (Tagore Law Lectures) wherein it is stated as follows:-

Certain principles relating to domicile have taken firm root in common law countries. The principle may be stated in the form of proposition in the light of the famous case of *Udny v Udny,*[78] Every person must all the times be said to possess a domicile. Secondly, the basic question whether certain facts do or do not constitute domicile is ordinarily decided by the municipal law of the court of the country deciding. Naturally "*lex fori"* plays a significant part in this question of "*renvoi*" where the domicile is the connecting factor.[79] But the difficult point of private international law jurisprudence is that the whole problem of the choice of law has remained excluded as yet in determining the question what law ought to govern the person's capacity to acquire a domicile.[80] Apparently this gap in private international jurisprudence is waiting long to be filled up. It is just possible that a single choice of law may not govern all types of cases in this field.

The classical division of domicile is well known. These are – the domicile of origin, the domicile of choice and the domicile of dependence. There has been little change in the essential concept of these three domiciles.

Domicile and residence are different and yet related concepts. Ordinarily domicile operates as the basis of jurisdiction, in such vital aspect of a person's private life like marriage, legitimacy and succession. But, on the other hand, residence operates as the basis of jurisdiction in cases like taxation, right to vote, in certain aspects of matrimonial question and generally in cases where public rights are involved.

In *D.P. Joshi v State of MB,*[81] it was held that under our *Constitution*, the power to legislate on succession, marriage and minors had been conferred by Entry 5 of List III on both Union and State Legislatures and it is therefore "quite conceivable" that until the Centre intervenes and enacts uniform Code for the whole of India, each State might have its own laws on these subjects and there could be "different domiciles for different States". It was therefore declared that there can be State domicile though a person can have only one

citizenship *i.e.,* Indian citizenship. The above decision was rendered by *Constitution* Bench. But in *Pradeep Jain v UOI,*[82] it was observed thus: "We think it highly detrimental to the unity and integrity of India to think in terms of State domicile". The learned author H.M. SEERVAI has said that the above observation goes against the decision in *D.P. Joshi's case* and is "clearly wrong".[83] The Full Bench earlier overruled the decision in *Radhabhai v State of Bombay,* AIR 1955 Bombay 439) which upheld the plea of State domicile. According to learned author (at p 318), "It is submitted that in the absence of a legislature, it is not necessary for a part of a State being a country in the conflict of laws sense, the presence of a separate legislature in each province or part of a State with exclusive powers to legislate on specified matters would *a fortiori* lead to the conclusion that such province or part of a country in the "conflict of laws sense". Secondly, for certain purposes, the courts would have regard to the domicile of a country in the conflict of laws sense and for other purposes the court would have regard to the domicile of a State as one "composite entity" recognised in Public International Law.

At p 319, it is said: "Citizenship and domicile are two different concepts on the conflict of laws. Citizenship is dealt with in books on conflict of laws under the subject of "Nationality". The fact that Indians have one citizenship and Indians form one nation is irrelevant in relation to domicile".[84]

The word "domicile used in the rules regulating admissions to medical colleges framed by some of the States may be interpreted in the loose sense of permanent residence in the State in which the medical college is situated and not in the technical sense in which it is used in private international law.[85]

If the inquiry relates to the domicile of the deceased person, it must be ascertained whether at some period in his life he had formed and retained a fixed and settled intention of residence in a given country. One has to consider the tastes, habits, conduct, actions, ambitions, health, hopes and projects of a person because they are all considered to be keys to his intention to make a permanent home in a place.[86]

The word "domicile" occurring in Regn. 6 means a person must behaving permanent home in Chandigardh or he must have lived therefore at least three years with the intention to live permanently or indefinitely.[87] [Chandigarh Housing Board (Allotment, Management and Sale of Tenements), Regulations, 1976, Reg.6]

For the acquisition of domicile of choice, it must be shown that the person concerned had a certain state of mind, the "*animus manendi*". If he claims that he acquired a new domicile at a particular time, he must prove that he had formed the intention of making his permanent home in the country of residence and of continuing to reside there permanently. Residence alone, unaccompanied by this state of mind is insufficient.[88]

Domicile of choice is that every person of full age to free to acquire in substitution for that which he possesses at the time of choice. By domicile is meant a permanent home. Domicile means the place, which a person has fixed as a habitation for himself and his family not for a mere special and temporary purpose, but with a present intention of making it his permanent home. Domicile of choice is thus a result of choice.[89]

(1) As soon as a person is born, he gets a domicile which is called the *domicile of origin*.[90] The domicile of origin of a person is –

[Art 5.2.16.1] Domicile of origin.

(i) in the case of a legitimate child, the domicile of the father at the time of his birth; (ii) in the case of an illegitimate, posthumous[91] or legitimated child, the domicile of his mother at the time of his birth; (iii) in the case of a foundling, the country where he is found.[92] Domicile means the permanent place of dwelling, or home of the person concerned.[93] (*Constitution of India, Article 5*)

The term "domicile of origin" constitutes the domicile of an infant and continued until it is abandoned or until the acquisition of a new domicile in a different place.[94]

A domicile of origin prevails until a new domicile has been acquired, so that if a person leaves the country of his

[Art 5] Citizenship at the commencement of the Constitution.-

origin with an undoubted intention of never returning to it again, Nevertheless, his domicile of origin adheres to him until he actually settles with the requisite intention in some other country.[1] A legitimate child born in wedlock to "living father" receives the domicile of the father at the time of the birth; a posthumous legitimate child receives that of the mother at that time.[2] "Domicile of origin" means the home of the parents. It is thus something which arises from a man's birth and connection. The domicile of the parent at the time of birth or what is termed as "domicile of origin" constitutes the domicile of an infant and continues till it is abandoned.[3]

A difficulty arises when the two principles are considered together – (a) that a legitimate child takes his father's domicile, an illegitimate his mother's and (b) whether a child is or is not legitimate depends on the law of the domicilee. Thus it appears that one cannot determine the legitimacy of a child when his parents have different domiciles, without first ascertaining whether the question is governed by the law of his father's domicile or by that of his mother's. The domicile of origin is that acquired at birth, not the last domicilee's of dependence which an infant possesses before attaining majority.

Domicile of origin is attributed to every person at birth by operation of law. This domicile is not decided by his place of birth or by the place of residence of his father or mother, but by the domicile of the appropriate parent at the time of his birth, according as he is legitimate or illegitimate. It is possible for the domicile of origin to be "transmitted through several generations, no member of which has ever resided for any length of time in the country of the domicile of origin".[4]

Once it is submitted that a person was born and brought at a particular place, his domicile is of that place and merely because he goes to another State for employment, his domicile is not changed thereby.[5]

Domicile is an expression which has certain implications in International Law. Domicile means residence by choice with the intention of the residence being permanent in a particular country.

Domicile relates to the place where a person or his parents reside.[6] [*Constitution of India, Article 15*]

Domicile means one's connection with the territory and not one's connection with the membership of the community.[7] [*Constitution of India Article 15*(4)]

The term "domicile" means residence in the Province of Bombay without present intention of removing it from the Province of Bombay.[8]

[Art 5.2.16.2] Domicile of choice.

(2) A domicile of choice is that which the individual has elected and chosen for himself to displace the domicile previously obtained.[9] As soon as he attains majority, he can acquire a domicile of his own choice, by *animo et facto, i.e.*, by (i) actually residing in another country with

(ii) the intention of permanently residing there. The new domicile is called the *domicile of choice*. The domicile of origin, however, is not extinguished by the act of acquiring a domicile of choice, but only remains in abeyance; it revives as soon as the person abandons the domicile of his choice *animo et facto, i.e.* in mind as well as in fact.

The two conditions[10] for acquiring a domicile of choice may be further analysed:

(i) *Factum of residence.*

Mere intention to settle in another country is not sufficient to change a person's domicile unless he actually takes up his residence in the new country; sending his family is not enough if the person continues to live and carry on business in the former country.[10]

(ii) *Animus.*

The intention of permanent residence must have the following ingredients:

(a) The intention must be an intention to reside *permanently* or for an *indefinite* period.

If a person goes to a foreign country with the intention to finish a business or even with the intention of staying there until he has made a fortune, he still retains his domicile of origin and is not proved to have adopted the domicile[11] of choice. But an original intention to reside temporarily may be shown to have afterwards become unlimited.[12] As soon as there is such a change of purpose, there is a change of domicile, but not until then.[13]

Although the requirement of residence does not necessitate a person's living in the same house, or even in the same place within a country for an indefinite time, it does involve habitual presence within the country in some kind of accommodation which could be described as that person's home. Length of residence is not itself essential for the acquisition of domicile; though it is important from the point of view of residence. Provided that residence is accompanied by the requisite intention, it may be very short. Residence without requisite intention cannot confer domicile, however long it continues.

It was observed: "Prolonged actual residence is an important item of evidence of such volition, but it must be supplemented by other facts and circumstances indicative of intention. The residence must answer a qualitative as well as quantitative test."[14] While residence itself cannot constitute domicile, the longer the residence, the stronger becomes its value as evidence of the intention to reside permanently in a country.

Domicile of choice is a conclusion or inference which the law derives from the fact of a man fixing voluntarily his sole or chief residence in a particular place with the intention of continuing to reside there for an unlimited time. This is a description of circumstances which creates or constitutes domicile and not a definition of a term. There must be residence freely chosen and not prescribed or dictated by any external necessity such as duties of office, the demands of creditors, or the relief from illness and it must a residence fixed not for limited period, or particular purpose, but general and indefinite in its future contemplation. It is true that residence originally temporary or intended for a limited period, may afterwards become general and unlimited and in such a case, as soon as the change of purpose or "*animus manendi*" can be inferred, the fact of domicile is established.[15] If the intention of permanently residing in a place exists, a residence in pursuance of that intention, however short, will establish a domicile.[16] Strong evidence is required to prove abandonment of domicile of origin.[17]

In *Sankaran Govindan v Lakshmi Bharathi,*[18] the Kerala High Court held that a person who went to England at the young age of twenty for his studies and thereafter continued to practice medicine till his death and did not visit India even once, still continued his domicile of origin on the ground that he wrote letters to his relatives in Kerala that he intends to return to India. But this decision was set aside by Supreme Court on the ground that the letters did not express a definite intention to return.[19] The Supreme Court held:

> Domicile is a mixed question of law and fact... The traditional statement that to establish domicile, there must be present intention of permanent residence merely means that so far as the mind of the person at the relevant time was concerned, he possessed the requisite intention. The relevant time varies with the nature of enquiry. It may be past or present. If the enquiry relates to the domicile of a deceased person, it must be ascertained whether at some period in his life he had formed and retained a fixed and settled intention of residence in a given country. One has to consider the tastes, habits, conduct, action, ambition, health, hopes and projects of a person because they are all considered to be the key to his intention to make a permanent home in a place…Undue stress cannot be laid upon any single fact, however impressive it may appear when viewed out of the context, for its importance as a determining factor may well be minimised when considered in the light of other qualifying events…More reliance is placed upon conduct than upon declaration of intention.

In attempting to ascertain whether a change of domicile has taken place, the court frequently ranges over the whole of a person's life. While no single act is in itself decisive, even small incidents may be relevant. The rule of admissibility of hearsay evidence is relaxed in cases relating to domicile of deceased persons in order to allow the admission of statements made by the deceased about his intention. Perhaps the most important single factor is that of residence, in view of the presumption that residence connotes domicile. Residence alone has no effect *per se*, though it may be most important as a ground from which to infer intention.[20]

As regards proof of intention, it has been said –

> There is no act, no circumstance in a man's life, however trivial it may be in itself, which ought to be left out of consideration in trying the question whether there was an intention to change the domicile".[21]

Thus, the "tastes, habits, conduct, actions, ambitions, health, hopes, projects" and the like are all relevant circumstances for ascertaining a person's intention and it is the *cumulative* effect of all such circumstances which is decisive.[22] If the enquiry relates to the domicile of a deceased person, it must be ascertained whether at some period in his life he had formed and retained a fixed and settled intention of residence in a given country.[23] Mere declarations of intention are not of much weight unless they are consistent with such circumstances.[24] Declarations of intention must, accordingly,

> be examined by considering the *person* to whom, the *purposes* for which and the *circumstances* in which they are made and they must further be fortified and carried into effect by conduct and action consistent with the declared expression.[25]

For deciding the question of *change* of domicile of origin by a person the course of his conduct, both before and after the material time, is relevant.[26]

There is no intention to make a place a person's permanent home when he has in his contemplation some event, however remote or uncertain, which may induct him to change his residence. If such a possibility is present in his mind, even an intention to reside indefinitely in a place is ineffective for acquiring a domicile there.[27]

> It is rather a present intention of making it a temporary home, though for a period indefinite and contingent.[28]

> The present intention of making a place a person's permanent home can exist only where he has no other idea than to continue there, without looking forward to any event, certain or uncertain, which might induce him to change his residence.[28]

Although residence may be some *prima facie* proof of domicile, it is by no means to be inferred from the fact of residence that domicile results, even though the person had no other residence in existence or in contemplation.[29]

> Residence and domicile are two perfectly distinct things…….Domicile is an idea of law. It is the relation which the law creates between an individual and a particular locality or country. To every adult person the law ascribes a domicile and that domicile remains his fixed attribute until a new and different attribute usurps its place."[30]

The concept of domicile is not uniform throughout the world and just as long residence does not by itself establish domicile, brief residence may not negative it. But, residence for a particular purpose fails to answer the qualitative test, for, on the purpose being accomplished, the residence would cease. The residence must answer "a qualitative as well as a quantitative test", that is, the two elements of factum at *animus* must concur.[31] The onus of proving that domicile has been chosen in substitution for the domicile of origin lies upon those who assert that the domicile of origin has been lost or abandoned.[32]

The distinction is, in fact, borne out by *Article 5* itself, for it uses the term "domicile" as well as the expression "ordinarily resident". A person might have been ordinarily residing in India for 5 years prior to 26 January 1950 (within the meaning of clause (c), and yet fail to acquire Indian citizenship under *Article 5* if he had no "domestic" *i.e.*, the intention of making India his permanent home.[33]

Mere length of residence by itself is insufficient evidence from which to infer the *animus* to acquire a new domicile; but the *quality* of residence may afford the necessary inference.[34] For instance, the purchase of a house or estate coupled with long residence therein and non-retention of any home in the domicile, of origin might be sufficient to prove the intention to acquire a new domicile, but not where a person went to reside in the foreign country to live on the bounty of his brother or sister.[35]

Nor the establishment of business will prove the necessary intention for domicile.[36] A foreigner merely because of his long stay and enrolment of his name in the voter's list, cannot get any right for continued stay. Where a person enters territory of India on the basis of Pakistani passport and after obtaining visas from Indian High Commission raises a presumption that he has voluntarily acquired citizenship of Pakistan.[37]

Similarly, residence in India for some years will not confer Indian domicile on a person who obtained a Pakistani passport or applied for registration under *section 5 of the Citizenship Act, 1955*.[38]

On the other hand, if the intention of permanently residing in a place exists, a residence in pursuance of that intention, *however short*, will establish a domicile.[39]

(b) The inention of permanent residence in the new country must be conscious or deliberate,[40] *i.e.*, a matter of free choice, – and not dictated by any external necessity.

Hence, residence in a foreign country owing to imprisonment,[41] as a political refugee[42] or as an invalid for a change of climate,[43] or for service[44] or on diplomatic mission[45] is no *per se* sufficient for the acquisition of domicile of choice in that country.

(c) There must be an intention of abandoning the former domicile, i.e., of ceasing to reside permanently in the country of the former domicile.[46]

There is no legislative enactment providing in the matter of "inheritance of property" necessary for the person claiming interest to be a "permanent resident" of State of Jammu & Kashmir. The law relating to permanent resident has no application to the property acquired as a result of inheritance. *Article 10 of the Constitution* of Jammu & Kashmir says that permanent residents of the State of J & K shall have all the rights guaranteed to them under the *Constitution of India*. The daughter of a permanent resident of the State of J & K will not lose her status of a permanent resident of the State of J & K on her marriage with a person who is not a permanent

resident of that State.[47] It was held therein that the law relating to permanent residents has no application to the property acquired as a result of inheritance.

(3) Domicile may also be acquired by operation of law. Thus, by marriage, a woman acquires the domicile of her husband if she had not the same domicile before; and during *continuance* of the marriage, the wife's domicile follows that of her husband.[48]

She will retain her domicile inspite of migration by her husband.[49] The pre requisite of the unity of domicile is marriage, which is valid or voidable. If it is a void marriage she will retain her domicile since law presumes that no relationship existed.[50]

The learned author[50a] has also stated: "The domicile of a husband is communicated to his wife immediately upon the solemnisation of the marriage and according to English Law, it is necessarily and inevitably retained by her for the duration of the coverture.[51] Upon the death of her husband, she continues to retain it until she leaves the country "*amino non revertends*" and either reverts to her domicile of origin or acquires a domicile of her choice.[52] If she sets up a separate residence in another country with the intention of remaining there permanently, she retains her husband's domicile during the subsistence of marriage, but if she continues to reside in her separate home after her husband's death, she acquires a domicile of choice there without any further expression of intention being necessary.[53] She possesses no capacity whatsoever during the marriage of acquiring separate domicile of her own, not even if she is judicially separated[54] or if her husband has deserted her and established a home with another woman in different country or if he has committed acts which afford ground for divorce.[55] If the husband has deserted his wife, the original domicile of the wife is not automatically revived and domicile acquired on marriage does not come to an end[56] though after husband's desertion the wife may acquire an independent domicile.[57] But, as the domicile of the wife is the same as that of her husband, it is his domicile which is to be considered.[58] The domicile of wife is that of her husband.[59] Domicile and Matrimonial Proceedings Act 1973 (of England) now provides that a married woman may now retain an independent domicile like any other person of full capacity and her domicile will be ascertained the same way as that of an independent person. Generally, a married woman would have the same domicile as her husband, if she and her husband are living together, since they would be sharing the same residence and the same intention of living there. Of course, there are several possibilities when husband and wife may have separate domiciles. Thus, a woman domiciled in England who has married a man domiciled in Pakistan, will not be able to acquire domicile of Pakistan until she goes to Pakistan with an intention to reside there. A couple domiciled in England decides to migrate to United States and the husband goes first and wife is to follow there after a year. The wife will not acquire a new domicile in the United States till she joins her husband there.

The *Indian Succession Act 1925* provides two circumstances where a wife may obtain or acquire a separate domicile – (a) when the wife lives separately under a decree of court, and (b) when the husband is undergoing a life sentence. Section 16 of the same Act says that wife's domicile no longer follows that of her husband if they are separated by a competent court or when the husband is convicted for transportation for life.[60] The UN Convention on the Nationality of Married Women provides women the right to retain their nationality independently of their marital status (*Article 3(1) of the Constitution*).

Nothing short of a dissolution of the marriage tie[61] enables a married woman to acquire a separate domicile.

The domicile of minor children also follows that of the father.[62] Thus, when a person migrated to Pakistan after 1 March 1947 with his minor children, the minor children lost their Indian domicile and citizenship together with their father.[63] In other words, a person is incapable of acquiring an independent domicile of choice or to change his domicile by his own act, before attaining majority.[64] Nor can a father create a separate domicile for his minor children.[65] On attaining majority, until he changes it by his own act.[66] It follows that though a widow can by her own act acquire a new domicile, giving up the domicile she acquired from her husband at his death, she has no power to change the domicile of her minor children which they acquired from their father.[66]

But from the mere fact that a father left the country and acquired a domicile of choice in another country, it

cannot be inferred that his son, who remained in his country, lost his domicile of origin, unless it is further proved that he was a minor when the father acquired his domicile of choice.

Both under the English Common Law and Indian Law, a minor legitimate child acquires the domicile of his father and a minor illegitimate child acquires that of its mother. This is called the dependant's domicile of children and it lasts throughout the minority of the child. The result is that even where the husband deserts his wife leaving the custody of children with their mother and acquires a domicile of his choice elsewhere, the domicile of the children changes with the domicile of the father. However, the Domicile and Matrimonial Proceedings Act 1973 (of England) has changed this common law rule and now a child has the capacity to acquire domicile of choice at the age of 16, and if the parents of a legitimate child are living apart, the child will have the domicile of that parent with whom it has a home. This principle has no application in so far as illegitimate children are concerned.

Indian Law has followed the English principle, though the *Indian Succession Act* lays down some difference – (1) The domicile of origin of every person of legitimate birth is in the country in which at the time of birth its father is domiciled, or if it is a posthumous child, in the country in which its father was domicile at the time of his death. (2) The domicile of origin of an illegitimate child is in the country in which at the time of its birth its mother was domiciled. (3) The domicile of a child follows the domicile of the parent from whom it derived its domicile of origin. (4) But child's domicile does not follow – (a) in case the minor is married; (b) if the minor holds any office of employment in the Government; and (c) if the minor has set up with the consent of parent, any separate business. (See *section 14 of Indian Succession Act*).

Under Indian Law, a child on attaining the age of majority *i.e.,* the age of 18, has the capacity to acquire a domicile of its choice.

The position of the domicile of a minor adopted child is the same as that of a natural born son.[67]

A minor female's domicile changes on her marriage and becomes that of her husband.

After the death of both parents of a legitimate child or parents of an adopted child, or mother of an illegitimate child, the child's domicile cannot at all be changed until it acquires the capacity to change it.[68]

In the case of a lunatic, his domicile cannot be changed either by himself since he is incapable of forming an intention or by the person to whose care he has been entrusted. Of course, in accordance with the general principle applicable to infants, the domicile of the father will be communicated to the child of unsound mind during the minority of the latter, but a some what irrational distinction has been suggested as regards an adult lunatic. If he has been continuously insane both during and after infancy, it is said that his domicile will continue to change with that of his father; but that if he first becomes insane after reaching majority, his then domicile becomes indelible, for if the power of changing it were vested in the father great danger might be done to the "interests of others". The paramount consideration is the interest of the lunatic, and not of others.[69]

There are certain general rules which are applied by the Courts in ascertaining a person's domicile:

(i) *Every person must have a domicile.* Thus, every person acquires his domicile of origin at his birth, which continues until he has validly acquired a domicile of choice.[70] Thus, even though a person leaves the country of his origin with the intention of never returning to it, his domicile of origin in that country nevertheless continues until he actually settled in another country with the intention of making that country his permanent home.[71] In other words, his domicile of origin is not lost by mere abandonment. It subsists until it is replaced by a fresh domicile of choice.[71]

Since every person must have a domicile of origin by operation of law, the basis of his domicile is paternity or maternity. At common law and Indian Law, the domicile of a legitimate child is that of father and of an

illegitimate child is that of its mother. It is evident that domicile of origin is neither connected with the place where the child is born or with the place where the father or mother resides; but on the domicile of the father or mother, as the case may be. The only case of exemption is that of the "founding" is the place where it is found. The peculiarity of the domicile of origin is that no one can give up it till one acquires a new domicile. Even when a person acquires a new domicile of choice, his domicile of origin remains in abeyance and it revives the moment he gives up his domicile of choice. Thus, if a person who has his domicile of origin in India, acquires a domicile of choice in England, and later he leaves England without any intention of returning back to England and goes to United States and yet is uncertain as to in which part of US he is to settle and dies while in a hotel in New York, his domicile in origin *i.e.,* India is revived and he would be deemed to have died while domiciled in India. (See *section 13 of the Indian Succession Act, 1925*).

Every person must have a domicile. A person cannot have two simultaneous domiciles. Domicile denotes connection with the territorial system of law.[72]

(ii) *A person cannot have two domiciles at the same time.*[73]

(iii) *There may be a change of nationality without changing domicile and vice versa.*[74]

(iv) *There is a presumption in favour of the continuance of an existing domicile*. The burden of proving all the ingredients of a change of domicile is upon him who alleges it and in case of doubt of insufficiency of evidence, the Court decides in favour of the existing domicile.[75] Any person, not *under disability*, may at any time change his existing domicile and acquire for himself a domicile of choice.[76] Domicile, for the purposes of *Article 5*, includes domicile of choice.[76]

The burden of proving that a person acquired a domicile of choice is on the person who asserts it.[76]

For proof of a change of domicile, what is required to be established is that the person who is alleged to have changed his domicile of origin has voluntarily fixed the habitation for himself and his family, in the new country, not for mere special or temporary purpose, but with a present intention of making it his permanent home.[76] For this purpose the cause of his conduct both before and after the material time is relevant.[77]

The question in all such cases is not whether there is evidence of an intention to retain the domicile of origin, but whether it is proved that there was an intention to acquire another domicile.[78] The burden of proof of the intention to stay in India permanently is on the person who claims to have such an intention. For the acquisition of domicile of choice, it must be shown that the person concerned had a certain state of mind, the "*animus manendi*". If he claims that he acquired new domicile at a particular time, he must prove that he had formed that intention of making his permanent home in the country of residence and of continuing to reside there permanently. Residence alone, unaccompanied by the state of mind is insufficient.

[Art 5.2.16.2] Abandonment of domicile of choice.

As to loss of domicile by abandonment, there is a difference between a domicile of origin and a domicile of choice. While a domicile of origin is never lost by mere abandonment or removal from the place, a domicile of choice is lost immediately on removal from the place, with the intention of never returning there, and before he has acquired another domicile of his choice.[79] The reason is that when a person acquires a domicile of choice his domicile of origin is not extinguished but merely remains in abeyance, and it revives as soon as he has effectively abandoned his domicile of choice.[80] Thus, "to the end of his life a man's domicile of origin retains its capacity for revival"[81] even though he never intends to visit the country of his origin or may even feel repugnance for it.

The domicile of origin must prevail until the party has not only acquired another, but has manifested and carried into execution the intention of abandoning his former domicile and acquiring another as his sole domicile. To effect this abandonment of the domicile of origin, and substitute in its place it required "*animo de facto*", that is, the choice of the place, actual residence in the place thus chosen and that it should be the principal and

permanent residence. In fact, there must be both residence and intention. Residence alone has no effect, *per se,* though it may be most important as a ground from "which to infer intention".[82] The domicile of origin continues unless a fixed and settled intention of abandoning the first domicile and acquiring another as the sole domicile is clearly shown.[83] The burden of proving that a domicile of origin is abandoned is indeed much heavier than in the case of domicile of a choice. No domicile of choice can be acquired by entering a country illegally.[84]

The process for abandonment of a domicile of choice is thus just the "converse of the process of its acquisition", that is, physically departing from the country of domicile of choice with the intention of not returning there again.[85] It does not depend upon his acquiring another domicile of choice. If he abandons his domicile of choice and does not acquire a new domicile, his domicile of origin revives.

Stronger evidence is required to establish abandonment of domicile of origin[86] than to establish change from one domicile of choice to another.

v) *No dependent person can acquire a domicile by his own act.*

vi)*. Domicile is determined by the lex fori*. This means that in cases before an Indian Court, the domicile of a person is to be ascertained on the basis of Indian law.

[Art 5.2.17] '*Has his domicile*'

These words require that in order to acquire citizenship under any of the clauses of *Article 5*, the person must have his domicile in India *at the commencement* of the *Constitution of India*. Thus a person who satisfies the condition of residence in clause (*c*) of *Article 5* would nevertheless, not be a citizen of India under *Article 5* unless it is also established that he had his domicile in India at the date of commencement of the *Constitution*. Subsequent acquisition of domicile would not be material for the application of *Article 5*, which is concerned only with the mode of acquisition of citizenship at the commencement of the *Constitution*.[87]

Domicile is the *basic* condition for acquisition of citizenship under this article; the other conditions in clause (c)-(a) are in the alternative and not cumulative.[88]

[Art 5.2.18] "*Territory of India*"

See definition in *Article 1*, p 442, *ante.* As to the citizenship of the people of Jammu and Kashmir, see pp 507-08, *post*.

[Art 5.2.19] Domicile in the territory of India, at the commencement of the Constitution

As a result of the creation of the two Dominions of India and Pakistan by section 1 of the India Independence Act, 1947, a person who had his domicile in "British India" prior to 15 August 1947, would automatically acquire the domicile of some other country outside the ambit of British India, by his choice. Thus, he would acquire domicile of India if he habitually resided within that part of British India which came to be included in the Dominion of India, with the intention of permanently residing there, but not otherwise.[89]

I. For the same reason, a person who had his domicile of origin in a territory which fell within Pakistan would retain his Pakistan domicile[90] till the time he expressed his unequivocal intention of giving up that domicile and also took up domicile in another country *animo et facto*. He cannot be held to have acquired Indian domicile merely because he sent his family to India, unless and until it is further shown that he had established his home in India.[91]

II. Conversely, a person who had his domicile in India on 26 January 1950 and also satisfied any of the conditions of clauses (a)-(c) of *Article 5* would acquire the citizenship of India on 26 January 1950, which would not be lost even if he changes his domicile subsequently,[92] unless of course, he is divested of that citizenship under the provisions of the *Citizenship Act*.[93]

[Art 5] Citizenship at the commencement of the Constitution.-

[Art 5.2.20] Can there be a domicile in a State, in India?

So far as the acquisition of citizenship under *Article 5 of the Constitution* is concerned, it is clear from the Article that it envisages one "domicile" only, namely, "domicile" in the territory of India. If a person had his permanent home in any State or part of India, that constituted a domicile for the "territory of India'; there was no room for any domicile in that State or part of India. This means that just as there is no dual citizenship in India (unlike that in the *U.S.A.*), so also the *Constitution of India* does not acknowledge dual domicile.

There is, however, a majority judgment of the Supreme Court in *Joshi's case*[94] that in India, there may be a "domicile in a State" for purposes other than citizenship. It was stated that though there was a single citizenship for the whole of India, the States had the jurisdiction to make separate systems of law in exercise of their powers under List II and III of the 7th Schedule, *e.g.*, relating to succession, marriage and minority, which might be made applicable to persons "domiciled" in that State.

The question as to State domicile arose in this case[95] because the State of Madhya Pradesh made a rule for admission to a State Medical College according to which a heavy capitation fee was payable by students who were not "*bona fide* residents" of that State, while *bona fide* residents were exempted. The rule was challenged as contravening the guarantee of non-discrimination on the ground of "place of birth" in *Article 15*. If the rule had rested with "residence", there would have been little for complaint because *Article 15*(1) spoke of discrimination on the ground of "place of birth", not "place of residence". But the rule in question defined a "*bona fide* resident", *inter alia*, as a person "whose original domicile" is in MADHYA BHARAT JAGANNADHADAS, J., in his dissenting judgment, opined, that having regard to the other clauses of the Rule, the expression "original domicile" meant something more than residence and in effect, referred to 'place of birth" and was accordingly, hit by *Article 15* or, at least by *Article 14*. For, even if the expression "domicile" was interpreted according to the rules of private international law, there was no reason why a person having his domicile but no residence in the State should be preferred to residents for just less than 5 years without domicile, in the matter of admission into an educational institution. VENKATARAMA AYYAR, J., for the majority, however, interpreted the word "domicile" in the sense in which it is used in private international law and thus avoided the conclusion that the Rule was discriminatory on the ground of place of birth, and held that a classification based on residence was reasonable.

Whatever might be the interpretation of the impugned Rule, the real question with which we are concerned in the present context is whether there could be a "State domicile" in India in the sense of private international law.

The rationale of AYYAR, J., for an answer in the affirmative was that since in India, the States had the power to make different systems of personal laws, there could be a domicile in a State, distinct from domicile in India, which would be relevant for the application of such personal laws. The latter was important for citizenship while the former had nothing to do with the law of citizenship. In this reasoning, AYYAR, J., derived support from the following passage in DICEY'S *Conflict of Laws*,[96] 6th Ed, p 83—

> The area contemplated throughout the Rules relating to domicile is a country or "territory subject to one system of law". The reason for this is that the object of this treatise, in so far as it is concerned with domicile, is to show how far a person's rights are affected by his having his legal home or domicile within a territory governed by one system of law, *i.e.*, within a given country, rather than within another. If, indeed, it happened that one part of a country, governed generally by one system of law, was in many respects subject to special rules of law, then it would be essential to determine whether D was domiciled within such particular part, *e.g.,* California in the United States; but in this case, such part would be *pro tanto a separate country*, in the sense in which that term is employed in these Rules.

The foregoing observation of Dicey is appropriate to a federal country like the U.S.A., but as I have pointed out at the outset, the States under the Indian *Constitution* cannot be said to be sovereign in the American sense.[97] Nor can they be said to have the power to make separate systems of law in the American sense. In the *U.S.A.*,

the legislative powers of Congress are enumerated, and personal laws are not within that enumeration (Article I, section 8). The State Legislatures have, therefore, exclusive sway over such matters as succession, marriage or minority. But in India, these matters are in the Concurrent List (List III, Entry 5), so that if at any time Parliament chooses to legislate on these subjects, that law will prevail over any State legislation which is inconsistent with the law made by Parliament, by virtue of *Article 254(1) of the Constitution*, a like of which is not to be found in the U.S.A. Further as JAGANNADHADAS, J., pointed out in his dissentient judgment, all these subjects are by this time covered by all India legislation, so that the concept of a regional State domicile is uncalled for and unnecessary.[1] One might go further and say that the introduction of such a concept would be pernicious and encourage the separatist forces which are at work in the different States of India and as against which the *Constitution*-makers provided for one citizenship, one judiciary and one system of integrated public services. Perhaps JAGANNADHADAS, J. (in the minority) could have been more emphatic in the condemnation of any judicial support to the introduction of such a concept:

> …….the recognition, express or implied, of regional domicile by a decision of this Court would be contrary to the intendment of the *Constitution* (p 1241 of S.C.R.).

A State in India, might, within limits, classify persons according to residence, but it would be advisable not to make any regional domicile as the standard of classification.[2]

Where the object of the rule seems to impart medical education to the best talent available out of the class of persons who are likely to serve as doctors and where the word “domicile” is used to convey the idea of intention to reside or remain in any particular States such a classification is valid.[3]

[Art 5.2.20.1] *Pradeep v UOI.*

The principle of a regional domicile as enunciated by the majority in *Joshi’s case,*[4] has not been demolished by a three-Judge Bench of Supreme Court by a clear pronouncement that “under the Indian *Constitution*, there is only one domicile, *viz.*, the domicile of the territory of India”, and there is no separate domicile for a State, as in some federal countries, such as the *U.S.A.* (para 8).[5]

In this case,[5] the Supreme Court directed (para 9) the State Government to omit the word “domicile” from their Rules for admission to their educational institutions.

It is submitted the later judgment has not considered the distinction between citizenship and domicile. The finding that India is not strictly a federal country also goes against various decisions to the contrary. The learned author ARVIND P. DATAR in his book *Constitution of India* (Edition 2006) has stated that since the later judgment is based on an incorrect principle, cannot be treated as good law.

The decision in *D.P. Joshi v State of MB,*[6] was rendered by a *Constitution* Bench and the opinion was expressed by four judges with a dissenting judgment by one of the learned Judges. But, *Pradeep Jain’s case* was decided by three judges only. Hence, under no circumstance, it can be said that *D.P. Joshi’s case* is not good law. Even though reference is made to *D.P. Joshi’s case,* there is no discussion about the reasoning given in that case except to state that “domicile” in the rule for admission to medical colleges is meant in a popular sense and not in a technical sense. The lLearned author H.M. SEERVAI has given a very detailed reasoning to conclude that the decision in *Pradeep Jain’s case* in regard to finding on domicile “is clearly wrong”.[7]

In this context, it should be noted that the *Constitution* itself confers certain privileges to the “permanent residents” in the State of Jammu & Kashmir [Article 35A] and Andhra Pradesh [*Article 371B*(2)(c)(ii)].

[Art 5] Citizenship at the commencement of the Constitution.-

In exercise of the power conferred by clause (1) of *Article 370 of the Constitution*, the President with the concurrence of the State of Jammu & Kashmir passed "The *Constitution* (Application to Jammu & Kashmir) Order 1954". Under that Order, Article 35-A was added to the *Constitution* in so far as the State of Jammu & Kashmir is concerned. Article 35-A reads thus:-

> Article 35-A – Saving of laws with respect to "permanent residents and their rights
>
> Notwithstanding anything contained in this *Constitution*, no existing law in force in the State of Jammu & Kashmir and no law hereafter enacted by the legislature of the State- (a) defining the classes of persons who are or shall be permanent residents of the State of Jammu & Kashmir, or (b) conferring on such permanent residents any special rights and privileges or imposing upon other persons any restriction as respects – (i) employment under the State Government; (ii) acquisition of immovable property in the State; (iii) settlement in the State; or (iv) right to scholarships and such other forms of aid as the State Government may provide, shall be void on the ground that it is inconsistent with or takes away or abridges any rights conferred on the other citizens of India by any provision of this Part".

"Permanent residents" are such persons as are declared to be so by any existing law of the State or by any future law enacted by the Legislature of the State. And any such law may confer special rights or privileges or impose restrictions upon the permanent residents with respect to any or all of the matters referred to above.

[Art 5.2.21] Procedure under Clause (a)

Children born of alien parents in India after the commencement of the Indian *Constitution* are entitled to be Indian citizens by registration. Rules 5-12 of the citizenship Rules prescribe the procedure for such registration.[8]

[Art 5.2.22] Clause (c): "*Ordinarily resident*"

This expression is used in *Articles 5*, *6*(b) and 8, but it is not explained in the *Constitution*. It would seem that it means something more than mere "residence" or physical presence, for the word "resident", simpliciter, is also used in the Proviso to *Article 6*.

Though the English statutes under which the expression "ordinary residence" has been interpreted are not in *pari materia* with *our Constitution*, – the following interpretation of the expression in the English *Income-tax Act* may be usefully referred to for explaining the ordinary meaning of the expression –

> Ordinary residence ……is contrasted with casual or occasional or temporary residence ……it connotes residence in a place with some degree of *continuity* and apart from accidental or *temporary absence*.[9]

It thus means nothing more than "usual" residence, or residence in the ordinary course of one's life.[10] A merchant who has for a long time been carrying on business in Madras where he usually abides, has his ordinary residence in Madras, though nearly every year he goes to see his wife and children in the U.K.[11] A person domiciled in Australia who had become a lunatic and was detained in the U.K. while on a visit to that country, was held to be ordinarily resident in the U.K.[12]

The expression "ordinarily resident" denotes a quality of continuity and permanence[13] more than what is involved in "residence" but less than what is required for "domicile".[14] In interpreting this expression for the purposes of jurisdiction in a matrimonial proceeding, the Court of Appeal [14] observed –

[Art 5] Citizenship at the commencement of the Constitution.-

> Ordinary residence is a thing which *can be changed in a day*. A man is ordinarily resident in one place up till a particular day. He then cuts the connection he has with that place – in this case he left his wife; in another case he might have disposed of his house – makes arrangements to have his home somewhere else. Where there are indications that the place to which he moves is the place which he intends to make his home for, at any rate, an indefinite period, as from date he is ordinarily resident at that place.[14]

In *Kuldip Nayar v UOI,*[15] the Supreme Court considered the scope of "ordinary residence" as used in Representation of Peoples Act 1950. It was held therein (at para 243:246) Lexicon refers to *Cicutti v Suffolk County Council,*[16] to denote that the word "ordinarily" is primarily directed not to duration, but to purpose. In this sense, the question is not so much where the person is to be found "ordinarily", in the sense of usually or habitually and with some degree of continuity, but whether the quality of residence is "ordinary" and general, rather than merely for some special or limited purpose (para 243). The words "ordinarily" and "resident" have been used together in other statutory provisions as well and as per Law Lexicon they have been construed as not to require that the person should be one who is always resident or carries on business in the particular place (para 244). The expression coined by joining the two words has to be interpreted with reference to the point of time requisite for the purpose of the provision, in the case of *section 20 of RP Act*, it being the date on which a person seeks to be registered as an elector in a particular constituency. (para 245). Thus, residence is a concept that may be transitory. Even when qualified by the word "ordinarily", the word "resident" would not result in a construction having the effect of a requirement of the person using a particular place for dwelling always or on permanent uninterrupted basis. Thus understood, even the requirement of a person being "ordinarily resident" at a particular place is incapable of ensuring nexus between him and the place in question.

The expression "ordinary resident" and "ordinarily resides" connotes whether one is ordinarily residing at a given place depends so much on the intention to make that place one's ordinary abode.[17]

All the above decisions were approved and relied on in *Ruchi Majoo v Sanjeev Majoo,*[18] The Supreme Court concluded that use of the word "resides" implies something more than a flying visit or a casual visit or stay at a particular place and the question whether one is ordinarily resident at a given place depends so much on the intention to make that place one's ordinary abode. By reading the words "reside" and "resident" together with the word "ordinarily", it becomes clear that a person, before he can be said to be "ordinarily residing" at a particular place, has to have an intention to stay at that place for a considerable long time. It would not include a flying visit or a short or casual visit.[19]

In order to be ordinarily resident in India for the specified period, it is not necessary that the person should have residence in India for every day of this period; what is required is residence during the period without any serious break.[20] "Ordinary resident" means resident during relevant period without any serious break.[21] "Ordinary resident" shall mean a habitual resident of that place or a resident as a matter of fact in regular, normal or usual course. It means an usual and normal resident of that place. The residence must be permanent in character and not temporary or casual. It must be as above for a considerable time", he must have an intention to dwell permanently. He must have settled abode at that place for a considerable length of time for which a reasonable man will accept him as the resident of that State.[22]

The period of five years is required by the express provision in clause (c) of *Article 5*, though less than five years' residence may be sufficient to acquire the domicile required by the first part of the Article.

[Art 5.2.23] Citizenship of the people of Jammu & Kashmir

The *Constitution* (Application to Jammu & Kashmir) Order, 1954, has extended Pt II of the *Constitution* to the State of Jammu & Kashmir with retrospective effect from 26 January 1950, subject to certain exceptions. In the result, —

[Art 5] Citizenship at the commencement of the Constitution.-

People of Jammu & Kashmir will be deemed to be citizens of India at the commencement of the *Constitution of India* (26 January 1950), if they satisfy the conditions laid down in *Article 5* or *6*.

Notwithstanding anything in *Article 7*, however, a “permanent resident” of Jammu & Kashmir who migrated to Pakistan but returns to Jammu and Kashmir under a valid permit for resettlement or permanent return, will be a citizen of India. A Proviso is added to *Article 7*, to this effect, by the *Constitution* (Application to Jammu & Kashmir) Order, 1954.

The expression “permanent resident” is not defined in the *Constitution* Order. It is left to the laws of Jammu and Kashmir (existing or future) to define the classes of persons who are “permanent residents” of Jammu and Kashmir [Article 35A, inserted by clause 2(4)(f) of the Order].

The Constituent Assembly of the State made provisions relating to “permanent residents” by inserting sections 5A-5F [vide the Jammu & Kashmir (Amendment) Act, 2011] in the Jammu & Kashmir *Constitution* Act, 1896, as follows –

5A. Every person who is or is deemed to be a citizen of India under the provisions of Pt II of the *Constitution of India* as applied to the State of Jammu and Kashmir under the *Constitution* (Application to Jammu and Kashmir) Order, 1954, shall be a permanent resident of the State of Jammu and Kashmir, if at the date of commencement of the Jammu and Kashmir *Constitution* (Amendment) Act, 2011, namely the 14th May, 1954.

(a) he was a State Subject of Class II as defined in the State Subject Notification No. 1-L/L84 dated 20th April, 1927, read with Notification No. 13/L dated 27th June, 1932, or

(b) after having acquired immovable property in the Jammu and Kashmir State in pursuance of an *Ijazatnama* granted under the *Ijazatnama* Rules for the time being in force, he has been ordinarily resident in the territory of the State for not less than ten years prior to the date of such commencement.

Explanation.—All persons who before the commencement of the *Constitution* (Application to Jammu and Kashmir) Order, 1954, were State Subjects of Class I or Class II as defined in the State Subject Notification No. I-L/84 dated 20th April, 1927, read with Notification No. 13/L dated 27th June, 1932, and who having migrated after the first day of March, 1947, to the territory now included in Pakistan return to the State under a permit for resettlement in the State or permanent return issued by or under the authority of any law made by the State Legislature shall continue to be deemed permanent residents of the State.

5B. Notwithstanding anything contained in the foregoing provisions of this Act every Company, which, immediately before the commencement of the *Constitution* (Application to Jammu and Kashmir) Order, 1954, was recognised to be a State Subject within the meaning of State Subject Notification No. L-L/84 dated 20th April, 1927, shall be deemed to be permanent resident at such commencement.

Explanation.—In this section “Company” shall have meaning assigned to it in the Jammu and Kashmir *Companies Act*, 1927.

5C. Every person who is or who is deemed to be a permanent resident of the State of Jammu and Kashmir shall subject to the provisions of any law that may be made by the State Legislature, continue to be such permanent resident.

5D. The power of the State Legislature to define the term permanent resident of the State and to regulate their special rights and privileges shall be exercisable only by a majority of not less than two thirds of the total membership of the Legislative Assembly.

5E. Nothing contained in the foregoing provisions shall derogate from the power of the State Legislature to make such laws as it thinks fit with respect to the acquisition of the status of the permanent resident and until the State Legislature enacts provisions in that behalf the existing *Ijazatname* Rules shall continue to remain in force and the existing procedure for obtaining a State Subject Certificate shall be followed for the purpose of securing the certificate of being a permanent resident of the State.

5F. Unless the context otherwise requires all references in the existing laws of the State to the expression “State Subject” shall be construed as reference to the permanent residents of the State.

The *Constitution* of the State of Jammu & Kashmir, 1956, has made the following provisions in regard to “permanent residents” (*Articles 6-10* of that *Constitution*)—

6. *Permanent residents.*—(1) Every person who is, or is deemed to be, a citizen of India under the provisions of the *Constitution of India* shall be a permanent resident of the State, if on the fourteenth day of May, 1954 –

(a) he was a State Subject of Class I or Class II; or

(b) having lawfully acquired immovable property in the State, he has been ordinarily resident in the State for not less than ten years prior to that date.

(2) Any person who, before the fourteenth day of May, 1954, was a State Subject of Class I or of Class II and who, having migrated after the first day of March, 1947, to the territory now included in Pakistan, returns to the State under a permit for resettlement in the State or for permanent return issued by or under the authority of any law made by the State Legislature shall on such return be a permanent resident of the State.

(3) In this section, the expression “State Subject of Class I or of Class II” shall have the same meaning as in State Notification No. I-L/84 dated the twentieth April, 1927 read with State Notification No. 13/L dated the twenty-seventh June, 1932.

7. *Constitution of referred to State subjects in existing laws.*—Unless the context otherwise requires, all references in any existing law to hereditary State Subjects or to State Subject of Class I or of Class II or of Class III shall be construed as references to permanent residents of the State.

8. *Legislature to define permanent residents.*—Nothing in the foregoing provisions of this Part shall derogate from the power of the State Legislature to make any law defining the classes of persons who are, or shall be, permanent resident of the State.

9. *Special provision for Bill relating to permanent residents.*—A Bill making provisions for any of the following matters, namely

(a) defining or altering the definition of, the classes of persons who are, or shall be, permanent residents of the State;

(b) conferring on permanent residents any special rights or privileges;

(c) regulating or modifying any special rights or privileges enjoyed by permanent residents;

shall be deemed to be passed by either House of the Legislature only if it is passed by a majority of not less than two-thirds of the total membership of that House.

10. *Rights of permanent residents.*—The permanent residents of the State shall have all the rights guaranteed to them under the *Constitution of India*.

Grant of permanent residence certificate to the heir of an adopted son of a "State subject", where the adoption is valid and in accordance with restrictions imposed by statute cannot be withheld on the ground that it would open flood- gates for non-State subjects to acquire the status of "State subject" in Jammu and Kashmir.[23]

As noted above in the Sate of Jammu & Kashmir there exists a concept of a person being "state subject". The rights and privileges available in the State are available only to those who fall within the definition and scope of the term "state subject". This concept has been dealt with in detail by a Full Bench of Jammu & Kashmir High Court in *State of Jammu & Kashmir v Susheela Sawhney*[24]. It was held that a female "state subject" marrying a person who is not a "state subject" would not loose her rights which she possessed as "state subject". For detailed discussion *see* *Article 370*.

Articles 8-11 of the *Constitution of India* will extend to Jammu and Kashmir, so that the law of citizenship that Parliament may enact under *Article 11* will extend to Jammu and Kashmir.

The *Citizenship Act, 1955*, thus, extends to the whole of India, including Jammu & Kashmir.

---

1 3 SCW 440, 380.

2 See Hood Phillips & Jackson, *Constitutional & Administrative Law*, 8th Edn, pp 507-509.

3 Though *Article 5* came into operation on 26 November 1949 in view of *Article 394*, the citizenship acquired by virtue of *Articles 5-6* or *8* became operative from 26 January 1950, which date is referred to, in *Article 394* as "the commencement of the *Constitution*".

4 *Article 8*, however, enables a person to become a citizen of India by complying with the provisions of that article even after the commencement of the *Constitution*.

[Art 5] Citizenship at the commencement of the Constitution.-

5 *Kulathil Mammu v State of Kerala,* AIR 1966 SC 1614 : (1966) 3 SCR 706 .

6 *Kulathil Mammu v State of Kerala,* AIR 1966 SC 1614 : (1966) 3 SCR 706 . **See also** *State of J & K v Susheela Sawhney,* AIR 2003 J & K 83 (FB).

7 *State Trading Corp v C.T.O.*, AIR 1963 SC 1811 (*1817*).

8 *U.S. v Cruikshank*, (1875) 92 US 542.

9 Encyclopedia of the Laws of England.

10 *Minor v Happerset,* 21 Wall (US) 162. See P. Ramanatha Aiyer, Advanced Law Lexicon, vol I.

11 Rehynen, Annual Digest of Public International Law Cases, 1929-1930, pp 221, 223. Starke, *International Law*, 8th Edn, p 367.

12 *Steketee v Kimm,* 12 NW 177 : 48 Misc 322.

13 *In re. Rousos* 119 NYS 34.

14 *State Trading Corp of India v Commercial Tax Officer,* AIR 1963 SC 1811 *(supra)*). **See also** *Municipal Committee v State of Punjab,* AIR 1969 SC 1100 : (1969) 1 SCC 475 ; *T.N. Outdoor Advertising Assn. v UOI,* AIR 2003 Mad 340 .

15 *Khodey Brewing & Distilling Industries Ltd v State of Tamil Nadu,* AIR 1990 Mad 124 .

16 1st Edn, 1988.

17 Salmond, *Jurisprudence*, 1948, p 132.

18 *De Jager v A.G. of Natal*, *(1907) AC 326* ; *Chandler v U.S.* (1948) 171 F. (2d.) 921 (*944*).

19 P. Ramanatha Aiyer, Advanced Law Lexicon, Book 1, 3rd Edn Reprint 2007, p 802.

20 *Stoeck v Public Trustee,* (1927) 2 chapter 67.

21 *State Trading Corp v CTO,* AIR 1963 SC 1811 : [1964] 4 SCR 99 .

22 Encyclopedia Britannica, vol.XVI, p 151.

23 P. Ramanatha Aiyer, Advanced Law Lexicon, Book 3, 3rd Edn Reprint 2007, p 3133.

24 Lynch, Re, (1929-30) *Annual Digest of International Law Cases*, 221(*223*).

25 *U.S. v Wong Kim Ark*, (1898) 169 US 649 (*668*).

26 *Nottebohm* Case, (1955) ICI Rep., 4 (*23*); *Articles 1-2* of the Hague Convention of 1930 on the Conflict of Nationality Laws.

27 Hvde, *International Law*, 2nd Ed, p 106.

28 Oppenheim, *International Law,* vol II, 8th Edn, p 642.

29 Cheshire And North, *A Private International Law*, 10th Edn, p 183.

30 *Mohammed Reza Debstani v State of Bombay,* AIR 1966 SC 1436 : (1966) 3 SCR 441 .

31 J.B. Moore, *Digest Of International Law*, vol III, 1906, p 273 – See *State Trading Corp of India Ltd v CTO,* AIR 1963 SC 1811 : (1964) 4 SCR 99 s.

32 Jowitt's Dictionary of English Law, 2nd Edn, p 1219 and also Black's Law Dictionary, 5th Edn, p 923.

33 *Calvin's case* (1608) 7 Co.Rep.la. Jenk 306, 2 State Tr.559; *Sub-nominee Union of Scotland and England case* 1 Moore KB 790, (11 Digest Reissue) 656, 2. See Paras Diwan, *Constitutional Law of India*, vol I, p 87 (M. Hidayatullah, ed.) (Bar Council of India Trust).

34 E.S. Venkataramiah, *Citizenship-Rights And Duties*, 1st Edn, 1988.

35 **Cf.** *State Trading Corp v C.T.O.*, AIR 1963 SC 1811 (*1819*).

36 **Cf.** *Kahane v Parisi*, (1929-30) *Ann. Digest of International Law* Cases, 213.

37 **Cf.** *Calvin's* Case (1608) 7 Co. Rep. 1a.

38 Pitt-Cobbett, 6th Ed, vol I, 196: *Schwarzenberger, International Law*, 1945, vol I, p 150.

39 *R. v Casement*, *(1917) 1 KB 98* ; *Minor v Huppersett*, (1875) 21 Wall. 162.

40 Jones, *British Nationality Law*, 1956, p 6.

41 Vide *Article 2* of the Conflict of Nationality Laws Convention signed at the Hague, 1930; *Stoeck v Public Trustee*, *(1921) 2 Ch 67* (*78*).

42 This Act has been replaced by the British Nationality Act, 1981, as to which see Yardley, *Constitutional & Administrative Law*, 8th Edn, 1995.

43 *Hans Muller v Supdt.*, (1955) 1 SCR 1285 (*1298*).

44 *State of Maharashtra v Prabhakar*, AIR 1966 SC 424 , 426: *Sunil Batra v Delhi Admn.*, AIR 1978 SC 1675 .

45 *Prithi v UOI*, AIR 1982 SC 1413 (para 45).

46 *State Trading Corp of India Ltd v CTO,* AIR 1963 SC 1811 : (1964) 4 SCR 99 *(supra)*.

47 **See also** *British India Steam Navigation Co (British ISN Co) v Jasjit Singh,* AIR 1964 SC 1451 ; *Tata Engg. & Locomotive Co Ltd v State of Bihar,* AIR 1965 SC 40 : (1964) 6 SCR 885 ; **see also** *Dharam Dutt v UOI,* AIR 2004 SC 1295 : (2004) 1 SCC 712 – para 30 of SCC.

48 Corwin, *Constitution of the United States*, 1952, pp 967-9; Burns & Peltason, *Government by the People*, 7th Edn, 1969, p 177.

49 Vide Author's *Introduction to the Constitution of India*.

50 *Anwar v State of J&K*, AIR 1971 SC 337 (*338*).

51 Ins. by the *Constitution* (Eighty-sixth Amendment) Act, 2002, section 4 (w.e.f. 1 April 2010).

52 *State of Gujarat v Mirzapur Moti Kureshi Jamat,* AIR 2006 SC 212 : (2005) 8 SCC 534 .

53 **Cf.** *Sovfracht v Van Udens*, (1943) AC (HL) 203.

54 **Cf.** *Vandyke v Adams*, *(1942) Ch 155* .

55 Black, 7th Edn 1999.

56 E.W. Chana, *Principles of Merchantile Law*, 13th Edn 1950, p 52-53.

57 BLACK, 7th Edn 1999 – see also RAMANATHA AIYER ADVANCE LAW LEXICON, 3rd Edn Reprint 2007 – Book 1, p 208.

58 See V.K. Dewan, *Law of Citizenship, Foreigners & Passports*, 3rd Edn, p 239.

59 *Sayce v Ameer Ali*, *(1952) 1 All ER 326* (*330*); *Masthan Sahib v Chief Commr.*, AIR 1963 SC 533 (*538*).

60 Cf. *R. v Bottril*, *(1946) 2 All ER 434* (*435*).

61 Before this amendment, the definition of "foreigner' excluded British and Commonwealth citizens. [For the text of the definition before amendment, vide *State of Assam v Jilkadar*, AIR 1972 SC 2166 (para 4)]. Hence, a citizen of Pakistan, who was then a Commonwealth, could not be proceeded against under the *Foreigners Act* [cf. *State of UP v Yasin*, AIR 1967 All. 320]. The amendment of 1957 was made in order to plug this loophole. Anybody who is not a citizen of India under the *Constitution* and the *Citizenship Act* is now a "foreigner' and may be prosecuted or deported under the provisions of the *Foreigners Act*, unless otherwise protected [*vide section* 3A inserted in the *Foreigners Act*, by *Article 11* of 1957].

62 *State of Assam v Jilkadar Ali,* AIR 1972 SC 2166 : (1972) 2 SCC 320 *(supra)*.

63 *Fateh Mohammed v Delhi Administration,* AIR 1963 SC 1035 : 1963 (Supp-2) SCR 560). **See also** *Fida Hussain v State of UP,* AIR 1961 SC 1522 : (1961) 2 Cr LJ 702 ; *Hans Muller of Nuremburg v Supt. of Presidency Jail,* AIR 1955 SC 367 : (1955) Cr LJ 876 .

64 *State of UP v Rehmathullah,* AIR 1971 SC 1383 : (1971) 2 SCC 113 .

65 Halsbury, 3rd Ed, vol 1, para 964.

66 *Sovfrachi v Van Udens*, *(1943) 1 All ER 76* .

67 *Porter v Freudenberg*, *(1915) 1 KB 857* (CA).

68 *Bousmaker*, *Ex parte*, (1806) 13 Ves. 71.

69 *Ertel Co v Rio Tinto*, *(1918) AC 260* .

70 *Janson v Driefontein Consolidated Mines Ltd*, *(1902) AC 484* .

71 Stephen, *Commentaries*, 20th Edn, vol I, p 538.

72 *R. v Knockaloe Camp Commandant*, (1917) 87 LJ (KB) 43; *R. v Bottrill*, *(1946) 2 All ER 434* (CA).

73 *Netz v Ede*, *(1946) 1 All ER 628* (*632*).

74 *Netz v Ede*, *(1946) 1 All ER 628* (*632*).

75 *Porter v Frendenburg,* *(1915) 1 KB 857* . See Hood Phillips & Jackson, *Constitutional & Administrative Law*, 8th Edn, pp 513-514.

76 *R v Home Secretary exparte Cheblak,* *(1991) 2 All ER 319* ; *Johntone v Pedlar,* *(1921) 2 AC 262* . See A.W. Bradley & K.D. Ewing, *Constitutional & Administrative Law*, 13th Edn, p 315.

77 *Johnstone v Pedlar*, *(1921) 1 AC 262* .

78 Halsbury, 3rd Ed, vol I, pp 504-6.

79 Pitt-Cobbett, 1947, vol pp 225, 228.

80 *De Jaeger v Att. General of Natal*, *(1907) AC 326* .

81 *Foster's Crown Cases*, 3rd Ed, p 183.

82 *Joyce v Director of Public Prosecutions*, (1946) 1 AER 186 (HL).

83 Halsbury, 3rd Edn, vol I, p 502. **See also** Hood Phillips & Jackson, *Constitutional & Administrative Law,* 8th Edn, p 513.

84 *Wells v Williams,* (1697) 1 Ld Raym 282.

85 *Sylvester's case* (1702) 7 Mod. 150.

86 *Thurn and Taxis (Princess) v Moffit,* (1915) 1 chapter 58; *Schaffenius v Goldburg, (1916) 1 KB 284* . See Hood Phillips & Jackson, *Constitutional & Administrative Law*, 8th Edn, p 513 (Notes).

87 *Crandall v Nevada*, (1867) 6 Wall 35.

88 *Slaughter-House* Cases, (1873) 16 Wall 36.

89 USCA, 8, Section 173.

90 *Wong Wing v U.S.*, (1897) 163 US 228.

91 *Zian Sung v United States*, (1924) 266 US 1; *Truax v Raich*, (1915) 239 US 33.

92 *Davidson v N. Orleans*, (1877) 966 US 97.

93 *Nishimura v U.S.*, (1892) 142 US 651 (*660*).

94 *Russian Volunteer Fleet v U.S.*, (1931) 282 US 481.

95 *Yick Wo v Hopkins*, (1886) 118 US 356; *Asakura v Seattle*, (1924) 265 US 332; *Takahashi v Fish & Game Commn.*, (1948) 334 US 410; *Truax v Reich*, (1915) 239 US 33.

96 *Oyama v California*, (1948) 332 US 633.

97 *Graham v Richardson*, (1971) 403 US 365.

[Art 5] Citizenship at the commencement of the Constitution.-

1 *Heim v McCall*, (1915) 239 US 175; *Clarke v Deckbach*, (1927) 274 US 392.

2 *Terrace v Thompson*, (1923) 263 US 197.

3 *McCready v Virginia*, (1877) 94 US 391.

4 *Patsone v Pennsylvania*, (1914) 232 US 138.

5 *Sugarman v Dougall,* (1973) 413 US 634.

6 *Foley v Connelie,* (1978) 433 US 291.

7 *Ambach v Norwick,* (1979) 441 US 68.

8 See Ralph A. Rossum and G.Alan Tarr, *American Constitutional Law – The Bills of Rights and Subsequent Amendments,* vol II, 6th Edn, p 473.

9 *Home Ins. Co v Dick*, (1930) 281 US 307; *Wong Yang v McGrath*, (1950) 339 US 33.

10 *Kwong Hai v Colding*, (1953) 344 US 590; *Woodby v Immigration & Naturalisation Service*, (1966) 385 US 276.

11 *Harisiades v Shaughnessy*, (1952) 342 US 580.

12 *Knauff v Shaughnessy*, (1950) 388 US 537.

13 *Carlson v Landon*, (1952) 342 US 524; *Galvan v Press*, (1954) 347 US 522.

14 *De Jordan v De George* (1951) 341 US 223; *Boutilier v Immigration Service*, (1967) 387 US 118.

15 U.S.C.A., 8, 41.

16 Article I, section 2(2).

17 Article I, section 3(3).

18 *Anwar v State of J&K*, AIR 1971 SC 337 (*338*). **See also** *Chairman, Railway Board. v Mrs. Chandrima Das,*

AIR 2000 SC 988 : (2000) 2 SCC 465 ; *G. Nasirulla v Public Prosecutor, AP,* AIR 1978 SC 429 : (1978) 1 SCC 220 ; *Vinod Narain v State of UP,* (1996) Cr LJ 1309 .

19 *State of AR v Khudiram Chakmo,* AIR 1994 SC 1461 : 1994 (Supp-1) SCC 615.

20 See *Chairman, Railway Board. v Mrs. Chandrima Das,* AIR 2000 SC 988 : (2000) 2 SCC 465 (*supra*); *Noorinnisa Begum v Dt. Collector, Khammam,* (2001) Cr LJ 3857 (AP); *Saeial Reza Moein v Punjab University, Patiala* AIR 1993 P & H 162.

21 Warwick McKean, *International Law, p* 194.

22 *De Reaedt v UOI*, *(1992) LRC (Const.) 412* (*415, 417*) : (1991) 3 SCC 554 .

23 *David John Hopkins v UOI,* AIR 1996 Mad 314 .

24 *Abdus Samad v State of WB,* AIR 1973 SC 505 : (1973) 1 SCC 451 .

24A Ins. by the *Constitution* (Ninety-seventh Amendment) Act, 2011, section 2 (w.e.f. 15 February 2012).

25 Omitted by the *Constitution* (94th Amendment) Act, 1978 (*i.e.* the right to acquire, hold and disposing property).

26 CHIEF JUSTICE DASS in *Basheshar v C.I.T.,* AIR 1959 SC 149 .

27 *State of WB v Anwar Ali*, AIR 1952 SC 75 .

28 *Budhan Coudhry v State of Bihar,* AIR 1955 SC 191 .

29 Justice E.S. Venkataramiah, *Citizenship-Rights And Duties*, 1st Edn, 1988.

30 See Justice E.S. Venketaramiah, *Citizenship Rights and Duties, pp* 46-47.

31 *Ghulam Sarwar v UOI*, (1967) 2 SCR 271 (*280, 282*).

32 *State of UP v Abdus Samad*, AIR 1962 SC 1506 .

33 *De Reaedt v UOI*, *(1992) LRC (Const.) 412* (*415, 417*) : (1991) 3 SCC 554 .

34 *P. Innaih v Govt. of India, Ministry of Home Affairs,* AIR 1990 AP 203 .

35 *Hasan Ali Raihany v UOI,* AIR 2006 SC 1714 : (2006) 3 SCC 705 : (2006) Cr LJ 2106 ; **see also** *Sarbananda Sonowal (II) v UOI,* (2007) 1 SCC 174 : (2006) 13 Scale 33 .

36 For the text, see Author's *Constitutional Documents*.

37 *Sardar Khan Fateh Ali v State of MP,* AIR 1964 MP 272 .

38 *S.K. Md. Soleman v State of WB,* AIR 1965 Calcutta 312 : (1965) 1 Cr LJ 679 .

39 *Noor Mohammed v State,* AIR 1956 MB 211 ; see also *Naziranbai v State,* AIR 1957 MB 1 .

40 *Kulathil Mammu v State of Kerala,* AIR 1966 SC 1614 : (1966) 3 SCR 706 .

41 *State of MP v Peer Mohd.,* AIR 1963 SC 645 : 1963 (Supp-1) SCR 429.

42 See *Kulathil Mammu v State of Kerala,* AIR 1966 SC 1614 : (1966) 3 SCR 706 (*supra*).

43 *Mobarik Ali Ahmed v State of Bombay,* AIR 1957 SC 837 : (1958) SCR 418 .

44 *Kulsum Bibi v Dt. Magistrate, Kanpur,* AIR 1953 All 178 .

45 AIR 2007 Madras 187 : (2007) 2 Mad LJ 831 (Mad).

46 *Dipali Katia Chadha v UOI,* (1996) 7 SCC 432 .

47 **See also** *Izhar Ahmed Khan v UOI,* AIR 1962 SC 1052 : 1962 (Supp 3) SCR 235.

48 *Irani v State of Maharashtra*, AIR 1972 Bom. 357 . **See also** *Abdul Sattar Haji Ibrahim Patel v State of Gujarat,* AIR 1965 SC 810 : (1965) 1 Cr LJ 759 ; *Kedar Pandey v Narain Bikram Sah,* AIR 1966 SC 160 : (1965) 3 SCR 793 .

49 *Abdul Sattar Hazi Ibrahim Patel v State of Gujarat,* AIR 1965 SC 810 .

50 *World Human Rights Protection v UOI,* AIR 2004 J & K 6.

51 July 19, 1948, is the date when the permit system for migration from India to Pakistan and *vice versa* was introduced.

52 *UOI v Karam Ali,* AIR 1970 Assam & Nagaland 1416.

53 *Shanno Devi v Mangal Sain,* AIR 1961 SC 58 : (1961) 1 SCR 576 .

54 Constituent Assembly Debates, vol IX, No.11.

55 AIR 1961 SC 58 : (1961) 1 SCR 576 .

56 *Kulathil Mammu v State of Kerala,* AIR 1966 SC 1614 : (1966) 3 SCR 706 . **See also** *State of AP v Abdul Khader,* AIR 1961 SC 1467 : (1962) 1 SCR 737 ; *Abdul Sattar v State of Gujarat,* AIR 1965 SC 810 : (1965) 1 Cr LJ 759 ; *State of Assam v Jilkauder Ali,* AIR 1972 SC 2166 : (1972) 2 SCC 320 ; *Abdus Samad v State of WB,* AIR 1973 SC 505 : (1973) 1 SCC 451 .

57 1 March 1947, is the date when disturbances started and migration of Muslims from India began.

58 *State of Bihar v Kumar Amar Singh,* AIR 1955 SC 282 : (1955) 1 SCR 1259 .

59 *State of AP v Abdul Khader,* AIR 1961 SC 1467 : (1962) 1 SCR 737 ; *State of MP v Peer Mohd.,* AIR 1963 SC 645 : 1963 (Supp-1) SCR 429.

60 *Wahid Mian Hiddan Mian v State,* AIR 1961 All 111 .

61 For the meaning of this expression, see under *Article 8 post*. It included British India (i.e. the Provinces) as well as the Indian States.

62 Wharton, Law Lexicon, 14th Edn, p 344.

63 *Abdus Samad v State of WB,* AIR 1973 SC 305 : (1973) 1 SCC 451 .

64 *(1892) 2 Ch 180* CHITTY J. in *Craignish v Craignish,* at 192.

65 Halsbury, 3rd Ed, vol 6, p 198.

66 *Udny v Udny*, *(1869) 1 Sc. & Div. 441* (HL).

67 *Lowenthal v A.G.*, *(1948) 1 All ER 295* (*297*).

68 *American Jurisprudence,* 2nd Edn, vol 3 p 982.

69 *American Jurisprudence,* 2nd Edn, vol 25 pp 10-11.

70 American Restatement, para 9.

71 Dicey, *Conflict of Laws*, 7th Edn, p 85.

72 LAW OF FOREIGNERS, CITIZENSHIP AND PASSPORTS by Dr. GURBAX SINGH, 2003 Edition pp 569, 570.

73 *D.P. Joshi v State of HP,* AIR 1955 SC 334 : (1955) 1 SCR 1215) relied on in *Saurabi Choudhari v UOI,* AIR 2004 SC 361 : (2003) 11 SCC 146) .

74 See Cooley, *A Treatise on the Constitution Limitations*, pp 599-60.

75 *McMullen v Wodsworth*, (1889) 14 AC 631 , as cited in *UOI v Dudhnath Prasad,* AIR 2000 SC 525 : (2000) 2 SCC 20 .

76 *Abdus Samad v State of WB,* AIR 1973 SC 505 .

77 *UOI v Dudh Nath Prasad,* (2000) 2 SCC 20 : AIR 2000 SC 525 (*supra*).

78 (1869) LR 1 Sc & Div 441 (HL) (*supra*).

79 *Casdagli v Casdagli, (1919) AC 145* : 120 LT 52 (HL).

80 *Wallach, In re.* *(1950) 1 All ER 199* .

81 AIR 1955 SC 334 (*supra*).

82 AIR 1984 SC 1420 : (1984) 3 SCC 654 (*supra*).

83 See H.M. Seervai, *Constitutional Law of India*, 4th Edn, vol I, p 317. **See also** *State v Narayan Das Mangilal,* AIR 1958 Bom 68 (FB) where a similar view of *Pradeep Jain's case* was accepted.

84 For a discussion on domicile, see *D.P. Joshi v State of MB,* AIR 1955 SC 334 ; *Central Bank of India v Ram Narain,* AIR 1955 SC 36 : (1955) 1 SCR 697 ; *Mohd. Reza Debstani v State of Maharashtra,* AIR 1966 SC 1436 : (1966) 3 SCR 441 .

85 *Pradeep Jain v UOI,* AIR 1984 SC 1420 (For admission).

86 *Sankaran Govindan v Lakshmi Bharathi,* AIR 1974 SC 1764 .

[Art 5] Citizenship at the commencement of the Constitution.-

87 *Chandigard Housing Board v Gurmit Singh,* (2002) 2 SCC 29 , para 9 : AIR 2002 SC 587 .

88 *Louis Deracht v UOI,* AIR 1991 SC 1886 : (1991) 3 SCC 554 .

89 *Abdus Samad v State of WB,* (1973) 1 SCC 451 .

90 *Kedar v Narain*, AIR 1966 SC 160 (*163-4*).

91 Under *section 7 of the Indian Succession Act*, a posthumous child has the domicile of his father.

92 Dicey, *Conflict of Laws* 1949, p 88.

93 *State v Abdullah Khan,* AIR 1965 Raj 11 , 12.

94 *Laxmi Narayan v State of Jharkhand,* AIR 2002 Jharkhand 104 .

1 *Abdul Ghani v State,* AIR 1956 MP 250 .

2 *Kedar Pandey v Narain Bikram Sah,* AIR 1966 SC 160 : (1965) 3 SCR 793 .

3 Black's Law Dictionary, 8th Edn **See also** *Dr. Pradeep Jain v UOI,* AIR 1984 SC 1420 : (1984) 3 SCC 654 .

4 *Yogesh Bhardwaj v State of UP,* AIR 1991 SC 356 : (1990) 3 SCC 355 .

5 *Chitra Devi v Chembakavalli,* AIR 2000 Mad 38 .

6 *K. Ramakrishna v Osmania University,* AIR 1962 AP 120 , 122.

7 *Shrivas Rajeshkumar v Chairman Selection Committee,* AIR 1987 Guj 4 , 8.

8 *Vithal Maruti v State,* AIR 1952 Bom 451 .

9 P. Ramanatha Aiyar, Advanced Law Lexcon, 3rd Edn Reprint 2007, Book-II, p 1473.

10 *Central Bank of India v Ramnarain*, AIR 1955 SC 36 ; *Yogesh v State of UP*, AIR 1991 SC 356 .

11 *Jopp v Wood*, (1865) 4 De G.J. & section 616.

12 *Udny v Udny*, *(1869) 1 Sc. & Div. 441* (*458*) (HL); *UOI v Rashid,* (1969) II SCWR 52 (*55*).

13 *Udny v Udny*, *(1869) 1 Sc. & Div. 441* (*458*) (HL).

14 *Ramsay v Liverpool Infirmary, (1930) AC 588* .

15 *Udny v Udny,* *(1869) 1 Sc & Div 441* (HL) (*supra*).

16 *Bell v Kennedy,* (1868) LR 1 Sc & Div 307 (HL).

17 *Moina Khosla v Amardeep Khosla,* AIR 1986 Delhi 399 .

18 AIR 1964 Ker 244 .

19 *Sankaran v Lakshmi,* AIR 1974 SC 1764 : (1975) 3 SCC 351 .

20 *Munro v Mundro,* (1840) 7 Cl & F 842. See Dr. Gurbux Singh, *Law of Foreigners, Citizenship and Passport*, 2003, p 580.

21 *Casdagli v Casdagli*, (1918) Rule 89(*99*).

22 *Winans v A.G.*, *(1904) AC 287* ; *Hodgson v De Beauchesne*, (858) 12 Moo. P.C. 285. **See also** *Sankaran v Lakshmi,* AIR 1974 SC 1764 : (1975) 3 SCC 351 .

23 *Sankaran Govindan v Lakshmi Bharathi,* AIR 1974 SC 1764 : (1975) 3 SCC 351 .

24 *Ross v Ross*. *(1930) AC 1* (*6*); but a declaration under *section 11 of the Indian Succession Act, 1925*, may be taken into consideration in determining "domicile' for the purpose of *Article 5*.

25 *Ross v Ross*. *(1930) AC 1* (*6*).

26 But a declaration under *section 11 of the Indian Succession Act, 1925*, may be taken into consideration in determining "domicile' for the purpose of *Article 5*.

27 *Kedar v Narain*, AIR 1966 SC 160 , 163, 164. III.

28 *Moorehouse v Lord*, (1863) 10 HLC 272.

29 *Winans v A.G.*, *(1904) AC 287* ; *Hodgson v De Beauchesne*, (858) 12 Moo PC 285; *Bell v Kennedy*, (1868) LR 1 HL (SC) 307 (*319*).

30 *Bell v Kennedy*, (1868) LR 1 HL (Sc) 307 (*319*).

31 *Smt. Surya v Teja Singh,* AIR 1975 SC 105 : (1975) 1 SCC 120 .

32 *Kedar Pandey v Narain Bikram Sah,* AIR 1966 SC 160 : (1965) 3 SCC 793 (*supra*).

33 *Abdus Samad v State of WB,* AIR 1973 SC 505 (*506*); **Cf.** *Raza Dabstani v State of Bombay,* (1966) 3 SCR 441 ; *Central Bank v Ram Narain,* AIR 1955 SC 36 .

34 *Ramsay v Liverpool Infirmary*, *(1930) AC 588* .

35 *Ramsay v Liverpool Royal Infirmary*, *(1930) AC 588* . **See also** *Louis De Raedt v UOI,* (1991) 3 SCC 554 : AIR 1991 SC 1886 .

36 *Mohammed Reza Destani v UOI,* AIR 1966 SC 1436 : (1966) 3 SCR 441 *(supra)*

37 *Bhanwarao Khan v UOI,* AIR 2002 SC 1614 : (2002) 4 SCC 346

38 *Abdus Samad v State of WB,* AIR 1973 SC 505 (506).

39 *Bell v Kennedy*, (1868) LR 1 HL (SC) 307 (*319*).

40 *Ramsay v Liverpool Royal Infirmary*, *(1930) AC 588* . **See also** *Louis De Raedt v UOI,* (1991) 3 SCC 554 : AIR 1991 SC 1886 .

41 Cheshire, *Private Inernational Law*, 1947, pp 166-7.

42 *May v May*, *(1943) 2 All ER 146* .

43 *Moorehouse v Lord*, (1863) 10 HLC 272(*292*).

44 This is expressly provided in the Explanation to *section 10 of the Indian Succession Act, 1925*.

45 See *section 12 of the Indian Succession Act, 1925*.

46 *Fasbender v Att. General*, (1922), 1 Ch 232; *Jopp v Wood*, (1865) 4 De G.J. & Section 616.

47 *State of J & K v Dr. Susheela Sawhney,* AIR 2003 J & K 83.

48 *Harvey v Farnie*, *(1882) 8 App Cas 43* .

49 *State of Bihar v Kumar Amar Singh,* AIR 1955 SC 282 : (1955) 1 SCR 1259

50 Dr. Gurubux Singh, *Law of Foreigners, Citizenship and Passports,* 2003, p 584

50a See H.M. Seervai, *Constitutional Law of India,* 4th Edn, vol 1.

51 *Harvey v Farnic,* (1882) 8 App Cases 43 (*supra*); **see also** *Yelverton v Yelverton,* (1859) 1 Sw & Tr 574.

52 *Re. Wallach* (1950) 1 All ER 190 .

53 *In re. Scullord* (1957) chapter 329.

54 *AG for Alberta v Cook,* *(1926) AC 444* (PC).

55 *Lord Advocate v Jaffery,* *(1921) 1 AC 146* .

56 *Prem Pratap Singh v Jagat Pratap Kumar,* AIR 1944 All 97 ; **See also** *Allabandi v UOI,* AIR 1954 All 457 .

57 *Dolphine v Rohim,* (1859) 7 HLC 390.

58 See Kumud Desai, *Indian Law od Marriage and Divorce,* 3rd Edn, p 720.

59 *Karimunnisa v State,* AIR 1955 Ngp 6 : ILR (1954) Ngp 798 .

60 See Paras Diwan, *Hindu Law,* 2nd Edn, p 115.

61 **Cf.** *State of Bihar v Amar Singh*, 1955 SC 282.

62 See *Mohammed Reza Debstani v State of Bombay,* AIR 1966 SC 1436 : (1966) 3 SCR 441 *(supra).*

63 *Kulsum v Dt. Magistrate*, AIR 1953 All. 178 . See also *Malkiat Singh v State of Punjab,* AIR 1969 Pun 250 ; *Dawood Mohd. v UOI,* AIR 1969 Guj 79 .

64 *Forbes v Forbnes*, (1854) Kay 341 (*353*); To this rule, *section 14 of the Indian Succession Act, 1925*, engrafts an exception –

"The domicile of a minor does not change with that of his parent, if the minor is married or holds any office or employment in the service of the Government, or has set up, with the consent of the parent, in any distinct business".

65 *Harvey v Farnie*, *(1882) 8 App Cas 43* .

66 *Karimannissa v State*, AIR 1955 Ngp 28 .

67 See *section 15 of Indian Succession Act* and section 12 of the Hindu Adoption & Maintenance Act 1956.

68 **See also** Paras Diwan, *Hindu Law,* 2nd Edn, pp 115-16.

69 Gurubux Singh, *Law Of Foreigners, Citizenship And Passports*, 2003, p 584.

70 *UOI v Rashid*, (1969) 2 SCWR 5 .

71 *Bell v Kennedy*, (1868) 1 HL (SC) 307.

72 See *Abdus Samad v State of WB,* (1973) 1 SCC 451 : AIR 1973 SC 505 .

73 *Udny v Udny*, (1869) 1 HL (SC) 441. **See also** *Abdus Samd v State of WB,* (1973) 1 SCC 451 : AIR 1973 SC 505 ; *Kulathil Mammu v State of Kerala,* AIR 1966 SC 1614 : (1966) 3 SCR 706 .

74 *Boldrini v Boldrini*, (1932) p 9 (*15*); *Wahl v A.G.*, (1932) 147 LT 382 .

75 *Winans v A.G.*, *(1904) AC 287* ; *Yogesh v State of UP*, AIR 1991 SC 356 (para 10).

76 *Kedar v Narain*, AIR 1966 SC 160 (*163-4*). **See also** *Abdus Samd v State of WB,* (1973) 1 SCC 451 : AIR 1973 SC 505 ; *Mohd. Reza Dastane v State of Bombay,* AIR 1966 SC 1436 .

77 *Kedar v Narain*, AIR 1966 SC 160 (*163-4*).

78 *Louis De Raedt v UOI,* (1991) 3 SCC 554 : AIR 1991 SC 1886 .

79 *Ramsay v Liverpool Royal Infirmary*, *(1930) AC 588* .

80 *Udny v Udny*, (1869) 1 (Sc.) & Div. 441 (*450;58*) (HL).

81 Cheshire, *Private International Law*, 1965, p 162.

82 *Munro v Munro,* (1840) 7 Cl & F 842.

83 *Kedar Pandey v Narain Bikram Sah,* AIR 1966 SC 160 : (1965) 3 SCR 793 (*supra*).

84 See V.K. Dewan, *Law of Citizenship, Foreigners & Passports*, 3rd Edn, p 62.

85 *Udny v Udny*, (1869) 1 (Sc.) & Div. 441 (*450; 458*) (HL); Cheshire, *Private International Law*, 1965, p 162.

86 *Winans v A.G.*, *(1904) AC 287* ; *Yogesh v State of UP*, AIR 1991 SC 356 (para 10).

87 *Louis De Raedt v UOI,* AIR 1991 SC 1886 : (1991) 3 SCC 554 .

88 *Abdul Sattar v State of Gujarat*, AIR 1965 SC 810 (para 5).

89 *Attaullah v Attaullah*, AIR *1953 Cal. 530* (*533*).

90 *Abdus Samad v State of WB*, AIR 1973 SC 505 (*506*).

91 *Central Bank of India v Ramnarian*, AIR 1955 SC 36 .

92 *Shanno Devi v Mangal Sain*, AIR 1961 SC 58 (*64*).

93 *State of MP, v Shah Md.*, AIR 1969 SC 1234 (*1236-7*).

94 *Joshi v State of MP*, (1955) 1 SCR 1215 (*1223, 1226*, per VENKATARAMA AYYAR, J.). **See also** *N. Vasundara v*

State of Mysore, AIR 1971 SC 1439 : (1971) 2 SCC 22 ; *Anand Madan v State of Haryana,* (1995) 2 SCC 135 ; where place of residence is domicile in State was held to be valid; *Jagdish Saran v UOI,* (1980) 2 SCC 768 : (1980) 2 SCR 831 ; *Saurabh Choudhari v UOI,* AIR 2004 SC 361 : (2003) 11 SCC 146 .

95 *Joshi v State of MP*, (1955) 1 SCR 1215 (*1223, 1226*, per VENKATARAMA AYYAR, J.). **See also** *N. Vasundara v State of Mysore,* AIR 1971 SC 1439 : (1971) 2 SCC 22 ; *Anand Madan v State of Haryana,* (1995) 2 SCC 135 ; where place of residence is domicile in State was held to be valid; *Jagdish Saran v UOI,* (1980) 2 SCC 768 : (1980) 2 SCR 831 ; *Saurabh Choudhari v UOI,* AIR 2004 SC 361 : (2003) 11 SCC 146 .

96 Also Halsbury, 3rd Ed, vol VI, paras. 242, 249.

97 Cf. *State of WB v UOI*, (1964) 1 SCR 371 (*397-8, 404-5*).

1 Cf. *State v Narayandas*, AIR 1958 Bom 68 (FB).

2 Cf. *Kakatia Medical College v Jayagri*, ILR (1968) AP 101 (*123*).

3 *N. Vasudevan v State of Mysore,* (1971) 2 SCC 22 .

4 *Joshi v State of MP*, (1955) 1 SCR 1215 (*1223, 1226*, per VENKATARAMA AYYAR, J.); SEERVAI, *Constitutional Law of India*, p 126 seems to support the majority decision but wihout any additional reason. It is submitted that the learned author has given various reasons why majority opinion expressed in the *Pradeep Jain v State of UP,* is not correct. See his book CONSTITUTIONAL LAW OF INDIA 4th Edition. Various subsequent decisions have also approved the principle of "domicile" as stated in *Joshi* case. See *Joshi v State of MP,* (1955) 1 SCR 1215 *(supra)*). But see *Laxmi Narayan v State of Jharkhand,* AIR 2002 Jharkhand 104 ; *Asiya Shah v State of Jharkhand,* AIR 2002 NOC 210 (Jharkhand).

5 *Pradeep v UOI*, AIR 1984 SC 1420 (paras. 8-9).

6 AIR 1955 SC 334 : (1955) 1 SCR 1215 .

7 See H.M. Seervai, *Indian Constitutional Law*, 4th Edn, vol I, pp 316-321, para 6.30 to 6.45.

8 *N.H.R.C. v State of AR*, (1996) 1 SCC 742 (para 17).

9 *Levene v Inland Rev. Commissioners*, *(1928) AC 225* .

10 *Inland Rev. Commissioners v Lysaught*, *(1928) AC 234* .

11 *Turnbull v Inland Rev. Commrs.*, 42 SC LR 15.

12 *Re Machenzie* *(1941) Ch 69* .

13 *Lowry v Lowry*, *(1952) 2 All ER 61* (*64*).

14 *Macrae v Macrae*, *(1949) 2 All ER 34* (*36*) CA.

15 (2006) 7 SCC 1 : AIR 2006 SC 3127 .

16 *(1981) 1 WLR 558* : *(1980) 3 All ER 689* .

17 See *Bhagyalakshmi v K. Narayana Rao,* AIR 1983 Madras 9 ; *Aparna Banerjee v Tapan Banerjee,* AIR 1986 P & H 113; *Ram Sarup v Chimanlal,* AIR 1952 All 79 ; *Vimala Devi v Maya Devi,* AIR 1981 Raj 211 ; *Giovanni Marco Muzzu (Dr.), Re.* AIR 1983 Bom 243 .

18 (2011) 6 SCC 479 : AIR 2011 SC 1952 .

19 *UOI v Dudh Nath Prasad,* (2000) 2 SCC 2 -; **see also** *Jagir Kaur v Jaswant Singh,* AIR 1963 SC 1521 : (1964) 2 SCR 73 .

20 *Shanno Devi v Mangal Sain*, AIR 1961 SC 58 (*61-2*).

21 *State of AR v Khudiram Chakma,* AIR 1994 SC 1461 : 1994 (Supp-1) SCC 615

22 *Dr. Manmohan Singh v Election Commission of India,* CR No. 1087/1994 of Assam High Court Order dated January 3, 1996, See *Election Commissioner of India v Dr. Manmohan*

[Art 5] Citizenship at the commencement of the Constitution.-

Singh, AIR 2000 SC 231 : (2000) 1 SCC 591

23 *Vijay v State of J&K*, AIR 1989 J&K 10 (R.P. SETHI, J.).

24 AIR 2003 J&K 83 (FB) (Jhanji, Doabia & Muzaffar Jan, JJ).

End of Document

[Art 6.] Rights of citizenship of certain persons who have migrated to India from Pakistan.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART II CITIZENSHIP

[Art 6.] Rights of citizenship of certain persons who have migrated to India from Pakistan.-

Notwithstanding anything in *Article 5*, a person who has migrated to the territory of India from the territory now included in Pakistan shall be deemed to be a citizen of India at the commencement of this *Constitution* if –

(a) he or either of his parents or any of his grand- parents was born in India as defined in the Government of India Act, 1935 (as originally enacted); and

(b)

(i) in the case where such person has so migrated before the nineteenth day of July, 1948, he has been ordinarily resident in the territory of India since the date of his migration, or

(ii) in the case where such person has so migrated on or after the nineteenth day of July, 1948, he has been registered as a citizen of India by an officer appointed in that behalf by the Government of the Dominion of India on an application made by him therefor to such officer before the commencement of this *Constitution* in the form and manner prescribed by that Government.

Provided that no person shall be so registered unless he has been resident in the territory of India for at least six months immediately preceding the date of his application.

[Art 6.1] Scope of Article 6

Both *Articles 6* and *7* are exceptions to *Article 5*. While *Article 7* deals with persons migrating to Pakistan from India, *Article 6* deals with the case of persons migrating to India from Pakistan, and extends Indian citizenship to persons who would not be citizens of India under *Article 5*.[1] The expression “migrated” cannot have different meanings in the two Articles. *Article 6* deals with migration into India which confers citizenship while *Article 7* deals with migration from India which disables a person from claiming citizenship of India at the Commencement of *Constitution*.[2] Such persons are divided into two categories, according to the date of migration.

(a) Those migrating *before* 19 July 1948. In this case, in addition to descent from a parent or grand-parent born in undivided India, there is an additional requirement of *ordinary* residence in the territory of India since the date of his migration, in order to acquire the citizenship of India on 26 January 1950 [Clause (b)(i)].

(b) Those migrating *after* 19 July 1948. In this case, apart from descent as aforesaid, the additional requirements are (i) registration as a citizen of India before a competent authority as specified in clause (b)(ii);

[Art 6.] Rights of citizenship of certain persons who have migrated to India from Pakistan.-

and (ii) *residence* in the territory of India for not less than 6 months immediately preceding the date of his application.

Migration envisaged under this article only means “Coming to India” from outside.[3]

Article 9 is, however, an exception to *Article 6*. In the result, if a person had voluntarily acquired the citizenship of a foreign State prior to the commencement of the *Constitution*, he cannot acquire Indian citizenship by virtue of *Article 6*.[4]

Article 6 begins with the words “notwithstanding anything in *Article 5*” and *Article 7* begins with the words “notwithstanding anything in *Articles 5* and *6*”. The presence of these *non-obstante* clauses in both these articles clearly indicates that they were meant to deal with abnormal situation and prescribe condition as to who shall be “deemed to be citizen” of India on the date of commencement of *Constitution* (*Article 6*) and who shall “not to be deemed” (*Article 7*). It is also remarkable that both these articles are silent on the question of domicile and the presence of *non-obstante* clause in the beginning of these articles clearly shows that the concept of domicile was not to be brought into them when deciding who shall be deemed to be citizen (*Article 6*) and who shall not to be deemed to be citizen (*Article 7*). It is therefore clear that as regards the word “migrated”, the intention must have been to give a wider meaning to that word, namely, going “from one territory to another”.

However, there is one qualification which must be attached to the word “migrated” as used in these articles, even though the word has a wider meaning of going from one place to another in the context of these articles. That qualification is that the movement should have been voluntary and should not have been for a specific purpose and for a short and limited period. A case where a person went on what may be called “a visit” from the territory of India to the territory of Pakistan for a short and limited period with a specific purpose would not be covered by the word “migrated” as used in *Article 7*. Similarly, a case where a person was forced to go from the territory of India to the territory of Pakistan as for example, where he might have been kidnapped or abducted would not be covered by the word “migration” as used in *Article 7*. Barring such cases, the word “migrated” as used in *Articles 6* & *7* has the wider meaning, namely, movement from one country to another territory whether or not with the intention of permanent residence in the latter place.

Migration must be complete before the commencement of *Constitution*. The movement should be voluntary and not purely temporary, such as a movement for purposes of a business transaction or a professional or a social visit.[5]

Articles 6 confers citizenship upon a person on the condition mentioned therein who would otherwise not be entitled to the status of citizenship under *Article 5*, whereas *Article 7* disables a person from claiming the status notwithstanding that he otherwise complies with the requirements of *Articles 5* or *6*, if he had after the specified date migrated from the territory of India to the territory of Pakistan. *Article 6* deals with migration to India which confers citizenship and *Article 7* deals with migration from India which disables a person from claiming citizenship of India at the commencement of *Constitution*.[6]

A change of domicile is not migration.[7]

Whether a person “migrated” from India to Pakistan or *vice versa* is a question of fact. Onus to prove the contrary falls upon him[8] and the question whether he acquired Pakistan citizenship could only be determined by Central Govt.[9] Minor children of a man domiciled in India acquire in law their father’s domicile, even if born in Pakistan and would be Indian citizens and in their case, there is no question of migration.[10]

[Art 6.2] “*Migrated*”

Article 6 refers to a migration, at any time before the commencement of the *Constitution* (26 January 1950), to a place now in the territory of India.[11]

[Art 6.] Rights of citizenship of certain persons who have migrated to India from Pakistan.-

The word “migrated” has the same connotation under sections 6 and 7 and since *Kulathil’s case*[12] it is now settled that the concept of “domicile” is not involved in the term “migrate’; it only means physical movement save for a specific purpose and a short and limited period of time.[12] The intention of permanent residence is not necessary to constitute migration under *Article 6*.[13] (See, further, under *Article 8*).

It was held in that case that it may sometimes happen that when a person moves from one place to another or from one country to another he has, at the point of time of moving, an intention to remain in the country where he moved only temporarily, but later on forms an intention of residing there permanently. There can be no doubt that when this happens, the person should at this later point of time be held to have “come” to the country with the intention of residing there permanently. In other words though at the point of time he moved into the new place or new country he cannot be said to have migrated to this place or country, he should be held in law to have migrated to thus later place or country at the later point of time when he forms the intention of residing there permanently.

Two elements, *viz.* mental desire and physical departure to the land are essentially necessary to constitute an act of migration. The word “migration” does not include a mere desire or wish of a person to go to a foreign land.[14]

The expression “migration” in *Article 7 of the Constitution of India* embraces in its scope two conceptions (1) going from one place to another (2) the intention to make the destination a place of abode or residence in future.[15]

Migration is changing one’s abode, quitting one’s place of abode and settling permanently at another place. The burden of proving migration lies on the person setting up the plea of migration. An inference of migration can well be made from the known facts of the chief characteristics of the family, the language, observance of customs and rites though they are not sufficient to prove that they are governed by a particular school of law. The presumption can be displaced by showing that the immigrant had renounced the law of the place of his origin and adopted the law of the place to which he had migrated. The onus lies on the person alleging that the family had renounced the law of its origin and adopted that prevailing in the place to which he had migrated.[16]

The movement between two countries must be voluntary and not be for a specific purpose for a short or limited duration.[17]

[Art 6.3] Clause (a): “India” and “India as defined in the Government of India Act, 1935’

Throughout the *Constitution*, the word “India” means the territory of “Bharat” as defined in *Article 1*, *ante*.

The expression “India as defined in the Government of India Act, 1935, (as originally enacted)” which is used in *Article 6*(a) or *Article 8* means “India” as defined in section 311(1) of the Government of India Act, 1935, *i.e.* British India as well as the territories of the Indian States. Part of this territory has since been included in Pakistan. [See, further, under *Article 8*, *post*].

[Art 6.4] Clause (b)(i): “Ordinarily resident”

What is necessary is that taking the period beginning with the date on which migration became complete, and ending with the date 26 November 1949, as a whole, the person has been “ordinarily resident in the territory of India”. It is not necessary that for every day of this period he should have resided in India. In the absence of the definition of the words “ordinarily resident” in the *Constitution*, it is remember to take the words to mean “resident during this period without any serious break”.[18]

The word “Ordinarily” is primarily directed not to duration but to purpose. The question is not so much where the person is to be found “ordinarily”, in the sense of “usually” or habitually’ and with some degree of continuity’ (as

opposed to “unusually” or “extraordinarily) but whether the quality of residence is “ordinary” and general, rather than merely for some special or limited purpose.[19]

A person was ordinarily resident in the United Kingdom if he habitually and normally resided lawfully in the United Kingdom from choice and for a settled purpose such as education.[20]

The phrase “Ordinarily Resident” does not include residence for the purpose of education alone.[21]

The applicant for a study grant, who had lived for 13 years in Hong Kong where her father was employed, was not “ordinarily resident” in Lancashire, notwithstanding that the family came from there intended to return there, and had a house there.[22]

[Art 6.5] Clause (b)(ii): Migrants from Pakistan and Bangladesh after 19 July 1948

Petitioners were refugees from Bangladesh. They did not take any step to acquire citizenship of India. Mere long stay in India which was unauthorised or recording of their names in voters’ list and education, could not confer on them the rights of Indian citizenship.[23]

In *Sarbananda Sonowal v UOI,*[24] the Supreme Court held that allowing large-scale refugees in India from Bangalesh, really amounts to “aggression” *i.e.,* invasion by unarmed men. If large-scale refugees are allowed to remain, they become totally unmanageable which will affect economic and political well being, and the ordinary inmates or citizens in the State will become a minority. The direction was given to take steps to repatriate such refugees back to Bangladesh.

There was a lacuna in this clause in so far as it did not make it clear if the person registered under the present provision was to be deemed to be a citizen of India from the date of the registration or from 26 January 1950. This is now made clear by *section 5(5) of the Citizenship Act, 1955*, *viz.*, that though the registration is anterior to 26 January 1950, the effect of registration, *i.e.*, the acquisition of citizenship commences from 26 January 1950.

---

1 *State of MP v Peer Md.*, AIR 1963 SC 645 (*647*) : 1963 (Supp-1) SCR 429.

2 *Kulathil Mammu v State of Kerala,* AIR 1966 SC 1614 : (1966) 3 SCR 706 *(supra)*

3 *UOI v Karam Ali,* AIR 1970 Assam & Nagaland and it must have taken place before the Commencement of *Constitution* (*Shanno Devi v Mangal Sain,* AIR 1961 SC 58 : (1961) 1 SCR 576 *(supra)*

4 *State of UP v Shah Md.*, (1969) II SCWR 223 (*229*).

5 *Kulathil Mammu v State of Kerala,* AIR 1966 SC 1614 : (1966) Cr LJ 1217 : (1966) 3 SCR 706 (*supra*).

[Art 6.] Rights of citizenship of certain persons who have migrated to India from Pakistan.-

6 *Kulathil Mammu v State of Kerala,* AIR 1966 SC 1614 : (1966) Cr LJ 1217 : (1966) 3 SCR 706 (*supra*); **see also** *State of Assam v Jilkauder Ali,* AIR 1972 SC 2166 : (1972) 2 SCC 320 .

7 *H.E. Habathullah v State,* AIR 1963 Gujarat 128 .

8 *State of AP v Abdul Khader,* AIR 1961 SC 1467 : (1962) 1 SCR 737 : (1961) 2 Cr LJ 573 ; **see also** *Golam Rasul v Supt. of Police,* AIR 1965 Cal 305 ; *Hatbatullah v State,* AIR 1964 Guj 128 .

9 *State of UP v Shah Mohammed,* AIR 1969 SC 1234 : (1969) 1 SCC 771 : (1969) 3 SCR 1006 ; *Ali Ahmed v Electoral Registration Officer,* AIR 1965 Cal 1 .

10 *Nizaranbhai v State,* AIR 1957 MB 1 .

11 *State of AP v Khader*, (1962) 1 SCR 737 .

12 *Kulathil v State of Kerala*, AIR 1966 SC 1614 (*1619*), overruling *Shanno Devi v Mangal Sain*, AIR 1961 SC 58 .

13 *Shanno Devi v Mangal*, AIR 1961 SC 58 (*61, 62*). See also *Mashkarul Hasan v UOI,* AIR 1967 All 565 ; *Delhi Administration v Iqbal Mohammed,* AIR 1971 SC 472 : (1970) 3 SCC 498 .

14 *State of Assam v Abdul Safar,* AIR 1978 Gau 48 .

15 *Badmizzaman v State,* AIR 1951 All 16 . Not good law in view of *Kulathil Mammu v State of Kerala* (*supra*), where it was held "intention to reside permanently is not necessary".

16 *Vimala Bai v Hiralal Gupta,* (1990) 2 SCC 22 : 1990 (1) Scale 49 .

17 *Mohammed Nazaharul Haque v B. Baghi,* AIR 1974 Cal 29 ; *Kulathil Mammu v State of Kerala,* AIR 1966 SC 1614 : (1966) 3 SCR 706 .

18 *Shanno Devi v Mangal Sain,* AIR 1961 SC 58 : (1961) 1 SCR 576 .

19 *Cicutti v Suffold Country Council,* *(1980) 3 ALL ER 689* , 694 (Education Act, 1962, S.1)

20 *Shah v Bamet London Borough Council,* *(1983) 1 ALL ER 226* , 234.

21 *Orphanos v Queen Mary College,* *(1985) 2 All ER 233* , 237 (HL).

22 *R.V. Lancashire County Council, ex p. Huddleston,* *(1986) 2 All ER 941* . [Education (Mandatory Awards) Regulations 1983 (No.1135), Reg. 5 (4)]. (Stroud, 5th Edn 2000)

23 *Shishuwala Pal v UOI*, A.M.P., 1989 254 (DB).

24 AIR 2005 SC 2920 : (2005) 5 SCC 665 .

[Art 7] Rights of citizenship of certain migrants to Pakistan.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART II CITIZENSHIP

[Art 7] Rights of citizenship of certain migrants to Pakistan.-

Notwithstanding anything in *Articles 5* and *6*, a person who has after the first day of March, 1947, migrated from the territory of India to the territory now included in Pakistan shall not be deemed to be a citizen of India.

Provided that nothing in this Article shall apply to a person who, after having so migrated to the territory now included in Pakistan, has returned to the territory to India under a permit for resettlement or permanent return issued by or under the authority of any law and every such person shall for the purposes of clause (b) of *Article 6* be deemed to have migrated to the territory of India after the nineteenth day of July, 1948.

[Art 7.1] Article 7: Migration to Pakistan

I. This Article says that if a person had “migrated” from the territory of India to the territory now included in Pakistan, after 1 March 1947 (but before 26 January 1950),[25] for a purpose other than temporary or casual,[26] he would lose his citizenship of India which could-have accrued to him by his coming within the terms of *Article 5*.[27]

II. *Article 5* is subject to *Article 7*. Hence, even though a Muslim wife goes to Pakistan, leaving her husband in India and so retaining her Indian domicile through her husband, she loses her Indian citizenship by reason of section 7, if she fails to prove that she went to Pakistan only for some temporary purpose.[27]

(i) A had his domicile in the territory of India and he and both his parents were born in India. In 1947, being in Government service, he opted for Pakistan and actually went there after the 1st of March, 1947, and continued to serve under the Government of Pakistan until February, 1948, when he resigned and came back to India.

Held, that though A could acquire the citizenship of India under *Article 5*(a) or (b), he could not be deemed to be a citizen of India at the commencement of the *Constitution* because he had migrated to Pakistan within the meaning of *Article 7* by reason of his departure from India after having opted for Pakistan after the 1st March, 1947.[28]

On the other hand—

If a person continued to be in India till 26 January 1950 (without any migration before that date) and acquired citizenship of India under *Article 5*, he would not lose that citizenship by the fact of migration to Pakistan subsequently, unless it is shown that under *Article 9*, he has voluntarily acquired the citizenship of a foreign State.[29]

(ii) Accused migrated to Pakistan in 1948. He did not return to India under any permit for resettlement or permanent return. *Held*, that he cannot be deemed to be citizen of India on 26 January 1950, in view of *Article 7 of the Constitution*. Decision under *section 9(2) of the Citizenship Act, 1955* is not therefore necessary.[30]

III. *Article 7* refers to migration between 1 March 1947 and 26 January 1950.[31] It is true that migration after 26 January 1950 would also be migration after 1 March 1947, but it is clear that a person who has migrated after 26 January 1950 cannot fall within the relevant clause because the requirement of the clause is that he must have migrated at the date when the *Constitution* came into force. “Has migrated” in the context cannot possibly include cases of persons who would migrate after 26 January 1950. Only a person who “has migrated” at the commencement of *Constitution*, falls within the scope of *Article 7*. It is true that *Article 7* begins with a *non-obstante* clause by reference to *Articles 5* and *6*, and there is little overlapping. The *non-obstante* clause may not serve any purpose in regard to cases falling under *Article 5*(c), but such overlapping does not mean that there is any inconsistency between the two Articles and it can, therefore, have no effect on the construction of *Article 7* itself. Therefore, *Article 7* refers to migration which has taken place between 1 March 1947 and 26 January 1950. While *Article 5* confers a right of citizenship on a person if at the time of the commencement of the *Constitution* he fulfils any of the conditions enumerated therein, *Article 7* is a distinct provision which prevents the consequences contemplated by *Article 5*, in the event of circumstances which fulfil the provisions of *Article 7*.[32] It is also clear from the above decision that *Article 7* clearly overrides *Article 5*. Firstly, the *non-obstante* clause in *Article 7* is very significant. Whatever rights a person might acquire by virtue of having his domicile in India at the commencement of *Constitution* and on account of his birth in India, those rights would be lost if he migrates to Pakistan from India after 1 March 1947. The words “notwithstanding anything in *Article 5*” which occur in *Article 6* also, unmistakably destroy the rights which would otherwise accrue by virtue of *Article 5*. Secondly, in *Article 394*, the words “at the commencement of this *Constitution*” can mean only 26 January 1950. Thirdly, the omission of the words “at the commencement of the *Constitution*” in *Article 7* is very significant. Where the *Constitution* wanted to limit the scope of the article by reference to the date of the commencement of *Constitution*, it used an appropriate phrase in that behalf. That is why the words “at the commencement of *Constitution*” which occurred in *Article 5* and *6* did not occur in *Article 7*.[33]

The question about the citizenship of persons migrating *after* 26 January 1950 will have to be determined under the provisions of the *Citizenship Act*, 1935.[31] The test laid down by the *Citizenship Act* in such cases is not the factum of “migration” but whether as a result of such migration, with attending circumstances, the person may be held to have voluntarily acquired the citizenship of another country, under section 9.[34]

In the case of a person who migrated to the territory now included in Pakistan *before* 1 March 1947, there is no question of applying either *Article 5* or *Article 7 of the Constitution*. He could never deemed to be a citizen of India at the commencement of the *Constitution*, because he had no domicile in the territory of India on 26 January 1950. If he returns to India after the commencement of the *Constitution*, he can, however, acquire citizenship of India under the provisions of the *Citizenship Act*.

IV. It is also to be noted that *Article 7* had to be introduced particularly for the purpose of dealing with “migration to Pakistan after 1 March 1947” because of the abnormal incidents taking place on the eve of the independence

of India.[35] As stated earlier, 1st March, 1947, was the date when the communal riots started in India and the migration of Muslims from India to the Muslim majority areas began.

Migration to countries other than Pakistan prior to 26 January 1950 is not governed by *Article 7*. That would come under *Article 9*, *post*, and the relevant question would be whether the person had voluntarily acquired the citizenship of a foreign State.[36]

V. If a person continued to be in India till 26 January 1950 and acquired Indian citizenship under *Article 5*, he would not lose that citizenship by the fact of subsequent migration to Pakistan, unless it is shown that under *Article 9*, he has voluntarily acquired the citizenship of a foreign State.[36]

[Art 7.2] "*Migration*"

The view of the Supreme Court on the question as to what constitutes "migration" has undergone a change. As stated under *Article 6*, in *Shanno Devi's case*,[37] the Court held that by "migration" is meant "coming to India with the *intention* of residing here *permanently*". Even where a person moved to a place for a temporary period he may, if he subsequently forms the *intention* of residing there permanently, be said to have "migrated to that place, from the latter point of time".[36] The concept of "domicile" thus entered into this interpretation of the term "migration".

But this view has been *overruled* by the Supreme Court by a majority of 5:1 in *Kulathil's case*,[38] to hold that an intention to settle permanently is not required to constitute "migration'; mere physical movement from one country to the other would suffice, provided only it is not for a specific purpose and for a short and limited period.

It follows that departure from India to Pakistan for the purpose of employment or labour[39] or service under the Government, after opting for that Government,[40] constituted migration.

When a person migrates from the territory of India to the territory, now included in Pakistan and did not return to the territory of India under a permit for resettlement issued by authority of law, such a person shall not be deemed to be a citizen of India.[41]

The fact that the person acquired no property in Pakistan while he possessed considerable property in India[42] is not relevant consideration in determining the question of migration.

But a citizen of India would not lose his citizenship by a mere *temporary* visit to Pakistan on some business or otherwise.[43] But a person who, after moving to Pakistan, subsequently came to India on a temporary permit, representing himself to be a Pakistani national, can hardly claim that has went to Pakistan only for a temporary purpose.[44]

Hence, migration within the meaning of *Articles 6-9* is possible in cases where there is no change of domicile and it is possible for a married woman or a minor child to "migrate" to Pakistan even though the husband or the father continues to reside in India.[44]

The Gujarat High Court held that a minor may not be able to contract, but there is nothing in the *Constitution of India* to show that a minor cannot migrate.[45] In another case, the Patna High Court held that the rule of Private International Law cannot be applied to interpret or construe *Article 7*, and the court has only to examine whether on proved or admitted facts and circumstances, the minor can be held to have migrated from the

territory of India to Pakistan.[46] Migration is something distinct from the act of changing one's nationality or domicile and even if a minor is not capable of changing his nationality or domicile, he can certainly migrate in the sense of going away to another country for good.[47]

CHESHIRE in *Private International Law*, (10th Edn, pp 179-80) says: "The doctrine that a change in the father's domicile is necessarily communicated to the child, is generally laid down in absolute term; but it has been altered by the Domicile and Matrimonial Proceedings Act 1973. In one case, both parents (including adopted parents under Children Act 1975) are alive, but are living apart. These provisions apply only to the case where both parents are alive and living apart, and provided the child is legitimate or adopted. If a father on the death of his wife abandons his children and acquires fresh domicile elsewhere, and the children are left to be cared for by grandparents, their domicile is still decided by obscure common law rules. However, it seems most unlikely that a court would affirm the inevitability of the application of the father's domicile". This principle was adopted by the Allahabad High Court in *Rashid Hasan v UOI.*[48] In that case, the petitioner was born of Indian parents in India and resided in India for more than five years preceding the commencement of *Constitution*. He was left by his father who migrated to Pakistan. The petitioner continued to live in India, was enrolled as a voter and contested an election for and was elected as Chairman of his Town Area Committee. The court held that the father deserted the petitioner and in the circumstances the domicile of the petitioner continued to be Indian and he remained an Indian citizen.

It is held that two elements are required to constitute migration – (a) a mental desire to go to another country, and (b) the physical departure for that country. A mere desire at one time to leave India is not sufficient to constitute migration if there is no physical departure from India.[49]

Persons entering India as refugees are deemed to be foreigners.[50]

[Art 7.3] Nationality, domicile and migration, in relation to married women

Marriage, in the case of woman, is one of the modes of acquisition of nationality, according to the traditional rules of international law. As has been stated earlier, the woman acquires the nationality of her husband on marriage which would subsist so long as the marriage tie is not severed by death or divorce. The municipal laws of some countries (*e.g.*, the Cable Act, 1922 of the U.S.A.), however, make exceptions in favour of an independent nationality of a woman, according to which a woman would retain her pre-marital nationality after marriage. This rule of independent nationality has later been embodied in the International Covenant on the Nationality of Married Women, 1957,[51] which, however, has not received the signature of the requisite number of States and has not, therefore, come into force. Consequently, the divergence caused by municipal laws of different States continues and it sometimes happens that a married women may have a *double* nationality, – one of her husband, and the other her own pre-maritial nationality which may be allowed to be retained by her State (*e.g., U.S.A.*, as just stated).

The UN Convention on the nationality of Married Women allows women the right to retain their nationality independent of their marital status. *Article 3*(1) of the Convention says : Each contracting State agrees that the alien wife or one of the nationals may, at her request, acquire the nationality of her husband through specially privileged naturalisation procedures; the grant of such nationality may be subject to such limitation as may be imposed in the interest of national security or public policy. *Article 3*(2) says: "Each of the contracting State agrees that the present Convention shall not be construed as affecting any legislation or judicial practice by which the alien wife of one of the nationals may, at her request, acquire her husband's nationality as a matter of right".

Since our Supreme Court has held[52] that the concept of "domicile" is irrelevant in determining "migration" under *Articles 6* and *7*, it would follow that a married woman may be held to have migrated to Pakistan and forfeited her Indian domicile and citizenship, if she moves to Pakistan within the ambit of *Article 7*, even though her

husband may be continuing to live in India. This was held by the Supreme Court in *Amar Singh's case*,[53] even before the decision in *Kulathil's case*.[52]

The rule of "domicile" is not applicable for interpreting the meaning of migration under *Article 7*.[54]

[Art 7.4] Migration of a minor

I. In some earlier cases it was held that since, in Private International Law,[55] the domicile of a minor ordinarily follows that of his or her father, where the father migrated from India to Pakistan in 1949, his minor child acquired the citizenship of Pakistan;[56] and she cannot revive or acquire the citizenship of India by coming back to India on a Pakistani passport and living with her maternal grandfather, an Indian citizen.[57] She can, of course, acquire Indian citizenship by registration under *section 5(4) of the Citizenship Act, 1955*. Conversely, if a minor left for Pakistan, or citizenship derived from the father,[58] unless and until he would change his domicile after attaining majority.[59]

This argument was rejected by the Supreme Court and held that if the minor could form an requisite intention he could migrate,[60] where it was held that even though the minor may be incompetent to contract, there is nothing in the *Constitution* to show that he could not migrate.[61]

II. But since the decision of the Supreme Court in *Kulathil's case*,[62] it is not necessary to depend upon the rules of International law for the application of *Article 7*. It has been decided in that case[63] that the concept of "domicile" is not involved in "migration" under *Article 7*, and that physical movement to Pakistan for residence for a non-temporary period would suffice. Hence, a minor may be held to have migrated under *Article 7* where he moved to Pakistan within the relevant period with or *without* the company of his father.[64]

[Art 7.5] Proviso

The Proviso does not apply unless the person returns to India under a valid permit for resettlement or permanent return.[65]

> A person migrated to Pakistan with his minor children in 1948, so that the children also lost their Indian domicile. Subsequently, the children were brought back to India by the father but not under a permanent permit referred to in the Proviso to *Article 7*. *Held*, the Indian citizenship or domicile of the children was not revived.[66]

The Proviso would be applicable only if the permit was a *valid* permit. A permit which was invalid or which has been revoked according to law, cannot attract the Proviso.

[Art 7.6] Application to Jammu & Kashmir

In its application to the State of Jammu and Kashmir the following further proviso shall be added to *Article 7*:–

> *Provided further* that nothing in this Article shall apply to a permanent resident of the State of Jammu and Kashmir who, after having so migrated to the territory now included in Pakistan, returns to the territory of that State under a permit for resettlement in that State or permanent return issued by or under the authority of any law made by the Legislature of that State, and every such person shall be deemed to be a citizen of India.[67]

25 *State of MP v Peer Md.*, AIR 1963 SC 645 (*647*); *State of AP v Khader*, AIR 1961 SC 1468 (*1470*).

26 *Kulathil v State of Kerala*, AIR 1966 SC 1614 (*1619*), **overruling** *Shanno Devi v Mangal Sain*, AIR 1961 SC 58 .

27 *State of Bihar v Amar Singh*, (1955) 1 SCR 1259 (*1265*).

28 *State of Assam v Jilkador,* AIR 1972 SC 2166 (2168).

29 *Mobarik Ali v State of Bombay*, AIR 1957 SC 857 (*867*).

30 *Sadiq v State of UP*, AIR 1990 All. 9 (DB).

31 *State of MP v Peer Md.*, AIR 1963 SC 645 (*649*); *State of AP v Khader*, AIR 1961 SC 1467 .

32 *State of MP v Peer Mohd.,* AIR 1963 SC 645 : 1963 Supp (1) SCR 429 .

33 **See also** Dr. Gurbax Singh, *Law of Foreigners, Citizenship and Passports*, 2003, p 597.

34 *State of MP v Peer Md.*, AIR 1963 SC 645 (*649*); *State of AP v Khader*, AIR 1961 SC 1467 ; *State of UP v Shah Md.*, (1969) II SCWR 223 (*229*).

35 Cf. *Kulathil v State of Kerala*, (1966) 3 SCR 706 (*710*): Casebook (No. 4).

36 *State of UP v Shah Md.*, (1969) II SCWR 223 (*229*).

37 *Shanno Devi v Mangal Sain*, AIR 1961 SC 68 (*61-2*).

38 Cf. *Kulathil v State of Kerala*, (1966) 3 SCR 706 (*710*): Casebook (No. 4); Per GAJENDRAGADKAR C.J., WANCHOO, SHAH, SIKRI & RAMASWAMI J.J. [HIDAYATULLAH J. adhered to his view in *Shanno Devi's* case, but agreed with the majority on facts (715, 719).

39 *Jacob v Kutch Government* AIR 1951 Kutch 38 .

40 This view of the Author, expressed at p 105 of vol I of the previous Ed. of the Commentary and at p 10 of the Sixth Ed of the *Shorter Constitution* has since been affirmed by the Supreme Court in *UOI v Jilkadar Ali*, AIR 1961 SC 2166 . For reasons, see *Golam Rasul v Supdt. of Police*, AIR 1965 Cal. 302 .

41 *Sadiq Ali v State of UP,* AIR 1990 All 9 .

42 *Nisar v UOI*, AIR 1958 Raj. 65 .

43 *State of AP v Khader*, AIR 1961 SC 1468 (*1470*).

44 *State of Bihar v Amar Singh*, (1955) 1 SCR 1259 (*1264*).

45 *State v Abdul Sattar,* AIR 1963 SC 226 ; **see also** *Habibullah Haji Fazali Hussain v State,* AIR 1964 Guj 128 .

46 *Mohammed Yusuf v UOI,* AIR 1967 Pat 266 .

47 *Mohd. Aqbal Alim Uddin v State,* AIR 1963 Punj 520 ; **see also** *Mohd. Umar v State,* AIR 1961 Ori 150 ; *Mashkural Hasan v UOI,* AIR 1967 All 565 .

48 AIR 1967 All 154 .

49 *State v Abdul Sattar,* AIR 1978 Gau 48 .

50 *Shishuwala Pal v UOI,* AIR 1989 MP 254 . **See also** *Sarbananda Sonowal v UOI,* AIR 2005 SC 2920 : (2005) 5 SCC 665 .

51 Sorensen, *Manual of Public International Law,* (1968), p 474-5.

52 *Kulathil v State of Kerala*, (1966) 3 SCR 706 (*710*); Casebook (No. 4).

53 *State of Bihar v Amar Singh*, (1955) 1 SCR 1259 (*1264*).

54 *Abdul Samad v State of WB* AIR 1973 SC 505 : (1973) 1 SCC 451 .

55 Cheshire, *Private International Law*, 8th Edn, pp 176-8.

56 *Jacob v Kutch Government*, AIR 1951 Kutch 38 .

57 *Umar v State*, AIR 1961 Ori 150 .

58 *Sharafat v State of UP*, AIR 1960 All 637 (*639*).

59 *Mukhtar v State of UP*, AIR 1965 All 191 .

60 *Kumar Amar Singh* case, AIR 1955 SC 282 : (1955) 1 SCR 1259 . See *State v Abdul Sattar,* AIR 1963 Guj 226 .

61 *State of Bihar v Kumar Amar Singh,* AIR 1955 SC 252 ; *Habatullah Haji Fazale Hussain v State,* AIR 1964 Guj 128 ; *Mohd. Iqbal Ali Uddin v State,* AIR 1963 Pun 520 ; *Mohammed Yousuf v UOI,* AIR 1967 Pat 266 .

62 *Kulathil v State of Kerala*, (1966) 3 SCR 706 (*710*); Casebook (No. 4); *State of Assam v Jilkader*, AIR 1972 SC 2166 (*2168-9*).

63 *Kulathil v State of Kerala*, (1966) 3 SCR 706 (*710*); Casebook (No. 4).

64 *Abdullah v State*, AIR 1972 Raj 272 (*276, 729*).

65 This refers to a permit issued under the influx from Pakistan (Control) Act, 1949 (repeated in 1952).

66 *Kulsum v Dt. Magistrate*, AIR 1953 All 178 .

67 Added by the *Constitution* (Application to Jammu & Kashmir) Order, 1954.

End of Document

[Art 8] Rights of citizenship of certain persons of Indian origin residing outside India.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART II CITIZENSHIP

[Art 8] Rights of citizenship of certain persons of Indian origin residing outside India.-

Notwithstanding anything in *Article 5*, any person who or either of whose parents or any of whose grand-parents was born in India as defined in the Government of India Act, 1935 (as originally enacted), and who is ordinarily residing in any country outside India as so defined shall be deemed to be a citizen of India if he has been registered as a citizen of India by the diplomatic or consular representative of India in the country where he is for the time being residing on an application made by him therefor to such diplomatic or consular representative, whether before or after the commencement of this *Constitution*, in the form and manner prescribed by the Government of the Dominion of India or the Government of India.

[Art 8.1] *"India as defined in the Government of India Act, 1935 (as originally enacted)*'

This definition was contained in section 311(1) of the Government of India Act, 1935, as follows:

> "India" means British India together with all territories of any Indian Ruler under the suzerainty of His Majesty, all territories under the suzerainty of such an Indian Ruler, the tribal areas, and any other territories, which His Majesty in Council may, from time to time, after ascertaining the views of the Federal Government and the Federal Legislature, declare to be part of India.

Again, "British India" was defined in the same clause as –

> "British India" means all territories for the time being comprised within the Governors' Provinces and the Chief Commissioners' Provinces.

[Art 8] Rights of citizenship of certain persons of Indian origin residing outside India.-

So, "India" comprised the Governor's Provinces – Madras, Bombay, U.P., Bihar, C.P. and Berar, Assam, N.W.F.P., Orissa, Sind and the Punjab and Bengal as they stood before the partition, the Chief Commissioners' Provinces of British Baluchistan, Delhi, Ajmer- Merwara, Coorg. Andaman and Nicobar Islands and Panth Pilploda; the Indian States and tribal areas. It is obvious that parts of these territories have since been included in Pakistan.

[Art 8.2] '*Ordinarily residing*'

The expression "ordinarily residing" at a particular place, means, one must have an intention to stay at that place for a considerably long time. In would not include a flying visit or a short or casual presence of that place. A person who is residing in a particular district for a considerable long time, he will be treated to be "ordinarily residing" in that district. The mere fact that he holds property in another district will not affect his status as such.[68]

[Art 8.3] "*Any country outside India*"

It is to be noted that in *Article 8* the expression used in "country outside India" and not "foreign State", which comes under *Article 9*. Thus, it would include a Commonwealth country though it has been declared not to be a foreign State under *Article 367*(3); but Pakistan was not outside the India of the Government of India Act, 1935.

[Art 8.4] "*Form and manner prescribed*"

See the Form of application for and Certificate of Registration under *Article 8* at pp 5-6 of the "General Rules and Orders under the *Constitution*."

[Art 8.5] "Whether before or after the commencement of the Constitution"

The difference between *Articles 5-6* and *8* is this: Under *Article 5*, a person is not a citizen unless he possessed the qualifications laid down therein at the commencement of the *Constitution*. Under *Article 6* also, the qualifications must have existed at the date of commencement of the *Constitution* and the registration referred to in clause (b) (ii) of *Article 6* must have been obtained on the application made *before* the commencement of the *Constitution*.

Article 8, on the other hand, provides that a person coming within it shall be entitled to become a citizen of India *at any time* he makes the application under that Article. In other words, while *Articles 5-6* do not provide any mode for acquisition of citizenship of India subsequent to the commencement of the *Constitution, Article 8* does provide a mode of acquiring Indian citizenship subsequent to the commencement of the *Constitution*, but it is limited only to one class of persons *viz*. a person (a) who or either of whose parents or grand-parents was born in India as defined in the Government of India Act, 1935 (as originally enacted), and (b) who is ordinarily residing in any country outside India as defined in the Government of India Act, 1935 (as originally enacted).

The expression "before the commencement of the *Constitution*" obviously refers to he period between 26-11 - 49 and 26 January 1950, because prior to the adoption of the *Constitution* no question of registration for acquiring Indian Citizenship could possibly arise.

It is to be noted that *section 5(1) of the Citizenship Act, 1955*, excludes from its purview persons who have already become citizens by virtue of the provisions of the *Constitution*. The provisions of *Article 8* are not, thus, abrogated by the *Citizenship Act*.

[Art 8.6] Date from which the registration takes effect

Section 5(5) of the Citizenship Act, 1955 (see p 139, *post*) now explains from what point of time the registration under the present Article confers citizenship of India. (i) Where the registration takes place after 26 January 1950, the citizenship is obviously acquired from the date of registration. (ii) But where it took place prior to 26 January 1950, the person shall be deemed to acquire the citizenship of India with effect from 26 January 1950, or the date of registration, whichever be later.

[Art 8] Rights of citizenship of certain persons of Indian origin residing outside India.-

[Art 8.7] Articles 8 and 9.

Article 9 makes it clear that a person cannot acquire Indian citizenship by registration under *Article 8* if he has already acquired, voluntarily, the citizenship of a "foreign State". Such person can, however, become an Indian citizen by naturalisation under *section 6(1) of the Citizenship Act* (see *post*).

---

68 *UOI v Dudhnath Prasad,* (2000) 2 SCC 20 : AIR 2000 SC 525. See the Commentaries to *Article 5*.

End of Document

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART II CITIZENSHIP

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

No person shall be a citizen of India by virtue of *Article 5*, or be deemed to be a citizen of India by virtue of *Article 6* or *Article 8*, if he has voluntarily acquired the citizenship of any foreign State.

[Art 9.1] Disqualification for Citizenship: Acquisition of Citizenship of Foreign State

Notwithstanding his having the qualifications required by any of the *Articles 5*, *6* and *8*, a person shall not be a citizen of India, if he has voluntarily acquired the citizenship of any foreign State. *Article 9* thus deals with cases where the citizenship of a foreign State had been voluntarily acquired *before* 26 January 1950.[69]

[Art 9.1.1] "*Foreign State*"

This is defined in *Article 367*(3). It means any State other than India, save those that are declared not to be "foreign State" by Order of the President. As matters stand, Pakistan is not a "foreign State" under the present Article by reason of the Declaration as to Foreign State Order, 1950, made under *Article 367*(3), read with *Article 392(3) of the Constitution*.

But the words "foreign State" do not occur in *Article 7* and *Article 9* has no reference to *Article 7*.[70] Hence, persons who migrated to Pakistan after 1 March 1947 and acquired Pakistani nationality, cannot claim the citizenship of India,[70] Thus, though Pakistan does not come under *Article 9*, the bar to acquisition of Indian citizenship by reason of acquisition of Pakistani citizenship may arise under *Article 7*.

It is also to be noted that *section 9(1) of the Citizenship Act* uses the expression "*another* State" instead of "foreign State", so that acquisition of the citizenship of Pakistan or Commonwealth countries would terminate India citizenship, notwithstanding anything in *Article 9*, read with *Article 367(3) of the Constitution*.

[Art 9.1.2] '*Has acquired*'

This means acquisition of foreign citizenship before 26 January 1950.[71] If the person acquired foreign citizenship before the commencement of the *Constitution*, he cannot take the advantage of *Article 5*.[72] In *State of MP v Peer Mohammed,*[73] it was held: "….it is clear that the acquisition of citizenship of any foreign state to which this article refers is acquisition made prior to the commencement of *Constitution*. "Has voluntarily acquired" can have no other meaning and the application of *Article 9* is confined to cases of acquisition of citizenship of foreign state prior to the commencement of the *Constitution*." In another case, the very same

learned Judge said that *Article 9* applied to migration which had taken place "after 26 January 1950"[74] was subsequently corrected in *Kulathil Mammu v State of Kerala,*[75] and was said to be an "oversight". The learned author H.M. SEERVAI in his *Constitutional Law of India* (vol I, p 338) after stating that the decision in *Peer Mohammed's case* is correct, has said: "The decision in *Peer Mohammed's case* is correct, even though it involves the strange result that before the enactment of *Citizenship Act 1955*, the acquisition of foreign citizenship did not involve the loss of Indian citizenship. Parliament realised this in enacting *section 9 of Citizenship Act* which provides that "any citizen of India who….voluntarily acquires, or has at any time between 26 January 1950 and commencement of this Act, voluntarily acquired the citizenship of another country shall upon such acquisition or as the case may be, such commencement, cease to be a citizen of India. Thus, section 9 of the Act accepts the consequences of the manner in which *Article 9* has been framed, namely, that if foreign citizenship is acquired after the commencement of *Citizenship Act*, the person acquiring such citizenship ceases to be citizen only upon the commencement of the Act. However, it has been held that where a person continued to be in India upto July 1950, *prima facie* by virtue of *Article 5* read with *Article 7*, he was a citizen of India on the commencement of the *Constitution* and continued to be so upto the date of offence committed by him in July/August 1950 unless he showed under *Article 9* that he has voluntarily acquired the citizenship of a foreign country.[76]

The eminent jurist H.M. SEERVAI has commented on this approach of Supreme Court in holding that a passport conclusively proves the citizenship of holder of passport. The decision is based on principles of estoppel. According to the learned author, relying on Halsbury's Laws of England (vol 15, p 168), estoppel is described as a rule of evidence, but the whole concept is more correctly viewed as a substantive rule of law, and this principle was given importance by the Supreme Court. It is also said that conclusive presumptions are enacted by legislature where in public interest it is desired to shut out enquiry about the real state of facts. This is done because the benefit derived by individuals from being permitted to prove the real state of things is outweighed by the disadvantage to the public at large from such inquiry. The learned author says that a false statement made by an applicant for a passport that he was a citizen would not establish that fact, and a man cannot make himself a citizen of another country by making a false declaration to that effect. If, for instance, a Pakistani citizen makes a false declaration that he is an Indian citizen and obtained an Indian passport, it would not make him an Indian citizen, for, a statement in a passport that the applicant was an Indian citizen is not one of the modes by which a person can be said to be a citizen at the commencement of *Constitution*.[77] The principle of estoppel also cannot have any application, since it can have no application against statute, for, so to hold would be to add a mode of acquisition of citizenship contrary to the law of land.[78]

Cases of migration taking place *after* 26-1 -50 do not fall under *Article 9* but have to be dealt with under the provisions of *section 9 of the Citizenship Act, 1955*.[79] If a person voluntarily migrates to a foreign State *after* that date he will lose his Indian citizenship under the provisions of the *Citizenship Act*[80] (see *post*).

Acquiring a foreign passport does not result in automatic cessation of citizenship under *section 9 of the Citizenship Act*. Central Government must carry out an enquiry and decide the issue and it is only thereafter that a person can be treated as a foreigner.[81] In Similar circumstances Hon'ble Supreme Court directed the Central Government to consider the case of the petitioner therein.[82]

But acquisition of Pakistani passport and entering India was held to have fatal effect in claiming Indian citizenship. As per Rule 3 of Schedule III of Citizenship Rules, 1956, conclusive presumption could be raised of the fact that on obtaining a foreign passport voluntarily he has acquired the citizenship of a foreign country.[83]

The Central Government alone has exclusive jurisdiction to decide the question as to whether an Indian citizen has voluntarily acquired foreign citizenship of a country between 26.1.1950 and commencement of *Citizenship Act*.[84] *Section 9 of Citizenship Act* is a complete code as regards termination of Indian citizenship on the acquisition of citizenship of a foreign country. When the matter is under section 9(2) of the Act, all other provisions are excluded. The *Citizenship Act* will not yield in favour of Representation of Peoples Act 1951 merely because *RP Act* is enacted under *Article 327* and a declaration given by Central Government has to be given effect to by the High Court in deciding an election petition.[85] The question whether a person is a foreigner

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

or not is decided by the Central Govt. or by such authority in accordance with procedure prescribed, who is a *quasi*-judicial authority.[86]

The *Citizenship Act* is an Act to provide for the acquisition and determination of Indian citizenship. The Act does not provide for cancellation of a certificate of registration issued under section 5 of the Act. Section 9 speaks of termination of citizenship upon acquisition of the citizenship of another country which event entails cessation of citizenship.[87]

[Art 9.1.3] "*Voluntarily acquired*"

1. "Voluntarily" acquisition means acquisition by naturalisation or direct grant by the foreign State; entering into the publics service of the foreign State; acquiring a domicile of choice in the foreign State; becoming an adopted child or wife of an alien; and the like. The act, however, must be sufficient for acquiring the citizenship of the foreign State in question, according to the law of that State.

The word "voluntarily" means that the person obtaining the passport acted in his own volition and knew the nature of his act and did not act in performance of a legal duty nor due to coercion or fraud or misrepresentation or mistake.[88] The expression "voluntarily" is used in this section to mean "naturalisation" in the narrow sense of that term and as excluding compulsory, involuntary or collective naturalisation which some States have adopted at different times.[89] The mere fact that a passport is given to a person who is an Indian citizen, whether the passport is legal evidence or not, cannot lead to the irresistible conclusion that the person has voluntarily acquired the citizenship of a foreign state, for, such a passport could also be issued to a citizen by birth or descent.[90]

2. The expression would exclude cases where the factum of acquisition does not originate in the free volition of the person concerned, *e.g.*, where it is caused by force, fraud or misrepresentation,[91] or operation of law.

3. Again, such acquisition must have taken place prior to the time when he claims to have acquired Indian citizenship under *Articles 5*, *6* or 8. The present Article does not deal with the loss of the Indian citizenship by acquisition of citizenship of a foreign State at any subsequent point of time, which is dealt with by *section 9 of the Citizenship Act*. [See next caption].

Section 8 of the Citizenship Act deals with renunciation of citizenship. If any citizen of India of full age and capacity, who is also a citizen or national of another country, makes in the prescribed manner a declaration renouncing his Indian citizenship, the declaration shall be registered by the prescribed authority and upon such registration the person shall cease to be a citizen of India. It also says that when a person ceases to be a citizen of India, every minor child of that person will also cease to be a citizen of India. But, such a minor within one year of attaining of full age, may seek to revive his citizenship and thereupon he shall gain become a citizen of India. So far as women are concerned, the statute says that any woman who is or has been married, shall be deemed to be of full age.

[Art 9.2] section 9 of the Citizenship Act[92]

The *Citizenship Act* does not provide for cancellation of a Certificate of Registration issued under section 5. Section 9 only speaks of termination citizenship upon acquisition of citizenship of another country which even entails the cessation of citizenship of India.[93]

[Art 9.2.1] 9. Termination of citizenship.

(1) Any citizen of India who by naturalization, registration or otherwise voluntarily acquires, or has at any time between the 26th January, 1950 and the commencement of this Act voluntarily acquired, the citizenship of another country shall, upon such acquisition or, as the case may be, such commencement, cease to be a citizen of India:

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

Provided that nothing in this sub-section shall apply to a citizen of India who, during any war in which India may be engaged, voluntarily acquires the citizenship of another country, until the Central Government otherwise directs.

(2) If any question arises as to whether, when or how any person has acquired the citizenship of another country, it shall be determined by such authority, in such manner, and having regard to such rules of evidence, as may be prescribed in this behalf.

1. While *Article 9 of the Constitution* deals with the acquisition of citizenship of a foreign State which had taken place *prior* to 26 January 1950, *section 9 of the Citizenship Act* deals with such acquisition subsequent to 26 January 1950.[94]

2. Acquisition by an Indian, of the citizenship of a foreign State can take place in any of the following ways –

(a) Voluntarily acquiring the citizenship of that foreign country by *naturalisation* or *registration*.

In *State of UP v Shah Mohammed,*[95] the Supreme Court held that the language of section 9(1) leaves no room for doubt that it covers all cases where an Indian citizen has acquired foreign nationality between 26 January 1950 *i.e.,* at the commencement of *Constitution* and the commencement of the *Citizenship Act* or where he acquires such nationality after its commencement. Such cases are of three kinds – (a) Indian citizen who voluntarily acquired citizenship of a foreign State prior to the commence of *Constitution*; (b) Indian citizen who voluntarily acquired citizenship of another State or country between 26 January 1950 and 30 December 1955 and (c) Indian citizen who voluntarily acquired foreign citizenship after the commencement of the date of the Act, *i.e.*, 30 December 1955. The first category is dealt with under *Article 9 of the Constitution*. The second and third categories are dealt with under *section 9 of Citizenship Act*. If a question arises as to whether, when or how an Indian citizen has acquired the citizenship of another country, that has to be determined by the Central Government by virtue of the provisions of sub-section (2) of section 9 of the Act.[96]

3. Schedule III of the Citizenship Rules, 1956, framed under *section 18 of the Citizenship Act, 1955*, prescribes the rules of evidence [vide section 30(2) of the Rules] which will guide the authority in making the determination under section 9(2). [These Rules are reproduced under *Article 11*, *post*].

[Art 9.3] Determination of the question whether a person has voluntarily acquired foreign citizenship

In this context, the relative scope of *Article 9* and *section 9* of the *Citizenship Act* must be borne in mind.

I. It is now settled that voluntary acquisition of foreign citizenship at any time subsequent to 26 January 1950 is governed by *section 9 of the Citizenship Act, 1955*, which may be said to be retrospective in this behalf.[97] It was held section 9(1) of Act, could not be given a prospective operation only for its language left no doubt that it would cover all cases of our Indian citizen acquiring foreign nationality between 26 January 1950 and the commencement of the *Citizenship Act, 1955* and also cases of acquiring such citizenship after its commencement.[98] Sub-section (2) of section 9 provides that when a question falls under this section, the question of acquisition of foreign citizenship has to be determined in accordance with the rules of evidence prescribed by rules made under the Act, irrespective of the municipal law of the foreign country or any principle of international law. These rules are contained in Schedule III of the Citizenship Rules, 1956, made under rule 30(2). One of these rules, *e.g.*, is that

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

> The fact that a citizen of India has obtained on any date a passport from the Government of any other country shall be *conclusive proof*[1] of his having voluntarily acquired the citizenship of that country before that date.

Thus, if a person obtains a Pakistani passport, he shall be held to have lost his Indian citizenship under section 9 by the acquisition of Pakistani citizenship even though under the law of citizenship in Pakistan, the person may not have, in law, acquired the citizenship of Pakistan.[2]

The eminent jurist, H.M. SEERVAI, has questioned the correctness of the above decision in his book *Constitutional Law Of India* (4th edition, pp 343-348, chapter 6.75 to chapter 6.83) and has expressed the opinion that the same should be over ruled as it is obviously wrong and productive of the most serious injury that can be done to an Indian citizen, namely to deprive him of his Indian citizenship.

II. While the question under section 9 is whether a person who had acquired Indian citizenship on 26 January 1950 has lost that citizenship by acquiring foreign citizenship subsequent thereto, *Article 9 of the Constitution* deals with the case of a person who *never became* an Indian citizen by reason of his acquiring foreign citizenship prior to 26 January 1950. Since this case falls outside *section 9 of the Citizenship Act*, it is not within the exclusive jurisdiction of the Central Government[3] to deal with a case of this category nor are there any artificial rules of evidence for such determination. The question under *Article 9* will be a question of fact and law to be determined by the courts having regard to the municipal law of the foreign State and relevant rules of international law.

The question of determination of national status can arise only if the person concerned is interested in seeking a determination or if he raises such a question and moves the concerned authorities for its determination under section 9(2) of the Act. It is not as if with regard to each and every person being deported on expiry of the period of his visa, there should be a prior determination by the Central Government of his national status, before he is deported. This will lead to very difficult situation and it is neither possible nor advisable for the Central Government to be burdened with a duty of determinatining the national status of every person entering the country under a foreign passport with an Indian visa to decide the question of his national status before being deported. May be, the mere acquisition of a Pakistan passport is not sufficient to hold that there is an abandonment of Indian citizenship. That does not, however, absolve the person concerned from raising the question and applying for determination of the status under section 9(2), if really his claim is to be an Indian national. If he himself is not interested in the matter and has not even moved the authority for the purpose, it is not proper to hold that there is any failure to decide the question on the part of the Central Government. There is no obligation cast on the Central Government under the Act to decide such a question unless the party concerned moves the Central Government under the Act for the purpose, when the entry into the country was under a foreign passport and *prima facie*, the person concerned is a foreign national.[4]

Indeed the real question that arises for determination under this section is not whether the concerned person had Indian nationality and citizenship on 26 January 1950, but whether he lost that nationality at the time when he entered India on a Pakistani passport.[5]

It is only when there is proof that a person is, to start with, a citizen of India and it is alleged that he has lost his Indian citizenship by reason of acquiring the nationality of a foreign country that any question of invoking the provision of section 9(2) of the Act arises.[6]

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

III. The Central Government is vested, by *section 9(2), Citizenship Act*, with *exclusive*[7] jurisdiction to determine the foregoing question, namely, whether a person, who was a citizen of India, has *lost* that citizenship by having voluntarily acquired the citizenship of a foreign State, and this question cannot be determined by any Court, either by suit[8] or in a proceeding under *Article 226*[9] or under *Article 32*.[10] *Section 9 of Citizenship Act* is a complete code as regards termination of citizenship on the acquisition of citizenship of a foreign country. When the matter falls under section 9(2) of the Act, all other provisions of law are excluded. The *Citizenship Act* will not yield in favour of Representative of People's Act because the latter Act is enacted pursuant to *Article 327*. *Citizenship Act* is also a law made by Parliament by virtue of *Article 11* read with Entry 17 of List I of the Seventh Schedule to the *Constitution*.

The Central Government by virtue of the power conferred on it under section 9(2) has been given exclusive power to determine in accordance with the rule of evidence provided for the purpose whether a person has acquired citizenship of a foreign country. If a declaration made by the Central Government under *section 9(2) of the Citizenship Act* is produced before the High Court trying an election petition, the High Court has to give effect to it. When once a person is admitted or held to be a citizen of India, unless there is a decision of the Central Government under section 9 (2), that he has acquired the citizenship of a foreign country, the High Court should proceed on the ground that the concerned candidate continues to be an Indian citizen.[11]

If this question arises in such proceedings, the Court should stay the proceedings to enable the parties to obtain the determination of the Central Government under section 9(2),[12] or restrain the Government from giving effect to the order of deportation until the question under section 9(2) is determined by the Central Government.[13]

But a request to retain the suit till such determination was not allowed on the ground that law was already declared in 1969 and parties could have taken recourse as per law declared [14]

If a person has acquired citizenship of India and a question arises whether or not he/she has lost the citizenship by acquisition of citizenship of another country, that question has to be resolved by the authority prescribed under the Act. The question whether a person is a foreigner is a question of fact, which would require careful scrutiny of evidence since the enquiry is quasi-judicial in character. Whenever any authority is called upon to decide even for the limited purpose of another law, whether a person is or is not a citizen of India the authority must carefully examine the question in the context of his constitutional provisions and the provision of the *Citizenship Act*.[15]

Refusal to forward the application for registration under section 5(1)(a) of *Citizenship Act* amounts to denial of statutory as well as constitutional rights.[16]

IV. A suit (or proceeding under *Article 226*) is not barred to determine questions outside *section 9(2) of the Citizenship Act*, *e.g.*, whether a person had acquired the citizenship of India under *Article 5* or the Proviso to *Article 7 of the Constitution*,[17] or, in other words, whether he ever was a citizen of India.[18] Where it is necessary to go into disputed questions of fact in order to determine this question, the question can hardly be determined by the High Court under *Article 226*. The petitioner may, in such cases, be relegated to a suit.[18]

V. There is no question of the application of section 9(2), where it is neither established nor admitted that the person was ever a citizen of India[19] under *Article 5* or *6* or 8. In such a case, a person against whom action has been taken under the *Foreigners Act, 1946*, has the onus of proving that he is not a foreigner.[19] But he should be given a chance to prove it.

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

VI. Section 9(2) has no application where, a person who had come to India on a Pakistani passport on a previous occasion had been validly deported and, on a subsequent occasion, he has been charged with having entered India without a valid travel document.[20]

VII. A determination under *section 9(2) of the Citizenship Act* is a condition precedent[21] to the taking of any action against the person who is alleged to have lost his Indian citizenship by voluntary acquisition of foreign citizenship. Therefore, if a person has been convicted or deported on this ground before a determination has been made against him under section 9(2), the order of conviction or deportation[22] is liable to be set aside, though it would be open to the Government to take fresh action after a determination under *section 9(2), Citizenship Act* has been made.[23]

> When a person establishes that he had acquired the citizenship of India under *Article 5* or *6* or 8 (or under the *citizenship Act*) but the Government contents that he has subsequently lost that citizenship by reason of having voluntarily acquired the citizenship of a foreign State, *e.g.*, by obtaining a Pakistani passport, that question must be determined by the Central Government under *section 9(2) of the Citizenship Act*, before any action can be taken against such person as a foreigner.[22]

[Art 9.4] Procedure under section 9(2), Citizenship Act

1. It is not competent for the Central Government to dispose of an application under *section 9(2), Citizenship Act*, without giving an opportunity to the person concerned to show that he has not “voluntarily” acquired the citizenship of another country or that he has been compelled to obtain a Pakistani passport by force, fraud or misrepresentation.[24] But no such opportunity need be given where he does not take the plea that the Pakistani passport had not been voluntarily obtained.[25]

Under *Section 9 of Foreigners Act*, the onus is on the person to prove that he is not a foreigner. It is only where there is proof that a person is, to start with, a citizen of India and it is alleged that he has lost his Indian citizenship by reason of acquiring the nationality of a foreign State that any question of invoking the provision of *section 9(2) of the Citizenship Act* arises. When a person comes to India on a Pakistani Passport and had been legally deported there is no question of invoking provision of *section 9(2) of Citizenship Act*.[26]

When millions of people of a particular race/ Community and of mother tongue are citizens of India and permanent residents of Assam person of that race/community and of mother tongue, who are residing permanently are to be taken as citizens of India unless the contrary is proved. The burden is on the State to rebut the presumption by adducing cogent evidence and placing materials. Summary enquiry by the Tribunal in fraught with every possibility of adjudging a citizen as foreign national and subjecting him to deprivation of his fundamental right guaranteed under *Article 21* and the rights under *Article 300-A of the Constitution*, without any authority of law.[27]

A person who admits that he obtained a passport of another country, but tenders an explanation and also evidence, if believed, will prove that he did not obtain it voluntarily is entitled to a personal hearing before any final order is passed.[28]

Even if an immigration officer is not acting in a judicial or quasi-judicial capacity he must at any rate give the immigrant an opportunity of satisfying him of the matters in the sub-section and for that purpose let the

immigrant know what his immediate impression is, so that the immigrant can disabuse him. That is not, as I see it, a question of acting or being required to act judicially, but of being required to act fairly.[29]

2. Mere proof of the fact that the person has obtained a passport from a foreign country is not sufficient to sustain an order for deportation[30] or prosecution[31] unless there has been a decision of the Central Government under *section 9(2), Citizenship Act*.[30] The inquiry under section 9(2) is quasi-judicial.[32] It was held therein that determination of the question postulates an approach as in a *quasi*-judicial enquiry, the citizen concerned must be given due notice of the nature of action which in the view of the authority involves termination of Indian citizenship and reasonable opportunity must be afforded to the citizen to convince the authority that what is alleged against him is not true. With the scope and extent of the enquiry to be made by the authority on a plea raised by the citizen concerned should depend upon the facts of each case.[33]

The onus of proof that he is not a foreigner and that he is a citizen of India is on the person who asserts the same. He has to prove that he was an Indian citizen within the meaning of *Article 5*, that he was domiciled in the territory of India as on 26.1.1950 and he has satisfied one of the conditions prescribed in *Article 5* and to retain his citizenship.[34] In determining the question of Indian citizenship and passing an order of deportation against a person on account of being not an Indian citizen, personal hearing is necessary.[35]

DR. GURBAX SINGH in his book *Law of Foreigners, Citizenship and Passports* (2003) has given the following proposition as to proof of foreign citizenship:

> (1) The passport obtained by a person from Pakistan would no doubt be evidence that concerned person is a Pakistani national, but evidence would be subject to the provisions of *section 9(2) of Citizenship Act*. (2) A court cannot decide whether an Indian citizen has acquired the citizenship of another country, but the only authority to so decide is the Govt. of India acting as a "*quasi*-judicial" tribunal under the provisions of *section 9(2) of Citizenship Act*. (3) *section 9(2) of Citizenship Act* and Rule 3 of the Rules are *intra vires* the *Constitution of India*. (4) The proposition that as soon as it is alleged that a passport has been obtained by a person from a foreign Government, the State Govt. can immediately proceed to deport him without necessary enquiry by the Central Govt. is not correct. It is only after the Central Govt. has decided the point after enquiry that the State government can deal with the person after treating him to be a foreigner. In dealing with the said question, the Central Govt. would undoubtedly be entitled to give effect to Rule 3 in Schedule III of Citizenship Rules and would be entitled to deal with the matter in accordance with other relevant Rules framed under the Act; but the question must be considered by the Central Govt. In other words, the decision by the Central Govt. is a condition precedent in that behalf. (5) The provision for prescribing rules of evidence, having regard to the question of acquisition of citizenship of another country has to be determined, clearly indicates that the order is not to be made on the mere satisfaction of the authority, without enquiring that the citizen concerned has obtained passport of another country. The authority has also to determine as to whether the person has "voluntarily" acquired foreign citizenship. (6) The enquiry would be *quasi*-judicial in nature and citizen concerned must be given notice of the nature of the action. Reasonable opportunity must be afforded to the citizen to convince the authority that what is alleged against him is not true. If a plea is raised by a citizen that he had not voluntarily obtained the foreign passport, the citizen should be afforded an opportunity to prove the said fact. Termination of Indian citizenship does not merely depend upon action of a foreign country in issuing the passport. (7) Cases of voluntary acquisition of foreign citizenship after commencement of *Constitution* have also to be dealt with by the Govt. of India under *Citizenship Act*. (8) *Article 9* does not use the word "migration", and deals only voluntary acquisition of foreign citizenship before the *Constitution* came into force. (See at pp 639-40).

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

69 *State of UP v Shah Md.*, AIR 1969 SC 1234 ; *Izhar Ahmad v UOI*, (1962) 3 SCR 235 (*247*).

70 **Cf.** *Nazirabai v State*, AIR 1957 MB 1 (*3*); *Abdul Satar v State of Gujarat*, AIR 1965 SC 810 (*813*).

71 *State of AP v Roshan,* (1969) 2 SCWR 232 [vide S.9(2) of that Act, *post*]; *State of MP v Peer Md.,* AIR 1963 SC 645 (648).

72 *State of UP v Shah Md.*, AIR 1969 SC 1234 ; *Izhar Ahmad v UOI*, (1962) 3 SCR 235 (*247*).

73 AIR 1963 SC 645 (*supra*).

74 *Abdul Sattar Haji Ibrahim Patel v State of Gujarat,* AIR 1965 SC 810 : (1965) 1 Cr LJ 759 .

75 AIR 1966 SC 1614 .

76 *Mobarak Ali Ahmed v State of Bombay,* AIR 1957 SC 857 : (1958) SCR 328 .

77 See *Joyce v Director of Public Prosecution,* *(1946) AC 347* (HL).

78 See H.M. Seervai, *Constitutional Law of India*, 4th Edn, vol I, pp 342-47, chapter VI, paras 74 to 82.

79 *State of UP v Shah Md.*, AIR 1969 SC 1234 ; *Izhar Ahmad v UOI*, (1962) 3 SCR 235 (*247*); *State of AP v Roshan*, (1969) 2 SCWR 232 [vide S.9(2) of that Act, *post*].

80 *Kulathil v State of Kerala*, AIR 1966 SC 1614 (*1618*).

81 *Government of A.P v Syed Mohammed Khan,* AIR 1962 SC 1978 ; *Iqbal Ahamed Khan v UOI,* AIR 1962 SC 1052 .

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

82 *Dipali Chadha v UOI,* (1996) 7 SCC 432 .

83 *Bhanwaroo Khan v UOI,* AIR 2002 SC 1614 : (2002) 4 SCC 346 .

84 *State of UP v Mohd. Din,* AIR 1984 SC 1714 : 1984 (Supp) SCC 346 (*supra*).

85 *Bhagawati Prasad Dixit v Rajeev Gandhi,* AIR 1986 SC 1534 : (1986) 4 SCC 78 .

86 *Babu Hussein v Electoral Registration Officer,* AIR 1995 SC 1189 : (1995) 3 SCC 100 ; **see also** *State of UP v Rahmatullah,* (1971) 2 SCC 113 : AIR 1971 SC 1382 ; *Dipali Katia Chadha v UOI,* (1996) 7 SCC 432 .

87 *Hari Shankar Jain v Sonia Gandhi,* (2001) 8 SCC 233 : AIR 2001 SC 3649 .

88 *Abdul Salem v UOI,* AIR 1969 All 226 .

89 *Mohd. Usman v State of Madras,* AIR 1961 Mad 129 .

90 *Mohd. Khan v Govt. of AP,* AIR 1957 AP 1047 ; *Inder Lall v Lal Singh,* AIR 1961 Raj 122 .

91 *Ayub Khan v Commr. of Police*, AIR 1965 SC 1623 (*1628*, para 10).

92 The constitutional validity of this section has been upheld in *Izhar v UOI*, AIR 1962 SC 1052 (paras. 38-39); *Govt. of A.P. v Syed*, AIR 1962 SC 1778 (para 5).

93 *Hari Shanker Jain v Sonia Gandhi,* AIR 2001 SC 3689 : (2001) 8 SCC 233 .

94 *Izhar v UOI*, AIR 1962 SC 1052 (para 12).

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

95 AIR 1969 SC 1234 : (1969) 1 SCC 771 : (1969) 3 SCR 1006 .

96 **See also** *State of UP v Mohd Din,* AIR 1984 SC 1714 : 1984 (Supp) SCC 347; *Izhar Ahmed Khan v UOI,* AIR 1962 SC 1052 : (1962) Supp (3) SCR 235 : (1963) 2 Cr LJ 215 ; *Mohd. Ayub Khan v Commr. of Police,* AIR 1965 SC 1623 : (1965) 2 SCR 834 .

97 *State of UP v Shah Md.*, AIR 1969 SC 1234 .

98 **See also** *State of UP v Mohammed Din,* AIR 1984 SC 1714 : 1984 (Supp) SCC 346.

1 This statutory provision of conclusive proof overrides the rule of "rebuttable presumption' adopted in *Bakhtiar v UOI*, AIR 1961 Guj. 109 [See, further under *Article 11* where Sch III of the Citizenship Rules has been fully dealt with].

2 *Izhar Ahmed v UOI*, AIR 1962 SC 1052 ; *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 .

3 *UOI v Ghaus*, AIR 1961 SC 1526 ; *Nasir v Chief Commr.*, AIR 1959 Punj 261 (*265*).

4 *Chulil Thattolil Aisia v UOI,* AIR 1988 Ker 231 .

5 *State of Gujarat v Yakub Ibrahim,* AIR 1974 SC 645 : (1974) 1 SCC 283 : (1974) 2 SCR 572 .

6 *Ibrahim v State of Rajasthan,* AIR 1965 SC 618 : (1964) 7 SCR 441 : (1965) 1 Cr LJ 506 .

7 *Izhar Ahmed v UOI*, AIR 1962 SC 1052 ; *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 ; *State of MP v Peer Md.*, AIR 1963 SC 645 (*647*).

8 See also *Md. Ishaque v Union Secretary to the Govt. of India*, AIR 1991 Cal 289 ; *Akbar v UOI*, AIR 1962 SC 70 (*72*).

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

9 *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 ; *State of UP v Roshan*, (1969) II SCWR 232 (*233*). **See also** *K.L. Modi v UOI,* AIR 1970 Delhi 76 ; *Abdul Rahim Khan v UOI,* AIR 1977 Bom 274 .

10 *State of MP v Peer Md.*, AIR 1963 SC 645 (*647*); *Izhar v UOI*, AIR 1962 SC 1052 .

11 *Bhagawati Prasad v Rajiv Gandhi,* AIR 1986 SC 1534 : (1986) 4 SCC 78 .

12 *State of MP v Peer Md.*, AIR 1963 SC 645 (*647*).

13 *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 ; *State of UP v Roshan*, (1969) II SCWR 232 (*233*). **See also** *K.L. Modi v UOI,* AIR 1970 Del 76 ; *Abdul Rahim Khan v UOI,* AIR 1977 Bom 274 .

14 *State of UP v Mohammed Din,* AIR 1984 SC 1714 : 1984 (Supp) SCC 346 (*supra*).

15 *Lal Babu Hussien v Electoral Registration Officer,* AIR 1995 SC 1189 : (1995) 3 SCC 100 .

16 *National Human Rights Commission v State of AR,* AIR 1996 SC 1234 : (1996) 1 SCC 742 .

17 *Md. Ishaque v Union Secretary to the Govt. of India*, AIR 1991 Cal 289 ; *Akbar v UOI,* AIR 1962 SC 70 (*72*).

18 *UOI v Ghaus*, AIR 1961 SC 1526 .

19 *Abdul Sattar v State of Gujarat*, AIR 1965 SC 810 (*813*). [The position in this respect has changed owing to the amendment of the definition of “foreigner’ in *section 2 of the Foreigners Act, 1946* in 1957, so that the pre-amendment decisions such as *Fida Hussain v State of UP*, AIR 1961 SC 1522 , no longer hold the field].

20 *State of MP v Peer Md.*, AIR 1963 SC 645 (*648*).

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

21 *State of Gujarat v Ibrahim*, AIR 1974 SC 645 (para 8).

22 *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 ; *State of UP v Roshan*, (1969) II SCWR 232 (*233*). **See also** *Nalini Sriharan v UOI,* AIR 2007 Mad 187 : (2007) 2 Mad LJ 831 : (2007) 2 LW 232.

23 *State of UP v Rehamatullah*, (1971) 2 SCC 113 (*119*).

24 *Ayub Khan v C.P.*, (1965) 1 SCA 642 (*649*). Also see *Lal Babu Hussain v Electoral Registration Officer*, AIR 1995 SC 1189 : (1995) 3 SCC 100 (a case of removal of names from the electoral role, on the ground that the person is not a citizen of India) when it was held that since the rules are wide enough to cover the question of citizenship, the issue would have to be decided after giving the person concerned a reasonable opportunity of being heard.

25 *Moinuddin v Govt. of India*, (1967) 2 SCR 401 .

26 *Ibrahim v State of Rajasthan*. AIR 1965 SC 618 : (1964) SCR 441 .

27 *Md. Sahid Ali Jakir v UOI,* AIR 1993 Gau 9 .

28 *Abdul Salam v UOI,* AIR 1969 All 223 .

29 *R.V.Gaming Board for Great Britain Exparte Beniam,* (1970) 2 All ER 525 by LORD DENNING M.R.

30 *Govt. of A.P. v Syed Md.*, AIR 1962 SC 778 ; *State of UP v Roshan*, (1969) 2 SCWR 232 .

31 *State of UP v Rahmatuallah*, AIR 1971 SC 1382 ; *State of Gujarat v Ibrahim*, AIR 1974 SC 645 (para 8).

32 *Ayub Khan v C.P.*, (1965) 2 SCR 884 : AIR 1965 SC 1623 ; *Moinuddin v Govt. of India*, (1967) 2 SCR 401 ; *Lal Babu v E.R.O.*, (1995) 3 SCC 100 (para 5).

33 **See also** *Mohammed Usman v State of Madras,* AIR 1961 Mad 129 ; *Mohsin Shah v UOI,* AIR 1974 J & K 48.

[Art 9] Persons voluntarily acquiring citizenship of a foreign State not to be citizens.-

34 *Abdul Sattar v State of Gujarat,* AIR 1965 SC 810 : (1965) 1 Cr LJ 759 .

35 *UOI v Smt. Chand Putli,* AIR 1973 All 362 .

End of Document

[Art 10] Continuance of the rights of citizenship.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART II CITIZENSHIP

[Art 10] Continuance of the rights of citizenship.-

Every person who is or is deemed to be citizen of India under any of the foregoing provisions of this Part shall, subject to the provisions of any law that may be made by Parliament, continue to be such citizen.

End of Document

[Art 11] Parliament to regulate the right of citizenship by law.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART II CITIZENSHIP

[Art 11] Parliament to regulate the right of citizenship by law.-

Nothing in the foregoing provisions of this Part shall derogate from the power of Parliament to make any provision with respect to the acquisition and termination of citizenship and all other matters relating to citizenship.

[Art 11.1] OTHER CONSTITUTIONS

See *Article 5*.

[Art 11.2] INDIA

[Art 11.2.1] Law relating to citizenship

As has been pointed out at the outset, the *Constitution* does not intend to lay down a permanent or comprehensive law relating to citizenship of India. The power to enact such law is left to the Parliament by the present Article.

This power is not fettered by *Articles 5-10*, and it is competent for Parliament, in exercise of this power, to take away or affect citizenship already acquired under the earlier Article.[1] But unless and until so taken away or abridged by Parliamentary legislation, the citizenship acquired under *Articles 5-8* shall continue.

The legislative power with respect to “citizenship, naturalisation and aliens” belongs exclusively to Parliament. In exercise of this power, *Parliament* has enacted the *Citizenship Act* (LVII of 1955),[2] making elaborate provisions for the acquisition and termination of citizenship *subsequent to the commencement of the Constitution*. Though it was enacted in December, 1955,[3] it governs the law of citizenship from after 26 January 1950.[4]

The provisions of this Act (together with the Rules made under section 18 of the Act)[5] are to be read with the provisions of this Part of the *Constitution*, in order to get a complete picture of the law of Indian citizenship.

The Statement of Objects and Reasons of the *Citizenship Act 1955* read as follows:—

> *Articles 5* to *9* of the *Constitution* determine who are Indian citizens at the commencement of the *Constitution* and *Article 10* provides for their continuance as such citizens subject to the provision of any law that may be made by Parliament. The *Constitution* does not, however, make any provision with respect to the acquisition of citizenship after its commencement or termination of citizenship or other matters relating to citizenship. Under *Article 11*, the

[Art 11] Parliament to regulate the right of citizenship by law.-

Constitution expressly saves the power of Parliament to provide for such matters. It is obviously necessary to make such a law to supplement the provisions of the Constitution and this Bill seeks to achieve this object.

This Bill provides for the acquisition of citizenship, after the commencement of Constitution, by birth, descent, registration, naturalisation and incorporation of territory. It also makes provisions for the termination and deprivation of citizenship under certain circumstances. The Bill also seeks to normally recognize Commonwealth Citizenship and permit the Central Govt. to extend on a reciprocal basis such rights of an Indian citizen as may be agreed upon to the citizen of other Commonwealth countries and Republic of Ireland.

[Art 11.2.2] Acquisition of citizenship
[Art 11.2.3] OTHER CONSTITUTIONS

U.S.A.

(A) *U.S.A.* Citizenship in the U.S.A., is a dual concept. Under the 14th Amendment, citizenship of the United States is acquired by birth within the territories of the United States, or by naturalisation. United States citizens automatically acquire citizenship of a State by residing within it. It is possible for a person to be a citizen of the United States without being a citizen of any State,[6] *e.g.*, a child born to a United States citizen while he is abroad. On the other hand, residence within the State is an additional element required for a United States citizen to become a State citizen. Federal and State citizenship have distinct rights and obligations.[6]

Section 1 of the 14th Amendment says –

All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside.

Thus, citizenship of the United States may be *acquired* in one of two ways – (a) birth in the United States; (b) naturalisation therein.

(a) *Birth in the United States.*

(i) Any person, of whatever race or colour, born within the United States acquires citizenship of the United States excepting (a) children of foreign sovereign or their ministers; (b) children or enemies within and during a hostile occupation of part of the United States territory.[7] (ii) Birth within the United States includes the birth abroad of children of American citizens *temporarily* residing or travelling in other countries,[8] but not on foreign ships,[7] (iii) The condition of birth in the United States also includes full and complete allegiance to the Government of the United States and subjection to its jurisdiction.[9]

(b) *Naturalisation.*

Congress has the exclusive power [Article 1, section 8(4) to "establish a uniform law of naturalisation". In exercise of the power, Congress has made the Immigration and Nationality Act, 1952, under which, *inter alia*, naturalisation cannot be denied to a person because of his *race*, but shall not be granted to a person who is a "member of or affiliated to the Communist Party". Courts are powerless to interfere with such legislation since Congress has absolute power to grant or withhold the privilege of naturalisation on any ground as it sees fit.

There are three modes of naturalisation in the United States – (i) by judicial process; (ii) by treaty; (iii) by congressional statute.

(i) Naturalisation by judicial process means the granting of a petition for naturalisation by a Court, upon the

merits of that application. The applicant first makes a declaration of his intention; and after residence for a specified number of years, he makes a petition for citizenship accompanied by affidavits from two citizens of the United States. The Bureau of Immigration and Naturalisation then investigates into the record and character of the applicant. The Court then makes a hearing and, if satisfied, grants the petition. The matter is left entirely to the discretion of the Judge, subject to the applicant's fulfilling the conditions prescribed by the Immigration and Nationality Act, 1952. (ii) Naturalisation by treaty takes place when it is provided by a treaty made at the time of acquiring a territory, (iii) Naturalisation is also granted to groups of persons by statutes of Congress in cases of acquisition of territory.

American women do not lose their citizenship by marrying aliens. Conversely, alien women do not acquire American citizenship merely by marrying Americans; they can acquire American citizenship only by naturalisation.

(B) *England.*

All persons in England, are either British subjects or aliens.

I. Until 1983, citizenship of the United Kingdom was governed exclusively by statute – the British Nationality Act, 1948. Under this Act, a person might become a citizen of the United Kingdom by (a) birth; (b) registration; (c) naturalisation and (d) incorporation of territory.

U.K.

Subject to exceptions, any person born in the United Kingdom and the Colonies after the coming into force of the Act of 1948 is a citizen by *birth*, A person whose father is a citizen by birth is a citizen by *descent*, but the child of a citizen by descent would not necessarily become a citizen by descent if he is born outside the United Kingdom and the Colonies; he does so only if his birth has been registered at a British Consulate, or if his father was in the service of the Crown, or if he was born in a Dominion, or in India, and has not by the law of the country of his birth, acquired citizenship of that country. A citizen of a Commonwealth country of full age and capacity, has a right to be *registered* as a citizen of the United Kingdom, after satisfying certain conditions.[10]

II. In 1983, the British Nationality Act, 1981, which replaces the earlier statutes on the subject, came into force. Under this Act British citizenship is classified under three categories —

(a) British citizenship; (b) British Dependent Territories Citizenship; and (c) British Overseas Citizenship.[11]

Australia.

(C) *Australia.*

Notwithstanding the federal system of the American type, there is no State citizenship in Australia. Australian citizenship is now governed by the Nationality and *Citizenship Act*, 1948, which closely follows the British Nationality Act, 1948, and provides for acquisition of Australian citizenship by birth, descent, registration and naturalisation. Citizens of Australia are to have the status of British subjects within the meaning of the British Act and citizens of other Commonwealth countries shall have the status of British subjects in Australia.

Canada.

(D) *Canada.*

There is no Provincial citizenship in Canada. Canadian citizenship is now governed by the Canadian *Citizenship Act*, 1946, as of citizenship by registration. The two modes of acquisition of citizenship are (a) by birth and (b) by certificate of citizenship.

(a) A natural-born citizen is a person born in Canada or aboard a Canadian registered ship; or a person born outside Canada whose father (or in the case of a child born out of the wedlock, whose mother) was a Canadian citizen at the time of the person's birth, provided such birth is registered at a Canadian consulate within two years.

(b) Any person other than a Canadian citizen may obtain a certificate of Canadian citizenship on conditions similar to those applicable to naturalisation elsewhere.

A citizen of any other Commonwealth country who is a British subject by the law of that country is also a British subject under the law of Canada.

(E) *Ceylon.*

The citizenship law of Ceylon has, of late, drawn much attention in India owing to its unfavourable operation against Indian resident in Ceylon. Under the *citizenship Act*, 1948, and the Indian and Pakistani Residents (Citizenship) Act, 1949,[12] there are three classes of citizens in Ceylon—

(a) *Citizenship by descent.*

Ceylon.

(i) A person, born in Ceylon, is a citizen if his father, or both his paternal grandfather and great-grandfather were born in Ceylon.

(ii) A person, born in Ceylon, is a citizen if at the time of his birth, his father was a citizen.

(iii) A person born outside Ceylon, is a citizen if both his father and paternal grandfather, or both his paternal grandfather and great-grandfather were born in Ceylon.

(iv) A person born outside Ceylon, is a citizen if at the time of his birth his father was a citizen and he is, within one year of his birth, registered as a citizen.

(b) *Citizenship by registration under the Citizenship Act, 1948.*

Citizenship by registration under this Act may be conferred *on not more than 25 persons a year*, and a citizen by registration loses his citizenship after 5 years' residence abroad, except under specified circumstances. Only the following classes of person are eligible for registration under this Act:

(i) A person whose mother is or was a citizen by descent or would have been a citizen by descent if she had been alive and who has been continuously resident for 7 years if married, or 10 years if unmarried.

(ii) The husband, wife, widow or widower of a citizen by descent or registration, who has been resident for one year or more.

(iii) A person who had acquired another citizenship and has renounced that citizenship.

(c) *Citizenship by registration under the Indian and Pakistani Residents (Citizenship) Act, 1949.*

An Indian or Pakistani who, if unmarried or a widow or widower, was resident for years before 1 January 1946, or, if married, was resident with his wife or minor children for 7 years before that date, and who satisfies certain other conditions, may register as a citizen within 2 years of the "appointed day".

There is no provision for acquisition of the citizenship of Ceylon by naturalisation and the citizenship of other Commonwealth countries does not *ipso facto* confer the citizenship of Ceylon, even though they may be British subjects.[13] They may become citizens of Ceylon only by registration in the manner stated above.

Pakistan

(F) *Pakistan.*

The citizenship of Pakistan is governed by Pakistan *Citizenship Act*, 1951, as amended subsequently. The modes of acquisition are (a) birth; (b) descent; (c) registration; (d) naturalisation; (e) incorporation of territory.

Bangladesh.

(G) *Bangladesh.*

The *Constitution* of Bangladesh (1972) confers plenary power upon its Parliament to make law relating to citizenship of Bangladesh (*Article 6*).

Conferring of citizenship is an act which is governed by law. A foreign national, merely because he has obtained an election identity card or a ration card fraudulently, will not become an Indian citizen. A foreign national cannot automatically be deemed to be an Indian citizen without complying with the procedure established by law.[14]

The *Citizenship Act* deals with citizenship after the *Constitution* came into force and confines only to natural person. The provisions of Pt II of the *Constitution* and *Citizenship Act* are an exhaustive code regarding citizenship in India.[15]

India

[Art 11.2.5] Acquisition of Citizenship.

The various modes of acquisition of citizenship prescribed by *our Citizenship Act, 1955*, are (a) Birth; (b) Descent; (c) Registration; (d) Naturalisation; (e) Incorpor-ation of territory; (f) Certificate in case of doubt.

A. *Birth.*

The principle of citizenship by place of birth (*jus soli*) is adopted in section 3 of our *Citizenship Act* which, after few amendments by the Act 65 of 1957, Act 65 of 1985, Act 39 of 1992, Act 6 of 2004, Act 32 of 2005, says—

(1) Except as provided in sub-s. (2), every person born in India –

(a) on or after the 26th day of January 1950, but before 1.7.1987;

[Art 11] Parliament to regulate the right of citizenship by law.-

(b) on or after the 1st day of July 1987, but before the commencement of Citizenship (Amendment) Act 2003 and either of whose parents is a citizen of India at the time of his birth;

(c) on or after the commencement of Citizenship (Amendment) Act 2003,

(i) where both his parents are citizens of India;

(ii) one of whose parents is a citizen of India and the other is not an illegal immigrant at the time of his birth, shall be a citizen of India.

(2) A person shall not be a citizen of India by virtue of this section if at the time of his birth –

(a) either his father or mother possesses such immunity from suits and legal process as is accorded to an envoy of a foreign sovereign power accredited to the President of India and he or she, as the case may be, is not a citizen of India; or

(b) his father or mother is an enemy alien and birth occurs in a place other than under occupation by the enemy.

Sub- section (1) lays down the general rule that any person (whatever be the race or colour or place or birth of his or her parents) who is born in India on or after[16] the 26th *January*, 1950, shall be a citizen of India by birth, subject to two exceptions,[16] as specified below.

The scope of the above general rule is enlarged by section 2(2) which provides–

> 2(2) For the purpose of this Act, a person born aboard a registered ship or aircraft, or abroad an unregistered ship or aircraft of the Government of any country, shall be deemed to have been born in the place in which the ship or aircraft was registered or, as the case may be, in that country.[17]

The result of this clause is that if a child is born to a foreign passenger aboard a ship or aircraft belonging to or registered[18] in India such child will be deemed to have been born in India and shall become a citizen of India by birth under section 3, wherever the vessel might have been at the time of the birth.

The general rule of citizenship by birth in India provided in sub-section (1) of section 3 is subject to *two exceptions* included in clause (2) of the section. In these two cases, the children, even though born in India or aboard Indian ships, would not acquire Indian citizenship:

Section 3 of the Act uses the expression “every person born” and the emphasis is on the “person” and “born”. A child born in India to a surrogate mother, an Indian national, whose biological father is a foreign national, would get citizenship in India by birth.[19]

(i) The first exception is a child whose father possesses, at the time of the child’s birth, such immunity from suit

and legal process as is accorded to the envoy of a foreign sovereign accredited to the President of India and the father is not a citizen of India himself. The persons entitled to such immunity are –

(a) foreign sovereigns [see under Entry 16, List I, *post*] (a) and diplomatic agents of foreign States who are entitled to such immunity [see under Entry II, List I, post] including the High Commissioners of the Commonwealth countries;

(b) persons entitled to immunity under the United Nations (Privileges and Immunities) Act (46 of 1947) - [see under Entry 12, List I].

(ii) The second exception is a child whose father is an alien enemy and who (the child) is born in a part of the territory of India during hostile occupation of that part of the territory by the enemy.

An alien “friend” can reside in and acquire property in India, can induct tenants therein, sue in respect thereof in a competent court to evict the tenant for his *bona fide* occupation. Even a domicile is not necessary to enable a foreigner to institute a suit and there is nothing in the law to prevent a foreigner from acquiring a domicile in India, notwithstanding his non-Indian citizenship.[20] Where the parents migrated to India before 1979 and were naturalised, a child born to such parents in India is an Indian citizen.[21] Where a person is an Indian citizen by birth, there is no need for him to apply for citizenship.[22]

Descent.

B. *Descent.*

While the basis of citizenship by birth is the place of birth of the child, irrespective of his parentage, the basis of citizenship by descent (*jus sanguinis*) is citizenship of the father at the time of the child’s birth, irrespective of the place where the child is born.

The principle of acquisition of Indian citizenship by descent is laid down in section 4 of our *Citizenship Act*,[23] which says—

4. (1) A person born outside India shall be a citizen of India by descent,—

Citizenship by descent.

(a) on or after the 26th January, 1950, but before the 10th day of December, 1992, if his father is a citizen of India at the time of his birth; or

(b) *on or after the 10th day of December 1992. If either of his parents is a citizen of India at the time of his birth;*

Provided that if the father of such a person *referred to in Clause(a)* was a citizen of India by descent only, that person shall not be a citizen of India by virtue of this section unless –

(a) his birth is registered at an Indian consulate within one year of its occurrence or the commencement of this Act, whichever is later, or with the pemission of the Central Government, after the expiry of the said period; or

(b) his father is, at the time of his birth, in service under a Government in India:

[24]*Provided further that if either of the parents of such a person referred to in clause(b) was a citizen of India by descent only, that person shall not be a citizen of India by virtue of this section unless –*

(a) his birth is registered at an Indian consulate within one year of its occurrence or on or after the 10th day of December, 1992, whichever is later, or, with the permission of the Central Government, after the expiry of the said period; or[25]

(b) either of his parents, is at the time of his birth, in service under a Govt. of India:

Provided also that on or after the commencement of the Citizen (Amendment) Act 2003 a person shall not be a citizen of India, by virtue of this section unless his birth is registered at an Indian Consulate in such form and in such manner as may be prescribed—

(i) within one year of its occurrence or commencement of Citizenship (Amendment) Act 2003, whichever is later; or

(ii) with the permission of the Central Govt., after the expiry of the period.

Provided also that no such birth shall be registered unless the parents of such person declare, in such form and in such manner as may be prescribed, that the minor does not hold the passport of another country.

(1-A) A minor who is a citizen of India by virtue of this section and is also a citizen of any other country shall cease to be a citizen of India if he does not renounce the citizenship or nationality of another country within six months of attaining age.

(2) If the Central Government so directs, a birth shall be deemed for the purposes of this section to have been registered with its permission notwithstanding that its permission was not obtained before the registration.

(3) for the purposes of the proviso to sub-section (1) any…..[26] person born outside undivided India who was, or was deemed to be, a citizen of India at the commencement of the *Constitution* will be deemed to be a citizen of India by descent only.[27]

Nationality and domicile of a minor are ordinarily determined by the nationality and domicile of his father. It is on this principle that sections 4(1) and 8(2), of Indian Citizenship are based. But this is not an invariable rule and statutory provisions have been made in the Act to enable a minor to acquire a nationality different from that of his father. Section 5(4) says that the Central Government may, if satisfied that there are special circumstances justifying such registration cause any minor to be registered as a citizen of India.[28]

Where a child was born in Karachi in 1949, (the mother having migrated to Pakistan and having lost her Indian

citizenship) to a father who was domiciled in India, it was held that the minor is an Indian citizen.[29] Where the father is an Indian citizen by birth, his children, though born in another country, will be citizens of India by descent since their father was a citizen of India.[30] Denial of admission in a medical course to the petitioner born abroad, but who has been residing and is domiciled in India on the ground that there is no proof of acquisition of citizenship, is not correct. In such cases, direction was given to the Central Government to determine whether the person has obtained citizenship of any other country after compliance with natural justice. Provisional admission was directed to be given.[31]

A foreigner has no fundamental right or much less a right to register himself as an Indian citizen and has no *locus standi* to challenge the provision of the Act.[32]

It applies only to a person born *outside India*,[33] on or after the 26th January, 1950, if his father was a citizen of India at the time of the birth.[34] If, however, the father was himself a citizen only by descent, the child shall not acquire citizenship by descent unless either of two further conditions are fulfilled, *viz.,* (i) that the birth is registered at an Indian consulate within one year of the birth or the commencement of the Act, whichever is later, or, with the permission of the Government of India after the expiry of the period of one year, (ii) that the father is, at the time of his birth, in service under a Government in India.

Mere descent from a father who was a citizen of India at the time of the child's birth will not confer citizenship of India upon the child if the father had himself acquired his citizenship of India by descent only. In such a case, either of the two additional conditions specified in the Proviso to sub-sec (1) must be fulfilled.

It is, accordingly, necessary to ascertain when the father could be said to have acquired his citizenship by descent only, particularly, if the father had acquired his citizenship before the coming into operation of sub-section (1) *i.e.*, before the 26th January, 1950. For this purpose, sub-section (3) has been engrafted to provide that a male person who had acquired citizenship of India before 26 January 1950 shall, for the purposes of this section shall be deemed to have acquired it by descent only –

If he had been born *outside* "undivided India". Such a person could have acquired citizenship of India on 26 January 1950 if he fulfilled the conditions of *Articles 5*(b), 6 or 8 of the *Constitution*.

> A was born in England in 1920, either of his parents having been born in India. He settle in India and has an Indian domicile on 26 January 1950. A, accordingly, "acquires Indian citizenship under *Article 5(b) of the Constitution*. B is born to A in 1953 aboard a ship registered in France.
>
> B will acquire the citizenship of India by descent if either (a) his birth is registered at an Indian Consulate within the time prescribed by clause (a) of the Proviso to section 4(1), or (b) A was, at the time of B's birth, in service of the Government of India or of a State Government.

'*Undivided India*'

This is defined in section (2)(h) as referring to "India as defined in the Government of India Act, 1935 (as originally enacted)".

Undivided India

C. *Registration.*

The provisions relating to acquisition of Indian citizenship by this mode are contained in section 5 which

Citizenship by registration.

[Art 11] Parliament to regulate the right of citizenship by law.-

"5.(1) Subject to the provisions of this section and such other conditions and restrictions as may be prescribed, the Central Government may[35] on an application made in this behalf, register as a citizen of India any person not being an illegal migrant who is not already such citizen by virtue of the *Constitution* or by virtue of any of the other provisions of this Act if he belongs to any of the following categories, namely:—

(a) a person of Indian origin who is ordinarily resident in India for seven years before making an application for registration;

(b) a person of Indian origin who is ordinarily resident in any country or place outside undivided India;

(c) a person who is married to a citizen of India and is ordinarily resident in India for seven years before making an application for registration;

(d) minor children of persons who are citizens of India;

(e) a person of full age and capacity whose parents are registered as citizens of India under clause (a) of this sub-section or sub-section (1) of section 6; a person of full age and capacity, who or either of his parents was earlier citizen of independent India and has been residing in India for one year immediately before making the application for registration;

(f) a person of full age and capacity who has been registered as an overseas citizen of India for five years, and who has been residing in India for one year before making an application for registration.

Explanation 1.— For the purposes of clauses (a) and (c), an applicant shall be deemed to be ordinary resident of India, if

(i) he has resided in India throughout the period of twelve months immediately before making an application for registration, and

(ii) he has resided in India during the eight years immediately preceding the said period of twelve months for a period of not less than six years.

Explanation 2.—For the purposes of this sub-section, a person shall be deemed to be of Indian origin if he, or either of his parents, was born in undivided India or in such other territory which became part of India after the 15th day of August 1947.

(2) No person being of full age shall be registered as a citizen of India under sub-s. (1) until he has taken an oath of allegiance in the form prescribed in Second Schedule.

(3) No person who has renounced, or has been deprived of, his Indian citizenship, or whose Indian citizenship has terminated, under this Act, shall be registered as a citizen of India under sub-section(1) except by order of the Central Government.

(4) The Central Government may, if satisfied that there are special circumstances justifying such registration, cause any minor to be registered as a citizen of India.

(5) A person registered under this section shall be a citizen of India by registration as from the date on which he is so registered; and a person registered under the provisions of clause(b)(ii) of *Article 6* or *Article 8 of the Constitution* shall be deemed to be a citizen of India by registration as from the commencement of the date on which he was so registered whichever may be later."[36]

(6) If the Central Govt. is satisfied that circumstances exist which render it necessary to grant exemption from residential requirement under clause (c) of sub-s. (1) to any person or class of persons, it may, for reasons to be recorded in writing, grant such exemption.

The mode of registration[37] may be said to be residual in nature because it is not applicable to persons who have otherwise acquired Indian citizenship,– either (i) under Pt II of the *Constitution*, or (ii) by birth or descent or any of the other modes under this Act. Persons other than these may acquire citizenship of India by registration provided they come under any of the categories specified in clauses (a)-(e) of sub-section (1). These are—

(a) A person of Indian origin (i) who is ordinarily resident in India and (ii) has been so resident for 6 months immediately before making the application for registration.[38]

(b) A person of Indian origin who is ordinarily resident in any country or place outside undivided India.

(c) A woman who is, or has been, married to a citizen of India. The condition of full age and capacity is not attached to the category of married women, but the condition of residence has been added.

(d) Minor child of a citizen of India, if the Government of India is satisfied that there are special circumstances justifying the registration of a minor as a citizen of India [sub-section (4)].

(e) A citizen of any of the countries[39] enumerated in the first Schedule to the Act, who is of full age (i.e., 18 years[40]) and capacity (*i.e.*, not being of unsound mind), subject to the conditions and restrictions, if any, prescribed under the Proviso to sub-section (1).

This clause, however, can be applied only if the person satisfies the requirements of the definition of "citizen" in section 2(1)(b) and, in deciding this question, it must be seen that the citizenship or nationality law which is to be taken into consideration satisfies the requirements of section 2(1)(c). The Proviso to section 5(1), read with section 2(1)(b)-(c), embodies the principles of *reciprocity*. It means that a citizen of a country mentioned in Schedule I would not be entitled to be registered as the Indian citizen unless there existed a corresponding law in that country permitting citizens of India to acquire citizenship of that country by registration.[41] On this ground, a Pakistani citizen cannot claim to be registered under section 5(1)(e), because there is no corresponding law in Pakistan.[42]

It is to be noted in this context that the Government of India has not so far made any notification under section 2(1)(c) in respect of any country declaring an enactment of that country to be an "enactment making provision for the citizenship or nationality" of that country. So long as nothing is done in that behalf clause (1)(e) of section 5 would remain inoperative. The Pakistan *Citizenship Act*, 1951, *e.g.,* has not been recognised by the Government of India under section 2(1)(c) of *our* *Citizenship Act*.[43] Under rule 3 of the Rules made under the

Citizenship Act, the fact that a person has obtained a passport from the Government of any other country shall, of course, be conclusive proof of his having voluntarily acquired the citizenship of that country.[44] But rule 3 relates to section 9 of the Act and the passport cannot, *prima facie*, dispense with the Government of India notification required for the purposes of sections 2(1)(c) and 5(1)(e), for the purpose of registration.

"*Indian origin"*

This expression is defined in the Explanation to sub-section (1).

"*Ordinarily resident"*

The word "ordinarily" is primarily directed not to duration, but to purpose. In this sense the question is not so much where the person is to be found "ordinarily", in the sense of usually or habitually and with some degree of continuity; but the quality of residence is "ordinarily" and general, rather than merely for some special or limited purpose. The words "ordinarily" and "resident" have been used together in other statutory provision as well, as per Law Lexicon, they have been contrued as not to require that the person should be one who is always resident or carries on business in the particular place. Residence is a concept that may be transitory. Even when qualified by the work "ordinarily", the word "resident" would not result in a construction having the effect of a requirement of the person using a particular place for dwelling always or on permanent uninterrupted basis.[45]

Sub-clauses (a) and (e)

Since the expression "Indian origin" refers to birth in "undivided India", persons born in the territory now included in Pakistan would come within the scope of that expression. The question, accordingly, arises whether citizens of Pakistan who fall under sub-clause (e) can claim to be registered also under clause (a). It has been held [46] that sub-clauses (a) and (e) must be construed as mutually exclusive. Hence, though sub-clause (a) would include persons of Indian origin in Commonwealth countries such as Ceylon or South Africa who have not acquired citizenship in those countries, it will not include those persons of Indian origin who have become citizens of those countries, including Pakistan. Such citizens of Commonwealth countries, who are of Indian origin, may acquire Indian citizenship by registration under sub clause (a).[46]

Disqualification for registration

Sub-section (3) of section 5 says that even though a person comes under any of the clauses of sub-section (1), he shall not be entitled to registration without a specific order of the Government of India, if he has ever "renounced", or has been "deprived of", the citizenship of India. It is obvious that this sub-section cannot be attracted to the case of a person who had never before been a citizen of India.[47]

Nothing prevents a landlord who has renounced his citizenship of India and has acquired citizenship of another country from getting eviction of a tenant. An alien friend can reside and acquire property in India, can induct tenants therein can sue in respect thereof in a competent Court, while remaining an alien. Even a domicile is not necessary to enable a foreigner to institute a suit and there is nothing in law to prevent a foreigner from acquiring a domicile in India not withstanding his non-Indian citizenship.[48]

Section 14 of Citizenship Act empowers the prescribed authority or the Central Government to either grant or refuse application under section 5 or section 6 of the Act and the prescribed authority or Central Government is not required to assign any reason for such grant or refusal.[49]

When an application for registration is made to the collector, he can only forward the same to be Central Government or to the authority as prescribed by Central Govt. or to the authority as prescribed by Central Govt. The collector has no jurisdiction to pass any order on the same and authority so prescribed alone can refuse to entertain the application under section 5 of the Act.[50]

Section 5(1)(b) of the Act does not make statelessness as a condition precedent for registration. The provision stipulates only two conditions, *viz.,* (a) person seeking registration must be a person of Indian origin, and (b) must be ordinarily resideng in any country or place outside India.[51] In that case, the court held that when the authority chooses not to disclose the reason for granting or refusing citizenship, the court will not interfere.[52]

For conferment of citizenship by registration under section 5(1)(c), no reciprocity has been imposed by the

Parliament. The only conditions to be complied with for eligibility to get citizenship are – (1) marriage to an Indian citizen and (2) five years stay in India at the time of making the application for registration.[53]

A person having citizenship in another country cannot claim that he has domicile in India, so as to claim admission in a school.[54]

The expression "persons of Indian origin" has been defined in the explanation to mean "persons" who are themselves or either of whose parents were born in undivided India.[55]

Date from which registration takes effect

This is dealt with in sub-section (5)[56] of section 5, which has two parts –

(a) The first part deals with the effect of registration under sub-section (1) of section 5.

(b) The second part deals with registration of persons under *Article 6*(b)(ii) or *Article 8*, as regards whom there was a lacuna in the *Constitution*.

Finality of order under section 5(1)

The order of the prescribed authority upon an application for registration under section 5(1) is subject to revision by the Central Government, under section 15(1); but subject to such revision, the order "shall be final and shall not be called in question in any court" [s. 14(2)].[57]

A certificate of citizenship issued under section 5 of the Act is a statutory certificate issued by a statutory authority. A presumption of validity and regularity attaches to such a certificate under *section 114 of Evidence Act*, the Court may presume that official acts have been regularly performed. A presumption attaching to the certificate is available to be drawn to the effect that the prescribed authority issuing the certificate was competent to do so and that it had satisfied itself as to the existence of such facts as would entitle the applicant to issuance of such certificate. The presumption exists though it is rebutiable and not conclusive.[58]

The Collector is incompetent to cancel a registration certificate after it has been granted.[59] The only mode for cancellation, if at all, is under section 10(2) of the Act.[59]

There has been a difference of opinion as to whether the Collector's order is subject to the writ of *certiorari*.[60] The better view would be that the writ of *certiorari*, being a constitutional remedy, cannot be taken away by any law. So far as the order of the Central Government, in revision, is concerned, it is clearly quasi-judicial, having regard to the nature of the function.[61] But this cannot be said about the order of the Collector, which is administrative in nature and the making of which requires no inquiry under the Act and the Rules.[62]

So long as the certificate of registration under section 5 stands, the grantee cannot be treated as a foreigner even if it had been obtained by fraud.[63] A citizen can be deprived of his citizenship only if it is proved that the registration was obtained by means of fraud, false representation or concealment of any material fact. This power, cannot be exercised unless such fraud, false representation or suppression of material facts exists.[64] Such power can be exercised only by Central Government under section 10(2) of the Act and not under section 5.[65]

A minor child has no independent domicile, but enjoys the domicile of parents.[66]

Under this section, the collector cannot adjudge a person as a foreigner, on the sole oral testimony of two persons, who themselves have knowledge of the same only on hearsay.[67]

The *Citizenship Act* does not have any provision providing for cancellation of a certificate of registration issued under section 5. Section 9 of the Act only provides for termination of citizenship upon acquisition of citizenship of another country.[68]

But inspite of certificate of registration issued under *section 5(1)(c) of the Citizenship Act* having been granted to a person and inspite of his having been enrolled in the voter's list, the question whether he is a citizen of India and hence qualified for or disqualified from contesting an election can be raised before and tried by the High Court hearing an election petition provided challenge is based on factual matrix given in the petition and not merely bald or vague allegations.[68]

No foreigner can have a fundamental right or much less a right to register himself as Indian citizen and hence such a person cannot challenge the provisions of an enactment as *ultra vires* of the *Constitution of India*.[69] It was held in that case that proviso to section 5(1) read with section 14 clearly shows that intention of legislature was that person of a country mentioned in Schedule I would be qualified to be registered as a citizen of India if there exists a corresponding law in that country permitting citizen of India to become citizen of that country by registration. In the absence of such a law in that country, no foreigner can be registered as a citizen of India.

A foreigner, simply because he has made an application for registration for citizenship, has no right to stay in India till the disposal of his application.[70] When a person applies for Indian citizenship and has applied for permission to stay in India, it conclusively proves that he is not an Indian citizen.[71]

When the application for registration is rejected, the authority must communicate the reason for such rejection.[72]

Under *section 15 of Indian Succession Act 1925*, a woman by marriage acquires the domicile of her husband if she had not the same domicile before. Where in very many cases persons of Indian origin left behind their wife and children in India and in some cases their properties are in India, in the interest of society at large, it is necessary for the Govt. of India to consider all those aspects while dealing with an application to become an Indian citizen, on marriage.[73]

The fundamental duties of citizens under *Article 51-A* (b) and (c) do not debar citizens of foreign origin from contesting political post after having acquired Indian citizenship having fulfilled the conditions imposed under section 5(1)(C) and section 6 of the Act.[74]

The fact that a person applied for registration under section 5 would be an evidence, unless explained away, that the person concerned is not an Indian citizen.[75]

Form of application for registration

Detailed provisions in this behalf have been made by the Citizenship Rules, 1956, in rules 3-6.

Authority to register as citizens. See rule 8 of the Citizenship Rules.

Certificate of registration. See rule 16 of the Citizenship Rules.

Special Rules for registration of citizens of some countries :

I. Citizens of Singapore

Rule 16A, inserted in the Citizenship Rules, 1956, by s.o., 872/10 March 1958, provides –

"16-A. Registration of citizens of Singapore under Sec. 5(1)(e). –

(1) An application by a citizen of Singapore for registration as a citizen of India under Sec. 5(1)(e) shall be in Form XIX.

[76](2) The oath of allegiance in the form specified in the Second Schedule to the Act shall be affirmed (or sworn), subscribed and attested before registration.

(3) An application under sub-rule (1) shall not lie, unless the applicant –

(a) is of full age and capacity:

(b) is of good character;

[77](c) has resided in India throughout the twelve months immediately preceding the date of his application:

(d) has during the twelve years immediately preceding the date of his application resided in India for periods amounting in aggregate to not less than eight years.

Acquisition of Citizenship in UK by Registration

These are various grounds on which one who does not qualify under rules (*i.e.,* birth, adoption, descent) may be registered by the Home Secretary as a British citizen. Registration is an entitlement for someone born in United Kingdom who did not become a citizen by birth – (a) if, while he or she is still a minor, a parent becomes a British citizen or settled in the UK and an application is made for registration, or (b) if he or she during the first ten years of his or her life has not been absent from United Kingdom for more than 90 days for each year.

The Home Secretary has also a general power to register any minor as a British citizen. Registration as a British citizen is an entitlement for British Overseas Territories citizens and other categories including British protected persons who meet certain requirements as to being settled or present in UK.[78]

II. Citizens of Canada

Rule 16C, substituted by G.S.R. 1642/28 August 1970, provides –

16-C. Registration of citizens of Canada under section 5(1)(e).–(1) An application by a citizen of Canada for registration as a citizen of India under Sec. 5(1)(e) shall be in Form XXII.

(2) An application under sub-rule(1) shall not lie, unless the application –

(a) is of full age and capacity;

(b) has either resided in India or has been in the service of a Government in India, or partly the one and partly the other, throughout the period of twelve months immediately preceding the date of the application;

(c) has during the seven years immediately preceding the said period or twelve months resided in India or been in the service of a Government in India, or partly the one and partly the other, for periods amounting in the aggregate to not less than four years;

(d) has an adequate knowledge of a language specified in the Eighth Schedule to the *Constitution*;

(e) is of good character; and

(f) has an intention to make India his permanent home:

Provided that the Central Government may, if in the special circumstances of any particular case it thinks for, –

(i) allow a continuous period of twelve months ending not more than six months before the date of the application to be reckoned; for the purposes of clasue (b) above, as if it had immediately preceded that date;

(ii) allow periods of residence or service earlier than eight years before the date of the application to be reckoned in computing the aggregate mentioned in clause (c) above.

Naturalisation.

D. *Naturaliation*. Naturalisation is the act by which rights of citizenship are conferred by a State upon a person who was before an alien a foreigner and “clothing” him with the privileges of a native citizen. It is a mode of acquisition of nationality by a foreigner in accordance with the municipal law of the country.

Naturalisation is the procedure by which an alien is made a subject or citizen of any State. It is the act by a nation of adopting a foreigner and admitting him to take part in its national polity. The naturalisation of aliens is a subject which is regulated by the municipal law of such individual State. “Naturalisation *en masse*” takes place when territory is annexed by or ceded to another State. The status of inhabitants is usually the subject of special clauses in the treaty determining the conditions of the annexation or cession. It is generally considered at the present day that the inhabitants should have a right of option enabling them to retain their existing nationality.[79]

It is a mode of acquisition of the citizenship of a country by a foreign national. The grant of naturalisation is in the discretion of each country and even other States are not bound to recognise the nationality acquired by naturalisation by a person who has no genuine connection with the State which granted it.[80]

Provision for naturalisation has been made in section 6[81] of the *Citizenship Act*, which says –

Citizenship by naturalisation

6. (1) Where an application is made in the prescribed manner by any person of full age and capacity [82][not being an illegal migrant] for the grant of a certificate of naturalisation to him, the Central Government may, if satisfied that the

applicant is qualified for naturalisation under the provisions of the Third Schedule, grant to him a certificate of naturalisation.

Provided that, if in the opinion of the Central Government, the applicant is a person who has rendered distinguished service to the cause of science, philosophy, art, literature, world peace or human progress generally, it may waive all or any of the condition specified in the Third Schedule.

(2) The person to whom a certificate of naturalisation is granted under sub-section (1) shall, on taking the oath of allegiance in the form specified in the Second Schedule, be a citizen of India by naturalisation as from the date on which that certificate is granted.

Who may be naturalised

The applicant for naturlisation must be a person of full age (*i.e.*, 18 years or above) and capacity and must *not* be a citizen of a Commonwealth country or of the Republic of Ireland. If he is a citizen of any other country, he must have renounced the citizenship of that country in accordance with the law in that behalf [Third Schedule, para (b)].

Conditions for naturalisation

The grant of a certificate of naturalisation is discretionary with the Central Government and the Third Schedule enumerates the qualifications in the absence of which the Government will refuse to exercise its discretion. The Third Schedule provides—

The qualifications for naturalisation of a person [83][* * *] are :–

(a) that he is not a subject or citizen of any country where citizens of India are prevented by law or practice of that country from becoming subjects or citizens of that country by naturalisation.

(b) that, if he is a citizen of any country, [84][he undertakes to renounce the Citizenship of that Country in the event of his application for Indian Citizenship being accepted];

(c) that he has either resided in India or been in the service of a Government in India or partly the one and partly the other, throughout the period of twelve months immediately preceding the date of the application;

(d) that during the [85][fourteen years] immediately preceding the said period of twelve months, he has either resided in India or been in the service of a Government in India, or partly the one and partly the other, for periods amounting in the aggregate to not less than [86][eleven years];

(e) that he is of good character;

(f) that he has an adequate knowledge of a language specified in the Eighth Schedule to the *Constitution*; and

(g) that in the event of a certificate of naturalisation being granted to him, he intends to reside in India, or to enter into, or continue in, service under a Government in India or under an international organisation of which India is a member or under a society, company or body of persons established in India.

[Art 11] Parliament to regulate the right of citizenship by law.-

Provided that the Central Government may, if in the special circumstances of any particular case it thinks fit,—

(i) allow a continuous period of twelve months ending not more than six months before the date of the application to be reckoned, for the purposes of clause(c) above, as if it had immediately preceded that date;

(ii) allow periods of residence or service earlier than [87][fifteen years] before the date of the application to be reckoned in computing the aggregate mentioned in clause (d) above.

If the Central Govt. is of opinion that the applicant has rendered distinguished service to the cause of science, philosophy, art, literature, world peace or human progress generally, it may waive the condition for naturalisation in his case. The applicant for citizenship must be communicated the grounds for refusing the grant and allowed to make a representation against the order.[88] But, in *K. Krishna MA Raihany v UOI,*[89] the court accepted the submission of Additional Solicitor General that no reason need be disclosed.

In England, naturalisation is now governed by section 6 of and Schedule I to the British Nationality Act 1981. Naturalisation is a matter within the discretion of the Secretary of State. Section 44 of the Act provides that in exercising any discretion under the Act, the Secretary of State may pay no regard to “race, colour or religion”. Section 6 distinguishes between an application by a person of full age and capacity (sub-s. (1) of section 6) and an application by a person of full and capacity, who at the time of the application is married to a British citizen (sub-s. (2) of section 6). In the first case, the applicant must first satisfy a residence requirement which involves a period of five years ending with the date of the application, subject to the number of days he was absent from the United Kingdom not exceeding 450 days and in the twelve months immediately preceeding the application, such days not exceeding ninety. In the alternative, an applicant can show that on the date of application he was serving outside UK in Crown Service under United Kingdom Government. Secondly, he must establish that he is of good character; thirdly that he has sufficient knowledge in English, Welsh or Scottish Gaelic language, and fourthly he intends (1) to reside in UK or (2) to enter into or continue in Crown Service under United Kingdom Govt. or under an international organization of which UK Govt. is a member or service in the employment of a society or company established in UK. The Home Secretary is given a wide discretion to waive the requirements relating to residence and language proficiency.

In regard to a person whose spouse is a British citizen, who seeks naturalisation, the period of five years is reduced to three (subject to absence not exceeding 270 days) and there is no need to show “sufficient knowledge” of the three listed languages.

Naturalisation is only available to allow aliens to acquire British citizenship. British citizen by descent, for example, cannot apply for naturalisation.[90]

Order of Central Government not open to question in Court

Section 14(2) of the Act expressly provides that the order of the Central Government upon an application for naturalisation under section 6 “shall be final and shall not be called in question in any court”.

Form of application for naturalisation.

See rule 19 of the Citizenship Rules.

Form of Certificate of naturalisation.

See rule 18 of the Citizenship Rules.

Declaration of intention to resume Indian citizenship.

See rule 20 of the Citizenship Rules.

[Art 11] Parliament to regulate the right of citizenship by law.-

III. Section 6A of the Citizenship Act
Migrants from Bangladesh to Assam.

This section inserted in the *Citizenship Act* by Act 65 of 1985, provides :

6A. Special provisions as to citizenship of persons covered by the Assam Accord.

For the purposes of this section, –

(a) “Assam” means the territories included in the State of Assam immediately before the commencement of the Citizenship (Amendment) Act, 1985;

(b) “detected to be a foreigner” means detected to be a foreigner in accordance with the provisions of the *Foreigners Act, 1946* (31 of 1946) and the Foreigners (Tribunals) Order, 1964, by a tribunal constituted under the said Order;

(c) “specified territory” means the territories included in Bangladesh immediately before the commencement of the Citizenship (Amendment) Act, 1985;

(d) a person shall be deemed to be of Indian origin, if he or either of his parents or any of his grand-parents was born in undivided India;

(e) a person shall be deemed to have been detected to be a foreigner on the date on which a tribunal constituted under the Foreigners (Tribunals) Order, 1964, submits its opinion to the effect that he is a foreigner to the officer or authority concerned.

(2) Subject to the provisions of sub-sections (6) and (7), all persons of Indian origin who came before the 1st day of January, 1966 to Assam from the specified territory (including such of those who names were included in the electoral rolls used for the purpose of the General Election to the House of the People held in 1967), and who have been ordinarily resident in Assam since the dates of their entry into Assam shall be deemed to be citizens of India as from the 1st day of January, 1966.

(3) Subject to the provisions of sub-sections (6) and (7) every person of Indian origin who –

(a) came to Assam on or after the 1st day of January, 1966, but before the 25th day of March, 1971 from the specified territory; and

(b) has, since the date of his entry into Assam, been ordinarily resident in Assam; and

(c) has been detected to be a foreigner;

shall register himself in accordance with the rule made by the Central Government in this behalf under Sec.18 with such authority (hereafter in this sub-section referred to as the registering authority) as may be specified in such rules

and if his name is included in any electoral roll for any Assembly or Parliamentary constituency in force on the date of such detection, his name shall be deleted therefrom.

Explanation.—In the case of every person seeking registration under this sub-section, the opinion of the Tribunal constituted under the Foreigners (Tribunals) Order, 1964, holding such person to be a foreigner, shall be deemed to be sufficient proof of the requirement under clause (c) of this sub-section and if any question arises as to whether such person complies with any other requirement under this sub-section, the registering authority shall, –

(i) if such opinion contains a finding with respect to such other requirement, decide the question in conformity with such finding;

(ii) if such opinion contains a finding with respect to such other requirement, refer the question to a tribunal constituted under the said Order having jurisdiction in accordance with such rules as the Central Government may make in this behalf under Sec.18 and decide the question in conformity with the opinion received on such reference.

(4) A person registered under sub-section (3) shall have, as from the date on which he has been detected to be a foreigner and till the expiry of a period of ten years from that date, the same rights and obligations as a citizen of India (including the right to obtain a passport under the *Passports Act, 1967* (15 of 1967) and the obligations connected therewith), but shall not be entitled to have his name included in any electoral roll for any Assembly or Parliamentary constituency at any time before the expiry of the said period of ten years.

(5) A person registered under sub-section (3) shall be deemed to be a citizen of India for all purposes as from the date of expiry of a period of ten years from the date on which he has been detected to be a foreigner.

(6) Without prejudice to the provisions of Sec.8, –

(a) if any person referred to in sub-section (2) submits in the prescribed manner and form and to the prescribed authority within sixty days from the date of commencement of the Citizenship (Amendment) Act, 1985, a declaration that he does not wish to be a citizen of India, such person shall not be deemed to have become a citizen of India under that sub-section.

(b) if any person referred to in sub-section (3) submits in the prescribed manner and form and to the prescribed authority within sixty days from the date of commencement of the Citizenship (Amendment) Act, 1985 or from the date on which he has been detected to be a foreigner, whichever is later, a declaration that he does not wish to be governed by the provisions of that sub-sections (4) and (5), it shall not be necessary for such person to register himself under sub-section (3).

Explanation.—Where a person required to file a declaration under this sub-section does not have the capacity to enter into a contract, such declaration may be filed on his behalf by any person competent under the law for the time being in force to act on his behalf.

(7) Nothing in sub-sections (2) to (6) shall apply in relation to any person –

(a) who, immediately before the commencement of the Citizenship (Amendment) Act, 1985, is a citizen of India;

(b) who was expelled from India before the commencement of the Citizenship (Amendment) Act, 1985, under the *Foreigners Act, 1946* (31 of 1946).

(8) Save as otherwise expressly provided in this section, the provisions of this section shall have effect notwithstanding anything contained in any other law for the time being in force.

This section was inserted in pursuance of the Assam Accord to provide that persons who have come into Assam before January, 1966, from the "specified territory" and who have been *ordinarily resident* in Assam since the date of their entry shall be "deemed to be citizens of India" subject to the order of the Tribunal set up under the Foreigners (Tribunal) Order, 1964.

"Specified territory" means "the territories included in Bangladesh immediately before the commencement of the *Citizenship Act*" (*vide* sub-section (c) of section 6A, above).

IV. Chakma migrants from Bangladesh settling in Arunachal Pradesh.

As stated above, a condition for claiming citizenship of India under section 6A is that the claimant must have been *ordinarily resident* in Assam since his entry from Bangladesh. Hence, Chakmas who entered into Assam in 1964 and stayed there only for short while and then shifted to Arunachal Pradesh, were not citizens of India but "foreigners".[91] It would not, however, debar them from seeking citizenship under *Article 5*(1)(a), read with r. 8 of the Citizenship Rules.[91]

A person who migrated to Assam from Bangladesh subsequent to January, 1966, would be a "foreigner".[92]

Reference to the Assam Tribunals, set up under section 6A of the Citizenship Act, and its jurisdiction

The relevant Rules in this behalf are rr.16D and 16E,[93] which are as follows:

16D. Reference to Tribunals. Where in the case of a person seeking registration under sub-section (3) of Sec.6A of the Act, -

(a) any question arises as to whether such person complies with any requirement contained in the said sub-section, or

(b) the opinion of the Tribunal constituted under the Foreigners (Tribunals) Order, 1964, in relation to such person does not contain a finding in respect to any requirement contained in the said sub-section other than question that he is a foreigner, the registering authority shall, within fifteen days of receipt of an application in Form XXIII from such person, make a fresh reference to the Tribunal in this regard.

16E. Jurisdiction of the Tribunal. A tribunal constituted under the Foreigners (Tribunals) Order, 1964, having jurisdiction over a district or part thereof in the State of Assam shall exercise jurisdiction to decide reference made under sub-section (3) of Sec.6A of the Act in respect of the corresponding area covered by the Tribunal.

In *Sarbananda Sonowal v UOI*,[94] court declared that the provision of Illegal Migrants (Determination by Tribunal) Acts 1983, which effected a change in Foreigners (Tribunal) Act is wholly unconstitutional and struck

down the entire Act. It was held that the provision of *Foreigners Act* was more effective in identification and deportation of foreigners who have crossed the international border and have entered India without authority of law. It was held that the Act is also violating of *Article 14*. For, it applied only to the State of Assam, which has no rational nexus with the policy and object of the Act. The court also reminded the duty of the government to protect the borders of the nation from illegal migrants.

Incorporation of territory.

E. *Incorporation of territory*. Instead of leaving the matter to common law, section 7[95] of *our Citizenship Act* empowers the Government of India to specify which persons shall be entitled to the citizenship of India on the incorporation of a foreign territory in India, and by reason of their connection with such territory. It says –

Citizenship by incorporation of territory.

"7. If any territory becomes a part of India, the Central Government may, by order notified in the Official Gazette, specify the persons who shall be citizens of India by reason of their connection with that territory; and those persons shall be citizens of India as from the date to be specified in the order."

The Act thus obviates the need for applying common law principles for the determination of citizenship in such cases. This section codifies the principle of English common law, adopted in India, that incorporation of a foreign territory by a sovereign is an Act of State and that on such incorporation, the inhabitants of the territory acquire against the new Sovereign only such rights as are recognised by the latter.[96]

V. Citizenship of French nationals in Pondicherry

Before the Treaty of Cession executed by France in favour of India on 16 August 1962, Pondicherry, Karaikal, Mahe and Yanam were French establishments. Hence, all residents in those establishments were French nationals. The territories of all these establishments were collectively known as "Pondicherry".

By the said Treaty, France ceded full sovereignty over that territory to India, and as a result, that territory became a part of the territory of India by incorporation, under *Article 1(3) (c) of the Constitution*. The Government of India then issued the Citizenship (Pondicherry) Order, 1962,[97] by virtue of power conferred by *section 7 of the Citizenship Act*, specifying that the erstwhile French nationals of Pondicherry shall become Indian citizens, with effect from 16 August 1962, after complying with the conditions laid down in the aforesaid Order, the relevant provisions being –

> "3.(1) Subject to the provisions of sub-para (2) every French national born in Pondicherry and domiciled therein or elsewhere in India on the appointed day shall, as from that day, be a citizen of India.
>
> (2) Any such person may, by written declaration made within six months of the appointed day by himself, or if he be a minor, by his parent or guardian on his behalf, choose to retain his French nationality; and if the choice is so made, that person shall be deemed never to have acquired Indian citizenship under sub-para (1):
>
> *Provided* that where the choice is so made on behalf of a minor by his parent or guardian, he may, within six months of the attaining the age of eighteen years, sign a declaration in Form A in the presence of the competent Indian authority that he wishes to acquire Indian citizenship under the provisions of this Order; and thereupon he shall, as from the date of so signing of the declaration, be a citizen of India.
>
> 4. A French national born in Pondicherry and domiciled on the appointed day in a place outside Pondicherry or any other part of India may, by written declaration in Form B made within six months of the appointed day by himself, or if he be a minor, by his parent or guardian on his behalf, in the presence of the competent Indian authority, choose to acquire Indian citizenship, and if the choice is so made, that person shall be deemed to have become a citizen of India as from the appointed day:

Provided that where the choice is so made on behalf of a minor by his parent or guardian he may, within six months of his attaining the age of eighteen years, sign a declaration in the presence of the competent French authority that he wishes to recover his French nationality; and thereupon he shall, as from the date of so signing the declaration, cease to be a citizen of India.

5. Every French national not covered by any of the foregoing provisions who by virtue of the cession of Pondicherry lost French nationality on the appointed day under the French Nationality Laws shall, as from that day, be a citizen of India.

6. Every declaration in Form A or Form B shall be made both in English and French; and the competent Indian authority in whose presence it is made shall transmit the declaration in English to the appropriate record office in Pondicherry and declaration in French to the competent French authority.

FORM A

Declaration under the proviso to sub-para (2) of Para 3 of the Citizenship (Pondicherry) Order, 1962

Whereas I,…… son/daughter/husband/wife of…….was a French national born in the territory of the French Establishment in India and domiciled therein/in the Indian Union on the date of the entry into force of the Treaty of Cession and whereas by a declaration dated……made on my behalf by my father/mother/legal guardian, choice was made for the retention of my French nationality:

I hereby declare under the proviso to sub-para (2) of Para 3 of the Citizenship (Pondicherry) Order, 1962, that with effect from this date I have chosen to acquire citizenship of India.

I attained the age of eighteen years on the…… day of……. Signed in the presence of ……..

Signature……

Address (in full)……..

Place……

FORM B

Declaration under para 4 of the Citizenship (Pondicherry) Order, 1962

I,……,son/daughter/husband/wife of ……a French national born in the territory of the French establishments in India and domiciled in a place not forming part of the territory of India or the territory of the said Establishments on the date of the entry into force of the Treaty of Cession, namely, the 16th day of August, 1962, hereby declare under Para, 4 of Citizenship (Pondicherry) Order, 1962, on behalf of myself and my child/childern names below that my said children and I choose to acquire Indian citizenship with effect from the 16th day of August, 1962.

Description of the child/children.

Name	Relationship to the declarant	Age
Signed in the presence of……..		
Place……..		Signature……..
Date……..		Address (in full)……..

VI. Citizenship of persons domiciled in Dadra & Nagar Haveli; Goa, Daman & Diu

In pursuance of the power conferred by *section 7 of the Citizenship Act*, just reproduced, the Government of India issued two Orders, to provide for the citizenship of residents of these territories which were foreign territories before a certain date.

Dadra & Nagar Haveli.

A. *Dadra & Nagar Haveli*: These were Portuguese territories which were liberated and made part of the territory of India on August 11, 1961. Clause 2 of the Dadra & Nagar Haveli (Citizenship) Order, 1962 says—

> Every person who immediately before the 11th day of August, 1961, had his domicile in the territory now comprised in the Union Territory of Dadra & Nagar Haveli and –
>
> (a) who was born in that territory; or
>
> (b) who has been ordinarily resident in that territory for not less than two years immediately preceding that day,
>
> shall be deemed to have become a citizen of India on that day.

Citizenship of India will date from 11 August 1961 to a person who was a Portuguese citizen before that date, provided the two conditions of (i) domicile and (ii) either birth or residence for two years is satisfied.

Goa, Daman & Diu.

B. *Goa, Daman & Diu*. These territories were also Portuguess possessions until 20 December 1961. Clause 2 of the Goa, Daman & Diu (Citizenship) Order, 1962 provides –

> 2. Every person who or either of whose parents or any of whose grand-parents was born before the twentieth day of December, 1961, in the territories now comprised in the Union Territories of Goa, Daman & Diu, shall be deemed to have become a citizen of India on that day:
>
> *Provided* that any such person shall not be deemed to have become a citizen of India as aforesaid if within one month from the date of publication of this Order in the official Gazette that person makes a declaration in writing to the Administrator of Goa, Daman and Diu or any other authority specified by him in this behalf that he chooses to retain the citizenship or nationality which he had immediately before the twentieth day of December, 1961':

Provided further that in the case of a child, the declaration under the preceding proviso of the father or, if he is dead, of the mother, or if both parents are dead, of the legal guardian shall determine the citizenship or nationality of such child if on the date of such declaration he is below eighteen years of age, but such child may, within six months after attaining the age of eighteen years, make a declaration in writing to the Administrator of Goa, Daman and Diu or any other territory specified by him in this behalf that he wishes to acquire Indian citizenship and shall thereupon become a citizen of India.

The object of the proviso is to give an option to a resident of the territories, which were Portuguese territories prior to 20 December 1961, to retain their Portuguese citizenship by making a declaration in writing. A person who makes a valid declaration under the proviso is not therefore deemed to have become a citizen of India on 20 December 1961, according to the Order.[1]

F. *Certificate in case of doubt.*

Though this is not an independent mode of acquisition of citizenship, it may virtually be so in particular cases. This is provided in section 13 of *our* Citizenship Act, 1955, which says –

Certificate.

The Central Government may, in such case as it thinks fit, certify that a person, with respect to whose citizenship of India a doubt exists, is a citizen of India; and a certificate issued under this section shall, unless it is proved that it was obtained by means of fraud, false representation or concealment of any material fact, be conclusive evidence that that person was such a citizen on the date thereof, but without prejudice to any evidence that he was such a citizen at an earlier date.

This provision corresponds to section 25 of the British Nationality Act, 1948, with this difference that under the above provision, the certificate may be granted even without an application by the person concerned. Hence, there is no bar, as under the English Act, to a certificate being granted by the Central Government, even after the death of the person concerned.

"*Doubt".*

The doubt may be one of fact or of law, because so far as the certificate goes, it will not be open to question in a court of law.

"*May".*

The power of the Central Government under this section is absolutely discretionary and is not liable to be questioned by the Courts, except where it is proved that the certificate was obtained by means of fraud, false representation or concealment of a material fact.

"*Conclusive evidence".*

Except in the case of fraud, false representation or concealment of any material fact, the certificate shall be conclusive evidence that the person to whom the certificate was granted was a citizen of India on the date of issue of the certificate.

But, notwithstanding the certificate, it may still be proved that the person concerned was, in fact, a citizen at a date earlier than the date of the certificate, by some other mode of acquisition of citizenship.[2]

Section 13 vests with the Central Government with power to certify in the case of doubt exists as to whether a particular person is a citizen of India that he is such a citizen. Where the Central Government refuses to re-

consider the case inspite of the fact that it is alleged that a person to whom such certificate is issued had suppressed material facts and treats the matter as closed and also informs that person no further certificate is required in view of earlier communication holding him as a citizen of India, can be treated as a certificate of citizenship. The letter serves the purpose of certificate and operates as certificate of citizenship.[3]

Revision of orders under the Act by authorities other than the Central Government

Section 15 of our *Citizenship Act, 1955*, provides for a revision by the Central Government whenever any order is passed under the Act by any authority or officer other than the Central Government. Hence, the following orders are revisable under section 15 –

(i) Order on application for registration, under section 5(1);

(ii) Order of registration of renunciation of citizenship under section 8(1);

(iii) Order determining whether, when or how any person has acquired the citizenship of another country, under section 9(2);

(iv) Order made by any delegate of the Central Government exercising any power exercisable by the Central Government under the Act [s. 16], *excepting* powers –

(a) under section 10 (deprivation of citizenship);

(b) under section 18 (power to make rules).

The conditions for such revision are—

(i) An application must be made to the Central Government by a person aggrieved by the order.

(ii) The application must be made within 30 days from the date of the order; but the Central Government has the power to entertain the application after the expiry of the period of 30 days, if it is satisfied that the applicant was prevented by sufficient cause from making the application in time.

The order passed by the Central Government in revision is discretionary and “final”, which means that no action lies in the civil courts, unless the order is *ultra vires* or obtained by fraud [see under *Article 14 post*]. But, the word “final” in the statute cannot curtail the extraordinary powers of the High Court or Supreme Court under *Articles 32*, *136* or 226[4] [see *post*].

Whether a corporation can be a citizen.

A. As regards *nationality*, it is commonly agreed in International Law that a corporation can be a national of a country, even though as a legal entity it can have no “allegiance” in the personal sense. Generally speaking, the nationality of origin of a corporation is determined by the law of the State which authorises or approves it[5] (whether there is or is not a specific legislation declaring it to be a national of the State), irrespective of the nationality of its members.[6]

Again, though a corporation, as such, may have no allegiance, a company may assume an enemy character, according to the conduct of its agents or persons managing its affairs (as distinguished from its shareholders). Thus, if the agents or managers of a company are resident in an enemy country or carry on business in any

enemy country or otherwise aid the enemy, the company would be regarded as an enemy to the State where it was incorporated.[7]

It follows that corporations incorporated in India [*vide* Entries 43-4 of List I, 32 of List II, 7th Schedule *post*] will be treated in International Law as Indian nationals.[8]

B. The question of citizenship is a little more complicated.

According to Private International Law, a corporation is capable of having both a "residence" and a "domicile".[9] Generally speaking, a company resides where the central management and control actually abide.[10] A corporation has only its domicile of origin and it cannot change it; it is domiciled where it is incorporated.[11]

U.S.A.

(A) *U.S.A.*

In the *United States*, it has been held that "citizens" within the meaning of the 14th Amendment are natural persons, so that corporations are not citizens of the United States[12] and are not, accordingly entitled to the "privileges and immunities of citizens" of the United States.[13]

But the First amendment does not refer to citizens at all; hence, it has been held that a corporation is entitled to the freedom of speech or of the press[14] or of association;[15] and to the protection of the "Due Process'[16] and "Equal Protection'[17] Clauses,[18] which extend to all "persons". But the decision in *Santa Clara County v Southern Pacific Railroad,*[19] has been criticised from time to time.[20] Its probable effect has likely been to permit the constitutional claim of corporate owners – shareholders – to be assessed by the corporation (and thus adjudicated as a single claim) rather than *via* a multiplicity of claims by shareholders.[21]

But a corporation is assumed to be a citizen of the State of its incorporation for purposes of litigation in a federal Court.[22]

U.K.

(B) *England.*

Although a corporation incorporated in the U.K. shall have British nationality[23] and domicile,[24] for purposes under Private International law, there is no scope for a British corporation to claim British citizenship[25] because the status of a British subject under the British Nationality Acts belongs only to natural persons. After the commencement of the British Nationality Act 1981, the only mode of acquisition of citizenship is by birth, descent, by naturalisation and by registration. All these modes of acquisition deal solely with "natural persons".[26]

West Germany.

(C) *West Germany.*

Though the Articles of the West German *Constitution* relating to basic rights usually use the word "person" and "everyone" some of the provisions cannot possibly extend to an artificial person, *e.g.*, free development of personality [*Article 2*(1)]; inviolability of the person [*Article 2*(2)]; marriage and family rights [*Article 6*].

Article 19(3), on the other hand, expressly provides –

The basic rights apply also to corporation established under German public law *to the extent that the nature of such rights permits*

It has been held by the Constitutional Court that it is possible for an artificial person, such as a limited liability company or a corporation, to claim and exercise some of the fundamental rights, *e.g.* –

(i) Freedom of expression [*Article 5*(1)], where the company was engaged in journalism or the business of publication.[27]

(ii) Equality before the law [*Article 3*(1)].[28]

(iii) Right to judicial remedy for violation of the fundamental rights.[29]

On the other hand, it has been held by the Federal Constitutional Court[30] that the fundamental rights cannot be claimed, under *Article 19*(3), by corporations or other authorities who perform *public* functions and exercise State powers. The reason is that "the basic rights, according to their nature, were intended to protect the sphere of freedom of the individual against encroachments by State authority. Consequently, the State could not be at one and the same time the party against which the basic rights were invoked and the party entitled to exercise them."

India.

(D) India.

I. Under *our Citizenship Act, 1955*, only a "person" can acquire the citizenship of India and a "person" is defined in section 2(*f*) as not including "any company or association or body of individuals, whether incorporated or not". It is, accordingly, not possible for a corporation to acquire citizenship of India under the *Citizenship Act, 1955*. This Act, however, governs acquisition of citizenship after the commencement of the *Constitution*, *i.e.* 26 January 1950.

II. *Article 5* governs the status of corporations *constituted prior* to 26 January 1950. The definition of the *Citizenship Act, 1955*, cannot be imported to interpret the word "person" in *Article 5 of the Constitution*. On the other hand, the definition in *section 3(42), General Clauses Act, 1897*, which includes both "natural and artificial persons" should be attracted in the absence of anything to the contrary in the context of *Article 5*.

III. In view of this anomalous position, judicial opinion has been wavering on the question whether a corporation could acquire Indian citizenship under *Article 5 of the Constitution*.

(i) Prior to the decision of the Supreme Court in *S.T. Corp v C.T.O.*,[31] it was held that a company incorporated in India[32] prior to 26 January 1950 and having its domicile in this country[33] was capable of exercising fundamental rights excepting those which are inherently of such a nature that they cannot possibly be exercised by an artificial person.[34] Thus, such a corporation could complain if its fundamental right of association,[35] or business[36] was infringed.

This view was founded on the following observation of MUKHERJEE J., in *Chiranji Lal's case*[34] –

> The fundamental rights guaranteed by the *Constitution* are available not merely to individual citizens but to corporate bodies as well except where the language of the provision or the nature of the right compels the inference that they are applicable only to natural persons.
>
> *State Trading Corp case.*

(ii) The preceding view was *overruled* by a strong majority in the case of the *State Trading Corp*[37] holding the observation of MUKHERJEE J., in *Chiranjit Lal's case*[38] as *obiter*. In this case,[37] it has been laid down that whether under the *Citizenship Act, 1955*, or prior thereto under *Article 5*, a corporation cannot be a citizen of India. The *Constitution* makes a distinction between a "person" and a "citizen", and provides that while a citizen may enjoy all the fundamental rights, a "person" who is not a citizen may enjoy only some of them. From this it has been concluded that while the word "person" includes both a natural and an artificial person, the word "citizen" is a narrower term, referring only to natural persons. The *Constitution*, in this view, never intended that a corporate body or a juristic person could be a citizen and claim any of these fundamental rights which are restricted by the *Constitution* to citizens only, *e.g.*, those guaranteed by *Articles 15*, *16*, *19*, *29* and *30*.[37]

It was held that an incorporated company has no standing to maintain a petition against the Government alleging violation of fundamental right to carry on business.[39]

Once a company or corporation is formed, the business which is carried on by the said company or corporation is the business of the company or corporation and is not the business of the citizens who get the company or corporation, formed or incorporated and the rights of the incorporated body must be judged on that footing alone and cannot be judged on the assumption that they are the rights attributable to the business of individual citizens. The same principles as has been applied to companies and corporations would apply to a society registered under *Societies Registration Act*.[40]

The position was obviously anomalous, for, though a corporation could not complain of a violation of its right of business, or the right to acquire or hold property, it could complain of a *deprivation* of its property under *Article 31*(now *Article 300A*), which extended to all persons.

More anomalous was the result that though an unincorporated association could complain of an infringement of the rights under *Article 19*, serving through its citizen members, an incorporated body could not come to court at all, even through its shareholders unless its shareholders were individually effected by the impugned law,[41] even though it was directed against the company.

In a wider sense, the right of the shareholders to receive profits would be affected if the company has to suffer a financial loss in case its management is substituted by other persons, as a result of a law. Before proceeding further, we should advert to the previous decisions of the Supreme Court in the cases of *Chiranjit Lal*[41] and *Dwarkadas*[42] in both of which it was a shareholder who had brought the matter before the Court to challenge the validity of the same law, namely, the Sholapur Spinning & Weaving Co. Ordinance, 1946, the only difference being that while in the former case it was an ordinary shareholder, in the latter case, it was a preference shareholder. By virtue of the Ordinance, the Government took over the management of the company on the allegation of mismanagement. In *Dwarkadas's case*[42], there was an immediate impact on the right of property of the reference shareholder, namely, that as a result of the Ordinance, the new management called upon the preference share -holders to pay up a certain sum of money by a specified date in default of which they would not only forfeit their shares but would also have to pay the amount of the call. Hence, it was held that the preference shareholder was entitled to challenge the impugned law on the ground that it "abridges the *company's fundamental right* under *Article 31*(2)."[43]

In *Chiranjit Lal's case*,[43] there was no such immediate impact upon the ordinary shareholder inasmuch as his share had been fully paid up and there was no call upon him to pay more money. The majority, speaking

through MUKHERJEE, J., held that though the voting rights of the shareholder had been restricted by the change in the management, he was not *dispossessed* of his share, so that he could not complain of the infringement of his right under *Article 31*(2). It was held that the Petitioner could not complain of the violation of his right under *Article 19*(1)(f) as his right to receive dividend on his share had not been taken away by the Ordinance. The question of any possible financial loss being inflicted upon the shareholders as a result of the taking over was not considered at all. He was, however, allowed to challenge the law under *Article 14*.

The decision in the *State Trading Corp case*[44] blocked the way for any relief being granted to a corporation on the ground of violation of any of the fundamental rights, by holding that it was not a citizen and that the Court would not lift its corporate veil to grant relief to a corporation whose members were all citizens of India. Of course, the Court suggested that the *Citizenship Act* should be suitably amended, to remove all this anomaly, but the Legislature did not pay any heed to this suggestion.

(iii) In the post-1963 period, therefore, the Supreme Court had to devise some way out of this anomaly so long as the Legislature did not come forward to make suitable amendments in the *Citizenship Act*,[45] providing that a corporation could be a citizen, at least for the purpose under discussion.

Since it was settled that a corporation was a legal entity separate from its shareholders,[46] who could not be treated as the owners of the undertaking, and also that a company could not be a “citizen” so as to claim those fundamental rights which were conferred by the *Constitution* upon citizens, the only way in which the Court could give relief was to widen the concept of the indirect impact upon the interests of shareholders by a law levelled against the company. This line was adopted in the *Bank Nationalisation case*.[47]

Bank Nationalisation case.

In the *Bank Nationalisation* case,[48] the impugned legislation the Banking Companies (Acquisition & Transfer of Undertakings) Ordinance and Act, 1949, directly hit the banking companies whose business was to be taken over by new banks, the entire share capital of which was to be owned by the Government of India. The Directors and other office- bearers of the existing banks would vacate their office on the commencement of the impugned Ordinance. A share-holder of one of the affected banks who was a Director of another, brought the Petition under *Article 32* for a declaration that the impugned law violated his fundamental rights under *Articles 14*, *19*(1)(f) and 31(2). Though the direct impact of the legislation was upon the banking companies, the Court upheld the *locus standi* of the Petitioner on the ground that he was not seeking to enforce the rights of the companies but his own rights which were stated by the Petitioner as follows:

> ……in consequence of the hostile discrimination practised by the State the value of his investment in the shares is substantially *reduced*, his right to receive dividend from the investment has ceased, and he has suffered great financial *loss*, he is deprived of the rights as a share-holder to carry on business through the agency of the Company…

In upholding this contention of the Peitioner, the Court, in the instant case[49], was practically re-writing *Chiranjit Lal*[50] the other way, because the grievances of the Petitioner as a shareholder were all *indirect* consequences of the legislation which was aimed at the banking companies. To enable the shareholder to challenge the law would be, according to the *Tata Engineering Co.* case,[51] to enable the Company to achieve indirectly what it could not do directly.

The Court, in the *Bank Nationalisation case*,[49] indeed took the wider view of the shareholder’s interest and was prepared to take into consideration the indirect effects of a law for the purpose of upholding the *locus standi* of a shareholder to challenge the constitutionality of that law. This was made clear by SHAH, J., in the majority judgment (p 585 of AIR 1970 SC):

> Jurisdiction of the Court to grant relief cannot be denied, when by State action the rights of the individual share-holder are impaired, if that action impairs the rights of the company as well. The test in determining whether the share-holder's right is impaired is not formal; it is essentially *qualitative*; if the State action impairs the right of the shareholders as well as of the Company, the Court will not concentrating merely upon the technical operation of the action, deny itself jurisdiction.

In the later case of *Bennett Coleman v UOI*,[52] this view has been further widened to hold that the Petition should not be overthrown in a case like the above even if the shareholder joins the company in the Petition. The Court is thus determined to give a corporation relief for infringement of fundamental rights through the backdoor.

In a subsequent case, a shareholder was held to have standing to challenge the wage fixation order passed by a wage board, on the reasoning that an improper fixation would cast a heavy financial burden on the company.[53] In the *D.C.M. case*,[54] the Supreme Court described the law relating to the right of a company to challenge a violation of *Article 19* as in a "nebulous state" and added, "the trend is in the direction of holding that *in the matter of fundamental freedoms guaranteed by Article 19*, the rights of a shareholder and the company which the shareholders have formed *are rather co-extensive* and the denial to one of the fundamental freedoms would be denied to the other. It is time to put an end to this controversy".

Where an Electric company was sought to be nationalised by the State Government. Writ petition challenging the same was filed by the company along with share-holder. It was held share-holder petition was maintainable under *Article 19*(1)(f) and (g) as his right to carry on business through the company and his right to a divisible share in future of the property of the company, were being diminished by the takeover of the company.[55]

Where Government of India appointed a fact finding committee to enquire into the economies of newspaper industry, was challenged by a company, along with a share holder, it was held that though the company as such had no fundamental right the share holder had and hence the writ petition was maintainable. "The press reaches the public through the newspapers. The share holders speak through the editors. It was held that the fact that the company was the petitioner did not prevent the High Court from giving relief to the share-holder.[56]

In *Dharam Dutt v UOI,*[57] this question was considered and following that decision, the court held that *Article 19* could be invoked only by citizen and not "person". The court held:

> The applicability of *Article 19 of the Constitution* came to be examined from yet another angle in *Tata Engg. & Locomotive Co Ltd v State of Bihar.*[58] Corporations and Companies moved the Supreme Court alleging violation of their fundamental right under *Article 19 of the Constitution*. *Article 19*(1)(c) and 19(1)(g) came up for consideration. Their Lordships held that *Article 19* applies to "citizen" and not to "person" as *Article 14* applies. The effect of confining *Article 19* can be claimed only by citizens and not by corporations and companies. The attempt of the petitioner to claim the benefit of *Article 19* by placing reliance on the doctrine of "lifting the corporate veil" and submitting that the corporation or the company consists of its members and what is adversely affected is their fundamental right was rejected by the court. The *Constitution* Bench held that the fundamental right to form an association cannot be coupled with the fundamental right to carry on any trade or business. As soon as citizens form a company, the right guaranteed to them under *Article 19*(1)(c) has been exercised and no restraint has been placed on that right and no infringement of that right is made. Once a company or corporation is formed, the business which is carried on by the said company or corporation is the business of the company or corporation and is not the business of the citizen who got the company or corporation formed or incorporated and the right of the incorporated body must be judged on that footing alone and cannot be judged on the assumption that they are the rights attributable to the business of individual citizen. In our opinion, the same principle as has been applied to companies and corporations would apply to a society registered under the *Societies Registration Act, 1860*.

According to the learned author H.M. SEERVAI, the present state of the law is unsatisfactory and the time is ripe for the whole question to be considered in view of the tendency of court to afford relief to shareholders of corporation and in view of the increasing tendency of courts even in Company Law, to tear the corporate veil. Further, the Supreme Court has now finally decided that (i) a State Corporation; (ii) a government company; (iii) a company incorporated under the *Companies Act*; and (iv) a registered society are "State" within the meaning of *Article 12* if in substance they are an agency or instrumentality of the State, notwithstanding that, in law, a body corporate is a separate legal entity from the members composing it. If the corporate veil can be torn so that the employees of the corporate bodies might not be deprived of their fundamental right, there is no rational ground for not tearing the corporate veil so that the shareholders or members of a corporation who have ultimate control of the corporation may not be denied their fundamental right. But, before a question can arise whether a corporation is a "citizen", two conditions must be satisfied. First, all or a majority of the shareholders must be Indian citizens and control must be in the hands of Indian citizens. Secondly, its management and control must be in the hands of Indian citizens. If both these conditions are satisfied, then the correct ground for holding that such a corporation is a citizen that a court will look behind the corporate veil to the persons, who in substance though not in legal theory, control the management and run the company. This would also get rid of the absurd anomaly that although a partnership firm carrying on a small business can enforce its fundamental right under *Article 19*, companies, State Corporations, Govt. companies and corporations created by statute carrying on business on the most extensive scale cannot claim those rights. It is submitted that although GAJENDRAGADKAR, J. may have been right in holding in 1964 that corporate veil could not be torn and the tearing of corporate veil must be limited to narrow grounds, the passage of time has "eroded that doctrine". Consequently, instead of treating the company as an agent of shareholders, which clearly is not, it would be more accurate to say that the court will look behind the separate entity of the company to the shareholders who carry on business, if the valuable fundamental rights conferred by *Article 19* are not to be defeated. This is not an ideal solution, but it is the best that is to be had, since Parliament has not amended the *Citizenship Act*, as suggested by GAJENDRAGADKAR, CJ. This suggestion itself shows that there is nothing incongruous in a corporation being a citizen.[59]

According to the learned author M.P. JAIN, "The concept of separate entity of a company from its shareholders is a fiction of law evolved to protect the shareholders from liabilities beyond those which they had assumed by being shareholders. This doctrine has made the company a popular instrument to carry on vast commercial enterprises. The fiction of separate entity of the company, in course of time, has been subjected to a few exceptions by the evolution of the doctrine of piercing the corporate veil. The Supreme Court has taken the fiction of separate entity too far and what was once a shield has now become a handicap so far as *Article 19* is concerned.

It remains doubtful whether the framers of Indian *Constitution* ever envisaged that the Fundamental Rights under *Article 19*(1)(g) should not be available to a Corporation which is Indian in every sense. The court adopted a dogmatic view. If each one of the shareholders of a company carries on the business himself, he would be protected by *Article 19*(1)(g). Could it be that as soon as these individuals incorporate, they lose the protection of *Article 19*(1)(g). As it was a case of enforcement of fundamental right, the court ought to have looked behind the corporate veil and taken notice of the fact that all shareholders of the corporation are citizens and thus bring the corporation within *Article 19*(1)(g).

If a Fundamental Right, by its nature, is not one which must be confined to natural person, then that must legitimately be extended to a corporate or a company having a majority of Indian shareholders. It may be noted that the minority view[60] that the word "citizen" in *Article 19* includes a corporation of which all the members were citizens of India and the State Trading Corporation could claim fundamental rights. This seems to be a rational view."[61]

IV. The Legislature has not so far intervened to remove this anomaly, *viz.*, that while a corporation cannot be a citizen of India, it can enjoy the protection of certain fundamental rights, *e.g.*, *Article 14* or *19*.[62]

[Art 11] Parliament to regulate the right of citizenship by law.-

(Section 7A-7D was inserted by Act 6 of 2004 and substituted by Act 32 of 2005).

Section 7-A. Registration of Overseas Citizens of India

(1) The Central Government may, subject to such condition and restriction as may be prescribed, on an application made in this behalf, register any person as an "overseas citizen of India",—

(a) any person of full age and capacity—

(i) who is a citizen of another country, but was a citizen of India at the time of or at any time after the commencement of the *Constitution*, or

(ii) who is a citizen of another country, but was eligible to become a citizen of India at the commencement of *Constitution of India*, or

(iii) who is a citizen of another country, but belonged to a territory that became part of India after the 15th day of August, 1947, or

(iv) who is a child or grand-child of such citizen, or

(b) a person who is minor child of a person mentioned in clause (a).

Provided that no person who is or has been a citizen of Pakistan, Bangladesh or such other country as the Central Govt. may, by notification in the Official Gazette, specify shall be eligible for registration as an overseas citizen of India.

Under this section, a Pakistani citizen will not be entitled to acquire overseas citizenship in view of the proviso to the section.[63]

Section 7-B. Conferment of rights on Overseas Citizens of India

(1) Notwithstanding anything contained in any other law for the time being in force, an overseas citizen shall be entitled to such right (other than right specified under sub-section (2)) as the Central Govt. may, by notification in the Official Gazette, specify in that behalf.

(2) An overseas citizen shall not be entitled to the right conferred on a citizen of India, -

(a) under *Article 16 of the Constitution* with regard to equality of opportunity in matters of public employment;

(b) under *Article 58 of the Constitution* for election of President;

[Art 11] Parliament to regulate the right of citizenship by law.-

(c) under Article l66 of the *Constitution* for election of Vice-President;

(d) under *Article 124 of the Constitution* for appointment as a Judge of the Supreme Court;

(e) under *Article 217 of the Constitution* for appointment as a Judge of the High Court;

(f) under *section 16 of Representation of the People Act 1950* (43 of 1950) in regard to registration as a voter;

(g) under *sections 3* and *4* of *Representation of the People Act 1951* (43 of 1951) with regard to the eligibility for being a member of the House of the People or Council of States, as the case may be;

(h) under *sections 5*, *5-A* and *6* of the *Representation of the People Act 1951* (43 of 1951) with regard to the eligibility for being a member of the Legislative Assembly or a Legislative Council, as the case may be, of a State;

(i) for appointment to public services and posts in connection with the affairs of the Union or any State except for appointment to such services and posts as the Central Govt. may by special order in that behalf specify.

(3) Every notification issued under sub-section (1) shall be laid before each House of Parliament.

An overseas citizen of India is entitled to participate in international sports tournament representing India.[64]

Unless there is a notification, section 7- B(1) is necessary for conferring any right on an overseas citizen. Mere declaration of policy will not confer any right.[65]

Section 7-C. Renunciation of overseas Citizenship

(1) If any overseas citizen of India of full and capacity makes in the prescribed manner a declaration renouncing his overseas citizenship of India, the declaration shall be registered by Central Govt. and upon such registration, that person shall cease to be an overseas citizen of India.

(2) Where a person ceases to be an overseas citizen of India, under sub-section (1), every minor child of that person registered as an overseas citizen of India, shall thereupon cease to be an overseas citizen of India.

Section 7-D. Cancellation of registration as overseas citizen of India

The Central Govt. may, by order, cancel the registration granted under sub-section (1) of section 7-A, if it is satisfied that –

(a) the registration as an overseas citizen was obtained by means of fraud, false representation or the concealment of any material fact; or

(b) the overseas citizen of India has shown disaffection towards the *Constitution of India* as by law established; or

(c) the overseas citizen of India has during any war in which India may be engaged, unlawfully traded or communicated with an enemy or been engaged in or associated with any business or commercial activity; that was to his knowledge carried on in such manner as to assist an enemy at war; or

(d) the overseas citizen has, within five years after registration under sub-section (1) of Section 7-A has been sentenced to imprisonment for a term of not less than two years; or

(e) it is necessary to do so in the interest of the Sovereignty and integrity of India, friendly relation of India with any foreign country or in the interest of general public.

Where the cancellation of overseas citizenship of India is on the ground of security and friendly relationship with foreign country is likely or is affected, a pre- decisional hearing of overseas citizen is not necessary, though the power to cancel has to be exercised in accordance with the provisions of the Act and consistent with the basic rule of law.[66]

The issue of Pakistani passport and subsequent surrender not having been disclosed, the authorities are justified in cancelling the overseas citizenship.[67]

Loss of citizenship (A) *U.S.A.*

American citizenship cannot be lost except under authority of law.

U.S.A.

Under the Immigration and Nationality Act, 1952, citizenship of the United States may be lost in either of two ways – (a) Expatriation; (b) Denaturalization.

1. Expatriation may take place in several ways :

(i) Formal renunciation.

(ii) Treason; attempting to overthrow the government by force of arms.

(iii) Conviction by a court-martial for desertion from the armed forces of the United States [68][This provision has recently been held to be *unconstitutional* on the ground that Congress has no power to denationalise a citizen as a punishment for an offence.].

(iv) Entering into the armed forces or civil service of a foreign country.

(v) Accepting an office in a foreign State or voting in a political election in a foreign State.[69] [This provision has also been held to be unconstitutional on the ground that this was also a form of punishment. It was generally laid down in this case [69] that Congress has no power to take away the citizenship of a natural-born or nationalised American citizen unless he voluntarily gives it up].

(vi) In the case of a child, naturalisation of a parent in a foreign State.

It has been held that no conduct results in expatriation unless the conduct is engaged in voluntarily[70]. The burden is upon the Government to establish the act relied upon for expatriation by clear, convincing and unequivocal evidence.[71] Whether in denaturalisation[72] or expatriation[73] cases, the facts and the law should be construed as far as is reasonably possible in favour of the citizen.

2. Denaturalisation is another mode, besides expatriation, by which a naturalized citizen may lose his citizenship. His naturalisation may be revoked by reason of some specified act or conduct, *e.g.*, obtaining naturalisation by concealment of a material fact or wilful misrepresentation.

Such act or conduct must, however, be proved by "clear, unequivocal and convincing" evidence.[74]

(B) *India*. Citizenship of India may be lost in any of the following ways (a) Renuciation; (b) Termination; (c) Deprivation.

A. *Renunciation*. Renunciation is a voluntary act by which a person holding the citizenship of two countries, can abjure one of them.

U.K.

*Eng*of his British nationality, in one of several ways (a) by naturalisation in a foreign State; (b) a declaration of alienage; (c) by marriage of a British woman with an alien; (d) by a minor's parents losing British nationality. Under the British Nationality Act, 1948, British nationality cannot be lost in any of these ways.

Under the British Nationality Act 1981, a British citizen of full age and capacity under Section 12 of the Act can renounce his British nationality. A declaration must be made in the prescribed form and registration can be made by the Home Secretary if he is satisfied that after registration, the person concerned will acquire some citizenship or nationality other than British citizenship. If another citizenship or nationality is not acquired within six months of registration, the person shall be deemed to be and have remained a British citizen. It is provided, however, that the Home Secretary may withhold registration of any such declaration if made during any war in which Her Majesty be engaged the right of Her Majesty's Govt. in the United Kingdom.

In the case of naturalised and citizen by registration, citizenship may be lost, by deprivation under section 40 of British Nationality Act 1981. The Home Secretary may deprive any person to whom the Section applies of citizenship if satisfied that the registration or certificate of naturalisation was obtained by fraud, false representation or concealment of any material fact or if he is satisfied that the person has shown disloyalty to Her Majesty, or has traded with the enemy during any war (unless the effect of deprivation would be to render that person stateless) has been sentenced to not less than twelve months imprisonment within five years of naturalisation. A person is not to be deprived of citizenship under the section unless the Home Secretary is satisfied that it is not conducive to the public good if that person should continue as a British citizen; and except in the case of continuous residence abroad, a person against whom an order is proposed to be made may require that the case be referred to a committee of inquiry called Deprivation of Citizenship Committee. But there is no right of enquiry where registration or naturalisation was obtained by fraud as to identity.[75]

The British Nationality Act also provides for resumption of citizenship by persons who have earlier renounced citizenship, for example, a wife might have to renounce her citizenship under the law of her husband's State, and wish to return to UK on divorce or following his death. (Section 10 & 13).

India. Section 8 of *our* *Citizenship Act, 1955*, provides for renunciation of citizenship thus –

Renunciation of citizenship

[Art 11] Parliament to regulate the right of citizenship by law.-

"8. (1) If any citizen of India of full age and capacity, [76][* * *] makes in the prescribed manner a declaration renouncing his Indian citizenship, ***of*** the declaration shall be registered by the prescribed authority; and, upon such registration, that person shall cease to be a citizen of India.

Provided that if any such declaration is made during any war in which India may be engaged, registration thereof shall be withheld until the Central Government otherwise directs.

(2) Where a person ceases to be a citizen of India under sub-section(1), every minor child of that person ceases to be a citizen of India.

Provided that any such child may, within one year after attaining full age, make a declaration [77][in the prescribed form and manner] that he wishes to resume Indian citizenship and shall thereupon again become a citizen of India.

[78][* * *]

India.

Section 8 corresponds to section 12 of the English Act, (British Nationality Act) with the following differences:

(a) Under *our* Act, the declaration may be made by any person who is a citizen or national of any country other than India.

(b) Clause (2) of the above section retains a provision of the pre-1949 English law which has been done away with by the British Nationality Act, 1948.[79]

Under the above clause, the renunciation of Indian citizenship by a *father* automatically deprives a minor child of his or her citizenship of India. This provision does not extend to any mode of loss of Indian citizenship by the father other than renunciation.

The child who thus loses Indian citizenship by the father's act of renunciation may, however, recover his citizenship by making a declaration, within one year of his attaining full age, that he wishes to resume Indian citizenship.

This section applies to a case where a foreigner is recognised as a national by the law of more than one foreign country or where by reason it is uncertain what nationality if any is to be ascribed to a foreigner.

This section provides that in each case, the prescribed authority has power to decide which country the foreigner is to be treated as the national and such decision shall be final. The present section hence applies to a person who is a foreigner and the question is of which country he is a national. The question whether a person is an Indian citizen or a foreigner can be decided only by Central Government and not by courts. But, however, the courts can amply decide the question involved under this section, respecting the renunciation of citizenship and the consequence circumscribed thereabout.[80]

Indian Law does not recognise dual citizenship except to the limited extent as contemplated in the proviso to *section 9(1) of Citizenship Act*.[81]

A minor cannot change his nationality without action being taken or consent being given by his guardian. When the father did not relinquish his Indian citizenship or became a Pakistani national, he continues to be an Indian citizen. In such case, a declaration by the minor without consent of his guardian, even if he has obtained a Pakistani passport will not affect his Indian citizenship. The Pakistani passport is of no value.[82]

If the plaintiffs are able to prove that they were citizens of India, when they left for Pakistan, there will be a presumption that they continued to be citizens in 1953 when they returned. Citizenship does not evaporate with passing of time; it clings to a person wherever he may roam. It cannot be taken away unless he voluntarily renounces it or is guilty of some conduct involving loss of citizenship. The onus of proving that a citizen has lost his citizenship is on the party seeking to deprive him of the right of a citizen.[83]

"*Full age"*

Full age means the age of 18 years [s. 2(e)]. But, for the purposes of renunciation under section 8, any woman who is, or has been married, irrespective of her actual age, shall be deemed to be of full age.

B. *Termination.*

This mode is dealt with in section 9 of *our* Act, which has a limited application. It says –

Termination of citizenship.

> 9. (1) Any citizen of India who by naturalisation, registration or otherwise voluntarily acquires, or has at any time between the 26th January, 1950, and the commencement of this Act, voluntarily acquired, the citizenship of another country shall, upon such acquisition or, as the case may be, such commencement, cease to be a citizen of India:
>
> *Provided* that nothing in this sub-section shall apply to a citizen of India who, during any war in which India may be engaged, voluntarily acquires the citizenship of another country,[84] until the Central Government otherwise directs.
>
> (2) If any question arises as to whether, when or how any citizen of India has acquired the citizenship of another country,[84] it shall be determined by such authority, in such manner, and having regard to such rules of evidence, as may be prescribed in this behalf.

Acquisition of citizenship of another country.

Under *Article 9*, the voluntary acquisition of citizenship of a "foreign State" is a ground for non-acquisition of Indian citizenship though the other conditions laid down in *Articles 5*, *6* or 8 may have been fulfilled.

It is to be noted that instead of the expression "foreign State", the words "another country" are used in *section 9 of the Citizenship Act*. This will avoid any controversy as to whether the other country is a "foreign State" or not, and Pakistan or any other Commonwealth country would be included within the expression "another country".[84]

It is possible for a minor to voluntarily acquire the citizenship of another country under this section, *e.g.*, by obtaining a Pakistani passport.[85]

"*Voluntarily acquired".*

Means the doing of something as a result of the free exercise of the will, but not something done under a legal duty.[86] "Voluntarily" means that the person obtaining the passport acted on his own volition and knew the nature of his acts and did not act in performance of a legal duty, nor due to coercion or fraud or mis-representation or mistake.[87] The concept of voluntariness is extremely elusive. Its core meaning would seem to be that a physical movement (or a failure to move out of a particular situation when circumstances required such movement)

cannot be said to have been voluntary if the subject did not (or even probably could not) direct his will to the movement or lack of movement in question. The concept was put thus, in general terms in *Director of Public Prosecution for Northern Ireland v Lynch,*[88] as "volition" to be synonymous with "will'; so that an act is a voluntary physical movement and an involuntary physical movement is not an "act".[89]

Effect of obtaining foreign passport.

Apart from that, rule 3 of Schedule III of the Rules[90] framed under the *Citizenship Act, 1955*, has laid down a rule of conclusive proof that a person has voluntarily acquired the citizenship of another country, *viz.*, that "when a citizen of India has obtained on any date a *passport* from the Government of any other country, it will be conclusive proof of his having voluntarily acquired the citizenship of that foreign country before that date" for the purpose of terminating his Indian citizenship under section 9[91] which is binding on all Courts, including the Supreme Court.[91] It was held in that case that the scheme of relevant articles of Pt II of the *Constitution*, which deals with Citizenship, clearly suggests that the status of citizenship can be adversely affected by a statute made by Parliament in exercise of its legislative powers. It may "*prima facie*" sound surprising, but it is nevertheless true that though citizens of India are guaranteed the fundamental rights specified in *Article 19 of the Constitution*, the status of citizenship on which the existence or continuance of the said right rests is itself is not one of the fundamental rights guaranteed to anyone. If a law is properly passed by Parliament affecting the status of citizenship of any citizen in the country it can be no challenge to the validity of the said law that it affects the fundamental rights whose citizenship is thereby terminated. *Article 19* proceeds on the assumption that the person who claims the rights guaranteed by it is a citizen of India. If the basic status of citizenship is validly terminated by a Parliamentary statute, the person whose citizenship is terminated has no right to claim fundamental rights under *Article 19*. Therefore, the challenge to section 9(2) on the ground that it enables the rule-making authority to make a rule to deprive the citizenship rights cannot be accepted. Nor can the validity of section 9(2) be attacked on the ground that it enables that it confers on the Central Govt. uncanalised and arbitrary power to make rules without any guidance and as such it amounts to excessive delegation is also not correct.

Section 9 has no application, once it is found that the person has failed to prove that he is a citizen of India either by birth or became one at any time subsequently.[1]

A passport by itself does not "conclusively prove" that the person to whom the passport is issued is a citizen of India since the information given for issue of such passport is by applicant himself. Mere continued residence also will not prove that he is an Indian citizen. Hence, such a person's deportation was held valid.[2]

Once it is found that a passport is obtained by an Indian citizen from another country, the law determines the legal consequences of that conduct, and no question of intent or understanding arises. If voluntary acquisition of citizenship of another country determines Indian citizenship, within the meaning of section 9(1) along with relevant rules, a conclusive presumption of voluntary acquisition arises, *i.e.,* it is implicit that the obtaining of a passport was the result of the exercise of free volition by the citizen.[3] But, it is also held therein that obtaining foreign passport cannot be regarded as conclusive proof of voluntary acquisition of foreign citizenship.[4]

Where there is no migration at all or where the migration has been involuntary or under compulsion, the person does not become citizen of receiving country. But when he gets a passport of a foreign country on the basis of declaration given by him, he loses his Indian citizenship.[5]

Foreigners have no right to claim Indian citizenship. No foreigner can claim to stay in India as a right. The Government has unrestricted right to expel a foreigner.[6] The presumption is not[6a6a] rebuttable as some High Courts[7] supposed.

Section 9(2) read with Rule 30 confers the power to determine whether Indian citizenship is terminated upon the specified authority and in exercising that power, the authority is guided by statutory rules of evidence. It would be impossible to hold that termination of Indian citizenship depends upon actions of a foreign country is issuing passport.[8]

But even where there is a foreign passport, a determination by the Central Government under section 9(2) cannot be dispensed with,[9] because such person may, at the inquiry, show that the foreign passport was received by him under fraud or misrepresentation so that it could not be said that he had "obtained" the passport within the meaning of r. 3 of Schedule III.[10] He must be given an opportunity to show that he did not voluntarily acquire the passport.[10] But no detailed inquiry is needed under section 9(2) and where, in his representation to the Government, he did not take any such plea, no further opportunity need be given or formal inquiry need be made.[11]

The inquiry under section 9(2) is of a quasi-judicial nature.[12]

Under Section 9(1) the acquisition of foreign citizenship must be voluntary, but the question whether a person has acted "voluntarily" raises a question about the state of mind and therefore a "fact" (A state of a man's mind, as has been said, is as much a fact as the state of digestion.[13] Any rule which shuts out an enquiry into the state of mind by making it depend arbitrarily upon the acquisition of passport is repugnant to Section 9(1) and therefore *ultra virus* and void.[14]

The contention that as soon as a person acquired a passport from a foreign country, his citizenship of India automatically comes to an end was not accepted by the Supreme Court.[15] But a conclusive presumption could be raised of the fact that a citizen of India who has obtained on any date a passport from the Government of another country of having voluntarily acquired the citizenship of that country before that date.[16]

Where a person raises a plea that he was compelled by force of circumstances to obtain a passport from a foreign country, the Government is bound to consider the desirability of giving him a personal hearing and an opportunity to adduce evidence and should be afforded opportunity to produce that fact.[17]

As regards Goa, Daman and Diu, a rule similar to r. 3, has been inserted in Schedule III of the Citizenship Rules, by the Goa, Daman and Diu (Citizenship) Order, 1962. Under this rule (r. 3A), to raise the conclusive presumption two facts are necessary (a) holding a foreign passport, (b) not surrendering such passport by 19 January 1963.

"*As may be prescribed in this behalf*". *Section 18(2)(h) of the Citizenship Act* authorises the Central Government to make rules in this behalf. Rule 30, read with Schedule III of the Rules made under the Act, deal with the matters referred to in section 9(2).

Rules of evidence and presumption

As stated earlier, r. 30(2) of the Citizenship Rules, 1956, framed under *section 18 of the Citizenship Act*, says that–

> The Central Government shall, in determining any such question (*i.e.*, the question under section 9(2) of the Act) have due regard to the rules of evidence specified in Schedule III.

These rules of evidence may be divided into two categories –

(a) Conclusive proof;

(b) Rebuttable presumption.

[Art 11] Parliament to regulate the right of citizenship by law.-

A. Conclusive proof

This rule, contained in para 3 of Schedule III, says that the fact that a citizen of India has obtained a passport from the Government of any other country shall be *conclusive proof* that he has voluntarily acquired the citizenship of that country. Of course, the factum of obtaining a passport from a foreign State is for the Central Government and not the Court to determine.[18]

But the efficacy of the rule of conclusive evidence in para 3 of Schedule III and of the *Constitution* Bench in *Peer Md's* case [18] has been undermined by the decision in a later *Constitution* Bench in *Ayub Khan's case*[19] that the words "voluntary" and "obtained" in Para 3 indicates that the mere fact of obtaining passport from a foreign country would not empower the Central Government to hold that the person has acquired citizenship of that country unless it holds an inquiry that his application for that passport was made *voluntarily* and not by force, fraud or misrepresentation. In the opinion of this Author, this decision of the Supreme Court is open to criticism. If this be the law, all such persons will delay the procedure of his deportation by raising the plea, in every case, that his application and declaration for passport was involuntary. In the Author's view the decision of the Madras High Court,[19] appealed from was sound. Otherwise, there would be no meaning in using the expression "conclusive proof" as distinguished from the word "deemed" in the other Paragraphs of the same Schedule.[20]

There is no provision in our law which provides that a person would automatically lose his Indian citizenship on his marriage with a person who is a citizen of a foreign country or by acquiring any property in a foreign country.[21]

B. Rebuttable Presumptions

In Schedule III of the Citizenship Rules, two other presumptions have been added as regards the acquisition of foreign citizenship, which are, however, not conclusive presumptions:

(a) Rule 4A, inserted in 1969, says –

> Notwithstanding anything contained in para 4, a citizen of India who leaves or has left India without a travel document issued by the Central Government and resides outside India for a period exceeding three years shall be *deemed* to have voluntarily acquired the citizenship of the country of his residence.

(b) Rule 5 provides –

> Notwithstanding anything contained in para 4, a citizen of India shall be deemed to have voluntarily acquired the citizenship of Pakistan –
>
> (a) if he has migrated to Pakistan with the intention of making it his permanent home; or
>
> (b) if he has obtained any certificate of domicile in Pakistan or declared himself to be a citizen of Pakistan or of Pakistan domicile; or
>
> (c) if he has applied for and obtained, a right, title or interest in evacuee property in Pakistan; or

(d) if he has obtained a temporary permit for entry into India from Pakistan.

Explanation. For the purpose of clause(a) of this paragraph, a person shall *not* be deemed to have migrated to Pakistan with a view to making that country his permanent home –

(i) if he has left for a place in West Pakistan with a "no objection certificate" and returned to India under such permit for permanent return or resettlement as may have been issued by or under the authority of any law in force in India or of the Government of India, or

(ii) if having left India at any time between the 1st February, 1950, and the 15th October, 1952, for a place in West Pakistan, he has returned to India with a repatriation certificate issued by or under the authority of any law in force in India or of the Government of India.

But the only question which a Court is debarred from deciding is the question under section 9(2),[22] that is–

whether a citizen of India has acquired the citizenship of another or when or how he acquired it.

Determination of acquisition of foreign citizenship.
Scope of section 9(2)

I. Once a person satisfies the tests laid down in *Articles 5-8* for citizenship of India on 26 January 1950, he can be divested of that citizenship only if he voluntarily acquires the citizenship of a foreign country between 26 January 1950 and 30 December 1955, the date of commencement of the *Citizenship Act*, as stated in sub-section (1) of section 9 of that Act.

II. It is only where there is proof that a person was a citizen of India and is alleged that he has lost his India citizenship by reason of acquiring the nationality of a foreign State that the question of invoking the provisions of *section 9(2) of the Citizenship Act* arises.[23]

Where a person comes to India from Pakistan and is prosecuted for contravention of *section 2(a) of the Foreigners Act*, for having entered India without passport, there is no room for the application of section 9(2), unless the person first establishes that he was a citizen of India before he went over to Pakistan.[23]

Section 9(2) has no application where, a person who had come to India on a Pakistani passport on a prevous occasion had been validly deported and on a subsequent occasion, he has been charged with having entered India without a valid travel document.[24]

Determination of citizenship will be done by the Central Govt. only where a question arises whether a citizen of India has voluntarily acquired citizenship of another country. When the specific case of the detenu is that he did not acquire any citizenship of a foreign country, the question of enquiry by the Central Govt. does not arise,

especially when the same person has already suffered deportation on an earlier occasion. He has to be treated to be a foreigner under *Foreigners Act*.[25]

Similarly, the question of determination will arise only if the person concerned is interested in seeking such a determination or if he raises such a question and moves the concerned authority for such determination under section 9(2). It is not as if with regard to each and every person being deported on the expiry of his visa, there should be a determination by the Central Government. When a person has already suffered a deportation earlier, there is no necessity for such determination and he has to be treated as foreigner.[26]

A resident of J & K migrated to Pakistan and obtained citizenship in that country. After obtaining a Pakistan passport, he came to India for a specific period. On expiry of that period, he has no right to stay in India and no question of determination arises. He is liable to be deported back to Pakistan.[27] The question of determination will arise only in case where a citizen of India has obtained citizenship of a foreign country. If the concerned person is not an Indian citizen, then section 9(2) has no application.[28] In a case where some persons enter India on a Pakistan passport refuse to leave India even after a long period, their long stay in India do not give them any right as citizens even though they have entered their names in electoral rolls.[29]

When a person enters India illegally and continues to reside in India for a long time, no question of determination arises under section 9(2), since the person is not an Indian citizen, nor he has lost any Indian citizenship.[30]

Section 9 covers only cases with regard to Indian citizens who have voluntarily acquired the citizenship of another country at any time between 26.1.1950 and the commencement of Indian *Citizenship Act* *i.e.,* 30 December 1955. Prior to that, citizenship has to be determined under *Article 7 of the Constitution* and not under section 9.[31]

If a person who was a citizen of India is directed to leave or quit India on the allegation that he has ceased to be an Indian citizen on his voluntarily acquiring citizenship of another country, such order to quit India can be passed only after a proper determination as to his citizenship. It must be determined by the Central Government or by such authority as prescribed by Government.[32]

The issue of citizenship cannot be decided by a writ court under *Article 226 of the Constitution*. It has to be determined only by the authority provided under section 9(2) of the Act.[33] A person who was born in India, cannot be treated as a foreigner, so long as the Central Govt. has not decided her status of citizenship.[34] If there is a serious dispute about the losing of Indian citizenship for acquiring citizenship of another country, the question has to be decided by Central Govt. before taking any action for deportation.[35]

Whether a person is or is not a citizen of India can be decided by Court. In fact, it is the duty of court to decide that question. But, when a question arises as to whether, when or how a person has acquired citizenship of a foreign country, neither a court nor any other authority can determine the same except the Central Government which alone has exclusive jurisdiction to decide the same.[36]

There is no automatic loss of Indian citizenship merely on obtaining a foreign passport. Whether a person has lost his Indian citizenship or not is to be decided by the Central Government and it is only after such a decision that he can be dealt as a foreigner.[37]

III. There has been much controversy around the question as to how and by whom this question whether a person has acquired the citizenship of a foreign country is to be determined. Sub-section (2) of section 9 leaves it to the rule-making authority under the Act, which is the Central Government section (18).

Under r. 30 of the Rules made under the Act, the Central Government has been appointed as the sole authority to determine the question whether or how a citizen of India has acquired the citizenship of another country. A State Government has no jurisdiction[38] to determine this question unless the function is delegated by the Central Government, under *Article 258 of the Constitution*.[39]

When the Government as well as the applicant have no case, that the citizenship have been determined for any of the reasons mentioned in Section 9, that Section has no application. The question whether a person is a foreigner or not, (and in which Section 9 has no application,) on which there is a great deal of dispute which require detailed examination of evidence, the proper remedy is to file a suit and not a writ petition under *Article 226 of the Constitution of India*.[40]

No Court [38] including the Supreme Court,[41] has jurisdiction to decide this question.

IV. A determination by the Central Government under section 9(2), read with r. 30, is a condition precedent for asking any action against the person who is alleged to have lost his India citizenship by voluntary acquisition of foreign citizenship.[42] If, therefore, a person is convicted or an order of deportation is made against him, on the ground of contravention of the provisions of the *Foreigners Act*, *before* a determination under *section 9(2) of the Citizenship Act* is made by the Central Government, the order of conviction[43] or deportation[44] is liable to be set aside, on the ground that the person was not a foreigner at the time when he was alleged to have contravened the provisions of the *Foreigners Act*, even though a proceeding under section 9(2) might have been initiated during the pendency of the criminal trial.[45] Of course, it is open to the Government to take fresh action after such determination is made under section 9(2).[45]

The Respondent was born in India of Indian parents in 1932 and had his domicile in India. He thus acquired the citizenship of India at the commencement of the *Constitution* under *Article 5*(a). The Respondent entered India on 1-4 -55 from Pakistan with a Pakistani passport and was prosecuted for overstaying in India on the allegation that he was a Pakistani national. Held, that since he was a citizen of India under *Article 5*(a), he could not be prosecuted under the *Foreigners Act, 1946*, until the Central Government had determined, under *section 9(2) of the Citizenship Act*, whether he had lost his Indian citizenship and voluntarily acquired the citizenship of Pakistan.[45]

V. As to whether the question as to acquisition of citizenship of a foreign country can be inquired into by the Courts in collateral proceedings, the Supreme Court has laid down that—

Jurisdiction of Courts.

(i) The Central Government is the *exclusive* authority for determining the question referred to in section 9(2) and a Civil Court or a Criminal Court[46] has *no* power to decide this question.[47] Honourable Supreme Court held that civil Court will have no jurisdiction to decide the issue in a suit instituted before the commencement of the Act as the Central Government above has been constituted the exclusive forum for the same. The legal position is unquestioned and unquestionable.[48] Even the High Court has no power to decide the question.[49]

(ii) But there must be a direct decision of the question by the Central Government, in order to apply section 9(2).[50]

It follows, therefore, that (a) if the question arises in proceeding before a civil Court, it should stay its proceedings and allow the parties to obtain the decision from the Central Government.[50]

(b) If it is a criminal proceeding, the accused should be discharged, leaving the State Government to proceed afresh against the accused, after obtaining the determination of the Central Government that the accused has become a “foreigner” by reason of his acquiring the citizenship of a foreign State.[51]

(iii) Parties have a right to apply to the Central Government for a decision under section 9(2).[52]

VI. The distinction should not be overlooked between two questions – (a) whether a person having once been an Indian citizen has renounced that citizenship and acquired the citizenship of a foreign country, and (b) whether a person is an Indian citizen or a foreigner. Section 9(2) bars the jurisdiction of courts to determine the first question but not the second.[53]

VII. The Civil Court, in a declaratory suit, is not precluded from determining questions *outside* section 9(2), *e.g.*, the question whether a person has acquired citizenship of India under *Article 5* or the Proviso to *Article 7 of the Constitution*,[52] or, in other words, whether he *ever* was a citizen of India.[54] Where it is necessary to go into disputed questions of fact in order to determine this question, the question can hardly be determined by the High Court under *Article 226*. The Petitioner may, in such cases, be relegated to a suit.[55] Status of a person as citizen of India cannot be said to have been extinguished merely because his remedy for getting declaration to that effect is lost due to the bar of limitation. Every citizen is entitled to protection against deportation and the investigation of his being a citizen under *Article 5 of the Constitution* is implicit in the claim for relief for injunction without regard to whether declaratory suit for the same has become barred by limitation. Such investigation of title or status does not depend as claiming declaratory relief.[56]

Though Central Government is conferred with exclusive jurisdiction to decide whether any person has acquired the citizenship of another country, same High Court have held that the jurisdiction of the civil Court to try a suit asking the Court to restrain the Government from deporting the plaintiff alleging himself to be a citizen of India is not barred. What is barred is the power of Court to decide the question whether he has acquired the citizenship of another country. If any such question arises, the civil Court cannot try the question. The proper course for it would be to refer any question covered by Section 9 (2) to the Central Government and stay further hearing of the suit till the decision of the Central Government is received and then decide the question in accordance with law. It was further held that though neither Section 9 nor Rule 30 expressly provides for a reference by the Court to the Central Government of the question specified in Section 9 (2) such a power to refer can be inferred.[57]

Procedure under section 9(2).

VIII. Under the above Rules, the Central Government may require a person to prove, within a given time, that he has *not* voluntarily acquired the citizenship of another country and then the burden shall lie on that person to prove that fact. The Central Government may also secure information on the question from the Government or Embassy of the other country for this purpose. In determining the fact under section 9(2), the Central Government may take the following circumstances[58] into consideration, namely, –

(a) Whether the person has migrated to that country with the intention of making it his permanent home;

(b) Whether he has in fact taken up permanent residence in that country;

(c) Any other circumstance relevant to the purpose, *e.g.*, whether, he came to India on a Pakistani passport[59], read with clause 3 of Schedule III of the Citizenship Rules.[60]

IX. No action can be taken under section 9(2) without making an inquiry as required by the Rules59, even where the person has entered India on a passport from a foreign Government.[61] The inquiry to be made is quasi-judicial in nature, for, the person must be given an opportunity to show that the alleged acquisition of foreign citizenship was not voluntary.[62] But no such inquiry need be made where he does not, in his representation, take the plea that the Pakistani passport was not voluntarily obtained or that he was a victim of misrepresentation, force or fraud. What sort of opportunity or whether a personal hearing should be given would depend on the circumstances of each case.[63]

When a plea is taken by a person that he has not “voluntarily” acquired a foreign passport, the same has to be enquired. When such a person takes a plea that he has obtained the same on a wrong advice and under a compelling circumstance, and despite this contention, he has been served with a notice terminating his Indian citizenship, the court held that the order was passed without giving reasonable opportunity to substantiate his case, *i.e.,* acquisition of foreign passport was not voluntary. The authority under section 9(2) is a *quasi* -judicial authority and the decision must be based on proper appreciation of evidence and must comply with the principle of natural justice.[64] In fact it has also been held that personal hearing is also necessary before such determination.[65]

Whether the determination of the Central Government under section 9(2) can be challenged in the Courts

Section 15(2) of the Citizenship Act says that subject to the right to apply to the Central Government under sub-section (1) of that section, the determination by the Central Government under section 9(2) shall be “final”. But the “finality” clause in a statute cannot oust the jurisdiction of the High Court or the Supreme Court to interfere, in a proper case, under *Article 226* or *32*.

Of course, the High Court, under *Article 226*, cannot sit as a Court of Appeal against the decision of the Central Government and question the decision of the Central Government on the merits.[66] The Court may, however, interfere where the order is without jurisdiction or is in contravention of any provision of law or the rules of natural justice have been violated in making the decision. Mere refusal to permit the Petitioner to adduce oral evidence would not be any ground for interference since there is no statutory requirement that the Central Government must give such opportunity to the Petitioner before making its decision under section 9(2).[67]

When the person on his own showing had “voluntarily” applied for and obtained a Pakistani passport there is no scope for a personal hearing. Question of application of principles of natural justice will arrive only in cases where the person contends that he has obtained the passport not voluntarily.[68]

Revision to the Central Government lies only if the order is passed by the prescribed authority. If the order is passed by the Central Government itself, no revision is maintainable.[69]

C. *Deprivation.*

While renunciation is a voluntary mode of loss of citizenship, deprivation is a compulsory termination by an Act of the State.

(A) *England.*

This mode is dealt with in section 40 of the British Nationality Act, 1981:

U.K.

A citizen of the United Kingdom and Colonies may be deprived of his citizenship only if he is a citizen either by registration or by naturalisation:

(a) A citizen by registration may be deprived of citizenship if the Secretary of State is satisfied that the registration was obtained by means of fraud, false representation or concealment of a material fact.

(b) A naturalised person may be deprived of his citizenship by the Secretary of State, if he is satisfied that—

(i) Such person obtained his certificate of naturalisation by fraud, false representation or concealment of a material fact; or

(ii) Has shown himself disloyal or disaffected towards the Crown; or

(iii) Has, during a war, unlawfully traded with the enemy or otherwise assisted enemy; or

(iv) Has been sentenced in any country, within 5 years of naturalisation, to imprisonment for a term not less than 12 months; or

(v) Has been ordinarily residing in foreign countries for a continuous period of seven years without having complied with certain conditions.

A person is not to be deprived of citizenship under section 40 of British Nationality Act unless the Home Secretary is satisfied that it is not conducive to the public good that, that person should continue to be a British citizen and except in the case of continuous residence abroad, a person against whom an order is proposed to be made may require that the case be referred to a committee of enquiry called the "Deprivation of Citizenship Committee".[70]

U.S.A.

(B) *U.S.A.*

The law on this point in the United States, as interpreted by the Supreme Court in recent cases,[71] differs from that in the U.K. or India. It has been held that the *Constitution* does not empower Congress to divest a person of American citizenship by legislation except on the ground of voluntary renunciation.[72] Further, deprivation of citizenship as a punishment is barred by the Eighth Amendment to the *Constitution*.[71]

India.

(C) *India.*

Section 10 of our *Citizenship Act, 1955*, deals with deprivation of citizenship. It provides –

> "10(1) A citizen of India who is such by naturalisation or by virtue only of clause (c) of *Article 5 of the Constitution* or by registration otherwise than under clause (b)(iii) of *Article 6 of the Constitution* or clause(a) of sub-section(1) of section 5 of this Act shall cease to be a citizen of India, if he is deprived of that citizenship by an order of the Central Government under this section.
>
> (2) Subject to the provisions of this section, the Central Government may, by order, deprive any such citizen of Indian citizenship, if it is satisfied that –
>
> (a) the registration or certificate of naturalisation was obtained by means of fraud, false representation or the concealment of any material fact; or
>
> (b) that citizen has shown himself by act or speech to be disloyal or disaffected towards the *Constitution of India* as by law established; or

(c) that citizen has during any war in which India may be engaged, unlawfully traded or communicated with an enemy or been engaged in, or associated with, any business that was to his knowledge carried on in such manner as to assist an enemy in that war; or

(d) that citizen has, within five years after registration or naturalisation, been sentenced in any country to imprisonment for a term of not less than two years; or

(e) that citizen has been ordinarily resident out of India for a continuous period of seven years, and during that period, has neither been at any time a student of any educational institution in a country outside India or in the service of a Government in India or of an international organisation of which India is a member, nor registered annually in the prescribed manner at an Indian consulate his intention to retain his citizenship of India.

(3) The Central Government shall not deprive a person of citizenship under this section unless it is satisfied that it is not conducive to the public good that that person should continue to be a citizen of India.

(4) Before making an order under this section, the Central Government shall give the person against whom the order is proposed to be made notice in writing informing him of the ground on which it is proposed to be made and, if the order is proposed to be made on any of the grounds specified in sub-section (2) other than clause (e) thereof, of his right, upon making application therefor in the prescribed manner, to have his case referred to a committee of inquiry under this section.

(5) If the order is proposed to be made against a person on any of the grounds specified in sub-section (2) other than clause (e) thereof and that person so applies in the prescribed manner, the Central Government shall, and in any other case it may, refer the case to a Committee of Inquiry consisting of a chairman (being a person who has for at least ten years held a judicial office) and two other members appointed by the Central Government in this behalf.

(6) The Committee of Inquiry shall, on such reference, hold the inquiry in such manner as may be prescribed and submit its report to the Central Government; and the Central Government shall ordinarily be guided by such report in making an order under this section.

It is evident that the above section broadly corresponds to section 20 of the British Nationality Act, 1948.

The section applies to the following classes of persons:

(a) A person who has become a citizen of India by naturalisation under section 6 of the Act;

(b) A person who has become a citizen of India *only* by virtue of *Article 5(c) of the Constitution* [p. 508, *ante*], *i.e.* by mere residence in the territory of India for a period of 5 years immediately preceding the *Constitution*;

(c) A person who has become a citizen of India by registration *otherwise* than under *Article 6 (b)(ii) of the Constitution* or *section 5(1)(a) of the Citizenship Act*.

Sub-sections (4)-(6) of section 10: Committee of Inquiry

Except in the case referred to in sub-section (2)(e), deprivation of citizenship under section 10 is a *penal* provision and hence, sub-sections (4)-(6), lay down the following procedure to be adopted, in conformity with natural justice, by the Central Government, before making any order under section 10:

(a) A notice to the person concerned informing him that he can make an application to have his case referred to a quasi-judicial body, *viz.*, a Committee of Inquiry.

(b) If the person *makes* such application, and the order proposed by the Government is against that person, the Government shall refer the case to a Committee of Inquiry, led by a person who had held a judicial office for not less than 10 years.

(c) The *Government* "*shall ordinarily be guided*" by that report, in making the order.

Whether certificate of registration granted under section 5(1)(a) may be cancelled

It is clear from section 10(1) that a person who has been registered under section 5(1)(a) cannot be "deprived" of his citizenship. The question arises whether such registration can be cancelled on any account. There is, obviously, no provision in the Act for such cancellation.

This is apparently a loophole in the Act. The Rajasthan High Court[73] has expressed the opinion that where the registration under section 5(1)(a) has been obtained by *fraud*, the Collector has the power to cancel such registration under the "general law". It is difficult to agree with that view in view of the express provisions of section 10. While sub-section (2) authorises deprivation on the ground that registration was obtained by fraud, sub-section (2) excludes from its operation cases of registration under section 5 (1)(a) which are specified in sub-section (1). In fact, sub-section (1) makes it clear that the entire section is applicable only to cases where registration had been made "otherwise than under clause (b)(ii) of *Article 6 of the Constitution* or clause (a) of sub-section (1) of section 5 of this Act". It is, accordingly, difficult to hold that a registration granted under sub-section (a) of section 5(1) may be cancelled on the ground of fraud. Nevertheless, for the removal of doubts, it is desirable to engraft a provision in the Act to meet such cases of fraud or want of jurisdiction also in cases of purported exercise of the power under section 5(1)(a).

Subsequent to the expression of the foregoing opinion at p.109 of vol 1 of the Fourth Edition, this case came up on appeal before the Supreme Court.[74]

The Court did not consider it necessary to decide whether a registration under section 5(1)(a) could be cancelled under section 10(2). But, assuming that it could be cancelled, held that the power under section 10(2) could be exercised only establishing, objectively, the existence of the statutory conditions, *e.g.*, that the Petitioner had obtained registration as a citizen by fraud or suppression of a material fact. The Court held that under clause (a) of sub-section (2) of section 10, a citizen can be deprived of his citizenship only if it is proved that the registration was obtained by means of fraud, false representation or concealment of any material fact. This power cannot, therefore, be exercised unless such fraud, false representation or suppression of material fact "exists". In that case, the court found (on facts) that in his previous application for registration, he had stated all facts after perusing original records. An order under section 10(2) would not be upheld where the Government failed to establish such fraud or concealment on the part of the person in whose favour the registration certificate had been granted.[75] The contention that the collector having the power to grant the Registration Certificate under the *Citizenship Act* had by virtue of *Section 21 of General Clauses Act* and apart from *Section 10(2) of the Citizenship Act*, the power to cancel the certificate was rejected holding that *Section 21 of General Clauses Act* does not confer any such power and the orders contemplated in that Section are not orders of the kind contemplated in *Section 5 of the Citizenship Act*.

Loss of territory

Though our *Citizenship Act, 1955*, provides for the acquisition of citizenship by persons of territory incorporated into the territory of India, it makes no provision as to loss of Indian citizenship of inhabitants of territory which

may be lost to India by cession, annexation or the like. The loss or continuance of the nationality or citizenship of such persons will, accordingly, depend on law made by Parliament.

In the absence of any such legislation by the Indian Parliament, as has happened in the case of Berubari,[76] the matter will be governed by International law, *viz.*, that the inhabitants of the ceded territory will lose their Indian citizenship from the moment the cession takes effect.[77] Whether they will acquire the citizenship of the State in whose favour the cession takes effect will depend on legislation by that State. There is nothing in International law to compel that State to confer its citizenship upon such persons; if it does not, such persons shall become State-less.

Foreigners Act, 1946

1. Since the amendment of the definition of "foreigner" in *section 2(a) of the Foreigners Act, 1946*, in 1957,[78] the *Citizenship Act* and the *Foreigners Act* must be read as complementary to each other. For, as soon as the Government or other empowered authority finds that he is *not* a citizen of India such authority may proceed against him under the *Foreigners Act*. Thus,—

As per the definition, "foreigner" is a person who is not a citizen of India. He is a foreigner.[79] A person who has, after 01 March 1947, migrated from the territory of India to the territory now included in Pakistan, shall not be deemed to be a citizen of India and he is a foreigner.[80] The question whether a person is a foreigner or not requires careful scrutiny. The enquiry is *quasi*-judicial in nature. The matter has to be determined by the prescribed authority in accordance with *Citizenship Act*, its rules and constitutional provision.[81]

The question whether a person is a foreigner or not is to be determined by the Central Government and the order can be executed by Supt. of Police. Merely because the Supt. of police executes the order, it cannot be said that he has determined the status of the person as foreigner.[82]

It is held therein that with regard to the right to be heard, there cannot be any hard and fast rule about the manner in which a person concerned has to be given an opportunity to place his case. Where a foreigner failed to show that in case of issuance of notice to him, he would have produced relevant materials to support his claim for acquisition of citizenship, non-affording of opportunity of hearing would vitiate the expulsion order. The government has unrestricted power to expel the foreigner from Indian territory. The person has to show that he is prejudiced on account of not being given sufficient opportunity *i.e.,* failure of justice.

When the authorities have refused citizenship to a foreigner, a writ petition will not be entertained since he has no fundamental right excepting the protection and safeguards under *Article 20* to 22.[83]

The object of the *Foreigners Act* is to regulate the movement of foreigners in Indian territory, as an incidental or supplementary matter to monitoring the movement of foreigners. The government has also passed the Foreigners (Report to Police) Order 1971 with a view to obviate the harbouring by citizens by way of accommodating the foreigners in their houses or premises under *section 7 of Foreigners Act*. The court held that the object of the order is to see that a foreigner who arrives in India, stays in India under valid documents, valid permit, or visa and that his movements are controlled, and no citizen can contend that he has a fundamental right to harbour a foreigner in his house -hold and as a citizen of India, he is bound to report the matter to the police on arrival of foreigner in his house or in a premises which is under his control. The duty to lay information with the police is incidental to the fundamental duty under *Article 51-A of Constitution of India*. Such a provision is just and reasonable to subserve national interest and security.[84]

(i) No prosecution under *section 14 of the Foreigners Act* can be taken till the Central Government has determined under *section 9(2) of the Citizenship Act* the case of the persecution that the accused who was an Indian citizen has lost that by acquiring Pakistan nationality.[85]

2. A person cannot be punished retrospectively under section 14 of the Foreigner Act, when he was not a "foreigner" according to the definition of that term before 1957, when the alleged offence had been committed.[86]

Jurisdiction of the State Government to expel or deport a foreigner

1. A State Government has no jurisdiction to determine this question[87] unless the function is delegated by the Central Government, under *Article 258 of the Constitution*.[88] The executive powers of the Union extend to matters relating to extradition and may be entrusted by the Central Government to the State government under *Article 258 of the Constitution* either conditionally or unconditionally.[89]

Delegation.

2. Such delegation has been made by the Union Government [88] in favour of the States of A.P., Assam, Bihar, Bombay, J. & K., Kerala, M.P., Madras, Mysore, Orissa, Punjab, Rajasthan, U.P., West Bengal, of the power to make orders under section 3(2)(c), (cc), (d), (e) and (f) of the *Foreigners Act, 1946*.

It was by virtue of delegation as aforesaid, that the Government of Jammu & Kashmir made an order of deportation and that order was upheld by the Supreme Court.[88] Similar order was made by the Madhya Pradesh Government and upheld.[90] Similar order was made by the Rajasthan Government.[91]

3. Recently, the head of the Minority Commission raised his objection to the expulsion of some infiltrators from Bangladesh by the Maharashtra Government, on the ground that the power to deport them belonged exclusively to the Central Government. It does not appear whether the foregoing order of delegation came to his notice. A responsible person should not make any such statement which might cause unnecessary communal tension.

Onus when a notice under section 3(2) of the Foreigners Act, 1946, is served on a person

I. A notice to quit India, under section 3(2) of this Act, is not valid unless the person upon whom such notice is served is a "foreigner" as defined by the Act.[92]

II. The definition of a "foreigner" as amended by Act II of 1957 (with effect from 19 January 1957) is "a person who is not a citizen of India". Under section 9 of this Act,

Mere issuance of a ration card in the name of a foreigner will not make him an Indian citizen nor is a piece of evidence of citizenship.[93] It was further held in that case Police is part of civil administration and it cannot be said that it is not a civil authority under foreigners order and hence police has power to deport the foreigners.

The Central Government in regard to foreigners, either who enter the country without necessary permission or authority, or remain in the country after the expiry of period for which permission is granted, could straight away take necessary action to deport such persons from the country without there being anything more.[94] It was held in that case, that when the person admits that he is a foreigner, and his application seeking extension has been rejected, he cannot complain that principles of natural justice have been violated. *Foreigners Act*, does not provide for disclosing the grounds for asking foreigners to leave India.

The Central Government is given unfettered power to expel a foreigner from the country. A grant of permission to a foreign national to marry an Indian citizen does not impose duty on Government to grant visa to the foreign spouse. Larger considerations including security of State and international relations have all to be reckoned while deciding upon the issue of a visa to a foreign national. As observed by the Privy Council[95] those who are responsible for national security must be the sole judges of what national security requires. It would be obviously undesirable that such matters should be made subject of evidence in a Court of law or otherwise discussed in public.[96]

Where a foreigner was with limited leave to enter or remain in country, but not registered himself as per provision of the Act or Rules and there was no application made for extension of stay before the expiry of period of visa, it was held that order of deportation does not suffer from any infirmity or irregularity nor the principles of natural justice could be applied.[97]

Foreigners Act of 1946 is a piece of significant legislation and a play of its own. Considering the policy behind and the object of the Act, there may be many exigencies which would impel quick and lightening action to be taken under the Act, failing which the very security of the nation may be jeopardised. Under the said Act, the Central Government is vested with the absolute and unfettered discretion, and a foreigner can be expelled without any formality beyond making the order.[98]

> If……any question arises with reference to this Act or any order made or direction given thereunder, whether any person is or is not a foreigner……the onus of proving that such person is *not* a foreigner……shall, notwithstanding anything contained in the Evidence Act, 1872, lie upon such person.

Hence, whenever any notice or order under section 3(2) of this Act is served upon a person, ordinarily, the onus shall lie upon that person to prove that he is not a foreigner, that is to say, he must establish that he is a citizen of India either under the Constitution or under the Citizenship Act.[1] In *Sarbananda Sonowal v UOI (I),*[2] it was held: "There are good and sound reasons for placing the burden of proof upon the person concerned who asserts to be a citizen of a particular country. In order to establish one's citizenship, normally he may be required to give evidence of (i) date of birth; (ii) name of his parents; (iii) place of birth; (iv) their place of birth and citizenship. Sometimes the place of birth of his grandparents may also be relevant like under section 6-A(i)(d) of Citizenship Act. All these facts would necessarily be within the personal knowledge of the person concerned and not of the authorities of the State. After he has given evidence on these points, the State authorities may verify the facts and then lead evidence in rebuttal, if necessary. If the State authorities dispute the claim of citizenship of a person and asserts that he is a foreigner, it would not only be difficult, but almost impossible for them to first lead evidence on the aforesaid points. This is in accordance with the underlying policy of section 106 of the Evidence Act which says that "when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him". Even in criminal cases, though the burden is on the prosecution to prove the guilt of the accused, when facts are with special knowledge of the accused, he has to prove the same. The court took note of the decision in *Shambhu Nath Mehra v State of Ajmer*.[3] The court held that only because the burden of proof under certain situation is placed on the accused or proceedee, the same would not mean that he is deprived of procedural safeguard. Such a procedure would not mean as violative of Article 21 of the Constitution. What is to be proved is that he was a citizen of India at the date when the offence is alleged to have been committed, so that to show that he was not a foreigner at some earlier point of time will not be enough.[4]

III. The position is different where the case of the Government is that the person served with the order was a citizen of India who had lost that citizenship by acquiring the citizenship of Pakistan or any other foreign State, or where the person discharges his initial onus by establishing that he had acquired the citizenship of India at the commencement of the Constitution under Article 5 of the Constitution.[5] In such cases, the onus of showing how he has lost that citizenship is shifted to the Government, and on this question, the sole authority to decide is the Central Government under section 9(2) of the Citizenship Act, 1955.[5] Where a deportation order is challenged in an application under Article 226, on the ground that the order was passed without a determination by the Central Government that the Indian citizenship of the Petitioner has been lost by acquisition of the citizenship of a foreign country, the High Court should restrain the Government from giving effect to the order of deportation until the question under section 9(2) is determined by the Central Government.[6]

The problem of infiltration from Bangladesh

The problem of infiltration into a State from another neighbouring State presents a legal problem, namely, that of violation of the sovereignty of one Nation-State by people from another State. The former State has every right to expel the intruders. It is only the citizens of a State who are entitled to permanently reside in that State.

All other persons are “foreigners”, and are not entitled to remain in another State except so long as the latter State permits. *No question of humanism or of sentiments of a particular community* can possibly arise.

The problem of infiltration from Bangladesh has, however, presented a special problem, because, by the partition of India, the country was divided into two States, India and Pakistan. The territory of East Pakistan, which later became a separate State named Bangladesh, was originally a part of Bengal and Assam which formed the eastern Provinces of undivided India. This division, however, assumed a special problem because of several factors –

(a) There was, mostly, no natural boundary or demarcation between West Bengal and Assam in India and East Pakistan on the other side, so that there was little to prevent movements from one side to the other.

(b) Economic stringency in East Pakistan and the comparative allurements in West Bengal attracted infiltrators, smugglers and the like to cross over to the Indian side *en masse*, and to settle there without legal authority.

(c) This illegal immigration was facilitated by the fact that the people on both sides spoke the same language so that it was easy for the immigrants to mingle with their religious compatrious and camouflage their inroad.

(d) Each political party in West Bengal sought to win over the votes of the infiltrators, taking advantage of their problems, and helped them to secure ration cards and, on the strength of that, somehow to enter their names on the electrol roll.[7] While most of the Hindu minority had to leave East Pakistan owing to religious persecution and other acts of oppression, there was at the back of the Muslim infiltrators a vision of multiplying the Muslim population in India, so as to strengthen their demands as a minority community.[8]

All this gave a *political* colouring to the illegal immigration.

As early as 1964-65, cases brought before the Calcutta High Court clearly demonstrated that large number of immigrants had overstayed after expiry of their visas, with the support of their kinsmen or friends in the bordering districts of West Bengal. In pursuance of the judgements passed in these cases, the Police pushed back many of these immigrants into Bangladesh, but the operation was stalled by the utterance of a Chief Minister of Bengal that he himself was neither a Hindu nor a Muslim, and that he would view the problem of illegal immigration or infiltration as a *humanitarian* problem caused by a shortage of food or employment in Bangladesh.[9]

The Government of India also shut their eyes to the problem even when some leaders in Bangladesh threatened to conduct a “long march” of Pakistani nationals through India or even when the infiltrants demanded Indian citizenship at a mammoth gathering at the Calcutta Press Club under the nose of the Police.[10] They were roused to their senses only when the infiltrators reached the capital of Delhi (as did Bahadur Shah Zafar !), and when they are demanding Indian citizenship on the strength of their Ration Cards and entries in the electoral roll,[11] and forming Muslim pockets[12] which would lead to a demand for their autonomy.

It is a pity that the same Central Government who had earlier overlooked the illegal immigration as a human problem now came to hold it to be a serious threat to the integrity of India [12] at a conference of Chief Ministers called by the Centre, and the same Party in West Bengal which had so long prized the votes of the infiltrators,[12] has made a clean breast of the *modus operandi* adopted and the seriousness of the problems created by them.[12]

Apart from anything else, infiltration has thus come to operate as a divisive force threatening the integrity of

India, which can be rooted out only by firmly carrying out a plan of action after realising the gravity of the situation, instead of using the illegal infiltrants as pawns in the game of vote-hunting.

The seriousness of influx of persons from Bangladesh was taken to consideration by Supreme Court in *Sarbananda Sonowal v UOI.*[13] The Supreme Court held that "influx of foreigners will amount to aggression and under *Article 355 of Constitution of India* the Government is bound to protect the nation.

It was held that the word "aggression" is a word of very wide import and is not to be confused or confined only with war. Lordship also accepted the statement of Lord Denning in his book "The Due Process of Law" where it is said "In recent times England has been invaded – not by enemies – nor by friends – but by those who seek England as a haven. In their own social security – a national health service and guaranteed housing – all to be had for the asking without payment and without working for it. Once here, each seeks to bring his relatives to join him. So they multiply exceedingly."

Supreme Court held that "one of the most respected and learned judges of the recent times has termed the influx of persons from erstwhile colonies of Britain into Britain as "invasion". The word "aggression is an all comprehensive word having very wide meaning.

The soft approach by the Government in not expelling foreigners was criticized in the judgment and Court reminded that the influx of foreigners has posted a threat to the integrity and security of those regions where they are residing. The ill advised enactment in Illegal Migrants (Determination by Tribunals) Act, 1983 was held to be violative of *Articles 355* and *14* of the *Constitution*. Court also took note of the fact that the residents of Assam have become minorities in their own State in view of the influx by Bangladesh refugees, who have out numbered them.

Jurisdiction of High Court under Article 226 in matters of citizenship

I. (i) When an order of deportation under the *Foreigners Act* is made against a person, he may challenge the validity of that order by a Petition under *Article 226 of the Constitution*, on the ground –

(a) That he is *not* a foreigner but a citizen of India.[14]

(b) That there is a conviction under *section 14 of Foreigners Act* without determining the question of citizenship under *section 9(2) of Citizenship Act* read with Rule 30.[15]

(c) That his detention after expiry of his *visa* on entry from Pakistan or Bangladesh is illegal.[16]

(d) That he has acquired citizenship of India under *Article 5 of the Constitution*.[17]

(e) That he is entitled to the protection of *section 6A of the Citizenship Act*.[18]

(f) That having migrated to Pakistan, he re-entered under a permit for re-settlement or permanent return, in accordance with the Proviso to section 7.[19]

(g) That the Tribunal set up under the Illegal Migrants (Determination) Tribunal Act, 1983, relied on hearsay evidence in adjudging a permanent resident of Assam as a foreigner.[20]

II. On the other hand—

The High Court shall have no jurisdiction on the question coming within *section 9(2) of the Citizenship Act*.[21]

But the High Court shall have jurisdiction on matters *not* covered by section 9(2),[22] *e.g.*,–

(i) That any of the Rules framed under the *Citizenship Act* is *ultra vires*[22] or unconstitutional.[22]

(ii) That the procedure adopted by the Central Government to determine the question under section 9(2) was violative of natural justice, *e.g.*, where the Petitioner alleges that he was obliged to obtain a Pakistani passport by force, fraud or misrepresentation, the Government could not decide the question against him without making any inquiry into such allegation.[23]

(iii) The only question excluded from the Civil Courts is whether a citizen has acquired citizenship of another country or when or how he acquired it.[24] But the jurisdiction under *Article 226* would not be barred where the question is one covered by section 7, *viz.,* where a person's claim to the citizenship of India was rejected on the ground that, having *migrated* to Pakistan in 1948, he never acquired Indian Citizenship.[24]

III. But the High Court will relegate the Petitioner to a suit where the Petition under *Article 226* raised disputed questions of fact, *e.g.,* divorce.[25]

Commonwealth Citizenship

Commonwealth citizenship was provided by *sections 11* & *12* of *Citizenship Act*. But these Sections were omitted by Citizenship (Amendment) Act 2003 (Act 6 of 2004) with effect from 3 December 2004.

Prior to the independence of India, India was a dependency of the U.K., later described as a member of the British Commonwealth, and the citizens of India were British subjects, under section 1 of the British Nationality Act, 1948, which was enacted as a result of agreement between the U.K., India and the other members of the British Commonwealth of Nations.[26]

The status of a British subject, again, is equivalent to that of a "Commonwealth citizen", by virtue of section 1 of the British Nationality Act which provides—

> (1) Every person who under this Act is a citizen of the United Kingdom and Colonies … shall by virtue of that citizenship have the status of a British subject.
>
> (2) Any person having the status aforesaid may be known either as a British subject or as a Commonwealth citizen; and accordingly in this Act and in any other enactment whatever ….. the expression "British subject" and the expression "Commonwealth citizen" shall have the same meaning.

All Commonwealth countries, thus, had a common citizenship, namely, "Commonwealth citizenship", in relation to each other. The British Nationality Act also provided that the members of the Commonwealth were free to enact their own citizenship laws, and provide therein whether their citizens under such law should also have the status of Commonwealth citizens.

As has been stated earlier the above position continued even after Indian declared herself a Republic, by virtue of the provisions of the India (Consequential Provisions) Act, 1949, and till 1955 when India enacted her own *Citizenship Act*.

Since then, the question of Commonwealth citizenship is to be determined with reference to the provisions of the *Citizenship Act, 1955*.

(A) This Act says nothing about the status of Indian citizens in Commonwealth countries. But, by virtue of section 1(3) of the British Nationality Act, 1948, citizenship of India shall be entitled to the status of a British subject in the U.K. and her colonies). As regards other Commonwealth countries, *section 12(2) of the Citizenship Act* provides that the Government of India may, by order, provide for the conferment of the rights of Indian citizenship upon citizens of a commonwealth country (countries specified in the First Schedule), on a "basis of reciprocity", which means Government of India will make such an Order only in respect of the citizens of a country which has accorded to Indian citizens a corresponding status in their country. No such order under section 12(2) appears to have been issued so far. It follows, therefore, that so long as that is not done, the citizens to any of the countries specified in the First Schedule of the *Citizenship Act* are aliens in India,[27] even though the country may not be treated as a "Foreign State" in the *Constitution* [(Declaration as to Foreign States) Order, 1950, issued under *Article 367*(3), *post*]. Nor does it appear if any country other than the U.K. has in its Citizenship law, accorded the status or privileges of a citizen of that country to a citizen of India.

(B) It is clear from the above that unless and until an Order under *section 12 of the Citizenship Act* is made by the Government of India, a citizen of a Commonwealth country cannot derive any benefits of Indian citizenship, even though he may have a theoretical "status of Commonwealth citizen" in India, and even though he may be exempted from the rigorous provisions of the *Foreigners Act, 1946*, by virtue of para 2 of the Foreigners (Exemption) Order, 1957, as amended in 1967.

Privileges of Commonwealth citizenship

The privileges of Commonwealth citizenship have to be discussed in the foregoing background. This question has to be determined under two heads—

A. The privileges of a citizen of India in a Commonwealth country.

B. The privileges of a citizen of a Commonwealth country in India.

A. *The privileges of an Indian citizen in a Commonwealth country.*

The precise scope of these privileges will depend upon the relevant legislation in each of the Commonwealth countries.

So far as the United Kingdom and her Colonies are concerned, the matter is governed by section 3 of the British Nationality Act, 1948. Under this provision, the privileges of Commonwealth citizenship which can be claimed by a citizen of India, as such, are in respect of criminal jurisdiction, namely, that—

The Indian citizen shall not be triable in the United Kingdom or her Colonies for any act done in India or any country outside the United Kingdom and her Colonies, unless—

(i) it constitutes an offence for which aliens are publishable in the United Kingdom if ommitted abroad, *e.g.,* treason,[28] assuming that the country where the act was committed was a "foreign country" in relation to the U.K.;

(ii) it constitutes an offence under the Merchant Shipping Acts, 1894-1948.

The fact that a person is a citizen of a Commonwealth country does not preclude him from claiming the immunity of a Sovereign in a British Court, if such Sovereign status is acknowledged by the British Government.[29]

In this context, it would not be out of place to refer to the position of Indian citizens as regards immigration to the U.K. In *Thornton v The Police*,[30] the Privy Council upheld the argument that section 1 of the British Nationality Act simply conferred a *status* of "Commonwealth citizenship" upon British subjects and citizens of Commonwealth countries and did not lay down what rights attached to that status. Though a citizen of a country has, at international law, the right to enter and reside in the country of which he is a citizen, Commonwealth citizenship does not confer any such right of entry or residence in another Commonwealth country, so that it is competent for every Commonwealth country to control or prevent the entry of citizens of other Commonwealth countries or to deport them.

Notwithstanding Commonwealth citizenship, thus, Britain herself has enacted the Commonwealth Immigrants Act, 1962, 1968, followed by the Immigration Act, 1971. A citizen of India may, accordingly, be refused admission[31] into the U.K. or be deported therefrom[32] notwithstanding his Commonwealth citizenship, which status is not ostensibly disturbed by these statutes.

B. *The privileges of a citizen of a Commonwealth country in India.*

These are dealt with in sections 11-12 of *our* *Citizenship Act, 1955*.

Section 11 says—

> Every person who is a citizen of a Commonwealth country specified in the First Schedule shall, by virtue of that citizenship, have the status of a Commonwealth citizen of India.

The Act does not, however, explain what are the incidents of the "status of a Commonwealth citizen". In the absence of any such provision in this Act or any subsequent enactment, the present provision would remain as an extra-legal declaration.

Section 12 provides—

> (1) The Central Government may, by order notified in the Official Gazette, make provisions on a basis of reciprocity for the conferment of all or any of the rights of a citizen of India on the citizens of any country specified in the First Schedule.
>
> (2) Any order made under sub-section (1) shall have effect notwithstanding anything inconsistent therewith contained in any law other than the *Constitution of India* or this Act.

The result is that the citizen of a Commonwealth country may even have the rights of a citizen of India provided the Government of India issues a notification to that effect, specifying the rights which are thereby conferred on such a citizen. But so long as no such Order is made, a citizen of a Commonwealth country cannot, *ipso facto*, claim any of the rights of a citizen of India.[33]

Commonwealth Countries

The list of countries given in the First Schedule of the *Citizenship Act, 1955* (as amended by Act 65 of 1957), is as follows:

A.

1. United Kingdom.
2. Canada.
3. Commonwealth of Australia.
4. New Zealand.
5. Union of South Africa.[34]
6. Pakistan.[34]
7. Ceylon.
8. Federation of Rhodesia and Nyasaland.
9. Ghana.
10. Federation of Malaya.
11. Singapore;

B.

1. The Republic of Ireland.[34]

Explanation. In this Schedule, “United Kingdom” means the United Kingdom of Great Britain and Northern Ireland, and includes the Channel Islands, the Isle of Man and all Colonies; and “Commonwealth of Australia” includes the territories of Papua and the territory of Norfolk island.

[Art 11] Parliament to regulate the right of citizenship by law.-

1 *Izhar Ahmad v UOI*, AIR 1962 SC 1052 .

2 In the following pages of this Commentary, the provisions of the *Citizenship Act* have been analysed and discussed on a comparative level.

3 This Act came into force on 30 December 1955.

4 **Cf**. *State of UP v Shah Md.*, (1969) II SCWR 223(*230-1*).

5 The relevant Rules from the Citizenship Rules, 1956, have been incorporated in proper places, in the pages below.

6 *Butchers' Association v Crescent Livestock Co,* (1872) 16 Wall. 36.

7 *U.S. v Wong Kim,* (1898) 169 US 649(693).

8 Immigration and Nationality Act, 1952.

9 *Murray v Schooner,* (1804) 2 Cranch 64.

10 As to Commonwealth immigrants, see section 12 of the Commonwealth Immigrants Act, 1962 followed by the Immigrants Act, 1971.

11 S.A. de Smith, 6th Edn, 1989, pp 441ff. 24.

12 These Acts were held to be *inter vires* in *Kodakan v Mudanayake*, (1953) 54 NLR 433 (PC); *Meera v Dias*, (1957) 58 NLR 571 (PC).

13 *Sudali v Vanden*, (1952) 54 NLR 66 (SC).

14 *Razia Begum v State,* (2008) 4 Crimes 643 ; *Prabhat Vikram Sah v State of Bihar,* (2010) 2 Pat.L.JR 160 (Patna).

15 *State Trading Corp v CTO,* AIR 1963 SC 1811 : (1964) 4 SCR 99 .

16 Persons born in India before 26 January 1950 may acquire Indian citizenship by complying with *Article 5 of the Constitution* (p 192, *ante*) or *sections 5-6* of the *Citizenship Act* (pp 219, 222, *post*).

17 Section 2(2) corresponds to section 32(5) of the British Nationality Act, 1948.

18 As to registration of ships, see Pt V, *Merchant Shipping Act* (44 of 1958).

19 *Jan Balaj v Anand Municipality,* AIR 2010 Guj 21 : (2010) AIHC (NOC) 407.

20 *A.K. Mukherjee v Pradip Ranjan Sarbadhikary,* AIR 1988 Cal 259 : (1988) 92 Cal WN 539; **see also** *E.C. Masearenhas v Stella Durmount,* (1998) AIHC 1527 (Kar).

21 *Kirandeep Kaur v Regional Passport Officer,* AIR 2006 Del 2 : (2005) 123 DLT 143 .

22 *Namgyal Dolkar v Govt. of India,* (2011) 1 AD (Delhi) 201 .

23 Section 4 of our Act roughly corresponds to section 5 of the B.N.A., 1948.

24 *U.S. v Wong Kim*, (1898) 169 US 649 (*693*).

25 The object of the changes so made by the Citizenship (Amendment) Act, 1992 was explained in the Statement of Objects & Reasons as follows:

"India is a signatory to the Convention on elimination of all forms of discrimination against women adopted by the General Assembly of the United Nations. *Article 9*(2) of the Convention requires that the State Parties shall grant women equal rights with men with respect to the nationality of their children. *Section 4(1) of the Citizenship Act, 1955* provides that a person born outside India on or after 26th January, 1950 shall be a citizen of India by descent if his father is an Indian citizen at the time of his birth. With a view to eliminate discrimination against women in respect of citizenship of their children and in order to bring the provisions of the *Citizenship Act, 1955* in conformity with *Article 9*(2) of the aforesaid Convention, it is proposed to amend the said Act so as to provide that a person born outside India on or after the coming into force of the provisions of the Bill shall become a citizen of India by descent if either of his parents is a citizen of India at the time of his birth."

26 *Ibid,* Footnote No. 25.

27 Section 4 of our Act roughly corresponds to section 5 of the B.N.A., 1948.

28 *Mohammed Umar v State,* AIR 1961 Ori 150 ; *Shree Mohammed Yusuf v UOI,* AIR 1967 Pat 266 .

29 *Naziranbai v State,* AIR 1957 Madhya Bharath 1.

30 *Somasundaram v State,* (1992) 2 Crimes 23 (Mad).

31 *Vikrambhai Patel v State,* AIR 1993 Guj 150 .

32 *David John Hopkins v UOI,* AIR 1996 Mad 314 : (1995) 2 CTC 335 .

33 In this respect, the provision in our Act differs from that in section 5 of the B.N.A., 1948, and there is no possibility under our Act for a person to acquire Indian citizenship both by birth and descent, for persons born in India are excluded from the category of citizenship by descent.

34 It follows that the son of a naturalised citizen cannot be treated as a "foreigner' [**cf.** *UOI v Hassan*, AIR 1954 Bom 505].

35 The word "shall' in section 6(1) of the B.N.A. suggests that in the case specified therein, registration may be had as of right. The word "may in the above provision of our Act makes it permissive and *prima facie*, nonjusticiable.

36 Section 5 roughly corresponds to sections 6-9 of the B.N.A., 1948.

37 The provision for "registration' is to be distinguished from naturalisation which is dealt with in section 6, *below*. While registration is open to certain specified categories of persons having some previous connection with India, naturalisation is open to aliens, in general.

38 **Cf.** *Aslam v Fazal*, AIR 1959 All 79 .

39 These include the Commonwealth countries (see *post*) and some others, such as the Republic of Ireland, Pakistan.

40 This is 18 years under section 2(e) of our Act but 21 years under section 32(9) of the B.N.A., 1948.

41 *Khalil v State of UP*, AIR 1962 All. 383 .

42 *Khalil v State of UP*, AIR 1962 All. 383 ; *Aslam v Fazel*, AIR 1959 All. 79 (*83*).

43 *Aslam v Fazel*, AIR 1959 All. 79 (*83*).

44 *Ghaurul v State of Rajasthan*, AIR 1958 Raj. 172 .

45 *Kuldip Nayar v UOI,* (2006) 7 SCC 1 : AIR 2006 SC 3127 .

46 *Ghaurul v State of Rajasthan*, AIR 1958 Raj. 172 . The decision was set aside in *Ghaural Hasan v State of Rajasthan,* AIR 1967 SC 107 : (1962) 1 SCR 772 .

47 *Aslam v Fazel*, AIR 1959 All. 79 (*83*).

48 *A.K. Mukherjee v Pradip Ranjan Sarbadhikary,* AIR 1988 Cal 259 .

49 *David John Hopkins v UOI,* AIR 1996 Mad 314 : (1995) 2 CTC 335 .

50 *National Human Rights Commission v State of AR,* AIR 1996 SC 1234 : (1996) 1 SCC 742 .

51 *Azimusshan Haider v UOI,* (2008) 71 AIC 299 : (2008) 151 DLT 659 .

52 **But see** *Suman Paul v UOI,* (2002) 1 WBLR 582 (Cal).

53 *R. Venkateshwara Rao v UOI,* AIR 2001 SC 3689 : (2001) 8 SCC 233 .

54 *Zeeshan v Dt. Officer, Kannur,* AIR 2008 Ker 226 : (2008) KLJ 984 .

55 *Azimusshan Haider v UOI,* (2008) 71 AIHC 299 : (2008) 151 DLT 659 (*supra*).

56 The first part of section 5(5) corresponds to section 9 of the B.N.A., 1948.

57 This provision corresponds to section 26 of the B.N.A., 1948; *Abdul Halim v S.D.O.*, AIR 1965 Cal. 160 .

[Art 11] Parliament to regulate the right of citizenship by law.-

58 *Hari Shanker Jain v Sonia Gandhi,* AIR 2001 SC 3689 : (2001) 8 SCC 233 *(supra).*

59 *Ghaurul Hasan v State of Rajasthan*, AIR 1967 SC 107 : (1962) 1 SCR 772 : (1962) 1 SCJ 668 .

60 *Abdul Halim v S.D.O.*, AIR 1965 Cal. 160 ; *Hakimuddin v Dy. Secy.*, AIR 1961 Cal. 299 .

61 *Nagendra v Commr.*, AIR 1959 SC 398 .

62 *Abdul Halim v S.D.O.*, AIR 1965 Cal 160 .

63 *Wahab v Supdt. of Police*, AIR 1963 Assam 55 .

64 *Ghaural Hasan v State of Rajasthan,* AIR 1967 SC 107 : (1962) 1 SCR 772 .

65 See *Hari Shankar Jain v Sonia Gandhi,* AIR 2001 SC 3689 : (2001) 8 SCC 233 .

66 *Kirandeep Kaur v Regional Passport Officer,* AIR 2006 Del 2 : (2005) 123 DLT 143 .

67 *Mohammed Sahid Ali Fakir v UOI,* AIR 1993 Gau 9 .

68 *Hari Shanker Jain v Sonia Gandhi,* AIR 2001 SC 3689 : (2001) 8 SCC 233 *(supra).*

69 *David John Hopkins v UOI* AIR 1996 Mad 314 *(supra).*

70 *Ummayu v UOI,* (1987) 2 KLT 2271 .

[Art 11] Parliament to regulate the right of citizenship by law.-

71 *Yaro Khan v Foreigner Regional Registration Officer,* (1990) 78 DLT 442 : (1999) Cr LJ 3861 .

72 *Suman Paul v UOI,* (2002) WBLR 582 (Cal).

73 *Abubaker v UOI,* (2000) 1 KLT 448 : ILR (2000) 2 Ker 732 .

74 *R. Venkateswara Rao v UOI,* AIR 1999 AP 328 .

75 *Ali Ahmad v Electoral Registration Officer*, AIR 1965 Cal 1 .

76 Subs. by G.S.R. 383(E), dated 4 June 1981 (w.e.f. 5 June 1981).

77 Subs. by S.O. 2290, dated 16 September 1960.

78 See A.W. Bradley & K.D. Ewing, *Constitutional & Administrative Law*, 13th Edn, p 430.

79 See Encyclopedia of Laws of England; Phillimore, *International Law*; Dicey, *Conflict of Laws*; Wheaton, *Elements of International Law*; Oppenheim, *International Law*. **See also** P. Ramanathaier Aiyer, *Advanced Law Lexicon*, 3rd Edn

80 The *Nottebohm* Case, (1955) I.C.J. Rep. 4.

81 Section 6 corresponds to section 10 of the B.N.A., 1948.

82 Subs. by Act 6 of 2004, section 6 (w.e.f. 3 December 2004), for the words “who is not a citizen of a country specified in the First Sch”.

83 The words “who is not a citizen of a country specified in the First Sch” omitted by Act 6 of 2004, section 18 (w.e.f. 3 December 2004).

84 Subs. by Act 6 of 2004, section 18 for “he has renounced the citizenship of that country in accordance with the law therein in force in that behalf and has notified such renunciation to the Central Government” (w.e.f. 3 December 2004).

85 Subs. by Act 6 of 2004, section 18 for “twelve years” (w.e.f. 3 December 2004).

[Art 11] Parliament to regulate the right of citizenship by law.-

86 Subs. by Act 6 of 2004, section 18 for “nine years” (w.e.f. 3 December 2004).

87 Subs. by Act 6 of 2004, section 18 for “thirteen years” (w.e.f. 3 December 2004).

88 *Hasan Ali Raihany v UOI,* (2006) 3 SCC 705 : AIR 2006 SC 1714 .

89 (2007) 5 SCC 533 : (2007) 7 Scale 252 .

90 See Hood Phillips & Jackson, *Constitutional & Administrative Law*, 8th Edn, chapter VIII, para 28, pp 508-509.

91 *State of AR v Khudiram*, (1994) Supp.(1) SCC 615 (para 24); *N.H.R.C. v State of AR,* (1990) 1 SCC 342 (para 17ff.). **See also** *N.H.R.C. v State of AR,* AIR 1996 SC 1234 : (1996) 1 SCC 742 .

92 *Sahid v UOI,* AIR 1993 Gau 9 (para2).

93 Inserted by G.S.R. 25 (E)/15 January 1986.

94 *Sarbananda Sonowal v UOI,* (69. AIR 2005 SC 2920 : (2005) 5 SCC 665 .

95 Section 7 corresponds to section 11 of the B.N.A., 1948.

96 *Vaje Singh v Secy. of State*, (1924) 52 IA 357 . *State of Gujarat v Vora Fiddali Badruddin Mithibarwala,* AIR 1964 SC 1043 (1051) : (1964) 6 SCR 461 . **See also** *Dalmia Dadri Cement Co v CIT,* AIR 1958 SC 816 : (1959) SCR 729 .

97 G.S.R. 1640, dt. 29 November 1962.

1 *Bhandare v Sequeira*, AIR 1972 Goa, Daman and Diu 28.

2 **Cf.** *Nasir v Chief Commr.*, AIR 1959 Punj 261 .

[Art 11] Parliament to regulate the right of citizenship by law.-

3 *Gangadhar Yashwant Bhandaru v Erasmo Jesus De Sequeira,* AIR 1975 SC 972 : (1975) 1 SCC 544 .

4 *Kerala Education Bill, in re,* (1959) SCR 995 (*1007-8*); *Prem Sagar v Standard Oil Co*, (1964) 5 SCR 1030 (*1038*).

5 **Cf.** Bustemante, *Code of Private International Law*, adopted at Havana, 1928, Article 16; *Kuenigil v Donnersmarck*, (1955) 1 All ER 46 (*52-3*); *Daimler Co v Continental Tyre & Rubber Co*, (1916) 2 AC 307 (HL); Halsbury, 3rd Ed, vol VI, pp 113-4; vol IX, p 19; *Janson v Driefontein Mines Ltd*, (1902) AC 484 (*501, 505*).

6 Halsbury, 3rd Edn, vol VI, pp 113-4; vol IX, p 19.

7 *Daimler Co v Continental Tyre & Rubber Co*, (1916) 2 AC 307 (HL).

8 **Cf.** *State Trading Corp v C.T.O.*, (1964) 4 SCR 99 (*114, 146*); Casebook, p 19, para 10.

9 *Janson v Driefontein Mines Ltd*, (1902) AC 484 (*501, 505*).

10 *De Beers v Howe*, (1906) AC 455 .

11 *Gasque v I.R.C.*, (1940) 2 KB 80 .

12 *Insurance Co v New Orleans*, (1870) Fed. Cas. No. 7052.

13 *Hague v Committee of Industrial Organisation*, (1939) 307 US 496.

14 *U.S. v Paramount Pictures* (1948) 334 US 131 (166); *Joseph Burstyn Inc. v Wilson*, (1952) 343 US 495; *Kingsley Pictures Corp v Regents*, (1959) 360 US 684.

15 *N.A.A.C.P. v Button*, (1962) 371 US 415 (*428*).

16 *Covington v Sandfor*, (1896) 164 US 578 (*592*).

17 *Santa Clara v S. Pacific R. Co*, (1886) 116 US 394 (*396*).

18 For a dissenting view, see DOUGLAS & BLACK JJ. in *Wheeling Steel Corp v Glander*, (1949) 337 US 562 (*576*).

19 (1886) 116 US 394 (*supra*).

20 See *General Life Ins. Co v Johnson,* (1938) 303 US 77; *Wheeling Steel Corp v Glander,* (1949) 337 US 562.

21 See Massey, *American Constitutional Law*, 2nd Edn, p 463.

22 *St. Louis Ry. Co v James*, (1896) 161 US 545 (*562-3*).

23 **Cf.** Bustemante, *Code of Private International Law*, adopted at Havana, 1928, *Article 16*; *Kuenigil v Donnersmarck*, *(1955) 1 All ER 46* (*52-3*); *Gasque v I.R.C.*, *(1940) 2 KB 80* .

24 *Janson v Driefontein Mines Ltd*, *(1902) AC 484* (*501, 505*).

25 Jones, *British Nationality Law*, 1956.

26 See Hood Phillips & Jackson, *Constitutional & Administrative Law*, 8th Edn, pp 507-509, chapter 23, paras 7, 8 and 9.

27 (1967) Yearbook on Human Rights, p 117.

28 (1967) Yearbook on Human Rights, p 105.

29 (1967) Yearbook on Human Rights, p 108.

30 (1967) Yearbook on Human Rights, p 109.

31 *S.T. Corp v C.T.O.*, AIR 1963 SC 1811 (*1821*); *B.I.S.N. Co v Jasjit*, AIR 1964 SC 1441 (*1454*); *Tata Engineeing Co v State of Bihar*, AIR 1965 SC 40 (*48*).

32 *E.O. Line Incorporated v Jasjit*, AIR 1959 Cal. 287 (*289*).

33 See pp 498-502.

34 *Chiranjit Lal v UOI*, (1950) SCR 869 (*898*).

[Art 11] Parliament to regulate the right of citizenship by law.-

35 *Narayanaprasad v Indian Iron Co*, AIR 1953 Cal. 696 ; The question was left open in the *Bengal Immunity Case*, (1955) 2 SCR 603 (*619*), but in the *Express Newspapers Cases* (1959) SCR 12 (*158, 193*), relief was actually granted to the Petitioner Company, on this ground. Other cases in which it was assumed that a corporation was a citizen and as such entitled to enforce fundamental rights under *Article 19*(1)(f)(g) are – *Fedco v Bilgrami*, (1960) 2 SCR 408 ; *Hathisingh Co v UOI*, (1960) 3 SCR 528 . *Tata Iron & Steel Co v Sarkar*, (1961) 1 SCR 379 ; *S.T.C. v State of Mysore*, AIR 1963 SC 548 ; *Joseph v Reserve Bank of India*, AIR 1962 SC 1371 .

36 The question was left open in the *Bengal Immunity Case*, (1955) 2 SCR 603 (*619*), but in the *Express Newspapers Cases,* (1959) SCR 12 (*158, 193*), relief was actually granted to the Petitioner Company, on this ground. Other cases in which it was assumed that a corporation was a citizen and as such entitled to enforce fundamental rights under *Article 19*(1)(f)(g) are – *Fedco v Bilgrami*, (1960) 2 SCR 408 ; *Hathisingh Co v UOI*, (1960) 3 SCR 528 . *Tata Iron & Steel Co v Sarkar*, (1961) 1 SCR 379 ; *S.T.C. v State of Mysore*, AIR 1963 SC 548 ; *Joseph v Reserve Bank of India*, AIR 1962 SC 1371 .

37 *S.T. Corp v C.T.O.*, AIR 1963 SC 1811 (*1821*); *B.I.S.N. Co v Jasjit*, AIR 1964 SC 1441 (*1454*); *Tata Engineeing Co v State of Bihar*, AIR 1965 SC 40 (*48*).

38 Cp. *Chiranjit Lal's case (supra)* with *Dwarkadas v Sholapur Spinning Co*, AIR 1954 SC 119 .

39 *Divisional Forest Officer v Bishwanath Tea Co Ltd* AIR 1982 SC 1368 : (1981) 3 SCC 238 ; *Indo– China Steam Navigation Co Ltd v Jasjit Singh, Addl. Collector of Customs* AIR 1964 SC 1140 : (1964) 6 SCR 594 —a case of foreign company.

40 *Dharam Dutt v UOI,* AIR 2004 SC 1295 : (2004) 1 SCC 712 .

41 *Chiranjit Lal v UOI*, (1950) SCR 869 (*904-5; 909*).

42 *Dwarkadas v Sholapur Spinning Co*, (1954) SCR 674 (*714*).

43 *Chiranjit Lal v UOI*, (1950) SCR 869 (*904-5; 909*).

44 *S.T. Corp v C.T.O.*, AIR 1963 SC 1811 (*1821*); *B.I.S.N. Co v Jasjit*, AIR 1964 SC 1441 (*1454*); *Tata Engineeing Co v State of Bihar*, AIR 1965 SC 40 (*48*).

45 **Cf.** *Tata Engineering Co v State of Bihar*, (1964) 6 SCR 885 (*901*).

46 *Short v Treasury Commrs.*, *(1948) AC 534* (HL); *A.P.S.R.T.C. v I.T.O.*, (1964) 52 ITR 524 (*532*) SC; *Cooper v UOI*, AIR 1970 SC 564 (otherwise known as the *Bank Nationalisation case*).

47 *Short v Treasury Commrs.*, *(1948) AC 534* (HL); *A.P.S.R.T.C. v I.T.O.*, (1964) 52 ITR 524 (*532*) SC.

48 *Cooper v UOI*, AIR 1970 SC 564 (otherwise known as the *Bank Nationalisation case*).

49 *Cooper v UOI*, AIR 1970 SC 564 (otherwise known as the *Bank Nationalisation case*).

50 *Chiranjit Lal v UOI*, (1950) SCR 869 (*904-5; 909*).

51 **Cf.** *Tata Engineering Co v State of Bihar*, (1964) 6 SCR 885 (*901*).

52 *Bennett Coleman v UOI*, AIR 1973 SC 106 (*114-6*).

53 *P.T.I. v UOI*, AIR 1974 SC 1044 .

54 *D.C.M. v UOI*, AIR 1974 SC 937 (*943*).

55 *Godhra Electric Co v State of Gujarat*, AIR 1975 SC 32 : (1975) 1 SCC 199 : **See also** *Workmen v Meenakshi Mills Ltd*, (1992) 3 SCC 336 (358); **But see** *Dharam Dutt v UOI*, AIR 2004 SC 1205 : (2004) 1 SCC 712 *(supra)*.

56 *Statesman v Fact Finding Committee*, AIR 1975 Cal 14 .

57 AIR 2004 SC 1295 : (2004) 1 SCC 712 .

58 AIR 1965 SC 40 : (1964) 6 SCR 885 .

59 See H.M. Seervai, *Constitutional Law of India*, 4th Edn, vol I, pp 706-709.

60 In *State Trading Corp v CTO,* AIR 1963 SC 1811 : [1964] 4 SCR 99 .

61 See M.P. Jain, *Indian Constitutional Law*, 6th Edn, vol I, p 1139.

62 *P.T.I. v UOI*, AIR 1974 SC 1044 ; *D.C.M. v UOI*, AIR 1974 SC 937 (*943*).

63 *Syeda Afshan Rehman v UOI,* AIR 2010 (NOC) 1038 (Delhi).

64 *Sorab Singh Gill v UOI,* AIR 2010 P & H 83 : (2010) AIHC (NOC) 834.

65 *Karan Kumar v UOI,* (2010) 72 DLT 521 .

66 *Satish Nambiar v UOI,* 2008 AIHC (NOC) 992 : (2008) 69 AIC 334 : (2008) 150 DLT 312 .

67 *Syeda Afshan Rehman v UOI,* AIR 2010 (NOC) 1038 (Delhi).

68 *Trop v Dulles*, (1957) 356 US 86.

69 *Afroyim v Rusk*, (1967) 387 US 253, overruling *Perez v Brownell*, (1957) 356 US 44.

70 *Mandoli v Acheson*, (1952) 344 US 133.

71 *Nishikawa v Dulles*, (1957) 356 US 129 (*133*).

72 *Schneiderman v U.S.*, (1943) 320 US 118 (*122*).

73 *Nishikawa v Dulles*, (1957) 356 US 129 (*133*).

74 *Nowak v U.S.*, (1957) 356 US 660.

75 *R v Secretary of State for Home Dept. exparte Akthar,* *(1981) QB 46* – See Hood Phillips & Jackson, *Constitutional & Administrative Law,* p 510.

76 The words "who is also a citizen or national of another country" omitted by Act 6 of 2004, section 8 (w.e.f. 3 December 2004).

77 Ins. by Act 6 of 2004, section 8 (w.e.f. 3 December 2004).

78 Sub.-Section (3) omitted by Act 6 of 2004, section 8 (w.e.f. 3 December 2004). Before omission it stood as under: "(3) For the purposes of this section, any woman who is, or has been married shall be deemed to be of full age."

79 Jones, *British Nationality Law*, 1956, pp 167, 206.

80 *State of AP v Abdul Khader,* AIR 1961 SC 1467 : (1961) 2 Cr LJ 573 ; *State v Abdul Sattar Haji Ibrahim,* AIR 1963 Guj 226 : (1963) 2 Cr LJ 265 ; *State of UP v Abdul Quayum,* (1963) 1 Cr LJ 817 (All); *Mohammed Kamal Khan v State of AP,* AIR 1962 AP 247 .

81 *K.L. Modi v UOI,* AIR 1970 Del 76 .

82 *Sagir Ahmed v State,* AIR 1961 All 507 ; *Sharaft Ali Khan v State of UP,* AIR 1960 All 637 .

83 *Abida Khatoon v State of UP,* AIR 1963 All 260 : (1963) 1 Cr LJ 724 .

84 The expression "another country' includes Pakistan and other Commonwealth countries who are not "foreign States' for the purposes of *Article 9* [cf. *Mohammad v State of AP*, AIR 1957 AP 1047 (*1053*)].

85 **Cf.** *Moinuddin v Govt. of India*, (1967) 1 SCWR 505 (*509*).

86 *Re Wilkinsan Page v Public Trustee,* *1926 Ch 842* . **See also** *Gauranga Sahu v Maguni Devi,* AIR 1991 Orissa 151 .

87 *Abdul Salam v UOI,* AIR 1969 All 226 ; *Mohd Usman v State of Madras,* AIR 1961 Mad 129 ; *Inder Lal v Lal Singh,* AIR 1961 Raj 122 .

88 *(1975) AC 653* .

89 *Al-Ameni v Kensington and Chelsea Royal London Borough Council,* *(2003) 1 WLR 1289* .

90 The constitutionality of the Rule has been upheld by the Supreme Court [*Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778]; *Izhar Ahmad v UOI*, AIR 1962 SC 1052 : (*1962*) Supp. (3) SCR 235(*269*); *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 .

91 *Izhar Ahmad v UOI*, AIR 1962 SC 1052 : (1962) Supp. (3) SCR 235(*269*); *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 .

1 *Prabhat Vikram Sah v State of Bihar,* (2010) 92 AIC 12 .

2 *Motimaya Rahimmiya v State of Maharashtra,* AIR 2004 Bombay 460). **But see** *Izhar Ahmed's case* (*supra*). **See also** H.M. Seervai, *Constitutional Law of India*, 4th Edn, vol I, pp 346-47, chapter VI, para 81.

3 *Mohd. Ayub Khan v Commr. of Police,* AIR 1965 SC 1623 : (1965) 2 SCR 884 .

4 See *S. Nalini Srikaran v UOI,* AIR 2007 Mad 187 : (2007) 2 Mad LJ 831 : (2007) 2 LW 322.

5 *Raja Mohammed Hussain Khan v State of J & K,* AIR 2004 J & K 16.

6 *Hans Muller of Nuremburg v Supt. of Presidency Jail,* AIR 1955 SC 367 : (1955) 1 SCR 1284 ; *Sarbananda Sonawal v UOI,* AIR 2005 SC 2920 : (2005) 5 SCC 605 ; *Loiis De Raedt v UOI,* (AIR 1991 SC 1886 : (1991) 3 SCC 554 ; *David John Hopkins v UOI,* AIR 1997 Mad 366 ; *Gillas Preitter v UOI,* (1996) WLR 386 .

6a *Izhar Ahmad v UOI,* see *supra.*

6a *Izhar Ahmad v UOI,* see *supra.*

7 *Bakhtiyar v UOI*, AIR 1961 Guj. 109 : *Ali Sher v State*, AIR 1960 All. 431 ; *Mahua v UOI*, AIR 1971 Cal. 507 (*509*).

8 *Mohd Ayubkhan v Commissioner of Police,* AIR 1965 SC 1623 .

9 *State of UP v Rahamatullah*, AIR 1971 SC 1382 (*1385*).

10 *Ayub v Commr. of Police*, AIR 1965 SC 1623 .

11 *Moinuddin v Govt. of India*, AIR 1967 SC 1143 .

12 *State of UP v Rahamatullah*, AIR 1971 SC 1382 (*1385*); *Lal Babu v E.R.O.*, AIR 1995 SC 1189 (para 5).

13 *Sabhapathi v Huntley,* AIR 1938 PC 91 .

14 H.M. Seervai, *Constitutional Law of India*, 4th Edn, vol I, pp 347 – 348.

15 *Izhar Ahamed Khan v UOI* AIR 1962 SC 1052 : 1962 (Supp–3) SCR 235.

16 *Bhanwaroo Khan v UOI* AIR 2002 SC 1614 : (2002) 4 SCC 346 .

17 *Mohsin Shah v UOI* AIR 1974 J&K 48 .

18 *State of MP v Peer Md.*, AIR 1963 SC 645 (para 7) CB.

19 *Ayub Khan v C.P.*, AIR 1965 SC 1623 (paras. 10, 63) CB.

20 **See also** H.M. Seervai, *Constitutional Law of India*, vol.I, 4th Edn, pp 342-48, chapter VI, paras 74-82.

[Art 11] Parliament to regulate the right of citizenship by law.-

21 *Bhagawati Prasad Dixit v Rajeev Gandhi,* AIR 1986 SC 1534 : (1986) 4 SCC 78 .

22 *Akbar v UOI*, AIR 1962 SC 70 (para 5).

23 *Ibrahim v State of Rajasthan*, (1964) 7 SCR 441 (*446*) : AIR 1965 SC 618 .

24 *Ibrahim v State of Rajasthan*, (1964) 7 SCR 441 (*446*); *State of MP v Peer Md.*, AIR 1963 SC 645 (*648*).

25 *Syed Safiullah Qadri v State,* AIR 1997 AP 155 : (1996) 3 ALT 960 .

26 *Cheelil-Thottolil Asia v UOI,* AIR 1988 Ker 231 : (1988) 1 KLT 598 .

27 *Raja Mohammed Hussain v State,* AIR 2004 J & K 16 (*supra*).

28 *Sadiq Ali v State,* AIR 1990 All 9 .

29 *Bhanwaroo Khan v UOI,* AIR 2002 SC 1614 : (2002) 4 SCC 346 .

30 *Md. Elahi v State of WB,* (2009) 2 All India Criminal Law Reports 164 (Cal).

31 *Abdul v State of Rajasthan,* AIR 1972 Raj 272 .

32 *Md. Ishaque v The Under Secretary to Govt. of India,* AIR 1991 Cal 289 .

33 *Ratnab Patil Tripathi v UOI,* (2002) 45 ACC 505 (All) : (2001) Cr LJ 1123 (All).

34 *S. Nalini Sankaran v UOI,* AIR 2007 Mad 187 : (2007) 1 Mad LJ 823 (*supra*).

35 *Nasir Ahmedkhan v Supt. of Police,* (1989) Cr LJ 2044 (MP).

36 *Ejal Vikrambhai Patel v State,* AIR 1993 Guj 150 .

37 *Dipali Katia Chadha v UOI,* (1996) 7 SCC 432 ; *State of AP v Mohd. Khan,* AIR 1962 SC 1778 ; *State of UP v Rahmatullah,* AIR 1971 SC 1382 ; **see also** *Nalini Sankaran v UOI,* AIR 2007 Mad 187 : (2007) 2 Mad LJ 831.

38 *State of AP v Khader*, AIR 1961 SC 1467 ; *State of UP v Shah Md.*, (1969) II SCWR 223; *State of UP v Abida*, (1960) II SCWR 302. **See also** *Saeeda Mohammed Khayum v State of Rajasthan,* AIR 2006 Raj 284 ; *Ratnab Patil Tripathi v UOI,* (2002) 45 ACC 505 (All) : (2001) Cr LJ 1123 (All); *Md. Ayub Khan v Commr. of Police,* AIR 1965 SC 1623 ; *State of UP v Mohd. Din,* AIR 1984 SC 1714 : 1984 (Supp) SCC 346; *Bhagawati Prasad Dixit v Rajeev Gandhi,* AIR 1986 SC 1534 : (1986) 4 SCC 78 .

39 *Anwar v State of J&K*, (1971) 3 SCC 104 (*107*).

40 *UOI v Ghous Mohammed,* AIR 1961 SC 1526 : (1962) 1 SCR 744 .

41 *State of MP v Peer Md.*, AIR 1963 SC 645 (*647*).

42 *Izhar Ahmad v UOI*, AIR 1962 SC 1052 .

43 *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 ; *Abdul Sattar v State of Gujarat*, AIR 1965 SC 810 .

44 *Shuja-ud-din v UOI*, (1962) SC [C.A. 294/62, d. 30 December 1962]; *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 ; *State of UP v Roshan*, (1969) 2 SCWR 232 .

45 *State of UP v Rehamatullah*, (1971) 2 SCC 113 (*119*): AIR 1971 SC 1382 (*1386-7*).

46 *State of AP v Khader*, (1962) 1 SCR 737 .

47 *State of AP v Khader*, AIR 1961 SC 1467 ; *State of UP v Shah Md.*, (1969) II SCWR 223; *State of UP v Abida*, (1960) II SCWR 302; *State of MP v Peer Md.*, AIR 1963 SC 645 (*647*).

48 *State of UP v Mohammed Din,* AIR 1984 SC 1714 : 1984 Supp SCC 346 .

49 *Mahua v UOI,* AIR 1971 Cal 507 .

50 *State of MP v Peer Md.*, AIR 1963 SC 645 (*647*).

51 *State of AP v Khader*, AIR 1961 SC 1467 ; *State of UP v Shah Md.*, (1969) II SCWR 223; *State of UP v Abida*, (1960) II SCWR 302.

52 *Akbar v UOI*, (1962) 1 SCR 779 (*781*).

53 *State of AP v Khader*, (1962) 1 SCR 737 ; *Akbar v UOI*, (1962) 1 SCR 779 (*781*).

54 *UOI v Ghaus*, AIR 1961 SC 1526 .

55 *UOI v Ghaus*, AIR 1961 SC 1526 .

56 *Sayed Ahmed Kabuli v State of Maharashtra,* AIR 1975 Bom 176 .

57 *Samiullah v State of UP,* AIR 1963 All 482 – **See also** *Akbar Khan Allam Khan v UOI,* AIR 1962 SC 70 – but such a course of staying the suit was refused because the suit was more than thirty years old (*State of UP v Mohammed Din,* AIR 1984 SC 1714 : 1984 (Supp) SCC 346 *(supra).*

58 Para 4 of Sch III to the Citizenship Rules, 1956.

59 *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 . In that case, the view that holding of foreign passport operated as automatic cesser of the Indian citizenship was overruled.

60 *Izhar Ahmad v UOI*, AIR 1962 SC 1052 .

61 *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 ; *Ayub Khan v Commr. of Police*, AIR 1965 SC 1623 .

62 *Ayub Khan v Commr. of Police*, AIR 1965 SC 1623 .

63 *Ilyas v UOI*, (1970) U.J.S.C. 441; *Moinuddin v Govt. of India*, (1967) 1 SCWR 505 .

64 *Abdul Rahim Khan v UOI,* AIR 1977 Bom 274 ; **see also** *Mohd. Usman v State of Madras,* AIR 1961 Mad 129 ; *Mohsin Shah v UOI,* AIR 1974 J & K 48; *Mohd. Ayub Khan v Commr. of Police,* AIR 1965 SC 1623 .

65 *UOI v Smt. Chand Patil,* AIR 1973 All 362 ; **see also** *Nasir Ahmed Khan v Supt. of Police,* (1989) Cr LJ 2044 (MP).

66 *State of AP v Abdul Khader*, (1962) 1 SCR 737 (*741; 743*).

67 *Nasir Ahmed v UOI,* (1962) C.A. 348 /81.

68 *Mohammed Ilyas v UOI,* (1970) 3 SCC 61 .

69 *Mohammed v UOI,* (2002) 3 KLT 787 .

70 See *R v Home Secretary exparte Cheblak,* *(1991) 2 All ER 319* . **See also** A.W. Bradley & K.D. Ewing, *Constitutional & Administrative Law*, 13th Edn, p 431.

71 *Trop v Dulles*, (1958) 356 US 86; *Nishikawa v Dulles*, (1958) 356 US 129; *Rusk v Cort*, (1963) 372 US 144.

72 *Afroyim v Rusk*, (1967) 387 US 253, overruling *Perez v Brownell*, (1958) 356 US 44; But this rule has not been extended to persons who acquired American citizenship otherwise than by birth or naturalisation [*Robers v Belbi*, (1971) 401 US 815].

73 *Ghaurul v State of Rajasthan*, AIR 1958 Raj 172 (*175*).

74 *Ghaurul v State of Rajasthan*, AIR (1962) 1 SCR 772 .

[Art 11] Parliament to regulate the right of citizenship by law.-

75 *State of AP v Abdul Khader*, (1962) 1 SCR 737 (*741; 743*).

76 Vide *Sudhansu v Jha*, (1967) 71 Cal WN 82; (1968) 72 Cal WN 349.

77 Oppenheim, *International Law*, vol I, pp 551-2.

78 Substituted by the Foreigners Laws (Amendment) Act, 1957.

79 *Mohd. Abdul Ghani Hamid v The State,* AIR 1957 AP 143 ; *State of UP v Rahmatullah,* AIR 1971 SC 1382 .

80 *State of Assam v Tikedar Ali,* AIR 1972 SC 2166 .

81 *Babu Hussein v Electoral Registration Officer,* AIR 1995 SC 1189 : (1995) 3 SCC 100 .

82 *Louis De Raedt v UOI,* AIR 1991 SC 1886 : (1991) 3 SCC 554 .

83 *David John Hopkins v UOI,* AIR 1996 Mad 314 : (1995) 2 CTC 335 .

84 *P. Inniah v Govt. of India, Ministry of Home Affairs,* AIR 1990 AP 203 .

85 *State of UP v Rahamatuallah*, AIR 1971 SC 1382 ; *Govt. of A.P. v Khan*, AIR 1962 SC 1778 .

86 *State v Abdul*, (1978) 2 Cr LJ 1345 (para 5) All.

87 *Akbar v UOI*, AIR 1962 SC 70 (*72*).

88 Vide Notn. 50, 590 of 19 April 1958 of the Min. of Home Affairs; *Anwar v State of J&K*, (1971) 3 SCC 104 (*107*).

89 *Magerams v S.K. Ghosh,* AIR 1963 Cal 373 .

90 **Cf.** *Sishuwale v UOI*, AIR 1989 M.P. 254 (para 6); *State of MP v Peer Md.*, AIR 1963 SC 645 (para 5).

91 **Cf.** *Shamim v UOI*, AIR 1980 Raj. 80 (para 4).

92 *State of MP v Peer Md.*, AIR 1963 SC 645 (*647*); *Fateh Md. v Delhi Administration*, (1963) 2 SCR 560 .

93 *Akbar v UOI,* AIR 2000 Del 374 .

94 *Gilles Pleiffer v UOI,* AIR 1996 Mad 322 .

95 *Zamera,* *(1916) 2 AC 77* at p 107

96 *P.M. Noorjahan Galbath v UOI,* AIR 1985 Ker 104 .

97 *Fred Howard Harling v State of Himachala Pradesh,* AIR 1996 HP 27 .

98 *Ananda Bhabimi @ Swamy Geetha Nando v UOI,* 1991 Mad LW (Cri) 393 .

1 *Fateh Md. v Delhi Administration*, (1963) 2 SCR 560 ; *UOI v Shaus Md.,* (1962) 1 SCR 744 (*748*); *Ibrahim v State of Rajasthan*, (1964) 7 SCR 441 . **See also** *State of AP v Abdul Khader,* AIR 1961 SC 1467 : (1962) 1 SCR 737 : (1961) 2 Cr LJ 573 ; *Akbar Khan v UOI,* AIR 1962 SC 70 : (1962) 1 SCR 779 ; *Abdul SattarHaji Ibrahim Patel v State of Gujarat,* AIR 1965 SC 810 : (1965) 1 Cr LJ 759 ; *Masud Khan v State of UP,* AIR 1974 SC 28 : (1974) 3 SCC 469 ; *Mohammed Siddique v G. Narain,* AIR 1966 Pat 2 l72; *The State v S.K. Korban Khan,* AIR 1965 Ori 145 .

2 AIR 2005 SC 2920 : (2005) 5 SCC 665 .

[Art 11] Parliament to regulate the right of citizenship by law.-

3 AIR 1956 SC 404 : (1956) SCR 199 ; *Collector of Customs v D. Bhoormell,* AIR 1974 SC 859 : (1974) 2 SCC 544 ; *State of WB v Mir Mohd. Omar,* (2000) 8 SCC 382 : AIR 2000 SC 2988 ; *Sanjay v State (NCT of Delhi),* (2001) 3 SCC 190 : AIR 2001 SC 979 ; *Ezhil v State of T.N.,* (2002) 9 SCC 189 : AIR 2002 SC 2017 and also English decision to hold that a person who claims to be a citizen of India has to prove the same. This principle was reiterated in *Sarbananda Sonowal v UOI (II),* (2007) 1 SCC 174 : 2006 (13) Scale 33 .

4 *Ibrahim v State of Rajasthan*, (1964) 7 SCR 441 .

5 *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 .

6 *Govt. of A.P. v Syed Md.*, AIR 1962 SC 1778 .

7 **Cf.** *Ali v E.R.O.,* AIR 1965 Cal. 1 (para 1,6).

8 See Author's *Uniform Civil Code in India*; *Introduction to the Constitution of India*.

9 Cf. *Ali v E.R.O.*, AIR 1965 Cal 1 (paras. 1, 6).

10 Statesman, 13 February 1991; Anandabazar, 15 February 1991.

11 If they succeed in this plan, they will simply fulfil their pledge to "recover Hindusthan by a joke' (*larke lia Pakistan, larke lenge Hindustan*), which was their slogan at the time of the Referendum held in 1947 in Sylhet. This observation of the Author, expressed at p 399 of the 15th Ed of the Author's *Introduction to the Constitution of India*, has proved to be prophetic, as evidenced by a Central Home Ministry Report [Vartaman, 31 May 1994], based on papers discovered from Pakistani Militants that they, along with fundamentalists in Bangladesh and other Pan-Islamic countries, are actively engaged in setting up an "*Islamistan in India*, comprising territories in Malda, Murshidabad, Jalpaiguri and West Dinajpur in West Bengal and Chhapra, Katihar, Purnea and Bhagalpur in Bihar where the population is predominantly Muslim.

12 Anandabazar, 8 August 1992; Statesman, 15 February 1991; 2 August 1991.

13 AIR 2005 SC 2920 : (2005) 5 SCC 665 . This decision was affirmed in *Sarbananda Sonowal v UOI (II),* (2007) 1 SCC 174 : 2006 (13) Scale 33 .

14 **Cf.** *Ibrahim v State of Rajasthan*, (1964) 7 SCR 441 ; Cf. *Anwar v State of J&K*, (1971) 3 SCC 104 (para 5).

15 (Sch II) of the Act. *Imam@ Ilai Bux v State of Rajasthan,* (1992) 1 Crimes 523 ; *Nasir Ahmedkhan v Supt. of Police,* (1989) Cr LJ 2044 (MP).

16 **Cf.** *Anwar v State of J&K*, (1971) 3 SCC 104 (para 5).

17 **Cf.** *UOI v Ghaus*, AIR 1961 SC 1526 .

18 *Khudiram v Union Territory*, AIR 1992 Gau 105 , affirmed by *State of AR v Khudiram*, (1994) Supp. (1) SCC 615 (para 81).

19 **Cf**. *UOI v Ghaus*, AIR 1961 SC 1526 ; *Akbar v UOI*, AIR 1962 SC 70 (para 5).

20 *Sahid v UOI*, AIR 1993 Gau. 9 (paras. 5-6).

21 *State of UP v Shah*, (1969) 1 SCC 771 (paras. 8-9).

22 **Cf.** *Govt. of A.P. v Syed*, AIR 1962 SC 1778 ; *Izhar v UOI*, AIR 1862 SC 1052 (paras. 38-39).

23 *Ayub v C.P.*, AIR 1965 SC 1623 (paras. 10, 13) CB.

24 *Akbar v UOI,* AIR 1962 SC 70 .

25 *Shamim v UOI,* AIR 1980 Raj 98 (para 22).

26 Wade & Phillips, *Constitutional Law,* 8th Edn, 1970, p 252; Halsbury, 3rd Edn, vol I, p 529.

27 He is a “foreigner”, according to the amended definition in *section 2(1) of the Foreigners Act, 1946*, but Commonwealth Citizens, other than missionaries, have been exempted from the operation of this Act, by the Foreigners (Exemption) Order, 1957, as amended by G.S.R. 71 of 9 January 1967.

[Art 11] Parliament to regulate the right of citizenship by law.-

28 **Cf.** *Joyce v Director of Public Prosecutions,* (1946) All ER 186 .

29 *Sayce v Ameer Ali*, *(1952) 1 All ER 326* (*331*).

30 *Thornton v The Police*, *(1962) 3 All ER 88* (*91*) PC.

31 **Cf.** *R. v Brixton Prison Governor*, *(1969) 2 All ER 347* ; *R. v Secy. of State*, *(1969) 2 All ER 867* ; *Qureshi v Harrington*, *(1970) 1 All ER 262* .

32 *R. v Edgehill*, *(1963) 1 All ER 181* (CCA).

33 **Cf.** *Noor Md. v State*, AIR 1956 MB 211 (*231*); *Naziranbhai v State*, AIR 1957 MB 1 (*3*).

34 It is to be noted that Ireland, South Africa and Pakistan have not been omitted from the Schedule after they have left the Commonwealth, though Burma is excluded from this list and though Britain herself omitted South Africa from the protection of the British Nationality Act, 1948, by enacting the South Africa Act, 1962.

End of Document

THE CONSTITUTION OF INDIA; VOL 1

PART III FUNDAMENTAL RIGHTS

General

1. A short history of Fundamental Rights 1.1

Fundamental rights have evolved out of "natural rights".

Just as a written Constitution has evolved out of the concept of natural law as a higher law, in the same way Fundamental Rights may be said to have sprung out of the doctrine of natural rights. The Supreme Court in *Golak Nath* case has said:

> Fundamental rights are the modern name for what have been traditionally known as "natural rights".[1]

According to P RAMANATHA AIYAR:

> Natural rights are appertaining originally and essentially to man such as are inherent in his nature and which he enjoys as a man, independent of any particular effect on his side, as, for example, the right of providing for one's own preservation.[2]

In his dissenting judgment, H R KHANNA J. has said:

> Sanctity of life and liberty was not something new when the Constitution was drafted. It represented a facet of higher values which mankind began to cherish in its evolution from a state of tooth and claw to a civilised existence. Likewise, the principle that no one shall be deprived of his life and liberty without authority of law was "not the gift of the Constitution". It was a necessary corollary of the concept relating to sanctity of life and liberty; it existed and was in force before coming into force of the Constitution. The idea about sanctity of life and liberty as well as principles that no one shall be deprived of his life and liberty without authority of law are essentially two facets of the same concept. The concept grew and acquired dimension in response to the inner urges and nobler impulses with the march of civilisation. Great writers and teachers, philosophers and political thinkers nourished and helped in the efflorescence of the concept by rousing the conscience of mankind and making it conscious of the necessity of the concept as necessary social discipline in self-interest and for orderly existence. (para 528).

Further in para 530, the learned judge has said:

> Even in the absence of *Article 21* in the *Constitution*, the State has got no power to deprive a person of his life and liberty without the authority of law. This is the essential postulate and basic assumption of the rule of law and not of men in all civilised nations. Without such sanctity of life and liberty, the distinction between a lawless society and one governed by laws would cease to have any meaning. The principle that no one shall be deprived of his life and liberty without authority of law is rooted in the consideration that life and liberty are priceless possessions which cannot be made the plaything of individual's whim and fancy and that any act which has the effect of tampering with life and liberty must receive sustenance from and sanction of the laws of the land. *Article 21* incorporates an essential aspect of that principle and makes it part of fundamental rights guaranteed in Pt III of the *Constitution*. It does not, however, follow from the above that if *Article 21* had not been drafted and inserted in Pt III, in that event, it would have been permissible for the State to deprive a person of his life and liberty without authority of law", and (in para 531) the learned judge has further reiterated: "The right not to be deprived of one's life and liberty without authority of law was not the creation of *Constitution*. Such right existed before *Constitution* came into force. The fact that the framers of the *Constitution* made an aspect of such right a part of fundamental right did not have the effect of exterminating the independent identity of such right and of making *Article 21* to be the sole repository of that right. Its real effect was to ensure that a law under which a person can be deprived of his life or personal liberty should prescribe a procedure for such a deprivation….[3]

Rights which are regarded as possessed by human being prior to their recognition by a legal system–or despite their denial by a legal system–can conveniently be described as human rights or natural rights. Formulation of natural rights date from the second half of the eighteenth century, i.e. the revolutionary period in America and France. Both countries borrowed largely from the English experience and thought, especially as embodied in the writings of LOCKE, and in the case of America, *Coke's Commentary on Magna Carta* and *Blackstone's Commentaries* (1765). For BLACKSTONE, the absolute rights of Englishmen were the rights of personal security, personal liberty and private property.

"Such rights" when recognised in a *Constitution* and guaranteed protection against curtailment (except by legislation passed by special procedure) can be distinguished as "fundamental rights". Many modern Constitutions incorporate certain "fundamental rights" such as personal freedom, equality before the law, freedom of property, free election, freedom of speech, freedom of conscience and worship, freedom of contract, the right of assembly, the right of association and family rights.[4]

COOLEY has said:

> What is a *Constitution* and what are its objects? It is easier to tell what it is not than what it is. It is not the beginning of a community, nor the origin of private rights; it is not the foundation of law, nor the incipient state of government; it is not the cause, but the consequence of personal and political freedom; it grants no right to the people, but it is the creature of their power, the instrument of their convenience. Designed for their protection in the enjoyment of the rights and powers which they possessed before the *Constitution* was made, it is but the framework of political government and necessarily based upon the pre-existing condition of laws, rights, habits and modes of thought. There is nothing primitive in it; it is all derived from a known source. It pre-supposes an organised society, law, order, property, personal freedom, a love of political liberty, and enough of cultivated intelligence to know how to guard it against the encroachment of tyranny[5].

In *Maneka Gandhi v UOI*,[6] BHAGAVATI J. has observed:

> These fundamental rights represent the basic values cherished by people of this country since the vedic times and they are calculated to protect the dignity of the individual and create condition in which every human being can develop his personality to the fullest extent. They “weave” “a pattern of guarantee on basic structure of human rights and impose negative obligation on the State not to encroach on individual liberty in its various dimensions”.

GRANVILLE AUSTIN says:

> The fundamental rights of the *Constitution* are, in general, those rights of citizens or those negative obligations of the State not to encroach on individual liberty, that have become well known since the late eighteenth century and since the drafting of Bill of Rights of American *Constitution* – for the Indians, no less than other peoples became heir to this liberal tradition. These rights in the Indian *Constitution* are divided into seven parts: Right to Equality, the Right to Freedom, the Right against Exploitation, the Right to Freedom of Religion, Cultural and Educational Rights, the Right to Property and the Right to Constitutional Remedies. The Rights lay down that the State is to deny no one, equality before law. All the citizens are to have the rights to freedom of religion, assembly, association and movement. No person is to be deprived of his life, liberty or property except in accordance with law. Minorities are allowed to protect and conserve their language, script and culture. And various means are provided whereby the citizens can move the Supreme Court and other courts for the enforcement of fundamental rights.[7]

It is a fallacy to regard fundamental rights as a gift from the State to its citizens. Individuals possess basic human rights independently of any *Constitution* by reason of the basic fact that they are members of the human race. These fundamental rights are important as they possess intrinsic value. Pt III of the *Constitution* does not confer fundamental rights. It confirms their existence and gives them protection. Its purpose is to withdraw certain subjects from the area of political controversy to place them beyond the reach of majorities and officials and to establish them as legal principles to be applied by the Courts. Every right has content. Every foundational value is put in Pt III as a fundamental right as it has intrinsic value. The converse does not apply. A right becomes a fundamental right because it has foundational value. Apart from the principles, one has also to see the structure of the Article in which the fundamental value is incorporated. A fundamental right is a limitation on the power of the State.[8]

1.2 Natural rights as an off shoot of Natural Law.

The doctrine of natural rights, is itself, is an offshoot of the doctrine of natural law. Since natural law consists of rules founded on the primary instincts of man as modified by his inborn perception of what is right or wrong, it would follow that natural rights would constitute the primary rights and obligations of men to each other as soon as they begin to live in a society, *i.e.*, in association with others. And since the rules of natural law are of universal application, natural rights also inherent in every human being, at all ages and in all climes.

The political implication of the theory of natural rights is that these rights, being inherent in man, existed prior to the birth of the State itself and cannot, therefore, be violated by the State. Paradoxically, however, the growth of the State itself necessarily put limitations upon the natural rights of every individual in the interests of the collective existence. In a “state of nature”, the earliest state of society envisaged by political thinkers such as Hobbes or Rousseau, right was co-related with might, in the sense that every man had a right to do everything within his power. The growth of political society narrowed down the ambit of such rights in so far as social existence postulates that the rights of each individual should be limited by the collective interests of the society in which he lives.[9]

> For the generation that framed the *constitution*, the concept of a "higher law" protecting "natural rights" and taking precedence over ordinary position of law as a matter of political obligation, was widely shared and deeply felt. An essential element of American Constitutionalism was the reduction to written form—and hence to positive law—of some of the principle of natural rights. But at the same time, it was generally recognised that written *Constitution* could not completely codify the higher law. Thus in the framing of the original American *Constitution*, it was accepted that there remained unwritten, but still building principles of higher law. And as it came to be accepted that the judiciary had the power to enforce the commands of the written *Constitution*, when these conflicted with ordinary law, it was also widely assumed that judges would enforce as constitutional restraints the unwritten natural rights as well.[10]

1.3 Natural rights superior to and inviolable by human authority.

Just as natural law stands above the law of the land, so natural rights are supposed to be of a higher sanctity than legal rights, which are actually prescribed by the legal sovereign for the time being, because natural rights exist independent of the law of the land and are not prescribed human authority. Natural rights are those minimal rights of an individual which must be guaranteed by every society which claims to be civilised.[11] Natural rights have a sanctity superior to other rights conferred by positive law. This is the idea which prompted the Americans when they spoke of the "inalienable" right of life, liberty and pursuit of happiness in their Declaration of Independence and so they adopted these in the form of Bill of Rights which was added to the *Constitution* in 1791.[12] Fundamental Rights like natural rights are intended to be limitation on all governmental power and all State action including legislative. In fact, it is to protect Fundamental Rights from legislative encroachment, in particular, against temporary passions of a group of men composing the Legislature for the time being that they were embodied on a written *Constitution*.[13] The learned author in his book on *Comparative Constitutional Law* says:

> When human rights are guaranteed by written *Constitution*, they are called Fundamental Rights because a written *Constitution* is the fundamental law of a State.[14]

The Supreme Court has held that freedom of speech and expression guaranteed under *Article 19*(1)(a) is basic human right and a natural right.[15] Various rights guaranteed under *Article 17* are known as Common Law Rights in England. The Supreme Court has characterised these rights as natural rights. It has been held that *Article 19* deals with those great and basic rights which are recognised and guaranteed as natural rights inherent in the status of a citizen of a free country.[16]

The theory of natural right is related to the theory of natural law. The theory of natural right arose as a protest against authority. It ultimately rested the philosophical foundation of natural rights in the rationality of man – what a rational human being perceives as something which ought to be allowed to everyone. Rights, however, have to be founded on laws and the Law of nature is the source of natural rights. "Nature" has been used in four different senses in theories dealing with natural rights as (1) original; (2) ideal; (3) as opposed to conventional and (4) as objective reason or rationality. It is the fourth meaning that is usually attached to the theories of natural rights, though at times, shades of other meanings are also present. According to ROUSSEAU, the individual must by a social contract alienate all his natural rights to the whole of the community. ROSCOE POUND remarks:

> Jurists of 18th Century Law of Nature School conceived that a complete and a perfect system of law might be constructed upon the principles of natural (*i.e.,* ideal) law which were discoverable by reason.

He held that these principles might be drawn from reasoning as to the nature of man in the abstract. The practical result of the dominance of such a theory precepts, with speculation about the particular writer thought to be law, influenced more or less by pre-possessions or prejudices as derived from existing school of legal order. In the end, such a method could not prevail. PROFESSOR JULIUS STONE remarked:

> It is a central quality of natural thinking that it seeks to give the insights relevant for a time and place a quality of absolutism and universality.

T K Tope said:

> After the holocaust of Second World War, the world community came together to enunciate that certain universal “basic rights” of all mankind should be respected by all Governments. The Universal Declaration of Human Rights 1948 and the Covenant on Civil and Political Rights and Economic, Social and Cultural Rights of 1966 as also other UN Conventions seek to lay down norms of human behaviour and the rights of mankind (including womankind) to be respected by all. They also serve to exert moral pressure– at times economic and political pressure on non-complying States (sometimes against South Africa for its Apartheid Policy). These pronouncements are reminiscent of Natural Rights Theory.[17]

In fact, in the decision *Kesavananda Bharati v State of Kerala*,[18] one of the learned judges (BEG C.J.) observed:

> I am emphatically of opinion that a divorce between natural law and our Constitutional Law will be disastrous. It will defect one of the basic purposes of our *Constitution*.

1.4 Natural rights inalienable.

Though there has been an unending controversy as to whether rights are anterior to political society or are created by the latter, philosophers agree on the point that there are certain basic and inalienable[19] rights which are inherent in free and civilized human beings. A political society is necessary not to *create* them but to *secure* them. For instance, a right to *habeas corpus*, in England, was not created by the *Habeas Corpus* Acts, but existed even prior to the enactment of those statutes. Civilised men derive such rights from a higher law, which was called “natural law” at the dawn of civilisation, and which later came to be embodied in the form of a written instrument or instruments constituting the fundamental law of the land.

1.5 Cicero (106-43 B.C.).

The concept of natural rights (*jus naturale*) as being derived from natural law (*lex naturalis*) may be traced from the Stoic philosopher Cicero, who in his *De Legibus*, said:

> …we are born for justice, and…right is founded not in opinion but *in nature*. There is indeed a true law, *right reason*, agreeing with nature and diffused among all, unchanging, everlasting.[20]

This concept was given a more concrete shape in the writings of the Roman jurists who asserted that:

1.6 Justinian's Institutes (529 A.D.)

> "By natural law all men are born free".[21] "So far as pertains to natural rights, all men are equal".[22]

1.7 Middle Ages.

While the Stoics identified the law of nature with Reason, the Churchmen of the Middle Ages identified it with the law of God and thus sowed the seeds of the revolutionary doctrine that the individual had a right to defend himself against absolutism.

1.8 U.K.

Though the *Constitution* of England has never been codified in the form of one organic instrument, so far as individual rights are concerned, they have been asserted, from time to time, in the form of declarations of the inviolable rights and liberties of the subject against the most despotic monarchical authority. In the words of *Blackstone*,[23] these rights were "*founded on nature and reason*, so they are coeval with form of government."

1.9 Magna Carta (1215).

The doctrine of natural rights thus passed into the realm of practical reality when an absolute monarch himself (King John) was *made to acknowledge* that there were certain rights of the subject which could not be violated even by a Sovereign in whom all power was legally vested.

1.10 Petition of Right (1628). Bill of Rights (1689).

The movement continued through the repeated confirmation of the Magna Carta and the Petition of Right 1628, and culminated in the Bill of Rights 1689, which enacted in a parliamentary statute the declaration which the people made the Prince and Princess of Orange to subscribe at their accession in 1688. The contribution of this instrument towards the development of Fundamental Rights[24] will be evident when we look at its concluding words:

> …it may be declared and enacted, that all and singular the rights and liberties asserted and claimed in the said declaration are the true, *ancient and indubitable* rights and liberties of the people of this kingdom.

THOMAS HOBBES in his most influential work *Leviathon* (1651) gave important influence on modern *Constitution* in that they identify recurring themes and claims. They include the following: (a) Government depends on the consent of the people; (b) A simple sovereign source of absolute power to protect the people particularly in emergencies; (c) All citizens are equal. No one should have powers or rights or be subject to special obligations based on factors such as birth, custom, social status or religion; (d) Freedom is the natural state of affairs as opposed to a gift bestowed by authority. It is true that sovereign can make any law, but unless it positively does so, the individual is free to do what he or she likes. "Freedom lies in silence of the laws".[25] This is a primary sentiment behind the idea of the rule of law. Conversely, however, there cannot be a guaranteed right without law; (e) The separation of politics from religion, church from State; (f) The distinction between the public and the private atmosphere. In relation to areas not controlled by State, those where public order and safety are not at risk, what I do is not the State's business.[26]

1.11 Act of Settlement (1701).

The Act of Settlement, which followed, had for its Title "An Act declaring the Rights and Liberties of the Subject…", which were asserted as "the birth-right of the people of England."

1.12 Dissenters and Levellers (1637-1654).

Together with these Charters of liberties we should advert to the views of contemporary political thinkers, such as the Dissenters and the Levellers, rising against Stuart absolutism. Though from the early times natural law was considered as a norm for right conduct as well as the source of certain basic rights, the latter aspect was more

emphasised by the Revolutionary leaders like Eliot, Pym and Hampden, to assert that there were certain fundamental rights, such as the freedom of person and property, which could not be arbitrarily interfered with by any political authority. The theory of natural rights of the individual was thus used to checkmate the theory of Divine Right of Kings.

1.13 Milton (1644).

It was about this that the poet John Milton, in his *Areopagitica*, pleaded for “the liberty to know”, to utter and to argue freely according to “conscience”.

1.14 Advocates of Social Contract.

The doctrine of natural rights received further impetus at the hands of the great protagonists of the theory of Social Contract in the 17th and 18th centuries, particularly, Locke and Rousseau, who sought to trace the genesis of political society and government in an agreement into which individuals entered to form a collective society to ensure their general interests and objects, but at the same time, without interfering with their “natural rights” which already belonged to them as human beings.[27]

1.14.1 John Locke (1690).

Of this group of political thinkers, the most systematic contribution was that of John Locke, whose two Treatises of Government, published in 1690, wielded a great influence upon the American colonists in preparing the Declaration of Independence and the Written Constitutions. Shorn of details, Locke’s theory was that in the original state of nature, man was governed by the law of nature; but for the sake of better safety, he joined in a political society by means of a “social compact” for the mutual preservation of life, liberty and property. The government, so set up by a compact was naturally one of limited powers and was bound to the community by the guarantee that the peoples’ natural rights would be preserved. The legislature was thus limited by natural law and law made by the Legislature contrary to the law of nature or violative of the natural rights of the individual was invalid. Some of these natural rights, for instance, were “equality”, “men being by nature all free, equal and independent”; liberty and property. The distinct contribution of Locke to the philosophy of fundamental rights, thus, was that he did not rest with the assertion of the natural rights against royal arbitrariness; he held them *as against the Legislature as well*, even though the “supreme power in the commonwealth” might belong to the Legislature.[28]

According to LOCKE, the people first hypothetically contract with others unanimously to establish a government and then choose an actual government by majority vote. The government as such does not enter into a contract, “but takes on trust”, a one-sided promise whereby it undertakes to perform its functions of protecting natural rights and advancing well-being. Thus, government has duties, but no rights of its own, an idea recognised by contemporary judges.[29]

1.14.2 Rousseau (1762).

Though full of contradictions in his philosophy of Social Contract, it was Rousseau who gave a kinetic impetus to the doctrine by emphasising that the sole justification of the State,— deriving its authority from the people,— was to guarantee the natural rights of man, of freedom and equality.[30] These were “natural” rights inasmuch as they inhered in man in the “state of nature’:

> Man is born free and everywhere he is in chains.

1.14.3 Blackstone (1765).

It is striking that this concept of natural rights as binding on *any* political authority crept into the thoughts of a legalist like Blackstone who, writing in 1765,[31] made a distinction between absolute and relative rights of persons.

By *absolute* rights of individuals, Blackstone meant:

> those which are so in their primary and strictest sense; such as would belong to their persons merely in a state of nature; and which every man is entitled to enjoy, whether out of society or in it.

These are to be distinguished from *relative* rights which are incidental to individuals only as members of society. It is the duty of the political society to protect these absolute rights and therefore the State or any authority therein cannot interfere with or encroach upon these natural rights except in so far as that is essential for the free maintenance or proper enjoyment of such rights as members of a collective society. Thus Blackstone continues:

> …The principal aim of society is to protect individuals in the enjoyment of these absolute rights, which were vested in them by the *immutable laws of nature*; but which could not be preserved in peace without that mutual assistance and intercourse, which is gained by the institution of friendly and social communities. Hence, it follows that the *first and primary need of human laws is to maintain and regulate these absolute rights of individuals.*[31]

Credit must, therefore, go to Blackstone for importing the doctrine of natural rights from the realm of political philosophy into the realm of jurisprudence. Of course, he was asserting that "the power of Parliament is absolute and without control" and that "what Parliament doth, no authority upon earth can undo"[32]; but he had, at the same time, the belief that the "absolute rights" of man were and would be safeguarded by the laws made by Parliament so long as "the *constitution* of England" "does not perish".[32]

1.15 Mayflower Compact (1620).

Locker's theory of Social Control was materially fruitful in the Compact which the Pilgrim Fathers entered into when they landed from their ship named Mayflower, at Ply mouth, in the year 1620. In this Agreement, the signatories, after recognising their allegiance to the King of England,:

> do solemnly and mutually, the presence of God, and of one another, covenant and combine together into a civic body politic, …and…to enact, constitute and frame such just and equal laws, ordinances, acts, constitutions, and offices from time to time, as shall be thought most meet and convenient for the general good of the Colony, into which we promise all due submission and obedience.[33]

The significance of this Compact lies in the fact that when the Colonial revolt started in 1763, the colonists pointed to this Compact as the contract between the colonists and the King by which he was deemed to assure protection of their natural rights.

1.16 Virginia Bill of Rights (1776).

The Bill of Rights adopted in the State *Constitution* of Virginia in 1776 was the first declaration of rights in a written *Constitution* "as the basis and foundation of government". The impress of the doctrine of "natural rights" is to be found in the preamble of this declaration:

> All men are by nature equally free and independent and have certain *inherent natural rights* of which when they enter society, they cannot by any compact deprive or divest their posterity…

As Ritchie[34] points out, this Bill of Rights served "as the model for many similar declarations adopted after American

independence had been secured". That it inspired the makers of the Bill of Rights appended to the national *Constitution* by the first Ten Amendments would be evident if we find that amongst the rights asserted by the Virginia Bill of Rights are:

> Equality of men; freedom of the press; freedom of religion; right not to be taxed without consent or not to be deprived of liberty except by the law of the land; right against general warrants, cruel punishments, self-incrimination.

1.17 American Declaration of Independence (1776).

The theory of natural rights entered into the realm of constitutional realism with two revolutionary documents, namely, the American Declaration of Independence and the French Declaration of Rights of Man, which asserted that there were certain rights which were inalienable and which it was the duty of the State and its organs to maintain.

The aggression of the omnipotent British Parliament against the American colonists could be met only by holding up the shield of the inviolable natural rights of man, which would constitute a limitation to any form of government, monarchical or parliamentary.[35]

The Declaration of American Independence, drafted by Jefferson in 1776, said:

> We hold these truth to be self-evident; that all men are created equal; that they are endowed by their creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness…

Though it was not a part of a written *Constitution*, it asserted "certain *inalienable rights*", as against any government in power, adding that:

> to secure these rights governments are instituted among men, deriving their just powers from the consent of the governed.

Inspired by the American Declaration of Independence, the French National Assembly in 1789 formulated the Declaration of the Rights of Man:

French declaration of the Rights of Man (1791)

> The representatives of the people of France, formed into a National Assembly considering that ignorance, neglect, or contempt of human rights, are the sole cause of public misfortunes and corruptions of Government, have resolved to set forth in a solemn declaration, these natural, imprescriptible, and inalienable rights, that this declaration being constantly present to the minds of the members of the body social, they may be ever kept attentive to their rights duties; that the acts of the legislative and executive powers of Government, being every moment compared with the end of political institutions, may be more respected; and also, that the future claims of the citizens, being directed by simple and incontestable principles, may always tend to the maintenance of the *constitution*, and the general happiness.

> For these reasons the national assembly both recognise and declare in the presence of the Supreme Being, and with the hope of his blessing and favour the following sacred rights of men and citizens…
>
> II. The end of all political associations is the preservation of the *natural and imprescriptible rights of man*; and these rights are Liberty, Property, Security, and Resistance of Oppression.

The philosophy underlying this doctrine of inalienable rights, superior to the civil rights, may best be explained in the words of a contemporary political thinker,– Thomas Paine:

> …all men are born equal and with equal Natural Rights.[36]

Thomas Paine (1791-2).

> Man did not enter into society to become worse than he was before, not to have fewer rights than he had before but to have those rights better secured. *His natural rights are the foundation of all his civil rights…Natural rights are those which operation to man in right of his existence*. Of this kind are all the intellectual rights, or rights of the mind and also all those rights of acting as an individual for his own comfort and happiness which are not injurious to the natural rights of others. *Civil rights are those which appertain to man in right of his being a member of society*. Every civil right has for its foundation some natural right pre-existing in the individual, but to the enjoyment of which his individual power is not, in all cases, sufficiently competent. Of this hand are all those which relate to security and protection.
>
> From this short view it will be easy to distinguish between that class of natural rights which man retains after entering into society and those which he throws into common stock as a member of society.
>
> From these premises two or three conclusions will follow:
>
> *First*, that every civil right grows out of a natural right; or in other words, is a natural right exchanged.
>
> *Secondly*, that civil power properly considering as such is made up of the aggregate of that class of natural rights of man which becomes effective in the individual in a point of power, and answers not his purpose, but when collected to a focus becomes competent to the purpose of everyone.
>
> *Thirdly*, that the power produced from the aggregate of the natural rights imperfect in power in the individual, *cannot be applied to invade the natural rights which are retained in the individual*, and in which the power to execute is as perfect as the right itself.[36]

1.18 U.S.A.

A most striking feature of the federal *Constitution* of the U.S.A., however, is that there was no Bill of Rights appended to the original *Constitution* as framed by the Convention of 1787 and brought into force in 1789, even though the *Constitution* contained certain specific limitations upon legislative power, such as the prohibition of bill of attainder and *ex post facto* law [Article I, section 9(1)].

General

1.19 The Bill of Rights in the American Constitution (1791).

There was, in fact, a proposal in the Convention that a Bill of rights should be inserted in the *Constitution* but it was defeated. In the result, the *Constitution* of 1787 contained *no* guarantee of those "inalienable rights" which were envisaged by the Declaration of Independence, such as freedom of speech, assembly, religion and the like.

But as soon as the Federal *Constitution* was adopted, the absence of a Bill of Rights was felt by some of the leaders of whom Jefferson was the spokesman, and some States demanded the incorporation of a Bill of Rights as a condition for their ratification of the *Constitution*. Jefferson pointed out the fallacy of the assumption that representatives of the people could not be arbitrary and that a representative Legislature required no constitutional limitations upon its powers. So said Jefferson:

> …a Bill of Rights is what the people are entitled to *against every government on earth*, general or particular.

He also met the usual arguments against the adoption of a Bill of Rights thus:

> The Declaration of Rights is, like all other human blessings alloyed with some inconveniences and not accomplishing fully its object. But the good in this instance vastly overweighs the evil…Experience proves the inefficiency of a Bill of Rights. True. But though it is not absolutely efficacious under all circumstances, it is of great potency always and rarely inefficacious…There is a remarkable difference between the characters of the inconveniences which attend a Declaration of Rights and those which attend the want of it. The inconveniences of the Declaration are that it may cramp Government in its useful exertions. But the evil of this is short-lived, moderate and reparable. The inconveniences of the want of a Declaration are permanent, afflicting and irreparable. They are in constant progression from bad to worse. The executive, in our governments, is not the sole, it is scarcely the principal, object of my jealousy. *The tyranny of the legislatures is the most formidable dread at present and will be for many years*.[37]

1.20 Natural rights transformed into fundamental rights operating as a constitutional limitation.

The unmistakable direction in which the Americans took a step in advance of the French people in importing the concept of the inalienable natural rights of man into the world of constitutionalism is that they did not stop at reciting these rights in an ornamental Preamble to the *Constitution*, but adopted them as a part of the *Constitution* which could serve as a legal *limitation* on the power of each of the organs set up by the *Constitution* like any order mandatory part of that organic instrument and would be enforceable by the courts to invalidate legislative and executive acts that might transgress these inalienable rights.

A modern exposition of this doctrine, as understood by the American Supreme Court, is to be found in the case of *Board of Education v Barnette*: [38]

> …the very purpose of a Bill of Rights was to withdraw certain subjects from the vicissitudes of political controversy, to place them beyond the reach of majorities…and to establish them as *legal principles to be applied by the courts.* One's right to life, liberty and property, to free speech, a free press, freedom of worship and assembly, and other fundamental rights may not be submitted to the vote; they depend on the outcome of no election.[38]

1.21 Enforced by judicial review.

Another reason behind the adoption of the Bill of Rights was that if there was a justiciable guarantee of individual rights in a written *Constitution*, the Judiciary would protect the individual against their violation by the Legislature and the Executive. *Judicial review thus became an inseparable concomitant of fundamental rights*. In the words of Madison: [39]

> If they are incorporated into a *Constitution*, independent tribunals of justice will consider themselves in a peculiar manner the guardians of those rights; they will be an impenetrable bulwark against every assumption of power in the Legislative or Executive; they will naturally led to resist every encroachment upon rights expressly stipulated for in the *Constitution* by the declaration of rights.[39]

1.22 Adoption of the First Ten Amendments as the 'Bill of Rights'

When, therefore, the States, as a condition for their ratification of the Federal *Constitution*, insisted upon the inclusion of a Bill of Rights, the demand was readily conceded and in the very first Congress, Madison proposed amendments to the text of the *Constitution* which ultimately led to the Bill of Rights, incorporated in the first ten amendments of the *Constitution* which took place simultaneously in the year 1791, that is, two years after the *Constitution* had been brought into force.

It is also, to be noted that even after the adoption of the Bill of Rights in the *Constitution*, the doctrine of natural law and annual rights has wielded a potent force in the United States in safeguarding individual rights and in expanding the *Constitution* on that behalf. Thus, in *United States v Cruikshank*,[40] it was said that the right of the people to assemble peaceably[41] existed from long before the adoption of the *Constitution* of the United States and was derived "from those laws whose authority is acknowledged by civilized man throughout the world". Similarly has it been said, often and often, that the "Due Process" Clause in the Fourteenth Amendment embodies the "Fundamental conceptions of justice'[42] or a "demand for civilised standards which are not defined by the specifically enumerated guarantees of the Bill of Rights",[43] or "a fundamental fairness essential to the very concept of justice",[44] "the very substance of individual rights of life, liberty, property".[45]

The Due Process Clause has thus come to be treated as an expression of the faith that:

1.23 Due Process.

> *Arbitrary power*, enforcing its edicts to the injury of the persons and property of its subjects, is not law, whether manifested as the decree of a personal monarch or of an *impersonal multitude*.[45]

Thus emerged the concept of "a perpetual character of inestimable human liberties'[46] which would serve as a limitation upon any governmental power [45] so that it might not be used tyrannically against the individuals subject to its authority. In the words of BLACK J. in *Adamson v California*,[47] the provisions of the American Bill of Rights:

> …were designed to meet ancient evils. But they are the same kind of human evils that have emerged from century to century wherever excessive power is sought by the few at the expense of the many.[47]

Once that is established, it became the duty of the Courts "to enforce" these "limitations and restraints" against authority.[48]

General

1.24 No express provision required for invalidating a law which violates fundamental right.

As explained by *Cooley*,[49] it is not necessary to incorporate any express prohibition, as the Indian *Constitution* (*Article 13*) has done, that the Legislature shall not make laws violating the fundamental rights declared in a written *Constitution*; the very incorporation of such rights in the *Constitution*, in a mandatory form, operates as a limitation on legislative power: [50]

> Nor, where fundamental rights are declared by the *constitution*, is it necessary at the same time to prohibit the Legislature, in express terms, from taking them away. The declaration is *itself a prohibition*, and is inserted in the *constitution* for *the express purpose* of operating upon legislative power.[49]

1.25 Post-war constitutions.

There have indeed been some people, mostly British,[51] who have questioned the utility of having a Bill of Rights, that is to say, a declaration of Fundamental Rights in a *Constitution*, but today, that view must be said to have been rejected by the history of the world because if it were utterly useless or futile, almost every written *Constitution* made since the *Constitution* of the United States, and more particularly, those made since the two World Wars, would not have adopted such declarations. As pointed out earlier, even a representative Legislature is liable to be arbitrary, and it was such painful experience of the American Colonists at the hands of the British Parliament itself,[52] that led the Americans to adopt a Bill of Rights in their State Constitutions and eventually in the federal *Constitution*.

1.26 Adoption of Fundamental Rights in India

The treatment received by the Indians from the British Parliament was not dissimilar[53] and I am glad to find that even a Britisher, who is otherwise a staunch advocate of British institutions, has acknowledged that in the matter of adopting a Bill of Rights, “the Indian reaction, like the American reaction, is in large measure, a product of the British rule”.[54]

When *Dicey*, in 1885, said that “the *Habeas corpus* Acts declare no principle and define no rights, but they are for practical purposes worth a hundred constitutional articles guaranteeing individual liberty”,[55] and that mere declaration of individual rights in an instrument may be meaningless if there were no adequate remedies by which they might be enforced, he was indeed uttering a profound truth, but makers of new Constitutions in the world since then have nevertheless assumed that a guarantee of fundamental rights in a written *Constitution* was a better safeguard for liberty than leaving the matter to the Courts to apply the common law to particular cases, particularly because, as I have shown at the outset, common law does not set any limitation upon the Legislature, as does a Bill of Rights in a written *Constitution*.

The model of the American Bill of Rights was followed by so many of the States formed after the First World War[56] that the Simon Commission’s pleading against a Bill of Rights in 1934 was nothing but pleading against history. So said the Commission: [57]

> We are aware that such provisions have been inserted in many Constitutions, notably in those of the European States formed after the War. Experience, however, has not shown them to be of any great practical value. Abstract declarations are useless unless there exist the will and means to make them effective.

The dilemma which the Joint Parliamentary Committee presented, in order to support the view of the Simon Commission, like all dilemmas, contained an inherent logical fallacy. The Committee said:[58]

> Either the declaration of rights is of so abstract a nature that it has no legal effect of any kind, or its legal effect will be to impose an embarrassing restriction on the powers of the legislature and to create a grave risk that a large number of laws may be declared invalid by the courts because of inconsistency with one or other of the rights so declared.

Fortunately, the fathers of the Indian *Constitution* were not beguiled by that dilemma and preferred to follow the famous words of Jefferson:

> The inconveniences of the declaration are, that it may cramp government in its useful exertions. But the evil of this is short-lived, moderate and reparable, the inconveniences of the want of a declaration are permanent, affective and irreparable…

The reason is that the freedom-fighters in India, like the American colonists, had learnt from their experience under an Imperialistic regime that even a representative assembly of men might be arbitrary and hostile to the cherished rights of men. They could not, therefore, "implicitly believe the representatives of the people, for uncontrolled and unrestricted power might lead to an authoritarian State".[59] *Our Constitution*, therefore,

> …preserves the natural rights against State encroachment and constitutes the higher judiciary of the State as the sentinel[60] of the said rights…59

A demand for the guarantee of Fundamental Rights was thus made as early as the *Constitution of India* Bill 1895, drafted so soon after the birth of the Indian National Congress in the year 1885. The urge for incorporating a guarantee of Fundamental Rights in our *Constitution* was later accentuated by the need for establishing "a sense of security"[61] amongst the different minority groups, religious, linguistic and social.

This object was developed ever since in different Congress proceedings and led to the Report of the Committee on Fundamental Rights of the Constituent Assembly and the framing of Pt III of the Draft *Constitution* in the light thereof.

1.27 Commonwealth countries.

Today, it is hardly necessary to explain the need for incorporating Fundamental Rights inasmuch as, inspired with the same object as in India, all the new States of the Commonwealth which have been formed out of the British Empire itself have adopted a Bill of Rights in their respective Constitutions[62] and most of these Constitutions, curiously, were drafted with the assistance of British experts.

1.28 Furtherance of demand for fundamental rights by the *United Nations.*

The urge for embodying guarantees of individual rights in Constitutions has been further accentuated by the proclamation of universal human rights by the United Nations, adopting the Universal Declaration of Human Rights in 1948,— a standard to which the member Nations must conform in order to maintain their international prestige in this age of "one world", and also by the adoption of the International Covenant on Civil and Political Rights in 1966.[63] It is now realised that "the recognition of the inherent dignity of the equal and inalienable rights of all members of the *human family* is the foundation of freedom, justice and peace in the world".

Of course, no effective machinery has yet been devised to enable the national of a State to enforce his fundamental right against his own State or a foreign State, since only sovereign States can be parties to a cause before the International Court of Justice.[64] It is also true that the Declaration does not say that these rights must be protected by the member States by adopting written Constitutions.

In fact, the Government of the United Kingdom believes that the object can be achieved without a constitutional guarantee of the individual rights specified in the Declaration. It is interesting to note that Great Britain herself submitted, in 1947, a Draft International Bill of Human Rights, which provided that "every State is, by international law, under an obligation to ensure" the effective protection of the freedoms enumerated in the Bill, and, in a Note appended thereto it was said:

> Some countries, like the United Kingdom, have no rigid *constitution* and, as a matter of internal law, it is not possible to surround any provision with any special constitutional guarantee. No enactment can be given a great authority than an Act of Parliament, and one Act of Parliament can repeal any other Act of Parliament. Therefore, the legal provisions which safeguard human rights can only have as their special safeguard the solemn international obligations undertaken in the Bill, together with the firm foundation which there principles have in the deepest convictions of Parliament and the people.[65]

Of course, no such Bill has been enacted in the U.K. up to the end of 1994.

Be that as it may, the very fact that the Charter of the United Nations affirms the "fundamental human rights" constitutes an acknowledgment on the part of the members of the United Nations that they would commit a violation of the Charter if any of such rights of the individual is violated.[66] Here, then, is a revival of the ancient doctrine of natural rights being superior to the law of a sovereign State, after it had suffered an eclipse in the age of historical and analytical jurisprudence, and in pursuance of this revival newer States have been adopting written Constitutions with a guarantee of Fundamental Rights.[67]

We thus conclude our story of the evolution of natural rights as an ethical standard at the dawn of the civilised society into fundamental rights secured by the highest law of the land and enforced by its courts of law. Natural rights are no longer an appeal by philosophers dismayed by the tyranny of a sovereign State and its laws, or the slogan of revolutionaries seeking to demolish the fabric of the State itself as a reaction against its monolithic weight, but an effective means of controlling unlimited power, conditioned by the only proviso that the Courts are alert and independent.

1.29 Heritage of Fundamental Rights from Natural Rights.

The lessons which we can draw from the history of natural rights and which are applicable to fundamental rights guaranteed by a *Constitution* may be formulated as follows:

(i) Natural rights are those minimal rights of an individual which must be guaranteed by every society which claims to be civilised.[68]

(ii) Natural rights have a sanctity superior to other rights conferred by positive law. This is the idea which prompted the Americans when they spoke of the "inalienable" rights of "life, liberty and the pursuit of happiness" in their Declaration of Independence, and to adopt them in the form of a Bill of Rights added to the *Constitution* in 1791.[69]

(iii) Fundamental rights, like natural rights, are intended to be limitations upon all governmental power and all State action, including legislative. It is to protect the fundamental rights from *legislative* encroachment, in particular, that

is, against the temporary passions of a group of men composing the Legislature for the time being, that they were embodied in a written *Constitution*.[70]

1.30 Effects of incorporating human rights in a written Constitution.

(iv) The effect of guaranteeing individual rights in a written *Constitution* is to ensure that any State action, including legislation, which violates, or is inconsistent with, a fundamental right shall be struck down by the Courts because the *Constitution* is the fundamental law of the land.[71]

2. What is a fundamental right

I. A *legal* right is an interest which is protected by law and is enforceable in the courts of law. While an ordinary legal right is protected and enforced by the ordinary law of the land, a *fundamental* right is one which is protected and guaranteed by the written *Constitution* of a State.[72] These are legal rights in the sense of justiciability; but they are called "fundamental" because while ordinary rights or rights created by the Legislature may be changed by the Legislature in its ordinary process of legislation, a fundamental right, being guaranteed by the *Constitution*, cannot be altered by any process shorter than that required for amending the *Constitution* itself. Nor can it be suspended or abridged except in the manner laid down in the *Constitution* itself. The celebrated words of JACKSON J. of the American Supreme Court are:

> The very purpose of a Bill of Rights was to withdraw certain subjects from the vicissitudes of "political controversy" to place them beyond the reaches of majorities and to establish them on legal principles to be applied by the courts. One's right to life, liberty and prosperity to free speech to free press, freedom of worship and assembly and other "fundamental" rights may "not" be submitted to "vote"; they depend on the outcome of no election.[73]

A written *Constitution* can however be called "fundamental" only if it has superiority over ordinary laws, in that (i) it cannot be changed in the same process as ordinary laws; (ii) the validity of ordinary laws can be tested with reference to the fundamental law, and (iii) there is an authority (*i.e.,* the Judiciary) to declare unconstitutional an ordinary law which is thus found to be inconsistent with the provisions of *Constitution*.[74]

The essential character of the fundamental right is secured by limiting the legislative power and by providing that any transgression of the limitation would render the offending law pretends void.[75] Fundamental Rights have two aspects – they act as fetters on plenary legislative powers and secondly they provide the condition for fuller development of our people including their individual dignity.[76] In fact, under the *Human Rights Act 1993*, the expression "human rights" is defined as "the right relating to life, liberty, equality and dignity of individual guaranteed by the *Constitution* or embodied in the International Covenants and enforceable by the court in India". (See section 2(d)).

The concept of human rights protects individuals against the excesses of the State. The concept of human rights represents an attempt to protect the individual from oppression and injustice. In "modern times" it is widely accepted that the right to liberty is the very essence of a free society and it must be safeguarded at all times. The idea of guaranteeing certain rights is to ensure that a person may have a minimum guaranteed freedom.[77]

The purpose of enumerating fundamental rights in the *Constitution* is to safeguard the basic human rights from the vicissitudes of political controversy and to place them beyond the reach of the political parties who by virtue of their majority, may come to form the Government at the centre or the State.[78] It was further held in that case that International Covenants and Declarations as adopted by the United Nations have to be respected by all signatory States and the meaning given to the provisions of these Declarations and Covenants have to be such as would help in effective implementation of these rights. The applicability of the Universal Declaration of Human Rights and the principles thereof may have to be read, if need be, into the domestic jurisprudence.

It is a fallacy to regard fundamental rights as a gift from the State to its citizens. Individuals possess basic human rights independently of any *Constitution* by reason of the basic fact that they are members of the human race. These fundamental rights are important as they possess intrinsic value. Pt III of the *Constitution* does not confer any fundamental rights. It confirms their existence and gives them protection. Its purpose is to withdraw certain subjects from the area of political controversy to place them beyond the reach of majorities and officials and to establish them as legal principles to be applied by the courts. Every right has a conflict. Every foundational value is put in Pt III as a fundamental right as it has intrinsic value. The converse does not apply. A right became a fundamental right because it has foundational value. Apart from the principles, one has also to see the structure of the article in which the fundamental value is incorporated. A fundamental right is a limitation as to the power of this state.[79]

When human rights are guaranteed by a written *Constitution* they are called “fundamental rights” because a written *Constitution* is the fundamental law of a State.[80]

All rights that are “fundamental” belong to the citizens of all free governments. What these fundamental principles are, it would be made tedious and difficult to enumerate. They may all, however, be comprehended under the following general heads : protection by the government, with the right to acquire and possess property of every kind and to pursue and obtain happiness and safety, subject, nevertheless to such restraint as the government may prescribe for the general good of the whole.[81]

What is fundamental? The court often says that the privileges and immunities protected by Article IV of the American *Constitution* are limited to certain “fundamental” rights. There is no unitary concept of fundamental rights in Constitutional Law. What is fundamental to a decent and good life (*e.g.,* good health, education and adequate income) is not necessarily fundamental as a matter of “constitutional right”. And what is fundamental for “substantive” due process is not the same as what is fundamental for equal protection purposes. The fundamental rights protected as privileges and immunities by Article IV (section 2) differ from any of the foregoing. They consist of interests that are fundamental to the promotion of interstate harmony or to the maintenance and well-being of the nation. In practice, this boils down to the right to prevent a State from imposing unreasonable burdens on citizens of other States in (1) seeking a job or as the court put it in *Austin v New Hampshire*,[82] “all the privileges of trade and commerce”; (2) the ownership and disposition of privately held property within the State, and (3) access to State’s courts.[83] In *Baldwin v Montana Fish & Game Commission*,[84] the court indicated that with respect to basic and essential activities, interference with which would frustrate the purpose of formation of the Union, the State must treat residents and non-residents without unnecessary distinction.

II. Without entering into niceties, it may be stated that an ordinary legal right appertains to private law and denotes the relationship between two private citizens; a fundamental right appertains to public law and is a right which an individual possesses against the State itself. The party bound by a fundamental right is the *State*. The distinction was thus explained by the *American* Supreme Court: 85

> These rights (*i.e.*, those guaranteed by a Bill of Rights) are different from concrete rights which a man may have to a specific chattel or to a piece of land or to the performance by another of a particular contract, or to damages for a particular wrong, all of which *may be invaded by individuals; they* are the capacity, power of privilege of having and enjoying those concrete rights and of maintaining them in the courts, which capacity, power or privilege *can only be invaded by the State*…[85]

III. It follows that while ordinary legal rights are available against private individuals, a fundamental right is available only against the State[86] and not for the violation of any such right by a private individual, except where the State supports such private action.[87]

IV. On the other hand, the fundamental rights being guaranteed by the fundamental law of the land, no organ of the State,— executive, legislative or judicial, can act in contravention of such rights,[88] and any State act which is repugnant to such rights must be void[89] [*vide* Article 13, *post*].

Once the Constitution is regarded as the supreme law of the land and the powers of all the other organs of government are considered as limited by its provisions, it follows that not only the Legislature but also the Executive and all administrative authorities are equally limited by its provisions, so that any executive or administrative act which contravenes the provisions of the Constitution must, similarly, be void.[90]

Supremacy of the Constitution has been described as a basic feature of Constitutional system.[91] It means several things – (i) It means "limited government", namely, that all organs set up by the Constitution are vested with limited powers by the Constitution, so that none can claim unlimited power or legal omnipotence. In other words, "the sovereignty" which can be claimed by the Parliament of England cannot be claimed by any legislature in India in the literal absolute sense.[92] (ii) In other words, "sovereignty" under the Indian Constitution is not vested in any body of men, but on the "fundamental law" laid down by the Constitution. That is what the Americans mean by the expression "Government of laws, not of men".[93] It was held in that case, neither the three organs set up by the Constitution can take over the function assigned by the Constitution of India to the other and the Courts have no authority to interfere with the acts done by the legislature or the Executive within the orbit of authority merely on the ground that their action has been erroneous or because the courts do not agree with their decision as a matter of policy. But, if the legislature or executive exceeds the scope of its powers as limited by the Constitution, it is the duty of the court, if the wrong is capable of being "judicially" redressed, to redress the wrong when properly brought before it.

As has already been explained, no express provision, such as that contained in Article 13 of our Constitution, is necessary to achieve this result. In fact, a written Constitution itself operates as a limitation on all constituted powers,[94] where there is a machinery for its enforcement, by way of judicial review.[95]

This point is well worth emphasising inasmuch as in some of our Supreme Court decisions it appears to have been suggested that while the distribution of legislative power and some other positive limitations upon the legislative power, *e.g.*, Articles 286, 304, take away the legislative competence of the Legislature and render a law enacted in violation of such limitations a nullity, the "fundamental rights" constitutemere "checks" upon the Legislature and do not go to the root of the legislative competence, so that a law made in contravention thereof is merely unenforceable.[1]

But the contrary view, namely, that fundamental rights equally constitute limitations upon legislative competence is now *established* by several later decisions.[2] In fact Article 13(2) of the Constitution prohibits the legislature from making any law which abridges or takes away the rights "conferred" in Pt III, and this prohibition goes to the root of the competence of legislature just as lack of legislative power under Article 246 or the violation of some other specific prohibition such as Article 287(1) or Article 301. "Our legislatures have undoubtedly plenary powers, but these powers are controlled by the basic concepts of the written constitution itself. If the legislatures step beyond the legislative fields assigned to them or "acting within their" respective fields, they trespass on the fundamental rights, their legislative actions are liable to be struck down by the courts in India.[3] The fundamental rights being entrenched by the Constitution cannot be violated by the Legislature.

V. In fact, no right can be said to be fundamental if it can be overridden by the Legislature and if there is no authority under the Constitution to pronounce a law to be invalid where it contravenes or violates such right directly or indirectly.[4] Both in the *U.S.A.*[5] and in *India*[6] this authority is the Judiciary. As was observed by Shastri J. in *Gopalan v State of Madras*:6

> …the insertion of a declaration of Fundamental Right in the forefront of the Constitution, coupled with an express prohibition against legislative interference with these rights (Article 13) and the provision of a constitutional sanction for the

> enforcement of such prohibition by means of a judicial review (*Article 32*) is…a clear and emphatic indication that these rights are to be paramount to ordinary State-made laws.[6]

That makes for the distinction between the rights included in Pt III and those included in Pt IV of *our Constitution*. The former are justiciable while the latter are not (see under *Article 37*, *post*). That is why the former are termed "fundamental rights" while the latter are termed "Directive Principles". The Directives, if implemented by the States, will confer some benefits on the individual, *e.g.*, living wage, decent standard of life [*Article 43*], and the like, but nobody can compel the State to implement such Directives by an action in a Court of law.[7]

VI. A special feature of Fundamental Rights under the Indian *Constitution* is that not only the rights themselves, but the constitutional remedy to move to the Supreme Court for their enforcement is also guaranteed as a fundamental right (*Article 32*), as a result of which this remedy and the power of judicial review conferred upon the Supreme Court in this behalf cannot be taken away by legislation[8] or by anything short of amendment of the *Constitution*. It is a substantive right to the aggrieved individual, so that even a law which renders nugatory or illusory the exercise of the Supreme Court's powers under *Article 32* is void,[9] except where the *Constitution* itself shields a law from challenge on the ground of contravention of fundamental rights, *e.g.*, *Articles 31*(5), 31A-31C. *Article 32 of the Constitution* being a fundamental right itself, it is the duty of the Supreme Court to ensure that no fundamental right is contravened or abridged by any statutory or constitutional provision. The fundamental rights are inherent and cannot be extinguished by any constitutional or statutory provision. Any law which abridges or abrogates such rights would be violative of the basic structure of the *Constitution*. If the federal structure is violated by any legislative action, the *Constitution* takes care to protect the federal structure by ensuring that courts act as guardian and interpreters of the *Constitution* and provide remedy under *Articles 32* and *226* whenever there is an attempted violation of the fundamental rights.[10]

No act of Parliament can exclude or curtail the powers of the Constitutional Courts with regard to enforcement of fundamental rights. Such a power is essential to give a practicable content to the objectives of the *Constitution* embodied in Pt III and other parts of the *Constitution*. The *Constitution of India* expressly confers the power of judicial review on the Supreme Court and the High Courts under *Articles 32* and *226* respectively. Judicial review of laws is embodied in the *Constitution* by virtue of *Article 13* read with *Articles 32* and 226 of our *Constitution*.[11] Even a constitutional amendment cannot curtail the power of court of judicial review under *Article 368*. *Article 31* was repealed by *Constitution* (Forty-Fourth Amendment) Act 1978 with effect from 20 June 1979.

VII. Because the remedy under *Article 32* is guaranteed by the *Constitution*, a duty is imposed upon the Supreme Court to protect the fundamental rights—to perform the role of "a sentinel on the *qui vive*".

VIII. In the ultimate analysis, it is this constitutional remedy — which is in itself guaranteed as a fundamental right, namely, the right to move to the Supreme Court for an appropriate writ or order to enforce a fundamental right, under *Article 32*, and which distinguishes a fundamental right from other rights.

There are indeed a number of rights created by the *Constitution* itself which are outside Pt III of the *Constitution*. These must be called *constitutional* rights as distinguished from legal rights inasmuch as they are created by the *Constitution* and not by the ordinary law, *e.g.*, the right not to be subjected to taxation without authority of law (*Article 265*), the right of every person not to be deprived of his property, save by authority of law (*Article 300A*),[12] the right to be subjected to laws interfering with the freedom of trade (*Article 301*) or to unreasonable restrictions thereupon imposed by a State Legislature (*Article 304*(b)); the right of a Government servant not to be dismissed by an authority subordinate to that by which he was appointed or without an inquiry on the charges levelled against him (*Article 311*).

These constitutional rights are analogous to fundamental rights on the following points:

(i) These constitute a limitation on legislative power in the same way as the fundamental rights in Pt III do,[13] and any law made in contravention thereof shall be void, in the same manner.[14]

(ii) Being provisions engrafted by the *Constitution* they cannot be taken away without an amendment of the *Constitution*,[15] since no exception on that behalf has been made by the *Constitution*.[16]

(iii) The foregoing provisions also create justiciable rights[17] and the individual aggrieved may enforce them in a court of law, with this difference that, not being a fundamental right, a right derived from any provision outside Pt III, cannot be enforced by a petition under *Article 32* before the Supreme Court;[18] the remedy is a suit or even a petition under *Article 226* before a High Court.[19] A legislation providing for deprivation of property under *Article 300-A*, must be "just, fair and reasonable" as understood in terms of *Articles 14*, *19*(1)(g), 26(b), 30(1-A), *etc.* *Article 300-A* would be violated if the provisions of law authorising deprivation of property have not been complied with. While enacting *Article 300-A*, the Parliament has only borrowed *Article 3*(1) (*i.e.,* Rule of Law Doctrine) and not *Article 31*(e). The available grounds of challenge of violation of *Article 300-A* (Constitutional right to property) are *Article 14*, the basic structure and the rule of law apart from legislative competence.[20] In that case, the court held that an acquisition of private property is not valid "if no compensation is paid". However, if property is acquired awarding "nil compensation", it is valid, if the State undertakes to discharge the liabilities charged on the property. In such cases, the Government must prove the validity of such law.

When a private property is sought to be acquired under a law enacted under *Article 300-A*, the acquisition must be under the correct statute or statutory provision. When an acquisition is made for a vegetable market, the relevant law will be the special law which provides for acquisition of land for markets and not general law.[21] Under *Article 300-A*, under the guise of acquisition, government cannot illegally forcibly evict the occupant from the land.[22] When the land is acquired under the Act, rule of natural justice has to be followed. The land owner must be given an opportunity to raise objection as to why the land is not to be acquired. Even where possession is sought to be taken, a notice has to be given especially when there are standing crops. When an objection is filed against the acquisition, the authority must objectively consider, whether the objections are valid or not. Acquisition of the land of a poor farmer affects his livelihood and it must be acquired and the possession is to be taken strictly in accordance with the law.[23] (For further discussion, see *Article 300-A*).

When a penalty is levied while imposing tax, the same has to be done after following the principles of natural justice. Failure to do so will be violative of *Article 14*.[24]

If a government servant is dismissed without holding an enquiry and it is not disclosed as to why it was not reasonably practicable to hold enquiry, the dismissal will be quashed and re-instatement ordered. Where such dismissal is ordered, the ground that "no independent witness will be available" is no reason not to hold an enquiry. The right under *Article 311* is a constitutional right and has to be strictly followed.[25]

(B) On the other hand,—

The distinction between a fundamental right and any other right derived from a provision outside Pt III of *our* *Constitution* is thus very slender, namely, only fundamental rights included in Pt III are enforceable by a petition before the Supreme Court under *Article 32*.

3. The need for Fundamental Rights

The object behind the inclusion of certain individual rights in a Bill of Rights is to establish a "limited government", *i.e.*, a governmental system in which absolute power is not vested in the hands of any of the organs of the State. The concept of limited government is what the Americans know as "a government of laws, and not of men"[26]. This concept, being the antithesis of the English doctrine of Parliamentary sovereignty, can be explained only if we analyse the ideological difference involved in the two concepts.

(A) U.K.

England. In *England*, the birth of the modern democracy was due to a protest against the absolutism of an autocratic executive and the English people of discovered in Parliamentary sovereignty an adequate solution of the problem that faced them. The English political system is founded on the unlimited faith of the people in the good sense of their elected representatives and that faith does not seem to have waned through the lapse of centuries. Though, of late, detractions from its omnipotent authority have taken place because the ancient institution at Westminster has grown incapable of managing the myriads of modern problems with the same case as in the Victorian age, nonetheless, hardly has anybody in England thought of placing limitations on the authority of Parliament so that it might properly behave.[27] There are no *legal* restraints on the omnipotence of Parliament and there is no authority which can interfere with a law made by Parliament on the ground that it violates the basic liberties of the people. If, nevertheless, the British Parliament does not invade individual rights, that is not because it is legally incompetent to do so, but because, as a traditional champion of liberty,[28] it would not pass any law "which any substantial section of the population violently dislikes"[29] except in emergencies.[30]

In *Constitutional and Administrative Law*[31] it is said:

> While British tradition has been strong against the court having power to review the validity of primary legislation, the court cannot escape the task of deciding whether a document for which legislative authority is claimed is in law an Act of Parliament. While the basic rule of legislative supremacy is a matter of common law as well as being an important political fact, it cannot be demonstrated from existing precedent that under no circumstance could this rule be qualified by judicial decision – still less that the basic rule could not be changed by Act of Parliament. It is therefore not possible to assert dogmatically that the legislative supremacy of Parliament will continue to be the primary rule of constitutional law of United Kingdom. Indeed, the advancing pace of European Integration (through Community Law) has made extensive inroads into the DICEYAN doctrine of legislative supremacy; the Human Rights Act 1998 stops short of enabling the courts to set aside an Act of Parliament, but authorises the courts to scrutinise legislation for compliance with the European Convention on Human Rights and the advent of devolution means that the Westminster Parliament is not the only legislature in the United Kingdom.

The learned authors conclude:

> The view taken in this chapter has been that Parliament legislative authority includes power to make new arrangements under which future Parliament would not enjoy legislative supremacy. The argument that the doctrine of legislative supremacy must be retained is strengthened if it can be shown that political system provides adequate safeguards against legislation which would be contrary to fundamental constitutional principles or the individual's basic rights. It is however, doubtful whether the present system, which relies so heavily on political control, adequately protects individuals or minority groups who may be vulnerable to legislative oppression. Moreover, Parliament's importance within British government depends less on absolute legislative power than on its effectiveness as a political forum in expressing public opinion and in exercising control over government. In the case of European Union, political necessity has brought about a situation, recognised by judiciary in which Community Law prevails over inconsistent national legislation. A return of the United Kingdom to DICEYAN orthodoxy would scarcely compensate for the disadvantage of an isolationist policy within Europe.[32]

The book further said[33]:

> There are both…and benevolent aspects of parliamentary supremacy. On the one hand, parliamentary supremacy means in theory the State has unlimited and absolute power as recommended in the seventeenth century. It also supports a highly

centralised form of government and administration. On the other hand, it means that ultimate power is in democratic hands (although if Parliament is all powerful it could change its own composition to become non-democratic). However, there is a widespread belief that “Parliament can no longer be trusted to do its job properly”. The reasons for this are to do with the complexity of government compared with the relative ignorance and limited resources of members of Parliament and most importantly the likelihood that the majority of members driven by personal ambition or tribal party loyalty, prefer to please the executive rather than hold it to account. Modern democratic systems are inevitably driven by highly organised political parties that choose candidates and fight election collectively. Individual politicians usually lack the resources to stand a realistic chance of election without party support.

The UK version of parliamentary democracy can be compared with *Constitution* such as that of the USA. In the USA, the Supreme Court can set aside law that regards as “unconstitutional”. However, the court cannot make law so that there is no single ultimate source of power. It is sometimes suggested of the UK that the “Common Law *Constitution*” in the keeping of judges is superior to Parliament so that in the last resort, unconstitutional legislation, for abolition of election, could be overturned by a court. However, no convincing rationale has been offered for this. Indeed, the question of what counts as the ultimate authority in a State cannot be answered from within the legal system created by that State, but is a political assumption based on community acceptance.

Parliamentary supremacy has also been questioned on political grounds from the perspective of the multi-layered *constitution*; the argument being that international obligation from above and devolution from below limit Parliament’s freedom of action. It is suggested that there is no need for a single ultimate sovereign body. Different bodies might exercise control in their own spheres with provision for negotiated settlement in the event of conflict. This form of *constitution* might well put considerable power in the hands of courts as a last resort dispute settler. But there must be a residue of ultimate power to act in emergency. A Court is unlikely to be appropriate for this.

But this assumption is not wholly correct nor has it fared well in other lands.[34]

(B) U.S.A.

U.S.A. The Founding Fathers of the *American Constitution*, on the other hand, had the painful experience that even a representative body might be tyrannical, particularly when they were concerned with a colonial Empire. Thus it is that the Declaration of Independence recounts the attempts of the British “Legislature to extend an unwarrantable jurisdiction over us” and how the British people had been “deaf to the voice of justice”. At heavy cost had the colonists learnt about the frailty and weaknesses of human nature when the same Parliament which had forced Charles I to sign the Petition of Right (1628) to acknowledge that no tax could be levied without the consent of Parliament did, in 1765 and the years that followed, insist on taxing the colonies, regardless of their right of representation, and attempt to enforce such undemocratic laws through military rule.

Hence, while the English people, in their fight for freedom against autocracy, stopped with the establishment of the supremacy of the law[35] and of Parliament as the sole source of that law,[36] the Americans had to go further and to assert that there was to be a law superior to the Legislature itself and that it was the restraint of this paramount written law that could only save them from the fears of absolutism and autocracy which are ingrained in the human nature itself. The difference between the British and American ways of securing “the great and essential rights of the people” can hardly be better explained than in the words of MADDISON himself—

Here (U.S.A.) they are secured not by laws paramount to prerogative (England) but by Constitutions paramount to laws.

In *Hurtado v California*,[37] it was observed:

> The concessions of Magna Carta were wrung from the King as guarantee against the oppressions and usurpations of his prerogative. It did not enter into the minds of the barons to provide security against their own body or in favour of the commons by limiting the power of Parliament, so that Bills of Attainder, *expost facto laws*… and other arbitrary Acts of legislation which occur so frequently in English history, were never regarded as inconsistent with the law of the land…In this country written Constitutions were deemed essential to protect the rights and liberties of the people against the encroachments of power delegated to their Governments, and the provisions of Magna Carta were incorporated into the Bills of Rights. They were limitations upon all the powers of Government, legislative as well as executive and judicial…

Applied in England only as guards against executive usurpation and tyranny, here they have become bulwarks *also against arbitrary legislation…*[37]

Though couched in a positive form, the purpose of a Bill of Rights is nothing but to impose limitations upon the legislative body in another form.[38]

All limitations on legislative authority, whether they are in the form of a guarantee of individual rights or not, have the same object, *viz.*, the prevention of dictatorship and despotism.[39] In the words of MILLER J. in *Citizens' Savings & Loan Association v Topeka*,[40]:

> It must be conceded that there are such rights in every free government beyond the control of the State. A government which recognised no such rights and which held the lives, the liberty, and the property of its citizens subject at all times to the absolute disposition and unlimited control of even the most democratic depository of power, is after all but a despotism. It is true it is a despotism of the majority, if you choose to call it so, but it is none the less despotism.[40]

(C) *India*. As stated earlier the experience of the founders of the *Indian* Constitution was exactly similar to that of the American Colonists and the reaction was exactly similar to that of the American Colonists and the reaction to that experience was also substantially similar.

There was no such thing[41] as a "fundamental right" in any of the Government of India Acts which were naturally framed according to British ideas about individual rights.

(C) India.

The Indian experience of the application of the Rule of Law in India was not, however, altogether happy and there was a strong feeling that it was not administered with even hands by the foreign rulers in India as in their own land. The "Sons of Liberty" in India had known to what use the flowers of the English democratic system, *viz.*, the sovereignty of Parliament and the Rule of Law, could be put in trampling down the rights of man under an Imperial rule.

As early as 1918, thus, the Indian National Congress at its Bombay session, demanded a Declaration of Rights of the people of India, including equality of Indian before the law, subject to which only the Montague-Chemsford proposals could be accepted by the Congress and demand was reiterated by the Nehru Committee[42] in 1928. The Committee asserted that:

> our first care should be to have our fundamental rights guaranteed in a manner which will not permit their withdrawal under any circumstances.

At that time, the idea was not so much to limit the powers of the Legislature in the *Constitution* of a free country, but to curb the powers of an Imperial Legislature by incorporating certain limitations in a written instrument, as had been done in Ireland, and the example of Ireland was indeed cited in the Nehru Committee's Report in support of the scheme to have a written declaration of individual rights. The Karachi session of the All India Congress, accordingly, declared that any *Constitution* which might be proposed would be acceptable to it only if it contained certain fundamental rights, as formulated by it.

At the Round Table Conference that preceded the making of the Government of India Act 1935, therefore, the Indian leaders pressed for a Bill of Rights in the proposed *Constitution* Act, in order to bind the administration with certain declaration of individual rights. This was, however, rejected by the Simon Commission.

The Joint Parliamentary Committee that followed agreed with the observations as to the value of a Bill of Rights in the form of a dilemma:

> Either the declaration of rights is of so abstract a nature that it has no legal effect of any kind, or its legal effect will be to impose an *embarrassing restriction* on the powers of the legislature and to create a *grave risk* that a large number of laws may be declared invalid by the courts because of inconsistency with one or other of the rights so declared.[43]

These observations were quite natural for Englishmen.

But when the nationalist leaders of India were called upon to frame a *Constitution* after independence really came, it was not possible for them to forget their experience. Naturally, therefore, they preferred to follow the *American view*[44] represented by the famous words of Jefferson.

According to GRANVILLE AUSTIN:

> The Indian desire for civil rights had its roots deep in nineteenth century. It was implicit in the formation of the Indian National Congress in 1885. Indians wanted the same rights and privileges that their British masters employed in India and that Britons had among themselves in England; they wanted an end to the discrimination inherent in a colonial regime. Perhaps, the first explicit demand for fundamental rights appeared in the *Constitution of India* Bill 1895. *Article 16* of Bill laid down a variety of rights including those of free speech, imprisonment only by competent authority and of free State education. A series of Congress resolutions adopted between 1917 and 1919 repeated the demand for civil rights and equality of status with Englishmen. The resolutions called for equal terms and conditions in bearing arms, for a wider application of the system of trial by jury and for rights of citizens "to claim that no less than one-half of jurors should be their own countrymen". A further resolution stated the "emphatic opinion" that Parliament should pass a statute guaranteeing "the Civil Rights of His Majesty's Indian subjects", which would embody provisions establishing equality before the law, a free press, free speech, *etc*. The statute should moreover lay down that political power belonged to Indian people in the same manner as to any other people or nation in the British Empire.
>
> This demand for equality of rights and for self-government exemplifies not only the well-known desire for negative freedom, but also that aspect of positive freedom so perceptively described by SIR ISAIH BERLIN as "desire for the positive freedom of collective self-direction". The "positive" sense of liberty comes to light, wrote BERLIN, "if we try to answer the question, not, "What am I free to do or be", but "By whom am I ruled?" or "Who is to say what I am what I am not to be or do?" The

> demand for this particular aspect of positive liberty and the demand for negative freedom were to come to their logical fulfilment with the attainment of independence and of its corollary, adult suffrage and with the inclusion of fundamental rights in the *Constitution*.[45]

As has been seen at the very outset of the Constituent Assembly, Pandit Nehru declared, in his Objectives Resolution, that the object of the Assembly was to draw up a *Constitution*:

> WHEREIN shall be guaranteed and secured to all the people of India justice, social, economic and political; equality of status, of opportunity, and before the law; freedom of thought, expression, belief, worship, vocation, association and action, subject to law and public morality.

After the various fundamental rights had been enumerated by the Draft Committee, the definition of "State" was inserted in the Part relating to Fundamental Rights in order to ensure that these rights should be binding not only against the administrative authorities but also upon "every authority…which has got the power to make laws."[46]

And thus were incorporated into *our Constitution* elaborate provisions, in twenty-four articles, regarding fundamental rights which were to act as limitations not only upon the Executive but also upon all legislative[47] authorities [*Article 12*], and any law made in contravention of any of the Fundamental rights shall be "void" [*Article 13*]. The fundamental rights in Pt III, thus, shall operate as a limitation on legislative power,[48] as in the *U.S.A.*

We cannot, for a moment, forget this fact in construing the provisions of our *Constitution*; and any application of the English ideas of legislative[49] supremacy might be altogether misleading.[50]

As *our* Supreme Court has observed:[51]

> The *Constitution of India* is a written *Constitution* and though it has adopted many of the principles of the English Parliamentary system, it has not accepted the English doctrine of absolute supremacy of Parliament in matters of legislation. In this respect it has followed the American *Constitution* and other systems modelled on it.[52]

So far as the Indian Parliament is concerned, it is a creature of the *Constitution*. Therefore, the Parliamentary law to be valid must conform in all respects with the *Constitution*. It is for the Courts to decide whether the enactment is constitutional or not and they have the power to declare parliamentary enactment void if it is inconsistent with the provisions of the *Constitution*. The court would refuse to give effect to any unconstitutional law. In fact *Article 13 of the Constitution* prohibits the Parliament or the State legislature to make any law which is violative of the fundamental rights. The Indian *Constitution* has to function within four walls of the *Constitution*. The sovereignty of the Parliament or its supremacy is confined to fields provided by the *Constitution*. The Parliament cannot change or amend the *Constitution* which will affect the basic structure. The doctrine of parliamentary as it obtains in England does not prevail in India, even though India is a parliamentary democracy. In fact Parliamentary democracy in India is declared as basic feature of the *Constitution*.[53] The Supreme Court reiterated that in India, the *Constitution* is supreme and the legislature and executive are all answerable to the *Constitution* and the court is the guardian of the *Constitution*.[54] The entire scheme of the *Constitution* is such that it ensures the sovereignty and integrity of the country as a republic and the democratic way of life by parliamentary institution based on free and fair election.[55] It will be thus correct to say that within permissible limits, the Indian Parliament is as omnipotent as the British

Parliament. If no fetter is to be found in the *Constitution* itself, the Parliament is competent to make a law even if it is contrary to the guarantee given or obligation undertaken by the Government.[56]

The position of the American Congress is also similar to the Indian Parliament.[57]

4. How individual rights are secured under different systems

It should not be supposed that in those countries which have not adopted a Bill of Rights as a limitation upon the sovereignty of its Legislature, there is no protection at all for the rights of the individual. So far as the Executive it are concerned, it has been amply clear by this time that is possible to protect the individual against any tyrannical exercise of its powers by ordinary legislation, if its Legislature is vigilant. The question of constitutional limitation arises only if the individual is to be protected from excesses of the Legislature itself. Before parting with the topic of fundamental rights we should note how different approaches to this problem have been made under different political systems.

5. OTHER CONSTITUTIONS

(A) U.K.

England. The *Constitution* of England is *unwritten*. Hence, there is in England no code of Fundamental Rights as exists in the United States or India. This does not mean, however, that in England there is no recognition of these rights of the individual without which democracy becomes meaningless. The object, in fact, is secured there in a different way.

The foundation of individual rights in England, in short, is negative in the sense that an individual has the right and freedom to take whatever action he likes, so long as he does not violate any rule of the ordinary law of the land. Individual liberty is secured by judicial decisions determining the rights of individuals in particular cases brought before the Courts, which protect the rights by issuing appropriate “remedies.”

The Judiciary is the guardian of individual rights in England as elsewhere; but there is a fundamental difference. While in England the Courts have the fullest power to protect the individual against *executive* tyranny, the Courts are powerless as against *legislative* aggression upon individual rights. In short, there are no fundamental rights binding upon the Legislature in England.

(a) As against the *Executive*,— the Courts are the bulwark of individual liberty today, just as it was in the days of absolute monarchy, though the need for restrictions on individual liberty is pressing under the modern conditions even in a democratic country. As was observed by the Privy Council:

> No member of the Executive can interfere with the liberty or property of a British subject except on the condition that he can support the legality of his action before a Court of Justice.[58]

(b) The English *Legislature*, on the other hand, being theoretically “omnipotent,” there is no law which it cannot change. As has been already said, the individual has rights, but they are founded on the ordinary law of the land; hence, they can be changed by the Parliament like other laws. So there is no right which may be said to be “fundamental” in the proper sense of the term. Of course, there are proclamations of certain individual rights in some constitutional charters and documents like the Magna Carta and the Bill of Rights, but these Charters were merely declaratory of the existing common law, and were intended to be binding upon the Executive and not upon the Parliament.

Owing to the absence of any fetter upon the Legislature, individual rights may, in England, smoothly give way to the interests of the nation whenever the representatives of the people so desire, according to the exigencies of the

situation. At any given time, thus, the rights of the citizen in England are merely the *residue* of freedom left after the restrictions placed on the activity of the citizens by the Legislature are defined.[59]

In the words of the highest English tribunal:

> All the Courts today and not least that House, are as jealous as they have ever been in upholding the liberty of the subject. But that liberty is a liberty confined and controlled by law…It is, in Burke's words, a regulated freedom…In the *constitution* of this country, there are no guaranteed or absolute rights. The safeguard of British liberty is in the good sense of the people and in the system of representative and responsible government which has been evolved.[60]

Another vital consequence of the supremacy of Parliament is that the English Courts have no power of judicial review of legislation at all. They cannot declare any law as unconstitutional on the ground of contravention of any supposed fundamental or natural rights. As early as 1870 the English Courts made this self-imposed restriction upon its powers as against the Legislature:

> Acts of Parliament are laws of the land, and we do not sit as a Court of Appeal from Parliament …If an Act of Parliament has been obtained improperly, it is for the Legislature to correct it by repealing it; but so long as it exists as law, the Courts are bound to enforce it.[61]

Take for instance, the right of an individual against retrospective criminal legislation which is guaranteed as a fundamental right by *Article 1*, sections 9(3) and 10 of the American *Constitution* and *Article 20*(1) of our *Constitution*. In these countries, if the legislature passes a retro-active criminal law, the court will not only strike down such law as unconstitutional, but also set aside any conviction made under such law.[62] Under English *Constitution*, on the other hand, there is no legal bar to the power of the Parliament to enact any law whatsoever and the Parliament is competent to give retrospective effect to any of its laws. BLACKSTONE denounced this method of legislation as "unreasonable". He said: "There is still more unreasonable method which is called making laws "*ex post facto*"." When after an action (indifferent in itself) is committed, the legislature thus for the first time declares it to be a crime and inflicts punishment upon the person who committed it.[63] But, by reason of *Article 7* of European Convention of Human Rights Act applied by Human Rights Act 1998, it is not possible that delegated legislation should retrospectively create new offences or impose additional penalties. But this is not applied generously.[64] A rape committed in 1983 was prosecuted in 1995. The House of Lords held that a sentence heavier than the maximum available in 1983 could not be imposed, but allowed a higher sentence than equivalent in 1983.

It is, therefore, natural to enquire what protects individual liberty against the inroads of the omnipotent Parliament? The answer is— the sagacity of Parliament itself,[65] at the back of which lies the inordinate love for liberty which is cherished by every Englishman, and, what is often called the "political genius" of the English people,— that which enables them to hold the "just balance between power and liberty".[66]

(B) France.

The French *Constitution* can be referred to in the present context only by way of contrast, for, though it is *written*, it seeks to impose no legally enforceable limitations on the omnipotence of its Parliament.

In this respect, the *Constitution* of 1958 differs little from its predecessor— the *Constitution* of the Fourth Republic (1946).

There is no judicial review of legislation and no *Court* can declare any law of the French Parliament to be unconstitutional. The Preamble to the *Constitution* of 1958, like that of 1946, "solemnly affirms" the Declaration of the Rights of Man of 1789, but that Preamble is not enforceable in a Court of law. It has got no more sanction than the Directive Principles included in Pt IV of *our Constitution*. There is a provision in *Article 66* of the 1958 *Constitution* for the protection of individual liberty;

> No one may be arbitrarily detained.
>
> The judicial authority, guardian of individual liberty, shall ensure the respect of this principle *under the conditions stipulated by law.*

But there is no provision for the annulment of a law on the ground that it encroaches upon individual liberty.

Instead of judicial review after a law is enacted, the French *Constitution* provides for its scrutiny *before* promulgation, by an extra-judicial body called the *Constitution* Council, composed of the nominees of the President and the Houses of Parliament and of the former Presidents of the Republic who shall be *ex officio* members. *Article 61* provides that every "organic law" must be submitted to this Council before its promulgation, while in the case of other bills, it is optional with the President of the Republic to make such reference. The declaration of the Council is final and once a bill is declared unconstitutional by this Council, it cannot be promulgated by the President. Certain laws have been characterised by the *Constitution* of the French Republic as "organic laws" and legislation with respect to those subjects can be made only after a scrutiny of their constitutionality by the "Constitutional Council". *Article 46 of the Constitution* says:

> The laws that the *Constitution* characterises as organic shall be passed and amended under the following conditions – (a) Such Bill whether initiated by the Government or member of Parliament shall be submitted to the vote of the notified Chamber of Parliament only at the expiration of a period of fifteen days following the introduction; (b) Such bill shall be passed in the two Chambers successively, with an identical text. Lacking an agreement between the two Chambers, the text may be adopted by the National Assembly on final reading only by an absolute majority of its members; (c) The organic laws relating to the Senate must be passed by an absolute majority of the members in both the Chambers. (d) The organic laws may be promulgated after a declaration by the Constitutional Council on their constitutionality. The declaration of the Council as to constitutionality is final.

Laws other than "organic laws" may be submitted to the Constitutional Council before their promulgation, by the President of the Republic or the Premier or the President of either the Chamber of Parliament, and the Council must give its ruling within the time-limit by the *Constitution* and no law can be promulgated until they are declared as constitutional by the Council. But, while jurisdiction over "organic" laws is compulsory, its jurisdiction over laws other than "organic" depends upon a reference of such law to the Council by the President of the Republic or the President of either Chamber of Parliament or the Premier. Organic laws are those laws which are characterised as such by the *Constitution*.[67]

Individual rights in France, thus, depend upon the sovereign will of the Legislature, as in England.

(C) Australia.

The *Constitution* of Australia being federal, it is the duty of Judiciary to see that the "indissoluble Federal

Commonwealth" which was established by the *Constitution* (Preamble) is not impaired by any encroachment on the part of Commonwealth. "The *Constitution* predicates (*i.e.,* the States) continued existence as independent entities".

The covering of Article V further says that the *Constitution* shall be "binding on courts, judges and people of every State". There are also some substantive provisions which assume the federal nature of constitutional system and their enforceability by the Courts, *e.g.,* mutual immunity of the Commonwealth and the States from taxation (*Article 114*), the distribution of legislative powers (sections 51-52) with predominance of federal law, in case of inconsistency (*Article 109*) and financial relation between the Commonwealth and the States. (*Articles 87*, *93-96*, *99*, *105*).

The judiciary has derived the power of judicial review from the foregoing express provisions of the *Constitution* itself, without having to rely on general principles as in USA. Though in its role of guardianship of federal *constitution*, the High Court and on appeal the Privy Council have in different periodic waves inclined sometimes in favour of State autonomy and sometimes in favour of federal power to cope with national problems, the following broad trends may be discerned: (1) The court will not allow any federal action as would tend to annihilate the States. A corollary from the above proposition is that the Federal Legislature shall not be allowed to so exercise its taxing powers as to impose a special burden upon a State "as a State". In *Melbourne Corp v Commonwealth*,[68] the High Court held :

> The federal power of taxation will not support a law which places a special burden upon the States. They cannot be singled out and taxed as "States" in respect of some exercise of their function. The federal system itself is the foundation of the restraint upon the use of the power to control the States….

(2) The court will not allow the Federal Government to discriminate between the States. (3) A federal law, in order to be valid, must – (a) relate to one or more of the enumerated subjects within the federal power under *section 51 of the Constitution* Act.[69] Which means that it must be a law on the enumerated subject, according to the doctrine of pith and substance; (b) relate to a matter which is "incidental" to an enumerated power. (4) If, however, a subject matter cannot be brought under a federal enumerated power or anything incidental to it, it cannot so operate as to restrict a State power or activity, merely because the State activity might prejudicially affect some activity of federal power. The reason is, "The Australian Union is one of "dual federation" and until the Parliament and the people see fit to change it, a true federation must remain".[70]

The Australian High Court thus acts as a federal court like the American Supreme Court.[71]

(D) U.S.A.

As explained earlier, the fundamental difference in approach to the question of individual rights, between England and the United States, is that while the English were anxious to protect individual rights from the excesses of the Executive and discovered in Parliamentary sovereignty the panacea for executive tyranny, the framers of the American *Constitution* were apprehensive of tyranny not only of the Executive but also of the Legislature, *i.e.*, a body of men who for the time being from the majority in the Legislature.

> It is not to be disguised that the framers of the *Constitution* viewed, with some apprehension, the violent Acts which might grow out of the feelings of the moment, and that the people of the United States in adopting that instrument, have manifested a determination to shield themselves and their property from the effects of those sudden and strong passions to which men are exposed.[72]

So, the American Bill of Rights (contained in the first Ten Amendments of the *Constitution* of U.S.A.) are equally binding upon the Legislature as upon the Executive. The result has been the establishment in the United States of a "judicial" supremacy, as opposed to the "Parliamentary" supremacy in England.[73]

The Courts in the United States are competent to declare an Act of Congress as unconstitutional on the ground of contravention of any provision of the Bill of Rights. On the other hand, the Legislature is incompetent to modify or adjust any of the rights in view of any emergency or danger to the State, that power has been assumed by the judiciary.

In most cases, the Supreme Court has responded to the situation wonderfully. Thus, (a) The same Court which in 1937, had declared the interception of telephonic messages by the Government agents to collect information as unconstitutional[74] by reason of contravention of the Fourth Amendment, upheld it as valid[75] in 1942, under the pressure of a totalitarian war, reversing its earlier decision, (b) The same Court which had during war (1917), upheld the drastic Espionage Act,[76] refused in time of peace (1930), to prohibit by injunction a regular vilification of public officers by a newspaper.[77]

But there is no doctrine of "security of the State in the United States, and the Legislature is powerless to override any individual right on the ground of safety of the "State".[78] It is the Court, in its cold Chamber, to say whether there is a "clear and present danger" to the existence of the social order, so as to justify a curtailment of the individual liberty. The Judiciary, which is proverbially conservative, is thus competent to override the wishes of the people's representatives, as the guardian of the "fundamental" rights".[79] The Court, of course, acknowledges that the Legislature has a power to regulate the exercise of the individual rights in the collective interests under the doctrine of "Police powers'; but the "determination by the Legislature of what constitutes proper exercise of Police powers is not final or conclusive, but is subject to supervision by the Courts".[80]

The Fundamental Rights cannot be amended by the Legislature in the ordinary course of legislation, but can be amended[81] through the special process of amendment of the *Constitution* requiring concurrence of the State Legislature [Article V].

(E) Eire.

The *Constitution* of Eire, 1937, adopts a *via media* between Parliamentary and Judicial Supremacy. In section 15(4), it makes the declaration that any law enacted by Oireachtas (Legislature) which is repugnant to any provision of the *Constitution* shall, to the extent of such repugnancy, be void. But while the limitation upon the Legislature is absolute as regards some of the fundamental rights [*e.g.*, equality before the law, section 40(1); abolition of titles, section 40(2)], the guarantees of liberties contained in section 40(6) (*i.e.*, freedom of expression, of assembly, of association) are all subject to regulation and control by the Legislature, of course, within certain limits and for particular purpose. Obviously, such regulation is called for in the "common good" [section 43(2)(II)] but "reasonableness" is not required to be a condition of such regulation.

The Courts are, therefore, slow to interfere with such regulations under any doctrine of "judicial review" as the United States,—substituting their own notions about the need of such regulation.[82] Apart from such regulation, however, the Legislature has no power to modify or abolish the declaration of fundamental rights in the *Constitution*. That can be done only by a constitutional amendment, requiring a referendum to the people (section 46).

In some earlier cases,[83] the Irish Supreme Court acknowledged that the harmonization of individual right within the interests of the community was a matter within the power of legislature, not the courts. But in later cases, the court has taken bolder steps towards judicial review. It was held:

> The administration of justice is, under the *Constitution*, committed solely to the judiciary. The proper exercise of the function of the three powers of Government set up under the *Constitution* is in public interest. There may be occasions when the

different aspects of public interest may pull in contrary directions. If the conflict arises during the exercise of judicial power, then it is the judicial power which will decide which public interest shall prevail.[84]

In another case, the court struck down a law imposing restrictions on the right to property on the ground that it was "unjust" because it conferred unbridled power.[85] In that case, the court laid down that it has not only the power, but it is also the "duty" of the court to invalidate a law which is repugnant to the *Constitution*. Any law which takes away the power of judicial review or the jurisdiction to determine the constitutionality of law will itself be unconstitutional."[86]

(F) Japan.

The Japanese *Constitution* (1946) guarantees fundamental rights in over 25 Articles and the declarations follow the American model more closely that of *Eire* and contain some provisions[87] which are not to be found also in *our Constitution*. The Supreme Court has the power to determine the constitutionality not only of legislative but also of executive acts (*Article 82*) and the fundamental rights are declared inviolable (*Article 11*).

(G) West Germany.

The West German *Constitution* of 1949 has a full-fledged Bill of Rights. Pt I of the *Constitution* (*Articles 1-19*) enumerates and guarantees various "basic rights", to protect which judicial review has been expressly conferred on the courts by the *Constitution*. Thus, *Article 1*(3) says that these basic rights "shall bind the Legislature, the executive and the judiciary'; *Article 19*(4) further provides"Should any person's right be violated by public authority, recourse to the court shall be open to him", and *Articles 99-100*, dealing with the jurisdiction to pronounce upon the unconstitutionality of laws.

Though the *Constitution* permits restrictions upon these basic rights to be imposed by the Legislature enacting laws having a "general" application, in no case shall restriction infringe "a basic right…in its essential content" [*Articles 19*(1)-(2)]. On the other hand, the Federal Constitutional Court has been given the power to order a "forfeiture" of some of the freedoms in case an individual is found to have "abused" his freedom (*Article 18*).

The power of judicial review to enforce the fundamental rights may be said to have been vigorously exercised by the federal Constitutional Court to annual laws on the ground, for instance, of violation of—

(i) The right to equality;[88]

(ii) Freedom of the press.[89]

(H) Switzerland

Switzerland offers an instance of a *Constitution* having no separate Bill of Rights but yet having declarations of certain individual rights in scattered provisions of the *Constitution*, *e.g.*—

(a) Right to equality before the law (*Article 44*);

(b) Right not to be expelled from the country (*Article 44*);

(c) Right to settle in any part of the country (*Article 45*);

(d) Liberty of conscience and creed (*Article 49*);

(e) Right to free exercise of religion (*Article 50*);

(f) Right to marry (*Article 54*);

(g) Liberty of the press (*Article 55*);

(h) Freedom of association (*Article 56*);

(i) Right of petition (*Article 57*).

While some of these declarations are absolute, others reserve a power to the Legislature to "take measures for the prevention of abuses" (*e.g.*, *Articles 55*, *56*). The various Cantonal Constitutions also guarantee some individual rights.

The peculiarity of the system of the individual rights in Switzerland is that judicial review of legislation is available only against Cantonal laws, but not against federal laws. Because of the aforesaid guarantees of individual rights and the provision in *Article 113*.3, the Federal Tribunal (*i.e.*, the Supreme Court of Switzerland) has jurisdiction to decide "complaints of violation of the constitutional rights of citizens",[90] but para 3 of that Article enjoins the Tribunal to "administer the laws passed by the Federal Assembly. The protection against arbitrary federal laws, thus, is not before the Courts but in the hands of the people themselves, through the referendum without which major law can be enacted (*Article 89*).

(I) Canada

A notable modern example of a country adopting a Bill of Rights without a full-fledged judicial review is that of *Canada*.

There were no fundamental rights guaranteed by the Canadian *Constitution* Act, *i.e.*, the British North America Act 1867. Instead of incorporating a Bill of Rights in that Act by its amendment, the Canadian Parliament, by an ordinary statute of 1960 (the Canadian Bill of Rights), declared "the human rights and fundamental freedoms" which "have existed and shall continue to exist" in Canada. But, as section 2 of this Bill of Rights itself says, the only effect of the solemn declaration is that Acts passed by the parliament of Canada "shall be *so construed and applied* as not to abrogate, abridge or infringe…any of the rights or freedom herein recognized and declared".

It is to be noted, however that the Bill of Rights of 1960 is not a part of the Canadian *Constitution* and, being a federal statute, does not bind a Province, and may itself be repealed by another federal statute. Its only efficacy is that Canadian Judges, in construing federal statutes will attempt to so interpret the statutes as not to be inconsistent with the individual rights so codified. The same thing would be done by an English Judge without even a specific enumeration of individual rights.[91] But that does not serve the purpose of judicial review under which an affected citizen may have the offending statute annulled, if so reconciliation between the statute as properly interpreted and the *Constitution* be possible. Even this interpretative function of the Bill of Rights may be taken away by the offending statute itself, by an express declaration in that statute "that it shall operate notwithstanding the Canadian Bill of Rights".

Naturally, when the Bill of Rights first came for enforcement before the Canadian Supreme Court, the majority held that there was nothing in the Bill of Rights to confer upon the judiciary the power to invalidate a statute if it contravened the Bill of Rights.[92]

In 1970, however, RITCHIE J. who was in the majority in the earlier case,[92] turned round and formed the majority to hold that section 2 of the Bill of Rights authorises the Court *to refuse to apply* a statute which infringes any of the rights enumerated in the Bill of Rights, unless, of course the Court's jurisdiction is taken away by an exclusionary clause in the statute.

The decision in this case[1] appears to have been followed in subsequent cases.

The Canadian Supreme Court thus introduced judicial review to enforce a statutory Bill of Rights to strike down another statute duly enacted by the Legislature; by construing an interpretative statute as a limitation upon legislative power.

Notwithstanding the decision in the *Drybones case*,[2] however, wavering in the Supreme Court continued in the way of establishing full-fledged judicial review.[3]

The International Covenant on Civil and Political Rights, adopted by the U.N. Assembly in 1966 came into effect in March, 1970. In May, 1976, Canada became a part to the Covenant and its Optional Protocol.[4]

Canadian Human Rights Act, 1977.

Canada then enacted the Canadian Human Rights Act 1977.[5] This was, again, an ordinary statute, so that the validity of its provisions could be challenged if they were contrary to the Bill of Rights Act 1960 (or later, the Charter of Rights 1982).[6]

Charter of Rights, 1982.

In 1982, Canada adopted the Canadian Charter of Rights and Freedoms and incorporated it as Pt I of the Canada Act, 1982,[7] which was a *Constitution* Act enacted by the British Parliament, by way of amending the British North America Act 1867.

After the adoption of the Canadian Charter of Rights and Freedoms embodied in the Canada Act 1982, there was for some time a judicial debate as to (i) whether the Charter was to be interpreted in the same way as the Bill of Rights,1960; and (ii) if not, how far it would serve as a constitutional guarantee of human rights against the Legislature.[8]

Eventually, in 1984, the Canadian Supreme Court has established judicial review founded on the Charter,[9] on the ground that it is a constitutional document as distinguished from an ordinary statute, and that by reason of section 52(1) of the Canada Act 1982, any law inconsistent with the Charter would be void, unless saved by section 1 which permits of “reasonable limits”.[10] Decisions under the Bill of Rights 1960, therefore, are no binding authority for interpretation of the Charter.[10] The Charter controls the Federal and Provincial Legislatures, as well as pre-existing common law.[11] In view of the express provision contained in section 52(1), it is not only the power, but also the duty of court to declare an unconstitutional law to be of no force or effect.[12] But the Charter of Rights though operates as a limitation on the legislature, is subject to another provision (section 33) which has been described as an “unfortunate provision”.

It stands in the way of the limited government and judicial review attaining the same level as in the USA. It is said that the provision in section 33 is a retrograde step. As per the said provision, it enables the legislature itself to take out a particular Act passed by it from the limitation by the Fundamental Rights enumerated in sections 7-15, by simply making a declaration of such immunity in that Act. The declaration to this effect would operate for five years, but the period may be extended by making successive declarations. Even though such a declaration makes the statute immune from challenge for the period, the question whether such declaration is “reasonable” can be considered. If the court holds that the declaration made in a particular statute was not within a “reasonable” limit which could be “demonstrably justified in a free and democratic society”, the court may strike down the particular Act as violating the valuable charter right notwithstanding the declaration made in the statute.

Being a constitutional instrument which is “the supreme law of Canada” (section 52), it is to be interpreted, in the main, in a manner similar to the interpretation of the American *Constitution*,[13] that is, it should receive a generous interpretation.[14]

Since a law inconsistent with the *Constitution* shall be of no effect, it would be open to a person aggrieved by such inconsistent law not only to make an application under section 24(1) to have the law to be declared inoperative, but

also to defend a criminal charge brought against him on the basis of such law.[10] The doctrine of judicial review is thus firmly established.[14]

It should be noted further that, though the Charter of 1982 is a more effective instrument for the protection of human rights, the authors of the Charter have not repealed the Bill of Rights of 1960 but have retained it by the provision in section 26 of the Charter. The Supreme Court has held[15] that the Bill of Rights is still useful not only for deciding pre-Charter cases[16] but also for post-Charter cases where the Bill of Rights contains provisions not to be found in the Charter, or where the cumulative operation of the two instruments might produce better protection of the rights and freedoms, since the text of the two instruments is not identical.[17]In Canada, natural justice or procedural fairness has been acknowledged as an ingredient of "fundamental justice", which is guaranteed under section 7.[18]

(J) *Nepal*. Following the model of the Indian *Constitution*, the *Constitution* of Nepal (1990) guarantees (*Articles 11-23*) fundamental rights and empowers the Supreme Court to issue of prerogative writs to enforce the fundamental rights [*Articles 88*(2)].

(K) *Bangladesh*. The Bangladesh *Constitution* of 1972 (Pt III) guarantees fundamental rights and also guarantees the right to move the Supreme Court [*Article 102*(1)] for the enforcement of the fundamental rights (*Article 44*).

6. INDIA

6.1 Scheme of Pt III

This Part of *our Constitution* relating to Fundamental Rights is more elaborate than the Bill of Rights contained in any other existing *Constitution* of importance and covers a wide range of topics. The width of the subject has been primarily due to the special problems of religion, culture and social condition of such a huge population of heterogeneous elements.

The Indian *Constitution* follows the American model in adopting guarantees of Fundamental Rights in the *Constitution* and providing for their enforcement by the Courts. But the Indian plan differs from the American on certain points:

6.1.1 American Bill of Rights general in terms; Indian more specific and detailed.

(a) Instead of drafting the rights in general terms and leaving them to be interpreted and applied by the courts, with no obvious restraints upon the scope of judicial review, the Indian *Constitution* makes the declaration of the rights more specific and detailed and also embodies the limitations or the conditions subject to which the rights may operate, thus narrowing down the scope for judicial review. According to learned author H M SEERVAI a comparison of the US Bill of Rights (the first ten amendments) and Amendments 13 and 14 with the Chapter of Fundamental Rights in our *Constitution* shows that both in the nature and extent of the rights guaranteed and in the procedure for vindicating them, the US *Constitution* on the whole goes further. It has become necessary to say this because it seems surprising that anyone can compare fundamental rights in the US and the Indian *Constitution* without realising that those rights are as fundamental in America as they are in India and that on the whole the American Bill of Rights "goes further" and contains no reservation for preventive detention.[19]

The *American* Supreme Court could spin out a world of ideas because the *Constitution* itself used general terms,[20] such as "liberty'[21] which, when unqualified, is capable of diverse meanings. The use of such general terms in the *Constitution* was utilised by the Court in interpreting and amplifying them for the purpose of applying them to particular occasions.

Since the *Constitution* of *India* more elaborately deals with particular situations and circumscribes the ambit of general expressions by qualifications or limitations, the scope for any amplification of the text of the *Constitution* is, of course, narrower.

Nevertheless, it is not wholly correct to say that judicial review has thrived in the *U.S.A.* because of the use in *Constitution* of broad and general expressions while we have in the Indian *Constitution* precise expressions which

are not capable of such judicial jugglery. In fact, there was discussion on this point in the Constituent Assembly. GRANVILLE AUSTIN has said:

> In the Karachi Resolution, for example, the right to free speech was not to contravene law and morality. A K AYYAR explained to the Rights Sub-Committee that the US *Constitution* laid down civil rights in a general fashion and the scope of the rights has been narrowed and expanded by judgments of Supreme Court. Later Constitutions, particularly those drafted after World War I, attempted to expand the rights and to define them more precisely with proviso by compendiously seeking to incorporate the effects of the American decision.[22]

When the provisos to *Article 19* of the Indian *Constitution* were being discussed, many members were against incorporating the provisos. In reply to the criticism DR AMBEDKAR gave the classic defence to the provisos. He said that the rights of American citizens are not absolute. He further said: “In support of every exception to the Fundamental Rights set out in the Draft *Constitution*, one can refer to at least one judgment of US Supreme Court.” DR AMBEDKAR said that the purpose of proviso was to prevent endless litigation and the Supreme Court having to rescue the Parliament. The proviso permits the State “directly to impose limitation on the Fundamental Rights. There is no difference in the result.” Finally the word “reasonable” was inserted in the proviso before the word “restriction” which was accepted. Learned author GRANVILLE AUSTIN says:

> Liberty had scored a triumph over bureaucracy’s desire for maximum security. Thus the *Constitution* placed a major restriction on the scope of legislative competence, for, the judges may review the “reasonableness of restriction” placed on the rights and thus have “*mutatis mutandis*” the same power in relation to *Article 19* (*Article 13* of the Draft *Constitution*) which American judges enjoy under due process of law clause. The word “reasonable” was not inserted initially in so far as the fundamental right in the case of freedom of speech and expression. But the same was inserted in the proviso by First Amendment to the *Constitution*. The word “reasonable” was inserted without the least reference to the “doctrine of due process” which was inserted at the instance of a private member THAKUR DAS BHARGAVA who argued that the decision of legislature as to what was “reasonable restriction” should not be final and that it would not be proper to leave the question to the legislature and executive.[23]

When the expression “reasonable restriction” came for interpretation, the Supreme Court went on applying one facet after another of the doctrine of due process, avoiding any mention of that expression the entire time. In some of them, the court has explicitly said that “due process” has not been adopted in *Article 19*[24] and also that though the test of “reasonableness” might coincide with that for judging “due process”, it must not be assumed that these are identical.

In *Comparative Constitutional Law*,[25] the learned author says:

> The question is not whether each one of the plethora of American decisions on “due process” can be imported under *Articles 19*(2)-(6), but whether the concept of “due process” has been resorted to by our Supreme Court in interpreting “reasonableness”. The answer must positively be in the affirmative, if we take the sum total of all the decisions of our Supreme Court on “reasonableness” under *Article 19*. It cannot be overlooked that the test of “vagueness” for invalidating a restrictive law as unreasonable which had been rejected in 1969.[26] The very proposition that “reasonableness” includes both “substantive” and “procedural reasonableness” shadows the concept of “substantive and procedural due process” while excessiveness of restriction violates substantive due process, the denial of opportunity to be heard violates procedural due process.

I shall show how the word “reasonable” has been utilised by our Supreme Court to import the best part of the principles derived in the United States from the expression “due process’; how the word “reasonable” which was introduced by the makers of our Constitution in Article 19 has been projected by our Supreme Court into other Articles of the Constitution to lay down that “authority of” or “established by” law means “reasonable” law; how, notwithstanding the cramping adjective “personal”, the word “liberty” in Article 21 has come to comprehend more than what was probably envisaged by the fathers of our Constitution.[27]

Thus, the expectation of the makers of the Constitution that if vague expressions such as “due process” of the American Constitution were imported into our Constitution, our judiciary might assume the role of a “super-Legislature’[28] like the American Supreme Court, has been partially belied by our Supreme Court. Catching hold of the only indefinite expression “reasonable” in Article 19, as I have just said, it has instilled judicial review into the entire realm of legislation having any impact on fundamental rights.

Article 21 has not used the word “reasonable” anywhere. The Constituent Assembly Debates show that the makers of our Constitution expressly sought to exclude “due process”. It was in this context, the Supreme Court in *A.K. Gopalan v State of Madras,*[29] flatly denied the possibility of admitting into Article 21 any ingredient of American “due process” or even the “reasonableness” concept of Article 19 to our Constitution itself – to arrive at the proposition that whatever was laid down by the legislature in a penal law would satisfy Article 21 and the court could not intervene even where the procedure laid down was arbitrary, harsh, unreasonable, archaic or odious.[30]

In *Cooper v UOI*,[31] the decision in *A.K. Gopalan’s case* was overruled in which it was said that Articles 19 and 21 are watertight compartments. But, it was held that the condition of “reasonableness” in Article 19(1)(d) could be imported to Article 21 only if the other part of the majority decision in *Gopalan’s case* was demolished, namely, the scope of freedom of movement in Article 19(1)(d) was limited to territorial import conveyed by the words “throughout the territory of India”.

Ultimately the court recognized the concept of “due process” clause in *Sunil v Delhi Admn*.[32] The court held:

> True our Constitution has no “due process” clause or the VIII Amendment, but in this branch of law after *Cooper*[33] and *Maneka Gandhi*[34] the consequences are the same. For, what is punitively outrageous, scandalising, unusual or cruel and rehabilitatingly counter-productive is unarguably unreasonable and arbitrary and is shot down by Articles 14 and 19 and if inflicted with procedural unfairness falls foul of Article 21.[35]

In *Maneka Gandhi’s case* (*supra*), KRISHNA IYER J. said that “procedure” means not formal procedure, law is reasonable law and not an enacted piece and this makes the words “procedure established by law” by and large synonymous with the “procedural due process”. This interpretation makes right to be heard a component part of natural justice. After *Maneka Gandhi’s case,* Article 21 has been on its way to emerge as Indian version of the American concept of due process. In fact, the very words “due process” was used by the Supreme Court to invalidate a statute. The Arms Act provided that in the use of a firm arm, if it causes death to a person, the accused shall be punished with death. It was held that law is neither fair nor reasonable and falls foul of “due process test”. In another case, the court held that delay to pass orders to sanction prosecution in corruption cases is not in consonance with the “due process” of law.[36]

(b) Another point of contrast is that the Constitution of the *U.S.A.*, being difficult to amend, the task of adapting the Constitution and the Bill of Rights to the newer problems arising over the centuries has had to be taken over by the judiciary.

The same cannot be said of the *Constitution of India*, which, while it has just crossed its twentieth anniversary, is being amended more than once a year on the average to keep it in conformity with the change in circumstances.[37] In this country, therefore, the gap between the range of foresight of the makers of the *Constitution* and the facts and circumstances for the time being to which it requires to be applied by the Courts in a particular case is obviously narrower. In view of the fact that the *Constitution* is quite a recent one, the changes of the courts being called upon to apply the *Constitution* to circumstances not thought of by the makers of our *Constitution* must necessarily be much fewer than under ancient Constitutions such as that of the U.S.A.[38] or even of Australia.[39]

(c) Above all, the amending power under the Indian *Constitution* has been placed in the hands of the Legislature itself (*Article 368*). In the American *Constitution*, though the Legislature may have a part in initiating an amendment of the *Constitution*, the ultimate function is to be exercised by a different body, *i.e.*, a convention (Article V).

But under *Article 368* of the Indian *Constitution*, it is the Legislature which exercises the amending power by a process which simulates the legislative process in every particular, excepting that a special majority is required to pass a *Constitution* Amendment Bill and that under clause (2) of that Article, as amended in 1971, it has been made obligatory for the President to give his assent to the Bill on presentation to him after its passage. Even the assent of the State Legislatures is not necessary except in regard to the amendment of certain federal provisions as specified in the proviso. Barring those provisions, the rest of the *Constitution* may be amended by the Union Parliament, sitting as a constituent body.[40] But this view is not fully correct in view of the decision in *Kesavananda Bharat v State of Kerala*,[41] where the court declared that the Parliament is only a creature of the *Constitution* as it cannot amount to the basic features of the *Constitution*. In views this decision even a constitutional amendment can be strike down by court. As a result of this decision, this court can strike down an *amending Act* not only on procedural ground, but also as the substantive ground as violating of the basic features.[42]

6.1.2 The Indian Judiciary, as the guardian of fundamental rights, has to work under a shifting canopy.

The Indian Judiciary is, therefore, a guardian of the fundamental rights only in a limited sense; they have to work under a shifting canopy. Pt III, or for the matter of that any other part of the *Constitution*, operates as a limitation upon the Legislature only so long as the relevant part of the *Constitution* itself is not amended by the Parliament, in accordance with the procedure laid down in *Article 368*. Like Canute, they may say “this far and no farther”, but the wave of Parliamentary majority may sweep them off their feet as and when it likes to bring a *Constitution* Amendment Bill.

As to whether and how far a *Constitution* Amendment Act is itself subject to judicial review raises different issues which would be discussed under *Article 368*, *post*.[40]

(d) There is one point on which the Indian *Constitution* is in advance of the American *Constitution*, namely, that the nullity of an unconstitutional law does not rest, in India, upon judicial innovation, but upon the express term of *Article 13*(2), which uses the word “void”, and, in view of *Article 141 of the Constitution*, a declaration of unconstitutionality of our Supreme Court operates as a judgement *in rem*, binding all future parties and courts, and not merely the parties to the case where the unconstitutionality may be declared.[43] Because of the express terms of *Article 13*(2), there is less scope in India for any speculation as to how far the effects of the declaration of unconstitutionality would go.[44] The effect of declaration is that no one is bound to obey it and courts cannot enforce it. The actual effect of declaration is that the court’s decision does not change a valid statute into a void one; when the statute has already been held as void. The court merely discovers and announces its invalidity. The role of court is that of a jeweller, who after examining a supposed diamond which was considered to be a diamond finds out and pronounces that it is really a paste. He does not make it paste, he merely finds out that it is.[45] If a statute contravenes the provisions of the *Constitution*, it is void because the *Constitution* says so. A statute which is void within the meaning of *Article 13*(2), is non-existent for all purposes, including repeal, amendment or enforceability.[46]

(e) Another point of improvement made by the *Constitution of India* is that the Fundamental Rights are binding upon the Union and the State alike (*Article 12*). As has been pointed out the Bill of Rights in the American *Constitution* is addressed to the Federal Legislature alone, and it has required a number of decisions of the Supreme Court to extend them to the States as well.

General

6.1.1 Doctrine of ‘basic features’.

(f) Another innovation, which has been introduced by the Indian Judiciary is the doctrine of “basic features”.

While under the *American* Constitution, no provision is exempted from the process of amendment, excepting the two which are specifically excluded by the latter part of Article V[47] a Full Bench of the Indian Supreme Court has held that there are certain “basic” or essential provisions or principles underlying the *Constitution of India* which cannot be awarded through the process of amendment provided by *Article 368*, even though *Article 368* itself does not say so,[48] and that, accordingly, an Act amending the *Constitution* is open to challenge on the ground of damage to the “basic structure” of the *Constitution*.[49]

It was held that though the Parliament has power to amend the provision of Pt III so as to abridge or take away fundamental rights, it is subject to the doctrine of basic structure. Merely because a law is included in the Nineth Schedule, the same is not immune from judicial review (*i.e.,* laws included in Nineth Schedule after 24 April 1973), if such law destroy or damage the basic structure of the fundamental rights or rights taken away or abrogated pertains or pertain to the basic structure or if the law infringes the essence of any such fundamental right. The validity of such laws can be adjudged by applying the direct impact and effect test, *i.e.*, the “right test” which means the form of an amendment is not the relevant factor, but the consequences thereof would be the determination factor.[50]

6.2 Extent of application and classification of Fundamental Rights

The Fundamental Rights includes in Pt III of our *Constitution* may be classified according to the persons in whose favour and against whom they are available. Thus,

6.2.1 Some rights available to citizens only, while others extend to all persons.

(a) While some of the provisions relating to Fundamental Rights are limited to citizens, such as *Articles 15*, *16*, *19*, *29*, the rest of the provisions of this Part are applicable to citizens and aliens alike,[51] to all *persons* residing within the territory of India for the time being and subject to its jurisdiction,[52] *e.g.* the protection of life and personal liberty (*Article 21*); educational rights of minorities [*Article 30*].[53] The rights under *Articles 19*(1)(d) and (e) of the *Constitution* will not be available to foreigners. Such rights are available only to citizens.[54] Fundamental Rights are available to all citizens of the country, but only a few of them are available to “persons”. *Article 14 of the Constitution* which guarantees equality before law or equal protection of laws within the territory of India is applicable to “persons” which would include citizens of the country and non-citizens also.[55] The right under *Article 21*, *i.e.,* life and liberty is available to all persons. Foreigners have a right to live so long as they are in India with human dignity and obligation of State to protect life and liberty of citizens, and non-citizens are protected under *Article 21*.[56] But a foreigner who is not a citizen cannot enforce a right under *Article 19* by invoking *Article 32* (which is also a fundamental right) but *Article 21* can be invoked.[57]

6.2.2 Contrary to American precedents, some rights in Pt III of our Constitution relate to private action.

(b) Another classification of the Fundamental Rights of *our Constitution* is that while same of the rights impose limitations upon State action [*e.g.*, *Articles 14*; 15(1); 16; 18(1); 19; 20-22; 31], there are other provisions which are limitations upon the freedom of action of private individuals as well [*e.g.*, *Articles 15*(2); 17; 18(2); 23(1); 24]. It has been stated earlier that according to the philosophy of fundamental rights, they are available only against “State action”. But since Pt III of our *Constitution* was the resultant of various sentiments, this general principle was not borne in mind by the makers of our *Constitution*. The result has been to introduce some anomalies into Pt III:

(i) The distinction between the two classes of rights lies in this, that in the case of rights guaranteed against State action, there cannot be any *constitutional remedy*[58] for breach of such right by a private individual, unsupported by State action.[59] In such a case, the proper remedy is punishment of the offender under the ordinary law. As the American Supreme Court has explained[60]:

> …civil rights, such as are guaranteed by the *Constitution* against State aggression, cannot be impaired by the wrongful acts

> of individuals, unsupported by State authority in the shape of laws, customs, or judicial or executive proceedings. The wrongful act of an individual, unsupported by any such authority, is simply a *private wrong*, or a *crime* of that individual, an invasion of the rights of the injured party, it is true, whether they affect his person, his property, or his reputation; but if not sanctioned in some way by the State, or not done under State authority, his rights remain in full force, and may presumably be vindicated by resort to the laws of the State for redress. An individual cannot deprive a man of his right to vote to hold property…; he may, by force or fraud, interfere with the enjoyment of the right in a particular case; he may commit an assault against the person, or commit murder; or use ruffian violence at the polls, or slander the good name of a fellow-citizen; but unless protected in these wrongful acts by some shield of state law or State authority, he cannot *destroy or injure the right*, he will only render himself amenable to satisfaction or punishment…

Following the *Civil Rights case* (*supra*), it was held that the principle has become embedded in the American Constitutional Law that the action inhibited by the Fourteenth Amendment is only such action as may fairly be said to be that of the State. That Amendment creates no shield against merely private conduct however discriminatory or wrongful. Therefore, the restrictive agreement standing alone cannot be regarded as violative of any right guaranteed under the Fourteenth Amendment of the *Constitution*.[61]

A discriminatory private action becomes discriminatory State action if the State takes any action allowing such discrimination *i.e.,* when the State fails to prohibit such discrimination.[62] But in a later decision, the court was not willing to take such an extreme step.[63]

State action can result from State involvement in or encouragement of private discrimination. The case in *Burton v Wilmington Parking Authority*,[64] involved a parking facility owned and operated by an agency of the State of Delaware. To help finance the building, the agency leased some of its space to commercial operation, one of which was a segregated restaurant. Majority of Court held that because of its location in and relationship to the parking facility the restaurant had lost to “purely private character”. The relationship between restaurant and parking facility was mutually beneficial – the former provided the latter with revenue and the latter provided the former with customers. By failing to require the restaurant to serve all customers, the State in the words of court had “made itself a party” to the “refusal of service” and had elected to place its power, property and prestige behind the admitted discrimination.[65]

In the same strain has *our* Supreme Court held that the rights guaranteed by *Articles 19*(1), 21 of *our Constitution* are available only against State action.[66] Violation of such rights by individuals is not within the purview of these Articles.

It is a misconception to think that constitutional safeguards are directed against individuals. They are as a rule directed against State and its organs. Protection against violation of rights by individuals must be sought in the ordinary law.[67] Normally a writ of *mandamus* does not issue to or an order in the nature of *mandamus* is not made against a private individual. Such an order is made against a person directing him to do some particular thing specified in the order, which appertains to his office and is in the nature of public duty.[68]

Under *Article 226 of the Constitution*, the High Courts are conferred with powers to issue writs for enforcement of fundamental rights as well as nonfundamental rights. It could be issued against “any person or authority”, and is not confined to statutory authorities and instrumentalities of State. They may cover any other person or body performing public duty. The form of the body concerned is not very much relevant. What is relevant in the nature of duty imposed on the body. The duty must be judged in the light of positive obligation owned by the person or authority to the affected party, no matter by what means the duty is imposed. If a positive obligation exists *mandamus* cannot be denied.[69] It is only when a person or body performs a public duty or discharges a public duty a writ could be issued against such a person.[70] When an authority has to perform a public function, or public duty, if there is a failure, a writ petition is maintainable under *Article 226 of the Constitution*, even though the authority is not a State or an instrumentality of the State.[71]

Neither *Article 19*(1) [nor *Article 31*(1)]…was intended to prevent wrongful individual acts or to provide protection against private conduct…The language and structure of *Article 19* and its setting in Pt III of the *Constitution* clearly show that the Article was intended to protect those freedoms against State action other than in the legitimate exercise of its power to regulate private rights in the public interest. Violation of rights of property by individuals is not within the purview of Article…[72]

H M SEERVAI has said after referring to *Shamsadan's case* (*supra*):

> …it is submitted that this proposition (*i.e.,* rights are available only against the State as defined in *Article 12*) must be qualified by saying that the right conferred by *Articles 15*(2), 17, 23(1) and 24 are available not only against the State, but also against other bodies and persons as well….[73]

(ii) *Our Constitution*-makers, however, refused to accept the extreme view taken in the Civil Rights Cases to the effect that the violation of individual rights by private persons was the proper subject to municipal legislation and could not come within the scope of the organic law. In that case, an Act of Congress enjoining equal accommodation and other facilities at inns, and other public places was invalidated on the ground that it was not authorised by the Fourteenth Amendment or any other constitutional provision. But *Article 15*(2) of our *Constitution* guarantees this very right against the State as well as individual action. *Articles 17*, *23*(1) and 24, again, refer to social abuses like untouchability and forced labour or exploitation of children, and the prohibitions are not directed exclusively against the State.

It is to be noted, however, that as regards these prohibitions which are addressed against individual action, it has not yet been tested in *our* Courts whether a constitutional remedy would be available in case of a violation of any such prohibition by a private individual. SIR IVOR JENNINGS[74] hazarded that opinion that even in such cases the constitutional remedy under *Article 32* would be available[75] :

> The rule in *Article 15*(2)…imposes a duty on owners and occupiers and vests a corresponding right in a citizen, a right *in rem*, which if broken, creates a right in *personam*, enforceable by legal proceedings under *Article 32*.

The answer, however, would not be as simple as that. So far as *Articles 17* and *23*(1) are concerned; the answer suggested is in the negative, for these Articles are not self-executing. They provide that the contravention of those provisions shall be offences *punishable by law*, which means a law made by Parliament in exercise of the power conferred by *Article 35*(ii). Hence, in the case of violation of these two provisions, it is clear that the remedy will be statutory, *viz.*, prosecution, and not constitutional.

The absence of any sanction in *Article 15*(2) similar to that in *Articles 17* and *23*(1) may be a drafting lacuna, but as things stand, it is painful to think that *Article 15*(2) is not self-executing, that is to say, that the provision will remain nugatory unless legislation is made in order to make it operative. It is to be noted that the Untouchability (Offences) Act 1955,[76] has made a violation of *Article 15*(2) punishable only if exclusion from such public places by a private individual is committed on the ground of untouchability. What happens if a citizen is excluded, on the ground of his race or caste or sex, from a task dedicated to the public by another private person. There is no remedy at present even under the ordinary law unless a case founded on customary user can be brought under the common law. But an application under *Article 32* would hardly succeed because so far the Supreme Court has held that remedy is available only against State action and not against private individuals.[77] In fact the position of clause (2) of *Article 15*

is patently anomalous, because while clauses (1), (3) and (4) of this Article relate to State action, clause (2), standing in between these clauses is patently addressed to private individuals.[78]

In the *U.S.A.*, the problem of racial exclusion, in particular, has been dealt with by legislation *e.g.*, the Civil Rights Act 1960 (enjoining equal access to public accommodations); the Civil Rights Act 1968 (prohibiting discrimination in housing).

It is high time that legislation in this behalf is undertaken in India. The fact that *Article 15*(2) is not mentioned in *Article 35* need not mean lack of legislative power to enact such legislation. Whether or not there is any specific entry in the Lists in the 7th Schedule, a substantive prohibition embodied in an Article of the *Constitution* must lead to an implied legislative power to implement it.[79]

(c) From another standpoint, it may be pointed out that while most of the fundamental rights guaranteed by *our Constitution* belong to a person *qua* individual (*e.g.*, *Article 19*) there are some others which belong only to a section of the people and to an individual only as a member of that section or community (*e.g.*, *Articles 26*; 29(1);[80] 30). These latter are intended for the protection of minorities and other groups.

(d) From the formal standpoint, it may be stated that while some of the fundamental rights in *our Constitution* are couched in the negative form of a prohibition upon the State,[81] *e.g.*, *Article 14*— "The State shall not deny…equality before the law or equal protection of the laws…'; *Article 15*(1)— "The State shall not discriminate…'; *Article 18*'No title…shall be conferred by the State…'; there are others which are couched in a positive form of rights of citizens[82] which it would be the duty of the State to protect, *e.g.*, *Article 16*(1)— "There shall be equality of opportunity for all citizens…'; *Article 19*(1)— "All citizens shall have the right…".

In the ultimate analysis, however, both kinds of fundamental rights operate as limitations upon the State, and at the same time, give rise to a right in favour of some or all individuals, *e.g.*, the right not to be discriminated against; the right not to be treated as an unequal before law.

There is, however, no clear-cut division between the two groups of provisions and many of the rights may fall under either group. But there is an important distinction between the two classes of provisions. The provisions which are strictly in the nature of constitutional limitations [*e.g.*, *Article 15*(1)] are binding upon the State without any exception and any act of the State (legislative or executive) which contravenes any of these provisions would be altogether void, to the extent of such contravention [*Article 13*(2)]. On the other hand, the provisions in the nature of individual rights are subject to regulation by the State itself within certain prescribed limits, and if such restrictions made by the State are within those limits [*e.g.*, *Article 19*(2)-(6)], they cannot be held to be void on account of being in contravention of the constitutional guarantee of the rights in question. The guarantees, in short, are subject to reasonable regulation by the State within prescribed limits.

6.2.3 U.S.A. Are there any unenumerated Rights under our Constitution?

One important feature of our Bill of Rights is that there is no provision in it corresponding to the Nineth Amendment to the *Constitution* of the United States to the effect that:

> The enumeration in the *Constitution* of certain rights shall not be construed to deny or disparage others retained by the people.

Of course, even in the *United States*, the practical utility of such a provision has not been much except to emphasise that:

> The power *granted* by the Constitution are subtracted from the totality of sovereignty originally in the States and the people.[83]

For, whenever it has been urged that State action has encroached upon the reserved rights of the individual, the Court has, by a liberal interpretation of the granted powers, justified the State action, on the principle that:

> If granted power is found, necessarily the objection of invasion of those rights, reserved by the Ninth and Tenth Amendments must fail.[83]

Thus, though in *Mitchell's case*,[83] the Court was prepared to concede that an individual has a reserved right to "act as a party official or worker to further his own political views", the prohibition of such activity was justified by the responsibility of the State to maintain an "efficient public service", under its granted powers.

Judicial interpretation has been called in aid in applying the Nineth Amendment. New rights have been evolved either on the theory that the Constitution did not intend to take away the natural rights which existed prior to the framing of the Constitution in 1787[84] or by way of liberal interpretation of those rights which are expressly enumerated in the Bill of Rights so that the new rights so evolved are in reality "penumbras" of or "emanation" from the express guarantee to give them life and sustenance[85] or to make the express guarantee more meaningful.

On the other hand, the *American* Supreme Court has, by its judicial gloss, added to the Bill of Rights various fundamental rights which the Founding Fathers omitted to insert in the Constitution,—not because they would not like those rights of the individual being safeguarded but because they could not envisage the need for specifically enumerating them in the Bill of Rights[86]. The Supreme Court has, thus deducted the following Rights from the existing Bill of Rights, even though they are, in fact, not specifically enumerated therein as in many later Constitutions.

A. *The freedom of association.*

It is curious that a basic right, such as that of association, was not specifically provided for in the American Constitution. Its need was felt only in 1937, in connection with the status and legitimacy of trade unions.[87] It was then declared as a "fundamental right'87 but at that time it was asserted on the narrow foundation of the right of collective bargaining of employees against employers to protect them against unfair and arbitrary treatment.

The right of association, as a fundamental right, was placed on a proper pedestal in the United States, only in 1956-58. Since then it has been deduced from the freedom of speech[88] guaranteed by the First Amendment or, alternatively, from the word "liberty" in the Fourteenth Amendment.[1] Once formulated, freedom of association has been held to lie at the foundation of a free society in the same way as freedom of speech[2] and has been extended to include a right of privacy in one's association,[1] *i.e.*, the right not to disclose one's association with other people.[3]

B. *The right to educate a child in a school of the parent*'s choice,[4]

and the right to study any language in a school. These rights appear to have been deduced from the word "liberty" in the "due process" clause of the Fourteenth Amendment.[5]

C. *The right of privacy.*

A fundamental right to privacy of life has, similarly been established,[6] being variously drawn from the Fourth Amendment (immunity of a person from "unreasonable searches and seizures)[7] and the Fifth or Fourteenth Amendment[8] (the "liberty" clause). Right to privacy will also include right to abortion[9] and to contraception[10]. But right to public education was not taken as an unenumerated fundamental right.[11]

Vast amounts of information are communicated daily by wireless communication devices through the porous web of computers that constitutes internet, all of which are susceptible to interception by unauthorised person. To protect the privacy of these communications, the Government has enacted content-neutral prohibition on disclosure of intercepted communication, thus producing a tension between preserving privacy and fostering public knowledge of matters of public concern.[12] But the right to privacy, like any other individual right cannot be absolute and must accordingly be subject to State's regulation under its police power "to maintain a decent society".[13]

The word "liberty" in the Fourteenth amendment has been amplified to include all those rights which are essential to human existence *e.g.,* right to marry and to beget children,[14] right to educate one's children as one chooses,[15] right to study any subject or any language,[16] or to read or observe whatever he pleases,[17] or what is basic to a free society.[18]

The most striking feature of this judicial evolution of the right of privacy is that though it was originally set up as a protection against arbitrary intrusion by the Police,[19] it has been developed into a general right of privacy and repose,[20] belonging to a householder as a protection against door-to-door solicitation of vendors of magazines [20] or other commercial literature [20] or against loudspeakers being operated on streets so as to cause nuisance to neighbouring householders;[21] the right of married couples to use contraceptives.

Be that as it may, the Ninth Amendment in the American *Constitution* suggests the possibility of the existence of individual rights besides those enumerated in the Bill of Rights. Even when the Bill of Rights was ultimately adopted by the first Ten Amendments of the *Constitution*, the question arose whether an attempt to enumerate might not overlook any of the rights which the people were already enjoying prior to such enumeration, under common law, which the Americans had inherited from "our English ancestors"[22] If the Bill of Rights, thus, did not introduce any "novel principles",[22] it did not take away any of the rights belonging to the Americans, antecedent to the adoption of the Bill of Rights. This was expressly made clear by the Ninth Amendment.

The adoption of this residuary clause is thus a positive testimony that the fundamental rights enumerated in the *Constitution* were derived from the "natural rights" which existed prior to such enumeration and could not be crippled by any enumeration. This clause, *inter alia*, enabled the Supreme Court to assert that there was, in the United States, "a right of privacy older than the Bill of Rights".[23]

6.2.4 India.

The *Indian Constitution*, however, has discarded any saving clause to protect unenumerated rights as in the Ninth Amendment to the American *Constitution*. Nor is there any history in India of the existence of "natural rights" antecedent to the *Constitution*, as in the *U.S.A*.[24] Hence, *our* Supreme Court has held that in India a statute cannot be annulled on the ground that it contravenes a natural rights, which is not to be found within the four corners of Pt III of the *Constitution*.[25]

Fundamental rights has been interpreted as dynamic concepts having no fixed contents and Courts expand them in the changing context so as to make them vibrant and lively. Expansive meaning given to fundamental rights are equally enforceable and cannot be ignored on the ground of being derivative rights. Right to information was held as part of *Article 19*(1)(a).[26]

It is held by Supreme Court that in order to treat a right as a fundamental right, it is not necessary that it should be expressly stated as one in Pt III of the *Constitution*. It was held that provisions of Pt III and part IV are supplementary and complementary to each other. Right to education is not expressly stated as a fundamental right.

General

But it is implicit in and flows from the right to life guaranteed under *Article 21*. The right to education is treated as one of transcendental importance. It has fundamental significance to the life of an individual and the nation. Without education being provided to the citizens, the objectives set in the Preamble cannot be achieved.

The mere fact that the State is not taking away the right does not mean that right of education is not included within the right to life. It was held that the content to right to life is not to be determined on the basis of existence or absence of threat of deprivation. The State cannot deprive the citizens of his right to education except in accordance with procedures prescribed by law. The right to education flows directly from right to life.[27]

A case for expansion of enumerated fundamental rights.

This, however, would not lessen the task before the Court whenever an appeal is made by a litigant to a right which is not printed in bold letters in the several provisions of Pt III. He may still contend that the right relied upon by him *follows from* any of those rights which are on the text of the *Constitution*, and it will be the duty of the Court to determine whether the right alleged may be derived *by a proper interpretation*, from any of the enumerated rights.

Before holding that the right so claimed is not covered by Pt III of the *Constitution*, it is possible for our Courts:

(a) to inquire whether the said right "is of such a character that it cannot be denied without violating those fundamental principles of liberty and justice which lie at the base of all our "civil and political institutions",[28] or which are "basic to a free society",[29] or "the very concept of civilisation".[30]

(b) to further inquire whether there is anything in the text of the relevant provisions of the *Constitution* which would preclude the liberal interpretation that the Court is called upon to make.

The obvious mode of enlarging the contents of Pt III of our *Constitution* would, of course, be constitutional amendment. But so long as the attention of the Legislature is not drawn to the newer problems which are challenging modern civilisation, it cannot be urged that Courts in India should wash off their hands altogether merely because the framers of the *Constitution* could not foresee the new situations, or overlooked them.

Gopalan's case.

The question was indeed raised in the very first cause before the Supreme Court— *Gopalan v State of Madras*,[31] where the Court was upon called to interpret the expression "personal liberty" in *Article 21*.

MUKHERJEE J. adopted the meaning given to the expression by *Dicey*[32] when he said:

> Personal liberty means a personal right not to be subjected to imprisonment, arrest or other physical coercion in any manner that does not admit of legal justification. [33]

The majority of the judges[34] laid emphasis upon the word "personal" in the expression "personal liberty" and the crux of this view is to be found in the judgment of SASTRI J.[35] His Lordship held that while "liberty" consisted of "*doing* what one desires", the adjective "physical" narrowed down that concept, to indicate "freedom from *bodily restraint*, and detention in jail is a drastic invasion of that liberty". SASTRI J., in another context,[35] referred to the reason why the Drafting Committee of the Constituent Assembly had amended the original draft *Constitution* to qualify the word "liberty" by the word "physical", namely, that otherwise *Article 21* might be construed so widely as to include the freedoms already included in *Article 19*. But, it is one thing to say that *Article 21* comprises the residue of liberty that remains after excluding the seven freedoms included in *Article 19*, and another thing to say that *Article 21* only covered freedom from bodily restraint and not the liberty to do anything one likes. Since MUKHERJEE J.[36] also held that "physical liberty" in *Article 21* meant freedom from "physical restraint of the person

by incarceration or otherwise", it would follow that according to the view of MUKHERJEE J. too, the freedom to do anything was not included in *Article 21*.

The patent defect of this interpretation is that there are a number of personal rights which a person in India elsewhere enjoys under the common law, subject of course, to legislative restrictions. Some of these personal rights include[37]:

The right to eat, drink or smoke as one likes; the right to work as much as he likes; or idle as much as likes; the right to play or sleep when he likes.

These rights would not come under any of the clauses of *Article 19*(1). Nor would they come within the restricted scope of *Article 21* as interpreted by KANIA C.J., SHASTRI J, and MUKHERJEE J. If, now, Pt III of the *Constitution* be regarded as an exhaustive enumeration of fundamental rights, the obvious result would be that the basic right to do as one likes could, in India, be invaded by the Executive and Police authorities without any legislative sanction,— a situation which no one would relish.

KANIA C.J., seemed to have realised this. Hence, though adhering to the view that "personal liberty" meant "liberty of the physical body", he was constrained to observe that the right to eat or sleep or work as one pleases was included in that concept.[38] DAS J. made it more clear[39] when he said that the citizen's rights to do what he likes etc., were personal rights and that instead of attempting to enumerate them exhaustively they were included in *Article 21* by the use of the compendious expression "personal liberty".[40] In fact this statement has been reiterated by the Supreme Court. The court said that the citizens/persons have a right to sleep, not to hear and to remain silent. The knock at the door, whether by day or by night as a prelude to a search without authority of law amounts to police incursion into a privacy and violation of fundamental right of a citizen. Right to privacy has been held to be a fundamental right of the citizen being "integral" part of *Article 21 of the Constitution of India*. Illegitimate intrusion into privacy is implicit in the right to life and liberty guaranteed under the *Constitution*. Such a right has been guaranteed even to a woman of easy virtues as she has been held to be entitled to her right to privacy. However, the right to privacy may not be absolute and in exceptional circumstances particularly surveillance in consonance with the statutory provisions may not violate such a right. The courts have always imposed penalty on disturbing peace of others by using amplifiers or beating drums even in religious ceremonies.

That an adherence to the concept of "personal liberty" as understood by Dicey and Blackstone[41] was inadequate to meet the challenge of newer menaces to human freedom was ere long brought home to the Supreme Court in the cases of *Kharak Singh*[42] *and Satwant Singh*.[43]

It was held that "personal liberty" and life have come to be given an expanded meaning. It was held that right to life means to live with dignity and hence right to education is also part of right to life. *Article 21* did not positively confer right to life or personal liberty like *Article 19*, because great concepts like liberty and life were purposefully left to gather from experience. They relate to the whole domain of social and economic fact. It was held, that it is not correct to state that because the articles is couched in a negative form or language, positive rights to life and liberty and not conferred. The right to life and liberty inherent in every man. There is no need to provide for the same in a positive manner. It was held that *Article 21* covers enumerated rights falling within wide amplitude of personal liberty,[44] and the Supreme Court has expanded the meaning of "personal liberty" to include (1) the right to go abroad.[45] (2) The right to privacy,[46] where it is held that it is not exhaustive (3) The right against solitary confinement;[47] (4) The right against bar fetters;[48] (5) The right to legal aid;[49] (6) The right to speedy trial;[50] (7) The right against hand cuffing;[51] (8) The right against delayed execution;[52] (9) The right against custodial violence and police atrocities;[53] (10) The right against public hanging;[54] (11) Doctor's Assistance;[55] (12) Shelter;[56] (13) Right to health, clean environment and right to development are integral parts of human rights covered by *Article 21*;[57] (14) Right to hygienic, clean and safe environment is part of *Article 21*;[58] (15) Right to life also means the life free from encroachments unsustainable in law.[59] (16) Free and fair trial is a *sine qua non* of *Article 21*.[60] (17) Right to reputation is a facet of right of life[61] (18) Right of access to clean drinking water is fundamental to life;[62] (19) Right to safety against crime *i.e.,* motor accident due to laxity in enforcement of law[63]; (20) Right to proper rest and sleep.[64] (In that case, the court held that sleep is essential for a human being to maintain the delicate balance of health necessary for its very existence and survival. Sleep is therefore a fundamental and basic requirement without which

the existence of life itself would be in peril. To disturb sleep therefore would amount to torture which is now accepted as violation of human right.) (21) Privacy is an aspect of personal liberty. While physical privacy may be curtailed to some extent in reasonable exercise of police powers under the *Code of Criminal Procedure*., there is no corresponding provision for intruding upon a personal mental privacy. Extracting testimonial responses by means of narco-analysis, polygraph and BEAP tests intrude upon a person's mental privacy and are, therefore, impermissible in law.[65] (22) Right to dignity is one of the core constitutional concepts.[66] Personal liberty includes right to livelihood which is a right higher than a mere legal right and is an integral part of right to life.[67]

The right to life and liberty includes (a) the right to livelihood by means which are not illegal, immoral or opposed to public policy[68] such as the right of an agriculturist to cultivation[69]; (b) the right to work under fair conditions of labour.[70] (c) the right to a minimum subsistence[71]; (d) the right of a prisoner to bare necessaries of life, facilities for reading, writing and interviews with members of his family and friends.[72] The right to life and liberty means the liberty to live according to his tradition, culture and heritage.[73] (e) Compelling a person to undergo or to submit to medical examination for blood test against his or her wish and to create doubt about chastity of a woman or paternity of a man would amount to interference with personal liberty.[74]

Kharak Singh's case.

I. The question for determination in *Kharak Singh's case*[75] was whether domiciliary visits or "surveillance" by the Police over a person at his house, without authority of law (the regulations under which it was purported to be done having been made without the authority of any law) constituted a contravention of *Article 21 of the Constitution*.

The answer of the majority in the case[76] to this question does not appear to be clear enough. While SUBBA RAO J., for the minority, held that the right of privacy was included in the freedom of the person as guaranteed by *Article 21*, the majority held that the right of privacy was "now a guaranteed right under our *Constitution*"[77] but nevertheless came to the conclusion that so far as the right of the people to be secured in their houses was concerned, it must be included in *Article 21*, inasmuch as:

> as unauthorised intrusion into a person's home and the disturbance caused to him thereby, is as it were the violation of *a common law right of a man*— an essential of ordered liberty, if not of the very concept of civilisation.

But, even having gone so far, the majority disagreed with the minority in holding that *Article 21* was aimed against physical but not *mental* coercion. If this be the meaning of the majority judgment, it is difficult to agree with it.

Kharak Singh's case.

In the *United States*, it has been established that the word "liberty" in the Fourteenth Amendment includes "liberty of the *mind* as well as liberty of action"[78] Does the adjective "personal" take away that meaning from the word "liberty'?[79] "Person" certainly includes the mind and that is why mental coercion has been regarded by law to be as much an evil as coercion of the body, in excluding coerced confession.[80] It is true that the law cannot take any account of "mere personal sensitiveness'[81] if that merely refers to sentiments or feelings which may vary from individual to individual and cannot form a standard, but if a restraint or coercion so operates that the subject cannot be said to retain a free mind, that would certainly be taken to be an invasion upon his freedom of the person or physical liberty. Thus, putting of one question may not constitute coercion, but prolonged interrogation, without offering opportunity of legal advice may[82], and yet the majority in *Kharak Singh's case*[76] held that the unlimited power of the Police to make inquiries from a suspect by tendering inquiry slips did not constitute a violation of physical liberty as guaranteed by *Article 21*.[83]

Similarly untenable is the view of the majority [76] that though a power to make "domiciliary visits at night" constituted an infringement of *Article 21*, a power of "secret picketing of the house of the suspect" did not. The majority held that the power of "domiciliary visit" included the right to enter into the premises and therefore constituted an invasion as to the security in one's house, which the majority deduced from common law to be an ingredient of

Article 21. But what Article 21 guaranteed was not freedom of the house, but freedom of the person. That freedom certainly included the freedom to be let alone in one's house, or the right to receive such visitors as he liked, except of course for criminal purposes. It is because of the interference with the first ingredient that a domiciliary visit must be regarded as a violation of personal liberty. On the same principle, when the Police keep a secret watch over the visitors of the suspect it should be considered to be an invasion of personal liberty of the subject if the power of picketing is unlimited and is used continuously, for a considerable length of time, and it should be unconstitutional if done without the authority of law.

But whatever be the deficiencies of the majority opinion in *Kharak Singh's case*,[84] one thing is clear, namely, that the Supreme Court had come to realise:

(a) That "personal liberty" in Article 21 could not be confined to mere immunity from restraint of locomotion, but must include "the sanctity of a man's home" and immunity from "an intrusion into his personal security and his *right to sleep* which is the normal comfort and a dire necessity for human existence even *as an animal*".[85]

(b) That the adjective "personal" was used in Article 21, not to abridge the content of "liberty", but only to distinguish the scope of Article 21 from that of Article 19, which already covers some aspects of "liberty':

> …the qualifying adjective has been employed in order to avoid overlapping between these elements or incidents of "liberty" like freedom of speech or freedom of movement etc. already dealt with in Article 19(1) and the "liberty" guaranteed by Article 21….[86]

Satwant Singh's case.

II. SUBBA RAO J., (as he then was), who was in the minority in *Kharak Singh's case* [84] gained majority in *Satwant Singh's case*,[87] so that the, decision of the majority in *Satwant's case* is practically a reiteration and application of his views in *Kharak Singh's case*.[84]

The point for decision was whether the refusal or withdrawal of a passport by the administrative authority to travel abroad was an infringement of Article 21 since, admittedly, there was no existing law placing restrictions on the citizens' right to go out of the country. It was not possible to deduce any fundamental right to travel abroad from Article 19(1)(d) since that provision guaranteed only the right "to move freely *throughout the territory* of India". The question was whether it could be predicated that the right of movement was included in the Indian Constitution in two Articles, (a) movement within India, in Article 19(1)(d) and (b) movement out of India, in Article 21. This question could not be answered in the affirmative if the *Gopalan view*[88] of Article 21 being limited to freedom from physical incarceration was adhered to SUBBA RAO C.J., put an end to the seventeen year old *Gopalan view*[88] by reiterating his minority opinion in *Kharak Singh's case*[84] that "personal liberty" in Article 21 of our Constitution was as wide as the word "liberty" in the Fifth and Fourteenth Amendments to the American Constitution as explained in decisions such as *Munn v Illinois*,[89] in these words:

> …liberty in our Constitution bears the same comprehensive meaning as given to the expression "liberty" in the 5th and 14th Amendments to the U.S. Constitution and the expression "personal liberty" in Article 21 only excludes the ingredients of "liberty" enshrined in Article 19 of the Constitution. In other words, the expression "personal liberty" in Article 21 takes in the right of locomotion and to travel abroad, but the right to move throughout the territories of India is not covered by it inasmuch as it is specially provided in Article 19.[90]

What is more important from our instant point of view is that in *Satwant's case*[87] our Supreme Court could evolve a

fundamental right of a citizen to move out of India, even though there was no specific enumeration of such right in Pt III of the *Constitution*.

I shall now refer to the demand for some new rights which could be met by *our* Supreme Court, in whole or in part, by the application of the canon of liberal interpretation:

A. Let us start with the *right to privacy*.

Right to privacy.

I have already pointed out *how* the American Supreme Court has developed a general right of privacy and repose in one's home, or a right to be let alone.[91] The term "privacy" is a bit of misnomer. Rather the court uses the "due process" clause to protect an ill-defined cluster of non-economic personal interests that the court thinks are critical to human autonomy.[92] In *Griswold v Connecticut*,[93] the court said:

> We deal with a right to privacy older than Bill of Rights – older than our political parties, older than our school system. Marriage is a coming together for better or for worse, hopefully enduring and intimate to the degree of being sacred. It is an association that promotes a way of life not causes, a harmony in living not political faiths, a bilateral loyalty, not commercial or social projects. Yet it is an association for a noble purpose as any involved in our prior decision.

In that case, the question was, whether a qualified and licensed physician could give medical advice to "married women" as to the means of preventing conception. He was found guilty and punished. Setting aside the conviction, the Supreme Court, after following earlier decisions, held that legislation under which the physician was convicted is violative of privacy. The court said:

> The foregoing cases suggest that specific guarantees in the Bill of Rights have penumbras, formed by emanation from those guarantees that help give them life and substance. Various guarantees create zones of privacy. The right of association contained in the penumbra of the First Amendment is one. The Third Amendment in its prohibition against the quartering of soldiers "in any house" in time of peace without the consent of the owner is another facet of that privacy. The Fourth Amendment explicitly affirms the right of the people to be secure in their persons, houses, papers and effects against unreasonable searches and seizures. The Fifth Amendment in its self-incrimination clause enables the citizen to create a zone of privacy which government may not force him to surrender to his detriment. The Nineth Amendment provides: "The enumeration in the *Constitution* of certain rights, shall not be construed to deny or disparage others retained by the people. The Fourth and Fifth Amendments protect against governmental invasion of the man's home and the privacies of life." "We recently referred to Fourth Amendment as creating a "right to privacy" no less important than any other right carefully as particularly reserved to the people. We have had controversies over these penumbral rights of "privacy and response" [94]bear witness that the right of privacy which presses for recognition here is a legitimate one.

In the same case, another learned judge who concurred with this opinion said:

> The entire fabric of the *Constitution* and the purposes that clearly underlie its specific guarantees demonstrate that the rights of marital privacy and to marry and raise a family are of similar order and magnitude as the fundamental rights specifically protected. Although the *Constitution* does not speak in so many words of the right to privacy in marriage, I cannot believe that it offers those fundamental rights no protection. The fact that no particular provision of the *Constitution* explicitly forbids the State from disrupting the traditional relation of the family – a relation as old and as fundamental as our entire civilization – surely does not show that the Government was meant to have the power to do so. The right to privacy in

> the marital relation is fundamental and basic – a personal right "retained by the people" within the meaning of the Nineth Amendment and a State cannot abridge that right.

Starting with privacy against arbitrary intrusion by the police as a corollary from the immunity from "unreasonable search and the seizure", the Court has by this time deduced various aspects of privacy from other freedoms enumerated in the American Bill of Rights,[1] so as to comprise:

(i) Privacy of association.[2]

(ii) Privacy in public expression.[3]

(iii) Privacy of the body as a protection against self-incrimination.[4]

(iv) Marital privacy.[5]

(v) A "privacy of life" which protects a person from arbitrary intrusion by the Police (e.g., without a warrant) even when he is at another man's house[6] or at a public telephone booth.[7]

(vi) A privacy of a householder against loudspeakers,[8] or against door-to-door solicitation of vendors of magazines or other commercial literature.[9]

Our present object is not to ascertain whether all the above aspects of privacy can and should be introduced in India, but whether a right of privacy, in general, can be deduced from *Article 21*. The question of unreasonableness of any restriction imposed upon such right could not, of course, be questioned under *Article 21* (so long as *Gopalan*[10] stands); but if it is acknowledged that the "right to be let alone" is included in *Article 21*, people would be in a position to resist invasion of such right, without a sanction of law, by the administrative and police authorities.

It would really be an unfortunate state of affairs if it was not possible to assert, in India, a fundamental right to privacy against unlawful government intrusion when such a right is regarded as a basic condition of the "inherent dignity" of the human family and is declared in *Article 12* of the Universal Declaration of Human Rights, in these words:

> No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence…

As DOUGLAS J. of the American Supreme Court explained,[11] that it is only a "part" of the claim to privacy which is included "in the prohibition of the Fourth Amendment (*U.S.A.*) against unreasonable searches and seizures". The other ingredients of the right to privacy according to DOUGLAS J. are:

> He may not be compelled against his will to attend a religious service; he may not be forced to make an affirmation or observe a ritual that violates his scruples; he may not be made to accept one religious, political, or philosophical creed as against another…The present case involves a form of coercion to make people listen.[11]

The learned judge, in the instant case deduced a freedom not to listen to amplifying radio programmes in passenger transport vehicles as an ingredient of the right to privacy; and all these ingredients, he asserted, would follow from the guarantee of "liberty" in the Fifth and the Fourteenth Amendments.

It has just been seen that one of the facts of the right of privacy, namely, freedom from domiciliary visits by the people to one's residence at night,[12] has already been drawn from the guarantee of "personal liberty" in *Article 21*, in *Kharak Singh's case*.[13] What is noticeable on this point is that once the narrow concept of "personal liberty" in the case of *Gopalan*[14] has been exploded, it would be only reasonable to anticipate that the Supreme Court would be in a position to admit other elements of the right to privacy also within the ambit of *Article 21*. If it is held, as in *Kharak Singh's case*,[13] that "personal liberty", in *Article 21*, means something more than mere absence of "physical restraint", the door is opened for letting in the further American propositions:

(a) that it includes the right of every individual "to the possession and control of his own person, free from *all* restraint and interference, unless by clear and unquestionable authority of law";[15]

(b) that "the specific content and incidents of this right must be *shaped by the context in which it is asserted*."[16]

It is gratifying to note that the foregoing arguments of the Author, have been accepted by *our* Supreme Court in asserting a general right of privacy or the right "to be let alone", as a fundamental right, derived from *Article 21*, which would include the right to marriage, procreation, motherhood, child-bearing, education.[17]

It is now declared by the Supreme Court that right to privacy to be implicit in the right to life and liberty guaranteed to the citizens under *Article 21*. "It is right to be let alone" It was held that every citizen has a right to safeguard the privacy of his own. But in the case of a matter being part of public records including Court records the right to privacy cannot be claimed.[18] It was held that right to privacy deals "with persons and not places" it was reiterated that there is an element of confidentiality between a bank and its customers in relation to latter's banking transaction. Hence where documents are kept in a Bank, the confidentiality must continue to remain.[19] The Supreme Court held that the notion of fundamental rights such as a right to privacy as part of right to life is not merely that the State is enjoined from derogating from them. It also includes the responsibility of the State to uphold them against the action of others in the society, even in the exercise of fundamental right by those others.[20] It was held in that case that the revelation of details of bank accounts of individuals without establishing a *prima facie* ground to accuse them of wrongdoing, would be violative of their right to privacy. It is only after the State has been able to arrive at a *prima facie* conclusion of wrongdoing, based on material evidence, would the right of others in the nation to be informed and enter the picture arise. The right to know cannot be extended to being inquisitive of fellow citizens.

But when there is a competition between the right to privacy of an individual and the right to information of the citizens, the former's right has to be subordinated to the latter right as it serves a larger public interest.[21] In *Mr. X v Hospital Z*,[22] the conflict between the right to healthy life versus the right to privacy was considered in the context of the doctor's right to disclose the HIV positive status of a patient to his bride to be. The action which advances public morality and public interest should be preferred. The doctor was held justified in disclosing to the would be bride the HIV positive status of the patient in the larger public interest.

Publication of any matter concerning the private life of a person without his consent may violate his right to privacy except where the publication is based on public or court records.[23]

The above general right is, however, subject to certain specified exceptions, *e.g.*, the voluntary intrusion of a person into a controversy, matters of public records, discharge of official duties by public officers. [24]

B. *Wire-tapping.*

Constitutionality of wire-tapping.

General

Another modern menace to privacy is wire-tapping, which has been made possible by the development of the science of electronic devices for “eavesdropping”, *e.g.*, intercepting telephonic communications.

U.S.A.

In this sphere, there is a serious conflict between the individual’s interest to defend his privacy and the public interest in the detection of crimes, which would *prima facie* justify the means by which it was effected. It is no wonder, therefore, that on this question, the *American* Supreme Court has had to struggle for long against itself as well as against State Courts. In 1928, the Court held[25] that the device of wire-tapping did not violate the right against “unreasonable searches and seizures” guaranteed by the Fourth Amendment because no search or seizure or physical invasion was involved in the interception of a telephonic message nor the right against self-incrimination because the sender of the message was not compelled by the State to talk to anybody. The Court failed to catch hold of the “liberty” clause, but suggested that the acceptance of evidence obtained by wire-tapping could be prohibited by legislation. It was unconstitutional only if the device was planted on the complainant’s property so as to constitute trespass.[26]

This was followed by Congress enacting the Federal Communications Act 1934 (subsequently replaced by the Crime Control Act 1968) which forbade a person to intercept any “communication” and to disclose any such intercepted communication to any person, without authorisation by the sender. The Court, ere long, held that evidence obtained by wire-tapping[27] *e.g.*, interception of a telephone talk,[28] was inadmissible in federal Courts. In *Katz v US*[29], Court declared that the Fourth Amendment “protects people and not places” and held that electronic surveillance conducted outside the judicial process, whether or not it involves trespass, is *per se* unreasonable.

Then followed a long period of struggle to determine whether the Federal Act of 1934 was binding on the State Courts. But eventually, as late as 1968, the Supreme Court held, disapproving its earlier decision,[30] that a judge of a State Court could not be an accomplice in the wilful transgression of a federal statute because the federal statutes are binding on all courts, by reason of Article VI of the *Constitution*. The result is that evidence obtained by wire-tapping is inadmissible, whether in the federal or State Courts, in America. Hence, even though it is, in fact, resorted to by the Police for the purpose of investigation, the evidence so gathered cannot be used to convict the accused. Physical trespass is no longer required to constitute a violation of the Fourth Amendment; an intrusion into privacy is enough.[31] Although the Fourth Amendment forbids unreasonable searches and seizures, it did not prescribe a remedy for those whose rights have been violated. Addressing this issue for the first time in *Weeks v US*,[32] the Supreme Court declared that the appropriate remedy was the exclusion of illegally obtained evidence. The justices did not hold that the Fourth Amendment of its own force barred from criminal prosecution the use of illegally seized or “tainted” item: that is, they did not consider the Fourth Amendment to constitute a rule of evidence. But without such an exclusionary rule, they argued, the Fourth Amendment would present no effective deterrent to improper searches and seizures. This holding meant that as a federal rule of evidence – which in its supervisory function could impose on the entire federal judiciary – illegally obtained evidence could not be used in federal prosecution.[33] But this exclusionary rule should not be applied so as to suppress the introduction at a criminal trial of evidence obtained in the *bona fide* reasonable belief that the search and seizure at issue was consistent with the Fourth Amendment.[34]

Wire-tapping for *any* purpose other than criminal investigation has been held to be unconstitutional.[35]

In *Bartnicki v Vopper*[36], the court struck down two federal statutes that imposed criminal and civil penalties on the disclosure of private communication intercepted illegally by an unknown party but was obtained lawfully by the person making the disclosures. It observed that “debate on public issues should be uninhibited, robust and wide-open” and concluded: “In this case, privacy concerns give way when balanced against the interest in publishing matters of public importance. One of the costs associated with participation in public affairs is an attendant loss of privacy”.[37]

U.K.

Notwithstanding protests from jurists from time to time, *England* is still following the traditional, conservative, path to hold that if an evidence is otherwise admissible, “it matters not how you get it”.[38] Hence, a tape-recording of an incriminating conversation between two accused, taken without their knowledge, was admitted into evidence.

This view must now be read subject to *Article 8*(2) of the European Convention[39] and the provisions of Interception of Communications Act 1985, and of the Police and Criminal *Evidence Act* 1984,[40] as a result of which:

(a) Interception of communication except in some specific cases would be illegal.

(b) Evidence obtained by wire-tapping or like unlawful interception, would be inadmissible.[41]

(c) Interception will be illegal unless it is made in execution of a warrant issued by the Secretary of State that the warrant is necessary:

(i) in the interest of *national security*; or,

(ii) for the purpose of preventing or detecting *serious crime*; or

(iii) for the purpose of safeguarding the *economic well-being* of the U.K.

India.

The question of wire-tapping, tape-recording or the like has not yet been examined by our Supreme Court from the constitutional standpoint. In *Yusufalli v State of Maharashtra*,[41] a case of tape-recording was brought before the Court. The only question which the Court answered in this case is whether the evidence obtained by such means could be used against the accused within the scope of *section 162 of the Criminal Procedure Code* and the Court answered this question in the affirmative. No question of constitutionality was raised in this case. But it is noticeable that the Court expressed its disapproval of such practice, in these words:

> In saying so, the Court does not lend its approval to the police practice of *tapping* telephone wires and setting up hidden microphones for the purpose of tape recording.

But if the Court feels, as in the *Maharashtra* case just cited, that it is unconscionable or against "common right and reason" to obtain evidence by such means to convict a person, a bolder pronouncement is to be made on some future occasion. Could not the Court bring it within the fold of "personal liberty" in *Article 21* as it had done as regards "police surveillance" in *Kharak Singh's case*, to demand specific legislative sanction for resorting to such means for investigation? And if any such legislation is eventually undertaken, the question may, once again, be raised whether such legislation, reopening the *Gopalan*[42] foreclosure, would constitute an unreasonable restriction upon an individuals' freedom of speech, as suggested by SUBBA RAO J. in *Kharak Singh's case*.[43]

Malkani *v State of Maharashtra*

The question of applicability of *Article 21 of the Constitution* has indeed been raised in a recent case[44] while these pages are through the Press, but the question does not, with respect, appear to have been dealt with satisfactorily. This was also a case of conviction founded on a telephone conversation with the accused obtained by means of a tape-recorder. The Supreme Court upheld the conviction.[44] The Court primarily relied upon the English decisions to the effect that evidence which is admissible according to the law of evidence does not cease to be so because it had been illegally obtained. But the English decisions cannot be applied if there is any constitutional bar, as in India. Of course, tape-recorded evidence is admissible under section 146(1), Exception 2 to sections 153, and 155(3) of the *Indian Evidence Act*,[45] relating to cross-examination. But a piece of evidence which is admissible according to the *Indian Evidence Act* may yet be rejected by the *Constitution*, *e.g.*, *Article 20*(3). The Court, therefore, went into the applicability of *Article 21*. But the observations with which this crucial point was brushed aside are not quite clear:

> The telephonic conversation of an innocent citizen will be protected by Courts against wrongful or high-handed interference by tapping the conversation. The protection is *not for the guilty citizen* against the efforts of the police to vindicate the law and prevent corruption of public servants. It must not be understood that the Courts will tolerate safeguards for the protection of the citizen to be imperilled by permitting the police to proceed by unlawful or irregular methods…[46]

The first sentence above put the cart before the horse. The Police would tap conversation between citizens only when there is a suspicion of criminality. The occasion for the Court's interference would arise only when such conversation is sought to be used against a party thereto in a prosecution before the Court. But the Court cannot possibly doctrine whether such person was innocent or guilty until and unless the incriminating conversation is admitted into evidence or rejected. The second sentence runs counter to the fundamentals of constitutional law. The protection afforded by a constitutional Bill of Rights is really for the benefit of a person who might be guilty in *fact*, but cannot be so held if the constitutional safeguards, adopted on grounds of public policy, are applied. One of such safeguards is that contained in *Article 21* of *our Constitution* which means that the accused cannot be punished under a procedure which is not authorised by law.[47] The Court assumed that it was enough if the procedure was not "irregular" or "unusual". This, it is submitted with respect, is wholly erroneous. The Court did not answer the question whether the general provisions of the *Indian Evidence Act* which enable the prosecution to put in tape-recorded evidence in cross-examination can be regarded as an *authority* of law to obtain evidence by means of a contrivance used without the knowledge of the accused. If the answer were in the affirmative, there was no room for the comment made in the *Maharashtra case*,[48] denouncing the practice of "tapping telephone wires and setting up hidden microphones". The question deserves a fuller treatment. The framers of the *Indian Evidence Act* hardly had in their minds such contrivances and their use against an accused.

An inference from *Malkani's* case[49] would be that wire-tapping for any purpose other than criminal investigation would be an unreasonable interference with "personal liberty". Interception of telephone conversation is an invasion of privacy which is protected as a fundamental right. Telephone tapping can, therefore, be resorted to only on the basis of genuine official communication.[50] In an earlier case, the court held that though interception of conversation constitutes an invasion of individual's right to privacy, the said right can be curtailed in accordance with procedure established by law. The procedure so prescribed must be fair, just and reasonable and not fanciful, arbitrary or oppressive.[51]

C. The doctrine of 'emanation' : New dimension of Article 21

6.2.5 Expansion of Article 21.

I. The Supreme Court has taken a defined step in this direction by propounding the theory of emanation, in the 7-judge case of *Maneka Gandhi*.[52]

6.2.6 *Theory of emanation.*

6.2.7 Maneka Gandhi's case.

In this case,[52] BHAGWATI J., for the majority, observed that —"even if a fundamental right is not specifically named in *Article 19*(1), it may still be a fundamental right covered by some clause of that article, "if it is an *integral* part of a named fundamental right or partakes of the same *basic* nature and character as that fundamental right," that is:

> it *emanates* from a named fundamental right or its existence is *necessary* in order to make the exercise of a named fundamental right meaningful and effective.[53]

But,

> it is *not enough* that a right claimed…flows or *emanates* from a named fundamental right or that its existence is *necessary* in order to make the exercise of a named fundamental right meaningful and effective…What is necessary to be seen is, whether the right claimed…is an *integral part* of a named fundamental right or partakes of the same basic nature and character as the named fundamental right so that the exercise of such right is in reality and substance *nothing but an instance of the* exercise of the named fundamental right.[53]

Thus, though there is no provision in the Indian *Constitution* similar to Ninth Amendment to the American *Constitution*, the Indian Judiciary has reached the same resultant as in the U.S.A.

Applying this theory of emanation, the Supreme Court has evolved the following unenumerated rights as Fundamental Rights.[54]

(i) The right to privacy[55] [as an emanation from *Articles 19*(1)(d) and 21].

(ii) The right to human dignity[56] including exclusion of women from sexual harassment due to gender bias.[57] It includes right against cruel, inhuman and degraded treatment. Narco-analysis, polygraph and BEAP test used by investigation agencies to detect crimes inflict mental pain and hence affect human dignity.[58] [as an emanation from *Articles 14*, *19*, *21*].

(iii) The right to travel abroad[59] [as an emanation from *Article 21*].

(iv) The right against torture, cruel or unusual punishment or degrading treatment[60] [as an emanation from *Article 21*]; such as solitary confinement,[61] unnecessary letters,[62] handcuffing.[63]

(v) The right to speedy trial [from *Article 21*].[64]

(vi) The right to free legal aid in criminal trial [from *Article 21*].[65]

(vii) The right against delayed execution.[66]

(viii) The right against custodial violence.[67]

(ix) The rights to shelter,[68] doctor's assistance;[69] the right to health.[70]

(x) The right to pollution free environment.[71]

(xi) The right to education of a child until he attains the age of 14.[72]

(xii) The freedom of Press.[73]

Right to information is part of freedom of speech and expression.[74] But this right to information is not an unrestricted right. A reasonable restriction on the exercise of such right is always permissible.[75]

Right to remain silent is a part of right to speech and expression.[76] Likewise, a right to close down a business is not a right opportunist to the ownership of property, but was held as an integral part of the right to carry on the business under *Article 19*(1) (g).[77]

6.2.8 Other aspects of expansion:

General

As a result of the liberal interpretation of the words “life” and “liberty”, *Article 21* how now come to be invoked almost as a residuary right, — to an extent undreamt of by the fathers of these *Constitution* or by the judges who gave it the initial gloss. Thus,

1. Public interest petitions have thus been founded on *Article 21*, to comprehend such diverse aspects as—children in jail being entitled to special treatment,[78] health hazard due to pollution,[79] beggars’ interest in housing,[80] health hazards from harmful drugs,[81] right of speedy trial,[82] handcuffing of prisoners,[83] delay in executing of death sentence,[84] immediate medical aid to injured persons,[85] starvation deaths,[86] the right to know,[87] right to open trial,[88] inhuman conditions in after-care home.[89]

2. A most remarkable feature of this expansion of *Article 21* is that many of the non-justiciable Directive Principles embodied in Pt IV of the *Constitution* have now been resurrected as enforceable *fundamental rights* by the magic wand of judicial activism, playing on *Article 21* (which was almost a surplusage in the days of *Gopalan*[90]) *e.g.*,:

(a) Right to pollution-free water and air.[91]

(b) Right to a reasonable residence.[92]

(c) Right to food,[86] clothing, decent environment,[92] and even protection of cultural heritage.[93]

(d) Right of every child to a full development.[94]

(e) Right of residents of hilly areas, to access to roads.[95]

(f) Right to education.[96]

3. A corollary of this development is that while so long the negative language of *Article 21* and use of the word “deprived” was supposed to impose upon the State the *negative* duty not to interfere with the life or liberty of an individual without the sanction of law, activist judges have now imposed a *positive* obligation [81] upon the State to take steps for ensuring to the individual a better enjoyment of his life and dignity, *e.g.*,

(i) Maintenance and improvement of public health.[81] Non-smokers cannot be compelled to become helpless victims of pollution caused by cigarette smoke and indirectly depriving him of his life without any process of law. Smoking in public places was directed to be prohibited.[97]

(ii) Elimination of water and air pollution.[1]

(iii) Improvement of means of communication.[2]

(iv) Rehabilitation of bonded labourers.[3]

(v) Providing human conditions in prisons[4] and protective homes.[5] A rule providing that interview with prisoner by family members or his lawyer can be only once in a month was held violative of *Article 21*.[6]

Long delay in pronouncing judgments in criminal cases after it was fully heard affects the rights of parties under *Article 21*.[7]

6.2.9 The balance between individual right and collective interests

6.2.10 U.K.

As will be explained more fully under *Article 19*(2), the reconciliation and adjustment between the need for individual rights and the collective interests of society is a perennial problem since the dawn of organised living. But different Constitutions have attempted to solve this problem in different ways and the principal modes so adopted should be referred to for a proper understanding of the method prescribed by *our Constitution*. The unwritten *Constitution* of *England* need not detain us for long, for there being no constitutional guarantee of individual rights, the entire field is open to the Legislature— either to allow the free play of individual rights by its non-interference or to bring their exercise under control by legislation, according to exigencies.

Where there is a guarantee of individual rights in a written *Constitution*, the problem arises as to how the collective interests or the common good may be ensured to prevent any abuse of the exercise of individual rights.

6.2.11 U.S.A.

The most peculiar feature of the *American* system is that though the Bill of Rights contained in the First Ten Amendments declares the individual rights in an absolute form, exceptions in the interests of the "common good'[8] or for "the preservation of the community'[9] have been engrafted by the Judiciary from early times.

There is a theory that the makers of the First Ten Amendments, which contain *absolute* prohibitions and absolute rights, did not consider it necessary to engraft any exceptions thereto because it was assumed that the State had an *inherent* power to protect itself and to maintain the collective interests of the community; this assumption was judicially developed into the doctrine of "police power of the State" shortly after the adoption of the First Ten Amendments. Thus, in *Robertson v Baldwin*,[10] it was observed:

> …the first Ten Amendments to the *Constitution*, known as the Bill of Rights, were not intended to lay down any novel principles of government, but simply to embody certain guarantees and immunities which we had inherited from our English ancestors, and *which had, from time immemorial, been subject to certain well-recognised exceptions*, arising from the necessities of the case. In incorporating these principles into the fundamental law, there was no *intention of disregarding the exceptions, which continued to be recognised as if they had been formally expressed.*

The "balancing'[11] between these two competing interests has been taken up by the Judiciary, under the American *Constitution*, by evolving the doctrine of "police power" of the State, which will be explained more fully hereafter. But though this doctrine gives a great latitude[12] to the Legislature to regulate the exercise of individual rights in the interests of the common good, having regard to the prevailing social circumstances, the determination of what would be a legitimate or reasonable restriction is not left finally in the hands of the Legislature. That power is reserved by the Court to itself.[13]

6.2.12 India.

The most striking feature of the provisions of Pt III of Indian *Constitution* is that they expressly seek to strike a balance between a written guarantee of individual rights and the collective interests of the community.[13]

The provisions of Pt III are divided into several categories:

(a) It has been already stated that so far as the provisions in the nature of constitutional limitations are concerned (*e.g.*, *Articles 14*, *15*, *17*, *18*, *20*, *24*), they are binding upon both the executive and legislative authorities of the State and the Courts shall be competent to declare a law as void on the ground of contravention of these rights, as in the *United States*.[14]

(b) On the other hand, the right of life and personal liberty (*Article 21*) was practically left to the Legislature (in the manner provided in *Article 114 of the Constitution* of the German Reich), subject only to the limits imposed by *Article 22*. This right would be available against the Executive but only within the limits allowed by law. The scope for judicial review of such laws was at least narrower than in the *U.S.A.*, for, the American doctrine of "due process" has not been imported into India,[14] to control *Article 21*.

This view, taken in the early case of *Gopalan*[14] has been overturned by a number of later decisions,[15] and the *current view* is that even a penal law, coming under *Article 21*, would be subject to judicial review if it is unreasonable or arbitrary. The American doctrine of "due process" has thus been introduced though the back-door by calling into aid *Articles 14* and *19* in the interpretation of *Article 21*.

(c) Again, though the individual rights guaranteed by *Article 19* are in general binding upon both the Executive and the Legislature, the "Legislatures" are permitted by the *Constitution* to make valid exceptions to the rights within limits imposed by the *Constitution*. Such grounds in brief are security of the State, public order, public morality and the like. The introduction of such power may be said to be a partial adoption of the "Police power" in the body of *our Constitution*. But the power of the Legislature to impose restrictions upon fundamental rights on such grounds is subject to judicial review because of the requirement in clauses (2) (6) of *Article 19* the such restrictions must be "reasonable". The Court would interfere and invalidate a law whenever it finds that the restrictions imposed by the law in the name of public interests are arbitrary or unreasonable. In these various ways, the Indian *Constitution* attempts:

> to strike a balance between individual liberty and social control.[16]

6.2.13 Fundamental Duties of Citizens

6.2.14 A case for fundamental duties of the individual in India.

There was no specific provision in the *Constitution* of 1949, relating to fundamental duties. Hence, some people thought that much of the irresponsible action and lawlessness which we have had to face in the country since our independence was due to the fact that our *Constitution* only guarantees individual *rights* and makes no mention of *duties*.[17] There were others, on the other hand, who were of the view that duties are implicit in the declaration of each of the rights itself.[18] It is interesting to note that, subsequent to the suggestion of the Author[19] that a separate Part, *viz.*, Pt IV, should be engrafted to incorporate fundamental *duties*, by the *Constitution* (42nd Amendment) Act 1976, a provision has been made for "fundamental duties'[20] by inserting Pt IVA (*Article 51A*), on the recommendation of the Swaran Singh Committee. The Committee appears to have acted on the Author's suggestion in his Tagore Law Lectures on Limited Government and Judicial Review.[21] This brings the Indian *Constitution* in line with the *Article 29*(1) of the Universal Declaration of Human Rights and the Constitutions of Japan, China and U.S.S.R.[22]

6.2.15 Human Rights and Fundamental Rights

6.2.16 Common origin.

Before concluding the introduction to Fundamental Rights, in general, we should advert to a wider concept of individual rights which has been highlighted in recent years. While Fundamental Rights, guaranteed by a written *Constitution* has a domestic outlook and application, "human rights" has an international perspective. The concept of human rights is also wider in its extent, and the very adequacy of the Bill of Rights of a country has come to be judged by the standard of human rights as adumbrated by the United Nations and other international institutions. A reference to the human rights is, accordingly, necessary in order to appreciate the ambit of the concepts underlying Fundamental Rights, as well as for their liberal interpretation.[23]

Another reason for the importance of a comparative study is that both the concepts of fundamental rights and human rights have a common origin, namely, a quest for a "higher law" standing over laws originating from a human superior. The relationship between the two concepts is also reciprocal, for while the same urge for safeguarding the

rights of the individual by a written *Constitution* has led to the attempt to bind the States themselves by international safeguards having an analogous object, the development of human rights as has been pointed out earlier, has, on its part, prompted more and more States to adopt written Constitutions with a Bill of Rights, in order to conform to the international standard set up by the Charters relating to human rights. In fact, though much later in growth, the concept of human rights has assumed a much greater importance in the world community during the last two decades.[24]

6.2.17 Evolution of human rights

Ever since the beginning of civilisation, the shortcomings of the things that be, have led man to the quest of a superior order. While beyond the social world, it led to Spiritualism and Divine law,— within the social order, dissatisfaction with laws ordained by tyrants and even benevolent despots led to an appeal to a natural law, which was to be an embodiment of pure reason, justice, immutability and universality which were lacking in man-made laws. Western scholars date the genesis of this ideal of natural law to the Stoic philosophers, years before Christ. Whilst the term “human rights” *per se* is a relatively contemporary one, the concept is not. Theologians, philosophers and social theorists alike have been disclosing these ideas for centuries. It is safe to say that an interest in human right is as old as civilisation itself. Historical perspective is important in gaining a better understanding of human rights and civil liberties.

It seems that early notions of human rights were based on the recognition of basic needs. The concept of natural law grew as time evolved and soon became inextricably linked with that of natural rights. Scholars of the day philosophised on the laws of rights analysing their bases and credence thereto. What follows is a quick précis of some major thoughts on rights throughout the ages, leading upto the more important developments which were instrumental in shaping the concept of human rights as accepted by the Western World today.

Humans quickly distinguished themselves from other animals in the world relying more on their ability to think and reason than their basic instincts. More cerebral in nature, humans questioned what they were taught and soon began to develop more sophisticated methods of getting on in the world. Coupled with technological advances and scientific thought were questions of morality and ethics.

The search for human dignity is the very root of civilisation itself. By virtue of having advanced thought-processes, humans quickly realised that they were unique to other species. Once they distinguished themselves from other animals, they saw the need to protect their uniqueness by recognising basic rights; rights that people have by virtue of their being humans. Violation of these natural rights was construed as contravening what came to be known as “natural law”. Thus, the concept of human rights has grown out of the natural rights of people which in ancient times and for centuries thereafter are known as “natural rights”. Natural rights are rooted in the moral and rational nature of humans and their common capacity to reason. The denial of these rights was, still is to some extent, regarded as an affront to natural law.

Today’s notion of human rights and civil liberties has grown out of the concept of natural rights which in turn became synonymous with natural rights. HENRY CAMPBELL BLACK, a noted authority in definition of terms and phrases of American and English jurisprudence defines “natural law” as a condition of society in which men universally were governed solely by a rational and consistent obedience to the needs, impulses and promptings of their true nature, such nature being as yet undefiled by dishonesty, falsehood or indulgence of the baser passions.[25] The notion of natural law remains today as one of the two major schools of jurisprudence, the other being “positivism” (State-made laws).

BLACK recognises that the natural rights are derived from natural law and are not based on positive schools of thought. He defines “natural rights” as “those which grow out of the nature of man and depend upon his personality and are distinguished from those which are created by positive laws enacted by a duly constitutional government to create an orderly civilised society”. In other words, the positivistic legal mechanism in place, today, although unnatural themselves have been created to uphold and protect natural rights which are grounded on natural law.

Similarly, DAVID HUME, a theorist of justice believed that although the rules which govern humanity may be artificial in that they are fabricated “man-made” he contended that principles behind them are in themselves natural.

“Though the rules of justice are artificial, they are not arbitrary. Nor is the expression improper to call them “Laws of nature”, if by natural rights we understand that what is common to any species, or even if we confine it to mean what is inseparable from species.

CICERO stated, in reference to natural law, that it was unchanging and everlasting and one eternal and unchangeable law which was valid for all nations and for all times. Ancient Greek and Roman philosophers such as PLATO, SOCRATES and ARISTOTLE were scholars of natural law. “The philosophers of ancient Greece where the idea of natural law originated, considered that there was a kind of perfect justice given to man by nature and that man’s laws should conform to this as closely as possible”.

The present day concept of equality rights, for example, may be traced to Aristotelian arguments relating to the Greek City States. Such concepts continued into Christian Europe where it was purported that all people were considered equal in the eyes of God.[26]

Human rights are those minimal rights which every individual must have against the State or other public authority by virtue of his being a member of human family irrespective of other considerations. The concept of human rights is as old as ancient doctrine of “natural rights” founded on natural law, the expression “human rights” is of recent origin emerging from (post-second world war), International Charters and Conventions.[27]

According to Protection & *Human Rights Act 1993*, “human rights” mean rights relating to life, liberty, equality and dignity of the individual guaranteed by the *Constitution* or embodied in the International Covenants and enforceable in courts of India. (section 2(d)).

Once the concept of a higher *law* binding on human authority was evolved, it came to be asserted that there were certain *rights* arising out of that natural law, which, too, were superior to and inviolable by human authority. Since the rules of natural law are of universal application, natural rights also inhere in every human being, in all ages and in all climes. These are the basic rights without which human life becomes meaningless. They were supposed to have existed from before the birth of political society and could not, therefore, be violated by the State.

6.2.18 Higher law embodied in a written Constitution.

At the first instance, political thought was directed towards devising a means by which the higher law concept could be imported into the domestic sphere of practical politics to bind down the uncharted will of the Sovereign by certain norms derived from natural law. This movement was accentuated by the American War of Independence and the French Revolution which led to the institution of a written *Constitution*, with the embodiment of natural rights, to serve as a limitation upon the Sovereign and as a safeguard of the individual against absolutism, whatever might be its form. Of course, the French *Constitution* did not go to the length of the American *Constitution* in seeking to bind down even a representative Legislature by the natural rights declared in the *Constitution*. That, however, is a different matter. The fact of embodiment of the natural rights of man, in the Constitutions of the 18th century laid the foundation of “fundamental rights” of the individual against his own sovereign. Where, as in the *Constitution* of the *United States* or of *India*, the Bill of Rights is buttressed by judicial review, the individual may have his fundamental rights enforced against his State through the courts of law almost in the same manner as he might enforce his ordinary legal rights against encroachment by his neighbour.

6.2.19 Importation of the concept of human rights into the realm of International law and world order.

From the 17th century onwards, the philosophy of a higher law and human rights derived therefrom assumed another dimension. So long it was confined within the bounds of national or municipal law, and other States or the world at large were not concerned with the relationship between a State and its own subjects. But in 1650, the Dutch philosopher GROTIUS, who has rightly been called “the father of the law of nations”, propounded his thesis[28] that when the sovereign of a State persistently trampled upon the basic human rights of his subjects, it became an international question. Such an arbitrary ruler, according to GROTIUS, forfeited his rights as a sovereign under the law of nations and other nations would be justified to intervene in cases of such gross violation of the law of nature and the law of nations. Thus thesis had, however, no immediate practical impact, because, according to the traditional comity of nations, one State would not interfere in the relationship between another State and its own

subjects, which was its domestic affair. The utmost that other nations could do in case of a violation of human rights by a State was to express their protest.

6.2.20 League of Nations.

Some other means had, therefore, to be found out to make the collective protest of other nations effective in such an intolerable situation. It was not until the formation of the League of Nations at the end of the First World War that any such concerted action through an international organisation could take any tangible shape. At the close of the War, it came to be realised by the Allies, following President Wilson, that unless the problem of minorities was effectively solved, it was likely to remain a cause for disturbance of the peace of the world. Hence, in the Peace Treaties which were concluded between the Allied Powers and the new States, it was stipulated that the new States would respect the *rights of minorities* residing within their territories in respect of equality of civil and political rights and protection of life and liberty. When the League of Nations was thereafter formed, it was assigned the task of guaranteeing the human rights incorporated in the aforesaid Minority treaties and of determining disputes regarding them through the Permanent Court of International Justice.

But, beyond emphasising that the enforcement of human rights was a concern of international law, the League of Nations could not do much that was effective because of the technicalities of the procedure devised. It is also to be noted that the machinery founded on the Minority Treaties related only to the rights of Minorities; it was not available if the human rights belonging to a member of a majority group was violated by the State which bound itself by the treaty. Again, these treaties did not bind States other than those against whom the particular Peace Treaties were binding.

6.2.21 Birth of the U.N. gave new impetus.

It was with the birth of the United Nations that the Human Rights movement got a momentum in the international sphere. It was to longer to be confined to the rights of minorities. We now launch into the age of universal human rights, such as the rights of life, liberty and equality which were to be available to all human beings *wherever* they resided. This objective was formulated by the Institution of International Law in the year 1929, and it came to be given a practical shape only in the Charter of the United Nations in the year 1945. The widespread oppression during the Nazi regime in Europe, accentuated the belief, at the end of World War II, that protection of human rights throughout the world was essential for securing international peace. The protection of these minimal conditions of civilised existence, it came to be realised, was the concern not merely of the national States but that of the civilised world as a whole. The obligation of a Nation State, conversely, was not merely to its own nationals, but to all persons within its territories for the time being.[29]

6.2.22 U.N. Charter.

In the very Preamble of the Charter, the peoples of the United Nations expressed their determination “to re -affirm faith in *fundamental human rights*, in the dignity and worth of the human *person*, in the *equal rights* of men and women”, and in *Article 1* it was declared that one of the purposes of the United Nations was “to achieve international co-operation…in promoting and encouraging *respect for human rights and for fundamental freedoms for all* without distinction as to race, sex, language or religion”.

Though the Charter is not a self-executory instrument for the enforcement of human rights, the consensus of the opinion is that the duty to co -operate with the U.N. in the matter of implementation of the human rights is a duty of every member of the U.N. under *international law*.

6.2.23 Universal Declaration of Human Rights.

It was with the objects enshrined in the Charter in view that the General Assembly of the U.N., on December 10, 1948, adopted the Universal Declaration of Human Rights.

The lengthy Preamble reads thus:

> Whereas recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world,

Whereas disregard and contempt for human rights have resulted in barbarous acts which have outraged the conscience of mankind and the advent of a world in which human beings shall enjoy freedom of speech and belief and free from fear and want has been proclaimed as the highest aspiration of the common people,

Whereas it is essential, if man is not compelled to have recourse as a last resort, to rebellion against tyranny, that human rights should be protected by rule of law,

Whereas it is essential to promote the development of friendly relationship between nations,

Whereas the people of the United Nations have in the charter re-affirmed their faith in the fundamental human rights, in the dignity and worth of the human person and in the equal rights men and women and have determined to promote the social progress and better standards of life in larger freedom,

Whereas member States have pledged themselves to achieve in co-operation with the United Nations, the promotion of universal respect for and observance of human rights and fundamental freedom,

Whereas a common understanding of these rights and freedom is of the greatest importance for the full realisation of this pledge.

Now therefore the General Assembly proclaims the Universal Declaration of Human Rights.

About the Universal Declaration, it is said: “The Universal Declaration is the first comprehensive human rights instrument to be proclaimed by a universal international organisation. Because of its moral status and legal and political importance it has acquired over the years, the Declaration ranks with Magna Carta, the French Declaration of the Rights of Man and the American Declaration of Independence as a milestone in mankind’s struggle for freedom and human dignity. Its debt to all these great historical documents is unmistakable.”[30]

The Universal Declaration of 1948 is not a legally binding instrument like a treaty. But it is a definite step forward in the development of the law of nations and gives a concrete shape to what was a mere aspiration in the Charter of the United Nations, namely, that the Member States, with the co-operation of the U.N. promote the observance of the “human rights and fundamental freedoms”. The Charter, however, provided no catalogue of these human rights which all States should seek to maintain and promote. So long as there was no consensus on this basic question amongst the numerous States having heterogeneous political and legal systems, having different attitudes towards human rights in their existing order, the Charter was only the embodiment of a pious homily.

By defining the “universal human rights”, it was to act as a common minimum standard which must be attained by all Member States, if not by the entire civilised world. According to the Preamble of the Declaration, the Member States were to protect these human rights “*by the rule of law*”. It means that each State must see that the rights enumerated in the Declaration were safeguarded by the provisions of its municipal law and also the political *Constitution* or higher law, where it exists. Those States which adopt written Constitutions hereafter must, therefore, compare the contents of their Constitutions with those of the Universal Declaration, unless they are to violate their pledge recorded in the Charter of the U.N. Where there is no organic law or it is silent on the point, it must be examined whether the ordinary law is sufficient to protect the right in question, so as to conform to the “common standard of achievement for *all* peoples and *all* nations.”

Though the rights enumerated in the Universal Declaration are not legally enforceable by any person aggrieved against any State, it has not been without any practical utility. By enumerating the rights, it has served as an interpretation of the Charter, and many a time after its birth it has been invoked against an offending State, alleging that by denying a right specified in the Declaration, such State has violated the U.N. Charter.[31]

6.2.24 U.N. Commission on Human Rights.

Though the U.N. Charter itself envisaged the individual as a subject in International Law, the San Francisco Conference, at which the U.N. was established, had no time to prepare an international bill of rights. That task was given to its Commission of Human Rights. Owing to differences in settling a universally binding bill of rights, however, it was decided to frame two documents: there should be a “Declaration” in the nature of an ideal and moral guide, containing wide principles, a goal towards which mankind should strive,— while there should be another instrument in the nature of a Covenant, containing those guarantees which should be legally binding on States which would be parties to the Covenant.

6.2.25 Draft Covenants.

It was thus contemplated by the Universal Declaration that it would be followed by a legally binding Covenant executed by each Member State. The Human Rights Commission, accordingly, produced two Draft Covenants,— one on Civil and Political Rights and other on Economic, Social and Cultural Rights, which were adopted in 1966.[32]

These Covenants are binding on those States which are a party to or ratified them and the Courts of those State would be justified in *interpreting* their national *Constitution* in the light of these Covenants.[33]

6.2.26 Scope of the two concepts compared.

It is to be noted that since the Universal Declaration or the subsequent international instruments relating to human rights are intended to apply to countries having different political systems, none of them require that the human rights enumerated in these instruments must be secured by a Bill of Rights incorporated in a written *Constitution*; it would do if they are enforced through ordinary law. The concern of the international community and the U.N. arises only when any of the human rights is violated by a Member State.

In fact, fundamental rights, such as those usually adopted in a written *Constitution*, constitute only a fraction of the list of human rights which have so far been enumerated in the various international instruments. Fundamental rights are human rights but *all human rights are not “fundamental rights”* in the sense of justiciable limitations upon the Legislature. International Covenant on Civil and Political Rights (*Article 14*) allows protection to victims and witnesses from harassment as provided in *Article 21* of our *Constitution* *i.e.,* fair trial.[34]

In effect of guaranteeing human rights in a written *Constitution* is to ensure that any State action, including legislation, which violates, or is inconsistent with a fundamental right shall be struck down by the courts because the *Constitution* is the fundamental law of the land.[35] Fundamental rights, like natural rights, are intended to be limitation as all governmental power and all State action, including legislative. In fact, it is to protect fundamental rights from legislative encroachment, in particular, against temporary passions of a group of men composing the legislature for the time being, that they are embodied in the written *Constitution*.[36]

6.2.27 National and international aspects.

It is also to be remembered that while the concept of fundamental or constitutionally protected *individual rights is a national concept*, the concept of human rights has both a national and an international aspect inasmuch as human rights must be available not merely to a citizen against his own State, but to all persons for the time being within the territory of a State. As *Article 28* of the Universal Declaration explicitly states, the aim of human rights is not merely to set up a national social order, but also an “international order” in which the human rights can be fully realised.

Human Rights belong to an individual, not as the member of a State but as the member of the world community of human beings. Their *enforcement*, therefore, is a *matter of international concern* and the ultimate goal of the

concept of human rights is to establish international machinery by means of which the observance of the human rights may be secured and their non-observance may be punished.

The realisation of many of the human rights, particularly, the “social rights” in their comprehensive sense, can indeed be possible only if the various member States of the international community work together. Evidently, this can be achieved only through *international cooperation* and only if the national States forego as much of their sovereignty as is necessary to admit these international limitations and obligations.

As regards curtailment of national sovereignty to admit of international limitations in the shape of human rights, it is remarkable that many of the recent national Constitutions openly acknowledge such curtailment:

(i) *Article 11* of the *Italian Constitution* (1947) says that Italy:

6.2.28 Italy.

> accept, subject to reciprocity form other States, such limitations of its sovereignty as are necessary for the establishment of a system of peace and *justice* among Nations.

6.2.29 India.

(ii) Under *Article 51*(a) of the Indian *Constitution*, similarly, the State promises to “endeavour to promote international peace and security”.

Though the foregoing provisions speak of the duty to promote international peace, that very concept today presupposes a regard for human rights and human dignity as the foundation for a universal brotherhood of men, which alone, can prevent armed conflicts between nations.

In India, courts are specifically cramped in drawing inspiration from these international charters by reason of the fact that *Constitution* itself directs under *Article 367*(1) that it should be interpreted in the same manner as an act of Indian Legislature. Nevertheless, our Supreme Court has held that in interpreting the very text of the written *Constitution*, the court should use international charters as an inspiration for liberal interpretation, in infusing as much as possible, the salutary safeguards for human rights as contained in those charters and covenants. While the debates on Indian Constituent Assembly were going on for drafting our *Constitution*, the Universal Declaration of Human Rights was adopted in UN Assembly. Hence, it must be assumed that the makers of Indian *Constitution*, in framing Pt III on the Fundamental Rights, were influenced by the provisions of the Universal Declaration. It is, therefore, legitimate for the court to refer to the comparable provisions of the Universal Declaration in construing the intent and scope of the relevant text of Pt III of the *Constitution*.[37]

As regards those covenants to which India is a party (International Covenant on Civil and Political Rights) or which it has ratified, it has an international obligation to implement them by appropriate legislation. So long as such legislation has not taken place, the court would be justified in interpreting the terms of the *Constitution* in the light of those covenants[38], if possible, that is, so far as the language of the *Constitution* can be stretched, without doing violence.[39]

Our Supreme Court has drawn inspiration from International Charters and Covenants: (a) In coming to the conclusion that not only the Fundamental Rights in Pt III, but also Directive Principles are based on human rights so that the Directives, even though non-justiciable, are not to be regarded as inferior to fundamental rights.[40] (b) In deducing “unenumerated fundamental rights” as supplemental to those specified in Pt III, *e.g.,* the right to human dignity in general.[41]

From this general right, once formulated, various corollaries have been deducted as follows – (1) a guarantee

against torture, cruel punishment or inhuman and degrading treatment of an accused or prisoner, from *Article 21 of the Constitution*.[42] (2) a right of an accused not to be subjected to third degree or uncivilised methods to extort confession.[43] (3) a right of an accused for speedy trial.[44] (4) a right to travel abroad.[45] (5) In view of *Article 8* of International Covenant, court has refused to restrict the meaning of the expression "forced labour" to be "*ejusdem generis*" with the word "beggar" in *Article 23 of the Constitution*.[46] (6) In view of *Articles 1* and *4* of Universal Declaration and *Article 8* of International Covenant, the expression "traffic in human beings" has been interpreted to include a contract for the sale of a woman to a man for marriage or concubinage, though not for prostitution (even when such sale is supported by custom of the caste.[47]

Fundamental Rights of members of the Armed Forces. See under *Article 33*, *post*.

Fundamental Right of Government Servants. See under *Article 309*, *post*.

Limitations of Fundamental Rights. See under *Article 19*, *post*.

Suspension of Fundamental Rights. See under *Articles 32*(4), 358, 359, *post*.

Waiver of Fundamental Rights. See under *Article 13*, *post*.

Fundamental Rights and Directive Principles. See under *Article 37*, *post*.

Fundamental Rights and the Constituent or amending power. See under *Article 368*, *post*.

---

1 *Golak Nath v State of Punjab*, AIR 1967 SC 1643 (1656, para 16).

2 **See** Ramanatha Aiyar, *Advanced Law Lexicon*, 3rd Edn.

3 *Addl. Dt. Magistrate v Shivakant Shukla*, (1976) 2 SCC 521 : AIR 1976 SC 1207 : (1976) 3 SCR 398 .

4 **See** Hood Phillips and Jackson, *Constitutional and Administrative Law*, 8th Edn, pp 13-14.

5 Cooley, *Treatise on the Constitutional Limitation*, p 37.

6 AIR 1978 SC 597 : (1978) 1 SCC 248 .

7 Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, pp 50-51.

8 *M. Nagaraj v UOI,* (2006) 8 SCC 212 .

9 Aquinas, *Summa Theologica* (tr. by Dawson, Q. 94, *Article 2*).

10 Grey, *Do we have an Unwritten Constitution?,* 27 Staud. L. Review 703, 1975, pp 715-16. **See** Stone, Seidman, Einstein, Tushnet and Karlan, *Constitutional Law*, 2005 Edn, p 720.

11 Ritchie, *Natural Rights*, 1894, pp 80-81.

12 Hand, The Bill of Rights, 1959, p 2.

13 *Marbury v Madison,* (1803) 5 US 1 Cr.137; Also **see** *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 . **See** Durga Das Basu, *Human Rights in Constitutional Law*, 2nd Edn, 2003, p 57.

14 **See p** 2 of this book.

15 *Ramlila Maidan Incident, Re.* (2012) 5 SCC 1 : (2012) Cr LJ 3516 .

16 *State of WB v Subodh Gopal Bose,* AIR 1954 SC 92 : (1954) SCR 587 .

17 **See** TK Tope, *Constitutional Law of India*, 3rd Edn, pp 45-46..

18 AIR 1973 SC 1461 : (1973) 4 SCC 225 .

19 *American Declaration of Independence*, 1776; **Cf.** *Loan Association v Topeka*, (1875) 20 Wall. 655 : *Munn v Illinois*, (1877) 94 US 113.

20 Cicero, *De Legibus*, I, 10, 28.

21 *Institutes of Justinian*, I, ii, 2.

22 Ulpian, *Digest*, I, 17, 32.

23 (1765) 1 Bl. Comm. Chapter I, pp 127-8.

24 In particular, the guarantees of peaceable assemblage, against double jeopardy and excessive bail in the American *Constitution* were drawn from the English Bill of Rights of 1689. For text, **see** Author's *Select Constitutions of the World*.

25 *Entick v Corrington,* (1765) 19 St. Tr. 1029.

26 **See** John Alder, Constitutional and Administrative Law, 6th Edn, p 24.

27 Rousseau, *Social Control*, vol I, p 6.

28 Locke, *Second Treatise of Civil Government*, x, 135; xiii, 149.

29 *R v Somerset County Council ex-parte Fewings, (1995) 1 All ER 513* . **See** John Alder, *Constitutional and Administrative Law*, 6th Edn, p 25.

30 Rousseau, Social Contract, 1762 (Everyman), I. i. Discourse on Inequality, Pt II.

31 Blackstone, (1765) I Comm., Chapter I, pp 123-5 (Coleridge Ed.).

32 *Ibid*., Book I, chapter 2, pp 161-2.

33 McLaughlin, *Foundations of American Constitutionalism (Premier American, 1961), p* 27.

34 Ritchie, *Natural Rights*, 1894, p 4.

35 *Vide* Dunning, *History of Political Theories (1920) Indian Ed*., 1967, chapter III.

36 Thomas Paine, "*Rights of Man*" (1791-92), 1958 Everyman Edn, pp 42, 44-5.

37 Dumbauld, *Political Writings of Thomas Jefferson*, pp 127-8; *Jefferson's Works*, vol III, p 4.

38 *Board of Education v Barnette*, (1943) 319 US 624.

39 1 Annals of Congress, 439.

40 *U.S. v Cruikshank*, (1875) 92 US 542; **see** also *Loan Assocn. v Topeka*, (1870) 20 Wall. 655 (*633*).

41 First Amendment to the American *Constitution*; *Article 19*(1) of the Indian *Constitution*.

42 *Twining v New Jersey*, (1908) 211 US 78; *Palko v Connecticut*, (1937) 302 US 319.

43 *Louisiana v Resweber,* (1947) 329 US 459.

44 *Lisenba v California*, (1941) 314 US 219 (*236*); *Hebert v Louisiana*, (1926) 272 US 312(*316*); *Rochin v California*, (1952) 342 US 165; *Joint Anti-Fascist Refugee Committee v McGrath*, (1951) 341 US 123.

45 *Hurtado v California*, (1884) 110 US 516.

46 *Mapp v Ohio*, (1961) 367 US 643(*655*).

47 *Adamson v California*, (1947) 332 US 46.

48 *Twining v New Jersey*, (1908) 211 US 78; *Palko v Connecticut*, (1937) 302 US 319.

49 Cooley, *Constitutional Limitations* (1937), vol 1, p 358; **Cf**. *Gopalan v State of Madras*, (1950) SCR 88 (*100*).

50 This was echoed by Kania C.J. in *Gopalan v State of Madras*, [(1950) SCR 88 (*99*)]"The inclusion of *Article 13*…in the *Constitution* appears to be a matter of abundant caution."

51 E.g., Bentham, *Works*, vols. 2, pp 497, 501 : Jennings, *some characteristics of the Indian Constitution (1953)*, pp 3-4, 48, 54; Wheare, *Modern Constitutions (1960), p* 49.

52 **Cf**. Warren, *Congress, the Constitution and the Supreme Court*, 1925, p 81.

53 As will be seen presently.

54 Ivor Jennings, *Some Characteristics of the Indian Constitution*, 1953, p 34.

55 Dicey, *Law of the Constitution*, 10th Edn 1959, p 199.

56 *E.g.*, Finland (1919); Iraq (1925); Turkey (1924); Lebanon (1926); Eire (1937).

57 (1930) Rep. of the Simon Commission (Cmnd. 3569), vol I, pp 22-3.

58 Rep. of the Joint Parliamentary Committee on India Constitutional Reforms (1934), vol I, Pt I, para 366.

59 *Golak Nath v State of Punjab*, AIR 1967 SC 1643 (*1655, 1694*).

60 *State of Madras v V.G. Row*, (1952) SCR 597 (*605*).

61 Report of the Congress Committee, 1928, presided over by Motilal Nehru.

62 *E.g.*, Malaysian *Constitution*, 1957 (*Articles 5-13*) : Malta (*Constitution*) Order in Council, 1961 (*Articles 35-48*); *Constitution* of Nigeria (1963) (*Articles 18-33*); *Constitution* of Uganda, 1966, Pt III; *Constitution* of Kenya, 1963, *Articles 14-30* : Jamaica (*Constitution*) Order in Council, 1962 (sections 13-26).

63 The relevant Articles of these international instruments will be reproduced under the various Articles of *our Constitution below*, so that the reader may assess how far we have reached the international standard. [See, further, Author's *Human Rights in Constitutional Law*].

64 *Article 34* of the Statute of the Court.

65 Quoted in Lauterpacht, *International Law & Human Rights*, 1950, p 141n.

66 *Vide* Preamble to the Universal declaration (para 6); also *Article 1* of the Convention for the Protection of Human Rights and Individual Freedoms (1950), to which the members of the Council of Europe are signatories.

67 *E.g.*, countries of the Commonwealth, such as Malaysia, Malta, Jamaica, Kenya, Nigeria, Uganda (1967), Swaziland (1968), referred to earlier (f.n. 43, *ante*) also Japan (1946), Italy (1947), Burma (1948).

68 Ritchie, *Natural Rights*, 1894, pp 80-1.

69 Hand, *Bill of Rights* (1958), p 2.

70 *Marbury v Madison*, (1803) 1 Cr. 137. [No limitation upon the constituent power].

71 Almost all the written Constitutions promulgated since the 19th century [the Government of India Acts were notable exceptions] have adopted declarations of fundamental rights; **see** a list of such Constitutions in *Lauterpacht's* International Law and Human Rights, pp 89-91; Index to Author's *Human Rights in Constitutional Law,.*

72 From another standpoint, while “human rights” are assured by International Charters, they are called “fundamental rights” when guaranteed by the written *Constitution* of a nation [**see** Author’s *Human Rights in Constitutional Law*].

73 *West Virginia State Board v Barnette,* (1943) 319 US 624.

74 *Marbury v Madison,* (1803) 5 US 1 Cr.137.

75 *Ramlila Maidan Incident, Re.* (2012) 5 SCC 1 : (2012) Cr LJ 3516 .

76 *Society for Unaided Pvt Schools of Rajasthan v UOI,* (2012) 6 SCC 1 : AIR 2012 SC 3445 .

77 MP Jain, Indian Constitutional Law, vol I, chapter 20, 5th Edn Reprint 2007 p 967,.

78 *Chairman, Railway Board v Chandrima Das,* AIR 2000 SC 988 : (2000) 2 SCC 465 .

79 *M Nagaraj v UOI,* AIR 2007 SC 71 : (2006) 8 SCC 212 .

80 D D Basu, Human Rights in Constitutional Law, 2nd Edn, 2003, p 2.

81 *Corefield v Coryell,* 6 Feb Cas 546. **See** also *Baldwin v Montana Fish & Game Commission,* 436 US 371 (1978). **See** also *Shapiro v Thompson,* (1969) 394 US 618; *Edwards v California,* (1941) 314 US 160; *Saenz v Roe,* (1999) 526 US 489 : 119 Sup. Ct. 1518 : 43 L Ed 2nd 689.

82 (1975) 420 US 750.

83 See *Blake v McClurg*, (1898) 172 US 239.

84 (1978) 436 US 371 (*supra*).

85 *Butchers’ Union v Crescent City Co*, (1883) 28 L. Ed. 585.

86 *Samdasani v Central Bank*, (1952) SCR 391 ; *Vidya Verma v Shivnarain*, (1955) 2 SCR 983 . [As to exceptions, if any, in India, see *post*].

87 *Kochunni v State of Madras*, AIR 1959 SC 725 (*740*) [**See** Author's *Human Rights in Constitutional Law*]; *Peterson v Grenville*, (1963) 373 US 244; *Lombard v Louisiana*, (1963) 373 US 267.

88 *Dodge v Woolsey*, (1857) 18 How. 331; *Scott v Howard*, (1858) 19 How. 393.

89 Hand, *Bill of Rights* (1958), p 2; *Marbury v Madison*, (1803) 1 Cr 137. [No limitation upon the constituent power]; Almost all the written Constitutions promulgated since the 19th century [the Government of India Acts were notable exceptions] have adopted declarations of fundamental rights; see a list of such Constitutions in *Lauterpacht's* International Law and Human Rights, pp 89-91; Index to Author's *Human Rights in Constitutional Law*; From another standpoint, while "human rights" are assured by International Charters, they are called "fundamental rights" when guaranteed by the written *Constitution* of a nation [**see** Author's *Human Rights in Constitutional Law*]; *Butchers' Union v Crescent City Co*, (1883) 28 L Ed 585; *Samdasani v Central Bank*, (1952) SCR 391 ; *Vidya Verma v Shivnarain*, (1955) 2 SCR 983 . [As to exceptions, if any, in India, see *post*]; *Kochunni v State of Madras*, AIR 1959 SC 725 (*740*) [**See** Author's *Human Rights in Constitutional Law*]; *Peterson v Grenville*, (1963) 373 US 244; *Lombard v Louisiana*, (1963) 373 U.S. 267; *Dodge v Woolsey*, (1857) 18 How 331; *Scott v Howard*, (1858) 19 How 393; *Marbury v Madison*, (1803) 1 Cr 137; *Mahendra v State of UP*, AIR 1963 SC 1019 (*1031*).

90 *Article 52(1) of the Constitution* of Canada, 1982 [*Seaboyer v R.*, *(1993) 1 LRC 465* (*490*) SC (Can); *Article 98 of the Constitution* of Japan [*Nakamura v Japan*, (1962)]; **See** the reasoning in *Marbury v Madison*, (1803) 1 Cr. 137 (*175-76*) and Author's *Comparative Constitutional Law*. **See** also *Natural Resources Allocation, Re. Special Reference No. 1 of 2012* (2010) 10 SCC 1 : 2012 (9) Scale 310 .

91 *Indira Gandhi v Raj Narain,* AIR 1975 SC 2299 : 1975 (Supp) SCC 1; *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 ; *State of Rajasthan v UOI,* AIR 1977 SC 1361 : (1977) 3 SCC 592 .

92 *Special Reference under Article 143, Re.* AIR 1965 SC 745 .

93 *Indira Gandhi v Raj Narain,* AIR 1975 SC 2299 .

94 *Hurtado v California*, (1884) 110 US 516 (*528-9*).

95 *Vide* Author's Tagore Law Lectures on Limited Government & Judicial Review.

1 **Cf.** *Behram v State of Bombay*, AIR 1995 SC 123 (*139*), *Venkatarama Aiyar J.*; *Sundararamier v State of AP*, AIR 1958 SC 468 .

2 *Basheshwar v CIT*, AIR 1959 SC 149 (*184*); *Deep Chand v State of UP*, AIR 1959 SC 648 (*655*); *Kocherrni v State of Madras*, AIR 1959 SC 725 (paras 10, 12); *Mahendra v State of UP*, AIR 1963 SC 1019

; *State of MP v Bharat Singh,* (1967) 2 SCR 454 (*459*); *Mahal Chand v State of WB*, (1969) II SCWR 500 (*504*); *Kihota v Zachilhu*, (1992) Supp (2) SCC 651 (paras 38-39) C.B. [**See** Author's *Human Rights in Constitutional Law*.]

3 *Reference under Article 143,* AIR 1965 SC 745 : (1965) 1 SCR 413 : (1965) 1 Cr LJ 759 .

4 *Himmatlal v State of MP*, (1954) SCR 1122 .

5 *Board of Education v Barnette*, (1943) 319 US 624.

6 *Gopalan v State of Madras*, (1950) SCR 76 (*204-5*).

7 *Kesavananda v State of Kerala*, (1973) 4 SCC 225 (paras 134, 139) 13 Judges.

8 *Kochunni v State of Madras*, AIR 1959 SC 735 (*729*).

9 *Gopalan v State of Madras*, (1950) SCR 76 (*204-5*). **See** *Romesh Thapper v State of Madras,* AIR 1950 SC 124 : [1950] 1 SCR 594 .

10 *State of WB v Committee for Protection of Democratic Rights,* AIR 2010 SC 1476 : (2010) 3 SCC 571 : (2010) 2 CTC 84 .

11 *State of WB v Committee for Protection of Democratic Rights,* AIR 2010 SC 1476 : (2010) 3 SCC 571 (*supra*).

12 **Cf.** *Bishamber v State of UP*, AIR 1982 SC 33 (paras 41-43). [By this amendment, *Article 31* has been omitted, and the right to property has been removed from the list of Fundamental Rights and made a non-fundamental right, under *Article 300A*].

13 *Automobile Transport v State of Rajasthan*, AIR 1962 SC 1405 (*1418*); *State of Rajasthan v Mangilal*, (1969) 2 SCC 710 (*713*). [But a law of acquisition under *Article 300A* would not be void unless the compensation provided is *illusory*: *Jilubhai v State of Gujarat*, (1995) Supp. (1) SCC 596 (para 56).

14 *Automobile Transport v State of Rajasthan*, AIR 1962 SC 1405 (*1418*); *State of Rajasthan v Mangilal*, (1969) 2 SCC 710 (*713*). [But a law of acquisition under *Article 300A* would not be void unless the compensation provided is *illusory* : *Jilubhai v State of Gujarat*, (1995) Supp. (1) SCC 596 (para 56); **Cf.** *Motiram v General Manager*, AIR 1964 SC 600 ; *State of Bihar v Abdul Majid*, (1954) SCR 785 .

15 **Cf.** *UOI v Tulsiram*, AIR 1985 SC 1416 (para 39) C.B.; *UOI v Subramaniam*, 1989 SC 662 (paras 7-8).

16 **Cf.** Kerala Education Bill, in re., (1959) SCR 995 (*1067-8*); *Prem Sagar v Standard Oil Co*, (1964) 5 SCR 1030 (*1038*); *Hari Vishnu v Syed Ahmad*, (1955) 1 SCR 1104 (*1110, 1112*); *Sangram Singh v Election Tribunal*, (1955) 2 SCR 1 .

17 *Atiabari Tea Co v State of Assam*, (1961) 1 SCR 809 .

18 *Ramjilal v I.T.O.*, AIR 1951 SC 97 **. But see** *Aruna Ramachandra Shanbaug v UOI,* AIR 2011 SC 1290 : (2011) 4 SCC 454 – petition entertained on the ground that important question of law is involved, even though violation of fundamental right is not involved.

19 *Atiabari Tea Co v State of Assam*, (1961) 1 SCR 809 ; *Accountant-General v Bakshi*, AIR 1962 SC 505 (*507*); *State of Bihar v Abdul Majid*, (1955) 1 SCR 786 ; *John v State of TC*, AIR 1955 SC 160 .

20 *K.T. Plantation Pvt Ltd v State of Karnataka,* (2011) 9 SCC 1 : AIR 2011 SC 3430 .

21 *Mohanlal Nanabhai Choksi v State of Gujarat,* (2010) 12 SCC 726 : 2010 (10) Scale 460 .

22 *Meghamala v G. Narasimha Reddy,* (2010) 8 SCC 383 : 2010 (8) Scale 237 .

23 *Raghbir Singh Sehrawat v State of Haryana,* (2012) 1 SCC 792 : AIR 2012 SC 468 .

24 *Kesar Enterprises Ltd v State of UP,* AIR 2011 SC 2709 : (2011) 13 SCC 733) . (**See** also *A.K. Kraipak v UOI,* (1969) 2 SCC 262 : AIR 1970 SC 150 ; *ITO v Madnani Engg. Works Ltd,* (1979) 2 SCC 455 : AIR 1979 SC 1450 ; *Swadeshi Cotton Mills v UOI,* (1981) 1 SCC 644 ; *Canara Bank v V.K. Awasthy,* (2005) 6 SCC 321 ; *Sahara India (Firm) v CIT,* (2008) 14 SCC 151) . (For further comments, see *Article 265*) : (2008) 14 SCC 151 .

25 *Reena Rani v State of Haryana,* (2012) 10 SCC 215 : 2012 (12) Scale 519 ; **see** also *UOI v Tulsiram Patel,* (1985) 3 SCC 398 : AIR 1985 SC 1416 ; *Jaswant Singh v State of Punjab,* (1991)

1 SCC 362 : AIR 1991 SC 385 ; *Surya Mani Sharma v UOI,* (2011) 14 SCC 280 . For further comments, see *Article 311*(2).

26 *Constitution* of Massachussets, 1780; Article XXX; *Marbury v Madison*, (1803) 1 Cr 137 (*163*); Author's *Tagore Law Lectures.*

27 As to modern trends to the contrary, **see** Author's *Comparative Constitutional Law*; SA De Smith, *Constitutional & Administrative Law*, (1971), pp 31-2.

28 *Liversidge v Anderson*, *(1941) 3 All E.R. 338* (*372*).

29 Jennings, *The Law and the Constitution* (1959), p 148.

30 **See** under *Article 21*, *post*.

31 A W Bradley and K D Ewing, 13th Edn, pp 74-75.

32 A W Bradley and K D Ewing, *Constitutional and Administrative Law*, 13th Edn, pp 74-75

33 John Alder, 6th Edn, pp 11-12.

34 *Vide* Author's *Tagore Law Lectures.*

35 Magna Carta, 1215.

36 Petition of Right 1628; Bill of Rights 1688.

37 *Hurtado v California*, (1884) 110 US 516 (*531*).

38 *Hurtado v California*, (1884) 110 US 516 (*531*); *Citizen's Savings & Loan Assocn. v Topeka*, (1874) 20 Wall. 655 (*662*).

39 *Board of Education v Barnette*, (1943) 319 US 624.

40 *Citizen's Savings & Loan Assocn. v Topeka*, (1874) 20 Wall. 655 (*662*).

41 Except the two particular rights specified in sections 298, 299, for the enforcement of which, however, no constitutional remedy was prescribed. No attempt was made, during the continuance of the Act, to enforce either of these provisions in the courts.

General

42 Report of the Nehru Committee (1928).

43 Rep. of the Joint Parliamentary Committee on Indian Constitutional Reforms, (1934), vol I, Pt I, para 366.

44 **Cf.** *State of WB v Subodh Gopal*, (1954) SCR 587 (*616*), Sastri C.J.

45 **See** Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, at p 53.

46 III Constitutional Assembly Debates, p 610.

47 *Deep Chand v State of UP*, (1959) Supp. (2) SCR 8 (*20; 40*); *Mahendra v State of UP*, (1963) Supp. (1) SCR 912 (*937*).

48 *Deep Chand v State of UP*, (1959) Supp. (2) SCR 8 (*20; 40*); *Mahendra v State of UP*, (1963) Supp. (1) SCR 912 (*937*).

49 Ref. under *Article 143*, AIR 1965 SC 745 (paras 41, 59, 126) 7 Judges; *Kihota v Zachilhu*, AIR 1993 SC 412 (para 64) CB.

50 *State of WB v Subodh Gopal*, (1954) SCR 587 .

51 *State of WB v Subodh Gopal*, (1954) SCR 587 .

52 *Gopalan v State of Madras*, (1950) SCR 88 (*247*).

53 **See** *P.V. Narasimha Rao v State*, AIR 1998 SC 2120 : (1998) 4 SCC 626 ; **see** also *People's Union for Civil Libertie v UOI*, AIR 2003 SC 2363 : (2003) 4 SCC 399 ; *Sub-Committee for Judicial Accountability v UOI*, AIR 1992 SC 320 : (1991) 4 SCC 699 .

54 *Natural Resources Allocation, Re. Special Reference No. 1 of 2012*, (2012) 10 SCC 1 .

55 *People's Union for Civil Libertie v UOI*, AIR 2003 SC 2363 : (2003) 4 SCC 399 .

56 *Umeg Singh v State of Bombay*, AIR 1955 SC 540 : (1955) 2 SCR 164

; *State of Kerala v Gwalior Rayon & Silk Mfg. Co,* AIR 1973 SC 2734 : (1973) 2 SCC 713 .

57 **See** M P Jain, Indian Constitutional Law, 6th Edn, 2010, vol I, p 163.

58 *Eshugbayi v Government of Nigeria*, (1931) 35 Cal WN 755 (PC).

59 **See** Wade and Phillips, *Constitutional Law*, p 35; Hood Phillips, *Constitutional Law*, 1957, p 494; Keith, *Constitutional Law*, pp 16-18; Dicey, *Law of the Constitution*, 9th Edn, chapter V, Allen, *Law in the Making*, 1947, p 252.

60 *Liversidge v Anderson*, *(1942) AC 206* , Lord Wright.

61 *Lee v Bude Co*, (1870) LR 6 CP 577 (*582*).

62 *Kedar Nath v State of WB,* AIR 1953 SC 404 : (1954) SCR 30 .

63 *Phillips v Eyre,* *(1870) 6 QB 1* .

64 **See** *R (Uttley) v Secretary of State for the Home Dept.,* *(2004) 4 All ER 1* .

65 That is to say, “Parliament is unlikely, except in emergencies, to pass legislation constituting a serious interference with them (i.e., the liberties highly prized by the people”) [Halsbury, 2nd Edn, vol 6, para 435].

66 **Cf**. MacDermott, *Protection from Power*, 1957, p 195.

67 **See** D D Basu, *Comparative Constitutional Law*, 2nd Edn, pp 414-15.

68 (1947) 74 CLR 31 .

69 *Fairfax v Commissioner of Taxation,* (1965) 114 CLR 1 .

70 *Airlines NSW v NSW,* (1964-1965) 113 CLR 54 (FC).

71 **See** D D Basu, *Comparative Constitutional Law*, 2nd Edn, pp 422-23.

72 *Fletcher v Peck*, (1810) 6 Cr. 87.

73 On this subject there is an elaborate treatment in my article on "The Indian *Constitution* through American eyes" in (1949) FLJ pp 158-170 (Jour.).

74 *Nardone v US.*, (1937) 302 US 397.

75 *Godman v U.S.*, (1941) 316 US 129.

76 *Schenck v U.S.*, (1918) 249 US 47.

77 *Near v Minnesota*, (1930) 283 US 697.

78 *Schenck v U.S.*, (1919) 249 US 47; *Herndon v Lowry*, (1937) 301 US 242; *Terminiello v Chicago*, (1949) 337 US 1; *Yates v U.S.*, (1957) 354 US 298 (*320-4*); *Clarence v Ohio*, (1968) 395 US 444 (*449*).

79 *Bridges v California*, (1941) 314 US 252 (*263*).

80 *Meyer v Nebraska*, (1923) 262 US 390 (*400*).

81 *Lesser v Garuett*, (1922) 258 US 130; *U.S. v Sprague*, (1931) 282 US 716.

82 Re *Article 26* and the offences against the State Act, *(1940) I.R. 470* ; *Pigs Marketing Board v Donnelly*, *(1939) I.R. 413* . Re McGrath, (1941) I.R., 68; *State v Lennon*, *(1942) IR 112* ; *A.G. v Southern Industrial Trust*, (1958) 94 ILTR 161. [In some other cases, courts have interfered, *e.g.*, Re, School Attendance Bill, *(1943) IR 334* ; *National Union v Irish Transport Workers*, *(1947) IR 77* ; *Burke v Burke*, *(1951) IR 216* ; *Buckley v A.G.*, *(1950) IR 67* , on the ground of virtual denial of the right; *R. v A.G.*, (1981) Jr. 233].

83 *Pigs Marketing Board v Donnelly* *(1939) IR 413* ; *Re. McGrath* *(1941) IR 68* ; *State v Lennon,* *(1942) IR 112* ; *AG v Southern Industrial Trust,* (1958) 94 ILT 161.

84 *Murphy v Dublin,* *(1972) IR 215* .

85 *Blake v AG,* (1981) 1 LMR 34.

General

86 **See** also *Buckley v AG,* (1950) IR 67 .

87 *E.g.*, Articles 16, 32, 35, 36.

88 BVerfGE 21, p 292; (1967) Yearbook on Human Rights, p 104.

89 (1967) Yearbook of Human Rights, p 116.

90 **Cf.** *Chassot v Conseil d'Etat*, (1969) The Review, p 49; *Kelter v Munchenstein*.

91 **Cf**. *R. v Halliday*, (1917) AC 260 (*274*); *Central Control Board v Cannon Brewery*, (1919) AC 744 (*752*); *Hartnell v Minister of Housing*, (1955) AC 1134 ; *Beljast Corp v Cars*, (1960) AC 490 ; *Burmah Oil Cop. v Lord Advocate*, (1965) AC 75 ; *A.G. v Wilts United Dairies*, (1922) 91 LJKB 897 ; *Henderson v Sherborne,* (1836) 150 ER 743 .

92 *Robertson v R.*, (1963) SCR 651 (Can).

1 *R. v Drybones*, (1970) SCR 282 (Can).

2 *R. v Drybones*, (1970) SCR 282 (Can).

3 *A.G. v Lavell*, (1974) SCR 1349 .

4 Re *Mitchell*, (1983) 150 DLR (3d) 449(*461*) Ont.

5 *Vide* Re *Bhinder*, (1985) 23 DLR 481(*485*) SC (Can.).

6 Re *Stevenson*, (1983) 150 DLR (3d) 385 (*387, 397, 406*) FC.

7 *SCW*, pp 400 ff. [came into force on 17 April 1982].

8 **Cf.** *R. v Stranger*, (1983) 2 DLR (4th) 121 (*143, 145*).

9 *Law Society v Skapinker*, (1984) 9 DLR (4th) 161 (167 ff.) SC; *A.G. Que v Quebec School Bds.*, (1984) 10 DLR (4th) 321 (*324-25*) (SC.); *Hunter v Southam*, (1984) 11 DLR (4th) 641 (*643, 660*) SC; *R. v Big M.*, (1985) 18 DLR (4th) 321 (*359*) SC; *R. v Oakes*, (1986) 26 DLR (4th) 200 (*216*) SC; *Seaboyer v A.G.*, (1993) 1 LRC 465 (*490*) SC.

10 *R. v Big M.*, (1985) 18 DLR (4th) 321 (*359*) SC; *R. v Oakes*, (1986) 26 DLR (4th) 200 (*216*) SC; *Seaboyer v A.G.*, *(1993) 1 LRC 465* (*490*) SC.

11 *R. v Mannion*, (1986) 31 DLR (4th) 712 (*720*) SC.

12 *R v Big M,* (1985) DLR 321 (SC); *Hunter Southam,* (1984) 11 DLR (4th) 641; *AG of Quebec v Quebec School Boards,* (1984) DLR (4th) 321; *Re. Constitutional Question Act,* (1986) 1 WWR 481; *R v Oakes,* *(1987) LRC (Const.) 477* (SC).

13 *Law Society v Skapinker*, (1984) 9 DLR (4th) 161 (167 ff.) SC.

14 **Cf.** *Rodriguez v A.G.*, *(1994) 2 LRC 136* (*173*); *Osboyne v Canada*, *(1993) 2 LRC 1* (*6*); *Seaboyer v R.*, *(1993) 1 LRC 465* (*490*).

15 Re *Singh*, (1985) 17 DLR (4th) 422 (*430, 433*) SC.

16 **Cf.** *Mackay v R.*, (1980) 114 DLR (3rd) 393 (SC).

17 Re *Singh*, (1985) 17 DLR (4th) 422 (*430, 433*) SC.

18 *Singh v Ministry of Employment,* (1985) 17 DLR (4th) 422 (*supra*); *Jones v R,* *(1988) LRC (Const.) 289*; *British Columbia Vehicle Act, Re.* (1985) 2 SCR 486.

19 **See** H M Seervai, *Constitutional Law of India*, 4th Edn, vol I, p 428.

20 *Martin v Hunter's Lessee*, (1816) 1 Wh. 304. Similarly broad terms are "due process", "cruel and unusual punishment", "necessary and proper" [Article I, section 8(18)]; "general welfare" [Article I, section 8(1)].

21 The framers of *our Constitution* assumed that the expression "personal liberty" would leave no room for judicial speculation but recent decisions of our Supreme Court are seeking to spin out as much as possible from the expression.

22 Granville Austin, *The Indian Constitution – Cornerstone of a Nation*, p 69.

23 Constituent Assembly Debates VIII, pp 739-41.

24 *Municipal Committee v State of Punjab,* AIR 1970 SC 2182 : (1969) 2 SCC 823 : (1969) 2 SCR 475

; *Jagmohan Singh v State of UP,* AIR 1973 SC 947 : (1973) 1 SCC 20 .

25 D D Basu, 2nd Edn, pp 17-18.

26 *Municipal Committee v State of Punjab,* (*supra*), came to be welcomed in 1971 by the *Constitution* Bench. (*Abbas v UOI,* AIR 1971 SC 481 : (1970) 2 SCC 780 : (1971) 2 SCR 446) . (**See** also *Pathumma v State of Kerala,* AIR 1978 SC 771 : (1978) 2 SCC 1 .

27 The framers of *our Constitution* assumed that the expression "personal liberty" would leave no room for judicial speculation but recent decisions of our Supreme Court are seeking to spin out as much as possible from the expression.

28 IX Constituent Assembly Debates, 9, 837.

29 (1950) SCR 88 : AIR 1950 SC 27 .

30 *Khare v State of Delhi,* AIR 1950 SC 211 : (1950) SCR 519 .

31 AIR 1970 SC 564 : (1970) 1 SCC 248 .

32 AIR 1978 SC 1675 : (1978) 14 SCC 494 .

33 AIR 1970 SC 564 (*supra*) (1970) 1 SCC 248 .

34 AIR 1978 SC 597 : (1978) 1 SCC 248 .

35 **See** also *Maneka Gandhi v UOI,* AIR 1978 SC 597 : (1978) 1 SCC 248 ; *Special Court Bill 1978, Re.* AIR 1979 SC 478 : (1979) 1 SCC 380 ; *Bachan Singh v UOI,* AIR 1980 SC 898 : (1980) 2 SCC 684 .

36 *Subramanian Swamy v Manmohan Singh,* AIR 2012 SC 1185 : (2012) 3 SCC 64 .

37 In a hurried Lecture, delivered shortly after the inauguration of the *Constitution*, the veteran English jurist, Sir Ivor Jennings, made certain unjust remarks and prophecies about the Indian *Constitution* which time has proved to be false. The foremost of these wrong assumptions in his thesis that the Indian *Constitution* is "rigid" [JENNINGS, *Some Characteristics of the Indian Constitution (1952)*, pp 9, 12, 14-16], and so much rigid that it would not be possible for it to meet the challenge of time. The view of the consensus of jurists and Judges in India, however, is that *our Constitution* is over-flexible and that there have been too frequent tampering even with fundamental rights [*vide* the majority judgement in *Golak Nath case*, (1967) II SC WR 1006 (paras 21, 103-9).

38 ***Cf.*** *Pensacola Tel Co v W.U. Tel. Co*, (1878) 96 US 1.

39 ***Cf.*** *R. v British*, (1935) 54 CLR 262 ; *R. v Vizzard*, (1933) 50 CLR 30 ; *R. v Burgess*, (1936) 55 CLR 608 .

40 But the initial view of the Supreme Court as to non-justiciability of a *Constitution Amending Act* has been overturned since the innovation of the doctrine of "basic structure", as a result of which the Court may strike down on *Amending Act* not only on procedural ground but also on the substantive ground of violating a "basic feature" of the *Constitution* [**Cf.** *Kesavananda v State of Kerala*, AIR 1971 SC 1461 (para 1438); *Poudyal v UOI*, AIR 1993 SC 1804 (para 119) CB].

41 AIR 1973 SC 1461 : (1973) 4 SCC 225 .

42 **See** also *Poudyal v UOI,* AIR 1993 SC 1804 : 1994 (Supp–1) SCC 324.

43 *Behram v State of Bombay*, (1955) 1 SCR 613 (*654*); **see** also pp 124-5, *ante*.

44 *Mahendra v State of UP*, (1963) Supp. 1 SCR 912 (*931-2, 938-941*); *Jagannath v Authorised Officer*, AIR 1972 SC 425 (*435*). [**See** further under *Article 13*(2), *post*, as to the exceptions introduced by the Supreme Court [*State of Gujarat v Mohini Mills*, AIR 1994 SC 1300].

45 Robert E Cushman, *Leading Constitutional Decisions*, 12th Edn p 247.

46 *P.L. Mehra v D.L. Khanna,* AIR 1971 Delhi 1 (FB); *State of Gujarat v Ambika Mills,* AIR 1974 SC 1300 : (1974) 4 SCC 656 : (1974) 3 SCR 760 .

47 3 SCW 72.

48 *Kesavananda v State of Kerala*, AIR 1971 SC 1461 ; *Waman v UOI*, AIR 1981 SC 271 ; *Kalimata v UOI*, AIR 1981 SC 271 ; *Srinivasa v State of Karnataka*, AIR 1987 SC 1518 (paras 6-7). **See** also *Indira Nehru Gandhi v Raj Narain,* AIR 1975 SC 2299 : 1975 (Supp) SCC 1; *Minerva Mills v UOI,*

AIR 1980 SC 1789 : (1980) 3 SCC 625 ; *A.K. Roy v UOI,* AIR 1982 SC 710 : (1982) 1 SCC 271 .

49 *Waman v UOI*, AIR 1981 SC 271 ; *Kalimata v UOI*, AIR 1981 SC 271 ; *Srinivasa v State of Karnataka*, AIR 1987 SC 1518 (paras 6-7).

50 *I.R. Coelho v State of TN,* AIR 2007 SC 861 : (2007) 2 SCC 1 .

51 **Cf.** *Gopalan v State of Madras*, (1950) SCJ 174 (*267*).

52 The position in this respect is similar in the *U.S.A.* [*Maswell v Dow*, (1909) 176 US 58].

53 *Patro v State of Bihar*, AIR 1970 SC 259 (*263-4*). **See** also *Jafaria v UOI,* (2010) 4 SCC 560 ; *Bhim Singh v UOI,* (2011) 13 SCC 94 ; *Bhisharat Ali Rajput v UOI,* (2010) 15 SCC 521 .

54 *State of Arunachal Pradesh v Khudiram Chakma,* AIR 1994 SC 1461 : 1994 (Supp-1) SCC 615; *Louis De Raedt v UOI,* AIR 1991 SC 1886 : (1991) 3 SCC 554 .

55 *Chairman, Railway Board v Mrs. Chandrima,* AIR 2000 SC 988 : (2000) 2 SCC 465 .

56 *Chairman, Railway Board v Mrs. Chandrima,* AIR 2000 SC 988 : (2000) 2 SCC 465 ; *Noorunnisa v Dt. Collector,* (2001) Cr LJ 3857 (AP); **see** also *Bisharat Ali Rajput v UOI,* (2010) 15 SCC 521 ; *Jafaria v UOI,* (2010) 4 SCC 560 : 2010 (3) Scale 304 ; *Bhim Singh v UOI,* (2011) 13 SCC 94 : 2011 (1) Scale 304 .

57 *Chairman, Railway Board v Mrs. Chandrima,* AIR 2000 SC 988 : (2000) 2 SCC 465 .

58 **Cf.** *Thornhill v A.G., of Trinidad*, *(1980) 2 WLR 510* (*516*) PC.

59 **Cf.** *Retail Union v Dolphin*, (1986) 33 WLR (4th) 174 (*191-96*) SC (Can).

60 Civil Rights Cases, (1883) 109 US 3. In the *U.S.A.*, the fundamental rights have been made enforceable against private action, by undertaking Federal and State enactments [**cf.** *N.Y. State C.A.O. v N.Y.*, (1988) 487 US 101].

61 *Shelly v Kraemer,* (1948) 334 US 1; **see** also *Grovey v Townsend,* (1935) 295 US 45 – wherein it was held that political parties were like private clubs uncontrolled by constitutional limitation. But, this decision was reversed which held that "Democratic Party" was an agency of State and the party's use of the "White primary" constituted State action. *Smith v Allwright,* (1944) 321 US 649.

62 *Reitman v Mulkey,* (1967) 387 US 369.

63 *Moose Lodge No.107 v Invis,* (1972) 407 US 163.

64 (1961) 365 US 715.

65 **See** Ralph A Rossum & G Alan Tarr, *American Constitutional Law*, vol II, pp 413-14.

66 *Shamdasani v Central Bank*, (1952) SCR 391 ; *Vidya Verma v Shiv Narain*, 1956 SC 108 ; As to the doctrine of "State action", **see** further under *Article 12*, *post*.

67 *A.K. Gopalan v State of Madras,* AIR 1950 SC 27 : 1950 SCR 88 .

68 *Sohan Lal v UOI,* AIR 1957 SC 529 : 1957 SCR 738 .

69 *Shri Anadi Mukta Sadguru Shree Muktajee Vandas Swami Suvarna Jayanthi Mahotsav Smaraka Trust v V.R. Rudrani,* AIR 1989 SC 1607 : (1989) 2 SCC 691 : 1989-II-LLJ-324 .

70 *G.M. Kisan Sahkari Chini Mills Ltd v Satrughan Nishad,* (2003) 8 SCC 639 . **See** also *Pradeep Kumar Sharma v UP Finance Corp,* (2012) 10 SCC 424 : 2012 (10) Scale 511 ; *Godavari Sugar Mills Ltd v State of Maharashtra,* (2011) 2 SCC 439 ; *Kisan Sahakari Chint Mills Ltd v Vardan Linkers,* (2008) 12 SCC 500 : 2008 (7) Scale 211 .

71 *VST Industries v Workers Union,* (2001) 1 SCC 298 : 2000 (Supp 5) SCR 438 : 2001(I) LLJ 470 . **See** also *Shalini Shyam Shetty v Rajendra Shankar Patil,* (2010) 8 SCC 329 : 2010 (7) Scale 428 ; *S.V.M. Prasad v A.P. Federation of Co-op. Spg. Mills Ltd,* (2009) 16 SCC 320 .

72 *Shamdasani v Central Bank*, (1952) SCR 391 ; *Vidya Verma v Shiv Narain*, 1956 SC 108 . **See** also *Firm of Arunachalam v Kaleeswar Mills Ltd,* AIR 1957 Madras 309 ; *C.K. Achuthan v State of Kerala,* AIR 1959 SC 490 : 1959 (Supp-1) SCR 787.

73 H M Seervai, *Constitutional Law of India*, 4th Edn, vol II, p 1697.

74 Jennings, *Some Characteristics of the Indian Constitution* (1953), p 37.

75 Somewhat similar view has been taken in Eire [*Educational Co v Fitzpatrick*, *(1961) IR 345* (*368*)]; **see** Author's *Human Rights in Constitutional Law*.

76 The title of the Act has been changed to "*Protection of Civil Rights Act 1955*".

77 *Vidya Verma v Shiv Narain*, AIR 1956 SC 108 ; *Gopal Das v UOI*, (1955) 1 SCR 773 .

78 **See** further Author's *Human Rights in Constitutional Law*.

79 **Cf.** *Calcutta Gas Co v State of WB*, AIR 1962 SC 1044 (*1049*); *State of Bihar v Kameshwar*, AIR 1952 SC 252 .

80 **Cf.** *State of Madras v Champakam*, (1951) SCR 525 .

81 The First Amendment of the *Constitution* of the U.S.A.– "Congress shall make no law…'

82 **Cf.** The Sixth Amendment of the American *Constitution*— "In all criminal prosecutions, the accused shall enjoy the right…'

83 *United Public Workers v Mitchell*, (1947) 330 US 75 (*94*).

84 *Robertson v Baldwin,* (1897) 165 US 275; *Griswold v Connecticut,* (1965) 381 US 479; *Eisenstadi v Baird,* (1972) 405 US 438; *Carey v P.S.,* (1977) 431 US 678.

85 *Griswold v Connecticut,* (1965) 381 US 479; *Eisenstadi v Baird,* (1972) 405 US 438.

86 **See** Author's *Human Rights in Constitutional Law*.

87 *National Labour Relations Board v Jones*, (1937) 301 US 1.

88 *National Assocn. v Alabama*, (1958) 357 US 449; *Sweezy v New Hampshire*, (1956) 354 US 234 (*250*).

1 *National Assocn. v Alabama*, (1958) 357 US 449.

2 *Shelton v Tucker*, (1960) 364 US 479 (*486*).

3 *American Communications v Douds*, (1950) 339 US 382 (*383*), *Bates v Little Rock*, (1959) 361 US 516 (*525*); *Gibson v Florida Legislative Committee*, (1963) 372 US 539 (*544*).

4 *Pierce v Society of Sisters,* (1925) 268 US 510.

5 *Pierce v Society of Sisters,* (1925) 268 US 510; *Meyer v Nebraska,* (1923) 262 US 390.

6 *Griswold v Connecticut,* (1965) 381 US 479 (494-5).

7 *Boyd v U.S.,* (1886) 116 US 643 (656); *Mapp v Ohio,* (1961) 367 US 616 (630).

8 *Mapp v Ohio,* (1961) 367 US 616 (630); *Wolf v Colorado,* (1949) 338 US 50.

9 *Roe v Wade,* (1973) 410 US 113; *Thornburgh v American College,* (1986) 476 US 747; *Bellotti v Baird,* (1979) 443 US 622.

10 *Griswold v Connecticut,* (1965) 381 US 479; *Eisenstadi v Baird,* (1972) 405 US 438; *Cary v P.S.,* (1977) 431 US 678.

11 *S.A. School Dt. v Rodriguez,* (1973) 411 US 1.

12 *Bartnicki v Vopper,* (2001) 532 US 514.

13 *Jacobellis v Ohio,* (1964) 378 US 184.

14 *Skinner v Oklahoma,* (1942) 316 US 535; *Loving v Virginia,* (1967) 388 US 1.

15 *In Pierce v Soc. of Sisters,* (1925) 268 US 510.

16 *Meyar v Nebraska,* (1923) 262 US 390.

17 *Shanley v Georgia,* (1969) 394 US 557; *Paris Adult Theatre v Seaton,* (1973) 413 US 49.

18 *Wolf v Colerado,* (1949) 338 US 25.

19 *Wolf v Colorado,* (1949) 338 US 50.

20 *Bread v Alexandria,* (1951) 341 US 622.

21 *Koracs v Cooper,* (1949) 336 US 77 [The right of sexual privacy reached its climax in *Roe v Wade,* (1973) 410 US 113, followed in cases such as *Thronburg v American College,* (1986) 476 US 747].

22 *Robertson v Baldwin*, (1897) 165 US 275.

23 *Griswold v Connecticut*, (1965) 381 US 479 (*486, 491*).

24 **Cf.** *Butchers' Union v Crescent City*, (1883) 111 US 746 (*756*); Pritchett, American *Constitution* (1968) p 8.

25 *Gopalan v State of Madras*, (1950) SCR 88 ; *Keshavan v State of Bombay*, (1951) SCR 228 (232, 234); *Nabhirajiah v State of Mysore*, (1951) SCR 744 (752); *Amirabbas v State of MP*, (1960) 3 SCR 138 (148).

26 *Peoples Union of Civil Liberties v UOI,* AIR 2003 SC 2363 : (2003) 4 SCC 399 .

27 *Unnikrishnan v State of AP,* AIR 1993 SC 2178 : (1993) 1 SCC 645 ; **See** also *Bandhua Mukti Morcha v UOI,* (1984) 3 SCC 161 : (1984) 2 SCR 67 .

28 *Powell v Al bame,* (1932) 287 US 45 (67); *Sayder v Massachusetts,* (1934) 291 US 97 (*105*).

29 *Walf v Colorado,* (1949) 338 US 25(27).

General

30 **Cf**. *Kharak Singh v State of UP*, AIR 1963 SC 1295 (*1302*), para 18; *Gopalan v State of Madras*, (1950) SCR 88 (*262*), MUKHERJEE, J.

31 *Gopalan v State of Madras*, (1950) SCR 88 (*262*), MUKHERJEE, J.

32 Dicey, *Law of the Constitution*, 10th Edn, pp 207-8.

33 *Gopalan v State of Madras*, (1950) SCR 88 (*262*), Mukherjee J.

34 Kania C.J., (107), Shastri J., (194), Mukherjee J., (262), Fazl Ali J., (137).

35 (1950) SCR 88 (*190-1, 194*), Sastri J.

36 *Gopalan v State of Madras*, (1950) SCR 88 (*262*), Mukherjee J.

37 *Kshitindra v Chief Secy.*, Misc. Case 166/50 (Cal), referred to in *Gopalan's case*, (1950) SCR 88 (*296*).

38 (1950) SCR 88 (*106*).

39 *Ibid*., p 296.

40 **See** also *Sidharam Satlingappa Mhetre v State of Maharashtra,* AIR 2011 SC 312 : (2011) 1 SCC 694

41 1 Bl, Comm. 68.

42 *Kharak Singh v State of UP*, AIR 1963 SC 1295 .

43 *Satwant Singh v A.P.O.*, AIR 1967 SC 1836 .

44 *Unnikrishnan v State AP,* (1993) 1 SCC 645 .

45 *Satwant Singh Sawhney v D. Ramanathan,* AIR 1967 SC 1836 : (1967) 3 SCR 525 .

46 *Gobind v State of MP,* AIR 1975 SC 1378 : (1975) 2 SCC 148 : (1975) 3 SCR 946 . **See** also *District Registrar and Collector v Canara Bank,* (2005) 1 SCC 496 .

47 *Sunil Batra v Delhi Administration,* AIR 1978 SC 1675 : (1978) 4 SCC 494 .

48 *Charles Sobraj v Supdt. Central Jail,* AIR 1978 SC 1514 : (1978) 4 SCC 104 .

49 *M.H. Hoskot v State of Maharashtra,* (1978) 3 SCC 544 : (1979) 1 SCR 192 .

50 *Hussainara Khatoon v Home Secretary, State of Bihar,* AIR 1979 SC 1377 : (1980) 1 SCC 81 : (1979) 3 SCR 169 .

51 *Prem Shanker Shukla v Delhi Administration,* AIR (1980) SC 1535 : (1980) 3 SCC 526 .

52 *T.V. Vaitheeswaran v State of TN,* AIR 1983 SC 361 : (1983) 2 SCC 68 .

53 *Shakila Abdul Gafer Khan v Vasanth Ragunath Dhobe,* (2003) 7 SCC 749 : AIR 2003 SC 4567 ; *Sheela Barse v State of Maharashtra,* AIR 1983 SC 378 : (1983) 2 SCC 96 .

54 *A.G. of India v Lachmi Devi,* AIR 1986 SC 467 : 1989 Supp (1) SCC 264 .

55 *Paramanand Katra v UOI,* AIR 1989 SC 2039 : (1989) 4 SCC 286 .

56 *Shantistar Builders v N.K. Totame,* AIR 1990 SC 630 : (1990) 1 SCC 520 . **See** also *People's Union for Civil Liberties (Night shelter matters) v UOI,*

(2012) 11 SCC 728 ;
(2012) 11 SCC 422 ; (2012) 14 SCC 78
; (2010) 5 SCC 423 .

57 *N.D. Jayal v UOI,* AIR
2004 SC 867 : (2004) 9 SCC 362
; *Murali S. Deora v UOI,* (2001) 8 SCC 765
.

58 *M.C. Metha v Unionof India,*
(2004) 6 SCC 588 .

59 *District Registrar & Collector v Canara Bank,*
(2005) 1 SCC 496 .

60 *K. Ambazagan v Supdt. of Police,*
AIR 2004 SC 524 : (2004) 3 SCC
767 .

61 *State of Bihar v L.K. Advani,*
AIR 2003 SC 3357 : (2003) 8 SCC 361
.

62 *A.P. Pollution Control Board v M.V. Nayudu,*
(2001) 2 SCC 62 ; *State of Karnataka v State of AP,*
(2000) 9 SCC 572 ; *Narmada Bachoo Andolan v UOI,*
(2001) 10 SCC 664 .

63 *Avishek Goenka v UOI,*
AIR 2012 SC 3230 : (2012) 8 SCC 441
.

64 *Ramlila Maidan Incident, Re.*
(2012) 5 SCC 1 : (2012) Cr LJ 3516
.

65 *Selvi v State of Karnataka,*
AIR 2010 SC 1974 : (2010) 7 SCC 263
.

66 *Maharashtra University of Health Sciences v Satchikista Prasarak Mandal,* AIR 2010 SC 1325 :
(2010) 3 SCC 786 ; *Budhadev Marmaskar*
(2011) 11 SCC 538 (series).

67 *Centre for Environment & Food Security v UOI,*
(2011) 5 SCC 676 ; *Daniel Latiff v UOI,*
(2001) 7 SCC 740 : AIR 2001 SC
3958 .

General

68 *Olga v Bombay Municipal Corp,* AIR 1986 SC 180 : (1985) 3 SCC 545 : 1996 (4) Scale 14 .

69 *Dalmia Cement (Bharat) Ltd v UOI,* (1996) 10 SCC 104 ; *Benilal v State of Maharashtra,* 1995 (Supp-1) SCC 235; *Butu Prashad Kumbhar v Steel Authority of India,* 1995 (Supp-2) SCC 225; *Chameli Singh v State of UP,* (1996) 2 SCC 549 : AIR 1996 SC 105 ; *B.C. Chaturvedi v UOI,* AIR 1995 SC 1770 : (1995) 6 SCC 289 ; *N. Jagadeeshan v Dt. Collector,* AIR 1997 SC 1197 : (1997) 4 SCC 508 .

70 *Bandhua Mukti Morcha v UOI,* AIR 1984 SC 802 : (1984) 3 SCC 161 ; *Delhi Jal Board v National Campaign for Dignity and Rights of Sewerage and Allied Workers,* (2011) 8 SCC 568 : 2011 (7) Scale 489 ; *Vishaka v State of Rajasthan,* AIR 1997 SC 3011 : (1997) 6 SCC 241 ; *Vineet Narain v UOI,* (1998) 1 SCC 226 ; *UOI v Association for Democratic Reforms,* (2002) 5 SCC 294 : AIR 2002 SC 2112 ; *People's Union for Civil Liberties v UOI,* (2011) 12 SCC 673 : 2011 (3) Scale 494 ; *Dewan Chand Builders & Contractors v UOI,* (2012) 1 SCC 101 : (2012) 1 CTC 421 .

71 *State of Maharashtra v Chandrabhan,* AIR 1983 SC 803 : (1983) 3 SCC 387 : (1983) 2 SCR 377 .

72 *A.K. Roy v UOI,* AIR 1982 SC 710 : (1982) 1 SCC 271 .

73 *Ramsharan v UOI,* AIR 1989 SC 549 : 1988 (2) Scale 1399 .

74 *Ningamma v Chikkiah,* AIR 2000 Karnataka 50 .

75 *Kharak Singh v State of UP*, AIR 1963 SC 1295 .

76 *Kharak Singh v State of UP*, AIR 1963 SC 1295 .

77 p. 1393, para 20 of AIR 1963 SC 1295 .

78 *Palko v Connecticut*, (1937) 302 US 319 (*326-7*).

79 This question was answered in the negative by Subba Rao C.J. for the majority in the subsequent case of *Satwant Singh* (see *below*).

80 *Payne v Arkansas*, (1957) 356 US 560 (*566*); *Pyare Lal v State of Rajasthan*, AIR 1963 SC 1094 (*1096*). **See** *Selvi v State of Karnataka,* AIR 2010 SC 1974 : (2010) 7 SCC 263 .

81 Para 11 of AIR 1963 SC 1295 .

82 *Watts v Indiana*, (1949) 338 US 48; *Turner v Pennsylvania*, (1949) 338 US 62.

83 Paras. 20-21 of AIR 1963 SC 1295 .

84 *Kharak Singh v State of UP*, AIR 1963 SC 1295 .

85 Para. 17 of AIR 1963 SC 1295 . **See** also *Ramlila Maidan Incident, Re,* (2012) 5 SCC 1 : (2012) Cr LJ 3516 .

86 Para. 15 of AIR 1963 SC 1295 .

87 *Satwant Singh v A.P.O.*, AIR 1967 SC 1836 .

88 *Gopalan v State of Madras*, (1950) SCR 88 (*262*), Mukherjee J.

89 *Munn v Illinois*, (1877) 94 US 113.

90 *Satwant Singh v A.P.O.*, AIR 1967 SC 1836 (*1844*, para 28).

91 DOUGLAS J., dissenting, in *Public Commn. v Pollack*, (1952) 343 PS 451 (*467*); **see** also Douglas, *The Right of the People (Pyramid, 1961), pp* 57, *et seq*.

92 See Massey, American Constitutional Law, 2nd Edn, p 474.

93 (1965) 381 US 479.

94 *Skinner v Oklahoma,* (1942) 316 US 535.

1 *Griswold v Connecticut*, (1965) 381 US 479 (*484-5*), per DOUGLAS J.

2 *N.A.A.C.P. v Alabama*, 1958 357 US 449. **See** also *NAACP v Button,* (1963) 371 US 415.

3 *Talley v California*, (1960) 362 US 60. **See** also *McIntyre v Ohio,* (1995) 514 US 334.

4 *Rochin v California*, (1952) 342 US 165.

5 *Griswold v Connecticut*, (1965) 381 US 479 (*484-5*), per DOUGLAS J; *Lewis v U.S.*, (1966) 385 US 206 (*213*); *Poe v Ullman*, (1961) 367 US 497; *Planned Parenthood v Casey*, (1992) 120 L.Ed. (2d) 674.

6 *Jones v U.S.*, (1960) 362 US 257.

7 *Katz v U.S.*, (1967) 389 US 347.

8 *Kovacs v Cooper*, (1949) 336 US 77.

9 *Breard v Alexandria*, (1951) 341 US 622.

10 *Gopalan v State of Madras*, (1950) SCR 88 (*262*), MUKHERJEE, J.

11 *Public Utilities Commn. v Pollak*, (1952) 534 US 451 (*467*), Douglas J., **dissenting**.

12 Referred to as “the knock at the door” in *Wolf v Colorado*, (1949) 338 US 50.

13 **Cf.** *Kharak Singh v State of UP*, AIR 1963 SC 1295 . (*1302* para 18).

14 *Gopalan v State of Madras*, (1950) SCR 88 (*262*), Mukherjee J.

15 *Union Pac. R. Co v Botsford*, (1891) 141 US 250 (*251*).

16 *Terry v State of Ohio*, (1968) L Ed (2d) 889, 392 US 1(*9*).

17 *Rajagopal v T.N.*, AIR 1995 SC 264 [para 28(1), (2)].

18 *People's Union for Civil Liberties v UOI,* (1997) 1 SCC 301 : AIR 1997 SC 568 ; *X v Hospital "Z",* AIR 1999 SC 495 : (1998) 8 SCC 296 . *People's Union of Civil Liberties v UOI,* AIR 2003 SC 2363 : (2003) 4 SCC 399 ; *Sharda v Dharmpal,* AIR 2003 SC 3450 : (2003) 4 SCC 493 .

19 *District Registrar and Collector v Canara Bank,* AIR 2005 SC 186 : (2005) 1 SCC 496 .

20 *Ram Jethmalani v UOI,* (2011) 8 SCC 1 : 2011 (6) Scale 691 .

21 *People's Union of Civil Liberties v UOI,* AIR 2003 SC 2363 : (2003) 4 SCC 399 .

22 (1998) 8 SCC 296 : AIR 1999 SC 495 .

23 *R. Rajagopal v State of TN,* (1994) 6 SCC 632 : AIR 1995 SC 264 : 1994 (4) Scale 494 ; **see** also *Directorate of Revenue v Mohd. Nissar Holia,* (2008) 2 SCC 370 : 2007 (13) Scale 744 .

24 *Rajagopal v T.N.*, AIR 1995 SC 264 [para 28(1), (2)].

25 *Olmstead v U.S.*, (1928) 277 US 438.

26 *Silverman v U.S.*, (1961) 365 US 505.

27 *Nardone v U.S.*, (1937) 302.

28 *Katz v U.S.*, (1967) 389 US 347.

29 *Katz v U.S.*, (1967) 389 US 347

30 *Lee v Florida*, (1968) 392 US 378.

31 *Katz v U.S.*, (1967) 389 US 347; *Berger v N.Y.*, (1967) 388 US 41.

32 (1944) 232 US 383.

33 **See** also *Mapp v Ohio,* (1961) 367 US 643.

34 **See** *United States v Leon,* (1984) 486 US 897; *Massachussets v Sheppard,* (1984) 468 US 981; *Arizona v Evans,* (1995) 514 US 1. **See** also Ralph A Rossum & G Alan Tarr, *American Constitutional Law*, 6th Edn, vol II, pp 289-90.

35 *Mitchell v Forsyth*, (1985) 478 US 311.

36 532 US 514 (2001)

37 **See** also *New Yark Times v Sullivan,* 376 US 254 (1964).

38 *R. v Leatham*, (1861) 8 Cox SC 198; *Jones v Owen*, (1879) 34 J.P. 759 ; *Kanju v R.*, (1955) 1 All ER, 236 (PC).

39 3 SCW 60; *Malone v U.K.*, (1984) 7 EH RR 14.

40 *R. v Preston*, *(1993) 4 All ER 638* (*650-51, 668, 669*) HL.

41 *Yusufalli v State of Maharashtra*, AIR 1968 SC 147 (*150*); also *Pratap Singh v State of Punjab*, (1964) 4 SCR 733 .

42 *Gopalan v State of Madras*, (1950) SCR 88 (*262*), Mukherjee J.

43 *Kharak Singh v State of UP*, AIR 1963 SC 1295 . (paras 17, 33).

44 *Malkani v State of Maharashtra*, AIR 1973 SC 157 .

45 *Rama v Giri*, AIR 1971 SC 1162 (*1165*).

46 *Malkani v State of Maharashtra*, AIR 1973 SC 157 .

47 *Gopalan v State of Madras*, (1950) SCR 88 (*262*), Mukherjee, J.; *Kharak Singh v State of UP*, AIR 1963 SC 1295 . (paras 17, 33); *Malkani v State of Maharashtra*, AIR 1973 SC 157 ; *Rama v Giri*, AIR 1971 SC 1162 (*1165*); *Makhan Singh v State of Punjab*, (1952) SCR 368 ; *Naranjan v State of Punjab*, AIR 1950 SC 106 ; *Krishnan v State of Madras*, (1951) SCR 621 .

48 *Yusufalli v State of Maharashtra*, AIR 1968 SC 147 (150); also *Pratap Singh v State of Punjab*, (1964) 4 SCR 733 .

49 *Malkani v State of Maharashtra*, AIR 1973 SC 157 .

50 *Amar Singh v UOI,* (2011) 7 SCC 69 . **See** also *People's Union for Civil Liberties v UOI,* (1997) 1 SCC 301 : AIR 1997 SC 568

51 *State of Maharashtra v Bharat Shantilal Shah,* (2008) 13 SCC 5 .

52 *Maneka v UOI*, AIR 1970 SC 597 (para 77) 7 judges.

53 *Maneka v UOI*, AIR 1970 SC 597 (para 77) 7 judges.

54 *Unni Kirshnan v State of AP,* (1993) 1 SCC 645 (paras 30-31, 47, 54, 142, 165, 171, 183) C.B.

55 *Govind v State of MP*, AIR 1975 SC 1378 (para 28).

56 *Sobraj v Supdt.*, AIR 1978 SC 1514 (paras 4-5); *Sunil v Delhi Admn. (I)*, AIR 1978 SC 1675 (paras 212, 241); *Maneka v UOI*, AIR 1978 SC 597 (paras 53, 70, 76, 77); *Sunil v Delhi Admn. (II)*, AIR 1980 SC 1579 (paras 4, 55); *Kishor v State of Rajasthan*, AIR 1981 SC 625 (paras 7, 10, 11).

57 *Vishaka v State of Rajasthan,* AIR 1997 SC 3011 : (1997) 6 SCC 241 ; *MP Human Rights Commission v State of MP,* AIR 2002 MP 239 ; *S. Lalitha Sundaram v R. Kethar Nathan,* AIR 2002 Madras 17 .

58 *Selvi v State of Karnataka,* AIR 2010 SC 1974 : (2010) 7 SCC 263 .

59 *Govind v State of MP*, AIR 1975 SC 1378 (para 28); *Satwant v A.P.O.*, AIR 1967 SC 1836 (para 35).

60 *Sunil v Delhi Admn.(I)*, AIR 1978 SC 1675 (para 35ff); *Rakesh v Supdt.*, (1981) Cr LJ 1438 (SC.); *Deena v UOI*, AIR 1983 SC 1155 ; *Sher Singh v State of Punjab*, AIR 1983 SC 465 (para 16).

61 *Sunil v Delhi Admn.(I)*, AIR 1978 SC 1675 .

62 *Sobraj v Supdt.*, AIR 1978 SC 1514 (paras 4-5); *Sunil v Delhi Admn. (I)*, AIR 1978 SC 1675 (paras 212, 241); *Maneka v UOI*, AIR 1978 SC 597 (paras 53, 70, 76, 77); *Sunil v Delhi Admn. (II)*, AIR 1980 SC 1579 (paras 4, 55); *Kishor v State of Rajasthan*, AIR 1981 SC 625 (paras 7, 10, 11).

63 *Prem v Delhi Admn.*, (1980) 3 SCC 526 .

64 *Hussainara v Home Secy.*, AIR 1979 SC 1360 (para 5); *Kadra v State of Bihar*, AIR 1982 SC 1165 (para 2); *Raghubir v State of Bihar*, (1986) 4 SCC 481 ; *Antulay v Nayak*, (1992) 1 SCC 225 . **See** also *Supreme Court Legal Aid Committee v UOI,* (1994) 6 SCC 731 ; *Shaheen Welfare Assn. v UOI,* (1996) 2 SCC 616 : AIR 1996 SC 2957 ; *Ramamurthy v State of Karnataka,* AIR 1997 SC 1739 ; (1997) 2 SCC 642 ; *R.D. Upadhaya v State of AP,* (2009) 17 SCC 561 ; *Rattiram v State of MP,* AIR 2012 SC 1485 : (2012) 4 SCC 516 ; *Ranjan Dwivedi v CBI,* AIR 2012 SC 3217 : (2012) 8 SCC 495 .

65 *Hoskot v State of Maharashtra*, AIR 1978 SC 1548 : (1978) 3 SCC 544 ; *Hussainara v Home Secy.*, AIR 1979 SC 1369 : (1980) 1 SCC 98 ; *Khatri v State of Bihar*, AIR 1981 SC 928 : (1981) 1 SCC 627 ; *Suk Das v Arunachal Pradesh*, AIR 1986 SC 991 (para 5) : 1986 (1) Scale 368 . **See** also *Rajoo v State of MP,* AIR 2012 SC 3034 : (2012) 8 SCC 553 ; *Mohd. Ajmal Amir Kasab v State of Maharashtra,*

AIR 2012 SC 3565 :
(2012) 9 SCC 1 .

66 *Vatheeswaran v State of TN*,
(1983) 2 SCC 68 .

67 *Sheela v UOI*,
AIR 1986 SC 1773 (para 12). **See** also *Jayawant P. Sankpal v Suman Gholap,* (2010) 11 SCC 208 :
2010 (7) Scale 540 ; *K.H. Shekharappa v State of Karnataka,* (2009) 17 SCC 1 :
2010 (3) Scale 681 ; *Mehboob Batcha v State,*
(2011) 7 SCC 45 :
2011 (4) Scale 20 ; *Prakash Kadam v Ramprasad Viswanath Gupta,*
AIR 2011 SC 1945 :
(2011) 6 SCC 189 .

68 *Shantistar v Totame*,
(1990) 1 SCC 520 ; *U.P.A.E.V.P. v F.C.H.S.*, (1995) Supp. (3) 456 (para 8). **See** also *Chameli Singh v State of UP,* AIR 1996 SC 1050
:
(1996) 2 SCC 549
; *Prabhakaran Nair v State of TN,* AIR 1987 SC 2117
:
(1987) 4 SCC 238
; *Gauri Shankar v UOI,* AIR 1995 SC 55
; *Olga Tellis v Bombay Municipal Corp,* AIR 1986 SC 180
:
1985 (2) Scale 5
; *Shanti Star Builders v Totame Narayan Khima Lal,* (1990) 1 SCC 520
:
AIR 1990 SC 630
.

69 *Paramanand v UOI*,
(1989) 4 SCC 286 .

70 *Vincent v UOI*,
(1987) 2 SCC 165 (para 16). **See** also *People's Union for Civil Liberties v UOI,* AIR 2008 SC 495 :
(2009) 16 SCC 149 ; *Farhad K. Wadia v UOI,*
(2009) 2 SCC 442 ; *Ramakant Rai v UOI,* (2007) 15 SCC 645 .

71 *Mehta v UOI*,
(1987) 4 SCC 463 .

72 *Unni Kirshnan v State of AP,*
(1993) 1 SCC 645 (paras 30-31, 47, 54, 142, 165, 171, 183) C.B.

73 *Express Newspapers v UOI*,
AIR 1958 SC 578 . **See** also *Reliance Petrochemicals Ltd v Indian Express,* AIR 1989 SC 190 :
(1988) 4 SCC 592 ; *Indian Express v UOI,*
AIR 1986 SC 515 :
(1985) 1 SCC 641 ; *Dainik Sambad v State of Tripura,* AIR 1989 Gauhati 30 ; *Sushil Chaudhary v State of Tripura,* AIR 1998 Gauhati 28
; *R. Rajagopal v State of TN,* AIR 1995 SC 264

: (1994) 6 SCC 632
.

74 *State of UP v Raj Narain,* (1975) 4 SCC 428 ; *S.P. Gupta v UOI,* AIR 1982 SC 149 : 1982 (2) SCR 365 : 1981 Supp SCC 87 ; See *Ministry of Information and Broadcasting, Government of India v Cricket Association of Bengal,* AIR 1995 SC 1236 : (1995) 2 SCC 161 ; *Dinesh Trivedi v UOI,* (1997) 4 SCC 306 . *People's Union for Civil Liberties v UOI,* AIR 2003 SC 2363 : (2003) 4 SCC 399 . **See** *Association for Democratic Reforms v UOI,* AIR 2001 Delhi 126 ; *People's Union for Civil Liberties v UOI,* AIR 2004 SC 1442 : (2004) 2 SCC 476 ; *State of UP v Raj Narain,* AIR 1975 SC 865 : (1975) 4 SCC 428 ; *S.P. Gupta v UOI,* AIR 1982 SC 149 : 1981 (Supp) SCC 87; *K. Ravikumar v Bangalore University,* AIR 2005 Karnataka 21 ; *Secretary, Ministry of Information & Broadcasting, Govt. of India v Cricket Assn. of Bengal,* AIR 1995 SC 1236 : (1995) 2 SCC 161 ; *Indian Express Newspaper (Bombay) Pvt Ltd v UOI,* AIR 1986 SC 515 : (1985) 1 SCC 559 ; *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 ; *Gadakh Yeshwantrao Karkar Rao v E.V. alias Balasahib Vikha Patil,* AIR 1994 SC 678 : (1994) 1 SCC 682 ; *Hindustan Times v High Court of Allahabad,* (2011) 13 SCC 155 : (2011) 3 Ker LT 882 .

75 *Peoples Union for Civil Liberties v UOI,* AIR 2004 SC 1442 : (2004) 2 SCC 476 .

76 *Bijoi Emmanuel v State of Kerala,* AIR 1987 SC 748 ; (1986) 3 SCC 615 . **See** also *Noise Pollution (V) In Re,* AIR 2005 SC 3136 : (2005) 5 SCC 733 .

77 *Excel wear v UOI,* AIR 1979 SC 25 : (1978) 4 SCC 224 : 1978-II-LLJ-527 .

78 *Sheela v UOI*, (1986) 3 SCC 596 .

79 *Mehta v UOI*, (1987) 4 SCC 463 ; *Rural Litigation v State of UP*, AIR 1987 SC 359 .

80 *Kalidas v State of J. & K.*, (1987) 3 SCC 430 .

81 *Vincent v UOI*, AIR 1987 SC 990 . **See** *People's Union for Civil Liberties (PDS matters) v UOI,*

(2010) 15 SCC 147 ; (2011) 14 SCC 559 ; (2011) 14 SCC 393 ; *People's Union for Civil Liberties v UOI,* (2010) 13 SCC 63 ; *Consumer Education & Research Centre v UOI,* (1995) 3 SCC 42 : AIR 1995 SC 922 ; *Kalyaneshwari v UOI,* (2011) 3 SCC 287 : 2011 (1) Scale 651 ; *People's Rights & Social Responsibility Centre v UOI,* (2010) 14 SCC 769 : AIR 1996 SC 3261 ; *People's Union for Civil Liberties v UOI,* (2010) 5 SCC 423 ; *People's Union for Civil Liberties v UOI,* (2010) 12 SCC 176 ; *Kirloskar Bros. Ltd v ESI Corp,* (1996) 2 SCC 682 (Health Care) : AIR 1996 SC 3261 ; *Paschim Bangla Khet Mazdoor Samity v State WB,* (1996) 4 SCC 37 (emergency medical aid) : AIR 1996 SC 3261 ; *Indian Council of Legal Aid & Advice v UOI,* (2000) 10 SCC 542 (visually handicapped check-up); *Aman Hingorani v UOI,* 1994 (Supp-3) SCC 601; *Upendra Baxi (Dr.) v State of UP,* (direction to improve the condition of Agra Mental Hospital); **see** also *Rakesh Chandra Narayan v State of Bihar,* (1994) 3 SCC 478 (Ranchi Mental Hospital); *Sheela Barse v UOI,* (1993) 4 SCC 204 and (1995) 5 SCC 654 (inhuman condition of mental hospital in WB); *Consumer Education & Research Centre v UOI,* (1995) 3 SCC 42 : AIR 1995 SC 922 ; *Kalyaneshwari v UOI,* (2011) 3 SCC 287 : 2011 (1) ScaleS 651–regarding improvement of working conditions of labourers in asbestos industry; *Milkman Colony Vikas Samithi v State of Rajasthan,* (2007) 2 SCC 423 – directing relocation of milk dairies outside city limits due to health hazard and nuisance caused by stray cattle.

82 *Raghubir Singh v State of Bihar*, AIR 1987 SC 149 ; *Ramdass v State of Bihar*, AIR 1987 SC 1333 .

83 *Altemesh v UOI*, AIR 1988 SC 1765 .

84 *Triveniben v State of Gujarat*, AIR 1980 SC 1335 .

85 *Parmanand v UOI*, AIR 1989 SC 2039 .

86 *Kishen v State of Orissa*, AIR 1989 SC 677 ; *Francis v Union Territory*, AIR 1981 SC 746 (*753*); *Bandhua v UOI*, AIR 1984 SC 802 (*811-12*).

87 *Reliance v Indian Express*, (1988) 4 SCC 592 .

88 *Kehar Singh v State*, AIR 1988 SC 1883 .

89 *Vikram v State of Bihar*, AIR 1998 SC 1782 .

90 Referred to as “the knock at the door” in *Wolf v Colorado*, (1949) 338 US 50.

91 *Subhash v State of Bihar*, AIR 1991 SC 420 (para 7). **See** also *Consumer Education and Research Centre v UOI,* (1995) 3 SCC 42 : AIR 1995 SC 922 ; *Kalyaneshwari v UOI,* (2011) 3 SCC 287 : 2011 (1) Scale 651 .

92 *Shantistar v Narayan*, (1990) 2 SCJ 10 (paras 8, 13). **See** also *UP Avas Evam Vikas Parishad v Friends Co-op. Housing Society Ltd,* AIR 1996 SC 114 ; *Chameli Singh v State of UP,* AIR 1996 SC 1050 : (1996) 2 SCC 549 .

93 *Ram Sharan v UOI*, 1989 SC 549 (paras 13 -14).

94 *Shantistar v Narayan*, (1990) 2 SCJ 10 (paras 8, 13); **Cf**. *Lakshmi Kant v UOI*, (1984) 2 SCC 244 (para 6); *Vishal v UOI*, (1990) 3 SCC 318 (para 14). **See** also *State of TN v K. Shyam Sundar,* (2011) 8 SCC 737 : (2011) 4 CTC 874 ; *Election Commission of India v St. Mary’s School,* AIR 2008 SC 655 : (2008) 2 SCC 390 .

95 *State of HP v Umed*, AIR 1986 SC 847 .

96 *Mohini v State of Karnataka*, AIR 1992 SC 1858 (paras 12-14). **See** also *Superstar Education Society v State of Maharashtra,* (2008) 3 SCC 315 : 2008 (2) Scale 573 ; *T.M.A. Pai Foundation v State of Karnataka,* AIR 2003 SC 355 : (2002) 8 SCC 481 ; *J.P. Unnikrishnan v State of AP,* AIR 1993 SC 2178 : (1993) 1 SCC 645 ; *Islamic Academy of Education v State of Karnataka,* (2003) 6 SCC 697 : AIR 2003 SC 3724 ; *P.A. Inamdar v State of Maharashtra,* AIR 2005 SC 3226 : (2005) 6 SCC 537 ; *Society for Unaided Pvt Schools of Rajasthan v UOI,* AIR 2012 SC 3445 : (2012) 6 SCC 1 .

97 *Murli Deora v UOI,* AIR 2002 SC 40 : (2001) 8 SCC 765 .

1 *Mehta v UOI*, (1987) 4 SCC 463 ; *Rural Litigation v State of UP*, AIR 1987 SC 359 ; *Subhash v State of Bihar*,

AIR 1991 SC 420 (para 7). *And Quiet Flows : The Maily Yamuna, Re.* (2009) 17 SCC 718 ; (2009) 17 SCC 708 ; (2009) 17 SCC 720 ; (2009) 17 SCC 545 .

2 *State of HP v Umed*, AIR 1986 SC 847 .

3 *R. v Preston*, *(1993) 4 All ER 638* (*650-51, 668, 669*) HL. **See** also *Bandhua Mukti Morcha v UOI,* (1984) 3 SCC 161 ; *Bandhua Mukti Morcha v UOI,* (1991) 4 SCC 177 : AIR 1992 SC 38 . **See** also *Bonded Labour System (Abolition) Act 1976*) *Bandhua Mukti Morcha v UOI,* (2000) 9 SCC 322 ; *Bandhua Mukti Morcha v UOI,* (2000) 10 SCC 104 .

4 *Sher Singh v State of Punjab*, AIR 1983 SC 465 (para 11); *Javed v State of Maharashtra*, AIR 1985 SC 231 (para 4).

5 *Sheela v UOI*, (1986) 3 SCC 596 ; *Upendra Baxi v State of UP*, (1986) 4 SCC 106 .

6 *Franch Coralie Mullin v Administrator,* AIR 1981 SC 746 : (1981) 1 SCC 608 ; *Ramamurthy v State of Karnataka,* AIR 1997 SC 1739 : (1997) 2 SCC 642 ; **see** also *Sheela Barse v State of Maharashtra,* (1988) 1 Bombay CR 54; *Prabha Dutt v UOI,* AIR 1982 SC 6 : (1982) 1 SCC 1 ; *State of Gujarat v High Court of Gujarat,* AIR 1998 SC 3164 : (1998) 7 SCC 392 (directing to give fair and equitable wages to prisoner).

7 *Anil Rai v State of Bihar,* AIR 2001 SC 3173 : (2001) 7 SCC 318 .

8 *Adkins v Children's Hospital*, (1923) 261 US 525. **See** also *West Coast Hotel Co v Parrish,* (1937) 300 US 379 : 57 S.Ct. 578.

9 *Holden v Hardy*, (1896) 169 US 366. **See** also *Lochner v New York,* (1905) 198 US 45.

10 *Robertson v Baldwin*, (1897) 165 US 275.

11 *Barenblatt v U.S.*, (1959) 360 US 109; *American Communications Assocn. v Douds*, (1950) 339 US 382.

12 **Cf.** *Euclid v Ambler Realty Co*, (1926) 272 US 365; *Berman v Parker*, (1954) 348 US 26.

13 *Meyer v Nebraska*, (1923) 262 US 399; *Burns Baking Co v Bryan*, (1924) 264 US 504 (*513*); *Watkins v U.S.*, (1957) 354 US 178. **See** also *Troxel v Granville,* (2000) 530 US 57 : 147 L Ed 2d 49.

14 *Gopalan v State of Madras*, (1950) SCR 74 (*85, 108*).

15 *Maneka v UOI*, AIR 1978 SC 597 (paras 68 ff, 135, 143); *Inderjeet v State of Punjab*, AIR 1983 SC 465 .

16 *Gopalan v State of Madras*, (1950) SCR 74 (*85, 108*).

17 *Vide* Author's on "*Tagore Law Lectures on Limited Government & Judicial Review*".

18 *E.g.,* Subba Rao, *Some Constitutional Problems*, p 5.

19 p. 289 of vol A of the 6th Edn Of this Commentary.

20 *Article 51A*.

21 Author's "*Tagore Law Lectures on Limited Government & Judicial Review*".

22 Author's "*Select Constitutions of the World*".

23 In the following pages, therefore, the relevant provisions of international documents relating to human rights have been reproduced side by side with the corresponding rights guaranteed by the Indian and other Constitutions; For a fuller treatment of human rights, see Author's "*Human Rights in Constitutional Law*".

24 For a fuller treatment of human rights, **see** Author's *Human Rights in Constitutional Law*.

25 **See** *Black's law Dictionary*, 5th Edn, 1979, p 925.

26 **See** Edwin Shorts & Claire De Than, *Civil Liberties Legal Principles of Individual Freedom*, 1998 Edn, pp 1-3.

27 **See** D D Basu, *Human Rights in Constitutional Law*, 2nd Edn, p 8.

28 Grotious, *De Jure Belliac Pacis* (translated by Campbell).

29 **Cf.** Concluding words of the Preamble to the Universal Declaration; *Article 2*. 1 of the Covenant of 1966; *Article 1* of the European Convention.

30 Thomas Buergenthal, *International Human rights in a Nutshell*, 2nd Edn, 1995, pp 29-30.

31 Sohn, *The Universal Declaration of Human Rights*, JUR *of the International Commission of Jursts*(1968) vol VIII, **Cf.** *Maneka v UOI*, AIR 1978 SC 597 (para 70).

32 3 SCW pp 44, 55ff. India has acceded to both Covenants, by a Declaration of 10 April 1979, subject to certain reservations.

33 For a fuller treatment of human rights, see Author's "*Human Rights in Constitutional Law*"; *Varghese v Bank of Cochin*, AIR 1980 SC 470 (para 6); *Gramophone Co v Pandey*, AIR 1984 SC 667 (para 29).

34 *National Human Rights Commission v State of Gujarat,* (2008) 16 SCC 497 .

35 **See** *Article 13*; *Ministry of Home Affair v Collins, (1979) 3 All ER 21* (PC).

36 *Marbury v Madison,* 5 US 137 (1803); *Kesarmana Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 .

37 *Maneka Gandhi v UOI,* AIR 1978 SC 597 : (1978) 1 SCC 248 .

38 *Varghese v Bank of Cochin,* AIR 1980 SC 470 : (1980) 1 SCC 360 .

39 *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 ; *Rajendra v State of UP,* AIR 1979 SC 916 : (1979) 3 SCC 646 .

40 *Minerva Mills v UOI,* AIR 1980 SC 1789 : (1980) 2 SCC 591 .

General

41 *Kesavananda Bharati v State of Kerala,* AIR 1973 SC 1461 : (1973) 4 SCC 225 .

42 *Francis v Union Territory,* AIR 1981 SC 746 : (1981) 1 SCC 608 .

43 *Sunil v Delhi Admn.,* AIR 1980 SC 1579 : (1980) 3 SCC 488 ; *Kishar v State of Rajasthan,* AIR 1981 SC 625 : (1981) 1 SCC 503 ; *Selvi v State of Karnataka,* AIR 2010 SC 1974 : (2010) 7 SCC 263 .

44 *Kadra v State of Bihar,* AIR 1981 SC 939 : (1981) 3 SCC 671 .

45 *Manka Gandhi v UOI,* AIR 1978 SC 597 : (1978) 1 SCC 248 .

46 *People's Union for Civil Liberties v UOI,* AIR 1982 SC 1473 : (1982) 3 SCC 235 .

47 *Nihel Singh v Rambai,* AIR 1987 MP 126 . **See** D D Basu, *Constitution* and Human Rights, 2nd Edn, pp 27-28.

[Art 12] Definition.-

DD Basu: Commentary on the Constitution of India, 9th ed, Vol 1, Articles 1 - 13

D D BasuJustice S S Subramani

THE CONSTITUTION OF INDIA; VOL 1

PART III FUNDAMENTAL RIGHTS

[Art 12] Definition.-

In this Part, unless the context otherwise requires, “the State” includes the Government and Parliament of India and the Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India.

[Art 12.1] Scope of Article 12: “In this Part”

The definition in *Article 12* is only for the purpose of application of the provisions contained in Pt III. Hence, even though a body of persons may not constitute “State” within the instant definition, a writ under *Article 226* may lie against it on non-constitutional grounds or on ground of contravention of some provision of the *Constitution* outside Pt III, *e.g.*, where such body has a public duty to perform or where its acts are supported by the State or public officials.[1]

Article 226 confers wide powers on the High Courts to issue writs in the nature of prerogative writs. The words “any person or authority” used in *Article 226* are not confined to statutory authorities and instrumentalities of State. They may cover any person or body performing public duty. The form of the body concerned is not very much relevant. What is relevant is the nature of duty imposed on the body. The body must be judged in the light of positive obligation owned by the person or authority to the affected party, no matter by what means the duty is imposed.[2] It is only when a person or body performing a public function or discharging a public duty, *Article 226* could be invoked against such a person.[3] When an element of public interest is created and the institution is catering to that element (though private institutions) a writ petition was held maintainable.[4] While explaining “any person or authority” as worded in *Article 226*, the court held that a court can issue a writ to “any person or authority” provided it is performing a public duty. What is relevant is the nature of the duty imposed on the body. The duty must be judged in the light of positive obligation owned by the person or authority to the affected party. No matter by what means the duty is imposed, if a positive obligation exists, “*mandamus*” cannot be denied. It was also held that *mandamus* cannot be denied on the ground that the duty to be enforced is not imposed by the statute.[5] Any private school receiving aid, is amenable to the writ jurisdiction especially when the Director of Education who is instrumentality of -state is participating in the decision making process. It will amount to “State action”.[6]

But an educational institution which is not recognised nor had applied for affiliation with any University and there is nothing to show that the education imparted by the said institution was covered by the term “education” under this local Act, it would not be a “State” under this article.[7]

A house building Society Constitutional for the members of the Parliament and legislatures assembly from the state, where the land was transferred by the Government and working state society was also controlled by the local government in a “State”.[8]

Where an institution is not financially, functionally and administratively controlled by the Government, it will not be a State. Indian Institute of Bankers is not a State.[9]

The definition of the "State" given under *Article 12*, is only applicable for the purpose of Pt III meaning thereby, the instrumentalities or agencies of the state are also subject to all constitutional limitations as enshrined in Pt III.[10]

To maintain a writ against a person or a non-statutory body, it is necessary that the order must be in discharge of public function or discharges public duty. Private companies would normally be not amenable to the writ jurisdiction under *Article 226 of the Constitution*. But in certain circumstances a writ may be issued to such private bodies or persons as these may be statutes, which need to be complied with by all concerned including private companies. A private body discharging public duty or positive obligation of a public nature or a person or body under a liability to discharge any function under any statute is also amenable to the writ jurisdiction. A private bank carrying banking business cannot be termed as an institution carrying on statutory or public duty.[11]

It was held that a writ petition is a remedy in public law which may be filed by any person, but the main respondent should be either the Government, government agencies or a State or instrumentalities of a State within the meaning of *Article 12*. Private individuals cannot be equated with State or instrumentalities of the State. All the respondents in the writ petition cannot be private parties. But private parties acting in collusion with State can be respondents in a writ petition. Under the phraseology of *Article 226*, the High Court can issue writ to "any person", but the person against whom writ will be issued must have a statutory or public duty to perform.[12] Writ against a private person is available only in a writ of *habeas corpus*. In such cases, *habeas corpus* is issued not only for release from detention by the State, but also for release from private detention. In *Shalini Shyam's case,* it was held that a private person become amenable to writ jurisdiction only if he is connected with a statutory duty or only if he/she discharges public duty.[13]

The Delhi High Court has held that for the purpose of issuing a writ of *mandamus*, that the office should be a creature under a statute. Public office is one where the powers and duties pertaining to the office relate to a large section of the public. It was therefore held that Principal of a private college is amenable to writ jurisdiction.[14]

In other words, the definition of "State" in *Article 12* will include not only the Executive and Legislative[15] organs of the Union and the States, but also local bodies (such as municipal authorities) as well as "other authorities",[16] which include the "instrumentalities or agencies" of the State, or bodies or institutions which discharge public functions of a governmental character,[17] or, in other words, it comprises all acts which can be brought within the fold of "State action'[18] [*see post*].

What is public function? In *Jatya Pal Singh v UOI,*[19] the Supreme Court has relied on the,

> …United Kingdom Human Rights Act 1998 (Meaning of Public Function) Bill which sets out factors to be taken into account in determining whether a particular function is a public function, for the purpose of sub-section (3) (d) of Section 6 of the Act. The Section enumerates the following factors which may be taken into account for determining the question as to whether a function is a function of public nature - 1. (a) The extent to which the State has assumed responsibility for the function in question; (b) the role and responsibility of the State in relation to the subject matter in question; (c) the nature and extent of the public interest in the function in question; (d) the nature and extent of any statutory power or duty in relation to the function in question; (e) the extent to which the State, directly or indirectly regulates, supervises or inspects the performance of the function in question; (f) the extent to which the State makes payment for the function in question; (g) whether the function involves or may involve the use of statutory coercive

powers; (h) the extent of the risk that improper performance of the function might violate an individual's convention right.

For the avoidance of doubt, for the purpose of section 6(3)(b) of the Human Rights Act 1998, as per the said Bill, a function of a public nature includes a function which is required or enabled to be performed wholly or partially at public expense, irrespective of: (a) the legal status of the person who performs the function, or (b) whether the person performs the function by reason of a contractual or other agreement or arrangement. Relying on the above facts to decide whether the function is public or not, court held on facts that VSNL/TCL is not performing public function.

In that case, the Court also relied on the earlier decision in *Binny Ltd v Sadasivam*,[20] in which reliance was placed on the *Commentary on Judicial Review of Administrative Action* (5th Edn) by dE SMITH, WOOLF AND JOWELL. In chapter 3 para 0.24, therein it has been stated as follows[21]: "A body is performing a "public function" when it seeks to achieve some collective benefit for the public or a section of the public and is accepted by the public or that section of the public "as having authority to do so". Bodies therefore exercise public function when they intervene or participate in social or economic affairs in the public interest. Public function need not be the exclusive domain of the State. Charities, self-regulatory organisations, stock exchanges, Lloyds of London, Churches may in reality perform some types of public function. AS SIR JOHN DONALDSON MR urged, it is important for the court to "recognise the realities of executive power" and not allow their vision to be clouded by the subtlety and sometimes complexity of the way in which it can be exerted. Non-governmental bodies such as these are just as capable of abusing their powers as is government".

The Court, after extracting the above passages concluded: "These observations make it abundantly clear that in order for it to be held that the body is performing public function, the appellant would have to prove that the body seeks to achieve some collective benefit for the public or section of public and accepted by public "as having authority to do so."

Reference to the observation of SIR JOHNSON DONALDSON MR is in connection with the decision in *R v Panel on Take-overs and Mergers exparte Datafin plc*.[22] The above case involved the Panel on Take-overs and Mergers, a "self-regulatory body". The panel was an unincorporated association comprised of a chairman and a deputy chairman appointed by the Governor of Bank of England and twelve members representing various bodies active in the financial and business world. "The panel had no statutory prerogative or common law powers". Notwithstanding its lack of actual legal authority, the panel exercised considerable "*de facto*" power in drawing up and administering the City Code on Take-overs and mergers. A finding by the panel that there had been a breach of the Code could lead to the withholding of the admission of shares to the Official List of the Stock Exchange (the listing of shares was a statutory function performed under subordinate legislation implements EEL Directive). A breach of the Code was also an act of misconduct under the Stock Exchange rules. The Dept. of Trade and Industries stated that the govt. would not seek to have legislation enacted to regulate take-overs since it was considered better to rely on the flexibility and effectiveness of the self - regulatory mechanism of the panel. The final important point was that the panel did not owe its jurisdiction to any contractual source. The code and rulings applied to all those who wished to make a take-over not simply those who were members of bodies represented on the panel – so it could not be said that its jurisdiction was the result of contractual arrangements entered into with those whom it regulated. For these reasons, the panel was considered to be performing a public function and was amenable to judicial review. The position was summarised by the Master of the Rolls "As an act of government it was decided that in relation to take-overs, there should be a central regulatory body which would be supported and sustained by a periphery of statutory powers and penalties wherever non-statutory powers and penalties were insufficient or non-existent or where EEC requirement called for statutory powers."

Analysing the above decision, learned author CLIVE LEWIS in his book on *Judicial Remedies in Public Law* (2004, p 42) says:

> Bodies performing public duties or exercising powers that could be characterised as "public" may be subject to judicial review in respect of those powers and duties "even though the powers are not statutory or prerogative". Given wide and disparate range of bodies that operate in the administrative landscape and given a revitalised approach on the part of the court to judicial review, and the need to control potential abuses of power, a large number of non-statutory bodies might well be brought within the ambit of public law and judicial review. The difficulty will be to identify exactly what it is that makes a particular function public.

Relying on the above decision (*exparte Datafin plc case*), the learned authors A.W. BRADLEY & K.D. EWING have said: "Judicial review casts a long shadow and even regulatory bodies that do not exercise statutory function may be subject to judicial review. (p 303). At p 699, the learned authors further say: "When a public body's conduct is challenged as *ultra vires* or contrary to the statute, the court's attention focuses on the Act which is claimed to be the source of its authority. Often an answer is found by interpreting that Act. But the process of judicial review is not a narrow exercise in statutory interpretation. One reason for this is that acts taken under the prerogative or from another non-statutory source may themselves be subject to judicial review. (At p 730) It is further said: "The court's supervisory jurisdiction through *certiorari* extended also to prerogative powers and to regulatory bodies "even if they did not derive from statute" and (at p 738) it is further said: "Despite having no formal legal status, the City Panel on Take-overs and Mergers is subject to judicial review, since its functions "*de facto*" are in the nature of public law powers and are "indirectly supported by statutory sanction".[23]

In *Binny Ltd v Sadasivam*,[24] (which is relied on in *Jatya Pal Singh's case* (*supra*), learned Judge has relied on the observation of SIR JOHN DONALDSON MR as extracted in dE SMITH'S JUDICIAL REVIEW OF ADMINISTRATIVE ACTION - 5th Edn But in Sixth Edn of that book, there is no reference to such an observation, but importance is given to the suggestion of SIR JOHN DONALDSON MR which reads thus: "In *Exparte Datafin plc*., SIR JOHN DONALDSON MR suggested that possibly "the essential elements are what can be described as a public element, which can take many different forms and the exclusion from jurisdiction of bodies while the sole source of power is the consensual submission to its jurisdiction". He warned that even as the law then stood in the law reports it was possible to find enumeration of factors giving rise to jurisdiction, but it was a fatal error to regard the presence of all those factors as essential or as having exclusive of other factors. In subsequent cases, the courts have gone on to elaborate a variety of overlapping criteria designed to particularise the broad-based functional approach of the Master of the Rolls in *Datafin*.[25]

In *Datafin's case,* LLOYD LJ said: "The panel wields enormous power. It has a giant's strength. The fact that it is self-regulating, which means, presumably, that it is not subject to regulation by others and in particular by the Dept. of Trade and Industry makes it not less but more appropriate that it should be subject to judicial review by the courts. Learned Judge further said: "So long as there is a possibility, however remote, of the panel abusing its great powers then it would be wrong for the court to abdicate responsibility. The courts must remain ready, willing and able to hear a legitimate complaint in this as in any other field of our national life".

Where the statutory corporations are the "voice and hands" of Central Government, they are "authorities" under *Article 12* and will be considered as "State". A public authority is a body, which has public or statutory duties to perform, and which performs these duties and carries out its transactions for the benefit of the public and not for private profit. It was held that State is an abstract entity. It can only act through the instrumentality or agency of natural or juridical persons. Therefore, there is nothing strange in the notion of the State acting through a corporation and making it an agency or instrumentality of State.[26]

The Supreme Court has laid down the parameters or guidelines for identifying a body as coming within the definition of "other authorities" in *Article 12*. They are as follows: (1) If the entire share capital of the Corporation is held by Government, it would go a long way towards indicating that the Corporation is an instrumentality or agency of Government (2) Where the financial assistance of the State is so much as to meet almost entire expenditures of the Corporation, it would afford some indication of the Corporation being impregnated with governmental character. (3) It may also be a relevant factor whether the corporation enjoys monopoly status,

which is State conferred or State protected. (4) Existence of deep and pervasive State control may afford an indication that the Corporation is an agency or instrumentality. (5) If the functions of the Corporation are of public importance and closely related governmental functions, it would be a relevant factor in classifying the corporation as an instrumentality or agency of government. (6) Specifically, if a department of government is transferred to a Corporation, it would be a strong factor supportive of the inference of the Corporation being an instrumentality or agency of Government.[27]

In the *Zee Telefilms* case,[28] the Supreme Court has further held that since the socio-economic policy of government has changed and the State is distancing itself from commercial activities and concentrating on governance rather than on business, the scope for extending the scope of "other authorities" is no longer necessary. It was further held there is a dividing line between a State enterprise and a non -State enterprise, which is distinct, and the judiciary should not be an instrument to erase the said dividing line, unless the circumstances "of the day require it to do so" (Majority judgment). It was further held by the majority, that in the absence of any authorisation by State, if a private body chooses to discharge public function, which is not prohibited by law, it would be incorrect to hold that the action of the body would make it an instrumentality of State.

But the minority judgment held that "an authority" need not be a creature of statute. The powers enjoyed and duties attached need not directly flow from a statute. The authority need not be subjected to any statutory control or enjoy any statutory power, but the source of power exercised by it may be traced to the legislative entries and if the Rules and Regulations evolved by it are akin thereto, its action would be "State actions". The following tests was held to be kept in mind for the said purpose (1) When the body acts as a public authority and has a public duty to perform. (2) When it is bound to protect human rights. (3) When it regulates a profession or vocation of a citizen which is otherwise a fundamental right under a statute or its own rule. (4) When it regulates the right of a citizen in *Article 19(1)(a) of the Constitution* available to the general public. (5) Where it exercises a *de facto* or *de jure* monopoly. (6) When the state outsources its legislature power in favour of the authority. (7) When it has a positive obligation of public nature.

It was held that tests usually applied *i.e.* financial, functional and administrative control should not be applied in a case where the authority was established as a private body long time back, and subsequently become a representative of international fora and was allowed by the State to represent the State and where the authority acquires the status of monopoly for all practical purposes.

In view of the majority view, it was held that the Board of Control of Cricket in India (BCCI) was not a "State" or other authority and is not amenable to the jurisdiction under *Article 32 of the Constitution of India*.

When the body is financially, functionally and administratively dominated by or under the control of the government and such control is particular to the body and is pervasive, then it will be a "State" within *Article 12*. If the control is merely regulatory, it will not be a State.[29] It was held that a private company carrying on banking business as a scheduled bank, cannot be termed as an institution or a company carrying on any statutory or public duty. It was held that merely because Reserve Bank of India is laying down banking policy for the purpose of sound banking growth under Section 5(c)(u) of Banking Regulation Act, which the private banking company is bound to obey, will not make the private bank as discharging a public duty. The directions of Reserve Bank of India are only regulatory in character.

The fact that a body receives substantial funding from government to carry out its activities is only a marginal relevance in determining whether it is carrying out a public – that is government function. Many cultural organisations are heavily subsidised from taxation, but quite clearly that does not by itself make them susceptible to judicial review.[30]

It may be stated that in *Binny Ltd v Sadasivam,*[31] the Court also held that guidelines and principles applied by English courts cannot be fully applied to the Indian *Constitution*. The power of High Courts under *Article 226* is very wide and these powers have to be exercised by applying the constitutional provision and judicial guidelines

in case of violation, if any, of the fundamental rights guaranteed in Pt III of the *Constitution*. In the matter of employment of workers by private bodies on the basis of contracts entered into between them, the courts have been reluctant to exercise the power of judicial review and whenever the powers exercised as against private employers, it was solely done based on public law element involved therein. (para 16).

It was held that the multiple tests which is to be applied to ascertain the character of a body as following within *Article 12* or outside is to ascertain the nature of financial, functional and administrative control of the state over it and whether it is dominated by the Government and the control can be said to be deep and pervasive.[32] The real test to consider the status of the body is to see how far it is controlled by government and not the forms in which the body is constituted.[33] Since the State cannot impart education by itself and the mandate under *Article 45 of the Constitution* is implemented through various agencies, who receive and from Government is a "State" for the purpose this article.[34] Indian Banks Association which are created under Parliamentary Act or nationalised in terms of Banking Companies (Acquisition and Transfer of Undertaking) Act, 1970 is a "State" under *Article 12*.[35]

Even though a government company may be a "State" within the meaning of *Article 12*, as an agency or instrumentality of State, there does not exist a relationship of principal and agent and only the action of the said authorities would be state action.[36]

[Art 12.1.1] "The State".

Conversely, the definition in *Article 12* cannot be used to interpret any provision outside Pt III, *e.g.*, *Article 311*.[37] Hence, even though a statutory corporation, exercising statutory powers, would be "State" for the purposes of enforcing fundamental rights against it (*e.g.* under *Article 12*[38] or 14[39] or 16),[40] its employees cannot take advantage of *Articles 309-11*, for, their services are held not under the Government [38] of India or of a State, but under a separate legal entity,[38] even though that entity may be regarded as "State" for the purposes of *Article 12*, and its employees may resort to *Article 32* for violation of their fundamental rights by the corporation.[41]

The Benefit of *Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act 1995* can be claimed only by disabled persons who are employed (1) in a corporation established by or under a Central, Provincial or State Act; (2) an authority or body owned or controlled or aided by the Govt.; (3) a local authority; (4) Department of Government. When a disabled person is discharged from service (due to loss of vision) of a company incorporated under Companies Act 1956, such a person is not entitled to the benefit of the Act since the company is not a "State" under *Article 12*.[42]

Even if a company would be a "State" under this article; the terms and condition of services of its employee would be governed by contract of employment. Unless the term and condition of such a contract are governed by a statute or statutory rules, the provision of Contract Act would be applicable both at the formulation stage of the Contract as also determination thereof.[43] But instrumentalities of state as bound by the Constitutional Scheme regarding public employment which are applicable to Union and State Government and *Article 14* and *16* must be adhered to.[44]

It was held that merely because a juristic entity may be an "authority" and therefore "State" within the meaning of *Article 12* it may not be elevated to the position of "State" for the purpose of *Articles 309*, *310* and *311* which finds place in Pt XIV – the definition of "State" in *Article 12* which includes an "authority". Within the territory of India or under the control of Government of India is limited in its application only to Pt III and by virtue of *Article 36*, to Pt IV: it does not extend to other provisions of the *Constitution* and hence a juristic entity which may be a "State" for the purpose of Pt III & Pt IV would not be so for the purpose of Pt XIV or any other provisions of the *Constitution*.[45] Where the function of the society are of public importance and closely related to governmental function, if would be a state. But where the operation of the society are actually confined to its member only it to raise funds to its members and is not confined to state funds, such a society is not a society.[46] Even if a Co - operative Society cannot be termed as a "State" under *Article 12*, regard being had to the "public nature of their function", a writ could be issued under *Article 226*.[47]

Similarly, a statutory corporation would not be regarded as "State" for the purposes of *Article 131* or *311*,[48] unless it acts as a "State agency".[49] Where all the functions of a government department along with posts are transferred to some government corporation, the question arises as to how the transfer of services of the government employee will be treated because of *Article 311*. While *Article 311* applies to a government department, it does not apply to a corporation. In *State of Mysore v H. Pappanna Gowde*,[50] it has been held that because of *Article 311*, it is not open to the Government to declare even by a statutory rule that after transfer of the department along with post to a corporation, the holders of those posts under the department of Government shall cease to be in the service of the Government because that will violate *Article 311*, as a civil servant cannot be dismissed or removed from service. *Article 311* as such is not applicable to a Corporation. But, in such cases, the Government may give an option to the holders of such posts either to be absorbed in any other government department or to leave the govt. service and opt for the service of proposed corporation. Once he opts for service in the corporation, the government servant ceases to be in government service.[51]

[Art 12.1.2] *'Unless the context otherwise requires'*

The context of a provision in Pt III may exclude the meaning given by *Article 12* to the word "State". For instance, the expression "security of the State" in *Article 19*(2) refers not to the persons carrying on the administration of the State[52] but to the State as an organised political society[53] or the established order,[54] [See, further under *Article 19*(2), *post*].

[Art 12.1.3] *'Includes'*

This word indicates that the definition is not exhaustive. Hence, even though the definition expressly mentions only the Government and the Legislature, there might be other instrumentalities of State action within the sweep of the definition.[55] The non-mention of the Judiciary does not, therefore, necessarily indicate that the Courts are intended to be excluded from the definition.[56]

The Author is definitely of the opinion that by reason of the word "includes" the definition in *Article 12* enables the Indian Supreme Court to include within the definition all the three organs of the State (executive, legislative and *judicial*[57]) as well as all other authorities which have been included within the concept of State action in U.S.A., and that any narrowing down of the ambit of the definition would be defeating the object of inserting the definition in *Article 12*.[57]

It is gratifying to note that subsequent to the above observation of this Commentary, the Supreme Court has held[58] that the word "includes" indicates that the definition of "State" is not confined to a Government Department and the Legislature, but extends to any action—administrative (whether statutory or non-statutory), *judicial or quasi-judicial*—which can be brought within the fold of "State action", which violates a fundamental right.[59]

According to C.K. Thakker, J and M.C. Thakker,[59a] the judiciary should be included within the "inclusive" definition of State for the following reasons:—

(1).....there are three principal organs of the State – (i) the Legislature, (ii) the Executive and (iii) the Judiciary. Thus, the Judiciary is one of the vital organs of the State.

(2) State has been defined in *Article 12 of the Constitution* and if it does not expressly include the judiciary, it does not exclude it either.

(3) Again the definition is "inclusive" and it is settled law that the word "includes" enlarging the meaning of the words or phrases occurring in the body of the definition and generally it is used as an extension.[60]

(4) Both the Supreme Court and various High Courts have rule making powers and it cannot be disputed that

such rules would be “law” within the meaning of *Article 13*(2). Such rules may violate fundamental rights guaranteed by Pt III. If the judiciary is not “State” for the purpose of Pt III, the rules framed by the courts cannot be impugned as violating fundamental rights. However, such a case arose and Rule 12 of Order XXXV of the Supreme Court Rules was struck down as violating fundamental rights. The action may be said to be legislative or quasi-legislative and not judicial.

(5) *Article 32* provides remedies for enforcement of the fundamental rights. It does not make any exception in favour of the judiciary.

(6) Among the reliefs which on terms of *Article 32*, the Supreme Court may grant in favour of the persons approaching it complaining of the violation of their fundamental right are the writ of *certiorari* and prohibition which lie only in respect of judicial acts of a court “*stricto senso*”, though it lies against authorities which are not courts “*stricto senso*”, but are under an obligation to act judicially or quasi-judicially.[61]

(7) An action of a judge may also violate fundamental right of a person. A judge may also commit breaches of *Articles 14*, *15*, *16*, *19*, *etc.* For instance, a court-room is a public place and every person has the right to enter court-room. In an appropriate case, the public may, of course, be excluded by the Judge. But he cannot exclude a section of the public on the ground of race, religion or community without violating fundamental rights. Similarly, the Chief Justice of a High Court has no power to appoint officers of the High Court by making discrimination against other candidates on the ground of race, religion, caste or sex. Such appointments would be violative of *Article 16*.

(8) *Article 20*, which speaks of conviction for offences, punishments and testimonial compulsion, is addressed as much to courts as to executive and other authorities and the worst offenders would be the court if they went against this prescription. Similarly *Article 22*(1) is addressed to court and directs that no person who is arrested shall be denied the right to be defended by a legal practitioner of his choice. Therefore, the High Court cannot compel an accused in a criminal case to accept counsel of its choice without infringing his fundamental right.

(9) The doctrine of separation of powers has not been fully accepted under the *Constitution of India*. It cannot be disputed that both the Union and the State Governments function as quasi-judicial authorities under various statutory enactments. The question would at once arise that when the “government” exercises such powers, it is deemed to be a government falling within the definition of “State” or should be classified as a judicial authority wielding “judicial power of the State” so as to be outside the definition so that its decision and orders do not give rise to violation of a fundamental right. Reasonable construction of *Article 12*, however, does not and cannot permit the dissection of the “government” for the purpose of discovering the nature of the quality of the powers exercised by it, into the three fields of executive pure and simple, judicial and legislative or for the purpose of a fresh reclassification into certain categories. When the government exercises any power, be it executive pure and simple or a quasi-judicial under a statute or quasi-legislative in, say, framing subordinate legislation, it does so as “government” and no further sub-division of it is possible except for the purposes merely of academic study or for determining the nature of the relief which might be had by person affected by its activities in any particular field. Similarly, the Parliament is also not excluded when it exercises quasi-judicial function.

(10) There is no real resemblance between the scheme of courts under our *Constitution* and the Courts in England. Obviously, no prerogative writ of the Queen can go to a court in which the Queen herself is supposed to be present. This limitation has no significance to us. Since there is no real correspondence between courts in the two countries, the question can only be decided by considering if there is any good reason for excluding High Court from the area of the writ jurisdiction of the Supreme Court.

(11) Again, the majority judgment[62] is not correct in observing that in England “*certiorari* does not lie to quash the judgment of inferior courts of civil jurisdiction”. According to the majority judgment, in England, the judicial orders passed by civil courts of plenary jurisdiction in or in relation to matters brought before them are not held to be amenable to the jurisdiction to issue a writ of *certiorari*. But as SEERVAI rightly says, the attention of court was not invited to the subsequent development of law which showed that the above statement was not correct

and that writs of *certiorari* and prohibition could lie from a superior court to quash the decision of an inferior court.[63]

(12) In the United States also, the Judiciary is included within the term "State" in the context of fundamental rights. It is well settled that the judiciary is within the prohibition of 14th Amendment (due process clause).[64] Since *Article 14* of our *Constitution* corresponds to the 14th Amendment, there is no reason why the judgment of US Supreme Court should not apply equally to the Judiciary in India. HIDAYATHULLAH, J. rightly stated: "I think we should not hesitate to extend our protection to the fundamental rights in our country even if they be breached by the High Court".

(13) In *Ujjai Bai v State of UP*,[65] SUBBA RAO, J. (as he then was) observed that a fundamental right guaranteed under *Article 19* can be enforced against an administrative tribunal since such a tribunal comes within the meaning of "State" under *Article 12*. His Lordship further observed: "But it is contended that if the fathers of our *Constitution* intended to include in the definition authorities exercising judicial function, having included Govt. and Parliament, they would not have omitted to mention specifically the judicial institution therein. This argument may have some relevance whether a court of law is included within the definition of "State", but none when the question is whether an administrative tribunal is included in the said definition. Therefore, according to Subba Rao, J. whether the Judiciary can be said to be "State" within the meaning of *Article 12* was an open argument. It is respectfully submitted that the approach adopted by His Lordship cannot be said to be proper since the reasons holding an administrative tribunal to be a State apply with equal force to a judicial institution – pure and simple.

(14) Taking any view of the matter, Judiciary must be included within the expression of "other authorities" under *Article 12*. Courts are set up by statutes and they exercise powers conferred on them by law. Again the expression "other authorities" has been interpreted most liberally so as to include within it corporation, Government, companies, co-operative societies and other organs and there can be no justifiable ground or reason to exclude judiciary from it.

In *Bachan Singh v State of Punjab*,[66] BHAGAWATI, J. (as he then was) who delivered a dissenting judgment in "Death Sentence Matters" observed that law cannot confer an unguided discretion on courts. That is exactly what we mean when we say that the Government should be of laws and not of men and it makes no difference in the application of the principle, when "men" belong to the administration or the Judiciary. It is the basic requirement of *Article 14* that the exercise of discretion must always be guided by standards or norms so that it does not degenerate into arbitrariness and operate unequally on persons similarly situated. Where unguided and unfettered discretion is conferred on any authority, whether it be executive or judiciary, it can be exercised arbitrarily or capriciously by authority. Even judicial discretion not guided by any standards or norms would degenerate into judicial caprice and would clearly be arbitrary and violative of equal protection clause contained in *Article 14*.

(15) To approach the Supreme Court under *Article 32* for the enforcement of any fundamental right, is itself a fundamental right and the Supreme Court is bound to grant relief in such cases.[67] As HIDAYATHULLAH, J. observed: "I am of opinion that if this court is satisfied that a fundamental right has been trampled upon, it is not only the duty to act to correct it, but also obligation to do so". If the Judiciary will be excluded from the definition of "State", no writ can be issued by the Supreme Court to any judicial institution and Pt III of the *Constitution* would become futile and nugatory.

In the words of FRANKFURTER, "If the highest court of a State should candidly deny to one litigant a rule of law which concededly would apply to all other litigants in similar situation, could it escape condemnation as an unjust discrimination and therefore a denial of the equal protection of law?"[68]

(16) Last, not the least, the present author feels that even though the view taken by HIDAYATHULLAH, J. (as he then was) in the *Naresh Mirajkar's case* is proper and correct, the following observations are unfortunate and do not lay down the correct proposition of law. "It may be that his judicial orders normally are subject to

appeals, revision and reviews, but where none of these can be invoked and fundamental rights are involved, recourse to the guaranteed remedy may become necessary."[69]

In *UOI v Shankalchand Himatlal Sheth*,[70] BHAGAWATI, J. observed that a High Court Judge is as much a part of the State as the executive. If this is so, fundamental rights can be claimed against judiciary also. In an earlier case, Supreme Court was inclined to include "Judiciary" in the explanation of "State" in *Article 12*. DAS, J. observed: "It is suggested that discrimination may be brought about…even by judiciary and the inhibition of *Article 14* extends to all actions of the State denying equal protection of the laws whether it be the action of any one of the three limbs of the State.[71]

[Art 12.1.4] *"Authority"*

Literally "authority" means a person or body exercising power,[72] or having a legal right to command and be obeyed.[73] "An authority" is a group of persons with official responsibility for a particular area of activity and having a moral or legal right or ability to control others. (CAMBRIDGE INTERNATIONAL DICTIONARY). If a particular co-operative society can be characterised as a "State" under Article, 12, it would also be "an authority" within the meaning of *Article 226 of the Constitution*.[74] In the present context, authority means the power to make laws, orders, regulations and bye-laws, directions, etc., having the force of laws[75] [*Article 13*(3)], and also the power to administer, enforce or implement them.[76]

"Authority" means "a public administrative agency or corporation having quasi-governmental powers and authorized to administer a revenue producing public enterprise. It is wide enough to include all bodies created by a statute on which powers are conferred to carry out governmental or quasi-governmental functions.[77] "Authority" in law belongs to the province of power. Authority in administrative law is a body having jurisdiction in certain matters of a public nature. Therefore, the ability conferred upon a person by the law to alter, by his own will directed to that end, the rights, duties, liabilities or other legal relations, either of himself or of other persons must be present "*ab extra"* to make a person an "authority". When the person is an "agent" for instrument of the function of the State" the power is public.[78] "Authority" is clearly wide enough to include all bodies created by statute on which powers are conferred to carry out governmental or non-governmental functions.[79] It includes Central & State Governments.[80] The word "authority" has a definite connotation. It has different dimensions and thus must receive a liberal interpretation. In Concise Oxford English Dictionary (10th Edn), the word "authority" has been defined as (1) the power or right to give orders and enforce obedience; (2) a person or organisation exerting control in a particular political or administrative sphere; (3) the power to influence others based on recognised knowledge or expertise.[81]

A government company carrying on commercial activities incorporated under the *Companies Act* which does not have any power of making rules or regulation binding as law, nor the power to administer or enforce such rules or regulation is not an authority under this Article.[82] The word "authority" includes Central and State government.[83]

The words "State" and "Authority" used in *Article 12*, remain among "the great generalities of the *Constitution*" the content of which has been and continues to be applied by Courts from time to time.[84]

It thus includes all constitutional or statutory authorities on whom powers are conferred by law,[85] including even autonomous bodies,[85] and whether or not they are under the control of the Government or whether or not they may be regarded as agents or delegates of the Government.[86] What is important in this context, is the power of the authority and not the purpose for which such power has been conferred. Thus, if the other tests are satisfied, a statutory body established for the purpose of carrying on educational, social or even commercial functions, would be "authority" within the purview of *Article 12*.[87] A statutory board is an autonomous body and in a state and are bound to implement the constitutional scheme of equality.[88] The function may not be a sovereign function; if the body has the power of making subordinate legislation or statutory orders, with the power to compel obedience to them, it would be an "authority" under *Article 12*. On this principle, the following bodies have been held to be "State", under this Article

(i) A religious endowment Board[89] having the power to make rules or bye-laws under a statute.

(ii) The Chief Justice of High Court having the power to make rules having the force of law. [90]

In *Som Prakash Rekhi v UOI*,[91] KRISHNA IYER, J. has stated:

> If the entity is no more than a company under the Company Law or society under the law relating to registered societies or co-operative societies, you cannot call it "an authority". A ration shop run by a co-operative society financed by government is not an authority, being a mere merchant, not a sharer of State power. "Authority" in law belongs to the province of power. *Article 12* gives the cue to forbid this plea. "Other authorities" under the control of Govt. of India are comprehensive to rope in whatever any anonymous body which has some nexus with government. A wide expansion coupled with a wise limitation may and must readily and rightly be read into the last words of *Article 12*. The extended definition of the State in *Article 12* is not to be deadened but quickened by judicial decision.

In the absence of any statutory definition or judicial interpretation to the contrary, the normal etymological meaning of the expression has to be accepted as the true and correct meaning. By applying such meaning a government company, carrying as commercial activities incorporated under a statute i.e. *Companies Act*, which does not have any power of making Rules or Regulations building as law, nor the power to administer or enforce such Rules or Regulations against the citizen cannot be considered as an "authority".[92] "Local authority" means an authority legally entitled to or entrusted by the Government with the control or management of a local fund.

Hence Dock Labour Board is a local authority.[93] But a "Gram Panchayat" does not come within the ambit of "local authority".[94]

The object of including all "authorities" within the term "State" in this Part is, of course, to enlarge the scope of the fundamental rights which shall thus be binding upon every authority in India which has the power to make laws, bye-laws, etc. or the power to enforce them.

The object was thus explained by Dr. Ambedkar in the Constituent Assembly[95]—

> The object of fundamental rights is twofold. First, that every citizen must be in a position to claim those rights. Secondly, they must be binding upon every authority……which has got either the power to make laws or the power to have discretion vested in it. Therefore,…if the fundamental rights are to be clear, they must be binding not only upon the Central Government, they must not only be binding upon the Provincial Government, ……they must also be binding upon District Boards, Municipalities, even village Panchayats and taluk boards, in fact, every authority which has been created by law and which has got certain powers to make laws, to make rules or make bye-laws.

But the widening of the scope of the word "State" also widens the number of authorities who are entitled to impose limitations upon the fundamental rights, *e.g.*, under clauses (2)-(6) of *Article 19*.

Local authorities are under the exclusive control of the States, by virtue of entry 5 of List II of the 7th Schedule. That entry contains a list of some local authorities. A "local authority" is defined in section 3(*31*) of the *General Clauses Act* X of 1897[96] as follows—

> "local authority" shall mean a municipal committee, district board, body of port commissioner or other authority legally entitled to, or entrusted by the Government with, the control or management of a municipal or local fund.

This expression will, therefore, include a Municipal Committee;[97] a Panchayat;[98] a Port Trust.[97] Municipality is a "State" for the purpose of this Article.[99]

Local or other authorities may be a "State" within the meaning of *Article 12*. But that does not mean that the authorities are State Government or Central Government and there is distinction between "State" and Government.[1] But one essential feature is that it is legally entitled to or entrusted by the Government with the control and management of a municipal or local fund. The authorities must have a separate legal existence as corporate bodies. They must not be mere governmental agencies, but must be legally independent entities. They must function in a defined area and must ordinarily, wholly or partly, directly or indirectly, be elected by the inhabitants of the area. Next they must enjoy a certain degree of autonomy with freedom to decide for themselves question of policy affecting the area administered by them. The autonomy may not be complete and the degree of dependence may vary considerably, but appreciable measure of autonomy there must be. They must be entrusted by statute with such governmental functions and duties as are usually entrusted to Municipal bodies, such as those connected with providing amenities to the inhabitants of the locality like health and education services, water service, *etc.* Broadly they must be entrusted with the performance of civic duties and functions which would otherwise be governmental duties or functions. Finally they must have power to raise funds for the furtherance of their activities and fulfilment of their projects by levying taxes, rates, charges, fees, *etc.* This may be an addition to moneys provided by Government obtained by borrowing or otherwise. What is essential is that control or management of the fund must vest in the authority.[2]

Local bodies are subordinate branches of Government activity. They are political sub-divisions and agencies which exercise a part of State function (as they are intended to carry on local self-government the power of taxation is a necessary adjunct to their other powers). They function under the supervision of the Government.[3] Where an authority is not entrusted by government with control or management of local fund, it is not a local authority under *Article 12*.[4] The State Transport Corporation is not a local authority.[5] The Haryana Housing Board is not a local authority.[6] A university is a local authority.[7]

[Art 12.1.6] *'Other authorities'*

"Other authorities" refers to authorities other than those of local self-Government, who have power to make rules, regulations, etc., having the force of a law. In view of the Supreme Court decision[8] that there is no common genus[9] in *Article 12* and that, accordingly, this expression "other authorities" cannot be construed *ejusdem generis* with the authorities specifically mentioned, it is now clear that in order to be "State" an authority need not exercise of governmental functions or constitute an instrumentality of the Government.[10] The real test, as pointed out earlier, is whether it is endowed with constitutional or statutory powers.[11] If that test is satisfied, even a statutory corporation, having a legal entity separate from the State, and carrying on non-governmental functions, would be "State" under *Article 12*, *e.g.*, a University[12] the State Trading Corporation.[13] That the "other authorities" included in *Article 12* have no common genus.[14]

The terms – "instrumentality" or "agency" of the State – are not to be found mentioned in *Article 12*. It is by process of judicial interpretation – nay expansion – keeping in view of sweep of *Article 12*, that they have been included or following within the net of *Article 12* subject to the satisfying certain tests. While defining, the use of "include" suggests – what follows is not exhaustive. The definition is expansive of the meaning of the term defined. However, the expanding dimension of the "State" doctrine through judicial wisdom sought to be

accompanied by wise limitation, else the expansion may go much beyond what even the framers of *Article 12* may have thought of.

"Instrumentality" and "agency" are the two terms, which to some extent overlap in their meaning. "Instrumentality" includes "means" also, which "agency" does not in its meaning. Quasi-governmental agency is a government sponsored enterprise or corporation (sometimes called government controlled corporation). Authority is the "person or persons in whom government or command is vested."[15]

The basic and essential distinction between "an instrumentality or agency" of the State and "other authorities" has to be borne in mind. An "authority" must be authority *sui juris* to fall within of the meaning the expression "other authorities" under *Article 12*. A juridical entity, though an authority may also ratify the list of being an instrumentality or agency of the State in which event such authority may be held to be an instrumentality or agency of State, but not *vice versa*.[16]

The principle, while discharging public functions and duties, the government companies/corporation/societies which are instrumentalities or agencies of the Government must be subjected to the same limitations in the field of public law – constitutional or administrative law – as the Government itself does not lead to the inference that they become agents of Centre/State government for all purposes so as to bind such Government for all their acts, liabilities and obligation under various Central and/or State Acts or under private law.[17]

Though the government companies will be a "State" within the meaning of *Article 12*, the relationship between the Government and the "State" company is not that of principal and agent and only the action of the said authorities would be State actions. The Government companies or public sector undertaking being "States" would be constitutionally liable in respect of life and liberty of all persons in term of *Article 21*. But when the State *i.e.* Government of the State is in absolute control and sole shareholder of the company, in the matter of enforcement of human rights and/or right of the citizens to life and liberty, the State has an additional duty to see the rights of the employees of such corporations are not infringed. The right to exercise deep and pervasive control over these companies would in its turn, make the government liable to see that life and liberty of employees are fully safeguarded. Even though the State may not be liable in relation to the day-to- day functioning of the companies, its liability would arise on its failure to perform the Constitutional duties and functions by the public sector undertakings as in relation thereto lie the State's constitutional obligations. The State acts in a fiduciary capacity.[18]

Export Credit Guarantee Corporation of India Ltd. is an instrumentality of State discharging public functions. Writ petition as against "a State" or "an instrumentality of State" is maintainable even in contractual matters. Merely because some disputed questions of fact are involved, or a consequential money claim is involved, the court cannot refuse to exercise jurisdiction under *Article 226*.[19] A private school getting building aid from government is amenable to writ jurisdiction.[20]

Where the State provides to the institution large financial assistance and is protected by State and the existence of deep and pervasive control, *i.e.,* functionally, financially and administratively under the control of State, it is a State.[21]

[Art 12.1.7] A list of 'other authorities' coming under Article 12

There is no common feature running through the various bodies,[22] which have been held to be covered by the expression "other authorities".

1. The expression refers to—

[Art 12] Definition.-

(i) Instrumentalities or agencies,[23] of the Government and Government Departments.[24] But every instrumentality of the Government is not necessarily a "Government Department".[25]

(ii) Every type of public authority, exercising statutory powers,[26] whether such powers are governmental or *quasi*-governmental[22] or non-government[22] and whether such authority is under the control of Government or not, and even though it may be engaged in carrying on some activities in the nature of trade or commerce,[22] *e.g.*,

A Board,[27] a University,[28] the Chief Justice of a High Court,[29] having the power to issue rules, bye-laws or regulations having the force of law [27] or the power to make statutory appointments;[29a] a public corporation[30] a Government undertaking.[31]

(iii) An authority set up under a statute[32] for the purpose of administering a law enacted by the Legislature, including those vested with the duty to make decisions in order to implement them.[33]

(a) a private body or a company,[34] or

(b) society registered under the *Societies Registration Act*,[35]

(c) corporation set up under the *State Financial Corporation Act, 1951*,[36]

The words "other authorities" mentioned in *Article 12* have reference to independent authorities having origin in a statute or other law. An institution, such as the "Bank of Baroda" which is owned and controlled by the State Govt. comes within the meaning of "State" as used in *Articles 12* and *308* of *Constitution*, but not within the meaning of "other authorities".[37]

National Book Trust is "other authority" under *Article 12*.[38]

An instrumentality of State under *Article 12* cannot be treated as Govt. and as its officers being not directly in the service or pay of Govt. or remunerated by fees or commission for the performance of public duty are not public officers. To institute a suit against such instrumentality, Notice under section 80 is not necessary.[39]

The Board of Control for Cricket in India (BCCI) cannot be regarded as "other authority" or instrumentality of State. When a private body exercises its public function even if it is not a State, aggrieved person has a remedy not only under the ordinary law, but also under the *Constitution* by way of writ petition under *Article 226*. Therefore, merely because a non-governmental body exercises some public duty that by itself would not suffice to make such body a State for the purpose of *Article12*.[40] The Karnataka State Forest Industries Corporation is "other authority".[41]

Public Sector Banks are also "other authorities" under *Article12*.[42]

Where the functions earlier performed by Cane Development Dept. of Govt. were later transferred to a Corporation (Uttar Pradesh Ganna Kishan Sansthan), but the Government had deep and pervasive control over the said Corporation, it is a "State" under *Article 12*.[43]

An entity falling under "other authorities" cannot be equated with State government. Hence employees of such entity (*i.e.,* other authorities) cannot be treated as government employees. Merely because State Government

gives financial assistance, the State Government cannot be made liable for the salary of the employees of "other authorities".[44]

The American Embassy School is not recognised or affiliated by any authority in India. Thus, it is not an "authority" under *Article 226*. Hence, the petition is not maintainable.[45]

2. But—

A non-statutory body, exercising no statutory powers[46] is not "State", *e.g.*,

(i) A company.[47]

(ii) Private bodies having no statutory power,[48] not being supported by a State act.[49]

An "unaided minority school" over which government has no control is not a "State". Hence, teachers of such schools cannot claim, as of right, pay parity with teachers of government schools.[50]

The State Council of Education, Research and Training (SCERT) was held not a State nor an instrumentality of State. The simple litmus test to determine whether an entity is a State or other authority within the meaning of *Article 12* is to verify various facets of the foundation. They are, the working of the entity, duties entrusted to it or taken up by it for performance which are relevant. The very formation of an independent society under *Societies Registration Act* would suggest that the intention was not to make the body a mere appendage of the State.[51]

Where a society (Triad Trading Services Ltd.) is regulated by the *Monopolies and Restrictive Trade Practices Act* and is doing business in supply of milk and milk products, the court held that the society is under persuasive control of government and hence comes under *Article 12*.[52] In the case of "non-aided" private educational institution, when the teachers seek pay parity with that of teachers of government school, the court held that the teachers have an enforceable right because right to education is a fundamental right and there is an element of public interest.[53]

(iii) A society, registered under the *Societies Registration Act*,[54] unless it can be held that the Society was an instrumentality or agency of the State,[55] or exercises statutory power to make rules, bye-laws or regulations having statutory force.

(iv) An autonomous body which is controlled by the Government only as to the proper utilisation of its financial grant.[56]

3. Even a private body or a corporation[57] or an aided private school[58] may, however, be included within the definition of "State" if it acts as an "agency" of the Government.[59]

4. In determining whether a corporation or a Government company[60] or a private body is an instrumentality or agency of the State, the following tests would be applicable:[61]

(i) Whether the entire share capital is held by the Government.

(ii) Whether the corporation enjoys monopoly status conferred by the State.

(iii) Whether the functions of the corporation are governmental functions or functions closely related thereto which are basically the responsibilities of a Welfare State.[62]

(iv) If a department of the Government has been transferred to the corporation.

(v) The volume of financial assistance received from the State.[63]

(vi) The quantum of State control.[63]

(vii) Whether any statutory duties are imposed upon the corporation.[63a]

(viii) The character of the corporation may change with respect to its different functions.[64]

Even amongst these factors, no one single factor may not yield a satisfactory answer, the court will have to consider their *cumulative effect*.[65]

The Hon'ble Supreme Court considered the entire law and held that to consider whether an authority is a State or instrumentality or agency of State, within the meaning of *Article 12*, the question in each case would be – whether in the light of the cumulative facts as established, the body is financially, functionally and administratively dominated by or under the control of Government. Such control must be particular to the body in question and must be pervasive. If this is found then the body is a State within *Article 12*. On the other hand, when the control is merely regulatory whether under statute or otherwise, it would not serve to make the body a State.[66] In *Sukhdev Singh v Bhagatram*,[67] K. K. MATHEW, J. delivered a separate but concurring judgment and while holding that the Life Insurance Corporation of India, Industrial Finance Corporation and ONGC are all "other authorities", observed:

> In the modern concept of Welfare State, Statutory Corporations are agencies or instrumentalities of State. Even though these corporations have independent personalities in the eyes of law, they are subject to control." It was further observed: "It may be stated generally that State financial aid does not render the institution receiving such aid a State agency. Financial aid plus additional factor might lead to a different conclusion. A mere finding of State control also is not determinative of the question, since the State has considerable measure of control under its police power over all types of business operations. A finding of State financial support plus an unusual degree of control over the management and policies might lead one to characterise an operation as State action.

The said principle was applied and followed by the Supreme Court in subsequently in *Zee Telefilms Ltd v UOI,*[68] following the above guidelines it was held that the Board of Cricket Control in India (BCCI) is not a State for the following reasons (1) The Board is not created by a Statute (2) No part of the share capital of the Board is held by Government (3) Practically no financial assistance is given by the Government to meet the whole or entire expenditure of the Board. (4) The Board does enjoy a monopoly status in the field of cricket, but such status is not State conferred or State protected (5) There is no deep or pervasive State control. The control, if any, is only regulatory in nature as applicable to similar bodies and the control is not specifically exercised under any special statute applicable to the Board. All functions of the Board are not public functions nor are they closely related to governmental functions. (6) The Board is not created by transfer of a government owned corporation. It is an autonomous body. (Majority View).

There is no simple litmus test to determine whether an entity is a "State" or "other authority" within the meaning of *Article 12*. Various facets of the foundation and the working of the entity are relevant in determining the

question in the context of the duties entrusted to it or taken up by it for performance. When the authority is primarily regulated by the *Societies Registration Act*, rather than by State government and the intention is to keep the authority as an independent body, the same is an important indication to show that it is not a State or other authority. Where the society is allowed operational autonomy with further power to amend the byelaws subject to the provisions of *Societies Registration Act*, it is also an element to be considered while deciding whether it is a State. Where the Government has no deep and pervasive control over the working of the society, in spite of the fact that the government is financially assisting the society, but having no financial control in the sense that when once the finance is made available to it, the administration or management of those finances is not under its control, such a society cannot be said to be a “State” or “other authority”. When the society is registered under *Societies Registration Act*, it is clear that the intention is not to make the body an appendage of the State.[69]

The Pricing Committee for determination of price as terms and conditions of supply of forest produce to forest corporation has been constituted by government under a Memorandum of Associations of Corpn. It cannot be treated as a quasi-judicial tribunal and is also not constituted in exercise of plenary administrative powers of the State govt. A decision of such a committee cannot be given effect to by High Court under *Article 226* since it is neither a “State” nor “other authority”.[70]

[Art 12.1.8] University Comes Under ‘Other Authorities’[71]

Even if a university, college or any other educational institution cannot be treated to be “other authority” under *Article 12 of the Constitution*, there is no doubt that a writ under *Article 226 of the Constitution* would lie against such institution as the Supreme Court observed in *Shri Anandi Mukta Sadguru Shree Muktaji Vandajiswami Swarna Jayanthi Mahotsav Smarak Trust v V.K. Rudrani*.[72] In that case, Supreme Court observed that the term “authority” under *Article 226 of the Constitution* must receive a liberal construction unlike the term in *Article 12*. It is pointed out that the words “any person or authority” used in *Article 226* are not to be confined to statutory authorities or instrumentalities of the State and they may cover any other person or body performing public duty. In that case, the court held: “Aided institutions like government institutions discharge public function by way of imparting education to students. They are subject to rules and regulations of the affiliating university and the university authorities closely supervise their activities. Employment in such institution is not devoid of any public character”.

[Art 12.1.8.1] *Decided cases of various High Courts:*

Where the share capital of Bihar Industrial and Technical Consultancy Organisation Ltd. is held by statutory organizations which are all “States” within the meaning of *Article 12*, the organization will be a “State” under *Article 12*.[73] It was also held in that case that as the promotion of industrial growth in the State is a matter of governmental concern, any organization which is set up to promote its growth also carries on the same organizational functions, as such, will be a “State”. If the entity is not more than a company under the *Companies Act* or a Society, under law relating to registration of Societies, it cannot be called as other authorities, within the meaning of *Article 12*. But when the corporation is performing some public duty and is not merely carrying on commercial activity it can be considered as a “State”.[74] A temple managed and administered by Devaswom Board is a State under *Article 12*.[75] Himachal Pradesh State Industrial Development Corporation was held to be State since it is wholly government owned company and the government has got pervasive control over the same, especially when all officials controlling and managing the corporation is appointed by Government.[76] BSNL (Bharat Sanchar Nigam Limited) is a “State” within the meaning *Article 12* as all assets of Department of Telecommunication along with liabilities were transferred to BSNL and also all its employees (except Group A & Group B) were absorbed in the new company.[77] Punjab Knit Wear Corporation was held to be an agency of State since the State held the entire shareholding and had deep and pervasive control.[78] Constitutional or statutory bodies set up under a Statute or a body or person performing the function of Governmental Character is “other authority and as such IGNCA is an instrumentality of State, though it is in favour of a Trust.[79] Madhya Pradesh Housing Board was held to be an authority under *Article 12*.[80] The Stock Exchange is not an authority or agency of Government. Since stock exchanges are totally independent of Government control and State does not lay down policies for the stock exchange.[81] Electricity Board is a State.[82] Central Ware Housing Corporation is a State.[83] Regional Transport Authority is a “State”.[84] A Co-operative Urban Bank, though obtain a license of Reserve Bank of India is not a State, as it did not perform any public duty.[85] Institute of Engineers is not an authority under *Article 12*.[86] National Co-operative Consumers’ Federation of India is not a State since it does not receive any financial assistance from the Government.[87]

Kerala History Association though established for promoting and encouraging interest in study of history and archeology of the State, it is not “an authority” since it is not funded by the State.[88]

Cathedral Educational Society which runs a Cathedral School, a private minority institution unaided and not managed by government is not an agency or instrumentality of State.[1] Indian Institute of Bankers is not a State source it is autonomous body and there is no deep pervasive state Control.[2] The M.P. Bharat Scout and Guides which is a society is not performing any governmental function and is not a “State” under *Article 12*.[3] The National Co-operative Consumer Federation was held as not a state.[4] A spinning mill which is fully a government company is amenable to the writ jurisdiction within the extended meaning of *Article 12*.[5] Travancore Devaswam Board was held to be a State, being constituted under Travancore Cochin Hindu Religion Institution Act, 1950.[6]

State Co-operative Milk Producers’ Federation was held to be a State since most of the finances required for running its offices are provided by the Government and it undertakes the function, which was earlier discharged by Government.[7] The State Housing Board was held to be a State since there is a pervading control of the State Government in the management and execution of words by the Board including financial control.[8] Co-operative Societies, which do not perform governmental functions, and where there is no deep or pervasive control by the State Government they are not “State” under *Article 12*.[9] Engineering Export Promotion Council is only a disbursing authority for which the funds are provided by Government of India and which controls its activities a “State”.[10] Merely because Government has paid subsidy to the extent of 25% for establishing a common effluent treatment plant, a private limited company, which establishes the plant will not, become a State.[11] A Co-operative Society, which is managed, and controlled by a Managing Committee and where there is no direct control by Government is not a State.[12] The Turf Club is not formed by transfer of any government department and no monopoly is conferred by the Statute in the matter in conducting races and there is no control over its activities by the government. Hence it is not a State.[13] Merely because an organisation performs functions of public importance that by itself cannot be a decisive factor to hold it as a State. What is to be seen is whether there is any pervasive State Control over its management and functioning.[14] Rashtriya Lalit Kala Academy is not a State since there is no deep and pervasive control of government and no governmental functions are performed.[15]

Maruthi Udyog Ltd. is a joint venture company of the Government of India and Suzuki Motor Co., Japan and it cannot be called as an instrumentality of State at all and it will not be in public interest and in the interest of economy to subject such foreign collaborations to the rigour of *Article 14* by calling the joint venture as an instrumentality of State.[16] Oil Corporation is a State;[17] State Electricity Board is a Sate.[18] Every act of a society which may be a “State” within the meaning of *Article 12* does not necessarily belong to public law field and it may have its private law rights just like a government.[19]

It was held that an authority need not be a creature of a Statute. The powers enjoyed and duties enjoyed by the body need not directly flow from a Statute. The body may not be subjected to a statutory control or enjoy any statutory power, but source of power exercised by it may be traced to the legislative entries and if the Rules and Regulations evolved by it are akin thereto, its actions would be State actions. For the purpose, what is necessary is to find out as to whether by reason of its nature of activities, the function of the body are public functions. The body regulates and controls the field of cricket to the exclusion of others. Its activities infringe upon the fundamental rights of players and other persons as also the rights, hopes and aspirations of the cricket loving public. A body which makes a law for sports in India (which otherwise is the function of the State), conferring upon itself not only enormous powers, but also final say in disciplinary matters and thus being responsible for making or marring a citizen’s sports career, would be an authority which answers the description of “other authorities”. A body discharging public function and exercising monopoly power would also be an authority under *Article 12*. Performance of a public functions in the context of the *Constitution* would be to allow an entity to perform the function as an authority within the meaning of *Article 12*, which makes it subject to constitutional discipline of fundamental rights. It is not only the function of the government alone which would enable a body to become a part of the State, but also when a body performs governmental functions or *quasi*-governmental functions as also when its business is of public importance and is fundamental for the life of the people. The silence on the part of State, when the body or authority authorised itself to make law regulating the activity (cricket) is also a matter of importance while, considering whether it is a “State” within the ambit of *Article 12*.

According to the minority view, the following are relevant matters to be considered

(1) When the body acts as a public authority and has a public duty to perform (2) When it is bound to protect human rights (3) When it regulates the rights of citizen contained in *Article 19(1)(a) of the Constitution* available to the general public (4) When it exercises a *de facto* or *de jure* monopoly (5) When the State outsources its legislative power in favour of the body or authority (6) When it has a positive obligation of public nature.

According to the minority view, the tests as detailed in *Pradeep Kumar's* case will have no application in a case where the body or authority was established as a private body long time back and the State has allowed that body as its representative to participate in international organization.[20] In *Zee Film's case,* the Madras High Court held that the writ petition against BCCI was not maintainable as it was not a "State". But the court observed that international cricket involves huge sums of money and there should be no misappropriation. The grant of telecasting right by BCCI "is a public function". If the tender process is not transparent and fair, a writ petition is maintainable against BCCI. But if they are transparent, no writ could be maintained.[21] But this view of the High Court was not accepted by the Supreme Court. It was held that in the absence of any authorisation, if a private body chooses to discharge any such function which is not prohibited by law, then it would be "incorrect" to hold that such action of body would make it an instrumentality of State.[22] In that case, the court held that when the act of BCCI was not an act as a representative of State, it cannot be said that it is discharging State function. In the absence of any authorisation, if a private body chooses to discharge any function or duties which amount to public duties or State function which is not prohibited by law, then it would be incorrect to hold that such action of the body would make it an instrumentality of State. The Court further held that the intention of the *Constitution* framers in incorporating *Article 12* was to treat such "authority" which has been created by law and which has got certain powers to make laws, to make rules and regulation to be included in the term "other authorities" as found presently in *Article 12*. It was further observed that "there can be no two views about the fact that the *Constitution* of this country is a living organ and it is the duty of court to interpret the same to fulfil the needs and aspirations of the people "depending on the needs of the time". In *Article 12*, the term "other authorities" was introduced at the time of framing the *Constitution* with a limited objective of granting judicial review of action of such authorities which are created under statute and discharge State function. However, because of the need of the day, the Supreme Court in *Rajasthan State Electricity Board v Mohan Lal*[23] and *Sukhdev Singh v Bhagatram*,[24] noticing the socio-economic policy of the country thought it fit to expand the definition of the term "other authorities" to include bodies other than statutory bodies. This development of law by judicial interpretation culminated in the judgment in *Pradeep Kumar Biswas v Indian Institute of Chemical Biology*.[25] It is to be noted that in the "meantime", the socio-economic policy of the government of India has changed and the State is today distancing itself from commercial activities and concentrating on governance rather than on business. Therefore, the situation prevailing at the time of *Sukhdev Singh's case* (*supra*) is not in existence "at least for the time being". Hence there seems to be "no need to further expand the scope of "other authorities" in *Article 12* by judicial interpretation at least for the time being. It should also be borne in mind that in a democracy there is a dividing line between a State enterprise and a non-State enterprise, which is distinct and the judiciary should not be an instrument to erase the said dividing line, unless, of course, the circumstances of the day require it to do so. The above view was expressed by majority. The minority expressed its views emphasising on a "functional approach". The minority view observed that *Constitution* is an on-going document and should be interpreted liberally taking into account the realities of life and needs, necessities and activities of a "Welfare State", it ruled that the question has to be decided applying the following features: - (a) When the body acts as a public authority and has a public duty to perform; (b) when it is bound to protect human rights; (c) when it regulates a profession or vocation of a citizen which is otherwise a fundamental right under a statute or its own rule; (d) when it regulates the right of a citizen contained in *Article 19(1)(A) of the Constitution* available to the general public and viewers of the game of cricket in particular; (e) when it exercises a *de facto* or *de jure* monopoly; (f) when the State outsources its legislative power in its favour; (g) when it has a positive obligation of public nature.

Highlighting the purposive interpretation of *Article 12* by giving effect to Pt III of the *Constitution* against oppression and arbitrariness of all kinds, the minority observed: "With the opening up of economy and globalisation, more and more governmental functions are being performed and allowed to be performed by private bodies. When the functions of a private body are "identifiable with State functions, they would be State actors only in relation thereto".

A company enjoying the monopoly of carrying on a business under an Act of legislature has the “trappings of a State” and is an “authority” under *Article 12*.[26]

> A general proposition may be stated thus : a body whether statutory or non-statutory (statutory corporations, registered societies, government companies or any other like entity), whether exercising functions of a commercial or non-commercial nature will be regarded as an “instrumentality” of the government. The important question now is not how the juristic person is born; but why it has been brought into existence? It does not matter what is the structure of the body in question; it may be statutory or non-statutory; it may be set up by, or under, an Act of the Legislature or even administratively. It does not matter whether the body in question has been set up initially by the government or by private enterprise. It does not matter what function does the body discharge; it may be governmental, semi-governmental, educational, commercial banking social service. So long as the body is characterized as an “instrumentality of the government, it falls within the purview of *Article 12* as an “authority”.

> Once a body is characterised as an “authority” under *Article 12*, several significant incidents invariably follow: (1) The body becomes subject to the discipline of the fundamental rights which means that its actions and decisions can be challenged with reference to fundamental rights (2) The body also becomes subject to the discipline of Administrative Law (3) The body becomes subject to the writ jurisdiction of the Supreme Court under *Article 32* and that of the High Court under *Article 226*.[27]

On the basis of above guidelines, the following bodies were held to constitute a “State” or instrumentality of State:

(1) Mysore Paper Mills Ltd. was held as an instrumentality or agency of State.[28]

(2) Central Inland Water Transport Corporation Ltd. was held be a State.[29]

(3) Rajasthan State Electricity Board is a State.[30]

(4) Railway Board is a “State”.[31]

(5) Reserve Bank of India is “State”.[32]

(6) Sainik Schools Society registered under *Societies Registration Act* is a “State”.[33]

(7) Indian Council of Agricultural Research, is State.[34]

(8) Council of Scientific and Industrial Research is a State.[35]

(9) Children’s Aid Society, Bombay is a State.[36]

(10) Central Institute of Buddhist studies is a State.[37]

(11) State Financial Corporation constituted under *State Financial Corporation Act* are instrumentalities of the State.[38]

(12) Steel Authority of India is a State.[39]

(13) Nationalised Banks were held to be instrumentalities of State.[40]

(14) Regional Rural Banks established under *Regional Rural Banks Act* is covered by definition of State.[41]

(15) U.P. State Co-operative Land Development Bank is an instrumentality of State.[42]

(16) Indian Tourism Development Corporation covered by definition of State.[43]

(17) Life Insurance Corporation is a State.[44]

(18) Food Corporation of India, Hindustan Ltd. Project and Equipment Corporation of India Ltd. are covered under "other authorities".[45]

(19) Delhi Development Authority.[46]

(20) Central Coal Fields Ltd. is a State.[47]

(21) State Bank of India is covered under *Article12*.[48]

(22) National Institute of Technology is "State".[49]

(23) Municipal Corpn., a local authority is "State".[50]

(24) M.P. State Co-op. Dairy Federation Ltd. is "State".[51]

(25) Karnataka State Forest Industries Corpn. is held a "State".[52]

(26) Public Sector Banks are "State".[53]

(27) Uttar Pradesh Ganna Kishan Sansthan (Sanstha) is "State".[54]

(28) Haryana Industrial Development Corpn. is "State".[55]

(29) Institute of Chartered Accountants of India (ICAI) is a "State".[56]

(30) National Book Trust is "State".[57]

(31) High Court (on the administrative side).[58]

(32) Indian Statistical Institute.[59]

(33) Bharat Petroleum Corporation Ltd is covered under *Article 12*.[60]

(34) Coffee Board, Development Authority are covered by definition of State.[61]

(35) Port Trust is a State.[62]

(36) Tamil Nadu Housing Board is an authority under *Article 12*.[63]

(37) Export Credit Guarantee Corporation of India is an instrumentality of State since it is discharging a public function/duty.[64]

(38) Oil and Natural Gas Commission (ONGC) is a State.[65]

(39) U.P. Rajya Karmachari Kalyan Nigam Ltd is a "State" covered by *Article 12*.[66]

(40) Delhi Stock Exchange was held to be a State.[67]

Assam Small Scale Industries Development Corp v J.D. Pharmaceuticals,[68] was held to be a State.

Recently Supreme Court held that even if a society coming under *Co-operative Societies Act*, may not be

characterised as a “State” under *Article 12*, a writ petition would lie to enforce a statutory duty which an employee is entitled to enforce against the society.[69] A Co -operative bank established and registered under a State Co-operative legislative is not a state under *Article 12*. The bank not having created under any statute is not a state.[70] U.P. Ganna Kisan Sansthan is “State” under *Article 12* since the government has vital supervisory control over its management and activities.[71] The Supreme Court has approved the maintainability of writ against a co-operative society when the order passed by such society is statutory in nature. In that case, the order of removal of the Secretary of the co-operative society was passed by the society in accordance with the opinion of the Registrar of Co -operative Societies. Such an order which was appealable under the State statute was held to be statutory in nature and hence amenable to writ jurisdiction of the High Court.[72]

So, the view of the Supreme Court is that if the co-operative society registered under the State *Co-operative Societies Act* passed an order which can be regarded as statutory in nature, then, to challenge the order, the party can invoke writ jurisdiction. Similarly, when it is constituted under a statute which provides for control of a State, writ lies against it as it becomes an instrumentality of State.[73] According to the author M.P. Jain, “after much confusion of thought and several conflicting judicial dicta, the position as it has emerged now seems to be that *Article 12* is relevant only for the purpose of *Article 32* under which Supreme Court can issue writ only for enforcement of fundamental rights. *Article 226* is broader in scope than *Article 32*, for, a High Court may issue a writ not only for enforcement of fundamental rights but also “for any other purpose” as well. So, it is argued that the term “authority” in *Article 226* should be given a broader and a more liberal interpretation than the term “other authority” in *Article 12*. There may be a body which may not fall within the compass of *Article 12* (as it may not be regarded as an instrumentality of State) but, nevertheless, it may still be regarded as “authority” under *Article 226* and may thus be subject to the jurisdiction of High Court.”[74] In *Zoroastrian Co-op. Housing Society Ltd v Dt. Registrar*, *Co-op. Societies,*[75] the court held that a “co-operative society” can be treated as “other authorities” and hence a “State”, provided the tests indicated in *Ajay Hasia v Khalid*,[76] are satisfied.[77]

The Governor of a State is also “State” for the purpose of *Article 12*. It was contended that the expression “State” referred to Government and Legislature of each State and not to governor, that the government did not include governor and hence the expression “State” did not include “governor” exercising legislative powers under *Article 213 of the Constitution*. The said contention was rejected. It was held: “It is inconceivable that the expression “State” would exclude “governor”. In view of *Article 153*, *154* and in view of the fact that the executive powers of State are co-extensive with the legislature, the expression “State” includes governor.”[78] Similarly, the President of India also comes within the expression “State’[79]. The Council for Indian School Certificate examination a society registered under *Societies Registration Act* was held to be an authority under *Article 12*.[80] An aided school receiving 95% of its expenses by way of government grant and subject to regulations made by the department of education though managed by a registered Body is an authority under *Article 12*.[81] Bharat Earth Movers Ltd. Indian Telephone Industries Ltd. in which Government of India holds 51% share capital and which are subject to pervasive control is an authority under *Article 12*.[82] National Agricultural Co-operative Federation of India NAFED) was held to be an authority.[83]

In spite of expansive interpretation given to “State” or “other authorities, there have been discordant notes as well. In the case of *Chander Mohan Khanna v National Council of Educational Research and Training (NCERT)*,[84] It was held that the body, which is, engaged in co-ordination of research extensive services and education programmes where the control of government is confined to proper control; grant is not an authority under *Article 12*. Every autonomous body, which has some nexus with government, cannot be brought within the sweep of State and *Article 12* should not be stretched to that extent. It was further held that of the Government operates behind a corporate veil carrying out governmental activity and functions of significant of public importance, then only it can be termed as “State”.

In the case of Institute of Constitutional and Parliamentary studies, a society registered under *Societies Registration Act*, it was held, it is neither an agency nor instrumentality of State. It was held that the body *i.e.* ICPS is a case of its type – typical in many ways and the normal tests may perhaps not properly apply to test its character.[85]

The purpose of giving an extended meaning for “State” under *Article 12* is only in the context of enforcement of fundamental rights against the act of the government and its instrumentalities or agencies since the

instrumentalities or agencies are treated as third arm of the Government. At the same time, it cannot be treated as a government department or establishment of government. Hence such an “authority” or agency cannot avoid to discharge its constitutional obligation.[86] The decision rendered under *Article 12* lays down that a body would answer the definition of “State” under *Article 12* if it is financially, functionally and administratively dominated by or under all pervasive control of government. On the other hand, where control of government is merely regulatory, whether under a statute or otherwise, it would not serve to make the body “State”. Thus, “instrumentalities of State” are different from State Government, though both may amount to definition of “State” under *Article 12* for limited purpose of Pt III of the *Constitution*. Further, the very inclusive definition of “State” under *Article 12* by referring to Government of India, government of each of the States, local and other authorities make it clear that a State Government and local or other authorities are different and they fall under a common definition only for the purpose of Pt III of the *Constitution*. While the term “State” may include a State govt. as also statutory or other authorities for the purpose of Pt III, the term “State Govt.” in its ordinary sense does not encompass in its fold either a local or statutory authority.[87]

At the same time, “anybody” which is a “State” is bound to comply with constitutional requirements as adumbrated in *Articles 14* and *16* thereof. When recruitment rules are made, the employer would be bound to comply with the same. Any appointment in violation of such rules would render them as nullities.[88]

The State cannot escape from its constitutional obligation and take a stand which violates fundamental right of its employees. It also cannot contend that employees have no chances of promotion on the basis of acceptance of offer of appointment and the principles of *estoppel* cannot be pleased by it.[89] Government insurance companies, which are statutorily controlled by State, is a “State” and they could not function arbitrarily in doing general insurance business.[90] Institute of Chartered Accountants will be “other authorities” under *Article 12* and the said is institute would be bound by *Article 21*, which provides for right to life, which means right to have a decent life. A person who is disabled and entitled to the provision of *Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995* is bound must be protected by the said Institute, and it is obliged to protect the fundamental right of the disabled.[91] Urban Development Authority being “State” cannot accord differential treatment between previous allottees and fresh allottees. It is obliged to direct the allottees equally.[92]

The Hon’ble Supreme Court held that so long as the State holds the controlling authority or the whole of the State-holding the employees may have the status as employees of a government company including the protection under *Articles 14* and *16* of the *Constitution*. But that by itself will not prevent the State, from changing its policy and it can exercise the right to sell the shares. It was held that the employees have no right to be heard before deciding to disinvest. The employees have no vested right in the employer company continuing to be a government company or “other authority” for the purpose of *Article 12 of the Constitution*. Merely because the employers may lose the protection under *Articles 14* and *16* the government cannot be compelled to retain or to hold the shares for ever. The company will be considered as a “State” and so long as it continues a government company. *Article 12* does not place any embargo on the instrumentality of the “State” or “other authority” from changing its character, if the disinvestment process is gone through without contravening any law.[1]

Shri Mata Vaishno Devi Shrine Board was held not a controlled Corporation under *Article 12*. It is not a corporation owned or controlled by the State.[2]

5. A private educational institution does not become an instrumentality of the State because of the mere fact that it has received recognition or affiliation from the State,[3] but it will be so, if it discharges a public duty, *viz.*, imparting education which is a purpose of the State.[3]

It follows that the following cannot be held to be “State” under *Article 12*–

[Art 12] Definition.-

(i) A non-statutory body, which is not invested with any statutory power, regardless of its ownership, *e.g.*,

> A company,[4] even though it may be a "Government company" coming under section 617 of the Companies Act, 1956,[5] the Bokaro Steel Ltd.,[6] unless it acts as an agency of the Government, *e.g.*, the Road Transport Corporation[7], L.I.C.[8]

(ii) Private bodies, having no statutory power,[9] or not being supported by a State act.[10]

(iii) A body having the power to make bye-laws which have no statutory force, *e.g.*, a Co-operative Bank.[11]

[Art 12.1.9] *'Under the control of the Government of India'*

An authority which is located outside India may still come under the definition of "State" under *Article 12* if it is under the *control* of the Government of India. These words extend the application of the fundamental rights to areas outside the territory of India, which may be under the control of the Government of India for the time being, *e.g.*, mandatory and trust territories which might be placed by international organisations under the control of the Government of India. This article explains that India would not discriminate, so far as the fundamental rights of individuals are concerned, between its own nationals and the people of other countries, which might come under the administration of India under some international arrangement, agreement or the like.[12]

The Supreme Court[13] has, however, given to the above words a meaning different from that given in the Constituent Assembly. According to the Supreme Court, the words "under the control of the Government of India" control the word "authorities" and not the word "territory", so that the expression would read thus:

> all local or other authorities within the territory of India or all local or other authorities under the control of the Government of India

The local or other authorities which are included in the words "the State" of *Article 12* are of two kinds, namely, (1) within the territory of India, and (2) those under the control of Govt. of India. There are thus two qualifying clauses to "all local or other authorities". These clauses are – (i) within the territory of India, and (ii) under the control of Govt. of India, the qualifying word "territory". From the scheme of *Article 12*, it is clear that three classes of authorities are meant to be included in the word "State" and the third class is of two kinds and the qualifying words which follow "all local and other authorities" define the two types of such local or other authorities. Further, all local or other authorities within the territory of India included all authorities within the territory of India whether under the control of the Govt. of India or Govt. of various States, and even autonomous authorities which may not be under the control of Govt. at all. In contradiction to this, the second qualifying clause refers only to such authorities as are under the control of the Govt. of India and so the second qualifying clause must govern the word "authorities".[14] It was held in that case that a quasi-judicial authority cannot be under the control of Govt. of India like an executive or administrative authority. It was reiterated that the control envisaged by the words "under the control of Govt. of India" in *Article 12* was not control which arose out of mere appointment, payment and the right to take disciplinary action. The control envisaged under *Article 12* was "control of function" of the authorities concerned and the right of Govt. of India by virtue of that control to give direction to the authority to function in a particular manner with respect to "such" function. Such control was possible in the case of purely executive or administrative authority. The Court held: "It was impossible in the case of quasi -judicial or judicial authority, for, in the nature of things, where rule of law prevails, it is not open to the government, be it the Govt. of India or govt. of a State, to direct a quasi-judicial or judicial authority to decide a particular case before it in a particular manner. This being the nature of control which the Govt. of India must exercise in order that an authority functioning outside the territory of India, may be said to be an

authority under the control of the Govt. of India within the meaning of *Article 12*, a quasi-judicial or judicial authority cannot be said to be an authority under the control of Govt. of India within this meaning."

Where a transport corporation was established under Transport Corporation Act, for the advantage of the public trade and industry and also for development of transport and for the purpose of giving additional or more facilities for road transport, it was held that it is a "State" coming under *Article 12*. It was further held that the purpose of establishment, was only to delegate or authorise the road transport services which was being preferred as a sovereign function and was under the control of Government. It was held that merely because a Corporation was established by the State Government is distinct from the State, that would not mean that the Corporation is not under the control of Government.[15]

Following *Pradeep Kumar's* case, it was held that a writ under *Article 226* can be against a "person" if it is a statutory body or performs a public functions or discharges a public or statutory duty. It was further held that although it is not easy to define what a public function or public duty is, it can reasonably be said that such functions are similar to or closely related to those performable by the State in its sovereign capacity. Even if the public may be beneficiary of the activities, if the body does not owe any duty to Indian public, it cannot be subject to writ jurisdiction. Conduct of research and training programmes is agriculture done purely on voluntarily basis is not a public duty.[16]

A co-operative society, registered under State *Co-operative Societies Act* and under *multi-State Co-operative Societies Act* which carries business of banking is governed by Bombay Regulations Act, as such does not fall within the definition of State. It cannot be compared to State Bank of India, as Central Government does not have any pervasive control over it.[17] Appointment of lecturer in a college affiliated to a University is "a public duty" and Court can interfere if the appointment is not in accordance with law.[18]

The result of this interpretation is that in respect of an authority situated *outside India*, an additional test has to be satisfied before it can be brought within *Article 12*, namely, whether it is "under the control of the Government of India". According to this interpretation, *Article 12* will apply to two categories of "authorities':

(a) Authorities situate within the territory of India; these need not be under the control of India in order to be deemed "State" under *Article 12*.

(b) Authorities situate outside the territory of India (*e.g.*, territories administered by India under the *Foreign Jurisdiction Act, 1947*); these will come within the purview of *Article 12* only if they are under the control of India.

Proceeding from this view, it has been held[19] that since a judicial or quasi-judicial authority cannot be said to be under the control of the Government, in respect of its function,[20] the superior Courts in India will have no authority if it is situated in a territory outside India, even though such territory is under the control of the Government of India.

It is conceded by the Supreme Court in both the cases[21] that where the control of the Government of India extends over a territory which is outside India, the superior Courts in India can exercise their constitutional jurisdiction over the acts of the administrative authorities situated in such territory by "passing suitable orders" against the Government of India.

It has been pointed out at the outset that the device of guaranteeing fundamental rights by a Bill of Rights in a written *Constitution* was to protect the individual from governmental aggression and not from aggression by

another individual,[22] for which remedies under ordinary law were sufficient. It was to bind the State itself, the marker of laws, that fundamental rights have their origin.

(A) *U.S.A.*

The First Ten Amendments to the *Constitution* of the *U.S.A*. are a limitation upon State action and not upon actions of individuals.[23] The Fifth and the Fourteenth Amendments, as will be presently seen, are expressly addressed to the "State". But it has been held in the *U.S.A., that* individual action may become action of the government when the individual derives authority and power to do the act by virtue of government action.[24] It is also within the power of Congress to punish violations of the Bill of Rights by private individuals.[25] Even private action would be brought into Public Law arena in order to condemn it through constitutional remedy if the State is in any way or manner involved in such private action, even by offering such benefit or service to the private person or body which is alleged to have violated a constitutional mandate as would constitute an encouragement of such constitutional prohibition against similar State action. The ambit of the word "State" was enlarged as far as possible in order to give the individual "adequate" protection against all forms of arbitrary action by government authorities. It has been laid down by the Supreme Court that the guarantee of due process for deprivation of life, liberty or property or of equal protection of laws shall extend not only to the legislative, executive or judicial organs of the State but also against any agency or instrumentality which exerts any of the powers belonging to the foregoing organs of the State.[26]

A huge mass of cases has thus clustered around this doctrine so that the protection of Fourteenth Amendment is now available against wide variety of persons, authorities and organisations who do not directly "constitute the State" in the strict sense *e.g.,* even a private individual or corporation[27] if such individual or corporation – (a) acts under the constraint or authority of law.[28] (b) if it exercises any function delegated by State;[29] (c) if it exercises statutory powers;[30] (d) if the act of the private person has been supported or upheld by the State directly or indirectly[31] and even without legislative authority or in abuse of such authority.[32]

Eventually, the doctrine of State action has come to be one of "State involvement".[33] In the absence of such involvement, the general rule prevails, namely, that a constitutional mandate cannot be enforced against a private individual.[34] For that, appropriate legislation is required. This lacuna has been sought to be removed in the USA, by the enactment of the Civil Rights Act 1964 and 1968.[35]

The sit-in cases present even more dramatic evidence of how State encouragement of private discrimination can become State action. During 1960, civil rights advocates frequently staged sit-in at variety and drug stores that segregated lunch counters. To protest such discrimination, African Americans would take seats at lunch counters and when refused service, continue to sit there until arrested, typically for breach of peace or trespass. In a series of sit-in cases, court consistently reversed the conviction that resulted from these arrests, often on the policy of segregation that had led to sit-in was governmentally inspired and thus amounted to "State action" in violation of equal protection clause. In *Peterson v Greenville*,[36] for example, a city ordinance actually required separation of the races in restaurants. *Lombard v Louisiana*,[37] featured no such ordinance, but the court held that the city officials had coerced the restaurant manager to operate segregated facility. In *Griffin v Maryland*,[38] the court held that the amusement park's exclusion of blacks constituted State action because to enforce this private policy, the park had employed a deputy Sheriff who, although off duty, wore his badge and purported to exercise his official powers.[39]

What is meant by State action? The State action doctrine says that the government and not some private person must be the defendant. But it does not say that the government is under no obligation to stop private people from enquiring other people. In fact, it is generally agreed that States violate equal protection clause, if they protect Whites against murder and assault, but fail to protect African Americans against murder and assault.[40]

According to Craig R. Ducat, State action means action or developments for which State shares responsibility whether by causing, sanctioning or supporting them.

India.

[Art 12] Definition.-

(B) *India.*

It has now been settled that the rights which are guaranteed by Articles[41] 19,[42] 21[43] and 3143 are guaranteed against State as distinguished from violation of such rights by private individuals. In case of violation of such rights by individuals, the ordinary legal remedies may be available but not the constitutional remedies.

Where, however, a private person claims under the State or under a law made by the State[44] or his claim is supported by the State, the person aggrieved may challenge the constitutionality of the State act which supports the private claim.

The Madras Legislature passed the Madras Marumakkathayam (Removal of Doubts) Acts, 1955, for overriding certain judicial decisions which were stated to have disturbed the customary law relating to certain kinds of properties. As a result of this enactment, the property of *A* was to go to *B* and *B* claimed the property and directed the tenants to pay rents to him and not to *A*.

A filed a petition under *Article 32*, praying for a writ of Mandamus or other proper writ for the enforcement of his fundamental rights, directing the State of Madras to forbear from enforcing any of the provisions of the Act of 1955 against the Petitioner, declaring the said Act as unconstitutional, on the ground of contravention of *Articles 19* and *31*. The Supreme Court rejected the preliminary objection against the maintainability of the petition, holding that it was not a dispute between two private individuals. The Petitioner's grievance was against the law made by the Madras Legislature, the rights conferred by which were being asserted by B.[44a]

[As regards the enforceability of *Articles 15*, *17* and *23*, see *ante*].

[Art 12.3] The Concept of State action

U.S.A.

(A) *U.S.A.*

Since the First Ten Amendments and the Fourteenth Amendments are intended to protect the fundamental rights from arbitrary invasion by the State, it has become necessary to interpret the word "State" whenever an individual complains of such invasion by the State. In order to give adequate protection to the individual against all forms of arbitrary action by governmental authority, the American Supreme Court has enlarged the concept of "State action" as far as possible. Thus, it has been held that the prohibition in the 14th Amendment extends to any State action, legislative,[45] executive[46] or judicial[47] and against any agency exerting any of these powers of the State:[48]

> The Amendments embodying the Bill of Rights were intended to curb all branches of the Federal Government in the fields touched by the amendments - legislative, executive and judicial.[49]

Explaining this, the Court observed in *Ex parte Virginia*:[50]

"A State acts by its legislative, its executive, of its judicial authorities. It can act in no other way. The constitutional provision (14th Amendment), therefore, must mean that *no agency of the State*, or of the officers or agents by whom its powers are exerted, shall deny to any person within its jurisdiction the equal protection of the laws. Whoever, *by virtue of a public position* under a State government……denies or takes away the equal protection or the laws, violates the constitutional inhibition; and as he acts *in the name of and for the State*, and *is clothed with the State's power*, his act is that of the State".

In short, whenever there is an allegation of violation of a fundamental right by the State, any repository of State power is regarded as “the State”.[51]

Thus, a discriminatory action by the authorities of a State-owned,[52] State-subsidised,[53] or State-controlled[54] agency or corporation[55] would be hit by the guarantee of equal protection.

The concept has been extended to the functions of a Committee of the Legislature while exercising the privileges of the House, *e.g.*, the power to summon a witness and to compel him to testify for the purpose of a legislative investigation,[55a] and a political party which performs a statutory function in connection with an election.[56] A Congressional Committee, exercising its legitimate powers as part of the Legislature, to make an inquiry, is subject to the relevant rights of individuals secured by the Bill of Rights,[57] and all relevant “limitations placed by the *Constitution* on governmental action.[58]

It follows, on the other hand, that the constitutional prohibition does not extend to the action of a private individual[59] or corporation,[60] unless such individual or corporation acts under the constraint of a law[61] or other authority;[62] or the State has lent its support to the private action, thus clothing the private act with the character of State action;[63] or a State function has been delegated to such private body.[61] Even a labour union[64] or a Board of Trustees,[65] acting under statutory powers, has been regarded as a medium of State action.

The concept of “State action” has thus been enlarged to comprehend acts done by private persons or bodies exercising statutory powers[66] or supported by the State,[67] with or without legislative authority or in abuse of such authority,[68] or even where the State has become involved in private action.[69] It was realised that in order to be effective, the fundamental rights shall be enforced not only against the acts of the officers of the State, but also against its “agents”.[70] An “agent” was a person who acted in the name of and for the State or is clothed with the powers of the State[71] or endowed with governmental function.[72] Gradually the doctrine has come to be applied even to acts of a private person[73] where its action is supported by the government even without legislative sanction or in abuse of legislative authority[74] or when the State has become “involved” in such private action[75] such as joint participation of State officials with a private person in violating petitioner’s rights[76] or the State has coerced or encouraged overtly or covertly the private act complained of[77]. Even a State constitutional provision has been regarded as support of a law.[78]

The test to be applied is, whether the infringement of petitioner’s right is “fairly attributable” to the State.[79]

An appreciable expansion of the doctrine of “State action” has been made by the American Supreme Court in course of its endeavour to suppress racial discrimination. It has afforded relief against the State whenever the State “has become significantly involved in private discrimination”,[80] either by commanding such unconstitutional act, or by placing its “power, property and prestige” behind the admitted discrimination,[81] or by passing a law as will “encourage” discrimination by private persons.[82]

India.

(B) *India.,*

Prima facie the definition of “State” in *Article 12* seeks to embody the American concept of State action as explained above,[83] of course, subject to such differences as arise out of the differences in the social conditions and constitutional set-up.[84]

Article 12 makes it clear that the fundamental Rights guaranteed by Pt III of the *Constitution* shall be enforceable against an individual or authority only if it comes within the definition in *Article 12*.[85]

Early Judges of the Supreme Court who sought to avoid American Constitutional decisions as much as possible would be shocked to see what their successors are doing in infusing American *Constitution* into our *Constitution* as much as possible. An instance to the point is the doctrine of “State action”.

The expansion on this subject has been due to the anxiety of the recent Judges to exclude arbitrariness from all State action, by applying the expanded meaning of *Article 14*.

The ambit of the application of the doctrine of State action has been widened in two directions:

A. By expanding the list of authorities coming under the definition of “State” in *Article 12*, which has already been discussed.

B. Extension of the sphere of governmental action which would be hit by *Article 14*.

According to this facet of expansion, *Article 14* will be attracted not only where the impugned State act is discriminatory or where the classification made is irrational, but where the State act, as such as arbitrary, unreasonable or unfair.[86]

The latest development in this sphere is the extension of the doctrine to *contracts* entered into by the Government;[87] or the grant of *privileges*,[88] or even matters involving policy.[88]

The Supreme Court had an easier task in introducing the doctrine of “State Action” because (1) most of the fundamental rights included in Pt III of the *Constitution* are addressed to the State; and (2) Pt III starts with a definition of the word “State” in *Article 12* which includes “other authorities”. By a liberal interpretation of the word “authority”, the Court has made the “Fundamental Rights” enforceable against numerous private persons or bodies, when they might be regarded as “agency” or “instrumentality” of the State, applying the tests laid down by the Court.

[Art 12.4] Whether ‘State’ includes the Judiciary

U.S.A.

(A) *U.S.A.*

It has already been stated that in the United States, a judicial decision is included in the concept of State action for the purpose of enforcement of the fundamental rights conferred by the 14th Amendment. In *Virginia v Rives*, the Supreme Court observed:

> It is doubtless true that a State may act through different agencies, - either by its legislative, its executive, or its judicial authorities; and the prohibitions of the Amendment extend to all actions of the State denying equal protection of the laws, whether it be action by one of these agencies or by another.[89]

> A State acts by its legislative, its executive, or its judicial authorities. It can act in no other way.[90]

How far binding on the Judiciary

U.S.A.

Where a trial or decision itself is vitiated by a violation of a constitutional guarantee, such as “due process” or “equal protection”, the *American* Supreme Court would quash a conviction on this ground on a collateral and post-conviction proceeding of *certiorari*[91] or release the prisoner in a proceeding for *Habeas corpus*.[92]

I. The “Due process” guarantee has been available against a judicial decision, both in the procedural[93] and substantive[94] aspects.

Judicial decision violating “Due process.”

(i) From the *procedural* standpoint: Though a mere erroneous decision overruling the previous case-law cannot be challenged as violating due process,[93] a decision which deprives a person of his existing remedy for the enforcement of a right without offering him an opportunity to be heard, must be quashed on this ground, apart from any other consideration. A judgment which refuses, without a hearing, relief to prevent the seizure of property or deprives the plaintiff of his property, is in contravention of due process.[93] A conviction would be similarly vitiated if it is based on perjured testimony[95] or under the domination of a mob.[96] A conviction can also be set aside due to failure of due process, “if there is no fair trial”.[97]

Sheppard v Maxwell, (*supra*) was a case where a person was convicted for murder. He contended that there was failure of due process on the ground of “unfair and prejudicial comment” on pending trials. The court said: “Given the pervasiveness of modern communication and the difficulty of effacing prejudicial publicity from the minds of jurors, trial court must take strong measures to ensure that the balance is never weighed against the accused. And appellate tribunals have the duty to make an independent evaluation of the circumstances. Of course, there is nothing that prescribes the Press from reporting events that transpire in a court-room. But, where there is a reasonable likelihood that prejudicial news prior to trial will prevent fair trial, the judges should continue the case until the threat abates or transfer it to another country not so permeated with publicity. In addition, sequestration of the jury was something the judge should have raised “*sua sponte*” with counsel. If publicity during proceedings threatens fair trial, a new trial should be ordered. The conviction was found illegal, since there was no fair trial”.

In *Brinkerhoff-Faris Trust v Hill*,[1] the American Supreme Court struck down a judgment which deprived a person of his property without hearing. It was observed: “If the result above stated attained by an exercise of the State’s legislative power, the transgression of the due process clause of the Fourteenth Amendment would be obvious. The violation would be none the less clear when the result is accomplished by the State judiciary in the course of construing “an otherwise valid state statute”. …Whether acting through the judiciary or through its legislature, a State may not deprive a person of all existing remedies for the enforcement of a right, which the State has no power to destroy unless there is or was afforded to him some real opportunity to protect it”. In *NAACP v Alabama*,[2] the court struck down a conviction for contempt which in effect violated the petitioner’s freedom of association. It was observed: “It is not a moment that the State has there acted solely through its judicial branch for, whether legislative or judicial, it is still the application of State power which we are asked to scrutinise”.

Once it is established that a judicial decision violating a fundamental right would be unconstitutional and void in the same manner as a statute would be void in the same situation, the question whether a remedy would be available for “such an illegality” is not important, as FRANKFURTER, J. observed in his concurring opinion in *Snowden v Hughes*.[3] “For a State act which is void, the aggrieved party must have some remedy, whether as a sword or as a shield (*i.e.,* by way of defence when he is hauled upon for violation of that void judgment”.[4]

(ii) From the *substantive* standpoint: It has been held that where a common-law rule is inconsistent with a fundamental right, the enforcement of such rule by the Court would itself be a State action inconsistent with a fundamental right.[5]

On this principle, the Supreme Court has annulled—

(i) A conviction which sought to enforce the common-law crime of breach of the peace, where it was found that the enforcement of the common law in the circumstances of the case would offend against the freedom of religion.[6]

(ii) A conviction for contempt of court where it was inconsistent with the freedom of expression.[7]

(iii) A judicial restraint of peaceful picketing, in violation of the guarantee of freedom of discussion.[8]

II. The guarantee of "equal protection" has, similarly, been applied against a judicial decision.

Violation of equal protection.

This does not mean that the guarantee of equal protection assures "uniformity of decisions or immunity from judicial error."[9]

But the guarantee would be applied in annulling a judicial decision.

(i) Where a Court enforces a discriminatory covenant between private individuals.[10]

Where a restrictive covenant in a private contract is based on a discrimination against a party solely on the ground of his race or colour, the enforcement of such covenant by the Court would itself constitute a violation of the guarantee of Equal Protection.[10] The Court refused to entertain the argument that in the case of a judicial enforcement of a private agreement "the participation of the State is so attenuated in character as not to amount to State action."[10] Whether the enforcement is made specifically [10] or by an action for damages for breach of the covenant or otherwise, is immaterial for this purpose. Even though the private contract itself does not constitute a State action and does not become invalid owing to contravention of a Fundamental right, the enforcement of such contract by the Court becomes unconstitutional.[11]

The acts of Courts and judicial officers in their judicial capacity are equally acts of the State, to which the guarantee of equal protection extends.[12] Hence, the Courts cannot uphold discrimination in enforcing the common-law policy of the State,[13] or even in enforcing a private agreement.[14] Though the "equal protection clause" erects no shield against mere private conduct however discriminatory, and there is no action of the State so long as a private agreement is enforced by voluntary adherence to the terms by the parties,[14] the constitutional inhibition would arise as soon as the terms of the agreement are sought to be enforced by the Courts,[14] for, then, through the agency of the Courts the State would be effectuating the discrimination.

A restrictive covenant forbade the use of the property by any person other than of the Caucasian race. Held, the covenant excluded a class of persons simply on the ground of their race, and that being a violation of the equal protection clause, the covenant was unenforceable in the Courts, and that a judicial decision which enforces such a covenant would itself be violative of the guarantee of equal protection. It cannot be suggested that—

> Court action is immunised from the operation of those provisions (of the *Constitution*) simply because the act is that of the judicial branch of the State Government.[14]

In such a case, it cannot be contended that in refusing to enforce the covenant, the Court was denying equal protection to the party who had lawfully secured rights by contract. For—

> The *Constitution* confers upon no individual the right to demand action by the State which results in the denial of equal protection of the laws to other individuals.

(ii) Where the procedure adopted by the Court is designedly[15] discriminatory, *e.g.*,

Where Negroes are excluded[16] from the Jury empanelled to try a Negro,[17] or racial grounds,[16] or, otherwise, the jury is so "manipulated" that the accused would have little change of a decision on the evidence.[18]

The "systematic" exclusion[18] of any class of persons from the jury service on the ground solely of race or colour denies equal protection not only to the class which is excluded but also to the accused, who has a right to be tried by a jury from which members of his class are not systematically excluded. Apart from such systematic exclusion of a class, if the manner of selection of the jury operates as a discrimination against the accused on the ground of his race, descent or colour, the conviction cannot stand.[19]

> No device, whether conventional or newly devised, can be set up by which the judicial process is reduced to a sham and courts are organised to convict.[18]

In short, a conviction will be quashed if the accused succeed in establishing that "the *method of their trial* denied them equal protection of the laws".[20]

It should be noted, however, that the guarantee of equal protection, when applied to the courts, does not require a uniformity of decisions from a judicial tribunal.

(B) *India.*

I. Of course, the scope of challenging a judicial decision on the ground of contravention of fundamental right[21] is much narrower in India, for several reasons:

India.

Firstly, there being no "Due Process" clause, there is no scope for challenging a judicial decision on a constitutional ground of *unfairness.*

Applicability of Article 14 to judicial decisions.

Secondly, the decisions of the Supreme Court being binding upon all Courts within the territory of India [*Article 141*], there is no scope for a decision of the *Supreme Court* being challenged as violative of a fundamental right. But there is no reason why the decision or order of a *subordinate* court shall not be open to be questioned on the ground that it contravenes a fundamental right.

In fact, so far as the guarantee of equal protection in *Article 14* is concerned, our Supreme Court, in the early case of *Budhan*,[22] held that any State action, executive, legislative or judicial, which contravenes *Article 14* is void.[22]

Of course, in *Budhan's* case,[22] the Supreme Court limited the application of *Article 14* to judicial decisions by the qualification that they will be hit by the Article only when they involved a "wilful and purposeful discrimination".[23] In *Budhan's* case,[23a] the Court observed:

> *While Article 14 extends to all State action including even acts of the Judiciary*, and would hit arbitrary or wilful discrimination by a Court, the Article does not guarantee uniformity of decisions or of the exercise of judicial discretion. Every judicial decision must of necessity depend on the facts and circumstances of the particular case before the Court and what may superficially appear to be an unequal application of the law may not necessarily amount to a denial of equal protection of law unless there is shown to be present in it an element of intentional and purposeful discrimination.[23a]

The following instance given by HIDAYATULLAH, J., in *Naresh Mirajkar's* case[24] is an instance of purposeful discrimination as well as invasion of the freedom of expression [*Articles 14*, *19*(1)(a)], by a judicial order:

> If a Judge, without any reason, orders the members of say *one political party* out of his Court, those so ordered may seek to enforce their fundamental rights against him and it should make no difference that the order is made while he sits as a Judge. Even if appeal lies against such order, *the defect of which relief can be claimed, is the breach of fundamental rights……*Judges cannot be said to be entirely out of the reach of fundamental rights.

In a subsequent decision, MATHEW, J. held that "Judiciary is State". It was held:—

All the directives from *Articles 38* to 51 of our *Constitution* are addressed to the "State" as defined in *Article 12*. That judicial process is also "State Action" seems to be clear. *Article 20*(2) which provides that no person shall be prosecuted and punished for the same offence more than once is generally violated by the judiciary and a writ under *Article 32* should lie to quash the order … If convicting and punishing a person twice for an offence by a judgment is equivalent to the State passing a law in contravention of the rights conferred by Pt III "for the purpose of enabling the person to file a petition under *Article 32* to quash the judgment, there can be no incongruity in holding, when *Article 37* says in its latter part "it shall be the duty of the State to apply these principles in making laws", that judicial process is a "State Action" and the judiciary is bound to apply the "Directive Principles" in making the judgment.

The Court not merely formulates already existing law although it is generally asserted to be so. It does not only "seek and "find" the law existing previous to its decisions it does not merely pronounce the law which exists ready and finished prior to its pronouncement. Both in establishing the presence of the conditions and in stipulating the sanction the judicial decision has a constitutive character. The law creating function of the Court is especially manifest when the judicial decision has the character as a precedent, and that means when the judicial decision creates a general norms. Where the Courts are entitled not only to apply pre- existing substantive law in their decisions, but also create new law for concrete cases, there is comprehensible inclination to give these judicial decisions the character of precedents. Within such a legal system, Courts are legislative organs in exactly in the same sense as the organ, which is called the legislator in the narrower and ordinary sense of the term. … Nobody doubts today that within the confines of vast spaces, a judge moves with freedom, which stamps his action as creative. "The law which is the resulting product is not found but made. The process, being legislative, demands legislators wisdom.":[25]

Not only is the directive principle embodied in *Article 46* binding on the law-maker as ordinarily understood, but it should equally inform and illuminate the approach of this Court when it makes a decision on the Court is also a "State" within the meaning of *Article 12* and makes law even though "interstitially from the molar to the molecular".[26]

But in subsequent decision, it was held that "it would not mean that in a given case the Court shall assume the role of the executive government of the State. Statutory functions are assigned to the State by the legislature and not by the Court. The Court while exercising its jurisdiction ordinarily must remind itself about the doctrine of separation of powers, which, however, although does not mean that the Court shall not step in any circumstances whatsoever, but the Court while exercising the power must also remind itself about the role of self-restraint. The Court is ordinarily reluctant to assume the function of statutory functionaries. It allow them to perform their duties in first instance."[27]

The High Court is an "authority" within the meaning of *Article 12*, and its administrative decision may be subject to its writ jurisdiction on the judicial side.[28]

The Supreme Court has held that though judgment/order of High Court are liable to be corrected by the Supreme Court in its appellate jurisdiction under *Articles 132*, *133* and *134* as well as under *Article 136 of the Constitution*, the High Court are not constituted as inferior Courts in our Constitutional Scheme. Therefore the Supreme Court would not issue a writ under *Article 32* to a High Court. Further, neither a smaller Bench nor a larger Bench of the Supreme Court can issue a writ under *Article 32 of the Constitution* to any other Bench of the Supreme Court. It is pointed out above that *Article 32* can be invoked only for the purpose of enforcing fundamental right conferred in Pt III and it is a settled position in law that no judicial order passed by any superior Court in judicial proceedings can be said to violate any of the fundamental rights enshrined in Pt III. It may further be noted that the superior Courts of justice do not fall within the ambit of "State" or other authorities under *Article 12 of the Constitution*.[29] In the above case, the Hon'ble Supreme Court, took note of an earlier case.[30] It was held that if an order is passed by the Supreme Court which deprives a person of his constitutional rights and also violative of principles of natural justice, the legal wrong should be corrected "*ex debito justitiae* (*i.e*. in accordance with the requirement of justice; as a matter of right). It was further held therein that an order of Supreme Court is not amenable to be corrected under *Article 32 of the Constitution*.[31]

The same principle was reiterated in *Surya Devi Rai v Ram Chander Rai*.[32]

In *Rupa Ashok Hurra's* case, the Supreme Court held that to prevent abuse of process of Court and to cure a gross miscarriage of justice, it may reconsider its judgments in exercise of its inherent powers. It was held that plenary powers under *Article 142 of the Constitution* are inherent in Court and are complementary to those powers which are specifically conferred on the Court by various statutes, though are not limited in those statutes. It was further observed that interest in finality of the decision must yield where interest of justice so required. Flexibility is the greatest virtue of law and its applicability should also be flexible rather than a rigid insistence on a strict format. Justice of a situation shall have to be considered with a fair perception of such a concept rather than with a blinking light – attention ought to be focused on a larger social perspective since law is meant for the society and if flexibility in its virtue, which law enjoys, its corresponding primary duty thus would be to change the legal horizon and perspective with the appropriate socio-economic change. The law must follow the society rather abandon the society and carry on its strict tract without any deviation or without being hindered of the social changes and thus resultantly face a social catastrophe.

In that case, the Supreme Court, directed the aggrieved person to file a curative petition, so that earlier decision could be reconsidered. Instances where the earlier judgment was reconsidered was also brought to the notice of the Supreme Court in (1) *Supreme Court Bar Association v UOI*,[33] (2) *M.S. Ahlawat v State of Haryana*;[34] (3) *United States of America v Ohio Power Co*,[35] *Raja Pritvi Chand Lal Choudhury v Rai Bahadur Sukhraj Rai*,[36] among various other cases.

Finally it was held thus: “After giving our anxious consideration to the question, we are persuaded to hold that the duty to do justice in rarest of rare cases shall have to prevail over the policy of certainty of judgment as though it is essentially in the public interest that a final judgment of the final Court of the country should not be open to challenge, yet these may be circumstances, wherein declining to reconsider the judgment would be oppressive to judicial conscience and would cause perpetuation of irremediable injustice.” (Para 43)

To say that the application of the fundamental rights has a narrower scope against a judicial decision is different from the radial proposition that the Judiciary is excluded from the definition of “State” in *Article 12*, so that there cannot be any collateral constitutional remedy against a judicial decision. A suggestion to this effect has indeed been made in several cases:

(i) In *Amirabbas v State of MB*,[37] SHAH, J., speaking for the Court made the following observation:

……denial of equality before the law or the equal protection of the laws can be claimed against executive or legislative process *but not against the decision of a competent tribunal*.[37]

This astounding assertion, it is submitted, runs counter to the basic principles of constitutional jurisprudence which we have imported from the *U.S.A.*, by adopting *verbatim* the “equal protection” clause from the American *Constitution*. It is more astounding because it was made without any reference to American precedents on the enforceability of the guarantee of equal protection against judicial decisions and orders, which I have just discussed or the observations in the earlier case of *Budhan*,[38] by our Supreme Court itself.

Of course, in the instant case,[39] the observation was an *obiter* because the Petitioner brought the Petition under *Article 32* on the footing of his alleged right to be appointed guardian of certain minor children. The Court rightly observed that there was no fundamental right to be appointed a guardian. There should have been an end of the matter. But the Court entered into the merit of the Petitioner’s case that the appointment by the inferior court of respondent no. 2 as guardian was discriminatory and therefore contravened *Article 14*. the *obiter* about the availability of fundamental rights against a judicial decision was made on that point.

The reason assigned by SHAH, J., in support of his proposition, which he had, in fact, asserted earlier as a Judge of the Bombay High Court, was that—

> The remedy of a person aggrieved by the decision of a competent judicial tribunal is to approach for redress a superior tribunals, if there be one.

Even this reason was intrinsically illogical, because where the inferior Court’s order was non-appealable, the aggrieved party would have no remedy at all for the infringement of his fundamental right and the resultant, in effect, would be a judicial prerogative to override the fundamental rights solemnly guaranteed by the *Constitution* against “the State”. What has been said of the American *Constitution*[40] is also true of the Indian *Constitution*, namely, that the *Constitution* has not immunised a violation of its provisions “simply because the act is that of the judicial branch of the State Government”,[40] or, as was said in the *Alabama case*,[41]

> It is not of moment that the State has there acted solely through its judicial branch for whether legislative or judicial, *it is still the application of State power* which we are asked to scrutinise.

(ii) Only a few days later, SARKAR, J., for the Court, made a similar observation regarding *quasi-judicial* tribunals:[42]

"The respondent no. 1 was acting as a *quasi*-judicial body and if it has made any mistake in its decision there are appropriate remedies available to the petitioner for obtaining relief. It cannot complain of a breach of *Article 14*".[42]

Though the observation was made in relation to a *quasi*-judicial tribunal, it was made on the assumption that the principle applies to all judicial decisions,— whether pronounced by a Court or by a quasi-judicial tribunal.

Naresh v State of Maharashtra.

(iii) The forgoing proposition that a quasi-judicial decision cannot be challenged as violative of *Article 14*, because of its nature, was affirmed by GAJENDRAGADKAR, C.J., for the majority, in *Naresh Mirajkar's case*,[43] and the proposition was widened to cover in their application to both judicial and quasi-judicial authorities.

In *Naresh Mirajkar's* case, GAJENDRAGADKAR, C.J., speaking for the majority, though not going to the extent of asserting that the Judiciary was not included within the definition of "the State" in *Article 12*, made observations which sought to silence all controversy on the topic:

> The argument that the impugned order affects the fundamental rights of the petitioners under *Article 19*(1), is based on a complete misconception about the true nature and character of judicial process and of judicial decisions. When a judge deals with matters brought before him for his adjudication, he first decides questions of fact on which the parties are at issue, and then applies the relevant law to the said facts. Whether the findings of fact recorded by the Judge are rights or wrong, and whether the conclusion of law drawn by him suffers from any infirmity, can be considered and decided if the party aggrieved by the decision of the Judge takes the matter up before the *appellate Court. But it is singularly inappropriate to assume that a judicial decision pronounced by a Judge of competent jurisdiction in relation to a matter brought before him for adjudication can affect the fundamental rights of the citizens under Article 19(1)*. What the judicial decision purports to do is to decide the controversy between the parties brought before the court and nothing more. If this basic and essential aspect of the judicial process is borne in mind, it would be plain that the judicial verdict pronounced by court in or in relation to a matter brought before it for its decision *cannot be said to affect the fundamental rights of citizens under Article 19(1)*.[44]

But, apart from the fact that the exclusion of a judicial decision emasculates the concept of "State action" as embodied in *Article 12*, it is not supportable either on juristic principles or on the very text of *Article 12*, itself; and the minority judgment of HIDAYATULLAH, J. in *Naresh's* case[45] is preferable. The following comments will show that the various arguments advanced to support such exclusion are not acceptable:

(a) The assumption that even when the fundamental right of an individual is affected by a judicial decision, the only remedy of the aggrieved party is by way of appeal ignores the patent fact that *Article 32* is an overriding and *additional* constitutional remedy which takes no account of appeal or other remedies, even though appeal to the Supreme Court has been separately provided for. The right to move the Supreme Court for the enforcement of a fundamental right is *guaranteed* by *Article 32*.

(b) Where there is no right of appeal under the general law, it would mean that an inferior Court has the prerogative of transgressing a fundamental right by its judicial decision, even though fundamental rights,

guaranteed by a written *Constitution*, are intended to be binding upon *all* organs of the State[46] which are not set up by that *Constitution*.

(c) Curiously, the majority in *Naresh's* case[47] holds that even where a third party to a litigation is affected in the exercise of his fundamental right, by a judicial decision or order (as happened in that case), the only remedy of such person would be by way of appeal and not by a proceeding under *Article 32*, to enforce his fundamental right, for, the third party may bring the matter before the Supreme Court under *Article 136*, though the order may not be appealable under the general law. But an appeal under *Article 136* is by special leave which is in the *discretion* of the Court and which cannot, therefore, be a substitute of the "guaranteed" remedy under *Article 32*. It is nowhere laid down in the *Constitution* that *Article 32* will be excluded by *Article 136*.[48]

(d) The assertion, in the concurring judgment of SARKAR J. that "a legally valid act cannot offend a fundamental right", offends against the very foundation of constitutional jurisprudence. As I have elaborately explained in my Tagore law Lectures on *Limited Government and Judicial Review*, a written *Constitution* with justiciable provisions rests on a theory of a higher law, which stands above the ordinary law. Not merely an act done under the ordinary law, but the law itself is liable to be unconstitutional and void if it contravenes the higher law embodied in the *Constitution*. Hence, the plea that the Executive or the Judiciary has acted in conformity with the law laid down by the Legislature would be no defence if the executive action or the judicial decision violates a mandatory provision of the *Constitution*, such as a fundamental right.

In such a situation, it is the American principle and not the English principle which is applicable. That the American principle was expressed as late as 1948, in the following words:[49]

> Although in construing the terms of the Fourteenth Amendment, difference have from time to time been expressed as to whether particular types of state action may be said to offend the Amendment's *prohibitory provisions*, it has *never been suggested* that state court action is immunized from the operation of those provisions *simply because the act is* that of the judicial branch of the state government.[49]

This is illustrated by the provisions of Pt III of our *Constitution* outside *Article 12*. Such, for instance, are the provisions in *Articles 20* (1)-(3) or *Article 22* (1), which are addressed specifically to judicial decisions. In the *U.S.A.*, a decision which would deny to the accused the immunity against double jeopardy or self-incrimination or the right to counsel would be quashed in proceedings for *habeas corpus or certiorari*,[50] irrespective of any right of appeal.

There is nothing in the *Constitution of India* to hold that a judicial decision which offends against these guarantees would not be void in the same sense as a law would have been under *Article 13*(2).[51]

In a subsequent decision, the Supreme Court further reiterated that a judgment of Court can never be challenged under *Articles 14* or *21* and a death sentence cannot be challenged as violative of *Article 14* or *21*. The only jurisdiction, which could be sought to be exercised by a prisoner for infringement of his rights, can be to challenge the subsequent events after the final verdict is pronounced. It was held that it will not be open to the Supreme Court in exercise of its jurisdiction under *Article 32* to go behind or to examine the final verdict reached by a competent Court convicting and sentencing the condemned prisoner and even while considering the circumstances in order to reach a conclusion or to whether the inordinate delay coupled with subsequent circumstances could be held to be sufficient for coming to a conclusion that execution of the sentence of death will not just and proper.[52] It was held in that case that if the judgment and sentence awarded is valid and binding, it falls to be executed in accordance with law since it is a part of the procedure established by law. The judicial verdict pronounced by Court in relation to a matter cannot be challenged on the ground that it violates one's fundamental right. The judgment of a Court cannot be said to affect the fundamental rights of citizens.

What the judicial decision purports to do is to decide the controversy between parties brought before Court and nothing more.[53]

A judicial decision contrary to fundamental rights is without jurisdiction.

(e) The analogous assumption that a Court has the jurisdiction to decide rightly or wrongly is an obsession following from the English notions about the status and functions of the Court. But *the position must have changed after the adoption of a written Constitution with a Bill of Rights*. The Courts, like any other organ of the State, are limited by the mandatory provisions of the *Constitution* and they can hardly be allowed to override the fundamental rights under the shield that they have, within their jurisdiction, the right to make an erroneous decision. The jurisdiction of a Court is limited by the *Constitution*; it cannot, therefore, have the jurisdiction to decide contrary to the provisions of the *Constitution*. Where a decision contravenes a fundamental right, it is not a case of mere *wrong* decision. A decision overriding a constitutional limitation is without jurisdiction and a nullity.[54]

If the decision of a Court is *intra vires* in the *legal* sense of being within the jurisdiction conferred by statute, it may be *legally* valid; but when it contravenes a fundamental right guaranteed by a written *Constitution*, it becomes *constitutionally invalid*.[55] Can it be contended by any one that a court has jurisdiction to violate the *Constitution* or the higher law by or under which all courts are constituted? If not, the constitutionally invalid decision becomes void for want of jurisdiction.

As observed by the American Supreme Court:

> Petitioner's detention and sentence of death (by a biased jury) pursuant to the void judgment is in violation of the *Constitution* of the United States and he is therefore entitled to be freed therefrom.[56]
>
> If…that conviction was obtained in violation of the *Constitution*, then his confinement is unlawful.[57]
>
> …the trial itself would be void.[58]

Thus, a conviction of a person without giving him an opportunity of being heard is itself unconstitutional, being contrary to "the immutable principles of justice"[59] underlying the "due process clause". It is void, being an instance of "judicial usurpation".[60]

Since *Article 13* of our *Constitution*, declaring unconstitutional legislative acts to be void, has been inserted only by way of abundant caution,[61] there is nothing in the *Constitution* to exclude from the purview of *Article 12* or *Article 32* or *226* judicial proceedings or to assert that a judicial proceeding which is violative of a constitutional guarantee would not be void so as to subject it to a collateral attack in remedial proceedings which are equally guaranteed by the *Constitution*.

If it be still asked why a judicial decision which transgresses or violates a constitutional limitation would be void, the answer would be - because it is beyond the jurisdiction of a court to make a decision contrary to the mandates of the *Constitution*.[62] If the decision of a court on a subject -matter which is excluded from its jurisdiction by statute be void, there is no reason why a decision which denies a fundamental right which is guaranteed by "the highest law of the land" against State action by any agency[63] should not be without jurisdiction and void.[62] As the American Supreme Court[64] has observed, the "*constitutional* rights of a person on trial" rise above "mere rules of *procedure*" and the Court, as a guardian of the fundamental rights has the duty to "refuse to sanction such violations" and to "apply the corrective".

It is gratifying to note that all the aforesaid arguments of the Author have been approved by a 7 judge bench in the extraordinary case of *Antulay*,[65] which are summarised, *e.g.*, (a) A judicial order which violates a fundamental right is without jurisdiction [*Articles 38*, *41*] and (b) is therefore a *nullity*; and (c) may be rectified by the superior Court which passed that order, in the exercise of its inherent jurisdiction [paras 81-83].[65]

Once we reach the conclusion that a judicial decision which contravenes a fundamental right is without jurisdiction and void, there would remain no other reason why such a void decision of an inferior Court cannot be quashed by a collateral proceeding under *Article 32*, apart from appeal.

The Hon'ble Supreme Court has held that it has power under *Article 136* or under *Article 32 of the Constitution* that if on satisfaction that an earlier judgment has deprived the person of his fundamental rights of a citizen or rights created under any other statute, can take a different view notwithstanding the earlier judgment.[66]

The availability of the various writs under *Article 32* to quash decisions of inferior Courts would be fully discussed under *Article 32*, *post*. But it should be pointed out at once that the opinion of GAJENDRAGADKAR C.J. in *Naresh's case*,[67] that the writ of *certiorari* does not, in England, lie against an inferior civil Court,[68] is based on wrong information. As I have said in my Tagore Law Lectures on *Limited Government and Judicial Review.*

> This assumption is based on the observation in *Halsbury's Laws of England*[69]. That observation has, however, been corrected in the *1965 Supplement of Halsbury*.[70] It is regrettable that the statement made as early as January, 1963[71] citing two English decisions of 1959-60, was not brought to the notice of the Court in *Maharashtra case*. That statement of the author may profitably be reproduced for the interest of the reader:
>
> "(A) *England*. Though the use of the writ of *certiorari* for quashing the decision of an inferior civil court has not been frequent, it is now settled that the writ would issue to quash such decision if it was made without jurisdiction, *e.g.*, where the inferior court gave a direction to a registration officer that the name of the applicant be removed from the electoral register even though the applicant was not a party before the Court.
>
> (B) *India*. In view of the ample powers of revision under *section 115 of the Code of Civil Procedure* and under *Article 227*, *post*, the use of *certiorari* to quash the decision of a Civil Court does not appear in any reported decision. There is no reason, however, why *certiorari* cannot be resorted to quash the decision of a Civil Court on the ground of a defect of jurisdiction or error of law apparent on the face of the record, in proper case where the superior Court may be inclined to entertain it notwithstanding the existence of an alternative remedy by way of appeal or the like.

It is now settled that a writ of *certiorari* will be issued by the High Court to quash a decision of a Civil Court or a Tribunal (1) for correcting errors of jurisdiction (2) when the Court or Tribunal act illegally in the exercise of its undoubted jurisdiction, as when it decides without giving an opportunity to the parties to be heard or violates the principles of natural justice. (3) The Court issuing a writ of *certiorari* act in exercise of supervisory and not appellate jurisdiction. One consequence is that the Court will not review findings of fact reached by inferior Court or Tribunal, even if they be erroneous. (4) An error in the decision or determination itself may also be amenable to a writ of *certiorari* if it is a manifest error apparent on the face of record or proceedings *e.g.* when it is based on clear ignorance or disregard of the provision of law. In other words, it is a patent error, which can be corrected by *certiorari*, but not a mere wrong decision.

Any authority or body of persons constituted by law or having legal authority to adjudicate upon questions

affecting the rights of a subject and enjoined with a duty to act judicially or quasi-judicially is amenable to the *certiorari* jurisdiction of the High Court. The proceedings of judicial Courts subordinate to the High Court can be subjected to *certiorari*. It was declared that order and proceedings of a judicial Court subordinate to the High Court are amenable to the writ jurisdiction of the High Court under *Article 226 of the Constitution of India*.

In exercising the *certiorari* jurisdiction the procedure ordinarily followed by the High Court is to command the inferior Court or Tribunal to certify its record or proceedings to the High Court for its inspection so to enable the High Court to determine whether on the face of the record the inferior Court has committed any of the preceding errors occasioning failure of justice.

A writ of *certiorari* issued for correcting errors of jurisdiction *i.e.* where a subordinate Court is found to have acted (1) without jurisdiction – by assuming jurisdiction where there exists none or (2) in excess of its jurisdiction – by overstepping or crossing the limits of jurisdiction or (3) acting in flagrant disregard of law or the rules of procedure or acting in violation of principles of natural justice where there is no procedure prescribed, and thereby occasioning failure of justice.

Supervisory jurisdiction under *Article 227 of the Constitution* is exercised for keeping the subordinate Courts within bounds of their jurisdiction. When a subordinate Court has assumed jurisdiction, which it does not have or has failed to exercise a jurisdiction, which it does have or the jurisdiction though available is being exercised by the Court in a manner not permitted by law and failure of justice as grave injustice has occasioned thereby, the High Court may step into exercise its supervisory jurisdiction.

Be it a writ of *certiorari* or the exercise of supervisory jurisdiction, none is available to correct mere errors of law unless (1) the error is manifest and apparent on the face of the proceedings such as when it is based on clear ignorance or utter disregard of the provision of law and (2) grave injustice or gross failure of justice has occasioned thereby. While exercising powers under *Article 226* or *Article 227*, the Court should not sit as an appellate Court and should not re-appreciate evidence. While exercising jurisdiction to issue a writ of *certiorari*, the High Court may annul or set aside the act, order or proceedings of the subordinate Court, but cannot substitute its own decision in place thereby. In exercise of supervisory jurisdiction under *Article 227*, the High Court may not only give suitable directions so as to guide the subordinate Court as to the manner in which it would act or proceed thereafter or afresh, the High Court may in appropriate cases itself make an order in supersession or substitution of the order of the subordinate Court as the Court should have made with facts and circumstances of the case.[72]

It was also held in *Surya Dev Rai's* case that the power of the High Court under *Articles 226* and *227* of the *Constitution* is always in addition to the revisional jurisdiction conferred on it.

It is settled law in *England* now that *certiorari* lies to quash the decision of an inferior court, say, on the ground of defect of jurisdiction, whether such decision appertains to the civil or criminal jurisdiction of the court.

Apart from all this, the very approach of GAJENDRAGADKAR C.J. on this point, is oblivious of the fact that the Court was dealing with the *Constitution* of *India*. To start with the deficiencies of the English prerogative writ of *certiorari* to curtail the guaranteed right under *Article 32*, was to put the cart before the horse. There are neither fundamental rights nor any constitutional remedy to enforce them, in England. Even if it were true that writ of *certiorari* would not lie against an inferior civil Court in England, that should not bar the issue of such writ in India, to enforce a fundamental right, simply because it is now firmly established that the power of the Supreme Court, under *Article 32* is not merely to issue the prerogative writs, but any appropriate writ or order or direction which would be effective enough to enforce the fundamental right.[73]

(f) The Supreme Court had already held that enforcement of a Rule made by itself would be void, if it involves the contravention of a fundamental right, because such Rule is a "law" within the meaning of *Article 13*(3).[74] This very decision assumed that the Judiciary is included within the definition in *Article 12*.

If an order of a Judge, in his administrative capacity, may be conceived of as violating a fundamental right, as the Supreme Court had held in the case of *Prem Chand*,[74] it was illogical to say that a similar order made by a judge in his judicial capacity should be beyond the reach of fundamental rights.

It is to be noted that the definition of "law" in *Article 13*(3) includes a custom or usage and any custom or usage which contravenes a fundamental right would be void, under *Article 13*(1). Suppose now, that an inferior Court enforces, by its decision, a custom which has become void by reason of contravention of a fundamental right. If an appeal lies from such decision, the appellate Court would no doubt correct the decision on the merits, if the point in properly placed before it. What happens if there is no right of appeal, and the matter is brought before the Supreme Court or a High Court under its extraordinary jurisdiction under *Article 32* or *226* ? Would the Court refuse relief on the ground that it would not interfere with an error in the decision unless the error is apparent on the face of the record; or should the Court, as the guardian of Fundamental Rights, perform its duty by reversing the decision which has become a nullity owing to its being founded on a "void" law?

(g) The majority, in *Naresh's case* came to hold that the fundamental right of a person under other Articles, such as *Article 19*(1) [freedom of speech] *cannot possibly* be affected by a judicial decision. But this is not correct either in the *U.S.A.* or in India. In the *U.S.A.*, as has been stated earlier, a conviction for contempt of court may be quashed where it is inconsistent with the freedom of expression. In *India*, of course, contempt of court is specified in *Article 19*(2) as an exception to the freedom of expression. But the exception would be available only where the act sought to be punished has a tendency to undermine the administration of justice. A mere scurrilous attack upon a judge cannot be punished as "contempt of court".[75] Where a person has been punished for a scurrilous attack upon a judge personally, the punishment would not be immunised by the exception under *Article 19*(2), but would be liable to be quashed under *Article 32* as an unconstitutional interference with the freedom of expression. If it be held that the order of the Court being judicial, it cannot possibly invade a fundamental right, a superior Court would not be entitled to afford relief against such conviction even on appeal.

(h) The very foundation of the assumption that *Article 12* does not extend to courts is gone since the 1967 decision of the Supreme Court in the *Rajasthan Electricity Board case*.[76] Prior to this decision, it was supposed in some cases that the expression "other authorities" in *Article 12* was to be construed *ejusdem generis* with the expression "Government and Parliament of India and the Government and Legislature of each of the States". If this view stood, it could plausibly be concluded that fundamental rights were available only against executive and legislative action and not against judicial decisions.

But not a year after the *Maharashtra* case,[77] the Supreme Court authoritatively laid down [76] that there was no common genus in *Article 12* and that, accordingly, the expression "other authorities" need not be construed *ejusdem generis*. It was also held that the definition in *Article 12* was not exhaustive. That decision has not been questioned ever since. That being so, there is no reason why the judicial organ of the State should be excluded from the ambit of *Article 12* merely because it expressly mentions only the Executive and Legislative branches.

A Court is certainly a "constitutional or statutory authority" on whom powers are conferred by laws and must, therefore, came under *Article 12*.

DR PAM RAJPUT has written the topic on *Articles 12* & *13* wherein the learned author, after discussing earlier decisions, says:

> There is an intrinsic strength in the view taken by JUSTICE HIDAYATHULLAH (in *Naresh Shridar Mirajkar's case* (*supra*)). In the absence of an express reference to it in *Article 12*, it is inappropriate or illogical to conclude positively

that framers of *Constitution* intended to exclude the judiciary from the area of "State", so as to put it beyond the reach of fundamental rights. Judiciary is an organ of State and a reading of Pt III clearly supports that view.[78]

There has, however, been a change of judicial climate since the minority opinion of HIDAYATULLAH, J. in *Naresh's case*.[78a] The propositions so far asserted in these subsequent cases are:

(a) A judicial decision or order which violates a fundamental right is void,[77] even though it will be binding on the parties so long as it is not set aside in appropriate proceedings.[79]

(b) Though the remedy under *Article 32* is not available where the offending Court is the Supreme Court itself, the Court in the exercise of its inherent jurisdiction (para 105)79 would review and set aside a previous direction given by the Court which offended against a fundamental right, *e.g.*, the natural justice ingredient of *Article 14* or *21* (paras 60-61, 77, 80-82).[80]

In *A.R. Antulay v R.S. Nayak*,[81] the Supreme Court held that the basic fundamentals of administration of justice are that no man should suffer because of mistake of court. No man should suffer a wrong by technical procedure of irregularities. Rules of procedure are the handmaids of justice and not the mistress of justice "*Ex debito justitiae*", the court must do justice to him. If a man has been wronged so long as it lies within the human machinery of administration, the wrong must be remedied.

An irregular order of the court of unlimited jurisdiction can be set aside by it on application being made to that court either under rules of court dealing expressly with setting aside orders for irregularity or "*ex debito justitiae*" warrant. The irregularity committed by *Constitution* Bench in giving impugned direction (*i.e.,* transfer of the case to the High Court and other directions concerning trial) has to be corrected not on construction or misconstruction of statute, but because of non-perception of certain provisions and certain authorities which would amount to derogation of the constitutional rights of citizen. "It is proper for the court to act "*ex debito justitiae*", to rectify the violation of fundamental right. The court said that it is bound to recall the order which caused grave injustice. The court said that in doing so, even if there are any technicalities, the Supreme Court should not feel shackled and decline that injustice or otherwise the injustice noticed will remain forever as a blot on justice. In such cases, the doctrine of *res judicata* also will not apply. The court further said that powers of review can be exercised by the Supreme Court *suo moto* in exercise of its inherent jurisdiction in any proceeding pending before it without insisting on formalities of review application. It can do so even in a petition filed under *Article 136* or *Article 32* or under any other provision of the *Constitution*, if the court is satisfied that its directions have resulted in the deprivation of the fundamental right of the citizen or any of his legal rights. At the same time, the court said that it cannot issue a writ of *certiorari* to quash a judgment. It was observed that judicial order of Supreme Court is not amenable to a writ of *certiorari* for correcting any error in the judgment.

(c) A three-Judge Bench of the Supreme Court[82] allowed a joint petition and quashed a judicial order of the Rajasthan High Court which had directed a death sentence to be executed by *public hanging*, on the ground, *inter alia*, that such a direction would be violative of *Article 21*.[82]

It is no longer necessary to dilate further on this point after the 7-Judge decision in *Antulay's* case,[82a] which we have already noted.

In that case, the court unconditionally deleted that portion of the High Court judgment which directed “public hanging” even though an appeal against conviction was pending before the Supreme Court. The power was exercised independently and not in appeal at the instance of the Attorney General. The court observed that the direction of the High Court as to “public hanging” is barbaric and a disgrace and shame on any civilised society which no society would tolerate and is violative of *Article 21 i.e.,* barbaric practice and cruel punishment, and a revolting spectacle harking back to earlier centuries.

[Art 12.5] Whether ‘State’ includes *quasi*-judicial tribunals U.S.A.

There is little doubt that the question would be answered in the affirmative in the *U.S.A.*

U.S.A.

Thus, invalidating an order of the Secretary of State, fixing maximum rates to be charged by market agencies at stock-yards, on the ground that no reasonable opportunity to be heard had been given to the persons affected by the rates fixed by the Secretary of State (breach of “due process’) the Supreme Court observed:

> The vast expansion of this field of administrative regulation in response to the pressure of social needs is made possible under our system by adherence to the basic principles that the Legislature shall appropriately *determine the standards of administrative action* and that in administrative proceedings *of a quasi-judicial character* the liberty and property of the citizen shall be protected by the *rudimentary requirements of fair play*.[83]

Similarly, the Equal Protection Clause has been applied to administrative authorities, even when vested with quasi -judicial authority.[84] In that case, to reduce the risk of fire, San Francisco prohibited operation of laundries in wooden buildings. All but ten of San Francisco’s 320 laundries were barred from further operation. Chinese persons operated 75% of the city’s business and virtually all of those were in wooden structures. Almost two-thirds of the 240 Chinese persons operating the laundries were arrested for violation of ordinance, while 80-odd laundries operated by European Americans in wooden buildings were left “unmolested”. The court invalidated the ordinance because San Francisco had “no jurisdiction” for its invidiously discriminatory application of a facially natural law.

In *Gommillion v Lightfoot*,[85] Tuskegee, Alabama re-drew its boundaries from a square to an “uncouth twenty-eight sided figure”. About ninety-nine percent of the black voters were illegally eliminated from Tuskegee, while not a single White voter was removed. The court ruled that if the allegations were true, the conclusion would be irresistible, tantamount for all practical purposes to mathematical demonstration, that the legislation is solely concerned with segregating White and black.

India.

But, in *India*, as has been stated earlier in the *Parbhani Co-operative Society’s case*,[86] a negative answer was suggested, extending the status of courts to administrative tribunals.

In this case,[87] the Co-operative Society complained of a violation of *Article 14* by the Regional Transport Authority, acting as quasi-judicial body, in that it granted a permit to the Government in preference to the Co-operative Society. It would seem that the Court, speaking through SARKAR J., was of the opinion that no complaint of a breach of *Article 14* lay against a quasi-judicial body. Of course, if it is a mere erroneous decision of the quasi- judicial authority, it cannot be said that *Article 14* has been violated, because *Article 14*, as the American decisions have held, does not ensure a uniformity of judicial or *quasi*-judicial decisions for guarantee immunity from errors, within jurisdiction, being committed by such authorities.

In this connection, we may recall the words of FRANKFURTER J. in *Snowden v Hughes*:[88]

> The *Constitution* does not assure *uniformity of decisions* or immunity from merely erroneous action, whether by the courts or the executive agencies of a state…The talk in some cases about systematic discrimination is only a way of indicating that in order to give rise to a constitutional grievance a departure from a norm must be rooted in design and not derived merely from *error or fallible judgment…*if the highest court of a state should candidly deny to one litigant a rule of law which it *concededly* would apply to all other litigants in similar situations, *could it escape condemnation as an unjust discrimination* and therefore a denial of the equal protection of the laws.[88]

If, however, the observation in *Parbhani's case*[89] implies that a quasi-judicial decision can never offend against *Article 14*, it is submitted with respect, the observation is unnecessarily wide, for, as in the U.S.A., a judicial or quasi-judicial decision which purposefully discriminates, may be challenged as violative of *Article 14* and it may be got rid of under *Article 32* or *226*, instead of resorting to appeal. If, for instance, the Court had found, in the instant case, that there was no reasonable differentia for classifying the Government apart from a Co-operative society in the matter of granting a transport permit, the Court would have been obliged to grant relief under *Article 32*.[90]

In the *Bidi Supply case*,[91] the Court had struck down an administrative order of a quasi-judicial tribunal as violative of *Article 14*. Would it make a difference if that order was required by the law to be given after a quasi-judicial hearing? Supposing a quasi-judicial tribunal gives its decision on the foundation of a law which is itself discriminatory.[92] Obviously, the decision of the tribunal would be equally discriminatory and *certiorari* should lie. What difference it makes if the law is not discriminatory but the order of the tribunal is? These questions were involved in *Ujjam Bai's* case.[92]

Ujjam Bai's case.

In this case,[92a] though the majority declined to go into the basic question whether a judicial or *quasi*-judicial authority could be held to be "State" within the meaning of *Article 12*,[93] the Court did *not* go to the extent of holding that quasi-judicial decision could never affect a fundamental right, so as to be subjected to the jurisdiction of the Supreme Court under *Article 32*. It laid down the following exceptions to the theory that the only remedy against a quasi-judicial decision was an appeal or revision, but not an application under *Article 32*:

(a) Where the decision is made under a statute[94] which is *ultra vires* the *Constitution*, rendering the decision to be without jurisdiction.

(b) Where, though the statute is constitutional and *intra vires*, the quasi-judicial decision is itself without jurisdiction, *e.g.*, where an order of assessment of tax offended *Article 286*,[95] or *Article 265*,[96] or it is *ultra vires* the statute under which it is purported to be made[97] or because it violated the principles of natural [98]justice, in conformity with which only a quasi-judicial decision can be made.

But where the statutory tribunal had jurisdiction to entertain the proceeding, there being no question of the statute itself being invalid, (a) the tribunal, according to the majority in *Ujjam Bai's case*,[99] has jurisdiction to come to a wrong conclusion on a question of law, including an interpretation of the governing statute, and (b) the decision of the tribunal, *per se*, cannot offend a fundamental right to attract *Article 32*, even though owing to its misinterpretation of the statute, its decision lacks the authority of law, which would be required to sustain it as a valid restriction upon a fundamental right.

The U.P. Sales Tax Act, (the constitutionality of which was not challenged), provided for the exemption of certain goods from taxation, if so notified by the Government. A notification of 1957 exempted *bidis* upon

certain conditions. By a misconstruction of that notification, the Sales Tax Officer held that the sale of bidis by the petitioner was not exempted and this order of assessment was challenged by the petitioner under *Article 32*, on the allegation, *inter alia*, that the order violated the petitioner's fundamental right of business guaranteed under *Article 19*(1)(g), since it had denied the exemption offered by the notification of 1957 and was therefore not authorised by law.

The primary question as to whether the impugned order was *ultra vires* the notification was rejected by the majority, holding that the construction of the notification by the Sales Tax Officer was not erroneous. There would have been little to say against the decision if it had stopped there inasmuch as unless the impugned order had assessed goods which were exempted under the law, it could not be held that the imposition of the tax upon the petitioner's business, not being authorised by law, was an unconstitutional restriction within the purview of clause (6) of *Article 19 of the Constitution*.

The majority, however, went further to say that even if the Assessing Authority's interpretation of the notification were erroneous, as a quasi-judicial authority he had the jurisdiction to make an erroneous interpretation of the law and that it could not be said that an order which he had the jurisdiction to make would offend against a fundamental right; whatever might have been the remedies offered by the statute itself or the general law, no petition under *Article 32* was maintainable. The majority went to the length of *overruling* its unanimous decision in *Kailas Nath v State of UP*,[1] to which KAPUR J. himself was a party. In that case,[1] where the facts were similar to those in the case of *Ujjam Bai*,[2] the Court found that the cloth on the sale of which tax had been imposed under the U.P. Sales Tax Act came within the exemption granted by the relevant notification and that the interpretation put to this notification by the Assessing Authority was erroneous. From this, the unanimous Court came to this unequivocal conclusion:

> (a) …if the exemption applies, then the tax has been levied *without jurisdiction*.
>
> (b) If a tax is levied *without due legal authority* on any trade or business then it is open to the citizen aggrieved to approach the Court for a *writ under Article 32*, since his right to carry on a trade is violated, or infringed by the imposition and such being the case, *Article 19*(1)(g) comes into play.

The majority, in *Ujjam Bai's* case [2] overturned both the foregoing propositions.

(i) The decision in *Ujjam Bai's* case,[2] it is submitted, suffers from a basic misconception about the doctrine of "State action" that underlies *Article 12*, as has been rightly emphasised by AYYANGAR J. in the minority judgement in that case.[3] The State can act either by making a law or by setting up a tribunal by a law. To say that if the law offends against a fundamental right it is the duty of the Court under *Article 32* to strike it down but that a tribunal, acting under he law made by the State, cannot be brought under *Article 32* even where its decision offends against the fundamental law, is patently anomalous. It is well established that a fundamental right guaranteed by *Article 19* cannot be restricted except by law, as indicated by clauses (2) - (6) of that Article [4] and also that taxation of goods may involve a violation of *Article 19*(1)(g) if it is done without authority of law.[4] Where, therefore, a quasi-judicial assessing authority taxes an item which is exempted by the statute either inadvertently or by an erroneous interpretation of the statute, it would be taxing a business without authority of law, and it matters little whether the State seeks to do that through the medium of a statutory authority acting administratively or quasi-judicially. To reproduce the words of AYYANGAR, J.:

> If an unconstitutional Act of the State Legislature would invade fundamental rights, the same character and the same consequence must a *fortiori* follow when that act is not even by the State Legislature but by an authority constituted under an enactment passed by it.

Where State action without legislative sanction behind it would violate the rights guaranteed under Pt III, *the result cannot be different because the State acts through the mechanism* of a quasi-judicial authority which is vested with jurisdiction to interpret the enactment.[3]

(ii) Even from the standpoint of ordinary law, it is not wholly correct to say that a quasi-judicial authority has the jurisdiction to decide rightly or wrongly and that *certiorari* does not lie to correct a mere erroneous determination of fact or of law made by such authority, for, it is well settled[5] that an inferior tribunal cannot give itself jurisdiction by an erroneous determination of a "collateral fact" (except where the statute confers upon it final power to determine jurisdictional facts as well, as to the validity of which in relation to a "constitutional'[6] or jurisdictional fact we are not concerned in the present context) and in such cases, *certiorari* lies to quash the decision of the inferior tribunal which is founded upon such erroneous determination of a jurisdictional fact,[7] which may sometimes be due to an erroneous interpretation of the relevant law.[8]

The erroneous interpretation in *Ujjam Bai's case*[9] was with respect to the question whether an item came within the notification of exempted articles. Whether a statute or a statutory instrument made under it excludes specified things from its purview, the question whether a thing does or does not come within such exclusion is a jurisdictional fact.[10]

(iii) The principles that a tribunal which has initial jurisdiction to decide a matter does not lose its jurisdiction by coming to a wrong conclusion, whether in law or in fact, has no application where it is alleged and established that the *Constitution* has been violated, for, no tribunal can claim an initial jurisdiction to make a decision which offends the "higher law" of the land, as has been explained earlier.[11]

Similarly, no law nor any authority set up by law can take away the guaranteed jurisdiction of the Supreme Court under *Article 32* to determine whether a fundamental right has been affected by any agency of the State, including a statutory authority vested with quasi-judicial power, whether its decision is otherwise right or wrong.

As has been pointed our earlier, it would be a "sacrilege" upon the *Constitution* to hold that "a legally valid act cannot offend any fundamental right", for, in a country which has adopted a written with a Bill of Rights enforceable by judicial review, there are two laws, -the ordinary law made by the Legislature and the "higher law" embodied in the *Constitution*. In order to be valid, therefore, under such a system, any act which affects the individual must be doubly valid,—legally as well as constitutionally. Mere "legal" validity is of no moment in such a country (as it may be in a country such as England), if the act offends against the *Constitution*. In fact, our Supreme Court has, in a case subsequent to *Ujjam Bai's*[9] treated the violation of a constitutional prohibition as a case of absence of jurisdiction.[12]

(iv) A more radical fallacy in the majority Opinion in *Ujjam Bai's* case [9] is to upgrade a quasi-judicial tribunal to the status of a Court. An administrative tribunal is a limb of the Executive; but because it is obliged to hear before it decides, it has some of the "trappings of a court". But such obligation cannot bring it up to the level of a court, in all respects.[13] It is because it is not a court that it is called *quasi-judicial*.

Hence, even assuming that a Court has the jurisdiction to interpret a statute wrongly so as to affect a person's fundamental right by its decision, no such principle can be extended to an administrative authority which has the obligation to decide quasi-judicially. Above all, it cannot give itself jurisdiction by its own wrong interpretation, in order that it may offend against the *Constitution*. Being a limb of the Executive, it comes clearly under the definition of "the State" under *Article 12*, so that it cannot violate a fundamental right even by an "*intra vires*" decision.

In fact, there is no warrant for the proposition that if a quasi-judicial order is *intra vires*, it cannot offend a fundamental right and no application under *Article 32* would lie against it on that ground. Nor is there is any justification for excluding quasi-judicial authorities from the purview of the definition of "State" in *Article 12 of the Constitution*, relying on any theory as to their jurisdiction to make a *wrong decision*. The decision in *Kailas Nath's case*[14] was correct. The concept of unconstitutionality transcends that of *statutory vires*.

If a *quasi*-judicial body acts under an *ultra vires* law, or outside its jurisdiction or ignores mandatory rules of procedure prescribed under relevant law, or infringe the principles of natural justice and thereby affect the fundamental rights, then its action can be quashed by Courts.[15]

Nevertheless, the majority decision in *Ujjam Bai*[16] was followed in several cases.[17]

Better trend.

It is assuring to note that after several somersaults, a *Constitution* Bench [18] has, in 1990, come back to the undeniable propositions that:

> …any act of the repository of power, whether legislative or administrative or quasi-judicial, is open to challenge if (i) it is conflict with the *Constitution* or (ii) the governing Act or (iii) the general principles of the law of the land or (iv) it is so arbitrary or unreasonable that no fair-minded authority could ever have made it (para 52).[18]

> Any arbitrary action, whether in the nature of a legislative or administrative or quasi-judicial exercise of power, is liable to attract the prohibition of *Article 14 of the Constitution* …The principle of equality enshrined in *Article 14* must guide every State action, whether it be legislative, executive or quasi-judicial (para 251).[18]

Rationality, reasonableness, objectivity and application of mind are pre-requisites of proper decision making and standard of fairness depends on consistency and certainty in State action. Principle of reasonableness and non-arbitrariness in government action is the core of constitutional scheme.[19] Once the court comes to the conclusion that a wrong order has been passed, it is its duty to rectify the same.[20]

After the exercise of those limited options, the parties concerned have absolutely no relief with regard to the dispute it is considered settled for eternity in the eye of the law. However, what is not eternal and still malleable in the eye of law is the "opinion or view of law" pronounced in the course of reaching the decision.[21]

In regard to awarding death sentence, the court said that the equal protection clause ingrained in *Article 14* applies to "judicial process" at the sentencing stage. *Articles 14* and *21* of *Constitution* would require a fair distribution of punishment among similarly situated convicts and appropriate criteria for determining the same. Due process requires from courts greater reliability and fairness for capital sentence than for other sentences.[22] The above view seems to think that *Article 14* is applicable to judiciary at least in regard to death sentence.

In *Rupa Ashok Hurra v Ashok Hurra*,[23] the court held that a person will be entitled to reopen the final judgment "*ex debito justitiae*" if he establishes violation of principles of natural justice, in that, he was not a party to the *lis*, but the judgment adversely affected his interest or if he was not a party to the *lis,* he was not served with notice of the proceeding and the matter was disposed of as if he had notice and where in the proceedings the learned judge failed to disclose his connection with the subject matter or the parties giving scope for an apprehension of bias and the judgment adversely affects him. In that case, the court reiterated that superior courts are not "States" within the meaning of *Article 12*.

After all, since by the 7-Judge decision in *Antualy's case*,[24] even a superior Court cannot claim the jurisdiction to ride roughshod over fundamental rights, what claim can a *quasi-judicial* authority have to do the same?

Whether the State itself can claim or enforce a fundamental right

India. *State of WB v UOI.*

In *State of WB v UOI*,[25] SINHA C.J. for the majority, set forth a proposition that under the Indian *Constitution* fundamental rights may be claimed not only by individuals and corporations but sometimes also by the State. His Lordship was obliged to assert this proposition as a concomitant of his major conclusion that the Union may acquire the property of a State Government by making a law of compulsory acquisition under *Article 31*(2), because *Article 31*(2) gives rise to a right to compensation in favour of the expropriated owner which should logically belong to the State when property belonging to it is compulsorily acquired by the Union.[25]

The Author has criticised the majority judgment in this case from various standpoint and the points under discussion is one of the weakest points in the majority judgment. The process in which the majority arrives at the conclusion that a State Government can claim the fundamental right to compensation under *Article 31*(2) is the process of "begging the question". Because, according to the majority, the State property must be liable to acquisition under a Union law, so the State Government must be entitled to the right incidental to such acquisition.

But the observation does not deal with the question whether, according to juristic principles, a fundamental right is intended for protection of individuals or for the State as well. That a corporation can claim some of the fundamental rights do not warrant the extension of that principle to the State; for, while a corporation (leaving aside the case of public corporations for the present) is nothing but a juristic aggregation of private individuals, having no sovereign authority; the State is a public entity exercising sovereign power.

It is equally unreasonable to suppose that a *Constitution* which recognises equality before the law and equal protection of the laws as a fundamental right, enjoyed even by aliens, would deny that right to the State. Union of India and the states are legal persons. Pt III (Fundamental Rights) imposes several duties on the State, and provides for their enforcement by the Supreme Court and the High Courts. *Articles 32* and *226* Pt IV (Directive Principles) impose on the State a duty to apply the directive principles in making laws, though these principles cannot be enforced in a Court of Law (*Article 37*). The executive power of the Union and the State extend to the carrying on of any trade or business and to the acquisition, holding and disposal of property and the making of contracts for any purpose. (*Article 298*) and the Government of India and the Government of States may sue or be sued (*Article 300*). The Union and the State have powers to borrow money (*Articles 292* and *293*). The property of the Union is exempt from State taxation except as Parliament may otherwise provide (*Article 285*); and the property and income of the State is exempt from Union taxation except that Parliament may by law provide for imposing a tax on the income of a business carried on by a State and on the property used by such State for such business (*Article 289*). Property occurring by escheat or lapse or *bona vasantia* vests in the Union or the States as provided by *Article 296*. These provisions clearly show that Union of India and the States have rights and obligations which can be enforced one against the other and against private individuals and private and public bodies. The States in India and bodies politic and corporate and in this respect they resemble the States of the United States, where State has been held to be a Corporation.[26]

The proposition that fundamental rights were intended for the State as well runs counter to the basic philosophy and history of fundamental rights, which has been explained so far in the Commentary, namely, that certain minimal rights of the individual were guaranteed by a written *Constitution* against the exercise of arbitrary government authority; there was no question of protecting one limb of the same federal State against another.[27]

This can be possible only if there is an express provision to that effect, such as *Article 131*, and the conditions of that article are satisfied.[28]

The dispute referred to in *Article 131* must, however, be a dispute in the *constitutional* capacity of the units.

Contractual disputes may be decided by the ordinary Courts.[29] Similar would be the position where there is no "dispute" between the two Units.[30] Thus, where a State is affected by the order of an independent public body, *e.g.*, the Election Commission, to whom *Article 131* has no application, the State may file a petition under *Article 226*.[31]

But the *enforcement of fundamental rights* would not be covered by any of these exceptions to *Article 131*.[32] Hence, the Union or State Governments cannot sue each other for violation of their supposed fundamental rights.

West Germany.

The status of Government corporation or corporations exercising *public* functions require separate treatment. It may be stated at once that if these be regarded as agents of the State, they cannot be allowed to claim fundamental rights by analogy. This is made clear by a decision of the *West German* Constitutional Court. *Article 19*(3) of the West German *Constitution* expressly confers the basic rights upon "corporations" "to the extent that the nature of such rights permits". But the Constitutional Court has held[33] that this provision would not extend to corporations which perform public functions and exercise State powers". The reason given is illuminating:

> The basic rights, according to their nature, was intended to protect the sphere of freedom of the individual against encroachments by State authority. Consequently, the State could not be at one and the same time the *party against* which the basic rights were invoked and the *party entitled* to exercise them.

The reason aforesaid is unquestionable and there is no reason why it should not be applicable in India.

If so, any agent or instrumentality of the State [see under *Article 12*] can sue the State or Union Government for alleged violation of their Fundamental rights.

As regards corporations *other than* those which do not represent the State as agent or instrumentality, they can claim those fundamental rights which are open to all "persons", such as *Article 14*.[34] But since *Article 19* is confined to "citizens", a corporation not being a citizen cannot claim a right under *Article 19* against the State though its shareholders may.[35]

---

1 *Kartick v W.B.S.I.C.*, AIR 1967 Cal 231 (234).

2 *Shri Anadi Mukta Sadguru Shree Muktaji Vandas Swami Suvarna Jayanti Mahotsav Smarak Trust v V.R. Rudani,* AIR 1989 SC 1607 : (1989) 2 SCC 691 : *1989 (II) LLJ 324* .

3 *G.M. Kisan Sahkari Chini Mills Ltd v Satrughan Nishad,* AIR 2003 SC 4531 : (2003) 8 SCC 639 : *2003 (III) LLJ 1108* .

4 *K. Krishnamachrayulu v Sri Venketeswara Hindu College of Engineering,* AIR 1998 SC 295 : (1997) 3 SCC 571 .

5 *Praga Tools Corp v C.V. Imanuel,* AIR 1969 SC 1306 : (1969) 1 SCC 535 ; **see also** *Dt. Co-op. Bank v Dy. Registrar of Co-op. Societies,* AIR 1973 All 348 ; *Sarvodaya Sugars Ltd v A.P. Civil Supplies Corp Ltd,* AIR 1981 AP 402 ; *Rohtas Industries v Its Union,* AIR 1976 SC 425 : (1976) 2 SCC 82 ; *Gujarat Steel Tubes v Mazdoor Sabha,* AIR 1980 SC 1896 : (1980) 2 SCC 593 .

6 *Francis John v Director of Education,* AIR 1990 SC 423 : 1989 (Supp-2) SCC 598.

7 *Sisham Raju v State of AP,* AIR 2005 NOC 329 (AP) : (2005) 3 An LT 596; see also *A. Joseph Luis v District Welfare Fund Committee,* AIR 2005 NOC 348 (Mad—FB); *Samrat Merchantile Private Ltd v National Multi Commodity Exchange of India,* AIR 2006 NOC 1145 (Raj); *N.C. Rastogi v UOI,* AIR 1986 Del 128 .

8 2004 AIHC 1687 (AP).

9 *Padam Singh v Chief Secretary, Indian Institute of Bankers,* 2005 AIHC 3670 (All); *Army School v Smt. Shilpi Paul,* 2005 AIHC 559 (All).

10 *Central Ware Housing Corpon. Sri Ganganagar v State of Rajasthan,* AIR 1995 Raj 180 .

11 *Federal Bank Ltd v Sagar Thomas,* AIR 2003 SC 4325 : (2003) 10 SCC 733 : 2004 (I) LLJ 161. **See also** *Kohal Sharma v UOI,* AIR 2005 P&H 67 .

12 *Shalini Shyam Shetty v Rajendra Shanker Patil,* (2010) 8 SCC 329 : (2010) 7 Scale 428 ; **see also** *Sohan Lal v UOI,* AIR 1957 SC 529 : (1957) SCR 738 .

13 **But see** *Praga Tool Corps case,* AIR 1969 SC 1306 : (1969) 1 SCC 535 (*supra*), where it was held that *mandamus* cannot be denied on the ground that the duty to be enforced is not "imposed by statute.

14 *Kum Kum v Principal Jesus & Mary College,* AIR 1976 Del 35 .

15 *Kochunni v State of Madras*, AIR 1959 SC 725 . **See also** *Haridasan Palayil v Speaker Kerala Legislative Assembly,* AIR 2003 Ker 328 .

16 *Basheshar v CIT*, AIR 1959 SC 149 (*158*).

17 *Ramana v I.A.A.I.*, AIR 1979 SC 1628 (*1638*, paras 14-16) [International Airport Authority of India]; *State of Punjab v Raja Ram*, AIR 1981 SC 1694 (para 5).

18 *Som Prakash v UOI*, AIR 1981 SC 212 (paras 34, 37).

19 See *Jatya Pal Singh v UOI,* (2013) 6 SCC 452 : (2013) 6 JT 376 .

20 (2005) 6 SCC 657 : AIR 2005 SC 3202 .

21 Extract in *Binny Ltd v Sadasivam,* (*supra*) at p 666 para 11.

22 *(1987) QB 815* .

23 A.W. Bradley & K.D. Ewing, *Constitutional & Administrative Law*, 13th Edn.

24 (2005) 6 SCC 657 (*supra*).

25 See de Smith, *Judicial Review of Administrative Action,* 6th Edn, chapter 3, para 45. Paras 46 to 55 also deal with matters which are relevant to consider public function.

26 *Sukhdev Singh v Bhagatram Sardar Singh Raghuvanshi,* AIR 1975 SC 1331 : (1975) 1 SCC 421 .

27 *Ramana Dayaram Shetty v International Airport Authority of India,* AIR 1979 SC 1628 : (1979) 1 SCC 489 : *1979 (II) LLJ 217* ; *Pradeep Kumar Biswas v Indian Institute of Chemical Biology,* (2002) 5 SCC 111 : (2002) 3 SCR 100 ; *Zee Telefilms Ltd v UOI,* (2005) 4 SCC 649 .

28 *Zee Telefilms Ltd v UOI,* (2005) 4 SCC 649 .

29 *Pradeep Kumar Biswas v UOI,* (2002) 5 SCC 111 : 2002 (3) SCR 100 – followed and relied on in *Federal Bank Ltd v Sagar Thomas,* AIR 2003 SC 4325

: (2003) 10 SCC 733 : *2004 (I) LLJ 161* . **See also** *K. Marappan v Dy. Registrar of Co-operative Societies,* (2006) 4 Mad LJ 641 (Mad—FB). **See also** *National Textiles Corp v Naresh Kumar Badri Kumar Jagad,* (2011) 12 SCC 695 : AIR 2012 SC 264 .

30 *Mullins v Board of Appeal of the Jockey Club,* (2005) EWHC 2197 ; *exparte Football League Ltd* *(1993) 2 All ER 833* wherein it was observed that it would be a misapplication of scarce judicial resources to hold a football association amenable to court's public law supervisory jurisdiction.

31 (2005) 6 SCC 657 .

32 *Virendra Kumar Srivastava v U.P. Rajya Karmachari Kalyan Nigam,* (2005) 1 SCC 149 : AIR 2005 SC 411 .

33 *General Manager v Kisan Sahkari Chini Mills Ltd,* AIR 2003 SC 4531 : (2003) 8 SCC 639 : 2003 LLJ 1108 , *Mysore Paper Mills Ltd v Mysore Paper Mills Officers' Association,* AIR 2002 SC 609 : (2002) 2 SCC 167 : *2002 (I) LLJ 1088* .

34 *Ganapati National Middle School v M. Durai Kanman,* AIR 1996 SC 2803 : (1996) 6 SCC 464 .

35 *Indian Banks Association v Devkala Consultancy Service,* (2004) 11 SCC 1 .

36 *Kapila Hingorani v State of Bihar,* (2003) 6 SCC 1 : *2003 (III) LLJ 31* .

37 *Dasaaratha v State of AP*, AIR 1961 SC 564 (*569*); *Ranjit v UOI*, AIR 1969 Cal 95 (*99*).

38 *Guru Govinda v Sankari Prasad,* AIR 1964 SC 254 (258); *Mafatlal v Divl. Commr.,* AIR 1966 SC 1364 ; *Agarwal v Hindusthan Steel,* AIR 1970 SC 1150 .

39 *Bhandari v I.T.D.C.*, AIR 1987 SC 111 (para 4).

40 **Cf.** *Baij Nath v State of UP*, AIR 1965 All 151 (*155*).

41 *Rajasthan State Electricity Board v Mohan*, (1967) 3 SCR 377 : AIR 1967 SC 1857

. See *also Srikant v Vasant Rao,* AIR 2006 SC 918
: (2006) 2 SCC 682 .

42 *Dalco Engg. Pvt Ltd v Satish Prabhakar Padhye,*
(2010) 4 SCC 378 : AIR 2010 SC 1576
.

43 *HEC Voluntary Retired Employees Welfare Society v Heavy Engineering Corp Ltd,* (2006) 3 SCC 708 .

44 *Secretary, State of Karnataka v Umadevi,*
(2006) 4 SCC 1 ; *National Fertilisers Ltd v Somvir Singh,*
(2006) 5 SCC 493 ; *Municipal Council v Surinder Kumar,*
(2006) 5 SCC 173 . *Haryana State Industrial Development Corp v Hari Om Enterprises,* AIR 2009 SC 218 :
(2009) 16 SCC 208 .

45 *Assam Small Scale Industrial Development Corp v J.D. Pharmaceuticals,* AIR 2006 SC 131 ; *Ajay Hasia v Khalid Mujib Sehravarali* AIR 1981 SC 487 :
(1981) 1 SCC 722 : *1981 (I) LLJ 103*
) – **See also** *Pradeep Kumar Biswas v Indian Institute of Chemical Biology*
(2002) 5 SCC 111 : (2002) 3 SCR 100
. **See also** *M/s. Srimanli Builders (Common) v Bangalore Water Supply and Sewerage Board,* AIR 2005 NOC 598 (Karnataka) : (2005) 5 AIR Karnataka Reports 323; *Shivamma Naik v Banglore University,* AIR 2006 NOC 145 (Kant) : (2006) 1 AIR Kant R 130.

46 *K. Marappan v Dy. Registrar of Co-operative Societies,* (2006) 4 Mad LJ 641 (Mad—FB).

47 *Jagveer Singh v Chairman Co-operative Textile Mills Ltd,* 2000 AIHC 294 (All).

48 *State of Bihar v UOI*, (1970) I.S.C.C. 67 (*75*).

49 *Agarwal v Gurgaon Bank*,
AIR 1988 SC 286 . **See also** *Municipal Council v Rajkumar,*
(2006) 3 SCC 81 .

50 AIR 1971 SC 191
: (1970) 3 SCC 545 .

51 *S.K. Saha v Prem Prakash Agarwal,*
AIR 1994 SC 745 : (1994) 1 SCC 431
.

52 *Kedarnath v State of Bihar*,
(1962) Supp. 2 SCR 769 (*805-6*).

53 **Cf**. *Stromberg v California*, (1931) 283 US 359 (*369*).

54 **Cf.** *Harisiades v Shaughnessy*, (1952) 342 US 580 (*602*).

55 *Ujjam Bai v State of UP*, (1963) 1 SCR 778 (*968-9*), per AYYANGAR, J., *dissenting*. **See also** *Aman Preet Singh v Govt. of India,* AIR 1996 P&H 284 .

56 *Ujjam Bai v State of UP*, (1963) 1 SCR 778 (*968-9*), per AYYANGAR, J., *dissenting*; *Naresh v State of Maharashtra*, (1966) 3 SCR 744 (*790*), HIDAYATULLAH, J., *dissenting*.

57 *Vide* Author's T.L.L. See elaborate discussion at pp 66ff. in Author's *Comparative Constitutional Law*.

58 *Ramana v I.A.A.I.*, AIR 1979 SC 1628 (paras 14-16); *State of Punjab v Raja Ram*, AIR 1981 SC 1694 (para 5); *Gulam v State of UP*, AIR 1981 SC 2198 (para 23); *Som Prakash v UOI*, AIR 1981 SC 212 (paras 34, 37).

59 *Ramana v I.A.A.I.*, AIR 1979 SC 1628 (paras 14-16); *State of Punjab v Raja Ram*, AIR 1981 SC 1694 (para 5); *Gulam v State of UP*, AIR 1981 SC 2198 (para 23); *Som Prakash v UOI*, AIR 1981 SC 212 (paras 34, 37).

59a **See** V.G. Ramachandran, *Law of Writs*, 6th Edn, vol 1, pp 75-79.

60 *Ujjai Bai v State of UP,* AIR 1962 SC 1621 : (1963) 1 SCR 778 ; *Khajoor Singh v UOI,* AIR 1961 SC 532 : (1961) 2 SCR 828 ; *Ramamurthy Reddiar v Chief Commissioner, Pondicherry,* AIR 1963 SC 1464 : (1964) 1 SCR 656 ; *CIT v Taj Mahal Hotel,* (1971) 3 SCC 550 : AIR 1972 SC 168 ; *South Gujarat Roofing Tiles Manufacturers v State of Gujarat,* AIR 1977 SC 90 : (1976) 4 SCC 601 .

61 *Ujjai Bai v State of UP,* (*supra*); **see also** *Naresh Shridhar Mirajkar v State of Maharashtra,* AIR 1988 SC 1531 : (1988) 4 SCC 602 .

62 in *Naresh Shridhar Mirajkar v State of Maharashtra,* AIR 1967 SC 1 : (1966) 3 SCR 744 (*supra*).

63 See H.M. Seervai, *Constitutional Law of India*, 4th Edn, vol I, pp 396-98.

64 See *Money v Holohan,* (1935) 294 US 103; *Home Tel. Co v Los Angeles,* (1913) 227 US 278; *Brinkarchoft Faris Trust v Hill,* (1930) 281 US 673; *Shelly v Kraemer,* (1947) 334 US 1.

65 AIR 1962 SC 1621 : (1963) 1 SCR 778 (*supra*).

66 AIR 1982 SC 1325 : (1982) 3 SCC 24 .

67 *K. K. Kochunni v State of Madras,* AIR 1959 SC 725 : 1959 (Supp-2) SCC 316; *Masthan v Chief Commr.,* AIR 1962 SC 793 ; *Tilochand v H.B. Munshi,* (1969) 1 SCC 110 : AIR 1970 SC 898 ; *Fertilizer Corp Kamgar Union v UOI,* AIR 1981 SC 344 : (1981) 1 SCC 568 .

68 *Snowden v Hughes,* (1944) 321 US 1.

69 See V.G. Ramachandran, *Law of Writs*, 6th Edn, vol I, pp 75-79.

70 AIR 1977 SC 2328 : (1977) 4 SCC 193 .

71 See H.M. Seervai, *Constitutional Law of India*, 4th Edn, vol I, pp 393-399. **See also** the decision in *A.R. Antulay v R.S. Nayak,* (1988) 2 SCC 602 , the view taken by JUSTICE MUKHARJEE.

72 Webster's Dictionary.

73 Odham's Dictionary.

74 *K. Morappan v Dy. Registrar of Co-operative Society,* (2006) 4 Mad LJ 641 (Mad—FB).

75 *Namboodripad v C.D. Board*, AIR 1956 TC 19 (*21*).

76 *Ujjam Bai v State of UP*, (1963) 1 SCR 778 (*969*), per AYYANGAR, J.

77 *Rajasthan State Electricity Board v Mohan Lal,* AIR 1967 SC 1857 : (1967) 3 SCR 377 (*Supra*).

78 *Som Prakash Rekhi v UOI,* AIR 1981 SC 212 : (1981) 1 SCC 449 : *1981 (I) LLJ 79* .

79 *Pradeep Kumar Biswas v Indian Institute of Chemical Biology,* (2002) 5 SCC 111 .

80 *Harikrishan Singh v State of Punjab,* AIR 1966 Punj 248 **;** *Mohd. Anwar Allai v State,* AIR 1967 J & K 32.

81 *Zee Tele Films v UOI,* AIR 2005 SC 2677 : (2005) 4 SCC 649 .

82 *M. Kumar v Bharat Earth Movers Ltd,* AIR 1999 Kant 343 .

83 *Mohd. Anwar Allai v State of J&K,* AIR 1967 J&K 32 .

84 *Pradeep Kumar Biswas v Indian Institute of Chemical Biology,* (2002) 5 SCC 111 (*Supra*).

85 *Rajasthan State Electricity Board v Mohan Lal*, (1967) 1 SCR 377 (*385*); Casebook, p 36, (para 4-5).

86 *Ujjam Bai v State of UP*, (1963) 1 SCR 778 (*969*), per AYYANGAR, J.; *Ramamurthi v Chief Commr.*, (1964) 1 SCR 656 (*666*).

87 *Paramatma v Chief Justice*, AIR 1961 Raj 18 .

88 *Punjab Water Supply and Sewerage Board v Ranjodh Singh,* AIR 2007 SC 1082 .

89 *Namboodripad v C.D. Board*, AIR 1956 TC 19 (*21*).

90 *Paramatma v Chief Justice*, AIR 1961 Raj 18 . [**See also pp** 246ff., 251ff., *post*].

91 AIR 1981 SC 212 : (1981) 1 SCC 449 .

92 *M. Kumar v Bharat Earth Movers Ltd,* AIR 1999 Kant 343 .

93 *Bhikhari Behara v Dhanapatia,* AIR 1970 Cal 176 ; **See also** *Manendra Prasad v Ranchi Regional Development Authority,* AIR 1981 Pat 208 .

94 *Velpur Gram Panchayat v Asst. Director of Marketing, Guntur,* AIR 1998 AP 142 . **See also** *Mohinder Kumar v Dist. Election Officer,* AIR 1997 P&H 272 ; *Dalip Singh v Jagvir Singh,* AIR 1997 P&H 19 ; *Falma Laboratories Pvt Ltd v State,* AIR 1997 Kant 321 ; *Commissioner of Income Tax v U.P. Forest Corp,* AIR 1998 SC 1125 ; *Surya Kant Roy v Imamul Hai Khan,* AIR 1975 SC 1053 . **But see** *Kishan Singh v State of Punjab,* AIR 1961 Punjab 1 (FB); *Ajit Singh v State of Punjab,* AIR 1967 SC 856 : [1967] 2 SCR 143 .

95 III C.A.D. 391-2. **See also** *Ajit Singh v State of Punjab,* AIR 1967 SC 856 : (1967) 2 SCR 143 ; *State of Gujarat v Raman Lal,* AIR 1981 SC 53 : (1980) 4 SCC 653 .

96 *State of Gujarat v Shantilal*, AIR 1969 SC 634 (*643*); *Rashid Ahmed v Municipal Bd.*, (1950) SCR 566 (*571*) : AIR 1950 SC 163 .

97 *State of Gujarat v Shantilal*, AIR 1969 SC 634 (*643*); *Rashid Ahmed v Municipal Bd.*, (1950) SCR 566 (*571*) : AIR 1950 SC 163 .

98 *Ajit Singh v State of Punjab,* AIR 1967 SC 856 (*866*); *Bhagat Ram v State of Punjab,* AIR 1967 SC 927 .

99 *R.I. Handicraft Manufacturing Association v Kottayam Municipality,* AIR 2000 Ker 30 . **See also** *Dalip Singh v Faquir Singh,* AIR 1997 P & H 19; *M. Kumar v Bharath Earthmovers Ltd,* AIR 1999 Kar 343 ; *Suryakant Ray v Imamul Hak Khan,* AIR 1975 SC 1053 ; *Manendra Prasad v Ranchi Regional Development Authority,* AIR 1981 Pat 208 .

1 *Natwarlal Khodidas Parmar v Dist. Panchayat, Jamnagar,* AIR 1990 Guj 142 . **See also** *Mohan Lal v State of Rajasthan,* AIR 1966 Raj 1 .

2 *UOI v R.C. Jain,* AIR 1981 SC 951 : (1981) 2 SCC 308 .

3 *Municipal Corp of Delhi v Birla Cotton Spg. & Wvg. Mills, Delhi,* AIR 1968 SC 1232 : (1968) 3 SCR 251 .

[Art 12] Definition.-

4 *Vailjibhi Muljibhai Soneji v State of Bombay,* AIR 1963 SC 1890 : (1964) 3 SCR 686 .

5 *Calcutta State Transport Corp v CIT,* AIR 1996 SC 1316 : (1996) 8 SCC 758 .

6 *Housing Board of Haryana v Haryana Housing Board Employees' Union,* AIR 1996 SC 434 .

7 *Kashi Vidyapith v Motilal,* AIR 1996 SC 2705 : (1996) 10 SCC 456 .

8 *Rajasthan State Electricity Board v Mohan Lal*, (1967) 1 SCR 377 (*385*).

9 *Housing Bd. v H.H.B.E.U.*, AIR 1996 SC 434 (para 52).

10 *Ramamurthi v Chief Commr.*, (1964) 1 SCR 656 (*666*).

11 *Rajasthan State Electricity Board v Mohan Lal*, (1967) 1 SCR 377 (*385*).

12 *Ramamurthi v Chief Commr.*, (1964) 1 SCR 656 (*666*); *State Trading Corp v C.T.O.*, (1964) 3 SCR 99 (*123, 155, 189*).

13 *State Trading Corp v C.T.O.*, (1964) 3 SCR 99 (*123, 155, 189*).

14 *Housing Bd. v H.H.B.E.U.*, AIR 1996 SC 434 (para 52).

15 *Pradeep Kumar Biswas v Indian Institute of Chemical Biology,* (2002) 5 SCC 111 – para 74.

16 *Pradeep Kumar Biswas v Indian Institute of Chemical Biology,* (2002) 5 SCC 111 – para 97.

17 *Steel Authority of India v National Union Waterfront Workers,* AIR 2001 SC 3527 : (2001) 7 SCC 1 : *2001 (II) LLJ 1087* .

18 *Kapila Hingorani v State of Bihar,* (2003) 6 SCC 1 : 2003 (III) LLJ 31 .

19 *ABC International Ltd v Export Credit Guarantee Corp Ltd,* (2004) 3 SCC 553 : (2003) 10 JT 300 ; *Export Credit Corp Ltd v A. Jaya Kumar,* (2006) 4 Mad LJ 230.

20 *M. Mugadapathi v Manager and Correspondent, Savariappa Udayar Memorial Higher Secondary School,* (1997) 2 Mad LJ 499 : (1997) 2 CTC 719 .

21 *Director of Medical Education v Dr. M. Ilango,* (2008) 3 Mad LJ 1463 (NOC); **see also** *Joseph Louis Trichy v District Welfare Fund Committee,* (2005) 2 Mad LJ 506 : (2006) 1 LW 25: (2005) 2 CTC 231 .

22 *Rajasthan State Electricity Bd. v Mohan Lal,* AIR 1967 SC 1856 (*1861-63*); *Railway Board v Observer Publications,* (1972) 1 SCWR 696 (*704*). See also *Dumroan Textile Ltd v Bihar State Electricity Board,* AIR 1995 Pat 43 .

23 *Som Prakash v UOI,* AIR 1981 SC 212 ; *Tejender v B.P.S.,* (1986) 4 SCC 237 (para 3); *Dwarkadas v Port of Bombay,* AIR 1989 SC 1642 .

24 *Bidi Supply Co v UOI,* (1956) SC 267 (*277*).

25 *State of Punjab v Raja,* (1981) 3 SCC 66 (paras 9-10).

26 *Rajasthan State Electricity Bd. v Mohan Lal,* AIR 1967 SC 1856 (*1861-63*); *Railway Board v Observer Publications,* (1972) 1 SCWR 696 (*704*); *Bidi Supply Co v UOI,* (1956) SC 267 (*277*).

27 *Rajasthan State Electricity Bd. v Mohan Lal,* AIR 1967 SC 1856 (*1861-63*); *Railway Board v Observer Publications,* (1972) 1 SCWR 696 (*704*). See also *Dumroan Textile Ltd v Bihar State Electricity Board,* AIR 1995 Pat 43 .

28 *Umesh v Singh,* AIR 1967 Pat 3 (*9*) FB. See also *S.R. Mebnotira v State of HP,* AIR 1997 HP 51 **See also** *S.K. Ghosh v Utkal University,* AIR 1952 Ori 1 ; *Jagdish Chandra v University of Punjab,* AIR 1952 Punjab 395 ; **see also** *G.A. Natesan, In re.* AIR 1988 Mad 763 ; *Sumendra Prasad v University of Calcutta,* AIR 1953 Cal 172 ; *Jagannath Mahapatra v Utkal University,* (1979) 1 SLR 828 ; *S.M. Sharma v South Gujarat University,* (1982) GujLR 233; *Sami Kumar v State of Bihar,* AIR 1982 Pat 66 .

29 *Paramatma v Chief Justice*, AIR 1964 Raj 13 .

29a *Paramatma v Chief Justice*, AIR 1964 Raj 13 .

30 *D.T.C. v Mazdoor Congress*, AIR 1991 SC 101 (para 199).

31 *Som Prakash v UOI*, AIR 1981 SC 212 ; *Tejender v B.P.S.*, (1986) 4 SCC 237 (para 3); *Dwarkadas v Port of Bombay*, AIR 1989 SC 1642 ; *Bharat Petroleum Corp Employees v Chairman*, (1993) 4 SCC 37 (para 6). **See also** *Sukhdev Singh v Bhagatram,* AIR 1975 SC 1331 : (1975) 1 SCC 421 .

32 *Sukhdev v Bhagatram*, AIR 1975 SC 1331 (*1342*); *Sabhajit v UOI*, AIR 1975 SC 1329 ; *Mysore S.R.T.C. v Devraj*, AIR 1976 SC 1027 (para 14); *Premji v D.D.A.*, AIR 1980 SC 738 (paras 8, 9).

33 *Ujjam Bai v State of UP*, (1963) 1 SCR 778 (*969*), *Masthan v Chief Commr.*, AIR 1963 SC 533 ; *Ramamurthy v Chief Commr.*, AIR 1963 SC 1464 .

34 *Ramana v International Airports Authority*, AIR 1979 SC 1628 ; *Gujarat S.T. Corp v Lotus Hotels*, AIR 1983 SC 848 ; *Workmen v F.C.I.*, AIR 1985 SC 670 .

35 *Ajay v Khalid*, AIR 1981 SC 487 (paras 7, 11, 15); *Minhas v Indian Statistical Institute*, AIR 1980 SC 363 (para 20).

36 *S.F.C. v Gem Cap.*, AIR 1993 SC 1435 (para 10); *Mahesh v Regional Manager*, AIR 1993 SC 935 . **See also** *Karnataka State Financial Corp v Narasimhaih,* AIR 2008 SC 1797 : (2008) 5 SCC 176 ; *Ormi Textiles v State of UP,* AIR 2008 SC 2177 : (2008) 5 SCC 194 ; *Everest Wools Pvt Ltd v UP Financial Corp,* (2008) 1 SCC 643 : (2007) 14 Scale 445 .

37 *Mohan Singh v Patiala and East Punjab States Union,* AIR 1954 Pepsu 136 .

38 *Abdul Gaffar v UOI,* (2012) 4 Ker LT (SN) 78 (of Delhi HC FB).

39 *Ravindra Raju v Singeraini Collieries Co Ltd,* (2012) 3 ALT 678 : (2012) 115 AIC 364 (AP).

40 *A.C. Muthiah v Board of Control for Cricket in India,* (2011) 6 SCC 617 : (2011) 2 Ker LT (SN) 102 .

41 *Karnataka State Forest Industries Corp v Indian Rocks,* AIR 2009 SC 684 : (2009) 1 SCC 150 .

42 *Sardar Associates v Punjab & Sind Bank,* (2009) 8 SCC 257 ; *Eureka Forbes Ltd v Allahabad Bank,* (2010) 6 SCC 193 ; *Centre for Public Interest Litigation v UOI,* (2005) 8 SCC 202 ; AIR 2005 SC 4413 .

43 *State of UP v Radhey Shyam Rai,* (2009) 5 SCC 577 : (2009) 2 LLN 84 .

44 *State of Assam v Barak Upatyaka,* AIR 2009 SC 2249 : (2009) 5 SCC 694 ; *Steel Authority of India Ltd v National Union Waterfront Workers,* (2001) 7 SCC 1 : AIR 2001 SC 3527 .

45 *Vikramaditya Jain v UOI,* AIR 1999 Del 232 .

46 *Debdas v K.E. College*, AIR 1964 Raj 6 (*11*).

47 *S.K. Mukheree v Chemicals*, AIR 1962 Cal 10 (*12*); *M.C. Mehta v UOI*, AIR 1987 SC 1086 .

48 *Naresh v State of Maharashtra*, AIR 1967 SC (*11*); *Parbhani T.C.S. v R.T.*, AIR 1960 SC 801 ; *Tekraj v UOI*, AIR 1988 SC 469 .

49 *Kochunni v State of Madras* (1), AIR 1959 SC 725 (*730*).

50 *Satimba Sharma v St. Paul's Senior Secondary School,* AIR 2011 SC 2926 : (2011) 3 SCC 760 : (2011) 8 Mad LJ 554 (SC).

51 See *Governor of Delhi v V.K. Sodhi,* (2008) 1 Mad LJ 902 (SC).

52 *Triad Trading Services Ltd v State of TN,* (1999) 3 Mad LJ 546 (Mad); (2000) 1 LW 23 : (1999) 3 CTC 241 .

53 *K. Krishnamma Charyalu v Sri Venkateswara Hindu College of Engg.,* (1997) 3 SCC 571 .

54 *Tiwari v Jwala*, AIR 1981 SC 122 ; *Dhanoa v Municipal Corp*, (1981) 3 SCC 431 ; *Sheela Barse v Children Aid Society*, AIR 1987 SC 656 .

55 *Som Prakash v UOI*, AIR 1981 SC 212 ; *Sabhajit v UOI*, AIR 1975 SC 1329 ; *Minhas v Indian Statistical Inst.*, AIR 1984 SC 363 (para 21); *Ramchand v UOI*, AIR 1984 SC 541 (paras 10-11); *Sheela v Secy.*, AIR 1987 SC 656 (para 12).

56 *Chander v N.C.E.R.T.*, AIR 1992 SC 76 (para 5); *Housing Bd. v H.H.B.E.U.*, AIR 1996 SC 434 (paras 47, 52).

57 *Central Inland Water Corp v Brojo*, AIR 1986 SC 1371 (paras 23, 24, 69); *Bhandari v I.T.D.C.*, (1986) IV SCC 337 (para 3); *Ajay v Khalid*, AIR 1981 SC 487 (*496*); *L.I.C. v Escorts*, AIR 1986 SC 1370 (para 100) [Life Ins. Corporation]; *Gujarat State Financial Corp v Lotus Hotels*, AIR 1983 SC 848 (para 8); *Kalra v P. & E. Corp*, AIR 1984 SC 1361 (para 15); *Prathama Bank v Vijay*, AIR 1989 SC 1946 (para 7).

58 *Manmohan v Commr.*, AIR 1985 SC 364 (para 8).

59 *Sukhdev v Bhagatram*, AIR 1975 SC 1331 (*1335, 1359-60*); *A.I. Sainik Schools Employees v Sainik Schools Society*, AIR 1989 SC 88 ; *Star Enterprises v C.I.D.C.*, (1990) 3 SCC 280 ; *Mahabir v Indian Oil*, (1990) 3 SCC 752 .

60 *Central Inland Water Corp v Brojo*, AIR 1986 SC 1371 (paras 23, 24, 69); *Bhandari v I.T.D.C.*, (1986) IV SCC 337 (para 3)

[Art 12] Definition.-

61 *Central Inland Water Corp v Brojo*, AIR 1986 SC 1371 (paras 23, 24, 69); *Bhandari v I.T.D.C.*, (1986) IV SCC 337 (para 3); *Ajay v Khalid*, AIR 1981 SC 487 (*496*); *L.I.C. v Escorts*, AIR 1986 SC 1370 (para 100) [Life Ins. Corporation]; *Gujarat State Financial Corp v Lotus Hotels*, AIR 1983 SC 848 (para 8); *Kalra v P. & E. Corp*, AIR 1984 SC 1361 (para 15); *Prathama Bank v Vijay*, AIR 1989 SC 1946 (para 7). **See also** *Kalyani Spinning Mills v Sudha Sashi Kant Shroff,* AIR 1995 Cal 48 . **See also** *Zoroastrian Co-op. Housing Society Ltd v Dt. Registrar, Co-op. Societies (Urban),* AIR 2005 SC 2306 : (2005) 5 SCC 632 .

62 *Ajay v Khalid*, AIR 1981 SC 487 (*496*); *L.I.C. v Escorts*, AIR 1986 SC 1370 (para 100) [Life Ins. Corporation]; *Gujarat State Financial Corp v Lotus Hotels*, AIR 1983 SC 848 (para 8); *Kalra v P. E. Corp*, AIR 1984 SC 1361 (para 15); *Prathama Bank v Vijay*, AIR 1989 SC 1946 (para 7). See also *Mradula Sharma v State Chief Commissioner, M.P. Bharat Scouts Guides,* AIR 1995 MP 88 .

63 *Manmohan v Commr.*, AIR 1985 SC 364 (para 8); *Iyer v UOI*, AIR 1984 SC 541 ; *Ilyas v I.C.A.R.*, AIR 1993 SC 384 (para 3)[Institutions under the Indian Council of Agricultural Research]; *A.I. Sramik Assocn. v Defence Minister*, AIR 1984 SC 88 . **See also** *T.T.C. Yuvaraj v Principal, Dr. B.R. Ambedkar Medical College,* AIR 1997 Kant 261 ; *Shyam Lal v UOI,* AIR 1998 All 199 .

63a *Ajay v Khalid*, AIR 1981 SC 487 (*496*); *L.I.C. v Escorts*, AIR 1986 SC 1370 (para 100) [Life Ins. Corporation]; *Gujarat State Financial Corp v Lotus Hotels*, AIR 1983 SC 848 (para 8); *Kalra v P. E. Corp*, AIR 1984 SC 1361 (para 15); *Prathama Bank v Vijay*, AIR 1989 SC 1946 (para 7).

64 *Mehta v UOI*, AIR 1987 SC 1036 (para 29); *L.I.C. v Escorts*, AIR 1986 SC 370 (paras 101-2).

65 *Ramana v I.A.A.I.*, AIR 1979 SC 1628 (*1642*); *Tekraj v UOI*, AIR 1988 SC 489 .

66 *Pradeep Kumar Biswas v Indian Institute of Chemical Biology,* (2002) 5 SCC 511 : (2002) 3 SCR **See also** *National Institute of Technology v Niraj Kumar Singh,* (2007) 2 SCC 481 ; *Punjab Water Supply and Sewerage Board v Ranjodh Singh,* (2007) 2 SCC 491 : AIR 2007 SC 1082 . **See also** *Virendra Kumar Srivastava v UP Rajya Karmachari Kalyan Nigam,* AIR 2005 SC 411 : (2005) 1 SCC 149 .

67 AIR 1975 SC 1331 : (1975) 1 SCC 421 .

68 *Zee Telefilms Ltd v UOI,* (2005) 4 SCC 649 .

69 *Lt. Governor of Delhi v V.K. Sodhi,* (2007) 15 SCC 136 : AIR 2007 SC 2885 ; **see also** *Pradeep Kumar Jain v Indian Institute of Chemical Biology,* (2002) 5 SCC 111 : (2002) 3 Scale 638 .

70 *State of HP v Raja Mahendra Pal,* AIR 1999 SC 1786 .

71 See *S.K. Ghosh v Utkal University,* AIR 1952 Ori 1 ; *Jagdish Chandra v University of Punjab,* AIR 1952 Punjab 395 ; see also *G.A. Natesan, Re,* AIR 1988 Mad 763 ; *Sumendra Prasad v University of Calcutta,* AIR 1953 Calcutta 172 ; *Jagannath Mahapatra v Utkal University,* (1979) 1 SLR 828 ; *S.M. Sharma v South Gujarat University,* (1982) GujLR 233; *Sami Kumar v State of Bihar,* AIR 1982 Pat 66 .

72 AIR 1989 SC 1607 : (1989) 2 SCC 691 .

73 *Ashok Kumar Singh v B.I.T.C. Organisation Ltd,* AIR 1998 Pat 9 .

74 *Sree Kant Udyog v UOI,* AIR 1998 All 42 .

75 *Ravipuram Bhajana Sangham v Cochin Devaswom Board,* AIR 2002 Ker 186 .

76 *Chanana Steel Tubes Pvt Ltd v H.P.S.I.D.C.,* AIR 2003 HP 36 .

77 *Tarsem Singh v BSNL,* AIR 2004 P&H 156 .

78 *Bharat Wools, Ludhiana v State of Punjab,* AIR 1996 P & H 215.

79 *Sanghi Technologies Pvt Ltd v UOI,* AIR 1996 Del 74 .

80 *Nisha Singh v M.P. Housing Board,* AIR 1996 M.P. 212 ; *Bihar State Housing Board v State of Bihar,* AIR 1995 Pat 58 .

81 *Satish Nayak v Cochin Stock Exchange,* AIR 1995 Ker 373 . But see *K.C. Sharma v Delhi Stock Exchange,* (2005) 4 SCC 4 .

82 *Dumraon Textiles Ltd v Bihar State Electricity Board,* AIR 1995 Pat 43 .

83 *Central Ware Housing Corp v State of Rajasthan,* AIR 1995 Raj 180 .

84 *Sanjit Kumar Sardar v State of WB,* AIR 1996 Cal 135 .

85 *Mani Enterprises v Vasavi Co-operative Urban Bank Ltd,* AIR 2004 NOC 299 (Andhra) : (2004) 3 An LT 349.

86 *Saikat Ghosh v Institute of Engineers (India),* AIR 1996 Cal 47 .

87 *J.S. Armeja v National Co-operative Consumers' Federation of India,* AIR 1995 Del 44 .

88 *Parent Teacher's Association v State of Kerala,* AIR 1995 Ker 209 .

1 *Imran Abbas v Catholic Diocese of Lucknow,* AIR 1977 All 351 .

2 *Laxman Nath Das v Dy. Secretary (Exam) Indian Institute of Banker,* AIR 1995 Ori 277 .

3 *Mradula Sharma v State Chief Commissioner, M.P. Bharat Scouts and Guides,* AIR 1995 MP 88 .

4 *J.S. Arneja v National Co-op. Consumer Federation of India Ltd,* AIR 1995 Del 44 .

5 *Kalyani Spinning Mills Ltd v Sudha Sashikant Shroff,* AIR 1995 Cal 48 .

6 *Ranjith v State of Kerala,* (2007) 1 Ker LT 1041 ; *P.M. Brahmadattan Nambooripad,* AIR 1956 TC 19 (FB).

7 *K.V. Panduranga Rao v Karnataka Dairy Development Corp,* AIR 1994 NOC 8 (Kant).

[Art 12] Definition.-

8 *Bhagat Singh Negi v H.P. Housing Board* AIR 1994 HP 60 . *Baldev Singh Dhanji v Chandigarh Housing Board,* AIR 1990 P&H 41 .

9 *Narendra Pal Singh v M.P. Dugdh Mahasingh Sahakari Marayadit – Bhopal,* AIR 1994 NOC 13 (MP).

10 *K.M.L. Narasimhan L. & .T. Ltd v UOI,* AIR 1994 Mad 83 .

11 *Jothi & Co v T.N. Pollution Control Board,* AIR 1994 Mad 50 .

12 *Sudan Vanaji Shirsat v Shetkari Seharakari Sangh Ltd,* AIR 1992 Bom 347 .

13 *Pesi Shroff v State of Maharashtra,* AIR 1993 Bom 384 .

14 *Shamrao Vithal Co-op. Bank Ltd v Padubidri Pattairam Bhat,* AIR 1993 Bom 91 .

15 *Swapan Kr. Das v Secretary, Lalith Kala Academy,* AIR 1990 NOC 129 (Cal).

16 *P.B. Ghayalod v Maruti Udyog Ltd,* AIR 1992 Del 145 .

17 *Vinod Kumar Mittal v UOI,* AIR 1991 All 1 .

18 *Kap Steel Ltd v Karnataka Electricity Board,* AIR 1991 Kar 220 .

19 *Baroda Cotton Co v A.P. State Federation of Co-op. Spg. Mills Ltd,* AIR 1991 AP 320 .

20 **See also** *Zee Telefilms Ltd v BCCI,* (2005) (2) CTC 525 .

21 *BCCI v Zee Telefilm Ltd,* (2005) 2 Mad LJ 653 : (2005) 2 CTC 609 ; (2005) 2 LW 567 .

22 *Zee Film Ltd v UOI,* AIR 2005 SC 2677 : (2005) 4 SCC 649 .

23 AIR 1967 SC 1857 : (1967) 3 SCR 377 (*supra*).

24 (1975) 1 SCC 421 (*supra*).

25 (2002) 5 SCC 111 : (2002) 3 Scale 638 (*supra*).

26 *Biman Kishore Bose v United India Insurance Co Ltd*, (2001) 6 SCC 477 : 2001 (Supp-1) SCR 255.

27 M.P. Jain, *Indian Constitutional Law*, 5th Edn, vol I, p 982.

28 *Mysore Paper Mills Ltd v Mysore Paper Mills Officers Association,* AIR 2002 SC 609 : (2002) 2 SCC 167 : *2002 (I) LLJ 1088* .

29 *Central Inland Water Transport Corp v Brojo Nath Ganguly,* AIR 1986 SC 1371 : (1986) 3 SCC 156 : *1986 (II) LLJ 171* .

30 *Rajasthan State Electricity Board v Mohan Lal,* AIR 1967 SC 1857 : (1967) 3 SCR 377 ; *Executive Engineer, U.P. State Electricity Board v Hydro Electricity Employees Union,* AIR 1999 SC 1520 : (1999) 1 SCC 253 ; *Kerala State Electricity Board v S.N. Govinda Prabu,* AIR 1986 SC 1999 : (1986) 4 SCC 198 ; *Rohtas Industries Ltd v Bihar Electricity Board,* AIR 1984 SC 657 : 1984 Supp SCC 161 ; *W.B. State Electricity Board v Desh Bandhu Ghosh,* AIR 1985 SC 722 : (1985) 3 SCC 116 ; *Surya Narayan Yadav v Bihar State Electricity Board,* AIR 1985 SC 941 : (1985) 3 SCC 38 . *Re: Angur Bala Baroi,* AIR 1999 Cal 102 .

31 *Rly Board, Government of India v Observer Publication Pvt Ltd,* AIR 1972 SC 1792 : (1972) 2 SCC 266 .

32 *Reserve Bank of India v N.C. Paliwal,* AIR 1976 SC 2345 : (1976) 4 SCC 838 .

33 *All India Sainik Schools Employees Association v Sainik School Society,* AIR 1989 SC 88

: 1989 (Supp-1) SCC 205; *Bhubaneswar Pradhan v State of Orissa,* AIR 2000 Ori 88 .

34 *S.M. Ilyas v Indian Council of Agricultural Research,* AIR 1993 SC 384 : (1993) 1 SCC 182 ; *P.K. Ramachandra Iyer v UOI,* AIR 1984 SC 541 : (1984) 2 SCC 141 .

35 *Pradeep Kumar Biswas v Indian Institute of Chemical Biology,* (2002) 5 SCC 111 earlier decision in *Sabhajit Tewary v UOI,* (1975) 1 SCC 485 which held not a State was overruled.

36 *Sheel Barsa v Secretary, Children's Aid Society,* AIR 1987 SC 656 : (1987) 3 SCC 50 .

37 *School of Buddhist Philosophy v Makhan Lal Mattoo,* (1990) 4 SCC 6 .

38 *U.P. Financial Corp v Gem Capt. (India) Pvt Ltd,* AIR 1993 SC 1435 : (1993) 2 SCC 299 ; *Chandra v Regional Manager, U.P. Financial Corp,* AIR 1993 SC 935 : (1993) 2 SCC 279 ; *Gujarat State Financial Corp v Lotus Hotels Pvt Ltd,* AIR 1983 SC 848 : (1983) 3 SCC 379 .

39 *Balbir Kaur v Steel Authority of India,* AIR 2000 SC 1596 : (2000) 6 SCC 493 ; *Vijay Kumar Ajay Kumar v Steel Authority of India,* AIR 1994 All 182 . **See also** *SAIL v Madhusudan Das,* AIR 2009 SC 1153 : (2008) 15 SCC 560 .

40 *Hyderabad Commercials v Indian Bank,* AIR 1991 SC 247 : 1991 (Supp-2) SCC 340; *Bank of India v O.P. Swarnakar,* AIR 2003 SC 858 : (2003) 2 SCC 721 : *2003 (I) LLJ 819* ; *Indian Banks Association v Devkala Consultancy Services,* (2004) 11 SCC 1 .

41 *M.K. Agarwal v Gurgoan Gramin Bank,* AIR 1988 SC 286 : 1987 Supp SCC 643 ; *Prathama Bank v Vijay Kumar Goel,* AIR 1989 SC 1977 : (1989) 4 SCC 441 .

42 *U.P. State Co-operative Land Development Bank v Chandru Bhan Dubey,* AIR 1999 SC 753 : (1999) 1 SCC 741 : *1999 (I) LLJ 633* .

43 *O.P. Bhandari v Indian Tourism Development Corp Ltd,* AIR 1987 SC 111 : (1986) 4 SCC 337 : *1986 (II) LLJ 509* .

44 *LIC v Manubhai D. Shah,* AIR 1993 SC 171 : (1992) 3 SCC 637 ; *Harshad J. Shah v LIC of India,* AIR 1997 SC 2459 ; *Ram Gopal Sharma v Sukhdev Raj Rudra* (2001) 9 SCC 201 .

45 *Workmen v Food Corp of India,* AIR 1985 SC 136 : (1985) 2 SCC 136 ; *Manmathanath Kayal v Dt. Manager, Food Corp of India,* AIR 1996 Cal 316 ; *Workmen v Hindustan Steel Ltd*, AIR 1985 SC 251 : 1984 Supp SCC 554 ; *A.L. Kalra v Project & Equipment Corp,* AIR 1984 SC 1361 : (1984) 3 SCC 316 .

46 *DDA Builders Assn. v DDA,* AIR 1996 Del 364 ; *DDA v Joint Action Committee, Allottees of SFS Flats,* AIR 2008 SC 1343 : (2008) 2 SCC 672 .

47 *Mohan Mahto v Central Coal Fields Ltd,* (2007) 8 SCC 549 : AIR 2008 SC 39 .

48 *Regional Manager, SBI v Mahatma Mishra,* (2006) 13 SCC 727 : (2006) 10 JT 179 .

49 See *National Institute of Technology v Niraj Kumar Singh,* AIR 2007 SC 1155 : (2007) 2 SCC 481 .

50 *Nagar Nigam v Al Faheem Meat Exports Pvt Ltd,* (2006) 13 SCC 382 : (2007) 1 Scale 88 .

51 See *M.P. State Co-op. Dairy Federation Ltd v Rajnesh Kumar Jamindar,* (2009) 15 SCC 221 : (2009) 6 Scale 17 .

52 *Karnataka State Forest Industries Corp v Indian Rocks,* AIR 2009 SC 684 : (2009) 1 SCC 150 .

53 *Sardar Assn. v Punjab & Sind Bank,* (2009) 8 SCC 257 ; *Eureka Forbes Ltd v*

Allahabad Bank, (2010) 6 SCC 193 : (2010) 5 JT 144 .

54 *State of UP v Radhey Shyam Rai,* (2009) 5 SCC 577 : (2009) 2 LLN 84 .

55 *HSIDC v Hari Om Enterprises,* (2009) 16 SCC 208 : AIR 2009 SC 218 .

56 *ICAI v Shanak H. Satya,* (2011) 8 SCC 781 : (2011) 5 LW 299 .

57 *Abdul Gaffar v UOI,* (2012) 4 Ker LT (SN) 78 .

58 *State of Bihar v Bal Mukund Sah,* AIR 2000 SC 1296 : (2000) 4 SCC 640 .

59 *B.S. Minhas v Indian Statistical Institute,* AIR 1984 SC 363 : (1983) 4 SCC 582 .

60 *Tejinder Singh v Bharat Petroleum Corp Ltd*, AIR 1987 SC 51 : (1986) 4 SCC 237 ; *Bharat Petroleum Corp Employees Association v Chairman & M.D. Bharat Petroleum Corp Ltd,* AIR 1994 SC 1304 : 1993 (Supp-4) SCC 37.

61 *Consolidated Coffee Ltd v Coffee Board,* AIR 1980 SC 1468 : (1980) 3 SCC 358 ; *Star Enterprises v City and Industrial Development Corp of Maharashtra Ltd*, (1990) 3 SCC 280 . *City and Manjushree Pathak v Assam Industrial Corp Ltd*, AIR 2000 SC 2769 : (2000) 7 SCC 390 .

62 *Dwarakdas Martatra & Sons. v Board of Trustees, Port of Bombay,* AIR 1989 SC 1642 : (1989) 3 SCC 293 ; *Jamshed Hormusji Wadia v Board of Trustees, Port of Mumbai,* (2004) 3 SCC 214 .

63 *Durai Raj v Chairman Tamil Nadu Housing Board,* 2001 (4) CTC 620). **See also** *Housing Board v Haryana Housing Board Employees Union,* AIR 1996 SC 434 : (1996) 1 SCC 95 .

[Art 12] Definition.-

64 *ABL International Ltd v Export Credit Guarantee Corp of India Ltd*, (2004) 3 SCC 553 .

65 *ONGC v Association of NGC Industries of Gujarat,* AIR 1990 SC 1851 : 1990 (Supp) SCC 397.

66 *Virendra Kumar Srivastava v U.P. Rajya Karmachari Kalyan Nigam,* (2005) 1 SCC 149 .

67 *K.C. Sharma v Delhi Stock Exchange,* (2005) 4 SCC 4 .

68 *Assam Small Scale Industries Development Corp v J.D. Pharmaceuticals,* AIR 2006 SC 131 .

69 *U.P. State Co- operative Land Development Bank Ltd v Chandra Bhan Dubey,* AIR 1999 SC 753 : (1999) 1 SCC 741 : *1999 (I) LLJ 633* – followed and relied on in *Trial Trading Services Ltd v State of TN,* 1999 (3) CTC 241 : 1999 (1) Mad LJ 546 – **But see** *M. Thanikachalam v Maduranthakam Agricultural Producers' Co-operative Marketing Society,* 2000 (4) CTC 556 (FB).

70 *S.S. Rana v Registrar, Co-operative Society,* JT *(2006) 5 SC 186* .

71 *Radhey Shyam Rai v State of UP,* (2005) AIHC 4033 (All). See *Biswajit Panda v The Institution of Chartered Financial Analysis of India University,* AIR 2007 (NOC) 289 (Cal).

72 *Administrator, Louch Sahakari Kraya Vikraya Samithy Ltd v Sarman Singh,* (1997) 11 SCC 144 : (1998) 9 JT 281 .

73 See M.R. Malik, *Writs – Law & Practice,* **pp** 235-36.

74 M.P. Jain, *Indian Constitutional Law,* 6th Edi., 2010, vol 1, p 589.

75 AIR 2005 SC 2306 : (2005) 5 SCC 632 .

76 AIR 1981 SC 487 : (1981) 1 SCC 722 .

77 **See also** *S.S. Rana v Registrar of Co-op. Societies,* (2006) 11 SCC 634 : (2006) 5 JT 186 .

78 AIR 1975 Pat 295 .

79 AIR 1967 Guj 229 . **But see** *Article 361* on immunity.

80 *Vibhu Kapoor v Council ICSE,* AIR 1985 Del 142 .

81 *Manmohan Singh v Commissioner, UT of Chandigarh,* AIR 1985 SC 364 : 1984 (Supp) SCC 540.

82 *M. Kumar v Earth Movers Ltd,* AIR 1999 Kar 343 .

83 *Ajoomal v Lilaram,* AIR 1983 SC 278 : (1983) 1 SCC 119 .

84 AIR 1992 SC 76 : (1991) 4 SCC 578 .

85 *Tekraj Vasanti v UOI,* AIR 1988 SC 469 : (1988) 1 SCC 236 .

86 *Hindustan Steel Works Construction Ltd v State of Kerala,* AIR 1997 SC 2275 : (1997) 5 SCC 171 ; *Steel Authority of India Ltd v Shri Ambiga Mills Ltd*, AIR 1998 SC 418 : (1998) 1 SCC 465 .

87 *Shrikant v Vasantrao,* AIR 2006 SC 918 : (2006) 2 SCC 682 .

88 *National Fertilizers Ltd v Somvir Singh,* AIR 2006 SC 2319 : (2006) 5 SCC 493 ; **see also** *Municipal Council, Samrale v Raj Kumar,* (2006) 3 SCC 81 ; *State of Karnataka v Ameerbi,* (2007) 11 SCC 6 l81 : *(2007) 1 LLJ 996* ; *Punjab Water Supply & Sewerage Board v Ranjodh Singh,* AIR 2007 SC 1082 : (2007) 2 SCC 491 ; *Coal India Ltd v Saroj Kumar Mishra,* AIR 2007 SC 1706 : (2007) 9 SCC 625 ; *DDA v Joint Action Committee, Allottees of SFS Flats,* AIR 2008 SC 1343 : (2008) 2 SCC 672 ; *State of Assam v Barak Upatyaka DU Karmachari Samastha,* AIR 2009 SC 2249

: (2009) 5 SCC 694 ; *State of Uttaranchal v Alok Sharma,* (2009) 7 SCC 647 : (2009) 6 Scale 277 ; *Steel Authority of India v Madhusoodhan Das,* AIR 2009 SC 1153 : (2008) 15 SCC 560 ; *ICAI v Shaunek H. Satya,* (2011) 8 SCC 781 : AIR 2011 SC 3336 ; *National Textile Corp v Naresh Kumar Badikumar Jagad,* (2011) 12 SCC 695 : AIR 2012 SC 264 .

89 *State of Tripura v K.K. Roy,* AIR 2004 SC 1249 : (2004) 9 SCC 65 .

90 *United India Insurance Co Ltd v Mohan Lal Agarwal,* AIR 2004 Guj 191 .

91 *Dhanwal S. Cholai v UOI,* AIR 2003 Bom 316 .

92 *P.V.N.S.Y.S. Saggam v Government of A.P.*, AIR 2004 A.P. 215 .

1 *Balco Employees Union (Regd.) v UOI,* AIR 2002 SC 350 : (2002) 2 SCC 333 : *2002 (I) LLJ 550* ; *Southern Structurals Staff Union v Southern Structurals Ltd*, (1994) 87 Com Cases 389 (Mad) **approved**; *State of Haryana v Desraj Sangar,* AIR 1974 SC 1871 : (1976) 2 SCC 844 .

2 *Bhuri Nath v State of Jammu Kashmir,* AIR 1997 SC 1711 : (1997) 2 SCC 745 .

3 *Unnikrishan v State of AP*, AIR 1993 SC 2178 (para 80) CB.

4 *Narendra v UOI*, AIR 1989 SC 2138 .

5 *Narendra v UOI*, AIR 1989 SC 2138 ; *Kartick v W.B.S.I. Corp*, AIR 1967 Cal 281 (*254*); *A.B. Biswas v Hindusthan Cables*, (1968) 16 FLR.

6 *Verma v Bokaro Steel Ltd*, AIR 1971 Pat 127 (*139*).

7 *Mysore S.R.T.C. v Devraj*, AIR 1976 SC 1027 (para 14).

8 *L.I.C. v Srivastava*, AIR 1987 SC 1527 .

9 *Kartick v W.B.S.I. Corp*, AIR 1967 Cal 281 (*254*); *A.B. Biswas v Hindusthan Cables*, (1968) 16 FLR.; **Cf.** *Shamdasani v Central Bank of India*, 1952 SCR 391 (*394*).

10 *Kochunni v State of Madras (I)*, AIR 1959 SC 725 (*730*).

11 *Co-operative Credit Bank v Industrial Tribunal*, AIR 1970 SC 245 (*252*).

12 *Dr. Ambedkar, Constituent Assembly Debates*, vol VI, p 607.

13 *Ramamurthy v Chief Commr.*, AIR 1963 SC 1464 (*1467-8*); *Masthan Sahib v Chief Commr.* AIR 1963 SC 533 (*537*). See also *Pradeep Kumar Biswas v Indian Distribution of Chemical Biology,* (2002) 5 SCC 511 (*supra*); *Sonu Prakash Rakhi v UOI,* (1981) 1 SCC 449 : AIR 1981 SC 212 .

14 *Ramamurthy Reddiar v Chief Commissioner, Pondicherry,* AIR 1963 SC 1464 : [1964] 1 SCR 656 .

15 *Dt. Manager A.P.S.R.T.C v K. Sivaji,* AIR 2001 SC 383 : (2001) 2 SCC 135 : *2001 (I) LLJ 167* .

16 *G. Bassi Reddy v International Crops Research Institute,* AIR 2003 SC 1764 : (2003) 4 SCC 225 . See also *Joseph Louis v District Welfare Fund Committee,* 2005 (2) CTC 321 (FB).

17 *Sham Rao Vithal Co-operative Bank v Pudubidri Pattabhiram Bhat,* AIR 1993 SC 91 : 1993 (Supp 1) SCC 467.

18 *M. Shanti v Chancellor, Madurai Kamarajar University,* 2004 WLR 620 (Mad).

19 *Masthan Sahib v Chief Commr.*, AIR 1963 SC 533 (*537*).

20 *Naresh v State of Maharashtra*, AIR 1967 SC 1 (*11*); *Parbhani T.C.S. v R.T.*, AIR 1960 SC 801 ; *Tekraj v UOI*, AIR 1988 SC 469 .

21 *Ramamurthy v Chief Commr.*, AIR 1963 SC 1464 (*1467-8*); *Masthan Sahib v Chief Commr.* AIR 1963 SC 533 (*537*). See also *Pradeep Kumar Biswas v Indian Distribution of Chemical Biology,* (2002) 5 SCC 511 (*supra*); *Sonu Prakash Rakhi v UOI,* (1981) 1 SCC 449 : AIR 1981 SC 212 .

22 **Cf.** Civil Rights Cases (1883) 109 US 3.

23 *Carrigan v Buchley*, (1926) 271 US 323; *Virginia v Reeves*, (1879) 100 US 313; *U.S. v Raines*, (1960) 362 US 17.

24 *American Communications Association v Douds*, (1950) 339 US 382; *Smith v Allwright*, (1943) 321 US 649; *Shelley v Kracmer*, (1948) US 1.

25 *Jones v Alfred*, (1968) 392 US 409, *U.S. v Guest*, (1966) 383 US 745.

26 *Minneapollis Co v Beekwith,* (1889) 129 US 26.

27 *Civil Rights cases* (1883) 109 US 3; *Shelly v Kreamer,* (1948) 334 US 1; *Dorsey v Stuy Versant Corp,* (1950) 339 US 981.

28 *Smith v Allwright,* (1944) 321 US 649; *US v Raines,* (1960) 362 US 17; *Griffin v Maryland,* (1964) 378 US 130.

29 *Smith v Allwright,* (*supra*), *US v Raines,* (*supra*).

30 *Pennsylvania v Board of Trustees,* (1956) 353 US 230; *Evans v Newton,* (1966) 382 US 296.

31 *Marsh v Alabama,* (1946) 326 US 501; *Rice v Elman,* (1948) 333 US 875; *Catherine v Edison Co,* (1974) 419 US 345.

32 *Screws v US,* (1945) 325 US 91.

33 *Burton v Wilmington Parking Authority,* (1965) 365 US 75; *Moose v Irvin,* (1972) 407 US 163.

34 *Civil Right Cases* (1883) 109 US 3 (*supra*).

35 *Heart of Atlanta v US,* (1964) 379 US 241; *Jones v Mayor,* (1968) 392 US 409; **see also** Author's *Comparative Constitutional Law,* 2nd Edn, p 438.

36 (1963) 373 US 244.

37 (1963) 373 US 267.

38 (1964) 378 US 130.

39 See Ralph A Rossum and G. Allan Tarr, *American Constitutional Law,* The Bill of Rights, 6th Edn, p 412.

40 See Stone Seidman, Sustein, Tushnet and Karla, *Constitutional Law,* 5th Edn, p 1583.

41 *Dwarkadas v Bd. of Trustees*, AIR 1989 SC 1642 (paras 22, 25) - 3 Judges.

42 *Samdasani v Central Bank*, (1952) SCR 391 : (1950-51) CC 68 .

43 *Vidya Verma v Shivnarain*, AIR 1956 SC 108 .

44 *Kochunni v State of Madras*, AIR 1959 SC 725 (*730*).

44a *Kochunni v State of Madras*, AIR 1959 SC 725 (*730*).

45 *Strauder v West Virginia*, (1879) 100 US 303.

46 *Sterling v Constantin*, (1932) 287 US 378.

47 *Norris v Alabama*, (1935) 294 US 587; *Brinkerhoff Faris Trust v Hill*, (1930) 281 US 673.

48 *Minneapolis R. Co v Beckwith*, (1889) 129 US 26(*29*).

49 *Reid v Convert*, (1958) 354 US 1 (*17*).

50 *Ex parte* Virginia, (1880) 100 US 339(*347*).

51 *Home Telephone Co v Los Angeles*, (1913) 227 US 278(*286*).

52 *Missouri v Canada*, (1938) 305 US 337 (*343*).

[Art 12] Definition.-

53 *Kerr v Enoch P. F. Library*, (1945) 326 US 721.

54 *Public Utilities Commn. v Pollak*, (1952) 343 US 451 (*461*).

55 *Watkins v U.S.*, (1956) US 178(*197*).

55a *Watkins v U.S.*, (1956) US 178(*197*).

56 *Steele v L. & N. R. Co,* (1944) 323 US 192.

57 *Barenblatt v U.S.*, (1958) 360 US 109; *Hutcheson v U.S.*, (1962) 8 L.Ed., (2d) 137 (*148*).

58 *Steele v L. & N. R. Co*, (1944) 323 US 192; *Barenblatt v U.S.*, (1958) 360 US 109

59 *Civil Rights case*, (1883) 109 US 3.

60 *Dorsey v Stuyvesant Corp*, (1950) 339 US 981.

61 *Smith v Allwright*, (1944) 321 US 649.

62 *Nixon v Herndon*, (1927) 273 US 536.

63 *Marsh v Alabama*, (1946) 326 US 501.

64 *Steele v L. & N. R. Co*, (1944) 323 US 192.

65 *Pennsylvania v Board of Trustees*, (1956) 353 US 230.

66 *Steele v L. & N. R. Co*, (1944) 323 US 192; *Pennsylvania v Board of Trustees*, (1956) 353 US 230.

67 *Smith v Allwright*, (1944) 321 US 649; *Marsh v Alabama*, (1946) 326 US 501.

68 *U.S. v Classic*, (1941) 313 US 299; *Screws v U.S.*, (1945) 325 US 91.

69 *U.S. v Classic*, (1941) 313 US 299; *Blum v Yaresky*, (1982) 457 US 991 (*1004*).

70 *Exparte. Virginia* (1880) 100 US 339; *Pennsylvania v Board of Trusts,* (1957) US 230.

71 *Exparte. Virginia* (*supra*); *Pennsylvania v Board of Trusts,* (*supra*); *Home Telephone Co v Los Angeles,* (1913) 227 US 278; *Steele v LNR,* (1944) 323 US 192.

72 *Evan v Newton,* (1966) 382 US 296; *Blum v Yaretsky,* (1982) 457 US 991.

73 *Pruneyard Shopping Centre v Robin,* (1980) 447 US 74.

74 *US v Classic,* (1941) 313 US 299; *Screws v US,* (1945) 325 US 91.

75 *Reitnam v Mulkey,* (1967) 387 US 369; *Burton v EPA,* (1961) 391 US 715; *Sniadach v NGF,* (1975) 419 US 601.

76 *Adickes v Kress,* (1970) 398 US 144; *Lugar v Edmondson,* (1982) 457 US 922; *Blum v Yaretsky,* (1982) 457 US 991.

77 *Adickes v Kress,* (1970) 398 US 144; *Lugar v Edmondson,* (1982) 457 US 922; *Blum v Yaretsky,* (1982) 457 US 991.

78 *Prunneyard Shopping Centre v Robins,* (1980) 447 US 74.

79 *Adickes v Kress,* (*supra*); *Lugar v Edmondson,* (*supra*); *Blum v Yaretsky,* (*supra*); **see also** Author's *Human Rights in Constitutional Law*, 2nd Edn, pp 33-34.

80 *Reitman v Mulkey*, (1967) 387 US 369.

81 *Burton v Eilmington Parking Authority*, (1961) 365 US 715.

82 *Reitman v Mulkey*, (1967) 387 US 369; *Burton v Eilmington Parking Authority*, (1961) 365 US 715; See further discussions in Author's *Human Rights in Constitutional Law*.

83 Cf. *Ajay v Khalid*, AIR 1981 SC 487 (*492-94*) CB.

84 *Mehta v UOI*, AIR 1987 SC 1086 (para 29) CB.

85 *Dwarkadas v Bd. of Trustees*, AIR 1989 SC 1642 (paras 22, 25) - 3 Judges.

86 *Maneka v UOI*, AIR 1978 SC 597 ; *Ramana v I.A.A.I.*, AIR 1979 SC 1628 (paras 10, 21); *Indravadan v State of Gujarat*, (1986) 2 UJSC 10 (para 10); *D.T.C. v Mazdoor Union*, AIR 1991 SC 101 (para 199) CB.

87 *Narendra Kumar Maheshwari v UOI*, AIR 1989 SC 2138 ; *Srilekha v State of UP*, (1991) 1 SCC 212 (paras 20, 21, 24).

88 *Dwarkadas v Bd. of Trustees*, AIR 1989 SC 1642 (paras 25, 27).

89 *Virginia v Rives*, (1880) 100 US 313(*318*).

90 *Ex parte Virginia*, (1880) 100 US 339(*347*).

91 *Irvin v Dowd*, (1961) 366 US 717 (*728*); *N.A.A.C.P. v State of Alabama*, (1958) 357 US 449; *Griffin v Illinois*, (1955) 351 US 12.

92 *Fay v Noia*, (1963) 372 US 391.

93 *Brinkerhoff-Fairs Trust v Hill*, (1930) 281 US 673; *Read v Covert*, (1957) 354 US 1(17); *Peterson v Gronville*, (1963) 373 UK 244 (*248*).

94 *American Fed. of Labour v Swing*, (1941) 312 US 321.

95 *Mooney v Holohan*, (1935) 294 US 103, *Napue v Illinois*, (1935) 360 US 264.

96 *Moore v Dempsey*, (1923) 211 US 86.

97 *Irwin v Dowd,* (1961) 366 US 717; *Rideau v Lousiana,* (1963) 373 US 723; *Sheppard v Maxwell,* (1966) 384 US 333.

1 (1930) 281 US 673.

2 (1958) 357 US 449.

3 (1943) 321 US 1).

4 **See also** Author's *Comparative Constitutional Law,* 2nd Edn, p 400.

5 *Moore v Dempsey*, (1923) 211 US 86.

6 *Cantwell v Connecticut*, (1940) 310 US 296.

7 *Bridges v California*, (1941) 314 US 252.

8 *American Fed. of Labour v Swing*, (1941) 312 US 321; *Amalgamated Food Employees v Logan*, (1968) 391 US 308. **See also** *Mooney v Holohan,* (1935) 294 US 103; *Napue v Illinois,* (1935) 360 US 264; *Moore v Dempsey,* (1923) 211 US 86; *Irwin Dowd,* (1961) 366 US 717; *Rideau v Lousiana,* (1963) 373 US 723; *Sheppard v Maxwell,* (1966) 384 US 333; *Bridges v California,* (1941) 314 US 252.

9 *Beck v Washington*, (1962) 8 L.Ed. (2d) 102 (*110*).

10 *Shelley v Kraemer*, (1948) 334 US 1.

11 *Burrows v Jackson*, (1953) 346 US 249.

12 *Brinkerhoff-Fairs Trust Co v Hill*, (1930) 281 US 673.

13 *American federation of Labour v Swing*, (1941) 312 US 321.

14 *Shelley v Kraemer*, (1948) 334 US 1.

15 *Norris v Alabama*, (1935) 294 US 587; *Akins v Texas*, (1945) 325 US 398; *Avery v Georgia*, (1952) 345 US 637; *Whitus v Georgia*, (1967) 385 US 545.

16 *Norris v Alabama*, (1935) 294 US 587.

17 *Strauder v W. Virginia*, (1880) 100 US 303; *Ex parte* Virginia, (1880) 100 US 339; *Smith v Texas*, (1940) 311 US 128.

18 *Fay v N.Y.*, (1947) 332 US 261.

19 *Hernandez v Texas*, (1954) 347 US 475l *Cassel v Texas*, (1950) 339 US 282.

20 *Fay v N.Y.*, (1947) 332 US 261.

21 For further treatment, see Author's *Human Rights in Constitutional Law*.

22 *Budhan v State of Bihar*, (1952-54) 2 CC 157 (*160*) : AIR 1955 SC 191

23 *Budhan v State of Bihar*, (1952-54) 2 CC 157 (*160*): AIR 1955 SC 191 ; **See also** *Saghir Ahmad v State of UP*, (1955) 1 SCR 707 .

23a *Budhan v State of Bihar*, (1952-54) 2 CC 157 (*160*) : AIR 1955 SC 191 .

24 *Naresh v State of Maharashtra*, AIR 1967 SC 1 (*29*). [This case will be more fully discussed under *Article 19*(1)(f) and 32, *post*].

25 *Keshavananda Bharati v State of Kerala,* (1973) 4 SCC 225 at pp 877–879, paras 1703, 1704, 1705, 1706 – by MATHEW, J.

26 *State of Kerala v N.M. Thomas,* (1976) 2 SCC 310 at p 343 – para 64 MATHEW, J: AIR 1976 SC 490 .

27 *Guruvayoor Devaswom Managing Committee v C.K. Rajan,* AIR 2004 SC 561 : (2003) 7 SCC 546 .

28 *State of Bihar v Bal Mukund Sah,* AIR 2000 SC 1296 : (2000) 4 SCC 640 .

29 *Rupa Ashok Hurra v Ashok Hurra,* AIR 2002 SC 1771 : (2002) 4 SCC 388 .

30 *A.R. Antulay v R.S. Nayak,* AIR 1988 SC 1531 : (1988) 2 SCC 602 .

31 **See also** *Zakaris Lakra v UOI,* JT 2005 (5) SC 536 .

32 AIR 2003 SC 3044 : (2003) 6 SCC 675) . **See also** *Ajit Kumar Bharat v Secretary, Indian Tea Association,* AIR 2001 SC 2056 : (2001) 5 SCC 42 : *2001 (II) LLJ 249* ; *Triveniben v State of Gujarat,* AIR 1989 SC 1335 : (1989) 1 SCC 678 .

33 AIR 1998 SC 1895 : (1998) 4 SCC 409 .

34 AIR 2000 SC 168 : (2000) 1 SCC 278 .

35 1 LED 2d 283 : 353 US 98 (1957).

36 AIR 1941 FC 1 : (1941) 1 Mad LJ Supp-45.

37 *Amirabbas v State of MB*, (1960) 3 SCR 138 (*142*).

38 *Budhan v State of Bihar*, (1952-54) 2 CC 157 (*160*) : AIR 1955 SC 191 .

39 *Naresh v State of Maharashtra*, AIR 1967 SC 1 (*29*). [This case will be more fully discussed under *Article 19*(1)(f) and 32, *post*].

40 *Shelley v Kraemer*, (1948) 334 US 1.

41 *N.A.A.C.P. v State of Alabama*, (1958) 357 US 449.

42 *Parbhani Co-operative Society v R.T.A.*, (1960) 3 SCR 177 (*188*).

43 *Naresh Mirajkar v State of Maharashtra*, (1966) 3 SCR 744 (*765*); AIR 1967 SC 1 .

44 *Naresh Mirajkar v State of Maharashtra*, (1966) 3 SCR 744 (*765*); AIR 1967 SC 1 .

45 *Naresh Mirajkar v State of Maharashtra*, (1966) 3 SCR 744 (*765*); AIR 1967 SC 1 .

46 An express provision to this effect is to be found in *Article 1 (3) of the Constitution* of West Germany.

47 *Naresh Mirajkar v State of Maharashtra*, (1966) 3 SCR 744 (*765*); AIR 1967 SC 1 .

48 *Himmatlal v State of MP*, (1954) SCR 1122 (*1128*); *State of Bombay v United Motors*,

(1953) SCR 1069 ; *Kochunni v State of Madras*, AIR 1959 SC 725 (*730*, para 8).

49 *Shelly v Kraemer*, (1948) 334 US 1.

50 *Benton v State of Maryland*, (1969) 25 L Ed 2d. 707; *Green v U.S.*, (1957) 355 US 184 (*194*); *Arndstein v McCarthy*, (1920) 254 US 71; *Haynes v U.S.*, (1965) 390 US 85.

51 **Cf.** *Ujjam Bai v State of UP*, (1963) 1 SCR 778 (*819*).

52 *Triveniben v State of Gujarat,* AIR 1989 SC 1335 : (1989) 1 SCC 678 .

53 **See** *Lalitha Jalan v Bombay Gas Co Ltd*, AIR 2003 SC 3157 : (2003) 6 SCC 107 : *2003 (II) LLJ 829* .

54 *Mahendra v State of UP*, (1963) Supp. 1 SCR 912(*930*).

55 ***Cf.*** *Rogers v Richmond*, (1961) 365 US 534.

56 *Irvin v Dowd*, (1961) 366 US 717 (*728*).

57 *Walker v Wainwright*, (1968) 390 US 335.

58 *Moore v Dempsey*, (1923) 261 US 86.

59 *Holden v Hardy*, (1898) 169 US. 366 (*389*).

60 *Galpin v Page*, (1878) 18 Wall, 350 (*368-9*).

61 *Gopalan v State of Madras*, (1950) SCR 88 (*100*).

62 **Cf**. *Johnson v Zerbst*, (1938) 304 US 458.

63 *Hebert v Louisiana*, (1926) 272 US 312 (*316*).

64 *Brown v Mississippi*, (1936) 297 US 278.

65 *Antulay v Nayak*, AIR 1988 SC 1531 (paras 38, 57, 60-63) - 7 Judges.

66 *Lily Thomas v UOI,* AIR 2000 SC 1650 : (2000) 6 SCC 224 .

67 *Naresh Shridhar Mirajkar v State of Maharashtra*, (1966) 3 SCR 744 (*765*) : AIR 1967 SC 1 .

68 The question of the availability of this writ against a High Court, in India, will be discussed under *Article 32*, post.

69 *Halsbury's Laws of England*, 3rd Edn, vol 11, pp.129-130.

70 **See** now Halsbury, 4th Edn, vol II, para 1528 (p. 806); **cf.** *Partman v Keepers*, *(1979) 1 All ER 364* (*371-72, 379*) (CA).

71 D D Basu, *Commentary on the Constitution of India*, 4th Edn, vol 3, p 519.

72 *Surya Dev Rai v Ram Chander Rai,* AIR 2003 SC 3044 : (2003) 6 SCC 675) ; *Rupa Ashok Hurra v Ashok Hurra,* (2002) 4 SCC 388 **relied on**.

73 *Kochunni v State of Madras*, AIR 1959 SC 725 (*729*).

74 *Prem Chand v Excise Commr.*, AIR 1963 SC 996 (*1004*).

75 *Sodhi Shamser v State of Punjab*, AIR 1956 SC 541 .

76 *Rajasthan State Electricity Bd. v Mohan Lal*, (1967) 1 SCR 377 (*385*).

77 *Naresh v State of Maharashtra*, (1966) 2 SCR 744 : AIR 1967 SC 1 . **See** also *Nawabkhan v State of Gujarat,* AIR 1974 SC 1471 .

78 M Hidayathullah, *Constitutional Law of India*, vol 1, p 171.

78a *Naresh v State of Maharashtra*, (1966) 2 SCR 744 : AIR 1967 SC 1 . **See** also *Nawabkhan v State of Gujarat,* AIR 1974 SC 1471 .

79 *Antualy v Nayak*, AIR 1988 SC 1531 (para 55)—7 Judges.

80 *Antualy v Nayak*, AIR 1988 SC 1531 (para 55)—7 Judges.

81 AIR 1988 SC 1531 : (1988) 2 SCC 602 .

82 *A.G. v Lachmi*, AIR 1986 SC 467 (*468*).

82a *Antualy v Nayak*, AIR 1988 SC 1531 (para 55)—7 Judges.

83 *Joseph Stock Yards v U.S.*, (1936) 298 US 38.

84 *Yick Wo v Hopkins*, (1886) 116 US 356.

85 (1960) 364 US 339.

86 *Parbhani Co-operative Society v R.T.A.*, AIR 1960 SC 801 (*806*).

87 *Parbhani Co-operative Society v R.T.A.*, AIR 1960 SC 801 (*806*); *Gulabdas v Asstt. Collector*, AIR 1957 SC 733 (*736*); *Bhagnagars v UOI*, AIR 1957 SC 478 ; *Aniyoth v Minister of Rehabilitation*, AIR 1962 SC 1616 .

88 *Snowden v Huges*, (1943) 321 US 1.

89 *Parbhani Co-operative Society v R.T.A.*, AIR 1960 SC 801 (*806*).

90 **Cf.** *Ramamurthy v Chief Commr.*, AIR 1964 SC 1464 (*1469*).

91 *Bidi Supply Co v UOI*, AIR 1956 SC 479 (*484*).

92 *Ujjam Bai v State of UP*, (1963) SCR 778 (*828, 851, 861*).

92a *Ujjam Bai v State of UP*, (1963) SCR 778 (*828, 851, 861*).

93 *Ujjam Bai v State of UP*, (1963) SCR 778 (880), (Kapur J.).

94 *Balaji v I.T.O.*, (1962) 2 SCR 983 .

95 *Himmatlal v State of MP*, (1954) SCR 1122 ; *Bengal Immunity Co v State of Bihar*, (1955) 2 SCR 603 ; *Gokal v Asstt. Collector*, (1960) 2 SCR 852 .

96 *Yasin v Town Area Committee*, (1952) SCR 572 .

97 *Tata Iron & Steel Co, v Sarkar*, (1961) 1 SCR 379 (*402*).

98 *Sinha Govindji v Chief Controller*, (1962) 1 SCR 540 .

99 *Ujjam Bai v State of UP*, (1963) SCR 778 (*828, 851, 861*).

1 *Kailash Nath v State of UP*, AIR 1957 SC 790 ; (Bhagawati, Jagammadhadas, Imam, Govinda, Menon and Kapur JJ.)

2 *Ujjam Bai v State of UP*, AIR 1962 SC 1621 (S K Das, Kapur, Sarkar, Hidayatullah and Mulholkar JJ.; Subba Rao and Ayyanger JJ., contra).

3 AIR 1962 SC 1621 (*1675*, para 145).

4 *Yasin v Town Committee*, (1952) SCR 572 ; *State of Kerala v Joseph*, AIR 1958 SC 296 ; *Narendra v UOI*, AIR 1960 SC 430 .

5 S A De Smith, *Judicial Review of Administrative Action*, 1968, 2nd Edn, p 106.

6 In the author's view such legislation would itself be unconstitutional [*vide* D D Basu, *Comparative Administrative Law*].

7 *R. v Commrs. for Special Purposes*, *(1888) 21 QBD 313* (*319*).

8 *I.T.O. v Habibullah*, AIR 1962 SC 918 ; *Newspapers Ltd v State Industrial Tribunal*, AIR 1957 SC 532 (*539*).

9 *Ujjam Bai v State of UP*, AIR 1962 SC 1621 (S K Das, Kapur, Sarkar, Hidayatullah and Mulholkar JJ.; Subba Rao and Ayyanger JJ., contra)

10 **Cf.** *R. v Bradford*, *(1908) 1 KB 365* ; *R. v Armagh JJ.*, *(1924) 2 IR 55* (CA); *R. v Woodhouse*, *(1906) 2 KB 501* .

11 This vital aspect has not been considered in SEERVAI'S *Constitutional Law of India*, pp 724-5.

12 *S.T. Corp v State of Mysore*, AIR 1963 SC 548 (para 12) : [1963] 3 SCR 792 .

13 *Vide* Author's *Comparative Administrative Law*; *Shell Co v Fed. Commn. of Taxation*, *(1930) AC 275* (*296, 298*).

14 *Kailash Nath v State of UP*, AIR 1957 SC 790 ; (Bhagawati, Jagammadhadas, Imam, Govinda, Menon and Kapur JJ.).

15 *Kamala Mills v State of Bombay,* AIR 1965 SC 1942 : (1966) 1 SCR 64 ; **See** also *Surya Dev Rai v Ram Chander Rai,* AIR 2003 SC 3044 : (2003) 6 SCC 675 .

16 *Ujjam Bai v State of UP*, AIR 1962 SC 1621 (S K Das, Kapur, Sarkar, Hidayatullah and Mulholkar JJ.; Subba Rao and Ayyanger JJ., contra)

17 *Tata Engineering v State of Bihar*, (1964) 6 SCR 885 (*897*); *Kamala Mills v State*, (1966) 1 SCR 64 (*78*); *Naresh v State of Maharashtra*, AIR 1967 SC 1 (paras 79-80); *Coffer Bd. v H.C.T.O.*, (1969) 3 SCC 349 (paras 8, 12).

18 *Sitaram v UOI*, (1990) 3 SCC 223 (paras 45, 52) CB. **See** also *E.P. Royappa v State of TN,* (1974) 4 SCC 3 ; *Maneka Gandhi v UOI,* AIR 1978 SC 597 : (1978) 1 SCC 248 ; *R.D. Shetty v International Airport Authority of India,* (1979) 3 SCC 489

; *Ajay Hasia v Khalid Mujib Sehravardi,* (1981) 1 SCC 722
; *D.S. Nakara v UOI,* (1983) 1 SCC 305
.

19 *Asha Sharma v Chandigarh Admn.,*
(2011) 10 SCC 86 : (2011) 9 Scale 549
.

20 *State of Orissa v Mamata Mohanty,*
(2011) 3 SCC 436 : (2011) 2 Scale 377
.

21 *Natural Resources Allocation, In re. Special Reference No. 1 of 2012* (2012) 10 SCC 1 : (2012) 9 Scale 310 .

22 *Santhosh Kumar Satishbhushan Bariyar v State of Maharashtra,* (2009) 6 SCC 498 :
(2009) 7 Scale 341 .

23 AIR 2002 SC 1771
: (2002) 4 SCC 388 (*supra*).

24 *Antulay v Nayak*, AIR 1988 SC 1531 - 7 Judges.

25 *State of WB v UOI*, (1964) 1 SCR 371 (*430*).

26 H M Seervai, *Constitutional Law of India*, 4th Edn vol I pp 441-445.

27 Though not a direct decision on the point, the obiter of Hidayatullah J. in *State Trading Corp v C.T.O.*, (1964) 4 SCR 99 (*155*) *to the effect* that a Government Department cannot be allowed to claim a fundamental right against the State unless a State can be held to be its citizen, sounds the correct note.

28 *State of Bihar v UOI*, AIR 1970 SC 1446 (*1449*) : (1970) 1 SCC 67
.

29 **Cf.** *UOI v State of Rajasthan*,
AIR 1984 SC 1675 (paras, 12-13) : (1984) 4 SCC 238 .

30 Cf. *UOI v State of Mysore*,
AIR 1977 SC 127 (*129*) : (1976) 4 SCC 531
.

31 *Election Commr. v State of Haryana*, (1984) Supp. SCC 194 (para 4).

32 **Cf.** *UOI v State of Rajasthan*, AIR 1984 SC 1675 (paras, 12-13) : (1984) 4 SCC 238 ; Cf. *UOI v State of Mysore*, AIR 1977 SC 127 (*129*) : (1976) 4 SCC 531 ; *Election Commr. v State of Haryana*, (1984) Supp. SCC 194 (para 4).

33 (1967) Yearbook on Human Rights, p 109; [3 SCW 222].

34 *D.F.O. v B.T. Co*, AIR 1981 SC 1368 (paras 7-8) : (1981) 3 SCC 238 ; *D.C.G.M. v UOI*, AIR 1983 SC 937 : (1983) 4 SCC 166 .

35 *D.F.O. v B.T. Co*, AIR 1981 SC 1368 (paras 7-8) : (1981) 3 SCC 238 ; *D.C.G.M. v UOI*, AIR 1983 SC 937 : (1983) 4 SCC 166 ; *Tata Engineering v State of Bihar*, AIR 1965 SC 40 : [1964] 6 SCR 885 .